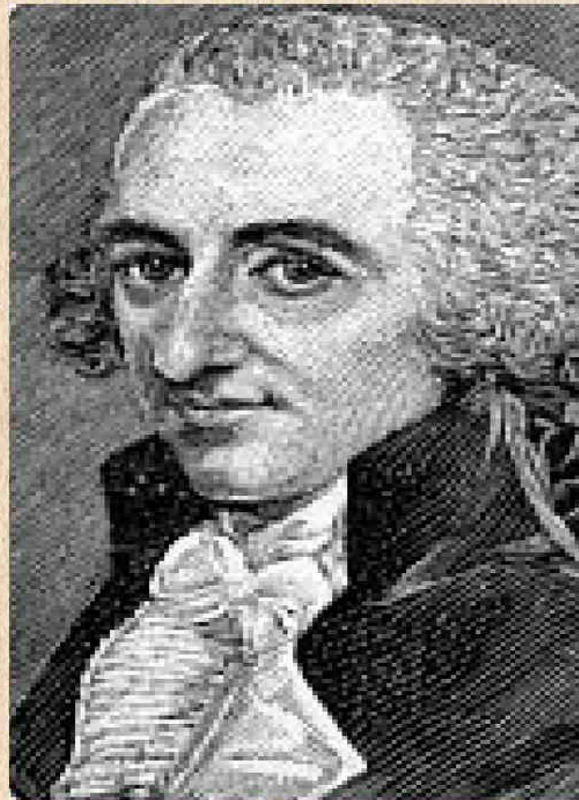


Common Sense;

**by
Thomas
Paine**

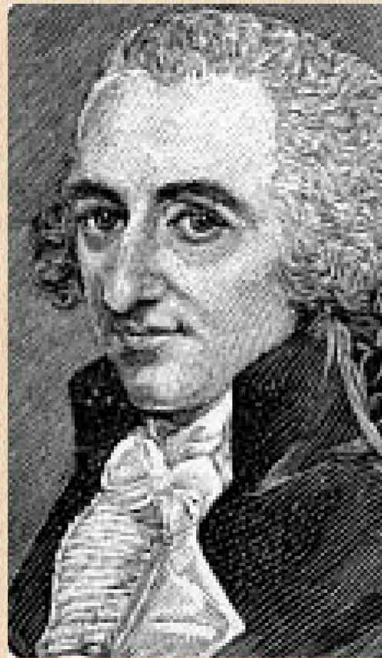


**Bradford's Third Edition
February 14, 1776**

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This file was first posted, on a President's Day Holiday, in memory of Thomas Paine, one of our most influential and most under-appreciated patriots. DW

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A new edition, with several additions in the body of the work. To which is added an [APPENDIX](#); together with an [address to the people called Quakers](#).

Man knows no Master save creating HEAVEN
Or those whom choice and common good ordain.

THOMSON.

PHILADELPHIA

Printed and sold by W. & T. Bradford, February 14, 1776.

MDCCLXXVI

Common Sense

By Thomas Paine

INTRODUCTION.

PERHAPS the sentiments contained in the following pages, are not yet sufficiently fashionable to procure them general favor; a long habit of not thinking a thing *wrong*, gives it a superficial appearance of being *right*, and raises at first a formidable outcry in defense of custom. But the tumult soon subsides. Time makes more converts than reason.

As a long and violent abuse of power, is generally the Means of calling the right of it in question (and in Matters too which might never have been thought of, had not the Sufferers been aggravated into the inquiry) and as the King of England hath undertaken in his *own Right*, to support the Parliament in what he calls *Theirs*, and as the good people of this country are grievously oppressed by the combination, they have an undoubted privilege to inquire into the pretensions of both, and equally to reject the usurpation of either.

In the following sheets, the author hath studiously avoided every thing which is personal among ourselves. Compliments as well as censure to individuals make no part thereof. The wise, and the worthy, need not the triumph of a pamphlet; and those whose sentiments are injudicious, or unfriendly, will cease of themselves unless too much pains are bestowed upon their conversion.

The cause of America is in a great measure the cause of all mankind. Many circumstances hath, and will arise, which are not local, but universal, and through which the principles of all Lovers of Mankind are affected, and in the Event of which, their Affections are interested. The laying a Country desolate with Fire and Sword, declaring War against the natural rights of all Mankind, and extirpating the Defenders thereof from the Face of the Earth, is the Concern of every Man to whom Nature hath given the Power of feeling; of which Class, regardless of Party Censure, is the

AUTHOR

P.S. The Publication of this new Edition hath been delayed, with a View of taking notice (had it been necessary) of any Attempt to refute the Doctrine of Independance: As no Answer hath yet appeared, it is now

presumed that none will, the Time needful for getting such a Performance ready for the Public being considerably past.

Who the Author of this Production is, is wholly unnecessary to the Public, as the Object for Attention is the *Doctrine itself*, not the *Man*. Yet it may not be unnecessary to say, That he is unconnected with any Party, and under no sort of Influence public or private, but the influence of reason and principle.

Philadelphia, February 14, 1776

OF THE ORIGIN AND DESIGN OF GOVERNMENT IN GENERAL, WITH CONCISE REMARKS ON THE ENGLISH CONSTITUTION.

SOME writers have so confounded society with government, as to leave little or no distinction between them; whereas they are not only different, but have different origins. Society is produced by our wants, and government by our wickedness; the former promotes our happiness *positively* by uniting our affections, the latter *negatively* by restraining our vices. The one encourages intercourse, the other creates distinctions. The first a patron, the last a punisher.

Society in every state is a blessing, but government even in its best state is but a necessary evil; in its worst state an intolerable one; for when we suffer, or are exposed to the same miseries *by a government*, which we might expect in a country *without government*, our calamity is heightened by reflecting that we furnish the means by which we suffer. Government, like dress, is the badge of lost innocence; the palaces of kings are built on the ruins of the bowers of paradise. For were the impulses of conscience clear, uniform, and irresistibly obeyed, man would need no other lawgiver; but that not being the case, he finds it necessary to surrender up a part of his property to furnish means for the protection of the rest; and this he is induced to do by the same prudence which in every other case advises him out of two evils to choose the least. *Wherefore*, security being the true design and end of government, it unanswerably follows that whatever *form* thereof appears most likely to ensure it to us, with the least expence and greatest benefit, is preferable to all others.

In order to gain a clear and just idea of the design and end of government, let us suppose a small number of persons settled in some sequestered part of the earth, unconnected with the rest, they will then represent the first peopling of any country, or of the world. In this state of natural liberty, society will be their first thought. A thousand motives will excite them thereto, the strength of one man is so unequal to his wants, and

his mind so unfitted for perpetual solitude, that he is soon obliged to seek assistance and relief of another, who in his turn requires the same. Four or five united would be able to raise a tolerable dwelling in the midst of a wilderness, but *one* man might labour out of the common period of life without accomplishing any thing; when he had felled his timber he could not remove it, nor erect it after it was removed; hunger in the mean time would urge him from his work, and every different want call him a different way. Disease, nay even misfortune would be death, for though neither might be mortal, yet either would disable him from living, and reduce him to a state in which he might rather be said to perish than to die.

Thus necessity, like a gravitating power, would soon form our newly arrived emigrants into society, the reciprocal blessings of which, would supersede, and render the obligations of law and government unnecessary while they remained perfectly just to each other; but as nothing but heaven is impregnable to vice, it will unavoidably happen, that in proportion as they surmount the first difficulties of emigration, which bound them together in a common cause, they will begin to relax in their duty and attachment to each other; and this remissness, will point out the necessity, of establishing some form of government to supply the defect of moral virtue.

Some convenient tree will afford them a State-House, under the branches of which, the whole colony may assemble to deliberate on public matters. It is more than probable that their first laws will have the title only of REGULATIONS, and be enforced by no other penalty than public disesteem. In this first parliament every man, by natural right, will have a seat.

But as the colony increases, the public concerns will increase likewise, and the distance at which the members may be separated, will render it too inconvenient for all of them to meet on every occasion as at first, when their number was small, their habitations near, and the public concerns few and trifling. This will point out the convenience of their consenting to leave the legislative part to be managed by a select number chosen from the whole body, who are supposed to have the same concerns at stake which those who appointed them, and who will act in the same manner as the whole body would act were they present. If the colony continue increasing, it will become necessary to augment the number of the representatives, and that the interest of every part of the colony may be attended to, it will be found

best to divide the whole into convenient parts, each part sending its proper number; and that the *elected* might never form to themselves an interest separate from the *electors*, prudence will point out the propriety of having elections often; because as the *elected* might by that means return and mix again with the general body of the *electors* in a few months, their fidelity to the public will be secured by the prudent reflexion of not making a rod for themselves. And as this frequent interchange will establish a common interest with every part of the community, they will mutually and naturally support each other, and on this (not on the unmeaning name of king) depends the *strength of government, and the happiness of the governed*.

Here then is the origin and rise of government; namely, a mode rendered necessary by the inability of moral virtue to govern the world; here too is the design and end of government, viz. freedom and security. And however our eyes may be dazzled with show, or our ears deceived by sound; however prejudice may warp our wills, or interest darken our understanding, the simple voice of nature and of reason will say, it is right.

I draw my idea of the form of government from a principle in nature, which no art can overturn, viz. that the more simple any thing is, the less liable it is to be disordered; and the easier repaired when disordered; and with this maxim in view, I offer a few remarks on the so much boasted constitution of England. That it was noble for the dark and slavish times in which it was erected, is granted. When the world was over run with tyranny the least remove therefrom was a glorious rescue. But that it is imperfect, subject to convulsions, and incapable of producing what it seems to promise, is easily demonstrated.

Absolute governments (tho' the disgrace of human nature) have this advantage with them, that they are simple; if the people suffer, they know the head from which their suffering springs, know likewise the remedy, and are not bewildered by a variety of causes and cures. But the constitution of England is so exceedingly complex, that the nation may suffer for years together without being able to discover in which part the fault lies, some will say in one and some in another, and every political physician will advise a different medicine.

I know it is difficult to get over local or long standing prejudices, yet if we will suffer ourselves to examine the component parts of the English

constitution, we shall find them to be the base remains of two ancient tyrannies, compounded with some new republican materials.

First.—The remains of monarchical tyranny in the person of the king.

Secondly.—The remains of aristocratical tyranny in the persons of the peers.

Thirdly.—The new republican materials, in the persons of the commons, on whose virtue depends the freedom of England.

The two first, by being hereditary, are independent of the people; wherefore in a *constitutional sense* they contribute nothing towards the freedom of the state.

To say that the constitution of England is a *union* of three powers reciprocally *checking* each other, is farcical, either the words have no meaning, or they are flat contradictions.

To say that the commons is a check upon the king, presupposes two things:

First.—That the king is not to be trusted without being looked after, or in other words, that a thirst for absolute power is the natural disease of monarchy.

Secondly.—That the commons, by being appointed for that purpose, are either wiser or more worthy of confidence than the crown.

But as the same constitution which gives the commons a power to check the king by withholding the supplies, gives afterwards the king a power to check the commons, by empowering him to reject their other bills; it again supposes that the king is wiser than those whom it has already supposed to be wiser than him. A mere absurdity!

There is something exceedingly ridiculous in the composition of monarchy; it first excludes a man from the means of information, yet empowers him to act in cases where the highest judgment is required. The state of a king shuts him from the world, yet the business of a king requires him to know it thoroughly; wherefore the different parts, by unnaturally opposing and destroying each other, prove the whole character to be absurd and useless.

Some writers have explained the English constitution thus; the king, say they, is one, the people another; the peers are an house in behalf of the king; the commons in behalf of the people; but this hath all the distinctions of a

house divided against itself; and though the expressions be pleasantly arranged, yet when examined they appear idle and ambiguous; and it will always happen, that the nicest construction that words are capable of, when applied to the description of some thing which either cannot exist, or is too incomprehensible to be within the compass of description, will be words of sound only, and though they may amuse the ear, they cannot inform the mind, for this explanation includes a previous question, viz. *How came the king by a power which the people are afraid to trust, and always obliged to check?* Such a power could not be the gift of a wise people, neither can any power, *which needs checking*, be from God; yet the provision, which the constitution makes, supposes such a power to exist.

But the provision is unequal to the task; the means either cannot or will not accomplish the end, and the whole affair is a *felo de se*; for as the greater weight will always carry up the less, and as all the wheels of a machine are put in motion by one, it only remains to know which power in the constitution has the most weight, for that will govern; and though the others, or a part of them, may clog, or, as the phrase is, check the rapidity of its motion, yet so long as they cannot stop it, their endeavors will be ineffectual; the first moving power will at last have its way, and what it wants in speed is supplied by time.

That the crown is this overbearing part in the English constitution needs not be mentioned, and that it derives its whole consequence merely from being the giver of places and pensions is self-evident, wherefore, though we have been wise enough to shut and lock a door against absolute monarchy, we at the same time have been foolish enough to put the crown in possession of the key.

The prejudice of Englishmen, in favour of their own government by king, lords and commons, arises as much or more from national pride than reason. Individuals are undoubtedly safer in England than in some other countries, but the *will* of the king is as much the *law* of the land in Britain as in France, with this difference, that instead of proceeding directly from his mouth, it is handed to the people under the more formidable shape of an act of parliament. For the fate of Charles the first, hath only made kings more subtle—not more just.

Wherefore, laying aside all national pride and prejudice in favour of modes and forms, the plain truth is, that *it is wholly owing to the*

constitution of the people, and not to the constitution of the government that the crown is not as oppressive in England as in Turkey.

An inquiry into the *constitutional errors* in the English form of government is at this time highly necessary, for as we are never in a proper condition of doing justice to others, while we continue under the influence of some leading partiality, so neither are we capable of doing it to ourselves while we remain fettered by any obstinate prejudice. And as a man, who is attached to a prostitute, is unfitted to choose or judge of a wife, so any prepossession in favour of a rotten constitution of government will disable us from discerning a good one.

OF MONARCHY AND HEREDITARY SUCCESSION.

MANKIND being originally equals in the order of creation, the equality could only be destroyed by some subsequent circumstance; the distinctions of rich, and poor, may in a great measure be accounted for, and that without having recourse to the harsh ill sounding names of oppression and avarice. Oppression is often the *consequence*, but seldom or never the *means* of riches; and though avarice will preserve a man from being necessitously poor, it generally makes him too timorous to be wealthy.

But there is another and greater distinction for which no truly natural or religious reason can be assigned, and that is, the distinction of men into KINGS and SUBJECTS. Male and female are the distinctions of nature, good and bad the distinctions of heaven; but how a race of men came into the world so exalted above the rest, and distinguished like some new species, is worth enquiring into, and whether they are the means of happiness or of misery to mankind.

In the early ages of the world, according to the scripture chronology, there were no kings; the consequence of which was there were no wars; it is the pride of kings which throw mankind into confusion. Holland without a king hath enjoyed more peace for this last century than any of the monarchical governments in Europe. Antiquity favors the same remark; for the quiet and rural lives of the first patriarchs hath a happy something in them, which vanishes away when we come to the history of Jewish royalty.

Government by kings was first introduced into the world by the Heathens, from whom the children of Israel copied the custom. It was the most prosperous invention the Devil ever set on foot for the promotion of idolatry. The Heathens paid divine honors to their deceased kings, and the christian world hath improved on the plan by doing the same to their living ones. How impious is the title of sacred majesty applied to a worm, who in the midst of his splendor is crumbling into dust!

As the exalting one man so greatly above the rest cannot be justified on the equal rights of nature, so neither can it be defended on the authority of scripture; for the will of the Almighty, as declared by Gideon and the

prophet Samuel, expressly disapproves of government by kings. All anti-monarchical parts of scripture have been very smoothly glossed over in monarchical governments, but they undoubtedly merit the attention of countries which have their governments yet to form. “*Render unto Cæsar the things which are Cæsar’s*” is the scripture doctrine of courts, yet it is no support of monarchical government, for the Jews at that time were without a king, and in a state of vassalage to the Romans.

Near three thousand years passed away from the Mosaic account of the creation, till the Jews under a national delusion requested a king. Till then their form of government (except in extraordinary cases, where the Almighty interposed) was a kind of republic administered by a judge and the elders of the tribes. Kings they had none, and it was held sinful to acknowledge any being under that title but the Lord of Hosts. And when a man seriously reflects on the idolatrous homage which is paid to the persons of Kings, he need not wonder, that the Almighty ever jealous of his honor, should disapprove of a form of government which so impiously invades the prerogative of heaven.

Monarchy is ranked in scripture as one of the sins of the Jews, for which a curse in reserve is denounced against them. The history of that transaction is worth attending to.

The children of Israel being oppressed by the Midianites, Gideon marched against them with a small army, and victory, thro’ the divine interposition, decided in his favour. The Jews elate with success, and attributing it to the generalship of Gideon, proposed making him a king, saying, *Rule thou over us, thou and thy son and thy son’s son*. Here was temptation in its fullest extent; not a kingdom only, but an hereditary one, but Gideon in the piety of his soul replied, *I will not rule over you, neither shall my son rule over you*. THE LORD SHALL RULE OVER YOU. Words need not be more explicit; Gideon doth not *decline* the honor, but denieth their right to give it; neither doth he compliment them with invented declarations of his thanks, but in the positive stile of a prophet charges them with disaffection to their proper Sovereign, the King of heaven.

About one hundred and thirty years after this, they fell again into the same error. The hankering which the Jews had for the idolatrous customs of the Heathens, is something exceedingly unaccountable; but so it was, that laying hold of the misconduct of Samuel’s two sons, who were entrusted

with some secular concerns, they came in an abrupt and clamorous manner to Samuel, saying, *Behold thou art old, and thy sons walk not in thy ways, now make us a king to judge us like all other nations.* And here we cannot but observe that their motives were bad, viz. that they might be *like* unto other nations, i.e. the Heathens, whereas their true glory laid in being as much *unlike* them as possible. *But the thing displeased Samuel when they said, Give us a king to judge us; and Samuel prayed unto the Lord, and the Lord said unto Samuel, Hearken unto the voice of the people in all that they say unto thee, for they have not rejected thee, but they have rejected me, THAT I SHOULD NOT REIGN OVER THEM.* According to all the works which they have done since the day that I brought them up out of Egypt, even unto this day; wherewith they have forsaken me and served other Gods; so do they also unto thee. Now therefore hearken unto their voice, howbeit, protest solemnly unto them and shew them the manner of the king that shall reign over them, i.e. not of any particular king, but the general manner of the kings of the earth, whom Israel was so eagerly copying after. And notwithstanding the great distance of time and difference of manners, the character is still in fashion. *And Samuel told all the words of the Lord unto the people, that asked of him a king. And he said, This shall be the manner of the king that shall reign over you; he will take your sons and appoint them for himself, for his chariots, and to be his horsemen, and some shall run before his chariots* (this description agrees with the present mode of impressing men) *and he will appoint him captains over thousands and captains over fifties, and will set them to ear his ground and to reap his harvest, and to make his instruments of war, and instruments of his chariots; and he will take your daughters to be confectionaries, and to be cooks and to be bakers* (this describes the expence and luxury as well as the oppression of kings) *and he will take your fields and your olive yards, even the best of them, and give them to his servants; and he will take the tenth of your feed, and of your vineyards, and give them to his officers and to his servants* (by which we see that bribery, corruption and favoritism are the standing vices of kings) *and he will take the tenth of your men servants, and your maid servants, and your goodliest young men and your asses, and put them to his work; and he will take the tenth of your sheep, and ye shall be his servants, and ye shall cry out in that day because of your king which ye shall have chosen, AND THE LORD WILL NOT HEAR YOU IN THAT DAY.* This accounts for the continuation of monarchy; neither do the characters of the

few good kings which have lived since, either sanctify the title, or blot out the sinfulness of the origin; the high encomium given of David takes no notice of him *officially as a king*, but only as a *man* after God's own heart. *Nevertheless the People refused to obey the voice of Samuel, and they said, Nay, but we will have a king over us, that we may be like all the nations, and that our king may judge us, and go out before us, and fight our battles.* Samuel continued to reason with them, but to no purpose; he set before them their ingratitude, but all would not avail; and seeing them fully bent on their folly, he cried out, *I will call unto the Lord, and he shall send thunder and rain* (which then was a punishment, being in the time of wheat harvest) *that ye may perceive and see that your wickedness is great which ye have done in the sight of the Lord,* IN ASKING YOU A KING. *So Samuel called unto the Lord, and the Lord sent thunder and rain that day, and all the people greatly feared the Lord and Samuel. And all the people said unto Samuel, Pray for thy servants unto the Lord thy God that we die not, for WE HAVE ADDED UNTO OUR SINS THIS EVIL, TO ASK A KING.* These portions of scripture are direct and positive. They admit of no equivocal construction. That the Almighty hath here entered his protest against monarchical government is true, or the scripture is false. And a man hath good reason to believe that there is as much of king-craft, as priest-craft, in withholding the scripture from the public in Popish countries. For monarchy in every instance is the Popery of government.

To the evil of monarchy we have added that of hereditary succession; and as the first is a degradation and lessening of ourselves, so the second, claimed as a matter of right, is an insult and an imposition on posterity. For all men being originally equals, no *one* by *birth* could have a right to set up his own family in perpetual preference to all others for ever, and though himself might deserve *some* decent degree of honors of his contemporaries, yet his descendants might be far too unworthy to inherit them. One of the strongest *natural* proofs of the folly of hereditary right in kings, is, that nature disapproves it, otherwise she would not so frequently turn it into ridicule by giving mankind an *ass for a lion*.

Secondly, as no man at first could possess any other public honors than were bestowed upon him, so the givers of those honors could have no power to give away the right of posterity, and though they might say "We choose you for *our* head," they could not, without manifest injustice to their children, say "that your children and your children's children shall reign

over *ours* for ever.” Because such an unwise, unjust, unnatural compact might (perhaps) in the next succession put them under the government of a rogue or a fool. Most wise men, in their private sentiments, have ever treated hereditary right with contempt; yet it is one of those evils, which when once established is not easily removed; many submit from fear, others from superstition, and the more powerful part shares with the king the plunder of the rest.

This is supposing the present race of kings in the world to have had an honorable origin; whereas it is more than probable, that could we take off the dark covering of antiquity, and trace them to their first rise, that we should find the first of them nothing better than the principal ruffian of some restless gang, whose savage manners or pre-eminence in subtility obtained him the title of chief among plunderers; and who by increasing in power, and extending his depredations, over-awed the quiet and defenceless to purchase their safety by frequent contributions. Yet his electors could have no idea of giving hereditary right to his descendants, because such a perpetual exclusion of themselves was incompatible with the free and unrestrained principles they professed to live by. Wherefore, hereditary succession in the early ages of monarchy could not take place as a matter of claim, but as something casual or complimentary; but as few or no records were extant in those days, and traditional history stuffed with fables, it was very easy, after the lapse of a few generations, to trump up some superstitious tale, conveniently timed, Mahomet like, to cram hereditary right down the throats of the vulgar. Perhaps the disorders which threatened, or seemed to threaten, on the decease of a leader and the choice of a new one (for elections among ruffians could not be very orderly) induced many at first to favor hereditary pretensions; by which means it happened, as it hath happened since, that what at first was submitted to as a convenience, was afterwards claimed as a right.

England, since the conquest, hath known some few good monarchs, but groaned beneath a much larger number of bad ones; yet no man in his senses can say that their claim under William the Conqueror is a very honorable one. A French bastard landing with an armed banditti, and establishing himself king of England against the consent of the natives, is in plain terms a very paltry rascally original.—It certainly hath no divinity in it. However, it is needless to spend much time in exposing the folly of hereditary right; if there are any so weak as to believe it, let them

promiscuously worship the ass and lion, and welcome. I shall neither copy their humility, nor disturb their devotion.

Yet I should be glad to ask how they suppose kings came at first? The question admits but of three answers, viz. either by lot, by election, or by usurpation. If the first king was taken by lot, it establishes a precedent for the next, which excludes hereditary succession. Saul was by lot, yet the succession was not hereditary, neither does it appear from that transaction there was any intention it ever should. If the first king of any country was by election, that likewise establishes a precedent for the next; for to say, that the *right* of all future generations is taken away, by the act of the first electors, in their choice not only of a king, but of a family of kings for ever, hath no parallel in or out of scripture but the doctrine of original sin, which supposes the free will of all men lost in Adam; and from such comparison, and it will admit of no other, hereditary succession can derive no glory. For as in Adam all sinned, and as in the first electors all men obeyed; as in the one all mankind were subjected to Satan, and in the other to Sovereignty; as our innocence was lost in the first, and our authority in the last; and as both disable us from reassuming some former state and privilege, it unanswerably follows that original sin and hereditary succession are parallels. Dishonorable rank! Inglorious connexion! Yet the most subtile sophist cannot produce a juster simile.

As to usurpation, no man will be so hardy as to defend it; and that William the Conqueror was an usurper is a fact not to be contradicted. The plain truth is, that the antiquity of English monarchy will not bear looking into.

But it is not so much the absurdity as the evil of hereditary succession which concerns mankind. Did it ensure a race of good and wise men it would have the seal of divine authority, but as it opens a door to the *foolish*, the *wicked*, and the *improper*, it hath in it the nature of oppression. Men who look upon themselves born to reign, and others to obey, soon grow insolent; selected from the rest of mankind their minds are early poisoned by importance; and the world they act in differs so materially from the world at large, that they have but little opportunity of knowing its true interests, and when they succeed to the government are frequently the most ignorant and unfit of any throughout the dominions.

Another evil which attends hereditary succession is, that the throne is subject to be possessed by a minor at any age; all which time the regency, acting under the cover of a king, have every opportunity and inducement to betray their trust. The same national misfortune happens, when a king worn out with age and infirmity, enters the last stage of human weakness. In both these cases the public becomes a prey to every miscreant, who can tamper successfully with the follies either of age or infancy.

The most plausible plea, which hath ever been offered in favour of hereditary succession, is, that it preserves a nation from civil wars; and were this true, it would be weighty; whereas, it is the most barefaced falsity ever imposed upon mankind. The whole history of England disowns the fact. Thirty kings and two minors have reigned in that distracted kingdom since the conquest, in which time there have been (including the Revolution) no less than eight civil wars and nineteen rebellions. Wherefore instead of making for peace, it makes against it, and destroys the very foundation it seems to stand on.

The contest for monarchy and succession, between the houses of York and Lancaster, laid England in a scene of blood for many years. Twelve pitched battles, besides skirmishes and sieges, were fought between Henry and Edward. Twice was Henry prisoner to Edward, who in his turn was prisoner to Henry. And so uncertain is the fate of war and the temper of a nation, when nothing but personal matters are the ground of a quarrel, that Henry was taken in triumph from a prison to a palace, and Edward obliged to fly from a palace to a foreign land; yet, as sudden transitions of temper are seldom lasting, Henry in his turn was driven from the throne, and Edward recalled to succeed him. The parliament always following the strongest side.

This contest began in the reign of Henry the Sixth, and was not entirely extinguished till Henry the Seventh, in whom the families were united. Including a period of 67 years, viz. from 1422 to 1489.

In short, monarchy and succession have laid (not this or that kingdom only) but the world in blood and ashes. 'Tis a form of government which the word of God bears testimony against, and blood will attend it.

If we inquire into the business of a king, we shall find that in some countries they have none; and after sauntering away their lives without pleasure to themselves or advantage to the nation, withdraw from the scene,

and leave their successors to tread the same idle round. In absolute monarchies the whole weight of business, civil and military, lies on the king; the children of Israel in their request for a king, urged this plea “that he may judge us, and go out before us and fight our battles.” But in countries where he is neither a judge nor a general, as in England, a man would be puzzled to know what *is* his business.

The nearer any government approaches to a republic the less business there is for a king. It is somewhat difficult to find a proper name for the government of England. Sir William Meredith calls it a republic; but in its present state it is unworthy of the name, because the corrupt influence of the crown, by having all the places in its disposal, hath so effectually swallowed up the power, and eaten out the virtue of the house of commons (the republican part in the constitution) that the government of England is nearly as monarchical as that of France or Spain. Men fall out with names without understanding them. For it is the republican and not the monarchical part of the constitution of England which Englishmen glory in, viz. the liberty of choosing a house of commons from out of their own body—and it is easy to see that when republican virtue fails, slavery ensues. Why is the constitution of England sickly, but because monarchy hath poisoned the republic, the crown hath engrossed the commons?

In England a king hath little more to do than to make war and give away places; which in plain terms, is to impoverish the nation and set it together by the ears. A pretty business indeed for a man to be allowed eight hundred thousand sterling a year for, and worshipped into the bargain! Of more worth is one honest man to society and in the sight of God, than all the crowned ruffians that ever lived.

THOUGHTS ON THE PRESENT STATE OF AMERICAN AFFAIRS.

IN the following pages I offer nothing more than simple facts, plain arguments, and common sense; and have no other preliminaries to settle with the reader, than that he will divest himself of prejudice and prepossession, and suffer his reason and his feelings to determine for themselves; that he will put *on*, or rather that he will not put *off*, the true character of a man, and generously enlarge his views beyond the present day.

Volumes have been written on the subject of the struggle between England and America. Men of all ranks have embarked in the controversy, from different motives, and with various designs; but all have been ineffectual, and the period of debate is closed. Arms, as the last resource, decide the contest; the appeal was the choice of the king, and the continent hath accepted the challenge.

It hath been reported of the late Mr. Pelham (who tho' an able minister was not without his faults) that on his being attacked in the house of commons, on the score, that his measures were only of a temporary kind, replied "*they will last my time.*" Should a thought so fatal and unmanly possess the colonies in the present contest, the name of ancestors will be remembered by future generations with detestation.

The sun never shined on a cause of greater worth. 'Tis not the affair of a city, a country, a province, or a kingdom, but of a continent—of at least one eighth part of the habitable globe. 'Tis not the concern of a day, a year, or an age; posterity are virtually involved in the contest, and will be more or less affected, even to the end of time, by the proceedings now. Now is the seed time of continental union, faith and honor. The least fracture now will be like a name engraved with the point of a pin on the tender rind of a young oak; the wound will enlarge with the tree, and posterity read it in full grown characters.

By referring the matter from argument to arms, a new æra for politics is struck; a new method of thinking hath arisen. All plans, proposals, &c. prior to the nineteenth of April, *i.e.* to the commencement of hostilities, are like

the almanacks of the last year; which, though proper then, are superseded and useless now. Whatever was advanced by the advocates on either side of the question then, terminated in one and the same point, viz. a union with Great-Britain; the only difference between the parties was the method of effecting it; the one proposing force, the other friendship; but it hath so far happened that the first hath failed, and the second hath withdrawn her influence.

As much hath been said of the advantages of reconciliation, which, like an agreeable dream, hath passed away and left us as we were, it is but right, that we should examine the contrary side of the argument, and inquire into some of the many material injuries which these colonies sustain, and always will sustain, by being connected with, and dependant on Great-Britain. To examine that connexion and dependance, on the principles of nature and common sense, to see what we have to trust to, if separated, and what we are to expect, if dependant.

I have heard it asserted by some, that as America hath flourished under her former connexion with Great-Britain, that the same connexion is necessary towards her future happiness, and will always have the same effect. Nothing can be more fallacious than this kind of argument. We may as well assert that because a child has thrived upon milk, that it is never to have meat, or that the first twenty years of our lives is to become a precedent for the next twenty. But even this is admitting more than is true, for I answer roundly, that America would have flourished as much, and probably much more, had no European power had any thing to do with her. The commerce, by which she hath enriched herself are the necessaries of life, and will always have a market while eating is the custom of Europe.

But she has protected us, say some. That she has engrossed us is true, and defended the continent at our expence as well as her own is admitted, and she would have defended Turkey from the same motive, viz. the sake of trade and dominion.

Alas, we have been long led away by ancient prejudices, and made large sacrifices to superstition. We have boasted the protection of Great-Britain, without considering, that her motive was *interest* not *attachment*; that she did not protect us from *our enemies* on *our account*, but from *her enemies* on *her own account*, from those who had no quarrel with us on any *other account*, and who will always be our enemies on the *same account*. Let

Britain wave her pretensions to the continent, or the continent throw off the dependance, and we should be at peace with France and Spain were they at war with Britain. The miseries of Hanover last war ought to warn us against connexions.

It has lately been asserted in parliament, that the colonies have no relation to each other but through the parent country, *i.e.* that Pennsylvania and the Jerseys, and so on for the rest, are sister colonies by the way of England; this is certainly a very round-about way of proving relationship, but it is the nearest and only true way of proving enemyship, if I may so call it. France and Spain never were, nor perhaps ever will be our enemies as *Americans*, but as our being the *subjects of Great-Britain*.

But Britain is the parent country, say some. Then the more shame upon her conduct. Even brutes do not devour their young, nor savages make war upon their families; wherefore the assertion, if true, turns to her reproach; but it happens not to be true, or only partly so, and the phrase *parent* or *mother country* hath been jesuitically adopted by the king and his parasites, with a low papistical design of gaining an unfair bias on the credulous weakness of our minds. Europe, and not England, is the parent country of America. This new world hath been the asylum for the persecuted lovers of civil and religious liberty from *every part* of Europe. Hither have they fled, not from the tender embraces of the mother, but from the cruelty of the monster; and it is so far true of England, that the same tyranny which drove the first emigrants from home, pursues their descendants still.

In this extensive quarter of the globe, we forget the narrow limits of three hundred and sixty miles (the extent of England) and carry our friendship on a larger scale; we claim brotherhood with every European christian, and triumph in the generosity of the sentiment.

It is pleasant to observe by what regular gradations we surmount the force of local prejudice, as we enlarge our acquaintance with the world. A man born in any town in England divided into parishes, will naturally associate most with his fellow parishioners (because their interests in many cases will be common) and distinguish him by the name of *neighbour*; if he meet him but a few miles from home, he drops the narrow idea of a street, and salutes him by the name of *townsman*; if he travel out of the county, and meet him in any other, he forgets the minor divisions of street and town, and calls him *countryman*, *i.e.* *county-man*; but if in their foreign

excursions they should associate in France or any other part of *Europe*, their local remembrance would be enlarged into that of *Englishmen*. And by a just parity of reasoning, all Europeans meeting in America, or any other quarter of the globe, are *countrymen*; for England, Holland, Germany, or Sweden, when compared with the whole, stand in the same places on the larger scale, which the divisions of street, town, and county do on the smaller ones; distinctions too limited for continental minds. Not one third of the inhabitants, even of this province, are of English descent. Wherefore I reprobate the phrase of parent or mother country applied to England only, as being false, selfish, narrow and ungenerous.

But admitting, that we were all of English descent, what does it amount to? Nothing. Britain, being now an open enemy, extinguishes every other name and title: And to say that reconciliation is our duty, is truly farcical. The first king of England, of the present line (William the Conqueror) was a Frenchman, and half the Peers of England are descendants from the same country; therefore, by the same method of reasoning, England ought to be governed by France.

Much hath been said of the united strength of Britain and the colonies, that in conjunction they might bid defiance to the world. But this is mere presumption; the fate of war is uncertain, neither do the expressions mean any thing; for this continent would never suffer itself to be drained of inhabitants, to support the British arms in either Asia, Africa, or Europe.

Besides what have we to do with setting the world at defiance? Our plan is commerce, and that, well attended to, will secure us the peace and friendship of all Europe; because, it is the interest of all Europe to have America a *free port*. Her trade will always be a protection, and her barrenness of gold and silver secure her from invaders.

I challenge the warmest advocate for reconciliation, to shew, a single advantage that this continent can reap, by being connected with Great Britain. I repeat the challenge, not a single advantage is derived. Our corn will fetch its price in any market in Europe, and our imported goods must be paid for buy them where we will.

But the injuries and disadvantages we sustain by that connection, are without number; and our duty to mankind at large, as well as to ourselves, instruct us to renounce the alliance: Because, any submission to, or dependance on Great-Britain, tends directly to involve this continent in

European wars and quarrels; and sets us at variance with nations, who would otherwise seek our friendship, and against whom, we have neither anger nor complaint. As Europe is our market for trade, we ought to form no partial connection with any part of it. It is the true interest of America to steer clear of European contentions, which she never can do, while by her dependence on Britain, she is made the make-weight in the scale of British politics.

Europe is too thickly planted with kingdoms to be long at peace, and whenever a war breaks out between England and any foreign power, the trade of America goes to ruin, *because of her connection with Britain*. The next war may not turn out like the last, and should it not, the advocates for reconciliation now will be wishing for separation then, because, neutrality in that case, would be a safer convoy than a man of war. Every thing that is right or natural pleads for separation. The blood of the slain, the weeping voice of nature cries, 'TIS TIME TO PART. Even the distance at which the Almighty hath placed England and America, is a strong and natural proof, that the authority of the one, over the other, was never the design of Heaven. The time likewise at which the continent was discovered, adds weight to the argument, and the manner in which it was peopled encreases the force of it. The reformation was preceded by the discovery of America, as if the Almighty graciously meant to open a sanctuary to the persecuted in future years, when home should afford neither friendship nor safety.

The authority of Great-Britain over this continent, is a form of government, which sooner or later must have an end: And a serious mind can draw no true pleasure by looking forward, under the painful and positive conviction, that what he calls "the present constitution" is merely temporary. As parents, we can have no joy, knowing that *this government* is not sufficiently lasting to ensure any thing which we may bequeath to posterity: And by a plain method of argument, as we are running the next generation into debt, we ought to do the work of it, otherwise we use them meanly and pitifully. In order to discover the line of our duty rightly, we should take our children in our hand, and fix our station a few years farther into life; that eminence will present a prospect, which a few present fears and prejudices conceal from our sight.

Though I would carefully avoid giving unnecessary offence, yet I am inclined to believe, that all those who espouse the doctrine of reconciliation,

may be included within the following descriptions. Interested men, who are not to be trusted; weak men, who *cannot* see; prejudiced men, who *will not* see; and a certain set of moderate men, who think better of the European world than it deserves; and this last class, by an ill-judged deliberation, will be the cause of more calamities to this continent, than all the other three.

It is the good fortune of many to live distant from the scene of sorrow; the evil is not sufficient brought to *their* doors to make *them* feel the precariousness with which all American property is possessed. But let our imaginations transport us for a few moments to Boston, that seat of wretchedness will teach us wisdom, and instruct us for ever to renounce a power in whom we can have no trust. The inhabitants of that unfortunate city, who but a few months ago were in ease and affluence, have now, no other alternative than to stay and starve, or turn out to beg. Endangered by the fire of their friends if they continue within the city, and plundered by the soldiery if they leave it. In their present condition they are prisoners without the hope of redemption, and in a general attack for their relief, they would be exposed to the fury of both armies.

Men of passive tempers look somewhat lightly over the offences of Britain, and, still hoping for the best, are apt to call out, "*Come, come, we shall be friends again, for all this.*" But examine the passions and feelings of mankind, Bring the doctrine of reconciliation to the touchstone of nature, and then tell me, whether you can hereafter love, honour, and faithfully serve the power that hath carried fire and sword into your land? If you cannot do all these, then are you only deceiving yourselves, and by your delay bringing ruin upon posterity. Your future connection with Britain, whom you can neither love nor honour, will be forced and unnatural, and being formed only on the plan of present convenience, will in a little time fall into a relapse more wretched than the first. But if you say, you can still pass the violations over, then I ask, Hath your house been burnt? Hath your property been destroyed before your face? Are your wife and children destitute of a bed to lie on, or bread to live on? Have you lost a parent or a child by their hands, and yourself the ruined and wretched survivor? If you have not, then are you not a judge of those who have. But if you have, and still can shake hands with the murderers, then are you unworthy of the name of husband, father, friend, or lover, and whatever may be your rank or title in life, you have the heart of a coward, and the spirit of a sycophant.

This is not inflaming or exaggerating matters, but trying them by those feelings and affections which nature justifies, and without which, we should be incapable of discharging the social duties of life, or enjoying the felicities of it. I mean not to exhibit horror for the purpose of provoking revenge, but to awaken us from fatal and unmanly slumbers, that we may pursue determinately some fixed object. It is not in the power of Britain or of Europe to conquer America, if she do not conquer herself by *delay* and *timidity*. The present winter is worth an age if rightly employed, but if lost or neglected, the whole continent will partake of the misfortune; and there is no punishment which that man will not deserve, be he who, or what, or where he will, that may be the means of sacrificing a season so precious and useful.

It is repugnant to reason, to the universal order of things to all examples from former ages, to suppose, that this continent can longer remain subject to any external power. The most sanguine in Britain does not think so. The utmost stretch of human wisdom cannot, at this time, compass a plan short of separation, which can promise the continent even a year's security. Reconciliation is *now* a fallacious dream. Nature hath deserted the connexion, and Art cannot supply her place. For, as Milton wisely expresses, "never can true reconciliation grow where wounds of deadly hate have pierced so deep."

Every quiet method for peace hath been ineffectual. Our prayers have been rejected with disdain; and only tended to convince us, that nothing flatters vanity, or confirms obstinacy in Kings more than repeated petitioning—and nothing hath contributed more than that very measure to make the Kings of Europe absolute: Witness Denmark and Sweden. Wherefore, since nothing but blows will do, for God's sake, let us come to a final separation, and not leave the next generation to be cutting throats, under the violated unmeaning names of parent and child.

To say, they will never attempt it again is idle and visionary, we thought so at the repeal of the stamp-act, yet a year or two undeceived us; as well may we suppose that nations, which have been once defeated, will never renew the quarrel.

As to government matters, it is not in the power of Britain to do this continent justice: The business of it will soon be too weighty, and intricate, to be managed with any tolerable degree of convenience, by a power, so

distant from us, and so very ignorant of us; for if they cannot conquer us, they cannot govern us. To be always running three or four thousand miles with a tale or a petition, waiting four or five months for an answer, which when obtained requires five or six more to explain it in, will in a few years be looked upon as folly and childishness—There was a time when it was proper, and there is a proper time for it to cease.

Small islands not capable of protecting themselves, are the proper objects for kingdoms to take under their care; but there is something very absurd, in supposing a continent to be perpetually governed by an island. In no instance hath nature made the satellite larger than its primary planet, and as England and America, with respect to each other, reverses the common order of nature, it is evident they belong to different systems: England to Europe, America to itself.

I am not induced by motives of pride, party, or resentment to espouse the doctrine of separation and independance; I am clearly, positively, and conscientiously persuaded that it is the true interest of this continent to be so; that every thing short of *that* is mere patchwork, that it can afford no lasting felicity,—that it is leaving the sword to our children, and shrinking back at a time, when, a little more, a little farther, would have rendered this continent the glory of the earth.

As Britain hath not manifested the least inclination towards a compromise, we may be assured that no terms can be obtained worthy the acceptance of the continent, or any ways equal to the expence of blood and treasure we have been already put to.

The object, contended for, ought always to bear some just proportion to the expence. The removal of North, or the whole detestable junto, is a matter unworthy the millions we have expended. A temporary stoppage of trade, was an inconvenience, which would have sufficiently ballanced the repeal of all the acts complained of, had such repeals been obtained; but if the whole continent must take up arms, if every man must be a soldier, it is scarcely worth our while to fight against a contemptible ministry only. Dearly, dearly, do we pay for the repeal of the acts, if that is all we fight for; for in a just estimation, it is as great a folly to pay a Bunker-hill price for law, as for land. As I have always considered the independancy of this continent, as an event, which sooner or later must arrive, so from the late rapid progress of the continent to maturity, the event could not be far off.

Wherefore, on the breaking out of hostilities, it was not worth the while to have disputed a matter, which time would have finally redressed, unless we meant to be in earnest; otherwise, it is like wasting an estate on a suit at law, to regulate the trespasses of a tenant, whose lease is just expiring. No man was a warmer wisher for reconciliation than myself, before the fatal nineteenth of April 1775, but the moment the event of that day was made known, I rejected the hardened, sullen tempered Pharaoh of England for ever; and disdain the wretch, that with the pretended title of FATHER OF HIS PEOPLE can unfeelingly hear of their slaughter, and composedly sleep with their blood upon his soul.

But admitting that matters were now made up, what would be the event? I answer, the ruin of the continent. And that for several reasons.

First. The powers of governing still remaining in the hands of the king, he will have a negative over the whole legislation of this continent. And as he hath shewn himself such an inveterate enemy to liberty, and discovered such a thirst for arbitrary power; is he, or is he not, a proper man to say to these colonies, “*You shall make no laws but what I please.*” And is there any inhabitant in America so ignorant, as not to know, that according to what is called the *present constitution*, that this continent can make no laws but what the king gives leave to; and is there any man so unwise, as not to see, that (considering what has happened) he will suffer no law to be made here, but such as suit *his* purpose. We may be as effectually enslaved by the want of laws in America, as by submitting to laws made for us in England. After matters are made up (as it is called) can there be any doubt, but the whole power of the crown will be exerted, to keep this continent as low and humble as possible? Instead of going forward we shall go backward, or be perpetually quarrelling or ridiculously petitioning.—We are already greater than the king wishes us to be, and will he not hereafter endeavour to make us less? To bring the matter to one point. Is the power who is jealous of our prosperity, a proper power to govern us? Whoever says *No* to this question is an *independant*, for independancy means no more, than, whether we shall make our own laws, or whether the king, the greatest enemy this continent hath, or can have, shall tell us “*there shall be no laws but such as I like.*”

But the king you will say has a negative in England; the people there can make no laws without his consent. In point of right and good order, there is something very ridiculous, that a youth of twenty-one (which hath often

happened) shall say to several millions of people, older and wiser than himself, I forbid this or that act of yours to be law. But in this place I decline this sort of reply, though I will never cease to expose the absurdity of it, and only answer, that England being the King's residence, and America not so, makes quite another case. The king's negative *here* is ten times more dangerous and fatal than it can be in England, for *there* he will scarcely refuse his consent to a bill for putting England into as strong a state of defence as possible, and in America he would never suffer such a bill to be passed.

America is only a secondary object in the system of British politics, England consults the good of *this* country, no farther than it answers her own purpose. Wherefore, her own interest leads her to suppress the growth of *ours* in every case which doth not promote her advantage, or in the least interferes with it. A pretty state we should soon be in under such a second-hand government, considering what has happened! Men do not change from enemies to friends by the alteration of a name: And in order to shew that reconciliation *now* is a dangerous doctrine, I affirm, *that it would be policy in the king at this time, to repeal the acts for the sake of reinstating himself in the government of the provinces*; in order, that HE MAY ACCOMPLISH BY CRAFT AND SUBTILTY, IN THE LONG RUN, WHAT HE CANNOT DO BY FORCE AND VIOLENCE IN THE SHORT ONE. Reconciliation and ruin are nearly related.

Secondly. That as even the best terms, which we can expect to obtain, can amount to no more than a temporary expedient, or a kind of government by guardianship, which can last no longer than till the colonies come of age, so the general face and state of things, in the interim, will be unsettled and unpromising. Emigrants of property will not choose to come to a country whose form of government hangs but by a thread, and who is every day tottering on the brink of commotion and disturbance; and numbers of the present inhabitants would lay hold of the interval, to dispense of their effects, and quit the continent.

But the most powerful of all arguments, is, that nothing but independance, i.e. a continental form of government, can keep the peace of the continent and preserve it inviolate from civil wars. I dread the event of a reconciliation with Britain now, as it is more than probable, that it will be followed by a revolt somewhere or other, the consequences of which may be far more fatal than all the malice of Britain.

Thousands are already ruined by British barbarity; (thousands more will probably suffer the same fate) Those men have other feelings than us who have nothing suffered. All they *now* possess is liberty, what they before enjoyed is sacrificed to its service, and having nothing more to lose, they disdain submission. Besides, the general temper of the colonies, towards a British government, will be like that of a youth, who is nearly out of his time; they will care very little about her. And a government which cannot preserve the peace, is no government at all, and in that case we pay our money for nothing; and pray what is it that Britain can do, whose power will be wholly on paper, should a civil tumult break out the very day after reconciliation? I have heard some men say, many of whom I believe spoke without thinking, that they dreaded an independance, fearing that it would produce civil wars. It is but seldom that our first thoughts are truly correct, and that is the case here; for there are ten times more to dread from a patched up connexion than from independance. I make the sufferers case my own, and I protest, that were I driven from house and home, my property destroyed, and my circumstances ruined, that as man, sensible of injuries, I could never relish the doctrine of reconciliation, or consider myself bound thereby.

The colonies have manifested such a spirit of good order and obedience to continental government, as is sufficient to make every reasonable person easy and happy on that head. No man can assign the least pretence for his fears, on any other grounds, than such as are truly childish and ridiculous, viz. that one colony will be striving for superiority over another.

Where there are no distinctions there can be no superiority, perfect equality affords no temptation. The republics of Europe are all (and we may say always) in peace. Holland and Swisserland are without wars, foreign or domestic: Monarchical governments, it is true, are never long at rest; the crown itself is a temptation to enterprizing ruffians at *home*; and that degree of pride and insolence ever attendant on regal authority, swells into a rupture with foreign powers, in instances, where a republican government, by being formed on more natural principles, would negotiate the mistake.

If there is any true cause of fear respecting independance, it is because no plan is yet laid down. Men do not see their way out—Wherefore, as an opening into that business, I offer the following hints; at the same time modestly affirming, that I have no other opinion of them myself, than that

they may be the means of giving rise to something better. Could the straggling thoughts of individuals be collected, they would frequently form materials for wise and able men to improve into useful matter.

Let the assemblies be annual, with a President only. The representation more equal. Their business wholly domestic, and subject to the authority of a Continental Congress.

Let each colony be divided into six, eight, or ten, convenient districts, each district to send a proper number of delegates to Congress, so that each colony send at least thirty. The whole number in Congress will be at least 390. Each Congress to sit and to choose a president by the following method. When the delegates are met, let a colony be taken from the whole thirteen colonies by lot, after which, let the whole Congress choose (by ballot) a president from out of the delegates of *that* province. In the next Congress, let a colony be taken by lot from twelve only, omitting that colony from which the president was taken in the former Congress, and so proceeding on till the whole thirteen shall have had their proper rotation. And in order that nothing may pass into a law but what is satisfactorily just, not less than three fifths of the Congress to be called a majority.—He that will promote discord, under a government so equally formed as this, would have joined Lucifer in his revolt.

But as there is a peculiar delicacy, from whom, or in what manner, this business must first arise, and as it seems most agreeable and consistent that it should come from some intermediate body between the governed and the governors, that is, between the Congress and the people, let a CONTINENTAL CONFERENCE be held, in the following manner, and for the following purpose.

A committee of twenty-six members of Congress, viz. two for each colony. Two members from each House of Assembly, or Provincial Convention; and five representatives of the people at large, to be chosen in the capital city or town of each province, for, and in behalf of the whole province, by as many qualified voters as shall think proper to attend from all parts of the province for that purpose; or, if more convenient, the representatives may be chosen in two or three of the most populous parts thereof. In this conference, thus assembled, will be united, the two grand principles of business, *knowledge* and *power*. The members of Congress,

Assemblies, or Conventions, by having had experience in national concerns, will be able and useful counsellors, and the whole, being empowered by the people, will have a truly legal authority.

The conferring members being met, let their business be to frame a CONTINENTAL CHARTER, or Charter of the United Colonies; (answering to what is called the Magna Charta of England) fixing the number and manner of choosing members of Congress, members of Assembly, with their date of sitting, and drawing the line of business and jurisdiction between them: (Always remembering, that our strength is continental, not provincial:) Securing freedom and property to all men, and above all things, the free exercise of religion, according to the dictates of conscience; with such other matter as is necessary for a charter to contain. Immediately after which, the said Conference to dissolve, and the bodies which shall be chosen conformable to the said charter, to be the legislators and governors of this continent for the time being: Whose peace and happiness, may God preserve, Amen.

Should any body of men be hereafter delegated for this or some similar purpose, I offer them the following extracts from that wise observer on governments *Dragonetti*. “The science” says he “of the politician consists in fixing the true point of happiness and freedom. Those men would deserve the gratitude of ages, who should discover a mode of government that contained the greatest sum of individual happiness, with the least national expense.

Dragonetti on virtue and rewards.”

But where says some is the King of America? I’ll tell you Friend, he reigns above, and doth not make havoc of mankind like the Royal Brute of Britain. Yet that we may not appear to be defective even in earthly honors, let a day be solemnly set apart for proclaiming the charter; let it be brought forth placed on the divine law, the word of God; let a crown be placed thereon, by which the world may know, that so far as we approve of monarchy, that in America THE LAW IS KING. For as in absolute governments the King is law, so in free countries the law *ought* to be King; and there ought to be no other. But lest any ill use should afterwards arise, let the crown at the conclusion of the ceremony be demolished, and scattered among the people whose right it is.

A government of our own is our natural right: And when a man seriously reflects on the precariousness of human affairs, he will become convinced, that it is infinitely wiser and safer, to form a constitution of our own in a cool deliberate manner, while we have it in our power, than to trust such an interesting event to time and chance. If we omit it now, some Massanello ¹ may hereafter arise, who laying hold of popular disquietudes, may collect together the desperate and the discontented, and by assuming to themselves the powers of government, may sweep away the liberties of the continent like a deluge. Should the government of America return again into the hands of Britain, the tottering situation of things, will be a temptation for some desperate adventurer to try his fortune; and in such a case, what relief can Britain give? Ere she could hear the news, the fatal business might be done; and ourselves suffering like the wretched Britons under the oppression of the Conqueror. Ye that oppose independance now, ye know not what ye do; ye are opening a door to eternal tyranny, by keeping vacant the seat of government. There are thousands, and tens of thousands, who would think it glorious to expel from the continent, that barbarous and hellish power, which hath stirred up the Indians and Negroes to destroy us, the cruelty hath a double guilt, it is dealing brutally by us, and treacherously by them.

¹ Thomas Anello, otherwise Massanello, a fisherman of Naples, who after spiriting up his countrymen in the public market place, against the oppressions of the Spaniards, to whom the place was then subject, prompted them to revolt, and in the space of a day became king.

To talk of friendship with those in whom our reason forbids us to have faith, and our affections wounded through a thousand pores instruct us to detest, is madness and folly. Every day wears out the little remains of kindred between us and them, and can there be any reason to hope, that as the relationship expires, the affection will increase, or that we shall agree better, when we have ten times more and greater concerns to quarrel over than ever?

Ye that tell us of harmony and reconciliation, can ye restore to us the time that is past? Can ye give to prostitution its former innocence? Neither can ye reconcile Britain and America. The last cord now is broken, the people of England are presenting addresses against us. There are injuries which nature cannot forgive; she would cease to be nature if she did. As well can

the lover forgive the ravisher of his mistress, as the continent forgive the murders of Britain. The Almighty hath implanted in us these unextinguishable feelings for good and wise purposes. They are the guardians of his image in our hearts. They distinguish us from the herd of common animals. The social compact would dissolve, and justice be extirpated the earth, or have only a casual existence were we callous to the touches of affection. The robber, and the murderer, would often escape unpunished, did not the injuries which our tempers sustain, provoke us into justice.

O ye that love mankind! Ye that dare oppose, not only the tyranny, but the tyrant, stand forth! Every spot of the old world is overrun with oppression. Freedom hath been hunted round the globe. Asia, and Africa, have long expelled her—Europe regards her like a stranger, and England hath given her warning to depart. O! receive the fugitive, and prepare in time an asylum for mankind.

OF THE PRESENT ABILITY OF AMERICA, WITH SOME MISCELLANEOUS REFLEXIONS.

I HAVE never met with a man, either in England or America, who hath not confessed his opinion, that a separation between the countries, would take place one time or other: And there is no instance, in which we have shewn less judgment, than in endeavouring to describe, what we call, the ripeness or fitness of the Continent for independance.

As all men allow the measure, and vary only in their opinion of the time, let us, in order to remove mistakes, take a general survey of things, and endeavour, if possible, to find out the *very* time. But we need not go far, the inquiry ceases at once, for, the *time hath found us*. The general concurrence, the glorious union of all things prove the fact.

It is not in numbers, but in unity, that our great strength lies; yet our present numbers are sufficient to repel the force of all the world. The Continent hath, at this time, the largest body of armed and disciplined men of any power under Heaven; and is just arrived at that pitch of strength, in which no single colony is able to support itself, and the whole, when united, can accomplish the matter, and either more, or, less than this, might be fatal in its effects. Our land force is already sufficient, and as to naval affairs, we cannot be insensible, that Britain would never suffer an American man of war to be built, while the continent remained in her hands. Wherefore, we should be no forwarder an hundred years hence in that branch, than we are now; but the truth is, we should be less so, because the timber of the country is every day diminishing, and that, which will remain at last, will be far off and difficult to procure.

Were the continent crowded with inhabitants, her sufferings under the present circumstances would be intolerable. The more sea port towns we had, the more should we have both to defend and to lose. Our present numbers are so happily proportioned to our wants, that no man need be idle. The diminution of trade affords an army, and the necessities of an army create a new trade.

Debts we have none; and whatever we may contract on this account will serve as a glorious memento of our virtue. Can we but leave posterity with a settled form of government, an independant constitution of its own, the purchase at any price will be cheap. But to expend millions for the sake of getting a few vile acts repealed, and routing the present ministry only, is unworthy the charge, and is using posterity with the utmost cruelty; because it is leaving them the great work to do, and a debt upon their backs, from which they derive no advantage. Such a thought is unworthy a man of honor, and is the true characteristic of a narrow heart and a pedling politician.

The debt we may contract doth not deserve our regard if the work be but accomplished. No nation ought to be without a debt. A national debt is a national bond; and when it bears no interest, is in no case a grievance. Britain is oppressed with a debt of upwards of one hundred and forty millions sterling, for which she pays upwards of four millions interest. And as a compensation for her debt, she has a large navy; America is without a debt, and without a navy; yet for the twentieth part of the English national debt, could have a navy as large again. The navy of England is not worth, at this time, more than three millions and an half sterling.

The first and second editions of this pamphlet were published without the following calculations, which are now given as a proof that the above estimation of the navy is just. *See Entic's naval history, intro. page 56.*

The charge of building a ship of each rate, and furnishing her with masts, yards, sails and rigging, together with a proportion of eight months boatswain's and carpenter's sea-stores, as calculated by Mr. Burchett, Secretary to the navy.

		£ [pounds sterling]
For a ship of 100 guns	=	35,553
90	=	29,886
80	=	23,638
70	=	17,785
60	=	14,197
50	=	10,606
40	=	7,558

$$\begin{array}{rcl} 30 & = & 5,846 \\ 20 & = & 3,710 \end{array}$$

And from hence it is easy to sum up the value, or cost rather, of the whole British navy, which in the year 1757, when it was at its greatest glory consisted of the following ships and guns:

Ships. Guns.		Cost of one. Cost of all.	
		Cost in £ [pounds sterling]	
6	100	35,553	213,318
12	90	29,886	358,632
12	80	23,638	283,656
43	70	17,785	764,755
35	60	14,197	496,895
40	50	10,606	424,240
45	40	7,558	340,110
58	20	3,710	215,180
85	Sloops, bombs and fireships, one with another, at	} 2,000	170,000

Cost		3,266,786	
Remains for Guns		233,214	

		3,500,000	

No country on the globe is so happily situated, or so internally capable of raising a fleet as America. Tar, timber, iron, and cordage are her natural produce. We need go abroad for nothing. Whereas the Dutch, who make large profits by hiring out their ships of war to the Spaniards and Portuguese, are obliged to import most of the materials they use. We ought to view the building a fleet as an article of commerce, it being the natural manufactory of this country. It is the best money we can lay out. A navy when finished is worth more than it cost. And is that nice point in national policy, in which commerce and protection are united. Let us build; if we want them not, we can sell; and by that means replace our paper currency with ready gold and silver.

In point of manning a fleet, people in general run into great errors; it is not necessary that one fourth part should be sailors. The Terrible privateer, Captain Death, stood the hottest engagement of any ship last war, yet had not twenty sailors on board, though her complement of men was upwards of two hundred. A few able and social sailors will soon instruct a sufficient number of active landmen in the common work of a ship. Wherefore, we never can be more capable to begin on maritime matters than now, while our timber is standing, our fisheries blocked up, and our sailors and shipwrights out of employ. Men of war, of seventy and eighty guns were built forty years ago in New-England, and why not the same now? Ship-building is America's greatest pride, and in which, she will in time excel the whole world. The great empires of the east are mostly inland, and consequently excluded from the possibility of rivalling her. Africa is in a state of barbarism; and no power in Europe, hath either such an extent of coast, or such an internal supply of materials. Where nature hath given the one, she has withheld the other; to America only hath she been liberal of both. The vast empire of Russia is almost shut out from the sea; wherefore, her boundless forests, her tar, iron, and cordage are only articles of commerce.

In point of safety, ought we to be without a fleet? We are not the little people now, which we were sixty years ago; at that time we might have trusted our property in the streets, or fields rather; and slept securely without locks or bolts to our doors or windows. The case now is altered, and our methods of defence, ought to improve with our increase of property. A common pirate, twelve months ago, might have come up the Delaware, and laid the city of Philadelphia under instant contribution, for what sum he pleased; and the same might have happened to other places. Nay, any daring fellow, in a brig of fourteen or sixteen guns, might have robbed the whole Continent, and carried off half a million of money. These are circumstances which demand our attention, and point out the necessity of naval protection.

Some, perhaps, will say, that after we have made it up with Britain, she will protect us. Can we be so unwise as to mean, that she shall keep a navy in our harbours for that purpose? Common sense will tell us, that the power which hath endeavoured to subdue us, is of all others, the most improper to defend us. Conquest may be effected under the pretence of friendship; and ourselves, after a long and brave resistance, be at last cheated into slavery. And if her ships are not to be admitted into our harbours, I would ask, how

is she to protect us? A navy three or four thousand miles off can be of little use, and on sudden emergencies, none at all. Wherefore, if we must hereafter protect ourselves, why not do it for ourselves? Why do it for another?

The English list of ships of war, is long and formidable, but not a tenth part of them are at any one time fit for service, numbers of them not in being; yet their names are pompously continued in the list, if only a plank be left of the ship: and not a fifth part, of such as are fit for service, can be spared on any one station at one time. The East and West Indies, Mediterranean, Africa, and other parts over which Britain extends her claim, make large demands upon her navy. From a mixture of prejudice and inattention, we have contracted a false notion respecting the navy of England, and have talked as if we should have the whole of it to encounter at once, and for that reason, supposed, that we must have one as large; which not being instantly practicable, have been made use of by a set of disguised Tories to discourage our beginning thereon. Nothing can be farther from truth than this; for if America had only a twentieth part of the naval force of Britain, she would be by far an over match for her; because, as we neither have, nor claim any foreign dominion, our whole force would be employed on our own coast, where we should, in the long run, have two to one the advantage of those who had three or four thousand miles to sail over, before they could attack us, and the same distance to return in order to refit and recruit. And although Britain by her fleet, hath a check over our trade to Europe, we have as large a one over her trade to the West-Indies, which, by laying in the neighbourhood of the Continent, is entirely at its mercy.

Some method might be fallen on to keep up a naval force in time of peace, if we should not judge it necessary to support a constant navy. If premiums were to be given to merchants, to build and employ in their service ships mounted with twenty, thirty, forty or fifty guns, (the premiums to be in proportion to the loss of bulk to the merchants) fifty or sixty of those ships, with a few guardships on constant duty, would keep up a sufficient navy, and that without burdening ourselves with the evil so loudly complained of in England, of suffering their fleet, in time of peace to lie rotting in the docks. To unite the sinews of commerce and defense is sound policy; for when our strength and our riches play into each other's hand, we need fear no external enemy.

In almost every article of defense we abound. Hemp flourishes even to rankness, so that we need not want cordage. Our iron is superior to that of other countries. Our small arms equal to any in the world. Cannon we can cast at pleasure. Saltpetre and gunpowder we are every day producing. Our knowledge is hourly improving. Resolution is our inherent character, and courage hath never yet forsaken us. Wherefore, what is it that we want? Why is it that we hesitate? From Britain we can expect nothing but ruin. If she is once admitted to the government of America again, this Continent will not be worth living in. Jealousies will be always arising; insurrections will be constantly happening; and who will go forth to quell them? Who will venture his life to reduce his own countrymen to a foreign obedience? The difference between Pennsylvania and Connecticut, respecting some unlocated lands, shews the insignificance of a British government, and fully proves, that nothing but Continental authority can regulate Continental matters.

Another reason why the present time is preferable to all others, is, that the fewer our numbers are, the more land there is yet unoccupied, which instead of being lavished by the king on his worthless dependants, may be hereafter applied, not only to the discharge of the present debt, but to the constant support of government. No nation under heaven hath such an advantage as this.

The infant state of the Colonies, as it is called, so far from being against, is an argument in favour of independance. We are sufficiently numerous, and were we more so, we might be less united. It is a matter worthy of observation, that the more a country is peopled, the smaller their armies are. In military numbers, the ancients far exceeded the moderns: and the reason is evident. For trade being the consequence of population, men become too much absorbed thereby to attend to anything else. Commerce diminishes the spirit, both of patriotism and military defence. And history sufficiently informs us, that the bravest achievements were always accomplished in the non-age of a nation. With the increase of commerce, England hath lost its spirit. The city of London, notwithstanding its numbers, submits to continued insults with the patience of a coward. The more men have to lose, the less willing are they to venture. The rich are in general slaves to fear, and submit to courtly power with the trembling duplicity of a Spaniel.

Youth is the seed time of good habits, as well in nations as in individuals. It might be difficult, if not impossible, to form the Continent into one government half a century hence. The vast variety of interests, occasioned by an increase of trade and population, would create confusion. Colony would be against colony. Each being able might scorn each other's assistance: and while the proud and foolish gloried in their little distinctions, the wise would lament, that the union had not been formed before. Wherefore, the *present time* is the *true time* for establishing it. The intimacy which is contracted in infancy, and the friendship which is formed in misfortune, are, of all others, the most lasting and unalterable. Our present union is marked with both these characters: we are young and we have been distressed; but our concord hath withstood our troubles, and fixes a memorable area for posterity to glory in.

The present time, likewise, is that peculiar time, which never happens to a nation but once, viz. the time of forming itself into a government. Most nations have let slip the opportunity, and by that means have been compelled to receive laws from their conquerors, instead of making laws for themselves. First, they had a king, and then a form of government; whereas, the articles or charter of government, should be formed first, and men delegated to execute them afterward: but from the errors of other nations, let us learn wisdom, and lay hold of the present opportunity—*To begin government at the right end.*

When William the Conqueror subdued England, he gave them law at the point of the sword; and until we consent, that the seat of government, in America, be legally and authoritatively occupied, we shall be in danger of having it filled by some fortunate ruffian, who may treat us in the same manner, and then, where will be our freedom? where our property?

As to religion, I hold it to be the indispensable duty of all government, to protect all conscientious professors thereof, and I know of no other business which government hath to do therewith. Let a man throw aside that narrowness of soul, that selfishness of principle, which the niggards of all professions are so unwilling to part with, and he will be at once delivered of his fears on that head. Suspicion is the companion of mean souls, and the bane of all good society. For myself, I fully and conscientiously believe, that it is the will of the Almighty, that there should be diversity of religious opinions among us: It affords a larger field for our Christian kindness. Were

we all of one way of thinking, our religious dispositions would want matter for probation; and on this liberal principle, I look on the various denominations among us, to be like children of the same family, differing only, in what is called, their Christian names.

In [page forty](#), I threw out a few thoughts on the propriety of a Continental Charter, (for I only presume to offer hints, not plans) and in this place, I take the liberty of re-mentioning the subject, by observing, that a charter is to be understood as a bond of solemn obligation, which the whole enters into, to support the right of every separate part, whether of religion, personal freedom, or property. A firm bargain and a right reckoning make long friends.

In a [former page](#) I likewise mentioned the necessity of a large and equal representation; and there is no political matter which more deserves our attention. A small number of electors, or a small number of representatives, are equally dangerous. But if the number of the representatives be not only small, but unequal, the danger is increased. As an instance of this, I mention the following; when the Associators petition was before the House of Assembly of Pennsylvania; twenty-eight members only were present, all the Bucks county members, being eight, voted against it, and had seven of the Chester members done the same, this whole province had been governed by two counties only, and this danger it is always exposed to. The unwarrantable stretch likewise, which that house made in their last sitting, to gain an undue authority over the delegates of that province, ought to warn the people at large, how they trust power out of their own hands. A set of instructions for the Delegates were put together, which in point of sense and business would have dishonoured a schoolboy, and after being approved by a *few*, a *very few* without doors, were carried into the House, and there passed *in behalf of the whole colony*; whereas, did the whole colony know, with what ill-will that House hath entered on some necessary public measures, they would not hesitate a moment to think them unworthy of such a trust.

Immediate necessity makes many things convenient, which if continued would grow into oppressions. Expedience and right are different things. When the calamities of America required a consultation, there was no method so ready, or at that time so proper, as to appoint persons from the several Houses of Assembly for that purpose; and the wisdom with which

they have proceeded hath preserved this continent from ruin. But as it is more than probable that we shall never be without a CONGRESS, every well wisher to good order, must own, that the mode for choosing members of that body, deserves consideration. And I put it as a question to those, who make a study of mankind, whether *representation and election* is not too great a power for one and the same body of men to possess? When we are planning for posterity, we ought to remember, that virtue is not hereditary.

It is from our enemies that we often gain excellent maxims, and are frequently surprised into reason by their mistakes. Mr. Cornwall (one of the Lords of the Treasury) treated the petition of the New-York Assembly with contempt, because *that* House, he said, consisted but of twenty-six members, which trifling number, he argued, could not with decency be put for the whole. We thank him for his involuntary honesty. ¹

¹ Those who would fully understand of what great consequence a large and equal representation is to a state, should read Burgh's political disquisitions.

TO CONCLUDE, however strange it may appear to some, or however unwilling they may be to think so, matters not, but many strong and striking reasons may be given, to shew, that nothing can settle our affairs so expeditiously as an open and determined declaration for independance. Some of which are,

First.—It is the custom of nations, when any two are at war, for some other powers, not engaged in the quarrel, to step in as mediators, and bring about the preliminaries of a peace: but while America calls herself the Subject of Great-Britain, no power, however well disposed she may be, can offer her mediation. Wherefore, in our present state we may quarrel on for ever.

Secondly.—It is unreasonable to suppose, that France or Spain will give us any kind of assistance, if we mean only, to make use of that assistance for the purpose of repairing the breach, and strengthening the connection between Britain and America; because, those powers would be sufferers by the consequences.

Thirdly.—While we profess ourselves the subjects of Britain, we must, in the eye of foreign nations, be considered as rebels. The precedent is somewhat dangerous to *their peace*, for men to be in arms under the name of subjects; we, on the spot, can solve the paradox: but to unite resistance and subjection, requires an idea much too refined for common understanding.

Fourthly.—Were a manifesto to be published, and despatched to foreign courts, setting forth the miseries we have endured, and the peaceable methods we have ineffectually used for redress; declaring, at the same time, that not being able, any longer, to live happily or safely under the cruel disposition of the British court, we had been driven to the necessity of breaking off all connections with her; at the same time, assuring all such courts of our peaceable disposition towards them, and of our desire of entering into trade with them: Such a memorial would produce more good effects to this Continent, than if a ship were freighted with petitions to Britain.

Under our present denomination of British subjects, we can neither be received nor heard abroad: The custom of all courts is against us, and will

be so, until, by an independance, we take rank with other nations.

These proceedings may at first appear strange and difficult; but, like all other steps which we have already passed over, will in a little time become familiar and agreeable; and, until an independance is declared, the Continent will feel itself like a man who continues putting off some unpleasant business from day to day, yet knows it must be done, hates to set about it, wishes it over, and is continually haunted with the thoughts of its necessity.

APPENDIX.

SINCE the publication of the first edition of this pamphlet, or rather, on the same day on which it came out, the King's Speech made its appearance in this city. Had the spirit of prophecy directed the birth of this production, it could not have brought it forth, at a more seasonable juncture, or a more necessary time. The bloody mindedness of the one, shew the necessity of pursuing the doctrine of the other. Men read by way of revenge. And the Speech, instead of terrifying, prepared a way for the manly principles of Independance.

Ceremony, and even, silence, from whatever motive they may arise, have a hurtful tendency, when they give the least degree of countenance to base and wicked performances; wherefore, if this maxim be admitted, it naturally follows, that the King's Speech, as being a piece of finished villainy, deserved, and still deserves, a general execration both by the Congress and the people. Yet, as the domestic tranquillity of a nation, depends greatly, on the *chastity* of what may properly be called NATIONAL MANNERS, it is often better, to pass some things over in silent disdain, than to make use of such new methods of dislike, as might introduce the least innovation, on that guardian of our peace and safety. And, perhaps, it is chiefly owing to this prudent delicacy, that the King's Speech, hath not, before now, suffered a public execution. The Speech if it may be called one, is nothing better than a wilful audacious libel against the truth, the common good, and the existence of mankind; and is a formal and pompous method of offering up human sacrifices to the pride of tyrants. But this general massacre of mankind, is one of the privileges, and the certain consequence of Kings; for as nature knows them *not*, they know *not her*, and although they are beings of our *own* creating, they know not *us*, and are become the gods of their creators. The Speech hath one good quality, which is, that it is not calculated to deceive, neither can we, even if we would, be deceived by it. Brutality and tyranny appear on the face of it. It leaves us at no loss: And every line convinces, even in the moment of reading, that He, who hunts the woods for prey, the naked and untutored Indian, is less a Savage than the King of Britain.

Sir John Dalrymple, the putative father of a whining jesuitical piece, fallaciously called, "*The Address of the people of ENGLAND to the inhabitants of AMERICA*," hath, perhaps, from a vain supposition, that the people *here* were to be frightened at the pomp and description of a king, given, (though very unwisely on his part) the real character of the present one: "But" says this writer, "if you are inclined to pay compliments to an administration, which we do not complain of," (meaning the Marquis of Rockingham's at the repeal of the Stamp Act) "it is very unfair in you to withhold them from that prince, *by whose* NOD ALONE *they were permitted to do any thing.*" This is toryism with a witness! Here is idolatry even without a mask: And he who can calmly hear, and digest such doctrine, hath forfeited his claim to rationality—an apostate from the order of manhood; and ought to be considered—as one, who hath not only given up the proper dignity of man, but sunk himself beneath the rank of animals, and contemptibly crawls through the world like a worm.

However, it matters very little now, what the king of England either says or does; he hath wickedly broken through every moral and human obligation, trampled nature and conscience beneath his feet; and by a steady and constitutional spirit of insolence and cruelty, procured for himself an universal hatred. It is *now* the interest of America to provide for herself. She hath already a large and young family, whom it is more her duty to take care of, than to be granting away her property, to support a power who is become a reproach to the names of men and christians—YE, whose office it is to watch over the morals of a nation, of whatsoever sect or denomination ye are of, as well as ye, who are more immediately the guardians of the public liberty, if ye wish to preserve your native country uncontaminated by European corruption, ye must in secret wish a separation—But leaving the moral part to private reflection, I shall chiefly confine my farther remarks to the following heads.

First. That it is the interest of America to be separated from Britain.

Secondly. Which is the easiest and most practicable plan, RECONCILIATION or INDEPENDANCE? with some occasional remarks.

In support of the first, I could, if I judged it proper, produce the opinion of some of the ablest and most experienced men on this continent; and whose sentiments, on that head, are not yet publicly known. It is in reality a self-evident position: For no nation in a state of foreign dependance, limited

in its commerce, and cramped and fettered in its legislative powers, can ever arrive at any material eminence. America doth not yet know what opulence is; and although the progress which she hath made stands unparalleled in the history of other nations, it is but childhood, compared with what she would be capable of arriving at, had she, as she ought to have, the legislative powers in her own hands. England is, at this time, proudly coveting what would do her no good, were she to accomplish it; and the Continent hesitating on a matter, which will be her final ruin if neglected. It is the commerce and not the conquest of America, by which England is to be benefited, and that would in a great measure continue, were the countries as independant of each other as France and Spain; because in many articles, neither can go to a better market. But it is the independance of this country of Britain or any other, which is now the main and only object worthy of contention, and which, like all other truths discovered by necessity, will appear clearer and stronger every day.

First. Because it will come to that one time or other.

Secondly. Because, the longer it is delayed the harder it will be to accomplish.

I have frequently amused myself both in public and private companies, with silently remarking, the specious errors of those who speak without reflecting. And among the many which I have heard, the following seems the most general, viz. that had this rupture happened forty or fifty years hence, instead of *now*, the Continent would have been more able to have shaken off the dependance. To which I reply, that our military ability, *at this time*, arises from the experience gained in the last war, and which in forty or fifty years time, would have been totally extinct. The Continent, would not, by that time, have had a General, or even a military officer left; and we, or those who may succeed us, would have been as ignorant of martial matters as the ancient Indians: And this single position, closely attended to, will unanswerably prove, that the present time is preferable to all others. The argument turns thus—at the conclusion of the last war, we had experience, but wanted numbers; and forty or fifty years hence, we should have numbers, without experience; wherefore, the proper point of time, must be some particular point between the two extremes, in which a sufficiency of the former remains, and a proper increase of the latter is obtained: And that point of time is the present time.

The reader will pardon this digression, as it does not properly come under the head I first set out with, and to which I again return by the following position, viz.

Should affairs be patched up with Britain, and she to remain the governing and sovereign power of America, (which, as matters are now circumstanced, is giving up the point intirely) we shall deprive ourselves of the very means of sinking the debt we have, or may contract. The value of the back lands which some of the provinces are clandestinely deprived of, by the unjust extention of the limits of Canada, valued only at five pounds sterling per hundred acres, amount to upwards of twenty-five millions, Pennsylvania currency; and the quit-rents at one penny sterling per acre, to two millions yearly.

It is by the sale of those lands that the debt may be sunk, without burthen to any, and the quit-rent reserved thereon, will always lessen, and in time, will wholly support the yearly expence of government. It matters not how long the debt is in paying, so that the lands when sold be applied to the discharge of it, and for the execution of which, the Congress for the time being, will be the continental trustees.

I proceed now to the second head, viz. Which is the easiest and most practicable plan, RECONCILIATION OR INDEPENDANCE; with some occasional remarks.

He who takes nature for his guide is not easily beaten out of his argument, and on that ground, I answer *generally*—*That INDEPENDANCE being a SINGLE SIMPLE LINE, contained within ourselves; and reconciliation, a matter exceedingly perplexed and complicated, and in which, a treacherous capricious court is to interfere, gives the answer without a doubt.*

The present state of America is truly alarming to every man who is capable of reflexion. Without law, without government, without any other mode of power than what is founded on, and granted by courtesy. Held together by an unexampled concurrence of sentiment, which, is nevertheless subject to change, and which every secret enemy is endeavouring to dissolve. Our present condition, is, Legislation without law; wisdom without a plan; constitution without a name; and, what is strangely astonishing, perfect Independance contending for dependance. The instance is without a precedent; the case never existed before; and who can tell what may be the event? The property of no man is secure in the present unbraced

system of things. The mind of the multitude is left at random, and seeing no fixed object before them, they pursue such as fancy or opinion starts. Nothing is criminal; there is no such thing as treason; wherefore, every one thinks himself at liberty to act as he pleases. The Tories dared not have assembled offensively, had they known that their lives, by that act, were forfeited to the laws of the state. A line of distinction should be drawn, between, English soldiers taken in battle, and inhabitants of America taken in arms. The first are prisoners, but the latter traitors. The one forfeits his liberty, the other his head.

Notwithstanding our wisdom, there is a visible feebleness in some of our proceedings which gives encouragement to dissensions. The Continental Belt is too loosely buckled. And if something is not done in time, it will be too late to do any thing, and we shall fall into a state, in which, neither *Reconciliation* nor *Independance* will be practicable. The king and his worthless adherents are got at their old game of dividing the Continent, and there are not wanting among us, Printers, who will be busy in spreading specious falsehoods. The artful and hypocritical letter which appeared a few months ago in two of the New-York papers, and likewise in two others, is an evidence that there are men who want either judgment or honesty.

It is easy getting into holes and corners and talking of reconciliation: But do such men seriously consider, how difficult the task is, and how dangerous it may prove, should the Continent divide thereon. Do they take within their view, all the various orders of men whose situation and circumstances, as well as their own, are to be considered therein. Do they put themselves in the place of the sufferer whose *all* is *already* gone, and of the soldier, who hath quitted *all* for the defence of his country. If their ill judged moderation be suited to their own private situations *only*, regardless of others, the event will convince them, that “they are reckoning without their Host.”

Put us, say some, on the footing we were on in sixty-three: To which I answer, the request is not *now* in the power of Britain to comply with, neither will she propose it; but if it were, and even should be granted, I ask, as a reasonable question, By what means is such a corrupt and faithless court to be kept to its engagements? Another parliament, nay, even the present, may hereafter repeal the obligation, on the pretence, of its being violently obtained, or unwisely granted; and in that case, Where is our

redress?—No going to law with nations; cannon are the barristers of Crowns; and the sword, not of justice, but of war, decides the suit. To be on the footing of sixty-three, it is not sufficient, that the laws only be put on the same state, but, that our circumstances, likewise, be put on the same state; Our burnt and destroyed towns repaired or built up, our private losses made good, our public debts (contracted for defence) discharged; otherwise, we shall be millions worse than we were at that enviable period. Such a request, had it been complied with a year ago, would have won the heart and soul of the Continent—but now it is too late, “The Rubicon is passed.”

Besides, the taking up arms, merely to enforce the repeal of a pecuniary law, seems as unwarrantable by the divine law, and as repugnant to human feelings, as the taking up arms to enforce obedience thereto. The object, on either side, doth not justify the means; for the lives of men are too valuable to be cast away on such trifles. It is the violence which is done and threatened to our persons; the destruction of our property by an armed force; the invasion of our country by fire and sword, which conscientiously qualifies the use of arms: And the instant, in which such a mode of defence became necessary, all subjection to Britain ought to have ceased; and the independancy of America, should have been considered, as dating its æra from, and published by, *the first musket that was fired against her*. This line is a line of consistency; neither drawn by caprice, nor extended by ambition; but produced by a chain of events, of which the colonies were not the authors.

I shall conclude these remarks, with the following timely and well intended hints. We ought to reflect, that there are three different ways, by which an independancy may hereafter be effected; and that *one* of those *three*, will one day or other, be the fate of America, viz. By the legal voice of the people in Congress; by a military power; or by a mob: It may not always happen that our soldiers are citizens, and the multitude a body of reasonable men; virtue, as I have already remarked, is not hereditary, neither is it perpetual. Should an independancy be brought about by the first of those means, we have every opportunity and every encouragement before us, to form the noblest purest constitution on the face of the earth. We have it in our power to begin the world over again. A situation, similar to the present, hath not happened since the days of Noah until now. The birthday of a new world is at hand, and a race of men, perhaps as numerous as all Europe contains, are to receive their portion of freedom from the event of a

few months. The Reflexion is awful—and in this point of view, How trifling, how ridiculous, do the little, paltry cavellings, of a few weak or interested men appear, when weighed against the business of a world.

Should we neglect the present favorable and inviting period, and an Independance be hereafter effected by any other means, we must charge the consequence to ourselves, or to those rather, whose narrow and prejudiced souls, are habitually opposing the measure, without either inquiring or reflecting. There are reasons to be given in support of Independance, which men should rather privately think of, than be publicly told of. We ought not now to be debating whether we shall be independant or not, but, anxious to accomplish it on a firm, secure, and honorable basis, and uneasy rather that it is not yet began upon. Every day convinces us of its necessity. Even the Tories (if such beings yet remain among us) should, of all men, be the most solicitous to promote it; for, as the appointment of committees at first, protected them from popular rage, so, a wise and well established form of government, will be the only certain means of continuing it securely to them. *Wherefore*, if they have not virtue enough to be WHIGS, they ought to have prudence enough to wish for Independance.

In short, Independance is the only BOND that can tye and keep us together. We shall then see our object, and our ears will be legally shut against the schemes of an intriguing, as well, as a cruel enemy. We shall then too, be on a proper footing, to treat with Britain; for there is reason to conclude, that the pride of that court, will be less hurt by treating with the American states for terms of peace, than with those, whom she denominates, “rebellious subjects,” for terms of accommodation. It is our delaying it that encourages her to hope for conquest, and our backwardness tends only to prolong the war. As we have, without any good effect therefrom, withheld our trade to obtain a redress of our grievances, let us *now* try the alternative, by *independantly* redressing them ourselves, and then offering to open the trade. The mercantile and reasonable part in England, will be still with us; because, peace *with* trade, is preferable to war *without* it. And if this offer be not accepted, other courts may be applied to.

On these grounds I rest the matter. And as no offer hath yet been made to refute the doctrine contained in the former editions of this pamphlet, it is a negative proof, that either the doctrine cannot be refuted, or, that the party in favour of it are too numerous to be opposed. *WHEREFORE*, instead of

gazing at each other with suspicious or doubtful curiosity; let each of us, hold out to his neighbour the hearty hand of friendship, and unite in drawing a line, which, like an act of oblivion shall bury in forgetfulness every former dissension. Let the names of Whig and Tory be extinct; and let none other be heard among us, than those of *a good citizen, an open and resolute friend, and a virtuous supporter of the RIGHTS of MANKIND and of the FREE AND INDEPENDANT STATES OF AMERICA.*

To the Representatives of the Religious Society of the People called Quakers, or to so many of them as were concerned in publishing the late piece, entitled "THE ANCIENT TESTIMONY AND PRINCIPLES of the People called QUAKERS renewed, with Respect to the KING and GOVERNMENT, and touching the COMMOTIONS now prevailing in these and other parts of AMERICA addressed to the PEOPLE IN GENERAL."

The Writer of this, is one of those few, who never dishonours religion either by ridiculing, or cavilling at any denomination whatsoever. To God, and not to man, are all men accountable on the score of religion. Wherefore, this epistle is not so properly addressed to you as a religious, but as a political body, dabbling in matters, which the professed Quietude of your Principles instruct you not to meddle with.

As you have, without a proper authority for so doing, put yourselves in the place of the whole body of the Quakers, so, the writer of this, in order to be on an equal rank with yourselves, is under the necessity, of putting himself in the place of all those, who, approve the very writings and principles, against which your testimony is directed: And he hath chosen this singular situation, in order, that you might discover in him that presumption of character which you cannot see in yourselves. For neither he nor you can have any claim or title to *Political Representation*.

When men have departed from the right way, it is no wonder that they stumble and fall. And it is evident from the manner in which ye have managed your testimony, that politics, (as a religious body of men) is not your proper Walk; for however well adapted it might appear to you, it is, nevertheless, a jumble of good and bad put unwisely together, and the conclusion drawn therefrom, both unnatural and unjust.

The two first pages, (and the whole doth not make four) we give you credit for, and expect the same civility from you, because the love and desire of peace is not confined to Quakerism, it is the natural, as well the religious wish of all denominations of men. And on this ground, as men labouring to establish an Independant Constitution of our own, do we exceed all others in our hope, end, and aim. *Our plan is peace for ever.* We are tired of contention with Britain, and can see no real end to it but in a final separation. We act consistently, because for the sake of introducing an endless and uninterrupted peace, do we bear the evils and burthens of the present day. We are endeavoring, and will steadily continue to endeavour, to separate and dissolve a connexion which hath already filled our land with blood; and which, while the name of it remains, will be the fatal cause of future mischiefs to both countries.

We fight neither for revenge nor conquest; neither from pride nor passion; we are not insulting the world with our fleets and armies, nor ravaging the globe for plunder. Beneath the shade of our own vines are we attacked; in our own houses, and on our own lands, is the violence committed against us. We view our enemies in the character of Highwaymen and Housebreakers, and having no defence for ourselves in the civil law, are obliged to punish them by the military one, and apply the sword, in the very case, where you have before now, applied the halter—Perhaps we feel for the ruined and insulted sufferers in all and every part of the continent, with a degree of tenderness which hath not yet made its way into some of your bosoms. But be ye sure that ye mistake not the cause and ground of your Testimony. Call not coldness of soul, religion; nor put the *Bigot* in the place of the *Christian*.

O ye partial ministers of your own acknowledged principles. If the bearing arms be sinful, the first going to war must be more so, by all the difference between wilful attack and unavoidable defence. Wherefore, if ye really preach from conscience, and mean not to make a political hobby-horse of your religion, convince the world thereof, by proclaiming your doctrine to our enemies, *for they likewise bear ARMS*. Give us proof of your sincerity by publishing it at St. James's, to the commanders in chief at Boston, to the Admirals and Captains who are piratically ravaging our coasts, and to all the murdering miscreants who are acting in authority under HIM whom ye profess to serve. Had ye the honest soul of *Barclay* ¹ ye would preach repentance to *your* king; Ye would tell the Royal Wretch his

sins, and warn him of eternal ruin. Ye would not spend your partial invectives against the injured and the insulted only, but, like faithful ministers, would cry aloud and *spare none*. Say not that ye are persecuted, neither endeavour to make us the authors of that reproach, which, ye are bringing upon yourselves; for we testify unto all men, that we do not complain against you because ye are *Quakers*, but because ye pretend to *be* and are NOT Quakers.

¹“Thou hast tasted of prosperity and adversity; thou knowest what it is to be banished thy native country, to be over-ruled as well as to rule, and set upon the throne; and being *oppressed* thou hast reason to know how *hateful* the *oppressor* is both to God and man: If after all these warnings and advertisements, thou dost not turn unto the Lord with all thy heart, but forget him who remembered thee in thy distress, and give up thyself to follow lust and vanity, surely great will be thy condemnation.—Against which snare, as well as the temptation of those who may or do feed thee, and prompt thee to evil, the most excellent and prevalent remedy will be, to apply thyself to that light of Christ which shineth in thy conscience, and which neither can, nor will flatter thee, nor suffer thee to be at ease in thy sins.”

—Barclay’s address to Charles II.

Alas! it seems by the particular tendency of some part of your testimony, and other parts of your conduct, as if, all sin was reduced to, and comprehended in, *the act of bearing arms*, and that by the *people* only. Ye appear to us, to have mistaken party for conscience; because, the general tenor of your actions wants uniformity: And it is exceedingly difficult to us to give credit to many of your pretended scruples; because, we see them made by the same men, who, in the very instant that they are exclaiming against the mammon of this world, are nevertheless, hunting after it with a step as steady as Time, and an appetite as keen as Death.

The quotation which ye have made from Proverbs, in the third page of your testimony, that, “when a man’s ways please the Lord, he maketh even his enemies to be at peace with him”; is very unwisely chosen on your part; because, it amounts to a proof, that the king’s ways (whom ye are desirous of supporting) do *not* please the Lord, otherwise, his reign would be in peace.

I now proceed to the latter part of your testimony, and that, for which all the foregoing seems only an introduction, viz.

“It hath ever been our judgment and principle, since we were called to profess the light of Christ Jesus, manifested in our consciences unto this day, that the setting up and putting down kings and governments, is God’s peculiar prerogative; for causes best known to himself: And that it is not our business to have any hand or contrivance therein; nor to be busy bodies above our station, much less to plot and contrive the ruin, or overturn of any of them, but to pray for the king, and safety of our nation, and good of all men: That we may live a peaceable and quiet life, in all godliness and honesty; *under the government which God is pleased to set over us.*”—If these are *really* your principles why do ye not abide by them? Why do ye not leave that, which ye call God’s Work, to be managed by himself? These very principles instruct you to wait with patience and humility, for the event of all public measures, and to receive *that event* as the divine will towards you. *Wherefore*, what occasion is there for your *political testimony* if you fully believe what it contains: And the very publishing it proves, that either, ye do not believe what ye profess, or have not virtue enough to practise what ye believe.

The principles of Quakerism have a direct tendency to make a man the quiet and inoffensive subject of any, and every government *which is set over him*. And if the setting up and putting down of kings and governments is God’s peculiar prerogative, he most certainly will not be robbed thereof by us; wherefore, the principle itself leads you to approve of every thing, which ever happened, or may happen to kings as being his work. OLIVER CROMWELL thanks you. CHARLES, then, died not by the hands of man; and should the present Proud Imitator of him, come to the same untimely end, the writers and publishers of the Testimony, are bound, by the doctrine it contains, to applaud the fact. Kings are not taken away by miracles, neither are changes in governments brought about by any other means than such as are common and human; and such as we are now using. Even the dispersion of the Jews, though foretold by our Saviour, was effected by arms. Wherefore, as ye refuse to be the means on one side, ye ought not to be meddlers on the other; but to wait the issue in silence; and unless ye can produce divine authority, to prove, that the Almighty who hath created and placed this *new world*, at the greatest distance it could possibly stand, east and west, from every part of the old, doth, nevertheless, disapprove of its

being independant of the corrupt and abandoned court of Britain, unless I say, ye can shew this, how can ye on the ground of your principles, justify the exciting and stirring up the people “firmly to unite in the *abhorrence* of all such *writings*, and *measures*, as evidence a desire and design to break off the *happy* connexion we have hitherto enjoyed, with the kingdom of Great-Britain, and our just and necessary subordination to the king, and those who are lawfully placed in authority under him.” What a slap of the face is here! the men, who in the very paragraph before, have quietly and passively resigned up the ordering, altering, and disposal of kings and governments, into the hands of God, are now, recalling their principles, and putting in for a share of the business. Is it possible, that the conclusion, which is here justly quoted, can any ways follow from the doctrine laid down? The inconsistency is too glaring not to be seen; the absurdity too great not to be laughed at; and such as could only have been made by those, whose understandings were darkened by the narrow and crabby spirit of a despairing political party; for ye are not to be considered as the whole body of the Quakers but only as a factional and fractional part thereof.

Here ends the examination of your testimony; (which I call upon no man to abhor, as ye have done, but only to read and judge of fairly;) to which I subjoin the following remark; “That the setting up and putting down of kings,” most certainly mean, the making him a king, who is yet not so, and the making him no king who is already one. And pray what hath this to do in the present case? We neither mean to *set up* nor to *put down*, neither to *make* nor to *unmake*, but to have nothing to *do* with them. Wherefore, your testimony in whatever light it is viewed serves only to dishonor your judgement, and for many other reasons had better have been let alone than published.

First, Because it tends to the decrease and reproach of all religion whatever, and is of the utmost danger to society, to make it a party in political disputes.

Secondly, Because it exhibits a body of men, numbers of whom disavow the publishing political testimonies, as being concerned therein and approvers thereof.

Thirdly, Because it hath a tendency to undo that continental harmony and friendship which yourselves by your late liberal and charitable donations

hath lent a hand to establish; and the preservation of which, is of the utmost consequence to us all.

And here without anger or resentment I bid you farewell. Sincerely wishing, that as men and christians, ye may always fully and uninterruptedly enjoy every civil and religious right; and be, in your turn, the means of securing it to others; but that the example which ye have unwisely set, of mingling religion with politics, *may be disavowed and reprobated by every inhabitant of AMERICA.*

F I N I S.

On Common Sense

“No writer has exceeded Paine in ease and familiarity of style, in perspicuity of expression, happiness of elucidation, and in simple and unassuming language.”

Thomas Jefferson

“A pamphlet called ‘Commonsense’ makes a great noise. One of the vilest things that ever was published to the world. Full of false representations, lies, calumny, and treason, whose principles are to subvert all Kingly Governments and erect an Independent Republic.”

Nicholas Cresswell

“I dreaded the effect so popular a pamphlet might have among the people, and determined to do all in my Power to counteract the effect of it.”

John Adams

“Its effects were sudden and extensive upon the American mind. It was read by public men.”

Dr. Benjamin Rush

“Have you read the pamphlet Common Sense? I never saw such a masterful performance.... In short, I own myself convinced, by the arguments, of the necessity of separation.”

General Charles Lee

Transcriber's Notes

This production of the Bradford edition of *Common Sense* retains the original characteristics of the document—the author's use of capitalization (large and small), spelling, and italics.

The page numbers of this version of the book were my invention, for ease in reading the HTML document. The page numbers can more accurately be called paragraph numbers. They match the paragraph numbers in the edited text of ‘*Common Sense*’ from the National Humanities Center.

In one case, the text refers to page forty (see our [Page 130](#)). We provided a link to the appropriate part of our document but retained the page number specified by Paine. Our page numbers are not carried over to the Kindle, E-PUB, and text documents produced by Project Gutenberg.

The section "On *Common Sense*," containing quotes about *Common Sense*, have been added by this transcriber.

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**THE WRITINGS OF THOMAS
PAINE**

VOLUME I.

**COLLECTED AND EDITED BY MONCURE DANIEL
CONWAY**

1774 - 1779

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THE AMERICAN CRISIS.

EDITOR'S PREFACE.

THOMAS PAINE, in his Will, speaks of this work as *The American Crisis*, remembering perhaps that a number of political pamphlets had appeared in London, 1775-1776, under general title of "*The Crisis*." By the blunder of an early English publisher of Paine's writings, one essay in the London "*Crisis*" was attributed to Paine, and the error has continued to cause confusion. This publisher was D. I. Eaton, who printed as the first number of Paine's "*Crisis*" an essay taken from the London publication. But his prefatory note says: "Since the printing of this book, the publisher is informed that No. 1, or first *Crisis* in this publication, is not one of the thirteen which Paine wrote, but a letter previous to them." Unfortunately this correction is sufficiently equivocal to leave on some minds the notion that Paine did write the letter in question, albeit not as a number of his "*Crisis*"; especially as Eaton's editor unwarrantably appended the signature "C. S.," suggesting "*Common Sense*." There are, however, no such letters in the London essay, which is signed "Casca." It was published August, 1775, in the form of a letter to General Gage, in answer to his Proclamation concerning the affair at Lexington. It was certainly not written by Paine. It apologizes for the Americans for having, on April 19, at Lexington, made "an attack upon the King's troops from behind walls and lurking holes." The writer asks: "Have not the Americans been driven to this frenzy? Is it not common for an enemy to take every advantage?" Paine, who was in America when the affair occurred at Lexington, would have promptly denounced Gage's story as a falsehood, but the facts known to every one in America were as yet not before the London writer. The English "*Crisis*" bears evidence throughout of having been written in London. It derived nothing from Paine, and he derived nothing from it, unless its title, and this is too obvious for its origin to require discussion. I have no doubt, however, that the title was suggested by the English publication, because Paine has followed its scheme in introducing a "*Crisis Extraordinary*." His work consists of thirteen numbers, and, in addition to these, a "*Crisis Extraordinary*" and a "*Supernumerary Crisis*." In some modern collections all of these have been serially numbered, and a brief newspaper article

added, making sixteen numbers. But Paine, in his Will, speaks of the number as thirteen, wishing perhaps, in his characteristic way, to adhere to the number of the American Colonies, as he did in the thirteen ribs of his iron bridge. His enumeration is therefore followed in the present volume, and the numbers printed successively, although other writings intervened.

The first "Crisis" was printed in the Pennsylvania Journal, December 19, 1776, and opens with the famous sentence, "These are the times that try men's souls"; the last "Crisis" appeared April 19, 1783, (eighth anniversary of the first gun of the war, at Lexington,) and opens with the words, "The times that tried men's souls are over." The great effect produced by Paine's successive publications has been attested by Washington and Franklin, by every leader of the American Revolution, by resolutions of Congress, and by every contemporary historian of the events amid which they were written. The first "Crisis" is of especial historical interest. It was written during the retreat of Washington across the Delaware, and by order of the Commander was read to groups of his dispirited and suffering soldiers. Its opening sentence was adopted as the watchword of the movement on Trenton, a few days after its publication, and is believed to have inspired much of the courage which won that victory, which, though not imposing in extent, was of great moral effect on Washington's little army.

THE CRISIS

THE CRISIS I. (THESE ARE THE TIMES THAT TRY MEN'S SOULS)

THESE are the times that try men's souls. The summer soldier and the sunshine patriot will, in this crisis, shrink from the service of their country; but he that stands it now, deserves the love and thanks of man and woman. Tyranny, like hell, is not easily conquered; yet we have this consolation with us, that the harder the conflict, the more glorious the triumph. What we obtain too cheap, we esteem too lightly: it is dearness only that gives every thing its value. Heaven knows how to put a proper price upon its goods; and it would be strange indeed if so celestial an article as FREEDOM should not be highly rated. Britain, with an army to enforce her tyranny, has declared that she has a right (not only to TAX) but "to BIND us in ALL CASES WHATSOEVER," and if being bound in that manner, is not slavery, then is there not such a thing as slavery upon earth. Even the expression is impious; for so unlimited a power can belong only to God.

Whether the independence of the continent was declared too soon, or delayed too long, I will not now enter into as an argument; my own simple opinion is, that had it been eight months earlier, it would have been much better. We did not make a proper use of last winter, neither could we, while we were in a dependent state. However, the fault, if it were one, was all our own*; we have none to blame but ourselves. But no great deal is lost yet. All that Howe has been doing for this month past, is rather a ravage than a conquest, which the spirit of the Jerseys, a year ago, would have quickly repulsed, and which time and a little resolution will soon recover.

** The present winter is worth an age, if rightly employed; but, if lost or neglected, the whole continent will partake of the evil; and there is no punishment that man does not deserve, be he who, or what, or where he will, that may be the means of sacrificing a season so precious and useful.*

I have as little superstition in me as any man living, but my secret opinion has ever been, and still is, that God Almighty will not give up a people to military destruction, or leave them unsupportedly to perish, who have so earnestly and so repeatedly sought to avoid the calamities of war,

by every decent method which wisdom could invent. Neither have I so much of the infidel in me, as to suppose that He has relinquished the government of the world, and given us up to the care of devils; and as I do not, I cannot see on what grounds the king of Britain can look up to heaven for help against us: a common murderer, a highwayman, or a house-breaker, has as good a pretence as he.

'Tis surprising to see how rapidly a panic will sometimes run through a country. All nations and ages have been subject to them. Britain has trembled like an ague at the report of a French fleet of flat-bottomed boats; and in the fourteenth [fifteenth] century the whole English army, after ravaging the kingdom of France, was driven back like men petrified with fear; and this brave exploit was performed by a few broken forces collected and headed by a woman, Joan of Arc. Would that heaven might inspire some Jersey maid to spirit up her countrymen, and save her fair fellow sufferers from ravage and ravishment! Yet panics, in some cases, have their uses; they produce as much good as hurt. Their duration is always short; the mind soon grows through them, and acquires a firmer habit than before. But their peculiar advantage is, that they are the touchstones of sincerity and hypocrisy, and bring things and men to light, which might otherwise have lain forever undiscovered. In fact, they have the same effect on secret traitors, which an imaginary apparition would have upon a private murderer. They sift out the hidden thoughts of man, and hold them up in public to the world. Many a disguised Tory has lately shown his head, that shall penitentially solemnize with curses the day on which Howe arrived upon the Delaware.

As I was with the troops at Fort Lee, and marched with them to the edge of Pennsylvania, I am well acquainted with many circumstances, which those who live at a distance know but little or nothing of. Our situation there was exceedingly cramped, the place being a narrow neck of land between the North River and the Hackensack. Our force was inconsiderable, being not one-fourth so great as Howe could bring against us. We had no army at hand to have relieved the garrison, had we shut ourselves up and stood on our defence. Our ammunition, light artillery, and the best part of our stores, had been removed, on the apprehension that Howe would endeavor to penetrate the Jerseys, in which case Fort Lee could be of no use to us; for it must occur to every thinking man, whether in the army or not, that these kind of field forts are only for temporary

purposes, and last in use no longer than the enemy directs his force against the particular object which such forts are raised to defend. Such was our situation and condition at Fort Lee on the morning of the 20th of November, when an officer arrived with information that the enemy with 200 boats had landed about seven miles above; Major General [Nathaniel] Green, who commanded the garrison, immediately ordered them under arms, and sent express to General Washington at the town of Hackensack, distant by the way of the ferry = six miles. Our first object was to secure the bridge over the Hackensack, which laid up the river between the enemy and us, about six miles from us, and three from them. General Washington arrived in about three-quarters of an hour, and marched at the head of the troops towards the bridge, which place I expected we should have a brush for; however, they did not choose to dispute it with us, and the greatest part of our troops went over the bridge, the rest over the ferry, except some which passed at a mill on a small creek, between the bridge and the ferry, and made their way through some marshy grounds up to the town of Hackensack, and there passed the river. We brought off as much baggage as the wagons could contain, the rest was lost. The simple object was to bring off the garrison, and march them on till they could be strengthened by the Jersey or Pennsylvania militia, so as to be enabled to make a stand. We staid four days at Newark, collected our out-posts with some of the Jersey militia, and marched out twice to meet the enemy, on being informed that they were advancing, though our numbers were greatly inferior to theirs. Howe, in my little opinion, committed a great error in generalship in not throwing a body of forces off from Staten Island through Amboy, by which means he might have seized all our stores at Brunswick, and intercepted our march into Pennsylvania; but if we believe the power of hell to be limited, we must likewise believe that their agents are under some providential control.

I shall not now attempt to give all the particulars of our retreat to the Delaware; suffice it for the present to say, that both officers and men, though greatly harassed and fatigued, frequently without rest, covering, or provision, the inevitable consequences of a long retreat, bore it with a manly and martial spirit. All their wishes centred in one, which was, that the country would turn out and help them to drive the enemy back. Voltaire has remarked that King William never appeared to full advantage but in difficulties and in action; the same remark may be made on General

Washington, for the character fits him. There is a natural firmness in some minds which cannot be unlocked by trifles, but which, when unlocked, discovers a cabinet of fortitude; and I reckon it among those kind of public blessings, which we do not immediately see, that God hath blessed him with uninterrupted health, and given him a mind that can even flourish upon care.

I shall conclude this paper with some miscellaneous remarks on the state of our affairs; and shall begin with asking the following question, Why is it that the enemy have left the New England provinces, and made these middle ones the seat of war? The answer is easy: New England is not infested with Tories, and we are. I have been tender in raising the cry against these men, and used numberless arguments to show them their danger, but it will not do to sacrifice a world either to their folly or their baseness. The period is now arrived, in which either they or we must change our sentiments, or one or both must fall. And what is a Tory? Good God! what is he? I should not be afraid to go with a hundred Whigs against a thousand Tories, were they to attempt to get into arms. Every Tory is a coward; for servile, slavish, self-interested fear is the foundation of Toryism; and a man under such influence, though he may be cruel, never can be brave.

But, before the line of irrecoverable separation be drawn between us, let us reason the matter together: Your conduct is an invitation to the enemy, yet not one in a thousand of you has heart enough to join him. Howe is as much deceived by you as the American cause is injured by you. He expects you will all take up arms, and flock to his standard, with muskets on your shoulders. Your opinions are of no use to him, unless you support him personally, for 'tis soldiers, and not Tories, that he wants.

I once felt all that kind of anger, which a man ought to feel, against the mean principles that are held by the Tories: a noted one, who kept a tavern at Amboy, was standing at his door, with as pretty a child in his hand, about eight or nine years old, as I ever saw, and after speaking his mind as freely as he thought was prudent, finished with this unfatherly expression, "Well! give me peace in my day." Not a man lives on the continent but fully believes that a separation must some time or other finally take place, and a generous parent should have said, "If there must be trouble, let it be in my day, that my child may have peace;" and this single reflection, well applied,

is sufficient to awaken every man to duty. Not a place upon earth might be so happy as America. Her situation is remote from all the wrangling world, and she has nothing to do but to trade with them. A man can distinguish himself between temper and principle, and I am as confident, as I am that God governs the world, that America will never be happy till she gets clear of foreign dominion. Wars, without ceasing, will break out till that period arrives, and the continent must in the end be conqueror; for though the flame of liberty may sometimes cease to shine, the coal can never expire.

America did not, nor does not want force; but she wanted a proper application of that force. Wisdom is not the purchase of a day, and it is no wonder that we should err at the first setting off. From an excess of tenderness, we were unwilling to raise an army, and trusted our cause to the temporary defence of a well-meaning militia. A summer's experience has now taught us better; yet with those troops, while they were collected, we were able to set bounds to the progress of the enemy, and, thank God! they are again assembling. I always considered militia as the best troops in the world for a sudden exertion, but they will not do for a long campaign. Howe, it is probable, will make an attempt on this city [Philadelphia]; should he fail on this side the Delaware, he is ruined. If he succeeds, our cause is not ruined. He stakes all on his side against a part on ours; admitting he succeeds, the consequence will be, that armies from both ends of the continent will march to assist their suffering friends in the middle states; for he cannot go everywhere, it is impossible. I consider Howe as the greatest enemy the Tories have; he is bringing a war into their country, which, had it not been for him and partly for themselves, they had been clear of. Should he now be expelled, I wish with all the devotion of a Christian, that the names of Whig and Tory may never more be mentioned; but should the Tories give him encouragement to come, or assistance if he come, I as sincerely wish that our next year's arms may expel them from the continent, and the Congress appropriate their possessions to the relief of those who have suffered in well-doing. A single successful battle next year will settle the whole. America could carry on a two years' war by the confiscation of the property of disaffected persons, and be made happy by their expulsion. Say not that this is revenge, call it rather the soft resentment of a suffering people, who, having no object in view but the good of all, have staked their own all upon a seemingly doubtful event. Yet it is folly to argue against determined hardness; eloquence may strike the ear, and the

language of sorrow draw forth the tear of compassion, but nothing can reach the heart that is steeled with prejudice.

Quitting this class of men, I turn with the warm ardor of a friend to those who have nobly stood, and are yet determined to stand the matter out: I call not upon a few, but upon all: not on this state or that state, but on every state: up and help us; lay your shoulders to the wheel; better have too much force than too little, when so great an object is at stake. Let it be told to the future world, that in the depth of winter, when nothing but hope and virtue could survive, that the city and the country, alarmed at one common danger, came forth to meet and to repulse it. Say not that thousands are gone, turn out your tens of thousands; throw not the burden of the day upon Providence, but "show your faith by your works," that God may bless you. It matters not where you live, or what rank of life you hold, the evil or the blessing will reach you all. The far and the near, the home counties and the back, the rich and the poor, will suffer or rejoice alike. The heart that feels not now is dead; the blood of his children will curse his cowardice, who shrinks back at a time when a little might have saved the whole, and made them happy. I love the man that can smile in trouble, that can gather strength from distress, and grow brave by reflection. 'Tis the business of little minds to shrink; but he whose heart is firm, and whose conscience approves his conduct, will pursue his principles unto death. My own line of reasoning is to myself as straight and clear as a ray of light. Not all the treasures of the world, so far as I believe, could have induced me to support an offensive war, for I think it murder; but if a thief breaks into my house, burns and destroys my property, and kills or threatens to kill me, or those that are in it, and to "bind me in all cases whatsoever" to his absolute will, am I to suffer it? What signifies it to me, whether he who does it is a king or a common man; my countryman or not my countryman; whether it be done by an individual villain, or an army of them? If we reason to the root of things we shall find no difference; neither can any just cause be assigned why we should punish in the one case and pardon in the other. Let them call me rebel and welcome, I feel no concern from it; but I should suffer the misery of devils, were I to make a whore of my soul by swearing allegiance to one whose character is that of a sottish, stupid, stubborn, worthless, brutish man. I conceive likewise a horrid idea in receiving mercy from a being, who at the last day shall be shrieking to the rocks and mountains to

cover him, and fleeing with terror from the orphan, the widow, and the slain of America.

There are cases which cannot be overdone by language, and this is one. There are persons, too, who see not the full extent of the evil which threatens them; they solace themselves with hopes that the enemy, if he succeed, will be merciful. It is the madness of folly, to expect mercy from those who have refused to do justice; and even mercy, where conquest is the object, is only a trick of war; the cunning of the fox is as murderous as the violence of the wolf, and we ought to guard equally against both. Howe's first object is, partly by threats and partly by promises, to terrify or seduce the people to deliver up their arms and receive mercy. The ministry recommended the same plan to Gage, and this is what the Tories call making their peace, "a peace which passeth all understanding" indeed! A peace which would be the immediate forerunner of a worse ruin than any we have yet thought of. Ye men of Pennsylvania, do reason upon these things! Were the back counties to give up their arms, they would fall an easy prey to the Indians, who are all armed: this perhaps is what some Tories would not be sorry for. Were the home counties to deliver up their arms, they would be exposed to the resentment of the back counties who would then have it in their power to chastise their defection at pleasure. And were any one state to give up its arms, that state must be garrisoned by all Howe's army of Britons and Hessians to preserve it from the anger of the rest. Mutual fear is the principal link in the chain of mutual love, and woe be to that state that breaks the compact. Howe is mercifully inviting you to barbarous destruction, and men must be either rogues or fools that will not see it. I dwell not upon the vapors of imagination; I bring reason to your ears, and, in language as plain as A, B, C, hold up truth to your eyes.

I thank God, that I fear not. I see no real cause for fear. I know our situation well, and can see the way out of it. While our army was collected, Howe dared not risk a battle; and it is no credit to him that he decamped from the White Plains, and waited a mean opportunity to ravage the defenceless Jerseys; but it is great credit to us, that, with a handful of men, we sustained an orderly retreat for near an hundred miles, brought off our ammunition, all our field pieces, the greatest part of our stores, and had four rivers to pass. None can say that our retreat was precipitate, for we were near three weeks in performing it, that the country might have time to come in. Twice we marched back to meet the enemy, and remained out till dark.

The sign of fear was not seen in our camp, and had not some of the cowardly and disaffected inhabitants spread false alarms through the country, the Jerseys had never been ravaged. Once more we are again collected and collecting; our new army at both ends of the continent is recruiting fast, and we shall be able to open the next campaign with sixty thousand men, well armed and clothed. This is our situation, and who will may know it. By perseverance and fortitude we have the prospect of a glorious issue; by cowardice and submission, the sad choice of a variety of evils—a ravaged country—a depopulated city—habitations without safety, and slavery without hope—our homes turned into barracks and bawdy-houses for Hessians, and a future race to provide for, whose fathers we shall doubt of. Look on this picture and weep over it! and if there yet remains one thoughtless wretch who believes it not, let him suffer it unlamented.

COMMON SENSE.

December 23, 1776.

THE CRISIS II. TO LORD HOWE.

*"What's in the name of lord, that I should fear
To bring my grievance to the public ear?"*
CHURCHILL.

UNIVERSAL empire is the prerogative of a writer. His concerns are with all mankind, and though he cannot command their obedience, he can assign them their duty. The Republic of Letters is more ancient than monarchy, and of far higher character in the world than the vassal court of Britain; he that rebels against reason is a real rebel, but he that in defence of reason rebels against tyranny has a better title to "Defender of the Faith," than George the Third.

As a military man your lordship may hold out the sword of war, and call it the "ultima ratio regum": the last reason of kings; we in return can show you the sword of justice, and call it "the best scourge of tyrants." The first of these two may threaten, or even frighten for a while, and cast a sickly languor over an insulted people, but reason will soon recover the debauch, and restore them again to tranquil fortitude. Your lordship, I find, has now commenced author, and published a proclamation; I have published a Crisis. As they stand, they are the antipodes of each other; both cannot rise at once, and one of them must descend; and so quick is the revolution of things, that your lordship's performance, I see, has already fallen many degrees from its first place, and is now just visible on the edge of the political horizon.

It is surprising to what a pitch of infatuation, blind folly and obstinacy will carry mankind, and your lordship's drowsy proclamation is a proof that it does not even quit them in their sleep. Perhaps you thought America too was taking a nap, and therefore chose, like Satan to Eve, to whisper the delusion softly, lest you should awaken her. This continent, sir, is too extensive to sleep all at once, and too watchful, even in its slumbers, not to startle at the unhallowed foot of an invader. You may issue your proclamations, and welcome, for we have learned to "reverence ourselves," and scorn the insulting ruffian that employs you. America, for your deceased brother's sake, would gladly have shown you respect and it is a

new aggravation to her feelings, that Howe should be forgetful, and raise his sword against those, who at their own charge raised a monument to his brother. But your master has commanded, and you have not enough of nature left to refuse. Surely there must be something strangely degenerating in the love of monarchy, that can so completely wear a man down to an ingrate, and make him proud to lick the dust that kings have trod upon. A few more years, should you survive them, will bestow on you the title of "an old man": and in some hour of future reflection you may probably find the fitness of Wolsey's despairing penitence—"had I served my God as faithful as I have served my king, he would not thus have forsaken me in my old age."

The character you appear to us in, is truly ridiculous. Your friends, the Tories, announced your coming, with high descriptions of your unlimited powers; but your proclamation has given them the lie, by showing you to be a commissioner without authority. Had your powers been ever so great they were nothing to us, further than we pleased; because we had the same right which other nations had, to do what we thought was best. "The UNITED STATES of AMERICA," will sound as pompously in the world or in history, as "the kingdom of Great Britain"; the character of General Washington will fill a page with as much lustre as that of Lord Howe: and the Congress have as much right to command the king and Parliament in London to desist from legislation, as they or you have to command the Congress. Only suppose how laughable such an edict would appear from us, and then, in that merry mood, do but turn the tables upon yourself, and you will see how your proclamation is received here. Having thus placed you in a proper position in which you may have a full view of your folly, and learn to despise it, I hold up to you, for that purpose, the following quotation from your own lunarian proclamation.—"And we (Lord Howe and General Howe) do command (and in his majesty's name forsooth) all such persons as are assembled together, under the name of general or provincial congresses, committees, conventions or other associations, by whatever name or names known and distinguished, to desist and cease from all such treasonable actings and doings."

You introduce your proclamation by referring to your declarations of the 14th of July and 19th of September. In the last of these you sunk yourself below the character of a private gentleman. That I may not seem to accuse you unjustly, I shall state the circumstance: by a verbal invitation of yours,

communicated to Congress by General Sullivan, then a prisoner on his parole, you signified your desire of conferring with some members of that body as private gentlemen. It was beneath the dignity of the American Congress to pay any regard to a message that at best was but a genteel affront, and had too much of the ministerial complexion of tampering with private persons; and which might probably have been the case, had the gentlemen who were deputed on the business possessed that kind of easy virtue which an English courtier is so truly distinguished by. Your request, however, was complied with, for honest men are naturally more tender of their civil than their political fame. The interview ended as every sensible man thought it would; for your lordship knows, as well as the writer of the Crisis, that it is impossible for the King of England to promise the repeal, or even the revisal of any acts of parliament; wherefore, on your part, you had nothing to say, more than to request, in the room of demanding, the entire surrender of the continent; and then, if that was complied with, to promise that the inhabitants should escape with their lives. This was the upshot of the conference. You informed the conferees that you were two months in soliciting these powers. We ask, what powers? for as commissioner you have none. If you mean the power of pardoning, it is an oblique proof that your master was determined to sacrifice all before him; and that you were two months in dissuading him from his purpose. Another evidence of his savage obstinacy! From your own account of the matter we may justly draw these two conclusions: 1st, That you serve a monster; and 2d, That never was a messenger sent on a more foolish errand than yourself. This plain language may perhaps sound uncouthly to an ear vitiated by courtly refinements, but words were made for use, and the fault lies in deserving them, or the abuse in applying them unfairly.

Soon after your return to New York, you published a very illiberal and unmanly handbill against the Congress; for it was certainly stepping out of the line of common civility, first to screen your national pride by soliciting an interview with them as private gentlemen, and in the conclusion to endeavor to deceive the multitude by making a handbill attack on the whole body of the Congress; you got them together under one name, and abused them under another. But the king you serve, and the cause you support, afford you so few instances of acting the gentleman, that out of pity to your situation the Congress pardoned the insult by taking no notice of it.

You say in that handbill, "that they, the Congress, disavowed every purpose for reconciliation not consonant with their extravagant and inadmissible claim of independence." Why, God bless me! what have you to do with our independence? We ask no leave of yours to set it up; we ask no money of yours to support it; we can do better without your fleets and armies than with them; you may soon have enough to do to protect yourselves without being burdened with us. We are very willing to be at peace with you, to buy of you and sell to you, and, like young beginners in the world, to work for our living; therefore, why do you put yourselves out of cash, when we know you cannot spare it, and we do not desire you to run into debt? I am willing, sir, that you should see your folly in every point of view I can place it in, and for that reason descend sometimes to tell you in jest what I wish you to see in earnest. But to be more serious with you, why do you say, "their independence?" To set you right, sir, we tell you, that the independency is ours, not theirs. The Congress were authorized by every state on the continent to publish it to all the world, and in so doing are not to be considered as the inventors, but only as the heralds that proclaimed it, or the office from which the sense of the people received a legal form; and it was as much as any or all their heads were worth, to have treated with you on the subject of submission under any name whatever. But we know the men in whom we have trusted; can England say the same of her Parliament?

I come now more particularly to your proclamation of the 30th of November last. Had you gained an entire conquest over all the armies of America, and then put forth a proclamation, offering (what you call) mercy, your conduct would have had some specious show of humanity; but to creep by surprise into a province, and there endeavor to terrify and seduce the inhabitants from their just allegiance to the rest by promises, which you neither meant nor were able to fulfil, is both cruel and unmanly: cruel in its effects; because, unless you can keep all the ground you have marched over, how are you, in the words of your proclamation, to secure to your proselytes "the enjoyment of their property?" What is to become either of your new adopted subjects, or your old friends, the Tories, in Burlington, Bordentown, Trenton, Mount Holly, and many other places, where you proudly lorded it for a few days, and then fled with the precipitation of a pursued thief? What, I say, is to become of those wretches? What is to become of those who went over to you from this city and State? What more

can you say to them than "shift for yourselves?" Or what more can they hope for than to wander like vagabonds over the face of the earth? You may now tell them to take their leave of America, and all that once was theirs. Recommend them, for consolation, to your master's court; there perhaps they may make a shift to live on the scraps of some dangling parasite, and choose companions among thousands like themselves. A traitor is the foulest fiend on earth.

In a political sense we ought to thank you for thus bequeathing estates to the continent; we shall soon, at this rate, be able to carry on a war without expense, and grow rich by the ill policy of Lord Howe, and the generous defection of the Tories. Had you set your foot into this city, you would have bestowed estates upon us which we never thought of, by bringing forth traitors we were unwilling to suspect. But these men, you'll say, "are his majesty's most faithful subjects;" let that honor, then, be all their fortune, and let his majesty take them to himself.

I am now thoroughly disgusted with them; they live in ungrateful ease, and bend their whole minds to mischief. It seems as if God had given them over to a spirit of infidelity, and that they are open to conviction in no other line but that of punishment. It is time to have done with tarring, feathering, carting, and taking securities for their future good behavior; every sensible man must feel a conscious shame at seeing a poor fellow hawked for a show about the streets, when it is known he is only the tool of some principal villain, biassed into his offence by the force of false reasoning, or bribed thereto, through sad necessity. We dishonor ourselves by attacking such trifling characters while greater ones are suffered to escape; 'tis our duty to find them out, and their proper punishment would be to exile them from the continent for ever. The circle of them is not so great as some imagine; the influence of a few have tainted many who are not naturally corrupt. A continual circulation of lies among those who are not much in the way of hearing them contradicted, will in time pass for truth; and the crime lies not in the believer but the inventor. I am not for declaring war with every man that appears not so warm as myself: difference of constitution, temper, habit of speaking, and many other things, will go a great way in fixing the outward character of a man, yet simple honesty may remain at bottom. Some men have naturally a military turn, and can brave hardships and the risk of life with a cheerful face; others have not; no slavery appears to them so great as the fatigue of arms, and no terror so powerful as that of

personal danger. What can we say? We cannot alter nature, neither ought we to punish the son because the father begot him in a cowardly mood. However, I believe most men have more courage than they know of, and that a little at first is enough to begin with. I knew the time when I thought that the whistling of a cannon ball would have frightened me almost to death; but I have since tried it, and find that I can stand it with as little discomposure, and, I believe, with a much easier conscience than your lordship. The same dread would return to me again were I in your situation, for my solemn belief of your cause is, that it is hellish and damnable, and, under that conviction, every thinking man's heart must fail him.

From a concern that a good cause should be dishonored by the least disunion among us, I said in my former paper, No. I. "That should the enemy now be expelled, I wish, with all the sincerity of a Christian, that the names of Whig and Tory might never more be mentioned;" but there is a knot of men among us of such a venomous cast, that they will not admit even one's good wishes to act in their favor. Instead of rejoicing that heaven had, as it were, providentially preserved this city from plunder and destruction, by delivering so great a part of the enemy into our hands with so little effusion of blood, they stubbornly affected to disbelieve it till within an hour, nay, half an hour, of the prisoners arriving; and the Quakers put forth a testimony, dated the 20th of December, signed "John Pemberton," declaring their attachment to the British government.* These men are continually harping on the great sin of our bearing arms, but the king of Britain may lay waste the world in blood and famine, and they, poor fallen souls, have nothing to say.

** I have ever been careful of charging offences upon whole societies of men, but as the paper referred to is put forth by an unknown set of men, who claim to themselves the right of representing the whole: and while the whole Society of Quakers admit its validity by a silent acknowledgment, it is impossible that any distinction can be made by the public: and the more so, because the New York paper of the 30th of December, printed by permission of our enemies, says that "the Quakers begin to speak openly of their attachment to the British Constitution." We are certain that we have many friends among them, and wish to know them.*

In some future paper I intend to distinguish between the different kind of persons who have been denominated Tories; for this I am clear in, that all are not so who have been called so, nor all men Whigs who were once thought so; and as I mean not to conceal the name of any true friend when

there shall be occasion to mention him, neither will I that of an enemy, who ought to be known, let his rank, station or religion be what it may. Much pains have been taken by some to set your lordship's private character in an amiable light, but as it has chiefly been done by men who know nothing about you, and who are no ways remarkable for their attachment to us, we have no just authority for believing it. George the Third has imposed upon us by the same arts, but time, at length, has done him justice, and the same fate may probably attend your lordship. You avowed purpose here is to kill, conquer, plunder, pardon, and enslave: and the ravages of your army through the Jerseys have been marked with as much barbarism as if you had openly professed yourself the prince of ruffians; not even the appearance of humanity has been preserved either on the march or the retreat of your troops; no general order that I could ever learn, has ever been issued to prevent or even forbid your troops from robbery, wherever they came, and the only instance of justice, if it can be called such, which has distinguished you for impartiality, is, that you treated and plundered all alike; what could not be carried away has been destroyed, and mahogany furniture has been deliberately laid on fire for fuel, rather than the men should be fatigued with cutting wood.* There was a time when the Whigs confided much in your supposed candor, and the Tories rested themselves in your favor; the experiments have now been made, and failed; in every town, nay, every cottage, in the Jerseys, where your arms have been, is a testimony against you. How you may rest under this sacrifice of character I know not; but this I know, that you sleep and rise with the daily curses of thousands upon you; perhaps the misery which the Tories have suffered by your proffered mercy may give them some claim to their country's pity, and be in the end the best favor you could show them.

** As some people may doubt the truth of such wanton destruction, I think it necessary to inform them that one of the people called Quakers, who lives at Trenton, gave me this information at the house of Mr. Michael Hutchinson, (one of the same profession,) who lives near Trenton ferry on the Pennsylvania side, Mr. Hutchinson being present.*

In a folio general-order book belonging to Col. Rhal's battalion, taken at Trenton, and now in the possession of the council of safety for this state, the following barbarous order is frequently repeated, "His excellency the Commander-in-Chief orders, that all inhabitants who shall be found with arms, not having an officer with them, shall be immediately taken and hung

up." How many you may thus have privately sacrificed, we know not, and the account can only be settled in another world. Your treatment of prisoners, in order to distress them to enlist in your infernal service, is not to be equalled by any instance in Europe. Yet this is the humane Lord Howe and his brother, whom the Tories and their three-quarter kindred, the Quakers, or some of them at least, have been holding up for patterns of justice and mercy!

A bad cause will ever be supported by bad means and bad men; and whoever will be at the pains of examining strictly into things, will find that one and the same spirit of oppression and impiety, more or less, governs through your whole party in both countries: not many days ago, I accidentally fell in company with a person of this city noted for espousing your cause, and on my remarking to him, "that it appeared clear to me, by the late providential turn of affairs, that God Almighty was visibly on our side," he replied, "We care nothing for that you may have Him, and welcome; if we have but enough of the devil on our side, we shall do." However carelessly this might be spoken, matters not, 'tis still the insensible principle that directs all your conduct and will at last most assuredly deceive and ruin you.

If ever a nation was made and foolish, blind to its own interest and bent on its own destruction, it is Britain. There are such things as national sins, and though the punishment of individuals may be reserved to another world, national punishment can only be inflicted in this world. Britain, as a nation, is, in my inmost belief, the greatest and most ungrateful offender against God on the face of the whole earth. Blessed with all the commerce she could wish for, and furnished, by a vast extension of dominion, with the means of civilizing both the eastern and western world, she has made no other use of both than proudly to idolize her own "thunder," and rip up the bowels of whole countries for what she could get. Like Alexander, she has made war her sport, and inflicted misery for prodigality's sake. The blood of India is not yet repaid, nor the wretchedness of Africa yet requited. Of late she has enlarged her list of national cruelties by her butcherly destruction of the Caribbs of St. Vincent's, and returning an answer by the sword to the meek prayer for "Peace, liberty and safety." These are serious things, and whatever a foolish tyrant, a debauched court, a trafficking legislature, or a blinded people may think, the national account with heaven must some day or other be settled: all countries have sooner or later been called to their

reckoning; the proudest empires have sunk when the balance was struck; and Britain, like an individual penitent, must undergo her day of sorrow, and the sooner it happens to her the better. As I wish it over, I wish it to come, but withal wish that it may be as light as possible.

Perhaps your lordship has no taste for serious things; by your connections in England I should suppose not; therefore I shall drop this part of the subject, and take it up in a line in which you will better understand me.

By what means, may I ask, do you expect to conquer America? If you could not effect it in the summer, when our army was less than yours, nor in the winter, when we had none, how are you to do it? In point of generalship you have been outwitted, and in point of fortitude outdone; your advantages turn out to your loss, and show us that it is in our power to ruin you by gifts: like a game of drafts, we can move out of one square to let you come in, in order that we may afterwards take two or three for one; and as we can always keep a double corner for ourselves, we can always prevent a total defeat. You cannot be so insensible as not to see that we have two to one the advantage of you, because we conquer by a drawn game, and you lose by it. Burgoyne might have taught your lordship this knowledge; he has been long a student in the doctrine of chances.

I have no other idea of conquering countries than by subduing the armies which defend them: have you done this, or can you do it? If you have not, it would be civil in you to let your proclamations alone for the present; otherwise, you will ruin more Tories by your grace and favor, than you will Whigs by your arms.

Were you to obtain possession of this city, you would not know what to do with it more than to plunder it. To hold it in the manner you hold New York, would be an additional dead weight upon your hands; and if a general conquest is your object, you had better be without the city than with it. When you have defeated all our armies, the cities will fall into your hands of themselves; but to creep into them in the manner you got into Princeton, Trenton, &c. is like robbing an orchard in the night before the fruit be ripe, and running away in the morning. Your experiment in the Jerseys is sufficient to teach you that you have something more to do than barely to get into other people's houses; and your new converts, to whom you promised all manner of protection, and seduced into new guilt by pardoning them from their former virtues, must begin to have a very contemptible

opinion both of your power and your policy. Your authority in the Jerseys is now reduced to the small circle which your army occupies, and your proclamation is no where else seen unless it be to be laughed at. The mighty subduers of the continent have retreated into a nutshell, and the proud forgivers of our sins are fled from those they came to pardon; and all this at a time when they were despatching vessel after vessel to England with the great news of every day. In short, you have managed your Jersey expedition so very dexterously, that the dead only are conquerors, because none will dispute the ground with them.

In all the wars which you have formerly been concerned in you had only armies to contend with; in this case you have both an army and a country to combat with. In former wars, the countries followed the fate of their capitals; Canada fell with Quebec, and Minorca with Port Mahon or St. Phillips; by subduing those, the conquerors opened a way into, and became masters of the country: here it is otherwise; if you get possession of a city here, you are obliged to shut yourselves up in it, and can make no other use of it, than to spend your country's money in. This is all the advantage you have drawn from New York; and you would draw less from Philadelphia, because it requires more force to keep it, and is much further from the sea. A pretty figure you and the Tories would cut in this city, with a river full of ice, and a town full of fire; for the immediate consequence of your getting here would be, that you would be cannonaded out again, and the Tories be obliged to make good the damage; and this sooner or later will be the fate of New York.

I wish to see the city saved, not so much from military as from natural motives. 'Tis the hiding place of women and children, and Lord Howe's proper business is with our armies. When I put all the circumstances together which ought to be taken, I laugh at your notion of conquering America. Because you lived in a little country, where an army might run over the whole in a few days, and where a single company of soldiers might put a multitude to the rout, you expected to find it the same here. It is plain that you brought over with you all the narrow notions you were bred up with, and imagined that a proclamation in the king's name was to do great things; but Englishmen always travel for knowledge, and your lordship, I hope, will return, if you return at all, much wiser than you came.

We may be surprised by events we did not expect, and in that interval of recollection you may gain some temporary advantage: such was the case a few weeks ago, but we soon ripen again into reason, collect our strength, and while you are preparing for a triumph, we come upon you with a defeat. Such it has been, and such it would be were you to try it a hundred times over. Were you to garrison the places you might march over, in order to secure their subjection, (for remember you can do it by no other means,) your army would be like a stream of water running to nothing. By the time you extended from New York to Virginia, you would be reduced to a string of drops not capable of hanging together; while we, by retreating from State to State, like a river turning back upon itself, would acquire strength in the same proportion as you lost it, and in the end be capable of overwhelming you. The country, in the meantime, would suffer, but it is a day of suffering, and we ought to expect it. What we contend for is worthy the affliction we may go through. If we get but bread to eat, and any kind of raiment to put on, we ought not only to be contented, but thankful. More than that we ought not to look for, and less than that heaven has not yet suffered us to want. He that would sell his birthright for a little salt, is as worthless as he who sold it for pottage without salt; and he that would part with it for a gay coat, or a plain coat, ought for ever to be a slave in buff. What are salt, sugar and finery, to the inestimable blessings of "Liberty and Safety!" Or what are the inconveniences of a few months to the tributary bondage of ages? The meanest peasant in America, blessed with these sentiments, is a happy man compared with a New York Tory; he can eat his morsel without repining, and when he has done, can sweeten it with a repast of wholesome air; he can take his child by the hand and bless it, without feeling the conscious shame of neglecting a parent's duty.

In publishing these remarks I have several objects in view.

On your part they are to expose the folly of your pretended authority as a commissioner; the wickedness of your cause in general; and the impossibility of your conquering us at any rate. On the part of the public, my intention is, to show them their true and sold interest; to encourage them to their own good, to remove the fears and falsities which bad men have spread, and weak men have encouraged; and to excite in all men a love for union, and a cheerfulness for duty.

I shall submit one more case to you respecting your conquest of this country, and then proceed to new observations.

Suppose our armies in every part of this continent were immediately to disperse, every man to his home, or where else he might be safe, and engage to reassemble again on a certain future day; it is clear that you would then have no army to contend with, yet you would be as much at a loss in that case as you are now; you would be afraid to send your troops in parties over to the continent, either to disarm or prevent us from assembling, lest they should not return; and while you kept them together, having no arms of ours to dispute with, you could not call it a conquest; you might furnish out a pompous page in the London Gazette or a New York paper, but when we returned at the appointed time, you would have the same work to do that you had at first.

It has been the folly of Britain to suppose herself more powerful than she really is, and by that means has arrogated to herself a rank in the world she is not entitled to: for more than this century past she has not been able to carry on a war without foreign assistance. In Marlborough's campaigns, and from that day to this, the number of German troops and officers assisting her have been about equal with her own; ten thousand Hessians were sent to England last war to protect her from a French invasion; and she would have cut but a poor figure in her Canadian and West Indian expeditions, had not America been lavish both of her money and men to help her along. The only instance in which she was engaged singly, that I can recollect, was against the rebellion in Scotland, in the years 1745 and 1746, and in that, out of three battles, she was twice beaten, till by thus reducing their numbers, (as we shall yours) and taking a supply ship that was coming to Scotland with clothes, arms and money, (as we have often done,) she was at last enabled to defeat them. England was never famous by land; her officers have generally been suspected of cowardice, have more of the air of a dancing-master than a soldier, and by the samples which we have taken prisoners, we give the preference to ourselves. Her strength, of late, has lain in her extravagance; but as her finances and credit are now low, her sinews in that line begin to fail fast. As a nation she is the poorest in Europe; for were the whole kingdom, and all that is in it, to be put up for sale like the estate of a bankrupt, it would not fetch as much as she owes; yet this thoughtless wretch must go to war, and with the avowed design, too, of making us beasts of burden, to support her in riot and debauchery, and to

assist her afterwards in distressing those nations who are now our best friends. This ingratitude may suit a Tory, or the unchristian peevishness of a fallen Quaker, but none else.

"Tis the unhappy temper of the English to be pleased with any war, right or wrong, be it but successful; but they soon grow discontented with ill fortune, and it is an even chance that they are as clamorous for peace next summer, as the king and his ministers were for war last winter. In this natural view of things, your lordship stands in a very critical situation: your whole character is now staked upon your laurels; if they wither, you wither with them; if they flourish, you cannot live long to look at them; and at any rate, the black account hereafter is not far off. What lately appeared to us misfortunes, were only blessings in disguise; and the seeming advantages on your side have turned out to our profit. Even our loss of this city, as far as we can see, might be a principal gain to us: the more surface you spread over, the thinner you will be, and the easier wiped away; and our consolation under that apparent disaster would be, that the estates of the Tories would become securities for the repairs. In short, there is no old ground we can fail upon, but some new foundation rises again to support us. "We have put, sir, our hands to the plough, and cursed be he that looketh back."

Your king, in his speech to parliament last spring, declared, "That he had no doubt but the great force they had enabled him to send to America, would effectually reduce the rebellious colonies." It has not, neither can it; but it has done just enough to lay the foundation of its own next year's ruin. You are sensible that you left England in a divided, distracted state of politics, and, by the command you had here, you became a principal prop in the court party; their fortunes rest on yours; by a single express you can fix their value with the public, and the degree to which their spirits shall rise or fall; they are in your hands as stock, and you have the secret of the alley with you. Thus situated and connected, you become the unintentional mechanical instrument of your own and their overthrow. The king and his ministers put conquest out of doubt, and the credit of both depended on the proof. To support them in the interim, it was necessary that you should make the most of every thing, and we can tell by Hugh Gaine's New York paper what the complexion of the London Gazette is. With such a list of victories the nation cannot expect you will ask new supplies; and to confess your want of them would give the lie to your triumphs, and impeach the

king and his ministers of treasonable deception. If you make the necessary demand at home, your party sinks; if you make it not, you sink yourself; to ask it now is too late, and to ask it before was too soon, and unless it arrive quickly will be of no use. In short, the part you have to act, cannot be acted; and I am fully persuaded that all you have to trust to is, to do the best you can with what force you have got, or little more. Though we have greatly exceeded you in point of generalship and bravery of men, yet, as a people, we have not entered into the full soul of enterprise; for I, who know England and the disposition of the people well, am confident, that it is easier for us to effect a revolution there, than you a conquest here; a few thousand men landed in England with the declared design of deposing the present king, bringing his ministers to trial, and setting up the Duke of Gloucester in his stead, would assuredly carry their point, while you are grovelling here, ignorant of the matter. As I send all my papers to England, this, like Common Sense, will find its way there; and though it may put one party on their guard, it will inform the other, and the nation in general, of our design to help them.

Thus far, sir, I have endeavored to give you a picture of present affairs: you may draw from it what conclusions you please. I wish as well to the true prosperity of England as you can, but I consider INDEPENDENCE as America's natural right and interest, and never could see any real disservice it would be to Britain. If an English merchant receives an order, and is paid for it, it signifies nothing to him who governs the country. This is my creed of politics. If I have any where expressed myself over-warmly, 'tis from a fixed, immovable hatred I have, and ever had, to cruel men and cruel measures. I have likewise an aversion to monarchy, as being too debasing to the dignity of man; but I never troubled others with my notions till very lately, nor ever published a syllable in England in my life. What I write is pure nature, and my pen and my soul have ever gone together. My writings I have always given away, reserving only the expense of printing and paper, and sometimes not even that. I never courted either fame or interest, and my manner of life, to those who know it, will justify what I say. My study is to be useful, and if your lordship loves mankind as well as I do, you would, seeing you cannot conquer us, cast about and lend your hand towards accomplishing a peace. Our independence with God's blessing we will maintain against all the world; but as we wish to avoid evil ourselves, we wish not to inflict it on others. I am never over-inquisitive into the secrets of

the cabinet, but I have some notion that, if you neglect the present opportunity, it will not be in our power to make a separate peace with you afterwards; for whatever treaties or alliances we form, we shall most faithfully abide by; wherefore you may be deceived if you think you can make it with us at any time. A lasting independent peace is my wish, end and aim; and to accomplish that, I pray God the Americans may never be defeated, and I trust while they have good officers, and are well commanded, and willing to be commanded, that they NEVER WILL BE.

COMMON SENSE.

PHILADELPHIA, Jan. 13, 1777.

THE CRISIS III. (IN THE PROGRESS OF POLITICS)

IN THE progress of politics, as in the common occurrences of life, we are not only apt to forget the ground we have travelled over, but frequently neglect to gather up experience as we go. We expend, if I may so say, the knowledge of every day on the circumstances that produce it, and journey on in search of new matter and new refinements: but as it is pleasant and sometimes useful to look back, even to the first periods of infancy, and trace the turns and windings through which we have passed, so we may likewise derive many advantages by halting a while in our political career, and taking a review of the wondrous complicated labyrinth of little more than yesterday.

Truly may we say, that never did men grow old in so short a time! We have crowded the business of an age into the compass of a few months, and have been driven through such a rapid succession of things, that for the want of leisure to think, we unavoidably wasted knowledge as we came, and have left nearly as much behind us as we brought with us: but the road is yet rich with the fragments, and, before we finally lose sight of them, will repay us for the trouble of stopping to pick them up.

Were a man to be totally deprived of memory, he would be incapable of forming any just opinion; every thing about him would seem a chaos: he would have even his own history to ask from every one; and by not knowing how the world went in his absence, he would be at a loss to know how it ought to go on when he recovered, or rather, returned to it again. In like manner, though in a less degree, a too great inattention to past occurrences retards and bewilders our judgment in everything; while, on the contrary, by comparing what is past with what is present, we frequently hit on the true character of both, and become wise with very little trouble. It is a kind of counter-march, by which we get into the rear of time, and mark the movements and meaning of things as we make our return. There are certain circumstances, which, at the time of their happening, are a kind of riddles, and as every riddle is to be followed by its answer, so those kind of

circumstances will be followed by their events, and those events are always the true solution. A considerable space of time may lapse between, and unless we continue our observations from the one to the other, the harmony of them will pass away unnoticed: but the misfortune is, that partly from the pressing necessity of some instant things, and partly from the impatience of our own tempers, we are frequently in such a hurry to make out the meaning of everything as fast as it happens, that we thereby never truly understand it; and not only start new difficulties to ourselves by so doing, but, as it were, embarrass Providence in her good designs.

I have been civil in stating this fault on a large scale, for, as it now stands, it does not appear to be levelled against any particular set of men; but were it to be refined a little further, it might afterwards be applied to the Tories with a degree of striking propriety: those men have been remarkable for drawing sudden conclusions from single facts. The least apparent mishap on our side, or the least seeming advantage on the part of the enemy, have determined with them the fate of a whole campaign. By this hasty judgment they have converted a retreat into a defeat; mistook generalship for error; while every little advantage purposely given the enemy, either to weaken their strength by dividing it, embarrass their councils by multiplying their objects, or to secure a greater post by the surrender of a less, has been instantly magnified into a conquest. Thus, by quartering ill policy upon ill principles, they have frequently promoted the cause they designed to injure, and injured that which they intended to promote.

It is probable the campaign may open before this number comes from the press. The enemy have long lain idle, and amused themselves with carrying on the war by proclamations only. While they continue their delay our strength increases, and were they to move to action now, it is a circumstantial proof that they have no reinforcement coming; wherefore, in either case, the comparative advantage will be ours. Like a wounded, disabled whale, they want only time and room to die in; and though in the agony of their exit, it may be unsafe to live within the flapping of their tail, yet every hour shortens their date, and lessens their power of mischief. If any thing happens while this number is in the press, it will afford me a subject for the last pages of it. At present I am tired of waiting; and as neither the enemy, nor the state of politics have yet produced any thing new, I am thereby left in the field of general matter, undirected by any striking or

particular object. This Crisis, therefore, will be made up rather of variety than novelty, and consist more of things useful than things wonderful.

The success of the cause, the union of the people, and the means of supporting and securing both, are points which cannot be too much attended to. He who doubts of the former is a desponding coward, and he who wilfully disturbs the latter is a traitor. Their characters are easily fixed, and under these short descriptions I leave them for the present.

One of the greatest degrees of sentimental union which America ever knew, was in denying the right of the British parliament "to bind the colonies in all cases whatsoever." The Declaration is, in its form, an almighty one, and is the loftiest stretch of arbitrary power that ever one set of men or one country claimed over another. Taxation was nothing more than the putting the declared right into practice; and this failing, recourse was had to arms, as a means to establish both the right and the practice, or to answer a worse purpose, which will be mentioned in the course of this number. And in order to repay themselves the expense of an army, and to profit by their own injustice, the colonies were, by another law, declared to be in a state of actual rebellion, and of consequence all property therein would fall to the conquerors.

The colonies, on their part, first, denied the right; secondly, they suspended the use of taxable articles, and petitioned against the practice of taxation: and these failing, they, thirdly, defended their property by force, as soon as it was forcibly invaded, and, in answer to the declaration of rebellion and non-protection, published their Declaration of Independence and right of self-protection.

These, in a few words, are the different stages of the quarrel; and the parts are so intimately and necessarily connected with each other as to admit of no separation. A person, to use a trite phrase, must be a Whig or a Tory in a lump. His feelings, as a man, may be wounded; his charity, as a Christian, may be moved; but his political principles must go through all the cases on one side or the other. He cannot be a Whig in this stage, and a Tory in that. If he says he is against the united independence of the continent, he is to all intents and purposes against her in all the rest; because this last comprehends the whole. And he may just as well say, that Britain was right in declaring us rebels; right in taxing us; and right in declaring her "right to bind the colonies in all cases whatsoever." It signifies nothing what neutral

ground, of his own creating, he may skulk upon for shelter, for the quarrel in no stage of it hath afforded any such ground; and either we or Britain are absolutely right or absolutely wrong through the whole.

Britain, like a gamester nearly ruined, has now put all her losses into one bet, and is playing a desperate game for the total. If she wins it, she wins from me my life; she wins the continent as the forfeited property of rebels; the right of taxing those that are left as reduced subjects; and the power of binding them slaves: and the single die which determines this unparalleled event is, whether we support our independence or she overturn it. This is coming to the point at once. Here is the touchstone to try men by. He that is not a supporter of the independent States of America in the same degree that his religious and political principles would suffer him to support the government of any other country, of which he called himself a subject, is, in the American sense of the word, A TORY; and the instant that he endeavors to bring his toryism into practice, he becomes A TRAITOR. The first can only be detected by a general test, and the law hath already provided for the latter.

It is unnatural and impolitic to admit men who would root up our independence to have any share in our legislation, either as electors or representatives; because the support of our independence rests, in a great measure, on the vigor and purity of our public bodies. Would Britain, even in time of peace, much less in war, suffer an election to be carried by men who professed themselves to be not her subjects, or allow such to sit in Parliament? Certainly not.

But there are a certain species of Tories with whom conscience or principle has nothing to do, and who are so from avarice only. Some of the first fortunes on the continent, on the part of the Whigs, are staked on the issue of our present measures. And shall disaffection only be rewarded with security? Can any thing be a greater inducement to a miserly man, than the hope of making his Mammon safe? And though the scheme be fraught with every character of folly, yet, so long as he supposes, that by doing nothing materially criminal against America on one part, and by expressing his private disapprobation against independence, as palliative with the enemy, on the other part, he stands in a safe line between both; while, I say, this ground be suffered to remain, craft, and the spirit of avarice, will point it

out, and men will not be wanting to fill up this most contemptible of all characters.

These men, ashamed to own the sordid cause from whence their disaffection springs, add thereby meanness to meanness, by endeavoring to shelter themselves under the mask of hypocrisy; that is, they had rather be thought to be Tories from some kind of principle, than Tories by having no principle at all. But till such time as they can show some real reason, natural, political, or conscientious, on which their objections to independence are founded, we are not obliged to give them credit for being Tories of the first stamp, but must set them down as Tories of the last.

In the second number of the Crisis, I endeavored to show the impossibility of the enemy's making any conquest of America, that nothing was wanting on our part but patience and perseverance, and that, with these virtues, our success, as far as human speculation could discern, seemed as certain as fate. But as there are many among us, who, influenced by others, have regularly gone back from the principles they once held, in proportion as we have gone forward; and as it is the unfortunate lot of many a good man to live within the neighborhood of disaffected ones; I shall, therefore, for the sake of confirming the one and recovering the other, endeavor, in the space of a page or two, to go over some of the leading principles in support of independence. It is a much pleasanter task to prevent vice than to punish it, and, however our tempers may be gratified by resentment, or our national expenses eased by forfeited estates, harmony and friendship is, nevertheless, the happiest condition a country can be blessed with.

The principal arguments in support of independence may be comprehended under the four following heads.

- 1st, The natural right of the continent to independence.*
- 2d, Her interest in being independent.*
- 3d, The necessity,—and*
- 4th, The moral advantages arising therefrom.*

I. The natural right of the continent to independence, is a point which never yet was called in question. It will not even admit of a debate. To deny such a right, would be a kind of atheism against nature: and the best answer to such an objection would be, "The fool hath said in his heart there is no God."

II. The interest of the continent in being independent is a point as clearly right as the former. America, by her own internal industry, and unknown to all the powers of Europe, was, at the beginning of the dispute, arrived at a pitch of greatness, trade and population, beyond which it was the interest of Britain not to suffer her to pass, lest she should grow too powerful to be kept subordinate. She began to view this country with the same uneasy malicious eye, with which a covetous guardian would view his ward, whose estate he had been enriching himself by for twenty years, and saw him just arriving at manhood. And America owes no more to Britain for her present maturity, than the ward would to the guardian for being twenty-one years of age. That America hath flourished at the time she was under the government of Britain, is true; but there is every natural reason to believe, that had she been an independent country from the first settlement thereof, uncontrolled by any foreign power, free to make her own laws, regulate and encourage her own commerce, she had by this time been of much greater worth than now. The case is simply this: the first settlers in the different colonies were left to shift for themselves, unnoticed and unsupported by any European government; but as the tyranny and persecution of the old world daily drove numbers to the new, and as, by the favor of heaven on their industry and perseverance, they grew into importance, so, in a like degree, they became an object of profit to the greedy eyes of Europe. It was impossible, in this state of infancy, however thriving and promising, that they could resist the power of any armed invader that should seek to bring them under his authority. In this situation, Britain thought it worth her while to claim them, and the continent received and acknowledged the claimer. It was, in reality, of no very great importance who was her master, seeing, that from the force and ambition of the different powers of Europe, she must, till she acquired strength enough to assert her own right, acknowledge some one. As well, perhaps, Britain as another; and it might have been as well to have been under the states of Holland as any. The same hopes of engrossing and profiting by her trade, by not oppressing it too much, would have operated alike with any master, and produced to the colonies the same effects. The clamor of protection, likewise, was all a farce; because, in order to make that protection necessary, she must first, by her own quarrels, create us enemies. Hard terms indeed!

To know whether it be the interest of the continent to be independent, we need only ask this easy, simple question: Is it the interest of a man to be a

boy all his life? The answer to one will be the answer to both. America hath been one continued scene of legislative contention from the first king's representative to the last; and this was unavoidably founded in the natural opposition of interest between the old country and the new. A governor sent from England, or receiving his authority therefrom, ought never to have been considered in any other light than that of a genteel commissioned spy, whose private business was information, and his public business a kind of civilized oppression. In the first of these characters he was to watch the tempers, sentiments, and disposition of the people, the growth of trade, and the increase of private fortunes; and, in the latter, to suppress all such acts of the assemblies, however beneficial to the people, which did not directly or indirectly throw some increase of power or profit into the hands of those that sent him.

America, till now, could never be called a free country, because her legislation depended on the will of a man three thousand miles distant, whose interest was in opposition to ours, and who, by a single "no," could forbid what law he pleased.

The freedom of trade, likewise, is, to a trading country, an article of such importance, that the principal source of wealth depends upon it; and it is impossible that any country can flourish, as it otherwise might do, whose commerce is engrossed, cramped and fettered by the laws and mandates of another—yet these evils, and more than I can here enumerate, the continent has suffered by being under the government of England. By an independence we clear the whole at once—put an end to the business of unanswered petitions and fruitless remonstrances—exchange Britain for Europe—shake hands with the world—live at peace with the world—and trade to any market where we can buy and sell.

III. The necessity, likewise, of being independent, even before it was declared, became so evident and important, that the continent ran the risk of being ruined every day that she delayed it. There was reason to believe that Britain would endeavor to make an European matter of it, and, rather than lose the whole, would dismember it, like Poland, and dispose of her several claims to the highest bidder. Genoa, failing in her attempts to reduce Corsica, made a sale of it to the French, and such trafficks have been common in the old world. We had at that time no ambassador in any part of Europe, to counteract her negotiations, and by that means she had the range

of every foreign court uncontradicted on our part. We even knew nothing of the treaty for the Hessians till it was concluded, and the troops ready to embark. Had we been independent before, we had probably prevented her obtaining them. We had no credit abroad, because of our rebellious dependency. Our ships could claim no protection in foreign ports, because we afforded them no justifiable reason for granting it to us. The calling ourselves subjects, and at the same time fighting against the power which we acknowledged, was a dangerous precedent to all Europe. If the grievances justified the taking up arms, they justified our separation; if they did not justify our separation, neither could they justify our taking up arms. All Europe was interested in reducing us as rebels, and all Europe (or the greatest part at least) is interested in supporting us as independent States. At home our condition was still worse: our currency had no foundation, and the fall of it would have ruined Whig and Tory alike. We had no other law than a kind of moderated passion; no other civil power than an honest mob; and no other protection than the temporary attachment of one man to another. Had independence been delayed a few months longer, this continent would have been plunged into irrecoverable confusion: some violent for it, some against it, till, in the general cabal, the rich would have been ruined, and the poor destroyed. It is to independence that every Tory owes the present safety which he lives in; for by that, and that only, we emerged from a state of dangerous suspense, and became a regular people.

The necessity, likewise, of being independent, had there been no rupture between Britain and America, would, in a little time, have brought one on. The increasing importance of commerce, the weight and perplexity of legislation, and the entangled state of European politics, would daily have shown to the continent the impossibility of continuing subordinate; for, after the coolest reflections on the matter, this must be allowed, that Britain was too jealous of America to govern it justly; too ignorant of it to govern it well; and too far distant from it to govern it at all.

IV. But what weigh most with all men of serious reflection are, the moral advantages arising from independence: war and desolation have become the trade of the old world; and America neither could nor can be under the government of Britain without becoming a sharer of her guilt, and a partner in all the dismal commerce of death. The spirit of duelling, extended on a national scale, is a proper character for European wars. They have seldom any other motive than pride, or any other object than fame. The conquerors

and the conquered are generally ruined alike, and the chief difference at last is, that the one marches home with his honors, and the other without them. 'Tis the natural temper of the English to fight for a feather, if they suppose that feather to be an affront; and America, without the right of asking why, must have abetted in every quarrel, and abided by its fate. It is a shocking situation to live in, that one country must be brought into all the wars of another, whether the measure be right or wrong, or whether she will or not; yet this, in the fullest extent, was, and ever would be, the unavoidable consequence of the connection. Surely the Quakers forgot their own principles when, in their late Testimony, they called this connection, with these military and miserable appendages hanging to it—"the happy constitution."

Britain, for centuries past, has been nearly fifty years out of every hundred at war with some power or other. It certainly ought to be a conscientious as well political consideration with America, not to dip her hands in the bloody work of Europe. Our situation affords us a retreat from their cabals, and the present happy union of the states bids fair for extirpating the future use of arms from one quarter of the world; yet such have been the irreligious politics of the present leaders of the Quakers, that, for the sake of they scarce know what, they would cut off every hope of such a blessing by tying this continent to Britain, like Hector to the chariot wheel of Achilles, to be dragged through all the miseries of endless European wars.

The connection, viewed from this ground, is distressing to every man who has the feelings of humanity. By having Britain for our master, we became enemies to the greatest part of Europe, and they to us: and the consequence was war inevitable. By being our own masters, independent of any foreign one, we have Europe for our friends, and the prospect of an endless peace among ourselves. Those who were advocates for the British government over these colonies, were obliged to limit both their arguments and their ideas to the period of an European peace only; the moment Britain became plunged in war, every supposed convenience to us vanished, and all we could hope for was not to be ruined. Could this be a desirable condition for a young country to be in?

Had the French pursued their fortune immediately after the defeat of Braddock last war, this city and province had then experienced the woful

calamities of being a British subject. A scene of the same kind might happen again; for America, considered as a subject to the crown of Britain, would ever have been the seat of war, and the bone of contention between the two powers.

On the whole, if the future expulsion of arms from one quarter of the world would be a desirable object to a peaceable man; if the freedom of trade to every part of it can engage the attention of a man of business; if the support or fall of millions of currency can affect our interests; if the entire possession of estates, by cutting off the lordly claims of Britain over the soil, deserves the regard of landed property; and if the right of making our own laws, uncontrolled by royal or ministerial spies or mandates, be worthy our care as freemen;—then are all men interested in the support of independence; and may he that supports it not, be driven from the blessing, and live unpitied beneath the servile sufferings of scandalous subjection!

We have been amused with the tales of ancient wonders; we have read, and wept over the histories of other nations: applauded, censured, or pitied, as their cases affected us. The fortitude and patience of the sufferers—the justness of their cause—the weight of their oppressions and oppressors—the object to be saved or lost—with all the consequences of a defeat or a conquest—have, in the hour of sympathy, bewitched our hearts, and chained it to their fate: but where is the power that ever made war upon petitioners? Or where is the war on which a world was staked till now?

We may not, perhaps, be wise enough to make all the advantages we ought of our independence; but they are, nevertheless, marked and presented to us with every character of great and good, and worthy the hand of him who sent them. I look through the present trouble to a time of tranquillity, when we shall have it in our power to set an example of peace to all the world. Were the Quakers really impressed and influenced by the quiet principles they profess to hold, they would, however they might disapprove the means, be the first of all men to approve of independence, because, by separating ourselves from the cities of Sodom and Gomorrah, it affords an opportunity never given to man before of carrying their favourite principle of peace into general practice, by establishing governments that shall hereafter exist without wars. O! ye fallen, cringing, priest-and-Pemberton-ridden people! What more can we say of ye than that a religious Quaker is a valuable character, and a political Quaker a real Jesuit.

Having thus gone over some of the principal points in support of independence, I must now request the reader to return back with me to the period when it first began to be a public doctrine, and to examine the progress it has made among the various classes of men. The area I mean to begin at, is the breaking out of hostilities, April 19th, 1775. Until this event happened, the continent seemed to view the dispute as a kind of law-suit for a matter of right, litigating between the old country and the new; and she felt the same kind and degree of horror, as if she had seen an oppressive plaintiff, at the head of a band of ruffians, enter the court, while the cause was before it, and put the judge, the jury, the defendant and his counsel, to the sword. Perhaps a more heart-felt convulsion never reached a country with the same degree of power and rapidity before, and never may again. Pity for the sufferers, mixed with indignation at the violence, and heightened with apprehensions of undergoing the same fate, made the affair of Lexington the affair of the continent. Every part of it felt the shock, and all vibrated together. A general promotion of sentiment took place: those who had drank deeply into Whiggish principles, that is, the right and necessity not only of opposing, but wholly setting aside the power of the crown as soon as it became practically dangerous (for in theory it was always so), stepped into the first stage of independence; while another class of Whigs, equally sound in principle, but not so sanguine in enterprise, attached themselves the stronger to the cause, and fell close in with the rear of the former; their partition was a mere point. Numbers of the moderate men, whose chief fault, at that time, arose from entertaining a better opinion of Britain than she deserved, convinced now of their mistake, gave her up, and publicly declared themselves good Whigs. While the Tories, seeing it was no longer a laughing matter, either sank into silent obscurity, or contented themselves with coming forth and abusing General Gage: not a single advocate appeared to justify the action of that day; it seemed to appear to every one with the same magnitude, struck every one with the same force, and created in every one the same abhorrence. From this period we may date the growth of independence.

If the many circumstances which happened at this memorable time, be taken in one view, and compared with each other, they will justify a conclusion which seems not to have been attended to, I mean a fixed design in the king and ministry of driving America into arms, in order that they

might be furnished with a pretence for seizing the whole continent, as the immediate property of the crown. A noble plunder for hungry courtiers!

It ought to be remembered, that the first petition from the Congress was at this time unanswered on the part of the British king. That the motion, called Lord North's motion, of the 20th of February, 1775, arrived in America the latter end of March. This motion was to be laid, by the several governors then in being, before, the assembly of each province; and the first assembly before which it was laid, was the assembly of Pennsylvania, in May following. This being a just state of the case, I then ask, why were hostilities commenced between the time of passing the resolve in the House of Commons, of the 20th of February, and the time of the assemblies meeting to deliberate upon it? Degrading and famous as that motion was, there is nevertheless reason to believe that the king and his adherents were afraid the colonies would agree to it, and lest they should, took effectual care they should not, by provoking them with hostilities in the interim. They had not the least doubt at that time of conquering America at one blow; and what they expected to get by a conquest being infinitely greater than any thing they could hope to get either by taxation or accommodation, they seemed determined to prevent even the possibility of hearing each other, lest America should disappoint their greedy hopes of the whole, by listening even to their own terms. On the one hand they refused to hear the petition of the continent, and on the other hand took effectual care the continent should not hear them.

That the motion of the 20th February and the orders for commencing hostilities were both concerted by the same person or persons, and not the latter by General Gage, as was falsely imagined at first, is evident from an extract of a letter of his to the administration, read among other papers in the House of Commons; in which he informs his masters, "That though their idea of his disarming certain counties was a right one, yet it required him to be master of the country, in order to enable him to execute it." This was prior to the commencement of hostilities, and consequently before the motion of the 20th February could be deliberated on by the several assemblies.

Perhaps it may be asked, why was the motion passed, if there was at the same time a plan to aggravate the Americans not to listen to it? Lord North assigned one reason himself, which was a hope of dividing them. This was

publicly tempting them to reject it; that if, in case the injury of arms should fail in provoking them sufficiently, the insult of such a declaration might fill it up. But by passing the motion and getting it afterwards rejected in America, it enabled them, in their wicked idea of politics, among other things, to hold up the colonies to foreign powers, with every possible mark of disobedience and rebellion. They had applied to those powers not to supply the continent with arms, ammunition, etc., and it was necessary they should incense them against us, by assigning on their own part some seeming reputable reason why. By dividing, it had a tendency to weaken the States, and likewise to perplex the adherents of America in England. But the principal scheme, and that which has marked their character in every part of their conduct, was a design of precipitating the colonies into a state which they might afterwards deem rebellion, and, under that pretence, put an end to all future complaints, petitions and remonstrances, by seizing the whole at once. They had ravaged one part of the globe, till it could glut them no longer; their prodigality required new plunder, and through the East India article tea they hoped to transfer their rapine from that quarter of the world to this. Every designed quarrel had its pretence; and the same barbarian avarice accompanied the plant to America, which ruined the country that produced it.

That men never turn rogues without turning fools is a maxim, sooner or later, universally true. The commencement of hostilities, being in the beginning of April, was, of all times the worst chosen: the Congress were to meet the tenth of May following, and the distress the continent felt at this unparalleled outrage gave a stability to that body which no other circumstance could have done. It suppressed too all inferior debates, and bound them together by a necessitous affection, without giving them time to differ upon trifles. The suffering likewise softened the whole body of the people into a degree of pliability, which laid the principal foundation-stone of union, order, and government; and which, at any other time, might only have fretted and then faded away unnoticed and unimproved. But Providence, who best knows how to time her misfortunes as well as her immediate favors, chose this to be the time, and who dare dispute it?

It did not seem the disposition of the people, at this crisis, to heap petition upon petition, while the former remained unanswered. The measure however was carried in Congress, and a second petition was sent; of which I shall only remark that it was submissive even to a dangerous fault,

because the prayer of it appealed solely to what it called the prerogative of the crown, while the matter in dispute was confessedly constitutional. But even this petition, flattering as it was, was still not so harmonious as the chink of cash, and consequently not sufficiently grateful to the tyrant and his ministry. From every circumstance it is evident, that it was the determination of the British court to have nothing to do with America but to conquer her fully and absolutely. They were certain of success, and the field of battle was the only place of treaty. I am confident there are thousands and tens of thousands in America who wonder now that they should ever have thought otherwise; but the sin of that day was the sin of civility; yet it operated against our present good in the same manner that a civil opinion of the devil would against our future peace.

Independence was a doctrine scarce and rare, even towards the conclusion of the year 1775; all our politics had been founded on the hope of expectation of making the matter up—a hope, which, though general on the side of America, had never entered the head or heart of the British court. Their hope was conquest and confiscation. Good heavens! what volumes of thanks does America owe to Britain? What infinite obligation to the tool that fills, with paradoxical vacancy, the throne! Nothing but the sharpest essence of villany, compounded with the strongest distillation of folly, could have produced a menstruum that would have effected a separation. The Congress in 1774 administered an abortive medicine to independence, by prohibiting the importation of goods, and the succeeding Congress rendered the dose still more dangerous by continuing it. Had independence been a settled system with America, (as Britain has advanced,) she ought to have doubled her importation, and prohibited in some degree her exportation. And this single circumstance is sufficient to acquit America before any jury of nations, of having a continental plan of independence in view; a charge which, had it been true, would have been honorable, but is so grossly false, that either the amazing ignorance or the wilful dishonesty of the British court is effectually proved by it.

The second petition, like the first, produced no answer; it was scarcely acknowledged to have been received; the British court were too determined in their villainy even to act it artfully, and in their rage for conquest neglected the necessary subtleties for obtaining it. They might have divided, distracted and played a thousand tricks with us, had they been as cunning as they were cruel.

This last indignity gave a new spring to independence. Those who knew the savage obstinacy of the king, and the jobbing, gambling spirit of the court, predicted the fate of the petition, as soon as it was sent from America; for the men being known, their measures were easily foreseen. As politicians we ought not so much to ground our hopes on the reasonableness of the thing we ask, as on the reasonableness of the person of whom we ask it: who would expect discretion from a fool, candor from a tyrant, or justice from a villain?

As every prospect of accommodation seemed now to fail fast, men began to think seriously on the matter; and their reason being thus stripped of the false hope which had long encompassed it, became approachable by fair debate: yet still the bulk of the people hesitated; they startled at the novelty of independence, without once considering that our getting into arms at first was a more extraordinary novelty, and that all other nations had gone through the work of independence before us. They doubted likewise the ability of the continent to support it, without reflecting that it required the same force to obtain an accommodation by arms as an independence. If the one was acquirable, the other was the same; because, to accomplish either, it was necessary that our strength should be too great for Britain to subdue; and it was too unreasonable to suppose, that with the power of being masters, we should submit to be servants.* Their caution at this time was exceedingly misplaced; for if they were able to defend their property and maintain their rights by arms, they, consequently, were able to defend and support their independence; and in proportion as these men saw the necessity and correctness of the measure, they honestly and openly declared and adopted it, and the part that they had acted since has done them honor and fully established their characters. Error in opinion has this peculiar advantage with it, that the foremost point of the contrary ground may at any time be reached by the sudden exertion of a thought; and it frequently happens in sentimental differences, that some striking circumstance, or some forcible reason quickly conceived, will effect in an instant what neither argument nor example could produce in an age.

** In this state of political suspense the pamphlet Common Sense made its appearance, and the success it met with does not become me to mention. Dr. Franklin, Mr. Samuel and John Adams, were severally spoken of as the supposed author. I had not, at that time, the pleasure either of personally knowing or being known to the two last gentlemen. The favor of Dr. Franklin's friendship I possessed in England, and my*

introduction to this part of the world was through his patronage. I happened, when a school-boy, to pick up a pleasing natural history of Virginia, and my inclination from that day of seeing the western side of the Atlantic never left me. In October, 1775, Dr. Franklin proposed giving me such materials as were in his hands, towards completing a history of the present transactions, and seemed desirous of having the first volume out the next Spring. I had then formed the outlines of Common Sense, and finished nearly the first part; and as I supposed the doctor's design in getting out a history was to open the new year with a new system, I expected to surprise him with a production on that subject, much earlier than he thought of; and without informing him what I was doing, got it ready for the press as fast as I conveniently could, and sent him the first pamphlet that was printed off.

I find it impossible in the small compass I am limited to, to trace out the progress which independence has made on the minds of the different classes of men, and the several reasons by which they were moved. With some, it was a passionate abhorrence against the king of England and his ministry, as a set of savages and brutes; and these men, governed by the agony of a wounded mind, were for trusting every thing to hope and heaven, and bidding defiance at once. With others, it was a growing conviction that the scheme of the British court was to create, ferment and drive on a quarrel, for the sake of confiscated plunder: and men of this class ripened into independence in proportion as the evidence increased. While a third class conceived it was the true interest of America, internally and externally, to be her own master, and gave their support to independence, step by step, as they saw her abilities to maintain it enlarge. With many, it was a compound of all these reasons; while those who were too callous to be reached by either, remained, and still remain Tories.

The legal necessity of being independent, with several collateral reasons, is pointed out in an elegant masterly manner, in a charge to the grand jury for the district of Charleston, by the Hon. William Henry Drayton, chief justice of South Carolina, [April 23, 1776]. This performance, and the address of the convention of New York, are pieces, in my humble opinion, of the first rank in America.

The principal causes why independence has not been so universally supported as it ought, are fear and indolence, and the causes why it has been opposed, are, avarice, down-right villany, and lust of personal power. There is not such a being in America as a Tory from conscience; some secret defect or other is interwoven in the character of all those, be they men or women, who can look with patience on the brutality, luxury and debauchery of the British court, and the violations of their army here. A woman's virtue

must sit very lightly on her who can even hint a favorable sentiment in their behalf. It is remarkable that the whole race of prostitutes in New York were Tories; and the schemes for supporting the Tory cause in this city, for which several are now in jail, and one hanged, were concerted and carried on in common bawdy-houses, assisted by those who kept them.

The connection between vice and meanness is a fit subject for satire, but when the satire is a fact, it cuts with the irresistible power of a diamond. If a Quaker, in defence of his just rights, his property, and the chastity of his house, takes up a musket, he is expelled the meeting; but the present king of England, who seduced and took into keeping a sister of their society, is revered and supported by repeated Testimonies, while, the friendly noodle from whom she was taken (and who is now in this city) continues a drudge in the service of his rival, as if proud of being cuckolded by a creature called a king.

Our support and success depend on such a variety of men and circumstances, that every one who does but wish well, is of some use: there are men who have a strange aversion to arms, yet have hearts to risk every shilling in the cause, or in support of those who have better talents for defending it. Nature, in the arrangement of mankind, has fitted some for every service in life: were all soldiers, all would starve and go naked, and were none soldiers, all would be slaves. As disaffection to independence is the badge of a Tory, so affection to it is the mark of a Whig; and the different services of the Whigs, down from those who nobly contribute every thing, to those who have nothing to render but their wishes, tend all to the same center, though with different degrees of merit and ability. The larger we make the circle, the more we shall harmonize, and the stronger we shall be. All we want to shut out is disaffection, and, that excluded, we must accept from each other such duties as we are best fitted to bestow. A narrow system of politics, like a narrow system of religion, is calculated only to sour the temper, and be at variance with mankind.

All we want to know in America is simply this, who is for independence, and who is not? Those who are for it, will support it, and the remainder will undoubtedly see the reasonableness of paying the charges; while those who oppose or seek to betray it, must expect the more rigid fate of the jail and the gibbet. There is a bastard kind of generosity, which being extended to all men, is as fatal to society, on one hand, as the want of true generosity is

on the other. A lax manner of administering justice, falsely termed moderation, has a tendency both to dispirit public virtue, and promote the growth of public evils. Had the late committee of safety taken cognizance of the last Testimony of the Quakers and proceeded against such delinquents as were concerned therein, they had, probably, prevented the treasonable plans which have been concerted since. When one villain is suffered to escape, it encourages another to proceed, either from a hope of escaping likewise, or an apprehension that we dare not punish. It has been a matter of general surprise, that no notice was taken of the incendiary publication of the Quakers, of the 20th of November last; a publication evidently intended to promote sedition and treason, and encourage the enemy, who were then within a day's march of this city, to proceed on and possess it. I here present the reader with a memorial which was laid before the board of safety a few days after the Testimony appeared. Not a member of that board, that I conversed with, but expressed the highest detestation of the perverted principles and conduct of the Quaker junto, and a wish that the board would take the matter up; notwithstanding which, it was suffered to pass away unnoticed, to the encouragement of new acts of treason, the general danger of the cause, and the disgrace of the state.

*To the honorable the Council of Safety of the State of
Pennsylvania.*

At a meeting of a reputable number of the inhabitants of the city of Philadelphia, impressed with a proper sense of the justice of the cause which this continent is engaged in, and animated with a generous fervor for supporting the same, it was resolved, that the following be laid before the board of safety:

"We profess liberality of sentiment to all men; with this distinction only, that those who do not deserve it would become wise and seek to deserve it. We hold the pure doctrines of universal liberty of conscience, and conceive it our duty to endeavor to secure that sacred right to others, as well as to defend it for ourselves; for we undertake not to judge of the religious rectitude of tenets, but leave the whole matter to Him who made us.

"We persecute no man, neither will we abet in the persecution of any man for religion's sake; our common relation to others being that of fellow-citizens and fellow-subjects of one single community; and in this line of connection we hold out the right hand of fellowship to all men. But we

should conceive ourselves to be unworthy members of the free and independent States of America, were we unconcernedly to see or to suffer any treasonable wound, public or private, directly or indirectly, to be given against the peace and safety of the same. We inquire not into the rank of the offenders, nor into their religious persuasion; we have no business with either, our part being only to find them out and exhibit them to justice.

"A printed paper, dated the 20th of November, and signed 'John Pemberton,' whom we suppose to be an inhabitant of this city, has lately been dispersed abroad, a copy of which accompanies this. Had the framers and publishers of that paper conceived it their duty to exhort the youth and others of their society, to a patient submission under the present trying visitations, and humbly to wait the event of heaven towards them, they had therein shown a Christian temper, and we had been silent; but the anger and political virulence with which their instructions are given, and the abuse with which they stigmatize all ranks of men not thinking like themselves, leave no doubt on our minds from what spirit their publication proceeded: and it is disgraceful to the pure cause of truth, that men can dally with words of the most sacred import, and play them off as mechanically as if religion consisted only in contrivance. We know of no instance in which the Quakers have been compelled to bear arms, or to do any thing which might strain their conscience; wherefore their advice, 'to withstand and refuse to submit to the arbitrary instructions and ordinances of men,' appear to us a false alarm, and could only be treasonably calculated to gain favor with our enemies, when they are seemingly on the brink of invading this State, or, what is still worse, to weaken the hands of our defence, that their entrance into this city might be made practicable and easy.

"We disclaim all tumult and disorder in the punishment of offenders; and wish to be governed, not by temper but by reason, in the manner of treating them. We are sensible that our cause has suffered by the two following errors: first, by ill-judged lenity to traitorous persons in some cases; and, secondly, by only a passionate treatment of them in others. For the future we disown both, and wish to be steady in our proceedings, and serious in our punishments.

"Every State in America has, by the repeated voice of its inhabitants, directed and authorized the Continental Congress to publish a formal Declaration of Independence of, and separation from, the oppressive king

and Parliament of Great Britain; and we look on every man as an enemy, who does not in some line or other, give his assistance towards supporting the same; at the same time we consider the offence to be heightened to a degree of unpardonable guilt, when such persons, under the show of religion, endeavor, either by writing, speaking, or otherwise, to subvert, overturn, or bring reproach upon the independence of this continent as declared by Congress.

"The publishers of the paper signed 'John Pemberton,' have called in a loud manner to their friends and connections, 'to withstand or refuse' obedience to whatever 'instructions or ordinances' may be published, not warranted by (what they call) 'that happy Constitution under which they and others long enjoyed tranquillity and peace.' If this be not treason, we know not what may properly be called by that name.

"To us it is a matter of surprise and astonishment, that men with the word 'peace, peace,' continually on their lips, should be so fond of living under and supporting a government, and at the same time calling it 'happy,' which is never better pleased than when a war—that has filled India with carnage and famine, Africa with slavery, and tampered with Indians and negroes to cut the throats of the freemen of America. We conceive it a disgrace to this State, to harbor or wink at such palpable hypocrisy. But as we seek not to hurt the hair of any man's head, when we can make ourselves safe without, we wish such persons to restore peace to themselves and us, by removing themselves to some part of the king of Great Britain's dominions, as by that means they may live unmolested by us and we by them; for our fixed opinion is, that those who do not deserve a place among us, ought not to have one.

"We conclude with requesting the Council of Safety to take into consideration the paper signed 'John Pemberton,' and if it shall appear to them to be of a dangerous tendency, or of a treasonable nature, that they would commit the signer, together with such other persons as they can discover were concerned therein, into custody, until such time as some mode of trial shall ascertain the full degree of their guilt and punishment; in the doing of which, we wish their judges, whoever they may be, to disregard the man, his connections, interest, riches, poverty, or principles of religion, and to attend to the nature of his offence only."

The most cavilling sectarian cannot accuse the foregoing with containing the least ingredient of persecution. The free spirit on which the American cause is founded, disdains to mix with such an impurity, and leaves it as rubbish fit only for narrow and suspicious minds to grovel in. Suspicion and persecution are weeds of the same dunghill, and flourish together. Had the Quakers minded their religion and their business, they might have lived through this dispute in enviable ease, and none would have molested them. The common phrase with these people is, 'Our principles are peace.' To which may be replied, and your practices are the reverse; for never did the conduct of men oppose their own doctrine more notoriously than the present race of the Quakers. They have artfully changed themselves into a different sort of people to what they used to be, and yet have the address to persuade each other that they are not altered; like antiquated virgins, they see not the havoc deformity has made upon them, but pleasantly mistaking wrinkles for dimples, conceive themselves yet lovely and wonder at the stupid world for not admiring them.

Did no injury arise to the public by this apostacy of the Quakers from themselves, the public would have nothing to do with it; but as both the design and consequences are pointed against a cause in which the whole community are interested, it is therefore no longer a subject confined to the cognizance of the meeting only, but comes, as a matter of criminality, before the authority either of the particular State in which it is acted, or of the continent against which it operates. Every attempt, now, to support the authority of the king and Parliament of Great Britain over America, is treason against every State; therefore it is impossible that any one can pardon or screen from punishment an offender against all.

But to proceed: while the infatuated Tories of this and other States were last spring talking of commissioners, accommodation, making the matter up, and the Lord knows what stuff and nonsense, their good king and ministry were glutting themselves with the revenge of reducing America to unconditional submission, and solacing each other with the certainty of conquering it in one campaign. The following quotations are from the parliamentary register of the debate's of the House of Lords, March 5th, 1776:

"The Americans," says Lord Talbot,* "have been obstinate, undutiful, and ungovernable from the very beginning, from their first early and infant

settlements; and I am every day more and more convinced that this people never will be brought back to their duty, and the subordinate relation they stand in to this country, till reduced to unconditional, effectual submission; no concession on our part, no lenity, no endurance, will have any other effect but that of increasing their insolence."

** Steward of the king's household.*

"The struggle," says Lord Townsend,* "is now a struggle for power; the die is cast, and the only point which now remains to be determined is, in what manner the war can be most effectually prosecuted and speedily finished, in order to procure that unconditional submission, which has been so ably stated by the noble Earl with the white staff" (meaning Lord Talbot;) "and I have no reason to doubt that the measures now pursuing will put an end to the war in the course of a single campaign. Should it linger longer, we shall then have reason to expect that some foreign power will interfere, and take advantage of our domestic troubles and civil distractions."

** Formerly General Townsend, at Quebec, and late lord-lieutenant of Ireland.*

Lord Littleton. "My sentiments are pretty well known. I shall only observe now that lenient measures have had no other effect than to produce insult after insult; that the more we conceded, the higher America rose in her demands, and the more insolent she has grown. It is for this reason that I am now for the most effective and decisive measures; and am of opinion that no alternative is left us, but to relinquish America for ever, or finally determine to compel her to acknowledge the legislative authority of this country; and it is the principle of an unconditional submission I would be for maintaining."

Can words be more expressive than these? Surely the Tories will believe the Tory lords! The truth is, they do believe them and know as fully as any Whig on the continent knows, that the king and ministry never had the least design of an accommodation with America, but an absolute, unconditional conquest. And the part which the Tories were to act, was, by downright lying, to endeavor to put the continent off its guard, and to divide and sow discontent in the minds of such Whigs as they might gain an influence over. In short, to keep up a distraction here, that the force sent from England

might be able to conquer in "one campaign." They and the ministry were, by a different game, playing into each other's hands. The cry of the Tories in England was, "No reconciliation, no accommodation," in order to obtain the greater military force; while those in America were crying nothing but "reconciliation and accommodation," that the force sent might conquer with the less resistance.

But this "single campaign" is over, and America not conquered. The whole work is yet to do, and the force much less to do it with. Their condition is both despicable and deplorable: out of cash—out of heart, and out of hope. A country furnished with arms and ammunition as America now is, with three millions of inhabitants, and three thousand miles distant from the nearest enemy that can approach her, is able to look and laugh them in the face.

Howe appears to have two objects in view, either to go up the North River, or come to Philadelphia.

By going up the North River, he secures a retreat for his army through Canada, but the ships must return if they return at all, the same way they went; as our army would be in the rear, the safety of their passage down is a doubtful matter. By such a motion he shuts himself from all supplies from Europe, but through Canada, and exposes his army and navy to the danger of perishing. The idea of his cutting off the communication between the eastern and southern states, by means of the North River, is merely visionary. He cannot do it by his shipping; because no ship can lay long at anchor in any river within reach of the shore; a single gun would drive a first rate from such a station. This was fully proved last October at Forts Washington and Lee, where one gun only, on each side of the river, obliged two frigates to cut and be towed off in an hour's time. Neither can he cut it off by his army; because the several posts they must occupy would divide them almost to nothing, and expose them to be picked up by ours like pebbles on a river's bank; but admitting that he could, where is the injury? Because, while his whole force is cantoned out, as sentries over the water, they will be very innocently employed, and the moment they march into the country the communication opens.

The most probable object is Philadelphia, and the reasons are many. Howe's business is to conquer it, and in proportion as he finds himself unable to the task, he will employ his strength to distress women and weak

minds, in order to accomplish through their fears what he cannot accomplish by his own force. His coming or attempting to come to Philadelphia is a circumstance that proves his weakness: for no general that felt himself able to take the field and attack his antagonist would think of bringing his army into a city in the summer time; and this mere shifting the scene from place to place, without effecting any thing, has feebleness and cowardice on the face of it, and holds him up in a contemptible light to all who can reason justly and firmly. By several informations from New York, it appears that their army in general, both officers and men, have given up the expectation of conquering America; their eye now is fixed upon the spoil. They suppose Philadelphia to be rich with stores, and as they think to get more by robbing a town than by attacking an army, their movement towards this city is probable. We are not now contending against an army of soldiers, but against a band of thieves, who had rather plunder than fight, and have no other hope of conquest than by cruelty.

They expect to get a mighty booty, and strike another general panic, by making a sudden movement and getting possession of this city; but unless they can march out as well as in, or get the entire command of the river, to remove off their plunder, they may probably be stopped with the stolen goods upon them. They have never yet succeeded wherever they have been opposed, but at Fort Washington. At Charleston their defeat was effectual. At Ticonderoga they ran away. In every skirmish at Kingsbridge and the White Plains they were obliged to retreat, and the instant that our arms were turned upon them in the Jerseys, they turned likewise, and those that turned not were taken.

The necessity of always fitting our internal police to the circumstances of the times we live in, is something so strikingly obvious, that no sufficient objection can be made against it. The safety of all societies depends upon it; and where this point is not attended to, the consequences will either be a general languor or a tumult. The encouragement and protection of the good subjects of any state, and the suppression and punishment of bad ones, are the principal objects for which all authority is instituted, and the line in which it ought to operate. We have in this city a strange variety of men and characters, and the circumstances of the times require that they should be publicly known; it is not the number of Tories that hurt us, so much as the not finding out who they are; men must now take one side or the other, and abide by the consequences: the Quakers, trusting to their short-sighted

sagacity, have, most unluckily for them, made their declaration in their last Testimony, and we ought now to take them at their word. They have involuntarily read themselves out of the continental meeting, and cannot hope to be restored to it again but by payment and penitence. Men whose political principles are founded on avarice, are beyond the reach of reason, and the only cure of Toryism of this cast is to tax it. A substantial good drawn from a real evil, is of the same benefit to society, as if drawn from a virtue; and where men have not public spirit to render themselves serviceable, it ought to be the study of government to draw the best use possible from their vices. When the governing passion of any man, or set of men, is once known, the method of managing them is easy; for even misers, whom no public virtue can impress, would become generous, could a heavy tax be laid upon covetousness.

The Tories have endeavored to insure their property with the enemy, by forfeiting their reputation with us; from which may be justly inferred, that their governing passion is avarice. Make them as much afraid of losing on one side as on the other, and you stagger their Toryism; make them more so, and you reclaim them; for their principle is to worship the power which they are most afraid of.

This method of considering men and things together, opens into a large field for speculation, and affords me an opportunity of offering some observations on the state of our currency, so as to make the support of it go hand in hand with the suppression of disaffection and the encouragement of public spirit.

The thing which first presents itself in inspecting the state of the currency, is, that we have too much of it, and that there is a necessity of reducing the quantity, in order to increase the value. Men are daily growing poor by the very means that they take to get rich; for in the same proportion that the prices of all goods on hand are raised, the value of all money laid by is reduced. A simple case will make this clear; let a man have 100 L. in cash, and as many goods on hand as will to-day sell for 20 L.; but not content with the present market price, he raises them to 40 L. and by so doing obliges others, in their own defence, to raise cent. per cent. likewise; in this case it is evident that his hundred pounds laid by, is reduced fifty pounds in value; whereas, had the market lowered cent. per cent., his goods would have sold but for ten, but his hundred pounds would have risen in

value to two hundred; because it would then purchase as many goods again, or support his family as long again as before. And, strange as it may seem, he is one hundred and fifty pounds the poorer for raising his goods, to what he would have been had he lowered them; because the forty pounds which his goods sold for, is, by the general raise of the market cent. per cent., rendered of no more value than the ten pounds would be had the market fallen in the same proportion; and, consequently, the whole difference of gain or loss is on the difference in value of the hundred pounds laid by, viz. from fifty to two hundred. This rage for raising goods is for several reasons much more the fault of the Tories than the Whigs; and yet the Tories (to their shame and confusion ought they to be told of it) are by far the most noisy and discontented. The greatest part of the Whigs, by being now either in the army or employed in some public service, are buyers only and not sellers, and as this evil has its origin in trade, it cannot be charged on those who are out of it.

But the grievance has now become too general to be remedied by partial methods, and the only effectual cure is to reduce the quantity of money: with half the quantity we should be richer than we are now, because the value of it would be doubled, and consequently our attachment to it increased; for it is not the number of dollars that a man has, but how far they will go, that makes him either rich or poor. These two points being admitted, viz. that the quantity of money is too great, and that the prices of goods can only be effectually reduced by, reducing the quantity of the money, the next point to be considered is, the method how to reduce it.

The circumstances of the times, as before observed, require that the public characters of all men should now be fully understood, and the only general method of ascertaining it is by an oath or affirmation, renouncing all allegiance to the king of Great Britain, and to support the independence of the United States, as declared by Congress. Let, at the same time, a tax of ten, fifteen, or twenty per cent. per annum, to be collected quarterly, be levied on all property. These alternatives, by being perfectly voluntary, will take in all sorts of people. Here is the test; here is the tax. He who takes the former, conscientiously proves his affection to the cause, and binds himself to pay his quota by the best services in his power, and is thereby justly exempt from the latter; and those who choose the latter, pay their quota in money, to be excused from the former, or rather, it is the price paid to us for their supposed, though mistaken, insurance with the enemy.

But this is only a part of the advantage which would arise by knowing the different characters of men. The Whigs stake everything on the issue of their arms, while the Tories, by their disaffection, are sapping and undermining their strength; and, of consequence, the property of the Whigs is the more exposed thereby; and whatever injury their estates may sustain by the movements of the enemy, must either be borne by themselves, who have done everything which has yet been done, or by the Tories, who have not only done nothing, but have, by their disaffection, invited the enemy on.

In the present crisis we ought to know, square by square and house by house, who are in real allegiance with the United Independent States, and who are not. Let but the line be made clear and distinct, and all men will then know what they are to trust to. It would not only be good policy but strict justice, to raise fifty or one hundred thousand pounds, or more, if it is necessary, out of the estates and property of the king of England's votaries, resident in Philadelphia, to be distributed, as a reward to those inhabitants of the city and State, who should turn out and repulse the enemy, should they attempt to march this way; and likewise, to bind the property of all such persons to make good the damages which that of the Whigs might sustain. In the undistinguishable mode of conducting a war, we frequently make reprisals at sea, on the vessels of persons in England, who are friends to our cause compared with the resident Tories among us.

In every former publication of mine, from Common Sense down to the last Crisis, I have generally gone on the charitable supposition, that the Tories were rather a mistaken than a criminal people, and have applied argument after argument, with all the candor and temper which I was capable of, in order to set every part of the case clearly and fairly before them, and if possible to reclaim them from ruin to reason. I have done my duty by them and have now done with that doctrine, taking it for granted, that those who yet hold their disaffection are either a set of avaricious miscreants, who would sacrifice the continent to save themselves, or a banditti of hungry traitors, who are hoping for a division of the spoil. To which may be added, a list of crown or proprietary dependants, who, rather than go without a portion of power, would be content to share it with the devil. Of such men there is no hope; and their obedience will only be according to the danger set before them, and the power that is exercised over them.

A time will shortly arrive, in which, by ascertaining the characters of persons now, we shall be guarded against their mischiefs then; for in proportion as the enemy despair of conquest, they will be trying the arts of seduction and the force of fear by all the mischiefs which they can inflict. But in war we may be certain of these two things, viz. that cruelty in an enemy, and motions made with more than usual parade, are always signs of weakness. He that can conquer, finds his mind too free and pleasant to be brutish; and he that intends to conquer, never makes too much show of his strength.

We now know the enemy we have to do with. While drunk with the certainty of victory, they disdained to be civil; and in proportion as disappointment makes them sober, and their apprehensions of an European war alarm them, they will become cringing and artful; honest they cannot be. But our answer to them, in either condition they may be in, is short and full—"As free and independent States we are willing to make peace with you to-morrow, but we neither can hear nor reply in any other character."

If Britain cannot conquer us, it proves that she is neither able to govern nor protect us, and our particular situation now is such, that any connection with her would be unwisely exchanging a half-defeated enemy for two powerful ones. Europe, by every appearance, is now on the eve, nay, on the morning twilight of a war, and any alliance with George the Third brings France and Spain upon our backs; a separation from him attaches them to our side; therefore, the only road to peace, honor and commerce is Independence.

Written this fourth year of the UNION, which God preserve.

COMMON SENSE.

PHILADELPHIA, April 19, 1777.

THE CRISIS IV. (THOSE WHO EXPECT TO REAP THE BLESSINGS OF FREEDOM)

THOSE who expect to reap the blessings of freedom, must, like men, undergo the fatigues of supporting it. The event of yesterday was one of those kind of alarms which is just sufficient to rouse us to duty, without being of consequence enough to depress our fortitude. It is not a field of a few acres of ground, but a cause, that we are defending, and whether we defeat the enemy in one battle, or by degrees, the consequences will be the same.

Look back at the events of last winter and the present year, there you will find that the enemy's successes always contributed to reduce them. What they have gained in ground, they paid so dearly for in numbers, that their victories have in the end amounted to defeats. We have always been masters at the last push, and always shall be while we do our duty. Howe has been once on the banks of the Delaware, and from thence driven back with loss and disgrace: and why not be again driven from the Schuylkill? His condition and ours are very different. He has everybody to fight, we have only his one army to cope with, and which wastes away at every engagement: we can not only reinforce, but can redouble our numbers; he is cut off from all supplies, and must sooner or later inevitably fall into our hands.

Shall a band of ten or twelve thousand robbers, who are this day fifteen hundred or two thousand men less in strength than they were yesterday, conquer America, or subdue even a single state? The thing cannot be, unless we sit down and suffer them to do it. Another such a brush, notwithstanding we lost the ground, would, by still reducing the enemy, put them in a condition to be afterwards totally defeated. Could our whole army have come up to the attack at one time, the consequences had probably been otherwise; but our having different parts of the Brandywine creek to guard, and the uncertainty which road to Philadelphia the enemy would attempt to take, naturally afforded them an opportunity of passing with their main body at a place where only a part of ours could be posted; for it must strike

every thinking man with conviction, that it requires a much greater force to oppose an enemy in several places, than is sufficient to defeat him in any one place.

Men who are sincere in defending their freedom, will always feel concern at every circumstance which seems to make against them; it is the natural and honest consequence of all affectionate attachments, and the want of it is a vice. But the dejection lasts only for a moment; they soon rise out of it with additional vigor; the glow of hope, courage and fortitude, will, in a little time, supply the place of every inferior passion, and kindle the whole heart into heroism.

There is a mystery in the countenance of some causes, which we have not always present judgment enough to explain. It is distressing to see an enemy advancing into a country, but it is the only place in which we can beat them, and in which we have always beaten them, whenever they made the attempt. The nearer any disease approaches to a crisis, the nearer it is to a cure. Danger and deliverance make their advances together, and it is only the last push, in which one or the other takes the lead.

There are many men who will do their duty when it is not wanted; but a genuine public spirit always appears most when there is most occasion for it. Thank God! our army, though fatigued, is yet entire. The attack made by us yesterday, was under many disadvantages, naturally arising from the uncertainty of knowing which route the enemy would take; and, from that circumstance, the whole of our force could not be brought up together time enough to engage all at once. Our strength is yet reserved; and it is evident that Howe does not think himself a gainer by the affair, otherwise he would this morning have moved down and attacked General Washington.

Gentlemen of the city and country, it is in your power, by a spirited improvement of the present circumstance, to turn it to a real advantage. Howe is now weaker than before, and every shot will contribute to reduce him. You are more immediately interested than any other part of the continent: your all is at stake; it is not so with the general cause; you are devoted by the enemy to plunder and destruction: it is the encouragement which Howe, the chief of plunderers, has promised his army. Thus circumstanced, you may save yourselves by a manly resistance, but you can have no hope in any other conduct. I never yet knew our brave general, or any part of the army, officers or men, out of heart, and I have seen them in

circumstances a thousand times more trying than the present. It is only those that are not in action, that feel languor and heaviness, and the best way to rub it off is to turn out, and make sure work of it.

Our army must undoubtedly feel fatigue, and want a reinforcement of rest though not of valor. Our own interest and happiness call upon us to give them every support in our power, and make the burden of the day, on which the safety of this city depends, as light as possible. Remember, gentlemen, that we have forces both to the northward and southward of Philadelphia, and if the enemy be but stopped till those can arrive, this city will be saved, and the enemy finally routed. You have too much at stake to hesitate. You ought not to think an hour upon the matter, but to spring to action at once. Other states have been invaded, have likewise driven off the invaders. Now our time and turn is come, and perhaps the finishing stroke is reserved for us. When we look back on the dangers we have been saved from, and reflect on the success we have been blessed with, it would be sinful either to be idle or to despair.

I close this paper with a short address to General Howe. You, sir, are only lingering out the period that shall bring with it your defeat. You have yet scarce began upon the war, and the further you enter, the faster will your troubles thicken. What you now enjoy is only a respite from ruin; an invitation to destruction; something that will lead on to our deliverance at your expense. We know the cause which we are engaged in, and though a passionate fondness for it may make us grieve at every injury which threatens it, yet, when the moment of concern is over, the determination to duty returns. We are not moved by the gloomy smile of a worthless king, but by the ardent glow of generous patriotism. We fight not to enslave, but to set a country free, and to make room upon the earth for honest men to live in. In such a case we are sure that we are right; and we leave to you the despairing reflection of being the tool of a miserable tyrant.

COMMON SENSE.

PHILADELPHIA, Sept. 12, 1777.

THE CRISIS. V. TO GEN. SIR WILLIAM HOWE.

TO argue with a man who has renounced the use and authority of reason, and whose philosophy consists in holding humanity in contempt, is like administering medicine to the dead, or endeavoring to convert an atheist by scripture. Enjoy, sir, your insensibility of feeling and reflecting. It is the prerogative of animals. And no man will envy you these honors, in which a savage only can be your rival and a bear your master.

As the generosity of this country rewarded your brother's services in the last war, with an elegant monument in Westminster Abbey, it is consistent that she should bestow some mark of distinction upon you. You certainly deserve her notice, and a conspicuous place in the catalogue of extraordinary persons. Yet it would be a pity to pass you from the world in state, and consign you to magnificent oblivion among the tombs, without telling the future beholder why. Judas is as much known as John, yet history ascribes their fame to very different actions.

Sir William has undoubtedly merited a monument; but of what kind, or with what inscription, where placed or how embellished, is a question that would puzzle all the heralds of St. James's in the profoundest mood of historical deliberation. We are at no loss, sir, to ascertain your real character, but somewhat perplexed how to perpetuate its identity, and preserve it uninjured from the transformations of time or mistake. A statuary may give a false expression to your bust, or decorate it with some equivocal emblems, by which you may happen to steal into reputation and impose upon the hereafter traditionary world. Ill nature or ridicule may conspire, or a variety of accidents combine to lessen, enlarge, or change Sir William's fame; and no doubt but he who has taken so much pains to be singular in his conduct, would choose to be just as singular in his exit, his monument and his epitaph.

The usual honors of the dead, to be sure, are not sufficiently sublime to escort a character like you to the republic of dust and ashes; for however men may differ in their ideas of grandeur or of government here, the grave

is nevertheless a perfect republic. Death is not the monarch of the dead, but of the dying. The moment he obtains a conquest he loses a subject, and, like the foolish king you serve, will, in the end, war himself out of all his dominions.

As a proper preliminary towards the arrangement of your funeral honors, we readily admit of your new rank of knighthood. The title is perfectly in character, and is your own, more by merit than creation. There are knights of various orders, from the knight of the windmill to the knight of the post. The former is your patron for exploits, and the latter will assist you in settling your accounts. No honorary title could be more happily applied! The ingenuity is sublime! And your royal master has discovered more genius in fitting you therewith, than in generating the most finished figure for a button, or descanting on the properties of a button mould.

But how, sir, shall we dispose of you? The invention of a statuary is exhausted, and Sir William is yet unprovided with a monument. America is anxious to bestow her funeral favors upon you, and wishes to do it in a manner that shall distinguish you from all the deceased heroes of the last war. The Egyptian method of embalming is not known to the present age, and hieroglyphical pageantry hath outlived the science of deciphering it. Some other method, therefore, must be thought of to immortalize the new knight of the windmill and post. Sir William, thanks to his stars, is not oppressed with very delicate ideas. He has no ambition of being wrapped up and handed about in myrrh, aloes and cassia. Less expensive odors will suffice; and it fortunately happens that the simple genius of America has discovered the art of preserving bodies, and embellishing them too, with much greater frugality than the ancients. In balmage, sir, of humble tar, you will be as secure as Pharaoh, and in a hieroglyphic of feathers, rival in finery all the mummies of Egypt.

As you have already made your exit from the moral world, and by numberless acts both of passionate and deliberate injustice engraved an "here lieth" on your deceased honor, it must be mere affectation in you to pretend concern at the humors or opinions of mankind respecting you. What remains of you may expire at any time. The sooner the better. For he who survives his reputation, lives out of despite of himself, like a man listening to his own reproach.

Thus entombed and ornamented, I leave you to the inspection of the curious, and return to the history of your yet surviving actions. The character of Sir William has undergone some extraordinary revolutions. since his arrival in America. It is now fixed and known; and we have nothing to hope from your candor or to fear from your capacity. Indolence and inability have too large a share in your composition, ever to suffer you to be anything more than the hero of little villainies and unfinished adventures. That, which to some persons appeared moderation in you at first, was not produced by any real virtue of your own, but by a contrast of passions, dividing and holding you in perpetual irresolution. One vice will frequently expel another, without the least merit in the man; as powers in contrary directions reduce each other to rest.

It became you to have supported a dignified solemnity of character; to have shown a superior liberality of soul; to have won respect by an obstinate perseverance in maintaining order, and to have exhibited on all occasions such an unchangeable graciousness of conduct, that while we beheld in you the resolution of an enemy, we might admire in you the sincerity of a man. You came to America under the high sounding titles of commander and commissioner; not only to suppress what you call rebellion, by arms, but to shame it out of countenance by the excellence of your example. Instead of which, you have been the patron of low and vulgar frauds, the encourager of Indian cruelties; and have imported a cargo of vices blacker than those which you pretend to suppress.

Mankind are not universally agreed in their determination of right and wrong; but there are certain actions which the consent of all nations and individuals has branded with the unchangeable name of meanness. In the list of human vices we find some of such a refined constitution, they cannot be carried into practice without seducing some virtue to their assistance; but meanness has neither alliance nor apology. It is generated in the dust and sweepings of other vices, and is of such a hateful figure that all the rest conspire to disown it. Sir William, the commissioner of George the Third, has at last vouchsafed to give it rank and pedigree. He has placed the fugitive at the council board, and dubbed it companion of the order of knighthood.

The particular act of meanness which I allude to in this description, is forgery. You, sir, have abetted and patronized the forging and uttering

counterfeit continental bills. In the same New York newspapers in which your own proclamation under your master's authority was published, offering, or pretending to offer, pardon and protection to these states, there were repeated advertisements of counterfeit money for sale, and persons who have come officially from you, and under the sanction of your flag, have been taken up in attempting to put them off.

A conduct so basely mean in a public character is without precedent or pretence. Every nation on earth, whether friends or enemies, will unite in despising you. 'Tis an incendiary war upon society, which nothing can excuse or palliate,—an improvement upon beggarly villany—and shows an inbred wretchedness of heart made up between the venomous malignity of a serpent and the spiteful imbecility of an inferior reptile.

The laws of any civilized country would condemn you to the gibbet without regard to your rank or titles, because it is an action foreign to the usage and custom of war; and should you fall into our hands, which pray God you may, it will be a doubtful matter whether we are to consider you as a military prisoner or a prisoner for felony.

Besides, it is exceedingly unwise and impolitic in you, or any other persons in the English service, to promote or even encourage, or wink at the crime of forgery, in any case whatever. Because, as the riches of England, as a nation, are chiefly in paper, and the far greater part of trade among individuals is carried on by the same medium, that is, by notes and drafts on one another, they, therefore, of all people in the world, ought to endeavor to keep forgery out of sight, and, if possible, not to revive the idea of it. It is dangerous to make men familiar with a crime which they may afterwards practise to much greater advantage against those who first taught them. Several officers in the English army have made their exit at the gallows for forgery on their agents; for we all know, who know any thing of England, that there is not a more necessitous body of men, taking them generally, than what the English officers are. They contrive to make a show at the expense of the tailors, and appear clean at the charge of the washer-women.

England, has at this time, nearly two hundred million pounds sterling of public money in paper, for which she has no real property: besides a large circulation of bank notes, bank post bills, and promissory notes and drafts of private bankers, merchants and tradesmen. She has the greatest quantity of paper currency and the least quantity of gold and silver of any nation in

Europe; the real specie, which is about sixteen millions sterling, serves only as change in large sums, which are always made in paper, or for payment in small ones. Thus circumstanced, the nation is put to its wit's end, and obliged to be severe almost to criminality, to prevent the practice and growth of forgery. Scarcely a session passes at the Old Bailey, or an execution at Tyburn, but witnesses this truth, yet you, sir, regardless of the policy which her necessity obliges her to adopt, have made your whole army intimate with the crime. And as all armies at the conclusion of a war, are too apt to carry into practice the vices of the campaign, it will probably happen, that England will hereafter abound in forgeries, to which art the practitioners were first initiated under your authority in America. You, sir, have the honor of adding a new vice to the military catalogue; and the reason, perhaps, why the invention was reserved for you, is, because no general before was mean enough even to think of it.

That a man whose soul is absorbed in the low traffic of vulgar vice, is incapable of moving in any superior region, is clearly shown in you by the event of every campaign. Your military exploits have been without plan, object or decision. Can it be possible that you or your employers suppose that the possession of Philadelphia will be any ways equal to the expense or expectation of the nation which supports you? What advantages does England derive from any achievements of yours? To her it is perfectly indifferent what place you are in, so long as the business of conquest is unperformed and the charge of maintaining you remains the same.

If the principal events of the three campaigns be attended to, the balance will appear against you at the close of each; but the last, in point of importance to us, has exceeded the former two. It is pleasant to look back on dangers past, and equally as pleasant to meditate on present ones when the way out begins to appear. That period is now arrived, and the long doubtful winter of war is changing to the sweeter prospects of victory and joy. At the close of the campaign, in 1775, you were obliged to retreat from Boston. In the summer of 1776, you appeared with a numerous fleet and army in the harbor of New York. By what miracle the continent was preserved in that season of danger is a subject of admiration! If instead of wasting your time against Long Island you had run up the North River, and landed any where above New York, the consequence must have been, that either you would have compelled General Washington to fight you with very unequal numbers, or he must have suddenly evacuated the city with

the loss of nearly all the stores of his army, or have surrendered for want of provisions; the situation of the place naturally producing one or the other of these events.

The preparations made to defend New York were, nevertheless, wise and military; because your forces were then at sea, their numbers uncertain; storms, sickness, or a variety of accidents might have disabled their coming, or so diminished them on their passage, that those which survived would have been incapable of opening the campaign with any prospect of success; in which case the defence would have been sufficient and the place preserved; for cities that have been raised from nothing with an infinitude of labor and expense, are not to be thrown away on the bare probability of their being taken. On these grounds the preparations made to maintain New York were as judicious as the retreat afterwards. While you, in the interim, let slip the very opportunity which seemed to put conquest in your power.

Through the whole of that campaign you had nearly double the forces which General Washington immediately commanded. The principal plan at that time, on our part, was to wear away the season with as little loss as possible, and to raise the army for the next year. Long Island, New York, Forts Washington and Mifflin were not defended after your superior force was known under any expectation of their being finally maintained, but as a range of outworks, in the attacking of which your time might be wasted, your numbers reduced, and your vanity amused by possessing them on our retreat. It was intended to have withdrawn the garrison from Fort Mifflin after it had answered the former of those purposes, but the fate of that day put a prize into your hands without much honor to yourselves.

Your progress through the Jerseys was accidental; you had it not even in contemplation, or you would not have sent a principal part of your forces to Rhode Island beforehand. The utmost hope of America in the year 1776, reached no higher than that she might not then be conquered. She had no expectation of defeating you in that campaign. Even the most cowardly Tory allowed, that, could she withstand the shock of that summer, her independence would be past a doubt. You had then greatly the advantage of her. You were formidable. Your military knowledge was supposed to be complete. Your fleets and forces arrived without an accident. You had neither experience nor reinforcements to wait for. You had nothing to do but to begin, and your chance lay in the first vigorous onset.

America was young and unskilled. She was obliged to trust her defence to time and practice; and has, by mere dint of perseverance, maintained her cause, and brought the enemy to a condition, in which she is now capable of meeting him on any grounds.

It is remarkable that in the campaign of 1776 you gained no more, notwithstanding your great force, than what was given you by consent of evacuation, except Fort Washington; while every advantage obtained by us was by fair and hard fighting. The defeat of Sir Peter Parker was complete. The conquest of the Hessians at Trenton, by the remains of a retreating army, which but a few days before you affected to despise, is an instance of their heroic perseverance very seldom to be met with. And the victory over the British troops at Princeton, by a harassed and wearied party, who had been engaged the day before and marched all night without refreshment, is attended with such a scene of circumstances and superiority of generalship, as will ever give it a place in the first rank in the history of great actions.

When I look back on the gloomy days of last winter, and see America suspended by a thread, I feel a triumph of joy at the recollection of her delivery, and a reverence for the characters which snatched her from destruction. To doubt now would be a species of infidelity, and to forget the instruments which saved us then would be ingratitude.

The close of that campaign left us with the spirit of conquerors. The northern districts were relieved by the retreat of General Carleton over the lakes. The army under your command were hunted back and had their bounds prescribed. The continent began to feel its military importance, and the winter passed pleasantly away in preparations for the next campaign.

However confident you might be on your first arrival, the result of the year 1776 gave you some idea of the difficulty, if not impossibility of conquest. To this reason I ascribe your delay in opening the campaign of 1777. The face of matters, on the close of the former year, gave you no encouragement to pursue a discretionary war as soon as the spring admitted the taking the field; for though conquest, in that case, would have given you a double portion of fame, yet the experiment was too hazardous. The ministry, had you failed, would have shifted the whole blame upon you, charged you with having acted without orders, and condemned at once both your plan and execution.

To avoid the misfortunes, which might have involved you and your money accounts in perplexity and suspicion, you prudently waited the arrival of a plan of operations from England, which was that you should proceed for Philadelphia by way of the Chesapeake, and that Burgoyne, after reducing Ticonderoga, should take his route by Albany, and, if necessary, join you.

The splendid laurels of the last campaign have flourished in the north. In that quarter America has surprised the world, and laid the foundation of this year's glory. The conquest of Ticonderoga, (if it may be called a conquest) has, like all your other victories, led on to ruin. Even the provisions taken in that fortress (which by General Burgoyne's return was sufficient in bread and flour for nearly 5000 men for ten weeks, and in beef and pork for the same number of men for one month) served only to hasten his overthrow, by enabling him to proceed to Saratoga, the place of his destruction. A short review of the operations of the last campaign will show the condition of affairs on both sides.

You have taken Ticonderoga and marched into Philadelphia. These are all the events which the year has produced on your part. A trifling campaign indeed, compared with the expenses of England and the conquest of the continent. On the other side, a considerable part of your northern force has been routed by the New York militia under General Herkemer. Fort Stanwix has bravely survived a compound attack of soldiers and savages, and the besiegers have fled. The Battle of Bennington has put a thousand prisoners into our hands, with all their arms, stores, artillery and baggage. General Burgoyne, in two engagements, has been defeated; himself, his army, and all that were his and theirs are now ours. Ticonderoga and Independence [forts] are retaken, and not the shadow of an enemy remains in all the northern districts. At this instant we have upwards of eleven thousand prisoners, between sixty and seventy [captured] pieces of brass ordnance, besides small arms, tents, stores, etc.

In order to know the real value of those advantages, we must reverse the scene, and suppose General Gates and the force he commanded to be at your mercy as prisoners, and General Burgoyne, with his army of soldiers and savages, to be already joined to you in Pennsylvania. So dismal a picture can scarcely be looked at. It has all the tracings and colorings of

horror and despair; and excites the most swelling emotions of gratitude by exhibiting the miseries we are so graciously preserved from.

I admire the distribution of laurels around the continent. It is the earnest of future union. South Carolina has had her day of sufferings and of fame; and the other southern States have exerted themselves in proportion to the force that invaded or insulted them. Towards the close of the campaign, in 1776, these middle States were called upon and did their duty nobly. They were witnesses to the almost expiring flame of human freedom. It was the close struggle of life and death, the line of invisible division; and on which the unabated fortitude of a Washington prevailed, and saved the spark that has since blazed in the north with unrivalled lustre.

Let me ask, sir, what great exploits have you performed? Through all the variety of changes and opportunities which the war has produced, I know no one action of yours that can be styled masterly. You have moved in and out, backward and forward, round and round, as if valor consisted in a military jig. The history and figure of your movements would be truly ridiculous could they be justly delineated. They resemble the labors of a puppy pursuing his tail; the end is still at the same distance, and all the turnings round must be done over again.

The first appearance of affairs at Ticonderoga wore such an unpromising aspect, that it was necessary, in July, to detach a part of the forces to the support of that quarter, which were otherwise destined or intended to act against you; and this, perhaps, has been the means of postponing your downfall to another campaign. The destruction of one army at a time is work enough. We know, sir, what we are about, what we have to do, and how to do it.

Your progress from the Chesapeake, was marked by no capital stroke of policy or heroism. Your principal aim was to get General Washington between the Delaware and Schuylkill, and between Philadelphia and your army. In that situation, with a river on each of his flanks, which united about five miles below the city, and your army above him, you could have intercepted his reinforcements and supplies, cut off all his communication with the country, and, if necessary, have despatched assistance to open a passage for General Burgoyne. This scheme was too visible to succeed: for had General Washington suffered you to command the open country above him, I think it a very reasonable conjecture that the conquest of Burgoyne

would not have taken place, because you could, in that case, have relieved him. It was therefore necessary, while that important victory was in suspense, to trepan you into a situation in which you could only be on the defensive, without the power of affording him assistance. The manoeuvre had its effect, and Burgoyne was conquered.

There has been something unmilitary and passive in you from the time of your passing the Schuylkill and getting possession of Philadelphia, to the close of the campaign. You mistook a trap for a conquest, the probability of which had been made known to Europe, and the edge of your triumph taken off by our own information long before.

Having got you into this situation, a scheme for a general attack upon you at Germantown was carried into execution on the 4th of October, and though the success was not equal to the excellence of the plan, yet the attempting it proved the genius of America to be on the rise, and her power approaching to superiority. The obscurity of the morning was your best friend, for a fog is always favorable to a hunted enemy. Some weeks after this you likewise planned an attack on General Washington while at Whitemarsh. You marched out with infinite parade, but on finding him preparing to attack you next morning, you prudently turned about, and retreated to Philadelphia with all the precipitation of a man conquered in imagination.

Immediately after the battle of Germantown, the probability of Burgoyne's defeat gave a new policy to affairs in Pennsylvania, and it was judged most consistent with the general safety of America, to wait the issue of the northern campaign. Slow and sure is sound work. The news of that victory arrived in our camp on the 18th of October, and no sooner did that shout of joy, and the report of the thirteen cannon reach your ears, than you resolved upon a retreat, and the next day, that is, on the 19th, you withdrew your drooping army into Philadelphia. This movement was evidently dictated by fear; and carried with it a positive confession that you dreaded a second attack. It was hiding yourself among women and children, and sleeping away the choicest part of the campaign in expensive inactivity. An army in a city can never be a conquering army. The situation admits only of defence. It is mere shelter: and every military power in Europe will conclude you to be eventually defeated.

The time when you made this retreat was the very time you ought to have fought a battle, in order to put yourself in condition of recovering in Pennsylvania what you had lost in Saratoga. And the reason why you did not, must be either prudence or cowardice; the former supposes your inability, and the latter needs no explanation. I draw no conclusions, sir, but such as are naturally deduced from known and visible facts, and such as will always have a being while the facts which produced them remain unaltered.

After this retreat a new difficulty arose which exhibited the power of Britain in a very contemptible light; which was the attack and defence of Mud Island. For several weeks did that little unfinished fortress stand out against all the attempts of Admiral and General Howe. It was the fable of Bender realized on the Delaware. Scheme after scheme, and force upon force were tried and defeated. The garrison, with scarce anything to cover them but their bravery, survived in the midst of mud, shot and shells, and were at last obliged to give it up more to the powers of time and gunpowder than to military superiority of the besiegers.

It is my sincere opinion that matters are in much worse condition with you than what is generally known. Your master's speech at the opening of Parliament, is like a soliloquy on ill luck. It shows him to be coming a little to his reason, for sense of pain is the first symptom of recovery, in profound stupefaction. His condition is deplorable. He is obliged to submit to all the insults of France and Spain, without daring to know or resent them; and thankful for the most trivial evasions to the most humble remonstrances. The time was when he could not deign an answer to a petition from America, and the time now is when he dare not give an answer to an affront from France. The capture of Burgoyne's army will sink his consequence as much in Europe as in America. In his speech he expresses his suspicions at the warlike preparations of France and Spain, and as he has only the one army which you command to support his character in the world with, it remains very uncertain when, or in what quarter it will be most wanted, or can be best employed; and this will partly account for the great care you take to keep it from action and attacks, for should Burgoyne's fate be yours, which it probably will, England may take her endless farewell not only of all America but of all the West Indies.

Never did a nation invite destruction upon itself with the eagerness and the ignorance with which Britain has done. Bent upon the ruin of a young and unoffending country, she has drawn the sword that has wounded herself to the heart, and in the agony of her resentment has applied a poison for a cure. Her conduct towards America is a compound of rage and lunacy; she aims at the government of it, yet preserves neither dignity nor character in her methods to obtain it. Were government a mere manufacture or article of commerce, immaterial by whom it should be made or sold, we might as well employ her as another, but when we consider it as the fountain from whence the general manners and morality of a country take their rise, that the persons entrusted with the execution thereof are by their serious example an authority to support these principles, how abominably absurd is the idea of being hereafter governed by a set of men who have been guilty of forgery, perjury, treachery, theft and every species of villany which the lowest wretches on earth could practise or invent. What greater public curse can befall any country than to be under such authority, and what greater blessing than to be delivered therefrom. The soul of any man of sentiment would rise in brave rebellion against them, and spurn them from the earth.

The malignant and venomous tempered General Vaughan has amused his savage fancy in burning the whole town of Kingston, in York government, and the late governor of that state, Mr. Tryon, in his letter to General Parsons, has endeavored to justify it and declared his wish to burn the houses of every committeeman in the country. Such a confession from one who was once intrusted with the powers of civil government, is a reproach to the character. But it is the wish and the declaration of a man whom anguish and disappointment have driven to despair, and who is daily decaying into the grave with constitutional rottenness.

There is not in the compass of language a sufficiency of words to express the baseness of your king, his ministry and his army. They have refined upon villany till it wants a name. To the fiercer vices of former ages they have added the dregs and scummings of the most finished rascality, and are so completely sunk in serpentine deceit, that there is not left among them one generous enemy.

From such men and such masters, may the gracious hand of Heaven preserve America! And though the sufferings she now endures are heavy, and severe, they are like straws in the wind compared to the weight of evils

she would feel under the government of your king, and his pensioned Parliament.

There is something in meanness which excites a species of resentment that never subsides, and something in cruelty which stirs up the heart to the highest agony of human hatred; Britain has filled up both these characters till no addition can be made, and has not reputation left with us to obtain credit for the slightest promise. The will of God has parted us, and the deed is registered for eternity. When she shall be a spot scarcely visible among the nations, America shall flourish the favorite of heaven, and the friend of mankind.

For the domestic happiness of Britain and the peace of the world, I wish she had not a foot of land but what is circumscribed within her own island. Extent of dominion has been her ruin, and instead of civilizing others has brutalized herself. Her late reduction of India, under Clive and his successors, was not so properly a conquest as an extermination of mankind. She is the only power who could practise the prodigal barbarity of tying men to mouths of loaded cannon and blowing them away. It happens that General Burgoyne, who made the report of that horrid transaction, in the House of Commons, is now a prisoner with us, and though an enemy, I can appeal to him for the truth of it, being confident that he neither can nor will deny it. Yet Clive received the approbation of the last Parliament.

When we take a survey of mankind, we cannot help cursing the wretch, who, to the unavoidable misfortunes of nature, shall wilfully add the calamities of war. One would think there were evils enough in the world without studying to increase them, and that life is sufficiently short without shaking the sand that measures it. The histories of Alexander, and Charles of Sweden, are the histories of human devils; a good man cannot think of their actions without abhorrence, nor of their deaths without rejoicing. To see the bounties of heaven destroyed, the beautiful face of nature laid waste, and the choicest works of creation and art tumbled into ruin, would fetch a curse from the soul of piety itself. But in this country the aggravation is heightened by a new combination of affecting circumstances. America was young, and, compared with other countries, was virtuous. None but a Herod of uncommon malice would have made war upon infancy and innocence: and none but a people of the most finished fortitude, dared under those circumstances, have resisted the tyranny. The natives, or their ancestors, had

fled from the former oppressions of England, and with the industry of bees had changed a wilderness into a habitable world. To Britain they were indebted for nothing. The country was the gift of heaven, and God alone is their Lord and Sovereign.

The time, sir, will come when you, in a melancholy hour, shall reckon up your miseries by your murders in America. Life, with you, begins to wear a clouded aspect. The vision of pleasurable delusion is wearing away, and changing to the barren wild of age and sorrow. The poor reflection of having served your king will yield you no consolation in your parting moments. He will crumble to the same undistinguished ashes with yourself, and have sins enough of his own to answer for. It is not the farcical benedictions of a bishop, nor the cringing hypocrisy of a court of chaplains, nor the formality of an act of Parliament, that can change guilt into innocence, or make the punishment one pang the less. You may, perhaps, be unwilling to be serious, but this destruction of the goods of Providence, this havoc of the human race, and this sowing the world with mischief, must be accounted for to him who made and governs it. To us they are only present sufferings, but to him they are deep rebellions.

If there is a sin superior to every other, it is that of wilful and offensive war. Most other sins are circumscribed within narrow limits, that is, the power of one man cannot give them a very general extension, and many kinds of sins have only a mental existence from which no infection arises; but he who is the author of a war, lets loose the whole contagion of hell, and opens a vein that bleeds a nation to death. We leave it to England and Indians to boast of these honors; we feel no thirst for such savage glory; a nobler flame, a purer spirit animates America. She has taken up the sword of virtuous defence; she has bravely put herself between Tyranny and Freedom, between a curse and a blessing, determined to expel the one and protect the other.

It is the object only of war that makes it honorable. And if there was ever a just war since the world began, it is this in which America is now engaged. She invaded no land of yours. She hired no mercenaries to burn your towns, nor Indians to massacre their inhabitants. She wanted nothing from you, and was indebted for nothing to you: and thus circumstanced, her defence is honorable and her prosperity is certain.

Yet it is not on the justice only, but likewise on the importance of this cause that I ground my seeming enthusiastical confidence of our success. The vast extension of America makes her of too much value in the scale of Providence, to be cast like a pearl before swine, at the feet of an European island; and of much less consequence would it be that Britain were sunk in the sea than that America should miscarry. There has been such a chain of extraordinary events in the discovery of this country at first, in the peopling and planting it afterwards, in the rearing and nursing it to its present state, and in the protection of it through the present war, that no man can doubt, but Providence has some nobler end to accomplish than the gratification of the petty elector of Hanover, or the ignorant and insignificant king of Britain.

As the blood of the martyrs has been the seed of the Christian church, so the political persecutions of England will and have already enriched America with industry, experience, union, and importance. Before the present era she was a mere chaos of uncemented colonies, individually exposed to the ravages of the Indians and the invasion of any power that Britain should be at war with. She had nothing that she could call her own. Her felicity depended upon accident. The convulsions of Europe might have thrown her from one conqueror to another, till she had been the slave of all, and ruined by every one; for until she had spirit enough to become her own master, there was no knowing to which master she should belong. That period, thank God, is past, and she is no longer the dependent, disunited colonies of Britain, but the independent and United States of America, knowing no master but heaven and herself. You, or your king, may call this "delusion," "rebellion," or what name you please. To us it is perfectly indifferent. The issue will determine the character, and time will give it a name as lasting as his own.

You have now, sir, tried the fate of three campaigns, and can fully declare to England, that nothing is to be got on your part, but blows and broken bones, and nothing on hers but waste of trade and credit, and an increase of poverty and taxes. You are now only where you might have been two years ago, without the loss of a single ship, and yet not a step more forward towards the conquest of the continent; because, as I have already hinted, "an army in a city can never be a conquering army." The full amount of your losses, since the beginning of the war, exceeds twenty thousand men, besides millions of treasure, for which you have nothing in exchange. Our

expenses, though great, are circulated within ourselves. Yours is a direct sinking of money, and that from both ends at once; first, in hiring troops out of the nation, and in paying them afterwards, because the money in neither case can return to Britain. We are already in possession of the prize, you only in pursuit of it. To us it is a real treasure, to you it would be only an empty triumph. Our expenses will repay themselves with tenfold interest, while yours entail upon you everlasting poverty.

Take a review, sir, of the ground which you have gone over, and let it teach you policy, if it cannot honesty. You stand but on a very tottering foundation. A change of the ministry in England may probably bring your measures into question, and your head to the block. Clive, with all his successes, had some difficulty in escaping, and yours being all a war of losses, will afford you less pretensions, and your enemies more grounds for impeachment.

Go home, sir, and endeavor to save the remains of your ruined country, by a just representation of the madness of her measures. A few moments, well applied, may yet preserve her from political destruction. I am not one of those who wish to see Europe in a flame, because I am persuaded that such an event will not shorten the war. The rupture, at present, is confined between the two powers of America and England. England finds that she cannot conquer America, and America has no wish to conquer England. You are fighting for what you can never obtain, and we defending what we never mean to part with. A few words, therefore, settle the bargain. Let England mind her own business and we will mind ours. Govern yourselves, and we will govern ourselves. You may then trade where you please unmolested by us, and we will trade where we please unmolested by you; and such articles as we can purchase of each other better than elsewhere may be mutually done. If it were possible that you could carry on the war for twenty years you must still come to this point at last, or worse, and the sooner you think of it the better it will be for you.

My official situation enables me to know the repeated insults which Britain is obliged to put up with from foreign powers, and the wretched shifts that she is driven to, to gloss them over. Her reduced strength and exhausted coffers in a three years' war with America, has given a powerful superiority to France and Spain. She is not now a match for them. But if neither councils can prevail on her to think, nor sufferings awaken her to

reason, she must e'en go on, till the honor of England becomes a proverb of contempt, and Europe dub her the Land of Fools.

I am, Sir, with every wish for an honorable peace,

Your friend, enemy, and countryman,

COMMON SENSE.

TO THE INHABITANTS OF AMERICA.

WITH all the pleasure with which a man exchanges bad company for good, I take my leave of Sir William and return to you. It is now nearly three years since the tyranny of Britain received its first repulse by the arms of America. A period which has given birth to a new world, and erected a monument to the folly of the old.

I cannot help being sometimes surprised at the complimentary references which I have seen and heard made to ancient histories and transactions. The wisdom, civil governments, and sense of honor of the states of Greece and Rome, are frequently held up as objects of excellence and imitation. Mankind have lived to very little purpose, if, at this period of the world, they must go two or three thousand years back for lessons and examples. We do great injustice to ourselves by placing them in such a superior line. We have no just authority for it, neither can we tell why it is that we should suppose ourselves inferior.

Could the mist of antiquity be cleared away, and men and things be viewed as they really were, it is more than probable that they would admire us, rather than we them. America has surmounted a greater variety and combination of difficulties, than, I believe, ever fell to the share of any one people, in the same space of time, and has replenished the world with more useful knowledge and sounder maxims of civil government than were ever produced in any age before. Had it not been for America, there had been no such thing as freedom left throughout the whole universe. England has lost hers in a long chain of right reasoning from wrong principles, and it is from this country, now, that she must learn the resolution to redress herself, and the wisdom how to accomplish it.

The Grecians and Romans were strongly possessed of the spirit of liberty but not the principle, for at the time that they were determined not to be slaves themselves, they employed their power to enslave the rest of

mankind. But this distinguished era is blotted by no one misanthropical vice. In short, if the principle on which the cause is founded, the universal blessings that are to arise from it, the difficulties that accompanied it, the wisdom with which it has been debated, the fortitude by which it has been supported, the strength of the power which we had to oppose, and the condition in which we undertook it, be all taken in one view, we may justly style it the most virtuous and illustrious revolution that ever graced the history of mankind.

A good opinion of ourselves is exceedingly necessary in private life, but absolutely necessary in public life, and of the utmost importance in supporting national character. I have no notion of yielding the palm of the United States to any Grecians or Romans that were ever born. We have equalled the bravest in times of danger, and excelled the wisest in construction of civil governments.

From this agreeable eminence let us take a review of present affairs. The spirit of corruption is so inseparably interwoven with British politics, that their ministry suppose all mankind are governed by the same motives. They have no idea of a people submitting even to temporary inconvenience from an attachment to rights and privileges. Their plans of business are calculated by the hour and for the hour, and are uniform in nothing but the corruption which gives them birth. They never had, neither have they at this time, any regular plan for the conquest of America by arms. They know not how to go about it, neither have they power to effect it if they did know. The thing is not within the compass of human practicability, for America is too extensive either to be fully conquered or passively defended. But she may be actively defended by defeating or making prisoners of the army that invades her. And this is the only system of defence that can be effectual in a large country.

There is something in a war carried on by invasion which makes it differ in circumstances from any other mode of war, because he who conducts it cannot tell whether the ground he gains be for him, or against him, when he first obtains it. In the winter of 1776, General Howe marched with an air of victory through the Jerseys, the consequence of which was his defeat; and General Burgoyne at Saratoga experienced the same fate from the same cause. The Spaniards, about two years ago, were defeated by the Algerines in the same manner, that is, their first triumphs became a trap in which they

were totally routed. And whoever will attend to the circumstances and events of a war carried on by invasion, will find, that any invader, in order to be finally conquered must first begin to conquer.

I confess myself one of those who believe the loss of Philadelphia to be attended with more advantages than injuries. The case stood thus: The enemy imagined Philadelphia to be of more importance to us than it really was; for we all know that it had long ceased to be a port: not a cargo of goods had been brought into it for near a twelvemonth, nor any fixed manufactories, nor even ship-building, carried on in it; yet as the enemy believed the conquest of it to be practicable, and to that belief added the absurd idea that the soul of all America was centred there, and would be conquered there, it naturally follows that their possession of it, by not answering the end proposed, must break up the plans they had so foolishly gone upon, and either oblige them to form a new one, for which their present strength is not sufficient, or to give over the attempt.

We never had so small an army to fight against, nor so fair an opportunity of final success as now. The death wound is already given. The day is ours if we follow it up. The enemy, by his situation, is within our reach, and by his reduced strength is within our power. The ministers of Britain may rage as they please, but our part is to conquer their armies. Let them wrangle and welcome, but let, it not draw our attention from the one thing needful. Here, in this spot is our own business to be accomplished, our felicity secured. What we have now to do is as clear as light, and the way to do it is as straight as a line. It needs not to be commented upon, yet, in order to be perfectly understood I will put a case that cannot admit of a mistake.

Had the armies under Generals Howe and Burgoyne been united, and taken post at Germantown, and had the northern army under General Gates been joined to that under General Washington, at Whitemarsh, the consequence would have been a general action; and if in that action we had killed and taken the same number of officers and men, that is, between nine and ten thousand, with the same quantity of artillery, arms, stores, etc., as have been taken at the northward, and obliged General Howe with the remains of his army, that is, with the same number he now commands, to take shelter in Philadelphia, we should certainly have thought ourselves the greatest heroes in the world; and should, as soon as the season permitted, have collected together all the force of the continent and laid siege to the

city, for it requires a much greater force to besiege an enemy in a town than to defeat him in the field. The case now is just the same as if it had been produced by the means I have here supposed. Between nine and ten thousand have been killed and taken, all their stores are in our possession, and General Howe, in consequence of that victory, has thrown himself for shelter into Philadelphia. He, or his trifling friend Galloway, may form what pretences they please, yet no just reason can be given for their going into winter quarters so early as the 19th of October, but their apprehensions of a defeat if they continued out, or their conscious inability of keeping the field with safety. I see no advantage which can arise to America by hunting the enemy from state to state. It is a triumph without a prize, and wholly unworthy the attention of a people determined to conquer. Neither can any state promise itself security while the enemy remains in a condition to transport themselves from one part of the continent to another. Howe, likewise, cannot conquer where we have no army to oppose, therefore any such removals in him are mean and cowardly, and reduces Britain to a common pilferer. If he retreats from Philadelphia, he will be despised; if he stays, he may be shut up and starved out, and the country, if he advances into it, may become his Saratoga. He has his choice of evils and we of opportunities. If he moves early, it is not only a sign but a proof that he expects no reinforcement, and his delay will prove that he either waits for the arrival of a plan to go upon, or force to execute it, or both; in which case our strength will increase more than his, therefore in any case we cannot be wrong if we do but proceed.

The particular condition of Pennsylvania deserves the attention of all the other States. Her military strength must not be estimated by the number of inhabitants. Here are men of all nations, characters, professions and interests. Here are the firmest Whigs, surviving, like sparks in the ocean, unquenched and uncooled in the midst of discouragement and disaffection. Here are men losing their all with cheerfulness, and collecting fire and fortitude from the flames of their own estates. Here are others skulking in secret, many making a market of the times, and numbers who are changing to Whig or Tory with the circumstances of every day.

It is by a mere dint of fortitude and perseverance that the Whigs of this State have been able to maintain so good a countenance, and do even what they have done. We want help, and the sooner it can arrive the more effectual it will be. The invaded State, be it which it may, will always feel

an additional burden upon its back, and be hard set to support its civil power with sufficient authority; and this difficulty will rise or fall, in proportion as the other states throw in their assistance to the common cause.

The enemy will most probably make many manoeuvres at the opening of this campaign, to amuse and draw off the attention of the several States from the one thing needful. We may expect to hear of alarms and pretended expeditions to this place and that place, to the southward, the eastward, and the northward, all intended to prevent our forming into one formidable body. The less the enemy's strength is, the more subtleties of this kind will they make use of. Their existence depends upon it, because the force of America, when collected, is sufficient to swallow their present army up. It is therefore our business to make short work of it, by bending our whole attention to this one principal point, for the instant that the main body under General Howe is defeated, all the inferior alarms throughout the continent, like so many shadows, will follow his downfall.

The only way to finish a war with the least possible bloodshed, or perhaps without any, is to collect an army, against the power of which the enemy shall have no chance. By not doing this, we prolong the war, and double both the calamities and expenses of it. What a rich and happy country would America be, were she, by a vigorous exertion, to reduce Howe as she has reduced Burgoyne. Her currency would rise to millions beyond its present value. Every man would be rich, and every man would have it in his power to be happy. And why not do these things? What is there to hinder? America is her own mistress and can do what she pleases.

If we had not at this time a man in the field, we could, nevertheless, raise an army in a few weeks sufficient to overwhelm all the force which General Howe at present commands. Vigor and determination will do anything and everything. We began the war with this kind of spirit, why not end it with the same? Here, gentlemen, is the enemy. Here is the army. The interest, the happiness of all America, is centred in this half ruined spot. Come and help us. Here are laurels, come and share them. Here are Tories, come and help us to expel them. Here are Whigs that will make you welcome, and enemies that dread your coming.

The worst of all policies is that of doing things by halves. Penny-wise and pound-foolish, has been the ruin of thousands. The present spring, if rightly improved, will free us from our troubles, and save us the expense of

millions. We have now only one army to cope with. No opportunity can be fairer; no prospect more promising. I shall conclude this paper with a few outlines of a plan, either for filling up the battalions with expedition, or for raising an additional force, for any limited time, on any sudden emergency.

That in which every man is interested, is every man's duty to support. And any burden which falls equally on all men, and from which every man is to receive an equal benefit, is consistent with the most perfect ideas of liberty. I would wish to revive something of that virtuous ambition which first called America into the field. Then every man was eager to do his part, and perhaps the principal reason why we have in any degree fallen therefrom, is because we did not set a right value by it at first, but left it to blaze out of itself, instead of regulating and preserving it by just proportions of rest and service.

Suppose any State whose number of effective inhabitants was 80,000, should be required to furnish 3,200 men towards the defence of the continent on any sudden emergency.

1st, Let the whole number of effective inhabitants be divided into hundreds; then if each of those hundreds turn out four men, the whole number of 3,200 will be had.

2d, Let the name of each hundred men be entered in a book, and let four dollars be collected from each man, with as much more as any of the gentlemen, whose abilities can afford it, shall please to throw in, which gifts likewise shall be entered against the names of the donors.

3d, Let the sums so collected be offered as a present, over and above the bounty of twenty dollars, to any four who may be inclined to propose themselves as volunteers: if more than four offer, the majority of the subscribers present shall determine which; if none offer, then four out of the hundred shall be taken by lot, who shall be entitled to the said sums, and shall either go, or provide others that will, in the space of six days.

4th, As it will always happen that in the space of ground on which a hundred men shall live, there will be always a number of persons who, by age and infirmity, are incapable of doing personal service, and as such persons are generally possessed of the greatest part of property in any country, their portion of service, therefore, will be to furnish each man with a blanket, which will make a regimental coat, jacket, and breeches, or clothes in lieu thereof, and another for a watch cloak, and two pair of shoes;

for however choice people may be of these things matters not in cases of this kind; those who live always in houses can find many ways to keep themselves warm, but it is a shame and a sin to suffer a soldier in the field to want a blanket while there is one in the country.

Should the clothing not be wanted, the superannuated or infirm persons possessing property, may, in lieu thereof, throw in their money subscriptions towards increasing the bounty; for though age will naturally exempt a person from personal service, it cannot exempt him from his share of the charge, because the men are raised for the defence of property and liberty jointly.

There never was a scheme against which objections might not be raised. But this alone is not a sufficient reason for rejection. The only line to judge truly upon is to draw out and admit all the objections which can fairly be made, and place against them all the contrary qualities, conveniences and advantages, then by striking a balance you come at the true character of any scheme, principle or position.

The most material advantages of the plan here proposed are, ease, expedition, and cheapness; yet the men so raised get a much larger bounty than is any where at present given; because all the expenses, extravagance, and consequent idleness of recruiting are saved or prevented. The country incurs no new debt nor interest thereon; the whole matter being all settled at once and entirely done with. It is a subscription answering all the purposes of a tax, without either the charge or trouble of collecting. The men are ready for the field with the greatest possible expedition, because it becomes the duty of the inhabitants themselves, in every part of the country, to find their proportion of men instead of leaving it to a recruiting sergeant, who, be he ever so industrious, cannot know always where to apply.

I do not propose this as a regular digested plan, neither will the limits of this paper admit of any further remarks upon it. I believe it to be a hint capable of much improvement, and as such submit it to the public.

COMMON SENSE.

LANCASTER, March 21, 1778.

THE CRISIS VI. (TO THE EARL OF CARLISLE AND GENERAL CLINTON)

*TO THE EARL OF CARLISLE, GENERAL CLINTON, AND
WILLIAM EDEN, ESQ., BRITISH COMMISSIONERS
AT NEW YORK.*

THERE is a dignity in the warm passions of a Whig, which is never to be found in the cold malice of a Tory. In the one nature is only heated—in the other she is poisoned. The instant the former has it in his power to punish, he feels a disposition to forgive; but the canine venom of the latter knows no relief but revenge. This general distinction will, I believe, apply in all cases, and suits as well the meridian of England as America.

As I presume your last proclamation will undergo the strictures of other pens, I shall confine my remarks to only a few parts thereof. All that you have said might have been comprised in half the compass. It is tedious and unmeaning, and only a repetition of your former follies, with here and there an offensive aggravation. Your cargo of pardons will have no market. It is unfashionable to look at them—even speculation is at an end. They have become a perfect drug, and no way calculated for the climate.

In the course of your proclamation you say, "The policy as well as the benevolence of Great Britain have thus far checked the extremes of war, when they tended to distress a people still considered as their fellow subjects, and to desolate a country shortly to become again a source of mutual advantage." What you mean by "the benevolence of Great Britain" is to me inconceivable. To put a plain question; do you consider yourselves men or devils? For until this point is settled, no determinate sense can be put upon the expression. You have already equalled and in many cases excelled, the savages of either Indies; and if you have yet a cruelty in store you must have imported it, unmixed with every human material, from the original warehouse of hell.

To the interposition of Providence, and her blessings on our endeavors, and not to British benevolence are we indebted for the short chain that limits your ravages. Remember you do not, at this time, command a foot of

land on the continent of America. Staten Island, York Island, a small part of Long Island, and Rhode Island, circumscribe your power; and even those you hold at the expense of the West Indies. To avoid a defeat, or prevent a desertion of your troops, you have taken up your quarters in holes and corners of inaccessible security; and in order to conceal what every one can perceive, you now endeavor to impose your weakness upon us for an act of mercy. If you think to succeed by such shadowy devices, you are but infants in the political world; you have the A, B, C, of stratagem yet to learn, and are wholly ignorant of the people you have to contend with. Like men in a state of intoxication, you forget that the rest of the world have eyes, and that the same stupidity which conceals you from yourselves exposes you to their satire and contempt.

The paragraph which I have quoted, stands as an introduction to the following: "But when that country [America] professes the unnatural design, not only of estranging herself from us, but of mortgaging herself and her resources to our enemies, the whole contest is changed: and the question is how far Great Britain may, by every means in her power, destroy or render useless, a connection contrived for her ruin, and the aggrandizement of France. Under such circumstances, the laws of self-preservation must direct the conduct of Britain, and, if the British colonies are to become an accession to France, will direct her to render that accession of as little avail as possible to her enemy."

I consider you in this declaration, like madmen biting in the hour of death. It contains likewise a fraudulent meanness; for, in order to justify a barbarous conclusion, you have advanced a false position. The treaty we have formed with France is open, noble, and generous. It is true policy, founded on sound philosophy, and neither a surrender or mortgage, as you would scandalously insinuate. I have seen every article, and speak from positive knowledge. In France, we have found an affectionate friend and faithful ally; in Britain, we have found nothing but tyranny, cruelty, and infidelity.

But the happiness is, that the mischief you threaten, is not in your power to execute; and if it were, the punishment would return upon you in a ten-fold degree. The humanity of America has hitherto restrained her from acts of retaliation, and the affection she retains for many individuals in England, who have fed, clothed and comforted her prisoners, has, to the present day,

warded off her resentment, and operated as a screen to the whole. But even these considerations must cease, when national objects interfere and oppose them. Repeated aggravations will provoke a retort, and policy justify the measure. We mean now to take you seriously up upon your own ground and principle, and as you do, so shall you be done by.

You ought to know, gentlemen, that England and Scotland, are far more exposed to incendiary desolation than America, in her present state, can possibly be. We occupy a country, with but few towns, and whose riches consist in land and annual produce. The two last can suffer but little, and that only within a very limited compass. In Britain it is otherwise. Her wealth lies chiefly in cities and large towns, the depositories of manufactures and fleets of merchantmen. There is not a nobleman's country seat but may be laid in ashes by a single person. Your own may probably contribute to the proof: in short, there is no evil which cannot be returned when you come to incendiary mischief. The ships in the Thames, may certainly be as easily set on fire, as the temporary bridge was a few years ago; yet of that affair no discovery was ever made; and the loss you would sustain by such an event, executed at a proper season, is infinitely greater than any you can inflict. The East India House and the Bank, neither are nor can be secure from this sort of destruction, and, as Dr. Price justly observes, a fire at the latter would bankrupt the nation. It has never been the custom of France and England when at war, to make those havocs on each other, because the ease with which they could retaliate rendered it as impolitic as if each had destroyed his own.

But think not, gentlemen, that our distance secures you, or our invention fails us. We can much easier accomplish such a point than any nation in Europe. We talk the same language, dress in the same habit, and appear with the same manners as yourselves. We can pass from one part of England to another unsuspected; many of us are as well acquainted with the country as you are, and should you impolitically provoke us, you will most assuredly lament the effects of it. Mischiefs of this kind require no army to execute them. The means are obvious, and the opportunities unguardable. I hold up a warning to our senses, if you have any left, and "to the unhappy people likewise, whose affairs are committed to you."* I call not with the rancor of an enemy, but the earnestness of a friend, on the deluded people of England, lest, between your blunders and theirs, they sink beneath the evils contrived for us.

** General [Sir H.] Clinton's letter to Congress.*

"He who lives in a glass house," says a Spanish proverb, "should never begin throwing stones." This, gentlemen, is exactly your case, and you must be the most ignorant of mankind, or suppose us so, not to see on which side the balance of accounts will fall. There are many other modes of retaliation, which, for several reasons, I choose not to mention. But be assured of this, that the instant you put your threat into execution, a counter-blow will follow it. If you openly profess yourselves savages, it is high time we should treat you as such, and if nothing but distress can recover you to reason, to punish will become an office of charity.

While your fleet lay last winter in the Delaware, I offered my service to the Pennsylvania Navy Board then at Trenton, as one who would make a party with them, or any four or five gentlemen, on an expedition down the river to set fire to it, and though it was not then accepted, nor the thing personally attempted, it is more than probable that your own folly will provoke a much more ruinous act. Say not when mischief is done, that you had not warning, and remember that we do not begin it, but mean to repay it. Thus much for your savage and impolitic threat.

In another part of your proclamation you say, "But if the honors of a military life are become the object of the Americans, let them seek those honors under the banners of their rightful sovereign, and in fighting the battles of the united British Empire, against our late mutual and natural enemies." Surely! the union of absurdity with madness was never marked in more distinguishable lines than these. Your rightful sovereign, as you call him, may do well enough for you, who dare not inquire into the humble capacities of the man; but we, who estimate persons and things by their real worth, cannot suffer our judgments to be so imposed upon; and unless it is your wish to see him exposed, it ought to be your endeavor to keep him out of sight. The less you have to say about him the better. We have done with him, and that ought to be answer enough. You have been often told so. Strange! that the answer must be so often repeated. You go a-begging with your king as with a brat, or with some unsaleable commodity you were tired of; and though every body tells you no, no, still you keep hawking him about. But there is one that will have him in a little time, and as we have no inclination to disappoint you of a customer, we bid nothing for him.

The impertinent folly of the paragraph that I have just quoted, deserves no other notice than to be laughed at and thrown by, but the principle on which it is founded is detestable. We are invited to submit to a man who has attempted by every cruelty to destroy us, and to join him in making war against France, who is already at war against him for our support.

Can Bedlam, in concert with Lucifer, form a more mad and devilish request? Were it possible a people could sink into such apostacy they would deserve to be swept from the earth like the inhabitants of Sodom and Gomorrah. The proposition is an universal affront to the rank which man holds in the creation, and an indignity to him who placed him there. It supposes him made up without a spark of honor, and under no obligation to God or man.

What sort of men or Christians must you suppose the Americans to be, who, after seeing their most humble petitions insultingly rejected; the most grievous laws passed to distress them in every quarter; an undeclared war let loose upon them, and Indians and negroes invited to the slaughter; who, after seeing their kinsmen murdered, their fellow citizens starved to death in prisons, and their houses and property destroyed and burned; who, after the most serious appeals to heaven, the most solemn abjuration by oath of all government connected with you, and the most heart-felt pledges and protestations of faith to each other; and who, after soliciting the friendship, and entering into alliances with other nations, should at last break through all these obligations, civil and divine, by complying with your horrid and infernal proposal. Ought we ever after to be considered as a part of the human race? Or ought we not rather to be blotted from the society of mankind, and become a spectacle of misery to the world? But there is something in corruption, which, like a jaundiced eye, transfers the color of itself to the object it looks upon, and sees every thing stained and impure; for unless you were capable of such conduct yourselves, you would never have supposed such a character in us. The offer fixes your infamy. It exhibits you as a nation without faith; with whom oaths and treaties are considered as trifles, and the breaking them as the breaking of a bubble. Regard to decency, or to rank, might have taught you better; or pride inspired you, though virtue could not. There is not left a step in the degradation of character to which you can now descend; you have put your foot on the ground floor, and the key of the dungeon is turned upon you.

That the invitation may want nothing of being a complete monster, you have thought proper to finish it with an assertion which has no foundation, either in fact or philosophy; and as Mr. Ferguson, your secretary, is a man of letters, and has made civil society his study, and published a treatise on that subject, I address this part to him.

In the close of the paragraph which I last quoted, France is styled the "natural enemy" of England, and by way of lugging us into some strange idea, she is styled "the late mutual and natural enemy" of both countries. I deny that she ever was the natural enemy of either; and that there does not exist in nature such a principle. The expression is an unmeaning barbarism, and wholly unphilosophical, when applied to beings of the same species, let their station in the creation be what it may. We have a perfect idea of a natural enemy when we think of the devil, because the enmity is perpetual, unalterable and unabateable. It admits, neither of peace, truce, or treaty; consequently the warfare is eternal, and therefore it is natural. But man with man cannot arrange in the same opposition. Their quarrels are accidental and equivocally created. They become friends or enemies as the change of temper, or the cast of interest inclines them. The Creator of man did not constitute them the natural enemy of each other. He has not made any one order of beings so. Even wolves may quarrel, still they herd together. If any two nations are so, then must all nations be so, otherwise it is not nature but custom, and the offence frequently originates with the accuser. England is as truly the natural enemy of France, as France is of England, and perhaps more so. Separated from the rest of Europe, she has contracted an unsocial habit of manners, and imagines in others the jealousy she creates in herself. Never long satisfied with peace, she supposes the discontent universal, and buoyed up with her own importance, conceives herself the only object pointed at. The expression has been often used, and always with a fraudulent design; for when the idea of a natural enemy is conceived, it prevents all other inquiries, and the real cause of the quarrel is hidden in the universality of the conceit. Men start at the notion of a natural enemy, and ask no other question. The cry obtains credit like the alarm of a mad dog, and is one of those kind of tricks, which, by operating on the common passions, secures their interest through their folly.

But we, sir, are not to be thus imposed upon. We live in a large world, and have extended our ideas beyond the limits and prejudices of an island. We hold out the right hand of friendship to all the universe, and we

conceive that there is a sociality in the manners of France, which is much better disposed to peace and negotiation than that of England, and until the latter becomes more civilized, she cannot expect to live long at peace with any power. Her common language is vulgar and offensive, and children suck in with their milk the rudiments of insult—"The arm of Britain! The mighty arm of Britain! Britain that shakes the earth to its center and its poles! The scourge of France! The terror of the world! That governs with a nod, and pours down vengeance like a God." This language neither makes a nation great or little; but it shows a savageness of manners, and has a tendency to keep national animosity alive. The entertainments of the stage are calculated to the same end, and almost every public exhibition is tinctured with insult. Yet England is always in dread of France,—terrified at the apprehension of an invasion, suspicious of being outwitted in a treaty, and privately cringing though she is publicly offending. Let her, therefore, reform her manners and do justice, and she will find the idea of a natural enemy to be only a phantom of her own imagination.

Little did I think, at this period of the war, to see a proclamation which could promise you no one useful purpose whatever, and tend only to expose you. One would think that you were just awakened from a four years' dream, and knew nothing of what had passed in the interval. Is this a time to be offering pardons, or renewing the long forgotten subjects of charters and taxation? Is it worth your while, after every force has failed you, to retreat under the shelter of argument and persuasion? Or can you think that we, with nearly half your army prisoners, and in alliance with France, are to be begged or threatened into submission by a piece of paper? But as commissioners at a hundred pounds sterling a week each, you conceive yourselves bound to do something, and the genius of ill-fortune told you, that you must write.

For my own part, I have not put pen to paper these several months. Convinced of our superiority by the issue of every campaign, I was inclined to hope, that that which all the rest of the world now see, would become visible to you, and therefore felt unwilling to ruffle your temper by fretting you with repetitions and discoveries. There have been intervals of hesitation in your conduct, from which it seemed a pity to disturb you, and a charity to leave you to yourselves. You have often stopped, as if you intended to think, but your thoughts have ever been too early or too late.

There was a time when Britain disdained to answer, or even hear a petition from America. That time is past and she in her turn is petitioning our acceptance. We now stand on higher ground, and offer her peace; and the time will come when she, perhaps in vain, will ask it from us. The latter case is as probable as the former ever was. She cannot refuse to acknowledge our independence with greater obstinacy than she before refused to repeal her laws; and if America alone could bring her to the one, united with France she will reduce her to the other. There is something in obstinacy which differs from every other passion; whenever it fails it never recovers, but either breaks like iron, or crumbles sulkily away like a fractured arch. Most other passions have their periods of fatigue and rest; their suffering and their cure; but obstinacy has no resource, and the first wound is mortal. You have already begun to give it up, and you will, from the natural construction of the vice, find yourselves both obliged and inclined to do so.

If you look back you see nothing but loss and disgrace. If you look forward the same scene continues, and the close is an impenetrable gloom. You may plan and execute little mischiefs, but are they worth the expense they cost you, or will such partial evils have any effect on the general cause? Your expedition to Egg Harbor, will be felt at a distance like an attack upon a hen-roost, and expose you in Europe, with a sort of childish frenzy. Is it worth while to keep an army to protect you in writing proclamations, or to get once a year into winter quarters? Possessing yourselves of towns is not conquest, but convenience, and in which you will one day or other be trepanned. Your retreat from Philadelphia, was only a timely escape, and your next expedition may be less fortunate.

It would puzzle all the politicians in the universe to conceive what you stay for, or why you should have stayed so long. You are prosecuting a war in which you confess you have neither object nor hope, and that conquest, could it be effected, would not repay the charges: in the mean while the rest of your affairs are running to ruin, and a European war kindling against you. In such a situation, there is neither doubt nor difficulty; the first rudiments of reason will determine the choice, for if peace can be procured with more advantages than even a conquest can be obtained, he must be an idiot indeed that hesitates.

But you are probably buoyed up by a set of wretched mortals, who, having deceived themselves, are cringing, with the duplicity of a spaniel, for a little temporary bread. Those men will tell you just what you please. It is their interest to amuse, in order to lengthen out their protection. They study to keep you amongst them for that very purpose; and in proportion as you disregard their advice, and grow callous to their complaints, they will stretch into improbability, and season their flattery the higher. Characters like these are to be found in every country, and every country will despise them.

COMMON SENSE.

PHILADELPHIA, Oct. 20, 1778.

THE CRISIS VII. TO THE PEOPLE OF ENGLAND.

THERE are stages in the business of serious life in which to amuse is cruel, but to deceive is to destroy; and it is of little consequence, in the conclusion, whether men deceive themselves, or submit, by a kind of mutual consent, to the impositions of each other. That England has long been under the influence of delusion or mistake, needs no other proof than the unexpected and wretched situation that she is now involved in: and so powerful has been the influence, that no provision was ever made or thought of against the misfortune, because the possibility of its happening was never conceived.

The general and successful resistance of America, the conquest of Burgoyne, and a war in France, were treated in parliament as the dreams of a discontented opposition, or a distempered imagination. They were beheld as objects unworthy of a serious thought, and the bare intimation of them afforded the ministry a triumph of laughter. Short triumph indeed! For everything which has been predicted has happened, and all that was promised has failed. A long series of politics so remarkably distinguished by a succession of misfortunes, without one alleviating turn, must certainly have something in it systematically wrong. It is sufficient to awaken the most credulous into suspicion, and the most obstinate into thought. Either the means in your power are insufficient, or the measures ill planned; either the execution has been bad, or the thing attempted impracticable; or, to speak more emphatically, either you are not able or heaven is not willing. For, why is it that you have not conquered us? Who, or what has prevented you? You have had every opportunity that you could desire, and succeeded to your utmost wish in every preparatory means. Your fleets and armies have arrived in America without an accident. No uncommon fortune has intervened. No foreign nation has interfered until the time which you had allotted for victory was passed. The opposition, either in or out of parliament, neither disconcerted your measures, retarded or diminished your force. They only foretold your fate. Every ministerial scheme was

carried with as high a hand as if the whole nation had been unanimous. Every thing wanted was asked for, and every thing asked for was granted.

A greater force was not within the compass of your abilities to send, and the time you sent it was of all others the most favorable. You were then at rest with the whole world beside. You had the range of every court in Europe uncontradicted by us. You amused us with a tale of commissioners of peace, and under that disguise collected a numerous army and came almost unexpectedly upon us. The force was much greater than we looked for; and that which we had to oppose it with, was unequal in numbers, badly armed, and poorly disciplined; beside which, it was embodied only for a short time, and expired within a few months after your arrival. We had governments to form; measures to concert; an army to train, and every necessary article to import or to create. Our non-importation scheme had exhausted our stores, and your command by sea intercepted our supplies. We were a people unknown, and unconnected with the political world, and strangers to the disposition of foreign powers. Could you possibly wish for a more favorable conjunction of circumstances? Yet all these have happened and passed away, and, as it were, left you with a laugh. There are likewise, events of such an original nativity as can never happen again, unless a new world should arise from the ocean.

If any thing can be a lesson to presumption, surely the circumstances of this war will have their effect. Had Britain been defeated by any European power, her pride would have drawn consolation from the importance of her conquerors; but in the present case, she is excelled by those that she affected to despise, and her own opinions retorting upon herself, become an aggravation of her disgrace. Misfortune and experience are lost upon mankind, when they produce neither reflection nor reformation. Evils, like poisons, have their uses, and there are diseases which no other remedy can reach. It has been the crime and folly of England to suppose herself invincible, and that, without acknowledging or perceiving that a full third of her strength was drawn from the country she is now at war with. The arm of Britain has been spoken of as the arm of the Almighty, and she has lived of late as if she thought the whole world created for her diversion. Her politics, instead of civilizing, has tended to brutalize mankind, and under the vain, unmeaning title of "Defender of the Faith," she has made war like an Indian against the religion of humanity. Her cruelties in the East Indies will never be forgotten, and it is somewhat remarkable that the produce of that ruined

country, transported to America, should there kindle up a war to punish the destroyer. The chain is continued, though with a mysterious kind of uniformity both in the crime and the punishment. The latter runs parallel with the former, and time and fate will give it a perfect illustration.

When information is withheld, ignorance becomes a reasonable excuse; and one would charitably hope that the people of England do not encourage cruelty from choice but from mistake. Their recluse situation, surrounded by the sea, preserves them from the calamities of war, and keeps them in the dark as to the conduct of their own armies. They see not, therefore they feel not. They tell the tale that is told them and believe it, and accustomed to no other news than their own, they receive it, stripped of its horrors and prepared for the palate of the nation, through the channel of the London Gazette. They are made to believe that their generals and armies differ from those of other nations, and have nothing of rudeness or barbarity in them. They suppose them what they wish them to be. They feel a disgrace in thinking otherwise, and naturally encourage the belief from a partiality to themselves. There was a time when I felt the same prejudices, and reasoned from the same errors; but experience, sad and painful experience, has taught me better. What the conduct of former armies was, I know not, but what the conduct of the present is, I well know. It is low, cruel, indolent and profligate; and had the people of America no other cause for separation than what the army has occasioned, that alone is cause sufficient.

The field of politics in England is far more extensive than that of news. Men have a right to reason for themselves, and though they cannot contradict the intelligence in the London Gazette, they may frame upon it what sentiments they please. But the misfortune is, that a general ignorance has prevailed over the whole nation respecting America. The ministry and the minority have both been wrong. The former was always so, the latter only lately so. Politics, to be executively right, must have a unity of means and time, and a defect in either overthrows the whole. The ministry rejected the plans of the minority while they were practicable, and joined in them when they became impracticable. From wrong measures they got into wrong time, and have now completed the circle of absurdity by closing it upon themselves.

I happened to come to America a few months before the breaking out of hostilities. I found the disposition of the people such, that they might have

been led by a thread and governed by a reed. Their suspicion was quick and penetrating, but their attachment to Britain was obstinate, and it was at that time a kind of treason to speak against it. They disliked the ministry, but they esteemed the nation. Their idea of grievance operated without resentment, and their single object was reconciliation. Bad as I believed the ministry to be, I never conceived them capable of a measure so rash and wicked as the commencing of hostilities; much less did I imagine the nation would encourage it. I viewed the dispute as a kind of law-suit, in which I supposed the parties would find a way either to decide or settle it. I had no thoughts of independence or of arms. The world could not then have persuaded me that I should be either a soldier or an author. If I had any talents for either, they were buried in me, and might ever have continued so, had not the necessity of the times dragged and driven them into action. I had formed my plan of life, and conceiving myself happy, wished every body else so. But when the country, into which I had just set my foot, was set on fire about my ears, it was time to stir. It was time for every man to stir. Those who had been long settled had something to defend; those who had just come had something to pursue; and the call and the concern was equal and universal. For in a country where all men were once adventurers, the difference of a few years in their arrival could make none in their right.

The breaking out of hostilities opened a new suspicion in the politics of America, which, though at that time very rare, has since been proved to be very right. What I allude to is, "a secret and fixed determination in the British Cabinet to annex America to the crown of England as a conquered country." If this be taken as the object, then the whole line of conduct pursued by the ministry, though rash in its origin and ruinous in its consequences, is nevertheless uniform and consistent in its parts. It applies to every case and resolves every difficulty. But if taxation, or any thing else, be taken in its room, there is no proportion between the object and the charge. Nothing but the whole soil and property of the country can be placed as a possible equivalent against the millions which the ministry expended. No taxes raised in America could possibly repay it. A revenue of two millions sterling a year would not discharge the sum and interest accumulated thereon, in twenty years.

Reconciliation never appears to have been the wish or the object of the administration; they looked on conquest as certain and infallible, and, under that persuasion, sought to drive the Americans into what they might style a

general rebellion, and then, crushing them with arms in their hands, reap the rich harvest of a general confiscation, and silence them for ever. The dependents at court were too numerous to be provided for in England. The market for plunder in the East Indies was over; and the profligacy of government required that a new mine should be opened, and that mine could be no other than America, conquered and forfeited. They had no where else to go. Every other channel was drained; and extravagance, with the thirst of a drunkard, was gaping for supplies.

If the ministry deny this to have been their plan, it becomes them to explain what was their plan. For either they have abused us in coveting property they never labored for, or they have abused you in expending an amazing sum upon an incompetent object. Taxation, as I mentioned before, could never be worth the charge of obtaining it by arms; and any kind of formal obedience which America could have made, would have weighed with the lightness of a laugh against such a load of expense. It is therefore most probable that the ministry will at last justify their policy by their dishonesty, and openly declare, that their original design was conquest: and, in this case, it well becomes the people of England to consider how far the nation would have been benefited by the success.

In a general view, there are few conquests that repay the charge of making them, and mankind are pretty well convinced that it can never be worth their while to go to war for profit's sake. If they are made war upon, their country invaded, or their existence at stake, it is their duty to defend and preserve themselves, but in every other light, and from every other cause, is war inglorious and detestable. But to return to the case in question

When conquests are made of foreign countries, it is supposed that the commerce and dominion of the country which made them are extended. But this could neither be the object nor the consequence of the present war. You enjoyed the whole commerce before. It could receive no possible addition by a conquest, but on the contrary, must diminish as the inhabitants were reduced in numbers and wealth. You had the same dominion over the country which you used to have, and had no complaint to make against her for breach of any part of the contract between you or her, or contending against any established custom, commercial, political or territorial. The country and commerce were both your own when you began to conquer, in

the same manner and form as they had been your own a hundred years before. Nations have sometimes been induced to make conquests for the sake of reducing the power of their enemies, or bringing it to a balance with their own. But this could be no part of your plan. No foreign authority was claimed here, neither was any such authority suspected by you, or acknowledged or imagined by us. What then, in the name of heaven, could you go to war for? Or what chance could you possibly have in the event, but either to hold the same country which you held before, and that in a much worse condition, or to lose, with an amazing expense, what you might have retained without a farthing of charges?

War never can be the interest of a trading nation, any more than quarrelling can be profitable to a man in business. But to make war with those who trade with us, is like setting a bull-dog upon a customer at the shop-door. The least degree of common sense shows the madness of the latter, and it will apply with the same force of conviction to the former. Piratical nations, having neither commerce or commodities of their own to lose, may make war upon all the world, and lucratively find their account in it; but it is quite otherwise with Britain: for, besides the stoppage of trade in time of war, she exposes more of her own property to be lost, than she has the chance of taking from others. Some ministerial gentlemen in parliament have mentioned the greatness of her trade as an apology for the greatness of her loss. This is miserable politics indeed! Because it ought to have been given as a reason for her not engaging in a war at first. The coast of America commands the West India trade almost as effectually as the coast of Africa does that of the Straits; and England can no more carry on the former without the consent of America, than she can the latter without a Mediterranean pass.

In whatever light the war with America is considered upon commercial principles, it is evidently the interest of the people of England not to support it; and why it has been supported so long, against the clearest demonstrations of truth and national advantage, is, to me, and must be to all the reasonable world, a matter of astonishment. Perhaps it may be said that I live in America, and write this from interest. To this I reply, that my principle is universal. My attachment is to all the world, and not to any particular part, and if what I advance is right, no matter where or who it comes from. We have given the proclamation of your commissioners a

currency in our newspapers, and I have no doubt you will give this a place in yours. To oblige and be obliged is fair.

Before I dismiss this part of my address, I shall mention one more circumstance in which I think the people of England have been equally mistaken: and then proceed to other matters.

There is such an idea existing in the world, as that of national honor, and this, falsely understood, is oftentimes the cause of war. In a Christian and philosophical sense, mankind seem to have stood still at individual civilization, and to retain as nations all the original rudeness of nature. Peace by treaty is only a cessation of violence for a reformation of sentiment. It is a substitute for a principle that is wanting and ever will be wanting till the idea of national honor be rightly understood. As individuals we profess ourselves Christians, but as nations we are heathens, Romans, and what not. I remember the late Admiral Saunders declaring in the House of Commons, and that in the time of peace, "That the city of Madrid laid in ashes was not a sufficient atonement for the Spaniards taking off the rudder of an English sloop of war." I do not ask whether this is Christianity or morality, I ask whether it is decency? whether it is proper language for a nation to use? In private life we call it by the plain name of bullying, and the elevation of rank cannot alter its character. It is, I think, exceedingly easy to define what ought to be understood by national honor; for that which is the best character for an individual is the best character for a nation; and wherever the latter exceeds or falls beneath the former, there is a departure from the line of true greatness.

I have thrown out this observation with a design of applying it to Great Britain. Her ideas of national honor seem devoid of that benevolence of heart, that universal expansion of philanthropy, and that triumph over the rage of vulgar prejudice, without which man is inferior to himself, and a companion of common animals. To know who she shall regard or dislike, she asks what country they are of, what religion they profess, and what property they enjoy. Her idea of national honor seems to consist in national insult, and that to be a great people, is to be neither a Christian, a philosopher, or a gentleman, but to threaten with the rudeness of a bear, and to devour with the ferocity of a lion. This perhaps may sound harsh and uncourtly, but it is too true, and the more is the pity.

I mention this only as her general character. But towards America she has observed no character at all; and destroyed by her conduct what she assumed in her title. She set out with the title of parent, or mother country. The association of ideas which naturally accompany this expression, are filled with everything that is fond, tender and forbearing. They have an energy peculiar to themselves, and, overlooking the accidental attachment of common affections, apply with infinite softness to the first feelings of the heart. It is a political term which every mother can feel the force of, and every child can judge of. It needs no painting of mine to set it off, for nature only can do it justice.

But has any part of your conduct to America corresponded with the title you set up? If in your general national character you are unpolished and severe, in this you are inconsistent and unnatural, and you must have exceeding false notions of national honor to suppose that the world can admire a want of humanity or that national honor depends on the violence of resentment, the inflexibility of temper, or the vengeance of execution.

I would willingly convince you, and that with as much temper as the times will suffer me to do, that as you opposed your own interest by quarrelling with us, so likewise your national honor, rightly conceived and understood, was no ways called upon to enter into a war with America; had you studied true greatness of heart, the first and fairest ornament of mankind, you would have acted directly contrary to all that you have done, and the world would have ascribed it to a generous cause. Besides which, you had (though with the assistance of this country) secured a powerful name by the last war. You were known and dreaded abroad; and it would have been wise in you to have suffered the world to have slept undisturbed under that idea. It was to you a force existing without expense. It produced to you all the advantages of real power; and you were stronger through the universality of that charm, than any future fleets and armies may probably make you. Your greatness was so secured and interwoven with your silence that you ought never to have awakened mankind, and had nothing to do but to be quiet. Had you been true politicians you would have seen all this, and continued to draw from the magic of a name, the force and authority of a nation.

Unwise as you were in breaking the charm, you were still more unwise in the manner of doing it. Samson only told the secret, but you have performed

the operation; you have shaven your own head, and wantonly thrown away the locks. America was the hair from which the charm was drawn that infatuated the world. You ought to have quarrelled with no power; but with her upon no account. You had nothing to fear from any condescension you might make. You might have humored her, even if there had been no justice in her claims, without any risk to your reputation; for Europe, fascinated by your fame, would have ascribed it to your benevolence, and America, intoxicated by the grant, would have slumbered in her fetters.

But this method of studying the progress of the passions, in order to ascertain the probable conduct of mankind, is a philosophy in politics which those who preside at St. James's have no conception of. They know no other influence than corruption and reckon all their probabilities from precedent. A new case is to them a new world, and while they are seeking for a parallel they get lost. The talents of Lord Mansfield can be estimated at best no higher than those of a sophist. He understands the subtleties but not the elegance of nature; and by continually viewing mankind through the cold medium of the law, never thinks of penetrating into the warmer region of the mind. As for Lord North, it is his happiness to have in him more philosophy than sentiment, for he bears flogging like a top, and sleeps the better for it. His punishment becomes his support, for while he suffers the lash for his sins, he keeps himself up by twirling about. In politics, he is a good arithmetician, and in every thing else nothing at all.

There is one circumstance which comes so much within Lord North's province as a financier, that I am surprised it should escape him, which is, the different abilities of the two countries in supporting the expense; for, strange as it may seem, England is not a match for America in this particular. By a curious kind of revolution in accounts, the people of England seem to mistake their poverty for their riches; that is, they reckon their national debt as a part of their national wealth. They make the same kind of error which a man would do, who after mortgaging his estate, should add the money borrowed, to the full value of the estate, in order to count up his worth, and in this case he would conceive that he got rich by running into debt. Just thus it is with England. The government owed at the beginning of this war one hundred and thirty-five millions sterling, and though the individuals to whom it was due had a right to reckon their shares as so much private property, yet to the nation collectively it was so much poverty. There are as effectual limits to public debts as to private ones, for

when once the money borrowed is so great as to require the whole yearly revenue to discharge the interest thereon, there is an end to further borrowing; in the same manner as when the interest of a man's debts amounts to the yearly income of his estate, there is an end to his credit. This is nearly the case with England, the interest of her present debt being at least equal to one half of her yearly revenue, so that out of ten millions annually collected by taxes, she has but five that she can call her own.

The very reverse of this was the case with America; she began the war without any debt upon her, and in order to carry it on, she neither raised money by taxes, nor borrowed it upon interest, but created it; and her situation at this time continues so much the reverse of yours that taxing would make her rich, whereas it would make you poor. When we shall have sunk the sum which we have created, we shall then be out of debt, be just as rich as when we began, and all the while we are doing it shall feel no difference, because the value will rise as the quantity decreases.

There was not a country in the world so capable of bearing the expense of a war as America; not only because she was not in debt when she began, but because the country is young and capable of infinite improvement, and has an almost boundless tract of new lands in store; whereas England has got to her extent of age and growth, and has not unoccupied land or property in reserve. The one is like a young heir coming to a large improvable estate; the other like an old man whose chances are over, and his estate mortgaged for half its worth.

In the second number of the Crisis, which I find has been republished in England, I endeavored to set forth the impracticability of conquering America. I stated every case, that I conceived could possibly happen, and ventured to predict its consequences. As my conclusions were drawn not artfully, but naturally, they have all proved to be true. I was upon the spot; knew the politics of America, her strength and resources, and by a train of services, the best in my power to render, was honored with the friendship of the congress, the army and the people. I considered the cause a just one. I know and feel it a just one, and under that confidence never made my own profit or loss an object. My endeavor was to have the matter well understood on both sides, and I conceived myself tendering a general service, by setting forth to the one the impossibility of being conquered, and to the other the impossibility of conquering. Most of the arguments made

use of by the ministry for supporting the war, are the very arguments that ought to have been used against supporting it; and the plans, by which they thought to conquer, are the very plans in which they were sure to be defeated. They have taken every thing up at the wrong end. Their ignorance is astonishing, and were you in my situation you would see it. They may, perhaps, have your confidence, but I am persuaded that they would make very indifferent members of Congress. I know what England is, and what America is, and from the compound of knowledge, am better enabled to judge of the issue than what the king or any of his ministers can be.

In this number I have endeavored to show the ill policy and disadvantages of the war. I believe many of my remarks are new. Those which are not so, I have studied to improve and place in a manner that may be clear and striking. Your failure is, I am persuaded, as certain as fate. America is above your reach. She is at least your equal in the world, and her independence neither rests upon your consent, nor can it be prevented by your arms. In short, you spend your substance in vain, and impoverish yourselves without a hope.

But suppose you had conquered America, what advantages, collectively or individually, as merchants, manufacturers, or conquerors, could you have looked for? This is an object you seemed never to have attended to. Listening for the sound of victory, and led away by the frenzy of arms, you neglected to reckon either the cost or the consequences. You must all pay towards the expense; the poorest among you must bear his share, and it is both your right and your duty to weigh seriously the matter. Had America been conquered, she might have been parcelled out in grants to the favorites at court, but no share of it would have fallen to you. Your taxes would not have been lessened, because she would have been in no condition to have paid any towards your relief. We are rich by contrivance of our own, which would have ceased as soon as you became masters. Our paper money will be of no use in England, and silver and gold we have none. In the last war you made many conquests, but were any of your taxes lessened thereby? On the contrary, were you not taxed to pay for the charge of making them, and has not the same been the case in every war?

To the Parliament I wish to address myself in a more particular manner. They appear to have supposed themselves partners in the chase, and to have hunted with the lion from an expectation of a right in the booty; but in this

it is most probable they would, as legislators, have been disappointed. The case is quite a new one, and many unforeseen difficulties would have arisen thereon. The Parliament claimed a legislative right over America, and the war originated from that pretence. But the army is supposed to belong to the crown, and if America had been conquered through their means, the claim of the legislature would have been suffocated in the conquest. Ceded, or conquered, countries are supposed to be out of the authority of Parliament. Taxation is exercised over them by prerogative and not by law. It was attempted to be done in the Grenadas a few years ago, and the only reason why it was not done was because the crown had made a prior relinquishment of its claim. Therefore, Parliament have been all this while supporting measures for the establishment of their authority, in the issue of which, they would have been triumphed over by the prerogative. This might have opened a new and interesting opposition between the Parliament and the crown. The crown would have said that it conquered for itself, and that to conquer for Parliament was an unknown case. The Parliament might have replied, that America not being a foreign country, but a country in rebellion, could not be said to be conquered, but reduced; and thus continued their claim by disowning the term. The crown might have rejoined, that however America might be considered at first, she became foreign at last by a declaration of independence, and a treaty with France; and that her case being, by that treaty, put within the law of nations, was out of the law of Parliament, who might have maintained, that as their claim over America had never been surrendered, so neither could it be taken away. The crown might have insisted, that though the claim of Parliament could not be taken away, yet, being an inferior, it might be superseded; and that, whether the claim was withdrawn from the object, or the object taken from the claim, the same separation ensued; and that America being subdued after a treaty with France, was to all intents and purposes a regal conquest, and of course the sole property of the king. The Parliament, as the legal delegates of the people, might have contended against the term "inferior," and rested the case upon the antiquity of power, and this would have brought on a set of very interesting and rational questions.

1st, What is the original fountain of power and honor in any country?

2d, Whether the prerogative does not belong to the people?

3d, Whether there is any such thing as the English constitution?

4th, Of what use is the crown to the people?

5th, Whether he who invented a crown was not an enemy to mankind?

6th, Whether it is not a shame for a man to spend a million a year and do no good for it, and whether the money might not be better applied? 7th, Whether such a man is not better dead than alive? 8th, Whether a Congress, constituted like that of America, is not the most happy and consistent form of government in the world?—With a number of others of the same import.

In short, the contention about the dividend might have distracted the nation; for nothing is more common than to agree in the conquest and quarrel for the prize; therefore it is, perhaps, a happy circumstance, that our successes have prevented the dispute.

If the Parliament had been thrown out in their claim, which it is most probable they would, the nation likewise would have been thrown out in their expectation; for as the taxes would have been laid on by the crown without the Parliament, the revenue arising therefrom, if any could have arisen, would not have gone into the exchequer, but into the privy purse, and so far from lessening the taxes, would not even have been added to them, but served only as pocket money to the crown. The more I reflect on this matter, the more I am satisfied at the blindness and ill policy of my countrymen, whose wisdom seems to operate without discernment, and their strength without an object.

To the great bulwark of the nation, I mean the mercantile and manufacturing part thereof, I likewise present my address. It is your interest to see America an independent, and not a conquered country. If conquered, she is ruined; and if ruined, poor; consequently the trade will be a trifle, and her credit doubtful. If independent, she flourishes, and from her flourishing must your profits arise. It matters nothing to you who governs America, if your manufactures find a consumption there. Some articles will consequently be obtained from other places, and it is right that they should; but the demand for others will increase, by the great influx of inhabitants which a state of independence and peace will occasion, and in the final event you may be enriched. The commerce of America is perfectly free, and ever will be so. She will consign away no part of it to any nation. She has not to her friends, and certainly will not to her enemies; though it is probable that your narrow-minded politicians, thinking to please you thereby, may some time or other unnecessarily make such a proposal. Trade flourishes best when it is free, and it is weak policy to attempt to fetter it. Her treaty with France is on the most liberal and generous principles, and

the French, in their conduct towards her, have proved themselves to be philosophers, politicians, and gentlemen.

To the ministry I likewise address myself. You, gentlemen, have studied the ruin of your country, from which it is not within your abilities to rescue her. Your attempts to recover her are as ridiculous as your plans which involved her are detestable. The commissioners, being about to depart, will probably bring you this, and with it my sixth number, addressed to them; and in so doing they carry back more Common Sense than they brought, and you likewise will have more than when you sent them.

Having thus addressed you severally, I conclude by addressing you collectively. It is a long lane that has no turning. A period of sixteen years of misconduct and misfortune, is certainly long enough for any one nation to suffer under; and upon a supposition that war is not declared between France and you, I beg to place a line of conduct before you that will easily lead you out of all your troubles. It has been hinted before, and cannot be too much attended to.

Suppose America had remained unknown to Europe till the present year, and that Mr. Banks and Dr. Solander, in another voyage round the world, had made the first discovery of her, in the same condition that she is now in, of arts, arms, numbers, and civilization. What, I ask, in that case, would have been your conduct towards her? For that will point out what it ought to be now. The problems and their solutions are equal, and the right line of the one is the parallel of the other. The question takes in every circumstance that can possibly arise. It reduces politics to a simple thought, and is moreover a mode of investigation, in which, while you are studying your interest the simplicity of the case will cheat you into good temper. You have nothing to do but to suppose that you have found America, and she appears found to your hand, and while in the joy of your heart you stand still to admire her, the path of politics rises straight before you.

Were I disposed to paint a contrast, I could easily set off what you have done in the present case, against what you would have done in that case, and by justly opposing them, conclude a picture that would make you blush. But, as, when any of the prouder passions are hurt, it is much better philosophy to let a man slip into a good temper than to attack him in a bad one, for that reason, therefore, I only state the case, and leave you to reflect upon it.

To go a little back into politics, it will be found that the true interest of Britain lay in proposing and promoting the independence of America immediately after the last peace; for the expense which Britain had then incurred by defending America as her own dominions, ought to have shown her the policy and necessity of changing the style of the country, as the best probable method of preventing future wars and expense, and the only method by which she could hold the commerce without the charge of sovereignty. Besides which, the title which she assumed, of parent country, led to, and pointed out the propriety, wisdom and advantage of a separation; for, as in private life, children grow into men, and by setting up for themselves, extend and secure the interest of the whole family, so in the settlement of colonies large enough to admit of maturity, the same policy should be pursued, and the same consequences would follow. Nothing hurts the affections both of parents and children so much, as living too closely connected, and keeping up the distinction too long. Domineering will not do over those, who, by a progress in life, have become equal in rank to their parents, that is, when they have families of their own; and though they may conceive themselves the subjects of their advice, will not suppose them the objects of their government. I do not, by drawing this parallel, mean to admit the title of parent country, because, if it is due any where, it is due to Europe collectively, and the first settlers from England were driven here by persecution. I mean only to introduce the term for the sake of policy and to show from your title the line of your interest.

When you saw the state of strength and opulence, and that by her own industry, which America arrived at, you ought to have advised her to set up for herself, and proposed an alliance of interest with her, and in so doing you would have drawn, and that at her own expense, more real advantage, and more military supplies and assistance, both of ships and men, than from any weak and wrangling government that you could exercise over her. In short, had you studied only the domestic politics of a family, you would have learned how to govern the state; but, instead of this easy and natural line, you flew out into every thing which was wild and outrageous, till, by following the passion and stupidity of the pilot, you wrecked the vessel within sight of the shore.

Having shown what you ought to have done, I now proceed to show why it was not done. The caterpillar circle of the court had an interest to pursue, distinct from, and opposed to yours; for though by the independence of

America and an alliance therewith, the trade would have continued, if not increased, as in many articles neither country can go to a better market, and though by defending and protecting herself, she would have been no expense to you, and consequently your national charges would have decreased, and your taxes might have been proportionably lessened thereby; yet the striking off so many places from the court calendar was put in opposition to the interest of the nation. The loss of thirteen government ships, with their appendages, here and in England, is a shocking sound in the ear of a hungry courtier. Your present king and ministry will be the ruin of you; and you had better risk a revolution and call a Congress, than be thus led on from madness to despair, and from despair to ruin. America has set you the example, and you may follow it and be free.

I now come to the last part, a war with France. This is what no man in his senses will advise you to, and all good men would wish to prevent. Whether France will declare war against you, is not for me in this place to mention, or to hint, even if I knew it; but it must be madness in you to do it first. The matter is come now to a full crisis, and peace is easy if willingly set about. Whatever you may think, France has behaved handsomely to you. She would have been unjust to herself to have acted otherwise than she did; and having accepted our offer of alliance she gave you genteel notice of it. There was nothing in her conduct reserved or indelicate, and while she announced her determination to support her treaty, she left you to give the first offence. America, on her part, has exhibited a character of firmness to the world. Unprepared and unarmed, without form or government, she, singly opposed a nation that domineered over half the globe. The greatness of the deed demands respect; and though you may feel resentment, you are compelled both to wonder and admire.

Here I rest my arguments and finish my address. Such as it is, it is a gift, and you are welcome. It was always my design to dedicate a Crisis to you, when the time should come that would properly make it a Crisis; and when, likewise, I should catch myself in a temper to write it, and suppose you in a condition to read it. That time has now arrived, and with it the opportunity for conveyance. For the commissioners—poor commissioners! having proclaimed, that "yet forty days and Nineveh shall be overthrown," have waited out the date, and, discontented with their God, are returning to their gourd. And all the harm I wish them is, that it may not wither about their ears, and that they may not make their exit in the belly of a whale.

COMMON SENSE.

PHILADELPHIA, Nov. 21, 1778.

P.S.—Though in the tranquillity of my mind I have concluded with a laugh, yet I have something to mention to the commissioners, which, to them, is serious and worthy their attention. Their authority is derived from an Act of Parliament, which likewise describes and limits their official powers. Their commission, therefore, is only a recital, and personal investiture, of those powers, or a nomination and description of the persons who are to execute them. Had it contained any thing contrary to, or gone beyond the line of, the written law from which it is derived, and by which it is bound, it would, by the English constitution, have been treason in the crown, and the king been subject to an impeachment. He dared not, therefore, put in his commission what you have put in your proclamation, that is, he dared not have authorised you in that commission to burn and destroy any thing in America. You are both in the act and in the commission styled commissioners for restoring peace, and the methods for doing it are there pointed out. Your last proclamation is signed by you as commissioners under that act. You make Parliament the patron of its contents. Yet, in the body of it, you insert matters contrary both to the spirit and letter of the act, and what likewise your king dared not have put in his commission to you. The state of things in England, gentlemen, is too ticklish for you to run hazards. You are accountable to Parliament for the execution of that act according to the letter of it. Your heads may pay for breaking it, for you certainly have broke it by exceeding it. And as a friend, who would wish you to escape the paw of the lion, as well as the belly of the whale, I civilly hint to you, to keep within compass.

Sir Harry Clinton, strictly speaking, is as accountable as the rest; for though a general, he is likewise a commissioner, acting under a superior authority. His first obedience is due to the act; and his plea of being a general, will not and cannot clear him as a commissioner, for that would suppose the crown, in its single capacity, to have a power of dispensing with an Act of Parliament. Your situation, gentlemen, is nice and critical, and the more so because England is unsettled. Take heed! Remember the times of Charles the First! For Laud and Stafford fell by trusting to a hope like yours.

Having thus shown you the danger of your proclamation, I now show you the folly of it. The means contradict your design: you threaten to lay waste, in order to render America a useless acquisition of alliance to France. I reply, that the more destruction you commit (if you could do it) the more valuable to France you make that alliance. You can destroy only houses and goods; and by so doing you increase our demand upon her for materials and merchandise; for the wants of one nation, provided it has freedom and credit, naturally produce riches to the other; and, as you can neither ruin the land nor prevent the vegetation, you would increase the exportation of our produce in payment, which would be to her a new fund of wealth. In short, had you cast about for a plan on purpose to enrich your enemies, you could not have hit upon a better.

C. S.

THE CRISIS VIII. ADDRESS TO THE PEOPLE OF ENGLAND.

"TRUSTING (says the king of England in his speech of November last,) in the divine providence, and in the justice of my cause, I am firmly resolved to prosecute the war with vigor, and to make every exertion in order to compel our enemies to equitable terms of peace and accommodation." To this declaration the United States of America, and the confederated powers of Europe will reply, if Britain will have war, she shall have enough of it.

Five years have nearly elapsed since the commencement of hostilities, and every campaign, by a gradual decay, has lessened your ability to conquer, without producing a serious thought on your condition or your fate. Like a prodigal lingering in an habitual consumption, you feel the relics of life, and mistake them for recovery. New schemes, like new medicines, have administered fresh hopes, and prolonged the disease instead of curing it. A change of generals, like a change of physicians, served only to keep the flattery alive, and furnish new pretences for new extravagance.

"Can Britain fail?"* has been proudly asked at the undertaking of every enterprise; and that "whatever she wills is fate,"*(2) has been given with the solemnity of prophetic confidence; and though the question has been constantly replied to by disappointment, and the prediction falsified by misfortune, yet still the insult continued, and your catalogue of national evils increased therewith. Eager to persuade the world of her power, she considered destruction as the minister of greatness, and conceived that the glory of a nation like that of an [American] Indian, lay in the number of its scalps and the miseries which it inflicts.

* *Whitehead's New Year's ode for 1776.*

*(2) *Ode at the installation of Lord North, for Chancellor of the University of Oxford.*

Fire, sword and want, as far as the arms of Britain could extend them, have been spread with wanton cruelty along the coast of America; and

while you, remote from the scene of suffering, had nothing to lose and as little to dread, the information reached you like a tale of antiquity, in which the distance of time defaces the conception, and changes the severest sorrows into conversable amusement.

This makes the second paper, addressed perhaps in vain, to the people of England. That advice should be taken wherever example has failed, or precept be regarded where warning is ridiculed, is like a picture of hope resting on despair: but when time shall stamp with universal currency the facts you have long encountered with a laugh, and the irresistible evidence of accumulated losses, like the handwriting on the wall, shall add terror to distress, you will then, in a conflict of suffering, learn to sympathize with others by feeling for yourselves.

The triumphant appearance of the combined fleets in the channel and at your harbor's mouth, and the expedition of Captain Paul Jones, on the western and eastern coasts of England and Scotland, will, by placing you in the condition of an endangered country, read to you a stronger lecture on the calamities of invasion, and bring to your minds a truer picture of promiscuous distress, than the most finished rhetoric can describe or the keenest imagination conceive.

Hitherto you have experienced the expenses, but nothing of the miseries of war. Your disappointments have been accompanied with no immediate suffering, and your losses came to you only by intelligence. Like fire at a distance you heard not even the cry; you felt not the danger, you saw not the confusion. To you every thing has been foreign but the taxes to support it. You knew not what it was to be alarmed at midnight with an armed enemy in the streets. You were strangers to the distressing scene of a family in flight, and to the thousand restless cares and tender sorrows that incessantly arose. To see women and children wandering in the severity of winter, with the broken remains of a well furnished house, and seeking shelter in every crib and hut, were matters that you had no conception of. You knew not what it was to stand by and see your goods chopped for fuel, and your beds ripped to pieces to make packages for plunder. The misery of others, like a tempestuous night, added to the pleasures of your own security. You even enjoyed the storm, by contemplating the difference of conditions, and that which carried sorrow into the breasts of thousands served but to heighten in you a species of tranquil pride. Yet these are but the fainter sufferings of

war, when compared with carnage and slaughter, the miseries of a military hospital, or a town in flames.

The people of America, by anticipating distress, had fortified their minds against every species you could inflict. They had resolved to abandon their homes, to resign them to destruction, and to seek new settlements rather than submit. Thus familiarized to misfortune, before it arrived, they bore their portion with the less regret: the justness of their cause was a continual source of consolation, and the hope of final victory, which never left them, served to lighten the load and sweeten the cup allotted them to drink.

But when their troubles shall become yours, and invasion be transferred upon the invaders, you will have neither their extended wilderness to fly to, their cause to comfort you, nor their hope to rest upon. Distress with them was sharpened by no self-reflection. They had not brought it on themselves. On the contrary, they had by every proceeding endeavored to avoid it, and had descended even below the mark of congressional character, to prevent a war. The national honor or the advantages of independence were matters which, at the commencement of the dispute, they had never studied, and it was only at the last moment that the measure was resolved on. Thus circumstanced, they naturally and conscientiously felt a dependence upon providence. They had a clear pretension to it, and had they failed therein, infidelity had gained a triumph.

But your condition is the reverse of theirs. Every thing you suffer you have sought: nay, had you created mischiefs on purpose to inherit them, you could not have secured your title by a firmer deed. The world awakens with no pity to your complaints. You felt none for others; you deserve none for yourselves. Nature does not interest herself in cases like yours, but, on the contrary, turns from them with dislike, and abandons them to punishment. You may now present memorials to what court you please, but so far as America is the object, none will listen. The policy of Europe, and the propensity there in every mind to curb insulting ambition, and bring cruelty to judgment, are unitedly against you; and where nature and interest reinforce with each other, the compact is too intimate to be dissolved.

Make but the case of others your own, and your own theirs, and you will then have a clear idea of the whole. Had France acted towards her colonies as you have done, you would have branded her with every epithet of abhorrence; and had you, like her, stepped in to succor a struggling people,

all Europe must have echoed with your own applauses. But entangled in the passion of dispute you see it not as you ought, and form opinions thereon which suit with no interest but your own. You wonder that America does not rise in union with you to impose on herself a portion of your taxes and reduce herself to unconditional submission. You are amazed that the southern powers of Europe do not assist you in conquering a country which is afterwards to be turned against themselves; and that the northern ones do not contribute to reinstate you in America who already enjoy the market for naval stores by the separation. You seem surprised that Holland does not pour in her succors to maintain you mistress of the seas, when her own commerce is suffering by your act of navigation; or that any country should study her own interest while yours is on the carpet.

Such excesses of passionate folly, and unjust as well as unwise resentment, have driven you on, like Pharaoh, to unpitied miseries, and while the importance of the quarrel shall perpetuate your disgrace, the flag of America will carry it round the world. The natural feelings of every rational being will be against you, and wherever the story shall be told, you will have neither excuse nor consolation left. With an unsparing hand, and an insatiable mind, you have desolated the world, to gain dominion and to lose it; and while, in a frenzy of avarice and ambition, the east and the west are doomed to tributary bondage, you rapidly earned destruction as the wages of a nation.

At the thoughts of a war at home, every man amongst you ought to tremble. The prospect is far more dreadful there than in America. Here the party that was against the measures of the continent were in general composed of a kind of neutrals, who added strength to neither army. There does not exist a being so devoid of sense and sentiment as to covet "unconditional submission," and therefore no man in America could be with you in principle. Several might from a cowardice of mind, prefer it to the hardships and dangers of opposing it; but the same disposition that gave them such a choice, unfitted them to act either for or against us. But England is rent into parties, with equal shares of resolution. The principle which produced the war divides the nation. Their animosities are in the highest state of fermentation, and both sides, by a call of the militia, are in arms. No human foresight can discern, no conclusion can be formed, what turn a war might take, if once set on foot by an invasion. She is not now in a fit disposition to make a common cause of her own affairs, and having no

conquests to hope for abroad, and nothing but expenses arising at home, her everything is staked upon a defensive combat, and the further she goes the worse she is off.

There are situations that a nation may be in, in which peace or war, abstracted from every other consideration, may be politically right or wrong. When nothing can be lost by a war, but what must be lost without it, war is then the policy of that country; and such was the situation of America at the commencement of hostilities: but when no security can be gained by a war, but what may be accomplished by a peace, the case becomes reversed, and such now is the situation of England.

That America is beyond the reach of conquest, is a fact which experience has shown and time confirmed, and this admitted, what, I ask, is now the object of contention? If there be any honor in pursuing self-destruction with inflexible passion—if national suicide be the perfection of national glory, you may, with all the pride of criminal happiness, expire unenvied and unrivalled. But when the tumult of war shall cease, and the tempest of present passions be succeeded by calm reflection, or when those, who, surviving its fury, shall inherit from you a legacy of debts and misfortunes, when the yearly revenue scarcely be able to discharge the interest of the one, and no possible remedy be left for the other, ideas far different from the present will arise, and embitter the remembrance of former follies. A mind disarmed of its rage feels no pleasure in contemplating a frantic quarrel. Sickness of thought, the sure consequence of conduct like yours, leaves no ability for enjoyment, no relish for resentment; and though, like a man in a fit, you feel not the injury of the struggle, nor distinguish between strength and disease, the weakness will nevertheless be proportioned to the violence, and the sense of pain increase with the recovery.

To what persons or to whose system of politics you owe your present state of wretchedness, is a matter of total indifference to America. They have contributed, however unwillingly, to set her above themselves, and she, in the tranquillity of conquest, resigns the inquiry. The case now is not so properly who began the war, as who continues it. That there are men in all countries to whom a state of war is a mine of wealth, is a fact never to be doubted. Characters like these naturally breed in the putrefaction of distempered times, and after fattening on the disease, they perish with it, or, impregnated with the stench, retreat into obscurity.

But there are several erroneous notions to which you likewise owe a share of your misfortunes, and which, if continued, will only increase your trouble and your losses. An opinion hangs about the gentlemen of the minority, that America would relish measures under their administration, which she would not from the present cabinet. On this rock Lord Chatham would have split had he gained the helm, and several of his survivors are steering the same course. Such distinctions in the infancy of the argument had some degree of foundation, but they now serve no other purpose than to lengthen out a war, in which the limits of a dispute, being fixed by the fate of arms, and guaranteed by treaties, are not to be changed or altered by trivial circumstances.

The ministry, and many of the minority, sacrifice their time in disputing on a question with which they have nothing to do, namely, whether America shall be independent or not. Whereas the only question that can come under their determination is, whether they will accede to it or not. They confound a military question with a political one, and undertake to supply by a vote what they lost by a battle. Say she shall not be independent, and it will signify as much as if they voted against a decree of fate, or say that she shall, and she will be no more independent than before. Questions which, when determined, cannot be executed, serve only to show the folly of dispute and the weakness of disputants.

From a long habit of calling America your own, you suppose her governed by the same prejudices and conceits which govern yourselves. Because you have set up a particular denomination of religion to the exclusion of all others, you imagine she must do the same, and because you, with an unsociable narrowness of mind, have cherished enmity against France and Spain, you suppose her alliance must be defective in friendship. Copying her notions of the world from you, she formerly thought as you instructed, but now feeling herself free, and the prejudice removed, she thinks and acts upon a different system. It frequently happens that in proportion as we are taught to dislike persons and countries, not knowing why, we feel an ardor of esteem upon the removal of the mistake: it seems as if something was to be made amends for, and we eagerly give in to every office of friendship, to atone for the injury of the error. But, perhaps, there is something in the extent of countries, which, among the generality of people, insensibly communicates extension of the mind. The soul of an islander, in its native state, seems bounded by the foggy confines of the

water's edge, and all beyond affords to him matters only for profit or curiosity, not for friendship. His island is to him his world, and fixed to that, his every thing centers in it; while those who are inhabitants of a continent, by casting their eye over a larger field, take in likewise a larger intellectual circuit, and thus approaching nearer to an acquaintance with the universe, their atmosphere of thought is extended, and their liberality fills a wider space. In short, our minds seem to be measured by countries when we are men, as they are by places when we are children, and until something happens to disentangle us from the prejudice, we serve under it without perceiving it.

In addition to this, it may be remarked, that men who study any universal science, the principles of which are universally known, or admitted, and applied without distinction to the common benefit of all countries, obtain thereby a larger share of philanthropy than those who only study national arts and improvements. Natural philosophy, mathematics and astronomy, carry the mind from the country to the creation, and give it a fitness suited to the extent. It was not Newton's honor, neither could it be his pride, that he was an Englishman, but that he was a philosopher, the heavens had liberated him from the prejudices of an island, and science had expanded his soul as boundless as his studies.

COMMON SENSE.

PHILADELPHIA, March, 1780.

THE CRISIS IX. (HAD AMERICA PURSUED HER ADVANTAGES)

HAD America pursued her advantages with half the spirit that she resisted her misfortunes, she would, before now, have been a conquering and a peaceful people; but lulled in the lap of soft tranquillity, she rested on her hopes, and adversity only has convulsed her into action. Whether subtlety or sincerity at the close of the last year induced the enemy to an appearance for peace, is a point not material to know; it is sufficient that we see the effects it has had on our politics, and that we sternly rise to resent the delusion.

The war, on the part of America, has been a war of natural feelings. Brave in distress; serene in conquest; drowsy while at rest; and in every situation generously disposed to peace; a dangerous calm, and a most heightened zeal have, as circumstances varied, succeeded each other. Every passion but that of despair has been called to a tour of duty; and so mistaken has been the enemy, of our abilities and disposition, that when she supposed us conquered, we rose the conquerors. The extensiveness of the United States, and the variety of their resources; the universality of their cause, the quick operation of their feelings, and the similarity of their sentiments, have, in every trying situation, produced a something, which, favored by providence, and pursued with ardor, has accomplished in an instant the business of a campaign. We have never deliberately sought victory, but snatched it; and bravely undone in an hour the blotted operations of a season.

The reported fate of Charleston, like the misfortunes of 1776, has at last called forth a spirit, and kindled up a flame, which perhaps no other event could have produced. If the enemy has circulated a falsehood, they have unwisely aggravated us into life, and if they have told us the truth, they have unintentionally done us a service. We were returning with folded arms from the fatigues of war, and thinking and sitting leisurely down to enjoy repose. The dependence that has been put upon Charleston threw a drowsiness over America. We looked on the business done—the conflict

over—the matter settled—or that all which remained unfinished would follow of itself. In this state of dangerous relaxation, exposed to the poisonous infusions of the enemy, and having no common danger to attract our attention, we were extinguishing, by stages, the ardor we began with, and surrendering by piece-meal the virtue that defended us.

Afflicting as the loss of Charleston may be, yet if it universally rouse us from the slumber of twelve months past, and renew in us the spirit of former days, it will produce an advantage more important than its loss. America ever is what she thinks herself to be. Governed by sentiment, and acting her own mind, she becomes, as she pleases, the victor or the victim.

It is not the conquest of towns, nor the accidental capture of garrisons, that can reduce a country so extensive as this. The sufferings of one part can never be relieved by the exertions of another, and there is no situation the enemy can be placed in that does not afford to us the same advantages which he seeks himself. By dividing his force, he leaves every post attackable. It is a mode of war that carries with it a confession of weakness, and goes on the principle of distress rather than conquest.

The decline of the enemy is visible, not only in their operations, but in their plans; Charleston originally made but a secondary object in the system of attack, and it is now become their principal one, because they have not been able to succeed elsewhere. It would have carried a cowardly appearance in Europe had they formed their grand expedition, in 1776, against a part of the continent where there was no army, or not a sufficient one to oppose them; but failing year after year in their impressions here, and to the eastward and northward, they deserted their capital design, and prudently contenting themselves with what they can get, give a flourish of honor to conceal disgrace.

But this piece-meal work is not conquering the continent. It is a discredit in them to attempt it, and in us to suffer it. It is now full time to put an end to a war of aggravations, which, on one side, has no possible object, and on the other has every inducement which honor, interest, safety and happiness can inspire. If we suffer them much longer to remain among us, we shall become as bad as themselves. An association of vice will reduce us more than the sword. A nation hardened in the practice of iniquity knows better how to profit by it, than a young country newly corrupted. We are not a match for them in the line of advantageous guilt, nor they for us on the

principles which we bravely set out with. Our first days were our days of honor. They have marked the character of America wherever the story of her wars are told; and convinced of this, we have nothing to do but wisely and unitedly to tread the well known track. The progress of a war is often as ruinous to individuals, as the issue of it is to a nation; and it is not only necessary that our forces be such that we be conquerors in the end, but that by timely exertions we be secure in the interim. The present campaign will afford an opportunity which has never presented itself before, and the preparations for it are equally necessary, whether Charleston stand or fall. Suppose the first, it is in that case only a failure of the enemy, not a defeat. All the conquest that a besieged town can hope for, is, not to be conquered; and compelling an enemy to raise the siege, is to the besieged a victory. But there must be a probability amounting almost to a certainty, that would justify a garrison marching out to attack a retreat. Therefore should Charleston not be taken, and the enemy abandon the siege, every other part of the continent should prepare to meet them; and, on the contrary, should it be taken, the same preparations are necessary to balance the loss, and put ourselves in a position to co-operate with our allies, immediately on their arrival.

We are not now fighting our battles alone, as we were in 1776; England, from a malicious disposition to America, has not only not declared war against France and Spain, but, the better to prosecute her passions here, has afforded those powers no military object, and avoids them, to distress us. She will suffer her West India islands to be overrun by France, and her southern settlements to be taken by Spain, rather than quit the object that gratifies her revenge. This conduct, on the part of Britain, has pointed out the propriety of France sending a naval and land force to co-operate with America on the spot. Their arrival cannot be very distant, nor the ravages of the enemy long. The recruiting the army, and procuring the supplies, are the two things most necessary to be accomplished, and a capture of either of the enemy's divisions will restore to America peace and plenty.

At a crisis, big, like the present, with expectation and events, the whole country is called to unanimity and exertion. Not an ability ought now to sleep, that can produce but a mite to the general good, nor even a whisper to pass that militates against it. The necessity of the case, and the importance of the consequences, admit no delay from a friend, no apology from an

enemy. To spare now, would be the height of extravagance, and to consult present ease, would be to sacrifice it perhaps forever.

America, rich in patriotism and produce, can want neither men nor supplies, when a serious necessity calls them forth. The slow operation of taxes, owing to the extensiveness of collection, and their depreciated value before they arrived in the treasury, have, in many instances, thrown a burden upon government, which has been artfully interpreted by the enemy into a general decline throughout the country. Yet this, inconvenient as it may at first appear, is not only remediable, but may be turned to an immediate advantage; for it makes no real difference, whether a certain number of men, or company of militia (and in this country every man is a militia-man), are directed by law to send a recruit at their own expense, or whether a tax is laid on them for that purpose, and the man hired by government afterwards. The first, if there is any difference, is both cheapest and best, because it saves the expense which would attend collecting it as a tax, and brings the man sooner into the field than the modes of recruiting formerly used; and, on this principle, a law has been passed in this state, for recruiting two men from each company of militia, which will add upwards of a thousand to the force of the country.

But the flame which has broken forth in this city since the report from New York, of the loss of Charleston, not only does honor to the place, but, like the blaze of 1776, will kindle into action the scattered sparks throughout America. The valor of a country may be learned by the bravery of its soldiery, and the general cast of its inhabitants, but confidence of success is best discovered by the active measures pursued by men of property; and when the spirit of enterprise becomes so universal as to act at once on all ranks of men, a war may then, and not till then, be styled truly popular.

In 1776, the ardor of the enterprising part was considerably checked by the real revolt of some, and the coolness of others. But in the present case, there is a firmness in the substance and property of the country to the public cause. An association has been entered into by the merchants, tradesmen, and principal inhabitants of the city [Philadelphia], to receive and support the new state money at the value of gold and silver; a measure which, while it does them honor, will likewise contribute to their interest, by rendering the operations of the campaign convenient and effectual.

Nor has the spirit of exertion stopped here. A voluntary subscription is likewise begun, to raise a fund of hard money, to be given as bounties, to fill up the full quota of the Pennsylvania line. It has been the remark of the enemy, that every thing in America has been done by the force of government; but when she sees individuals throwing in their voluntary aid, and facilitating the public measures in concert with the established powers of the country, it will convince her that the cause of America stands not on the will of a few but on the broad foundation of property and popularity.

Thus aided and thus supported, disaffection will decline, and the withered head of tyranny expire in America. The ravages of the enemy will be short and limited, and like all their former ones, will produce a victory over themselves.

COMMON SENSE.

PHILADELPHIA, June 9, 1780.

P. S. At the time of writing this number of the Crisis, the loss of Charleston, though believed by some, was more confidently disbelieved by others. But there ought to be no longer a doubt upon the matter. Charleston is gone, and I believe for the want of a sufficient supply of provisions. The man that does not now feel for the honor of the best and noblest cause that ever a country engaged in, and exert himself accordingly, is no longer worthy of a peaceable residence among a people determined to be free.

C. S.

THE CRISIS EXTRAORDINARY

ON THE SUBJECT OF TAXATION.

IT IS impossible to sit down and think seriously on the affairs of America, but the original principles upon which she resisted, and the glow and ardor which they inspired, will occur like the undefaced remembrance of a lovely scene. To trace over in imagination the purity of the cause, the voluntary sacrifices that were made to support it, and all the various turnings of the war in its defence, is at once both paying and receiving respect. The principles deserve to be remembered, and to remember them rightly is repossessing them. In this indulgence of generous recollection, we become gainers by what we seem to give, and the more we bestow the richer we become.

So extensively right was the ground on which America proceeded, that it not only took in every just and liberal sentiment which could impress the heart, but made it the direct interest of every class and order of men to defend the country. The war, on the part of Britain, was originally a war of covetousness. The sordid and not the splendid passions gave it being. The fertile fields and prosperous infancy of America appeared to her as mines for tributary wealth. She viewed the hive, and disregarding the industry that had enriched it, thirsted for the honey. But in the present stage of her affairs, the violence of temper is added to the rage of avarice; and therefore, that which at the first setting out proceeded from purity of principle and public interest, is now heightened by all the obligations of necessity; for it requires but little knowledge of human nature to discern what would be the consequence, were America again reduced to the subjection of Britain. Uncontrolled power, in the hands of an incensed, imperious, and rapacious conqueror, is an engine of dreadful execution, and woe be to that country over which it can be exercised. The names of Whig and Tory would then be sunk in the general term of rebel, and the oppression, whatever it might be, would, with very few instances of exception, light equally on all.

Britain did not go to war with America for the sake of dominion, because she was then in possession; neither was it for the extension of trade and commerce, because she had monopolized the whole, and the country had yielded to it; neither was it to extinguish what she might call rebellion, because before she began no resistance existed. It could then be from no other motive than avarice, or a design of establishing, in the first instance, the same taxes in America as are paid in England (which, as I shall presently show, are above eleven times heavier than the taxes we now pay for the present year, 1780) or, in the second instance, to confiscate the whole property of America, in case of resistance and conquest of the latter, of which she had then no doubt.

I shall now proceed to show what the taxes in England are, and what the yearly expense of the present war is to her—what the taxes of this country amount to, and what the annual expense of defending it effectually will be to us; and shall endeavor concisely to point out the cause of our difficulties, and the advantages on one side, and the consequences on the other, in case we do, or do not, put ourselves in an effectual state of defence. I mean to be open, candid, and sincere. I see a universal wish to expel the enemy from the country, a murmuring because the war is not carried on with more vigor,

and my intention is to show, as shortly as possible, both the reason and the remedy.

The number of souls in England (exclusive of Scotland and Ireland) is seven millions,* and the number of souls in America is three millions.

** This is taking the highest number that the people of England have been, or can be rated at.*

The amount of taxes in England (exclusive of Scotland and Ireland) was, before the present war commenced, eleven millions six hundred and forty-two thousand six hundred and fifty-three pounds sterling; which, on an average, is no less a sum than one pound thirteen shillings and three-pence sterling per head per annum, men, women, and children; besides county taxes, taxes for the support of the poor, and a tenth of all the produce of the earth for the support of the bishops and clergy.* Nearly five millions of this sum went annually to pay the interest of the national debt, contracted by former wars, and the remaining sum of six millions six hundred and forty-two thousand six hundred pounds was applied to defray the yearly expense of government, the peace establishment of the army and navy, placemen, pensioners, etc.; consequently the whole of the enormous taxes being thus appropriated, she had nothing to spare out of them towards defraying the expenses of the present war or any other. Yet had she not been in debt at the beginning of the war, as we were not, and, like us, had only a land and not a naval war to carry on, her then revenue of eleven millions and a half pounds sterling would have defrayed all her annual expenses of war and government within each year. * The following is taken from Dr. Price's state of the taxes of England.

An account of the money drawn from the public by taxes, annually, being the medium of three years before the year 1776.

<i>Amount of customs in England</i>	<i>2,528,275 L.</i>
<i>Amount of the excise in England</i>	<i>4,649,892</i>
<i>Land tax at 3s.</i>	<i>1,300,000</i>
<i>Land tax at 1s. in the pound</i>	<i>450,000</i>
<i>Salt duties</i>	<i>218,739</i>
<i>Duties on stamps, cards, dice, advertisements, bonds, leases, indentures, newspapers, almanacks, etc.</i>	<i>280,788</i>
<i>Duties on houses and windows</i>	<i>385,369</i>
<i>Post office, seizures, wine licences, hackney coaches, etc.</i>	<i>250,000</i>
<i>Annual profits from lotteries</i>	<i>150,000</i>
<i>Expense of collecting the excise in England</i>	<i>297,887</i>

<i>Expense of collecting the customs in England</i>	<i>468,703</i>
<i>Interest of loans on the land tax at 4s. expenses of collection, militia, etc.</i>	<i>250,000</i>
<i>Perquisites, etc. to custom-house officers, &c. supposed</i>	<i>250,000</i>
<i>Expense of collecting the salt duties in England 10 1/2 per cent.</i>	<i>27,000</i>
<i>Bounties on fish exported</i>	<i>18,000</i>
<i>Expense of collecting the duties on stamps, cards, advertisements, etc. at 5 and 1/4 per cent.</i>	<i>18,000</i>

Total 11,642,653 L.

But this not being the case with her, she is obliged to borrow about ten millions pounds sterling, yearly, to prosecute the war that she is now engaged in, (this year she borrowed twelve) and lay on new taxes to discharge the interest; allowing that the present war has cost her only fifty millions sterling, the interest thereon, at five per cent., will be two millions and an half; therefore the amount of her taxes now must be fourteen millions, which on an average is no less than forty shillings sterling, per head, men, women and children, throughout the nation. Now as this expense of fifty millions was borrowed on the hopes of conquering America, and as it was avarice which first induced her to commence the war, how truly wretched and deplorable would the condition of this country be, were she, by her own remissness, to suffer an enemy of such a disposition, and so circumstanced, to reduce her to subjection.

I now proceed to the revenues of America.

I have already stated the number of souls in America to be three millions, and by a calculation that I have made, which I have every reason to believe is sufficiently correct, the whole expense of the war, and the support of the several governments, may be defrayed for two million pounds sterling annually; which, on an average, is thirteen shillings and four pence per head, men, women, and children, and the peace establishment at the end of the war will be but three quarters of a million, or five shillings sterling per head. Now, throwing out of the question everything of honor, principle, happiness, freedom, and reputation in the world, and taking it up on the simple ground of interest, I put the following case:

Suppose Britain was to conquer America, and, as a conqueror, was to lay her under no other conditions than to pay the same proportion towards her annual revenue which the people of England pay: our share, in that case, would be six million pounds sterling yearly. Can it then be a question, whether it is best to raise two millions to defend the country, and govern it

ourselves, and only three quarters of a million afterwards, or pay six millions to have it conquered, and let the enemy govern it?

Can it be supposed that conquerors would choose to put themselves in a worse condition than what they granted to the conquered? In England, the tax on rum is five shillings and one penny sterling per gallon, which is one silver dollar and fourteen coppers. Now would it not be laughable to imagine, that after the expense they have been at, they would let either Whig or Tory drink it cheaper than themselves? Coffee, which is so inconsiderable an article of consumption and support here, is there loaded with a duty which makes the price between five and six shillings per pound, and a penalty of fifty pounds sterling on any person detected in roasting it in his own house. There is scarcely a necessary of life that you can eat, drink, wear, or enjoy, that is not there loaded with a tax; even the light from heaven is only permitted to shine into their dwellings by paying eighteen pence sterling per window annually; and the humblest drink of life, small beer, cannot there be purchased without a tax of nearly two coppers per gallon, besides a heavy tax upon the malt, and another on the hops before it is brewed, exclusive of a land-tax on the earth which produces them. In short, the condition of that country, in point of taxation, is so oppressive, the number of her poor so great, and the extravagance and rapaciousness of the court so enormous, that, were they to effect a conquest of America, it is then only that the distresses of America would begin. Neither would it signify anything to a man whether he be Whig or Tory. The people of England, and the ministry of that country, know us by no such distinctions. What they want is clear, solid revenue, and the modes which they would take to procure it, would operate alike on all. Their manner of reasoning would be short, because they would naturally infer, that if we were able to carry on a war of five or six years against them, we were able to pay the same taxes which they do.

I have already stated that the expense of conducting the present war, and the government of the several states, may be done for two millions sterling, and the establishment in the time of peace, for three quarters of a million.*

** I have made the calculations in sterling, because it is a rate generally known in all the states, and because, likewise, it admits of an easy comparison between our expenses to support the war, and those of the enemy. Four silver dollars and a half is one pound sterling, and three pence over.*

As to navy matters, they flourish so well, and are so well attended to by individuals, that I think it consistent on every principle of real use and economy, to turn the navy into hard money (keeping only three or four packets) and apply it to the service of the army. We shall not have a ship the less; the use of them, and the benefit from them, will be greatly increased, and their expense saved. We are now allied with a formidable naval power, from whom we derive the assistance of a navy. And the line in which we can prosecute the war, so as to reduce the common enemy and benefit the alliance most effectually, will be by attending closely to the land service.

I estimate the charge of keeping up and maintaining an army, officering them, and all expenses included, sufficient for the defence of the country, to be equal to the expense of forty thousand men at thirty pounds sterling per head, which is one million two hundred thousand pounds.

I likewise allow four hundred thousand pounds for continental expenses at home and abroad.

And four hundred thousand pounds for the support of the several state governments—the amount will then be:

<i>For the army</i>	<i>1,200,000 L.</i>
<i>Continental expenses at home and abroad</i>	<i>400,000</i>
<i>Government of the several states</i>	<i>400,000</i>
<i>Total 2,000,000 L.</i>	

I take the proportion of this state, Pennsylvania, to be an eighth part of the thirteen United States; the quota then for us to raise will be two hundred and fifty thousand pounds sterling; two hundred thousand of which will be our share for the support and pay of the army, and continental expenses at home and abroad, and fifty thousand pounds for the support of the state government.

In order to gain an idea of the proportion in which the raising such a sum will fall, I make the following calculation:

Pennsylvania contains three hundred and seventy-five thousand inhabitants, men, women and children; which is likewise an eighth of the number of inhabitants of the whole United States: therefore, two hundred and fifty thousand pounds sterling to be raised among three hundred and seventy-five thousand persons, is, on an average, thirteen shillings and four pence per head, per annum, or something more than one shilling sterling per

month. And our proportion of three quarters of a million for the government of the country, in time of peace, will be ninety-three thousand seven hundred and fifty pounds sterling; fifty thousand of which will be for the government expenses of the state, and forty-three thousand seven hundred and fifty pounds for continental expenses at home and abroad.

The peace establishment then will, on an average, be five shillings sterling per head. Whereas, was England now to stop, and the war cease, her peace establishment would continue the same as it is now, viz. forty shillings per head; therefore was our taxes necessary for carrying on the war, as much per head as hers now is, and the difference to be only whether we should, at the end of the war, pay at the rate of five shillings per head, or forty shillings per head, the case needs no thinking of. But as we can securely defend and keep the country for one third less than what our burden would be if it was conquered, and support the governments afterwards for one eighth of what Britain would levy on us, and could I find a miser whose heart never felt the emotion of a spark of principle, even that man, uninfluenced by every love but the love of money, and capable of no attachment but to his interest, would and must, from the frugality which governs him, contribute to the defence of the country, or he ceases to be a miser and becomes an idiot. But when we take in with it every thing that can ornament mankind; when the line of our interest becomes the line of our happiness; when all that can cheer and animate the heart, when a sense of honor, fame, character, at home and abroad, are interwoven not only with the security but the increase of property, there exists not a man in America, unless he be an hired emissary, who does not see that his good is connected with keeping up a sufficient defence.

I do not imagine that an instance can be produced in the world, of a country putting herself to such an amazing charge to conquer and enslave another, as Britain has done. The sum is too great for her to think of with any tolerable degree of temper; and when we consider the burden she sustains, as well as the disposition she has shown, it would be the height of folly in us to suppose that she would not reimburse herself by the most rapid means, had she America once more within her power. With such an oppression of expense, what would an empty conquest be to her! What relief under such circumstances could she derive from a victory without a prize? It was money, it was revenue she first went to war for, and nothing but that would satisfy her. It is not the nature of avarice to be satisfied with

any thing else. Every passion that acts upon mankind has a peculiar mode of operation. Many of them are temporary and fluctuating; they admit of cessation and variety. But avarice is a fixed, uniform passion. It neither abates of its vigor nor changes its object; and the reason why it does not, is founded in the nature of things, for wealth has not a rival where avarice is a ruling passion. One beauty may excel another, and extinguish from the mind of man the pictured remembrance of a former one: but wealth is the phoenix of avarice, and therefore it cannot seek a new object, because there is not another in the world.

I now pass on to show the value of the present taxes, and compare them with the annual expense; but this I shall preface with a few explanatory remarks.

There are two distinct things which make the payment of taxes difficult; the one is the large and real value of the sum to be paid, and the other is the scarcity of the thing in which the payment is to be made; and although these appear to be one and the same, they are in several instances not only different, but the difficulty springs from different causes.

Suppose a tax to be laid equal to one half of what a man's yearly income is, such a tax could not be paid, because the property could not be spared; and on the other hand, suppose a very trifling tax was laid, to be collected in pearls, such a tax likewise could not be paid, because they could not be had. Now any person may see that these are distinct cases, and the latter of them is a representation of our own.

That the difficulty cannot proceed from the former, that is, from the real value or weight of the tax, is evident at the first view to any person who will consider it.

The amount of the quota of taxes for this State for the year, 1780, (and so in proportion for every other State,) is twenty millions of dollars, which at seventy for one, is but sixty-four thousand two hundred and eighty pounds three shillings sterling, and on an average, is no more than three shillings and five pence sterling per head, per annum, per man, woman and child, or threepence two-fifths per head per month. Now here is a clear, positive fact, that cannot be contradicted, and which proves that the difficulty cannot be in the weight of the tax, for in itself it is a trifle, and far from being adequate to our quota of the expense of the war. The quit-rents of one penny sterling per acre on only one half of the state, come to upwards of fifty

thousand pounds, which is almost as much as all the taxes of the present year, and as those quit-rents made no part of the taxes then paid, and are now discontinued, the quantity of money drawn for public-service this year, exclusive of the militia fines, which I shall take notice of in the process of this work, is less than what was paid and payable in any year preceding the revolution, and since the last war; what I mean is, that the quit-rents and taxes taken together came to a larger sum then, than the present taxes without the quit-rents do now.

My intention by these arguments and calculations is to place the difficulty to the right cause, and show that it does not proceed from the weight or worth of the tax, but from the scarcity of the medium in which it is paid; and to illustrate this point still further, I shall now show, that if the tax of twenty millions of dollars was of four times the real value it now is, or nearly so, which would be about two hundred and fifty thousand pounds sterling, and would be our full quota, this sum would have been raised with more ease, and have been less felt, than the present sum of only sixty-four thousand two hundred and eighty pounds.

The convenience or inconvenience of paying a tax in money arises from the quantity of money that can be spared out of trade.

When the emissions stopped, the continent was left in possession of two hundred millions of dollars, perhaps as equally dispersed as it was possible for trade to do it. And as no more was to be issued, the rise or fall of prices could neither increase nor diminish the quantity. It therefore remained the same through all the fluctuations of trade and exchange.

Now had the exchange stood at twenty for one, which was the rate Congress calculated upon when they arranged the quota of the several states, the latter end of last year, trade would have been carried on for nearly four times less money than it is now, and consequently the twenty millions would have been spared with much greater ease, and when collected would have been of almost four times the value that they now are. And on the other hand, was the depreciation to be ninety or one hundred for one, the quantity required for trade would be more than at sixty or seventy for one, and though the value of them would be less, the difficulty of sparing the money out of trade would be greater. And on these facts and arguments I rest the matter, to prove that it is not the want of property, but the scarcity of the medium by which the proportion of property for taxation

is to be measured out, that makes the embarrassment which we lie under. There is not money enough, and, what is equally as true, the people will not let there be money enough.

While I am on the subject of the currency, I shall offer one remark which will appear true to everybody, and can be accounted for by nobody, which is, that the better the times were, the worse the money grew; and the worse the times were, the better the money stood. It never depreciated by any advantage obtained by the enemy. The troubles of 1776, and the loss of Philadelphia in 1777, made no sensible impression on it, and every one knows that the surrender of Charleston did not produce the least alteration in the rate of exchange, which, for long before, and for more than three months after, stood at sixty for one. It seems as if the certainty of its being our own, made us careless of its value, and that the most distant thoughts of losing it made us hug it the closer, like something we were loth to part with; or that we depreciate it for our pastime, which, when called to seriousness by the enemy, we leave off to renew again at our leisure. In short, our good luck seems to break us, and our bad makes us whole.

Passing on from this digression, I shall now endeavor to bring into one view the several parts which I have already stated, and form thereon some propositions, and conclude.

I have placed before the reader, the average tax per head, paid by the people of England; which is forty shillings sterling.

And I have shown the rate on an average per head, which will defray all the expenses of the war to us, and support the several governments without running the country into debt, which is thirteen shillings and four pence.

I have shown what the peace establishment may be conducted for, viz., an eighth part of what it would be, if under the government of Britain.

And I have likewise shown what the average per head of the present taxes is, namely, three shillings and fivepence sterling, or threepence two-fifths per month; and that their whole yearly value, in sterling, is only sixty-four thousand two hundred and eighty pounds. Whereas our quota, to keep the payments equal with the expenses, is two hundred and fifty thousand pounds. Consequently, there is a deficiency of one hundred and eighty-five thousand seven hundred and twenty pounds, and the same proportion of defect, according to the several quotas, happens in every other state. And this defect is the cause why the army has been so indifferently fed, clothed

and paid. It is the cause, likewise, of the nerveless state of the campaign, and the insecurity of the country. Now, if a tax equal to thirteen and fourpence per head, will remove all these difficulties, and make people secure in their homes, leave them to follow the business of their stores and farms unmolested, and not only drive out but keep out the enemy from the country; and if the neglect of raising this sum will let them in, and produce the evils which might be prevented—on which side, I ask, does the wisdom, interest and policy lie? Or, rather, would it not be an insult to reason, to put the question? The sum, when proportioned out according to the several abilities of the people, can hurt no one, but an inroad from the enemy ruins hundreds of families.

Look at the destruction done in this city [Philadelphia]. The many houses totally destroyed, and others damaged; the waste of fences in the country round it, besides the plunder of furniture, forage, and provisions. I do not suppose that half a million sterling would reinstate the sufferers; and, does this, I ask, bear any proportion to the expense that would make us secure? The damage, on an average, is at least ten pounds sterling per head, which is as much as thirteen shillings and fourpence per head comes to for fifteen years. The same has happened on the frontiers, and in the Jerseys, New York, and other places where the enemy has been—Carolina and Georgia are likewise suffering the same fate.

That the people generally do not understand the insufficiency of the taxes to carry on the war, is evident, not only from common observation, but from the construction of several petitions which were presented to the Assembly of this state, against the recommendation of Congress of the 18th of March last, for taking up and funding the present currency at forty to one, and issuing new money in its stead. The prayer of the petition was, that the currency might be appreciated by taxes (meaning the present taxes) and that part of the taxes be applied to the support of the army, if the army could not be otherwise supported. Now it could not have been possible for such a petition to have been presented, had the petitioners known, that so far from part of the taxes being sufficient for the support of the whole of them falls three-fourths short of the year's expenses.

Before I proceed to propose methods by which a sufficiency of money may be raised, I shall take a short view of the general state of the country.

Notwithstanding the weight of the war, the ravages of the enemy, and the obstructions she has thrown in the way of trade and commerce, so soon does a young country outgrow misfortune, that America has already surmounted many that heavily oppressed her. For the first year or two of the war, we were shut up within our ports, scarce venturing to look towards the ocean. Now our rivers are beautified with large and valuable vessels, our stores filled with merchandise, and the produce of the country has a ready market, and an advantageous price. Gold and silver, that for a while seemed to have retreated again within the bowels of the earth, have once more risen into circulation, and every day adds new strength to trade, commerce and agriculture. In a pamphlet, written by Sir John Dalrymple, and dispersed in America in the year 1775, he asserted that two twenty-gun ships, nay, says he, tenders of those ships, stationed between Albermarle sound and Chesapeake bay, would shut up the trade of America for 600 miles. How little did Sir John Dalrymple know of the abilities of America!

While under the government of Britain, the trade of this country was loaded with restrictions. It was only a few foreign ports which we were allowed to sail to. Now it is otherwise; and allowing that the quantity of trade is but half what it was before the war, the case must show the vast advantage of an open trade, because the present quantity under her restrictions could not support itself; from which I infer, that if half the quantity without the restrictions can bear itself up nearly, if not quite, as well as the whole when subject to them, how prosperous must the condition of America be when the whole shall return open with all the world. By the trade I do not mean the employment of a merchant only, but the whole interest and business of the country taken collectively.

It is not so much my intention, by this publication, to propose particular plans for raising money, as it is to show the necessity and the advantages to be derived from it. My principal design is to form the disposition of the people to the measures which I am fully persuaded it is their interest and duty to adopt, and which need no other force to accomplish them than the force of being felt. But as every hint may be useful, I shall throw out a sketch, and leave others to make such improvements upon it as to them may appear reasonable.

The annual sum wanted is two millions, and the average rate in which it falls, is thirteen shillings and fourpence per head.

Suppose, then, that we raise half the sum and sixty thousand pounds over. The average rate thereof will be seven shillings per head.

In this case we shall have half the supply that we want, and an annual fund of sixty thousand pounds whereon to borrow the other million; because sixty thousand pounds is the interest of a million at six per cent.; and if at the end of another year we should be obliged, by the continuance of the war, to borrow another million, the taxes will be increased to seven shillings and sixpence; and thus for every million borrowed, an additional tax, equal to sixpence per head, must be levied.

The sum to be raised next year will be one million and sixty thousand pounds: one half of which I would propose should be raised by duties on imported goods, and prize goods, and the other half by a tax on landed property and houses, or such other means as each state may devise.

But as the duties on imports and prize goods must be the same in all the states, therefore the rate per cent., or what other form the duty shall be laid, must be ascertained and regulated by Congress, and ingrafted in that form into the law of each state; and the monies arising therefrom carried into the treasury of each state. The duties to be paid in gold or silver.

There are many reasons why a duty on imports is the most convenient duty or tax that can be collected; one of which is, because the whole is payable in a few places in a country, and it likewise operates with the greatest ease and equality, because as every one pays in proportion to what he consumes, so people in general consume in proportion to what they can afford; and therefore the tax is regulated by the abilities which every man supposes himself to have, or in other words, every man becomes his own assessor, and pays by a little at a time, when it suits him to buy. Besides, it is a tax which people may pay or let alone by not consuming the articles; and though the alternative may have no influence on their conduct, the power of choosing is an agreeable thing to the mind. For my own part, it would be a satisfaction to me was there a duty on all sorts of liquors during the war, as in my idea of things it would be an addition to the pleasures of society to know, that when the health of the army goes round, a few drops, from every glass becomes theirs. How often have I heard an emphatical wish, almost accompanied by a tear, "Oh, that our poor fellows in the field had some of this!" Why then need we suffer under a fruitless sympathy, when there is a way to enjoy both the wish and the entertainment at once.

But the great national policy of putting a duty upon imports is, that it either keeps the foreign trade in our own hands, or draws something for the defence of the country from every foreigner who participates in it with us.

Thus much for the first half of the taxes, and as each state will best devise means to raise the other half, I shall confine my remarks to the resources of this state.

The quota, then, of this state, of one million and sixty thousand pounds, will be one hundred and thirty-three thousand two hundred and fifty pounds, the half of which is sixty-six thousand six hundred and twenty-five pounds; and supposing one fourth part of Pennsylvania inhabited, then a tax of one bushel of wheat on every twenty acres of land, one with another, would produce the sum, and all the present taxes to cease. Whereas, the tithes of the bishops and clergy in England, exclusive of the taxes, are upwards of half a bushel of wheat on every single acre of land, good and bad, throughout the nation.

In the former part of this paper, I mentioned the militia fines, but reserved speaking of the matter, which I shall now do. The ground I shall put it upon is, that two millions sterling a year will support a sufficient army, and all the expenses of war and government, without having recourse to the inconvenient method of continually calling men from their employments, which, of all others, is the most expensive and the least substantial. I consider the revenues created by taxes as the first and principal thing, and fines only as secondary and accidental things. It was not the intention of the militia law to apply the fines to anything else but the support of the militia, neither do they produce any revenue to the state, yet these fines amount to more than all the taxes: for taking the muster-roll to be sixty thousand men, the fine on forty thousand who may not attend, will be sixty thousand pounds sterling, and those who muster, will give up a portion of time equal to half that sum, and if the eight classes should be called within the year, and one third turn out, the fine on the remaining forty thousand would amount to seventy-two millions of dollars, besides the fifteen shillings on every hundred pounds of property, and the charge of seven and a half per cent. for collecting, in certain instances which, on the whole, would be upwards of two hundred and fifty thousand pounds sterling.

Now if those very fines disable the country from raising a sufficient revenue without producing an equivalent advantage, would it not be for the

ease and interest of all parties to increase the revenue, in the manner I have proposed, or any better, if a better can be devised, and cease the operation of the fines? I would still keep the militia as an organized body of men, and should there be a real necessity to call them forth, pay them out of the proper revenues of the state, and increase the taxes a third or fourth per cent. on those who do not attend. My limits will not allow me to go further into this matter, which I shall therefore close with this remark; that fines are, of all modes of revenue, the most unsuited to the minds of a free country. When a man pays a tax, he knows that the public necessity requires it, and therefore feels a pride in discharging his duty; but a fine seems an atonement for neglect of duty, and of consequence is paid with discredit, and frequently levied with severity.

I have now only one subject more to speak of, with which I shall conclude, which is, the resolve of Congress of the 18th of March last, for taking up and funding the present currency at forty for one, and issuing new money in its stead.

Every one knows that I am not the flatterer of Congress, but in this instance they are right; and if that measure is supported, the currency will acquire a value, which, without it, it will not. But this is not all: it will give relief to the finances until such time as they can be properly arranged, and save the country from being immediately doubled taxed under the present mode. In short, support that measure, and it will support you.

I have now waded through a tedious course of difficult business, and over an untrodden path. The subject, on every point in which it could be viewed, was entangled with perplexities, and enveloped in obscurity, yet such are the resources of America, that she wants nothing but system to secure success.

COMMON SENSE.

PHILADELPHIA, Oct. 4, 1780.

THE CRISIS X. ON THE KING OF ENGLAND'S SPEECH.

OF all the innocent passions which actuate the human mind there is none more universally prevalent than curiosity. It reaches all mankind, and in matters which concern us, or concern us not, it alike provokes in us a desire to know them.

Although the situation of America, superior to every effort to enslave her, and daily rising to importance and opulence, has placed her above the region of anxiety, it has still left her within the circle of curiosity; and her fancy to see the speech of a man who had proudly threatened to bring her to his feet, was visibly marked with that tranquil confidence which cared nothing about its contents. It was inquired after with a smile, read with a laugh, and dismissed with disdain.

But, as justice is due, even to an enemy, it is right to say, that the speech is as well managed as the embarrassed condition of their affairs could well admit of; and though hardly a line of it is true, except the mournful story of Cornwallis, it may serve to amuse the deluded commons and people of England, for whom it was calculated.

"The war," says the speech, "is still unhappily prolonged by that restless ambition which first excited our enemies to commence it, and which still continues to disappoint my earnest wishes and diligent exertions to restore the public tranquillity."

How easy it is to abuse truth and language, when men, by habitual wickedness, have learned to set justice at defiance. That the very man who began the war, who with the most sullen insolence refused to answer, and even to hear the humblest of all petitions, who has encouraged his officers and his army in the most savage cruelties, and the most scandalous plunderings, who has stirred up the Indians on one side, and the negroes on the other, and invoked every aid of hell in his behalf, should now, with an affected air of pity, turn the tables from himself, and charge to another the wickedness that is his own, can only be equalled by the baseness of the heart that spoke it.

To be nobly wrong is more manly than to be meanly right, is an expression I once used on a former occasion, and it is equally applicable now. We feel something like respect for consistency even in error. We lament the virtue that is debauched into a vice, but the vice that affects a virtue becomes the more detestable: and amongst the various assumptions of character, which hypocrisy has taught, and men have practised, there is none that raises a higher relish of disgust, than to see disappointed inveteracy twisting itself, by the most visible falsehoods, into an appearance of piety which it has no pretensions to.

"But I should not," continues the speech, "answer the trust committed to the sovereign of a free people, nor make a suitable return to my subjects for their constant, zealous, and affectionate attachment to my person, family and government, if I consented to sacrifice, either to my own desire of peace, or to their temporary ease and relief, those essential rights and permanent interests, upon the maintenance and preservation of which, the future strength and security of this country must principally depend."

That the man whose ignorance and obstinacy first involved and still continues the nation in the most hopeless and expensive of all wars, should now meanly flatter them with the name of a free people, and make a merit of his crime, under the disguise of their essential rights and permanent interests, is something which disgraces even the character of perverseness. Is he afraid they will send him to Hanover, or what does he fear? Why is the sycophant thus added to the hypocrite, and the man who pretends to govern, sunk into the humble and submissive memorialist?

What those essential rights and permanent interests are, on which the future strength and security of England must principally depend, are not so much as alluded to. They are words which impress nothing but the ear, and are calculated only for the sound.

But if they have any reference to America, then do they amount to the disgraceful confession, that England, who once assumed to be her protectress, has now become her dependant. The British king and ministry are constantly holding up the vast importance which America is of to England, in order to allure the nation to carry on the war: now, whatever ground there is for this idea, it ought to have operated as a reason for not beginning it; and, therefore, they support their present measures to their

own disgrace, because the arguments which they now use, are a direct reflection on their former policy.

"The favorable appearance of affairs," continues the speech, "in the East Indies, and the safe arrival of the numerous commercial fleets of my kingdom, must have given you satisfaction."

That things are not quite so bad every where as in America may be some cause of consolation, but can be none for triumph. One broken leg is better than two, but still it is not a source of joy: and let the appearance of affairs in the East Indies be ever so favorable, they are nevertheless worse than at first, without a prospect of their ever being better. But the mournful story of Cornwallis was yet to be told, and it was necessary to give it the softest introduction possible.

"But in the course of this year," continues the speech, "my assiduous endeavors to guard the extensive dominions of my crown have not been attended with success equal to the justice and uprightness of my views."—What justice and uprightness there was in beginning a war with America, the world will judge of, and the unequalled barbarity with which it has been conducted, is not to be worn from the memory by the cant of snivelling hypocrisy.

"And it is with great concern that I inform you that the events of war have been very unfortunate to my arms in Virginia, having ended in the loss of my forces in that province."—And our great concern is that they are not all served in the same manner.

"No endeavors have been wanted on my part," says the speech, "to extinguish that spirit of rebellion which our enemies have found means to foment and maintain in the colonies; and to restore to my deluded subjects in America that happy and prosperous condition which they formerly derived from a due obedience to the laws."

The expression of deluded subjects is become so hacknied and contemptible, and the more so when we see them making prisoners of whole armies at a time, that the pride of not being laughed at would induce a man of common sense to leave it off. But the most offensive falsehood in the paragraph is the attributing the prosperity of America to a wrong cause. It was the unremitted industry of the settlers and their descendants, the hard labor and toil of persevering fortitude, that were the true causes of the prosperity of America. The former tyranny of England served to people it,

and the virtue of the adventurers to improve it. Ask the man, who, with his axe, has cleared a way in the wilderness, and now possesses an estate, what made him rich, and he will tell you the labor of his hands, the sweat of his brow, and the blessing of heaven. Let Britain but leave America to herself and she asks no more. She has risen into greatness without the knowledge and against the will of England, and has a right to the unmolested enjoyment of her own created wealth.

"I will order," says the speech, "the estimates of the ensuing year to be laid before you. I rely on your wisdom and public spirit for such supplies as the circumstances of our affairs shall be found to require. Among the many ill consequences which attend the continuation of the present war, I most sincerely regret the additional burdens which it must unavoidably bring upon my faithful subjects."

It is strange that a nation must run through such a labyrinth of trouble, and expend such a mass of wealth to gain the wisdom which an hour's reflection might have taught. The final superiority of America over every attempt that an island might make to conquer her, was as naturally marked in the constitution of things, as the future ability of a giant over a dwarf is delineated in his features while an infant. How far providence, to accomplish purposes which no human wisdom could foresee, permitted such extraordinary errors, is still a secret in the womb of time, and must remain so till futurity shall give it birth.

"In the prosecution of this great and important contest," says the speech, "in which we are engaged, I retain a firm confidence in the protection of divine providence, and a perfect conviction in the justice of my cause, and I have no doubt, but, that by the concurrence and support of my Parliament, by the valour of my fleets and armies, and by a vigorous, animated, and united exertion of the faculties and resources of my people, I shall be enabled to restore the blessings of a safe and honorable peace to all my dominions."

The King of England is one of the readiest believers in the world. In the beginning of the contest he passed an act to put America out of the protection of the crown of England, and though providence, for seven years together, has put him out of her protection, still the man has no doubt. Like Pharaoh on the edge of the Red Sea, he sees not the plunge he is making, and precipitately drives across the flood that is closing over his head.

I think it is a reasonable supposition, that this part of the speech was composed before the arrival of the news of the capture of Cornwallis: for it certainly has no relation to their condition at the time it was spoken. But, be this as it may, it is nothing to us. Our line is fixed. Our lot is cast; and America, the child of fate, is arriving at maturity. We have nothing to do but by a spirited and quick exertion, to stand prepared for war or peace. Too great to yield, and too noble to insult; superior to misfortune, and generous in success, let us untaintedly preserve the character which we have gained, and show to future ages an example of unequalled magnanimity. There is something in the cause and consequence of America that has drawn on her the attention of all mankind. The world has seen her brave. Her love of liberty; her ardour in supporting it; the justice of her claims, and the constancy of her fortitude have won her the esteem of Europe, and attached to her interest the first power in that country.

Her situation now is such, that to whatever point, past, present or to come, she casts her eyes, new matter rises to convince her that she is right. In her conduct towards her enemy, no reproachful sentiment lurks in secret. No sense of injustice is left upon the mind. Untainted with ambition, and a stranger to revenge, her progress has been marked by providence, and she, in every stage of the conflict, has blest her with success.

But let not America wrap herself up in delusive hope and suppose the business done. The least remissness in preparation, the least relaxation in execution, will only serve to prolong the war, and increase expenses. If our enemies can draw consolation from misfortune, and exert themselves upon despair, how much more ought we, who are to win a continent by the conquest, and have already an earnest of success?

Having, in the preceding part, made my remarks on the several matters which the speech contains, I shall now make my remarks on what it does not contain.

There is not a syllable in its respecting alliances. Either the injustice of Britain is too glaring, or her condition too desperate, or both, for any neighboring power to come to her support. In the beginning of the contest, when she had only America to contend with, she hired assistance from Hesse, and other smaller states of Germany, and for nearly three years did America, young, raw, undisciplined and unprovided, stand against the power of Britain, aided by twenty thousand foreign troops, and made a

complete conquest of one entire army. The remembrance of those things ought to inspire us with confidence and greatness of mind, and carry us through every remaining difficulty with content and cheerfulness. What are the little sufferings of the present day, compared with the hardships that are past? There was a time, when we had neither house nor home in safety; when every hour was the hour of alarm and danger; when the mind, tortured with anxiety, knew no repose, and every thing, but hope and fortitude, was bidding us farewell.

It is of use to look back upon these things; to call to mind the times of trouble and the scenes of complicated anguish that are past and gone. Then every expense was cheap, compared with the dread of conquest and the misery of submission. We did not stand debating upon trifles, or contending about the necessary and unavoidable charges of defence. Every one bore his lot of suffering, and looked forward to happier days, and scenes of rest.

Perhaps one of the greatest dangers which any country can be exposed to, arises from a kind of trifling which sometimes steals upon the mind, when it supposes the danger past; and this unsafe situation marks at this time the peculiar crisis of America. What would she once have given to have known that her condition at this day should be what it now is? And yet we do not seem to place a proper value upon it, nor vigorously pursue the necessary measures to secure it. We know that we cannot be defended, nor yet defend ourselves, without trouble and expense. We have no right to expect it; neither ought we to look for it. We are a people, who, in our situation, differ from all the world. We form one common floor of public good, and, whatever is our charge, it is paid for our own interest and upon our own account.

Misfortune and experience have now taught us system and method; and the arrangements for carrying on the war are reduced to rule and order. The quotas of the several states are ascertained, and I intend in a future publication to show what they are, and the necessity as well as the advantages of vigorously providing for them.

In the mean time, I shall conclude this paper with an instance of British clemency, from Smollett's History of England, vol. xi., printed in London. It will serve to show how dismal the situation of a conquered people is, and that the only security is an effectual defence.

We all know that the Stuart family and the house of Hanover opposed each other for the crown of England. The Stuart family stood first in the line of succession, but the other was the most successful.

In July, 1745, Charles, the son of the exiled king, landed in Scotland, collected a small force, at no time exceeding five or six thousand men, and made some attempts to re-establish his claim. The late Duke of Cumberland, uncle to the present King of England, was sent against him, and on the 16th of April following, Charles was totally defeated at Culloden, in Scotland. Success and power are the only situations in which clemency can be shown, and those who are cruel, because they are victorious, can with the same facility act any other degenerate character.

"Immediately after the decisive action at Culloden, the Duke of Cumberland took possession of Inverness; where six and thirty deserters, convicted by a court martial, were ordered to be executed: then he detached several parties to ravage the country. One of these apprehended The Lady Mackintosh, who was sent prisoner to Inverness, plundered her house, and drove away her cattle, though her husband was actually in the service of the government. The castle of Lord Lovat was destroyed. The French prisoners were sent to Carlisle and Penrith: Kilmarnock, Balmerino, Cromartie, and his son, The Lord Macleod, were conveyed by sea to London; and those of an inferior rank were confined in different prisons. The Marquis of Tullibardine, together with a brother of the Earl of Dunmore, and Murray, the pretender's secretary, were seized and transported to the Tower of London, to which the Earl of Traquair had been committed on suspicion; and the eldest son of Lord Lovat was imprisoned in the castle of Edinburgh. In a word, all the jails in Great Britain, from the capital, northwards, were filled with those unfortunate captives; and great numbers of them were crowded together in the holds of ships, where they perished in the most deplorable manner, for want of air and exercise. Some rebel chiefs escaped in two French frigates that arrived on the coast of Lochaber about the end of April, and engaged three vessels belonging to his Britannic majesty, which they obliged to retire. Others embarked on board a ship on the coast of Buchan, and were conveyed to Norway, from whence they travelled to Sweden. In the month of May, the Duke of Cumberland advanced with the army into the Highlands, as far as Fort Augustus, where he encamped; and sent off detachments on all hands, to hunt down the fugitives, and lay waste the country with fire and sword. The castles of Glengary and Lochiel were

plundered and burned; every house, hut, or habitation, met with the same fate, without distinction; and all the cattle and provision were carried off; the men were either shot upon the mountains, like wild beasts, or put to death in cold blood, without form of trial; the women, after having seen their husbands and fathers murdered, were subjected to brutal violation, and then turned out naked, with their children, to starve on the barren heaths. One whole family was enclosed in a barn, and consumed to ashes. Those ministers of vengeance were so alert in the execution of their office, that in a few days there was neither house, cottage, man, nor beast, to be seen within the compass of fifty miles; all was ruin, silence, and desolation."

I have here presented the reader with one of the most shocking instances of cruelty ever practised, and I leave it, to rest on his mind, that he may be fully impressed with a sense of the destruction he has escaped, in case Britain had conquered America; and likewise, that he may see and feel the necessity, as well for his own personal safety, as for the honor, the interest, and happiness of the whole community, to omit or delay no one preparation necessary to secure the ground which we so happily stand upon.

TO THE PEOPLE OF AMERICA

*On the expenses, arrangements and disbursements for
carrying on the war, and finishing it with honor
and advantage*

WHEN any necessity or occasion has pointed out the convenience of addressing the public, I have never made it a consideration whether the subject was popular or unpopular, but whether it was right or wrong; for that which is right will become popular, and that which is wrong, though by mistake it may obtain the cry or fashion of the day, will soon lose the power of delusion, and sink into disesteem.

A remarkable instance of this happened in the case of Silas Deane; and I mention this circumstance with the greater ease, because the poison of his hypocrisy spread over the whole country, and every man, almost without exception, thought me wrong in opposing him. The best friends I then had, except Mr. [Henry] Laurens, stood at a distance, and this tribute, which is due to his constancy, I pay to him with respect, and that the reader, because he is not here to hear it. If it reaches him in his imprisonment, it will afford him an agreeable reflection.

"As he rose like a rocket, he would fall like a stick," is a metaphor which I applied to Mr. Deane, in the first piece which I published respecting him, and he has exactly fulfilled the description. The credit he so unjustly obtained from the public, he lost in almost as short a time. The delusion perished as it fell, and he soon saw himself stripped of popular support. His more intimate acquaintances began to doubt, and to desert him long before he left America, and at his departure, he saw himself the object of general suspicion. When he arrived in France, he endeavored to effect by treason what he had failed to accomplish by fraud. His plans, schemes and projects, together with his expectation of being sent to Holland to negotiate a loan of money, had all miscarried. He then began traducing and accusing America of every crime, which could injure her reputation. "That she was a ruined country; that she only meant to make a tool of France, to get what money she could out of her, and then to leave her and accommodate with Britain." Of all which and much more, Colonel Laurens and myself, when in France, informed Dr. Franklin, who had not before heard of it. And to complete the character of traitor, he has, by letters to his country since, some of which, in his own handwriting, are now in the possession of Congress, used every expression and argument in his power, to injure the reputation of France, and to advise America to renounce her alliance, and surrender up her independence.* Thus in France he abuses America, and in his letters to America he abuses France; and is endeavoring to create disunion between two countries, by the same arts of double-dealing by which he caused dissensions among the commissioners in Paris, and distractions in America. But his life has been fraud, and his character has been that of a plodding, plotting, cringing mercenary, capable of any disguise that suited his purpose. His final detection has very happily cleared up those mistakes, and removed that uneasiness, which his unprincipled conduct occasioned. Every one now sees him in the same light; for towards friends or enemies he acted with the same deception and injustice, and his name, like that of Arnold, ought now to be forgotten among us. As this is the first time that I have mentioned him since my return from France, it is my intention that it shall be the last. From this digression, which for several reasons I thought necessary to give, I now proceed to the purport of my address.

** Mr. William Marshall, of this city [Philadelphia], formerly a pilot, who had been taken at sea and carried to England, and got from thence to France, brought over letters from Mr. Deane to America, one of which was directed to "Robert Morris, Esq." Mr. Morris sent it unopened*

to Congress, and advised Mr. Marshall to deliver the others there, which he did. The letters were of the same purport with those which have been already published under the signature of S. Deane, to which they had frequent reference.

I consider the war of America against Britain as the country's war, the public's war, or the war of the people in their own behalf, for the security of their natural rights, and the protection of their own property. It is not the war of Congress, the war of the assemblies, or the war of government in any line whatever. The country first, by mutual compact, resolved to defend their rights and maintain their independence, at the hazard of their lives and fortunes; they elected their representatives, by whom they appointed their members of Congress, and said, act you for us, and we will support you. This is the true ground and principle of the war on the part of America, and, consequently, there remains nothing to do, but for every one to fulfil his obligation.

It was next to impossible that a new country, engaged in a new undertaking, could set off systematically right at first. She saw not the extent of the struggle that she was involved in, neither could she avoid the beginning. She supposed every step that she took, and every resolution which she formed, would bring her enemy to reason and close the contest. Those failing, she was forced into new measures; and these, like the former, being fitted to her expectations, and failing in their turn, left her continually unprovided, and without system. The enemy, likewise, was induced to prosecute the war, from the temporary expedients we adopted for carrying it on. We were continually expecting to see their credit exhausted, and they were looking to see our currency fail; and thus, between their watching us, and we them, the hopes of both have been deceived, and the childishness of the expectation has served to increase the expense.

Yet who, through this wilderness of error, has been to blame? Where is the man who can say the fault, in part, has not been his? They were the natural, unavoidable errors of the day. They were the errors of a whole country, which nothing but experience could detect and time remove. Neither could the circumstances of America admit of system, till either the paper currency was fixed or laid aside. No calculation of a finance could be made on a medium failing without reason, and fluctuating without rule.

But there is one error which might have been prevented and was not; and as it is not my custom to flatter, but to serve mankind, I will speak it freely.

It certainly was the duty of every assembly on the continent to have known, at all times, what was the condition of its treasury, and to have ascertained at every period of depreciation, how much the real worth of the taxes fell short of their nominal value. This knowledge, which might have been easily gained, in the time of it, would have enabled them to have kept their constituents well informed, and this is one of the greatest duties of representation. They ought to have studied and calculated the expenses of the war, the quota of each state, and the consequent proportion that would fall on each man's property for his defence; and this must have easily shown to them, that a tax of one hundred pounds could not be paid by a bushel of apples or an hundred of flour, which was often the case two or three years ago. But instead of this, which would have been plain and upright dealing, the little line of temporary popularity, the feather of an hour's duration, was too much pursued; and in this involved condition of things, every state, for the want of a little thinking, or a little information, supposed that it supported the whole expenses of the war, when in fact it fell, by the time the tax was levied and collected, above three-fourths short of its own quota.

Impressed with a sense of the danger to which the country was exposed by this lax method of doing business, and the prevailing errors of the day, I published, last October was a twelvemonth, the Crisis Extraordinary, on the revenues of America, and the yearly expense of carrying on the war. My estimation of the latter, together with the civil list of Congress, and the civil list of the several states, was two million pounds sterling, which is very nearly nine millions of dollars.

Since that time, Congress have gone into a calculation, and have estimated the expenses of the War Department and the civil list of Congress (exclusive of the civil list of the several governments) at eight millions of dollars; and as the remaining million will be fully sufficient for the civil list of the several states, the two calculations are exceedingly near each other.

The sum of eight millions of dollars have called upon the states to furnish, and their quotas are as follows, which I shall preface with the resolution itself.

"By the United States in Congress assembled.

"October 30, 1781.

"Resolved, That the respective states be called upon to furnish the treasury of the United States with their quotas of eight millions of dollars, for the War Department and civil list for the ensuing year, to be paid quarterly, in equal proportions, the first payment to be made on the first day of April next.

"Resolved, That a committee, consisting of a member from each state, be appointed to apportion to the several states the quota of the above sum.

"November 2d. The committee appointed to ascertain the proportions of the several states of the monies to be raised for the expenses of the ensuing year, report the following resolutions:

"That the sum of eight millions of dollars, as required to be raised by the resolutions of the 30th of October last, be paid by the states in the following proportion:

New Hampshire.....	\$ 373,598
Massachusetts.....	1,307,596
Rhode Island.....	216,684
Connecticut.....	747,196
New York.....	373,598
New Jersey.....	485,679
Pennsylvania.....	1,120,794
Delaware.....	112,085
Maryland.....	933,996
Virginia.....	1,307,594
North Carolina.....	622,677
South Carolina.....	373,598
Georgia.....	24,905

\$8,000,000

"Resolved, That it be recommended to the several states, to lay taxes for raising their quotas of money for the United States, separate from those laid for their own particular use."

On these resolutions I shall offer several remarks.

*1st, On the sum itself, and the ability of the country.
2d, On the several quotas, and the nature of a union. And,
3d, On the manner of collection and expenditure.*

1st, On the sum itself, and the ability of the country. As I know my own calculation is as low as possible, and as the sum called for by congress, according to their calculation, agrees very nearly therewith, I am sensible it cannot possibly be lower. Neither can it be done for that, unless there is

ready money to go to market with; and even in that case, it is only by the utmost management and economy that it can be made to do.

By the accounts which were laid before the British Parliament last spring, it appeared that the charge of only subsisting, that is, feeding their army in America, cost annually four million pounds sterling, which is very nearly eighteen millions of dollars. Now if, for eight millions, we can feed, clothe, arm, provide for, and pay an army sufficient for our defence, the very comparison shows that the money must be well laid out.

It may be of some use, either in debate or conversation, to attend to the progress of the expenses of an army, because it will enable us to see on what part any deficiency will fall.

The first thing is, to feed them and prepare for the sick.

Second, to clothe them.

Third, to arm and furnish them.

Fourth, to provide means for removing them from place to place. And,

Fifth, to pay them.

The first and second are absolutely necessary to them as men. The third and fourth are equally as necessary to them as an army. And the fifth is their just due. Now if the sum which shall be raised should fall short, either by the several acts of the states for raising it, or by the manner of collecting it, the deficiency will fall on the fifth head, the soldiers' pay, which would be defrauding them, and eternally disgracing ourselves. It would be a blot on the councils, the country, and the revolution of America, and a man would hereafter be ashamed to own that he had any hand in it.

But if the deficiency should be still shorter, it would next fall on the fourth head, the means of removing the army from place to place; and, in this case, the army must either stand still where it can be of no use, or seize on horses, carts, wagons, or any means of transportation which it can lay hold of; and in this instance the country suffers. In short, every attempt to do a thing for less than it can be done for, is sure to become at last both a loss and a dishonor.

But the country cannot bear it, say some. This has been the most expensive doctrine that ever was held out, and cost America millions of money for nothing. Can the country bear to be overrun, ravaged, and ruined by an enemy? This will immediately follow where defence is wanting, and defence will ever be wanting, where sufficient revenues are not provided.

But this is only one part of the folly. The second is, that when the danger comes, invited in part by our not preparing against it, we have been obliged, in a number of instances, to expend double the sums to do that which at first might have been done for half the money. But this is not all. A third mischief has been, that grain of all sorts, flour, beef fodder, horses, carts, wagons, or whatever was absolutely or immediately wanted, have been taken without pay. Now, I ask, why was all this done, but from that extremely weak and expensive doctrine, that the country could not bear it? That is, that she could not bear, in the first instance, that which would have saved her twice as much at last; or, in proverbial language, that she could not bear to pay a penny to save a pound; the consequence of which has been, that she has paid a pound for a penny. Why are there so many unpaid certificates in almost every man's hands, but from the parsimony of not providing sufficient revenues? Besides, the doctrine contradicts itself; because, if the whole country cannot bear it, how is it possible that a part should? And yet this has been the case: for those things have been had; and they must be had; but the misfortune is, that they have been obtained in a very unequal manner, and upon expensive credit, whereas, with ready money, they might have been purchased for half the price, and nobody distressed.

But there is another thought which ought to strike us, which is, how is the army to bear the want of food, clothing and other necessities? The man who is at home, can turn himself a thousand ways, and find as many means of ease, convenience or relief: but a soldier's life admits of none of those: their wants cannot be supplied from themselves: for an army, though it is the defence of a state, is at the same time the child of a country, or must be provided for in every thing.

And lastly, the doctrine is false. There are not three millions of people in any part of the universe, who live so well, or have such a fund of ability, as in America. The income of a common laborer, who is industrious, is equal to that of the generality of tradesmen in England. In the mercantile line, I have not heard of one who could be said to be a bankrupt since the war began, and in England they have been without number. In America almost every farmer lives on his own lands, and in England not one in a hundred does. In short, it seems as if the poverty of that country had made them furious, and they were determined to risk all to recover all.

Yet, notwithstanding those advantages on the part of America, true it is, that had it not been for the operation of taxes for our necessary defence, we had sunk into a state of sloth and poverty: for there was more wealth lost by neglecting to till the earth in the years 1776, '77, and '78, than the quota of taxes amounts to. That which is lost by neglect of this kind, is lost for ever: whereas that which is paid, and continues in the country, returns to us again; and at the same time that it provides us with defence, it operates not only as a spur, but as a premium to our industry.

I shall now proceed to the second head, viz., on the several quotas, and the nature of a union.

There was a time when America had no other bond of union, than that of common interest and affection. The whole country flew to the relief of Boston, and, making her cause, their own, participated in her cares and administered to her wants. The fate of war, since that day, has carried the calamity in a ten-fold proportion to the southward; but in the mean time the union has been strengthened by a legal compact of the states, jointly and severally ratified, and that which before was choice, or the duty of affection, is now likewise the duty of legal obligation.

The union of America is the foundation-stone of her independence; the rock on which it is built; and is something so sacred in her constitution, that we ought to watch every word we speak, and every thought we think, that we injure it not, even by mistake. When a multitude, extended, or rather scattered, over a continent in the manner we were, mutually agree to form one common centre whereon the whole shall move to accomplish a particular purpose, all parts must act together and alike, or act not at all, and a stoppage in any one is a stoppage of the whole, at least for a time.

Thus the several states have sent representatives to assemble together in Congress, and they have empowered that body, which thus becomes their centre, and are no other than themselves in representation, to conduct and manage the war, while their constituents at home attend to the domestic cares of the country, their internal legislation, their farms, professions or employments, for it is only by reducing complicated things to method and orderly connection that they can be understood with advantage, or pursued with success. Congress, by virtue of this delegation, estimates the expense, and apportions it out to the several parts of the empire according to their several abilities; and here the debate must end, because each state has

already had its voice, and the matter has undergone its whole portion of argument, and can no more be altered by any particular state, than a law of any state, after it has passed, can be altered by any individual. For with respect to those things which immediately concern the union, and for which the union was purposely established, and is intended to secure, each state is to the United States what each individual is to the state he lives in. And it is on this grand point, this movement upon one centre, that our existence as a nation, our happiness as a people, and our safety as individuals, depend.

It may happen that some state or other may be somewhat over or under rated, but this cannot be much. The experience which has been had upon the matter, has nearly ascertained their several abilities. But even in this case, it can only admit of an appeal to the United States, but cannot authorise any state to make the alteration itself, any more than our internal government can admit an individual to do so in the case of an act of assembly; for if one state can do it, then may another do the same, and the instant this is done the whole is undone.

Neither is it supposable that any single state can be a judge of all the comparative reasons which may influence the collective body in arranging the quotas of the continent. The circumstances of the several states are frequently varying, occasioned by the accidents of war and commerce, and it will often fall upon some to help others, rather beyond what their exact proportion at another time might be; but even this assistance is as naturally and politically included in the idea of a union as that of any particular assigned proportion; because we know not whose turn it may be next to want assistance, for which reason that state is the wisest which sets the best example.

Though in matters of bounden duty and reciprocal affection, it is rather a degeneracy from the honesty and ardor of the heart to admit any thing selfish to partake in the government of our conduct, yet in cases where our duty, our affections, and our interest all coincide, it may be of some use to observe their union. The United States will become heir to an extensive quantity of vacant land, and their several titles to shares and quotas thereof, will naturally be adjusted according to their relative quotas, during the war, exclusive of that inability which may unfortunately arise to any state by the enemy's holding possession of a part; but as this is a cold matter of interest,

I pass it by, and proceed to my third head, viz., on the manner of collection and expenditure.

It has been our error, as well as our misfortune, to blend the affairs of each state, especially in money matters, with those of the United States; whereas it is our case, convenience and interest, to keep them separate. The expenses of the United States for carrying on the war, and the expenses of each state for its own domestic government, are distinct things, and to involve them is a source of perplexity and a cloak for fraud. I love method, because I see and am convinced of its beauty and advantage. It is that which makes all business easy and understood, and without which, everything becomes embarrassed and difficult.

There are certain powers which the people of each state have delegated to their legislative and executive bodies, and there are other powers which the people of every state have delegated to Congress, among which is that of conducting the war, and, consequently, of managing the expenses attending it; for how else can that be managed, which concerns every state, but by a delegation from each? When a state has furnished its quota, it has an undoubted right to know how it has been applied, and it is as much the duty of Congress to inform the state of the one, as it is the duty of the state to provide the other.

In the resolution of Congress already recited, it is recommended to the several states to lay taxes for raising their quotas of money for the United States, separate from those laid for their own particular use.

This is a most necessary point to be observed, and the distinction should follow all the way through. They should be levied, paid and collected, separately, and kept separate in every instance. Neither have the civil officers of any state, nor the government of that state, the least right to touch that money which the people pay for the support of their army and the war, any more than Congress has to touch that which each state raises for its own use.

This distinction will naturally be followed by another. It will occasion every state to examine nicely into the expenses of its civil list, and to regulate, reduce, and bring it into better order than it has hitherto been; because the money for that purpose must be raised apart, and accounted for to the public separately. But while the monies of both were blended, the

necessary nicety was not observed, and the poor soldier, who ought to have been the first, was the last who was thought of.

Another convenience will be, that the people, by paying the taxes separately, will know what they are for; and will likewise know that those which are for the defence of the country will cease with the war, or soon after. For although, as I have before observed, the war is their own, and for the support of their own rights and the protection of their own property, yet they have the same right to know, that they have to pay, and it is the want of not knowing that is often the cause of dissatisfaction.

This regulation of keeping the taxes separate has given rise to a regulation in the office of finance, by which it is directed:

"That the receivers shall, at the end of every month, make out an exact account of the monies received by them respectively, during such month, specifying therein the names of the persons from whom the same shall have been received, the dates and the sums; which account they shall respectively cause to be published in one of the newspapers of the state; to the end that every citizen may know how much of the monies collected from him, in taxes, is transmitted to the treasury of the United States for the support of the war; and also, that it may be known what monies have been at the order of the superintendent of finance. It being proper and necessary, that, in a free country, the people should be as fully informed of the administration of their affairs as the nature of things will admit."

It is an agreeable thing to see a spirit of order and economy taking place, after such a series of errors and difficulties. A government or an administration, who means and acts honestly, has nothing to fear, and consequently has nothing to conceal; and it would be of use if a monthly or quarterly account was to be published, as well of the expenditures as of the receipts. Eight millions of dollars must be husbanded with an exceeding deal of care to make it do, and, therefore, as the management must be reputable, the publication would be serviceable.

I have heard of petitions which have been presented to the assembly of this state (and probably the same may have happened in other states) praying to have the taxes lowered. Now the only way to keep taxes low is, for the United States to have ready money to go to market with: and though the taxes to be raised for the present year will fall heavy, and there will naturally be some difficulty in paying them, yet the difficulty, in proportion

as money spreads about the country, will every day grow less, and in the end we shall save some millions of dollars by it. We see what a bitter, revengeful enemy we have to deal with, and any expense is cheap compared to their merciless paw. We have seen the unfortunate Carolineans hunted like partridges on the mountains, and it is only by providing means for our defence, that we shall be kept from the same condition. When we think or talk about taxes, we ought to recollect that we lie down in peace and sleep in safety; that we can follow our farms or stores or other occupations, in prosperous tranquillity; and that these inestimable blessings are procured to us by the taxes that we pay. In this view, our taxes are properly our insurance money; they are what we pay to be made safe, and, in strict policy, are the best money we can lay out.

It was my intention to offer some remarks on the impost law of five per cent. recommended by Congress, and to be established as a fund for the payment of the loan-office certificates, and other debts of the United States; but I have already extended my piece beyond my intention. And as this fund will make our system of finance complete, and is strictly just, and consequently requires nothing but honesty to do it, there needs but little to be said upon it.

COMMON SENSE.

PHILADELPHIA, March 5, 1782.

THE CRISIS. XI. ON THE PRESENT STATE OF NEWS.

SINCE the arrival of two, if not three packets in quick succession, at New York, from England, a variety of unconnected news has circulated through the country, and afforded as great a variety of speculation.

That something is the matter in the cabinet and councils of our enemies, on the other side of the water, is certain—that they have run their length of madness, and are under the necessity of changing their measures may easily be seen into; but to what this change of measures may amount, or how far it may correspond with our interest, happiness and duty, is yet uncertain; and from what we have hitherto experienced, we have too much reason to suspect them in every thing. I do not address this publication so much to the people of America as to the British ministry, whoever they may be, for if it is their intention to promote any kind of negotiation, it is proper they should know beforehand, that the United States have as much honor as bravery; and that they are no more to be seduced from their alliance than their allegiance; that their line of politics is formed and not dependent, like that of their enemy, on chance and accident. On our part, in order to know, at any time, what the British government will do, we have only to find out what they ought not to do, and this last will be their conduct. Forever changing and forever wrong; too distant from America to improve in circumstances, and too unwise to foresee them; scheming without principle, and executing without probability, their whole line of management has hitherto been blunder and baseness. Every campaign has added to their loss, and every year to their disgrace; till unable to go on, and ashamed to go back, their politics have come to a halt, and all their fine prospects to a halter.

Could our affections forgive, or humanity forget the wounds of an injured country—we might, under the influence of a momentary oblivion, stand still and laugh. But they are engraven where no amusement can conceal them, and of a kind for which there is no recompense. Can ye restore to us the beloved dead? Can ye say to the grave, give up the murdered? Can ye

obliterate from our memories those who are no more? Think not then to tamper with our feelings by an insidious contrivance, nor suffocate our humanity by seducing us to dishonor.

In March 1780, I published part of the Crisis, No. VIII., in the newspapers, but did not conclude it in the following papers, and the remainder has lain by me till the present day. There appeared about that time some disposition in the British cabinet to cease the further prosecution of the war, and as I had formed my opinion that whenever such a design should take place, it would be accompanied by a dishonorable proposition to America, respecting France, I had suppressed the remainder of that number, not to expose the baseness of any such proposition. But the arrival of the next news from England, declared her determination to go on with the war, and consequently as the political object I had then in view was not become a subject, it was unnecessary in me to bring it forward, which is the reason it was never published. The matter which I allude to in the unpublished part, I shall now make a quotation of, and apply it as the more enlarged state of things, at this day, shall make convenient or necessary. It was as follows:

"By the speeches which have appeared from the British Parliament, it is easy to perceive to what impolitic and imprudent excesses their passions and prejudices have, in every instance, carried them during the present war. Provoked at the upright and honorable treaty between America and France, they imagined that nothing more was necessary to be done to prevent its final ratification, than to promise, through the agency of their commissioners (Carlisle, Eden, and Johnstone) a repeal of their once offensive acts of Parliament. The vanity of the conceit, was as unpardonable as the experiment was impolitic. And so convinced am I of their wrong ideas of America, that I shall not wonder, if, in their last stage of political frenzy, they propose to her to break her alliance with France, and enter into one with them. Such a proposition, should it ever be made, and it has been already more than once hinted at in Parliament, would discover such a disposition to perfidiousness, and such disregard of honor and morals, as would add the finishing vice to national corruption.—I do not mention this to put America on the watch, but to put England on her guard, that she do not, in the looseness of her heart, envelop in disgrace every fragment of reputation."—Thus far the quotation.

By the completion of some part of the news which has transpired through the New York papers, it seems probable that this insidious era in the British politics is beginning to make its appearance. I wish it may not; for that which is a disgrace to human nature, throws something of a shade over all the human character, and each individual feels his share of the wound that is given to the whole. The policy of Britain has ever been to divide America in some way or other. In the beginning of the dispute, she practised every art to prevent or destroy the union of the states, well knowing that could she once get them to stand singly, she could conquer them unconditionally. Failing in this project in America, she renewed it in Europe; and, after the alliance had taken place, she made secret offers to France to induce her to give up America; and what is still more extraordinary, she at the same time made propositions to Dr. Franklin, then in Paris, the very court to which she was secretly applying, to draw off America from France. But this is not all. On the 14th of September, 1778, the British court, through their secretary, Lord Weymouth, made application to the Marquis d'Almadovar, the Spanish ambassador at London, to "ask the mediation," for these were the words, of the court of Spain, for the purpose of negotiating a peace with France, leaving America (as I shall hereafter show) out of the question. Spain readily offered her mediation, and likewise the city of Madrid as the place of conference, but withal, proposed, that the United States of America should be invited to the treaty, and considered as independent during the time the business was negotiating. But this was not the view of England. She wanted to draw France from the war, that she might uninterruptedly pour out all her force and fury upon America; and being disappointed in this plan, as well through the open and generous conduct of Spain, as the determination of France, she refused the mediation which she had solicited. I shall now give some extracts from the justifying memorial of the Spanish court, in which she has set the conduct and character of Britain, with respect to America, in a clear and striking point of light.

The memorial, speaking of the refusal of the British court to meet in conference with commissioners from the United States, who were to be considered as independent during the time of the conference, says,

"It is a thing very extraordinary and even ridiculous, that the court of London, who treats the colonies as independent, not only in acting, but of right, during the war, should have a repugnance to treat them as such only

in acting during a truce, or suspension of hostilities. The convention of Saratoga; the reputing General Burgoyne as a lawful prisoner, in order to suspend his trial; the exchange and liberation of other prisoners made from the colonies; the having named commissioners to go and supplicate the Americans, at their own doors, request peace of them, and treat with them and the Congress: and, finally, by a thousand other acts of this sort, authorized by the court of London, which have been, and are true signs of the acknowledgment of their independence.

"In aggravation of all the foregoing, at the same time the British cabinet answered the King of Spain in the terms already mentioned, they were insinuating themselves at the court of France by means of secret emissaries, and making very great offers to her, to abandon the colonies and make peace with England. But there is yet more; for at this same time the English ministry were treating, by means of another certain emissary, with Dr. Franklin, minister plenipotentiary from the colonies, residing at Paris, to whom they made various proposals to disunite them from France, and accommodate matters with England.

"From what has been observed, it evidently follows, that the whole of the British politics was, to disunite the two courts of Paris and Madrid, by means of the suggestions and offers which she separately made to them; and also to separate the colonies from their treaties and engagements entered into with France, and induce them to arm against the house of Bourbon, or more probably to oppress them when they found, from breaking their engagements, that they stood alone and without protection.

"This, therefore, is the net they laid for the American states; that is to say, to tempt them with flattering and very magnificent promises to come to an accommodation with them, exclusive of any intervention of Spain or France, that the British ministry might always remain the arbiters of the fate of the colonies. But the Catholic king (the King of Spain) faithful on the one part of the engagements which bind him to the Most Christian king (the King of France) his nephew; just and upright on the other, to his own subjects, whom he ought to protect and guard against so many insults; and finally, full of humanity and compassion for the Americans and other individuals who suffer in the present war; he is determined to pursue and prosecute it, and to make all the efforts in his power, until he can obtain a

solid and permanent peace, with full and satisfactory securities that it shall be observed."

Thus far the memorial; a translation of which into English, may be seen in full, under the head of State Papers, in the Annual Register, for 1779.

The extracts I have here given, serve to show the various endeavors and contrivances of the enemy, to draw France from her connection with America, and to prevail on her to make a separate peace with England, leaving America totally out of the question, and at the mercy of a merciless, unprincipled enemy. The opinion, likewise, which Spain has formed of the British cabinet's character for meanness and perfidiousness, is so exactly the opinion of America respecting it, that the memorial, in this instance, contains our own statements and language; for people, however remote, who think alike, will unavoidably speak alike.

Thus we see the insidious use which Britain endeavored to make of the propositions of peace under the mediation of Spain. I shall now proceed to the second proposition under the mediation of the Emperor of Germany and the Empress of Russia; the general outline of which was, that a congress of the several powers at war should meet at Vienna, in 1781, to settle preliminaries of peace. I could wish myself at liberty to make use of all the information which I am possessed of on this subject, but as there is a delicacy in the matter, I do not conceive it prudent, at least at present, to make references and quotations in the same manner as I have done with respect to the mediation of Spain, who published the whole proceedings herself; and therefore, what comes from me, on this part of the business, must rest on my own credit with the public, assuring them, that when the whole proceedings, relative to the proposed Congress of Vienna shall appear, they will find my account not only true, but studiously moderate.

We know at the time this mediation was on the carpet, the expectation of the British king and ministry ran high with respect to the conquest of America. The English packet which was taken with the mail on board, and carried into l'Orient, in France, contained letters from Lord G. Germaine to Sir Henry Clinton, which expressed in the fullest terms the ministerial idea of a total conquest. Copies of those letters were sent to congress and published in the newspapers of last year. Colonel [John] Laurens brought over the originals, some of which, signed in the handwriting of the then secretary, Germaine, are now in my possession.

Filled with these high ideas, nothing could be more insolent towards America than the language of the British court on the proposed mediation. A peace with France and Spain she anxiously solicited; but America, as before, was to be left to her mercy, neither would she hear any proposition for admitting an agent from the United States into the congress of Vienna.

On the other hand, France, with an open, noble and manly determination, and a fidelity of a good ally, would hear no proposition for a separate peace, nor even meet in congress at Vienna, without an agent from America: and likewise that the independent character of the United States, represented by the agent, should be fully and unequivocally defined and settled before any conference should be entered on. The reasoning of the court of France on the several propositions of the two imperial courts, which relate to us, is rather in the style of an American than an ally, and she advocated the cause of America as if she had been America herself.—Thus the second mediation, like the first, proved ineffectual. But since that time, a reverse of fortune has overtaken the British arms, and all their high expectations are dashed to the ground. The noble exertions to the southward under General [Nathaniel] Greene; the successful operations of the allied arms in the Chesapeake; the loss of most of their islands in the West Indies, and Minorca in the Mediterranean; the persevering spirit of Spain against Gibraltar; the expected capture of Jamaica; the failure of making a separate peace with Holland, and the expense of an hundred millions sterling, by which all these fine losses were obtained, have read them a loud lesson of disgraceful misfortune and necessity has called on them to change their ground.

In this situation of confusion and despair, their present councils have no fixed character. It is now the hurricane months of British politics. Every day seems to have a storm of its own, and they are scudding under the bare poles of hope. Beaten, but not humble; condemned, but not penitent; they act like men trembling at fate and catching at a straw. From this convulsion, in the entrails of their politics, it is more than probable, that the mountain groaning in labor, will bring forth a mouse, as to its size, and a monster in its make. They will try on America the same insidious arts they tried on France and Spain.

We sometimes experience sensations to which language is not equal. The conception is too bulky to be born alive, and in the torture of thinking, we

stand dumb. Our feelings, imprisoned by their magnitude, find no way out—and, in the struggle of expression, every finger tries to be a tongue. The machinery of the body seems too little for the mind, and we look about for helps to show our thoughts by. Such must be the sensation of America, whenever Britain, teeming with corruption, shall propose to her to sacrifice her faith.

But, exclusive of the wickedness, there is a personal offence contained in every such attempt. It is calling us villains: for no man asks the other to act the villain unless he believes him inclined to be one. No man attempts to seduce the truly honest woman. It is the supposed looseness of her mind that starts the thoughts of seduction, and he who offers it calls her a prostitute. Our pride is always hurt by the same propositions which offend our principles; for when we are shocked at the crime, we are wounded by the suspicion of our compliance.

Could I convey a thought that might serve to regulate the public mind, I would not make the interest of the alliance the basis of defending it. All the world are moved by interest, and it affords them nothing to boast of. But I would go a step higher, and defend it on the ground of honor and principle. That our public affairs have flourished under the alliance—that it was wisely made, and has been nobly executed—that by its assistance we are enabled to preserve our country from conquest, and expel those who sought our destruction—that it is our true interest to maintain it unimpaired, and that while we do so no enemy can conquer us, are matters which experience has taught us, and the common good of ourselves, abstracted from principles of faith and honor, would lead us to maintain the connection.

But over and above the mere letter of the alliance, we have been nobly and generously treated, and have had the same respect and attention paid to us, as if we had been an old established country. To oblige and be obliged is fair work among mankind, and we want an opportunity of showing to the world that we are a people sensible of kindness and worthy of confidence. Character is to us, in our present circumstances, of more importance than interest. We are a young nation, just stepping upon the stage of public life, and the eye of the world is upon us to see how we act. We have an enemy who is watching to destroy our reputation, and who will go any length to gain some evidence against us, that may serve to render our conduct suspected, and our character odious; because, could she accomplish this,

wicked as it is, the world would withdraw from us, as from a people not to be trusted, and our task would then become difficult. There is nothing which sets the character of a nation in a higher or lower light with others, than the faithfully fulfilling, or perfidiously breaking, of treaties. They are things not to be tampered with: and should Britain, which seems very probable, propose to seduce America into such an act of baseness, it would merit from her some mark of unusual detestation. It is one of those extraordinary instances in which we ought not to be contented with the bare negative of Congress, because it is an affront on the multitude as well as on the government. It goes on the supposition that the public are not honest men, and that they may be managed by contrivance, though they cannot be conquered by arms. But, let the world and Britain know, that we are neither to be bought nor sold; that our mind is great and fixed; our prospect clear; and that we will support our character as firmly as our independence.

But I will go still further; General Conway, who made the motion, in the British Parliament, for discontinuing offensive war in America, is a gentleman of an amiable character. We have no personal quarrel with him. But he feels not as we feel; he is not in our situation, and that alone, without any other explanation, is enough. The British Parliament suppose they have many friends in America, and that, when all chance of conquest is over, they will be able to draw her from her alliance with France. Now, if I have any conception of the human heart, they will fail in this more than in any thing that they have yet tried.

This part of the business is not a question of policy only, but of honor and honesty; and the proposition will have in it something so visibly low and base, that their partisans, if they have any, will be ashamed of it. Men are often hurt by a mean action who are not startled at a wicked one, and this will be such a confession of inability, such a declaration of servile thinking, that the scandal of it will ruin all their hopes.

In short, we have nothing to do but to go on with vigor and determination. The enemy is yet in our country. They hold New York, Charleston, and Savannah, and the very being in those places is an offence, and a part of offensive war, and until they can be driven from them, or captured in them, it would be folly in us to listen to an idle tale. I take it for granted that the British ministry are sinking under the impossibility of carrying on the war. Let them then come to a fair and open peace with

France, Spain, Holland and America, in the manner they ought to do; but until then, we can have nothing to say to them.

COMMON SENSE.

PHILADELPHIA, May 22, 1782.

A SUPERNUMERARY CRISIS

TO SIR GUY CARLETON.

IT is the nature of compassion to associate with misfortune; and I address this to you in behalf even of an enemy, a captain in the British service, now on his way to the headquarters of the American army, and unfortunately doomed to death for a crime not his own. A sentence so extraordinary, an execution so repugnant to every human sensation, ought never to be told without the circumstances which produced it: and as the destined victim is yet in existence, and in your hands rests his life or death, I shall briefly state the case, and the melancholy consequence.

Captain Huddy, of the Jersey militia, was attacked in a small fort on Tom's River, by a party of refugees in the British pay and service, was made prisoner, together with his company, carried to New York and lodged in the provost of that city: about three weeks after which, he was taken out of the provost down to the water-side, put into a boat, and brought again upon the Jersey shore, and there, contrary to the practice of all nations but savages, was hung up on a tree, and left hanging till found by our people who took him down and buried him. The inhabitants of that part of the country where the murder was committed, sent a deputation to General Washington with a full and certified statement of the fact. Struck, as every human breast must be, with such brutish outrage, and determined both to punish and prevent it for the future, the General represented the case to General Clinton, who then commanded, and demanded that the refugee officer who ordered and attended the execution, and whose name is Lippencott, should be delivered up as a murderer; and in case of refusal, that the person of some British officer should suffer in his stead. The demand, though not refused, has not been complied with; and the melancholy lot (not by selection, but by casting lots) has fallen upon Captain Asgill, of the Guards, who, as I have already mentioned, is on his way from Lancaster to camp, a martyr to the

general wickedness of the cause he engaged in, and the ingratitude of those whom he served.

The first reflection which arises on this black business is, what sort of men must Englishmen be, and what sort of order and discipline do they preserve in their army, when in the immediate place of their headquarters, and under the eye and nose of their commander-in-chief, a prisoner can be taken at pleasure from his confinement, and his death made a matter of sport.

The history of the most savage Indians does not produce instances exactly of this kind. They, at least, have a formality in their punishments. With them it is the horridness of revenge, but with your army it is a still greater crime, the horridness of diversion. The British generals who have succeeded each other, from the time of General Gage to yourself, have all affected to speak in language that they have no right to. In their proclamations, their addresses, their letters to General Washington, and their supplications to Congress (for they deserve no other name) they talk of British honor, British generosity, and British clemency, as if those things were matters of fact; whereas, we whose eyes are open, who speak the same language with yourselves, many of whom were born on the same spot with you, and who can no more be mistaken in your words than in your actions, can declare to all the world, that so far as our knowledge goes, there is not a more detestable character, nor a meaner or more barbarous enemy, than the present British one. With us, you have forfeited all pretensions to reputation, and it is only by holding you like a wild beast, afraid of your keepers, that you can be made manageable. But to return to the point in question.

Though I can think no man innocent who has lent his hand to destroy the country which he did not plant, and to ruin those that he could not enslave, yet, abstracted from all ideas of right and wrong on the original question, Captain Asgill, in the present case, is not the guilty man. The villain and the victim are here separated characters. You hold the one and we the other. You disown, or affect to disown and reprobate the conduct of Lippincut, yet you give him a sanctuary; and by so doing you as effectually become the executioner of Asgill, as if you had put the rope on his neck, and dismissed him from the world. Whatever your feelings on this interesting occasion may be are best known to yourself. Within the grave of your own mind lies

buried the fate of Asgill. He becomes the corpse of your will, or the survivor of your justice. Deliver up the one, and you save the other; withhold the one, and the other dies by your choice.

On our part the case is exceeding plain; an officer has been taken from his confinement and murdered, and the murderer is within your lines. Your army has been guilty of a thousand instances of equal cruelty, but they have been rendered equivocal, and sheltered from personal detection. Here the crime is fixed; and is one of those extraordinary cases which can neither be denied nor palliated, and to which the custom of war does not apply; for it never could be supposed that such a brutal outrage would ever be committed. It is an original in the history of civilized barbarians, and is truly British. On your part you are accountable to us for the personal safety of the prisoners within your walls. Here can be no mistake; they can neither be spies nor suspected as such; your security is not endangered, nor your operations subjected to miscarriage, by men immured within a dungeon. They differ in every circumstance from men in the field, and leave no pretence for severity of punishment. But if to the dismal condition of captivity with you must be added the constant apprehensions of death; if to be imprisoned is so nearly to be entombed; and if, after all, the murderers are to be protected, and thereby the crime encouraged, wherein do you differ from [American] Indians either in conduct or character?

We can have no idea of your honor, or your justice, in any future transaction, of what nature it may be, while you shelter within your lines an outrageous murderer, and sacrifice in his stead an officer of your own. If you have no regard to us, at least spare the blood which it is your duty to save. Whether the punishment will be greater on him, who, in this case, innocently dies, or on him whom sad necessity forces to retaliate, is, in the nicety of sensation, an undecided question? It rests with you to prevent the sufferings of both. You have nothing to do but to give up the murderer, and the matter ends.

But to protect him, be he who he may, is to patronize his crime, and to trifle it off by frivolous and unmeaning inquiries, is to promote it. There is no declaration you can make, nor promise you can give that will obtain credit. It is the man and not the apology that is demanded.

You see yourself pressed on all sides to spare the life of your own officer, for die he will if you withhold justice. The murder of Captain Huddy is an

offence not to be borne with, and there is no security which we can have, that such actions or similar ones shall not be repeated, but by making the punishment fall upon yourselves. To destroy the last security of captivity, and to take the unarmed, the unresisting prisoner to private and sportive execution, is carrying barbarity too high for silence. The evil must be put an end to; and the choice of persons rests with you. But if your attachment to the guilty is stronger than to the innocent, you invent a crime that must destroy your character, and if the cause of your king needs to be so supported, for ever cease, sir, to torture our remembrance with the wretched phrases of British honor, British generosity and British clemency.

From this melancholy circumstance, learn, sir, a lesson of morality. The refugees are men whom your predecessors have instructed in wickedness, the better to fit them to their master's purpose. To make them useful, they have made them vile, and the consequence of their tutored villany is now descending on the heads of their encouragers. They have been trained like hounds to the scent of blood, and cherished in every species of dissolute barbarity. Their ideas of right and wrong are worn away in the constant habitude of repeated infamy, till, like men practised in execution, they feel not the value of another's life.

The task before you, though painful, is not difficult; give up the murderer, and save your officer, as the first outset of a necessary reformation. COMMON SENSE.

PHILADELPHIA May 31, 1782.

THE CRISIS. XII. TO THE EARL OF SHELBURNE.

MY LORD,—A speech, which has been printed in several of the British and New York newspapers, as coming from your lordship, in answer to one from the Duke of Richmond, of the 10th of July last, contains expressions and opinions so new and singular, and so enveloped in mysterious reasoning, that I address this publication to you, for the purpose of giving them a free and candid examination. The speech I allude to is in these words:

"His lordship said, it had been mentioned in another place, that he had been guilty of inconsistency. To clear himself of this, he asserted that he still held the same principles in respect to American independence which he at first imbibed. He had been, and yet was of opinion, whenever the Parliament of Great Britain acknowledges that point, the sun of England's glory is set forever. Such were the sentiments he possessed on a former day, and such the sentiments he continued to hold at this hour. It was the opinion of Lord Chatham, as well as many other able statesmen. Other noble lords, however, think differently, and as the majority of the cabinet support them, he acquiesced in the measure, dissenting from the idea; and the point is settled for bringing the matter into the full discussion of Parliament, where it will be candidly, fairly, and impartially debated. The independence of America would end in the ruin of England; and that a peace patched up with France, would give that proud enemy the means of yet trampling on this country. The sun of England's glory he wished not to see set forever; he looked for a spark at least to be left, which might in time light us up to a new day. But if independence was to be granted, if Parliament deemed that measure prudent, he foresaw, in his own mind, that England was undone. He wished to God that he had been deputed to Congress, that he might plead the cause of that country as well as of this, and that he might exercise whatever powers he possessed as an orator, to save both from ruin, in a conviction to Congress, that, if their independence was signed, their liberties were gone forever.

"Peace, his lordship added, was a desirable object, but it must be an honorable peace, and not an humiliating one, dictated by France, or insisted on by America. It was very true, that this kingdom was not in a flourishing state, it was impoverished by war. But if we were not rich, it was evident that France was poor. If we were straitened in our finances, the enemy were exhausted in their resources. This was a great empire; it abounded with brave men, who were able and willing to fight in a common cause; the language of humiliation should not, therefore, be the language of Great Britain. His lordship said, that he was not afraid nor ashamed of those expressions going to America. There were numbers, great numbers there, who were of the same way of thinking, in respect to that country being dependent on this, and who, with his lordship, perceived ruin and independence Blinked together."

Thus far the speech; on which I remark—That his lordship is a total stranger to the mind and sentiments of America; that he has wrapped himself up in fond delusion, that something less than independence, may, under his administration, be accepted; and he wishes himself sent to Congress, to prove the most extraordinary of all doctrines, which is, that independence, the sublimest of all human conditions, is loss of liberty.

In answer to which we may say, that in order to know what the contrary word dependence means, we have only to look back to those years of severe humiliation, when the mildest of all petitions could obtain no other notice than the haughtiest of all insults; and when the base terms of unconditional submission were demanded, or undistinguishable destruction threatened. It is nothing to us that the ministry have been changed, for they may be changed again. The guilt of a government is the crime of a whole country; and the nation that can, though but for a moment, think and act as England has done, can never afterwards be believed or trusted. There are cases in which it is as impossible to restore character to life, as it is to recover the dead. It is a phoenix that can expire but once, and from whose ashes there is no resurrection. Some offences are of such a slight composition, that they reach no further than the temper, and are created or cured by a thought. But the sin of England has struck the heart of America, and nature has not left in our power to say we can forgive.

Your lordship wishes for an opportunity to plead before Congress the cause of England and America, and to save, as you say, both from ruin.

That the country, which, for more than seven years has sought our destruction, should now cringe to solicit our protection, is adding the wretchedness of disgrace to the misery of disappointment; and if England has the least spark of supposed honor left, that spark must be darkened by asking, and extinguished by receiving, the smallest favor from America; for the criminal who owes his life to the grace and mercy of the injured, is more executed by living, than he who dies.

But a thousand pleadings, even from your lordship, can have no effect. Honor, interest, and every sensation of the heart, would plead against you. We are a people who think not as you think; and what is equally true, you cannot feel as we feel. The situations of the two countries are exceedingly different. Ours has been the seat of war; yours has seen nothing of it. The most wanton destruction has been committed in our sight; the most insolent barbarity has been acted on our feelings. We can look round and see the remains of burnt and destroyed houses, once the fair fruit of hard industry, and now the striking monuments of British brutality. We walk over the dead whom we loved, in every part of America, and remember by whom they fell. There is scarcely a village but brings to life some melancholy thought, and reminds us of what we have suffered, and of those we have lost by the inhumanity of Britain. A thousand images arise to us, which, from situation, you cannot see, and are accompanied by as many ideas which you cannot know; and therefore your supposed system of reasoning would apply to nothing, and all your expectations die of themselves.

The question whether England shall accede to the independence of America, and which your lordship says is to undergo a parliamentary discussion, is so very simple, and composed of so few cases, that it scarcely needs a debate.

It is the only way out of an expensive and ruinous war, which has no object, and without which acknowledgment there can be no peace.

But your lordship says, the sun of Great Britain will set whenever she acknowledges the independence of America.—Whereas the metaphor would have been strictly just, to have left the sun wholly out of the figure, and have ascribed her not acknowledging it to the influence of the moon.

But the expression, if true, is the greatest confession of disgrace that could be made, and furnishes America with the highest notions of sovereign independent importance. Mr. Wedderburne, about the year 1776, made use

of an idea of much the same kind,—Relinquish America! says he—What is it but to desire a giant to shrink spontaneously into a dwarf.

Alas! are those people who call themselves Englishmen, of so little internal consequence, that when America is gone, or shuts her eyes upon them, their sun is set, they can shine no more, but grope about in obscurity, and contract into insignificant animals? Was America, then, the giant of the empire, and England only her dwarf in waiting! Is the case so strangely altered, that those who once thought we could not live without them, are now brought to declare that they cannot exist without us? Will they tell to the world, and that from their first minister of state, that America is their all in all; that it is by her importance only that they can live, and breathe, and have a being? Will they, who long since threatened to bring us to their feet, bow themselves to ours, and own that without us they are not a nation? Are they become so unqualified to debate on independence, that they have lost all idea of it themselves, and are calling to the rocks and mountains of America to cover their insignificance? Or, if America is lost, is it manly to sob over it like a child for its rattle, and invite the laughter of the world by declarations of disgrace? Surely, a more consistent line of conduct would be to bear it without complaint; and to show that England, without America, can preserve her independence, and a suitable rank with other European powers. You were not contented while you had her, and to weep for her now is childish.

But Lord Shelburne thinks something may yet be done. What that something is, or how it is to be accomplished, is a matter in obscurity. By arms there is no hope. The experience of nearly eight years, with the expense of an hundred million pounds sterling, and the loss of two armies, must positively decide that point. Besides, the British have lost their interest in America with the disaffected. Every part of it has been tried. There is no new scene left for delusion: and the thousands who have been ruined by adhering to them, and have now to quit the settlements which they had acquired, and be conveyed like transports to cultivate the deserts of Augustine and Nova Scotia, has put an end to all further expectations of aid.

If you cast your eyes on the people of England, what have they to console themselves with for the millions expended? Or, what encouragement is there left to continue throwing good money after bad? America can carry on the war for ten years longer, and all the charges of government included, for

less than you can defray the charges of war and government for one year. And I, who know both countries, know well, that the people of America can afford to pay their share of the expense much better than the people of England can. Besides, it is their own estates and property, their own rights, liberties and government, that they are defending; and were they not to do it, they would deserve to lose all, and none would pity them. The fault would be their own, and their punishment just.

The British army in America care not how long the war lasts. They enjoy an easy and indolent life. They fatten on the folly of one country and the spoils of another; and, between their plunder and their prey, may go home rich. But the case is very different with the laboring farmer, the working tradesman, and the necessitous poor in England, the sweat of whose brow goes day after day to feed, in prodigality and sloth, the army that is robbing both them and us. Removed from the eye of that country that supports them, and distant from the government that employs them, they cut and carve for themselves, and there is none to call them to account.

But England will be ruined, says Lord Shelburne, if America is independent.

Then I say, is England already ruined, for America is already independent: and if Lord Shelburne will not allow this, he immediately denies the fact which he infers. Besides, to make England the mere creature of America, is paying too great a compliment to us, and too little to himself.

But the declaration is a rhapsody of inconsistency. For to say, as Lord Shelburne has numberless times said, that the war against America is ruinous, and yet to continue the prosecution of that ruinous war for the purpose of avoiding ruin, is a language which cannot be understood. Neither is it possible to see how the independence of America is to accomplish the ruin of England after the war is over, and yet not affect it before. America cannot be more independent of her, nor a greater enemy to her, hereafter than she now is; nor can England derive less advantages from her than at present: why then is ruin to follow in the best state of the case, and not in the worst? And if not in the worst, why is it to follow at all?

That a nation is to be ruined by peace and commerce, and fourteen or fifteen millions a-year less expenses than before, is a new doctrine in politics. We have heard much clamor of national savings and economy; but surely the true economy would be, to save the whole charge of a silly,

foolish, and headstrong war; because, compared with this, all other retrenchments are baubles and trifles.

But is it possible that Lord Shelburne can be serious in supposing that the least advantage can be obtained by arms, or that any advantage can be equal to the expense or the danger of attempting it? Will not the capture of one army after another satisfy him, must all become prisoners? Must England ever be the sport of hope, and the victim of delusion? Sometimes our currency was to fail; another time our army was to disband; then whole provinces were to revolt. Such a general said this and that; another wrote so and so; Lord Chatham was of this opinion; and lord somebody else of another. To-day 20,000 Russians and 20 Russian ships of the line were to come; to-morrow the empress was abused without mercy or decency. Then the Emperor of Germany was to be bribed with a million of money, and the King of Prussia was to do wonderful things. At one time it was, Lo here! and then it was, Lo there! Sometimes this power, and sometimes that power, was to engage in the war, just as if the whole world was mad and foolish like Britain. And thus, from year to year, has every straw been caught at, and every Will-with-a-wisp led them a new dance.

This year a still newer folly is to take place. Lord Shelburne wishes to be sent to Congress, and he thinks that something may be done.

Are not the repeated declarations of Congress, and which all America supports, that they will not even hear any proposals whatever, until the unconditional and unequivocal independence of America is recognised; are not, I say, these declarations answer enough?

But for England to receive any thing from America now, after so many insults, injuries and outrages, acted towards us, would show such a spirit of meanness in her, that we could not but despise her for accepting it. And so far from Lord Shelburne's coming here to solicit it, it would be the greatest disgrace we could do them to offer it. England would appear a wretch indeed, at this time of day, to ask or owe any thing to the bounty of America. Has not the name of Englishman blots enough upon it, without inventing more? Even Lucifer would scorn to reign in heaven by permission, and yet an Englishman can creep for only an entrance into America. Or, has a land of liberty so many charms, that to be a doorkeeper in it is better than to be an English minister of state?

But what can this expected something be? Or, if obtained, what can it amount to, but new disgraces, contentions and quarrels? The people of America have for years accustomed themselves to think and speak so freely and contemptuously of English authority, and the inveteracy is so deeply rooted, that a person invested with any authority from that country, and attempting to exercise it here, would have the life of a toad under a harrow. They would look on him as an interloper, to whom their compassion permitted a residence. He would be no more than the Mungo of a farce; and if he disliked that, he must set off. It would be a station of degradation, debased by our pity, and despised by our pride, and would place England in a more contemptible situation than any she has yet been in during the war. We have too high an opinion of ourselves, even to think of yielding again the least obedience to outlandish authority; and for a thousand reasons, England would be the last country in the world to yield it to. She has been treacherous, and we know it. Her character is gone, and we have seen the funeral.

Surely she loves to fish in troubled waters, and drink the cup of contention, or she would not now think of mingling her affairs with those of America. It would be like a foolish dotard taking to his arms the bride that despises him, or who has placed on his head the ensigns of her disgust. It is kissing the hand that boxes his ears, and proposing to renew the exchange. The thought is as servile as the war is wicked, and shows the last scene of the drama to be as inconsistent as the first.

As America is gone, the only act of manhood is to let her go. Your lordship had no hand in the separation, and you will gain no honor by temporising politics. Besides, there is something so exceedingly whimsical, unsteady, and even insincere in the present conduct of England, that she exhibits herself in the most dishonorable colors. On the second of August last, General Carleton and Admiral Digby wrote to General Washington in these words:

"The resolution of the House of Commons, of the 27th of February last, has been placed in Your Excellency's hands, and intimations given at the same time that further pacific measures were likely to follow. Since which, until the present time, we have had no direct communications with England; but a mail is now arrived, which brings us very important information. We are acquainted, sir, by authority, that negotiations for a general peace have

already commenced at Paris, and that Mr. Grenville is invested with full powers to treat with all the parties at war, and is now at Paris in execution of his commission. And we are further, sir, made acquainted, that His Majesty, in order to remove any obstacles to this peace which he so ardently wishes to restore, has commanded his ministers to direct Mr. Grenville, that the independence of the Thirteen United Provinces, should be proposed by him in the first instance, instead of making it a condition of a general treaty."

Now, taking your present measures into view, and comparing them with the declaration in this letter, pray what is the word of your king, or his ministers, or the Parliament, good for? Must we not look upon you as a confederated body of faithless, treacherous men, whose assurances are fraud, and their language deceit? What opinion can we possibly form of you, but that you are a lost, abandoned, profligate nation, who sport even with your own character, and are to be held by nothing but the bayonet or the halter?

To say, after this, that the sun of Great Britain will be set whenever she acknowledges the independence of America, when the not doing it is the unqualified lie of government, can be no other than the language of ridicule, the jargon of inconsistency. There were thousands in America who predicted the delusion, and looked upon it as a trick of treachery, to take us from our guard, and draw off our attention from the only system of finance, by which we can be called, or deserve to be called, a sovereign, independent people. The fraud, on your part, might be worth attempting, but the sacrifice to obtain it is too high.

There are others who credited the assurance, because they thought it impossible that men who had their characters to establish, would begin with a lie. The prosecution of the war by the former ministry was savage and horrid; since which it has been mean, trickish, and delusive. The one went greedily into the passion of revenge, the other into the subtleties of low contrivance; till, between the crimes of both, there is scarcely left a man in America, be he Whig or Tory, who does not despise or detest the conduct of Britain.

The management of Lord Shelburne, whatever may be his views, is a caution to us, and must be to the world, never to regard British assurances. A perfidy so notorious cannot be hid. It stands even in the public papers of

New York, with the names of Carleton and Digby affixed to it. It is a proclamation that the king of England is not to be believed; that the spirit of lying is the governing principle of the ministry. It is holding up the character of the House of Commons to public infamy, and warning all men not to credit them. Such are the consequences which Lord Shelburne's management has brought upon his country.

After the authorized declarations contained in Carleton and Digby's letter, you ought, from every motive of honor, policy and prudence, to have fulfilled them, whatever might have been the event. It was the least atonement that you could possibly make to America, and the greatest kindness you could do to yourselves; for you will save millions by a general peace, and you will lose as many by continuing the war.

COMMON SENSE.

PHILADELPHIA, Oct. 29, 1782.

P. S. The manuscript copy of this letter is sent your lordship, by the way of our head-quarters, to New York, inclosing a late pamphlet of mine, addressed to the Abbe Raynal, which will serve to give your lordship some idea of the principles and sentiments of America.

C. S.

THE CRISIS. XIII. THOUGHTS ON THE PEACE, AND PROBABLE ADVANTAGES

THEREOF.

"THE times that tried men's souls,"* are over—and the greatest and completest revolution the world ever knew, gloriously and happily accomplished.

* "These are the times that try men's souls," *The Crisis* No. I.
published December, 1776.

But to pass from the extremes of danger to safety—from the tumult of war to the tranquillity of peace, though sweet in contemplation, requires a gradual composure of the senses to receive it. Even calmness has the power of stunning, when it opens too instantly upon us. The long and raging hurricane that should cease in a moment, would leave us in a state rather of wonder than enjoyment; and some moments of recollection must pass, before we could be capable of tasting the felicity of repose. There are but few instances, in which the mind is fitted for sudden transitions: it takes in its pleasures by reflection and comparison and those must have time to act, before the relish for new scenes is complete.

In the present case—the mighty magnitude of the object—the various uncertainties of fate it has undergone—the numerous and complicated dangers we have suffered or escaped—the eminence we now stand on, and the vast prospect before us, must all conspire to impress us with contemplation.

To see it in our power to make a world happy—to teach mankind the art of being so—to exhibit, on the theatre of the universe a character hitherto unknown—and to have, as it were, a new creation intrusted to our hands, are honors that command reflection, and can neither be too highly estimated, nor too gratefully received.

In this pause then of recollection—while the storm is ceasing, and the long agitated mind vibrating to a rest, let us look back on the scenes we have passed, and learn from experience what is yet to be done.

Never, I say, had a country so many openings to happiness as this. Her setting out in life, like the rising of a fair morning, was unclouded and promising. Her cause was good. Her principles just and liberal. Her temper serene and firm. Her conduct regulated by the nicest steps, and everything about her wore the mark of honor. It is not every country (perhaps there is not another in the world) that can boast so fair an origin. Even the first settlement of America corresponds with the character of the revolution. Rome, once the proud mistress of the universe, was originally a band of ruffians. Plunder and rapine made her rich, and her oppression of millions made her great. But America need never be ashamed to tell her birth, nor relate the stages by which she rose to empire.

The remembrance, then, of what is past, if it operates rightly, must inspire her with the most laudable of all ambition, that of adding to the fair fame she began with. The world has seen her great in adversity; struggling, without a thought of yielding, beneath accumulated difficulties, bravely, nay proudly, encountering distress, and rising in resolution as the storm increased. All this is justly due to her, for her fortitude has merited the character. Let, then, the world see that she can bear prosperity: and that her honest virtue in time of peace, is equal to the bravest virtue in time of war.

She is now descending to the scenes of quiet and domestic life. Not beneath the cypress shade of disappointment, but to enjoy in her own land, and under her own vine, the sweet of her labors, and the reward of her toil. —In this situation, may she never forget that a fair national reputation is of as much importance as independence. That it possesses a charm that wins upon the world, and makes even enemies civil. That it gives a dignity which is often superior to power, and commands reverence where pomp and splendor fail.

It would be a circumstance ever to be lamented and never to be forgotten, were a single blot, from any cause whatever, suffered to fall on a revolution, which to the end of time must be an honor to the age that accomplished it: and which has contributed more to enlighten the world, and diffuse a spirit of freedom and liberality among mankind, than any human event (if this may be called one) that ever preceded it.

It is not among the least of the calamities of a long continued war, that it unhinges the mind from those nice sensations which at other times appear so amiable. The continual spectacle of woe blunts the finer feelings, and the

necessity of bearing with the sight, renders it familiar. In like manner, are many of the moral obligations of society weakened, till the custom of acting by necessity becomes an apology, where it is truly a crime. Yet let but a nation conceive rightly of its character, and it will be chastely just in protecting it. None ever began with a fairer than America and none can be under a greater obligation to preserve it.

The debt which America has contracted, compared with the cause she has gained, and the advantages to flow from it, ought scarcely to be mentioned. She has it in her choice to do, and to live as happily as she pleases. The world is in her hands. She has no foreign power to monopolize her commerce, perplex her legislation, or control her prosperity. The struggle is over, which must one day have happened, and, perhaps, never could have happened at a better time.* And instead of a domineering master, she has gained an ally whose exemplary greatness, and universal liberality, have extorted a confession even from her enemies.

** That the revolution began at the exact period of time best fitted to the purpose, is sufficiently proved by the event.—But the great hinge on which the whole machine turned, is the Union of the States: and this union was naturally produced by the inability of any one state to support itself against any foreign enemy without the assistance of the rest. Had the states severally been less able than they were when the war began, their united strength would not have been equal to the undertaking, and they must in all human probability have failed.—And, on the other hand, had they severally been more able, they might not have seen, or, what is more, might not have felt, the necessity of uniting: and, either by attempting to stand alone or in small confederacies, would have been separately conquered. Now, as we cannot see a time (and many years must pass away before it can arrive) when the strength of any one state, or several united, can be equal to the whole of the present United States, and as we have seen the extreme difficulty of collectively prosecuting the war to a successful issue, and preserving our national importance in the world, therefore, from the experience we have had, and the knowledge we have gained, we must, unless we make a waste of wisdom, be strongly impressed with the advantage, as well as the necessity of strengthening that happy union which had been our salvation, and without which we should have been a ruined people. While I was writing this note, I cast my eye on the pamphlet, Common Sense, from which I shall make an extract, as it exactly applies to the case. It is as follows: "I have never met with a man, either in England or America, who has not confessed it as his opinion that a separation between the countries would take place one time or other; and there is no instance in which we have shown less judgment, than in endeavoring to describe what we call the ripeness or fitness of the continent for independence. As all men allow the measure, and differ only in their opinion of the time, let us, in order to remove mistakes, take a general survey of things, and endeavor, if possible, to find out the very time. But we need not to go far, the inquiry ceases at once, for, the time has found us. The general concurrence, the glorious union of all things prove the fact. It is not*

in numbers, but in a union, that our great strength lies. The continent is just arrived at that pitch of strength, in which no single colony is able to support itself, and the whole, when united, can accomplish the matter; and either more or less than this, might be fatal in its effects."

With the blessings of peace, independence, and an universal commerce, the states, individually and collectively, will have leisure and opportunity to regulate and establish their domestic concerns, and to put it beyond the power of calumny to throw the least reflection on their honor. Character is much easier kept than recovered, and that man, if any such there be, who, from sinister views, or littleness of soul, lends unseen his hand to injure it, contrives a wound it will never be in his power to heal.

As we have established an inheritance for posterity, let that inheritance descend, with every mark of an honorable conveyance. The little it will cost, compared with the worth of the states, the greatness of the object, and the value of the national character, will be a profitable exchange.

But that which must more forcibly strike a thoughtful, penetrating mind, and which includes and renders easy all inferior concerns, is the UNION OF THE STATES. On this our great national character depends. It is this which must give us importance abroad and security at home. It is through this only that we are, or can be, nationally known in the world; it is the flag of the United States which renders our ships and commerce safe on the seas, or in a foreign port. Our Mediterranean passes must be obtained under the same style. All our treaties, whether of alliance, peace, or commerce, are formed under the sovereignty of the United States, and Europe knows us by no other name or title.

The division of the empire into states is for our own convenience, but abroad this distinction ceases. The affairs of each state are local. They can go no further than to itself. And were the whole worth of even the richest of them expended in revenue, it would not be sufficient to support sovereignty against a foreign attack. In short, we have no other national sovereignty than as United States. It would even be fatal for us if we had—too expensive to be maintained, and impossible to be supported. Individuals, or individual states, may call themselves what they please; but the world, and especially the world of enemies, is not to be held in awe by the whistling of a name. Sovereignty must have power to protect all the parts that compose and constitute it: and as UNITED STATES we are equal to the importance of the title, but otherwise we are not. Our union, well and wisely regulated

and cemented, is the cheapest way of being great—the easiest way of being powerful, and the happiest invention in government which the circumstances of America can admit of.—Because it collects from each state, that which, by being inadequate, can be of no use to it, and forms an aggregate that serves for all.

The states of Holland are an unfortunate instance of the effects of individual sovereignty. Their disjointed condition exposes them to numerous intrigues, losses, calamities, and enemies; and the almost impossibility of bringing their measures to a decision, and that decision into execution, is to them, and would be to us, a source of endless misfortune.

It is with confederated states as with individuals in society; something must be yielded up to make the whole secure. In this view of things we gain by what we give, and draw an annual interest greater than the capital.—I ever feel myself hurt when I hear the union, that great palladium of our liberty and safety, the least irreverently spoken of. It is the most sacred thing in the constitution of America, and that which every man should be most proud and tender of. Our citizenship in the United States is our national character. Our citizenship in any particular state is only our local distinction. By the latter we are known at home, by the former to the world. Our great title is AMERICANS—our inferior one varies with the place.

So far as my endeavors could go, they have all been directed to conciliate the affections, unite the interests, and draw and keep the mind of the country together; and the better to assist in this foundation work of the revolution, I have avoided all places of profit or office, either in the state I live in, or in the United States; kept myself at a distance from all parties and party connections, and even disregarded all private and inferior concerns: and when we take into view the great work which we have gone through, and feel, as we ought to feel, the just importance of it, we shall then see, that the little wranglings and indecent contentions of personal parley, are as dishonorable to our characters, as they are injurious to our repose.

It was the cause of America that made me an author. The force with which it struck my mind and the dangerous condition the country appeared to me in, by courting an impossible and an unnatural reconciliation with those who were determined to reduce her, instead of striking out into the only line that could cement and save her, A DECLARATION OF INDEPENDENCE, made it impossible for me, feeling as I did, to be silent:

and if, in the course of more than seven years, I have rendered her any service, I have likewise added something to the reputation of literature, by freely and disinterestedly employing it in the great cause of mankind, and showing that there may be genius without prostitution.

Independence always appeared to me practicable and probable, provided the sentiment of the country could be formed and held to the object: and there is no instance in the world, where a people so extended, and wedded to former habits of thinking, and under such a variety of circumstances, were so instantly and effectually pervaded, by a turn in politics, as in the case of independence; and who supported their opinion, undiminished, through such a succession of good and ill fortune, till they crowned it with success.

But as the scenes of war are closed, and every man preparing for home and happier times, I therefore take my leave of the subject. I have most sincerely followed it from beginning to end, and through all its turns and windings: and whatever country I may hereafter be in, I shall always feel an honest pride at the part I have taken and acted, and a gratitude to nature and providence for putting it in my power to be of some use to mankind.

COMMON SENSE.

PHILADELPHIA, April 19, 1783.

A SUPERNUMERARY CRISIS: TO THE PEOPLE OF AMERICA.

IN "*Rivington's New York Gazette*," of December 6th, is a publication, under the appearance of a letter from London, dated September 30th; and is on a subject which demands the attention of the United States.

The public will remember that a treaty of commerce between the United States and England was set on foot last spring, and that until the said treaty could be completed, a bill was brought into the British Parliament by the then chancellor of the exchequer, Mr. Pitt, to admit and legalize (as the case then required) the commerce of the United States into the British ports and dominions. But neither the one nor the other has been completed. The commercial treaty is either broken off, or remains as it began; and the bill in Parliament has been thrown aside. And in lieu thereof, a selfish system of English politics has started up, calculated to fetter the commerce of America, by engrossing to England the carrying trade of the American produce to the West India islands.

Among the advocates for this last measure is Lord Sheffield, a member of the British Parliament, who has published a pamphlet entitled "*Observations on the Commerce of the American States*." The pamphlet has two objects; the one is to allure the Americans to purchase British manufactures; and the other to spirit up the British Parliament to prohibit the citizens of the United States from trading to the West India islands.

Viewed in this light, the pamphlet, though in some parts dexterously written, is an absurdity. It offends, in the very act of endeavoring to ingratiate; and his lordship, as a politician, ought not to have suffered the two objects to have appeared together. The latter alluded to, contains extracts from the pamphlet, with high encomiums on Lord Sheffield, for laboriously endeavoring (as the letter styles it) "to show the mighty advantages of retaining the carrying trade."

Since the publication of this pamphlet in England, the commerce of the United States to the West Indies, in American vessels, has been prohibited;

and all intercourse, except in British bottoms, the property of and navigated by British subjects, cut off.

That a country has a right to be as foolish as it pleases, has been proved by the practice of England for many years past: in her island situation, sequestered from the world, she forgets that her whispers are heard by other nations; and in her plans of politics and commerce she seems not to know, that other votes are necessary besides her own. America would be equally as foolish as Britain, were she to suffer so great a degradation on her flag, and such a stroke on the freedom of her commerce, to pass without a balance.

We admit the right of any nation to prohibit the commerce of another into its own dominions, where there are no treaties to the contrary; but as this right belongs to one side as well as the other, there is always a way left to bring avarice and insolence to reason.

But the ground of security which Lord Sheffield has chosen to erect his policy upon, is of a nature which ought, and I think must, awaken in every American a just and strong sense of national dignity. Lord Sheffield appears to be sensible, that in advising the British nation and Parliament to engross to themselves so great a part of the carrying trade of America, he is attempting a measure which cannot succeed, if the politics of the United States be properly directed to counteract the assumption.

But, says he, in his pamphlet, "It will be a long time before the American states can be brought to act as a nation, neither are they to be feared as such by us."

What is this more or less than to tell us, that while we have no national system of commerce, the British will govern our trade by their own laws and proclamations as they please. The quotation discloses a truth too serious to be overlooked, and too mischievous not to be remedied.

Among other circumstances which led them to this discovery none could operate so effectually as the injudicious, uncandid and indecent opposition made by sundry persons in a certain state, to the recommendations of Congress last winter, for an import duty of five per cent. It could not but explain to the British a weakness in the national power of America, and encourage them to attempt restrictions on her trade, which otherwise they would not have dared to hazard. Neither is there any state in the union, whose policy was more misdirected to its interest than the state I allude to,

because her principal support is the carrying trade, which Britain, induced by the want of a well-centred power in the United States to protect and secure, is now attempting to take away. It fortunately happened (and to no state in the union more than the state in question) that the terms of peace were agreed on before the opposition appeared, otherwise, there cannot be a doubt, that if the same idea of the diminished authority of America had occurred to them at that time as has occurred to them since, but they would have made the same grasp at the fisheries, as they have done at the carrying trade.

It is surprising that an authority which can be supported with so much ease, and so little expense, and capable of such extensive advantages to the country, should be cavilled at by those whose duty it is to watch over it, and whose existence as a people depends upon it. But this, perhaps, will ever be the case, till some misfortune awakens us into reason, and the instance now before us is but a gentle beginning of what America must expect, unless she guards her union with nicer care and stricter honor. United, she is formidable, and that with the least possible charge a nation can be so; separated, she is a medley of individual nothings, subject to the sport of foreign nations.

It is very probable that the ingenuity of commerce may have found out a method to evade and supersede the intentions of the British, in interdicting the trade with the West India islands. The language of both being the same, and their customs well understood, the vessels of one country may, by deception, pass for those of another. But this would be a practice too debasing for a sovereign people to stoop to, and too profligate not to be discountenanced. An illicit trade, under any shape it can be placed, cannot be carried on without a violation of truth. America is now sovereign and independent, and ought to conduct her affairs in a regular style of character. She has the same right to say that no British vessel shall enter ports, or that no British manufactures shall be imported, but in American bottoms, the property of, and navigated by American subjects, as Britain has to say the same thing respecting the West Indies. Or she may lay a duty of ten, fifteen, or twenty shillings per ton (exclusive of other duties) on every British vessel coming from any port of the West Indies, where she is not admitted to trade, the said tonnage to continue as long on her side as the prohibition continues on the other.

But it is only by acting in union, that the usurpations of foreign nations on the freedom of trade can be counteracted, and security extended to the commerce of America. And when we view a flag, which to the eye is beautiful, and to contemplate its rise and origin inspires a sensation of sublime delight, our national honor must unite with our interest to prevent injury to the one, or insult to the other.

COMMON SENSE.

NEW YORK, December 9, 1783.

THE WORKS OF THOMAS PAINE

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**THE WRITINGS OF THOMAS
PAINE**

VOLUME II.

By Thomas Paine

Collected And Edited By Moncure Daniel Conway

1779 - 1792

[Redactor's Note: Reprinted from the "The Writings of Thomas Paine Volume I" (1894 - 1896). The author's notes are preceded by a "*". A Table of Contents has been added for each part for the convenience of the reader which is not included in the printed edition. Notes are at the end of Part II.]

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EDITOR'S INTRODUCTION.

WHEN Thomas Paine sailed from America for France, in April, 1787, he was perhaps as happy a man as any in the world. His most intimate friend, Jefferson, was Minister at Paris, and his friend Lafayette was the idol of France. His fame had preceded him, and he at once became, in Paris, the centre of the same circle of savants and philosophers that had surrounded Franklin. His main reason for proceeding at once to Paris was that he might submit to the Academy of Sciences his invention of an iron bridge, and with its favorable verdict he came to England, in September. He at once went to his aged mother at Thetford, leaving with a publisher (Ridgway), his "Prospects on the Rubicon." He next made arrangements to patent his bridge, and to construct at Rotherham the large model of it exhibited on Paddington Green, London. He was welcomed in England by leading statesmen, such as Lansdowne and Fox, and above all by Edmund Burke, who for some time had him as a guest at Beaconsfield, and drove him about in various parts of the country. He had not the slightest revolutionary purpose, either as regarded England or France. Towards Louis XVI. he felt only gratitude for the services he had rendered America, and towards George III. he felt no animosity whatever. His four months' sojourn in Paris had convinced him that there was approaching a reform of that country after the American model, except that the Crown would be preserved, a compromise he approved, provided the throne should not be hereditary. Events in France travelled more swiftly than he had anticipated, and Paine was summoned by Lafayette, Condorcet, and others, as an adviser in the formation of a new constitution.

Such was the situation immediately preceding the political and literary duel between Paine and Burke, which in the event turned out a tremendous war between Royalism and Republicanism in Europe. Paine was, both in France and in England, the inspirer of moderate counsels. Samuel Rogers relates that in early life he dined at a friend's house in London with Thomas Paine, when one of the toasts given was the "memory of Joshua,"—in allusion to the Hebrew leader's conquest of the kings of Canaan, and execution of them. Paine observed that he would not treat kings like Joshua.

"I 'm of the Scotch parson's opinion," he said, "when he prayed against Louis XIV.—`Lord, shake him over the mouth of hell, but don't let him drop!'" Paine then gave as his toast, "The Republic of the World,"—which Samuel Rogers, aged twenty-nine, noted as a sublime idea. This was Paine's faith and hope, and with it he confronted the revolutionary storms which presently burst over France and England.

Until Burke's arraignment of France in his parliamentary speech (February 9, 1790), Paine had no doubt whatever that he would sympathize with the movement in France, and wrote to him from that country as if conveying glad tidings. Burke's "Reflections on the Revolution in France" appeared November 1, 1790, and Paine at once set himself to answer it. He was then staying at the Angel Inn, Islington. The inn has been twice rebuilt since that time, and from its contents there is preserved only a small image, which perhaps was meant to represent "Liberty,"—possibly brought from Paris by Paine as an ornament for his study. From the Angel he removed to a house in Harding Street, Fetter Lane. Rickman says Part First of "Rights of Man" was finished at Versailles, but probably this has reference to the preface only, as I cannot find Paine in France that year until April 8. The book had been printed by Johnson, in time for the opening of Parliament, in February; but this publisher became frightened after a few copies were out (there is one in the British Museum), and the work was transferred to J. S. Jordan, 166 Fleet Street, with a preface sent from Paris (not contained in Johnson's edition, nor in the American editions). The pamphlet, though sold at the same price as Burke's, three shillings, had a vast circulation, and Paine gave the proceeds to the Constitutional Societies which sprang up under his teachings in various parts of the country.

Soon after appeared Burke's "Appeal from the New to the Old Whigs." In this Burke quoted a good deal from "Rights of Man," but replied to it only with exclamation points, saying that the only answer such ideas merited was "criminal justice." Paine's Part Second followed, published February 17, 1792. In Part First Paine had mentioned a rumor that Burke was a masked pensioner (a charge that will be noticed in connection with its detailed statement in a further publication); and as Burke had been formerly arraigned in Parliament, while Paymaster, for a very questionable proceeding, this charge no doubt hurt a good deal. Although the government did not follow Burke's suggestion of a prosecution at that time, there is little doubt that it was he who induced the prosecution of Part Second. Before the

trial came on, December 18, 1792, Paine was occupying his seat in the French Convention, and could only be outlawed.

Burke humorously remarked to a friend of Paine and himself, "We hunt in pairs." The severally representative character and influence of these two men in the revolutionary era, in France and England, deserve more adequate study than they have received. While Paine maintained freedom of discussion, Burke first proposed criminal prosecution for sentiments by no means libellous (such as Paine's *Part First*). While Paine was endeavoring to make the movement in France peaceful, Burke fomented the league of monarchs against France which maddened its people, and brought on the Reign of Terror. While Paine was endeavoring to preserve the French throne ("phantom" though he believed it), to prevent bloodshed, Burke was secretly writing to the Queen of France, entreating her not to compromise, and to "trust to the support of foreign armies" (*Histoire de France depuis 1789.* Henri Martin, i., 151). While Burke thus helped to bring the King and Queen to the guillotine, Paine pleaded for their lives to the last moment. While Paine maintained the right of mankind to improve their condition, Burke held that "the awful Author of our being is the author of our place in the order of existence; and that, having disposed and marshalled us by a divine tactick, not according to our will, but according to his, he has, in and by that disposition, virtually subjected us to act the part which belongs to the place assigned us." Paine was a religious believer in eternal principles; Burke held that "political problems do not primarily concern truth or falsehood. They relate to good or evil. What in the result is likely to produce evil is politically false, that which is productive of good politically is true." Assuming thus the visionary's right to decide before the result what was "likely to produce evil," Burke vigorously sought to kindle war against the French Republic which might have developed itself peacefully, while Paine was striving for an international Congress in Europe in the interest of peace. Paine had faith in the people, and believed that, if allowed to choose representatives, they would select their best and wisest men; and that while reforming government the people would remain orderly, as they had generally remained in America during the transition from British rule to selfgovernment. Burke maintained that if the existing political order were broken up there would be no longer a people, but "a number of vague, loose individuals, and nothing more." "Alas!" he exclaims, "they little know how many a weary step is to be taken before they can form themselves into a

mass, which has a true personality." For the sake of peace Paine wished the revolution to be peaceful as the advance of summer; he used every endeavor to reconcile English radicals to some *modus vivendi* with the existing order, as he was willing to retain Louis XVI. as head of the executive in France: Burke resisted every tendency of English statesmanship to reform at home, or to negotiate with the French Republic, and was mainly responsible for the King's death and the war that followed between England and France in February, 1793. Burke became a royal favorite, Paine was outlawed by a prosecution originally proposed by Burke. While Paine was demanding religious liberty, Burke was opposing the removal of penal statutes from Unitarians, on the ground that but for those statutes Paine might some day set up a church in England. When Burke was retiring on a large royal pension, Paine was in prison, through the devices of Burke's confederate, the American Minister in Paris. So the two men, as Burke said, "hunted in pairs."

So far as Burke attempts to affirm any principle he is fairly quoted in Paine's work, and nowhere misrepresented. As for Paine's own ideas, the reader should remember that "Rights of Man" was the earliest complete statement of republican principles. They were pronounced to be the fundamental principles of the American Republic by Jefferson, Madison, and Jackson, - the three Presidents who above all others represented the republican idea which Paine first allied with American Independence. Those who suppose that Paine did but reproduce the principles of Rousseau and Locke will find by careful study of his well-weighed language that such is not the case. Paine's political principles were evolved out of his early Quakerism. He was potential in George Fox. The belief that every human soul was the child of God, and capable of direct inspiration from the Father of all, without mediator or priestly intervention, or sacramental instrumentality, was fatal to all privilege and rank. The universal Fatherhood implied universal Brotherhood, or human equality. But the fate of the Quakers proved the necessity of protecting the individual spirit from oppression by the majority as well as by privileged classes. For this purpose Paine insisted on surrounding the individual right with the security of the Declaration of Rights, not to be invaded by any government; and would reduce government to an association limited in its operations to the defence of those rights which the individual is unable, alone, to maintain.

From the preceding chapter it will be seen that Part Second of "Rights of Man" was begun by Paine in the spring of 1791. At the close of that year, or early in 1792, he took up his abode with his friend Thomas "Clio" Rickman, at No. 7 Upper Marylebone Street. Rickman was a radical publisher; the house remains still a book-binding establishment, and seems little changed since Paine therein revised the proofs of Part Second on a table which Rickman marked with a plate, and which is now in possession of Mr. Edward Truelove. As the plate states, Paine wrote on the same table other works which appeared in England in 1792.

In 1795 D. I. Eaton published an edition of "Rights of Man," with a preface purporting to have been written by Paine while in Luxembourg prison. It is manifestly spurious. The genuine English and French prefaces are given.

RIGHTS OF MAN

Being An Answer To Mr. Burke's Attack On The French Revolution

By Thomas Paine

Secretary For Foreign Affairs To Congress In The American War, And
Author Of The Works Entitled "Common Sense" And "A Letter To Abbi
Raynal"

DEDICATION

George Washington

President Of The United States Of America

Sir,

*I present you a small treatise in defence of those principles of
freedom which your exemplary virtue hath so eminently contributed to
establish. That the Rights of Man may become as universal as your
benevolence can wish, and that you may enjoy the happiness of seeing
the New World regenerate the Old, is the prayer of*

Sir,

Your much obliged, and

Obedient humble Servant,

Thomas Paine

PAINE'S PREFACE TO THE ENGLISH EDITION

From the part Mr. Burke took in the American Revolution, it was natural that I should consider him a friend to mankind; and as our acquaintance commenced on that ground, it would have been more agreeable to me to have had cause to continue in that opinion than to change it.

At the time Mr. Burke made his violent speech last winter in the English Parliament against the French Revolution and the National Assembly, I was in Paris, and had written to him but a short time before to inform him how prosperously matters were going on. Soon after this I saw his advertisement of the Pamphlet he intended to publish: As the attack was to be made in a language but little studied, and less understood in France, and as everything suffers by translation, I promised some of the friends of the Revolution in that country that whenever Mr. Burke's Pamphlet came forth, I would answer it. This appeared to me the more necessary to be done, when I saw the flagrant misrepresentations which Mr. Burke's Pamphlet contains; and that while it is an outrageous abuse on the French Revolution, and the principles of Liberty, it is an imposition on the rest of the world.

I am the more astonished and disappointed at this conduct in Mr. Burke, as (from the circumstances I am going to mention) I had formed other expectations.

I had seen enough of the miseries of war, to wish it might never more have existence in the world, and that some other mode might be found out to settle the differences that should occasionally arise in the neighbourhood of nations. This certainly might be done if Courts were disposed to set honesty about it, or if countries were enlightened enough not to be made the dupes of Courts. The people of America had been bred up in the same prejudices against France, which at that time characterised the people of England; but experience and an acquaintance with the French Nation have most effectually shown to the Americans the falsehood of those prejudices; and I do not believe that a more cordial and confidential intercourse exists between any two countries than between America and France.

When I came to France, in the spring of 1787, the Archbishop of Thoulouse was then Minister, and at that time highly esteemed. I became much acquainted with the private Secretary of that Minister, a man of an enlarged benevolent heart; and found that his sentiments and my own perfectly agreed with respect to the madness of war, and the wretched impolicy of two nations, like England and France, continually worrying each other, to no other end than that of a mutual increase of burdens and taxes. That I might be assured I had not misunderstood him, nor he me, I put the substance of our opinions into writing and sent it to him; subjoining a request, that if I should see among the people of England, any disposition to cultivate a better understanding between the two nations than had hitherto prevailed, how far I might be authorised to say that the same disposition prevailed on the part of France? He answered me by letter in the most unreserved manner, and that not for himself only, but for the Minister, with whose knowledge the letter was declared to be written.

I put this letter into the hands of Mr. Burke almost three years ago, and left it with him, where it still remains; hoping, and at the same time naturally expecting, from the opinion I had conceived of him, that he would find some opportunity of making good use of it, for the purpose of removing those errors and prejudices which two neighbouring nations, from the want of knowing each other, had entertained, to the injury of both.

When the French Revolution broke out, it certainly afforded to Mr. Burke an opportunity of doing some good, had he been disposed to it; instead of which, no sooner did he see the old prejudices wearing away, than he immediately began sowing the seeds of a new inveteracy, as if he were afraid that England and France would cease to be enemies. That there are men in all countries who get their living by war, and by keeping up the quarrels of Nations, is as shocking as it is true; but when those who are concerned in the government of a country, make it their study to sow discord and cultivate prejudices between Nations, it becomes the more unpardonable.

With respect to a paragraph in this work alluding to Mr. Burke's having a pension, the report has been some time in circulation, at least two months; and as a person is often the last to hear what concerns him the most to know, I have mentioned it, that Mr. Burke may have an opportunity of contradicting the rumour, if he thinks proper.

Thomas Paine

PAINE'S PREFACE TO THE FRENCH EDITION

The astonishment which the French Revolution has caused throughout Europe should be considered from two different points of view: first as it affects foreign peoples, secondly as it affects their governments.

The cause of the French people is that of all Europe, or rather of the whole world; but the governments of all those countries are by no means favorable to it. It is important that we should never lose sight of this distinction. We must not confuse the peoples with their governments; especially not the English people with its government.

The government of England is no friend of the revolution of France. Of this we have sufficient proofs in the thanks given by that weak and witless person, the Elector of Hanover, sometimes called the King of England, to Mr. Burke for the insults heaped on it in his book, and in the malevolent comments of the English Minister, Pitt, in his speeches in Parliament.

In spite of the professions of sincerest friendship found in the official correspondence of the English government with that of France, its conduct gives the lie to all its declarations, and shows us clearly that it is not a court to be trusted, but an insane court, plunging in all the quarrels and intrigues of Europe, in quest of a war to satisfy its folly and countenance its extravagance.

The English nation, on the contrary, is very favorably disposed towards the French Revolution, and to the progress of liberty in the whole world; and this feeling will become more general in England as the intrigues and artifices of its government are better known, and the principles of the revolution better understood. The French should know that most English newspapers are directly in the pay of government, or, if indirectly connected with it, always under its orders; and that those papers constantly distort and attack the revolution in France in order to deceive the nation. But, as it is impossible long to prevent the prevalence of truth, the daily falsehoods of those papers no longer have the desired effect.

To be convinced that the voice of truth has been stifled in England, the world needs only to be told that the government regards and prosecutes as a libel that which it should protect.*[1](#) This outrage on morality is called law, and judges are found wicked enough to inflict penalties on truth.

The English government presents, just now, a curious phenomenon. Seeing that the French and English nations are getting rid of the prejudices and false notions formerly entertained against each other, and which have cost them so much money, that government seems to be placarding its need of a foe; for unless it finds one somewhere, no pretext exists for the enormous revenue and taxation now deemed necessary.

Therefore it seeks in Russia the enemy it has lost in France, and appears to say to the universe, or to say to itself. "If nobody will be so kind as to become my foe, I shall need no more fleets nor armies, and shall be forced to reduce my taxes. The American war enabled me to double the taxes; the Dutch business to add more; the Nootka humbug gave me a pretext for raising three millions sterling more; but unless I can make an enemy of Russia the harvest from wars will end. I was the first to incite Turk against Russian, and now I hope to reap a fresh crop of taxes."

If the miseries of war, and the flood of evils it spreads over a country, did not check all inclination to mirth, and turn laughter into grief, the frantic conduct of the government of England would only excite ridicule. But it is impossible to banish from one's mind the images of suffering which the contemplation of such vicious policy presents. To reason with governments, as they have existed for ages, is to argue with brutes. It is only from the nations themselves that reforms can be expected. There ought not now to exist any doubt that the peoples of France, England, and America, enlightened and enlightening each other, shall henceforth be able, not merely to give the world an example of good government, but by their united influence enforce its practice.

(Translated from the French)

RIGHTS OF MAN. PART THE FIRST BEING AN ANSWER TO MR. BURKE'S ATTACK ON THE FRENCH REVOLUTION

Among the incivilities by which nations or individuals provoke and irritate each other, Mr. Burke's pamphlet on the French Revolution is an extraordinary instance. Neither the People of France, nor the National Assembly, were troubling themselves about the affairs of England, or the English Parliament; and that Mr. Burke should commence an unprovoked attack upon them, both in Parliament and in public, is a conduct that cannot be pardoned on the score of manners, nor justified on that of policy.

There is scarcely an epithet of abuse to be found in the English language, with which Mr. Burke has not loaded the French Nation and the National Assembly. Everything which rancour, prejudice, ignorance or knowledge could suggest, is poured forth in the copious fury of near four hundred pages. In the strain and on the plan Mr. Burke was writing, he might have written on to as many thousands. When the tongue or the pen is let loose in a frenzy of passion, it is the man, and not the subject, that becomes exhausted.

Hitherto Mr. Burke has been mistaken and disappointed in the opinions he had formed of the affairs of France; but such is the ingenuity of his hope, or the malignancy of his despair, that it furnishes him with new pretences to go on. There was a time when it was impossible to make Mr. Burke believe there would be any Revolution in France. His opinion then was, that the French had neither spirit to undertake it nor fortitude to support it; and now that there is one, he seeks an escape by condemning it.

Not sufficiently content with abusing the National Assembly, a great part of his work is taken up with abusing Dr. Price (one of the best-hearted men that lives) and the two societies in England known by the name of the Revolution Society and the Society for Constitutional Information.

Dr. Price had preached a sermon on the 4th of November, 1789, being the anniversary of what is called in England the Revolution, which took place

1688. Mr. Burke, speaking of this sermon, says: "The political Divine proceeds dogmatically to assert, that by the principles of the Revolution, the people of England have acquired three fundamental rights:

1. To choose our own governors.
2. To cashier them for misconduct.
3. To frame a government for ourselves."

Dr. Price does not say that the right to do these things exists in this or in that person, or in this or in that description of persons, but that it exists in the whole; that it is a right resident in the nation. Mr. Burke, on the contrary, denies that such a right exists in the nation, either in whole or in part, or that it exists anywhere; and, what is still more strange and marvellous, he says: "that the people of England utterly disclaim such a right, and that they will resist the practical assertion of it with their lives and fortunes." That men should take up arms and spend their lives and fortunes, not to maintain their rights, but to maintain they have not rights, is an entirely new species of discovery, and suited to the paradoxical genius of Mr. Burke.

The method which Mr. Burke takes to prove that the people of England have no such rights, and that such rights do not now exist in the nation, either in whole or in part, or anywhere at all, is of the same marvellous and monstrous kind with what he has already said; for his arguments are that the persons, or the generation of persons, in whom they did exist, are dead, and with them the right is dead also. To prove this, he quotes a declaration made by Parliament about a hundred years ago, to William and Mary, in these words: "The Lords Spiritual and Temporal, and Commons, do, in the name of the people aforesaid" (meaning the people of England then living) "most humbly and faithfully submit themselves, their heirs and posterities, for Ever." He quotes a clause of another Act of Parliament made in the same reign, the terms of which he says, "bind us" (meaning the people of their day), "our heirs and our posterity, to them, their heirs and posterity, to the end of time."

Mr. Burke conceives his point sufficiently established by producing those clauses, which he enforces by saying that they exclude the right of the nation for ever. And not yet content with making such declarations, repeated over and over again, he farther says, "that if the people of England possessed such a right before the Revolution" (which he acknowledges to have been the case, not only in England, but throughout Europe, at an early

period), "yet that the English Nation did, at the time of the Revolution, most solemnly renounce and abdicate it, for themselves, and for all their posterity, for ever."

As Mr. Burke occasionally applies the poison drawn from his horrid principles, not only to the English nation, but to the French Revolution and the National Assembly, and charges that august, illuminated and illuminating body of men with the epithet of usurpers, I shall, sans ceremonie, place another system of principles in opposition to his.

The English Parliament of 1688 did a certain thing, which, for themselves and their constituents, they had a right to do, and which it appeared right should be done. But, in addition to this right, which they possessed by delegation, they set up another right by assumption, that of binding and controlling posterity to the end of time. The case, therefore, divides itself into two parts; the right which they possessed by delegation, and the right which they set up by assumption. The first is admitted; but with respect to the second, I reply: There never did, there never will, and there never can, exist a Parliament, or any description of men, or any generation of men, in any country, possessed of the right or the power of binding and controlling posterity to the "end of time," or of commanding for ever how the world shall be governed, or who shall govern it; and therefore all such clauses, acts or declarations by which the makers of them attempt to do what they have neither the right nor the power to do, nor the power to execute, are in themselves null and void. Every age and generation must be as free to act for itself in all cases as the age and generations which preceded it. The vanity and presumption of governing beyond the grave is the most ridiculous and insolent of all tyrannies. Man has no property in man; neither has any generation a property in the generations which are to follow. The Parliament or the people of 1688, or of any other period, had no more right to dispose of the people of the present day, or to bind or to control them in any shape whatever, than the parliament or the people of the present day have to dispose of, bind or control those who are to live a hundred or a thousand years hence. Every generation is, and must be, competent to all the purposes which its occasions require. It is the living, and not the dead, that are to be accommodated. When man ceases to be, his power and his wants cease with him; and having no longer any participation in the concerns of this world, he has no longer any authority in directing

who shall be its governors, or how its government shall be organised, or how administered.

I am not contending for nor against any form of government, nor for nor against any party, here or elsewhere. That which a whole nation chooses to do it has a right to do. Mr. Burke says, No. Where, then, does the right exist? I am contending for the rights of the living, and against their being willed away and controlled and contracted for by the manuscript assumed authority of the dead, and Mr. Burke is contending for the authority of the dead over the rights and freedom of the living. There was a time when kings disposed of their crowns by will upon their death-beds, and consigned the people, like beasts of the field, to whatever successor they appointed. This is now so exploded as scarcely to be remembered, and so monstrous as hardly to be believed. But the Parliamentary clauses upon which Mr. Burke builds his political church are of the same nature.

The laws of every country must be analogous to some common principle. In England no parent or master, nor all the authority of Parliament, omnipotent as it has called itself, can bind or control the personal freedom even of an individual beyond the age of twenty-one years. On what ground of right, then, could the Parliament of 1688, or any other Parliament, bind all posterity for ever?

Those who have quitted the world, and those who have not yet arrived at it, are as remote from each other as the utmost stretch of mortal imagination can conceive. What possible obligation, then, can exist between them—what rule or principle can be laid down that of two nonentities, the one out of existence and the other not in, and who never can meet in this world, the one should control the other to the end of time?

In England it is said that money cannot be taken out of the pockets of the people without their consent. But who authorised, or who could authorise, the Parliament of 1688 to control and take away the freedom of posterity (who were not in existence to give or to withhold their consent) and limit and confine their right of acting in certain cases for ever?

A greater absurdity cannot present itself to the understanding of man than what Mr. Burke offers to his readers. He tells them, and he tells the world to come, that a certain body of men who existed a hundred years ago made a law, and that there does not exist in the nation, nor ever will, nor ever can, a power to alter it. Under how many subtilties or absurdities has the divine

right to govern been imposed on the credulity of mankind? Mr. Burke has discovered a new one, and he has shortened his journey to Rome by appealing to the power of this infallible Parliament of former days, and he produces what it has done as of divine authority, for that power must certainly be more than human which no human power to the end of time can alter.

But Mr. Burke has done some service—not to his cause, but to his country—by bringing those clauses into public view. They serve to demonstrate how necessary it is at all times to watch against the attempted encroachment of power, and to prevent its running to excess. It is somewhat extraordinary that the offence for which James II. was expelled, that of setting up power by assumption, should be re-acted, under another shape and form, by the Parliament that expelled him. It shows that the Rights of Man were but imperfectly understood at the Revolution, for certain it is that the right which that Parliament set up by assumption (for by the delegation it had not, and could not have it, because none could give it) over the persons and freedom of posterity for ever was of the same tyrannical unfounded kind which James attempted to set up over the Parliament and the nation, and for which he was expelled. The only difference is (for in principle they differ not) that the one was an usurper over living, and the other over the unborn; and as the one has no better authority to stand upon than the other, both of them must be equally null and void, and of no effect.

From what, or from whence, does Mr. Burke prove the right of any human power to bind posterity for ever? He has produced his clauses, but he must produce also his proofs that such a right existed, and show how it existed. If it ever existed it must now exist, for whatever appertains to the nature of man cannot be annihilated by man. It is the nature of man to die, and he will continue to die as long as he continues to be born. But Mr. Burke has set up a sort of political Adam, in whom all posterity are bound for ever. He must, therefore, prove that his Adam possessed such a power, or such a right.

The weaker any cord is, the less will it bear to be stretched, and the worse is the policy to stretch it, unless it is intended to break it. Had anyone proposed the overthrow of Mr. Burke's positions, he would have proceeded as Mr. Burke has done. He would have magnified the authorities, on

purpose to have called the right of them into question; and the instant the question of right was started, the authorities must have been given up.

It requires but a very small glance of thought to perceive that although laws made in one generation often continue in force through succeeding generations, yet they continue to derive their force from the consent of the living. A law not repealed continues in force, not because it cannot be repealed, but because it is not repealed; and the non-repealing passes for consent.

But Mr. Burke's clauses have not even this qualification in their favour. They become null, by attempting to become immortal. The nature of them precludes consent. They destroy the right which they might have, by grounding it on a right which they cannot have. Immortal power is not a human right, and therefore cannot be a right of Parliament. The Parliament of 1688 might as well have passed an act to have authorised themselves to live for ever, as to make their authority live for ever. All, therefore, that can be said of those clauses is that they are a formality of words, of as much import as if those who used them had addressed a congratulation to themselves, and in the oriental style of antiquity had said: O Parliament, live for ever!

The circumstances of the world are continually changing, and the opinions of men change also; and as government is for the living, and not for the dead, it is the living only that has any right in it. That which may be thought right and found convenient in one age may be thought wrong and found inconvenient in another. In such cases, who is to decide, the living or the dead?

As almost one hundred pages of Mr. Burke's book are employed upon these clauses, it will consequently follow that if the clauses themselves, so far as they set up an assumed usurped dominion over posterity for ever, are unauthoritative, and in their nature null and void; that all his voluminous inferences, and declamation drawn therefrom, or founded thereon, are null and void also; and on this ground I rest the matter.

We now come more particularly to the affairs of France. Mr. Burke's book has the appearance of being written as instruction to the French nation; but if I may permit myself the use of an extravagant metaphor, suited to the extravagance of the case, it is darkness attempting to illuminate light.

While I am writing this there are accidentally before me some proposals for a declaration of rights by the Marquis de la Fayette (I ask his pardon for using his former address, and do it only for distinction's sake) to the National Assembly, on the 11th of July, 1789, three days before the taking of the Bastille, and I cannot but remark with astonishment how opposite the sources are from which that gentleman and Mr. Burke draw their principles. Instead of referring to musty records and mouldy parchments to prove that the rights of the living are lost, "renounced and abdicated for ever," by those who are now no more, as Mr. Burke has done, M. de la Fayette applies to the living world, and emphatically says: "Call to mind the sentiments which nature has engraved on the heart of every citizen, and which take a new force when they are solemnly recognised by all:—For a nation to love liberty, it is sufficient that she knows it; and to be free, it is sufficient that she wills it." How dry, barren, and obscure is the source from which Mr. Burke labors! and how ineffectual, though gay with flowers, are all his declamation and his arguments compared with these clear, concise, and soul-animating sentiments! Few and short as they are, they lead on to a vast field of generous and manly thinking, and do not finish, like Mr. Burke's periods, with music in the ear, and nothing in the heart.

As I have introduced M. de la Fayette, I will take the liberty of adding an anecdote respecting his farewell address to the Congress of America in 1783, and which occurred fresh to my mind, when I saw Mr. Burke's thundering attack on the French Revolution. M. de la Fayette went to America at the early period of the war, and continued a volunteer in her service to the end. His conduct through the whole of that enterprise is one of the most extraordinary that is to be found in the history of a young man, scarcely twenty years of age. Situated in a country that was like the lap of sensual pleasure, and with the means of enjoying it, how few are there to be found who would exchange such a scene for the woods and wildernesses of America, and pass the flowery years of youth in unprofitable danger and hardship! but such is the fact. When the war ended, and he was on the point of taking his final departure, he presented himself to Congress, and contemplating in his affectionate farewell the Revolution he had seen, expressed himself in these words: "May this great monument raised to liberty serve as a lesson to the oppressor, and an example to the oppressed!" When this address came to the hands of Dr. Franklin, who was then in France, he applied to Count Vergennes to have it inserted in the French

Gazette, but never could obtain his consent. The fact was that Count Vergennes was an aristocratical despot at home, and dreaded the example of the American Revolution in France, as certain other persons now dread the example of the French Revolution in England, and Mr. Burke's tribute of fear (for in this light his book must be considered) runs parallel with Count Vergennes' refusal. But to return more particularly to his work.

"We have seen," says Mr. Burke, "the French rebel against a mild and lawful monarch, with more fury, outrage, and insult, than any people has been known to rise against the most illegal usurper, or the most sanguinary tyrant." This is one among a thousand other instances, in which Mr. Burke shows that he is ignorant of the springs and principles of the French Revolution.

It was not against Louis XVI. but against the despotic principles of the Government, that the nation revolted. These principles had not their origin in him, but in the original establishment, many centuries back: and they were become too deeply rooted to be removed, and the Augean stables of parasites and plunderers too abominably filthy to be cleansed by anything short of a complete and universal Revolution. When it becomes necessary to do anything, the whole heart and soul should go into the measure, or not attempt it. That crisis was then arrived, and there remained no choice but to act with determined vigor, or not to act at all. The king was known to be the friend of the nation, and this circumstance was favorable to the enterprise. Perhaps no man bred up in the style of an absolute king, ever possessed a heart so little disposed to the exercise of that species of power as the present King of France. But the principles of the Government itself still remained the same. The Monarch and the Monarchy were distinct and separate things; and it was against the established despotism of the latter, and not against the person or principles of the former, that the revolt commenced, and the Revolution has been carried.

Mr. Burke does not attend to the distinction between men and principles, and, therefore, he does not see that a revolt may take place against the despotism of the latter, while there lies no charge of despotism against the former.

The natural moderation of Louis XVI. contributed nothing to alter the hereditary despotism of the monarchy. All the tyrannies of former reigns, acted under that hereditary despotism, were still liable to be revived in the

hands of a successor. It was not the respite of a reign that would satisfy France, enlightened as she was then become. A casual discontinuance of the practice of despotism, is not a discontinuance of its principles: the former depends on the virtue of the individual who is in immediate possession of the power; the latter, on the virtue and fortitude of the nation. In the case of Charles I. and James II. of England, the revolt was against the personal despotism of the men; whereas in France, it was against the hereditary despotism of the established Government. But men who can consign over the rights of posterity for ever on the authority of a mouldy parchment, like Mr. Burke, are not qualified to judge of this Revolution. It takes in a field too vast for their views to explore, and proceeds with a mightiness of reason they cannot keep pace with.

But there are many points of view in which this Revolution may be considered. When despotism has established itself for ages in a country, as in France, it is not in the person of the king only that it resides. It has the appearance of being so in show, and in nominal authority; but it is not so in practice and in fact. It has its standard everywhere. Every office and department has its despotism, founded upon custom and usage. Every place has its Bastille, and every Bastille its despot. The original hereditary despotism resident in the person of the king, divides and sub-divides itself into a thousand shapes and forms, till at last the whole of it is acted by deputation. This was the case in France; and against this species of despotism, proceeding on through an endless labyrinth of office till the source of it is scarcely perceptible, there is no mode of redress. It strengthens itself by assuming the appearance of duty, and tyrannizes under the pretence of obeying.

When a man reflects on the condition which France was in from the nature of her government, he will see other causes for revolt than those which immediately connect themselves with the person or character of Louis XVI. There were, if I may so express it, a thousand despotisms to be reformed in France, which had grown up under the hereditary despotism of the monarchy, and became so rooted as to be in a great measure independent of it. Between the Monarchy, the Parliament, and the Church there was a rivalry of despotism; besides the feudal despotism operating locally, and the ministerial despotism operating everywhere. But Mr. Burke, by considering the king as the only possible object of a revolt, speaks as if France was a village, in which everything that passed must be known to its

commanding officer, and no oppression could be acted but what he could immediately control. Mr. Burke might have been in the Bastille his whole life, as well under Louis XVI. as Louis XIV., and neither the one nor the other have known that such a man as Burke existed. The despotic principles of the government were the same in both reigns, though the dispositions of the men were as remote as tyranny and benevolence.

What Mr. Burke considers as a reproach to the French Revolution (that of bringing it forward under a reign more mild than the preceding ones) is one of its highest honors. The Revolutions that have taken place in other European countries, have been excited by personal hatred. The rage was against the man, and he became the victim. But, in the instance of France we see a Revolution generated in the rational contemplation of the Rights of Man, and distinguishing from the beginning between persons and principles.

But Mr. Burke appears to have no idea of principles when he is contemplating Governments. "Ten years ago," says he, "I could have felicitated France on her having a Government, without inquiring what the nature of that Government was, or how it was administered." Is this the language of a rational man? Is it the language of a heart feeling as it ought to feel for the rights and happiness of the human race? On this ground, Mr. Burke must compliment all the Governments in the world, while the victims who suffer under them, whether sold into slavery, or tortured out of existence, are wholly forgotten. It is power, and not principles, that Mr. Burke venerates; and under this abominable depravity he is disqualified to judge between them. Thus much for his opinion as to the occasions of the French Revolution. I now proceed to other considerations.

I know a place in America called Point-no-Point, because as you proceed along the shore, gay and flowery as Mr. Burke's language, it continually recedes and presents itself at a distance before you; but when you have got as far as you can go, there is no point at all. Just thus it is with Mr. Burke's three hundred and sixty-six pages. It is therefore difficult to reply to him. But as the points he wishes to establish may be inferred from what he abuses, it is in his paradoxes that we must look for his arguments.

As to the tragic paintings by which Mr. Burke has outraged his own imagination, and seeks to work upon that of his readers, they are very well calculated for theatrical representation, where facts are manufactured for

the sake of show, and accommodated to produce, through the weakness of sympathy, a weeping effect. But Mr. Burke should recollect that he is writing history, and not plays, and that his readers will expect truth, and not the spouting rant of high-toned exclamation.

When we see a man dramatically lamenting in a publication intended to be believed that "The age of chivalry is gone! that The glory of Europe is extinguished for ever! that The unbought grace of life (if anyone knows what it is), the cheap defence of nations, the nurse of manly sentiment and heroic enterprise is gone!" and all this because the Quixot age of chivalry nonsense is gone, what opinion can we form of his judgment, or what regard can we pay to his facts? In the rhapsody of his imagination he has discovered a world of wind mills, and his sorrows are that there are no Quixots to attack them. But if the age of aristocracy, like that of chivalry, should fall (and they had originally some connection) Mr. Burke, the trumpeter of the Order, may continue his parody to the end, and finish with exclaiming: "Othello's occupation's gone!"

Notwithstanding Mr. Burke's horrid paintings, when the French Revolution is compared with the Revolutions of other countries, the astonishment will be that it is marked with so few sacrifices; but this astonishment will cease when we reflect that principles, and not persons, were the meditated objects of destruction. The mind of the nation was acted upon by a higher stimulus than what the consideration of persons could inspire, and sought a higher conquest than could be produced by the downfall of an enemy. Among the few who fell there do not appear to be any that were intentionally singled out. They all of them had their fate in the circumstances of the moment, and were not pursued with that long, cold-blooded unabated revenge which pursued the unfortunate Scotch in the affair of 1745.

Through the whole of Mr. Burke's book I do not observe that the Bastille is mentioned more than once, and that with a kind of implication as if he were sorry it was pulled down, and wished it were built up again. "We have rebuilt Newgate," says he, "and tenanted the mansion; and we have prisons almost as strong as the Bastille for those who dare to libel the queens of France."*² As to what a madman like the person called Lord George Gordon might say, and to whom Newgate is rather a bedlam than a prison, it is unworthy a rational consideration. It was a madman that libelled, and

that is sufficient apology; and it afforded an opportunity for confining him, which was the thing that was wished for. But certain it is that Mr. Burke, who does not call himself a madman (whatever other people may do), has libelled in the most unprovoked manner, and in the grossest style of the most vulgar abuse, the whole representative authority of France, and yet Mr. Burke takes his seat in the British House of Commons! From his violence and his grief, his silence on some points and his excess on others, it is difficult not to believe that Mr. Burke is sorry, extremely sorry, that arbitrary power, the power of the Pope and the Bastille, are pulled down.

Not one glance of compassion, not one commiserating reflection that I can find throughout his book, has he bestowed on those who lingered out the most wretched of lives, a life without hope in the most miserable of prisons. It is painful to behold a man employing his talents to corrupt himself. Nature has been kinder to Mr. Burke than he is to her. He is not affected by the reality of distress touching his heart, but by the showy resemblance of it striking his imagination. He pities the plumage, but forgets the dying bird. Accustomed to kiss the aristocratical hand that hath purloined him from himself, he degenerates into a composition of art, and the genuine soul of nature forsakes him. His hero or his heroine must be a tragedy-victim expiring in show, and not the real prisoner of misery, sliding into death in the silence of a dungeon.

As Mr. Burke has passed over the whole transaction of the Bastille (and his silence is nothing in his favour), and has entertained his readers with refectations on supposed facts distorted into real falsehoods, I will give, since he has not, some account of the circumstances which preceded that transaction. They will serve to show that less mischief could scarcely have accompanied such an event when considered with the treacherous and hostile aggravations of the enemies of the Revolution.

The mind can hardly picture to itself a more tremendous scene than what the city of Paris exhibited at the time of taking the Bastille, and for two days before and after, nor perceive the possibility of its quieting so soon. At a distance this transaction has appeared only as an act of heroism standing on itself, and the close political connection it had with the Revolution is lost in the brilliancy of the achievement. But we are to consider it as the strength of the parties brought man to man, and contending for the issue. The Bastille was to be either the prize or the prison of the assailants. The

downfall of it included the idea of the downfall of despotism, and this compounded image was become as figuratively united as Bunyan's Doubting Castle and Giant Despair.

The National Assembly, before and at the time of taking the Bastille, was sitting at Versailles, twelve miles distant from Paris. About a week before the rising of the Partisans, and their taking the Bastille, it was discovered that a plot was forming, at the head of which was the Count D'Artois, the king's youngest brother, for demolishing the National Assembly, seizing its members, and thereby crushing, by a coup de main, all hopes and prospects of forming a free government. For the sake of humanity, as well as freedom, it is well this plan did not succeed. Examples are not wanting to show how dreadfully vindictive and cruel are all old governments, when they are successful against what they call a revolt.

This plan must have been some time in contemplation; because, in order to carry it into execution, it was necessary to collect a large military force round Paris, and cut off the communication between that city and the National Assembly at Versailles. The troops destined for this service were chiefly the foreign troops in the pay of France, and who, for this particular purpose, were drawn from the distant provinces where they were then stationed. When they were collected to the amount of between twenty-five and thirty thousand, it was judged time to put the plan into execution. The ministry who were then in office, and who were friendly to the Revolution, were instantly dismissed and a new ministry formed of those who had concerted the project, among whom was Count de Broglio, and to his share was given the command of those troops. The character of this man as described to me in a letter which I communicated to Mr. Burke before he began to write his book, and from an authority which Mr. Burke well knows was good, was that of "a high-flying aristocrat, cool, and capable of every mischief."

While these matters were agitating, the National Assembly stood in the most perilous and critical situation that a body of men can be supposed to act in. They were the devoted victims, and they knew it. They had the hearts and wishes of their country on their side, but military authority they had none. The guards of Broglio surrounded the hall where the Assembly sat, ready, at the word of command, to seize their persons, as had been done the year before to the Parliament of Paris. Had the National Assembly deserted

their trust, or had they exhibited signs of weakness or fear, their enemies had been encouraged and their country depressed. When the situation they stood in, the cause they were engaged in, and the crisis then ready to burst, which should determine their personal and political fate and that of their country, and probably of Europe, are taken into one view, none but a heart callous with prejudice or corrupted by dependence can avoid interesting itself in their success.

The Archbishop of Vienne was at this time President of the National Assembly—a person too old to undergo the scene that a few days or a few hours might bring forth. A man of more activity and bolder fortitude was necessary, and the National Assembly chose (under the form of a Vice-President, for the Presidency still resided in the Archbishop) M. de la Fayette; and this is the only instance of a Vice-President being chosen. It was at the moment that this storm was pending (July 11th) that a declaration of rights was brought forward by M. de la Fayette, and is the same which is alluded to earlier. It was hastily drawn up, and makes only a part of the more extensive declaration of rights agreed upon and adopted afterwards by the National Assembly. The particular reason for bringing it forward at this moment (M. de la Fayette has since informed me) was that, if the National Assembly should fall in the threatened destruction that then surrounded it, some trace of its principles might have the chance of surviving the wreck.

Everything now was drawing to a crisis. The event was freedom or slavery. On one side, an army of nearly thirty thousand men; on the other, an unarmed body of citizens—for the citizens of Paris, on whom the National Assembly must then immediately depend, were as unarmed and as undisciplined as the citizens of London are now. The French guards had given strong symptoms of their being attached to the national cause; but their numbers were small, not a tenth part of the force that Broglio commanded, and their officers were in the interest of Broglio.

Matters being now ripe for execution, the new ministry made their appearance in office. The reader will carry in his mind that the Bastille was taken the 14th July; the point of time I am now speaking of is the 12th. Immediately on the news of the change of ministry reaching Paris, in the afternoon, all the playhouses and places of entertainment, shops and houses, were shut up. The change of ministry was considered as the prelude of hostilities, and the opinion was rightly founded.

The foreign troops began to advance towards the city. The Prince de Lambesc, who commanded a body of German cavalry, approached by the Place of Louis XV., which connects itself with some of the streets. In his march, he insulted and struck an old man with a sword. The French are remarkable for their respect to old age; and the insolence with which it appeared to be done, uniting with the general fermentation they were in, produced a powerful effect, and a cry of "To arms! to arms!" spread itself in a moment over the city.

Arms they had none, nor scarcely anyone who knew the use of them; but desperate resolution, when every hope is at stake, supplies, for a while, the want of arms. Near where the Prince de Lambesc was drawn up, were large piles of stones collected for building the new bridge, and with these the people attacked the cavalry. A party of French guards upon hearing the firing, rushed from their quarters and joined the people; and night coming on, the cavalry retreated.

The streets of Paris, being narrow, are favourable for defence, and the loftiness of the houses, consisting of many stories, from which great annoyance might be given, secured them against nocturnal enterprises; and the night was spent in providing themselves with every sort of weapon they could make or procure: guns, swords, blacksmiths' hammers, carpenters' axes, iron crows, pikes, halberts, pitchforks, spits, clubs, etc., etc. The incredible numbers in which they assembled the next morning, and the still more incredible resolution they exhibited, embarrassed and astonished their enemies. Little did the new ministry expect such a salute. Accustomed to slavery themselves, they had no idea that liberty was capable of such inspiration, or that a body of unarmed citizens would dare to face the military force of thirty thousand men. Every moment of this day was employed in collecting arms, concerting plans, and arranging themselves into the best order which such an instantaneous movement could afford. Broglio continued lying round the city, but made no further advances this day, and the succeeding night passed with as much tranquility as such a scene could possibly produce.

But defence only was not the object of the citizens. They had a cause at stake, on which depended their freedom or their slavery. They every moment expected an attack, or to hear of one made on the National Assembly; and in such a situation, the most prompt measures are sometimes

the best. The object that now presented itself was the Bastille; and the eclat of carrying such a fortress in the face of such an army, could not fail to strike terror into the new ministry, who had scarcely yet had time to meet. By some intercepted correspondence this morning, it was discovered that the Mayor of Paris, M. Defflesselles, who appeared to be in the interest of the citizens, was betraying them; and from this discovery, there remained no doubt that Broglio would reinforce the Bastille the ensuing evening. It was therefore necessary to attack it that day; but before this could be done, it was first necessary to procure a better supply of arms than they were then possessed of.

There was, adjoining to the city a large magazine of arms deposited at the Hospital of the Invalids, which the citizens summoned to surrender; and as the place was neither defensible, nor attempted much defence, they soon succeeded. Thus supplied, they marched to attack the Bastille; a vast mixed multitude of all ages, and of all degrees, armed with all sorts of weapons. Imagination would fail in describing to itself the appearance of such a procession, and of the anxiety of the events which a few hours or a few minutes might produce. What plans the ministry were forming, were as unknown to the people within the city, as what the citizens were doing was unknown to the ministry; and what movements Broglio might make for the support or relief of the place, were to the citizens equally as unknown. All was mystery and hazard.

That the Bastille was attacked with an enthusiasm of heroism, such only as the highest animation of liberty could inspire, and carried in the space of a few hours, is an event which the world is fully possessed of. I am not undertaking the detail of the attack, but bringing into view the conspiracy against the nation which provoked it, and which fell with the Bastille. The prison to which the new ministry were dooming the National Assembly, in addition to its being the high altar and castle of despotism, became the proper object to begin with. This enterprise broke up the new ministry, who began now to fly from the ruin they had prepared for others. The troops of Broglio dispersed, and himself fled also.

Mr. Burke has spoken a great deal about plots, but he has never once spoken of this plot against the National Assembly, and the liberties of the nation; and that he might not, he has passed over all the circumstances that might throw it in his way. The exiles who have fled from France, whose

case he so much interests himself in, and from whom he has had his lesson, fled in consequence of the miscarriage of this plot. No plot was formed against them; they were plotting against others; and those who fell, met, not unjustly, the punishment they were preparing to execute. But will Mr. Burke say that if this plot, contrived with the subtilty of an ambuscade, had succeeded, the successful party would have restrained their wrath so soon? Let the history of all governments answer the question.

Whom has the National Assembly brought to the scaffold? None. They were themselves the devoted victims of this plot, and they have not retaliated; why, then, are they charged with revenge they have not acted? In the tremendous breaking forth of a whole people, in which all degrees, tempers and characters are confounded, delivering themselves, by a miracle of exertion, from the destruction meditated against them, is it to be expected that nothing will happen? When men are sore with the sense of oppressions, and menaced with the prospects of new ones, is the calmness of philosophy or the palsy of insensibility to be looked for? Mr. Burke exclaims against outrage; yet the greatest is that which himself has committed. His book is a volume of outrage, not apologised for by the impulse of a moment, but cherished through a space of ten months; yet Mr. Burke had no provocation—no life, no interest, at stake.

More of the citizens fell in this struggle than of their opponents: but four or five persons were seized by the populace, and instantly put to death; the Governor of the Bastille, and the Mayor of Paris, who was detected in the act of betraying them; and afterwards Foulon, one of the new ministry, and Berthier, his son-in-law, who had accepted the office of intendant of Paris. Their heads were stuck upon spikes, and carried about the city; and it is upon this mode of punishment that Mr. Burke builds a great part of his tragic scene. Let us therefore examine how men came by the idea of punishing in this manner.

They learn it from the governments they live under; and retaliate the punishments they have been accustomed to behold. The heads stuck upon spikes, which remained for years upon Temple Bar, differed nothing in the horror of the scene from those carried about upon spikes at Paris; yet this was done by the English Government. It may perhaps be said that it signifies nothing to a man what is done to him after he is dead; but it signifies much to the living; it either tortures their feelings or hardens their

hearts, and in either case it instructs them how to punish when power falls into their hands.

Lay then the axe to the root, and teach governments humanity. It is their sanguinary punishments which corrupt mankind. In England the punishment in certain cases is by hanging, drawing and quartering; the heart of the sufferer is cut out and held up to the view of the populace. In France, under the former Government, the punishments were not less barbarous. Who does not remember the execution of Damien, torn to pieces by horses? The effect of those cruel spectacles exhibited to the populace is to destroy tenderness or excite revenge; and by the base and false idea of governing men by terror, instead of reason, they become precedents. It is over the lowest class of mankind that government by terror is intended to operate, and it is on them that it operates to the worst effect. They have sense enough to feel they are the objects aimed at; and they inflict in their turn the examples of terror they have been instructed to practise.

There is in all European countries a large class of people of that description, which in England is called the "mob." Of this class were those who committed the burnings and devastations in London in 1780, and of this class were those who carried the heads on iron spikes in Paris. Foulon and Berthier were taken up in the country, and sent to Paris, to undergo their examination at the Hotel de Ville; for the National Assembly, immediately on the new ministry coming into office, passed a decree, which they communicated to the King and Cabinet, that they (the National Assembly) would hold the ministry, of which Foulon was one, responsible for the measures they were advising and pursuing; but the mob, incensed at the appearance of Foulon and Berthier, tore them from their conductors before they were carried to the Hotel de Ville, and executed them on the spot. Why then does Mr. Burke charge outrages of this kind on a whole people? As well may he charge the riots and outrages of 1780 on all the people of London, or those in Ireland on all his countrymen.

But everything we see or hear offensive to our feelings and derogatory to the human character should lead to other reflections than those of reproach. Even the beings who commit them have some claim to our consideration. How then is it that such vast classes of mankind as are distinguished by the appellation of the vulgar, or the ignorant mob, are so numerous in all old countries? The instant we ask ourselves this question, reflection feels an

answer. They rise, as an unavoidable consequence, out of the ill construction of all old governments in Europe, England included with the rest. It is by distortedly exalting some men, that others are distortedly debased, till the whole is out of nature. A vast mass of mankind are degradedly thrown into the back-ground of the human picture, to bring forward, with greater glare, the puppet-show of state and aristocracy. In the commencement of a revolution, those men are rather the followers of the camp than of the standard of liberty, and have yet to be instructed how to reverence it.

I give to Mr. Burke all his theatrical exaggerations for facts, and I then ask him if they do not establish the certainty of what I here lay down? Admitting them to be true, they show the necessity of the French Revolution, as much as any one thing he could have asserted. These outrages were not the effect of the principles of the Revolution, but of the degraded mind that existed before the Revolution, and which the Revolution is calculated to reform. Place them then to their proper cause, and take the reproach of them to your own side.

It is the honour of the National Assembly and the city of Paris that, during such a tremendous scene of arms and confusion, beyond the control of all authority, they have been able, by the influence of example and exhortation, to restrain so much. Never were more pains taken to instruct and enlighten mankind, and to make them see that their interest consisted in their virtue, and not in their revenge, than have been displayed in the Revolution of France. I now proceed to make some remarks on Mr. Burke's account of the expedition to Versailles, October the 5th and 6th.

I can consider Mr. Burke's book in scarcely any other light than a dramatic performance; and he must, I think, have considered it in the same light himself, by the poetical liberties he has taken of omitting some facts, distorting others, and making the whole machinery bend to produce a stage effect. Of this kind is his account of the expedition to Versailles. He begins this account by omitting the only facts which as causes are known to be true; everything beyond these is conjecture, even in Paris; and he then works up a tale accommodated to his own passions and prejudices.

It is to be observed throughout Mr. Burke's book that he never speaks of plots against the Revolution; and it is from those plots that all the mischiefs have arisen. It suits his purpose to exhibit the consequences without their

causes. It is one of the arts of the drama to do so. If the crimes of men were exhibited with their sufferings, stage effect would sometimes be lost, and the audience would be inclined to approve where it was intended they should commiserate.

After all the investigations that have been made into this intricate affair (the expedition to Versailles), it still remains enveloped in all that kind of mystery which ever accompanies events produced more from a concurrence of awkward circumstances than from fixed design. While the characters of men are forming, as is always the case in revolutions, there is a reciprocal suspicion, and a disposition to misinterpret each other; and even parties directly opposite in principle will sometimes concur in pushing forward the same movement with very different views, and with the hopes of its producing very different consequences. A great deal of this may be discovered in this embarrassed affair, and yet the issue of the whole was what nobody had in view.

The only things certainly known are that considerable uneasiness was at this time excited at Paris by the delay of the King in not sanctioning and forwarding the decrees of the National Assembly, particularly that of the Declaration of the Rights of Man, and the decrees of the fourth of August, which contained the foundation principles on which the constitution was to be erected. The kindest, and perhaps the fairest conjecture upon this matter is, that some of the ministers intended to make remarks and observations upon certain parts of them before they were finally sanctioned and sent to the provinces; but be this as it may, the enemies of the Revolution derived hope from the delay, and the friends of the Revolution uneasiness.

During this state of suspense, the Garde du Corps, which was composed as such regiments generally are, of persons much connected with the Court, gave an entertainment at Versailles (October 1) to some foreign regiments then arrived; and when the entertainment was at the height, on a signal given, the Garde du Corps tore the national cockade from their hats, trampled it under foot, and replaced it with a counter-cockade prepared for the purpose. An indignity of this kind amounted to defiance. It was like declaring war; and if men will give challenges they must expect consequences. But all this Mr. Burke has carefully kept out of sight. He begins his account by saying: "History will record that on the morning of the 6th October, 1789, the King and Queen of France, after a day of

confusion, alarm, dismay, and slaughter, lay down under the pledged security of public faith to indulge nature in a few hours of respite, and troubled melancholy repose." This is neither the sober style of history, nor the intention of it. It leaves everything to be guessed at and mistaken. One would at least think there had been a battle; and a battle there probably would have been had it not been for the moderating prudence of those whom Mr. Burke involves in his censures. By his keeping the Garde du Corps out of sight Mr. Burke has afforded himself the dramatic licence of putting the King and Queen in their places, as if the object of the expedition was against them. But to return to my account this conduct of the Garde du Corps, as might well be expected, alarmed and enraged the Partisans. The colors of the cause, and the cause itself, were become too united to mistake the intention of the insult, and the Partisans were determined to call the Garde du Corps to an account. There was certainly nothing of the cowardice of assassination in marching in the face of the day to demand satisfaction, if such a phrase may be used, of a body of armed men who had voluntarily given defiance. But the circumstance which serves to throw this affair into embarrassment is, that the enemies of the Revolution appear to have encouraged it as well as its friends. The one hoped to prevent a civil war by checking it in time, and the other to make one. The hopes of those opposed to the Revolution rested in making the King of their party, and getting him from Versailles to Metz, where they expected to collect a force and set up a standard. We have, therefore, two different objects presenting themselves at the same time, and to be accomplished by the same means: the one to chastise the Garde du Corps, which was the object of the Partisans; the other to render the confusion of such a scene an inducement to the King to set off for Metz.

On the 5th of October a very numerous body of women, and men in the disguise of women, collected around the Hotel de Ville or town-hall at Paris, and set off for Versailles. Their professed object was the Garde du Corps; but prudent men readily recollect that mischief is more easily begun than ended; and this impressed itself with the more force from the suspicions already stated, and the irregularity of such a cavalcade. As soon, therefore, as a sufficient force could be collected, M. de la Fayette, by orders from the civil authority of Paris, set off after them at the head of twenty thousand of the Paris militia. The Revolution could derive no benefit from confusion, and its opposers might. By an amiable and spirited manner

of address he had hitherto been fortunate in calming disquietudes, and in this he was extraordinarily successful; to frustrate, therefore, the hopes of those who might seek to improve this scene into a sort of justifiable necessity for the King's quitting Versailles and withdrawing to Metz, and to prevent at the same time the consequences that might ensue between the Garde du Corps and this phalanx of men and women, he forwarded expresses to the King, that he was on his march to Versailles, by the orders of the civil authority of Paris, for the purpose of peace and protection, expressing at the same time the necessity of restraining the Garde du Corps from firing upon the people.*[3](#)

He arrived at Versailles between ten and eleven at night. The Garde du Corps was drawn up, and the people had arrived some time before, but everything had remained suspended. Wisdom and policy now consisted in changing a scene of danger into a happy event. M. de la Fayette became the mediator between the enraged parties; and the King, to remove the uneasiness which had arisen from the delay already stated, sent for the President of the National Assembly, and signed the Declaration of the Rights of Man, and such other parts of the constitution as were in readiness.

It was now about one in the morning. Everything appeared to be composed, and a general congratulation took place. By the beat of a drum a proclamation was made that the citizens of Versailles would give the hospitality of their houses to their fellow-citizens of Paris. Those who could not be accommodated in this manner remained in the streets, or took up their quarters in the churches; and at two o'clock the King and Queen retired.

In this state matters passed till the break of day, when a fresh disturbance arose from the censurable conduct of some of both parties, for such characters there will be in all such scenes. One of the Garde du Corps appeared at one of the windows of the palace, and the people who had remained during the night in the streets accosted him with reviling and provocative language. Instead of retiring, as in such a case prudence would have dictated, he presented his musket, fired, and killed one of the Paris militia. The peace being thus broken, the people rushed into the palace in quest of the offender. They attacked the quarters of the Garde du Corps within the palace, and pursued them throughout the avenues of it, and to the apartments of the King. On this tumult, not the Queen only, as Mr. Burke

has represented it, but every person in the palace, was awakened and alarmed; and M. de la Fayette had a second time to interpose between the parties, the event of which was that the Garde du Corps put on the national cockade, and the matter ended as by oblivion, after the loss of two or three lives.

During the latter part of the time in which this confusion was acting, the King and Queen were in public at the balcony, and neither of them concealed for safety's sake, as Mr. Burke insinuates. Matters being thus appeased, and tranquility restored, a general acclamation broke forth of *Le Roi a Paris—Le Roi a Paris—The King to Paris*. It was the shout of peace, and immediately accepted on the part of the King. By this measure all future projects of trappanning the King to Metz, and setting up the standard of opposition to the constitution, were prevented, and the suspicions extinguished. The King and his family reached Paris in the evening, and were congratulated on their arrival by M. Bailly, the Mayor of Paris, in the name of the citizens. Mr. Burke, who throughout his book confounds things, persons, and principles, as in his remarks on M. Bailly's address, confounded time also. He censures M. Bailly for calling it "*un bon jour*," a good day. Mr. Burke should have informed himself that this scene took up the space of two days, the day on which it began with every appearance of danger and mischief, and the day on which it terminated without the mischiefs that threatened; and that it is to this peaceful termination that M. Bailly alludes, and to the arrival of the King at Paris. Not less than three hundred thousand persons arranged themselves in the procession from Versailles to Paris, and not an act of molestation was committed during the whole march.

Mr. Burke on the authority of M. Lally Tollendal, a deserter from the National Assembly, says that on entering Paris, the people shouted "*Tous les eveques a la lanterne*." All Bishops to be hanged at the lanthorn or lamp-posts. It is surprising that nobody could hear this but Lally Tollendal, and that nobody should believe it but Mr. Burke. It has not the least connection with any part of the transaction, and is totally foreign to every circumstance of it. The Bishops had never been introduced before into any scene of Mr. Burke's drama: why then are they, all at once, and altogether, *tout a coup*, *et tous ensemble*, introduced now? Mr. Burke brings forward his Bishops and his lanthorn-like figures in a magic lanthorn, and raises his scenes by contrast instead of connection. But it serves to show, with the rest of his

book what little credit ought to be given where even probability is set at defiance, for the purpose of defaming; and with this reflection, instead of a soliloquy in praise of chivalry, as Mr. Burke has done, I close the account of the expedition to Versailles.*[4](#)

I have now to follow Mr. Burke through a pathless wilderness of rhapsodies, and a sort of descant upon governments, in which he asserts whatever he pleases, on the presumption of its being believed, without offering either evidence or reasons for so doing.

Before anything can be reasoned upon to a conclusion, certain facts, principles, or data, to reason from, must be established, admitted, or denied. Mr. Burke with his usual outrage, abused the Declaration of the Rights of Man, published by the National Assembly of France, as the basis on which the constitution of France is built. This he calls "paltry and blurred sheets of paper about the rights of man." Does Mr. Burke mean to deny that man has any rights? If he does, then he must mean that there are no such things as rights anywhere, and that he has none himself; for who is there in the world but man? But if Mr. Burke means to admit that man has rights, the question then will be: What are those rights, and how man came by them originally?

The error of those who reason by precedents drawn from antiquity, respecting the rights of man, is that they do not go far enough into antiquity. They do not go the whole way. They stop in some of the intermediate stages of an hundred or a thousand years, and produce what was then done, as a rule for the present day. This is no authority at all. If we travel still farther into antiquity, we shall find a direct contrary opinion and practice prevailing; and if antiquity is to be authority, a thousand such authorities may be produced, successively contradicting each other; but if we proceed on, we shall at last come out right; we shall come to the time when man came from the hand of his Maker. What was he then? Man. Man was his high and only title, and a higher cannot be given him. But of titles I shall speak hereafter.

We are now got at the origin of man, and at the origin of his rights. As to the manner in which the world has been governed from that day to this, it is no farther any concern of ours than to make a proper use of the errors or the improvements which the history of it presents. Those who lived an hundred or a thousand years ago, were then moderns, as we are now. They had their ancients, and those ancients had others, and we also shall be ancients in our

turn. If the mere name of antiquity is to govern in the affairs of life, the people who are to live an hundred or a thousand years hence, may as well take us for a precedent, as we make a precedent of those who lived an hundred or a thousand years ago. The fact is, that portions of antiquity, by proving everything, establish nothing. It is authority against authority all the way, till we come to the divine origin of the rights of man at the creation. Here our enquiries find a resting-place, and our reason finds a home. If a dispute about the rights of man had arisen at the distance of an hundred years from the creation, it is to this source of authority they must have referred, and it is to this same source of authority that we must now refer.

Though I mean not to touch upon any sectarian principle of religion, yet it may be worth observing, that the genealogy of Christ is traced to Adam. Why then not trace the rights of man to the creation of man? I will answer the question. Because there have been upstart governments, thrusting themselves between, and presumptuously working to un-make man.

If any generation of men ever possessed the right of dictating the mode by which the world should be governed for ever, it was the first generation that existed; and if that generation did it not, no succeeding generation can show any authority for doing it, nor can set any up. The illuminating and divine principle of the equal rights of man (for it has its origin from the Maker of man) relates, not only to the living individuals, but to generations of men succeeding each other. Every generation is equal in rights to generations which preceded it, by the same rule that every individual is born equal in rights with his contemporary.

Every history of the creation, and every traditionary account, whether from the lettered or unlettered world, however they may vary in their opinion or belief of certain particulars, all agree in establishing one point, the unity of man; by which I mean that men are all of one degree, and consequently that all men are born equal, and with equal natural right, in the same manner as if posterity had been continued by creation instead of generation, the latter being the only mode by which the former is carried forward; and consequently every child born into the world must be considered as deriving its existence from God. The world is as new to him as it was to the first man that existed, and his natural right in it is of the same kind.

The Mosaic account of the creation, whether taken as divine authority or merely historical, is full to this point, the unity or equality of man. The expression admits of no controversy. "And God said, Let us make man in our own image. In the image of God created he him; male and female created he them." The distinction of sexes is pointed out, but no other distinction is even implied. If this be not divine authority, it is at least historical authority, and shows that the equality of man, so far from being a modern doctrine, is the oldest upon record.

It is also to be observed that all the religions known in the world are founded, so far as they relate to man, on the unity of man, as being all of one degree. Whether in heaven or in hell, or in whatever state man may be supposed to exist hereafter, the good and the bad are the only distinctions. Nay, even the laws of governments are obliged to slide into this principle, by making degrees to consist in crimes and not in persons.

It is one of the greatest of all truths, and of the highest advantage to cultivate. By considering man in this light, and by instructing him to consider himself in this light, it places him in a close connection with all his duties, whether to his Creator or to the creation, of which he is a part; and it is only when he forgets his origin, or, to use a more fashionable phrase, his birth and family, that he becomes dissolute. It is not among the least of the evils of the present existing governments in all parts of Europe that man, considered as man, is thrown back to a vast distance from his Maker, and the artificial chasm filled up with a succession of barriers, or sort of turnpike gates, through which he has to pass. I will quote Mr. Burke's catalogue of barriers that he has set up between man and his Maker. Putting himself in the character of a herald, he says: "We fear God—we look with awe to kings—with affection to Parliaments with duty to magistrates—with reverence to priests, and with respect to nobility." Mr. Burke has forgotten to put in "chivalry." He has also forgotten to put in Peter.

The duty of man is not a wilderness of turnpike gates, through which he is to pass by tickets from one to the other. It is plain and simple, and consists but of two points. His duty to God, which every man must feel; and with respect to his neighbor, to do as he would be done by. If those to whom power is delegated do well, they will be respected: if not, they will be despised; and with regard to those to whom no power is delegated, but who assume it, the rational world can know nothing of them.

Hitherto we have spoken only (and that but in part) of the natural rights of man. We have now to consider the civil rights of man, and to show how the one originates from the other. Man did not enter into society to become worse than he was before, nor to have fewer rights than he had before, but to have those rights better secured. His natural rights are the foundation of all his civil rights. But in order to pursue this distinction with more precision, it will be necessary to mark the different qualities of natural and civil rights.

A few words will explain this. Natural rights are those which appertain to man in right of his existence. Of this kind are all the intellectual rights, or rights of the mind, and also all those rights of acting as an individual for his own comfort and happiness, which are not injurious to the natural rights of others. Civil rights are those which appertain to man in right of his being a member of society. Every civil right has for its foundation some natural right pre-existing in the individual, but to the enjoyment of which his individual power is not, in all cases, sufficiently competent. Of this kind are all those which relate to security and protection.

From this short review it will be easy to distinguish between that class of natural rights which man retains after entering into society and those which he throws into the common stock as a member of society.

The natural rights which he retains are all those in which the Power to execute is as perfect in the individual as the right itself. Among this class, as is before mentioned, are all the intellectual rights, or rights of the mind; consequently religion is one of those rights. The natural rights which are not retained, are all those in which, though the right is perfect in the individual, the power to execute them is defective. They answer not his purpose. A man, by natural right, has a right to judge in his own cause; and so far as the right of the mind is concerned, he never surrenders it. But what availeth it him to judge, if he has not power to redress? He therefore deposits this right in the common stock of society, and takes the ann of society, of which he is a part, in preference and in addition to his own. Society grants him nothing. Every man is a proprietor in society, and draws on the capital as a matter of right.

From these premisses two or three certain conclusions will follow:

First, That every civil right grows out of a natural right; or, in other words, is a natural right exchanged.

Secondly, That civil power properly considered as such is made up of the aggregate of that class of the natural rights of man, which becomes defective in the individual in point of power, and answers not his purpose, but when collected to a focus becomes competent to the Purpose of every one.

Thirdly, That the power produced from the aggregate of natural rights, imperfect in power in the individual, cannot be applied to invade the natural rights which are retained in the individual, and in which the power to execute is as perfect as the right itself.

We have now, in a few words, traced man from a natural individual to a member of society, and shown, or endeavoured to show, the quality of the natural rights retained, and of those which are exchanged for civil rights. Let us now apply these principles to governments.

In casting our eyes over the world, it is extremely easy to distinguish the governments which have arisen out of society, or out of the social compact, from those which have not; but to place this in a clearer light than what a single glance may afford, it will be proper to take a review of the several sources from which governments have arisen and on which they have been founded.

They may be all comprehended under three heads.

First, Superstition.

Secondly, Power.

Thirdly, The common interest of society and the common rights of man.

The first was a government of priestcraft, the second of conquerors, and the third of reason.

When a set of artful men pretended, through the medium of oracles, to hold intercourse with the Deity, as familiarly as they now march up the back-stairs in European courts, the world was completely under the government of superstition. The oracles were consulted, and whatever they were made to say became the law; and this sort of government lasted as long as this sort of superstition lasted.

After these a race of conquerors arose, whose government, like that of William the Conqueror, was founded in power, and the sword assumed the name of a sceptre. Governments thus established last as long as the power to support them lasts; but that they might avail themselves of every engine

in their favor, they united fraud to force, and set up an idol which they called Divine Right, and which, in imitation of the Pope, who affects to be spiritual and temporal, and in contradiction to the Founder of the Christian religion, twisted itself afterwards into an idol of another shape, called Church and State. The key of St. Peter and the key of the Treasury became quartered on one another, and the wondering cheated multitude worshipped the invention.

When I contemplate the natural dignity of man, when I feel (for Nature has not been kind enough to me to blunt my feelings) for the honour and happiness of its character, I become irritated at the attempt to govern mankind by force and fraud, as if they were all knaves and fools, and can scarcely avoid disgust at those who are thus imposed upon.

We have now to review the governments which arise out of society, in contradistinction to those which arose out of superstition and conquest.

It has been thought a considerable advance towards establishing the principles of Freedom to say that Government is a compact between those who govern and those who are governed; but this cannot be true, because it is putting the effect before the cause; for as man must have existed before governments existed, there necessarily was a time when governments did not exist, and consequently there could originally exist no governors to form such a compact with.

The fact therefore must be that the individuals themselves, each in his own personal and sovereign right, entered into a compact with each other to produce a government: and this is the only mode in which governments have a right to arise, and the only principle on which they have a right to exist.

To possess ourselves of a clear idea of what government is, or ought to be, we must trace it to its origin. In doing this we shall easily discover that governments must have arisen either out of the people or over the people. Mr. Burke has made no distinction. He investigates nothing to its source, and therefore he confounds everything; but he has signified his intention of undertaking, at some future opportunity, a comparison between the constitution of England and France. As he thus renders it a subject of controversy by throwing the gauntlet, I take him upon his own ground. It is in high challenges that high truths have the right of appearing; and I accept it with the more readiness because it affords me, at the same time, an

opportunity of pursuing the subject with respect to governments arising out of society.

But it will be first necessary to define what is meant by a Constitution. It is not sufficient that we adopt the word; we must fix also a standard signification to it.

A constitution is not a thing in name only, but in fact. It has not an ideal, but a real existence; and wherever it cannot be produced in a visible form, there is none. A constitution is a thing antecedent to a government, and a government is only the creature of a constitution. The constitution of a country is not the act of its government, but of the people constituting its government. It is the body of elements, to which you can refer, and quote article by article; and which contains the principles on which the government shall be established, the manner in which it shall be organised, the powers it shall have, the mode of elections, the duration of Parliaments, or by what other name such bodies may be called; the powers which the executive part of the government shall have; and in fine, everything that relates to the complete organisation of a civil government, and the principles on which it shall act, and by which it shall be bound. A constitution, therefore, is to a government what the laws made afterwards by that government are to a court of judicature. The court of judicature does not make the laws, neither can it alter them; it only acts in conformity to the laws made: and the government is in like manner governed by the constitution.

Can, then, Mr. Burke produce the English Constitution? If he cannot, we may fairly conclude that though it has been so much talked about, no such thing as a constitution exists, or ever did exist, and consequently that the people have yet a constitution to form.

Mr. Burke will not, I presume, deny the position I have already advanced—namely, that governments arise either out of the people or over the people. The English Government is one of those which arose out of a conquest, and not out of society, and consequently it arose over the people; and though it has been much modified from the opportunity of circumstances since the time of William the Conqueror, the country has never yet regenerated itself, and is therefore without a constitution.

I readily perceive the reason why Mr. Burke declined going into the comparison between the English and French constitutions, because he could

not but perceive, when he sat down to the task, that no such a thing as a constitution existed on his side the question. His book is certainly bulky enough to have contained all he could say on this subject, and it would have been the best manner in which people could have judged of their separate merits. Why then has he declined the only thing that was worth while to write upon? It was the strongest ground he could take, if the advantages were on his side, but the weakest if they were not; and his declining to take it is either a sign that he could not possess it or could not maintain it.

Mr. Burke said, in a speech last winter in Parliament, "that when the National Assembly first met in three Orders (the Tiers Etat, the Clergy, and the Noblesse), France had then a good constitution." This shows, among numerous other instances, that Mr. Burke does not understand what a constitution is. The persons so met were not a constitution, but a convention, to make a constitution.

The present National Assembly of France is, strictly speaking, the personal social compact. The members of it are the delegates of the nation in its original character; future assemblies will be the delegates of the nation in its organised character. The authority of the present Assembly is different from what the authority of future Assemblies will be. The authority of the present one is to form a constitution; the authority of future assemblies will be to legislate according to the principles and forms prescribed in that constitution; and if experience should hereafter show that alterations, amendments, or additions are necessary, the constitution will point out the mode by which such things shall be done, and not leave it to the discretionary power of the future government.

A government on the principles on which constitutional governments arising out of society are established, cannot have the right of altering itself. If it had, it would be arbitrary. It might make itself what it pleased; and wherever such a right is set up, it shows there is no constitution. The act by which the English Parliament empowered itself to sit seven years, shows there is no constitution in England. It might, by the same self-authority, have sat any great number of years, or for life. The bill which the present Mr. Pitt brought into Parliament some years ago, to reform Parliament, was on the same erroneous principle. The right of reform is in the nation in its original character, and the constitutional method would be by a general

convention elected for the purpose. There is, moreover, a paradox in the idea of vitiated bodies reforming themselves.

From these preliminaries I proceed to draw some comparisons. I have already spoken of the declaration of rights; and as I mean to be as concise as possible, I shall proceed to other parts of the French Constitution.

The constitution of France says that every man who pays a tax of sixty sous per annum (2s. 6d. English) is an elector. What article will Mr. Burke place against this? Can anything be more limited, and at the same time more capricious, than the qualification of electors is in England? Limited—because not one man in an hundred (I speak much within compass) is admitted to vote. Capricious—because the lowest character that can be supposed to exist, and who has not so much as the visible means of an honest livelihood, is an elector in some places: while in other places, the man who pays very large taxes, and has a known fair character, and the farmer who rents to the amount of three or four hundred pounds a year, with a property on that farm to three or four times that amount, is not admitted to be an elector. Everything is out of nature, as Mr. Burke says on another occasion, in this strange chaos, and all sorts of follies are blended with all sorts of crimes. William the Conqueror and his descendants parcelled out the country in this manner, and bribed some parts of it by what they call charters to hold the other parts of it the better subjected to their will. This is the reason why so many of those charters abound in Cornwall; the people were averse to the Government established at the Conquest, and the towns were garrisoned and bribed to enslave the country. All the old charters are the badges of this conquest, and it is from this source that the capriciousness of election arises.

The French Constitution says that the number of representatives for any place shall be in a ratio to the number of taxable inhabitants or electors. What article will Mr. Burke place against this? The county of York, which contains nearly a million of souls, sends two county members; and so does the county of Rutland, which contains not an hundredth part of that number. The old town of Sarum, which contains not three houses, sends two members; and the town of Manchester, which contains upward of sixty thousand souls, is not admitted to send any. Is there any principle in these things? It is admitted that all this is altered, but there is much to be done yet, before we have a fair representation of the people. Is there anything by

which you can trace the marks of freedom, or discover those of wisdom? No wonder then Mr. Burke has declined the comparison, and endeavored to lead his readers from the point by a wild, unsystematical display of paradoxical rhapsodies.

The French Constitution says that the National Assembly shall be elected every two years. What article will Mr. Burke place against this? Why, that the nation has no right at all in the case; that the government is perfectly arbitrary with respect to this point; and he can quote for his authority the precedent of a former Parliament.

The French Constitution says there shall be no game laws, that the farmer on whose lands wild game shall be found (for it is by the produce of his lands they are fed) shall have a right to what he can take; that there shall be no monopolies of any kind—that all trades shall be free and every man free to follow any occupation by which he can procure an honest livelihood, and in any place, town, or city throughout the nation. What will Mr. Burke say to this? In England, game is made the property of those at whose expense it is not fed; and with respect to monopolies, the country is cut up into monopolies. Every chartered town is an aristocratical monopoly in itself, and the qualification of electors proceeds out of those chartered monopolies. Is this freedom? Is this what Mr. Burke means by a constitution?

In these chartered monopolies, a man coming from another part of the country is hunted from them as if he were a foreign enemy. An Englishman is not free of his own country; every one of those places presents a barrier in his way, and tells him he is not a freeman—that he has no rights. Within these monopolies are other monopolies. In a city, such for instance as Bath, which contains between twenty and thirty thousand inhabitants, the right of electing representatives to Parliament is monopolised by about thirty-one persons. And within these monopolies are still others. A man even of the same town, whose parents were not in circumstances to give him an occupation, is debarred, in many cases, from the natural right of acquiring one, be his genius or industry what it may.

Are these things examples to hold out to a country regenerating itself from slavery, like France? Certainly they are not, and certain am I, that when the people of England come to reflect upon them they will, like France, annihilate those badges of ancient oppression, those traces of a

conquered nation. Had Mr. Burke possessed talents similar to the author of "On the Wealth of Nations." he would have comprehended all the parts which enter into, and, by assemblage, form a constitution. He would have reasoned from minutiae to magnitude. It is not from his prejudices only, but from the disorderly cast of his genius, that he is unfitted for the subject he writes upon. Even his genius is without a constitution. It is a genius at random, and not a genius constituted. But he must say something. He has therefore mounted in the air like a balloon, to draw the eyes of the multitude from the ground they stand upon.

Much is to be learned from the French Constitution. Conquest and tyranny transplanted themselves with William the Conqueror from Normandy into England, and the country is yet disfigured with the marks. May, then, the example of all France contribute to regenerate the freedom which a province of it destroyed!

The French Constitution says that to preserve the national representation from being corrupt, no member of the National Assembly shall be an officer of the government, a placeman or a pensioner. What will Mr. Burke place against this? I will whisper his answer: Loaves and Fishes. Ah! this government of loaves and fishes has more mischief in it than people have yet reflected on. The National Assembly has made the discovery, and it holds out the example to the world. Had governments agreed to quarrel on purpose to fleece their countries by taxes, they could not have succeeded better than they have done.

Everything in the English government appears to me the reverse of what it ought to be, and of what it is said to be. The Parliament, imperfectly and capriciously elected as it is, is nevertheless supposed to hold the national purse in trust for the nation; but in the manner in which an English Parliament is constructed it is like a man being both mortgagor and mortgagee, and in the case of misapplication of trust it is the criminal sitting in judgment upon himself. If those who vote the supplies are the same persons who receive the supplies when voted, and are to account for the expenditure of those supplies to those who voted them, it is themselves accountable to themselves, and the Comedy of Errors concludes with the pantomime of Hush. Neither the Ministerial party nor the Opposition will touch upon this case. The national purse is the common hack which each

mounts upon. It is like what the country people call "Ride and tie—you ride a little way, and then I."*⁵ They order these things better in France.

The French Constitution says that the right of war and peace is in the nation. Where else should it reside but in those who are to pay the expense?

In England this right is said to reside in a metaphor shown at the Tower for sixpence or a shilling a piece: so are the lions; and it would be a step nearer to reason to say it resided in them, for any inanimate metaphor is no more than a hat or a cap. We can all see the absurdity of worshipping Aaron's molten calf, or Nebuchadnezzar's golden image; but why do men continue to practise themselves the absurdities they despise in others?

It may with reason be said that in the manner the English nation is represented it signifies not where the right resides, whether in the Crown or in the Parliament. War is the common harvest of all those who participate in the division and expenditure of public money, in all countries. It is the art of conquering at home; the object of it is an increase of revenue; and as revenue cannot be increased without taxes, a pretence must be made for expenditure. In reviewing the history of the English Government, its wars and its taxes, a bystander, not blinded by prejudice nor warped by interest, would declare that taxes were not raised to carry on wars, but that wars were raised to carry on taxes.

Mr. Burke, as a member of the House of Commons, is a part of the English Government; and though he professes himself an enemy to war, he abuses the French Constitution, which seeks to explode it. He holds up the English Government as a model, in all its parts, to France; but he should first know the remarks which the French make upon it. They contend in favor of their own, that the portion of liberty enjoyed in England is just enough to enslave a country more productively than by despotism, and that as the real object of all despotism is revenue, a government so formed obtains more than it could do either by direct despotism, or in a full state of freedom, and is, therefore on the ground of interest, opposed to both. They account also for the readiness which always appears in such governments for engaging in wars by remarking on the different motives which produced them. In despotic governments wars are the effect of pride; but in those governments in which they become the means of taxation, they acquire thereby a more permanent promptitude.

The French Constitution, therefore, to provide against both these evils, has taken away the power of declaring war from kings and ministers, and placed the right where the expense must fall.

When the question of the right of war and peace was agitating in the National Assembly, the people of England appeared to be much interested in the event, and highly to applaud the decision. As a principle it applies as much to one country as another. William the Conqueror, as a conqueror, held this power of war and peace in himself, and his descendants have ever since claimed it under him as a right.

Although Mr. Burke has asserted the right of the Parliament at the Revolution to bind and control the nation and posterity for ever, he denies at the same time that the Parliament or the nation had any right to alter what he calls the succession of the crown in anything but in part, or by a sort of modification. By his taking this ground he throws the case back to the Norman Conquest, and by thus running a line of succession springing from William the Conqueror to the present day, he makes it necessary to enquire who and what William the Conqueror was, and where he came from, and into the origin, history and nature of what are called prerogatives. Everything must have had a beginning, and the fog of time and antiquity should be penetrated to discover it. Let, then, Mr. Burke bring forward his William of Normandy, for it is to this origin that his argument goes. It also unfortunately happens, in running this line of succession, that another line parallel thereto presents itself, which is that if the succession runs in the line of the conquest, the nation runs in the line of being conquered, and it ought to rescue itself from this reproach.

But it will perhaps be said that though the power of declaring war descends in the heritage of the conquest, it is held in check by the right of Parliament to withhold the supplies. It will always happen when a thing is originally wrong that amendments do not make it right, and it often happens that they do as much mischief one way as good the other, and such is the case here, for if the one rashly declares war as a matter of right, and the other peremptorily withholds the supplies as a matter of right, the remedy becomes as bad, or worse, than the disease. The one forces the nation to a combat, and the other ties its hands; but the more probable issue is that the contest will end in a collusion between the parties, and be made a screen to both.

On this question of war, three things are to be considered. First, the right of declaring it: secondly, the expense of supporting it: thirdly, the mode of conducting it after it is declared. The French Constitution places the right where the expense must fall, and this union can only be in the nation. The mode of conducting it after it is declared, it consigns to the executive department. Were this the case in all countries, we should hear but little more of wars.

Before I proceed to consider other parts of the French Constitution, and by way of relieving the fatigue of argument, I will introduce an anecdote which I had from Dr. Franklin.

While the Doctor resided in France as Minister from America, during the war, he had numerous proposals made to him by projectors of every country and of every kind, who wished to go to the land that floweth with milk and honey, America; and among the rest, there was one who offered himself to be king. He introduced his proposal to the Doctor by letter, which is now in the hands of M. Beaumarchais, of Paris—stating, first, that as the Americans had dismissed or sent away*[6](#) their King, that they would want another. Secondly, that himself was a Norman. Thirdly, that he was of a more ancient family than the Dukes of Normandy, and of a more honorable descent, his line having never been bastardised. Fourthly, that there was already a precedent in England of kings coming out of Normandy, and on these grounds he rested his offer, enjoining that the Doctor would forward it to America. But as the Doctor neither did this, nor yet sent him an answer, the projector wrote a second letter, in which he did not, it is true, threaten to go over and conquer America, but only with great dignity proposed that if his offer was not accepted, an acknowledgment of about L30,000 might be made to him for his generosity! Now, as all arguments respecting succession must necessarily connect that succession with some beginning, Mr. Burke's arguments on this subject go to show that there is no English origin of kings, and that they are descendants of the Norman line in right of the Conquest. It may, therefore, be of service to his doctrine to make this story known, and to inform him, that in case of that natural extinction to which all mortality is subject, Kings may again be had from Normandy, on more reasonable terms than William the Conqueror; and consequently, that the good people of England, at the revolution of 1688, might have done much better, had such a generous Norman as this known their wants, and they had known his. The chivalric character which Mr. Burke so much

admires, is certainly much easier to make a bargain with than a hard dealing Dutchman. But to return to the matters of the constitution: The French Constitution says, There shall be no titles; and, of consequence, all that class of equivocal generation which in some countries is called "aristocracy" and in others "nobility," is done away, and the peer is exalted into the Man.

Titles are but nicknames, and every nickname is a title. The thing is perfectly harmless in itself, but it marks a sort of foppery in the human character, which degrades it. It reduces man into the diminutive of man in things which are great, and the counterfeit of women in things which are little. It talks about its fine blue ribbon like a girl, and shows its new garter like a child. A certain writer, of some antiquity, says: "When I was a child, I thought as a child; but when I became a man, I put away childish things."

It is, properly, from the elevated mind of France that the folly of titles has fallen. It has outgrown the baby clothes of Count and Duke, and breeched itself in manhood. France has not levelled, it has exalted. It has put down the dwarf, to set up the man. The punyism of a senseless word like Duke, Count or Earl has ceased to please. Even those who possessed them have disowned the gibberish, and as they outgrew the rickets, have despised the rattle. The genuine mind of man, thirsting for its native home, society, contemns the gewgaws that separate him from it. Titles are like circles drawn by the magician's wand, to contract the sphere of man's felicity. He lives immured within the Bastille of a word, and surveys at a distance the envied life of man.

Is it, then, any wonder that titles should fall in France? Is it not a greater wonder that they should be kept up anywhere? What are they? What is their worth, and "what is their amount?" When we think or speak of a Judge or a General, we associate with it the ideas of office and character; we think of gravity in one and bravery in the other; but when we use the word merely as a title, no ideas associate with it. Through all the vocabulary of Adam there is not such an animal as a Duke or a Count; neither can we connect any certain ideas with the words. Whether they mean strength or weakness, wisdom or folly, a child or a man, or the rider or the horse, is all equivocal. What respect then can be paid to that which describes nothing, and which means nothing? Imagination has given figure and character to centaurs,

satyrs, and down to all the fairy tribe; but titles baffle even the powers of fancy, and are a chimerical nondescript.

But this is not all. If a whole country is disposed to hold them in contempt, all their value is gone, and none will own them. It is common opinion only that makes them anything, or nothing, or worse than nothing. There is no occasion to take titles away, for they take themselves away when society concurs to ridicule them. This species of imaginary consequence has visibly declined in every part of Europe, and it hastens to its exit as the world of reason continues to rise. There was a time when the lowest class of what are called nobility was more thought of than the highest is now, and when a man in armour riding throughout Christendom in quest of adventures was more stared at than a modern Duke. The world has seen this folly fall, and it has fallen by being laughed at, and the farce of titles will follow its fate. The patriots of France have discovered in good time that rank and dignity in society must take a new ground. The old one has fallen through. It must now take the substantial ground of character, instead of the chimerical ground of titles; and they have brought their titles to the altar, and made of them a burnt-offering to Reason.

If no mischief had annexed itself to the folly of titles they would not have been worth a serious and formal destruction, such as the National Assembly have decreed them; and this makes it necessary to enquire farther into the nature and character of aristocracy.

That, then, which is called aristocracy in some countries and nobility in others arose out of the governments founded upon conquest. It was originally a military order for the purpose of supporting military government (for such were all governments founded in conquest); and to keep up a succession of this order for the purpose for which it was established, all the younger branches of those families were disinherited and the law of primogenitureship set up.

The nature and character of aristocracy shows itself to us in this law. It is the law against every other law of nature, and Nature herself calls for its destruction. Establish family justice, and aristocracy falls. By the aristocratical law of primogenitureship, in a family of six children five are exposed. Aristocracy has never more than one child. The rest are begotten to be devoured. They are thrown to the cannibal for prey, and the natural parent prepares the unnatural repast.

As everything which is out of nature in man affects, more or less, the interest of society, so does this. All the children which the aristocracy disowns (which are all except the eldest) are, in general, cast like orphans on a parish, to be provided for by the public, but at a greater charge. Unnecessary offices and places in governments and courts are created at the expense of the public to maintain them.

With what kind of parental reflections can the father or mother contemplate their younger offspring? By nature they are children, and by marriage they are heirs; but by aristocracy they are bastards and orphans. They are the flesh and blood of their parents in the one line, and nothing akin to them in the other. To restore, therefore, parents to their children, and children to their parents relations to each other, and man to society—and to exterminate the monster aristocracy, root and branch—the French Constitution has destroyed the law of Primogeniture. Here then lies the monster; and Mr. Burke, if he pleases, may write its epitaph.

Hitherto we have considered aristocracy chiefly in one point of view. We have now to consider it in another. But whether we view it before or behind, or sideways, or any way else, domestically or publicly, it is still a monster.

In France aristocracy had one feature less in its countenance than what it has in some other countries. It did not compose a body of hereditary legislators. It was not "a corporation of aristocracy," for such I have heard M. de la Fayette describe an English House of Peers. Let us then examine the grounds upon which the French Constitution has resolved against having such a House in France.

Because, in the first place, as is already mentioned, aristocracy is kept up by family tyranny and injustice.

Secondly. Because there is an unnatural unfitness in an aristocracy to be legislators for a nation. Their ideas of distributive justice are corrupted at the very source. They begin life by trampling on all their younger brothers and sisters, and relations of every kind, and are taught and educated so to do. With what ideas of justice or honour can that man enter a house of legislation, who absorbs in his own person the inheritance of a whole family of children or doles out to them some pitiful portion with the insolence of a gift?

Thirdly. Because the idea of hereditary legislators is as inconsistent as that of hereditary judges, or hereditary juries; and as absurd as an hereditary

mathematician, or an hereditary wise man; and as ridiculous as an hereditary poet laureate.

Fourthly. Because a body of men, holding themselves accountable to nobody, ought not to be trusted by anybody.

Fifthly. Because it is continuing the uncivilised principle of governments founded in conquest, and the base idea of man having property in man, and governing him by personal right.

Sixthly. Because aristocracy has a tendency to deteriorate the human species. By the universal economy of nature it is known, and by the instance of the Jews it is proved, that the human species has a tendency to degenerate, in any small number of persons, when separated from the general stock of society, and inter-marrying constantly with each other. It defeats even its pretended end, and becomes in time the opposite of what is noble in man. Mr. Burke talks of nobility; let him show what it is. The greatest characters the world have known have arisen on the democratic floor. Aristocracy has not been able to keep a proportionate pace with democracy. The artificial Noble shrinks into a dwarf before the Noble of Nature; and in the few instances of those (for there are some in all countries) in whom nature, as by a miracle, has survived in aristocracy, Those Men Despise It.—But it is time to proceed to a new subject.

The French Constitution has reformed the condition of the clergy. It has raised the income of the lower and middle classes, and taken from the higher. None are now less than twelve hundred livres (fifty pounds sterling), nor any higher than two or three thousand pounds. What will Mr. Burke place against this? Hear what he says.

He says: "That the people of England can see without pain or grudging, an archbishop precede a duke; they can see a Bishop of Durham, or a Bishop of Winchester in possession of L10,000 a-year; and cannot see why it is in worse hands than estates to a like amount, in the hands of this earl or that squire." And Mr. Burke offers this as an example to France.

As to the first part, whether the archbishop precedes the duke, or the duke the bishop, it is, I believe, to the people in general, somewhat like Sternhold and Hopkins, or Hopkins and Sternhold; you may put which you please first; and as I confess that I do not understand the merits of this case, I will not contest it with Mr. Burke.

But with respect to the latter, I have something to say. Mr. Burke has not put the case right. The comparison is out of order, by being put between the bishop and the earl or the squire. It ought to be put between the bishop and the curate, and then it will stand thus:—"The people of England can see without pain or grudging, a Bishop of Durham, or a Bishop of Winchester, in possession of ten thousand pounds a-year, and a curate on thirty or forty pounds a-year, or less." No, sir, they certainly do not see those things without great pain or grudging. It is a case that applies itself to every man's sense of justice, and is one among many that calls aloud for a constitution.

In France the cry of "the church! the church!" was repeated as often as in Mr. Burke's book, and as loudly as when the Dissenters' Bill was before the English Parliament; but the generality of the French clergy were not to be deceived by this cry any longer. They knew that whatever the pretence might be, it was they who were one of the principal objects of it. It was the cry of the high beneficed clergy, to prevent any regulation of income taking place between those of ten thousand pounds a-year and the parish priest. They therefore joined their case to those of every other oppressed class of men, and by this union obtained redress.

The French Constitution has abolished tythes, that source of perpetual discontent between the tythe-holder and the parishioner. When land is held on tythe, it is in the condition of an estate held between two parties; the one receiving one-tenth, and the other nine-tenths of the produce: and consequently, on principles of equity, if the estate can be improved, and made to produce by that improvement double or treble what it did before, or in any other ratio, the expense of such improvement ought to be borne in like proportion between the parties who are to share the produce. But this is not the case in tythes: the farmer bears the whole expense, and the tythe-holder takes a tenth of the improvement, in addition to the original tenth, and by this means gets the value of two-tenths instead of one. This is another case that calls for a constitution.

The French Constitution hath abolished or renounced Toleration and Intolerance also, and hath established Universal Right Of Conscience.

Toleration is not the opposite of Intolerance, but is the counterfeit of it. Both are despotisms. The one assumes to itself the right of withholding Liberty of Conscience, and the other of granting it. The one is the Pope armed with fire and faggot, and the other is the Pope selling or granting

indulgences. The former is church and state, and the latter is church and traffic.

But Toleration may be viewed in a much stronger light. Man worships not himself, but his Maker; and the liberty of conscience which he claims is not for the service of himself, but of his God. In this case, therefore, we must necessarily have the associated idea of two things; the mortal who renders the worship, and the Immortal Being who is worshipped. Toleration, therefore, places itself, not between man and man, nor between church and church, nor between one denomination of religion and another, but between God and man; between the being who worships, and the Being who is worshipped; and by the same act of assumed authority which it tolerates man to pay his worship, it presumptuously and blasphemously sets itself up to tolerate the Almighty to receive it.

Were a bill brought into any Parliament, entitled, "An Act to tolerate or grant liberty to the Almighty to receive the worship of a Jew or Turk," or "to prohibit the Almighty from receiving it," all men would startle and call it blasphemy. There would be an uproar. The presumption of toleration in religious matters would then present itself unmasked; but the presumption is not the less because the name of "Man" only appears to those laws, for the associated idea of the worshipper and the worshipped cannot be separated. Who then art thou, vain dust and ashes! by whatever name thou art called, whether a King, a Bishop, a Church, or a State, a Parliament, or anything else, that obtrudest thine insignificance between the soul of man and its Maker? Mind thine own concerns. If he believes not as thou believest, it is a proof that thou believest not as he believes, and there is no earthly power can determine between you.

With respect to what are called denominations of religion, if every one is left to judge of its own religion, there is no such thing as a religion that is wrong; but if they are to judge of each other's religion, there is no such thing as a religion that is right; and therefore all the world is right, or all the world is wrong. But with respect to religion itself, without regard to names, and as directing itself from the universal family of mankind to the Divine object of all adoration, it is man bringing to his Maker the fruits of his heart; and though those fruits may differ from each other like the fruits of the earth, the grateful tribute of every one is accepted.

A Bishop of Durham, or a Bishop of Winchester, or the archbishop who heads the dukes, will not refuse a tythe-sheaf of wheat because it is not a cock of hay, nor a cock of hay because it is not a sheaf of wheat; nor a pig, because it is neither one nor the other; but these same persons, under the figure of an established church, will not permit their Maker to receive the varied tythes of man's devotion.

One of the continual choruses of Mr. Burke's book is "Church and State." He does not mean some one particular church, or some one particular state, but any church and state; and he uses the term as a general figure to hold forth the political doctrine of always uniting the church with the state in every country, and he censures the National Assembly for not having done this in France. Let us bestow a few thoughts on this subject.

All religions are in their nature kind and benign, and united with principles of morality. They could not have made proselytes at first by professing anything that was vicious, cruel, persecuting, or immoral. Like everything else, they had their beginning; and they proceeded by persuasion, exhortation, and example. How then is it that they lose their native mildness, and become morose and intolerant?

It proceeds from the connection which Mr. Burke recommends. By engendering the church with the state, a sort of mule-animal, capable only of destroying, and not of breeding up, is produced, called the Church established by Law. It is a stranger, even from its birth, to any parent mother, on whom it is begotten, and whom in time it kicks out and destroys.

The inquisition in Spain does not proceed from the religion originally professed, but from this mule-animal, engendered between the church and the state. The burnings in Smithfield proceeded from the same heterogeneous production; and it was the regeneration of this strange animal in England afterwards, that renewed rancour and irreligion among the inhabitants, and that drove the people called Quakers and Dissenters to America. Persecution is not an original feature in any religion; but it is always the strongly-marked feature of all law-religions, or religions established by law. Take away the law-establishment, and every religion re-assumes its original benignity. In America, a catholic priest is a good citizen, a good character, and a good neighbour; an episcopalian minister is of the same description: and this proceeds independently of the men, from there being no law-establishment in America.

If also we view this matter in a temporal sense, we shall see the ill effects it has had on the prosperity of nations. The union of church and state has impoverished Spain. The revoking the edict of Nantes drove the silk manufacture from that country into England; and church and state are now driving the cotton manufacture from England to America and France. Let then Mr. Burke continue to preach his antipolitical doctrine of Church and State. It will do some good. The National Assembly will not follow his advice, but will benefit by his folly. It was by observing the ill effects of it in England, that America has been warned against it; and it is by experiencing them in France, that the National Assembly have abolished it, and, like America, have established Universal Right Of Conscience, And Universal Right Of Citizenship.*[7](#)

I will here cease the comparison with respect to the principles of the French Constitution, and conclude this part of the subject with a few observations on the organisation of the formal parts of the French and English governments.

The executive power in each country is in the hands of a person styled the King; but the French Constitution distinguishes between the King and the Sovereign: It considers the station of King as official, and places Sovereignty in the nation.

The representatives of the nation, who compose the National Assembly, and who are the legislative power, originate in and from the people by election, as an inherent right in the people.—In England it is otherwise; and this arises from the original establishment of what is called its monarchy; for, as by the conquest all the rights of the people or the nation were absorbed into the hands of the Conqueror, and who added the title of King to that of Conqueror, those same matters which in France are now held as rights in the people, or in the nation, are held in England as grants from what is called the crown. The Parliament in England, in both its branches, was erected by patents from the descendants of the Conqueror. The House of Commons did not originate as a matter of right in the people to delegate or elect, but as a grant or boon.

By the French Constitution the nation is always named before the king. The third article of the declaration of rights says: "The nation is essentially the source (or fountain) of all sovereignty." Mr. Burke argues that in England a king is the fountain—that he is the fountain of all honour. But as

this idea is evidently descended from the conquest I shall make no other remark upon it, than that it is the nature of conquest to turn everything upside down; and as Mr. Burke will not be refused the privilege of speaking twice, and as there are but two parts in the figure, the fountain and the spout, he will be right the second time.

The French Constitution puts the legislative before the executive, the law before the king; *la loi, le roi*. This also is in the natural order of things, because laws must have existence before they can have execution.

A king in France does not, in addressing himself to the National Assembly, say, "My Assembly," similar to the phrase used in England of my "Parliament"; neither can he use it consistently with the constitution, nor could it be admitted. There may be propriety in the use of it in England, because as is before mentioned, both Houses of Parliament originated from what is called the crown by patent or boon—and not from the inherent rights of the people, as the National Assembly does in France, and whose name designates its origin.

The President of the National Assembly does not ask the King to grant to the Assembly liberty of speech, as is the case with the English House of Commons. The constitutional dignity of the National Assembly cannot debase itself. Speech is, in the first place, one of the natural rights of man always retained; and with respect to the National Assembly the use of it is their duty, and the nation is their authority. They were elected by the greatest body of men exercising the right of election the European world ever saw. They sprung not from the filth of rotten boroughs, nor are they the vassal representatives of aristocratical ones. Feeling the proper dignity of their character they support it. Their Parliamentary language, whether for or against a question, is free, bold and manly, and extends to all the parts and circumstances of the case. If any matter or subject respecting the executive department or the person who presides in it (the king) comes before them it is debated on with the spirit of men, and in the language of gentlemen; and their answer or their address is returned in the same style. They stand not aloof with the gaping vacuity of vulgar ignorance, nor bend with the cringe of sycophantic insignificance. The graceful pride of truth knows no extremes, and preserves, in every latitude of life, the right-angled character of man.

Let us now look to the other side of the question. In the addresses of the English Parliaments to their kings we see neither the intrepid spirit of the old Parliaments of France, nor the serene dignity of the present National Assembly; neither do we see in them anything of the style of English manners, which border somewhat on bluntness. Since then they are neither of foreign extraction, nor naturally of English production, their origin must be sought for elsewhere, and that origin is the Norman Conquest. They are evidently of the vassalage class of manners, and emphatically mark the prostrate distance that exists in no other condition of men than between the conqueror and the conquered. That this vassalage idea and style of speaking was not got rid of even at the Revolution of 1688, is evident from the declaration of Parliament to William and Mary in these words: "We do most humbly and faithfully submit ourselves, our heirs and posterities, for ever." Submission is wholly a vassalage term, repugnant to the dignity of freedom, and an echo of the language used at the Conquest.

As the estimation of all things is given by comparison, the Revolution of 1688, however from circumstances it may have been exalted beyond its value, will find its level. It is already on the wane, eclipsed by the enlarging orb of reason, and the luminous revolutions of America and France. In less than another century it will go, as well as Mr. Burke's labours, "to the family vault of all the Capulets." Mankind will then scarcely believe that a country calling itself free would send to Holland for a man, and clothe him with power on purpose to put themselves in fear of him, and give him almost a million sterling a year for leave to submit themselves and their posterity, like bondmen and bondwomen, for ever.

But there is a truth that ought to be made known; I have had the opportunity of seeing it; which is, that notwithstanding appearances, there is not any description of men that despise monarchy so much as courtiers. But they well know, that if it were seen by others, as it is seen by them, the juggle could not be kept up; they are in the condition of men who get their living by a show, and to whom the folly of that show is so familiar that they ridicule it; but were the audience to be made as wise in this respect as themselves, there would be an end to the show and the profits with it. The difference between a republican and a courtier with respect to monarchy, is that the one opposes monarchy, believing it to be something; and the other laughs at it, knowing it to be nothing.

As I used sometimes to correspond with Mr. Burke believing him then to be a man of sounder principles than his book shows him to be, I wrote to him last winter from Paris, and gave him an account how prosperously matters were going on. Among other subjects in that letter, I referred to the happy situation the National Assembly were placed in; that they had taken ground on which their moral duty and their political interest were united. They have not to hold out a language which they do not themselves believe, for the fraudulent purpose of making others believe it. Their station requires no artifice to support it, and can only be maintained by enlightening mankind. It is not their interest to cherish ignorance, but to dispel it. They are not in the case of a ministerial or an opposition party in England, who, though they are opposed, are still united to keep up the common mystery. The National Assembly must throw open a magazine of light. It must show man the proper character of man; and the nearer it can bring him to that standard, the stronger the National Assembly becomes.

In contemplating the French Constitution, we see in it a rational order of things. The principles harmonise with the forms, and both with their origin. It may perhaps be said as an excuse for bad forms, that they are nothing more than forms; but this is a mistake. Forms grow out of principles, and operate to continue the principles they grow from. It is impossible to practise a bad form on anything but a bad principle. It cannot be ingrafted on a good one; and wherever the forms in any government are bad, it is a certain indication that the principles are bad also.

I will here finally close this subject. I began it by remarking that Mr. Burke had voluntarily declined going into a comparison of the English and French Constitutions. He apologises (in page 241) for not doing it, by saying that he had not time. Mr. Burke's book was upwards of eight months in hand, and is extended to a volume of three hundred and sixty-six pages. As his omission does injury to his cause, his apology makes it worse; and men on the English side of the water will begin to consider, whether there is not some radical defect in what is called the English constitution, that made it necessary for Mr. Burke to suppress the comparison, to avoid bringing it into view.

As Mr. Burke has not written on constitutions so neither has he written on the French Revolution. He gives no account of its commencement or its progress. He only expresses his wonder. "It looks," says he, "to me, as if I

were in a great crisis, not of the affairs of France alone, but of all Europe, perhaps of more than Europe. All circumstances taken together, the French Revolution is the most astonishing that has hitherto happened in the world."

As wise men are astonished at foolish things, and other people at wise ones, I know not on which ground to account for Mr. Burke's astonishment; but certain it is, that he does not understand the French Revolution. It has apparently burst forth like a creation from a chaos, but it is no more than the consequence of a mental revolution priorly existing in France. The mind of the nation had changed beforehand, and the new order of things has naturally followed the new order of thoughts. I will here, as concisely as I can, trace out the growth of the French Revolution, and mark the circumstances that have contributed to produce it.

The despotism of Louis XIV., united with the gaiety of his Court, and the gaudy ostentation of his character, had so humbled, and at the same time so fascinated the mind of France, that the people appeared to have lost all sense of their own dignity, in contemplating that of their Grand Monarch; and the whole reign of Louis XV., remarkable only for weakness and effeminacy, made no other alteration than that of spreading a sort of lethargy over the nation, from which it showed no disposition to rise.

The only signs which appeared to the spirit of Liberty during those periods, are to be found in the writings of the French philosophers. Montesquieu, President of the Parliament of Bordeaux, went as far as a writer under a despotic government could well proceed; and being obliged to divide himself between principle and prudence, his mind often appears under a veil, and we ought to give him credit for more than he has expressed.

Voltaire, who was both the flatterer and the satirist of despotism, took another line. His forte lay in exposing and ridiculing the superstitions which priest-craft, united with state-craft, had interwoven with governments. It was not from the purity of his principles, or his love of mankind (for satire and philanthropy are not naturally concordant), but from his strong capacity of seeing folly in its true shape, and his irresistible propensity to expose it, that he made those attacks. They were, however, as formidable as if the motive had been virtuous; and he merits the thanks rather than the esteem of mankind.

On the contrary, we find in the writings of Rousseau, and the Abbe Raynal, a loveliness of sentiment in favour of liberty, that excites respect, and elevates the human faculties; but having raised this animation, they do not direct its operation, and leave the mind in love with an object, without describing the means of possessing it.

The writings of Quesnay, Turgot, and the friends of those authors, are of the serious kind; but they laboured under the same disadvantage with Montesquieu; their writings abound with moral maxims of government, but are rather directed to economise and reform the administration of the government, than the government itself.

But all those writings and many others had their weight; and by the different manner in which they treated the subject of government, Montesquieu by his judgment and knowledge of laws, Voltaire by his wit, Rousseau and Raynal by their animation, and Quesnay and Turgot by their moral maxims and systems of economy, readers of every class met with something to their taste, and a spirit of political inquiry began to diffuse itself through the nation at the time the dispute between England and the then colonies of America broke out.

In the war which France afterwards engaged in, it is very well known that the nation appeared to be before-hand with the French ministry. Each of them had its view; but those views were directed to different objects; the one sought liberty, and the other retaliation on England. The French officers and soldiers who after this went to America, were eventually placed in the school of Freedom, and learned the practice as well as the principles of it by heart.

As it was impossible to separate the military events which took place in America from the principles of the American Revolution, the publication of those events in France necessarily connected themselves with the principles which produced them. Many of the facts were in themselves principles; such as the declaration of American Independence, and the treaty of alliance between France and America, which recognised the natural rights of man, and justified resistance to oppression.

The then Minister of France, Count Vergennes, was not the friend of America; and it is both justice and gratitude to say, that it was the Queen of France who gave the cause of America a fashion at the French Court. Count Vergennes was the personal and social friend of Dr. Franklin; and the

Doctor had obtained, by his sensible gracefulness, a sort of influence over him; but with respect to principles Count Vergennes was a despot.

The situation of Dr. Franklin, as Minister from America to France, should be taken into the chain of circumstances. The diplomatic character is of itself the narrowest sphere of society that man can act in. It forbids intercourse by the reciprocity of suspicion; and a diplomatic is a sort of unconnected atom, continually repelling and repelled. But this was not the case with Dr. Franklin. He was not the diplomatic of a Court, but of Man. His character as a philosopher had been long established, and his circle of society in France was universal.

Count Vergennes resisted for a considerable time the publication in France of American constitutions, translated into the French language: but even in this he was obliged to give way to public opinion, and a sort of propriety in admitting to appear what he had undertaken to defend. The American constitutions were to liberty what a grammar is to language: they define its parts of speech, and practically construct them into syntax.

The peculiar situation of the then Marquis de la Fayette is another link in the great chain. He served in America as an American officer under a commission of Congress, and by the universality of his acquaintance was in close friendship with the civil government of America, as well as with the military line. He spoke the language of the country, entered into the discussions on the principles of government, and was always a welcome friend at any election.

When the war closed, a vast reinforcement to the cause of Liberty spread itself over France, by the return of the French officers and soldiers. A knowledge of the practice was then joined to the theory; and all that was wanting to give it real existence was opportunity. Man cannot, properly speaking, make circumstances for his purpose, but he always has it in his power to improve them when they occur, and this was the case in France.

M. Neckar was displaced in May, 1781; and by the ill-management of the finances afterwards, and particularly during the extravagant administration of M. Calonne, the revenue of France, which was nearly twenty-four millions sterling per year, was become unequal to the expenditure, not because the revenue had decreased, but because the expenses had increased; and this was a circumstance which the nation laid hold of to bring forward a Revolution. The English Minister, Mr. Pitt, has frequently alluded to the

state of the French finances in his budgets, without understanding the subject. Had the French Parliaments been as ready to register edicts for new taxes as an English Parliament is to grant them, there had been no derangement in the finances, nor yet any Revolution; but this will better explain itself as I proceed.

It will be necessary here to show how taxes were formerly raised in France. The King, or rather the Court or Ministry acting under the use of that name, framed the edicts for taxes at their own discretion, and sent them to the Parliaments to be registered; for until they were registered by the Parliaments they were not operative. Disputes had long existed between the Court and the Parliaments with respect to the extent of the Parliament's authority on this head. The Court insisted that the authority of Parliaments went no farther than to remonstrate or show reasons against the tax, reserving to itself the right of determining whether the reasons were well or ill-founded; and in consequence thereof, either to withdraw the edict as a matter of choice, or to order it to be unregistered as a matter of authority. The Parliaments on their part insisted that they had not only a right to remonstrate, but to reject; and on this ground they were always supported by the nation.

But to return to the order of my narrative. M. Calonne wanted money: and as he knew the sturdy disposition of the Parliaments with respect to new taxes, he ingeniously sought either to approach them by a more gentle means than that of direct authority, or to get over their heads by a manoeuvre; and for this purpose he revived the project of assembling a body of men from the several provinces, under the style of an "Assembly of the Notables," or men of note, who met in 1787, and who were either to recommend taxes to the Parliaments, or to act as a Parliament themselves. An Assembly under this name had been called in 1617.

As we are to view this as the first practical step towards the Revolution, it will be proper to enter into some particulars respecting it. The Assembly of the Notables has in some places been mistaken for the States-General, but was wholly a different body, the States-General being always by election. The persons who composed the Assembly of the Notables were all nominated by the king, and consisted of one hundred and forty members. But as M. Calonne could not depend upon a majority of this Assembly in his favour, he very ingeniously arranged them in such a manner as to make

forty-four a majority of one hundred and forty; to effect this he disposed of them into seven separate committees, of twenty members each. Every general question was to be decided, not by a majority of persons, but by a majority of committee, and as eleven votes would make a majority in a committee, and four committees a majority of seven, M. Calonne had good reason to conclude that as forty-four would determine any general question he could not be outvoted. But all his plans deceived him, and in the event became his overthrow.

The then Marquis de la Fayette was placed in the second committee, of which the Count D'Artois was president, and as money matters were the object, it naturally brought into view every circumstance connected with it. M. de la Fayette made a verbal charge against Calonne for selling crown lands to the amount of two millions of livres, in a manner that appeared to be unknown to the king. The Count D'Artois (as if to intimidate, for the Bastille was then in being) asked the Marquis if he would render the charge in writing? He replied that he would. The Count D'Artois did not demand it, but brought a message from the king to that purport. M. de la Fayette then delivered in his charge in writing, to be given to the king, undertaking to support it. No farther proceedings were had upon this affair, but M. Calonne was soon after dismissed by the king and set off to England.

As M. de la Fayette, from the experience of what he had seen in America, was better acquainted with the science of civil government than the generality of the members who composed the Assembly of the Notables could then be, the brunt of the business fell considerably to his share. The plan of those who had a constitution in view was to contend with the Court on the ground of taxes, and some of them openly professed their object. Disputes frequently arose between Count D'Artois and M. de la Fayette upon various subjects. With respect to the arrears already incurred the latter proposed to remedy them by accommodating the expenses to the revenue instead of the revenue to the expenses; and as objects of reform he proposed to abolish the Bastille and all the State prisons throughout the nation (the keeping of which was attended with great expense), and to suppress Lettres de Cachet; but those matters were not then much attended to, and with respect to Lettres de Cachet, a majority of the Nobles appeared to be in favour of them.

On the subject of supplying the Treasury by new taxes the Assembly declined taking the matter on themselves, concurring in the opinion that they had not authority. In a debate on this subject M. de la Fayette said that raising money by taxes could only be done by a National Assembly, freely elected by the people, and acting as their representatives. Do you mean, said the Count D'Artois, the States-General? M. de la Fayette replied that he did. Will you, said the Count D'Artois, sign what you say to be given to the king? The other replied that he would not only do this but that he would go farther, and say that the effectual mode would be for the king to agree to the establishment of a constitution.

As one of the plans had thus failed, that of getting the Assembly to act as a Parliament, the other came into view, that of recommending. On this subject the Assembly agreed to recommend two new taxes to be unregistered by the Parliament: the one a stamp-tax and the other a territorial tax, or sort of land-tax. The two have been estimated at about five millions sterling per annum. We have now to turn our attention to the Parliaments, on whom the business was again devolving.

The Archbishop of Thoulouse (since Archbishop of Sens, and now a Cardinal), was appointed to the administration of the finances soon after the dismissal of Calonne. He was also made Prime Minister, an office that did not always exist in France. When this office did not exist, the chief of each of the principal departments transacted business immediately with the King, but when a Prime Minister was appointed they did business only with him. The Archbishop arrived to more state authority than any minister since the Duke de Choiseul, and the nation was strongly disposed in his favour; but by a line of conduct scarcely to be accounted for he perverted every opportunity, turned out a despot, and sunk into disgrace, and a Cardinal.

The Assembly of the Notables having broken up, the minister sent the edicts for the two new taxes recommended by the Assembly to the Parliaments to be unregistered. They of course came first before the Parliament of Paris, who returned for answer: "that with such a revenue as the nation then supported the name of taxes ought not to be mentioned but for the purpose of reducing them"; and threw both the edicts out.*[8](#) On this refusal the Parliament was ordered to Versailles, where, in the usual form, the King held what under the old government was called a Bed of justice; and the two edicts were unregistered in presence of the Parliament by an

order of State, in the manner mentioned, earlier. On this the Parliament immediately returned to Paris, renewed their session in form, and ordered the enregistering to be struck out, declaring that everything done at Versailles was illegal. All the members of the Parliament were then served with Lettres de Cachet, and exiled to Troyes; but as they continued as inflexible in exile as before, and as vengeance did not supply the place of taxes, they were after a short time recalled to Paris.

The edicts were again tendered to them, and the Count D'Artois undertook to act as representative of the King. For this purpose he came from Versailles to Paris, in a train of procession; and the Parliament were assembled to receive him. But show and parade had lost their influence in France; and whatever ideas of importance he might set off with, he had to return with those of mortification and disappointment. On alighting from his carriage to ascend the steps of the Parliament House, the crowd (which was numerously collected) threw out trite expressions, saying: "This is Monsieur D'Artois, who wants more of our money to spend." The marked disapprobation which he saw impressed him with apprehensions, and the word *Aux armes!* (To arms!) was given out by the officer of the guard who attended him. It was so loudly vociferated, that it echoed through the avenues of the house, and produced a temporary confusion. I was then standing in one of the apartments through which he had to pass, and could not avoid reflecting how wretched was the condition of a disrespected man.

He endeavoured to impress the Parliament by great words, and opened his authority by saying, "The King, our Lord and Master." The Parliament received him very coolly, and with their usual determination not to register the taxes: and in this manner the interview ended.

After this a new subject took place: In the various debates and contests which arose between the Court and the Parliaments on the subject of taxes, the Parliament of Paris at last declared that although it had been customary for Parliaments to enregister edicts for taxes as a matter of convenience, the right belonged only to the States-General; and that, therefore, the Parliament could no longer with propriety continue to debate on what it had not authority to act. The King after this came to Paris and held a meeting with the Parliament, in which he continued from ten in the morning till about six in the evening, and, in a manner that appeared to proceed from

him as if unconsulted upon with the Cabinet or Ministry, gave his word to the Parliament that the States-General should be convened.

But after this another scene arose, on a ground different from all the former. The Minister and the Cabinet were averse to calling the States-General. They well knew that if the States-General were assembled, themselves must fall; and as the King had not mentioned any time, they hit on a project calculated to elude, without appearing to oppose.

For this purpose, the Court set about making a sort of constitution itself. It was principally the work of M. Lamoignon, the Keeper of the Seals, who afterwards shot himself. This new arrangement consisted in establishing a body under the name of a Cour Plenièrè, or Full Court, in which were invested all the powers that the Government might have occasion to make use of. The persons composing this Court were to be nominated by the King; the contended right of taxation was given up on the part of the King, and a new criminal code of laws and law proceedings was substituted in the room of the former. The thing, in many points, contained better principles than those upon which the Government had hitherto been administered; but with respect to the Cour Plenièrè, it was no other than a medium through which despotism was to pass, without appearing to act directly from itself.

The Cabinet had high expectations from their new contrivance. The people who were to compose the Cour Plenièrè were already nominated; and as it was necessary to carry a fair appearance, many of the best characters in the nation were appointed among the number. It was to commence on May 8, 1788; but an opposition arose to it on two grounds the one as to principle, the other as to form.

On the ground of Principle it was contended that Government had not a right to alter itself, and that if the practice was once admitted it would grow into a principle and be made a precedent for any future alterations the Government might wish to establish: that the right of altering the Government was a national right, and not a right of Government. And on the ground of form it was contended that the Cour Plenièrè was nothing more than a larger Cabinet.

The then Duke de la Rochefoucault, Luxembourg, De Noailles, and many others, refused to accept the nomination, and strenuously opposed the whole plan. When the edict for establishing this new court was sent to the Parliaments to be unregistered and put into execution, they resisted also.

The Parliament of Paris not only refused, but denied the authority; and the contest renewed itself between the Parliament and the Cabinet more strongly than ever. While the Parliament were sitting in debate on this subject, the Ministry ordered a regiment of soldiers to surround the House and form a blockade. The members sent out for beds and provisions, and lived as in a besieged citadel: and as this had no effect, the commanding officer was ordered to enter the Parliament House and seize them, which he did, and some of the principal members were shut up in different prisons. About the same time a deputation of persons arrived from the province of Brittany to remonstrate against the establishment of the Cour Pleniere, and those the archbishop sent to the Bastille. But the spirit of the nation was not to be overcome, and it was so fully sensible of the strong ground it had taken—that of withholding taxes—that it contented itself with keeping up a sort of quiet resistance, which effectually overthrew all the plans at that time formed against it. The project of the Cour Pleniere was at last obliged to be given up, and the Prime Minister not long afterwards followed its fate, and M. Neckar was recalled into office.

The attempt to establish the Cour Pleniere had an effect upon the nation which itself did not perceive. It was a sort of new form of government that insensibly served to put the old one out of sight and to unhinge it from the superstitious authority of antiquity. It was Government dethroning Government; and the old one, by attempting to make a new one, made a chasm.

The failure of this scheme renewed the subject of convening the State-General; and this gave rise to a new series of politics. There was no settled form for convening the States-General: all that it positively meant was a deputation from what was then called the Clergy, the Noblesse, and the Commons; but their numbers or their proportions had not been always the same. They had been convened only on extraordinary occasions, the last of which was in 1614; their numbers were then in equal proportions, and they voted by orders.

It could not well escape the sagacity of M. Neckar, that the mode of 1614 would answer neither the purpose of the then government nor of the nation. As matters were at that time circumstanced it would have been too contentious to agree upon anything. The debates would have been endless upon privileges and exemptions, in which neither the wants of the

Government nor the wishes of the nation for a Constitution would have been attended to. But as he did not choose to take the decision upon himself, he summoned again the Assembly of the Notables and referred it to them. This body was in general interested in the decision, being chiefly of aristocracy and high-paid clergy, and they decided in favor of the mode of 1614. This decision was against the sense of the Nation, and also against the wishes of the Court; for the aristocracy opposed itself to both and contended for privileges independent of either. The subject was then taken up by the Parliament, who recommended that the number of the Commons should be equal to the other two: and they should all sit in one house and vote in one body. The number finally determined on was 1,200; 600 to be chosen by the Commons (and this was less than their proportion ought to have been when their worth and consequence is considered on a national scale), 300 by the Clergy, and 300 by the Aristocracy; but with respect to the mode of assembling themselves, whether together or apart, or the manner in which they should vote, those matters were referred.*[9](#)

The election that followed was not a contested election, but an animated one. The candidates were not men, but principles. Societies were formed in Paris, and committees of correspondence and communication established throughout the nation, for the purpose of enlightening the people, and explaining to them the principles of civil government; and so orderly was the election conducted, that it did not give rise even to the rumour of tumult.

The States-General were to meet at Versailles in April 1789, but did not assemble till May. They situated themselves in three separate chambers, or rather the Clergy and Aristocracy withdrew each into a separate chamber. The majority of the Aristocracy claimed what they called the privilege of voting as a separate body, and of giving their consent or their negative in that manner; and many of the bishops and the high-beneficed clergy claimed the same privilege on the part of their Order.

The Tiers Etat (as they were then called) disowned any knowledge of artificial orders and artificial privileges; and they were not only resolute on this point, but somewhat disdainful. They began to consider the Aristocracy as a kind of fungus growing out of the corruption of society, that could not be admitted even as a branch of it; and from the disposition the Aristocracy had shown by upholding Lettres de Cachet, and in sundry other instances, it

was manifest that no constitution could be formed by admitting men in any other character than as National Men.

After various altercations on this head, the Tiers Etat or Commons (as they were then called) declared themselves (on a motion made for that purpose by the Abbe Sieyes) "The Representative Of The Nation; and that the two Orders could be considered but as deputies of corporations, and could only have a deliberate voice when they assembled in a national character with the national representatives." This proceeding extinguished the style of Etats Generaux, or States-General, and erected it into the style it now bears, that of L'Assemblee Nationale, or National Assembly.

This motion was not made in a precipitate manner. It was the result of cool deliberation, and concerned between the national representatives and the patriotic members of the two chambers, who saw into the folly, mischief, and injustice of artificial privileged distinctions. It was become evident, that no constitution, worthy of being called by that name, could be established on anything less than a national ground. The Aristocracy had hitherto opposed the despotism of the Court, and affected the language of patriotism; but it opposed it as its rival (as the English Barons opposed King John) and it now opposed the nation from the same motives.

On carrying this motion, the national representatives, as had been concerted, sent an invitation to the two chambers, to unite with them in a national character, and proceed to business. A majority of the clergy, chiefly of the parish priests, withdrew from the clerical chamber, and joined the nation; and forty-five from the other chamber joined in like manner. There is a sort of secret history belonging to this last circumstance, which is necessary to its explanation; it was not judged prudent that all the patriotic members of the chamber styling itself the Nobles, should quit it at once; and in consequence of this arrangement, they drew off by degrees, always leaving some, as well to reason the case, as to watch the suspected. In a little time the numbers increased from forty-five to eighty, and soon after to a greater number; which, with the majority of the clergy, and the whole of the national representatives, put the malcontents in a very diminutive condition.

The King, who, very different from the general class called by that name, is a man of a good heart, showed himself disposed to recommend a union of the three chambers, on the ground the National Assembly had taken; but the

malcontents exerted themselves to prevent it, and began now to have another project in view. Their numbers consisted of a majority of the aristocratical chamber, and the minority of the clerical chamber, chiefly of bishops and high-beneficed clergy; and these men were determined to put everything to issue, as well by strength as by stratagem. They had no objection to a constitution; but it must be such a one as themselves should dictate, and suited to their own views and particular situations. On the other hand, the Nation disowned knowing anything of them but as citizens, and was determined to shut out all such up-start pretensions. The more aristocracy appeared, the more it was despised; there was a visible imbecility and want of intellects in the majority, a sort of *je ne sais quoi*, that while it affected to be more than citizen, was less than man. It lost ground from contempt more than from hatred; and was rather jeered at as an ass, than dreaded as a lion. This is the general character of aristocracy, or what are called Nobles or Nobility, or rather No-ability, in all countries.

The plan of the malcontents consisted now of two things; either to deliberate and vote by chambers (or orders), more especially on all questions respecting a Constitution (by which the aristocratical chamber would have had a negative on any article of the Constitution); or, in case they could not accomplish this object, to overthrow the National Assembly entirely.

To effect one or other of these objects they began to cultivate a friendship with the despotism they had hitherto attempted to rival, and the Count D'Artois became their chief. The king (who has since declared himself deceived into their measures) held, according to the old form, a Bed of Justice, in which he accorded to the deliberation and vote *par tete* (by head) upon several subjects; but reserved the deliberation and vote upon all questions respecting a constitution to the three chambers separately. This declaration of the king was made against the advice of M. Neckar, who now began to perceive that he was growing out of fashion at Court, and that another minister was in contemplation.

As the form of sitting in separate chambers was yet apparently kept up, though essentially destroyed, the national representatives immediately after this declaration of the King resorted to their own chambers to consult on a protest against it; and the minority of the chamber (calling itself the Nobles), who had joined the national cause, retired to a private house to

consult in like manner. The malcontents had by this time concerted their measures with the court, which the Count D'Artois undertook to conduct; and as they saw from the discontent which the declaration excited, and the opposition making against it, that they could not obtain a control over the intended constitution by a separate vote, they prepared themselves for their final object—that of conspiring against the National Assembly, and overthrowing it.

The next morning the door of the chamber of the National Assembly was shut against them, and guarded by troops; and the members were refused admittance. On this they withdrew to a tennis-ground in the neighbourhood of Versailles, as the most convenient place they could find, and, after renewing their session, took an oath never to separate from each other, under any circumstance whatever, death excepted, until they had established a constitution. As the experiment of shutting up the house had no other effect than that of producing a closer connection in the members, it was opened again the next day, and the public business recommenced in the usual place.

We are now to have in view the forming of the new ministry, which was to accomplish the overthrow of the National Assembly. But as force would be necessary, orders were issued to assemble thirty thousand troops, the command of which was given to Broglio, one of the intended new ministry, who was recalled from the country for this purpose. But as some management was necessary to keep this plan concealed till the moment it should be ready for execution, it is to this policy that a declaration made by Count D'Artois must be attributed, and which is here proper to be introduced.

It could not but occur while the malcontents continued to resort to their chambers separate from the National Assembly, more jealousy would be excited than if they were mixed with it, and that the plot might be suspected. But as they had taken their ground, and now wanted a pretence for quitting it, it was necessary that one should be devised. This was effectually accomplished by a declaration made by the Count D'Artois: "That if they took not a Part in the National Assembly, the life of the king would be endangered": on which they quitted their chambers, and mixed with the Assembly, in one body.

At the time this declaration was made, it was generally treated as a piece of absurdity in Count D'Artois calculated merely to relieve the outstanding members of the two chambers from the diminutive situation they were put in; and if nothing more had followed, this conclusion would have been good. But as things best explain themselves by their events, this apparent union was only a cover to the machinations which were secretly going on; and the declaration accommodated itself to answer that purpose. In a little time the National Assembly found itself surrounded by troops, and thousands more were daily arriving. On this a very strong declaration was made by the National Assembly to the King, remonstrating on the impropriety of the measure, and demanding the reason. The King, who was not in the secret of this business, as himself afterwards declared, gave substantially for answer, that he had no other object in view than to preserve the public tranquility, which appeared to be much disturbed.

But in a few days from this time the plot unravelled itself M. Neckar and the ministry were displaced, and a new one formed of the enemies of the Revolution; and Broglio, with between twenty-five and thirty thousand foreign troops, was arrived to support them. The mask was now thrown off, and matters were come to a crisis. The event was that in a space of three days the new ministry and their abettors found it prudent to fly the nation; the Bastille was taken, and Broglio and his foreign troops dispersed, as is already related in the former part of this work.

There are some curious circumstances in the history of this short-lived ministry, and this short-lived attempt at a counter-revolution. The Palace of Versailles, where the Court was sitting, was not more than four hundred yards distant from the hall where the National Assembly was sitting. The two places were at this moment like the separate headquarters of two combatant armies; yet the Court was as perfectly ignorant of the information which had arrived from Paris to the National Assembly, as if it had resided at an hundred miles distance. The then Marquis de la Fayette, who (as has been already mentioned) was chosen to preside in the National Assembly on this particular occasion, named by order of the Assembly three successive deputations to the king, on the day and up to the evening on which the Bastille was taken, to inform and confer with him on the state of affairs; but the ministry, who knew not so much as that it was attacked, precluded all communication, and were solacing themselves how dextrously they had succeeded; but in a few hours the accounts arrived so thick and

fast that they had to start from their desks and run. Some set off in one disguise, and some in another, and none in their own character. Their anxiety now was to outride the news, lest they should be stopt, which, though it flew fast, flew not so fast as themselves.

It is worth remarking that the National Assembly neither pursued those fugitive conspirators, nor took any notice of them, nor sought to retaliate in any shape whatever. Occupied with establishing a constitution founded on the Rights of Man and the Authority of the People, the only authority on which Government has a right to exist in any country, the National Assembly felt none of those mean passions which mark the character of impertinent governments, founding themselves on their own authority, or on the absurdity of hereditary succession. It is the faculty of the human mind to become what it contemplates, and to act in unison with its object.

The conspiracy being thus dispersed, one of the first works of the National Assembly, instead of vindictive proclamations, as has been the case with other governments, was to publish a declaration of the Rights of Man, as the basis on which the new constitution was to be built, and which is here subjoined:

Declaration

Of The

Rights Of Man And Of Citizens

By The National Assembly Of France

The representatives of the people of France, formed into a National Assembly, considering that ignorance, neglect, or contempt of human rights, are the sole causes of public misfortunes and corruptions of Government, have resolved to set forth in a solemn declaration, these natural, imprescriptible, and inalienable rights: that this declaration being constantly present to the minds of the members of the body social, they may be forever kept attentive to their rights and their duties; that the acts of the legislative and executive powers of Government, being capable of being every moment compared with the end of political institutions, may be more respected; and also, that the future claims of the citizens, being directed by simple and incontestable principles, may always tend to the maintenance of the Constitution, and the general happiness.

For these reasons the National Assembly doth recognize and declare, in the presence of the Supreme Being, and with the hope of his blessing and favour, the following sacred rights of men and of citizens:

One: Men are born, and always continue, free and equal in respect of their Rights. Civil distinctions, therefore, can be founded only on Public Utility.

Two: The end of all Political associations is the Preservation of the Natural and Imprescriptible Rights of Man; and these rights are Liberty, Property, Security, and Resistance of Oppression.

Three: The Nation is essentially the source of all Sovereignty; nor can any individual, or any body of Men, be entitled to any authority which is not expressly derived from it.

Four: Political Liberty consists in the power of doing whatever does not Injure another. The exercise of the Natural Rights of every Man, has no other limits than those which are necessary to secure to every other Man the Free exercise of the same Rights; and these limits are determinable only by the Law.

Five: The Law ought to Prohibit only actions hurtful to Society. What is not Prohibited by the Law should not be hindered; nor should anyone be compelled to that which the Law does not Require.

Six: the Law is an expression of the Will of the Community. All Citizens have a right to concur, either personally or by their Representatives, in its formation. It Should be the same to all, whether it protects or punishes; and all being equal in its sight, are equally eligible to all Honours, Places, and employments, according to their different abilities, without any other distinction than that created by their Virtues and talents.

Seven: No Man should be accused, arrested, or held in confinement, except in cases determined by the Law, and according to the forms which it has prescribed. All who promote, solicit, execute, or cause to be executed, arbitrary orders, ought to be punished, and every Citizen called upon, or apprehended by virtue of the Law, ought immediately to obey, and renders himself culpable by resistance.

Eight: The Law ought to impose no other penalties but such as are absolutely and evidently necessary; and no one ought to be punished, but in virtue of a Law promulgated before the offence, and Legally applied.

Nine: Every Man being presumed innocent till he has been convicted, whenever his detention becomes indispensable, all rigour to him, more than is necessary to secure his person, ought to be provided against by the Law.

Ten: No Man ought to be molested on account of his opinions, not even on account of his Religious opinions, provided his avowal of them does not disturb the Public Order established by the Law.

Eleven: The unrestrained communication of thoughts and opinions being one of the Most Precious Rights of Man, every Citizen may speak, write, and publish freely, provided he is responsible for the abuse of this Liberty, in cases determined by the Law.

Twelve: A Public force being necessary to give security to the Rights of Men and of Citizens, that force is instituted for the benefit of the Community and not for the particular benefit of the persons to whom it is intrusted.

Thirteen: A common contribution being necessary for the support of the Public force, and for defraying the other expenses of Government, it ought to be divided equally among the Members of the Community, according to their abilities.

Fourteen: every Citizen has a Right, either by himself or his Representative, to a free voice in determining the necessity of Public Contributions, the appropriation of them, and their amount, mode of assessment, and duration.

Fifteen: every Community has a Right to demand of all its agents an account of their conduct.

Sixteen: every Community in which a Separation of Powers and a Security of Rights is not Provided for, wants a Constitution.

Seventeen: The Right to Property being inviolable and sacred, no one ought to be deprived of it, except in cases of evident Public necessity, legally ascertained, and on condition of a previous just Indemnity.

OBSERVATIONS ON THE DECLARATION OF RIGHTS

The first three articles comprehend in general terms the whole of a Declaration of Rights, all the succeeding articles either originate from them or follow as elucidations. The 4th, 5th, and 6th define more particularly what is only generally expressed in the 1st, 2nd, and 3rd.

The 7th, 8th, 9th, 10th, and 11th articles are declaratory of principles upon which laws shall be constructed, conformable to rights already declared. But it is questioned by some very good people in France, as well as in other countries, whether the 10th article sufficiently guarantees the right it is intended to accord with; besides which it takes off from the divine dignity of religion, and weakens its operative force upon the mind, to make it a subject of human laws. It then presents itself to man like light intercepted by a cloudy medium, in which the source of it is obscured from his sight, and he sees nothing to reverence in the dusky ray.*[10](#)

The remaining articles, beginning with the twelfth, are substantially contained in the principles of the preceding articles; but in the particular situation in which France then was, having to undo what was wrong, as well as to set up what was right, it was proper to be more particular than what in another condition of things would be necessary.

While the Declaration of Rights was before the National Assembly some of its members remarked that if a declaration of rights were published it should be accompanied by a Declaration of Duties. The observation discovered a mind that reflected, and it only erred by not reflecting far enough. A Declaration of Rights is, by reciprocity, a Declaration of Duties also. Whatever is my right as a man is also the right of another; and it becomes my duty to guarantee as well as to possess.

The three first articles are the base of Liberty, as well individual as national; nor can any country be called free whose government does not take its beginning from the principles they contain, and continue to preserve them pure; and the whole of the Declaration of Rights is of more value to

the world, and will do more good, than all the laws and statutes that have yet been promulgated.

In the declaratory exordium which prefaces the Declaration of Rights we see the solemn and majestic spectacle of a nation opening its commission, under the auspices of its Creator, to establish a Government, a scene so new, and so transcendantly unequalled by anything in the European world, that the name of a Revolution is diminutive of its character, and it rises into a Regeneration of man. What are the present Governments of Europe but a scene of iniquity and oppression? What is that of England? Do not its own inhabitants say it is a market where every man has his price, and where corruption is common traffic at the expense of a deluded people? No wonder, then, that the French Revolution is traduced. Had it confined itself merely to the destruction of flagrant despotism perhaps Mr. Burke and some others had been silent. Their cry now is, "It has gone too far"—that is, it has gone too far for them. It stares corruption in the face, and the venal tribe are all alarmed. Their fear discovers itself in their outrage, and they are but publishing the groans of a wounded vice. But from such opposition the French Revolution, instead of suffering, receives an homage. The more it is struck the more sparks it will emit; and the fear is it will not be struck enough. It has nothing to dread from attacks; truth has given it an establishment, and time will record it with a name as lasting as his own.

Having now traced the progress of the French Revolution through most of its principal stages, from its commencement to the taking of the Bastille, and its establishment by the Declaration of Rights, I will close the subject with the energetic apostrophe of M. de la Fayette, "May this great monument, raised to Liberty, serve as a lesson to the oppressor, and an example to the oppressed!"*[11](#)

MISCELLANEOUS CHAPTER

To prevent interrupting the argument in the preceding part of this work, or the narrative that follows it, I reserved some observations to be thrown together in a Miscellaneous Chapter; by which variety might not be censured for confusion. Mr. Burke's book is all Miscellany. His intention was to make an attack on the French Revolution; but instead of proceeding with an orderly arrangement, he has stormed it with a mob of ideas tumbling over and destroying one another.

But this confusion and contradiction in Mr. Burke's Book is easily accounted for.—When a man in a wrong cause attempts to steer his course by anything else than some polar truth or principle, he is sure to be lost. It is beyond the compass of his capacity to keep all the parts of an argument together, and make them unite in one issue, by any other means than having this guide always in view. Neither memory nor invention will supply the want of it. The former fails him, and the latter betrays him.

Notwithstanding the nonsense, for it deserves no better name, that Mr. Burke has asserted about hereditary rights, and hereditary succession, and that a Nation has not a right to form a Government of itself; it happened to fall in his way to give some account of what Government is. "Government," says he, "is a contrivance of human wisdom."

Admitting that government is a contrivance of human wisdom, it must necessarily follow, that hereditary succession, and hereditary rights (as they are called), can make no part of it, because it is impossible to make wisdom hereditary; and on the other hand, that cannot be a wise contrivance, which in its operation may commit the government of a nation to the wisdom of an idiot. The ground which Mr. Burke now takes is fatal to every part of his cause. The argument changes from hereditary rights to hereditary wisdom; and the question is, Who is the wisest man? He must now show that every one in the line of hereditary succession was a Solomon, or his title is not good to be a king. What a stroke has Mr. Burke now made! To use a sailor's phrase, he has swabbed the deck, and scarcely left a name legible in the list of Kings; and he has mowed down and thinned the House of Peers, with a scythe as formidable as Death and Time.

But Mr. Burke appears to have been aware of this retort; and he has taken care to guard against it, by making government to be not only a contrivance of human wisdom, but a monopoly of wisdom. He puts the nation as fools on one side, and places his government of wisdom, all wise men of Gotham, on the other side; and he then proclaims, and says that "Men have a Right that their Wants should be provided for by this wisdom." Having thus made proclamation, he next proceeds to explain to them what their wants are, and also what their rights are. In this he has succeeded dextrously, for he makes their wants to be a want of wisdom; but as this is cold comfort, he then informs them, that they have a right (not to any of the wisdom) but to be governed by it; and in order to impress them with a

solemn reverence for this monopoly-government of wisdom, and of its vast capacity for all purposes, possible or impossible, right or wrong, he proceeds with astrological mysterious importance, to tell to them its powers in these words: "The rights of men in government are their advantages; and these are often in balance between differences of good; and in compromises sometimes between good and evil, and sometimes between evil and evil. Political reason is a computing principle; adding—subtracting—multiplying—and dividing, morally and not metaphysically or mathematically, true moral denominations."

As the wondering audience, whom Mr. Burke supposes himself talking to, may not understand all this learned jargon, I will undertake to be its interpreter. The meaning, then, good people, of all this, is: That government is governed by no principle whatever; that it can make evil good, or good evil, just as it pleases. In short, that government is arbitrary power.

But there are some things which Mr. Burke has forgotten. First, he has not shown where the wisdom originally came from: and secondly, he has not shown by what authority it first began to act. In the manner he introduces the matter, it is either government stealing wisdom, or wisdom stealing government. It is without an origin, and its powers without authority. In short, it is usurpation.

Whether it be from a sense of shame, or from a consciousness of some radical defect in a government necessary to be kept out of sight, or from both, or from any other cause, I undertake not to determine, but so it is, that a monarchical reasoner never traces government to its source, or from its source. It is one of the shibboleths by which he may be known. A thousand years hence, those who shall live in America or France, will look back with contemplative pride on the origin of their government, and say, This was the work of our glorious ancestors! But what can a monarchical talker say? What has he to exult in? Alas he has nothing. A certain something forbids him to look back to a beginning, lest some robber, or some Robin Hood, should rise from the long obscurity of time and say, I am the origin. Hard as Mr. Burke laboured at the Regency Bill and Hereditary Succession two years ago, and much as he dived for precedents, he still had not boldness enough to bring up William of Normandy, and say, There is the head of the list! there is the fountain of honour! the son of a prostitute, and the plunderer of the English nation.

The opinions of men with respect to government are changing fast in all countries. The Revolutions of America and France have thrown a beam of light over the world, which reaches into man. The enormous expense of governments has provoked people to think, by making them feel; and when once the veil begins to rend, it admits not of repair. Ignorance is of a peculiar nature: once dispelled, it is impossible to re-establish it. It is not originally a thing of itself, but is only the absence of knowledge; and though man may be kept ignorant, he cannot be made ignorant. The mind, in discovering truth, acts in the same manner as it acts through the eye in discovering objects; when once any object has been seen, it is impossible to put the mind back to the same condition it was in before it saw it. Those who talk of a counter-revolution in France, show how little they understand of man. There does not exist in the compass of language an arrangement of words to express so much as the means of effecting a counter-revolution. The means must be an obliteration of knowledge; and it has never yet been discovered how to make man unknow his knowledge, or unthink his thoughts.

Mr. Burke is labouring in vain to stop the progress of knowledge; and it comes with the worse grace from him, as there is a certain transaction known in the city which renders him suspected of being a pensioner in a fictitious name. This may account for some strange doctrine he has advanced in his book, which though he points it at the Revolution Society, is effectually directed against the whole nation.

"The King of England," says he, "holds his crown (for it does not belong to the Nation, according to Mr. Burke) in contempt of the choice of the Revolution Society, who have not a single vote for a king among them either individually or collectively; and his Majesty's heirs each in their time and order, will come to the Crown with the same contempt of their choice, with which his Majesty has succeeded to that which he now wears."

As to who is King in England, or elsewhere, or whether there is any King at all, or whether the people choose a Cherokee chief, or a Hessian hussar for a King, it is not a matter that I trouble myself about—be that to themselves; but with respect to the doctrine, so far as it relates to the Rights of Men and Nations, it is as abominable as anything ever uttered in the most enslaved country under heaven. Whether it sounds worse to my ear, by not being accustomed to hear such despotism, than what it does to another

person, I am not so well a judge of; but of its abominable principle I am at no loss to judge.

It is not the Revolution Society that Mr. Burke means; it is the Nation, as well in its original as in its representative character; and he has taken care to make himself understood, by saying that they have not a vote either collectively or individually. The Revolution Society is composed of citizens of all denominations, and of members of both the Houses of Parliament; and consequently, if there is not a right to a vote in any of the characters, there can be no right to any either in the nation or in its Parliament. This ought to be a caution to every country how to import foreign families to be kings. It is somewhat curious to observe, that although the people of England had been in the habit of talking about kings, it is always a Foreign House of Kings; hating Foreigners yet governed by them.—It is now the House of Brunswick, one of the petty tribes of Germany.

It has hitherto been the practice of the English Parliaments to regulate what was called the succession (taking it for granted that the Nation then continued to accord to the form of annexing a monarchical branch of its government; for without this the Parliament could not have had authority to have sent either to Holland or to Hanover, or to impose a king upon the nation against its will). And this must be the utmost limit to which Parliament can go upon this case; but the right of the Nation goes to the whole case, because it has the right of changing its whole form of government. The right of a Parliament is only a right in trust, a right by delegation, and that but from a very small part of the Nation; and one of its Houses has not even this. But the right of the Nation is an original right, as universal as taxation. The nation is the paymaster of everything, and everything must conform to its general will.

I remember taking notice of a speech in what is called the English House of Peers, by the then Earl of Shelburne, and I think it was at the time he was Minister, which is applicable to this case. I do not directly charge my memory with every particular; but the words and the purport, as nearly as I remember, were these: "That the form of a Government was a matter wholly at the will of the Nation at all times, that if it chose a monarchical form, it had a right to have it so; and if it afterwards chose to be a Republic, it had a right to be a Republic, and to say to a King, 'We have no longer any occasion for you.'"

When Mr. Burke says that "His Majesty's heirs and successors, each in their time and order, will come to the crown with the same content of their choice with which His Majesty had succeeded to that he wears," it is saying too much even to the humblest individual in the country; part of whose daily labour goes towards making up the million sterling a-year, which the country gives the person it styles a king. Government with insolence is despotism; but when contempt is added it becomes worse; and to pay for contempt is the excess of slavery. This species of government comes from Germany; and reminds me of what one of the Brunswick soldiers told me, who was taken prisoner by, the Americans in the late war: "Ah!" said he, "America is a fine free country, it is worth the people's fighting for; I know the difference by knowing my own: in my country, if the prince says eat straw, we eat straw." God help that country, thought I, be it England or elsewhere, whose liberties are to be protected by German principles of government, and Princes of Brunswick!

As Mr. Burke sometimes speaks of England, sometimes of France, and sometimes of the world, and of government in general, it is difficult to answer his book without apparently meeting him on the same ground. Although principles of Government are general subjects, it is next to impossible, in many cases, to separate them from the idea of place and circumstance, and the more so when circumstances are put for arguments, which is frequently the case with Mr. Burke.

In the former part of his book, addressing himself to the people of France, he says: "No experience has taught us (meaning the English), that in any other course or method than that of a hereditary crown, can our liberties be regularly perpetuated and preserved sacred as our hereditary right." I ask Mr. Burke, who is to take them away? M. de la Fayette, in speaking to France, says: "For a Nation to be free, it is sufficient that she wills it." But Mr. Burke represents England as wanting capacity to take care of itself, and that its liberties must be taken care of by a King holding it in "contempt." If England is sunk to this, it is preparing itself to eat straw, as in Hanover, or in Brunswick. But besides the folly of the declaration, it happens that the facts are all against Mr. Burke. It was by the government being hereditary, that the liberties of the people were endangered. Charles I. and James II. are instances of this truth; yet neither of them went so far as to hold the Nation in contempt.

As it is sometimes of advantage to the people of one country to hear what those of other countries have to say respecting it, it is possible that the people of France may learn something from Mr. Burke's book, and that the people of England may also learn something from the answers it will occasion. When Nations fall out about freedom, a wide field of debate is opened. The argument commences with the rights of war, without its evils, and as knowledge is the object contended for, the party that sustains the defeat obtains the prize.

Mr. Burke talks about what he calls an hereditary crown, as if it were some production of Nature; or as if, like Time, it had a power to operate, not only independently, but in spite of man; or as if it were a thing or a subject universally consented to. Alas! it has none of those properties, but is the reverse of them all. It is a thing in imagination, the propriety of which is more than doubted, and the legality of which in a few years will be denied.

But, to arrange this matter in a clearer view than what general expression can heads under which (what is called) an hereditary crown, or more properly speaking, an hereditary succession to the Government of a Nation, can be considered; which are:

First, The right of a particular Family to establish itself.

Secondly, The right of a Nation to establish a particular Family.

With respect to the first of these heads, that of a Family establishing itself with hereditary powers on its own authority, and independent of the consent of a Nation, all men will concur in calling it despotism; and it would be trespassing on their understanding to attempt to prove it.

But the second head, that of a Nation establishing a particular Family with hereditary powers, does not present itself as despotism on the first reflection; but if men will permit it a second reflection to take place, and carry that reflection forward but one remove out of their own persons to that of their offspring, they will then see that hereditary succession becomes in its consequences the same despotism to others, which they reprobated for themselves. It operates to preclude the consent of the succeeding generations; and the preclusion of consent is despotism. When the person who at any time shall be in possession of a Government, or those who stand in succession to him, shall say to a Nation, I hold this power in "contempt" of you, it signifies not on what authority he pretends to say it. It is no relief, but an aggravation to a person in slavery, to reflect that he was sold by his

parent; and as that which heightens the criminality of an act cannot be produced to prove the legality of it, hereditary succession cannot be established as a legal thing.

In order to arrive at a more perfect decision on this head, it will be proper to consider the generation which undertakes to establish a Family with hereditary powers, apart and separate from the generations which are to follow; and also to consider the character in which the first generation acts with respect to succeeding generations.

The generation which first selects a person, and puts him at the head of its Government, either with the title of King, or any other distinction, acts on its own choice, be it wise or foolish, as a free agent for itself. The person so set up is not hereditary, but selected and appointed; and the generation who sets him up, does not live under a hereditary government, but under a government of its own choice and establishment. Were the generation who sets him up, and the person so set up, to live for ever, it never could become hereditary succession; and of consequence hereditary succession can only follow on the death of the first parties.

As, therefore, hereditary succession is out of the question with respect to the first generation, we have now to consider the character in which that generation acts with respect to the commencing generation, and to all succeeding ones.

It assumes a character, to which it has neither right nor title. It changes itself from a Legislator to a Testator, and effects to make its Will, which is to have operation after the demise of the makers, to bequeath the Government; and it not only attempts to bequeath, but to establish on the succeeding generation, a new and different form of Government under which itself lived. Itself, as already observed, lived not under a hereditary Government but under a Government of its own choice and establishment; and it now attempts, by virtue of a will and testament (and which it has not authority to make), to take from the commencing generation, and all future ones, the rights and free agency by which itself acted.

But, exclusive of the right which any generation has to act collectively as a testator, the objects to which it applies itself in this case, are not within the compass of any law, or of any will or testament.

The rights of men in society, are neither devisable or transferable, nor annihilable, but are descendable only, and it is not in the power of any

generation to intercept finally, and cut off the descent. If the present generation, or any other, are disposed to be slaves, it does not lessen the right of the succeeding generation to be free. Wrongs cannot have a legal descent. When Mr. Burke attempts to maintain that the English nation did at the Revolution of 1688, most solemnly renounce and abdicate their rights for themselves, and for all their posterity for ever, he speaks a language that merits not reply, and which can only excite contempt for his prostitute principles, or pity for his ignorance.

In whatever light hereditary succession, as growing out of the will and testament of some former generation, presents itself, it is an absurdity. A cannot make a will to take from B the property of B, and give it to C; yet this is the manner in which (what is called) hereditary succession by law operates. A certain former generation made a will, to take away the rights of the commencing generation, and all future ones, and convey those rights to a third person, who afterwards comes forward, and tells them, in Mr. Burke's language, that they have no rights, that their rights are already bequeathed to him and that he will govern in contempt of them. From such principles, and such ignorance, good Lord deliver the world!

But, after all, what is this metaphor called a crown, or rather what is monarchy? Is it a thing, or is it a name, or is it a fraud? Is it a "contrivance of human wisdom," or of human craft to obtain money from a nation under specious pretences? Is it a thing necessary to a nation? If it is, in what does that necessity consist, what service does it perform, what is its business, and what are its merits? Does the virtue consist in the metaphor, or in the man? Doth the goldsmith that makes the crown, make the virtue also? Doth it operate like Fortunatus's wishing-cap, or Harlequin's wooden sword? Doth it make a man a conjurer? In fine, what is it? It appears to be something going much out of fashion, falling into ridicule, and rejected in some countries, both as unnecessary and expensive. In America it is considered as an absurdity; and in France it has so far declined, that the goodness of the man, and the respect for his personal character, are the only things that preserve the appearance of its existence.

If government be what Mr. Burke describes it, "a contrivance of human wisdom" I might ask him, if wisdom was at such a low ebb in England, that it was become necessary to import it from Holland and from Hanover? But I will do the country the justice to say, that was not the case; and even if it

was it mistook the cargo. The wisdom of every country, when properly exerted, is sufficient for all its purposes; and there could exist no more real occasion in England to have sent for a Dutch Stadtholder, or a German Elector, than there was in America to have done a similar thing. If a country does not understand its own affairs, how is a foreigner to understand them, who knows neither its laws, its manners, nor its language? If there existed a man so transcendently wise above all others, that his wisdom was necessary to instruct a nation, some reason might be offered for monarchy; but when we cast our eyes about a country, and observe how every part understands its own affairs; and when we look around the world, and see that of all men in it, the race of kings are the most insignificant in capacity, our reason cannot fail to ask us—What are those men kept for?

If there is anything in monarchy which we people of America do not understand, I wish Mr. Burke would be so kind as to inform us. I see in America, a government extending over a country ten times as large as England, and conducted with regularity, for a fortieth part of the expense which Government costs in England. If I ask a man in America if he wants a King, he retorts, and asks me if I take him for an idiot? How is it that this difference happens? are we more or less wise than others? I see in America the generality of people living in a style of plenty unknown in monarchical countries; and I see that the principle of its government, which is that of the equal Rights of Man, is making a rapid progress in the world.

If monarchy is a useless thing, why is it kept up anywhere? and if a necessary thing, how can it be dispensed with? That civil government is necessary, all civilized nations will agree; but civil government is republican government. All that part of the government of England which begins with the office of constable, and proceeds through the department of magistrate, quarter-sessions, and general assize, including trial by jury, is republican government. Nothing of monarchy appears in any part of it, except in the name which William the Conqueror imposed upon the English, that of obliging them to call him "Their Sovereign Lord the King."

It is easy to conceive that a band of interested men, such as Placemen, Pensioners, Lords of the bed-chamber, Lords of the kitchen, Lords of the necessary-house, and the Lord knows what besides, can find as many reasons for monarchy as their salaries, paid at the expense of the country, amount to; but if I ask the farmer, the manufacturer, the merchant, the

tradesman, and down through all the occupations of life to the common labourer, what service monarchy is to him? he can give me no answer. If I ask him what monarchy is, he believes it is something like a sinecure.

Notwithstanding the taxes of England amount to almost seventeen millions a year, said to be for the expenses of Government, it is still evident that the sense of the Nation is left to govern itself, and does govern itself, by magistrates and juries, almost at its own charge, on republican principles, exclusive of the expense of taxes. The salaries of the judges are almost the only charge that is paid out of the revenue. Considering that all the internal government is executed by the people, the taxes of England ought to be the lightest of any nation in Europe; instead of which, they are the contrary. As this cannot be accounted for on the score of civil government, the subject necessarily extends itself to the monarchical part.

When the people of England sent for George the First (and it would puzzle a wiser man than Mr. Burke to discover for what he could be wanted, or what service he could render), they ought at least to have conditioned for the abandonment of Hanover. Besides the endless German intrigues that must follow from a German Elector being King of England, there is a natural impossibility of uniting in the same person the principles of Freedom and the principles of Despotism, or as it is usually called in England Arbitrary Power. A German Elector is in his electorate a despot; how then could it be expected that he should be attached to principles of liberty in one country, while his interest in another was to be supported by despotism? The union cannot exist; and it might easily have been foreseen that German Electors would make German Kings, or in Mr. Burke's words, would assume government with "contempt." The English have been in the habit of considering a King of England only in the character in which he appears to them; whereas the same person, while the connection lasts, has a home-seat in another country, the interest of which is different to their own, and the principles of the governments in opposition to each other. To such a person England will appear as a town-residence, and the Electorate as the estate. The English may wish, as I believe they do, success to the principles of liberty in France, or in Germany; but a German Elector trembles for the fate of despotism in his electorate; and the Duchy of Mecklenburgh, where the present Queen's family governs, is under the same wretched state of arbitrary power, and the people in slavish vassalage.

There never was a time when it became the English to watch continental intrigues more circumspectly than at the present moment, and to distinguish the politics of the Electorate from the politics of the Nation. The Revolution of France has entirely changed the ground with respect to England and France, as nations; but the German despots, with Prussia at their head, are combining against liberty; and the fondness of Mr. Pitt for office, and the interest which all his family connections have obtained, do not give sufficient security against this intrigue.

As everything which passes in the world becomes matter for history, I will now quit this subject, and take a concise review of the state of parties and politics in England, as Mr. Burke has done in France.

Whether the present reign commenced with contempt, I leave to Mr. Burke: certain, however, it is, that it had strongly that appearance. The animosity of the English nation, it is very well remembered, ran high; and, had the true principles of Liberty been as well understood then as they now promise to be, it is probable the Nation would not have patiently submitted to so much. George the First and Second were sensible of a rival in the remains of the Stuarts; and as they could not but consider themselves as standing on their good behaviour, they had prudence to keep their German principles of government to themselves; but as the Stuart family wore away, the prudence became less necessary.

The contest between rights, and what were called prerogatives, continued to heat the nation till some time after the conclusion of the American War, when all at once it fell a calm—Execration exchanged itself for applause, and Court popularity sprung up like a mushroom in a night.

To account for this sudden transition, it is proper to observe that there are two distinct species of popularity; the one excited by merit, and the other by resentment. As the Nation had formed itself into two parties, and each was extolling the merits of its parliamentary champions for and against prerogative, nothing could operate to give a more general shock than an immediate coalition of the champions themselves. The partisans of each being thus suddenly left in the lurch, and mutually heated with disgust at the measure, felt no other relief than uniting in a common execration against both. A higher stimulus or resentment being thus excited than what the contest on prerogatives occasioned, the nation quitted all former objects of rights and wrongs, and sought only that of gratification. The indignation

at the Coalition so effectually superseded the indignation against the Court as to extinguish it; and without any change of principles on the part of the Court, the same people who had reprobated its despotism united with it to revenge themselves on the Coalition Parliament. The case was not, which they liked best, but which they hated most; and the least hated passed for love. The dissolution of the Coalition Parliament, as it afforded the means of gratifying the resentment of the Nation, could not fail to be popular; and from hence arose the popularity of the Court.

Transitions of this kind exhibit a Nation under the government of temper, instead of a fixed and steady principle; and having once committed itself, however rashly, it feels itself urged along to justify by continuance its first proceeding. Measures which at other times it would censure it now approves, and acts persuasion upon itself to suffocate its judgment.

On the return of a new Parliament, the new Minister, Mr. Pitt, found himself in a secure majority; and the Nation gave him credit, not out of regard to himself, but because it had resolved to do it out of resentment to another. He introduced himself to public notice by a proposed Reform of Parliament, which in its operation would have amounted to a public justification of corruption. The Nation was to be at the expense of buying up the rotten boroughs, whereas it ought to punish the persons who deal in the traffic.

Passing over the two bubbles of the Dutch business and the million a-year to sink the national debt, the matter which most presents itself, is the affair of the Regency. Never, in the course of my observation, was delusion more successfully acted, nor a nation more completely deceived. But, to make this appear, it will be necessary to go over the circumstances.

Mr. Fox had stated in the House of Commons, that the Prince of Wales, as heir in succession, had a right in himself to assume the Government. This was opposed by Mr. Pitt; and, so far as the opposition was confined to the doctrine, it was just. But the principles which Mr. Pitt maintained on the contrary side were as bad, or worse in their extent, than those of Mr. Fox; because they went to establish an aristocracy over the nation, and over the small representation it has in the House of Commons.

Whether the English form of Government be good or bad, is not in this case the question; but, taking it as it stands, without regard to its merits or demerits, Mr. Pitt was farther from the point than Mr. Fox.

It is supposed to consist of three parts:—while therefore the Nation is disposed to continue this form, the parts have a national standing, independent of each other, and are not the creatures of each other. Had Mr. Fox passed through Parliament, and said that the person alluded to claimed on the ground of the Nation, Mr. Pitt must then have contended what he called the right of the Parliament against the right of the Nation.

By the appearance which the contest made, Mr. Fox took the hereditary ground, and Mr. Pitt the Parliamentary ground; but the fact is, they both took hereditary ground, and Mr. Pitt took the worst of the two.

What is called the Parliament is made up of two Houses, one of which is more hereditary, and more beyond the control of the Nation than what the Crown (as it is called) is supposed to be. It is an hereditary aristocracy, assuming and asserting indefeasible, irrevocable rights and authority, wholly independent of the Nation. Where, then, was the merited popularity of exalting this hereditary power over another hereditary power less independent of the Nation than what itself assumed to be, and of absorbing the rights of the Nation into a House over which it has neither election nor control?

The general impulse of the Nation was right; but it acted without reflection. It approved the opposition made to the right set up by Mr. Fox, without perceiving that Mr. Pitt was supporting another indefeasible right more remote from the Nation, in opposition to it.

With respect to the House of Commons, it is elected but by a small part of the Nation; but were the election as universal as taxation, which it ought to be, it would still be only the organ of the Nation, and cannot possess inherent rights.—When the National Assembly of France resolves a matter, the resolve is made in right of the Nation; but Mr. Pitt, on all national questions, so far as they refer to the House of Commons, absorbs the rights of the Nation into the organ, and makes the organ into a Nation, and the Nation itself into a cypher.

In a few words, the question on the Regency was a question of a million a-year, which is appropriated to the executive department: and Mr. Pitt could not possess himself of any management of this sum, without setting up the supremacy of Parliament; and when this was accomplished, it was indifferent who should be Regent, as he must be Regent at his own cost. Among the curiosities which this contentious debate afforded, was that of

making the Great Seal into a King, the affixing of which to an act was to be royal authority. If, therefore, Royal Authority is a Great Seal, it consequently is in itself nothing; and a good Constitution would be of infinitely more value to the Nation than what the three Nominal Powers, as they now stand, are worth.

The continual use of the word Constitution in the English Parliament shows there is none; and that the whole is merely a form of government without a Constitution, and constituting itself with what powers it pleases. If there were a Constitution, it certainly could be referred to; and the debate on any constitutional point would terminate by producing the Constitution. One member says this is Constitution, and another says that is Constitution—To-day it is one thing; and to-morrow something else—while the maintaining of the debate proves there is none. Constitution is now the cant word of Parliament, tuning itself to the ear of the Nation. Formerly it was the universal supremacy of Parliament—the omnipotence of Parliament: But since the progress of Liberty in France, those phrases have a despotic harshness in their note; and the English Parliament have caught the fashion from the National Assembly, but without the substance, of speaking of Constitution.

As the present generation of the people in England did not make the Government, they are not accountable for any of its defects; but, that sooner or later, it must come into their hands to undergo a constitutional reformation, is as certain as that the same thing has happened in France. If France, with a revenue of nearly twenty-four millions sterling, with an extent of rich and fertile country above four times larger than England, with a population of twenty-four millions of inhabitants to support taxation, with upwards of ninety millions sterling of gold and silver circulating in the nation, and with a debt less than the present debt of England—still found it necessary, from whatever cause, to come to a settlement of its affairs, it solves the problem of funding for both countries.

It is out of the question to say how long what is called the English constitution has lasted, and to argue from thence how long it is to last; the question is, how long can the funding system last? It is a thing but of modern invention, and has not yet continued beyond the life of a man; yet in that short space it has so far accumulated, that, together with the current expenses, it requires an amount of taxes at least equal to the whole landed

rental of the nation in acres to defray the annual expenditure. That a government could not have always gone on by the same system which has been followed for the last seventy years, must be evident to every man; and for the same reason it cannot always go on.

The funding system is not money; neither is it, properly speaking, credit. It, in effect, creates upon paper the sum which it appears to borrow, and lays on a tax to keep the imaginary capital alive by the payment of interest and sends the annuity to market, to be sold for paper already in circulation. If any credit is given, it is to the disposition of the people to pay the tax, and not to the government, which lays it on. When this disposition expires, what is supposed to be the credit of Government expires with it. The instance of France under the former Government shows that it is impossible to compel the payment of taxes by force, when a whole nation is determined to take its stand upon that ground.

Mr. Burke, in his review of the finances of France, states the quantity of gold and silver in France, at about eighty-eight millions sterling. In doing this, he has, I presume, divided by the difference of exchange, instead of the standard of twenty-four livres to a pound sterling; for M. Neckar's statement, from which Mr. Burke's is taken, is two thousand two hundred millions of livres, which is upwards of ninety-one millions and a half sterling.

M. Neckar in France, and Mr. George Chalmers at the Office of Trade and Plantation in England, of which Lord Hawkesbury is president, published nearly about the same time (1786) an account of the quantity of money in each nation, from the returns of the Mint of each nation. Mr. Chalmers, from the returns of the English Mint at the Tower of London, states the quantity of money in England, including Scotland and Ireland, to be twenty millions sterling.*[12](#)

M. Neckar*[13](#) says that the amount of money in France, recoined from the old coin which was called in, was two thousand five hundred millions of livres (upwards of one hundred and four millions sterling); and, after deducting for waste, and what may be in the West Indies and other possible circumstances, states the circulation quantity at home to be ninety-one millions and a half sterling; but, taking it as Mr. Burke has put it, it is sixty-eight millions more than the national quantity in England.

That the quantity of money in France cannot be under this sum, may at once be seen from the state of the French Revenue, without referring to the records of the French Mint for proofs. The revenue of France, prior to the Revolution, was nearly twenty-four millions sterling; and as paper had then no existence in France the whole revenue was collected upon gold and silver; and it would have been impossible to have collected such a quantity of revenue upon a less national quantity than M. Neckar has stated. Before the establishment of paper in England, the revenue was about a fourth part of the national amount of gold and silver, as may be known by referring to the revenue prior to King William, and the quantity of money stated to be in the nation at that time, which was nearly as much as it is now.

It can be of no real service to a nation, to impose upon itself, or to permit itself to be imposed upon; but the prejudices of some, and the imposition of others, have always represented France as a nation possessing but little money—whereas the quantity is not only more than four times what the quantity is in England, but is considerably greater on a proportion of numbers. To account for this deficiency on the part of England, some reference should be had to the English system of funding. It operates to multiply paper, and to substitute it in the room of money, in various shapes; and the more paper is multiplied, the more opportunities are offered to export the specie; and it admits of a possibility (by extending it to small notes) of increasing paper till there is no money left.

I know this is not a pleasant subject to English readers; but the matters I am going to mention, are so important in themselves, as to require the attention of men interested in money transactions of a public nature. There is a circumstance stated by M. Neckar, in his treatise on the administration of the finances, which has never been attended to in England, but which forms the only basis whereon to estimate the quantity of money (gold and silver) which ought to be in every nation in Europe, to preserve a relative proportion with other nations.

Lisbon and Cadiz are the two ports into which (money) gold and silver from South America are imported, and which afterwards divide and spread themselves over Europe by means of commerce, and increase the quantity of money in all parts of Europe. If, therefore, the amount of the annual importation into Europe can be known, and the relative proportion of the foreign commerce of the several nations by which it can be distributed can

be ascertained, they give a rule sufficiently true, to ascertain the quantity of money which ought to be found in any nation, at any given time.

M. Neckar shows from the registers of Lisbon and Cadiz, that the importation of gold and silver into Europe, is five millions sterling annually. He has not taken it on a single year, but on an average of fifteen succeeding years, from 1763 to 1777, both inclusive; in which time, the amount was one thousand eight hundred million livres, which is seventy-five millions sterling.*[14](#)

From the commencement of the Hanover succession in 1714 to the time Mr. Chalmers published, is seventy-two years; and the quantity imported into Europe, in that time, would be three hundred and sixty millions sterling.

If the foreign commerce of Great Britain be stated at a sixth part of what the whole foreign commerce of Europe amounts to (which is probably an inferior estimation to what the gentlemen at the Exchange would allow) the proportion which Britain should draw by commerce of this sum, to keep herself on a proportion with the rest of Europe, would be also a sixth part which is sixty millions sterling; and if the same allowance for waste and accident be made for England which M. Neckar makes for France, the quantity remaining after these deductions would be fifty-two millions; and this sum ought to have been in the nation (at the time Mr. Chalmers published), in addition to the sum which was in the nation at the commencement of the Hanover succession, and to have made in the whole at least sixty-six millions sterling; instead of which there were but twenty millions, which is forty-six millions below its proportionate quantity.

As the quantity of gold and silver imported into Lisbon and Cadiz is more exactly ascertained than that of any commodity imported into England, and as the quantity of money coined at the Tower of London is still more positively known, the leading facts do not admit of controversy. Either, therefore, the commerce of England is unproductive of profit, or the gold and silver which it brings in leak continually away by unseen means at the average rate of about three-quarters of a million a year, which, in the course of seventy-two years, accounts for the deficiency; and its absence is supplied by paper.*[15](#)

The Revolution of France is attended with many novel circumstances, not only in the political sphere, but in the circle of money transactions. Among

others, it shows that a government may be in a state of insolvency and a nation rich. So far as the fact is confined to the late Government of France, it was insolvent; because the nation would no longer support its extravagance, and therefore it could no longer support itself—but with respect to the nation all the means existed. A government may be said to be insolvent every time it applies to the nation to discharge its arrears. The insolvency of the late Government of France and the present of England differed in no other respect than as the dispositions of the people differ. The people of France refused their aid to the old Government; and the people of England submit to taxation without inquiry. What is called the Crown in England has been insolvent several times; the last of which, publicly known, was in May, 1777, when it applied to the nation to discharge upwards of L600,000 private debts, which otherwise it could not pay.

It was the error of Mr. Pitt, Mr. Burke, and all those who were unacquainted with the affairs of France to confound the French nation with the French Government. The French nation, in effect, endeavoured to render the late Government insolvent for the purpose of taking government into its own hands: and it reserved its means for the support of the new Government. In a country of such vast extent and population as France the natural means cannot be wanting, and the political means appear the instant the nation is disposed to permit them. When Mr. Burke, in a speech last winter in the British Parliament, "cast his eyes over the map of Europe, and saw a chasm that once was France," he talked like a dreamer of dreams. The same natural France existed as before, and all the natural means existed with it. The only chasm was that the extinction of despotism had left, and which was to be filled up with the Constitution more formidable in resources than the power which had expired.

Although the French Nation rendered the late Government insolvent, it did not permit the insolvency to act towards the creditors; and the creditors, considering the Nation as the real pay-master, and the Government only as the agent, rested themselves on the nation, in preference to the Government. This appears greatly to disturb Mr. Burke, as the precedent is fatal to the policy by which governments have supposed themselves secure. They have contracted debts, with a view of attaching what is called the monied interest of a Nation to their support; but the example in France shows that the permanent security of the creditor is in the Nation, and not in the Government; and that in all possible revolutions that may happen in

Governments, the means are always with the Nation, and the Nation always in existence. Mr. Burke argues that the creditors ought to have abided the fate of the Government which they trusted; but the National Assembly considered them as the creditors of the Nation, and not of the Government—of the master, and not of the steward.

Notwithstanding the late government could not discharge the current expenses, the present government has paid off a great part of the capital. This has been accomplished by two means; the one by lessening the expenses of government, and the other by the sale of the monastic and ecclesiastical landed estates. The devotees and penitent debauchees, extortioners and misers of former days, to ensure themselves a better world than that they were about to leave, had bequeathed immense property in trust to the priesthood for pious uses; and the priesthood kept it for themselves. The National Assembly has ordered it to be sold for the good of the whole nation, and the priesthood to be decently provided for.

In consequence of the revolution, the annual interest of the debt of France will be reduced at least six millions sterling, by paying off upwards of one hundred millions of the capital; which, with lessening the former expenses of government at least three millions, will place France in a situation worthy the imitation of Europe.

Upon a whole review of the subject, how vast is the contrast! While Mr. Burke has been talking of a general bankruptcy in France, the National Assembly has been paying off the capital of its debt; and while taxes have increased near a million a year in England, they have lowered several millions a year in France. Not a word has either Mr. Burke or Mr. Pitt said about the French affairs, or the state of the French finances, in the present Session of Parliament. The subject begins to be too well understood, and imposition serves no longer.

There is a general enigma running through the whole of Mr. Burke's book. He writes in a rage against the National Assembly; but what is he enraged about? If his assertions were as true as they are groundless, and that France by her Revolution, had annihilated her power, and become what he calls a chasm, it might excite the grief of a Frenchman (considering himself as a national man), and provoke his rage against the National Assembly; but why should it excite the rage of Mr. Burke? Alas! it is not the nation of France that Mr. Burke means, but the Court; and every Court in Europe,

dreading the same fate, is in mourning. He writes neither in the character of a Frenchman nor an Englishman, but in the fawning character of that creature known in all countries, and a friend to none—a courtier. Whether it be the Court of Versailles, or the Court of St. James, or Carlton-House, or the Court in expectation, signifies not; for the caterpillar principle of all Courts and Courtiers are alike. They form a common policy throughout Europe, detached and separate from the interest of Nations: and while they appear to quarrel, they agree to plunder. Nothing can be more terrible to a Court or Courtier than the Revolution of France. That which is a blessing to Nations is bitterness to them: and as their existence depends on the duplicity of a country, they tremble at the approach of principles, and dread the precedent that threatens their overthrow.

CONCLUSION

Reason and Ignorance, the opposites of each other, influence the great bulk of mankind. If either of these can be rendered sufficiently extensive in a country, the machinery of Government goes easily on. Reason obeys itself; and Ignorance submits to whatever is dictated to it.

The two modes of the Government which prevail in the world, are:

First, Government by election and representation.

Secondly, Government by hereditary succession.

The former is generally known by the name of republic; the latter by that of monarchy and aristocracy.

Those two distinct and opposite forms erect themselves on the two distinct and opposite bases of Reason and Ignorance.—As the exercise of Government requires talents and abilities, and as talents and abilities cannot have hereditary descent, it is evident that hereditary succession requires a belief from man to which his reason cannot subscribe, and which can only be established upon his ignorance; and the more ignorant any country is, the better it is fitted for this species of Government.

On the contrary, Government, in a well-constituted republic, requires no belief from man beyond what his reason can give. He sees the rationale of the whole system, its origin and its operation; and as it is best supported when best understood, the human faculties act with boldness, and acquire, under this form of government, a gigantic manliness.

As, therefore, each of those forms acts on a different base, the one moving freely by the aid of reason, the other by ignorance; we have next to consider, what it is that gives motion to that species of Government which is called mixed Government, or, as it is sometimes ludicrously styled, a Government of this, that and t' other.

The moving power in this species of Government is, of necessity, Corruption. However imperfect election and representation may be in mixed Governments, they still give exercise to a greater portion of reason than is convenient to the hereditary Part; and therefore it becomes necessary to buy the reason up. A mixed Government is an imperfect everything, cementing and soldering the discordant parts together by corruption, to act as a whole. Mr. Burke appears highly disgusted that France, since she had resolved on a revolution, did not adopt what he calls "A British Constitution"; and the regretful manner in which he expresses himself on this occasion implies a suspicion that the British Constitution needed something to keep its defects in countenance.

In mixed Governments there is no responsibility: the parts cover each other till responsibility is lost; and the corruption which moves the machine, contrives at the same time its own escape. When it is laid down as a maxim, that a King can do no wrong, it places him in a state of similar security with that of idiots and persons insane, and responsibility is out of the question with respect to himself. It then descends upon the Minister, who shelters himself under a majority in Parliament, which, by places, pensions, and corruption, he can always command; and that majority justifies itself by the same authority with which it protects the Minister. In this rotatory motion, responsibility is thrown off from the parts, and from the whole.

When there is a Part in a Government which can do no wrong, it implies that it does nothing; and is only the machine of another power, by whose advice and direction it acts. What is supposed to be the King in the mixed Governments, is the Cabinet; and as the Cabinet is always a part of the Parliament, and the members justifying in one character what they advise and act in another, a mixed Government becomes a continual enigma; entailing upon a country by the quantity of corruption necessary to solder the parts, the expense of supporting all the forms of government at once, and finally resolving itself into a Government by Committee; in which the

advisers, the actors, the approvers, the justifiers, the persons responsible, and the persons not responsible, are the same persons.

By this pantomimical contrivance, and change of scene and character, the parts help each other out in matters which neither of them singly would assume to act. When money is to be obtained, the mass of variety apparently dissolves, and a profusion of parliamentary praises passes between the parts. Each admires with astonishment, the wisdom, the liberality, the disinterestedness of the other: and all of them breathe a pitying sigh at the burthens of the Nation.

But in a well-constituted republic, nothing of this soldering, praising, and pitying, can take place; the representation being equal throughout the country, and complete in itself, however it may be arranged into legislative and executive, they have all one and the same natural source. The parts are not foreigners to each other, like democracy, aristocracy, and monarchy. As there are no discordant distinctions, there is nothing to corrupt by compromise, nor confound by contrivance. Public measures appeal of themselves to the understanding of the Nation, and, resting on their own merits, disown any flattering applications to vanity. The continual whine of lamenting the burden of taxes, however successfully it may be practised in mixed Governments, is inconsistent with the sense and spirit of a republic. If taxes are necessary, they are of course advantageous; but if they require an apology, the apology itself implies an impeachment. Why, then, is man thus imposed upon, or why does he impose upon himself?

When men are spoken of as kings and subjects, or when Government is mentioned under the distinct and combined heads of monarchy, aristocracy, and democracy, what is it that reasoning man is to understand by the terms? If there really existed in the world two or more distinct and separate elements of human power, we should then see the several origins to which those terms would descriptively apply; but as there is but one species of man, there can be but one element of human power; and that element is man himself. Monarchy, aristocracy, and democracy, are but creatures of imagination; and a thousand such may be contrived as well as three.

From the Revolutions of America and France, and the symptoms that have appeared in other countries, it is evident that the opinion of the world is changing with respect to systems of Government, and that revolutions are not within the compass of political calculations. The progress of time and

circumstances, which men assign to the accomplishment of great changes, is too mechanical to measure the force of the mind, and the rapidity of reflection, by which revolutions are generated: All the old governments have received a shock from those that already appear, and which were once more improbable, and are a greater subject of wonder, than a general revolution in Europe would be now.

When we survey the wretched condition of man, under the monarchical and hereditary systems of Government, dragged from his home by one power, or driven by another, and impoverished by taxes more than by enemies, it becomes evident that those systems are bad, and that a general revolution in the principle and construction of Governments is necessary.

What is government more than the management of the affairs of a Nation? It is not, and from its nature cannot be, the property of any particular man or family, but of the whole community, at whose expense it is supported; and though by force and contrivance it has been usurped into an inheritance, the usurpation cannot alter the right of things. Sovereignty, as a matter of right, appertains to the Nation only, and not to any individual; and a Nation has at all times an inherent indefeasible right to abolish any form of Government it finds inconvenient, and to establish such as accords with its interest, disposition and happiness. The romantic and barbarous distinction of men into Kings and subjects, though it may suit the condition of courtiers, cannot that of citizens; and is exploded by the principle upon which Governments are now founded. Every citizen is a member of the Sovereignty, and, as such, can acknowledge no personal subjection; and his obedience can be only to the laws.

When men think of what Government is, they must necessarily suppose it to possess a knowledge of all the objects and matters upon which its authority is to be exercised. In this view of Government, the republican system, as established by America and France, operates to embrace the whole of a Nation; and the knowledge necessary to the interest of all the parts, is to be found in the center, which the parts by representation form: But the old Governments are on a construction that excludes knowledge as well as happiness; government by Monks, who knew nothing of the world beyond the walls of a Convent, is as consistent as government by Kings.

What were formerly called Revolutions, were little more than a change of persons, or an alteration of local circumstances. They rose and fell like

things of course, and had nothing in their existence or their fate that could influence beyond the spot that produced them. But what we now see in the world, from the Revolutions of America and France, are a renovation of the natural order of things, a system of principles as universal as truth and the existence of man, and combining moral with political happiness and national prosperity.

"I. Men are born, and always continue, free and equal in respect of their rights. Civil distinctions, therefore, can be founded only on public utility.

"II. The end of all political associations is the preservation of the natural and imprescriptible rights of man; and these rights are liberty, property, security, and resistance of oppression.

"III. The nation is essentially the source of all sovereignty; nor can any Individual, or Any Body Of Men, be entitled to any authority which is not expressly derived from it."

In these principles, there is nothing to throw a Nation into confusion by inflaming ambition. They are calculated to call forth wisdom and abilities, and to exercise them for the public good, and not for the emolument or aggrandisement of particular descriptions of men or families. Monarchical sovereignty, the enemy of mankind, and the source of misery, is abolished; and the sovereignty itself is restored to its natural and original place, the Nation. Were this the case throughout Europe, the cause of wars would be taken away.

It is attributed to Henry the Fourth of France, a man of enlarged and benevolent heart, that he proposed, about the year 1610, a plan for abolishing war in Europe. The plan consisted in constituting an European Congress, or as the French authors style it, a Pacific Republic; by appointing delegates from the several Nations who were to act as a Court of arbitration in any disputes that might arise between nation and nation.

Had such a plan been adopted at the time it was proposed, the taxes of England and France, as two of the parties, would have been at least ten millions sterling annually to each Nation less than they were at the commencement of the French Revolution.

To conceive a cause why such a plan has not been adopted (and that instead of a Congress for the purpose of preventing war, it has been called only to terminate a war, after a fruitless expense of several years) it will be

necessary to consider the interest of Governments as a distinct interest to that of Nations.

Whatever is the cause of taxes to a Nation, becomes also the means of revenue to Government. Every war terminates with an addition of taxes, and consequently with an addition of revenue; and in any event of war, in the manner they are now commenced and concluded, the power and interest of Governments are increased. War, therefore, from its productiveness, as it easily furnishes the pretence of necessity for taxes and appointments to places and offices, becomes a principal part of the system of old Governments; and to establish any mode to abolish war, however advantageous it might be to Nations, would be to take from such Government the most lucrative of its branches. The frivolous matters upon which war is made, show the disposition and avidity of Governments to uphold the system of war, and betray the motives upon which they act.

Why are not Republics plunged into war, but because the nature of their Government does not admit of an interest distinct from that of the Nation? Even Holland, though an ill-constructed Republic, and with a commerce extending over the world, existed nearly a century without war: and the instant the form of Government was changed in France, the republican principles of peace and domestic prosperity and economy arose with the new Government; and the same consequences would follow the cause in other Nations.

As war is the system of Government on the old construction, the animosity which Nations reciprocally entertain, is nothing more than what the policy of their Governments excites to keep up the spirit of the system. Each Government accuses the other of perfidy, intrigue, and ambition, as a means of heating the imagination of their respective Nations, and incensing them to hostilities. Man is not the enemy of man, but through the medium of a false system of Government. Instead, therefore, of exclaiming against the ambition of Kings, the exclamation should be directed against the principle of such Governments; and instead of seeking to reform the individual, the wisdom of a Nation should apply itself to reform the system.

Whether the forms and maxims of Governments which are still in practice, were adapted to the condition of the world at the period they were established, is not in this case the question. The older they are, the less correspondence can they have with the present state of things. Time, and

change of circumstances and opinions, have the same progressive effect in rendering modes of Government obsolete as they have upon customs and manners.—Agriculture, commerce, manufactures, and the tranquil arts, by which the prosperity of Nations is best promoted, require a different system of Government, and a different species of knowledge to direct its operations, than what might have been required in the former condition of the world.

As it is not difficult to perceive, from the enlightened state of mankind, that hereditary Governments are verging to their decline, and that Revolutions on the broad basis of national sovereignty and Government by representation, are making their way in Europe, it would be an act of wisdom to anticipate their approach, and produce Revolutions by reason and accommodation, rather than commit them to the issue of convulsions.

From what we now see, nothing of reform in the political world ought to be held improbable. It is an age of Revolutions, in which everything may be looked for. The intrigue of Courts, by which the system of war is kept up, may provoke a confederation of Nations to abolish it: and an European Congress to patronise the progress of free Government, and promote the civilisation of Nations with each other, is an event nearer in probability, than once were the revolutions and alliance of France and America.

END OF PART I.

**RIGHTS OF MAN. PART SECOND,
COMBINING PRINCIPLE AND PRACTICE.**

By Thomas Paine.

FRENCH TRANSLATOR'S PREFACE.

(1792)

THE work of which we offer a translation to the public has created the greatest sensation in England. Paine, that man of freedom, who seems born to preach "Common Sense" to the whole world with the same success as in America, explains in it to the people of England the theory of the practice of the Rights of Man.

Owing to the prejudices that still govern that nation, the author has been obliged to condescend to answer Mr. Burke. He has done so more especially in an extended preface which is nothing but a piece of very tedious controversy, in which he shows himself very sensitive to criticisms that do not really affect him. To translate it seemed an insult to the free French people, and similar reasons have led the editors to suppress also a dedicatory epistle addressed by Paine to Lafayette.

The French can no longer endure dedicatory epistles. A man should write privately to those he esteems: when he publishes a book his thoughts should be offered to the public alone. Paine, that uncorrupted friend of freedom, believed too in the sincerity of Lafayette. So easy is it to deceive men of single-minded purpose! Bred at a distance from courts, that austere American does not seem any more on his guard against the artful ways and speech of courtiers than some Frenchmen who resemble him.

TO

M. DE LA FAYETTE

After an acquaintance of nearly fifteen years in difficult situations in America, and various consultations in Europe, I feel a pleasure in presenting to you this small treatise, in gratitude for your services to my beloved America, and as a testimony of my esteem for the virtues, public and private, which I know you to possess.

The only point upon which I could ever discover that we differed was not as to principles of government, but as to time. For my own part I think it

equally as injurious to good principles to permit them to linger, as to push them on too fast. That which you suppose accomplishable in fourteen or fifteen years, I may believe practicable in a much shorter period. Mankind, as it appears to me, are always ripe enough to understand their true interest, provided it be presented clearly to their understanding, and that in a manner not to create suspicion by anything like self-design, nor offend by assuming too much. Where we would wish to reform we must not reproach.

When the American revolution was established I felt a disposition to sit serenely down and enjoy the calm. It did not appear to me that any object could afterwards arise great enough to make me quit tranquility and feel as I had felt before. But when principle, and not place, is the energetic cause of action, a man, I find, is everywhere the same.

I am now once more in the public world; and as I have not a right to contemplate on so many years of remaining life as you have, I have resolved to labour as fast as I can; and as I am anxious for your aid and your company, I wish you to hasten your principles and overtake me.

If you make a campaign the ensuing spring, which it is most probable there will be no occasion for, I will come and join you. Should the campaign commence, I hope it will terminate in the extinction of German despotism, and in establishing the freedom of all Germany. When France shall be surrounded with revolutions she will be in peace and safety, and her taxes, as well as those of Germany, will consequently become less.

Your sincere,

Affectionate Friend,

Thomas Paine

London, Feb. 9, 1792

PREFACE

When I began the chapter entitled the "Conclusion" in the former part of the RIGHTS OF MAN, published last year, it was my intention to have extended it to a greater length; but in casting the whole matter in my mind, which I wish to add, I found that it must either make the work too bulky, or contract my plan too much. I therefore brought it to a close as soon as the subject would admit, and reserved what I had further to say to another opportunity.

Several other reasons contributed to produce this determination. I wished to know the manner in which a work, written in a style of thinking and expression different to what had been customary in England, would be received before I proceeded farther. A great field was opening to the view of mankind by means of the French Revolution. Mr. Burke's outrageous opposition thereto brought the controversy into England. He attacked principles which he knew (from information) I would contest with him, because they are principles I believe to be good, and which I have contributed to establish, and conceive myself bound to defend. Had he not urged the controversy, I had most probably been a silent man.

Another reason for deferring the remainder of the work was, that Mr. Burke promised in his first publication to renew the subject at another opportunity, and to make a comparison of what he called the English and French Constitutions. I therefore held myself in reserve for him. He has published two works since, without doing this: which he certainly would not have omitted, had the comparison been in his favour.

In his last work, his "Appeal from the New to the Old Whigs," he has quoted about ten pages from the RIGHTS OF MAN, and having given himself the trouble of doing this, says he "shall not attempt in the smallest degree to refute them," meaning the principles therein contained. I am enough acquainted with Mr. Burke to know that he would if he could. But instead of contesting them, he immediately after consoles himself with saying that "he has done his part."—He has not done his part. He has not performed his promise of a comparison of constitutions. He started the

controversy, he gave the challenge, and has fled from it; and he is now a case in point with his own opinion that "the age of chivalry is gone!"

The title, as well as the substance of his last work, his "Appeal," is his condemnation. Principles must stand on their own merits, and if they are good they certainly will. To put them under the shelter of other men's authority, as Mr. Burke has done, serves to bring them into suspicion. Mr. Burke is not very fond of dividing his honours, but in this case he is artfully dividing the disgrace.

But who are those to whom Mr. Burke has made his appeal? A set of childish thinkers, and half-way politicians born in the last century, men who went no farther with any principle than as it suited their purposes as a party; the nation was always left out of the question; and this has been the character of every party from that day to this. The nation sees nothing of such works, or such politics, worthy its attention. A little matter will move a party, but it must be something great that moves a nation.

Though I see nothing in Mr. Burke's "Appeal" worth taking much notice of, there is, however, one expression upon which I shall offer a few remarks. After quoting largely from the RIGHTS OF MAN, and declining to contest the principles contained in that work, he says: "This will most probably be done (if such writings shall be thought to deserve any other refutation than that of criminal justice) by others, who may think with Mr. Burke and with the same zeal."

In the first place, it has not yet been done by anybody. Not less, I believe, than eight or ten pamphlets intended as answers to the former part of the RIGHTS OF MAN have been published by different persons, and not one of them to my knowledge, has extended to a second edition, nor are even the titles of them so much as generally remembered. As I am averse to unnecessary multiplying publications, I have answered none of them. And as I believe that a man may write himself out of reputation when nobody else can do it, I am careful to avoid that rock.

But as I would decline unnecessary publications on the one hand, so would I avoid everything that might appear like sullen pride on the other. If Mr. Burke, or any person on his side the question, will produce an answer to the RIGHTS OF MAN that shall extend to a half, or even to a fourth part of the number of copies to which the Rights Of Man extended, I will reply to his work. But until this be done, I shall so far take the sense of the public

for my guide (and the world knows I am not a flatterer) that what they do not think worth while to read, is not worth mine to answer. I suppose the number of copies to which the first part of the RIGHTS OF MAN extended, taking England, Scotland, and Ireland, is not less than between forty and fifty thousand.

I now come to remark on the remaining part of the quotation I have made from Mr. Burke.

"If," says he, "such writings shall be thought to deserve any other refutation than that of criminal justice."

Pardoning the pun, it must be criminal justice indeed that should condemn a work as a substitute for not being able to refute it. The greatest condemnation that could be passed upon it would be a refutation. But in proceeding by the method Mr. Burke alludes to, the condemnation would, in the final event, pass upon the criminality of the process and not upon the work, and in this case, I had rather be the author, than be either the judge or the jury that should condemn it.

But to come at once to the point. I have differed from some professional gentlemen on the subject of prosecutions, and I since find they are falling into my opinion, which I will here state as fully, but as concisely as I can.

I will first put a case with respect to any law, and then compare it with a government, or with what in England is, or has been, called a constitution.

It would be an act of despotism, or what in England is called arbitrary power, to make a law to prohibit investigating the principles, good or bad, on which such a law, or any other is founded.

If a law be bad it is one thing to oppose the practice of it, but it is quite a different thing to expose its errors, to reason on its defects, and to show cause why it should be repealed, or why another ought to be substituted in its place. I have always held it an opinion (making it also my practice) that it is better to obey a bad law, making use at the same time of every argument to show its errors and procure its repeal, than forcibly to violate it; because the precedent of breaking a bad law might weaken the force, and lead to a discretionary violation, of those which are good.

The case is the same with respect to principles and forms of government, or to what are called constitutions and the parts of which they are, composed.

It is for the good of nations and not for the emolument or aggrandisement of particular individuals, that government ought to be established, and that mankind are at the expense of supporting it. The defects of every government and constitution both as to principle and form, must, on a parity of reasoning, be as open to discussion as the defects of a law, and it is a duty which every man owes to society to point them out. When those defects, and the means of remedying them, are generally seen by a nation, that nation will reform its government or its constitution in the one case, as the government repealed or reformed the law in the other. The operation of government is restricted to the making and the administering of laws; but it is to a nation that the right of forming or reforming, generating or regenerating constitutions and governments belong; and consequently those subjects, as subjects of investigation, are always before a country as a matter of right, and cannot, without invading the general rights of that country, be made subjects for prosecution. On this ground I will meet Mr. Burke whenever he please. It is better that the whole argument should come out than to seek to stifle it. It was himself that opened the controversy, and he ought not to desert it.

I do not believe that monarchy and aristocracy will continue seven years longer in any of the enlightened countries in Europe. If better reasons can be shown for them than against them, they will stand; if the contrary, they will not. Mankind are not now to be told they shall not think, or they shall not read; and publications that go no farther than to investigate principles of government, to invite men to reason and to reflect, and to show the errors and excellences of different systems, have a right to appear. If they do not excite attention, they are not worth the trouble of a prosecution; and if they do, the prosecution will amount to nothing, since it cannot amount to a prohibition of reading. This would be a sentence on the public, instead of the author, and would also be the most effectual mode of making or hastening revolution.

On all cases that apply universally to a nation, with respect to systems of government, a jury of twelve men is not competent to decide. Where there are no witnesses to be examined, no facts to be proved, and where the whole matter is before the whole public, and the merits or demerits of it resting on their opinion; and where there is nothing to be known in a court, but what every body knows out of it, every twelve men is equally as good a jury as the other, and would most probably reverse each other's verdict; or,

from the variety of their opinions, not be able to form one. It is one case, whether a nation approve a work, or a plan; but it is quite another case, whether it will commit to any such jury the power of determining whether that nation have a right to, or shall reform its government or not. I mention those cases that Mr. Burke may see I have not written on Government without reflecting on what is Law, as well as on what are Rights.—The only effectual jury in such cases would be a convention of the whole nation fairly elected; for in all such cases the whole nation is the vicinage. If Mr. Burke will propose such a jury, I will waive all privileges of being the citizen of another country, and, defending its principles, abide the issue, provided he will do the same; for my opinion is, that his work and his principles would be condemned instead of mine.

As to the prejudices which men have from education and habit, in favour of any particular form or system of government, those prejudices have yet to stand the test of reason and reflection. In fact, such prejudices are nothing. No man is prejudiced in favour of a thing, knowing it to be wrong. He is attached to it on the belief of its being right; and when he sees it is not so, the prejudice will be gone. We have but a defective idea of what prejudice is. It might be said, that until men think for themselves the whole is prejudice, and not opinion; for that only is opinion which is the result of reason and reflection. I offer this remark, that Mr. Burke may not confide too much in what have been the customary prejudices of the country.

I do not believe that the people of England have ever been fairly and candidly dealt by. They have been imposed upon by parties, and by men assuming the character of leaders. It is time that the nation should rise above those trifles. It is time to dismiss that inattention which has so long been the encouraging cause of stretching taxation to excess. It is time to dismiss all those songs and toasts which are calculated to enslave, and operate to suffocate reflection. On all such subjects men have but to think, and they will neither act wrong nor be misled. To say that any people are not fit for freedom, is to make poverty their choice, and to say they had rather be loaded with taxes than not. If such a case could be proved, it would equally prove that those who govern are not fit to govern them, for they are a part of the same national mass.

But admitting governments to be changed all over Europe; it certainly may be done without convulsion or revenge. It is not worth making changes

or revolutions, unless it be for some great national benefit: and when this shall appear to a nation, the danger will be, as in America and France, to those who oppose; and with this reflection I close my Preface.

THOMAS PAINE

London, Feb. 9, 1792

RIGHTS OF MAN PART II.

INTRODUCTION.

What Archimedes said of the mechanical powers, may be applied to Reason and Liberty. "Had we," said he, "a place to stand upon, we might raise the world."

The revolution of America presented in politics what was only theory in mechanics. So deeply rooted were all the governments of the old world, and so effectually had the tyranny and the antiquity of habit established itself over the mind, that no beginning could be made in Asia, Africa, or Europe, to reform the political condition of man. Freedom had been hunted round the globe; reason was considered as rebellion; and the slavery of fear had made men afraid to think.

But such is the irresistible nature of truth, that all it asks,—and all it wants,—is the liberty of appearing. The sun needs no inscription to distinguish him from darkness; and no sooner did the American governments display themselves to the world, than despotism felt a shock and man began to contemplate redress.

The independence of America, considered merely as a separation from England, would have been a matter but of little importance, had it not been accompanied by a revolution in the principles and practice of governments. She made a stand, not for herself only, but for the world, and looked beyond the advantages herself could receive. Even the Hessian, though hired to fight against her, may live to bless his defeat; and England, condemning the viciousness of its government, rejoice in its miscarriage.

As America was the only spot in the political world where the principle of universal reformation could begin, so also was it the best in the natural world. An assemblage of circumstances conspired, not only to give birth, but to add gigantic maturity to its principles. The scene which that country presents to the eye of a spectator, has something in it which generates and encourages great ideas. Nature appears to him in magnitude. The mighty objects he beholds, act upon his mind by enlarging it, and he partakes of the greatness he contemplates.—Its first settlers were emigrants from different European nations, and of diversified professions of religion, retiring from

the governmental persecutions of the old world, and meeting in the new, not as enemies, but as brothers. The wants which necessarily accompany the cultivation of a wilderness produced among them a state of society, which countries long harassed by the quarrels and intrigues of governments, had neglected to cherish. In such a situation man becomes what he ought. He sees his species, not with the inhuman idea of a natural enemy, but as kindred; and the example shows to the artificial world, that man must go back to Nature for information.

From the rapid progress which America makes in every species of improvement, it is rational to conclude that, if the governments of Asia, Africa, and Europe had begun on a principle similar to that of America, or had not been very early corrupted therefrom, those countries must by this time have been in a far superior condition to what they are. Age after age has passed away, for no other purpose than to behold their wretchedness. Could we suppose a spectator who knew nothing of the world, and who was put into it merely to make his observations, he would take a great part of the old world to be new, just struggling with the difficulties and hardships of an infant settlement. He could not suppose that the hordes of miserable poor with which old countries abound could be any other than those who had not yet had time to provide for themselves. Little would he think they were the consequence of what in such countries they call government.

If, from the more wretched parts of the old world, we look at those which are in an advanced stage of improvement we still find the greedy hand of government thrusting itself into every corner and crevice of industry, and grasping the spoil of the multitude. Invention is continually exercised to furnish new pretences for revenue and taxation. It watches prosperity as its prey, and permits none to escape without a tribute.

As revolutions have begun (and as the probability is always greater against a thing beginning, than of proceeding after it has begun), it is natural to expect that other revolutions will follow. The amazing and still increasing expenses with which old governments are conducted, the numerous wars they engage in or provoke, the embarrassments they throw in the way of universal civilisation and commerce, and the oppression and usurpation acted at home, have wearied out the patience, and exhausted the property of the world. In such a situation, and with such examples already

existing, revolutions are to be looked for. They are become subjects of universal conversation, and may be considered as the Order of the day.

If systems of government can be introduced less expensive and more productive of general happiness than those which have existed, all attempts to oppose their progress will in the end be fruitless. Reason, like time, will make its own way, and prejudice will fall in a combat with interest. If universal peace, civilisation, and commerce are ever to be the happy lot of man, it cannot be accomplished but by a revolution in the system of governments. All the monarchical governments are military. War is their trade, plunder and revenue their objects. While such governments continue, peace has not the absolute security of a day. What is the history of all monarchical governments but a disgusting picture of human wretchedness, and the accidental respite of a few years' repose? Wearied with war, and tired with human butchery, they sat down to rest, and called it peace. This certainly is not the condition that heaven intended for man; and if this be monarchy, well might monarchy be reckoned among the sins of the Jews.

The revolutions which formerly took place in the world had nothing in them that interested the bulk of mankind. They extended only to a change of persons and measures, but not of principles, and rose or fell among the common transactions of the moment. What we now behold may not improperly be called a "counter-revolution." Conquest and tyranny, at some earlier period, dispossessed man of his rights, and he is now recovering them. And as the tide of all human affairs has its ebb and flow in directions contrary to each other, so also is it in this. Government founded on a moral theory, on a system of universal peace, on the indefeasible hereditary Rights of Man, is now revolving from west to east by a stronger impulse than the government of the sword revolved from east to west. It interests not particular individuals, but nations in its progress, and promises a new era to the human race.

The danger to which the success of revolutions is most exposed is that of attempting them before the principles on which they proceed, and the advantages to result from them, are sufficiently seen and understood. Almost everything appertaining to the circumstances of a nation, has been absorbed and confounded under the general and mysterious word government. Though it avoids taking to its account the errors it commits, and the mischiefs it occasions, it fails not to arrogate to itself whatever has

the appearance of prosperity. It robs industry of its honours, by pedantically making itself the cause of its effects; and purloins from the general character of man, the merits that appertain to him as a social being.

It may therefore be of use in this day of revolutions to discriminate between those things which are the effect of government, and those which are not. This will best be done by taking a review of society and civilisation, and the consequences resulting therefrom, as things distinct from what are called governments. By beginning with this investigation, we shall be able to assign effects to their proper causes and analyse the mass of common errors.

CHAPTER I. OF SOCIETY AND CIVILISATION

Great part of that order which reigns among mankind is not the effect of government. It has its origin in the principles of society and the natural constitution of man. It existed prior to government, and would exist if the formality of government was abolished. The mutual dependence and reciprocal interest which man has upon man, and all the parts of civilised community upon each other, create that great chain of connection which holds it together. The landholder, the farmer, the manufacturer, the merchant, the tradesman, and every occupation, prospers by the aid which each receives from the other, and from the whole. Common interest regulates their concerns, and forms their law; and the laws which common usage ordains, have a greater influence than the laws of government. In fine, society performs for itself almost everything which is ascribed to government.

To understand the nature and quantity of government proper for man, it is necessary to attend to his character. As Nature created him for social life, she fitted him for the station she intended. In all cases she made his natural wants greater than his individual powers. No one man is capable, without the aid of society, of supplying his own wants, and those wants, acting upon every individual, impel the whole of them into society, as naturally as gravitation acts to a centre.

But she has gone further. She has not only forced man into society by a diversity of wants which the reciprocal aid of each other can supply, but she has implanted in him a system of social affections, which, though not necessary to his existence, are essential to his happiness. There is no period in life when this love for society ceases to act. It begins and ends with our being.

If we examine with attention into the composition and constitution of man, the diversity of his wants, and the diversity of talents in different men for reciprocally accommodating the wants of each other, his propensity to society, and consequently to preserve the advantages resulting from it, we

shall easily discover, that a great part of what is called government is mere imposition.

Government is no farther necessary than to supply the few cases to which society and civilisation are not conveniently competent; and instances are not wanting to show, that everything which government can usefully add thereto, has been performed by the common consent of society, without government.

For upwards of two years from the commencement of the American War, and to a longer period in several of the American States, there were no established forms of government. The old governments had been abolished, and the country was too much occupied in defence to employ its attention in establishing new governments; yet during this interval order and harmony were preserved as inviolate as in any country in Europe. There is a natural aptness in man, and more so in society, because it embraces a greater variety of abilities and resource, to accommodate itself to whatever situation it is in. The instant formal government is abolished, society begins to act: a general association takes place, and common interest produces common security.

So far is it from being true, as has been pretended, that the abolition of any formal government is the dissolution of society, that it acts by a contrary impulse, and brings the latter the closer together. All that part of its organisation which it had committed to its government, devolves again upon itself, and acts through its medium. When men, as well from natural instinct as from reciprocal benefits, have habituated themselves to social and civilised life, there is always enough of its principles in practice to carry them through any changes they may find necessary or convenient to make in their government. In short, man is so naturally a creature of society that it is almost impossible to put him out of it.

Formal government makes but a small part of civilised life; and when even the best that human wisdom can devise is established, it is a thing more in name and idea than in fact. It is to the great and fundamental principles of society and civilisation—to the common usage universally consented to, and mutually and reciprocally maintained—to the unceasing circulation of interest, which, passing through its million channels, invigorates the whole mass of civilised man—it is to these things, infinitely more than to anything which even the best instituted government can

perform, that the safety and prosperity of the individual and of the whole depends.

The more perfect civilisation is, the less occasion has it for government, because the more does it regulate its own affairs, and govern itself; but so contrary is the practice of old governments to the reason of the case, that the expenses of them increase in the proportion they ought to diminish. It is but few general laws that civilised life requires, and those of such common usefulness, that whether they are enforced by the forms of government or not, the effect will be nearly the same. If we consider what the principles are that first condense men into society, and what are the motives that regulate their mutual intercourse afterwards, we shall find, by the time we arrive at what is called government, that nearly the whole of the business is performed by the natural operation of the parts upon each other.

Man, with respect to all those matters, is more a creature of consistency than he is aware, or than governments would wish him to believe. All the great laws of society are laws of nature. Those of trade and commerce, whether with respect to the intercourse of individuals or of nations, are laws of mutual and reciprocal interest. They are followed and obeyed, because it is the interest of the parties so to do, and not on account of any formal laws their governments may impose or interpose.

But how often is the natural propensity to society disturbed or destroyed by the operations of government! When the latter, instead of being ingrafted on the principles of the former, assumes to exist for itself, and acts by partialities of favour and oppression, it becomes the cause of the mischiefs it ought to prevent.

If we look back to the riots and tumults which at various times have happened in England, we shall find that they did not proceed from the want of a government, but that government was itself the generating cause; instead of consolidating society it divided it; it deprived it of its natural cohesion, and engendered discontents and disorders which otherwise would not have existed. In those associations which men promiscuously form for the purpose of trade, or of any concern in which government is totally out of the question, and in which they act merely on the principles of society, we see how naturally the various parties unite; and this shows, by comparison, that governments, so far from being always the cause or means of order, are often the destruction of it. The riots of 1780 had no other

source than the remains of those prejudices which the government itself had encouraged. But with respect to England there are also other causes.

Excess and inequality of taxation, however disguised in the means, never fail to appear in their effects. As a great mass of the community are thrown thereby into poverty and discontent, they are constantly on the brink of commotion; and deprived, as they unfortunately are, of the means of information, are easily heated to outrage. Whatever the apparent cause of any riots may be, the real one is always want of happiness. It shows that something is wrong in the system of government that injures the felicity by which society is to be preserved.

But as a fact is superior to reasoning, the instance of America presents itself to confirm these observations. If there is a country in the world where concord, according to common calculation, would be least expected, it is America. Made up as it is of people from different nations,*[16](#) accustomed to different forms and habits of government, speaking different languages, and more different in their modes of worship, it would appear that the union of such a people was impracticable; but by the simple operation of constructing government on the principles of society and the rights of man, every difficulty retires, and all the parts are brought into cordial unison. There the poor are not oppressed, the rich are not privileged. Industry is not mortified by the splendid extravagance of a court rioting at its expense. Their taxes are few, because their government is just: and as there is nothing to render them wretched, there is nothing to engender riots and tumults.

A metaphysical man, like Mr. Burke, would have tortured his invention to discover how such a people could be governed. He would have supposed that some must be managed by fraud, others by force, and all by some contrivance; that genius must be hired to impose upon ignorance, and show and parade to fascinate the vulgar. Lost in the abundance of his researches, he would have resolved and re-resolved, and finally overlooked the plain and easy road that lay directly before him.

One of the great advantages of the American Revolution has been, that it led to a discovery of the principles, and laid open the imposition, of governments. All the revolutions till then had been worked within the atmosphere of a court, and never on the grand floor of a nation. The parties

were always of the class of courtiers; and whatever was their rage for reformation, they carefully preserved the fraud of the profession.

In all cases they took care to represent government as a thing made up of mysteries, which only themselves understood; and they hid from the understanding of the nation the only thing that was beneficial to know, namely, That government is nothing more than a national association adding on the principles of society.

Having thus endeavoured to show that the social and civilised state of man is capable of performing within itself almost everything necessary to its protection and government, it will be proper, on the other hand, to take a review of the present old governments, and examine whether their principles and practice are correspondent thereto.

CHAPTER II. OF THE ORIGIN OF THE PRESENT OLD GOVERNMENTS

It is impossible that such governments as have hitherto existed in the world, could have commenced by any other means than a total violation of every principle sacred and moral. The obscurity in which the origin of all the present old governments is buried, implies the iniquity and disgrace with which they began. The origin of the present government of America and France will ever be remembered, because it is honourable to record it; but with respect to the rest, even Flattery has consigned them to the tomb of time, without an inscription.

It could have been no difficult thing in the early and solitary ages of the world, while the chief employment of men was that of attending flocks and herds, for a banditti of ruffians to overrun a country, and lay it under contributions. Their power being thus established, the chief of the band contrived to lose the name of Robber in that of Monarch; and hence the origin of Monarchy and Kings.

The origin of the Government of England, so far as relates to what is called its line of monarchy, being one of the latest, is perhaps the best recorded. The hatred which the Norman invasion and tyranny begat, must have been deeply rooted in the nation, to have outlived the contrivance to obliterate it. Though not a courtier will talk of the curfew-bell, not a village in England has forgotten it.

Those bands of robbers having parcelled out the world, and divided it into dominions, began, as is naturally the case, to quarrel with each other. What at first was obtained by violence was considered by others as lawful to be taken, and a second plunderer succeeded the first. They alternately invaded the dominions which each had assigned to himself, and the brutality with which they treated each other explains the original character of monarchy. It was ruffian torturing ruffian. The conqueror considered the conquered, not as his prisoner, but his property. He led him in triumph rattling in chains, and doomed him, at pleasure, to slavery or death. As time obliterated the history of their beginning, their successors assumed new

appearances, to cut off the entail of their disgrace, but their principles and objects remained the same. What at first was plunder, assumed the softer name of revenue; and the power originally usurped, they affected to inherit.

From such beginning of governments, what could be expected but a continued system of war and extortion? It has established itself into a trade. The vice is not peculiar to one more than to another, but is the common principle of all. There does not exist within such governments sufficient stamina whereon to engraft reformation; and the shortest and most effectual remedy is to begin anew on the ground of the nation.

What scenes of horror, what perfection of iniquity, present themselves in contemplating the character and reviewing the history of such governments! If we would delineate human nature with a baseness of heart and hypocrisy of countenance that reflection would shudder at and humanity disown, it is kings, courts and cabinets that must sit for the portrait. Man, naturally as he is, with all his faults about him, is not up to the character.

Can we possibly suppose that if governments had originated in a right principle, and had not an interest in pursuing a wrong one, the world could have been in the wretched and quarrelsome condition we have seen it? What inducement has the farmer, while following the plough, to lay aside his peaceful pursuit, and go to war with the farmer of another country? or what inducement has the manufacturer? What is dominion to them, or to any class of men in a nation? Does it add an acre to any man's estate, or raise its value? Are not conquest and defeat each of the same price, and taxes the never-failing consequence?—Though this reasoning may be good to a nation, it is not so to a government. War is the Pharo-table of governments, and nations the dupes of the game.

If there is anything to wonder at in this miserable scene of governments more than might be expected, it is the progress which the peaceful arts of agriculture, manufacture and commerce have made beneath such a long accumulating load of discouragement and oppression. It serves to show that instinct in animals does not act with stronger impulse than the principles of society and civilisation operate in man. Under all discouragements, he pursues his object, and yields to nothing but impossibilities.

CHAPTER III. OF THE OLD AND NEW SYSTEMS OF GOVERNMENT

Nothing can appear more contradictory than the principles on which the old governments began, and the condition to which society, civilisation and commerce are capable of carrying mankind. Government, on the old system, is an assumption of power, for the aggrandisement of itself; on the new, a delegation of power for the common benefit of society. The former supports itself by keeping up a system of war; the latter promotes a system of peace, as the true means of enriching a nation. The one encourages national prejudices; the other promotes universal society, as the means of universal commerce. The one measures its prosperity, by the quantity of revenue it extorts; the other proves its excellence, by the small quantity of taxes it requires.

Mr. Burke has talked of old and new whigs. If he can amuse himself with childish names and distinctions, I shall not interrupt his pleasure. It is not to him, but to the Abbe Sieyes, that I address this chapter. I am already engaged to the latter gentleman to discuss the subject of monarchical government; and as it naturally occurs in comparing the old and new systems, I make this the opportunity of presenting to him my observations. I shall occasionally take Mr. Burke in my way.

Though it might be proved that the system of government now called the New, is the most ancient in principle of all that have existed, being founded on the original, inherent Rights of Man: yet, as tyranny and the sword have suspended the exercise of those rights for many centuries past, it serves better the purpose of distinction to call it the new, than to claim the right of calling it the old.

The first general distinction between those two systems, is, that the one now called the old is hereditary, either in whole or in part; and the new is entirely representative. It rejects all hereditary government:

First, As being an imposition on mankind.

Secondly, As inadequate to the purposes for which government is necessary.

With respect to the first of these heads—It cannot be proved by what right hereditary government could begin; neither does there exist within the compass of mortal power a right to establish it. Man has no authority over posterity in matters of personal right; and, therefore, no man, or body of men, had, or can have, a right to set up hereditary government. Were even ourselves to come again into existence, instead of being succeeded by posterity, we have not now the right of taking from ourselves the rights which would then be ours. On what ground, then, do we pretend to take them from others?

All hereditary government is in its nature tyranny. An heritable crown, or an heritable throne, or by what other fanciful name such things may be called, have no other significant explanation than that mankind are heritable property. To inherit a government, is to inherit the people, as if they were flocks and herds.

With respect to the second head, that of being inadequate to the purposes for which government is necessary, we have only to consider what government essentially is, and compare it with the circumstances to which hereditary succession is subject.

Government ought to be a thing always in full maturity. It ought to be so constructed as to be superior to all the accidents to which individual man is subject; and, therefore, hereditary succession, by being subject to them all, is the most irregular and imperfect of all the systems of government.

We have heard the Rights of Man called a levelling system; but the only system to which the word levelling is truly applicable, is the hereditary monarchical system. It is a system of mental levelling. It indiscriminately admits every species of character to the same authority. Vice and virtue, ignorance and wisdom, in short, every quality good or bad, is put on the same level. Kings succeed each other, not as rationals, but as animals. It signifies not what their mental or moral characters are. Can we then be surprised at the abject state of the human mind in monarchical countries, when the government itself is formed on such an abject levelling system?—It has no fixed character. To-day it is one thing; to-morrow it is something else. It changes with the temper of every succeeding individual, and is subject to all the varieties of each. It is government through the medium of passions and accidents. It appears under all the various characters of childhood, decrepitude, dotage, a thing at nurse, in leading-strings, or in

crutches. It reverses the wholesome order of nature. It occasionally puts children over men, and the conceits of nonage over wisdom and experience. In short, we cannot conceive a more ridiculous figure of government, than hereditary succession, in all its cases, presents.

Could it be made a decree in nature, or an edict registered in heaven, and man could know it, that virtue and wisdom should invariably appertain to hereditary succession, the objection to it would be removed; but when we see that nature acts as if she disowned and sported with the hereditary system; that the mental character of successors, in all countries, is below the average of human understanding; that one is a tyrant, another an idiot, a third insane, and some all three together, it is impossible to attach confidence to it, when reason in man has power to act.

It is not to the Abbe Sieyes that I need apply this reasoning; he has already saved me that trouble by giving his own opinion upon the case. "If it be asked," says he, "what is my opinion with respect to hereditary right, I answer without hesitation, That in good theory, an hereditary transmission of any power of office, can never accord with the laws of a true representation. Hereditaryship is, in this sense, as much an attain upon principle, as an outrage upon society. But let us," continues he, "refer to the history of all elective monarchies and principalities: is there one in which the elective mode is not worse than the hereditary succession?"

As to debating on which is the worst of the two, it is admitting both to be bad; and herein we are agreed. The preference which the Abbe has given, is a condemnation of the thing that he prefers. Such a mode of reasoning on such a subject is inadmissible, because it finally amounts to an accusation upon Providence, as if she had left to man no other choice with respect to government than between two evils, the best of which he admits to be "an attain upon principle, and an outrage upon society."

Passing over, for the present, all the evils and mischiefs which monarchy has occasioned in the world, nothing can more effectually prove its uselessness in a state of civil government, than making it hereditary. Would we make any office hereditary that required wisdom and abilities to fill it? And where wisdom and abilities are not necessary, such an office, whatever it may be, is superfluous or insignificant.

Hereditary succession is a burlesque upon monarchy. It puts it in the most ridiculous light, by presenting it as an office which any child or idiot may

fill. It requires some talents to be a common mechanic; but to be a king requires only the animal figure of man—a sort of breathing automaton. This sort of superstition may last a few years more, but it cannot long resist the awakened reason and interest of man.

As to Mr. Burke, he is a stickler for monarchy, not altogether as a pensioner, if he is one, which I believe, but as a political man. He has taken up a contemptible opinion of mankind, who, in their turn, are taking up the same of him. He considers them as a herd of beings that must be governed by fraud, effigy, and show; and an idol would be as good a figure of monarchy with him, as a man. I will, however, do him the justice to say that, with respect to America, he has been very complimentary. He always contended, at least in my hearing, that the people of America were more enlightened than those of England, or of any country in Europe; and that therefore the imposition of show was not necessary in their governments.

Though the comparison between hereditary and elective monarchy, which the Abbe has made, is unnecessary to the case, because the representative system rejects both: yet, were I to make the comparison, I should decide contrary to what he has done.

The civil wars which have originated from contested hereditary claims, are more numerous, and have been more dreadful, and of longer continuance, than those which have been occasioned by election. All the civil wars in France arose from the hereditary system; they were either produced by hereditary claims, or by the imperfection of the hereditary form, which admits of regencies or monarchy at nurse. With respect to England, its history is full of the same misfortunes. The contests for succession between the houses of York and Lancaster lasted a whole century; and others of a similar nature have renewed themselves since that period. Those of 1715 and 1745 were of the same kind. The succession war for the crown of Spain embroiled almost half Europe. The disturbances of Holland are generated from the hereditaryship of the Stadtholder. A government calling itself free, with an hereditary office, is like a thorn in the flesh, that produces a fermentation which endeavours to discharge it.

But I might go further, and place also foreign wars, of whatever kind, to the same cause. It is by adding the evil of hereditary succession to that of monarchy, that a permanent family interest is created, whose constant objects are dominion and revenue. Poland, though an elective monarchy,

has had fewer wars than those which are hereditary; and it is the only government that has made a voluntary essay, though but a small one, to reform the condition of the country.

Having thus glanced at a few of the defects of the old, or hereditary systems of government, let us compare it with the new, or representative system.

The representative system takes society and civilisation for its basis; nature, reason, and experience, for its guide.

Experience, in all ages, and in all countries, has demonstrated that it is impossible to control Nature in her distribution of mental powers. She gives them as she pleases. Whatever is the rule by which she, apparently to us, scatters them among mankind, that rule remains a secret to man. It would be as ridiculous to attempt to fix the hereditaryship of human beauty, as of wisdom. Whatever wisdom constitutently is, it is like a seedless plant; it may be reared when it appears, but it cannot be voluntarily produced. There is always a sufficiency somewhere in the general mass of society for all purposes; but with respect to the parts of society, it is continually changing its place. It rises in one to-day, in another to-morrow, and has most probably visited in rotation every family of the earth, and again withdrawn.

As this is in the order of nature, the order of government must necessarily follow it, or government will, as we see it does, degenerate into ignorance. The hereditary system, therefore, is as repugnant to human wisdom as to human rights; and is as absurd as it is unjust.

As the republic of letters brings forward the best literary productions, by giving to genius a fair and universal chance; so the representative system of government is calculated to produce the wisest laws, by collecting wisdom from where it can be found. I smile to myself when I contemplate the ridiculous insignificance into which literature and all the sciences would sink, were they made hereditary; and I carry the same idea into governments. An hereditary governor is as inconsistent as an hereditary author. I know not whether Homer or Euclid had sons; but I will venture an opinion that if they had, and had left their works unfinished, those sons could not have completed them.

Do we need a stronger evidence of the absurdity of hereditary government than is seen in the descendants of those men, in any line of life, who once were famous? Is there scarcely an instance in which there is not a

total reverse of the character? It appears as if the tide of mental faculties flowed as far as it could in certain channels, and then forsook its course, and arose in others. How irrational then is the hereditary system, which establishes channels of power, in company with which wisdom refuses to flow! By continuing this absurdity, man is perpetually in contradiction with himself; he accepts, for a king, or a chief magistrate, or a legislator, a person whom he would not elect for a constable.

It appears to general observation, that revolutions create genius and talents; but those events do no more than bring them forward. There is existing in man, a mass of sense lying in a dormant state, and which, unless something excites it to action, will descend with him, in that condition, to the grave. As it is to the advantage of society that the whole of its faculties should be employed, the construction of government ought to be such as to bring forward, by a quiet and regular operation, all that extent of capacity which never fails to appear in revolutions.

This cannot take place in the insipid state of hereditary government, not only because it prevents, but because it operates to benumb. When the mind of a nation is bowed down by any political superstition in its government, such as hereditary succession is, it loses a considerable portion of its powers on all other subjects and objects. Hereditary succession requires the same obedience to ignorance, as to wisdom; and when once the mind can bring itself to pay this indiscriminate reverence, it descends below the stature of mental manhood. It is fit to be great only in little things. It acts a treachery upon itself, and suffocates the sensations that urge the detection.

Though the ancient governments present to us a miserable picture of the condition of man, there is one which above all others exempts itself from the general description. I mean the democracy of the Athenians. We see more to admire, and less to condemn, in that great, extraordinary people, than in anything which history affords.

Mr. Burke is so little acquainted with constituent principles of government, that he confounds democracy and representation together. Representation was a thing unknown in the ancient democracies. In those the mass of the people met and enacted laws (grammatically speaking) in the first person. Simple democracy was no other than the common hall of the ancients. It signifies the form, as well as the public principle of the government. As those democracies increased in population, and the territory

extended, the simple democratical form became unwieldy and impracticable; and as the system of representation was not known, the consequence was, they either degenerated convulsively into monarchies, or became absorbed into such as then existed. Had the system of representation been then understood, as it now is, there is no reason to believe that those forms of government, now called monarchical or aristocratical, would ever have taken place. It was the want of some method to consolidate the parts of society, after it became too populous, and too extensive for the simple democratical form, and also the lax and solitary condition of shepherds and herdsmen in other parts of the world, that afforded opportunities to those unnatural modes of government to begin.

As it is necessary to clear away the rubbish of errors, into which the subject of government has been thrown, I will proceed to remark on some others.

It has always been the political craft of courtiers and court-governments, to abuse something which they called republicanism; but what republicanism was, or is, they never attempt to explain. Let us examine a little into this case.

The only forms of government are the democratical, the aristocratical, the monarchical, and what is now called the representative.

What is called a republic is not any particular form of government. It is wholly characteristical of the purport, matter or object for which government ought to be instituted, and on which it is to be employed, Res-Publica, the public affairs, or the public good; or, literally translated, the public thing. It is a word of a good original, referring to what ought to be the character and business of government; and in this sense it is naturally opposed to the word monarchy, which has a base original signification. It means arbitrary power in an individual person; in the exercise of which, himself, and not the res-publica, is the object.

Every government that does not act on the principle of a Republic, or in other words, that does not make the res-publica its whole and sole object, is not a good government. Republican government is no other than government established and conducted for the interest of the public, as well individually as collectively. It is not necessarily connected with any particular form, but it most naturally associates with the representative

form, as being best calculated to secure the end for which a nation is at the expense of supporting it.

Various forms of government have affected to style themselves a republic. Poland calls itself a republic, which is an hereditary aristocracy, with what is called an elective monarchy. Holland calls itself a republic, which is chiefly aristocratical, with an hereditary stadtholdership. But the government of America, which is wholly on the system of representation, is the only real Republic, in character and in practice, that now exists. Its government has no other object than the public business of the nation, and therefore it is properly a republic; and the Americans have taken care that This, and no other, shall always be the object of their government, by their rejecting everything hereditary, and establishing governments on the system of representation only. Those who have said that a republic is not a form of government calculated for countries of great extent, mistook, in the first place, the business of a government, for a form of government; for the *res-publica* equally appertains to every extent of territory and population. And, in the second place, if they meant anything with respect to form, it was the simple democratical form, such as was the mode of government in the ancient democracies, in which there was no representation. The case, therefore, is not, that a republic cannot be extensive, but that it cannot be extensive on the simple democratical form; and the question naturally presents itself, What is the best form of government for conducting the *Res-Publica*, or the Public Business of a nation, after it becomes too extensive and populous for the simple democratical form? It cannot be monarchy, because monarchy is subject to an objection of the same amount to which the simple democratical form was subject.

It is possible that an individual may lay down a system of principles, on which government shall be constitutionally established to any extent of territory. This is no more than an operation of the mind, acting by its own powers. But the practice upon those principles, as applying to the various and numerous circumstances of a nation, its agriculture, manufacture, trade, commerce, etc., etc., a knowledge of a different kind, and which can be had only from the various parts of society. It is an assemblage of practical knowledge, which no individual can possess; and therefore the monarchical form is as much limited, in useful practice, from the incompetency of knowledge, as was the democratical form, from the multiplicity of population. The one degenerates, by extension, into confusion; the other,

into ignorance and incapacity, of which all the great monarchies are an evidence. The monarchical form, therefore, could not be a substitute for the democratical, because it has equal inconveniences.

Much less could it when made hereditary. This is the most effectual of all forms to preclude knowledge. Neither could the high democratical mind have voluntarily yielded itself to be governed by children and idiots, and all the motley insignificance of character, which attends such a mere animal system, the disgrace and the reproach of reason and of man.

As to the aristocratical form, it has the same vices and defects with the monarchical, except that the chance of abilities is better from the proportion of numbers, but there is still no security for the right use and application of them.*[17](#)

Referring them to the original simple democracy, it affords the true data from which government on a large scale can begin. It is incapable of extension, not from its principle, but from the inconvenience of its form; and monarchy and aristocracy, from their incapacity. Retaining, then, democracy as the ground, and rejecting the corrupt systems of monarchy and aristocracy, the representative system naturally presents itself; remedying at once the defects of the simple democracy as to form, and the incapacity of the other two with respect to knowledge.

Simple democracy was society governing itself without the aid of secondary means. By ingrafting representation upon democracy, we arrive at a system of government capable of embracing and confederating all the various interests and every extent of territory and population; and that also with advantages as much superior to hereditary government, as the republic of letters is to hereditary literature.

It is on this system that the American government is founded. It is representation ingrafted upon democracy. It has fixed the form by a scale parallel in all cases to the extent of the principle. What Athens was in miniature America will be in magnitude. The one was the wonder of the ancient world; the other is becoming the admiration of the present. It is the easiest of all the forms of government to be understood and the most eligible in practice; and excludes at once the ignorance and insecurity of the hereditary mode, and the inconvenience of the simple democracy.

It is impossible to conceive a system of government capable of acting over such an extent of territory, and such a circle of interests, as is

immediately produced by the operation of representation. France, great and populous as it is, is but a spot in the capaciousness of the system. It is preferable to simple democracy even in small territories. Athens, by representation, would have outrivalled her own democracy.

That which is called government, or rather that which we ought to conceive government to be, is no more than some common center in which all the parts of society unite. This cannot be accomplished by any method so conducive to the various interests of the community, as by the representative system. It concentrates the knowledge necessary to the interest of the parts, and of the whole. It places government in a state of constant maturity. It is, as has already been observed, never young, never old. It is subject neither to nonage, nor dotage. It is never in the cradle, nor on crutches. It admits not of a separation between knowledge and power, and is superior, as government always ought to be, to all the accidents of individual man, and is therefore superior to what is called monarchy.

A nation is not a body, the figure of which is to be represented by the human body; but is like a body contained within a circle, having a common center, in which every radius meets; and that center is formed by representation. To connect representation with what is called monarchy, is eccentric government. Representation is of itself the delegated monarchy of a nation, and cannot debase itself by dividing it with another.

Mr. Burke has two or three times, in his parliamentary speeches, and in his publications, made use of a jingle of words that convey no ideas. Speaking of government, he says, "It is better to have monarchy for its basis, and republicanism for its corrective, than republicanism for its basis, and monarchy for its corrective."—If he means that it is better to correct folly with wisdom, than wisdom with folly, I will no otherwise contend with him, than that it would be much better to reject the folly entirely.

But what is this thing which Mr. Burke calls monarchy? Will he explain it? All men can understand what representation is; and that it must necessarily include a variety of knowledge and talents. But what security is there for the same qualities on the part of monarchy? or, when the monarchy is a child, where then is the wisdom? What does it know about government? Who then is the monarch, or where is the monarchy? If it is to be performed by regency, it proves to be a farce. A regency is a mock species of republic, and the whole of monarchy deserves no better

description. It is a thing as various as imagination can paint. It has none of the stable character that government ought to possess. Every succession is a revolution, and every regency a counter-revolution. The whole of it is a scene of perpetual court cabal and intrigue, of which Mr. Burke is himself an instance. To render monarchy consistent with government, the next in succession should not be born a child, but a man at once, and that man a Solomon. It is ridiculous that nations are to wait and government be interrupted till boys grow to be men.

Whether I have too little sense to see, or too much to be imposed upon; whether I have too much or too little pride, or of anything else, I leave out of the question; but certain it is, that what is called monarchy, always appears to me a silly, contemptible thing. I compare it to something kept behind a curtain, about which there is a great deal of bustle and fuss, and a wonderful air of seeming solemnity; but when, by any accident, the curtain happens to be open—and the company see what it is, they burst into laughter.

In the representative system of government, nothing of this can happen. Like the nation itself, it possesses a perpetual stamina, as well of body as of mind, and presents itself on the open theatre of the world in a fair and manly manner. Whatever are its excellences or defects, they are visible to all. It exists not by fraud and mystery; it deals not in cant and sophistry; but inspires a language that, passing from heart to heart, is felt and understood.

We must shut our eyes against reason, we must basely degrade our understanding, not to see the folly of what is called monarchy. Nature is orderly in all her works; but this is a mode of government that counteracts nature. It turns the progress of the human faculties upside down. It subjects age to be governed by children, and wisdom by folly.

On the contrary, the representative system is always parallel with the order and immutable laws of nature, and meets the reason of man in every part. For example:

In the American Federal Government, more power is delegated to the President of the United States than to any other individual member of Congress. He cannot, therefore, be elected to this office under the age of thirty-five years. By this time the judgment of man becomes more matured, and he has lived long enough to be acquainted with men and things, and the country with him.—But on the monarchical plan (exclusive of the numerous

chances there are against every man born into the world, of drawing a prize in the lottery of human faculties), the next in succession, whatever he may be, is put at the head of a nation, and of a government, at the age of eighteen years. Does this appear like an action of wisdom? Is it consistent with the proper dignity and the manly character of a nation? Where is the propriety of calling such a lad the father of the people?—In all other cases, a person is a minor until the age of twenty-one years. Before this period, he is not trusted with the management of an acre of land, or with the heritable property of a flock of sheep, or an herd of swine; but, wonderful to tell! he may, at the age of eighteen years, be trusted with a nation.

That monarchy is all a bubble, a mere court artifice to procure money, is evident (at least to me) in every character in which it can be viewed. It would be impossible, on the rational system of representative government, to make out a bill of expenses to such an enormous amount as this deception admits. Government is not of itself a very chargeable institution. The whole expense of the federal government of America, founded, as I have already said, on the system of representation, and extending over a country nearly ten times as large as England, is but six hundred thousand dollars, or one hundred and thirty-five thousand pounds sterling.

I presume that no man in his sober senses will compare the character of any of the kings of Europe with that of General Washington. Yet, in France, and also in England, the expense of the civil list only, for the support of one man, is eight times greater than the whole expense of the federal government in America. To assign a reason for this, appears almost impossible. The generality of people in America, especially the poor, are more able to pay taxes, than the generality of people either in France or England.

But the case is, that the representative system diffuses such a body of knowledge throughout a nation, on the subject of government, as to explode ignorance and preclude imposition. The craft of courts cannot be acted on that ground. There is no place for mystery; nowhere for it to begin. Those who are not in the representation, know as much of the nature of business as those who are. An affectation of mysterious importance would there be scouted. Nations can have no secrets; and the secrets of courts, like those of individuals, are always their defects.

In the representative system, the reason for everything must publicly appear. Every man is a proprietor in government, and considers it a necessary part of his business to understand. It concerns his interest, because it affects his property. He examines the cost, and compares it with the advantages; and above all, he does not adopt the slavish custom of following what in other governments are called Leaders.

It can only be by blinding the understanding of man, and making him believe that government is some wonderful mysterious thing, that excessive revenues are obtained. Monarchy is well calculated to ensure this end. It is the popery of government; a thing kept up to amuse the ignorant, and quiet them into taxes.

The government of a free country, properly speaking, is not in the persons, but in the laws. The enacting of those requires no great expense; and when they are administered, the whole of civil government is performed—the rest is all court contrivance.

CHAPTER IV. OF CONSTITUTIONS

That men mean distinct and separate things when they speak of constitutions and of governments, is evident; or why are those terms distinctly and separately used? A constitution is not the act of a government, but of a people constituting a government; and government without a constitution, is power without a right.

All power exercised over a nation, must have some beginning. It must either be delegated or assumed. There are no other sources. All delegated power is trust, and all assumed power is usurpation. Time does not alter the nature and quality of either.

In viewing this subject, the case and circumstances of America present themselves as in the beginning of a world; and our enquiry into the origin of government is shortened, by referring to the facts that have arisen in our own day. We have no occasion to roam for information into the obscure field of antiquity, nor hazard ourselves upon conjecture. We are brought at once to the point of seeing government begin, as if we had lived in the beginning of time. The real volume, not of history, but of facts, is directly before us, unmutilated by contrivance, or the errors of tradition.

I will here concisely state the commencement of the American constitutions; by which the difference between constitutions and governments will sufficiently appear.

It may not appear improper to remind the reader that the United States of America consist of thirteen separate states, each of which established a government for itself, after the declaration of independence, done the 4th of July, 1776. Each state acted independently of the rest, in forming its governments; but the same general principle pervades the whole. When the several state governments were formed, they proceeded to form the federal government, that acts over the whole in all matters which concern the interest of the whole, or which relate to the intercourse of the several states with each other, or with foreign nations. I will begin with giving an instance from one of the state governments (that of Pennsylvania) and then proceed to the federal government.

The state of Pennsylvania, though nearly of the same extent of territory as England, was then divided into only twelve counties. Each of those counties had elected a committee at the commencement of the dispute with the English government; and as the city of Philadelphia, which also had its committee, was the most central for intelligence, it became the center of communication to the several country committees. When it became necessary to proceed to the formation of a government, the committee of Philadelphia proposed a conference of all the committees, to be held in that city, and which met the latter end of July, 1776.

Though these committees had been duly elected by the people, they were not elected expressly for the purpose, nor invested with the authority of forming a constitution; and as they could not, consistently with the American idea of rights, assume such a power, they could only confer upon the matter, and put it into a train of operation. The conferees, therefore, did no more than state the case, and recommend to the several counties to elect six representatives for each county, to meet in convention at Philadelphia, with powers to form a constitution, and propose it for public consideration.

This convention, of which Benjamin Franklin was president, having met and deliberated, and agreed upon a constitution, they next ordered it to be published, not as a thing established, but for the consideration of the whole people, their approbation or rejection, and then adjourned to a stated time. When the time of adjournment was expired, the convention re-assembled; and as the general opinion of the people in approbation of it was then known, the constitution was signed, sealed, and proclaimed on the authority of the people and the original instrument deposited as a public record. The convention then appointed a day for the general election of the representatives who were to compose the government, and the time it should commence; and having done this they dissolved, and returned to their several homes and occupations.

In this constitution were laid down, first, a declaration of rights; then followed the form which the government should have, and the powers it should possess—the authority of the courts of judicature, and of juries—the manner in which elections should be conducted, and the proportion of representatives to the number of electors—the time which each succeeding assembly should continue, which was one year—the mode of levying, and

of accounting for the expenditure, of public money—of appointing public officers, etc., etc., etc.

No article of this constitution could be altered or infringed at the discretion of the government that was to ensue. It was to that government a law. But as it would have been unwise to preclude the benefit of experience, and in order also to prevent the accumulation of errors, if any should be found, and to preserve an unison of government with the circumstances of the state at all times, the constitution provided that, at the expiration of every seven years, a convention should be elected, for the express purpose of revising the constitution, and making alterations, additions, or abolitions therein, if any such should be found necessary.

Here we see a regular process—a government issuing out of a constitution, formed by the people in their original character; and that constitution serving, not only as an authority, but as a law of control to the government. It was the political bible of the state. Scarcely a family was without it. Every member of the government had a copy; and nothing was more common, when any debate arose on the principle of a bill, or on the extent of any species of authority, than for the members to take the printed constitution out of their pocket, and read the chapter with which such matter in debate was connected.

Having thus given an instance from one of the states, I will show the proceedings by which the federal constitution of the United States arose and was formed.

Congress, at its two first meetings, in September 1774, and May 1775, was nothing more than a deputation from the legislatures of the several provinces, afterwards states; and had no other authority than what arose from common consent, and the necessity of its acting as a public body. In everything which related to the internal affairs of America, congress went no further than to issue recommendations to the several provincial assemblies, who at discretion adopted them or not. Nothing on the part of congress was compulsive; yet, in this situation, it was more faithfully and affectionately obeyed than was any government in Europe. This instance, like that of the national assembly in France, sufficiently shows, that the strength of government does not consist in any thing itself, but in the attachment of a nation, and the interest which a people feel in supporting it. When this is lost, government is but a child in power; and though, like the

old government in France, it may harass individuals for a while, it but facilitates its own fall.

After the declaration of independence, it became consistent with the principle on which representative government is founded, that the authority of congress should be defined and established. Whether that authority should be more or less than congress then discretionarily exercised was not the question. It was merely the rectitude of the measure.

For this purpose, the act, called the act of confederation (which was a sort of imperfect federal constitution), was proposed, and, after long deliberation, was concluded in the year 1781. It was not the act of congress, because it is repugnant to the principles of representative government that a body should give power to itself. Congress first informed the several states, of the powers which it conceived were necessary to be invested in the union, to enable it to perform the duties and services required from it; and the states severally agreed with each other, and concentrated in congress those powers.

It may not be improper to observe that in both those instances (the one of Pennsylvania, and the other of the United States), there is no such thing as the idea of a compact between the people on one side, and the government on the other. The compact was that of the people with each other, to produce and constitute a government. To suppose that any government can be a party in a compact with the whole people, is to suppose it to have existence before it can have a right to exist. The only instance in which a compact can take place between the people and those who exercise the government, is, that the people shall pay them, while they choose to employ them.

Government is not a trade which any man, or any body of men, has a right to set up and exercise for his own emolument, but is altogether a trust, in right of those by whom that trust is delegated, and by whom it is always resumeable. It has of itself no rights; they are altogether duties.

Having thus given two instances of the original formation of a constitution, I will show the manner in which both have been changed since their first establishment.

The powers vested in the governments of the several states, by the state constitutions, were found, upon experience, to be too great; and those

vested in the federal government, by the act of confederation, too little. The defect was not in the principle, but in the distribution of power.

Numerous publications, in pamphlets and in the newspapers, appeared, on the propriety and necessity of new modelling the federal government. After some time of public discussion, carried on through the channel of the press, and in conversations, the state of Virginia, experiencing some inconvenience with respect to commerce, proposed holding a continental conference; in consequence of which, a deputation from five or six state assemblies met at Annapolis, in Maryland, in 1786. This meeting, not conceiving itself sufficiently authorised to go into the business of a reform, did no more than state their general opinions of the propriety of the measure, and recommend that a convention of all the states should be held the year following.

The convention met at Philadelphia in May, 1787, of which General Washington was elected president. He was not at that time connected with any of the state governments, or with congress. He delivered up his commission when the war ended, and since then had lived a private citizen.

The convention went deeply into all the subjects; and having, after a variety of debate and investigation, agreed among themselves upon the several parts of a federal constitution, the next question was, the manner of giving it authority and practice.

For this purpose they did not, like a cabal of courtiers, send for a Dutch Stadtholder, or a German Elector; but they referred the whole matter to the sense and interest of the country.

They first directed that the proposed constitution should be published. Secondly, that each state should elect a convention, expressly for the purpose of taking it into consideration, and of ratifying or rejecting it; and that as soon as the approbation and ratification of any nine states should be given, that those states shall proceed to the election of their proportion of members to the new federal government; and that the operation of it should then begin, and the former federal government cease.

The several states proceeded accordingly to elect their conventions. Some of those conventions ratified the constitution by very large majorities, and two or three unanimously. In others there were much debate and division of opinion. In the Massachusetts convention, which met at Boston, the majority was not above nineteen or twenty, in about three hundred

members; but such is the nature of representative government, that it quietly decides all matters by majority. After the debate in the Massachusetts convention was closed, and the vote taken, the objecting members rose and declared, "That though they had argued and voted against it, because certain parts appeared to them in a different light to what they appeared to other members; yet, as the vote had decided in favour of the constitution as proposed, they should give it the same practical support as if they had for it."

As soon as nine states had concurred (and the rest followed in the order their conventions were elected), the old fabric of the federal government was taken down, and the new one erected, of which General Washington is president.—In this place I cannot help remarking, that the character and services of this gentleman are sufficient to put all those men called kings to shame. While they are receiving from the sweat and labours of mankind, a prodigality of pay, to which neither their abilities nor their services can entitle them, he is rendering every service in his power, and refusing every pecuniary reward. He accepted no pay as commander-in-chief; he accepts none as president of the United States.

After the new federal constitution was established, the state of Pennsylvania, conceiving that some parts of its own constitution required to be altered, elected a convention for that purpose. The proposed alterations were published, and the people concurring therein, they were established.

In forming those constitutions, or in altering them, little or no inconvenience took place. The ordinary course of things was not interrupted, and the advantages have been much. It is always the interest of a far greater number of people in a nation to have things right, than to let them remain wrong; and when public matters are open to debate, and the public judgment free, it will not decide wrong, unless it decides too hastily.

In the two instances of changing the constitutions, the governments then in being were not actors either way. Government has no right to make itself a party in any debate respecting the principles or modes of forming, or of changing, constitutions. It is not for the benefit of those who exercise the powers of government that constitutions, and the governments issuing from them, are established. In all those matters the right of judging and acting are in those who pay, and not in those who receive.

A constitution is the property of a nation, and not of those who exercise the government. All the constitutions of America are declared to be established on the authority of the people. In France, the word nation is used instead of the people; but in both cases, a constitution is a thing antecedent to the government, and always distinct there from.

In England it is not difficult to perceive that everything has a constitution, except the nation. Every society and association that is established, first agreed upon a number of original articles, digested into form, which are its constitution. It then appointed its officers, whose powers and authorities are described in that constitution, and the government of that society then commenced. Those officers, by whatever name they are called, have no authority to add to, alter, or abridge the original articles. It is only to the constituting power that this right belongs.

From the want of understanding the difference between a constitution and a government, Dr. Johnson, and all writers of his description, have always bewildered themselves. They could not but perceive, that there must necessarily be a controlling power existing somewhere, and they placed this power in the discretion of the persons exercising the government, instead of placing it in a constitution formed by the nation. When it is in a constitution, it has the nation for its support, and the natural and the political controlling powers are together. The laws which are enacted by governments, control men only as individuals, but the nation, through its constitution, controls the whole government, and has a natural ability to do so. The final controlling power, therefore, and the original constituting power, are one and the same power.

Dr. Johnson could not have advanced such a position in any country where there was a constitution; and he is himself an evidence that no such thing as a constitution exists in England. But it may be put as a question, not improper to be investigated, that if a constitution does not exist, how came the idea of its existence so generally established?

In order to decide this question, it is necessary to consider a constitution in both its cases:—First, as creating a government and giving it powers. Secondly, as regulating and restraining the powers so given.

If we begin with William of Normandy, we find that the government of England was originally a tyranny, founded on an invasion and conquest of the country. This being admitted, it will then appear, that the exertion of the

nation, at different periods, to abate that tyranny, and render it less intolerable, has been credited for a constitution.

Magna Charta, as it was called (it is now like an almanack of the same date), was no more than compelling the government to renounce a part of its assumptions. It did not create and give powers to government in a manner a constitution does; but was, as far as it went, of the nature of a reconquest, and not a constitution; for could the nation have totally expelled the usurpation, as France has done its despotism, it would then have had a constitution to form.

The history of the Edwards and the Henries, and up to the commencement of the Stuarts, exhibits as many instances of tyranny as could be acted within the limits to which the nation had restricted it. The Stuarts endeavoured to pass those limits, and their fate is well known. In all those instances we see nothing of a constitution, but only of restrictions on assumed power.

After this, another William, descended from the same stock, and claiming from the same origin, gained possession; and of the two evils, James and William, the nation preferred what it thought the least; since, from circumstances, it must take one. The act, called the Bill of Rights, comes here into view. What is it, but a bargain, which the parts of the government made with each other to divide powers, profits, and privileges? You shall have so much, and I will have the rest; and with respect to the nation, it said, for your share, You shall have the right of petitioning. This being the case, the bill of rights is more properly a bill of wrongs, and of insult. As to what is called the convention parliament, it was a thing that made itself, and then made the authority by which it acted. A few persons got together, and called themselves by that name. Several of them had never been elected, and none of them for the purpose.

From the time of William a species of government arose, issuing out of this coalition bill of rights; and more so, since the corruption introduced at the Hanover succession by the agency of Walpole; that can be described by no other name than a despotic legislation. Though the parts may embarrass each other, the whole has no bounds; and the only right it acknowledges out of itself, is the right of petitioning. Where then is the constitution either that gives or restrains power?

It is not because a part of the government is elective, that makes it less a despotism, if the persons so elected possess afterwards, as a parliament, unlimited powers. Election, in this case, becomes separated from representation, and the candidates are candidates for despotism.

I cannot believe that any nation, reasoning on its own rights, would have thought of calling these things a constitution, if the cry of constitution had not been set up by the government. It has got into circulation like the words bore and quoz [quiz], by being chalked up in the speeches of parliament, as those words were on window shutters and doorposts; but whatever the constitution may be in other respects, it has undoubtedly been the most productive machine of taxation that was ever invented. The taxes in France, under the new constitution, are not quite thirteen shillings per head,*[18](#) and the taxes in England, under what is called its present constitution, are forty-eight shillings and sixpence per head—men, women, and children—amounting to nearly seventeen millions sterling, besides the expense of collecting, which is upwards of a million more.

In a country like England, where the whole of the civil Government is executed by the people of every town and county, by means of parish officers, magistrates, quarterly sessions, juries, and assize; without any trouble to what is called the government or any other expense to the revenue than the salary of the judges, it is astonishing how such a mass of taxes can be employed. Not even the internal defence of the country is paid out of the revenue. On all occasions, whether real or contrived, recourse is continually had to new loans and new taxes. No wonder, then, that a machine of government so advantageous to the advocates of a court, should be so triumphantly extolled! No wonder, that St. James's or St. Stephen's should echo with the continual cry of constitution; no wonder, that the French revolution should be reprobated, and the res-publica treated with reproach! The red book of England, like the red book of France, will explain the reason.*[19](#)

I will now, by way of relaxation, turn a thought or two to Mr. Burke. I ask his pardon for neglecting him so long.

"America," says he (in his speech on the Canada Constitution bill), "never dreamed of such absurd doctrine as the Rights of Man."

Mr. Burke is such a bold presumer, and advances his assertions and his premises with such a deficiency of judgment, that, without troubling

ourselves about principles of philosophy or politics, the mere logical conclusions they produce, are ridiculous. For instance,

If governments, as Mr. Burke asserts, are not founded on the Rights of Man, and are founded on any rights at all, they consequently must be founded on the right of something that is not man. What then is that something?

Generally speaking, we know of no other creatures that inhabit the earth than man and beast; and in all cases, where only two things offer themselves, and one must be admitted, a negation proved on any one, amounts to an affirmative on the other; and therefore, Mr. Burke, by proving against the Rights of Man, proves in behalf of the beast; and consequently, proves that government is a beast; and as difficult things sometimes explain each other, we now see the origin of keeping wild beasts in the Tower; for they certainly can be of no other use than to show the origin of the government. They are in the place of a constitution. O John Bull, what honours thou hast lost by not being a wild beast. Thou mightest, on Mr. Burke's system, have been in the Tower for life.

If Mr. Burke's arguments have not weight enough to keep one serious, the fault is less mine than his; and as I am willing to make an apology to the reader for the liberty I have taken, I hope Mr. Burke will also make his for giving the cause.

Having thus paid Mr. Burke the compliment of remembering him, I return to the subject.

From the want of a constitution in England to restrain and regulate the wild impulse of power, many of the laws are irrational and tyrannical, and the administration of them vague and problematical.

The attention of the government of England (for I rather choose to call it by this name than the English government) appears, since its political connection with Germany, to have been so completely engrossed and absorbed by foreign affairs, and the means of raising taxes, that it seems to exist for no other purposes. Domestic concerns are neglected; and with respect to regular law, there is scarcely such a thing.

Almost every case must now be determined by some precedent, be that precedent good or bad, or whether it properly applies or not; and the practice is become so general as to suggest a suspicion, that it proceeds from a deeper policy than at first sight appears.

Since the revolution of America, and more so since that of France, this preaching up the doctrines of precedents, drawn from times and circumstances antecedent to those events, has been the studied practice of the English government. The generality of those precedents are founded on principles and opinions, the reverse of what they ought; and the greater distance of time they are drawn from, the more they are to be suspected. But by associating those precedents with a superstitious reverence for ancient things, as monks show relics and call them holy, the generality of mankind are deceived into the design. Governments now act as if they were afraid to awaken a single reflection in man. They are softly leading him to the sepulchre of precedents, to deaden his faculties and call attention from the scene of revolutions. They feel that he is arriving at knowledge faster than they wish, and their policy of precedents is the barometer of their fears. This political popery, like the ecclesiastical popery of old, has had its day, and is hastening to its exit. The ragged relic and the antiquated precedent, the monk and the monarch, will moulder together.

Government by precedent, without any regard to the principle of the precedent, is one of the vilest systems that can be set up. In numerous instances, the precedent ought to operate as a warning, and not as an example, and requires to be shunned instead of imitated; but instead of this, precedents are taken in the lump, and put at once for constitution and for law.

Either the doctrine of precedents is policy to keep a man in a state of ignorance, or it is a practical confession that wisdom degenerates in governments as governments increase in age, and can only hobble along by the stilts and crutches of precedents. How is it that the same persons who would proudly be thought wiser than their predecessors, appear at the same time only as the ghosts of departed wisdom? How strangely is antiquity treated! To some purposes it is spoken of as the times of darkness and ignorance, and to answer others, it is put for the light of the world.

If the doctrine of precedents is to be followed, the expenses of government need not continue the same. Why pay men extravagantly, who have but little to do? If everything that can happen is already in precedent, legislation is at an end, and precedent, like a dictionary, determines every case. Either, therefore, government has arrived at its dotage, and requires to be renovated, or all the occasions for exercising its wisdom have occurred.

We now see all over Europe, and particularly in England, the curious phenomenon of a nation looking one way, and the government the other—the one forward and the other backward. If governments are to go on by precedent, while nations go on by improvement, they must at last come to a final separation; and the sooner, and the more civilly they determine this point, the better.*[20](#)

Having thus spoken of constitutions generally, as things distinct from actual governments, let us proceed to consider the parts of which a constitution is composed.

Opinions differ more on this subject than with respect to the whole. That a nation ought to have a constitution, as a rule for the conduct of its government, is a simple question in which all men, not directly courtiers, will agree. It is only on the component parts that questions and opinions multiply.

But this difficulty, like every other, will diminish when put into a train of being rightly understood.

The first thing is, that a nation has a right to establish a constitution.

Whether it exercises this right in the most judicious manner at first is quite another case. It exercises it agreeably to the judgment it possesses; and by continuing to do so, all errors will at last be exploded.

When this right is established in a nation, there is no fear that it will be employed to its own injury. A nation can have no interest in being wrong.

Though all the constitutions of America are on one general principle, yet no two of them are exactly alike in their component parts, or in the distribution of the powers which they give to the actual governments. Some are more, and others less complex.

In forming a constitution, it is first necessary to consider what are the ends for which government is necessary? Secondly, what are the best means, and the least expensive, for accomplishing those ends?

Government is nothing more than a national association; and the object of this association is the good of all, as well individually as collectively. Every man wishes to pursue his occupation, and to enjoy the fruits of his labours and the produce of his property in peace and safety, and with the least possible expense. When these things are accomplished, all the objects for which government ought to be established are answered.

It has been customary to consider government under three distinct general heads. The legislative, the executive, and the judicial.

But if we permit our judgment to act unincumbered by the habit of multiplied terms, we can perceive no more than two divisions of power, of which civil government is composed, namely, that of legislating or enacting laws, and that of executing or administering them. Everything, therefore, appertaining to civil government, classes itself under one or other of these two divisions.

So far as regards the execution of the laws, that which is called the judicial power, is strictly and properly the executive power of every country. It is that power to which every individual has appeal, and which causes the laws to be executed; neither have we any other clear idea with respect to the official execution of the laws. In England, and also in America and France, this power begins with the magistrate, and proceeds up through all the courts of judicature.

I leave to courtiers to explain what is meant by calling monarchy the executive power. It is merely a name in which acts of government are done; and any other, or none at all, would answer the same purpose. Laws have neither more nor less authority on this account. It must be from the justness of their principles, and the interest which a nation feels therein, that they derive support; if they require any other than this, it is a sign that something in the system of government is imperfect. Laws difficult to be executed cannot be generally good.

With respect to the organization of the legislative power, different modes have been adopted in different countries. In America it is generally composed of two houses. In France it consists but of one, but in both countries, it is wholly by representation.

The case is, that mankind (from the long tyranny of assumed power) have had so few opportunities of making the necessary trials on modes and principles of government, in order to discover the best, that government is but now beginning to be known, and experience is yet wanting to determine many particulars.

The objections against two houses are, first, that there is an inconsistency in any part of a whole legislature, coming to a final determination by vote on any matter, whilst that matter, with respect to that whole, is yet only in a train of deliberation, and consequently open to new illustrations.

Secondly, That by taking the vote on each, as a separate body, it always admits of the possibility, and is often the case in practice, that the minority governs the majority, and that, in some instances, to a degree of great inconsistency.

Thirdly, That two houses arbitrarily checking or controlling each other is inconsistent; because it cannot be proved on the principles of just representation, that either should be wiser or better than the other. They may check in the wrong as well as in the right therefore to give the power where we cannot give the wisdom to use it, nor be assured of its being rightly used, renders the hazard at least equal to the precaution.*[21](#)

The objection against a single house is, that it is always in a condition of committing itself too soon.—But it should at the same time be remembered, that when there is a constitution which defines the power, and establishes the principles within which a legislature shall act, there is already a more effectual check provided, and more powerfully operating, than any other check can be. For example,

Were a Bill to be brought into any of the American legislatures similar to that which was passed into an act by the English parliament, at the commencement of George the First, to extend the duration of the assemblies to a longer period than they now sit, the check is in the constitution, which in effect says, Thus far shalt thou go and no further.

But in order to remove the objection against a single house (that of acting with too quick an impulse), and at the same time to avoid the inconsistencies, in some cases absurdities, arising from two houses, the following method has been proposed as an improvement upon both.

First, To have but one representation.

Secondly, To divide that representation, by lot, into two or three parts.

Thirdly, That every proposed bill shall be first debated in those parts by succession, that they may become the hearers of each other, but without taking any vote. After which the whole representation to assemble for a general debate and determination by vote.

To this proposed improvement has been added another, for the purpose of keeping the representation in the state of constant renovation; which is, that one-third of the representation of each county, shall go out at the expiration of one year, and the number be replaced by new elections. Another third at

the expiration of the second year replaced in like manner, and every third year to be a general election.*[22](#)

But in whatever manner the separate parts of a constitution may be arranged, there is one general principle that distinguishes freedom from slavery, which is, that all hereditary government over a people is to them a species of slavery, and representative government is freedom.

Considering government in the only light in which it should be considered, that of a National Association, it ought to be so constructed as not to be disordered by any accident happening among the parts; and, therefore, no extraordinary power, capable of producing such an effect, should be lodged in the hands of any individual. The death, sickness, absence or defection, of any one individual in a government, ought to be a matter of no more consequence, with respect to the nation, than if the same circumstance had taken place in a member of the English Parliament, or the French National Assembly.

Scarcely anything presents a more degrading character of national greatness, than its being thrown into confusion, by anything happening to or acted by any individual; and the ridiculousness of the scene is often increased by the natural insignificance of the person by whom it is occasioned. Were a government so constructed, that it could not go on unless a goose or a gander were present in the senate, the difficulties would be just as great and as real, on the flight or sickness of the goose, or the gander, as if it were called a King. We laugh at individuals for the silly difficulties they make to themselves, without perceiving that the greatest of all ridiculous things are acted in governments.*[23](#)

All the constitutions of America are on a plan that excludes the childish embarrassments which occur in monarchical countries. No suspension of government can there take place for a moment, from any circumstances whatever. The system of representation provides for everything, and is the only system in which nations and governments can always appear in their proper character.

As extraordinary power ought not to be lodged in the hands of any individual, so ought there to be no appropriations of public money to any person, beyond what his services in a state may be worth. It signifies not whether a man be called a president, a king, an emperor, a senator, or by any other name which propriety or folly may devise or arrogance assume; it

is only a certain service he can perform in the state; and the service of any such individual in the routine of office, whether such office be called monarchical, presidential, senatorial, or by any other name or title, can never exceed the value of ten thousand pounds a year. All the great services that are done in the world are performed by volunteer characters, who accept nothing for them; but the routine of office is always regulated to such a general standard of abilities as to be within the compass of numbers in every country to perform, and therefore cannot merit very extraordinary recompense. Government, says Swift, is a Plain thing, and fitted to the capacity of many heads.

It is inhuman to talk of a million sterling a year, paid out of the public taxes of any country, for the support of any individual, whilst thousands who are forced to contribute thereto, are pining with want, and struggling with misery. Government does not consist in a contrast between prisons and palaces, between poverty and pomp; it is not instituted to rob the needy of his mite, and increase the wretchedness of the wretched.—But on this part of the subject I shall speak hereafter, and confine myself at present to political observations.

When extraordinary power and extraordinary pay are allotted to any individual in a government, he becomes the center, round which every kind of corruption generates and forms. Give to any man a million a year, and add thereto the power of creating and disposing of places, at the expense of a country, and the liberties of that country are no longer secure. What is called the splendour of a throne is no other than the corruption of the state. It is made up of a band of parasites, living in luxurious indolence, out of the public taxes.

When once such a vicious system is established it becomes the guard and protection of all inferior abuses. The man who is in the receipt of a million a year is the last person to promote a spirit of reform, lest, in the event, it should reach to himself. It is always his interest to defend inferior abuses, as so many outworks to protect the citadel; and on this species of political fortification, all the parts have such a common dependence that it is never to be expected they will attack each other.*[24](#)

Monarchy would not have continued so many ages in the world, had it not been for the abuses it protects. It is the master-fraud, which shelters all

others. By admitting a participation of the spoil, it makes itself friends; and when it ceases to do this it will cease to be the idol of courtiers.

As the principle on which constitutions are now formed rejects all hereditary pretensions to government, it also rejects all that catalogue of assumptions known by the name of prerogatives.

If there is any government where prerogatives might with apparent safety be entrusted to any individual, it is in the federal government of America. The president of the United States of America is elected only for four years. He is not only responsible in the general sense of the word, but a particular mode is laid down in the constitution for trying him. He cannot be elected under thirty-five years of age; and he must be a native of the country.

In a comparison of these cases with the Government of England, the difference when applied to the latter amounts to an absurdity. In England the person who exercises prerogative is often a foreigner; always half a foreigner, and always married to a foreigner. He is never in full natural or political connection with the country, is not responsible for anything, and becomes of age at eighteen years; yet such a person is permitted to form foreign alliances, without even the knowledge of the nation, and to make war and peace without its consent.

But this is not all. Though such a person cannot dispose of the government in the manner of a testator, he dictates the marriage connections, which, in effect, accomplish a great part of the same end. He cannot directly bequeath half the government to Prussia, but he can form a marriage partnership that will produce almost the same thing. Under such circumstances, it is happy for England that she is not situated on the Continent, or she might, like Holland, fall under the dictatorship of Prussia. Holland, by marriage, is as effectually governed by Prussia, as if the old tyranny of bequeathing the government had been the means.

The presidency in America (or, as it is sometimes called, the executive) is the only office from which a foreigner is excluded, and in England it is the only one to which he is admitted. A foreigner cannot be a member of Parliament, but he may be what is called a king. If there is any reason for excluding foreigners, it ought to be from those offices where mischief can most be acted, and where, by uniting every bias of interest and attachment, the trust is best secured. But as nations proceed in the great business of forming constitutions, they will examine with more precision into the nature

and business of that department which is called the executive. What the legislative and judicial departments are every one can see; but with respect to what, in Europe, is called the executive, as distinct from those two, it is either a political superfluity or a chaos of unknown things.

Some kind of official department, to which reports shall be made from the different parts of a nation, or from abroad, to be laid before the national representatives, is all that is necessary; but there is no consistency in calling this the executive; neither can it be considered in any other light than as inferior to the legislative. The sovereign authority in any country is the power of making laws, and everything else is an official department.

Next to the arrangement of the principles and the organization of the several parts of a constitution, is the provision to be made for the support of the persons to whom the nation shall confide the administration of the constitutional powers.

A nation can have no right to the time and services of any person at his own expense, whom it may choose to employ or entrust in any department whatever; neither can any reason be given for making provision for the support of any one part of a government and not for the other.

But admitting that the honour of being entrusted with any part of a government is to be considered a sufficient reward, it ought to be so to every person alike. If the members of the legislature of any country are to serve at their own expense that which is called the executive, whether monarchical or by any other name, ought to serve in like manner. It is inconsistent to pay the one, and accept the service of the other gratis.

In America, every department in the government is decently provided for; but no one is extravagantly paid. Every member of Congress, and of the Assemblies, is allowed a sufficiency for his expenses. Whereas in England, a most prodigal provision is made for the support of one part of the Government, and none for the other, the consequence of which is that the one is furnished with the means of corruption and the other is put into the condition of being corrupted. Less than a fourth part of such expense, applied as it is in America, would remedy a great part of the corruption.

Another reform in the American constitution is the exploding all oaths of personality. The oath of allegiance in America is to the nation only. The putting any individual as a figure for a nation is improper. The happiness of a nation is the superior object, and therefore the intention of an oath of

allegiance ought not to be obscured by being figuratively taken, to, or in the name of, any person. The oath, called the civic oath, in France, viz., "the nation, the law, and the king," is improper. If taken at all, it ought to be as in America, to the nation only. The law may or may not be good; but, in this place, it can have no other meaning, than as being conducive to the happiness of a nation, and therefore is included in it. The remainder of the oath is improper, on the ground, that all personal oaths ought to be abolished. They are the remains of tyranny on one part and slavery on the other; and the name of the Creator ought not to be introduced to witness the degradation of his creation; or if taken, as is already mentioned, as figurative of the nation, it is in this place redundant. But whatever apology may be made for oaths at the first establishment of a government, they ought not to be permitted afterwards. If a government requires the support of oaths, it is a sign that it is not worth supporting, and ought not to be supported. Make government what it ought to be, and it will support itself.

To conclude this part of the subject:—One of the greatest improvements that have been made for the perpetual security and progress of constitutional liberty, is the provision which the new constitutions make for occasionally revising, altering, and amending them.

The principle upon which Mr. Burke formed his political creed, that of "binding and controlling posterity to the end of time, and of renouncing and abdicating the rights of all posterity, for ever," is now become too detestable to be made a subject of debate; and therefore, I pass it over with no other notice than exposing it.

Government is but now beginning to be known. Hitherto it has been the mere exercise of power, which forbade all effectual enquiry into rights, and grounded itself wholly on possession. While the enemy of liberty was its judge, the progress of its principles must have been small indeed.

The constitutions of America, and also that of France, have either affixed a period for their revision, or laid down the mode by which improvement shall be made. It is perhaps impossible to establish anything that combines principles with opinions and practice, which the progress of circumstances, through a length of years, will not in some measure derange, or render inconsistent; and, therefore, to prevent inconveniences accumulating, till they discourage reformation or provoke revolutions, it is best to provide the means of regulating them as they occur. The Rights of Man are the

rights of all generations of men, and cannot be monopolised by any. That which is worth following, will be followed for the sake of its worth, and it is in this that its security lies, and not in any conditions with which it may be encumbered. When a man leaves property to his heirs, he does not connect it with an obligation that they shall accept it. Why, then, should we do otherwise with respect to constitutions? The best constitution that could now be devised, consistent with the condition of the present moment, may be far short of that excellence which a few years may afford. There is a morning of reason rising upon man on the subject of government, that has not appeared before. As the barbarism of the present old governments expires, the moral conditions of nations with respect to each other will be changed. Man will not be brought up with the savage idea of considering his species as his enemy, because the accident of birth gave the individuals existence in countries distinguished by different names; and as constitutions have always some relation to external as well as to domestic circumstances, the means of benefitting by every change, foreign or domestic, should be a part of every constitution. We already see an alteration in the national disposition of England and France towards each other, which, when we look back to only a few years, is itself a Revolution. Who could have foreseen, or who could have believed, that a French National Assembly would ever have been a popular toast in England, or that a friendly alliance of the two nations should become the wish of either? It shows that man, were he not corrupted by governments, is naturally the friend of man, and that human nature is not of itself vicious. That spirit of jealousy and ferocity, which the governments of the two countries inspired, and which they rendered subservient to the purpose of taxation, is now yielding to the dictates of reason, interest, and humanity. The trade of courts is beginning to be understood, and the affectation of mystery, with all the artificial sorcery by which they imposed upon mankind, is on the decline. It has received its death-wound; and though it may linger, it will expire. Government ought to be as much open to improvement as anything which appertains to man, instead of which it has been monopolised from age to age, by the most ignorant and vicious of the human race. Need we any other proof of their wretched management, than the excess of debts and taxes with which every nation groans, and the quarrels into which they have precipitated the world? Just emerging from such a barbarous condition, it is too soon to determine to what extent of improvement government may yet

be carried. For what we can foresee, all Europe may form but one great Republic, and man be free of the whole.

CHAPTER V. WAYS AND MEANS OF IMPROVING THE CONDITION OF EUROPE

INTERSPERSED WITH MISCELLANEOUS OBSERVATIONS

In contemplating a subject that embraces with equatorial magnitude the whole region of humanity it is impossible to confine the pursuit in one single direction. It takes ground on every character and condition that appertains to man, and blends the individual, the nation, and the world. From a small spark, kindled in America, a flame has arisen not to be extinguished. Without consuming, like the *Ultima Ratio Regum*, it winds its progress from nation to nation, and conquers by a silent operation. Man finds himself changed, he scarcely perceives how. He acquires a knowledge of his rights by attending justly to his interest, and discovers in the event that the strength and powers of despotism consist wholly in the fear of resisting it, and that, in order "to be free, it is sufficient that he wills it."

Having in all the preceding parts of this work endeavoured to establish a system of principles as a basis on which governments ought to be erected, I shall proceed in this, to the ways and means of rendering them into practice. But in order to introduce this part of the subject with more propriety, and stronger effect, some preliminary observations, deducible from, or connected with, those principles, are necessary.

Whatever the form or constitution of government may be, it ought to have no other object than the general happiness. When, instead of this, it operates to create and increase wretchedness in any of the parts of society, it is on a wrong system, and reformation is necessary. Customary language has classed the condition of man under the two descriptions of civilised and uncivilised life. To the one it has ascribed felicity and affluence; to the other hardship and want. But, however our imagination may be impressed by painting and comparison, it is nevertheless true, that a great portion of mankind, in what are called civilised countries, are in a state of poverty and wretchedness, far below the condition of an Indian. I speak not of one

country, but of all. It is so in England, it is so all over Europe. Let us enquire into the cause.

It lies not in any natural defect in the principles of civilisation, but in preventing those principles having a universal operation; the consequence of which is, a perpetual system of war and expense, that drains the country, and defeats the general felicity of which civilisation is capable. All the European governments (France now excepted) are constructed not on the principle of universal civilisation, but on the reverse of it. So far as those governments relate to each other, they are in the same condition as we conceive of savage uncivilised life; they put themselves beyond the law as well of God as of man, and are, with respect to principle and reciprocal conduct, like so many individuals in a state of nature. The inhabitants of every country, under the civilisation of laws, easily civilise together, but governments being yet in an uncivilised state, and almost continually at war, they pervert the abundance which civilised life produces to carry on the uncivilised part to a greater extent. By thus engrafting the barbarism of government upon the internal civilisation of a country, it draws from the latter, and more especially from the poor, a great portion of those earnings, which should be applied to their own subsistence and comfort. Apart from all reflections of morality and philosophy, it is a melancholy fact that more than one-fourth of the labour of mankind is annually consumed by this barbarous system. What has served to continue this evil, is the pecuniary advantage which all the governments of Europe have found in keeping up this state of uncivilisation. It affords to them pretences for power, and revenue, for which there would be neither occasion nor apology, if the circle of civilisation were rendered complete. Civil government alone, or the government of laws, is not productive of pretences for many taxes; it operates at home, directly under the eye of the country, and precludes the possibility of much imposition. But when the scene is laid in the uncivilised contention of governments, the field of pretences is enlarged, and the country, being no longer a judge, is open to every imposition, which governments please to act. Not a thirtieth, scarcely a fortieth, part of the taxes which are raised in England are either occasioned by, or applied to, the purpose of civil government. It is not difficult to see, that the whole which the actual government does in this respect, is to enact laws, and that the country administers and executes them, at its own expense, by means of magistrates, juries, sessions, and assize, over and above the taxes which it

pays. In this view of the case, we have two distinct characters of government; the one the civil government, or the government of laws, which operates at home, the other the court or cabinet government, which operates abroad, on the rude plan of uncivilised life; the one attended with little charge, the other with boundless extravagance; and so distinct are the two, that if the latter were to sink, as it were, by a sudden opening of the earth, and totally disappear, the former would not be deranged. It would still proceed, because it is the common interest of the nation that it should, and all the means are in practice. Revolutions, then, have for their object a change in the moral condition of governments, and with this change the burthen of public taxes will lessen, and civilisation will be left to the enjoyment of that abundance, of which it is now deprived. In contemplating the whole of this subject, I extend my views into the department of commerce. In all my publications, where the matter would admit, I have been an advocate for commerce, because I am a friend to its effects. It is a pacific system, operating to cordialise mankind, by rendering nations, as well as individuals, useful to each other. As to the mere theoretical reformation, I have never preached it up. The most effectual process is that of improving the condition of man by means of his interest; and it is on this ground that I take my stand. If commerce were permitted to act to the universal extent it is capable, it would extirpate the system of war, and produce a revolution in the uncivilised state of governments. The invention of commerce has arisen since those governments began, and is the greatest approach towards universal civilisation that has yet been made by any means not immediately flowing from moral principles. Whatever has a tendency to promote the civil intercourse of nations by an exchange of benefits, is a subject as worthy of philosophy as of politics. Commerce is no other than the traffic of two individuals, multiplied on a scale of numbers; and by the same rule that nature intended for the intercourse of two, she intended that of all. For this purpose she has distributed the materials of manufactures and commerce, in various and distant parts of a nation and of the world; and as they cannot be procured by war so cheaply or so commodiously as by commerce, she has rendered the latter the means of extirpating the former. As the two are nearly the opposite of each other, consequently, the uncivilised state of the European governments is injurious to commerce. Every kind of destruction or embarrassment serves to lessen the quantity, and it matters but little in what part of the commercial world

the reduction begins. Like blood, it cannot be taken from any of the parts, without being taken from the whole mass in circulation, and all partake of the loss. When the ability in any nation to buy is destroyed, it equally involves the seller. Could the government of England destroy the commerce of all other nations, she would most effectually ruin her own. It is possible that a nation may be the carrier for the world, but she cannot be the merchant. She cannot be the seller and buyer of her own merchandise. The ability to buy must reside out of herself; and, therefore, the prosperity of any commercial nation is regulated by the prosperity of the rest. If they are poor she cannot be rich, and her condition, be what it may, is an index of the height of the commercial tide in other nations. That the principles of commerce, and its universal operation may be understood, without understanding the practice, is a position that reason will not deny; and it is on this ground only that I argue the subject. It is one thing in the counting-house, in the world it is another. With respect to its operation it must necessarily be contemplated as a reciprocal thing; that only one-half its powers resides within the nation, and that the whole is as effectually destroyed by the destroying the half that resides without, as if the destruction had been committed on that which is within; for neither can act without the other. When in the last, as well as in former wars, the commerce of England sunk, it was because the quantity was lessened everywhere; and it now rises, because commerce is in a rising state in every nation. If England, at this day, imports and exports more than at any former period, the nations with which she trades must necessarily do the same; her imports are their exports, and vice versa. There can be no such thing as a nation flourishing alone in commerce: she can only participate; and the destruction of it in any part must necessarily affect all. When, therefore, governments are at war, the attack is made upon a common stock of commerce, and the consequence is the same as if each had attacked his own. The present increase of commerce is not to be attributed to ministers, or to any political contrivances, but to its own natural operation in consequence of peace. The regular markets had been destroyed, the channels of trade broken up, the high road of the seas infested with robbers of every nation, and the attention of the world called to other objects. Those interruptions have ceased, and peace has restored the deranged condition of things to their proper order.*[25](#) It is worth remarking that every nation reckons the balance of trade in its own favour; and therefore something must be irregular in the

common ideas upon this subject. The fact, however, is true, according to what is called a balance; and it is from this cause that commerce is universally supported. Every nation feels the advantage, or it would abandon the practice: but the deception lies in the mode of making up the accounts, and in attributing what are called profits to a wrong cause. Mr. Pitt has sometimes amused himself, by showing what he called a balance of trade from the custom-house books. This mode of calculating not only affords no rule that is true, but one that is false. In the first place, Every cargo that departs from the custom-house appears on the books as an export; and, according to the custom-house balance, the losses at sea, and by foreign failures, are all reckoned on the side of profit because they appear as exports.

Secondly, Because the importation by the smuggling trade does not appear on the custom-house books, to arrange against the exports.

No balance, therefore, as applying to superior advantages, can be drawn from these documents; and if we examine the natural operation of commerce, the idea is fallacious; and if true, would soon be injurious. The great support of commerce consists in the balance being a level of benefits among all nations.

Two merchants of different nations trading together, will both become rich, and each makes the balance in his own favour; consequently, they do not get rich of each other; and it is the same with respect to the nations in which they reside. The case must be, that each nation must get rich out of its own means, and increases that riches by something which it procures from another in exchange.

If a merchant in England sends an article of English manufacture abroad which costs him a shilling at home, and imports something which sells for two, he makes a balance of one shilling in his favour; but this is not gained out of the foreign nation or the foreign merchant, for he also does the same by the articles he receives, and neither has the advantage upon the other. The original value of the two articles in their proper countries was but two shillings; but by changing their places, they acquire a new idea of value, equal to double what they had first, and that increased value is equally divided.

There is no otherwise a balance on foreign than on domestic commerce. The merchants of London and Newcastle trade on the same principles, as if

they resided in different nations, and make their balances in the same manner: yet London does not get rich out of Newcastle, any more than Newcastle out of London: but coals, the merchandize of Newcastle, have an additional value at London, and London merchandize has the same at Newcastle.

Though the principle of all commerce is the same, the domestic, in a national view, is the part the most beneficial; because the whole of the advantages, on both sides, rests within the nation; whereas, in foreign commerce, it is only a participation of one-half.

The most unprofitable of all commerce is that connected with foreign dominion. To a few individuals it may be beneficial, merely because it is commerce; but to the nation it is a loss. The expense of maintaining dominion more than absorbs the profits of any trade. It does not increase the general quantity in the world, but operates to lessen it; and as a greater mass would be afloat by relinquishing dominion, the participation without the expense would be more valuable than a greater quantity with it.

But it is impossible to engross commerce by dominion; and therefore it is still more fallacious. It cannot exist in confined channels, and necessarily breaks out by regular or irregular means, that defeat the attempt: and to succeed would be still worse. France, since the Revolution, has been more indifferent as to foreign possessions, and other nations will become the same when they investigate the subject with respect to commerce.

To the expense of dominion is to be added that of navies, and when the amounts of the two are subtracted from the profits of commerce, it will appear, that what is called the balance of trade, even admitting it to exist, is not enjoyed by the nation, but absorbed by the Government.

The idea of having navies for the protection of commerce is delusive. It is putting means of destruction for the means of protection. Commerce needs no other protection than the reciprocal interest which every nation feels in supporting it—it is common stock—it exists by a balance of advantages to all; and the only interruption it meets, is from the present uncivilised state of governments, and which it is its common interest to reform.*[26](#)

Quitting this subject, I now proceed to other matters.—As it is necessary to include England in the prospect of a general reformation, it is proper to inquire into the defects of its government. It is only by each nation

reforming its own, that the whole can be improved, and the full benefit of reformation enjoyed. Only partial advantages can flow from partial reforms.

France and England are the only two countries in Europe where a reformation in government could have successfully begun. The one secure by the ocean, and the other by the immensity of its internal strength, could defy the malignancy of foreign despotism. But it is with revolutions as with commerce, the advantages increase by their becoming general, and double to either what each would receive alone.

As a new system is now opening to the view of the world, the European courts are plotting to counteract it. Alliances, contrary to all former systems, are agitating, and a common interest of courts is forming against the common interest of man. This combination draws a line that runs throughout Europe, and presents a cause so entirely new as to exclude all calculations from former circumstances. While despotism warred with despotism, man had no interest in the contest; but in a cause that unites the soldier with the citizen, and nation with nation, the despotism of courts, though it feels the danger and meditates revenge, is afraid to strike.

No question has arisen within the records of history that pressed with the importance of the present. It is not whether this or that party shall be in or not, or Whig or Tory, high or low shall prevail; but whether man shall inherit his rights, and universal civilisation take place? Whether the fruits of his labours shall be enjoyed by himself or consumed by the profligacy of governments? Whether robbery shall be banished from courts, and wretchedness from countries?

When, in countries that are called civilised, we see age going to the workhouse and youth to the gallows, something must be wrong in the system of government. It would seem, by the exterior appearance of such countries, that all was happiness; but there lies hidden from the eye of common observation, a mass of wretchedness, that has scarcely any other chance, than to expire in poverty or infamy. Its entrance into life is marked with the presage of its fate; and until this is remedied, it is in vain to punish.

Civil government does not exist in executions; but in making such provision for the instruction of youth and the support of age, as to exclude, as much as possible, profligacy from the one and despair from the other. Instead of this, the resources of a country are lavished upon kings, upon courts, upon hirelings, impostors and prostitutes; and even the poor

themselves, with all their wants upon them, are compelled to support the fraud that oppresses them.

Why is it that scarcely any are executed but the poor? The fact is a proof, among other things, of a wretchedness in their condition. Bred up without morals, and cast upon the world without a prospect, they are the exposed sacrifice of vice and legal barbarity. The millions that are superfluously wasted upon governments are more than sufficient to reform those evils, and to benefit the condition of every man in a nation, not included within the purlieu of a court. This I hope to make appear in the progress of this work.

It is the nature of compassion to associate with misfortune. In taking up this subject I seek no recompense—I fear no consequence. Fortified with that proud integrity, that disdains to triumph or to yield, I will advocate the Rights of Man.

It is to my advantage that I have served an apprenticeship to life. I know the value of moral instruction, and I have seen the danger of the contrary.

At an early period—little more than sixteen years of age, raw and adventurous, and heated with the false heroism of a master*[27](#) who had served in a man-of-war—I began the carver of my own fortune, and entered on board the Terrible Privateer, Captain Death. From this adventure I was happily prevented by the affectionate and moral remonstrance of a good father, who, from his own habits of life, being of the Quaker profession, must begin to look upon me as lost. But the impression, much as it effected at the time, began to wear away, and I entered afterwards in the King of Prussia Privateer, Captain Mendez, and went with her to sea. Yet, from such a beginning, and with all the inconvenience of early life against me, I am proud to say, that with a perseverance undismayed by difficulties, a disinterestedness that compelled respect, I have not only contributed to raise a new empire in the world, founded on a new system of government, but I have arrived at an eminence in political literature, the most difficult of all lines to succeed and excel in, which aristocracy with all its aids has not been able to reach or to rival.*[28](#)

Knowing my own heart and feeling myself as I now do, superior to all the skirmish of party, the inveteracy of interested or mistaken opponents, I answer not to falsehood or abuse, but proceed to the defects of the English Government.

I begin with charters and corporations.

It is a perversion of terms to say that a charter gives rights. It operates by a contrary effect—that of taking rights away. Rights are inherently in all the inhabitants; but charters, by annulling those rights, in the majority, leave the right, by exclusion, in the hands of a few. If charters were constructed so as to express in direct terms, "that every inhabitant, who is not a member of a corporation, shall not exercise the right of voting," such charters would, in the face, be charters not of rights, but of exclusion. The effect is the same under the form they now stand; and the only persons on whom they operate are the persons whom they exclude. Those whose rights are guaranteed, by not being taken away, exercise no other rights than as members of the community they are entitled to without a charter; and, therefore, all charters have no other than an indirect negative operation. They do not give rights to A, but they make a difference in favour of A by taking away the right of B, and consequently are instruments of injustice.

But charters and corporations have a more extensive evil effect than what relates merely to elections. They are sources of endless contentions in the places where they exist, and they lessen the common rights of national society. A native of England, under the operation of these charters and corporations, cannot be said to be an Englishman in the full sense of the word. He is not free of the nation, in the same manner that a Frenchman is free of France, and an American of America. His rights are circumscribed to the town, and, in some cases, to the parish of his birth; and all other parts, though in his native land, are to him as a foreign country. To acquire a residence in these, he must undergo a local naturalisation by purchase, or he is forbidden or expelled the place. This species of feudality is kept up to aggrandise the corporations at the ruin of towns; and the effect is visible.

The generality of corporation towns are in a state of solitary decay, and prevented from further ruin only by some circumstance in their situation, such as a navigable river, or a plentiful surrounding country. As population is one of the chief sources of wealth (for without it land itself has no value), everything which operates to prevent it must lessen the value of property; and as corporations have not only this tendency, but directly this effect, they cannot but be injurious. If any policy were to be followed, instead of that of general freedom, to every person to settle where he chose (as in France or

America) it would be more consistent to give encouragement to new comers than to preclude their admission by exacting premiums from them.*[29](#)

The persons most immediately interested in the abolition of corporations are the inhabitants of the towns where corporations are established. The instances of Manchester, Birmingham, and Sheffield show, by contrast, the injuries which those Gothic institutions are to property and commerce. A few examples may be found, such as that of London, whose natural and commercial advantage, owing to its situation on the Thames, is capable of bearing up against the political evils of a corporation; but in almost all other cases the fatality is too visible to be doubted or denied.

Though the whole nation is not so directly affected by the depression of property in corporation towns as the inhabitants themselves, it partakes of the consequence. By lessening the value of property, the quantity of national commerce is curtailed. Every man is a customer in proportion to his ability; and as all parts of a nation trade with each other, whatever affects any of the parts must necessarily communicate to the whole.

As one of the Houses of the English Parliament is, in a great measure, made up of elections from these corporations; and as it is unnatural that a pure stream should flow from a foul fountain, its vices are but a continuation of the vices of its origin. A man of moral honour and good political principles cannot submit to the mean drudgery and disgraceful arts, by which such elections are carried. To be a successful candidate, he must be destitute of the qualities that constitute a just legislator; and being thus disciplined to corruption by the mode of entering into Parliament, it is not to be expected that the representative should be better than the man.

Mr. Burke, in speaking of the English representation, has advanced as bold a challenge as ever was given in the days of chivalry. "Our representation," says he, "has been found perfectly adequate to all the purposes for which a representation of the people can be desired or devised." "I defy," continues he, "the enemies of our constitution to show the contrary."—This declaration from a man who has been in constant opposition to all the measures of parliament the whole of his political life, a year or two excepted, is most extraordinary; and, comparing him with himself, admits of no other alternative, than that he acted against his judgment as a member, or has declared contrary to it as an author.

But it is not in the representation only that the defects lie, and therefore I proceed in the next place to the aristocracy.

What is called the House of Peers, is constituted on a ground very similar to that, against which there is no law in other cases. It amounts to a combination of persons in one common interest. No better reason can be given, why a house of legislation should be composed entirely of men whose occupation consists in letting landed property, than why it should be composed of those who hire, or of brewers, or bakers, or any other separate class of men. Mr. Burke calls this house "the great ground and pillar of security to the landed interest." Let us examine this idea.

What pillar of security does the landed interest require more than any other interest in the state, or what right has it to a distinct and separate representation from the general interest of a nation? The only use to be made of this power (and which it always has made), is to ward off taxes from itself, and throw the burthen upon those articles of consumption by which itself would be least affected.

That this has been the consequence (and will always be the consequence) of constructing governments on combinations, is evident with respect to England, from the history of its taxes.

Notwithstanding taxes have increased and multiplied upon every article of common consumption, the land-tax, which more particularly affects this "pillar," has diminished. In 1778 the amount of the land-tax was £1,950,000, which is half-a-million less than it produced almost a hundred years ago,*³⁰ notwithstanding the rentals are in many instances doubled since that period.

Before the coming of the Hanoverians, the taxes were divided in nearly equal proportions between the land and articles of consumption, the land bearing rather the largest share: but since that era nearly thirteen millions annually of new taxes have been thrown upon consumption. The consequence of which has been a constant increase in the number and wretchedness of the poor, and in the amount of the poor-rates. Yet here again the burthen does not fall in equal proportions on the aristocracy with the rest of the community. Their residences, whether in town or country, are not mixed with the habitations of the poor. They live apart from distress, and the expense of relieving it. It is in manufacturing towns and labouring

villages that those burthens press the heaviest; in many of which it is one class of poor supporting another.

Several of the most heavy and productive taxes are so contrived, as to give an exemption to this pillar, thus standing in its own defence. The tax upon beer brewed for sale does not affect the aristocracy, who brew their own beer free from this duty. It falls only on those who have not conveniency or ability to brew, and who must purchase it in small quantities. But what will mankind think of the justice of taxation, when they know that this tax alone, from which the aristocracy are from circumstances exempt, is nearly equal to the whole of the land-tax, being in the year 1788, and it is not less now, L1,666,152, and with its proportion of the taxes on malt and hops, it exceeds it.—That a single article, thus partially consumed, and that chiefly by the working part, should be subject to a tax, equal to that on the whole rental of a nation, is, perhaps, a fact not to be paralleled in the histories of revenues.

This is one of the circumstances resulting from a house of legislation, composed on the ground of a combination of common interest; for whatever their separate politics as to parties may be, in this they are united. Whether a combination acts to raise the price of any article for sale, or rate of wages; or whether it acts to throw taxes from itself upon another class of the community, the principle and the effect are the same; and if the one be illegal, it will be difficult to show that the other ought to exist.

It is no use to say that taxes are first proposed in the House of Commons; for as the other house has always a negative, it can always defend itself; and it would be ridiculous to suppose that its acquiescence in the measures to be proposed were not understood before hand. Besides which, it has obtained so much influence by borough-traffic, and so many of its relations and connections are distributed on both sides the commons, as to give it, besides an absolute negative in one house, a preponderancy in the other, in all matters of common concern.

It is difficult to discover what is meant by the landed interest, if it does not mean a combination of aristocratical landholders, opposing their own pecuniary interest to that of the farmer, and every branch of trade, commerce, and manufacture. In all other respects it is the only interest that needs no partial protection. It enjoys the general protection of the world. Every individual, high or low, is interested in the fruits of the earth; men,

women, and children, of all ages and degrees, will turn out to assist the farmer, rather than a harvest should not be got in; and they will not act thus by any other property. It is the only one for which the common prayer of mankind is put up, and the only one that can never fail from the want of means. It is the interest, not of the policy, but of the existence of man, and when it ceases, he must cease to be.

No other interest in a nation stands on the same united support. Commerce, manufactures, arts, sciences, and everything else, compared with this, are supported but in parts. Their prosperity or their decay has not the same universal influence. When the valleys laugh and sing, it is not the farmer only, but all creation that rejoice. It is a prosperity that excludes all envy; and this cannot be said of anything else.

Why then, does Mr. Burke talk of his house of peers as the pillar of the landed interest? Were that pillar to sink into the earth, the same landed property would continue, and the same ploughing, sowing, and reaping would go on. The aristocracy are not the farmers who work the land, and raise the produce, but are the mere consumers of the rent; and when compared with the active world are the drones, a seraglio of males, who neither collect the honey nor form the hive, but exist only for lazy enjoyment.

Mr. Burke, in his first essay, called aristocracy "the Corinthian capital of polished society." Towards completing the figure, he has now added the pillar; but still the base is wanting; and whenever a nation choose to act a Samson, not blind, but bold, down will go the temple of Dagon, the Lords and the Philistines.

If a house of legislation is to be composed of men of one class, for the purpose of protecting a distinct interest, all the other interests should have the same. The inequality, as well as the burthen of taxation, arises from admitting it in one case, and not in all. Had there been a house of farmers, there had been no game laws; or a house of merchants and manufacturers, the taxes had neither been so unequal nor so excessive. It is from the power of taxation being in the hands of those who can throw so great a part of it from their own shoulders, that it has raged without a check.

Men of small or moderate estates are more injured by the taxes being thrown on articles of consumption, than they are eased by warding it from landed property, for the following reasons:

First, They consume more of the productive taxable articles, in proportion to their property, than those of large estates.

Secondly, Their residence is chiefly in towns, and their property in houses; and the increase of the poor-rates, occasioned by taxes on consumption, is in much greater proportion than the land-tax has been favoured. In Birmingham, the poor-rates are not less than seven shillings in the pound. From this, as is already observed, the aristocracy are in a great measure exempt.

These are but a part of the mischiefs flowing from the wretched scheme of an house of peers.

As a combination, it can always throw a considerable portion of taxes from itself; and as an hereditary house, accountable to nobody, it resembles a rotten borough, whose consent is to be courted by interest. There are but few of its members, who are not in some mode or other participators, or disposers of the public money. One turns a candle-holder, or a lord in waiting; another a lord of the bed-chamber, a groom of the stole, or any insignificant nominal office to which a salary is annexed, paid out of the public taxes, and which avoids the direct appearance of corruption. Such situations are derogatory to the character of man; and where they can be submitted to, honour cannot reside.

To all these are to be added the numerous dependants, the long list of younger branches and distant relations, who are to be provided for at the public expense: in short, were an estimation to be made of the charge of aristocracy to a nation, it will be found nearly equal to that of supporting the poor. The Duke of Richmond alone (and there are cases similar to his) takes away as much for himself as would maintain two thousand poor and aged persons. Is it, then, any wonder, that under such a system of government, taxes and rates have multiplied to their present extent?

In stating these matters, I speak an open and disinterested language, dictated by no passion but that of humanity. To me, who have not only refused offers, because I thought them improper, but have declined rewards I might with reputation have accepted, it is no wonder that meanness and imposition appear disgusting. Independence is my happiness, and I view things as they are, without regard to place or person; my country is the world, and my religion is to do good.

Mr. Burke, in speaking of the aristocratical law of primogeniture, says, "it is the standing law of our landed inheritance; and which, without question, has a tendency, and I think," continues he, "a happy tendency, to preserve a character of weight and consequence."

Mr. Burke may call this law what he pleases, but humanity and impartial reflection will denounce it as a law of brutal injustice. Were we not accustomed to the daily practice, and did we only hear of it as the law of some distant part of the world, we should conclude that the legislators of such countries had not arrived at a state of civilisation.

As to its preserving a character of weight and consequence, the case appears to me directly the reverse. It is an attaint upon character; a sort of privateering on family property. It may have weight among dependent tenants, but it gives none on a scale of national, and much less of universal character. Speaking for myself, my parents were not able to give me a shilling, beyond what they gave me in education; and to do this they distressed themselves: yet, I possess more of what is called consequence, in the world, than any one in Mr. Burke's catalogue of aristocrats.

Having thus glanced at some of the defects of the two houses of parliament, I proceed to what is called the crown, upon which I shall be very concise.

It signifies a nominal office of a million sterling a year, the business of which consists in receiving the money. Whether the person be wise or foolish, sane or insane, a native or a foreigner, matters not. Every ministry acts upon the same idea that Mr. Burke writes, namely, that the people must be hood-winked, and held in superstitious ignorance by some bugbear or other; and what is called the crown answers this purpose, and therefore it answers all the purposes to be expected from it. This is more than can be said of the other two branches.

The hazard to which this office is exposed in all countries, is not from anything that can happen to the man, but from what may happen to the nation—the danger of its coming to its senses.

It has been customary to call the crown the executive power, and the custom is continued, though the reason has ceased.

It was called the executive, because the person whom it signified used, formerly, to act in the character of a judge, in administering or executing the laws. The tribunals were then a part of the court. The power, therefore,

which is now called the judicial, is what was called the executive and, consequently, one or other of the terms is redundant, and one of the offices useless. When we speak of the crown now, it means nothing; it signifies neither a judge nor a general: besides which it is the laws that govern, and not the man. The old terms are kept up, to give an appearance of consequence to empty forms; and the only effect they have is that of increasing expenses.

Before I proceed to the means of rendering governments more conducive to the general happiness of mankind, than they are at present, it will not be improper to take a review of the progress of taxation in England.

It is a general idea, that when taxes are once laid on, they are never taken off. However true this may have been of late, it was not always so. Either, therefore, the people of former times were more watchful over government than those of the present, or government was administered with less extravagance.

It is now seven hundred years since the Norman conquest, and the establishment of what is called the crown. Taking this portion of time in seven separate periods of one hundred years each, the amount of the annual taxes, at each period, will be as follows:

<i>Annual taxes levied by William the Conqueror,</i>	
<i>beginning in the year 1066</i>	<i>L400,000</i>
<i>Annual taxes at 100 years from the conquest (1166)</i>	<i>200,000</i>
<i>Annual taxes at 200 years from the conquest (1266)</i>	<i>150,000</i>
<i>Annual taxes at 300 years from the conquest (1366)</i>	<i>130,000</i>
<i>Annual taxes at 400 years from the conquest (1466)</i>	<i>100,000</i>

These statements and those which follow, are taken from Sir John Sinclair's History of the Revenue; by which it appears, that taxes continued decreasing for four hundred years, at the expiration of which time they were reduced three-fourths, viz., from four hundred thousand pounds to one hundred thousand. The people of England of the present day, have a traditionary and historical idea of the bravery of their ancestors; but whatever their virtues or their vices might have been, they certainly were a people who would not be imposed upon, and who kept governments in awe as to taxation, if not as to principle. Though they were not able to expel the monarchical usurpation, they restricted it to a republican economy of taxes.

Let us now review the remaining three hundred years:

Annual amount of taxes at:

<i>500 years from the conquest (1566)</i>	<i>500,000</i>
<i>600 years from the conquest (1666)</i>	<i>1,800,000</i>
<i>the present time (1791)</i>	<i>17,000,000</i>

The difference between the first four hundred years and the last three, is so astonishing, as to warrant an opinion, that the national character of the English has changed. It would have been impossible to have dragooned the former English, into the excess of taxation that now exists; and when it is considered that the pay of the army, the navy, and of all the revenue officers, is the same now as it was about a hundred years ago, when the taxes were not above a tenth part of what they are at present, it appears impossible to account for the enormous increase and expenditure on any other ground, than extravagance, corruption, and intrigue.*[31](#)

With the Revolution of 1688, and more so since the Hanover succession, came the destructive system of continental intrigues, and the rage for foreign wars and foreign dominion; systems of such secure mystery that the expenses admit of no accounts; a single line stands for millions. To what excess taxation might have extended had not the French revolution contributed to break up the system, and put an end to pretences, is impossible to say. Viewed, as that revolution ought to be, as the fortunate means of lessening the load of taxes of both countries, it is of as much importance to England as to France; and, if properly improved to all the advantages of which it is capable, and to which it leads, deserves as much celebration in one country as the other.

In pursuing this subject, I shall begin with the matter that first presents itself, that of lessening the burthen of taxes; and shall then add such matter and propositions, respecting the three countries of England, France, and America, as the present prospect of things appears to justify: I mean, an alliance of the three, for the purposes that will be mentioned in their proper place.

What has happened may happen again. By the statement before shown of the progress of taxation, it is seen that taxes have been lessened to a fourth part of what they had formerly been. Though the present circumstances do not admit of the same reduction, yet they admit of such a beginning, as may accomplish that end in less time than in the former case.

The amount of taxes for the year ending at Michaelmas 1788, was as follows:

<i>Land-tax</i>	<i>L 1,950,000</i>
<i>Customs</i>	<i>3,789,274</i>
<i>Excise (including old and new malt)</i>	<i>6,751,727</i>
<i>Stamps</i>	<i>1,278,214</i>
<i>Miscellaneous taxes and incidents</i>	<i>1,803,755</i>
	<i>L15,572,755</i>

Since the year 1788, upwards of one million new taxes have been laid on, besides the produce of the lotteries; and as the taxes have in general been more productive since than before, the amount may be taken, in round numbers, at L17,000,000. (The expense of collection and the drawbacks, which together amount to nearly two millions, are paid out of the gross amount; and the above is the net sum paid into the exchequer). This sum of seventeen millions is applied to two different purposes; the one to pay the interest of the National Debt, the other to the current expenses of each year. About nine millions are appropriated to the former; and the remainder, being nearly eight millions, to the latter. As to the million, said to be applied to the reduction of the debt, it is so much like paying with one hand and taking out with the other, as not to merit much notice. It happened, fortunately for France, that she possessed national domains for paying off her debt, and thereby lessening her taxes; but as this is not the case with England, her reduction of taxes can only take place by reducing the current expenses, which may now be done to the amount of four or five millions annually, as will hereafter appear. When this is accomplished it will more than counter-balance the enormous charge of the American war; and the saving will be from the same source from whence the evil arose. As to the national debt, however heavy the interest may be in taxes, yet, as it serves to keep alive a capital useful to commerce, it balances by its effects a considerable part of its own weight; and as the quantity of gold and silver is, by some means or other, short of its proper proportion, being not more than twenty millions, whereas it should be sixty (foreign intrigue, foreign wars, foreign dominions, will in a great measure account for the deficiency), it would, besides the injustice, be bad policy to extinguish a capital that serves to supply that defect. But with respect to the current expense, whatever is saved therefrom is gain. The excess may serve to keep corruption alive, but it has no re-action on credit and commerce, like the interest of the debt.

It is now very probable that the English Government (I do not mean the nation) is unfriendly to the French Revolution. Whatever serves to expose the intrigue and lessen the influence of courts, by lessening taxation, will be unwelcome to those who feed upon the spoil. Whilst the clamour of French intrigue, arbitrary power, popery, and wooden shoes could be kept up, the nation was easily allured and alarmed into taxes. Those days are now past: deception, it is to be hoped, has reaped its last harvest, and better times are in prospect for both countries, and for the world.

Taking it for granted that an alliance may be formed between England, France, and America for the purposes hereafter to be mentioned, the national expenses of France and England may consequently be lessened. The same fleets and armies will no longer be necessary to either, and the reduction can be made ship for ship on each side. But to accomplish these objects the governments must necessarily be fitted to a common and correspondent principle. Confidence can never take place while an hostile disposition remains in either, or where mystery and secrecy on one side is opposed to candour and openness on the other.

These matters admitted, the national expenses might be put back, for the sake of a precedent, to what they were at some period when France and England were not enemies. This, consequently, must be prior to the Hanover succession, and also to the Revolution of 1688.*[32](#) The first instance that presents itself, antecedent to those dates, is in the very wasteful and profligate times of Charles the Second; at which time England and France acted as allies. If I have chosen a period of great extravagance, it will serve to show modern extravagance in a still worse light; especially as the pay of the navy, the army, and the revenue officers has not increased since that time.

The peace establishment was then as follows (see Sir John Sinclair's History of the Revenue):

<i>Navy</i>	<i>L 300,000</i>
<i>Army</i>	<i>212,000</i>
<i>Ordnance</i>	<i>40,000</i>
<i>Civil List</i>	<i>462,115</i>
	<i>L1,014,115</i>

The parliament, however, settled the whole annual peace establishment at \$1,200,000.*[33](#) If we go back to the time of Elizabeth the amount of all the

taxes was but half a million, yet the nation sees nothing during that period that reproaches it with want of consequence.

All circumstances, then, taken together, arising from the French revolution, from the approaching harmony and reciprocal interest of the two nations, the abolition of the court intrigue on both sides, and the progress of knowledge in the science of government, the annual expenditure might be put back to one million and a half, viz.:

<i>Navy</i>	<i>L 500,000</i>
<i>Army</i>	<i>500,000</i>
<i>Expenses of Government</i>	<i>500,000</i>
	<i>L1,500,000</i>

Even this sum is six times greater than the expenses of government are in America, yet the civil internal government in England (I mean that administered by means of quarter sessions, juries and assize, and which, in fact, is nearly the whole, and performed by the nation), is less expense upon the revenue, than the same species and portion of government is in America.

It is time that nations should be rational, and not be governed like animals, for the pleasure of their riders. To read the history of kings, a man would be almost inclined to suppose that government consisted in stag-hunting, and that every nation paid a million a-year to a huntsman. Man ought to have pride, or shame enough to blush at being thus imposed upon, and when he feels his proper character he will. Upon all subjects of this nature, there is often passing in the mind, a train of ideas he has not yet accustomed himself to encourage and communicate. Restrained by something that puts on the character of prudence, he acts the hypocrite upon himself as well as to others. It is, however, curious to observe how soon this spell can be dissolved. A single expression, boldly conceived and uttered, will sometimes put a whole company into their proper feelings: and whole nations are acted on in the same manner.

As to the offices of which any civil government may be composed, it matters but little by what names they are described. In the routine of business, as before observed, whether a man be styled a president, a king, an emperor, a senator, or anything else, it is impossible that any service he can perform, can merit from a nation more than ten thousand pounds a year; and as no man should be paid beyond his services, so every man of a proper

heart will not accept more. Public money ought to be touched with the most scrupulous consciousness of honour. It is not the produce of riches only, but of the hard earnings of labour and poverty. It is drawn even from the bitterness of want and misery. Not a beggar passes, or perishes in the streets, whose mite is not in that mass.

Were it possible that the Congress of America could be so lost to their duty, and to the interest of their constituents, as to offer General Washington, as president of America, a million a year, he would not, and he could not, accept it. His sense of honour is of another kind. It has cost England almost seventy millions sterling, to maintain a family imported from abroad, of very inferior capacity to thousands in the nation; and scarcely a year has passed that has not produced some new mercenary application. Even the physicians' bills have been sent to the public to be paid. No wonder that jails are crowded, and taxes and poor-rates increased. Under such systems, nothing is to be looked for but what has already happened; and as to reformation, whenever it come, it must be from the nation, and not from the government.

To show that the sum of five hundred thousand pounds is more than sufficient to defray all the expenses of the government, exclusive of navies and armies, the following estimate is added, for any country, of the same extent as England.

In the first place, three hundred representatives fairly elected, are sufficient for all the purposes to which legislation can apply, and preferable to a larger number. They may be divided into two or three houses, or meet in one, as in France, or in any manner a constitution shall direct.

As representation is always considered, in free countries, as the most honourable of all stations, the allowance made to it is merely to defray the expense which the representatives incur by that service, and not to it as an office.

If an allowance, at the rate of five hundred pounds per annum, be made to every representative, deducting for non-attendance, the expense, if the whole number attended for six months, each year, would be L 75,00

The official departments cannot reasonably exceed the following number, with the salaries annexed:

<i>Three offices at ten thousand pounds each</i>	<i>L 30,000</i>
<i>Ten ditto, at five thousand pounds each</i>	<i>50,000</i>

<i>Twenty ditto, at two thousand pounds each</i>	<i>40,000</i>
<i>Forty ditto, at one thousand pounds each</i>	<i>40,000</i>
<i>Two hundred ditto, at five hundred pounds each</i>	<i>100,000</i>
<i>Three hundred ditto, at two hundred pounds each</i>	<i>60,000</i>
<i>Five hundred ditto, at one hundred pounds each</i>	<i>50,000</i>
<i>Seven hundred ditto, at seventy-five pounds each</i>	<i>52,500</i>
	<i>L497,500</i>

If a nation choose, it can deduct four per cent. from all offices, and make one of twenty thousand per annum.

All revenue officers are paid out of the monies they collect, and therefore, are not in this estimation.

The foregoing is not offered as an exact detail of offices, but to show the number of rate of salaries which five hundred thousand pounds will support; and it will, on experience, be found impracticable to find business sufficient to justify even this expense. As to the manner in which office business is now performed, the Chiefs, in several offices, such as the post-office, and certain offices in the exchequer, etc., do little more than sign their names three or four times a year; and the whole duty is performed by under-clerks.

Taking, therefore, one million and a half as a sufficient peace establishment for all the honest purposes of government, which is three hundred thousand pounds more than the peace establishment in the profligate and prodigal times of Charles the Second (notwithstanding, as has been already observed, the pay and salaries of the army, navy, and revenue officers, continue the same as at that period), there will remain a surplus of upwards of six millions out of the present current expenses. The question then will be, how to dispose of this surplus.

Whoever has observed the manner in which trade and taxes twist themselves together, must be sensible of the impossibility of separating them suddenly.

First. Because the articles now on hand are already charged with the duty, and the reduction cannot take place on the present stock.

Secondly. Because, on all those articles on which the duty is charged in the gross, such as per barrel, hogshead, hundred weight, or ton, the abolition of the duty does not admit of being divided down so as fully to relieve the consumer, who purchases by the pint, or the pound. The last duty laid on strong beer and ale was three shillings per barrel, which, if taken off, would

lessen the purchase only half a farthing per pint, and consequently, would not reach to practical relief.

This being the condition of a great part of the taxes, it will be necessary to look for such others as are free from this embarrassment and where the relief will be direct and visible, and capable of immediate operation.

In the first place, then, the poor-rates are a direct tax which every house-keeper feels, and who knows also, to a farthing, the sum which he pays. The national amount of the whole of the poor-rates is not positively known, but can be procured. Sir John Sinclair, in his History of the Revenue has stated it at £2,100,587. A considerable part of which is expended in litigations, in which the poor, instead of being relieved, are tormented. The expense, however, is the same to the parish from whatever cause it arises.

In Birmingham, the amount of poor-rates is fourteen thousand pounds a year. This, though a large sum, is moderate, compared with the population. Birmingham is said to contain seventy thousand souls, and on a proportion of seventy thousand to fourteen thousand pounds poor-rates, the national amount of poor-rates, taking the population of England as seven millions, would be but one million four hundred thousand pounds. It is, therefore, most probable, that the population of Birmingham is over-rated. Fourteen thousand pounds is the proportion upon fifty thousand souls, taking two millions of poor-rates, as the national amount.

Be it, however, what it may, it is no other than the consequence of excessive burthen of taxes, for, at the time when the taxes were very low, the poor were able to maintain themselves; and there were no poor-rates.*[34](#) In the present state of things a labouring man, with a wife or two or three children, does not pay less than between seven and eight pounds a year in taxes. He is not sensible of this, because it is disguised to him in the articles which he buys, and he thinks only of their dearness; but as the taxes take from him, at least, a fourth part of his yearly earnings, he is consequently disabled from providing for a family, especially, if himself, or any of them, are afflicted with sickness.

The first step, therefore, of practical relief, would be to abolish the poor-rates entirely, and in lieu thereof, to make a remission of taxes to the poor of double the amount of the present poor-rates, viz., four millions annually out of the surplus taxes. By this measure, the poor would be benefited two millions, and the house-keepers two millions. This alone would be equal to

a reduction of one hundred and twenty millions of the National Debt, and consequently equal to the whole expense of the American War.

It will then remain to be considered, which is the most effectual mode of distributing this remission of four millions.

It is easily seen, that the poor are generally composed of large families of children, and old people past their labour. If these two classes are provided for, the remedy will so far reach to the full extent of the case, that what remains will be incidental, and, in a great measure, fall within the compass of benefit clubs, which, though of humble invention, merit to be ranked among the best of modern institutions.

Admitting England to contain seven millions of souls; if one-fifth thereof are of that class of poor which need support, the number will be one million four hundred thousand. Of this number, one hundred and forty thousand will be aged poor, as will be hereafter shown, and for which a distinct provision will be proposed.

There will then remain one million two hundred and sixty thousand which, at five souls to each family, amount to two hundred and fifty-two thousand families, rendered poor from the expense of children and the weight of taxes.

The number of children under fourteen years of age, in each of those families, will be found to be about five to every two families; some having two, and others three; some one, and others four: some none, and others five; but it rarely happens that more than five are under fourteen years of age, and after this age they are capable of service or of being apprenticed.

Allowing five children (under fourteen years) to every two families,

The number of children will be 630,000

The number of parents, were they all living, would be 504,000

It is certain, that if the children are provided for, the parents are relieved of consequence, because it is from the expense of bringing up children that their poverty arises.

Having thus ascertained the greatest number that can be supposed to need support on account of young families, I proceed to the mode of relief or distribution, which is,

To pay as a remission of taxes to every poor family, out of the surplus taxes, and in room of poor-rates, four pounds a year for every child under

fourteen years of age; enjoining the parents of such children to send them to school, to learn reading, writing, and common arithmetic; the ministers of every parish, of every denomination to certify jointly to an office, for that purpose, that this duty is performed. The amount of this expense will be,

*For six hundred and thirty thousand children
at four pounds per annum each*

L2, 520, 000

By adopting this method, not only the poverty of the parents will be relieved, but ignorance will be banished from the rising generation, and the number of poor will hereafter become less, because their abilities, by the aid of education, will be greater. Many a youth, with good natural genius, who is apprenticed to a mechanical trade, such as a carpenter, joiner, millwright, shipwright, blacksmith, etc., is prevented getting forward the whole of his life from the want of a little common education when a boy.

I now proceed to the case of the aged.

I divide age into two classes. First, the approach of age, beginning at fifty. Secondly, old age commencing at sixty.

At fifty, though the mental faculties of man are in full vigour, and his judgment better than at any preceding date, the bodily powers for laborious life are on the decline. He cannot bear the same quantity of fatigue as at an earlier period. He begins to earn less, and is less capable of enduring wind and weather; and in those more retired employments where much sight is required, he fails apace, and sees himself, like an old horse, beginning to be turned adrift.

At sixty his labour ought to be over, at least from direct necessity. It is painful to see old age working itself to death, in what are called civilised countries, for daily bread.

To form some judgment of the number of those above fifty years of age, I have several times counted the persons I met in the streets of London, men, women, and children, and have generally found that the average is about one in sixteen or seventeen. If it be said that aged persons do not come much into the streets, so neither do infants; and a great proportion of grown children are in schools and in work-shops as apprentices. Taking, then, sixteen for a divisor, the whole number of persons in England of fifty years and upwards, of both sexes, rich and poor, will be four hundred and twenty thousand.

The persons to be provided for out of this gross number will be husbandmen, common labourers, journeymen of every trade and their wives, sailors, and disbanded soldiers, worn out servants of both sexes, and poor widows.

There will be also a considerable number of middling tradesmen, who having lived decently in the former part of life, begin, as age approaches, to lose their business, and at last fall to decay.

Besides these there will be constantly thrown off from the revolutions of that wheel which no man can stop nor regulate, a number from every class of life connected with commerce and adventure.

To provide for all those accidents, and whatever else may befall, I take the number of persons who, at one time or other of their lives, after fifty years of age, may feel it necessary or comfortable to be better supported, than they can support themselves, and that not as a matter of grace and favour, but of right, at one-third of the whole number, which is one hundred and forty thousand, as stated in a previous page, and for whom a distinct provision was proposed to be made. If there be more, society, notwithstanding the show and pomposity of government, is in a deplorable condition in England.

Of this one hundred and forty thousand, I take one half, seventy thousand, to be of the age of fifty and under sixty, and the other half to be sixty years and upwards. Having thus ascertained the probable proportion of the number of aged persons, I proceed to the mode of rendering their condition comfortable, which is:

To pay to every such person of the age of fifty years, and until he shall arrive at the age of sixty, the sum of six pounds per annum out of the surplus taxes, and ten pounds per annum during life after the age of sixty. The expense of which will be,

<i>Seventy thousand persons, at L6 per annum</i>	<i>L 420,000</i>
<i>Seventy thousand persons, at L10 per annum</i>	<i>700,000</i>
	<i>L1,120,000</i>

This support, as already remarked, is not of the nature of a charity but of a right. Every person in England, male and female, pays on an average in taxes two pounds eight shillings and sixpence per annum from the day of his (or her) birth; and, if the expense of collection be added, he pays two

pounds eleven shillings and sixpence; consequently, at the end of fifty years he has paid one hundred and twenty-eight pounds fifteen shillings; and at sixty one hundred and fifty-four pounds ten shillings. Converting, therefore, his (or her) individual tax in a tontine, the money he shall receive after fifty years is but little more than the legal interest of the net money he has paid; the rest is made up from those whose circumstances do not require them to draw such support, and the capital in both cases defrays the expenses of government. It is on this ground that I have extended the probable claims to one-third of the number of aged persons in the nation.—Is it, then, better that the lives of one hundred and forty thousand aged persons be rendered comfortable, or that a million a year of public money be expended on any one individual, and him often of the most worthless or insignificant character? Let reason and justice, let honour and humanity, let even hypocrisy, sycophancy and Mr. Burke, let George, let Louis, Leopold, Frederic, Catherine, Cornwallis, or Tippoo Saib, answer the question.*[35](#)

The sum thus remitted to the poor will be,

<i>To two hundred and fifty-two thousand poor families,</i>	
<i>containing six hundred and thirty thousand children</i>	<i>L2,520,000</i>
<i>To one hundred and forty thousand aged persons</i>	<i>1,120,000</i>
	<i>L3,640,000</i>

There will then remain three hundred and sixty thousand pounds out of the four millions, part of which may be applied as follows:—

After all the above cases are provided for there will still be a number of families who, though not properly of the class of poor, yet find it difficult to give education to their children; and such children, under such a case, would be in a worse condition than if their parents were actually poor. A nation under a well-regulated government should permit none to remain uninstructed. It is monarchical and aristocratical government only that requires ignorance for its support.

Suppose, then, four hundred thousand children to be in this condition, which is a greater number than ought to be supposed after the provisions already made, the method will be:

To allow for each of those children ten shillings a year for the expense of schooling for six years each, which will give them six months schooling each year, and half a crown a year for paper and spelling books.

The expense of this will be annually L250,000.*[36](#)

There will then remain one hundred and ten thousand pounds.

Notwithstanding the great modes of relief which the best instituted and best principled government may devise, there will be a number of smaller cases, which it is good policy as well as beneficence in a nation to consider.

Were twenty shillings to be given immediately on the birth of a child, to every woman who should make the demand, and none will make it whose circumstances do not require it, it might relieve a great deal of instant distress.

There are about two hundred thousand births yearly in England; and if claimed by one fourth,

The amount would be

L50,000

And twenty shillings to every new-married couple who should claim in like manner. This would not exceed the sum of L20,000.

Also twenty thousand pounds to be appropriated to defray the funeral expenses of persons, who, travelling for work, may die at a distance from their friends. By relieving parishes from this charge, the sick stranger will be better treated.

I shall finish this part of the subject with a plan adapted to the particular condition of a metropolis, such as London.

Cases are continually occurring in a metropolis, different from those which occur in the country, and for which a different, or rather an additional, mode of relief is necessary. In the country, even in large towns, people have a knowledge of each other, and distress never rises to that extreme height it sometimes does in a metropolis. There is no such thing in the country as persons, in the literal sense of the word, starved to death, or dying with cold from the want of a lodging. Yet such cases, and others equally as miserable, happen in London.

Many a youth comes up to London full of expectations, and with little or no money, and unless he get immediate employment he is already half undone; and boys bred up in London without any means of a livelihood, and as it often happens of dissolute parents, are in a still worse condition; and servants long out of place are not much better off. In short, a world of little cases is continually arising, which busy or affluent life knows not of,

to open the first door to distress. Hunger is not among the postponable wants, and a day, even a few hours, in such a condition is often the crisis of a life of ruin.

These circumstances which are the general cause of the little thefts and pilferings that lead to greater, may be prevented. There yet remain twenty thousand pounds out of the four millions of surplus taxes, which with another fund hereafter to be mentioned, amounting to about twenty thousand pounds more, cannot be better applied than to this purpose. The plan will then be:

First, To erect two or more buildings, or take some already erected, capable of containing at least six thousand persons, and to have in each of these places as many kinds of employment as can be contrived, so that every person who shall come may find something which he or she can do.

Secondly, To receive all who shall come, without enquiring who or what they are. The only condition to be, that for so much, or so many hours' work, each person shall receive so many meals of wholesome food, and a warm lodging, at least as good as a barrack. That a certain portion of what each person's work shall be worth shall be reserved, and given to him or her, on their going away; and that each person shall stay as long or as short a time, or come as often as he choose, on these conditions.

If each person stayed three months, it would assist by rotation twenty-four thousand persons annually, though the real number, at all times, would be but six thousand. By establishing an asylum of this kind, such persons to whom temporary distresses occur, would have an opportunity to recruit themselves, and be enabled to look out for better employment.

Allowing that their labour paid but one half the expense of supporting them, after reserving a portion of their earnings for themselves, the sum of forty thousand pounds additional would defray all other charges for even a greater number than six thousand.

The fund very properly convertible to this purpose, in addition to the twenty thousand pounds, remaining of the former fund, will be the produce of the tax upon coals, so iniquitously and wantonly applied to the support of the Duke of Richmond. It is horrid that any man, more especially at the price coals now are, should live on the distresses of a community; and any government permitting such an abuse, deserves to be dismissed. This fund is said to be about twenty thousand pounds per annum.

I shall now conclude this plan with enumerating the several particulars, and then proceed to other matters.

The enumeration is as follows:—

First, Abolition of two millions poor-rates.

Secondly, Provision for two hundred and fifty thousand poor families.

Thirdly, Education for one million and thirty thousand children.

Fourthly, Comfortable provision for one hundred and forty thousand aged persons.

Fifthly, Donation of twenty shillings each for fifty thousand births.

Sixthly, Donation of twenty shillings each for twenty thousand marriages.

Seventhly, Allowance of twenty thousand pounds for the funeral expenses of persons travelling for work, and dying at a distance from their friends.

Eighthly, Employment, at all times, for the casual poor in the cities of London and Westminster.

By the operation of this plan, the poor laws, those instruments of civil torture, will be superseded, and the wasteful expense of litigation prevented. The hearts of the humane will not be shocked by ragged and hungry children, and persons of seventy and eighty years of age, begging for bread. The dying poor will not be dragged from place to place to breathe their last, as a reprisal of parish upon parish. Widows will have a maintenance for their children, and not be carted away, on the death of their husbands, like culprits and criminals; and children will no longer be considered as increasing the distresses of their parents. The haunts of the wretched will be known, because it will be to their advantage; and the number of petty crimes, the offspring of distress and poverty, will be lessened. The poor, as well as the rich, will then be interested in the support of government, and the cause and apprehension of riots and tumults will cease.—Ye who sit in ease, and solace yourselves in plenty, and such there are in Turkey and Russia, as well as in England, and who say to yourselves, "Are we not well off?" have ye thought of these things? When ye do, ye will cease to speak and feel for yourselves alone.

The plan is easy in practice. It does not embarrass trade by a sudden interruption in the order of taxes, but effects the relief by changing the application of them; and the money necessary for the purpose can be drawn

from the excise collections, which are made eight times a year in every market town in England.

Having now arranged and concluded this subject, I proceed to the next.

Taking the present current expenses at seven millions and an half, which is the least amount they are now at, there will remain (after the sum of one million and an half be taken for the new current expenses and four millions for the before-mentioned service) the sum of two millions; part of which to be applied as follows:

Though fleets and armies, by an alliance with France, will, in a great measure, become useless, yet the persons who have devoted themselves to those services, and have thereby unfitted themselves for other lines of life, are not to be sufferers by the means that make others happy. They are a different description of men from those who form or hang about a court.

A part of the army will remain, at least for some years, and also of the navy, for which a provision is already made in the former part of this plan of one million, which is almost half a million more than the peace establishment of the army and navy in the prodigal times of Charles the Second.

Suppose, then, fifteen thousand soldiers to be disbanded, and that an allowance be made to each of three shillings a week during life, clear of all deductions, to be paid in the same manner as the Chelsea College pensioners are paid, and for them to return to their trades and their friends; and also that an addition of fifteen thousand sixpences per week be made to the pay of the soldiers who shall remain; the annual expenses will be:

<i>To the pay of fifteen thousand disbanded soldiers</i>	
<i>at three shillings per week</i>	<i>L117,000</i>
<i>Additional pay to the remaining soldiers</i>	<i>19,500</i>
<i>Suppose that the pay to the officers of the</i>	
<i>disbanded corps be the same amount as sum allowed</i>	
<i>to the men</i>	<i>117,000</i>
<i>L253,500</i>	
<i>To prevent bulky estimations, admit the same sum</i>	
<i>to the disbanded navy as to the army,</i>	
<i>and the same increase of pay</i>	<i>253,500</i>
<i>Total</i>	<i>L507,000</i>

Every year some part of this sum of half a million (I omit the odd seven thousand pounds for the purpose of keeping the account unembarrassed)

will fall in, and the whole of it in time, as it is on the ground of life annuities, except the increased pay of twenty-nine thousand pounds. As it falls in, part of the taxes may be taken off; and as, for instance, when thirty thousand pounds fall in, the duty on hops may be wholly taken off; and as other parts fall in, the duties on candles and soap may be lessened, till at last they will totally cease. There now remains at least one million and a half of surplus taxes.

The tax on houses and windows is one of those direct taxes, which, like the poor-rates, is not confounded with trade; and, when taken off, the relief will be instantly felt. This tax falls heavy on the middle class of people. The amount of this tax, by the returns of 1788, was:

<i>Houses and windows:</i>	<i>L</i>	<i>s.</i>	<i>d.</i>
<i>By the act of 1766</i>	385,459	11	7
<i>By the act be 1779</i>	130,739	14	5 1/2
<i>Total</i>	516,199	6	0 1/2

If this tax be struck off, there will then remain about one million of surplus taxes; and as it is always proper to keep a sum in reserve, for incidental matters, it may be best not to extend reductions further in the first instance, but to consider what may be accomplished by other modes of reform.

Among the taxes most heavily felt is the commutation tax. I shall therefore offer a plan for its abolition, by substituting another in its place, which will effect three objects at once: 1, that of removing the burthen to where it can best be borne; 2, restoring justice among families by a distribution of property; 3, extirpating the overgrown influence arising from the unnatural law of primogeniture, which is one of the principal sources of corruption at elections. The amount of commutation tax by the returns of 1788, was L771,657.

When taxes are proposed, the country is amused by the plausible language of taxing luxuries. One thing is called a luxury at one time, and something else at another; but the real luxury does not consist in the article, but in the means of procuring it, and this is always kept out of sight.

I know not why any plant or herb of the field should be a greater luxury in one country than another; but an overgrown estate in either is a luxury at all times, and, as such, is the proper object of taxation. It is, therefore, right to take those kind tax-making gentlemen up on their own word, and argue

on the principle themselves have laid down, that of taxing luxuries. If they or their champion, Mr. Burke, who, I fear, is growing out of date, like the man in armour, can prove that an estate of twenty, thirty, or forty thousand pounds a year is not a luxury, I will give up the argument.

Admitting that any annual sum, say, for instance, one thousand pounds, is necessary or sufficient for the support of a family, consequently the second thousand is of the nature of a luxury, the third still more so, and by proceeding on, we shall at last arrive at a sum that may not improperly be called a prohibitable luxury. It would be impolitic to set bounds to property acquired by industry, and therefore it is right to place the prohibition beyond the probable acquisition to which industry can extend; but there ought to be a limit to property or the accumulation of it by bequest. It should pass in some other line. The richest in every nation have poor relations, and those often very near in consanguinity.

The following table of progressive taxation is constructed on the above principles, and as a substitute for the commutation tax. It will reach the point of prohibition by a regular operation, and thereby supersede the aristocratical law of primogeniture.

TABLE I
*A tax on all estates of the clear yearly value of L50,
after deducting the land tax, and up*

<i>To L500</i>	<i>0s</i>	<i>3d per pound</i>
<i>From L500 to L1,000</i>	<i>0</i>	<i>6</i>
<i>On the second thousand</i>	<i>0</i>	<i>9</i>
<i>On the third "</i>	<i>1</i>	<i>0</i>
<i>On the fourth "</i>	<i>1</i>	<i>6</i>
<i>On the fifth "</i>	<i>2</i>	<i>0</i>
<i>On the sixth "</i>	<i>3</i>	<i>0</i>
<i>On the seventh "</i>	<i>4</i>	<i>0</i>
<i>On the eighth "</i>	<i>5</i>	<i>0</i>
<i>On the ninth "</i>	<i>6s</i>	<i>0d per pound</i>
<i>On the tenth "</i>	<i>7</i>	<i>0</i>
<i>On the eleventh "</i>	<i>8</i>	<i>0</i>
<i>On the twelfth "</i>	<i>9</i>	<i>0</i>
<i>On the thirteenth "</i>	<i>10</i>	<i>0</i>
<i>On the fourteenth "</i>	<i>11</i>	<i>0</i>
<i>On the fifteenth "</i>	<i>12</i>	<i>0</i>
<i>On the sixteenth "</i>	<i>13</i>	<i>0</i>
<i>On the seventeenth "</i>	<i>14</i>	<i>0</i>
<i>On the eighteenth "</i>	<i>15</i>	<i>0</i>
<i>On the nineteenth "</i>	<i>16</i>	<i>0</i>
<i>On the twentieth "</i>	<i>17</i>	<i>0</i>
<i>On the twenty-first "</i>	<i>18</i>	<i>0</i>
<i>On the twenty-second "</i>	<i>19</i>	<i>0</i>
<i>On the twenty-third "</i>	<i>20</i>	<i>0</i>

The foregoing table shows the progression per pound on every progressive thousand. The following table shows the amount of the tax on every thousand separately, and in the last column the total amount of all the separate sums collected.

TABLE II

An estate of:

L 50 per annum	at 3d per pound pays	L0	12	6
100 " "	" "	1	5	0
200 " "	" "	2	10	0
300 " "	" "	3	15	0
400 " "	" "	5	0	0
500 " "	" "	7	5	0

After L500, the tax of 6d. per pound takes place on the second L500; consequently an estate of L1,000 per annum pays L2l, 15s., and so on.

				Total amount	
For the 1st L500 at	0s	3d per pound	L7	5s	
2nd " "	0	6	14	10	L21 15s
2nd 1000 at	0	9	37	11	59 5
3rd " "	1	0	50	0	109 5
(Total amount)					
4th 1000 at	1s	6d per pound	L75	0s	L184 5s
5th " "	2	0	100	0	284 5
6th " "	3	0	150	0	434 5
7th " "	4	0	200	0	634 5
8th " "	5	0	250	0	880 5
9th " "	6	0	300	0	1100 5
10th " "	7	0	350	0	1530 5
11th " "	8	0	400	0	1930 5
12th " "	9	0	450	0	2380 5
13th " "	10	0	500	0	2880 5
14th " "	11	0	550	0	3430 5
15th " "	12	0	600	0	4030 5
16th " "	13	0	650	0	4680 5
17th " "	14	0	700	0	5380 5
18th " "	15	0	750	0	6130 5
19th " "	16	0	800	0	6930 5
20th " "	17	0	850	0	7780 5
21st " "	18	0	900	0	8680 5
(Total amount)					
22nd 1000 at	19s	0d per pound	L950	0s	L9630 5s
23rd " "	20	0	1000	0	10630 5

At the twenty-third thousand the tax becomes 20s. in the pound, and consequently every thousand beyond that sum can produce no profit but by dividing the estate. Yet formidable as this tax appears, it will not, I believe, produce so much as the commutation tax; should it produce more, it ought to be lowered to that amount upon estates under two or three thousand a year.

On small and middling estates it is lighter (as it is intended to be) than the commutation tax. It is not till after seven or eight thousand a year that it begins to be heavy. The object is not so much the produce of the tax as the justice of the measure. The aristocracy has screened itself too much, and this serves to restore a part of the lost equilibrium.

As an instance of its screening itself, it is only necessary to look back to the first establishment of the excise laws, at what is called the Restoration, or the coming of Charles the Second. The aristocratical interest then in power, commuted the feudal services itself was under, by laying a tax on beer brewed for sale; that is, they compounded with Charles for an exemption from those services for themselves and their heirs, by a tax to be paid by other people. The aristocracy do not purchase beer brewed for sale, but brew their own beer free of the duty, and if any commutation at that time were necessary, it ought to have been at the expense of those for whom the exemptions from those services were intended;*[37](#) instead of which, it was thrown on an entirely different class of men.

But the chief object of this progressive tax (besides the justice of rendering taxes more equal than they are) is, as already stated, to extirpate the overgrown influence arising from the unnatural law of primogeniture, and which is one of the principal sources of corruption at elections.

It would be attended with no good consequences to enquire how such vast estates as thirty, forty, or fifty thousand a year could commence, and that at a time when commerce and manufactures were not in a state to admit of such acquisitions. Let it be sufficient to remedy the evil by putting them in a condition of descending again to the community by the quiet means of apportioning them among all the heirs and heiresses of those families. This will be the more necessary, because hitherto the aristocracy have quartered their younger children and connections upon the public in useless posts, places and offices, which when abolished will leave them destitute, unless the law of primogeniture be also abolished or superseded.

A progressive tax will, in a great measure, effect this object, and that as a matter of interest to the parties most immediately concerned, as will be seen by the following table; which shows the net produce upon every estate, after subtracting the tax. By this it will appear that after an estate exceeds thirteen or fourteen thousand a year, the remainder produces but little profit

to the holder, and consequently, Will pass either to the younger children, or to other kindred.

TABLE III
Showing the net produce of every estate from one thousand to twenty-three thousand pounds a year

<i>No of thousand per annum</i>	<i>Total tax subtracted</i>	<i>Net produce</i>
L1000	L21	L979
2000	59	1941
3000	109	2891
4000	184	3816
5000	284	4716
6000	434	5566
7000	634	6366
8000	880	7120
9000	1100	7900
10,000	1530	8470
11,000	1930	9070
12,000	2380	9620
13,000	2880	10,120
<i>(No of thousand per annum)</i>	<i>(Total tax subtracted)</i>	<i>(Net produce)</i>
14,000	3430	10,570
15,000	4030	10,970
16,000	4680	11,320
17,000	5380	11,620
18,000	6130	11,870
19,000	6930	12,170
20,000	7780	12,220
21,000	8680	12,320
22,000	9630	12,370
23,000	10,630	12,370

N.B. The odd shillings are dropped in this table.

According to this table, an estate cannot produce more than L12,370 clear of the land tax and the progressive tax, and therefore the dividing such estates will follow as a matter of family interest. An estate of L23,000 a year, divided into five estates of four thousand each and one of three, will be charged only L1,129 which is but five per cent., but if held by one possessor, will be charged L10,630.

Although an enquiry into the origin of those estates be unnecessary, the continuation of them in their present state is another subject. It is a matter of national concern. As hereditary estates, the law has created the evil, and it ought also to provide the remedy. Primogeniture ought to be abolished, not only because it is unnatural and unjust, but because the country suffers by its operation. By cutting off (as before observed) the younger children from their proper portion of inheritance, the public is loaded with the expense of

maintaining them; and the freedom of elections violated by the overbearing influence which this unjust monopoly of family property produces. Nor is this all. It occasions a waste of national property. A considerable part of the land of the country is rendered unproductive, by the great extent of parks and chases which this law serves to keep up, and this at a time when the annual production of grain is not equal to the national consumption.*[38](#)—In short, the evils of the aristocratical system are so great and numerous, so inconsistent with every thing that is just, wise, natural, and beneficent, that when they are considered, there ought not to be a doubt that many, who are now classed under that description, will wish to see such a system abolished.

What pleasure can they derive from contemplating the exposed condition, and almost certain beggary of their younger offspring? Every aristocratical family has an appendage of family beggars hanging round it, which in a few ages, or a few generations, are shook off, and console themselves with telling their tale in almshouses, workhouses, and prisons. This is the natural consequence of aristocracy. The peer and the beggar are often of the same family. One extreme produces the other: to make one rich many must be made poor; neither can the system be supported by other means.

There are two classes of people to whom the laws of England are particularly hostile, and those the most helpless; younger children, and the poor. Of the former I have just spoken; of the latter I shall mention one instance out of the many that might be produced, and with which I shall close this subject.

Several laws are in existence for regulating and limiting work-men's wages. Why not leave them as free to make their own bargains, as the law-makers are to let their farms and houses? Personal labour is all the property they have. Why is that little, and the little freedom they enjoy, to be infringed? But the injustice will appear stronger, if we consider the operation and effect of such laws. When wages are fixed by what is called a law, the legal wages remain stationary, while every thing else is in progression; and as those who make that law still continue to lay on new taxes by other laws, they increase the expense of living by one law, and take away the means by another.

But if these gentlemen law-makers and tax-makers thought it right to limit the poor pittance which personal labour can produce, and on which a whole family is to be supported, they certainly must feel themselves happily indulged in a limitation on their own part, of not less than twelve thousand a-year, and that of property they never acquired (nor probably any of their ancestors), and of which they have made never acquire so ill a use.

Having now finished this subject, I shall bring the several particulars into one view, and then proceed to other matters.

The first eight articles, mentioned earlier, are;

1. Abolition of two millions poor-rates.
2. Provision for two hundred and fifty-two thousand poor families, at the rate of four pounds per head for each child under fourteen years of age; which, with the addition of two hundred and fifty thousand pounds, provides also education for one million and thirty thousand children.
3. Annuity of six pounds (per annum) each for all poor persons, decayed tradesmen, and others (supposed seventy thousand) of the age of fifty years, and until sixty.
4. Annuity of ten pounds each for life for all poor persons, decayed tradesmen, and others (supposed seventy thousand) of the age of sixty years.
5. Donation of twenty shillings each for fifty thousand births.
6. Donation of twenty shillings each for twenty thousand marriages.
7. Allowance of twenty thousand pounds for the funeral expenses of persons travelling for work, and dying at a distance from their friends.
8. Employment at all times for the casual poor in the cities of London and Westminster.

Second Enumeration

9. Abolition of the tax on houses and windows.
10. Allowance of three shillings per week for life to fifteen thousand disbanded soldiers, and a proportionate allowance to the officers of the disbanded corps.
11. Increase of pay to the remaining soldiers of L19,500 annually.
12. The same allowance to the disbanded navy, and the same increase of pay, as to the army.

13. Abolition of the commutation tax.

14. Plan of a progressive tax, operating to extirpate the unjust and unnatural law of primogeniture, and the vicious influence of the aristocratical system.*[39](#)

There yet remains, as already stated, one million of surplus taxes. Some part of this will be required for circumstances that do not immediately present themselves, and such part as shall not be wanted, will admit of a further reduction of taxes equal to that amount.

Among the claims that justice requires to be made, the condition of the inferior revenue-officers will merit attention. It is a reproach to any government to waste such an immensity of revenue in sinecures and nominal and unnecessary places and officers, and not allow even a decent livelihood to those on whom the labour falls. The salary of the inferior officers of the revenue has stood at the petty pittance of less than fifty pounds a year for upwards of one hundred years. It ought to be seventy. About one hundred and twenty thousand pounds applied to this purpose, will put all those salaries in a decent condition.

This was proposed to be done almost twenty years ago, but the treasury-board then in being, startled at it, as it might lead to similar expectations from the army and navy; and the event was, that the King, or somebody for him, applied to parliament to have his own salary raised an hundred thousand pounds a year, which being done, every thing else was laid aside.

With respect to another class of men, the inferior clergy, I forbear to enlarge on their condition; but all partialities and prejudices for, or against, different modes and forms of religion aside, common justice will determine, whether there ought to be an income of twenty or thirty pounds a year to one man, and of ten thousand to another. I speak on this subject with the more freedom, because I am known not to be a Presbyterian; and therefore the cant cry of court sycophants, about church and meeting, kept up to amuse and bewilder the nation, cannot be raised against me.

Ye simple men on both sides the question, do you not see through this courtly craft? If ye can be kept disputing and wrangling about church and meeting, ye just answer the purpose of every courtier, who lives the while on the spoils of the taxes, and laughs at your credulity. Every religion is good that teaches man to be good; and I know of none that instructs him to be bad.

All the before-mentioned calculations suppose only sixteen millions and an half of taxes paid into the exchequer, after the expense of collection and drawbacks at the custom-house and excise-office are deducted; whereas the sum paid into the exchequer is very nearly, if not quite, seventeen millions. The taxes raised in Scotland and Ireland are expended in those countries, and therefore their savings will come out of their own taxes; but if any part be paid into the English exchequer, it might be remitted. This will not make one hundred thousand pounds a year difference.

There now remains only the national debt to be considered. In the year 1789, the interest, exclusive of the tontine, was L9,150,138. How much the capital has been reduced since that time the minister best knows. But after paying the interest, abolishing the tax on houses and windows, the commutation tax, and the poor-rates; and making all the provisions for the poor, for the education of children, the support of the aged, the disbanded part of the army and navy, and increasing the pay of the remainder, there will be a surplus of one million.

The present scheme of paying off the national debt appears to me, speaking as an indifferent person, to be an ill-concerted, if not a fallacious job. The burthen of the national debt consists not in its being so many millions, or so many hundred millions, but in the quantity of taxes collected every year to pay the interest. If this quantity continues the same, the burthen of the national debt is the same to all intents and purposes, be the capital more or less. The only knowledge which the public can have of the reduction of the debt, must be through the reduction of taxes for paying the interest. The debt, therefore, is not reduced one farthing to the public by all the millions that have been paid; and it would require more money now to purchase up the capital, than when the scheme began.

Digressing for a moment at this point, to which I shall return again, I look back to the appointment of Mr. Pitt, as minister.

I was then in America. The war was over; and though resentment had ceased, memory was still alive.

When the news of the coalition arrived, though it was a matter of no concern to I felt it as a man. It had something in it which shocked, by publicly sporting with decency, if not with principle. It was impudence in Lord North; it was a want of firmness in Mr. Fox.

Mr. Pitt was, at that time, what may be called a maiden character in politics. So far from being hackneyed, he appeared not to be initiated into the first mysteries of court intrigue. Everything was in his favour. Resentment against the coalition served as friendship to him, and his ignorance of vice was credited for virtue. With the return of peace, commerce and prosperity would rise of itself; yet even this increase was thrown to his account.

When he came to the helm, the storm was over, and he had nothing to interrupt his course. It required even ingenuity to be wrong, and he succeeded. A little time showed him the same sort of man as his predecessors had been. Instead of profiting by those errors which had accumulated a burthen of taxes unparalleled in the world, he sought, I might almost say, he advertised for enemies, and provoked means to increase taxation. Aiming at something, he knew not what, he ransacked Europe and India for adventures, and abandoning the fair pretensions he began with, he became the knight-errant of modern times.

It is unpleasant to see character throw itself away. It is more so to see one's-self deceived. Mr. Pitt had merited nothing, but he promised much. He gave symptoms of a mind superior to the meanness and corruption of courts. His apparent candour encouraged expectations; and the public confidence, stunned, wearied, and confounded by a chaos of parties, revived and attached itself to him. But mistaking, as he has done, the disgust of the nation against the coalition, for merit in himself, he has rushed into measures which a man less supported would not have presumed to act.

All this seems to show that change of ministers amounts to nothing. One goes out, another comes in, and still the same measures, vices, and extravagance are pursued. It signifies not who is minister. The defect lies in the system. The foundation and the superstructure of the government is bad. Prop it as you please, it continually sinks into court government, and ever will.

I return, as I promised, to the subject of the national debt, that offspring of the Dutch-Anglo revolution, and its handmaid the Hanover succession.

But it is now too late to enquire how it began. Those to whom it is due have advanced the money; and whether it was well or ill spent, or pocketed, is not their crime. It is, however, easy to see, that as the nation proceeds in

contemplating the nature and principles of government, and to understand taxes, and make comparisons between those of America, France, and England, it will be next to impossible to keep it in the same torpid state it has hitherto been. Some reform must, from the necessity of the case, soon begin. It is not whether these principles press with little or much force in the present moment. They are out. They are abroad in the world, and no force can stop them. Like a secret told, they are beyond recall; and he must be blind indeed that does not see that a change is already beginning.

Nine millions of dead taxes is a serious thing; and this not only for bad, but in a great measure for foreign government. By putting the power of making war into the hands of the foreigners who came for what they could get, little else was to be expected than what has happened.

Reasons are already advanced in this work, showing that whatever the reforms in the taxes may be, they ought to be made in the current expenses of government, and not in the part applied to the interest of the national debt. By remitting the taxes of the poor, they will be totally relieved, and all discontent will be taken away; and by striking off such of the taxes as are already mentioned, the nation will more than recover the whole expense of the mad American war.

There will then remain only the national debt as a subject of discontent; and in order to remove, or rather to prevent this, it would be good policy in the stockholders themselves to consider it as property, subject like all other property, to bear some portion of the taxes. It would give to it both popularity and security, and as a great part of its present inconvenience is balanced by the capital which it keeps alive, a measure of this kind would so far add to that balance as to silence objections.

This may be done by such gradual means as to accomplish all that is necessary with the greatest ease and convenience.

Instead of taxing the capital, the best method would be to tax the interest by some progressive ratio, and to lessen the public taxes in the same proportion as the interest diminished.

Suppose the interest was taxed one halfpenny in the pound the first year, a penny more the second, and to proceed by a certain ratio to be determined upon, always less than any other tax upon property. Such a tax would be subtracted from the interest at the time of payment, without any expense of collection.

One halfpenny in the pound would lessen the interest and consequently the taxes, twenty thousand pounds. The tax on wagons amounts to this sum, and this tax might be taken off the first year. The second year the tax on female servants, or some other of the like amount might also be taken off, and by proceeding in this manner, always applying the tax raised from the property of the debt toward its extinction, and not carry it to the current services, it would liberate itself.

The stockholders, notwithstanding this tax, would pay less taxes than they do now. What they would save by the extinction of the poor-rates, and the tax on houses and windows, and the commutation tax, would be considerably greater than what this tax, slow, but certain in its operation, amounts to.

It appears to me to be prudence to look out for measures that may apply under any circumstances that may approach. There is, at this moment, a crisis in the affairs of Europe that requires it. Preparation now is wisdom. If taxation be once let loose, it will be difficult to re-instate it; neither would the relief be so effectual, as if it proceeded by some certain and gradual reduction.

The fraud, hypocrisy, and imposition of governments, are now beginning to be too well understood to promise them any long career. The farce of monarchy and aristocracy, in all countries, is following that of chivalry, and Mr. Burke is dressing aristocracy, in all countries, is following that of chivalry, and Mr. Burke is dressing for the funeral. Let it then pass quietly to the tomb of all other follies, and the mourners be comforted.

The time is not very distant when England will laugh at itself for sending to Holland, Hanover, Zell, or Brunswick for men, at the expense of a million a year, who understood neither her laws, her language, nor her interest, and whose capacities would scarcely have fitted them for the office of a parish constable. If government could be trusted to such hands, it must be some easy and simple thing indeed, and materials fit for all the purposes may be found in every town and village in England.

When it shall be said in any country in the world, my poor are happy; neither ignorance nor distress is to be found among them; my jails are empty of prisoners, my streets of beggars; the aged are not in want, the taxes are not oppressive; the rational world is my friend, because I am the

friend of its happiness: when these things can be said, then may that country boast its constitution and its government.

Within the space of a few years we have seen two revolutions, those of America and France. In the former, the contest was long, and the conflict severe; in the latter, the nation acted with such a consolidated impulse, that having no foreign enemy to contend with, the revolution was complete in power the moment it appeared. From both those instances it is evident, that the greatest forces that can be brought into the field of revolutions, are reason and common interest. Where these can have the opportunity of acting, opposition dies with fear, or crumbles away by conviction. It is a great standing which they have now universally obtained; and we may hereafter hope to see revolutions, or changes in governments, produced with the same quiet operation by which any measure, determinable by reason and discussion, is accomplished.

When a nation changes its opinion and habits of thinking, it is no longer to be governed as before; but it would not only be wrong, but bad policy, to attempt by force what ought to be accomplished by reason. Rebellion consists in forcibly opposing the general will of a nation, whether by a party or by a government. There ought, therefore, to be in every nation a method of occasionally ascertaining the state of public opinion with respect to government. On this point the old government of France was superior to the present government of England, because, on extraordinary occasions, recourse could be had what was then called the States General. But in England there are no such occasional bodies; and as to those who are now called Representatives, a great part of them are mere machines of the court, placemen, and dependants.

I presume, that though all the people of England pay taxes, not an hundredth part of them are electors, and the members of one of the houses of parliament represent nobody but themselves. There is, therefore, no power but the voluntary will of the people that has a right to act in any matter respecting a general reform; and by the same right that two persons can confer on such a subject, a thousand may. The object, in all such preliminary proceedings, is to find out what the general sense of a nation is, and to be governed by it. If it prefer a bad or defective government to a reform or choose to pay ten times more taxes than there is any occasion for, it has a right so to do; and so long as the majority do not impose conditions

on the minority, different from what they impose upon themselves, though there may be much error, there is no injustice. Neither will the error continue long. Reason and discussion will soon bring things right, however wrong they may begin. By such a process no tumult is to be apprehended. The poor, in all countries, are naturally both peaceable and grateful in all reforms in which their interest and happiness is included. It is only by neglecting and rejecting them that they become tumultuous.

The objects that now press on the public attention are, the French revolution, and the prospect of a general revolution in governments. Of all nations in Europe there is none so much interested in the French revolution as England. Enemies for ages, and that at a vast expense, and without any national object, the opportunity now presents itself of amicably closing the scene, and joining their efforts to reform the rest of Europe. By doing this they will not only prevent the further effusion of blood, and increase of taxes, but be in a condition of getting rid of a considerable part of their present burthens, as has been already stated. Long experience however has shown, that reforms of this kind are not those which old governments wish to promote, and therefore it is to nations, and not to such governments, that these matters present themselves.

In the preceding part of this work, I have spoken of an alliance between England, France, and America, for purposes that were to be afterwards mentioned. Though I have no direct authority on the part of America, I have good reason to conclude, that she is disposed to enter into a consideration of such a measure, provided, that the governments with which she might ally, acted as national governments, and not as courts enveloped in intrigue and mystery. That France as a nation, and a national government, would prefer an alliance with England, is a matter of certainty. Nations, like individuals, who have long been enemies, without knowing each other, or knowing why, become the better friends when they discover the errors and impositions under which they had acted.

Admitting, therefore, the probability of such a connection, I will state some matters by which such an alliance, together with that of Holland, might render service, not only to the parties immediately concerned, but to all Europe.

It is, I think, certain, that if the fleets of England, France, and Holland were confederated, they could propose, with effect, a limitation to, and a

general dismantling of, all the navies in Europe, to a certain proportion to be agreed upon.

First, That no new ship of war shall be built by any power in Europe, themselves included.

Second, That all the navies now in existence shall be put back, suppose to one-tenth of their present force. This will save to France and England, at least two millions sterling annually to each, and their relative force be in the same proportion as it is now. If men will permit themselves to think, as rational beings ought to think, nothing can appear more ridiculous and absurd, exclusive of all moral reflections, than to be at the expense of building navies, filling them with men, and then hauling them into the ocean, to try which can sink each other fastest. Peace, which costs nothing, is attended with infinitely more advantage, than any victory with all its expense. But this, though it best answers the purpose of nations, does not that of court governments, whose habited policy is pretence for taxation, places, and offices.

It is, I think, also certain, that the above confederated powers, together with that of the United States of America, can propose with effect, to Spain, the independence of South America, and the opening those countries of immense extent and wealth to the general commerce of the world, as North America now is.

With how much more glory, and advantage to itself, does a nation act, when it exerts its powers to rescue the world from bondage, and to create itself friends, than when it employs those powers to increase ruin, desolation, and misery. The horrid scene that is now acting by the English government in the East-Indies, is fit only to be told of Goths and Vandals, who, destitute of principle, robbed and tortured the world they were incapable of enjoying.

The opening of South America would produce an immense field of commerce, and a ready money market for manufactures, which the eastern world does not. The East is already a country full of manufactures, the importation of which is not only an injury to the manufactures of England, but a drain upon its specie. The balance against England by this trade is regularly upwards of half a million annually sent out in the East-India ships in silver; and this is the reason, together with German intrigue, and German subsidies, that there is so little silver in England.

But any war is harvest to such governments, however ruinous it may be to a nation. It serves to keep up deceitful expectations which prevent people from looking into the defects and abuses of government. It is the lo here! and the lo there! that amuses and cheats the multitude.

Never did so great an opportunity offer itself to England, and to all Europe, as is produced by the two Revolutions of America and France. By the former, freedom has a national champion in the western world; and by the latter, in Europe. When another nation shall join France, despotism and bad government will scarcely dare to appear. To use a trite expression, the iron is becoming hot all over Europe. The insulted German and the enslaved Spaniard, the Russ and the Pole, are beginning to think. The present age will hereafter merit to be called the Age of Reason, and the present generation will appear to the future as the Adam of a new world.

When all the governments of Europe shall be established on the representative system, nations will become acquainted, and the animosities and prejudices fomented by the intrigue and artifice of courts, will cease. The oppressed soldier will become a freeman; and the tortured sailor, no longer dragged through the streets like a felon, will pursue his mercantile voyage in safety. It would be better that nations should continue the pay of their soldiers during their lives, and give them their discharge and restore them to freedom and their friends, and cease recruiting, than retain such multitudes at the same expense, in a condition useless to society and to themselves. As soldiers have hitherto been treated in most countries, they might be said to be without a friend. Shunned by the citizen on an apprehension of their being enemies to liberty, and too often insulted by those who commanded them, their condition was a double oppression. But where genuine principles of liberty pervade a people, every thing is restored to order; and the soldier civilly treated, returns the civility.

In contemplating revolutions, it is easy to perceive that they may arise from two distinct causes; the one, to avoid or get rid of some great calamity; the other, to obtain some great and positive good; and the two may be distinguished by the names of active and passive revolutions. In those which proceed from the former cause, the temper becomes incensed and soured; and the redress, obtained by danger, is too often sullied by revenge. But in those which proceed from the latter, the heart, rather animated than agitated, enters serenely upon the subject. Reason and discussion,

persuasion and conviction, become the weapons in the contest, and it is only when those are attempted to be suppressed that recourse is had to violence. When men unite in agreeing that a thing is good, could it be obtained, such for instance as relief from a burden of taxes and the extinction of corruption, the object is more than half accomplished. What they approve as the end, they will promote in the means.

Will any man say, in the present excess of taxation, falling so heavily on the poor, that a remission of five pounds annually of taxes to one hundred and four thousand poor families is not a good thing? Will he say that a remission of seven pounds annually to one hundred thousand other poor families—of eight pounds annually to another hundred thousand poor families, and of ten pounds annually to fifty thousand poor and widowed families, are not good things? And, to proceed a step further in this climax, will he say that to provide against the misfortunes to which all human life is subject, by securing six pounds annually for all poor, distressed, and reduced persons of the age of fifty and until sixty, and of ten pounds annually after sixty, is not a good thing?

Will he say that an abolition of two millions of poor-rates to the house-keepers, and of the whole of the house and window-light tax and of the commutation tax is not a good thing? Or will he say that to abolish corruption is a bad thing?

If, therefore, the good to be obtained be worthy of a passive, rational, and costless revolution, it would be bad policy to prefer waiting for a calamity that should force a violent one. I have no idea, considering the reforms which are now passing and spreading throughout Europe, that England will permit herself to be the last; and where the occasion and the opportunity quietly offer, it is better than to wait for a turbulent necessity. It may be considered as an honour to the animal faculties of man to obtain redress by courage and danger, but it is far greater honour to the rational faculties to accomplish the same object by reason, accommodation, and general consent.*[40](#)

As reforms, or revolutions, call them which you please, extend themselves among nations, those nations will form connections and conventions, and when a few are thus confederated, the progress will be rapid, till despotism and corrupt government be totally expelled, at least out of two quarters of the world, Europe and America. The Algerine piracy may

then be commanded to cease, for it is only by the malicious policy of old governments, against each other, that it exists.

Throughout this work, various and numerous as the subjects are, which I have taken up and investigated, there is only a single paragraph upon religion, viz. "that every religion is good that teaches man to be good."

I have carefully avoided to enlarge upon the subject, because I am inclined to believe that what is called the present ministry, wish to see contentions about religion kept up, to prevent the nation turning its attention to subjects of government. It is as if they were to say, "Look that way, or any way, but this."

But as religion is very improperly made a political machine, and the reality of it is thereby destroyed, I will conclude this work with stating in what light religion appears to me.

If we suppose a large family of children, who, on any particular day, or particular circumstance, made it a custom to present to their parents some token of their affection and gratitude, each of them would make a different offering, and most probably in a different manner. Some would pay their congratulations in themes of verse and prose, by some little devices, as their genius dictated, or according to what they thought would please; and, perhaps, the least of all, not able to do any of those things, would ramble into the garden, or the field, and gather what it thought the prettiest flower it could find, though, perhaps, it might be but a simple weed. The parent would be more gratified by such a variety, than if the whole of them had acted on a concerted plan, and each had made exactly the same offering. This would have the cold appearance of contrivance, or the harsh one of control. But of all unwelcome things, nothing could more afflict the parent than to know, that the whole of them had afterwards gotten together by the ears, boys and girls, fighting, scratching, reviling, and abusing each other about which was the best or the worst present.

Why may we not suppose, that the great Father of all is pleased with variety of devotion; and that the greatest offence we can act, is that by which we seek to torment and render each other miserable? For my own part, I am fully satisfied that what I am now doing, with an endeavour to conciliate mankind, to render their condition happy, to unite nations that have hitherto been enemies, and to extirpate the horrid practice of war, and

break the chains of slavery and oppression is acceptable in his sight, and being the best service I can perform, I act it cheerfully.

I do not believe that any two men, on what are called doctrinal points, think alike who think at all. It is only those who have not thought that appear to agree. It is in this case as with what is called the British constitution. It has been taken for granted to be good, and encomiums have supplied the place of proof. But when the nation comes to examine into its principles and the abuses it admits, it will be found to have more defects than I have pointed out in this work and the former.

As to what are called national religions, we may, with as much propriety, talk of national Gods. It is either political craft or the remains of the Pagan system, when every nation had its separate and particular deity. Among all the writers of the English church clergy, who have treated on the general subject of religion, the present Bishop of Llandaff has not been excelled, and it is with much pleasure that I take this opportunity of expressing this token of respect.

I have now gone through the whole of the subject, at least, as far as it appears to me at present. It has been my intention for the five years I have been in Europe, to offer an address to the people of England on the subject of government, if the opportunity presented itself before I returned to America. Mr. Burke has thrown it in my way, and I thank him. On a certain occasion, three years ago, I pressed him to propose a national convention, to be fairly elected, for the purpose of taking the state of the nation into consideration; but I found, that however strongly the parliamentary current was then setting against the party he acted with, their policy was to keep every thing within that field of corruption, and trust to accidents. Long experience had shown that parliaments would follow any change of ministers, and on this they rested their hopes and their expectations.

Formerly, when divisions arose respecting governments, recourse was had to the sword, and a civil war ensued. That savage custom is exploded by the new system, and reference is had to national conventions. Discussion and the general will arbitrates the question, and to this, private opinion yields with a good grace, and order is preserved uninterrupted.

Some gentlemen have affected to call the principles upon which this work and the former part of Rights of Man are founded, "a new-fangled doctrine." The question is not whether those principles are new or old, but

whether they are right or wrong. Suppose the former, I will show their effect by a figure easily understood.

It is now towards the middle of February. Were I to take a turn into the country, the trees would present a leafless, wintery appearance. As people are apt to pluck twigs as they walk along, I perhaps might do the same, and by chance might observe, that a single bud on that twig had begun to swell. I should reason very unnaturally, or rather not reason at all, to suppose this was the only bud in England which had this appearance. Instead of deciding thus, I should instantly conclude, that the same appearance was beginning, or about to begin, every where; and though the vegetable sleep will continue longer on some trees and plants than on others, and though some of them may not blossom for two or three years, all will be in leaf in the summer, except those which are rotten. What pace the political summer may keep with the natural, no human foresight can determine. It is, however, not difficult to perceive that the spring is begun.—Thus wishing, as I sincerely do, freedom and happiness to all nations, I close the Second Part.

APPENDIX

As the publication of this work has been delayed beyond the time intended, I think it not improper, all circumstances considered, to state the causes that have occasioned delay.

The reader will probably observe, that some parts in the plan contained in this work for reducing the taxes, and certain parts in Mr. Pitt's speech at the opening of the present session, Tuesday, January 31, are so much alike as to induce a belief, that either the author had taken the hint from Mr. Pitt, or Mr. Pitt from the author.—I will first point out the parts that are similar, and then state such circumstances as I am acquainted with, leaving the reader to make his own conclusion.

Considering it as almost an unprecedented case, that taxes should be proposed to be taken off, it is equally extraordinary that such a measure should occur to two persons at the same time; and still more so (considering the vast variety and multiplicity of taxes) that they should hit on the same specific taxes. Mr. Pitt has mentioned, in his speech, the tax on Carts and Wagons—that on Female Servants—the lowering the tax on Candles and the taking off the tax of three shillings on Houses having under seven windows.

Every one of those specific taxes are a part of the plan contained in this work, and proposed also to be taken off. Mr. Pitt's plan, it is true, goes no further than to a reduction of three hundred and twenty thousand pounds; and the reduction proposed in this work, to nearly six millions. I have made my calculations on only sixteen millions and an half of revenue, still asserting that it was "very nearly, if not quite, seventeen millions." Mr. Pitt states it at 16,690,000. I know enough of the matter to say, that he has not overstated it. Having thus given the particulars, which correspond in this work and his speech, I will state a chain of circumstances that may lead to some explanation.

The first hint for lessening the taxes, and that as a consequence flowing from the French revolution, is to be found in the Address and Declaration of the Gentlemen who met at the Thatched-House Tavern, August 20, 1791. Among many other particulars stated in that Address, is the following, put

as an interrogation to the government opposers of the French Revolution. "Are they sorry that the pretence for new oppressive taxes, and the occasion for continuing many old taxes will be at an end?"

It is well known that the persons who chiefly frequent the Thatched-House Tavern, are men of court connections, and so much did they take this Address and Declaration respecting the French Revolution, and the reduction of taxes in disgust, that the Landlord was under the necessity of informing the Gentlemen, who composed the meeting of the 20th of August, and who proposed holding another meeting, that he could not receive them.*[41](#)

What was only hinted in the Address and Declaration respecting taxes and principles of government, will be found reduced to a regular system in this work. But as Mr. Pitt's speech contains some of the same things respecting taxes, I now come to give the circumstances before alluded to.

The case is: This work was intended to be published just before the meeting of Parliament, and for that purpose a considerable part of the copy was put into the printer's hands in September, and all the remaining copy, which contains the part to which Mr. Pitt's speech is similar, was given to him full six weeks before the meeting of Parliament, and he was informed of the time at which it was to appear. He had composed nearly the whole about a fortnight before the time of Parliament meeting, and had given me a proof of the next sheet. It was then in sufficient forwardness to be out at the time proposed, as two other sheets were ready for striking off. I had before told him, that if he thought he should be straitened for time, I could get part of the work done at another press, which he desired me not to do. In this manner the work stood on the Tuesday fortnight preceding the meeting of Parliament, when all at once, without any previous intimation, though I had been with him the evening before, he sent me, by one of his workmen, all the remaining copy, declining to go on with the work on any consideration.

To account for this extraordinary conduct I was totally at a loss, as he stopped at the part where the arguments on systems and principles of government closed, and where the plan for the reduction of taxes, the education of children, and the support of the poor and the aged begins; and still more especially, as he had, at the time of his beginning to print, and before he had seen the whole copy, offered a thousand pounds for the copy-right, together with the future copy-right of the former part of the Rights of

Man. I told the person who brought me this offer that I should not accept it, and wished it not to be renewed, giving him as my reason, that though I believed the printer to be an honest man, I would never put it in the power of any printer or publisher to suppress or alter a work of mine, by making him master of the copy, or give to him the right of selling it to any minister, or to any other person, or to treat as a mere matter of traffic, that which I intended should operate as a principle.

His refusal to complete the work (which he could not purchase) obliged me to seek for another printer, and this of consequence would throw the publication back till after the meeting of Parliament, otherways it would have appeared that Mr. Pitt had only taken up a part of the plan which I had more fully stated.

Whether that gentleman, or any other, had seen the work, or any part of it, is more than I have authority to say. But the manner in which the work was returned, and the particular time at which this was done, and that after the offers he had made, are suspicious circumstances. I know what the opinion of booksellers and publishers is upon such a case, but as to my own opinion, I choose to make no declaration. There are many ways by which proof sheets may be procured by other persons before a work publicly appears; to which I shall add a certain circumstance, which is,

A ministerial bookseller in Piccadilly who has been employed, as common report says, by a clerk of one of the boards closely connected with the ministry (the board of trade and plantation, of which Hawkesbury is president) to publish what he calls my Life, (I wish his own life and those of the cabinet were as good), used to have his books printed at the same printing-office that I employed; but when the former part of Rights of Man came out, he took his work away in dudgeon; and about a week or ten days before the printer returned my copy, he came to make him an offer of his work again, which was accepted. This would consequently give him admission into the printing-office where the sheets of this work were then lying; and as booksellers and printers are free with each other, he would have the opportunity of seeing what was going on.—Be the case, however, as it may, Mr. Pitt's plan, little and diminutive as it is, would have made a very awkward appearance, had this work appeared at the time the printer had engaged to finish it.

I have now stated the particulars which occasioned the delay, from the proposal to purchase, to the refusal to print. If all the Gentlemen are innocent, it is very unfortunate for them that such a variety of suspicious circumstances should, without any design, arrange themselves together.

Having now finished this part, I will conclude with stating another circumstance.

About a fortnight or three weeks before the meeting of Parliament, a small addition, amounting to about twelve shillings and sixpence a year, was made to the pay of the soldiers, or rather their pay was docked so much less. Some Gentlemen who knew, in part, that this work would contain a plan of reforms respecting the oppressed condition of soldiers, wished me to add a note to the work, signifying that the part upon that subject had been in the printer's hands some weeks before that addition of pay was proposed. I declined doing this, lest it should be interpreted into an air of vanity, or an endeavour to excite suspicion (for which perhaps there might be no grounds) that some of the government gentlemen had, by some means or other, made out what this work would contain: and had not the printing been interrupted so as to occasion a delay beyond the time fixed for publication, nothing contained in this appendix would have appeared.

Thomas Paine

THE AUTHOR'S NOTES FOR PART ONE AND PART TWO

1 ([return](#))

[The main and uniform maxim of the judges is, the greater the truth the greater the libel.]

2 ([return](#))

[Since writing the above, two other places occur in Mr. Burke's pamphlet in which the name of the Bastille is mentioned, but in the same manner. In the one he introduces it in a sort of obscure question, and asks: "Will any ministers who now serve such a king, with but a decent appearance of respect, cordially obey the orders of those whom but the other day, in his name, they had committed to the Bastille?" In the other the taking it is mentioned as implying criminality in the French guards, who assisted in demolishing it. "They have not," says he, "forgot the taking the king's castles at Paris." This is Mr. Burke, who pretends to write on constitutional freedom.]

3 ([return](#))

[I am warranted in asserting this, as I had it personally from M. de la Fayette, with whom I lived in habits of friendship for fourteen years.]

4 ([return](#))

[An account of the expedition to Versailles may be seen in No. 13 of the Revolution de Paris containing the events from the 3rd to the 10th of October, 1789.]

5 ([return](#))

[It is a practice in some parts of the country, when two travellers have but one horse, which, like the national purse, will not carry double, that the one mounts and rides two or three miles ahead, and then ties the horse to a gate and walks on. When the second traveller arrives he takes the horse, rides on, and passes his companion a mile or two, and ties again, and so on—Ride and tie.]

6 ([return](#))

[The word he used was renvoye, dismissed or sent away.]

7 ([return](#))

[When in any country we see extraordinary circumstances taking place, they naturally lead any man who has a talent for observation and investigation, to enquire into the causes. The manufacturers of Manchester, Birmingham, and Sheffield, are the principal manufacturers in England. From

whence did this arise? A little observation will explain the case. The principal, and the generality of the inhabitants of those places, are not of what is called in England, the church established by law: and they, or their fathers, (for it is within but a few years) withdrew from the persecution of the chartered towns, where test-laws more particularly operate, and established a sort of asylum for themselves in those places. It was the only asylum that then offered, for the rest of Europe was worse.—But the case is now changing. France and America bid all comers welcome, and initiate them into all the rights of citizenship. Policy and interest, therefore, will, but perhaps too late, dictate in England, what reason and justice could not. Those manufacturers are withdrawing, and arising in other places. There is now erecting in Passey, three miles from Paris, a large cotton manufactory, and several are already erected in America. Soon after the rejecting the Bill for repealing the test-law, one of the richest manufacturers in England said in my hearing, "England, Sir, is not a country for a dissenter to live in,—we must go to France." These are truths, and it is doing justice to both parties to tell them. It is chiefly the dissenters that have carried English manufactures to the height they are now at, and the same men have it in their power to carry them away; and though those manufactures would afterwards continue in those places, the foreign market will be lost. There frequently appear in the London Gazette, extracts from certain acts to prevent machines and persons, as far as they can extend to persons, from going out of the country. It appears from these that the ill effects of the test-laws and church-establishment begin to be much suspected; but the remedy of force can never supply the remedy of reason. In the progress of less than a century, all the unrepresented part of England, of all denominations, which is at least an hundred times the most numerous, may begin to feel the necessity of a constitution, and then all those matters will come regularly before them.]

8 ([return](#))

[When the English Minister, Mr. Pitt, mentions the French finances again in the English Parliament, it would be well that he noticed this as an example.]

9 ([return](#))

[Mr. Burke, (and I must take the liberty of telling him that he is very unacquainted with French affairs), speaking upon this subject, says, "The first thing that struck me in calling the States-General, was a great departure from the ancient course";—and he soon after says, "From the moment I read the list, I saw distinctly, and very nearly as it has happened, all that was to follow."—Mr. Burke certainly did not see all that was to follow. I endeavoured to impress him, as well before as after the States-General met, that there would be a

revolution; but was not able to make him see it, neither would he believe it. How then he could distinctly see all the parts, when the whole was out of sight, is beyond my comprehension. And with respect to the "departure from the ancient course," besides the natural weakness of the remark, it shows that he is unacquainted with circumstances. The departure was necessary, from the experience had upon it, that the ancient course was a bad one. The States-General of 1614 were called at the commencement of the civil war in the minority of Louis XIII.; but by the class of arranging them by orders, they increased the confusion they were called to compose. The author of *L'Intrigue du Cabinet*, (*Intrigue of the Cabinet*), who wrote before any revolution was thought of in France, speaking of the States-General of 1614, says, "They held the public in suspense five months; and by the questions agitated therein, and the heat with which they were put, it appears that the great (*les grands*) thought more to satisfy their particular passions, than to procure the goods of the nation; and the whole time passed away in altercations, ceremonies and parade."—*L'Intrigue du Cabinet*, vol. i. p. 329.]

10 ([return](#))

[There is a single idea, which, if it strikes rightly upon the mind, either in a legal or a religious sense, will prevent any man or any body of men, or any government, from going wrong on the subject of religion; which is, that before any human institutions of government were known in the world, there existed, if I may so express it, a compact between God and man, from the beginning of time: and that as the relation and condition which man in his individual person stands in towards his Maker cannot be changed by any human laws or human authority, that religious devotion, which is a part of this compact, cannot so much as be made a subject of human laws; and that all laws must conform themselves to this prior existing compact, and not assume to make the compact conform to the laws, which, besides being human, are subsequent thereto. The first act of man, when he looked around and saw himself a creature which he did not make, and a world furnished for his reception, must have been devotion; and devotion must ever continue sacred to every individual man, as it appears, right to him; and governments do mischief by interfering.]

11 ([return](#))

[See this work, Part I starting at line number 254.—N.B. Since the taking of the Bastille, the occurrences have been published: but the matters recorded in this narrative, are prior to that period; and some of them, as may be easily seen, can be but very little known.]

- 12 ([return](#))
[See "Estimate of the Comparative Strength of Great Britain," by G. Chalmers.]
- 13 ([return](#))
[See "Administration of the Finances of France," vol. iii, by M. Neckar.]
- 14 ([return](#))
["Administration of the Finances of France," vol. iii.]
- 15 ([return](#))
[Whether the English commerce does not bring in money, or whether the government sends it out after it is brought in, is a matter which the parties concerned can best explain; but that the deficiency exists, is not in the power of either to disprove. While Dr. Price, Mr. Eden, (now Auckland), Mr. Chalmers, and others, were debating whether the quantity of money in England was greater or less than at the Revolution, the circumstance was not adverted to, that since the Revolution, there cannot have been less than four hundred millions sterling imported into Europe; and therefore the quantity in England ought at least to have been four times greater than it was at the Revolution, to be on a proportion with Europe. What England is now doing by paper, is what she would have been able to do by solid money, if gold and silver had come into the nation in the proportion it ought, or had not been sent out; and she is endeavouring to restore by paper, the balance she has lost by money. It is certain, that the gold and silver which arrive annually in the register-ships to Spain and Portugal, do not remain in those countries. Taking the value half in gold and half in silver, it is about four hundred tons annually; and from the number of ships and galloons employed in the trade of bringing those metals from South-America to Portugal and Spain, the quantity sufficiently proves itself, without referring to the registers.

In the situation England now is, it is impossible she can increase in money. High taxes not only lessen the property of the individuals, but they lessen also the money capital of the nation, by inducing smuggling, which can only be carried on by gold and silver. By the politics which the British Government have carried on with the Inland Powers of Germany and the Continent, it has made an enemy of all the Maritime Powers, and is therefore obliged to keep up a large navy; but though the navy is built in England, the naval stores must be purchased from abroad, and that from countries where the greatest part must be paid for in gold and silver. Some fallacious rumours have been set afloat in England to induce a belief in money, and, among others, that of the French refugees bringing great quantities. The idea is ridiculous. The general part of the money in France is silver;

and it would take upwards of twenty of the largest broad wheel wagons, with ten horses each, to remove one million sterling of silver. Is it then to be supposed, that a few people fleeing on horse-back or in post-chaises, in a secret manner, and having the French Custom-House to pass, and the sea to cross, could bring even a sufficiency for their own expenses?

When millions of money are spoken of, it should be recollected, that such sums can only accumulate in a country by slow degrees, and a long procession of time. The most frugal system that England could now adopt, would not recover in a century the balance she has lost in money since the commencement of the Hanover succession. She is seventy millions behind France, and she must be in some considerable proportion behind every country in Europe, because the returns of the English mint do not show an increase of money, while the registers of Lisbon and Cadiz show an European increase of between three and four hundred millions sterling.]

16 ([return](#))

[That part of America which is generally called New-England, including New-Hampshire, Massachusetts, Rhode-Island, and Connecticut, is peopled chiefly by English descendants. In the state of New-York about half are Dutch, the rest English, Scotch, and Irish. In New-jersey, a mixture of English and Dutch, with some Scotch and Irish. In Pennsylvania about one third are English, another Germans, and the remainder Scotch and Irish, with some Swedes. The States to the southward have a greater proportion of English than the middle States, but in all of them there is a mixture; and besides those enumerated, there are a considerable number of French, and some few of all the European nations, lying on the coast. The most numerous religious denomination are the Presbyterians; but no one sect is established above another, and all men are equally citizens.]

17 ([return](#))

[For a character of aristocracy, the reader is referred to Rights of Man, Part I., starting at line number 1457.]

18 ([return](#))

[The whole amount of the assessed taxes of France, for the present year, is three hundred millions of francs, which is twelve millions and a half sterling; and the incidental taxes are estimated at three millions, making in the whole fifteen millions and a half; which among twenty-four millions of people, is not quite thirteen shillings per head. France has lessened her taxes since the revolution, nearly nine millions sterling annually. Before the revolution, the city of Paris paid a duty of upwards of thirty per cent. on all articles brought into the city. This tax was collected at the city gates.

It was taken off on the first of last May, and the gates taken down.]

19 ([return](#))

[What was called the livre rouge, or the red book, in France, was not exactly similar to the Court Calendar in England; but it sufficiently showed how a great part of the taxes was lavished.]

20 ([return](#))

[In England the improvements in agriculture, useful arts, manufactures, and commerce, have been made in opposition to the genius of its government, which is that of following precedents. It is from the enterprise and industry of the individuals, and their numerous associations, in which, tritely speaking, government is neither pillow nor bolster, that these improvements have proceeded. No man thought about government, or who was in, or who was out, when he was planning or executing those things; and all he had to hope, with respect to government, was, that it would let him alone. Three or four very silly ministerial newspapers are continually offending against the spirit of national improvement, by ascribing it to a minister. They may with as much truth ascribe this book to a minister.]

21 ([return](#))

[With respect to the two houses, of which the English parliament is composed, they appear to be effectually influenced into one, and, as a legislature, to have no temper of its own. The minister, whoever he at any time may be, touches it as with an opium wand, and it sleeps obedience.

But if we look at the distinct abilities of the two houses, the difference will appear so great, as to show the inconsistency of placing power where there can be no certainty of the judgment to use it. Wretched as the state of representation is in England, it is manhood compared with what is called the house of Lords; and so little is this nick-named house regarded, that the people scarcely enquire at any time what it is doing. It appears also to be most under influence, and the furthest removed from the general interest of the nation. In the debate on engaging in the Russian and Turkish war, the majority in the house of peers in favor of it was upwards of ninety, when in the other house, which was more than double its numbers, the majority was sixty-three.]

The proceedings on Mr. Fox's bill, respecting the rights of juries, merits also to be noticed. The persons called the peers were not the objects of that bill. They are already in possession of more privileges than that bill gave to others. They are their own jury, and if any one of that house were prosecuted for a libel, he would not suffer, even upon conviction, for the first offense. Such inequality in laws ought not to exist in any country. The French constitution says, that the law is the

same to every individual, whether to Protect or to punish.
All are equal in its sight.]

22 ([return](#))

[As to the state of representation in England, it is too absurd to be reasoned upon. Almost all the represented parts are decreasing in population, and the unrepresented parts are increasing. A general convention of the nation is necessary to take the whole form of government into consideration.]

23 ([return](#))

[It is related that in the canton of Berne, in Switzerland, it has been customary, from time immemorial, to keep a bear at the public expense, and the people had been taught to believe that if they had not a bear they should all be undone. It happened some years ago that the bear, then in being, was taken sick, and died too suddenly to have his place immediately supplied with another. During this interregnum the people discovered that the corn grew, and the vintage flourished, and the sun and moon continued to rise and set, and everything went on the same as before, and taking courage from these circumstances, they resolved not to keep any more bears; for, said they, "a bear is a very voracious expensive animal, and we were obliged to pull out his claws, lest he should hurt the citizens." The story of the bear of Berne was related in some of the French newspapers, at the time of the flight of Louis XVI., and the application of it to monarchy could not be mistaken in France; but it seems that the aristocracy of Berne applied it to themselves, and have since prohibited the reading of French newspapers.]

24 ([return](#))

[It is scarcely possible to touch on any subject, that will not suggest an allusion to some corruption in governments. The simile of "fortifications," unfortunately involves with it a circumstance, which is directly in point with the matter above alluded to.]

Among the numerous instances of abuse which have been acted or protected by governments, ancient or modern, there is not a greater than that of quartering a man and his heirs upon the public, to be maintained at its expense.

Humanity dictates a provision for the poor; but by what right, moral or political, does any government assume to say, that the person called the Duke of Richmond, shall be maintained by the public? Yet, if common report is true, not a beggar in London can purchase his wretched pittance of coal, without paying towards the civil list of the Duke of Richmond. Were the whole produce of this imposition but a shilling a year, the iniquitous principle would be still the same; but when it amounts, as it is said to do, to no less than twenty thousand pounds per annum, the enormity is too serious to be

permitted to remain. This is one of the effects of monarchy and aristocracy.

In stating this case I am led by no personal dislike. Though I think it mean in any man to live upon the public, the vice originates in the government; and so general is it become, that whether the parties are in the ministry or in the opposition, it makes no difference: they are sure of the guarantee of each other.]

25 ([return](#))

[In America the increase of commerce is greater in proportion than in England. It is, at this time, at least one half more than at any period prior to the revolution. The greatest number of vessels cleared out of the port of Philadelphia, before the commencement of the war, was between eight and nine hundred. In the year 1788, the number was upwards of twelve hundred. As the State of Pennsylvania is estimated at an eighth part of the United States in population, the whole number of vessels must now be nearly ten thousand.]

26 ([return](#))

[When I saw Mr. Pitt's mode of estimating the balance of trade, in one of his parliamentary speeches, he appeared to me to know nothing of the nature and interest of commerce; and no man has more wantonly tortured it than himself. During a period of peace it has been havocked with the calamities of war. Three times has it been thrown into stagnation, and the vessels unmanned by impressing, within less than four years of peace.]

27 ([return](#))

[Rev. William Knowle, master of the grammar school of Thetford, in Norfolk.]

28 ([return](#))

[Politics and self-interest have been so uniformly connected that the world, from being so often deceived, has a right to be suspicious of public characters, but with regard to myself I am perfectly easy on this head. I did not, at my first setting out in public life, nearly seventeen years ago, turn my thoughts to subjects of government from motives of interest, and my conduct from that moment to this proves the fact. I saw an opportunity in which I thought I could do some good, and I followed exactly what my heart dictated. I neither read books, nor studied other people's opinion. I thought for myself. The case was this:—

During the suspension of the old governments in America, both prior to and at the breaking out of hostilities, I was struck with the order and decorum with which everything was conducted, and impressed with the idea that a little more than what society naturally performed was all the government that was necessary, and that monarchy and aristocracy were frauds and impositions upon mankind. On

these principles I published the pamphlet Common Sense. The success it met with was beyond anything since the invention of printing. I gave the copyright to every state in the Union, and the demand ran to not less than one hundred thousand copies. I continued the subject in the same manner, under the title of The Crisis, till the complete establishment of the Revolution.

After the declaration of independence Congress unanimously, and unknown to me, appointed me Secretary in the Foreign Department. This was agreeable to me, because it gave me the opportunity of seeing into the abilities of foreign courts, and their manner of doing business. But a misunderstanding arising between Congress and me, respecting one of their commissioners then in Europe, Mr. Silas Deane, I resigned the office, and declined at the same time the pecuniary offers made by the Ministers of France and Spain, M. Gerald and Don Juan Mirralles.] I had by this time so completely gained the ear and confidence of America, and my own independence was become so visible, as to give me a range in political writing beyond, perhaps, what any man ever possessed in any country, and, what is more extraordinary, I held it undiminished to the end of the war, and enjoy it in the same manner to the present moment. As my object was not myself, I set out with the determination, and happily with the disposition, of not being moved by praise or censure, friendship or calumny, nor of being drawn from my purpose by any personal altercation, and the man who cannot do this is not fit for a public character.

When the war ended I went from Philadelphia to Borden-Town, on the east bank of the Delaware, where I have a small place. Congress was at this time at Prince-Town, fifteen miles distant, and General Washington had taken his headquarters at Rocky Hill, within the neighbourhood of Congress, for the purpose of resigning up his commission (the object for which he accepted it being accomplished), and of retiring to private life. While he was on this business he wrote me the letter which I here subjoin:

"Rocky-Hill, Sept. 10, 1783.

"I have learned since I have been at this place that you are at Borden-Town. Whether for the sake of retirement or economy I know not. Be it for either, for both, or whatever it may, if you will come to this place, and partake with me, I shall be exceedingly happy to see you at it.

"Your presence may remind Congress of your past services to this country, and if it is in my power to impress them, command my best exertions with freedom, as they will be rendered cheerfully by one who entertains a lively sense of the importance of your works, and who, with much pleasure, subscribes himself, Your sincere friend,

G. Washington."

During the war, in the latter end of the year 1780, I formed to myself a design of coming over to England, and communicated it to General Greene, who was then in Philadelphia on his route to the southward, General Washington being then at too great a distance to communicate with immediately. I was strongly impressed with the idea that if I could get over to England without being known, and only remain in safety till I could get out a publication, that I could open the eyes of the country with respect to the madness and stupidity of its Government. I saw that the parties in Parliament had pitted themselves as far as they could go, and could make no new impressions on each other. General Greene entered fully into my views, but the affair of Arnold and Andre happening just after, he changed his mind, under strong apprehensions for my safety, wrote very pressingly to me from Annapolis, in Maryland, to give up the design, which, with some reluctance, I did. Soon after this I accompanied Colonel Lawrens, son of Mr. Lawrens, who was then in the Tower, to France on business from Congress. We landed at L'orient, and while I remained there, he being gone forward, a circumstance occurred that renewed my former design. An English packet from Falmouth to New York, with the Government dispatches on board, was brought into L'orient. That a packet should be taken is no extraordinary thing, but that the dispatches should be taken with it will scarcely be credited, as they are always slung at the cabin window in a bag loaded with cannon-ball, and ready to be sunk at a moment. The fact, however, is as I have stated it, for the dispatches came into my hands, and I read them. The capture, as I was informed, succeeded by the following stratagem:—The captain of the "Madame" privateer, who spoke English, on coming up with the packet, passed himself for the captain of an English frigate, and invited the captain of the packet on board, which, when done, he sent some of his own hands back, and he secured the mail. But be the circumstance of the capture what it may, I speak with certainty as to the Government dispatches. They were sent up to Paris to Count Vergennes, and when Colonel Lawrens and myself returned to America we took the originals to Congress.

By these dispatches I saw into the stupidity of the English Cabinet far more than I otherwise could have done, and I renewed my former design. But Colonel Lawrens was so unwilling to return alone, more especially as, among other matters, we had a charge of upwards of two hundred thousand pounds sterling in money, that I gave in to his wishes, and finally gave up my plan. But I am now certain that if I could have executed it that it would not have been altogether unsuccessful.]

29 ([return](#))

[It is difficult to account for the origin of charter and corporation towns, unless we suppose them to have arisen out of, or been connected with, some species of garrison service. The times in which they began justify this idea. The generality of those towns have been garrisons, and the corporations were charged with the care of the gates of the towns, when no military garrison was present. Their refusing or granting admission to strangers, which has produced the custom of giving, selling, and buying freedom, has more of the nature of garrison authority than civil government. Soldiers are free of all corporations throughout the nation, by the same propriety that every soldier is free of every garrison, and no other persons are. He can follow any employment, with the permission of his officers, in any corporation towns throughout the nation.]

30 ([return](#))

[See Sir John Sinclair's History of the Revenue. The land-tax in 1646 was L2,473,499.]

31 ([return](#))

[Several of the court newspapers have of late made frequent mention of Wat Tyler. That his memory should be traduced by court sycophants and an those who live on the spoil of a public is not to be wondered at. He was, however, the means of checking the rage and injustice of taxation in his time, and the nation owed much to his valour. The history is concisely this:—In the time of Richard II. a poll tax was levied of one shilling per head upon every person in the nation of whatever estate or condition, on poor as well as rich, above the age of fifteen years. If any favour was shown in the law it was to the rich rather than to the poor, as no person could be charged more than twenty shillings for himself, family and servants, though ever so numerous; while all other families, under the number of twenty were charged per head. Poll taxes had always been odious, but this being also oppressive and unjust, it excited as it naturally must, universal detestation among the poor and middle classes. The person known by the name of Wat Tyler, whose proper name was Walter, and a tiler by trade, lived at Deptford. The gatherer of the poll tax, on coming to his house, demanded tax for one of his daughters, whom Tyler declared was under the age of fifteen. The tax-gatherer insisted on satisfying himself, and began an indecent examination of the girl, which, enraging the father, he struck him with a hammer that brought him to the ground, and was the cause of his death. This circumstance served to bring the discontent to an issue. The inhabitants of the neighbourhood espoused the cause of Tyler, who in a few days was joined, according to some histories, by upwards of fifty thousand men, and chosen their chief. With this force he marched to

London, to demand an abolition of the tax and a redress of other grievances. The Court, finding itself in a forlorn condition, and, unable to make resistance, agreed, with Richard at its head, to hold a conference with Tyler in Smithfield, making many fair professions, courtier-like, of its dispositions to redress the oppressions. While Richard and Tyler were in conversation on these matters, each being on horseback, Walworth, then Mayor of London, and one of the creatures of the Court, watched an opportunity, and like a cowardly assassin, stabbed Tyler with a dagger, and two or three others falling upon him, he was instantly sacrificed. Tyler appears to have been an intrepid disinterested man with respect to himself. All his proposals made to Richard were on a more just and public ground than those which had been made to John by the Barons, and notwithstanding the sycophancy of historians and men like Mr. Burke, who seek to gloss over a base action of the Court by traducing Tyler, his fame will outlive their falsehood. If the Barons merited a monument to be erected at Runnymede, Tyler merited one in Smithfield.]

32 ([return](#))

[I happened to be in England at the celebration of the centenary of the Revolution of 1688. The characters of William and Mary have always appeared to be detestable; the one seeking to destroy his uncle, and the other her father, to get possession of power themselves; yet, as the nation was disposed to think something of that event, I felt hurt at seeing it ascribe the whole reputation of it to a man who had undertaken it as a job and who, besides what he otherwise got, charged six hundred thousand pounds for the expense of the fleet that brought him from Holland. George the First acted the same close-fisted part as William had done, and bought the Duchy of Bremen with the money he got from England, two hundred and fifty thousand pounds over and above his pay as king, and having thus purchased it at the expense of England, added it to his Hanoverian dominions for his own private profit. In fact, every nation that does not govern itself is governed as a job. England has been the prey of jobs ever since the Revolution.]

33 ([return](#))

[Charles, like his predecessors and successors, finding that war was the harvest of governments, engaged in a war with the Dutch, the expense of which increased the annual expenditure to L1,800,000 as stated under the date of 1666; but the peace establishment was but L1,200,000.]

34 ([return](#))

[Poor-rates began about the time of Henry VIII., when the taxes began to increase, and they have increased as the taxes increased ever since.]

35 ([return](#))

[Reckoning the taxes by families, five to a family, each family pays on an average L12 7s. 6d. per annum. To this sum are to be added the poor-rates. Though all pay taxes in the articles they consume, all do not pay poor-rates. About two millions are exempted: some as not being house-keepers, others as not being able, and the poor themselves who receive the relief. The average, therefore, of poor-rates on the remaining number, is forty shillings for every family of five persons, which make the whole average amount of taxes and rates L14 17s. 6d. For six persons L17 17s. For seven persons L20 16s. 6d. The average of taxes in America, under the new or representative system of government, including the interest of the debt contracted in the war, and taking the population at four millions of souls, which it now amounts to, and it is daily increasing, is five shillings per head, men, women, and children. The difference, therefore, between the two governments is as under:

	<i>England</i>			<i>America</i>		
	<i>L</i>	<i>s.</i>	<i>d.</i>	<i>L</i>	<i>s.</i>	<i>d.</i>
<i>For a family of five persons</i>	14	17	6	1	5	0
<i>For a family of six persons</i>	17	17	0	1	10	0
<i>For a family of seven persons</i>	20	16	6	1	15	0

36 ([return](#))

[Public schools do not answer the general purpose of the poor. They are chiefly in corporation towns from which the country towns and villages are excluded, or, if admitted, the distance occasions a great loss of time. Education, to be useful to the poor, should be on the spot, and the best method, I believe, to accomplish this is to enable the parents to pay the expenses themselves. There are always persons of both sexes to be found in every village, especially when growing into years, capable of such an undertaking. Twenty children at ten shillings each (and that not more than six months each year) would be as much as some livings amount to in the remotest parts of England, and there are often distressed clergymen's widows to whom such an income would be acceptable. Whatever is given on this account to children answers two purposes. To them it is education—to those who educate them it is a livelihood.]

37 ([return](#))

[The tax on beer brewed for sale, from which the aristocracy are exempt, is almost one million more than the present commutation tax, being by the returns of 1788, L1,666,152—and, consequently, they ought to take on themselves the amount of the commutation tax, as they are already exempted from one which is almost a million greater.]

38 ([return](#))

[See the Reports on the Corn Trade.]

39 ([return](#))

[When enquiries are made into the condition of the poor, various degrees of distress will most probably be found, to render a different arrangement preferable to that which is already proposed. Widows with families will be in greater want than where there are husbands living. There is also a difference in the expense of living in different counties: and more so in fuel.

<i>Suppose then fifty thousand extraordinary cases, at</i>	
<i>the rate of ten pounds per family per annum</i>	<i>L500,000</i>
<i>100,000 families, at L8 per family per annum</i>	<i>800,000</i>
<i>100,000 families, at L7 per family per annum</i>	<i>700,000</i>
<i>104,000 families, at L5 per family per annum</i>	<i>520,000</i>
<i>And instead of ten shillings per head for the education</i>	
<i>of other children, to allow fifty shillings per family</i>	
<i>for that purpose to fifty thousand families</i>	<i>250,000</i>
	<i>L2,770,000</i>
<i>140,000 aged persons as before</i>	<i>1,120,000</i>
	<i>L3,890,000</i>

This arrangement amounts to the same sum as stated in this work, Part II, line number 1068, including the L250,000 for education; but it provides (including the aged people) for four hundred and four thousand families, which is almost one third of an the families in England.]

40 ([return](#))

[I know it is the opinion of many of the most enlightened characters in France (there always will be those who see further into events than others), not only among the general mass of citizens, but of many of the principal members of the former National Assembly, that the monarchical plan will not continue many years in that country. They have found out, that as wisdom cannot be made hereditary, power ought not; and that, for a man to merit a million sterling a year from a nation, he ought to have a mind capable of comprehending from an atom to a universe, which, if he had, he would be above receiving the pay. But they wished not to appear to lead the nation faster than its own reason and interest dictated. In all the conversations where I have been present upon this subject, the idea always was, that when such a time, from the general opinion of the nation, shall arrive, that the honourable and liberal method would be, to make a handsome present in fee simple to the person, whoever he may be, that shall then be in the monarchical office, and for him to retire to the enjoyment of private life, possessing his share of general rights and privileges, and to

be no more accountable to the public for his time and his conduct than any other citizen.]

41 ([return](#))

[The gentleman who signed the address and declaration as chairman of the meeting, Mr. Horne Tooke, being generally supposed to be the person who drew it up, and having spoken much in commendation of it, has been jocularly accused of praising his own work. To free him from this embarrassment, and to save him the repeated trouble of mentioning the author, as he has not failed to do, I make no hesitation in saying, that as the opportunity of benefiting by the French Revolution easily occurred to me, I drew up the publication in question, and showed it to him and some other gentlemen, who, fully approving it, held a meeting for the purpose of making it public, and subscribed to the amount of fifty guineas to defray the expense of advertising. I believe there are at this time, in England, a greater number of men acting on disinterested principles, and determined to look into the nature and practices of government themselves, and not blindly trust, as has hitherto been the case, either to government generally, or to parliaments, or to parliamentary opposition, than at any former period. Had this been done a century ago, corruption and taxation had not arrived to the height they are now at.]

-END OF PART II. -

THE WORKS OF THOMAS PAINE

[Common Sense](#)

[Volume One](#)

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[Volume Three](#)

Volume Four

VOLUME III.

1791-1804

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THE WRITINGS
OF
THOMAS PAINE

COLLECTED AND EDITED BY

MONCURE DANIEL CONWAY

AUTHOR OF "THE LIFE OF THOMAS PAINE," "OMITTED CHAPTERS OF HISTORY
DISCLOSED IN THE LIFE AND PAPERS OF EDMUND RANDOLPH,"
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INTRODUCTION TO THE THIRD VOLUME.

WITH HISTORICAL NOTES AND DOCUMENTS.

In a letter of Lafayette to Washington ("Paris, 12 Jan., 1790") he writes: "*Common Sense* is writing for you a brochure where you will see a part of my adventures." It thus appears that the narrative embodied in the reply to Burke ("Rights of Man," Part I.), dedicated to Washington, was begun with Lafayette's collaboration fourteen months before its publication (March 13, 1791).

In another letter of Lafayette to Washington (March 17, 1790) he writes:

"To Mr. Paine, who leaves for London, I entrust the care of sending you my news.... Permit me, my dear General, to offer you a picture representing the Bastille as it was some days after I gave the order for its demolition. I also pay you the homage of sending you the principal Key of that fortress of despotism. It is a tribute I owe as a son to my adoptive father, as aide-de-camp to my General, as a missionary of liberty to his Patriarch."

The Key was entrusted to Paine, and by him to J. Rutledge, Jr., who sailed from London in May. I have found in the manuscript despatches of Louis Otto, Chargé d' Affaires, several amusing paragraphs, addressed to his government at Paris, about this Key.

"August 4, 1790. In attending yesterday the public audience of the President, I was surprised by a question from the Chief Magistrate, 'whether I would like to see the Key of the Bastille?' One of his secretaries showed me at the same moment a large Key, which had been sent to the President by desire of the Marquis de la Fayette. I dissembled my surprise in observing to the President that 'the time had not yet come in America to do ironwork equal to that before him.' The Americans present looked at the key with indifference, and as if wondering why it had been sent. But the serene face of the President showed that he regarded it as an homage from the French nation." "December 13, 1790. The Key of the Bastille, regularly shown at the President's audiences, is now also on exhibition in Mrs. Washington's *salon*, where it satisfies the curiosity of the Philadelphians. I

am persuaded, Monseigneur, that it is only their vanity that finds pleasure in the exhibition of this trophy, but Frenchmen here are not the less piqued, and many will not enter the President's house on this account."

In sending the key Paine, who saw farther than these distant Frenchmen, wrote to Washington: "That the principles of America opened the Bastille is not to be doubted, and therefore the Key comes to the right place."

Early in May, 1791 (the exact date is not given), Lafayette writes Washington: "I send you the rather indifferent translation of Mr. Paine as a kind of preservative and to keep me near you." This was a hasty translation of "Rights of Man," Part I., by F. So{les, presently superseded by that of Lanthenas.

The first convert of Paine to pure republicanism in France was Achille Duchbtelet, son of the Duke, and grandson of the authoress,—the friend of Voltaire. It was he and Paine who, after the flight of Louis XVI., placarded Paris with the Proclamation of a Republic, given as the first chapter of this volume. An account of this incident is here quoted from Etienne Dumont's "Recollections of Mirabeau":

"The celebrated Paine was at this time in Paris, and intimate in Condorcet's family. Thinking that he had effected the American Revolution, he fancied himself called upon to bring about one in France. Duchbtelet called on me, and after a little preface placed in my hand an English manuscript—a Proclamation to the French People. It was nothing less than an anti-royalist Manifesto, and summoned the nation to seize the opportunity and establish a Republic. Paine was its author. Duchbtelet had adopted and was resolved to sign, placard the walls of Paris with it, and take the consequences. He had come to request me to translate and develop it. I began discussing the strange proposal, and pointed out the danger of raising a republican standard without concurrence of the National Assembly, and nothing being as yet known of the king's intentions, resources, alliances, and possibilities of support by the army, and in the provinces. I asked if he had consulted any of the most influential leaders,—Sieves, Lafayette, etc. He had not: he and Paine had acted alone. An American and an impulsive nobleman had put themselves forward to change the whole governmental system of France. Resisting his entreaties, I refused to translate the Proclamation. Next day the republican Proclamation appeared on the walls in every part of Paris, and was denounced to the

Assembly. The idea of a Republic had previously presented itself to no one: this first intimation filled with consternation the Right and the moderates of the Left. Malouet, Cazales, and others proposed prosecution of the author, but Chapelier, and a numerous party, fearing to add fuel to the fire instead of extinguishing it, prevented this. But some of the seed sown by the audacious hand of Paine were now budding in leading minds."

A Republican Club was formed in July, consisting of five members, the others who joined themselves to Paine and Duchbtelet being Condorcet, and probably Lanthenas (translator of Paine's works), and Nicolas de Bonneville. They advanced so far as to print "Le Ripublicain," of which, however, only one number ever appeared. From it is taken the second piece in this volume.

Early in the year 1792 Paine lodged in the house and book-shop of Thomas "Clio" Rickman, now as then 7 Upper Marylebone Street. Among his friends was the mystical artist and poet, William Blake. Paine had become to him a transcendental type; he is one of the Seven who appear in Blake's "Prophecy" concerning America (1793):

*"The Guardian Prince of Albion burns in his nightly tent
Sullen fires across the Atlantic glow to America's shore;
Piercing the souls of warlike men, who rise in silent night:—
Washington, Franklin, Paine, and Warren, Gates, Hancock, and Greene,
Meet on the coast glowing with blood from Albion's fiery Prince."*

The Seven are wrapt in the flames of their enthusiasm. Albion's Prince sends to America his thirteen Angels, who, however, there become Governors of the thirteen States. It is difficult to discover from Blake's mystical visions how much political radicalism was in him, but he certainly saved Paine from the scaffold by forewarning him (September 13, 1792) that an order had been issued for his arrest. Without repeating the story told in Gilchrist's "Life of Blake," and in my "Life of Paine," I may add here my belief that Paine also appears in one of Blake's pictures. The picture is in the National Gallery (London), and called "The spiritual form of Pitt guiding Behemoth." The monster jaws of Behemoth are full of struggling men, some of whom stretch imploring hands to another spiritual form, who reaches down from a crescent moon in the sky, as if to rescue them. This face and form appear to me certainly meant for Paine.

Acting on Blake's warning Paine's friends got him off to Dover, where, after some trouble, related in a letter to Dundas (see p. 41 of this volume),

he reached Calais. He had been elected by four departments to the National Convention, and selected Calais, where he was welcomed with grand civic parades. On September 19, 1792, he arrived in Paris, stopping at "White's Hotel," 7 Passage des Pitits Phres, about five minutes' walk from the Salle de Manige, where, on September 21st, the National Convention opened its sessions. The spot is now indicated by a tablet on the wall of the Tuileries Garden, Rue de Rivoli. On that day Paine was introduced to the Convention by the Abbi Grigoire, and received with acclamation.

The French Minister in London, Chauvelin, had sent to his government (still royalist) a despatch unfavorable to Paine's work in England, part of which I translate:

"May 23, 1792. An Association [for Parliamentary Reform, see pp. 78, 93, of this volume] has been formed to seek the means of forwarding the demand. It includes some distinguished members of the Commons, and a few peers. The writings of M. Payne which preceded this Association by a few days have done it infinite harm. People suspect under the veil of a reform long demanded by justice and reason an intention to destroy a constitution equally dear to the peers whose privileges it consecrates, to the wealthy whom it protects, and to the entire nation, to which it assures all the liberty desired by a people methodical and slow in character, and who, absorbed in their commercial interests, do not like being perpetually worried about the imbecile George III. or public affairs. Vainly have the friends of reform protested their attachment to the Constitution. Vainly they declare that they desire to demand nothing, to obtain nothing, save in lawful ways. They are persistently disbelieved. Payne alone is seen in all their movements; and this author has not, like Mackintosh, rendered imposing his refutation of Burke. The members of the Association, although very different in principles, find themselves involved in the now almost general disgrace of Payne."

M. Nokl writes from London, November 2, 1792, to the republican Minister, Le Brun, concerning the approaching trial of Paine, which had been fixed for December 18th.

"This matter above all excites the liveliest interest. People desire to know whether they live in a free country, where criticism even of government is a right of every citizen. Whatever may be the decision in this interesting trial, the result can only be fortunate for the cause of liberty. But the government

cannot conceal from itself that it is suspended over a volcano. The wild dissipations of the King's sons add to the discontent, and if something is overlooked in the Prince of Wales, who is loved enough, it is not so with the Duke of York, who has few friends. The latter has so many debts that at this moment the receivers are in his house, and the creditors wish even his bed to be seized. You perceive, Citizen, what a text fruitful in reflexions this conduct presents to a people groaning under the weight of taxes for the support of such whelps (*louvetaux*)."

Under date of December 22, 1792, M. Nokl writes:

"London is perfectly tranquil. The arbitrary measures taken by the government in advance [of Paine's trial] cause no anxiety to the mass of the nation about its liberties. Some dear-headed people see well that the royal prerogative will gain in this crisis, and that it is dangerous to leave executive power to become arbitrary at pleasure; but this very small number groan in silence, and dare not speak for fear of seeing their property pillaged or burned by what the miserable hirelings of government call 'Loyal Mob,' or 'Church and King Mob.' To the 'Addressers,' of whom I wrote you, are added the associations for maintaining the Constitution they are doing all they can to destroy. There is no corporation, no parish, which is not mustered for this object. All have assembled, one on the other, to press against those whom they call 'The Republicans and the Levellers,' the most inquisitorial measures. Among other parishes, one (S. James' Vestry Room) distinguishes itself by a decree worthy of the sixteenth century. It promises twenty guineas reward to any one who shall denounce those who in conversation or otherwise propagate opinions contrary to the public tranquillity, and places the denouncer under protection of the parish. The inhabitants of London are now placed under a new kind of *Test*, and those who refuse it will undoubtedly be persecuted. Meantime these papers are carried from house to house to be signed, especially by those lodging as strangers. This *Test* causes murmurs, and some try to evade signature, but the number is few. The example of the capital is generally followed. The trial of Payne, which at one time seemed likely to cause events, has ended in the most peaceful way. Erskine has been borne to his house by people shouting *God Save the King! Erskine forever!* The friends of liberty generally are much dissatisfied with the way in which he has defended his client. They find that he threw himself into commonplaces which could make his eloquence shine, but guarded himself well from going to the

bottom of the question. Vane especially, a distinguished advocate and zealous democrat, is furious against Erskine. It is now for Payne to defend himself. But whatever he does, he will have trouble enough to reverse the opinion. The Jury's verdict is generally applauded: a mortal blow is dealt to freedom of thought. People sing in the streets, even at midnight, *God save the King and damn Tom Payne!*" (1)

1 The despatches from which these translations are made are in the Archives of the Department of State at Paris, series marked Angleterre vol. 581.

The student of that period will find some instruction in a collection, now in the British Museum, of coins and medals mostly struck after the trial and outlawry of Paine. A halfpenny, January 21, 1793: *obverse*, a man hanging on a gibbet, with church in the distance; motto "End of Pain"; *reverse*, open book inscribed "The Wrongs of Man." A token: bust of Paine, with his name; *reverse*, "The Mountain in Labour, 1793." Farthing: Paine gibbeted; *reverse*, breeches burning, legend, "Pandora's breeches"; beneath, serpent decapitated by a dagger, the severed head that of Paine. Similar farthing, but *reverse*, combustibles intermixed with labels issuing from a globe marked "Fraternity"; the labels inscribed "Regicide," "Robbery," "Falsity," "Requisition"; legend, "French Reforms, 1797"; near by, a church with flag, on it a cross. Half-penny without date, but no doubt struck in 1794, when a rumor reached London that Paine had been guillotined: Paine gibbeted; above, devil smoking a pipe; *reverse*, monkey dancing; legend, "We dance, Paine swings." Farthing: three men hanging on a gallows; "The three Thomases, 1796." *Reverse*, "May the three knaves of Jacobin Clubs never get a trick." The three Thomases were Thomas Paine, Thomas Muir, and Thomas Spence. In 1794 Spence was imprisoned seven months for publishing some of Paine's works at his so-called "Hive of Liberty." Muir, a Scotch lawyer, was banished to Botany Bay for fourteen years for having got up in Edinburgh (1792) a "Convention," in imitation of that just opened in Paris; two years later he escaped from Botany Bay on an American ship, and found his way to Paine in Paris. Among these coins there are two of opposite character. A farthing represents Pitt on a gibbet, against which rests a ladder; inscription, "End of P [here an eye] T." *Reverse*, face of Pitt conjoined with that of the devil, and legend, "Even Fellows." Another farthing like the last, except an added legend, "Such is the reward of tyrants, 1796." These anti-Pitt farthings were struck by Thomas Spence.

In the winter of 1792-3 the only Reign of Terror was in England. The Ministry had replied to Paine's "Rights of Man" by a royal proclamation against seditious literature, surrounding London with militia, and calling a meeting of Parliament (December, 1792) out of season. Even before the trial of Paine his case was prejudged by the royal proclamation, and by the Addresses got up throughout the country in response,—documents which elicited Paine's Address to the Addressers, chapter IX. in this volume. The Tory gentry employed roughs to burn Paine in effigy throughout the country, and to harry the Nonconformists. Dr. Priestley's house was gutted. Mr. Fox (December 14, 1792) reminded the House of Commons that all the mobs had "Church and King" for their watchword, no mob having been heard of for "The Rights of Man"; and he vainly appealed to the government to prosecute the dangerous libels against Dissenters as they were prosecuting Paine's work. Burke, who in the extra session of Parliament for the first time took his seat on the Treasury Bench, was reminded that he had once "exulted at the victories of that rebel Washington," and welcomed Franklin. "Franklin," he said, "was a native of America; Paine was born in England, and lived under the protection of our laws; but, instigated by his evil genius, he conspired against the very country which gave him birth, by attempting to introduce the new and pernicious doctrines of republicans."

In the course of the same harangue, Burke alluded to the English and Irish deputations, then in Paris, which had congratulated the Convention on the defeat of the invaders of the Republic. Among them he named Lord Semphill, John Frost, D. Adams, and "Joel—Joel the Prophet" (Joel Barlow). These men were among those who, towards the close of 1792, formed a sort of Paine Club at "Philadelphia House"—as White's Hotel was now called. The men gathered around Paine, as the exponent of republican principles, were animated by a passion for liberty which withheld no sacrifice. Some of them threw away wealth and rank as trifles. At a banquet of the Club, at Philadelphia House, November 18, 1792, where Paine presided, Lord Edward Fitzgerald and Sir Robert Smyth, Baronet, formally renounced their titles. Sir Robert proposed the toast, "A speedy abolition of all hereditary titles and feudal distinctions." Another toast was, "Paine—and the new way of making good books known by a Royal proclamation and a King's Bench prosecution."

There was also Franklin's friend, Benjamin Vaughan, Member of Parliament, who, compromised by an intercepted letter, took refuge in Paris under the name of Jean Martin. Other Englishmen were Rev. Jeremiah Joyce, a Unitarian minister and author (coadjutor of Dr. Gregory in his "Cyclopaedia "); Henry Redhead Yorke, a West Indian with some negro blood (afterwards an agent of Pitt, under whom he had been imprisoned); Robert Merry, husband of the actress "Miss Brunton"; Sayer, Rayment, Macdonald, Perry.

Sampson Perry of London, having attacked the government in his journal, "The Argus," fled from an indictment, and reached Paris in January, 1793. These men, who for a time formed at Philadelphia House their Parliament of Man, were dashed by swift storms on their several rocks. Sir Robert Smyth was long a prisoner under the Reign of Terror, and died (1802) of the illness thereby contracted. Lord Edward Fitzgerald was slain while trying to kindle a revolution in Ireland. Perry was a prisoner in the Luxembourg, and afterwards in London. John Frost, a lawyer (struck off the roll), ventured back to London, where he was imprisoned six months in Newgate, sitting in the pillory at Charing Cross one hour per day. Robert Merry went to Baltimore, where he died in 1798. Nearly all of these men suffered griefs known only to the "man without a country."

Sampson Perry, who in 1796 published an interesting "History of the French Revolution," has left an account of his visit to Paine in January, 1793:

"I breakfasted with Paine about this time at the Philadelphia Hotel, and asked him which province in America he conceived the best calculated for a fugitive to settle in, and, as it were, to begin the world with no other means or pretensions than common sense and common honesty. Whether he saw the occasion and felt the tendency of this question I know not; but he turned it aside by the political news of the day, and added that he was going to dine with Petion, the mayor, and that he knew I should be welcome and be entertained. We went to the mayoralty in a hackney coach, and were seated at a table about which were placed the following persons: Petion, the mayor of Paris, with his female relation who did the honour of the table; Dumourier, the commander-in-chief of the French forces, and one of his aides-de-camp; Santerre, the commandant of the armed force of Paris, and an aide-de-camp; Condorcet; Brissot; Gaudet; Genson-net; Danton;

Rersaint; Clavihre; Vergniaud; and Syhyes; which, with three other persons, whose names I do not now recollect, and including Paine and myself, made in all nineteen."

Paine found warm welcome in the home of Achille Du-chbtelet, who with him had first proclaimed the Republic, and was now a General. Madame Duchbtelet was an English lady of rank, Charlotte Comyn, and English was fluently spoken in the family. They resided at Auteuil, not far from the Abbi Moulet, who preserved an arm-chair with the inscription, *Benjamin Franklin hic sedebat*, Paine was a guest of the Duchbtelets soon after he got to work in the Convention, as I have just discovered by a letter addressed "To Citizen Le Brun, Minister of Foreign Affairs, Paris."

"Auteuil, Friday, the 4th December, 1792. I enclose an Irish newspaper which has been sent me from Belfast. It contains the Address of the Society of United Irishmen of Dublin (of which Society I am a member) to the volunteers of Ireland. None of the English newspapers that I have seen have ventured to republish this Address, and as there is no other copy of it than this which I send you, I request you not to let it go out of your possession. Before I received this newspaper I had drawn up a statement of the affairs of Ireland, which I had communicated to my friend General Duchbtelet at Auteuil, where I now am. I wish to confer with you on that subject, but as I do not speak French, and as the matter requires confidence, General Duchbtelet has desired me to say that if you can make it convenient to dine with him and me at Auteuil, he will with pleasure do the office of interpreter. I send this letter by my servant, but as it may not be convenient to you to give an answer directly, I have told him not to wait—Thomas Paine."

It will be noticed that Paine now keeps his servant, and drives to the Mayor's dinner in a hackney coach. A portrait painted in Paris about this time, now owned by Mr. Alfred Howlett of Syracuse, N. Y., shows him in elegant costume.

It is mournful to reflect, even at this distance, that only a little later both Paine and his friend General Duchbtelet were prisoners. The latter poisoned himself in prison (1794).

The illustrative notes and documents which it seems best to set before the reader at the outset may here terminate. As in the previous volumes the writings are, as a rule, given in chronological sequence, but an exception is

now made in respect of Paine's religious writings, some of which antedate essays in the present volume. The religious writings are reserved for the fourth and final volume, to which will be added an Appendix containing Paine's poems, scientific fragments, and several letters of general interest.

I. THE REPUBLICAN PROCLAMATION.(1)

"Brethren and Fellow Citizens:

"The serene tranquillity, the mutual confidence which prevailed amongst us, during the time of the late King's escape, the indifference with which we beheld him return, are unequivocal proofs that the absence of a King is more desirable than his presence, and that he is not only a political superfluity, but a grievous burden, pressing hard on the whole nation.

"Let us not be imposed on by sophisms; all that concerns this is reduced to four points.

"He has abdicated the throne in having fled from his post. Abdication and desertion are not characterized by the length of absence; but by the single act of flight. In the present instance, the act is everything, and the time nothing.

"The nation can never give back its confidence to a man who, false to his trust, perjured to his oath, conspires a clandestine flight, obtains a fraudulent passport, conceals a King of France under the disguise of a valet, directs his course towards a frontier covered with traitors and deserters, and evidently meditates a return into our country, with a force capable of imposing his own despotic laws.

"Should his flight be considered as his own act, or the act of those who fled with him? Was it a spontaneous resolution of his own, or was it inspired by others? The alternative is immaterial; whether fool or hypocrite, idiot or traitor, he has proved himself equally unworthy of the important functions that had been delegated to him.

1 See Introduction to this volume. This manifesto with which Paris was found placarded on July 1, 1791, is described by Dumont as a "Republican Proclamation," but what its literal caption was I have not found.—Editor.

"In every sense in which the question can be considered, the reciprocal obligation which subsisted between us is dissolved. He holds no longer any

authority. We owe him no longer obedience. We see in him no more than an indifferent person; we can regard him only as Louis Capet.

"The history of France presents little else than a long series of public calamity, which takes its source from the vices of Kings; we have been the wretched victims that have never ceased to suffer either for them or by them. The catalogue of their oppressions was complete, but to complete the sum of their crimes, treason was yet wanting. Now the only vacancy is filled up, the dreadful list is full; the system is exhausted; there are no remaining errors for them to commit; their reign is consequently at an end.

"What kind of office must that be in a government which requires for its execution neither experience nor ability, that may be abandoned to the desperate chance of birth, that may be filled by an idiot, a madman, a tyrant, with equal effect as by the good, the virtuous, and the wise? An office of this nature is a mere nonentity; it is a place of show, not of use. Let France then, arrived at the age of reason, no longer be deluded by the sound of words, and let her deliberately examine, if a King, however insignificant and contemptible in himself, may not at the same time be extremely dangerous.

"The thirty millions which it costs to support a King in the eclat of stupid brutal luxury, presents us with an easy method of reducing taxes, which reduction would at once relieve the people, and stop the progress of political corruption. The grandeur of nations consists, not, as Kings pretend, in the splendour of thrones, but in a conspicuous sense of their own dignity, and in a just disdain of those barbarous follies and crimes which, under the sanction of Royalty, have hitherto desolated Europe.

"As to the personal safety of Louis Capet, it is so much the more confirmed, as France will not stoop to degrade herself by a spirit of revenge against a wretch who has dishonoured himself. In defending a just and glorious cause, it is not possible to degrade it, and the universal tranquillity which prevails is an undeniable proof that a free people know how to respect themselves."

II. TO THE AUTHORS OF "LE RIPUBLICAIN."(1)

Gentlemen:

M. Duchbtelet has mentioned to me the intention of some persons to commence a work under the title of "The Republican."

As I am a Citizen of a country which knows no other Majesty than that of the People; no other Government than that of the Representative body; no other sovereignty than that of the Laws, and which is attached to *France* both by alliance and by gratitude, I voluntarily offer you my services in support of principles as honorable to a nation as they are adapted to promote the happiness of mankind. I offer them to you with the more zeal, as I know the moral, literary, and political character of those who are engaged in the undertaking, and find myself honoured in their good opinion.

But I must at the same time observe, that from ignorance of the French language, my works must necessarily undergo a translation; they can of course be of but little utility, and my offering must consist more of wishes than services. I must add, that I am obliged to pass a part of this summer in England and Ireland.

As the public has done me the unmerited favor of recognizing me under the appellation of "Common Sense," which is my usual signature, I shall continue it in this publication to avoid mistakes, and to prevent my being supposed the author of works not my own. As to my political principles, I shall endeavour, in this letter, to trace their general features in such a manner, as that they cannot be misunderstood.

1 "Le Ripublicain; ou le Difenseur du gouvernement
Reprisentatif. Par une Sociiti des Ripublicains. A Paris.
July, 1791." See Introduction to this volume.—Editor.

It is desirable in most instances to avoid that which may give even the least suspicion as to the part meant to be adopted, and particularly on the present occasion, where a perfect clearness of expression is necessary to the

avoidance of any possible misinterpretation. I am happy, therefore, to find, that the work in question is entitled "The Republican." This word expresses perfectly the idea which we ought to have of Government in general—*Res Publico*,—the public affairs of a nation.

As to the word *Monarchy*, though the address and intrigue of Courts have rendered it familiar, it does not contain the less of reproach or of insult to a nation. The word, in its immediate or original sense, signifies *the absolute power of a single individual*, who may prove a fool, an hypocrite, or a tyrant. The appellation admits of no other interpretation than that which is here given. France is therefore not a *Monarchy*; it is insulted when called by that name. The servile spirit which characterizes this species of government is banished from France, and this country, like AMERICA, can now afford to Monarchy no more than a glance of disdain.

Of the errors which monarchic ignorance or knavery has spread through the world, the one which bears the marks of the most dexterous invention, is the opinion that the system of *Republicanism* is only adapted to a small country, and that a *Monarchy* is suited, on the contrary, to those of greater extent. Such is the language of Courts, and such the sentiments which they have caused to be adopted in monarchic countries; but the opinion is contrary, at the same time, to principle and to experience.

The Government, to be of real use, should possess a complete knowledge of all the parties, all the circumstances, and all the interests of a nation. The monarchic system, in consequence, instead of being suited to a country of great extent, would be more admissible in a small territory, where an individual may be supposed to know the affairs and the interests of the whole. But when it is attempted to extend this individual knowledge to the affairs of a great country, the capacity of knowing bears no longer any proportion to the extent or multiplicity of the objects which ought to be known, and the government inevitably falls from ignorance into tyranny. For the proof of this position we need only look to Spain, Russia, Germany, Turkey, and the whole of the Eastern Continent,—countries, for the deliverance of which I offer my most sincere wishes.

On the contrary, the true *Republican* system, by Election and Representation, offers the only means which are known, and, in my opinion, the only means which are possible, of proportioning the wisdom and the information of a Government to the extent of a country.

The system of *Representation* is the strongest and most powerful center that can be devised for a nation. Its attraction acts so powerfully, that men give it their approbation even without reasoning on the cause; and France, however distant its several parts, finds itself at this moment *an whole*, in its *central* Representation. The citizen is assured that his rights are protected, and the soldier feels that he is no longer the slave of a Despot, but that he is become one of the Nation, and interested of course in its defence.

The states at present styled *Republican*, as Holland, Genoa, Venice, Berne, &c. are not only unworthy the name, but are actually in opposition to every principle of a *Republican* government, and the countries submitted to their power are, truly speaking, subject to an *Aristocratic* slavery!

It is, perhaps, impossible, in the first steps which are made in a Revolution, to avoid all kind of error, in principle or in practice, or in some instances to prevent the combination of both. Before the sense of a nation is sufficiently enlightened, and before men have entered into the habits of a free communication with each other of their natural thoughts, a certain reserve—a timid prudence seizes on the human mind, and prevents it from obtaining its level with that vigor and promptitude that belongs to *right*.—An example of this influence discovers itself in the commencement of the present Revolution: but happily this discovery has been made before the Constitution was completed, and in time to provide a remedy.

The *hereditary succession* can never exist as a matter of *right*; it is a *nullity*—a *nothing*. To admit the idea is to regard man as a species of property belonging to some individuals, either born or to be born! It is to consider our descendants, and all posterity, as mere animals without a right or will! It is, in fine, the most base and humiliating idea that ever degraded the human species, and which, for the honor of Humanity, should be destroyed for ever.

The idea of hereditary succession is so contrary to the rights of man, that if we were ourselves to be recalled to existence, instead of being replaced by our posterity, we should not have the right of depriving ourselves beforehand of those *rights* which would then properly belong to us. On what ground, then, or by what authority, do we dare to deprive of their rights those children who will soon be men? Why are we not struck with the injustice which we perpetrate on our descendants, by endeavouring to

transmit them as a vile herd to masters whose vices are all that can be foreseen.

Whenever the *French* constitution shall be rendered conformable to its *Declaration of Rights*, we shall then be enabled to give to France, and with justice, the appellation of a *civic Empire*; for its government will be the empire of laws founded on the great republican principles of *Elective Representation*, and the *Rights of Man*.—But Monarchy and Hereditary Succession are incompatible with the *basis* of its constitution.

I hope that I have at present sufficiently proved to you that I am a good Republican; and I have such a confidence in the truth of the principles, that I doubt not they will soon be as universal in *France* as in *America*. The pride of human nature will assist their evidence, will contribute to their establishment, and men will be ashamed of Monarchy.

I am, with respect, Gentlemen, your friend,

Thomas Paine.

Paris, June, 1791.

III. TO THE ABBI SIHYES.(1)

Paris, 8th July, 1791.

Sir,

At the moment of my departure for England, I read, in the *Moniteur* of Tuesday last, your letter, in which you give the challenge, on the subject of Government, and offer to defend what is called the *Monarchical opinion* against the Republican system.

I accept of your challenge with pleasure; and I place such a confidence in the superiority of the Republican system over that nullity of a system, called *Monarchy*, that I engage not to exceed the extent of fifty pages, and to leave you the liberty of taking as much latitude as you may think proper.

The respect which I bear your moral and literary reputation, will be your security for my candour in the course of this discussion; but, notwithstanding that I shall treat the subject seriously and sincerely, let me promise, that I consider myself at liberty to ridicule, as they deserve, Monarchical absurdities, whensoever the occasion shall present itself.

By Republicanism, I do not understand what the name signifies in Holland, and in some parts of Italy. I understand simply a government by representation—a government founded upon the principles of the Declaration of Rights; principles to which several parts of the French Constitution arise in contradiction. The Declaration of Rights of France and America are but one and the same thing in principles, and almost in expressions; and this is the Republicanism which I undertake to defend against what is called *Monarchy* and *Aristocracy*.

1 Written to the *Moniteur* in reply to a letter of the Abbi (July 8) elicited by Paine's letter to "Le Ripublicain" (II.). The Abbi now declining a controversy, Paine dealt with his views in "Rights of Man," Part II, ch. 3.—Editor.

I see with pleasure that in respect to one point we are already agreed; and *that is, the extreme danger of a civil list of thirty millions*. I can discover no reason why one of the parts of the government should be supported with so

extravagant a profusion, whilst the other scarcely receives what is sufficient for its common wants.

This dangerous and dishonourable disproportion at once supplies the one with the means of corrupting, and throws the other into the predicament of being corrupted. In America there is but little difference, with regard to this point, between the legislative and the executive part of our government; but the first is much better attended to than it is in France.

In whatsoever manner, Sir, I may treat the subject of which you have proposed the investigation, I hope that you will not doubt my entertaining for you the highest esteem. I must also add, that I am not the personal enemy of Kings. Quite the contrary. No man more heartily wishes than myself to see them all in the happy and honourable state of private individuals; but I am the avowed, open, and intrepid enemy of what is called Monarchy; and I am such by principles which nothing can either alter or corrupt—by my attachment to humanity; by the anxiety which I feel within myself, for the dignity and the honour of the human race; by the disgust which I experience, when I observe men directed by children, and governed by brutes; by the horror which all the evils that Monarchy has spread over the earth excite within my breast; and by those sentiments which make me shudder at the calamities, the exactions, the wars, and the massacres with which Monarchy has crushed mankind: in short, it is against all the hell of monarchy that I have declared war.

Thomas Paine.(1)

1 To the sixth paragraph of the above letter is appended a footnote: "A deputy to the congress receives about a guinea and a half daily: and provisions are cheaper in America than in France." The American Declaration of Rights referred to unless the Declaration of Independence, was no doubt, especially that of Pennsylvania, which Paine helped to frame.—Editor.

IV. TO THE ATTORNEY GENERAL.

[Undated, but probably late in May, 1793.]

Sir,

Though I have some reason for believing that you were not the original promoter or encourager of the prosecution commenced against the work entitled "Rights of Man" either as that prosecution is intended to affect the author, the publisher, or the public; yet as you appear the official person therein, I address this letter to you, not as Sir Archibald Macdonald, but as Attorney General.

You began by a prosecution against the publisher Jordan, and the reason assigned by Mr. Secretary Dundas, in the House of Commons, in the debate on the Proclamation, May 25, for taking that measure, was, he said, because Mr. Paine could not be found, or words to that effect. Mr. Paine, sir, so far from secreting himself, never went a step out of his way, nor in the least instance varied from his usual conduct, to avoid any measure you might choose to adopt with respect to him. It is on the purity of his heart, and the universal utility of the principles and plans which his writings contain, that he rests the issue; and he will not dishonour it by any kind of subterfuge. The apartments which he occupied at the time of writing the work last winter, he has continued to occupy to the present hour, and the solicitors of the prosecution knew where to find him; of which there is a proof in their own office, as far back as the 21st of May, and also in the office of my own Attorney.(1)

1 Paine was residing at the house of one of his publishers, Thomas Rickman, 7 Upper Marylebone Street, London. His Attorney was the Hon. Thomas Erskine.—Editor.

But admitting, for the sake of the case, that the reason for proceeding against the publisher was, as Mr. Dundas stated, that Mr. Paine could not be found, that reason can now exist no longer.

The instant that I was informed that an information was preparing to be filed against me, as the author of, I believe, one of the most useful and benevolent books ever offered to mankind, I directed my Attorney to put in

an appearance; and as I shall meet the prosecution fully and fairly, and with a good and upright conscience, I have a right to expect that no act of littleness will be made use of on the part of the prosecution towards influencing the future issue with respect to the author. This expression may, perhaps, appear obscure to you, but I am in the possession of some matters which serve to shew that the action against the publisher is not intended to be a *real* action. If, therefore, any persons concerned in the prosecution have found their cause so weak, as to make it appear convenient to them to enter into a negotiation with the publisher, whether for the purpose of his submitting to a verdict, and to make use of the verdict so obtained as a circumstance, by way of precedent, on a future trial against myself; or for any other purpose not fully made known to me; if, I say, I have cause to suspect this to be the case, I shall most certainly withdraw the defence I should otherwise have made, or promoted on his (the publisher's) behalf, and leave the negociators to themselves, and shall reserve the whole of the defence for the *real* trial.(1)

But, sir, for the purpose of conducting this matter with at least the appearance of fairness and openness, that shall justify itself before the public, whose cause it really is, (for it is the right of public discussion and investigation that is questioned,) I have to propose to you to cease the prosecution against the publisher; and as the reason or pretext can no longer exist for continuing it against him because Mr. Paine could not be found, that you would direct the whole process against me, with whom the prosecuting party will not find it possible to enter into any private negotiation.

1 A detailed account of the proceedings with regard to the publisher will be found infra, in ix., Letter to the Addressers.—Editor.

I will do the cause full justice, as well for the sake of the nation, as for my own reputation.

Another reason for discontinuing the process against the publisher is, because it can amount to nothing. First, because a jury in London cannot decide upon the fact of publishing beyond the limits of the jurisdiction of London, and therefore the work may be republished over and over again in every county in the nation, and every case must have a separate process; and by the time that three or four hundred prosecutions have been had, the

eyes of the nation will then be fully open to see that the work in question contains a plan the best calculated to root out all the abuses of government, and to lessen the taxes of the nation upwards of *six millions annually*.

Secondly, Because though the gentlemen of London may be very expert in understanding their particular professions and occupations, and how to make business contracts with government beneficial to themselves as individuals, the rest of the nation may not be disposed to consider them sufficiently qualified nor authorized to determine for the whole Nation on plans of reform, and on systems and principles of Government. This would be in effect to erect a jury into a National Convention, instead of electing a Convention, and to lay a precedent for the probable tyranny of juries, under the pretence of supporting their rights.

That the possibility always exists of packing juries will not be denied; and, therefore, in all cases, where Government is the prosecutor, more especially in those where the right of public discussion and investigation of principles and systems of Government is attempted to be suppressed by a verdict, or in those where the object of the work that is prosecuted is the reform of abuse and the abolition of sinecure places and pensions, in all these cases the verdict of a jury will itself become a subject of discussion; and therefore, it furnishes an additional reason for discontinuing the prosecution against the publisher, more especially as it is not a secret that there has been a negotiation with him for secret purposes, and for proceeding against me only. I shall make a much stronger defence than what I believe the Treasury Solicitor's agreement with him will permit him to do.

I believe that Mr. Burke, finding himself defeated, and not being able to make any answer to the *Rights of Man*, has been one of the promoters of this prosecution; and I shall return the compliment to him by shewing, in a future publication, that he has been a masked pensioner at 1500L. per annum for about ten years.

Thus it is that the public money is wasted, and the dread of public investigation is produced.

I am, sir, Your obedient humble servant,
Thomas Paine.(1)

1 Paine's case was set down for June 8th, and on that day he

appeared in court; but, much to his disappointment, the trial was adjourned to December 18th, at which time he was in his place in the National Convention at Paris.—Editor.

V. TO MR. SECRETARY DUNDAS.(1)

London, June 6, 1793.

Sir,

As you opened the debate in the House of Commons, May 25th, on the proclamation for suppressing publications, which that proclamation (without naming any) calls wicked and seditious: and as you applied those opprobrious epithets to the works entitled "RIGHTS OF MAN," I think it unnecessary to offer any other reason for addressing this letter to you.

I begin, then, at once, by declaring, that I do not believe there are found in the writings of any author, ancient or modern, on the subject of government, a spirit of greater benignity, and a stronger inculcation of moral principles than in those which I have published. They come, Sir, from a man, who, by having lived in different countries, and under different systems of government, and who, being intimate in the construction of them, is a better judge of the subject than it is possible that you, from the want of those opportunities, can be:—And besides this, they come from a heart that knows not how to beguile.

I will farther say, that when that moment arrives in which the best consolation that shall be left will be looking back on some past actions, more virtuous and more meritorious than the rest, I shall then with happiness remember, among other things, I have written the RIGHTS OF MAN.—As to what proclamations, or prosecutions, or place-men, and place-expectants,—those who possess, or those who are gaping for office,—may say of them, it will not alter their character, either with the world or with me.

1 Henry D. (afterwards Viscount Melville), appointed Secretary for the Home Department, 1791. In 1805 he was impeached by the Commons for "gross malversation" while Treasurer of the Navy; he was acquitted by the Lords (1806), but not by public sentiment or by history.—Editor.

Having, Sir, made this declaration, I shall proceed to remark, not particularly on your speech on that occasion, but on any one to which your

motion on that day gave rise; and I shall begin with that of Mr. Adam.

This Gentleman accuses me of not having done the very thing that *I have done*, and which, he says, if I *had* done, he should not have accused me.

Mr. Adam, in his speech, (see the Morning Chronicle of May 26,) says,

"That he had well considered the subject of Constitutional Publications, and was by no means ready to say (but the contrary) that books of science upon government though recommending a doctrine or system different from the form of our constitution (meaning that of England) were fit objects of prosecution; that if he did, he must condemn Harrington for his *Oceana*, Sir Thomas More for his *Eutopia*, and Hume for his *Idea of a perfect Commonwealth*. But (continued Mr. Adam) the publication of Mr. Paine was very different; for it reviled what was most sacred in the constitution, destroyed every principle of subordination, and *established nothing in their room*."

I readily perceive that Mr. Adam has not read the Second Part of *Rights of Man*, and I am put under the necessity, either of submitting to an erroneous charge, or of justifying myself against it; and certainly shall prefer the latter.—If, then, I shall prove to Mr. Adam, that in my reasoning upon systems of government, in the Second Part of *Rights of Man*, I have shown as clearly, I think, as words can convey ideas, a certain system of government, and that not existing in theory only, but already in full and established practice, and systematically and practically free from all the vices and defects of the English government, and capable of producing more happiness to the people, and that also with an eightieth part of the taxes, which the present English system of government consumes; I hope he will do me the justice, when he next goes to the House, to get up and confess he had been mistaken in saying, that I had *established nothing, and that I had destroyed every principle of subordination*. Having thus opened the case, I now come to the point.

In the Second Part of the *Rights of Man*, I have distinguished government into two classes or systems: the one the hereditary system, the other the representative system.

In the First Part of *Rights of Man*, I have endeavoured to shew, and I challenge any man to refute it, that there does not exist a right to establish hereditary government; or, in other words, hereditary governors; because hereditary government always means a government yet to come, and the

case always is, that the people who are to live afterwards, have always the same right to choose a government for themselves, as the people had who lived before them.

In the Second Part of *Rights of Man*, I have not repeated those arguments, because they are irrefutable; but have confined myself to shew the defects of what is called hereditary government, or hereditary succession, that it must, from the nature of it, throw government into the hands of men totally unworthy of it, from want of principle, or unfitted for it from want of capacity.—James the II^d. is recorded as an instance of the first of these cases; and instances are to be found almost all over Europe to prove the truth of the latter.

To shew the absurdity of the Hereditary System still more strongly, I will now put the following case:—Take any fifty men promiscuously, and it will be very extraordinary, if, out of that number, one man should be found, whose principles and talents taken together (for some might have principles, and others might have talents) would render him a person truly fitted to fill any very extraordinary office of National Trust. If then such a fitness of character could not be expected to be found in more than one person out of fifty, it would happen but once in a thousand years to the eldest son of any one family, admitting each, on an average, to hold the office twenty years. Mr. Adam talks of something in the Constitution which he calls *most sacred*; but I hope he does not mean hereditary succession, a thing which appears to me a violation of every order of nature, and of common sense.

When I look into history and see the multitudes of men, otherwise virtuous, who have died, and their families been ruined, in the defence of knaves and fools, and which they would not have done, had they reasoned at all upon the system; I do not know a greater good that an individual can render to mankind, than to endeavour to break the chains of political superstition. Those chains are now dissolving fast, and proclamations and persecutions will serve but to hasten that dissolution.

Having thus spoken of the Hereditary System as a bad System, and subject to every possible defect, I now come to the Representative System, and this Mr. Adam will find stated in the Second Part of *Rights of Man*, not only as the best, but as the only *Theory* of Government under which the liberties of the people can be permanently secure.

But it is needless now to talk of mere theory, since there is already a government in full practice, established upon that theory; or in other words, upon the Rights of Man, and has been so for almost twenty years. Mr. Pitt, in a speech of his some short time since, said, "That there never did, and never could exist a Government established upon those Rights, and that if it began at noon, it would end at night." Mr. Pitt has not yet arrived at the degree of a school-boy in this species of knowledge; his practice has been confined to the means of *extorting revenue*, and his boast has been—*how much!* Whereas the boast of the system of government that I am speaking of, is not how much, but how little.

The system of government purely representative, unmixed with any thing of hereditary nonsense, began in America. I will now compare the effects of that system of government with the system of government in England, both during, and since the close of the war.

So powerful is the Representative system, first, by combining and consolidating all the parts of a country together, however great the extent; and, secondly, by admitting of none but men properly qualified into the government, or dismissing them if they prove to be otherwise, that America was enabled thereby totally to defeat and overthrow all the schemes and projects of the hereditary government of England against her. As the establishment of the Revolution and Independence of America is a proof of this fact, it is needless to enlarge upon it.

I now come to the comparative effect of the two systems *since* the close of the war, and I request Mr. Adam to attend to it.

America had internally sustained the ravages of upwards of seven years of war, which England had not. England sustained only the expence of the war; whereas America sustained not only the expence, but the destruction of property committed by *both* armies. Not a house was built during that period, and many thousands were destroyed. The farms and plantations along the coast of the country, for more than a thousand miles, were laid waste. Her commerce was annihilated. Her ships were either taken, or had rotted within her own harbours. The credit of her funds had fallen upwards of ninety per cent., that is, an original hundred pounds would not sell for ten pounds. In fine, she was apparently put back an hundred years when the war closed, which was not the case with England.

But such was the event, that the same representative system of government, though since better organized, which enabled her to conquer, enabled her also to recover, and she now presents a more flourishing condition, and a more happy and harmonized society, under that system of government, than any country in the world can boast under any other. Her towns are rebuilt, much better than before; her farms and plantations are in higher improvement than ever; her commerce is spread over the world, and her funds have risen from less than ten pounds the hundred to upwards of one hundred and twenty. Mr. Pitt and his colleagues talk of the things that have happened in his boyish administration, without knowing what greater things have happened elsewhere, and under other systems of government.

I now come to state the expence of the two systems, as they now stand in each of the countries; but it may first be proper to observe, that government in America is what it ought to be, a matter of honour and trust, and not made a trade of for the purpose of lucre.

The whole amount of the nett(sic) taxes in England (exclusive of the expence of collection, of drawbacks, of seizures and condemnation, of fines and penalties, of fees of office, of litigations and informers, which are some of the blessed means of enforcing them) is seventeen millions. Of this sum, about nine millions go for the payment of the interest of the national debt, and the remainder, being about eight millions, is for the current annual expences. This much for one side of the case. I now come to the other.

The expence of the several departments of the general Representative Government of the United States of America, extending over a space of country nearly ten times larger than England, is two hundred and ninety-four thousand, five hundred and fifty-eight dollars, which, at 4s. 6d. per dollar, is 66,305L. 11s. sterling, and is thus apportioned;

Expence of the Executive Department.

The Office of Presidency, for which the President receives nothing for himself [see p. 23, note].....	5,625 <i>l.</i> <i>os.</i>
Vice President.....	1,125 0
Chief-justice.....	900 0
Five associate Justices.....	3,937 10
Nineteen Judges of Districts, and Attorney-general...	6,873 15

Legislative Department.

Members of Congress at 6 dolls. (<i>1<i>l.</i> 7<i>s.</i></i>) per day, their Secretaries, Clerks, Chaplains, Messengers, Door-keepers, &c.....	25,515 <i>l.</i> 0
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Treasury Department.

Secretary, Assistant, Comptroller, Auditor, Treasurer, Register, and Loan-Office Keeper, in each State, together with all necessary Clerks, Office Keepers, &c.	12,825 0
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Department of State, including Foreign Affairs.

Secretary, Clerks, &c., &c.....	1,406 5
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Department of War.

Secretary, Clerks, Paymasters, Commissioners, &c... ..	1,462 10
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Commissioners for settling Old Accounts.

The whole Board, Clerks, &c.....	2,598 15
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Incidental and Contingent expences.

For Fire-wood, Stationery, Printing, &c.....	4,006 16
Total.....	66,275 11

On account of the incursions of the Indians on the back settlements, Congress is at this time obliged to keep six thousand militia in pay, in addition to a regiment of foot, and a battalion of artillery, which it always keeps; and this increases the expence of the War Department to 390,000 dollars, which is 87,795*L.* sterling, but when peace shall be concluded with the Indians, the greatest part of this expence will cease, and the total amount of the expence of government, including that of the army, will not amount

to 100,000L. sterling, which, as has been already stated, is but an eightieth part of the expences of the English government.

I request Mr. Adam and Mr. Dundas, and all those who are talking of Constitutions, and blessings, and Kings, and Lords, and the Lord knows what, to look at this statement. Here is a form and system of government, that is better organized and better administered than any government in the world, and that for less than one hundred thousand pounds per annum, and yet every Member of Congress receives, as a compensation for his time and attendance on public business, one pound seven shillings per day, which is at the rate of nearly five hundred pounds a year.

This is a government that has nothing to fear. It needs no proclamations to deter people from writing and reading. It needs no political superstition to support it; it was by encouraging discussion and rendering the press free upon all subjects of government, that the principles of government became understood in America, and the people are now enjoying the present blessings under it. You hear of no riots, tumults, and disorders in that country; because there exists no cause to produce them. Those things are never the effect of Freedom, but of restraint, oppression, and excessive taxation.

In America, there is not that class of poor and wretched people that are so numerously dispersed all over England, who are to be told by a proclamation, that they are happy; and this is in a great measure to be accounted for, not by the difference of proclamations, but by the difference of governments and the difference of taxes between that country and this. What the labouring people of that country earn, they apply to their own use, and to the education of their children, and do not pay it away in taxes as fast as they earn it, to support Court extravagance, and a long enormous list of place-men and pensioners; and besides this, they have learned the manly doctrine of reverencing themselves, and consequently of respecting each other; and they laugh at those imaginary beings called Kings and Lords, and all the fraudulent trumpery of Court.

When place-men and pensioners, or those who expect to be such, are lavish in praise of a government, it is not a sign of its being a good one. The pension list alone in England (see sir John Sinclair's History of the Revenue, p. 6, of the Appendix) is one hundred and seven thousand four hundred and four pounds, *which is more than the expences of the whole*

Government of America amount to. And I am now more convinced than before, that the offer that was made to me of a thousand pounds for the copy-right of the second part of the *Rights of Man*, together with the remaining copyright of the first part, was to have effected, by a quick suppression, what is now attempted to be done by a prosecution. The connection which the person, who made the offer, has with the King's printing-office, may furnish part of the means of inquiring into this affair, when the ministry shall please to bring their prosecution to issue.(1) But to return to my subject.—

I have said in the second part of the *Rights of Man*, and I repeat it here, that the service of any man, whether called King, President, Senator, Legislator, or any thing else, cannot be worth more to any country, in the regular routine of office, than ten thousand pounds per annum. We have a better man in America, and more of a gentleman, than any King I ever knew of, who does not occasion half that ex-pence; for, though the salary is fixed at \$5625 he does not accept it, and it is only the incidental expences that are paid out of it.(2) The name by which a man is called is of itself but an empty thing. It is worth and character alone which can render him valuable, for without these, Kings, and Lords, and Presidents, are but jingling names.

But without troubling myself about Constitutions of Government, I have shewn in the Second Part of *Rights of Man*, that an alliance may be formed between England, France, and America, and that the expences of government in England may be put back to one million and a half, viz.:

<i>Civil expence of Government.....</i>	<i>500,000L.</i>
<i>Army.....</i>	<i>500,000</i>
<i>Navy.....</i>	<i>500,000</i>
	<i>1,500,000L.</i>

And even this sum is fifteen times greater than the expences of government are in America; and it is also greater than the whole peace establishment of England amounted to about an hundred years ago. So much has the weight and oppression of taxes increased since the Revolution, and especially since the year 1714.

1 At Paine's trial, Chapman, the printer, in answer to a question of the Solicitor General, said: "I made him three separate offers in the different stages of the work; the first, I believe, was a hundred guineas, the second five hundred, and the last was a thousand."—Editor.

*2 Error. See also ante, and in vol. ii., p. 435.
Washington had retracted his original announcement, and
received his salary regularly.—Editor.*

To shew that the sum of 500,000L. is sufficient to defray all civil expences of government, I have, in that work, annexed the following estimate for any country of the same extent as England.—

In the first place, three hundred Representatives, fairly elected, are sufficient for all the purposes to which Legislation can apply, and preferable to a larger number.

If, then, an allowance, at the rate of 500L. per annum be made to every Representative, deducting for non-attendance, the expence, if the whole number attended six months each year, would be.....75,000L.

The Official Departments could not possibly exceed the following number, with the salaries annexed, viz.:

[ILLUSTRATION: Table]

*Three offices at
10,000L.
each
30,000*

*Ten ditto at
5,000
u
50,000*

*Twenty ditto at
2,000
u
40,000*

*Forty ditto at
1,000
it
40,000*

*Two hundred ditto at
500
u
100,000*

*Three hundred ditto at 200
u
60,000*

Five hundred ditto at
100
u
50,000

Seven hundred ditto at 75
it
52,500

497,500L.

If a nation chose, it might deduct four per cent, from all the offices, and make one of twenty thousand pounds per annum, and style the person who should fill it, King or Madjesty, (1) or give him any other title.

Taking, however, this sum of one million and a half, as an abundant supply for all the expences of government under any form whatever, there will remain a surplus of nearly six millions and a half out of the present taxes, after paying the interest of the national debt; and I have shewn in the Second Part of *Rights of Man*, what appears to me, the best mode of applying the surplus money; for I am now speaking of expences and savings, and not of systems of government.

1 A friend of Paine advised him against this pun, as too personal an allusion to George the Third, to whom however much has been forgiven on account of his mental infirmity. Yorke, in his account of his visit to Paine, 1802, alludes to his (Paine's) anecdotes "of humor and benevolence" concerning George III.—Editor.

I have, in the first place, estimated the poor-rates at two millions annually, and shewn that the first effectual step would be to abolish the poor-rates entirely (which would be a saving of two millions to the house-keepers,) and to remit four millions out of the surplus taxes to the poor, to be paid to them in money, in proportion to the number of children in each family, and the number of aged persons.

I have estimated the number of persons of both sexes in England, of fifty years of age and upwards, at 420,000, and have taken one third of this number, viz. 140,000, to be poor people.

To save long calculations, I have taken 70,000 of them to be upwards of fifty years of age, and under sixty, and the others to be sixty years and upwards; and to allow six pounds per annum to the former class, and ten pounds per annum to the latter. The expence of which will be,

Seventy thousand persons at 6 <i>L.</i> per annum.....	420,000 <i>L.</i>
Seventy thousand persons at 10 <i>L.</i> per annum....	700,000
	1,120,000 <i>L.</i>

There will then remain of the four millions, 2,880,000*L.* I have stated two different methods of appropriating this money. The one is to pay it in proportion to the number of children in each family, at the rate of three or four pounds per annum for each child; the other is to apportion it according to the expence of living in different counties; but in either of these cases it would, together with the allowance to be made to the aged, completely take off taxes from one third of all the families in England, besides relieving all the other families from the burthen of poor-rates.

The whole number of families in England, allotting five souls to each family, is one million four hundred thousand, of which I take one third, viz. 466,666 to be poor families who now pay four millions of taxes, and that the poorest pays at least four guineas a year; and that the other thirteen millions are paid by the other two-thirds. The plan, therefore, as stated in the work, is, first, to remit or repay, as is already stated, this sum of four millions to the poor, because it is impossible to separate them from the others in the present mode of collecting taxes on articles of consumption; and, secondly, to abolish the poor-rates, the house and window-light tax, and to change the commutation tax into a progressive tax on large estates, the particulars of all which are set forth in the work, to which I desire Mr. Adam to refer for particulars. I shall here content myself with saying, that to a town of the population of Manchester, it will make a difference in its favour, compared with the present state of things, of upwards of fifty thousand pounds annually, and so in proportion to all other places throughout the nation. This certainly is of more consequence than that the same sums should be collected to be afterwards spent by riotous and profligate courtiers, and in nightly revels at the Star and Garter tavern, Pall Mall.

I will conclude this part of my letter with an extract from the Second Part of the *Rights of Man*, which Mr. Dundas (a man rolling in luxury at the expence of the nation) has branded with the epithet of "wicked."

"By the operation of this plan, the poor laws, those instruments of civil torture, will be superseded, and the wasteful ex-pence of litigation prevented. The hearts of the humane will not be shocked by ragged and

hungry children, and persons of seventy and eighty years of age begging for bread. The dying poor will not be dragged from place to place to breathe their last, as a reprisal of parish upon parish. Widows will have a maintenance for their children, and not be carted away, on the death of their husbands, like culprits and criminals; and children will no longer be considered as increasing the distresses of their parents. The haunts of the wretched will be known, because it will be to their advantage; and the number of petty crimes, the offspring of poverty and distress, will be lessened. The poor as well as the rich will then be interested in the support of Government, and the cause and apprehension of riots and tumults will cease. Ye who sit in ease, and solace yourselves in plenty, and such there are in Turkey and Russia, as well as in England, and who say to yourselves, *are we not well off* have ye thought of these things? When ye do, ye will cease to speak and feel for yourselves alone."

After this remission of four millions be made, and the poor-rates and houses and window-light tax be abolished, and the commutation tax changed, there will still remain nearly one million and a half of surplus taxes; and as by an alliance between England, France and America, armies and navies will, in a great measure, be rendered unnecessary; and as men who have either been brought up in, or long habited to, those lines of life, are still citizens of a nation in common with the rest, and have a right to participate in all plans of national benefit, it is stated in that work (*Rights of Man*, Part ii.) to apply annually 507,000L. out of the surplus taxes to this purpose, in the following manner:

To fifteen thousand disbanded soldiers, 3s. per week (clear of deduction) during life	117,000 <i>l.</i>
Additional pay to the remaining soldiers, per annum .	19,500
To the officers of the disbanded corps, during life, the sum of	117,000
To fifteen thousand disbanded sailors, 3s. per week during life	117,000
Additional pay to the remaining sailors	19,500
To the officers of the disbanded part of the navy, during life	117,000
	507,000 <i>l.</i>

The limits to which it is proper to confine this letter, will not admit of my entering into further particulars. I address it to Mr. Dundas because he took the lead in the debate, and he wishes, I suppose, to appear conspicuous; but the purport of it is to justify myself from the charge which Mr. Adam has made.

This Gentleman, as has been observed in the beginning of this letter, considers the writings of Harrington, More and Hume, as justifiable and legal publications, because they reasoned by comparison, though in so doing they shewed plans and systems of government, not only different from, but preferable to, that of England; and he accuses me of endeavouring to confuse, instead of producing a system in the room of that which I had reasoned against; whereas, the fact is, that I have not only reasoned by comparison of the representative system against the hereditary system, but I have gone further; for I have produced an instance of a government established entirely on the representative system, under which greater happiness is enjoyed, much fewer taxes required, and much higher credit is established, than under the system of government in England. The funds in England have risen since the war only from 54*L.* to 97*L.* and they have been down since the proclamation, to 87*L.* whereas the funds in America rose in the mean time from 10*L.* to 120*L.*

His charge against me of "destroying every principle of subordination," is equally as groundless; which even a single paragraph from the work will prove, and which I shall here quote:

"Formerly when divisions arose respecting Governments, recourse was had to the sword, and a civil war ensued. That savage custom is exploded

by the new system, and *recourse is had to a national convention*. Discussion, and the general will, arbitrates the question, and to this private opinion yields with a good grace, and *order is preserved uninterrupted*."

That two different charges should be brought at the same time, the one by a Member of the Legislative, for *not* doing a certain thing, and the other by the Attorney General for *doing* it, is a strange jumble of contradictions. I have now justified myself, or the work rather, against the first, by stating the case in this letter, and the justification of the other will be undertaken in its proper place. But in any case the work will go on.

I shall now conclude this letter with saying, that the only objection I found against the plan and principles contained in the Second Part of *Rights of Man*, when I had written the book, was, that they would beneficially interest at least ninety-nine persons out of every hundred throughout the nation, and therefore would not leave sufficient room for men to act from the direct and disinterested principles of honour; but the prosecution now commenced has fortunately removed that objection, and the approvers and protectors of that work now feel the immediate impulse of honour added to that of national interest.

I am, Mr. Dundas,
Not your obedient humble Servant,
But the contrary,
Thomas Paine.

VI. LETTERS TO ONSLOW CRANLEY,

Lord Lieutenant of the county of Surry; on the subject of the late excellent proclamation:—or the chairman who shall preside at the meeting to be held at Epsom, June 18.

FIRST LETTER.

London, June 17th, 1792.

SIR,

I have seen in the public newspapers the following advertisement, to wit

"To the Nobility, Gentry, Clergy, Freeholders, and other Inhabitants of the county of Surry.

"At the requisition and desire of several of the freeholders of the county, I am, in the absence of the Sheriff, to desire the favour of your attendance, at a meeting to be held at Epsom, on Monday, the 18th instant, at 12 o'clock at noon, to consider of an humble address to his majesty, to express our grateful approbation of his majesty's paternal, and well-timed attendance to the public welfare, in his late most gracious Proclamation against the enemies of our happy Constitution.

"(Signed.) Onslow Cranley."

Taking it for granted, that the aforesaid advertisement, equally as obscure as the proclamation to which it refers, has nevertheless some meaning, and is intended to effect some purpose; and as a prosecution (whether wisely or unwisely, justly or unjustly) is already commenced against a work intituled RIGHTS OF MAN, of which I have the honour and happiness to be the author; I feel it necessary to address this letter to you, and to request that it may be read publicly to the gentlemen who shall meet at Epsom in consequence of the advertisement.

The work now under prosecution is, I conceive, the same work which is intended to be suppressed by the aforesaid proclamation. Admitting this to be the case, the gentlemen of the county of Surry are called upon by somebody to condemn a work, and they are at the same time forbidden by

the proclamation to know what that work is; and they are further called upon to give their aid and assistance to prevent other people from knowing it also. It is therefore necessary that the author, for his own justification, as well as to prevent the gentlemen who shall meet from being imposed upon by misrepresentation, should give some outlines of the principles and plans which that work contains.

The work, Sir, in question, contains, first, an investigation of general principles of government.

It also distinguishes government into two classes or systems, the one the hereditary system; the other the representative system; and it compares these two systems with each other.

It shews that what is called hereditary government cannot exist as a matter of right; because hereditary government always means a government yet to come; and the case always is, that those who are to live afterwards have always the same right to establish a government for themselves as the people who had lived before them.

It also shews the defect to which hereditary government is unavoidably subject: that it must, from the nature of it, throw government into the hands of men totally unworthy of it from the want of principle, and unfitted for it from want of capacity. James II. and many others are recorded in the English history as proofs of the former of those cases, and instances are to be found all over Europe to prove the truth of the latter.

It then shews that the representative system is the only true system of government; that it is also the only system under which the liberties of any people can be permanently secure; and, further, that it is the only one that can continue the same equal probability at all times of admitting of none but men properly qualified, both by principles and abilities, into government, and of excluding such as are otherwise.

The work shews also, by plans and calculations not hitherto denied nor controverted, not even by the prosecution that is commenced, that the taxes now existing may be reduced at least six millions, that taxes may be entirely taken off from the poor, who are computed at one third of the nation; and that taxes on the other two thirds may be considerably reduced; that the aged poor may be comfortably provided for, and the children of poor families properly educated; that fifteen thousand soldiers, and the same number of sailors, may be allowed three shillings per week during life out

of the surplus taxes; and also that a proportionate allowance may be made to the officers, and the pay of the remaining soldiers and sailors be raised; and that it is better to apply the surplus taxes to those purposes, than to consume them on lazy and profligate placemen and pensioners; and that the revenue, said to be twenty thousand pounds per annum, raised by a tax upon coals, and given to the Duke of Richmond, is a gross imposition upon all the people of London, and ought to be instantly abolished.

This, Sir, is a concise abstract of the principles and plans contained in the work that is now prosecuted, and for the suppression of which the proclamation appears to be intended; but as it is impossible that I can, in the compass of a letter, bring into view all the matters contained in the work, and as it is proper that the gentlemen who may compose that meeting should know what the merits or demerits of it are, before they come to any resolutions, either directly or indirectly relating thereto, I request the honour of presenting them with one hundred copies of the second part of the Rights of Man, and also one thousand copies of my letter to Mr. Dundas, which I have directed to be sent to Epsom for that purpose; and I beg the favour of the Chairman to take the trouble of presenting them to the gentlemen who shall meet on that occasion, with my sincere wishes for their happiness, and for that of the nation in general.

Having now closed thus much of the subject of my letter, I next come to speak of what has relation to me personally. I am well aware of the delicacy that attends it, but the purpose of calling the meeting appears to me so inconsistent with that justice that is always due between man and man, that it is proper I should (as well on account of the gentlemen who may meet, as on my own account) explain myself fully and candidly thereon.

I have already informed the gentlemen, that a prosecution is commenced against a work of which I have the honour and happiness to be the author; and I have good reasons for believing that the proclamation which the gentlemen are called to consider, and to present an address upon, is purposely calculated to give an impression to the jury before whom that matter is to come. In short, that it is dictating a verdict by proclamation; and I consider the instigators of the meeting to be held at Epsom, as aiding and abetting the same improper, and, in my opinion, illegal purpose, and that in a manner very artfully contrived, as I shall now shew.

Had a meeting been called of the Freeholders of the county of Middlesex, the gentlemen who had composed that meeting would have rendered themselves objectionable as persons to serve on a Jury, before whom the judicial case was afterwards to come. But by calling a meeting out of the county of Middlesex, that matter is artfully avoided, and the gentlemen of Surry are summoned, as if it were intended thereby to give a tone to the sort of verdict which the instigators of the meeting no doubt wish should be brought in, and to give countenance to the Jury in so doing. I am, sir,

With much respect to the

Gentlemen who shall meet, Their and your obedient and humble Servant,
Thomas Paine.

TO ONSLOW CRANLEY, COMMONLY CALLED LORD ONSLOW.
SECOND LETTER. SIR,

London, June 21st 1792.

WHEN I wrote you the letter which Mr. Home Tooke did me the favour to present to you, as chairman of the meeting held at Epsom, Monday, June 18, it was not with much expectation that you would do me the justice of permitting, or recommending it to be publicly read. I am well aware that the signature of Thomas Paine has something in it dreadful to sinecure Placemen and Pensioners; and when you, on seeing the letter opened, informed the meeting that it was signed Thomas Paine, and added in a note of exclamation, "the common enemy of us all." you spoke one of the greatest truths you ever uttered, if you confine the expression to men of the same description with yourself; men living in indolence and luxury, on the spoil and labours of the public.

The letter has since appeared in the "Argus," and probably in other papers.(1) It will justify itself; but if any thing on that account hath been wanting, your conduct at the meeting would have supplied the omission. You there sufficiently proved that I was not mistaken in supposing that the meeting was called to give an indirect aid to the prosecution commenced against a work, the reputation of which will long outlive the memory of the Pensioner I am writing to.

When meetings, Sir, are called by the partisans of the Court, to preclude the nation the right of investigating systems and principles of government, and of exposing errors and defects, under the pretence of prosecuting an

individual—it furnishes an additional motive for maintaining sacred that violated right.

The principles and arguments contained in the work in question, *Rights OF Man*, have stood, and they now stand, and I believe ever will stand, unrefuted. They are stated in a fair and open manner to the world, and they have already received the public approbation of a greater number of men, of the best of characters, of every denomination of religion, and of every rank in life, (placemen and pensioners excepted,) than all the juries that shall meet in England, for ten years to come, will amount to; and I have, moreover, good reasons for believing that the approvers of that work, as well private as public, are already more numerous than all the present electors throughout the nation.

1 The Argus was edited by Sampson Perry, soon after prosecuted.—Editor.

Not less than forty pamphlets, intended as answers thereto, have appeared, and as suddenly disappeared: scarcely are the titles of any of them remembered, notwithstanding their endeavours have been aided by all the daily abuse which the Court and Ministerial newspapers, for almost a year and a half, could bestow, both upon the work and the author; and now that every attempt to refute, and every abuse has failed, the invention of calling the work a libel has been hit upon, and the discomfited party has pusillanimously retreated to prosecution and a jury, and obscure addresses.

As I well know that a long letter from me will not be agreeable to you, I will relieve your uneasiness by making it as short as I conveniently can; and will conclude it with taking up the subject at that part where Mr. HORNE TOOKE was interrupted from going on when at the meeting.

That gentleman was stating, that the situation you stood in rendered it improper for you to appear *actively* in a scene in which your private interest was too visible: that you were a Bedchamber Lord at a thousand a year, and a Pensioner at three thousand pounds a year more—and here he was stopped by the little but noisy circle you had collected round. Permit me then, Sir, to add an explanation to his words, for the benefit of your neighbours, and with which, and a few observations, I shall close my letter.

When it was reported in the English Newspapers, some short time since, that the empress of RUSSIA had given to one of her minions a large tract of

country and several thousands of peasants as property, it very justly provoked indignation and abhorrence in those who heard it. But if we compare the mode practised in England, with that which appears to us so abhorrent in Russia, it will be found to amount to very near the same thing;—for example—

As the whole of the revenue in England is drawn by taxes from the pockets of the people, those things called gifts and grants (of which kind are all pensions and sinecure places) are paid out of that stock. The difference, therefore, between the two modes is, that in England the money is collected by the government, and then given to the Pensioner, and in Russia he is left to collect it for himself. The smallest sum which the poorest family in a county so near London as Surry, can be supposed to pay annually, of taxes, is not less than five pounds; and as your sinecure of one thousand, and pension of three thousand per annum, are made up of taxes paid by eight hundred such poor families, it comes to the same thing as if the eight hundred families had been given to you, as in Russia, and you had collected the money on your account. Were you to say that you are not quartered particularly on the people of Surrey, but on the nation at large, the objection would amount to nothing; for as there are more pensioners than counties, every one may be considered as quartered on that in which he lives.

What honour or happiness you can derive from being the PRINCIPAL PAUPER of the neighbourhood, and occasioning a greater expence than the poor, the aged, and the infirm, for ten miles round you, I leave you to enjoy. At the same time I can see that it is no wonder you should be strenuous in suppressing a book which strikes at the root of those abuses. No wonder that you should be against reforms, against the freedom of the press, and the right of investigation. To you, and to others of your description, these are dreadful things; but you should also consider, that the motives which prompt you to *act*, ought, by reflection, to compel you to be *silent*.

Having now returned your compliment, and sufficiently tired your patience, I take my leave of you, with mentioning, that if you had not prevented my former letter from being read at the meeting, you would not have had the trouble of reading this; and also with requesting, that the next time you call me "*a common enemy*," you would add, "*of us sinecure placemen and pensioners*."

I am, Sir, &c. &c. &c.

Thomas Paine.

VII. TO THE SHERIFF OF THE COUNTY OF SUSSEX,

OR, THE GENTLEMAN WHO SHALL PRESIDE AT THE MEETING
TO BE HELD AT LEWES, JULY 4.

London, June 30, 1792.

Sir,

I have seen in the Lewes newspapers, of June 25, an advertisement, signed by sundry persons, and also by the sheriff, for holding a meeting at the Town-hall of Lewes, for the purpose, as the advertisement states, of presenting an Address on the late Proclamation for suppressing writings, books, &c. And as I conceive that a certain publication of mine, entitled "Rights of Man," in which, among other things, the enormous increase of taxes, placemen, and pensioners, is shewn to be unnecessary and oppressive, *is the particular writing alluded to in the said publication*; I request the Sheriff, or in his absence, whoever shall preside at the meeting, or any other person, to read this letter publicly to the company who shall assemble in consequence of that advertisement.

Gentlemen—It is now upwards of eighteen years since I was a resident inhabitant of the town of Lewes. My situation among you, as an officer of the revenue, for more than six years, enabled me to see into the numerous and various distresses which the weight of taxes even at that time of day occasioned; and feeling, as I then did, and as it is natural for me to do, for the hard condition of others, it is with pleasure I can declare, and every person then under my survey, and now living, can witness, the exceeding candour, and even tenderness, with which that part of the duty that fell to my share was executed. The name of *Thomas Paine* is not to be found in the records of the Lewes' justices, in any one act of contention with, or severity of any kind whatever towards, the persons whom he surveyed, either in the town, or in the country; of this, *Mr. Fuller* and *Mr. Shelley*, who will probably attend the meeting, can, if they please, give full testimony. It is, however, not in their power to contradict it.

Having thus indulged myself in recollecting a place where I formerly had, and even now have, many friends, rich and poor, and most probably some enemies, I proceed to the more important purport of my letter.

Since my departure from Lewes, fortune or providence has thrown me into a line of action, which my first setting out into life could not possibly have suggested to me.

I have seen the fine and fertile country of America ravaged and deluged in blood, and the taxes of England enormously increased and multiplied in consequence thereof; and this, in a great measure, by the instigation of the same class of placemen, pensioners, and Court dependants, who are now promoting addresses throughout England, on the present *unintelligible* Proclamation.

I have also seen a system of Government rise up in that country, free from corruption, and now administered over an extent of territory ten times as large as England, *for less expence than the pensions alone in England amount to*; and under which more freedom is enjoyed, and a more happy state of society is preserved, and a more general prosperity is promoted, than under any other system of Government now existing in the world. Knowing, as I do, the things I now declare, I should reproach myself with want of duty and affection to mankind, were I not in the most undismayed manner to publish them, as it were, on the house-tops, for the good of others.

Having thus glanced at what has passed within my knowledge, since my leaving Lewes, I come to the subject more immediately before the meeting now present.

Mr. Edmund Burke, who, as I shall show, in a future publication, has lived a concealed pensioner, at the expence of the public, of fifteen hundred pounds per annum, for about ten years last past, published a book the winter before last, in open violation of the principles of liberty, and for which he was applauded by that class of men *who are now promoting addresses*. Soon after his book appeared, I published the first part of the work, entitled "Rights of Man," as an answer thereto, and had the happiness of receiving the public thanks of several bodies of men, and of numerous individuals of the best character, of every denomination in religion, and of every rank in life—placemen and pensioners excepted.

In February last, I published the Second Part of "Rights of Man," and as it met with still greater approbation from the true friends of national freedom, and went deeper into the system of Government, and exposed the abuses of it, more than had been done in the First Part, it consequently excited an alarm among all those, who, insensible of the burthen of taxes which the general mass of the people sustain, are living in luxury and indolence, and hunting after Court preferments, sinecure places, and pensions, either for themselves, or for their family connections.

I have shewn in that work, that the taxes may be reduced at least *six millions*, and even then the expences of Government in England would be twenty times greater than they are in the country I have already spoken of. That taxes may be entirely taken off from the poor, by remitting to them in money at the rate of between *three and four pounds* per head per annum, for the education and bringing up of the children of the poor families, who are computed at one third of the whole nation, and *six pounds* per annum to all poor persons, decayed tradesmen, or others, from the age of fifty until sixty, and *ten pounds* per annum from after sixty. And that in consequence of this allowance, to be paid out of the surplus taxes, the poor-rates would become unnecessary, and that it is better to apply the surplus taxes to these beneficent purposes, *than to waste them on idle and profligate courtiers, placemen, and pensioners.*

These, gentlemen, are a part of the plans and principles contained in the work, which this meeting is now called upon, in an indirect manner, to vote an address against, and brand with the name of *wicked and seditious*. But that the work may speak for itself, I request leave to close this part of my letter with an extract therefrom, in the following words: [*Quotation the same as that on p. 26.*]

Gentlemen, I have now stated to you such matters as appear necessary to me to offer to the consideration of the meeting. I have no other interest in what I am doing, nor in writing you this letter, than the interest of the *heart*. I consider the proposed address as calculated to give countenance to placemen, pensioners, enormous taxation, and corruption. Many of you will recollect, that whilst I resided among you, there was not a man more firm and open in supporting the principles of liberty than myself, and I still pursue, and ever will, the same path.

I have, Gentlemen, only one request to make, which is—that those who have called the meeting will speak *out*, and say, whether in the address they are going to present against publications, which the proclamation calls wicked, they mean the work entitled *Rights of Man*, or whether they do not?

I am, Gentlemen, With sincere wishes for your happiness,

Your friend and Servant,

Thomas Paine.

VIII. TO MR. SECRETARY DUNDAS.

Calais, Sept. 15, 1792.

Sir,

I CONCEIVE it necessary to make you acquainted with the following circumstance:—The department of Calais having elected me a member of the National Convention of France, I set off from London the 13th instant, in company with Mr. Frost, of Spring Garden, and Mr. Audibert, one of the municipal officers of Calais, who brought me the certificate of my being elected. We had not arrived more, I believe, than five minutes at the York Hotel, at Dover, when the train of circumstances began that I am going to relate. We had taken our baggage out of the carriage, and put it into a room, into which we went. Mr. Frost, having occasion to go out, was stopped in the passage by a gentleman, who told him he must return into the room, which he did, and the gentleman came in with him, and shut the door. I had remained in the room; Mr. Audibert was gone to inquire when the packet was to sail. The gentleman then said, that he was collector of the customs, and had an information against us, and must examine our baggage for prohibited articles. He produced his commission as Collector. Mr. Frost demanded to see the information, which the Collector refused to shew, and continued to refuse, on every demand that we made. The Collector then called in several other officers, and began first to search our pockets. He took from Mr. Audibert, who was then returned into the room, every thing he found in his pocket, and laid it on the table. He then searched Mr. Frost in the same manner, (who, among other things, had the keys of the trunks in his pocket,) and then did the same by me. Mr. Frost wanting to go out, mentioned it, and was going towards the door; on which the Collector placed himself against the door, and said, nobody should depart the room. After the keys had been taken from Mr. Frost, (for I had given him the keys of my trunks beforehand, for the purpose of his attending the baggage to the customs, if it should be necessary,) the Collector asked us to open the trunks, presenting us the keys for that purpose; this we declined to do, unless he would produce his information, which he again refused. The

Collector then opened the trunks himself, and took out every paper and letter, sealed or unsealed. On our remonstrating with him on the bad policy, as well as the illegality, of Custom-House officers seizing papers and letters, which were things that did not come under their cognizance, he replied, that the *Proclamation* gave him the authority.

Among the letters which he took out of my trunk, were two sealed letters, given into my charge by the American Minister in London [Pinckney], one of which was directed to the American Minister at Paris [Gouverneur Morris], the other to a private gentleman; a letter from the President of the United States, and a letter from the Secretary of State in America, both directed to me, and which I had received from the American Minister, now in London, and were private letters of friendship; a letter from the electoral body of the Department of Calais, containing the notification of my being elected to the National Convention; and a letter from the President of the National Assembly, informing me of my being also elected for the Department of the Oise.

As we found that all remonstrances with the Collector, on the bad policy and illegality of seizing papers and letters, and retaining our persons by force, under the pretence of searching for prohibited articles, were vain, (for he justified himself on the Proclamation, and on the information which he refused to shew,) we contented ourselves with assuring him, that what he was then doing, he would afterwards have to answer for, and left it to himself to do as he pleased.

It appeared to us that the Collector was acting under the direction of some other person or persons, then in the hotel, but whom he did not choose we should see, or who did not choose to be seen by us; for the Collector went several times out of the room for a few minutes, and was also called out several times.

When the Collector had taken what papers and letters he pleased out of the trunks, he proceeded to read them. The first letter he took up for this purpose was that from the President of the United States to me. While he was doing this, I said, that it was very extraordinary that General Washington could not write a letter of private friendship to me, without its being subject to be read by a custom-house officer. Upon this Mr. Frost laid his hand over the face of the letter, and told the Collector that he should not read it, and took it from him. Mr. Frost then, casting his eyes on the

concluding paragraph of the letter, said, I will read this part to you, which he did; of which the following is an exact transcript—

"And as no one can feel a greater interest in the happiness of mankind than I do, it is the first wish of my heart, that the enlightened policy of the present age may diffuse to all men those blessings to which they are entitled, and lay the foundation of happiness for future generations."(1)

As all the other letters and papers lay then on the table, the Collector took them up, and was going out of the room with them. During the transactions already stated, I contented myself with observing what passed, and spoke but little; but on seeing the Collector going out of the room with the letters, I told him that the papers and letters then in his hand were either belonging to me, or entrusted to my charge, and that as I could not permit them to be out of my sight, I must insist on going with him.

1 Washington's letter is dated 6 May, 1792. See my Life of Paine vol. i., p. 302.—Editor.

The Collector then made a list of the letters and papers, and went out of the room, giving the letters and papers into the charge of one of the officers. He returned in a short time, and, after some trifling conversation, chiefly about the Proclamation, told us, that he saw *the Proclamation was ill-founded*, and asked if we chose to put the letters and papers into the trunks ourselves, which, as we had not taken them out, we declined doing, and he did it himself, and returned us the keys.

In stating to you these matters, I make no complaint against the personal conduct of the Collector, or of any of the officers. Their manner was as civil as such an extraordinary piece of business could admit of.

My chief motive in writing to you on this subject is, that you may take measures for preventing the like in future, not only as it concerns private individuals, but in order to prevent a renewal of those unpleasant consequences that have heretofore arisen between nations from circumstances equally as insignificant. I mention this only for myself; but as the interruption extended to two other gentlemen, it is probable that they, as individuals, will take some more effectual mode for redress.

I am, Sir, yours, &c.

Thomas Paine.

P. S. Among the papers seized, was a copy of the Attorney-General's information against me for publishing the *Rights of Man*, and a printed proof copy of my Letter to the Addressers, which will soon be published.

IX. LETTER ADDRESSED TO THE ADDRESSERS ON THE LATE PROCLAMATION.(1)

COULD I have commanded circumstances with a wish, I know not of any that would have more generally promoted the progress of knowledge, than the late Proclamation, and the numerous rotten Borough and Corporation Addresses thereon. They have not only served as advertisements, but they have excited a spirit of enquiry into principles of government, and a desire to read the Rights OF Man, in places where that spirit and that work were before unknown.

The people of England, wearied and stunned with parties, and alternately deceived by each, had almost resigned the prerogative of thinking. Even curiosity had expired, and a universal languor had spread itself over the land. The opposition was visibly no other than a contest for power, whilst the mass of the nation stood torpidly by as the prize.

In this hopeless state of things, the First Part of the Rights of Man made its appearance. It had to combat with a strange mixture of prejudice and indifference; it stood exposed to every species of newspaper abuse; and besides this, it had to remove the obstructions which Mr. Burke's rude and outrageous attack on the French Revolution had artfully raised.

1 The Royal Proclamation issued against seditious writings, May 21st. This pamphlet, the proof of which was read in Paris (see P. S. of preceding chapter), was published at 1s. 6d. by H. D. Symonds, Paternoster Row, and Thomas Clio Rickman, 7 Upper Marylebone Street (where it was written), both pub-Ushers being soon after prosecuted.—Editor.

But how easy does even the most illiterate reader distinguish the spontaneous sensations of the heart, from the laboured productions of the brain. Truth, whenever it can fully appear, is a thing so naturally familiar to the mind, that an acquaintance commences at first sight. No artificial light, yet discovered, can display all the properties of daylight; so neither can the best invented fiction fill the mind with every conviction which truth begets.

To overthrow Mr. Burke's fallacious book was scarcely the operation of a day. Even the phalanx of Placemen and Pensioners, who had given the tone to the multitude, by clamouring forth his political fame, became suddenly silent; and the final event to himself has been, that as he rose like a rocket, he fell like the stick.

It seldom happens, that the mind rests satisfied with the simple detection of error or imposition. Once put in motion, *that* motion soon becomes accelerated; where it had intended to stop, it discovers new reasons to proceed, and renews and continues the pursuit far beyond the limits it first prescribed to itself. Thus it has happened to the people of England. From a detection of Mr. Burke's incoherent rhapsodies, and distorted facts, they began an enquiry into the first principles of Government, whilst himself, like an object left far behind, became invisible and forgotten.

Much as the First Part of RIGHTS OF Man impressed at its first appearance, the progressive mind soon discovered that it did not go far enough. It detected errors; it exposed absurdities; it shook the fabric of political superstition; it generated new ideas; but it did not produce a regular system of principles in the room of those which it displaced. And, if I may guess at the mind of the Government-party, they beheld it as an unexpected gale that would soon blow over, and they forbore, like sailors in threatening weather, to whistle, lest they should encrease(sic) the wind. Every thing, on their part, was profound silence.

When the Second Part of *Rights of Man, combining Principle and Practice*, was preparing to appear, they affected, for a while, to act with the same policy as before; but finding their silence had no more influence in stifling the progress of the work, than it would have in stopping the progress of time, they changed their plan, and affected to treat it with clamorous contempt. The Speech-making Placemen and Pensioners, and Place-expectants, in both Houses of Parliament, the *Outs* as well as the *Ins*, represented it as a silly, insignificant performance; as a work incapable of producing any effect; as something which they were sure the good sense of the people would either despise or indignantly spurn; but such was the overstrained awkwardness with which they harangued and encouraged each other, that in the very act of declaring their confidence they betrayed their fears.

As most of the rotten Borough Addressers are obscured in holes and corners throughout the country, and to whom a newspaper arrives as rarely as an almanac, they most probably have not had the opportunity of knowing how far this part of the farce (the original prelude to all the Addresses) has been acted. For *their* information, I will suspend a while the more serious purpose of my Letter, and entertain them with two or three Speeches in the last Session of Parliament, which will serve them for politics till Parliament meets again.

You must know, Gentlemen, that the Second Part of the Rights of Man (the book against which you have been presenting Addresses, though it is most probable that many of you did not know it) was to have come out precisely at the time that Parliament last met. It happened not to be published till a few days after. But as it was very well known that the book would shortly appear, the parliamentary Orators entered into a very cordial coalition to cry the book down, and they began their attack by crying up the *blessings* of the Constitution.

Had it been your fate to have been there, you could not but have been moved at the heart-and-pocket-felt congratulations that passed between all the parties on this subject of *blessings*; for the *Outs* enjoy places and pensions and sinecures as well as the *Ins*, and are as devoutly attached to the firm of the house.

One of the most conspicuous of this motley groupe, is the Clerk of the Court of King's Bench, who calls himself Lord Stormont. He is also called Justice General of Scotland, and Keeper of Scoon, (an opposition man,) and he draws from the public for these nominal offices, not less, as I am informed, than six thousand pounds a-year, and he is, most probably, at the trouble of counting the money, and signing a receipt, to shew, perhaps, that he is qualified to be Clerk as well as Justice. He spoke as follows.(*).

"That we shall all be unanimous in expressing our attachment to the constitution of these realms, I am confident. It is a subject upon which there can be no divided opinion in this house. I do not pretend to be deep read in the knowledge of the Constitution, but I take upon me to say, that from the extent of my knowledge [*for I have so many thousands a year for nothing*] it appears to me, that from the period of the Revolution, for it was by no means created then, it has been, both in theory and practice, the wisest system that ever was formed. I never was [he means he never was till now]

a dealer in political cant. My life has not been occupied in that way, but the speculations of late years seem to have taken a turn, for which I cannot account. When I came into public life, the political pamphlets of the time, however they might be charged with the heat and violence of parties, were agreed in extolling the radical beauties of the Constitution itself. I remember [*he means he has forgotten*] a most captivating eulogium on its charms, by Lord Bolingbroke, where he recommends his readers to contemplate it in all its aspects, with the assurance that it would be found more estimable the more it was seen, I do not recollect his precise words, but I wish that men who write upon these subjects would take this for their model, instead of the political pamphlets, which, I am told, are now in circulation, [*such, I suppose, as Rights of Man,*] pamphlets which I have not read, and whose purport I know only by report, [*he means, perhaps, by the noise they make.*] This, however, I am sure, that pamphlets tending to unsettle the public reverence for the constitution, will have very little influence. They can do very little harm—for [*by the bye, he is no dealer in political cant*] the English are a sober-thinking people, and are more intelligent, more solid, more steady in their opinions, than any people I ever had the fortune to see. [*This is pretty well laid on, though, for a new beginner.*] But if there should ever come a time when the propagation of those doctrines should agitate the public mind, I am sure for every one of your Lordships, that no attack will be made on the constitution, from which it is truly said that we derive all our prosperity, without raising every one of your Lordships to its support. It will then be found that there is no difference among us, but that we are all determined to stand or fall together, in defence of the inestimable system "*—[of places and pensions]*).

* See his speech in the Morning Chronicle of Feb. 1.—
Author.

After Stormont, on the opposition side, sat down, up rose another noble Lord, on the ministerial side, Grenville. This man ought to be as strong in the back as a mule, or the sire of a mule, or it would crack with the weight of places and offices. He rose, however, without feeling any incumbrance, full master of his weight; and thus said this noble Lord to t'other noble Lord!

"The patriotic and manly manner in which the noble Lord has declared his sentiments on the subject of the constitution, demands my cordial

approbation. The noble Viscount has proved, that however we may differ on particular measures, amidst all the jars and dissonance of parties, we are unanimous in principle. There is a perfect and entire consent [*between us*] in the love and maintenance of the constitution as happily subsisting. It must undoubtedly give your Lordships concern, to find that the time is come [heigh ho!] when there is propriety in the expressions of regard to [o! o! o!] the constitution. And that there are men [confound—their—po-li-tics] who disseminate doctrines hostile to the genuine spirit of our well balanced system, [*it is certainly well balanced when both sides hold places and pensions at once.*] I agree with the noble viscount that they have not [I hope] much success. I am convinced that there is no danger to be apprehended from their attempts: but it is truly important and consolatory [to us placemen, I suppose] to know, that if ever there should arise a serious alarm, there is but one spirit, one sense, [*and that sense I presume is not common sense*] and one determination in this house "—which undoubtedly is to hold all their places and pensions as long as they can.

Both those speeches (except the parts enclosed in parenthesis, which are added for the purpose of illustration) are copied verbatim from the Morning Chronicle of the 1st of February last; and when the situation of the speakers is considered, the one in the opposition, and the other in the ministry, and both of them living at the public expence, by sinecure, or nominal places and offices, it required a very unblushing front to be able to deliver them. Can those men seriously suppose any nation to be so completely blind as not to see through them? Can Stormont imagine that the political *cant*, with which he has larded his harangue, will conceal the craft? Does he not know that there never was a cover large enough to hide *itself*? Or can Grenville believe that his credit with the public encreases with his avarice for places?

But, if these orators will accept a service from me, in return for the allusions they have made to the *Rights of Man*, I will make a speech for either of them to deliver, on the excellence of the constitution, that shall be as much to the purpose as what they have spoken, or as *Bolingbroke's captivating eulogium*. Here it is.

"That we shall all be unanimous in expressing our attachment to the constitution, I am confident. It is, my Lords, incomprehensibly good: but the great wonder of all is the wisdom; for it is, my lords, *the wisest system that ever was formed*.

"With respect to us, noble Lords, though the world does not know it, it is very well known to us, that we have more wisdom than we know what to do with; and what is still better, my Lords, we have it all in stock. I defy your Lordships to prove, that a tittle of it has been used yet; and if we but go on, my Lords, with the frugality we have hitherto done, we shall leave to our heirs and successors, when we go out of the world, the whole stock of wisdom, *untouched*, that we brought in; and there is no doubt but they will follow our example. This, my lords, is one of the blessed effects of the hereditary system; for we can never be without wisdom so long as we keep it by us, and do not use it.

"But, my Lords, as all this wisdom is hereditary property, for the sole benefit of us and our heirs, and it is necessary that the people should know where to get a supply for their own use, the excellence of our constitution has provided us a King for this very purpose, and for *no other*. But, my Lords, I perceive a defect to which the constitution is subject, and which I propose to remedy by bringing a bill into Parliament for that purpose.

"The constitution, my Lords, out of delicacy, I presume, has left it as a matter of *choice* to a King whether he will be wise or not. It has not, I mean, my Lords, insisted upon it as a constitutional point, which, I conceive it ought to have done; for I pledge myself to your Lordships to prove, and that with *true patriotic boldness*, that he has *no choice in the matter*. This bill, my Lords, which I shall bring in, will be to declare, that the constitution, according to the true intent and meaning thereof, does not invest the King with this choice; our ancestors were too wise to do that; and, in order to prevent any doubts that might otherwise arise, I shall prepare, my Lords, an enacting clause, to fix the wisdom of Kings by act of Parliament; and then, my Lords our Constitution will be the wonder of the world!

"Wisdom, my lords, is the one thing needful: but that there may be no mistake in this matter, and that we may proceed consistently with the true wisdom of the constitution, I shall propose a *certain criterion* whereby the *exact quantity of wisdom* necessary for a King may be known. [Here should be a cry of, Hear him! Hear him!]

"It is recorded, my Lords, in the Statutes at Large of the Jews, 'a book, my Lords, which I have not read, and whose purport I know only by report,' *but perhaps the bench of Bishops can recollect something about it*, that Saul

gave the most convincing proofs of royal wisdom before he was made a King, *for he was sent to seek his father's asses and he could not find them.*

"Here, my Lords, we have, most happily for us, a case in point: This precedent ought to be established by act of Parliament; and every King, before he be crowned, should be sent to seek his father's asses, and if he cannot find them, he shall be declared wise enough to be King, according to the true meaning of our excellent constitution. All, therefore, my Lords, that will be necessary to be done by the enacting clause that I shall bring in, will be to invest the King beforehand with the quantity of wisdom necessary for this purpose, lest he should happen not to possess it; and this, my Lords, we can do without making use of any of our own.

"We further read, my Lords, in the said Statutes at Large of the Jews, that Samuel, who certainly was as mad as any Man-of-Rights-Man now-a-days (hear him! hear him!), was highly displeased, and even exasperated, at the proposal of the Jews to have a King, and he warned them against it with all that assurance and impudence of which he was master. I have been, my Lords, at the trouble of going all the way to *Paternoster-row*, to procure an extract from the printed copy. I was told that I should meet with it there, or in *Amen-eorner*, for I was then going, my Lords, to rummage for it among the curiosities of the *Antiquarian Society*. I will read the extracts to your Lordships, to shew how little Samuel knew of the matter.

"The extract, my Lords, is from 1 Sam. chap. viii.:

""And Samuel told all the words of the Lord unto the people that asked of him a King.

""And he said, this will be the manner of the King that shall reign over you: he will take your sons, and appoint them for himself, for his chariots, and to be his horsemen; and some shall run before his chariots.

""And he will appoint him captains over thousands, and captains over fifties, and will set them to ear his ground, and to reap his harvest, and to make his instruments of war, and instruments of his chariots.

""And he will take your daughters to be confectionnes, and to be cooks, and to be bakers.

""And he will take your fields, and your vineyards, and your olive-yards, even the best of them, and give them to his servants.

"And he will take the tenth of your seed, and of your vineyards, and give to his officers and to his servants.

"And he will take your men-servants, and your maid-servants, and your goodliest young men, and your asses, and put them to his work.

"And he will take the tenth of your sheep, and ye shall be his servants.

"And ye shall cry out in that day, because of your King, which ye shall have chosen you; and the Lord will not hear you in that day.'

"Now, my Lords, what can we think of this man Samuel? Is there a word of truth, or any thing like truth, in all that he has said? He pretended to be a prophet, or a wise man, but has not the event proved him to be a fool, or an incendiary? Look around, my Lords, and see if any thing has happened that he pretended to foretell! Has not the most profound peace reigned throughout the world ever since Kings were in fashion? Are not, for example, the present Kings of Europe the most peaceable of mankind, and the Empress of Russia the very milk of human kindness? It would not be worth having Kings, my Lords, if it were not that they never go to war.

"If we look at home, my Lords, do we not see the same things here as are seen every where else? Are our young men taken to be horsemen, or foot soldiers, any more than in Germany or in Prussia, or in Hanover or in Hesse? Are not our sailors as safe at land as at sea? Are they ever dragged from their homes, like oxen to the slaughter-house, to serve on board ships of war? When they return from the perils of a long voyage with the merchandize of distant countries, does not every man sit down under his own vine and his own fig-tree, in perfect security? Is the tenth of our seed taken by tax-gatherers, or is any part of it given to the King's servants? In short, *is not everything as free from taxes as the light from Heaven!* (1)

"Ah! my Lords, do we not see the blessed effect of having Kings in every thing we look at? Is not the G. R., or the broad R., stampd upon every thing? Even the shoes, the gloves, and the hats that we wear, are enriched with the impression, and all our candles blaze a burnt-offering.

"Besides these blessings, my Lords, that cover us from the sole of the foot to the crown of the head, do we not see a race of youths growing up to be Kings, who are the very paragons of virtue? There is not one of them, my Lords, but might be trusted with untold gold, as safely as the other. Are they not '*more sober, intelligent, more solid, more steady,*' and withal, *more*

learned, more wise, more every thing, than any youths we 'ever had the fortune to see.' Ah! my Lords, they are a hopeful family.

"The blessed prospect of succession, which the nation has at this moment before its eyes, is a most undeniable proof of the excellence of our constitution, and of the blessed hereditary system; for nothing, my Lords, but a constitution founded on the truest and purest wisdom could admit such heaven-born and heaven-taught characters into the government.—Permit me now, my Lords, to recal your attention to the libellous chapter I have just read about Kings. I mention this, my Lords, because it is my intention to move for a bill to be brought into parliament to expunge that chapter from the Bible, and that the Lord Chancellor, with the assistance of the Prince of Wales, the Duke of York, and the Duke of Clarence, be requested to write a chapter in the room of it; and that Mr. Burke do see that it be truly canonical, and faithfully inserted."—Finis.

1 Allusion to the window-tax.—Editor,

If the Clerk of the Court of King's Bench should chuse to be the orator of this luminous encomium on the constitution, I hope he will get it well by heart before he attempts to deliver it, and not have to apologize to Parliament, as he did in the case of Bolingbroke's encomium, for forgetting his lesson; and, with this admonition I leave him.

Having thus informed the Addressers of what passed at the meeting of Parliament, I return to take up the subject at the part where I broke off in order to introduce the preceding speeches.

I was then stating, that the first policy of the Government party was silence, and the next, clamorous contempt; but as people generally choose to read and judge for themselves, the work still went on, and the affectation of contempt, like the silence that preceded it, passed for nothing.

Thus foiled in their second scheme, their evil genius, like a will-with-a-wisp, led them to a third; when all at once, as if it had been unfolded to them by a fortune-teller, or Mr. Dundas had discovered it by second sight, this once harmless, insignificant book, without undergoing the alteration of a single letter, became a most wicked and dangerous Libel. The whole Cabinet, like a ship's crew, became alarmed; all hands were piped upon deck, as if a conspiracy of elements was forming around them, and out

came the Proclamation and the Prosecution; and Addresses supplied the place of prayers.

Ye silly swains, thought I to myself, why do you torment yourselves thus? The Rights OF Man is a book calmly and rationally written; why then are you so disturbed? Did you see how little or how suspicious such conduct makes you appear, even cunning alone, had you no other faculty, would hush you into prudence. The plans, principles, and arguments, contained in that work, are placed before the eyes of the nation, and of the world, in a fair, open, and manly manner, and nothing more is necessary than to refute them. Do this, and the whole is done; but if ye cannot, so neither can ye suppress the reading, nor convict the author; for the Law, in the opinion of all good men, would convict itself, that should condemn what cannot be refuted.

Having now shown the Addressers the several stages of the business, prior to their being called upon, like Cfsar in the Tyber, crying to Cassius, "*help, Cassius, or I sink!*" I next come to remark on the policy of the Government, in promoting Addresses; on the consequences naturally resulting therefrom; and on the conduct of the persons concerned.

With respect to the policy, it evidently carries with it every mark and feature of disguised fear. And it will hereafter be placed in the history of extraordinary things, that a pamphlet should be produced by an individual, unconnected with any sect or party, and not seeking to make any, and almost a stranger in the land, that should compleatly frighten a whole Government, and that in the midst of its most triumphant security. Such a circumstance cannot fail to prove, that either the pamphlet has irresistible powers, or the Government very extraordinary defects, or both. The nation exhibits no signs of fear at the Rights of Man; why then should the Government, unless the interest of the two are really opposite to each other, and the secret is beginning to be known? That there are two distinct classes of men in the nation, those who pay taxes, and those who receive and live upon the taxes, is evident at first sight; and when taxation is carried to excess, it cannot fail to disunite those two, and something of this kind is now beginning to appear.

It is also curious to observe, amidst all the fume and bustle about Proclamations and Addresses, kept up by a few noisy and interested men, how little the mass of the nation seem to care about either. They appear to

me, by the indifference they shew, not to believe a word the Proclamation contains; and as to the Addresses, they travel to London with the silence of a funeral, and having announced their arrival in the Gazette, are deposited with the ashes of their predecessors, and Mr. Dundas writes their *hic facet*.

One of the best effects which the Proclamation, and its echo the Addresses have had, has been that of exciting and spreading curiosity; and it requires only a single reflection to discover, that the object of all curiosity is knowledge. When the mass of the nation saw that Placemen, Pensioners, and Borough-mongers, were the persons that stood forward to promote Addresses, it could not fail to create suspicions that the public good was not their object; that the character of the books, or writings, to which such persons obscurely alluded, not daring to mention them, was directly contrary to what they described them to be, and that it was necessary that every man, for his own satisfaction, should exercise his proper right, and read and judge for himself.

But how will the persons who have been induced to read the *Rights of Man*, by the clamour that has been raised against it, be surprized to find, that, instead of a wicked, inflammatory work, instead of a licentious and profligate performance, it abounds with principles of government that are uncontrovertible—with arguments which every reader will feel, are unanswerable—with plans for the increase of commerce and manufactures—for the extinction of war—for the education of the children of the poor—for the comfortable support of the aged and decayed persons of both sexes—for the relief of the army and navy, and, in short, for the promotion of every thing that can benefit the moral, civil, and political condition of Man.

Why, then, some calm observer will ask, why is the work prosecuted, if these be the goodly matters it contains? I will tell thee, friend; it contains also a plan for the reduction of Taxes, for lessening the immense expences of Government, for abolishing sinecure Places and Pensions; and it proposes applying the redundant taxes, that shall be saved by these reforms, to the purposes mentioned in the former paragraph, instead of applying them to the support of idle and profligate Placemen and Pensioners.

Is it, then, any wonder that Placemen and Pensioners, and the whole train of Court expectants, should become the promoters of Addresses, Proclamations, and Prosecutions? or, is it any wonder that Corporations and rotten Boroughs, which are attacked and exposed, both in the First and

Second Parts of *Rights of Man*, as unjust monopolies and public nuisances, should join in the cavalcade? Yet these are the sources from which Addresses have sprung. Had not such persons come forward to oppose the *Rights of Man*, I should have doubted the efficacy of my own writings: but those opposers have now proved to me that the blow was well directed, and they have done it justice by confessing the smart.

The principal deception in this business of Addresses has been, that the promoters of them have not come forward in their proper characters. They have assumed to pass themselves upon the public as a part of the Public, bearing a share of the burthen of Taxes, and acting for the public good; whereas, they are in general that part of it that adds to the public burthen, by living on the produce of the public taxes. They are to the public what the locusts are to the tree: the burthen would be less, and the prosperity would be greater, if they were shaken off.

"I do not come here," said Onslow, at the Surry County meeting, "as the Lord Lieutenant and Custos Rotulorum of the county, but I come here as a plain country gentleman." The fact is, that he came there as what he was, and as no other, and consequently he came as one of the beings I have been describing. If it be the character of a gentleman to be fed by the public, as a pauper is by the parish, Onslow has a fair claim to the title; and the same description will suit the Duke of Richmond, who led the Address at the Sussex meeting. He also may set up for a gentleman.

As to the meeting in the next adjoining county (Kent), it was a scene of disgrace. About two hundred persons met, when a small part of them drew privately away from the rest, and voted an Address: the consequence of which was that they got together by the ears, and produced a riot in the very act of producing an Address to prevent Riots.

That the Proclamation and the Addresses have failed of their intended effect, may be collected from the silence which the Government party itself observes. The number of addresses has been weekly retailed in the Gazette; but the number of Addressers has been concealed. Several of the Addresses have been voted by not more than ten or twelve persons; and a considerable number of them by not more than thirty. The whole number of Addresses presented at the time of writing this letter is three hundred and twenty, (rotten Boroughs and Corporations included) and even admitting, on an average, one hundred Addressers to each address, the whole number of

addressers would be but thirty-two thousand, and nearly three months have been taken up in procuring this number. That the success of the Proclamation has been less than the success of the work it was intended to discourage, is a matter within my own knowledge; for a greater number of the cheap edition of the First and Second Parts of the Rights OF Man has been sold in the space only of one month, than the whole number of Addressers (admitting them to be thirty-two thousand) have amounted to in three months.

It is a dangerous attempt in any government to say to a Nation, "*thou shalt not read.*" This is now done in Spain, and was formerly done under the old Government of France; but it served to procure the downfall of the latter, and is subverting that of the former; and it will have the same tendency in all countries; because *thought* by some means or other, is got abroad in the world, and cannot be restrained, though reading may.

If *Rights of Man* were a book that deserved the vile description which the promoters of the Address have given of it, why did not these men prove their charge, and satisfy the people, by producing it, and reading it publicly? This most certainly ought to have been done, and would also have been done, had they believed it would have answered their purpose. But the fact is, that the book contains truths which those time-servers dreaded to hear, and dreaded that the people should know; and it is now following up the,

ADDRESS TO ADDRESSERS.

Addresses in every part of the nation, and convicting them of falsehoods.

Among the unwarrantable proceedings to which the Proclamation has given rise, the meetings of the Justices in several of the towns and counties ought to be noticed.. Those men have assumed to re-act the farce of General Warrants, and to suppress, by their own authority, whatever publications they please. This is an attempt at power equalled only by the conduct of the minor despots of the most despotic governments in Europe, and yet those Justices affect to call England a Free Country. But even this, perhaps, like the scheme for garrisoning the country by building military barracks, is necessary to awaken the country to a sense of its Rights, and, as such, it will have a good effect.

Another part of the conduct of such Justices has been, that of threatening to take away the licences from taverns and public-houses, where the inhabitants of the neighbourhood associated to read and discuss the

principles of Government, and to inform each other thereon. This, again, is similar to what is doing in Spain and Russia; and the reflection which it cannot fail to suggest is, that the principles and conduct of any Government must be bad, when that Government dreads and startles at discussion, and seeks security by a prevention of knowledge.

If the Government, or the Constitution, or by whatever name it be called, be that miracle of perfection which the Proclamation and the Addresses have trumpeted it forth to be, it ought to have defied discussion and investigation, instead of dreading it. Whereas, every attempt it makes, either by Proclamation, Prosecution, or Address, to suppress investigation, is a confession that it feels itself unable to bear it. It is error only, and not truth, that shrinks from enquiry. All the numerous pamphlets, and all the newspaper falsehood and abuse, that have been published against the Rights of Man, have fallen before it like pointless arrows; and, in like manner, would any work have fallen before the Constitution, had the Constitution, as it is called, been founded on as good political principles as those on which the Rights OF Man is written.

It is a good Constitution for courtiers, placemen, pensioners, borough-holders, and the leaders of Parties, and these are the men that have been the active leaders of Addresses; but it is a bad Constitution for at least ninety-nine parts of the nation out of an hundred, and this truth is every day making its way.

It is bad, first, because it entails upon the nation the unnecessary expence of supporting three forms and systems of Government at once, namely, the monarchical, the aristocratical, and the democratical.

Secondly, because it is impossible to unite such a discordant composition by any other means than perpetual corruption; and therefore the corruption so loudly and so universally complained of, is no other than the natural consequence of such an unnatural compound of Governments; and in this consists that excellence which the numerous herd of placemen and pensioners so loudly extol, and which at the same time, occasions that enormous load of taxes under which the rest of the nation groans.

Among the mass of national delusions calculated to amuse and impose upon the multitude, the standing one has been that of flattering them into taxes, by calling the Government (or as they please to express it, the English Constitution) "*the envy and the admiration of the world*" Scarcely

an Address has been voted in which some of the speakers have not uttered this hackneyed nonsensical falsehood.

Two Revolutions have taken place, those of America and France; and both of them have rejected the unnatural compounded system of the English government. America has declared against all hereditary Government, and established the representative system of Government only. France has entirely rejected the aristocratical part, and is now discovering the absurdity of the monarchical, and is approaching fast to the representative system. On what ground then, do these men continue a declaration, respecting what they call the *envy and admiration of other nations*, which the voluntary practice of such nations, as have had the opportunity of establishing Government, contradicts and falsifies. Will such men never confine themselves to truth? Will they be for ever the deceivers of the people?

But I will go further, and shew, that were Government now to begin in England, the people could not be brought to establish the same system they now submit to.

In speaking on this subject (or on any other) *on the pure ground of principle*, antiquity and precedent cease to be authority, and hoary-headed error loses its effect. The reasonableness and propriety of things must be examined abstractedly from custom and usage; and, in this point of view, the right which grows into practice to-day is as much a right, and as old in principle and theory, as if it had the customary sanction of a thousand ages. Principles have no connection with time, nor characters with names.

To say that the Government of this country is composed of King, Lords, and Commons, is the mere phraseology of custom. It is composed of men; and whoever the men be to whom the Government of any country is intrusted, they ought to be the best and wisest that can be found, and if they are not so, they are not fit for the station. A man derives no more excellence from the change of a name, or calling him King, or calling him Lord, than I should do by changing my name from Thomas to George, or from Paine to Guelph. I should not be a whit more able to write a book because my name was altered; neither would any man, now called a King or a lord, have a whit the more sense than he now has, were he to call himself Thomas Paine.

As to the word "Commons," applied as it is in England, it is a term of degradation and reproach, and ought to be abolished. It is a term unknown in free countries.

But to the point.—Let us suppose that Government was now to begin in England, and that the plan of Government, offered to the nation for its approbation or rejection, consisted of the following parts:

First—That some one individual should be taken from all the rest of the nation, and to whom all the rest should swear obedience, and never be permitted to sit down in his presence, and that they should give to him one million sterling a year.—That the nation should never after have power or authority to make laws but with his express consent; and that his sons and his sons' sons, whether wise or foolish, good men or bad, fit or unfit, should have the same power, and also the same money annually paid to them for ever.

Secondly—That there should be two houses of Legislators to assist in making laws, one of which should, in the first instance, be entirely appointed by the aforesaid person, and that their sons and their sons' sons, whether wise or foolish, good men or bad, fit or unfit, should for ever after be hereditary Legislators.

Thirdly—That the other house should be chosen in the same manner as the house now called the House of Commons is chosen, and should be subject to the controul of the two aforesaid hereditary Powers in all things.

It would be impossible to cram such a farrago of imposition and absurdity down the throat of this or any other nation that was capable of reasoning upon its rights and its interest.

They would ask, in the first place, on what ground of right, or on what principle, such irrational and preposterous distinctions could, or ought to be made; and what pretensions any man could have, or what services he could render, to entitle him to a million a year? They would go farther, and revolt at the idea of consigning their children, and their children's children, to the domination of persons hereafter to be born, who might, for any thing they could foresee, turn out to be knaves or fools; and they would finally discover, that the project of hereditary Governors and Legislators *was a treasonable usurpation over the rights of posterity*. Not only the calm dictates of reason, and the force of natural affection, but the integrity of manly pride, would impel men to spurn such proposals.

From the grosser absurdities of such a scheme, they would extend their examination to the practical defects—They would soon see that it would end in tyranny accomplished by fraud. That in the operation of it, it would

be two to one against them, because the two parts that were to be made hereditary would form a common interest, and stick to each other; and that themselves and representatives would become no better than hewers of wood and drawers of water for the other parts of the Government.—Yet call one of those powers King, the other Lords, and the third the Commons, and it gives the model of what is called the English Government.

I have asserted, and have shewn, both in the First and Second Parts of *Rights of Man*, that there is not such a thing as an English Constitution, and that the people have yet a Constitution to form. *A Constitution is a thing antecedent to a Government; it is the act of a people creating a Government and giving it powers, and defining the limits and exercise of the powers so given.* But whenever did the people of England, acting in their original constituent character, by a delegation elected for that express purpose, declare and say, "We, the people of this land, do constitute and appoint this to be our system and form of Government." The Government has assumed to constitute itself, but it never was constituted by the people, in whom alone the right of constituting resides.

I will here recite the preamble to the Federal Constitution of the United States of America. I have shewn in the Second Part of *Rights of Man*, the manner by which the Constitution was formed and afterwards ratified; and to which I refer the reader. The preamble is in the following words:

"We, the people, of the United States, in order to form a more perfect union, establish justice, insure domestic tranquillity, provide for common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish this constitution for the United States of America."

Then follow the several articles which appoint the manner in which the several component parts of the Government, legislative and executive, shall be elected, and the period of their duration, and the powers they shall have: also, the manner by which future additions, alterations, or amendments, shall be made to the constitution. Consequently, every improvement that can be made in the science of government, follows in that country as a matter of order. It is only in Governments founded on assumption and false principles, that reasoning upon, and investigating systems and principles of Government, and shewing their several excellencies and defects, are termed libellous and seditious. These terms were made part of the charge brought

against Locke, Hampden, and Sydney, and will continue to be brought against all good men, so long as bad government shall continue.

The Government of this country has been ostentatiously giving challenges for more than an hundred years past, upon what it called its own excellence and perfection. Scarcely a King's Speech, or a Parliamentary Speech, has been uttered, in which this glove has not been thrown, till the world has been insulted with their challenges. But it now appears that all this was vapour and vain boasting, or that it was intended to conceal abuses and defects, and hush the people into taxes. I have taken the challenge up, and in behalf of the public have shewn, in a fair, open, and candid manner, both the radical and practical defects of the system; when, lo! those champions of the Civil List have fled away, and sent the Attorney-General to deny the challenge, by turning the acceptance of it into an attack, and defending their Places and Pensions by a prosecution.

I will here drop this part of the subject, and state a few particulars respecting the prosecution now pending, by which the Addressers will see that they have been used as tools to the prosecuting party and their dependents. The case is as follows:

The original edition of the First and Second Parts of the Rights of Man, having been expensively printed, (in the modern stile of printing pamphlets, that they might be bound up with Mr. Burke's Reflections on the French Revolution,) the high price⁽¹⁾ precluded the generality of people from purchasing; and many applications were made to me from various parts of the country to print the work in a cheaper manner. The people of Sheffield requested leave to print two thousand copies for themselves, with which request I immediately complied. The same request came to me from Rotherham, from Leicester, from Chester, from several towns in Scotland; and Mr. James Mackintosh, author of *Vindico Gallico*, brought me a request from Warwickshire, for leave to print ten thousand copies in that county. I had already sent a cheap edition to Scotland; and finding the applications increase, I concluded that the best method of complying therewith, would be to print a very numerous edition in London, under my own direction, by which means the work would be more perfect, and the price be reduced lower than it could be by *printing* small editions in the country, of only a few thousands each.

¹ Half a crown.—Editor.

The cheap edition of the first part was begun about the first of last April, and from that moment, and not before, I expected a prosecution, and the event has proved that I was not mistaken. I had then occasion to write to Mr. Thomas Walker of Manchester, and after informing him of my intention of giving up the work for the purpose of general information, I informed him of what I apprehended would be the consequence; that while the work was at a price that precluded an extensive circulation, the government party, not able to controvert the plans, arguments, and principles it contained, had chosen to remain silent; but that I expected they would make an attempt to deprive the mass of the nation, and especially the poor, of the right of reading, by the pretence of prosecuting either the Author or the Publisher, or both. They chose to begin with the Publisher.

Nearly a month, however, passed, before I had any information given me of their intentions. I was then at Bromley, in Kent, upon which I came immediately to town, (May 14) and went to Mr. Jordan, the publisher of the original edition. He had that evening been served with a summons to appear at the Court of King's Bench, on the Monday following, but for what purpose was not stated. Supposing it to be on account of the work, I appointed a meeting with him on the next morning, which was accordingly had, when I provided an attorney, and took the ex-pence of the defence on myself. But finding afterwards that he absented himself from the attorney employed, and had engaged another, and that he had been closeted with the Solicitors of the Treasury, I left him to follow his own choice, and he chose to plead Guilty. This he might do if he pleased; and I make no objection against him for it. I believe that his idea by the word *Guilty*, was no other than declaring himself to be the publisher, without any regard to the merits or demerits of the work; for were it to be construed otherwise, it would amount to the absurdity of converting a publisher into a Jury, and his confession into a verdict upon the work itself. This would be the highest possible refinement upon packing of Juries.

On the 21st of May, they commenced their prosecution against me, as the author, by leaving a summons at my lodgings in town, to appear at the Court of King's Bench on the 8th of June following; and on the same day, (May 21,) *they issued also their Proclamation*. Thus the Court of St. James and the Court of King's Bench, were playing into each other's hands at the same instant of time, and the farce of Addresses brought up the rear; and this mode of proceeding is called by the prostituted name of Law. Such a

thundering rapidity, after a ministerial dormancy of almost eighteen months, can be attributed to no other cause than their having gained information of the forwardness of the cheap Edition, and the dread they felt at the progressive increase of political knowledge.

I was strongly advised by several gentlemen, as well those in the practice of the law, as others, to prefer a bill of indictment against the publisher of the Proclamation, as a publication tending to influence, or rather to dictate the verdict of a Jury on the issue of a matter then pending; but it appeared to me much better to avail myself of the opportunity which such a precedent justified me in using, by meeting the Proclamation and the Addressers on their own ground, and publicly defending the Work which had been thus unwarrantably attacked and traduced.—And conscious as I now am, that the Work entitled Rights OF Man so far from being, as has been maliciously or erroneously represented, a false, wicked, and seditious libel, is a work abounding with unanswerable truths, with principles of the purest morality and benevolence, and with arguments not to be controverted—Conscious, I say, of these things, and having no object in view but the happiness of mankind, I have now put the matter to the best proof in my power, by giving to the public a cheap edition of the First and Second Parts of that Work. Let every man read and judge for himself, not only of the merits and demerits of the Work, but of the matters therein contained, which relate to his own interest and happiness.

If, to expose the fraud and imposition of monarchy, and every species of hereditary government—to lessen the oppression of taxes—to propose plans for the education of helpless infancy, and the comfortable support of the aged and distressed—to endeavour to conciliate nations to each other—to extirpate the horrid practice of war—to promote universal peace, civilization, and commerce—and to break the chains of political superstition, and raise degraded man to his proper rank;—if these things be libellous, let me live the life of a Libeller, and let the name of Libeller be engraved on my tomb.

Of all the weak and ill-judged measures which fear, ignorance, or arrogance could suggest, the Proclamation, and the project for Addresses, are two of the worst. They served to advertise the work which the promoters of those measures wished to keep unknown; and in doing this they offered violence to the judgment of the people, by calling on them to condemn what

they forbid them to know, and put the strength of their party to that hazardous issue that prudence would have avoided.—The County Meeting for Middlesex was attended by only one hundred and eighteen Addressers. They, no doubt, expected, that thousands would flock to their standard, and clamor against the *Rights of Man*. But the case most probably is, that men in all countries, are not so blind to their Rights and their Interest as Governments believe.

Having thus shewn the extraordinary manner in which the Government party commenced their attack, I proceed to offer a few observations on the prosecution, and on the mode of trial by Special Jury.

In the first place, I have written a book; and if it cannot be refuted, it cannot be condemned. But I do not consider the prosecution as particularly levelled against me, but against the general right, or the right of every man, of investigating systems and principles of government, and shewing their several excellencies or defects. If the press be free only to flatter Government, as Mr. Burke has done, and to cry up and extol what certain Court sycophants are pleased to call a "glorious Constitution," and not free to examine into its errors or abuses, or whether a Constitution really exist or not, such freedom is no other than that of Spain, Turkey, or Russia; and a Jury in this case, would not be a Jury to try, but an Inquisition to condemn.

I have asserted, and by fair and open argument maintained, the right of every nation at all times to establish such a system and form of government for itself as best accords with its disposition, interest, and happiness; and to change and alter it as it sees occasion. Will any Jury deny to the Nation this right? If they do, they are traitors, and their verdict would be null and void. And if they admit the right, the means must be admitted also; for it would be the highest absurdity to say, that the right existed, but the means did not. The question then is, What are the means by which the possession and exercise of this National Right are to be secured? The answer will be, that of maintaining, inviolably, the right of free investigation; for investigation always serves to detect error, and to bring forth truth.

I have, as an individual, given my opinion upon what I believe to be not only the best, but the true system of Government, which is the representative system, and I have given reasons for that opinion.

First, Because in the representative system, no office of very extraordinary power, or extravagant pay, is attached to any individual; and

consequently there is nothing to excite those national contentions and civil wars with which countries under monarchical governments are frequently convulsed, and of which the History of England exhibits such numerous instances.

Secondly, Because the representative is a system of Government always in maturity; whereas monarchical government fluctuates through all the stages, from non-age to dotage.

Thirdly, Because the representative system admits of none but men properly qualified into the Government, or removes them if they prove to be otherwise. Whereas, in the hereditary system, a nation may be encumbered with a knave or an idiot for a whole life-time, and not be benefited by a successor.

Fourthly, Because there does not exist a right to establish hereditary government, or, in other words, hereditary successors, because hereditary government always means a government yet to come, and the case always is, that those who are to live afterwards have the same right to establish government for themselves, as the people had who lived before them; and, therefore, all laws attempting to establish hereditary government, are founded on assumption and political fiction.

If these positions be truths, and I challenge any man to prove the contrary; if they tend to instruct and enlighten mankind, and to free them from error, oppression, and political superstition, which are the objects I have in view in publishing them, that Jury would commit an act of injustice to their country, and to me, if not an act of perjury, that should call them *false, wicked, and malicious*.

Dragonetti, in his treatise "On Virtues and Rewards," has a paragraph worthy of being recorded in every country in the world—"The science (says he,) of the politician, consists, in, fixing the true point of happiness and freedom. Those men deserve the gratitude of ages who should discover a mode of government that contained the greatest sum of *individual happiness* with the least *national expence*." But if Juries are to be made use of to prohibit enquiry, to suppress truth, and to stop the progress of knowledge, this boasted palladium of liberty becomes the most successful instrument of tyranny.

Among the arts practised at the Bar, and from the Bench, to impose upon the understanding of a Jury, and to obtain a Verdict where the consciences

of men could not otherwise consent, one of the most successful has been that of calling *truth a libel*, and of insinuating that the words "*falsely, wickedly, and maliciously*," though they are made the formidable and high sounding part of the charge, are not matters of consideration with a Jury. For what purpose, then, are they retained, unless it be for that of imposition and wilful defamation?

I cannot conceive a greater violation of order, nor a more abominable insult upon morality, and upon human understanding, than to see a man sitting in the judgment seat, affecting by an antiquated foppery of dress to impress the audience with awe; then causing witnesses and Jury to be sworn to truth and justice, himself having officially sworn the same; then causing to be read a prosecution against a man charging him with having *wickedly and maliciously written and published a certain false, wicked, and seditious book*; and having gone through all this with a shew of solemnity, as if he saw the eye of the Almighty darting through the roof of the building like a ray of light, turn, in an instant, the whole into a farce, and, in order to obtain a verdict that could not otherwise be obtained, tell the Jury that the charge of *falsely, wickedly, and seditiously*, meant nothing; that *truth* was out of the question; and that whether the person accused spoke truth or falsehood, or intended *virtuously or wickedly*, was the same thing; and finally conclude the wretched inquisitorial scene, by stating some antiquated precedent, equally as abominable as that which is then acting, or giving some opinion of his own, and *falsely calling the one and the other—Law*. It was, most probably, to such a Judge as this, that the most solemn of all reproofs was given—"The Lord will smite thee, thou whitened wall."

I now proceed to offer some remarks on what is called a Special Jury. As to what is called a Special Verdict, I shall make no other remark upon it, than that it is in reality *not* a verdict. It is an attempt on the part of the Jury to delegate, or of the Bench to obtain, the exercise of that right, which is committed to the Jury only.

With respect to the Special Juries, I shall state such matters as I have been able to collect, for I do not find any uniform opinion concerning the mode of appointing them.

In the first place, this mode of trial is but of modern invention, and the origin of it, as I am told, is as follows:

Formerly, when disputes arose between Merchants, and were brought before a Court, the case was that the nature of their commerce, and the method of keeping Merchants' accounts not being sufficiently understood by persons out of their own line, it became necessary to depart from the common mode of appointing Juries, and to select such persons for a Jury whose *practical knowledge* would enable them to decide upon the case. From this introduction, Special Juries became more general; but some doubts having arisen as to their legality, an act was passed in the 3d of George II. to establish them as legal, and also to extend them to all cases, not only between individuals, but in cases where *the Government itself should be the prosecutor*. This most probably gave rise to the suspicion so generally entertained of packing a Jury; because, by this act, when the Crown, as it is called, is the Prosecutor, the Master of the Crown-office, who holds his office under the Crown, is the person who either wholly nominates, or has great power in nominating the Jury, and therefore it has greatly the appearance of the prosecuting party selecting a Jury.

The process is as follows:

On motion being made in Court, by either the Plaintiff or Defendant, for a Special Jury, the Court grants it or not, at its own discretion.

If it be granted, the Solicitor of the party that applied for the Special Jury, gives notice to the Solicitor of the adverse party, and a day and hour are appointed for them to meet at the office of the Master of the Crown-office. The Master of the Crown-office sends to the Sheriff or his deputy, who attends with the Sheriff's book of Freeholders. From this book, forty-eight names are taken, and a copy thereof given to each of the parties; and, on a future day, notice is again given, and the Solicitors meet a second time, and each strikes out twelve names. The list being thus reduced from forty-eight to twenty-four, the first twelve that appear in Court, and answer to their names, is the Special Jury for that cause. The first operation, that of taking the forty-eight names, is called nominating the Jury; and the reducing them to twenty-four is called striking the Jury.

Having thus stated the general process, I come to particulars, and the first question will be, how are the forty-eight names, out of which the Jury is to be struck, obtained from the Sheriff's book? For herein lies the principal ground of suspicion, with respect to what is understood by packing of Juries.

Either they must be taken by some rule agreed upon between the parties, or by some common rule known and established beforehand, or at the discretion of some person, who in such a case, ought to be perfectly disinterested in the issue, as well officially as otherwise.

In the case of Merchants, and in all cases between individuals, the Master of the office, called the Crown-office, is officially an indifferent person, and as such may be a proper person to act between the parties, and present them with a list of forty-eight names, out of which each party is to strike twelve. But the case assumes an entire difference of character, when the Government itself is the Prosecutor. The Master of the Crown-office is then an officer holding his office under the Prosecutor; and it is therefore no wonder that the suspicion of packing Juries should, in such cases, have been so prevalent.

This will apply with additional force, when the prosecution is commenced against the Author or Publisher of such Works as treat of reforms, and of the abolition of superfluous places and offices, &c, because in such cases every person holding an office, subject to that suspicion, becomes interested as a party; and the office, called the Crown-office, may, upon examination, be found to be of this description.

I have heard it asserted, that the Master of the Crown-office is to open the sheriff's book as it were per hazard, and take thereout forty-eight *following* names, to which the word Merchant or Esquire is affixed. The former of these are certainly proper, when the case is between Merchants, and it has reference to the origin of the custom, and to nothing else. As to the word Esquire, every man is an Esquire who pleases to call himself Esquire; and the sensible part of mankind are leaving it off. But the matter for enquiry is, whether there be any existing law to direct the mode by which the forty-eight names shall be taken, or whether the mode be merely that of custom which the office has created; or whether the selection of the forty-eight names be wholly at the discretion and choice of the Master of the Crown-office? One or other of the two latter appears to be the case, because the act already mentioned, of the 3d of George II. lays down no rule or mode, nor refers to any preceding law—but says only, that Special Juries shall hereafter be struck, "*in such manner as Special Juries have been and are usually struck.*"

This act appears to have been what is generally understood by a "*deep take in*." It was fitted to the spur of the moment in which it was passed, 3d of George II. when parties ran high, and it served to throw into the hands of Walpole, who was then Minister, the management of Juries in Crown prosecutions, by making the nomination of the forty-eight persons, from whom the Jury was to be struck, follow the precedent established by custom between individuals, and by this means slipped into practice with less suspicion. Now, the manner of obtaining Special Juries through the medium of an officer of the Government, such, for instance, as a Master of the Crown-office, may be impartial in the case of Merchants or other individuals, but it becomes highly improper and suspicious in cases where the Government itself is one of the parties. And it must, upon the whole, appear a strange inconsistency, that a Government should keep one officer to commence prosecutions, and another officer to nominate the forty-eight persons from whom the Jury is to be struck, both of whom are *officers of the Civil List*, and yet continue to call this by the pompous name of *the glorious "Right of trial by Jury!"*

In the case of the King against Jordan, for publishing the Rights of Man, the Attorney-General moved for the appointment of a Special Jury, and the Master of the Crown-office nominated the forty-eight persons himself, and took them from such part of the Sheriff's book as he pleased.

The trial did not come on, occasioned by Jordan withdrawing his plea; but if it had, it might have afforded an opportunity of discussing the subject of Special Juries; for though such discussion might have had no effect in the Court of King's Bench, it would, in the present disposition for enquiry, have had a considerable effect upon the Country; and, in all national reforms, this is the proper point to begin at. But a Country right, and it will soon put Government right. Among the improper things acted by the Government in the case of Special Juries, on their own motion, one has been that of treating the Jury with a dinner, and afterwards giving each Jurymen two guineas, if a verdict be found for the prosecution, and only one if otherwise; and it has been long observed, that, in London and Westminster, there are persons who appear to make a trade of serving, by being so frequently seen upon Special Juries.

Thus much for Special Juries. As to what is called a *Common Jury*, upon any Government prosecution against the Author or Publisher of RIGHTS

OF Man, during the time of the *present Sheriffry*, I have one question to offer, which is, *whether the present Sheriffs of London, having publicly prejudged the case, by the part they have taken in procuring an Address from the county of Middlesex, (however diminutive and insignificant the number of Addressers were, being only one hundred and eighteen,) are eligible or proper persons to be intrusted with the power of returning a Jury to try the issue of any such prosecution.*

But the whole matter appears, at least to me, to be worthy of a more extensive consideration than what relates to any Jury, whether Special or Common; for the case is, whether any part of a whole nation, locally selected as a Jury of twelve men always is, be competent to judge and determine for the whole nation, on any matter that relates to systems and principles of Government, and whether it be not applying the institution of Juries to purposes for which such institutions were not intended? For example,

I have asserted, in the *Work Rights of Man*, that as every man in the nation pays taxes, so has every man a right to a share in government, and consequently that the people of Manchester, Birmingham, Sheffield, Leeds, Halifax, &c have the same right as those of London. Shall, then, twelve men, picked out between Temple-bar and Whitechapel, because the book happened to be first published there, decide upon the rights of the inhabitants of those towns, or of any other town or village in the nation?

Having thus spoken of Juries, I come next to offer a few observations on the matter contained in the information or prosecution.

The work, *Rights of Man*, consists of Part the First, and Part the Second. The First Part the prosecutor has thought it most proper to let alone; and from the Second Part he has selected a few short paragraphs, making in the whole not quite two pages of the same printing as in the cheap edition. Those paragraphs relate chiefly to certain facts, such as the revolution of 1688, and the coming of George the First, commonly called of the House of Hanover, or the House of Brunswick, or some such House. The arguments, plans and principles contained in the work, the prosecutor has not ventured to attack. They are beyond his reach.

The Act which the prosecutor appears to rest most upon for the support of the prosecution, is the Act intituled, "An Act, declaring the rights and liberties of the subject, and settling the succession of the crown," passed in

the first year of William and Mary, and more commonly known by the name of the "Bill of Rights."

I have called this bill "*A Bill of wrongs and of insult.*" My reasons, and also my proofs, are as follow:

The method and principle which this Bill takes for declaring rights and liberties, are in direct contradiction to rights and liberties; it is an assumed attempt to take them wholly from posterity—for the declaration in the said Bill is as follows:

"The Lords Spiritual and Temporal, and Commons, do, in *the name of all the people*, most humbly and faithfully *submit themselves, their heirs, and posterity for ever*;" that is, to William and Mary his wife, their heirs and successors. This is a strange way of declaring rights and liberties. But the Parliament who made this declaration in the name, and on the part, of the people, had no authority from them for so doing; and with respect to *posterity for ever*, they had no right or authority whatever in the case. It was assumption and usurpation. I have reasoned very extensively against the principle of this Bill, in the first part of Rights of Man; the prosecutor has silently admitted that reasoning, and he now commences a prosecution on the authority of the Bill, after admitting the reasoning against it.

It is also to be observed, that the declaration in this Bill, abject and irrational as it is, had no other intentional operation than against the family of the Stuarts, and their abettors. The idea did not then exist, that in the space of an hundred years, posterity might discover a different and much better system of government, and that every species of hereditary government might fall, as Popes and Monks had fallen before. This, I say, was not then thought of, and therefore the application of the Bill, in the present case, is a new, erroneous, and illegal application, and is the same as creating a new Bill *ex post facto*.

It has ever been the craft of Courtiers, for the purpose of keeping up an expensive and enormous Civil List, and a mummary of useless and antiquated places and offices at the public expence, to be continually hanging England upon some individual or other, called *King*, though the man might not have capacity to be a parish constable. The folly and absurdity of this, is appearing more and more every day; and still those men continue to act as if no alteration in the public opinion had taken place.

They hear each other's nonsense, and suppose the whole nation talks the same Gibberish.

Let such men cry up the House of Orange, or the House of Brunswick, if they please. They would cry up any other house if it suited their purpose, and give as good reasons for it. But what is this house, or that house, or any other house to a nation? "*For a nation to be free, it is sufficient that she wills it.*" Her freedom depends wholly upon herself, and not on any house, nor on any individual. I ask not in what light this cargo of foreign houses appears to others, but I will say in what light it appears to me—It was like the trees of the forest, saying unto the bramble, come thou and reign over us.

Thus much for both their houses. I now come to speak of two other houses, which are also put into the information, and those are the House of Lords, and the House of Commons. Here, I suppose, the Attorney-General intends to prove me guilty of speaking either truth or falsehood; for, according to the modern interpretation of Libels, it does not signify which, and the only improvement necessary to shew the compleat absurdity of such doctrine, would be, to prosecute a man for uttering a most *false and wicked truth*.

I will quote the part I am going to give, from the Office Copy, with the Attorney General's inuendoes, enclosed in parentheses as they stand in the information, and I hope that civil list officer will caution the Court not to laugh when he reads them, and also to take care not to laugh himself.

The information states, that *Thomas Paine, being a wicked, malicious, seditious, and evil-disposed person, hath, with force and arms, and most wicked cunning, written and published a certain false, scandalous, malicious, and seditious libel; in one part thereof, to the tenor and effect following, that is to say—*

"With respect to the two Houses, of which the English Parliament (*meaning the Parliament of this Kingdom*) is composed, they appear to be effectually influenced into one, and, as a Legislature, to have no temper of its own. The Minister, (*meaning the Minuter employed by the King of this Realm, in the administration of the Government thereof*) whoever he at any time may be, touches it (*meaning the two Houses of Parliament of this Kingdom*) as with an opium wand, and it (*meaning the two Houses of Parliament of this Kingdom*) sleeps obedience."

As I am not malicious enough to disturb their repose, though it be time they should awake, I leave the two Houses and the Attorney General, to the enjoyment of their dreams, and proceed to a new subject.

The Gentlemen, to whom I shall next address myself, are those who have stiled themselves "*Friends of the people*," holding their meeting at the Freemasons' Tavern, London.(1)

One of the principal Members of this Society, is Mr. Grey, who, I believe, is also one of the most independent Members in Parliament.(2) I collect this opinion from what Mr. Burke formerly mentioned to me, rather than from any knowledge of my own. The occasion was as follows:

I was in England at the time the bubble broke forth about Nootka Sound: and the day after the King's Message, as it is called, was sent to Parliament, I wrote a note to Mr. Burke, that upon the condition the French Revolution should not be a subject (for he was then writing the book I have since answered) I would call on him the next day, and mention some matters I was acquainted with, respecting the affair; for it appeared to me extraordinary that any body of men, calling themselves Representatives, should commit themselves so precipitately, or "sleep obedience," as Parliament was then doing, and run a nation into expence, and perhaps a war, without so much as enquiring into the case, or the subject, of both which I had some knowledge.

1 See in the Introduction to this volume Chauvelin's account of this Association.—Editor.

2 In the debate in the House of Commons, Dec. 14, 1793, Mr. Grey is thus reported: "Mr. Grey was not a friend to Paine's doctrines, but he was not to be deterred by a man from acknowledging that he considered the rights of man as the foundation of every government, and those who stood out against those rights as conspirators against the people." He severely denounced the Proclamation. Parl. Hist., vol. xxvi.—Editor.

When I saw Mr. Burke, and mentioned the circumstances to him, he particularly spoke of Mr. Grey, as the fittest Member to bring such matters forward; "for," said Mr. Burke, "*I am not the proper person to do it, as I am in a treaty with Mr. Pitt about Mr. Hastings's trial.*" I hope the Attorney General will allow, that Mr. Burke was then *sleeping his obedience*.—But to return to the Society——

I cannot bring myself to believe, that the general motive of this Society is any thing more than that by which every former parliamentary opposition has been governed, and by which the present is sufficiently known. Failing in their pursuit of power and place within doors, they have now (and that in not a very mannerly manner) endeavoured to possess themselves of that ground out of doors, which, had it not been made by others, would not have been made by them. They appear to me to have watched, with more cunning than candour, the progress of a certain publication, and when they saw it had excited a spirit of enquiry, and was rapidly spreading, they stepped forward to profit by the opportunity, and Mr. Fox *then* called it a Libel. In saying this, he libelled himself. Politicians of this cast, such, I mean, as those who trim between parties, and lye by for events, are to be found in every country, and it never yet happened that they did not do more harm than good. They embarrass business, fritter it to nothing, perplex the people, and the event to themselves generally is, that they go just far enough to make enemies of the few, without going far enough to make friends of the many.

Whoever will read the declarations of this Society, of the 25th of April and 5th of May, will find a studied reserve upon all the points that are real abuses. They speak not once of the extravagance of Government, of the abominable list of unnecessary and sinecure places and pensions, of the enormity of the Civil List, of the excess of taxes, nor of any one matter that substantially affects the nation; and from some conversation that has passed in that Society, it does not appear to me that it is any part of their plan to carry this class of reforms into practice. No Opposition Party ever did, when it gained possession.

In making these free observations, I mean not to enter into contention with this Society; their incivility towards me is what I should expect from place-hunting reformers. They are welcome, however, to the ground they have advanced upon, and I wish that every individual among them may act in the same upright, uninfluenced, and public spirited manner that I have done. Whatever reforms may be obtained, and by whatever means, they will be for the benefit of others and not of me. I have no other interest in the cause than the interest of my heart. The part I have acted has been wholly that of a volunteer, unconnected with party; and when I quit, it shall be as honourably as I began.

I consider the reform of Parliament, by an application to Parliament, as proposed by the Society, to be a worn-out hackneyed subject, about which the nation is tired, and the parties are deceiving each other. It is not a subject that is cognizable before Parliament, because no Government has a right to alter itself, either in whole or in part. The right, and the exercise of that right, appertains to the nation only, and the proper means is by a national convention, elected for the purpose, by all the people. By this, the will of the nation, whether to reform or not, or what the reform shall be, or how far it shall extend, will be known, and it cannot be known by any other means. Partial addresses, or separate associations, are not testimonies of the general will.

It is, however, certain, that the opinions of men, with respect to systems and principles of government, are changing fast in all countries. The alteration in England, within the space of a little more than a year, is far greater than could have been believed, and it is daily and hourly increasing. It moves along the country with the silence of thought. The enormous expence of Government has provoked men to think, by making them feel; and the Proclamation has served to increase jealousy and disgust. To prevent, therefore, those commotions which too often and too suddenly arise from suffocated discontents, it is best that the general WILL should have the full and free opportunity of being publicly ascertained and known.

Wretched as the state of representation is in England, it is every day becoming worse, because the unrepresented parts of the nation are increasing in population and property, and the represented parts are decreasing. It is, therefore, no ill-grounded estimation to say, that as not one person in seven is represented, at least fourteen millions of taxes out of the seventeen millions, are paid by the unrepresented part; for although copyholds and leaseholds are assessed to the land-tax, the holders are unrepresented. Should then a general demur take place as to the obligation of paying taxes, on the ground of not being represented, it is not the Representatives of Rotten Boroughs, nor Special Juries, that can decide the question. This is one of the possible cases that ought to be foreseen, in order to prevent the inconveniencies that might arise to numerous individuals, by provoking it.

I confess I have no idea of petitioning for rights. Whatever the rights of people are, they have a right to them, and none have a right either to

withhold them, or to grant them. Government ought to be established on such principles of justice as to exclude the occasion of all such applications, for wherever they appear they are virtually accusations.

I wish that Mr. Grey, since he has embarked in the business, would take the whole of it into consideration. He will then see that the right of reforming the state of the Representation does not reside in Parliament, and that the only motion he could consistently make would be, that Parliament should *recommend* the election of a convention of the people, because all pay taxes. But whether Parliament recommended it or not, the right of the nation would neither be lessened nor increased thereby.

As to Petitions from the unrepresented part, they ought not to be looked for. As well might it be expected that Manchester, Sheffield, &c. should petition the rotten Boroughs, as that they should petition the Representatives of those Boroughs. Those two towns alone pay far more taxes than all the rotten Boroughs put together, and it is scarcely to be expected they should pay their court either to the Boroughs, or the Borough-mongers.

It ought also to be observed, that what is called Parliament, is composed of two houses that have always declared against the right of each other to interfere in any matter that related to the circumstances of either, particularly that of election. A reform, therefore, in the representation cannot, on the ground they have individually taken, become the subject of an act of Parliament, because such a mode would include the interference, against which the Commons on their part have protested; but must, as well on the ground of formality, as on that of right, proceed from a National Convention.

Let Mr. Grey, or any other man, sit down and endeavour to put his thoughts together, for the purpose of drawing up an application to Parliament for a reform of Parliament, and he will soon convince himself of the folly of the attempt. He will find that he cannot get on; that he cannot make his thoughts join, so as to produce any effect; for, whatever formality of words he may use, they will unavoidably include two ideas directly opposed to each other; the one in setting forth the reasons, the other in praying for relief, and the two, when placed together, would stand thus: "*The Representation in Parliament is so very corrupt, that we can no longer*

confide in it,—and, therefore, confiding in the justice and wisdom of Parliament, we pray," &c, &c.

The heavy manner in which every former proposed application to Parliament has dragged, sufficiently shews, that though the nation might not exactly see the awkwardness of the measure, it could not clearly see its way, by those means. To this also may be added another remark, which is, that the worse Parliament is, the less will be the inclination to petition it. This indifference, viewed as it ought to be, is one of the strongest censures the public express. It is as if they were to say to them, "Ye are not worth reforming."

Let any man examine the Court-Kalendar of Placemen in both Houses, and the manner in which the Civil List operates, and he will be at no loss to account for this indifference and want of confidence on one side, nor of the opposition to reforms on the other.

Who would have supposed that Mr. Burke, holding forth as he formerly did against secret influence, and corrupt majorities, should become a concealed Pensioner? I will now state the case, not for the little purpose of exposing Mr. Burke, but to shew the inconsistency of any application to a body of men, more than half of whom, as far as the nation can at present know, may be in the same case with himself.

Towards the end of Lord North's administration, Mr. Burke brought a bill into Parliament, generally known by Mr. Burke's Reform Bill; in which, among other things, it is enacted, "That no pension exceeding the sum of three hundred pounds a year, shall be granted to any one person, and that the whole amount of the pensions granted in one year shall not exceed six hundred pounds; a list of which, together with the *names of the persons* to whom the same are granted, shall be laid before Parliament in twenty days after the beginning of each session, until the whole pension list shall be reduced to ninety thousand pounds." A provisory clause is afterwards added, "That it shall be lawful for the First Commissioner of the Treasury, to return into the Exchequer any pension or annuity, *without a name*, on his making oath that such pension or annuity is not directly or indirectly for the benefit, use, or behoof of any Member of the House of Commons."

But soon after that administration ended, and the party Mr. Burke acted with came into power, it appears from the circumstances I am going to relate, that Mr. Burke became himself a Pensioner in disguise; in a similar

manner as if a pension had been granted in the name of John Nokes, to be privately paid to and enjoyed by Tom Stiles. The name of Edmund Burke does not appear in the original transaction: but after the pension was obtained, Mr. Burke wanted to make the most of it at once, by selling or mortgaging it; and the gentleman in whose name the pension stands, applied to one of the public offices for that purpose. This unfortunately brought forth the name of *Edmund Burke*, as the real Pensioner of 1,500L. per annum.(1) When men trumpet forth what they call the blessings of the Constitution, it ought to be known what sort of blessings they allude to.

As to the Civil List of a million a year, it is not to be supposed that any one man can eat, drink, or consume the whole upon himself. The case is, that above half the sum is annually apportioned among Courtiers, and Court Members, of both Houses, in places and offices, altogether insignificant and perfectly useless as to every purpose of civil, rational, and manly government. For instance,

Of what use in the science and system of Government is what is called a Lord Chamberlain, a Master and Mistress of the Robes, a Master of the Horse, a Master of the Hawks, and one hundred other such things? Laws derive no additional force, nor additional excellence from such mummery.

In the disbursements of the Civil List for the year 1786, (which may be seen in Sir John Sinclair's History of the Revenue,) are four separate charges for this mummery office of Chamberlain:

1st,	38,778 <i>l.</i> 17 <i>s.</i> —
2d,	3,000 — —
3d,	24,069 19 —
4th,	10,000 18 3 <i>d.</i>
	75,849 <i>l.</i> 14 <i>s.</i> 3 <i>d.</i>
Besides 1,119 <i>l.</i> charged for Alms.	

From this sample the rest may be guessed at. As to the Master of the Hawks, (there are no hawks kept, and if there were, it is no reason the people should pay the expence of feeding them, many of whom are put to it to get bread for their children,) his salary is 1,372L. 10s.

1 See note at the end of this chapter.—Editor.

And besides a list of items of this kind, sufficient to fill a quire of paper, the Pension lists alone are 107,404L. 13s. 4d. which is a greater sum than all the expences of the federal Government in America amount to.

Among the items, there are two I had no expectation of finding, and which, in this day of enquiry after Civil List influence, ought to be exposed. The one is an annual payment of one thousand seven hundred pounds to the Dissenting Ministers in England, and the other, eight hundred pounds to those of Ireland.

This is the fact; and the distribution, as I am informed, is as follows: The whole sum of 1,700L. is paid to one person, a Dissenting Minister in London, who divides it among eight others, and those eight among such others as they please. The Lay-body of the Dissenters, and many of their principal Ministers, have long considered it as dishonourable, and have endeavoured to prevent it, but still it continues to be secretly paid; and as the world has sometimes seen very fulsome Addresses from parts of that body, it may naturally be supposed that the receivers, like Bishops and other Court-Clergy, are not idle in promoting them. How the money is distributed in Ireland, I know not.

To recount all the secret history of the Civil List, is not the intention of this publication. It is sufficient, in this place, to expose its general character, and the mass of influence it keeps alive. It will necessarily become one of the objects of reform; and therefore enough is said to shew that, under its operation, no application to Parliament can be expected to succeed, nor can consistently be made.

Such reforms will not be promoted by the Party that is in possession of those places, nor by the Opposition who are waiting for them; and as to a *mere reform*, in the state of the Representation, the idea that another Parliament, differently elected from the present, but still a third component part of the same system, and subject to the controul of the other two parts, will abolish those abuses, is altogether delusion; because it is not only impracticable on the ground of formality, but is unwisely exposing another set of men to the same corruptions that have tainted the present.

Were all the objects that require reform accomplishable by a mere reform in the state of the Representation, the persons who compose the present Parliament might, with rather more propriety, be asked to abolish all the abuses themselves, than be applied to as the more instruments of doing it by

a future Parliament. If the virtue be wanting to abolish the abuse, it is also wanting to act as the means, and the nation must, from necessity, proceed by some other plan.

Having thus endeavoured to shew what the abject condition of Parliament is, and the impropriety of going a second time over the same ground that has before miscarried, I come to the remaining part of the subject.

There ought to be, in the constitution of every country, a mode of referring back, on any extraordinary occasion, to the sovereign and original constituent power, which is the nation itself. The right of altering any part of a Government, cannot, as already observed, reside in the Government, or that Government might make itself what it pleased.

It ought also to be taken for granted, that though a nation may feel inconveniences, either in the excess of taxation, or in the mode of expenditure, or in any thing else, it may not at first be sufficiently assured in what part of its government the defect lies, or where the evil originates. It may be supposed to be in one part, and on enquiry be found to be in another; or partly in all. This obscurity is naturally interwoven with what are called mixed Governments.

Be, however, the reform to be accomplished whatever it may, it can only follow in consequence of obtaining a full knowledge of all the causes that have rendered such reform necessary, and every thing short of this is guess-work or frivolous cunning. In this case, it cannot be supposed that any application to Parliament can bring forward this knowledge. That body is itself the supposed cause, or one of the supposed causes, of the abuses in question; and cannot be expected, and ought not to be asked, to give evidence against itself. The enquiry, therefore, which is of necessity the first step in the business, cannot be trusted to Parliament, but must be undertaken by a distinct body of men, separated from every suspicion of corruption or influence.

Instead, then, of referring to rotten Boroughs and absurd Corporations for Addresses, or hawking them about the country to be signed by a few dependant tenants, the real and effectual mode would be to come at once to the point, and to ascertain the sense of the nation by electing a National Convention. By this method, as already observed, the general WILL, whether to reform or not, or what the reform shall be, or how far it shall

extend, will be known, and it cannot be known by any other means. Such a body, empowered and supported by the nation, will have authority to demand information upon all matters necessary to be enquired into; and no Minister, nor any person, will dare to refuse it. It will then be seen whether seventeen millions of taxes are necessary, and for what purposes they are expended. The concealed Pensioners will then be obliged to unmask; and the source of influence and corruption, if any such there be, will be laid open to the nation, not for the purpose of revenge, but of redress.

By taking this public and national ground, all objections against partial Addresses on the one side, or private associations on the other, will be done away; THE NATION WILL DECLARE ITS OWN REFORMS; and the clamour about Party and Faction, or Ins or Outs, will become ridiculous.

The plan and organization of a convention is easy in practice.

In the first place, the number of inhabitants in every county can be sufficiently ascertained from the number of houses assessed to the House and Window-light tax in each county. This will give the rule for apportioning the number of Members to be elected to the National Convention in each of the counties.

If the total number of inhabitants in England be seven millions, and the total number of Members to be elected to the Convention be one thousand, the number of members to be elected in a county containing one hundred and fifty thousand inhabitants will be *twenty-one*, and in like proportion for any other county.

As the election of a Convention must, in order to ascertain the general sense of the nation, go on grounds different from that of Parliamentary elections, the mode that best promises this end will have no difficulties to combat with from absurd customs and pretended rights. The right of every man will be the same, whether he lives in a city, a town, or a village. The custom of attaching Rights to *place*, or in other words, to inanimate matter, instead of to the *person*, independently of place, is too absurd to make any part of a rational argument.

As every man in the nation, of the age of twenty-one years, pays taxes, either out of the property he possesses, or out of the product of his labor, which is property to him; and is amenable in his own person to every law of the land; so has every one the same equal right to vote, and no one part of the nation, nor any individual, has a right to dispute the right of another.

The man who should do this ought to forfeit the exercise of his *own* right, for a term of years. This would render the punishment consistent with the crime.

When a qualification to vote is regulated by years, it is placed on the firmest possible ground; because the qualification is such, as nothing but dying before the time can take away; and the equality of Rights, as a principle, is recognized in the act of regulating the exercise. But when Rights are placed upon, or made dependant upon property, they are on the most precarious of all tenures. "Riches make themselves wings, and fly away," and the rights fly with them; and thus they become lost to the man when they would be of most value.

It is from a strange mixture of tyranny and cowardice, that exclusions have been set up and continued. The boldness to do wrong at first, changes afterwards into cowardly craft, and at last into fear. The Representatives in England appear now to act as if they were afraid to do right, even in part, lest it should awaken the nation to a sense of all the wrongs it has endured. This case serves to shew, that the same conduct that best constitutes the safety of an individual, namely, a strict adherence to principle, constitutes also the safety of a Government, and that without it safety is but an empty name. When the rich plunder the poor of his rights, it becomes an example to the poor to plunder the rich of his property; for the rights of the one are as much property to him, as wealth is property to the other, and the *little all* is as dear as the *much*. It is only by setting out on just principles that men are trained to be just to each other; and it will always be found, that when the rich protect the rights of the poor, the poor will protect the property of the rich. But the guarantee, to be effectual, must be parliamenterally reciprocal.

Exclusions are not only unjust, but they frequently operate as injuriously to the party who monopolizes, as to those who are excluded. When men seek to exclude others from participating in the exercise of any right, they should, at least, be assured, that they can effectually perform the whole of the business they undertake; for, unless they do this, themselves will be losers by the monopoly. This has been the case with respect to the monopolized right of Election. The monopolizing party has not been able to keep the Parliamentary Representation, to whom the power of taxation was

entrusted, in the state it ought to have been, and have thereby multiplied taxes upon themselves equally with those who were excluded.

A great deal has been, and will continue to be said, about disqualifications, arising from the commission of offences; but were this subject urged to its full extent, it would disqualify a great number of the present Electors, together with their Representatives; for, of all offences, none are more destructive to the morals of Society than Bribery and Corruption. It is, therefore, civility to such persons to pass this subject over, and to give them a fair opportunity of recovering, or rather of creating character.

Every thing, in the present mode of electioneering in England, is the reverse of what it ought to be, and the vulgarity that attends elections is no other than the natural consequence of inverting the order of the system.

In the first place, the Candidate seeks the Elector, instead of the Elector seeking for a Representative; and the Electors are advertised as being in the interest of the Candidate, instead of the Candidate being in the interest of the Electors. The Candidate pays the Elector for his vote, instead of the Nation paying the Representative for his time and attendance on public business. The complaint for an undue election is brought by the Candidate, as if he, and not the Electors, were the party aggrieved; and he takes on himself, at any period of the election, to break it up, by declining, as if the election was in his right and not in theirs.

The compact that was entered into at the last Westminster election between two of the candidates (Mr. Fox and Lord Hood,) was an indecent violation of the principles of election. The Candidates assumed, in their own persons, the rights of the Electors; for, it was only in the body of the Electors, and not at all in the Candidates, that the right of making any such compact, or compromise, could exist. But the principle of Election and Representation is so completely done away, in every stage thereof, that inconsistency has no longer the power of surprising.

Neither from elections thus conducted, nor from rotten Borough Addressers, nor from County-meetings, promoted by Placemen and Pensioners, can the sense of the nation be known. It is still corruption appealing to itself. But a Convention of a thousand persons, fairly elected, would bring every matter to a decided issue.

As to County-meetings, it is only persons of leisure, or those who live near to the place of meeting, that can attend, and the number on such occasions is but like a drop in the bucket compared with the whole. The only consistent service which such meetings could render, would be that of apportioning the county into convenient districts, and when this is done, each district might, according to its number of inhabitants, elect its quota of County Members to the National Convention; and the vote of each Elector might be taken in the parish where he resided, either by ballot or by voice, as he should chuse to give it.

A National Convention thus formed, would bring together the sense and opinions of every part of the nation, fairly taken. The science of Government, and the interest of the Public, and of the several parts thereof, would then undergo an ample and rational discussion, freed from the language of parliamentary disguise.

But in all deliberations of this kind, though men have a right to reason with, and endeavour to convince each other, upon any matter that respects their common good, yet, in point of practice, the majority of opinions, when known, forms a rule for the whole, and to this rule every good citizen practically conforms.

Mr. Burke, as if he knew, (for every concealed Pensioner has the opportunity of knowing,) that the abuses acted under the present system, are too flagrant to be palliated, and that the majority of opinions, whenever such abuses should be made public, would be for a general and effectual reform, has endeavoured to preclude the event, by sturdily denying the right of a majority of a nation to act as a whole. Let us bestow a thought upon this case.

When any matter is proposed as a subject for consultation, it necessarily implies some mode of decision. Common consent, arising from absolute necessity, has placed this in a majority of opinions; because, without it, there can be no decision, and consequently no order. It is, perhaps, the only case in which mankind, however various in their ideas upon other matters, can consistently be unanimous; because it is a mode of decision derived from the primary original right of every individual concerned; *that* right being first individually exercised in giving an opinion, and whether that opinion shall arrange with the minority or the majority, is a subsequent accidental thing that neither increases nor diminishes the individual original

right itself. Prior to any debate, enquiry, or investigation, it is not supposed to be known on which side the majority of opinions will fall, and therefore, whilst this mode of decision secures to every one the right of giving an opinion, it admits to every one an equal chance in the ultimate event.

Among the matters that will present themselves to the consideration of a national convention, there is one, wholly of a domestic nature, but so marvellously loaded with con-fusion, as to appear at first sight, almost impossible to be reformed. I mean the condition of what is called Law.

But, if we examine into the cause from whence this confusion, now so much the subject of universal complaint, is produced, not only the remedy will immediately present itself, but, with it, the means of preventing the like case hereafter.

In the first place, the confusion has generated itself from the absurdity of every Parliament assuming to be eternal in power, and the laws partake in a similar manner, of this assumption. They have no period of legal or natural expiration; and, however absurd in principle, or inconsistent in practice many of them have become, they still are, if not especially repealed, considered as making a part of the general mass. By this means the body of what is called Law, is spread over a space of *several hundred years*, comprehending laws obsolete, laws repugnant, laws ridiculous, and every other kind of laws forgotten or remembered; and what renders the case still worse, is, that the confusion multiplies with the progress of time. (*)

To bring this misshapen monster into form, and to prevent its lapsing again into a wilderness state, only two things, and those very simple, are necessary.

The first is, to review the whole mass of laws, and to bring forward such only as are worth retaining, and let all the rest drop; and to give to the laws so brought forward a new era, commencing from the time of such reform.

** In the time of Henry IV. a law was passed making it felony "to multiply gold or silver, or to make use of the craft of multiplication," and this law remained two hundred and eighty-six years upon the statute books. It was then repealed as being ridiculous and injurious.—Author.*

Secondly; that at the expiration of every twenty-one years (or any other stated period) a like review shall again be taken, and the laws, found proper

to be retained, be again carried forward, commencing with that date, and the useless laws dropped and discontinued.

By this means there can be no obsolete laws, and scarcely such a thing as laws standing in direct or equivocal contradiction to each other, and every person will know the period of time to which he is to look back for all the laws in being.

It is worth remarking, that while every other branch of science is brought within some commodious system, and the study of it simplified by easy methods, the laws take the contrary course, and become every year more complicated, entangled, confused, and obscure.

Among the paragraphs which the Attorney General has taken from the *Rights of Man*, and put into his information, one is, that where I have said, "that with respect to regular law, there is *scarcely such a thing*."

As I do not know whether the Attorney-General means to show this expression to be libellous, because it is TRUE, or because it is FALSE, I shall make no other reply to him in this place, than by remarking, that if almanack-makers had not been more judicious than law-makers, the study of almanacks would by this time have become as abstruse as the study of the law, and we should hear of a library of almanacks as we now do of statutes; but by the simple operation of letting the obsolete matter drop, and carrying forward that only which is proper to be retained, all that is necessary to be known is found within the space of a year, and laws also admit of being kept within some given period.

I shall here close this letter, so far as it respects the Addresses, the Proclamation, and the Prosecution; and shall offer a few observations to the Society, styling itself "The Friends of the People."

That the science of government is beginning to be better understood than in former times, and that the age of fiction and political superstition, and of craft and mystery, is passing away, are matters which the experience of every day-proves to be true, as well in England as in other countries.

As therefore it is impossible to calculate the silent progress of opinion, and also impossible to govern a nation after it has changed its habits of thinking, by the craft or policy that it was governed by before, the only true method to prevent popular discontents and commotions is, to throw, by every fair and rational argument, all the light upon the subject that can possibly be thrown; and at the same time, to open the means of collecting

the general sense of the nation; and this cannot, as already observed, be done by any plan so effectually as a national convention. Here individual opinion will quiet itself by having a centre to rest upon.

The society already mentioned, (which is made up of men of various descriptions, but chiefly of those called Foxites,) appears to me, either to have taken wrong grounds from want of judgment, or to have acted with cunning reserve. It is now amusing the people with a new phrase, namely, that of "a temperate and moderate reform," the interpretation of which is, *a continuance of the abuses as long as possible, If we cannot hold all let us hold some.*

Who are those that are frightened at reforms? Are the public afraid that their taxes should be lessened too much? Are they afraid that sinecure places and pensions should be abolished too fast? Are the poor afraid that their condition should be rendered too comfortable? Is the worn-out mechanic, or the aged and decayed tradesman, frightened at the prospect of receiving ten pounds a year out of the surplus taxes? Is the soldier frightened at the thoughts of his discharge, and three shillings per week during life? Is the sailor afraid that press-warrants will be abolished? The Society mistakes the fears of borough-mongers, placemen, and pensioners, for the fears of the people; and the *temperate and moderate Reform* it talks of, is calculated to suit the condition of the former.

Those words, "temperate and moderate," are words either of political cowardice, or of cunning, or seduction.—A thing, moderately good, is not so good as it ought to be. Moderation in temper, is always a virtue; but moderation in principle, is a species of vice. But who is to be the judge of what is a temperate and moderate Reform? The Society is the representative of nobody; neither can the unrepresented part of the nation commit this power to those in Parliament, in whose election they had no choice; and, therefore, even upon the ground the Society has taken, recourse must be had to a National Convention.

The objection which Mr. Fox made to Mr. Grey's proposed Motion for a Parliamentary Reform was, that it contained no plan.—It certainly did not. But the plan very easily presents itself; and whilst it is fair for all parties, it prevents the dangers that might otherwise arise from private or popular discontent.

Thomas Paine.

Editorial Note on Burke's Alleged Secret Pension.—By reference to Vol. II., pp. 271, 360, of this work, it will be seen that Paine mentions a report that Burke was a "pensioner in a fictitious name." A letter of John Hall to a relative in Leicester, (London, May 1, 1792.) says: "You will remember that there was a vote carried, about the conclusion of the American war, that the influence of the Crown had increased, was increasing, and should be diminished. Burke, poor, and like a good angler, baited a hook with a bill to bring into Parliament, that no pensions should be given above #300 a year, but what should be publicly granted, and for what, (I may not be quite particular.) To stop that he took in another person's name #1500 a year for life, and some time past he disposed of it, or sold his life out. He has been very still since his declension from the Whigs, and is not concerned in the slave-trade [question?] as I hear of." This letter, now in possession of Hall's kinsman, Dr. Dutton Steele of Philadelphia, contains an item not in Paine's account, which may have been derived from it. Hall was an English scientific engineer, and acquainted with intelligent men in London. Paine was rather eager for a judicial encounter with Burke, and probably expected to be sued by him for libel, as he (Burke) had once sued the "Public Advertiser" for a personal accusation. But Burke remained quiet under this charge, and Paine, outlawed, and in France, had no opportunity for summoning witnesses in its support. The biographers of Burke have silently passed over the accusation, and this might be fair enough were this unconfirmed charge made against a public man of stainless reputation in such matters. But though Burke escaped parliamentary censure for official corruption (May 16, 1783, by only 24 majority) he has never been vindicated. It was admitted that he had restored to office a cashier and an accountant dismissed for dishonesty by his predecessor. ("Pari. Hist.," xxiii., pp. 801, 902.) He escaped censure by agreeing to suspend them. One was proved guilty, the other committed suicide. It was subsequently shown that one of the men had been an agent of the Burkes in raising India stock. (Dilke's "Papers of a Critic," ii., p. 333—"Dict. Nat Biography": art Burke.) Paine, in his letter to the Attorney-General (IV. of this volume), charged that Burke had been a "masked pensioner" ten years. The date corresponds with a secret arrangement made in 1782 with Burke for a virtual pension to his son, for life, and his mother. Under date April 34 of that year, Burke, writing to William Burke at Madras, reports his appointment as Paymaster: "The office is to be 4000L. certain. Young Richard [his son] is the deputy with a salary of 500L. The office to be reformed according to the Bill. There is enough emoluments. In decency it could not be more. Something considerable is also to be secured for the life of young Richard to be a security for him and his mother." ("Mem. and Cor. of Charles James Fox," i., p. 451.) It is thus certain that the Rockingham Ministry were doing for the Paymaster all they could "in decency," and that while posing as a reformer in reducing the expenses of that office, he was arranging for secret advantages to his family. It is said that the arrangement failed by his loss of office, but while so many of Burke's papers are withheld from the public (if not destroyed), it cannot be certain that something was not

done of the kind charged by Paine. That Burke was not strict in such matters is further shown by his efforts to secure for his son the rich sinecure of the Clerkship of the Polls, in which he failed. Burke was again Paymaster in 1783-4, and this time remained long enough in office to repeat more successfully his secret attempts to secure irregular pensions for his family. On April 7, 1894, Messrs. Sotheby, Wilkinson, and Hodge sold in London (Lot 404) a letter of Burke (which I have not seen in print), dated July 16, 1795. It was written to the Chairman of the Commission on Public Accounts, who had required him to render his accounts for the time he was in office as Paymaster-General, 1783-4. Burke refuses to do so in four angry and quibbling pages, and declares he will appeal to his country against the demand if it is pressed. Why should Burke wish to conceal his accounts? There certainly were suspicions around Burke, and they may have caused Pitt to renounce his intention, conveyed to Burke, August 30, 1794, of asking Parliament to bestow on him a pension. "It is not exactly known," says one of Burke's editors, "what induced Mr. Pitt to decline bringing before Parliament a measure which he had himself proposed without any solicitation whatever on the part of Burke." (Burke's "Works," English Ed., 1852, ii., p. 252.) The pensions were given without consultation with Parliament—1200L. granted him by the King from the Civil List, and 2500L. by Pitt in West Indian 41/2 per cents. Burke, on taking his seat beside Pitt in the great Paine Parliament (December, 1792), had protested that he had not abandoned his party through expectation of a pension, but the general belief of those with whom he had formerly acted was that he had been promised a pension. A couplet of the time ran:

"A pension makes him change his plan,
And loudly damn the rights of man."

Writing in 1819, Cobbett says: "As my Lord Grenville introduced the name of Burke, suffer me, my Lord, to introduce the name of the man [Paine] who put this Burke to shame, who drove him off the public stage to seek shelter in the Pension List, and who is now named fifty million times where the name of the pensioned Burke is mentioned once."—Editor.

X. ADDRESS TO THE PEOPLE OF FRANCE.

Paris, Sept. 25, [1792.] First Year of the Republic.

Fellow Citizens,

I RECEIVE, with affectionate gratitude, the honour which the late National Assembly has conferred upon me, by adopting me a Citizen of France: and the additional honor of being elected by my fellow citizens a Member of the National Convention.⁽¹⁾ Happily impressed, as I am, by those testimonies of respect shown towards me as an individual, I feel my felicity increased by seeing the barrier broken down that divided patriotism by spots of earth, and limited citizenship to the soil, like vegetation.

Had those honours been conferred in an hour of national tranquillity, they would have afforded no other means of shewing my affection, than to have accepted and enjoyed them; but they come accompanied with circumstances that give me the honourable opportunity of commencing my citizenship in the stormy hour of difficulties. I come not to enjoy repose. Convinced that the cause of France is the cause of all mankind, and that liberty cannot be purchased by a wish, I gladly share with you the dangers and honours necessary to success.

1 The National Assembly (August 26, 1792) conferred the title of "French Citizen" on "Priestley, Payne, Bentham, Wilberforce, Clarkson, Mackintosh, Campe, Cormelle, Paw, David Williams, Gorani, Anacharsis Clootz, Pestalozzi, Washington, Hamilton, Madison, Klopstoc, Kosciusko, Gilleers."—Editor.. vol ni-7

I am well aware that the moment of any great change, such as that accomplished on the 10th of August, is unavoidably the moment of terror and confusion. The mind, highly agitated by hope, suspicion and apprehension, continues without rest till the change be accomplished. But let us now look calmly and confidently forward, and success is certain. It is no longer the paltry cause of kings, or of this, or of that individual, that calls France and her armies into action. It is the great cause of all. It is the establishment of a new aera, that shall blot despotism from the earth, and

fix, on the lasting principles of peace and citizenship, the great Republic of Man.

It has been my fate to have borne a share in the commencement and complete establishment of one Revolution, (I mean the Revolution of America.) The success and events of that Revolution are encouraging to us. The prosperity and happiness that have since flowed to that country, have amply rewarded her for all the hardships she endured and for all the dangers she encountered.

The principles on which that Revolution began, have extended themselves to Europe; and an over-ruling Providence is regenerating the Old World by the principles of the New. The distance of America from all the other parts of the globe, did not admit of her carrying those principles beyond her own situation. It is to the peculiar honour of France, that she now raises the standard of liberty for all nations; and in fighting her own battles, contends for the rights of all mankind.

The same spirit of fortitude that insured success to America; will insure it to France, for it is impossible to conquer a nation determined to be free! The military circumstances that now unite themselves to France, are such as the despots of the earth know nothing of, and can form no calculation upon. They know not what it is to fight against a nation; they have only been accustomed to make war upon each other, and they know, from system and practice, how to calculate the probable success of despot against despot; and here their knowledge and their experience end.

But in a contest like the present a new and boundless variety of circumstances arise, that deranges all such customary calculations. When a whole nation acts as an army, the despot knows not the extent of the power against which he contends. New armies arise against him with the necessity of the moment. It is then that the difficulties of an invading enemy multiply, as in the former case they diminished; and he finds them at their height when he expected them to end.

The only war that has any similarity of circumstances with the present, is the late revolution war in America. On her part, as it now is in France, it was a war of the whole nation:—there it was that the enemy, by beginning to conquer, put himself in a condition of being conquered. His first victories prepared him for defeat. He advanced till he could not retreat, and found himself in the midst of a nation of armies.

Were it now to be proposed to the Austrians and Prussians, to escort them into the middle of France, and there leave them to make the most of such a situation, they would see too much into the dangers of it to accept the offer, and the same dangers would attend them, could they arrive there by any other means. Where, then, is the military policy of their attempting to obtain, by force, that which they would refuse by choice? But to reason with despots is throwing reason away. The best of arguments is a vigorous preparation.

Man is ever a stranger to the ways by which Providence regulates the order of things. The interference of foreign despots may serve to introduce into their own enslaved countries the principles they come to oppose. Liberty and Equality are blessings too great to be the inheritance of France alone. It is an honour to her to be their first champion; and she may now say to her enemies, with a mighty voice, "O! ye Austrians, ye Prussians! ye who now turn your bayonets against us, it is for you, it is for all Europe, it is for all mankind, and not for France alone, that she raises the standard of Liberty and Equality!"

The public cause has hitherto suffered from the contradictions contained in the Constitution of the Constituent Assembly. Those contradictions have served to divide the opinions of individuals at home, and to obscure the great principles of the Revolution in other countries. But when those contradictions shall be removed, and the Constitution be made conformable to the declaration of Rights; when the bagatelles of monarchy, royalty, regency, and hereditary succession, shall be exposed, with all their absurdities, a new ray of light will be thrown over the world, and the Revolution will derive new strength by being universally understood.

The scene that now opens itself to France extends far beyond the boundaries of her own dominions. Every nation is becoming her colleague, and every court is become her enemy. It is now the cause of all nations, against the cause of all courts. The terror that despotism felt, clandestinely begot a confederation of despots; and their attack upon France was produced by their fears at home.

In entering on this great scene, greater than any nation has yet been called to act in, let us say to the agitated mind, be calm. Let us punish by instructing, rather than by revenge. Let us begin the new era by a greatness of friendship, and hail the approach of union and success.

Your Fellow-Citizen,
Thomas Paine.

XI. ANTI-MONARCHAL ESSAY. FOR THE USE OF NEW REPUBLICANS.(1)

When we reach some great good, long desired, we begin by felicitating ourselves. We triumph, we give ourselves up to this joy without rendering to our minds any full account of our reasons for it. Then comes reflexion: we pass in review all the circumstances of our new happiness; we compare it in detail with our former condition; and each of these thoughts becomes a fresh enjoyment. This satisfaction, elucidated and well-considered, we now desire to procure for our readers.

In seeing Royalty abolished and the Republic established, all France has resounded with unanimous plaudits.(2) Yet, Citizen President: In the name of the Deputies of the Department of the Pas de Calais, I have the honor of presenting to the Convention the felicitations of the General Council of the Commune of Calais on the abolition of Royalty.

1 Translated for this work from Le Patriote Frangois, "Samedi 20 Octobre, 1793, l'an Ier de la Republique. Supplement au No. 1167," in the Bibliothhque Nationale, Paris. It is headed, "Essai anti-monarchique, ` l'usage des nouveaux republicains, tiri de la Feuille Villageoise." I have not found this Feuille, but no doubt Brissot, in editing the essay for his journal (Le Patriote Frangois) abridged it, and in one instance Paine is mentioned by name. Although in this essay Paine occasionally repeats sentences used elsewhere, and naturally maintains his well-known principles, the work has a peculiar interest as indicating the temper and visions of the opening revolution.—Editor.

2 Royalty was abolished by the National Convention on the first day of its meeting, September 21, 1792, the revolutionary Calendar beginning next day. Paine was chosen by his fellow-deputies of Calais to congratulate the Convention, and did so in a brief address, dated October 27, which was loaned by M. Charavay to the Historical Exposition of the Revolution at Paris, 1889, where I made the subjoined translation: "folly of oar ancestor;, who have placed us under the necessity of treating gravely (solennellement) the abolition of a phantom (fanttme).—Thomas Paine, Deputy."—Editor.

Amid the joy inspired by this event, one cannot forbear some pain at the some who clap their hands do not sufficiently understand the condition they

are leaving or that which they are assuming.

The perjuries of Louis, the conspiracies of his court, the wildness of his worthy brothers, have filled every Frenchman with horror, and this race was dethroned in their hearts before its fall by legal decree. But it is little to throw down an idol; it is the pedestal that above all must be broken down; it is the regal office rather than the incumbent that is murderous. All do not realize this.

Why is Royalty an absurd and detestable government? Why is the Republic a government accordant with nature and reason? At the present time a Frenchman should put himself in a position to answer these two questions clearly. For, in fine, if you are free and contented it is yet needful that you should know why.

Let us first discuss Royalty or Monarchy. Although one often wishes to distinguish between these names, common usage gives them the same sense.

ROYALTY.

Bands of brigands unite to subvert a country, place it under tribute, seize its lands, enslave its inhabitants. The expedition completed, the chieftain of the robbers adopts the title of monarch or king. Such is the origin of Royalty among all tribes—huntsmen, agriculturists, shepherds.

A second brigand arrives who finds it equitable to take away by force what was conquered by violence: he dispossesses the first; he chains him, kills him, reigns in his place. Ere long time effaces the memory of this origin; the successors rule under a new form; they do a little good, from policy; they corrupt all who surround them; they invent fictitious genealogies to make their families sacred (1); the knavery of priests comes to their aid; they take Religion for a life-guard: thenceforth tyranny becomes immortal, the usurped power becomes an hereditary right.

1 The Boston Investigator's compilation of Paine's Works contains the following as supposed to be Mr. Paine's:

"Royal Pedigree.—George the Third, who was the grandson of George the Second, who was the son of George the First, who was the son of the Princess Sophia, who was the cousin of Anne, who was the sister of William and Mary, who were the daughter and son-in-law of James the Second, who was the son of Charles the First, who was a traitor to his country and decapitated as such, who was the son of James the First, who was the son of Mary, who was the sister of Edward the Sixth,

who was the son of Henry the Eighth, who was the coldblooded murderer of his wives, and the promoter of the Protestant religion, who was the son of Henry the Seventh, who slew Richard the Third, who smothered his nephew Edward the Fifth, who was the son of Edward the Fourth, who with bloody Richard slew Henry the Sixth, who succeeded Henry the Fifth, who was the son of Henry the Fourth, who was the cousin of Richard the Second, who was the son of Edward the Third, who was the son of Richard the Second, who was the son of Edward the First, who was the son of Henry the Third, who was the son of John, who was the brother of Richard the First, who was the son of Henry the Second, who was the son of Matilda, who was the daughter of Henry the First, who was the brother of William Rufus, who was the son of William the Conqueror, who was the son of a whore."—Editor.

The effects of Royalty have been entirely harmonious with its origin. What scenes of horror, what refinements of iniquity, do the annals of monarchies present! If we should paint human nature with a baseness of heart, an hypocrisy, from which all must recoil and humanity disavow, it would be the portraiture of kings, their ministers and courtiers.

And why should it not be so? What should such a monstrosity produce but miseries and crimes? What is monarchy? It has been finely disguised, and the people familiarized with the odious title: in its real sense the word signifies *the absolute power of one single individual*, who may with impunity be stupid, treacherous, tyrannical, etc. Is it not an insult to nations to wish them so governed?

Government by a single individual is vicious in itself, independently of the individual's vices. For however little a State, the prince is nearly always too small: where is the proportion between one man and the affairs of a whole nation?

True, some men of genius have been seen under the diadem; but the evil is then even greater: the ambition of such a man impels him to conquest and despotism, his subjects soon have to lament his glory, and sing their *Te-deums* while perishing with hunger. Such is the history of Louis XIV. and so many others.

But if ordinary men in power repay you with incapacity or with princely vices? But those who come to the front in monarchies are frequently mere mean mischief-makers, commonplace knaves, petty intriguers, whose small wits, which in courts reach large places, serve only to display their ineptitude in public, as soon as they appear. (*) In short, monarchs do nothing, and their ministers do evil: this is the history of all monarchies.

But if Royalty as such is baneful, as hereditary succession it is equally revolting and ridiculous. What! there exists among my kind a man who pretends that he is born to govern me? Whence derived he such right? From his and my ancestors, says he. But how could they transmit to him a right they did not possess? Man has no authority over generations unborn. I cannot be the slave of the dead, more than of the living. Suppose that instead of our posterity, it was we who should succeed ourselves: we should not to-day be able to despoil ourselves of the rights which would belong to us in our second life: for a stronger reason we cannot so despoil others.

An hereditary crown! A transmissible throne! What a notion! With even a little reflexion, can any one tolerate it? Should human beings then be the property of certain individuals, born or to be born? Are we then to treat our descendants in advance as cattle, who shall have neither will nor rights of their own? To inherit government is to inherit peoples, as if they were herds. It is the basest, the most shameful fantasy that ever degraded mankind.

It is wrong to reproach kings with their ferocity, their brutal indifference, the oppressions of the people, and molestations of citizens: it is hereditary succession that makes them what they are: this breeds monsters as a marsh breeds vipers.

* J. J. Rousseau, *Contrat Social*.—Author.

The logic on which the hereditary prince rests is in effect this: I derive my power from my birth; I derive my birth from God; therefore I owe nothing to men. It is little that he has at hand a complacent minister, he continues to indulge, conscientiously, in all the crimes of tyranny. This has been seen in all times and countries.

Tell me, then, what is there in common between him who is master of a people, and the people of whom he is master? Are these masters really of their kind? It is by sympathy that we are good and human: with whom does a monarch sympathize? When my neighbor suffers I pity, because I put myself in his place: a monarch pities none, because he has never been, can never be, in any other place than his own.

A monarch is an egoist by nature, the *egoist par excellence*. A thousand traits show that this kind of men have no point of contact with the rest of humanity. There was demanded of Charles II. the punishment of

Lauderdale, his favorite, who had infamously oppressed the Scotch. "Yes," said Charles coolly, "this man has done much against the Scotch, but I cannot see that he has done anything against my interests." Louis XIV. often said: "If I follow the wishes of the people, I cannot act the king." Even such phrases as "misfortunes of the State," "safety of the State," filled Louis XIV. with wrath.

Could nature make a law which should assure virtue and wisdom invariably in these privileged castes that perpetuate themselves on thrones, there would be no objection to their hereditary succession. But let us pass Europe in review: all of its monarchs are the meanest of men. This one a tyrant, that one an imbecile, another a traitor, the next a debauchee, while some muster all the vices. It looks as if fate and nature had aimed to show our epoch, and all nations, the absurdity and enormity of Royalty.

But I mistake: this epoch has nothing peculiar. For, such is the essential vice of this royal succession by animal filiation, the peoples have not even the chances of nature,—they cannot even hope for a good prince as an alternative. All things conspire to deprive of reason and justice an individual reared to command others. The word of young Dionysius was very sensible: his father, reproaching him for a shameful action, said, "Have I given thee such example?" "Ah," answered the youth, "thy father was not a king!"

In truth, were laughter on such a subject permissible, nothing would suggest ideas more burlesque than this fantastic institution of hereditary kings. Would it not be believed, to look at them, that there really exist particular lineages possessing certain qualities which enter the blood of the embryo prince, and adapt him physically for royalty, as a horse for the racecourse? But then, in this wild supposition, it yet becomes necessary to assure the genuine family descent of the heir presumptive. To perpetuate the noble race of Andalusian chargers, the circumstances pass before witnesses, and similar precautions seem necessary, however indecent, to make sure that the trickeries of queens shall not supply thrones with bastards, and that the kings, like the horses, shall always be thoroughbreds.

Whether one jests or reasons, there is found in this idea of hereditary royalty only folly and shame. What then is this office, which may be filled by infants or idiots? Some talent is required to be a simple workman; to be a king there is need to have only the human shape, to be a living automaton.

We are astonished when reading that the Egyptians placed on the throne a flint, and called it their king. We smile at the dog Barkouf, sent by an Asiatic despot to govern one of his provinces.(*). But mon-archs of this kind are less mischievous and less absurd than those before whom whole peoples prostrate themselves. The flint and the dog at least imposed on nobody. None ascribed to them qualities or characters they did not possess. They were not styled 'Father of the People,'—though this were hardly more ridiculous than to give that title to a rattle-head whom inheritance crowns at eighteen. Better a mute than an animate idol. Why, there can hardly be cited an instance of a great man having children worthy of him, yet you will have the royal function pass from father to son! As well declare that a wise man's son will be wise. A king is an administrator, and an hereditary administrator is as absurd as an author by birthright.

** See the first year of La Feuille Villageoise, No. 42.—
Author. [Cf. Montaigne's Essays, chap. xii.—Editor.]*

Royalty is thus as contrary to common sense as to com-mon right. But it would be a plague even if no more than an absurdity; for a people who can bow down in honor of a silly thing is a debased people. Can they be fit for great affairs who render equal homage to vice and virtue, and yield the same submission to ignorance and wisdom? Of all institutions, none has caused more intellectual degeneracy. This explains the often-remarked abjectness of character under monarchies.

Such is also the effect of this contagious institution that it renders equality impossible, and draws in its train the presumption and the evils of "Nobility." If you admit inheritance of an office, why not that of a distinction? The Nobility's heritage asks only homage, that of the Crown commands submission. When a man says to me, 'I am born illustrious,' I merely smile; when he says 'I am born your master,' I set my foot on him.

When the Convention pronounced the abolition of Royalty none rose for the defence that was expected. On this subject a philosopher, who thought discussion should always precede enactment, proposed a singular thing; he desired that the Convention should nominate an orator commissioned to plead before it the cause of Royalty, so that the pitiful arguments by which it has in all ages been justified might appear in broad daylight. Judges give one accused, however certain his guilt, an official defender. In the ancient Senate of Venice there existed a public officer whose function was to

contest all propositions, however incontestible, or however perfect their evidence. For the rest, pleaders for Royalty are not rare: let us open them, and see what the most specious of royalist reasoners have said.

1. *A king is necessary to preserve a people from the tyranny of powerful men.*

Establish the Rights of Man(1); enthrone Equality; form a good Constitution; divide well its powers; let there be no privileges, no distinctions of birth, no monopolies; make safe the liberty of industry and of trade, the equal distribution of [family] inheritances, publicity of administration, freedom of the press: these things all established, you will be assured of good laws, and need not fear the powerful men. Willingly or unwillingly, all citizens will be under the Law.

1 The reader should bear in mind that this phrase, now used vaguely, had for Paine and his political school a special significance; it implied a fundamental Declaration of individual rights, of supreme force and authority, invasion which, either by legislatures, law courts, majorities, or administrators, was to be regarded as the worst treason and despotism.—Editor.

2. *The Legislature might usurp authority, and a king is needed to restrain it.*

With representatives, frequently renewed, who neither administer nor judge, whose functions are determined by the laws; with national conventions, with primary assemblies, which can be convoked any moment; with a people knowing how to read, and how to defend itself; with good journals, guns, and pikes; a Legislature would have a good deal of trouble in enjoying any months of tyranny. Let us not suppose an evil for the sake of its remedy.

3. *A king is needed to give force to executive power.*

This might be said while there existed nobles, a priesthood, parliaments, the privileged of every kind. But at present who can resist the Law, which is the will of all, whose execution is the interest of all? On the contrary the existence of an hereditary prince inspires perpetual distrust among the friends of liberty; his authority is odious to them; in checking despotism they constantly obstruct the action of government. Observe how feeble the executive power was found, after our recent pretence of marrying Royalty with Liberty.

Take note, for the rest, that those who talk in this way are men who believe that the King and the Executive Power are only one and the same thing: readers of *La Feuille Villageoise* are more advanced.(*)

* See No. 50.—Author

Others use this bad reasoning: "Were there no hereditary chief there would be an elective chief: the citizens would side with this man or that, and there would be a civil war at every election." In the first place, it is certain that hereditary succession alone has produced the civil wars of France and England; and that beyond this are the pre-tended rights, of royal families which have twenty times drawn on these nations the scourge of foreign wars. It is, in fine, the heredity of crowns that has caused the troubles of Regency, which Thomas Paine calls Monarchy at nurse.

But above all it must be said, that if there be an elective chief, that chief will not be a king surrounded by courtiers, burdened with pomp, inflated by idolatries, and endowed with thirty millions of money; also, that no citizen will be tempted to injure himself by placing another citizen, his equal, for some years in an office without limited income and circumscribed power.

In a word, whoever demands a king demands an aristocracy, and thirty millions of taxes. See why Franklin described Royalism as *a crime like poisoning*.

Royalty, its fanatical eclat, its superstitious idolatry, the delusive assumption of its necessity, all these fictions have been invented only to obtain from men excessive taxes and voluntary servitude. Royalty and Popery have had the same aim, have sustained themselves by the same artifices, and crumble under the same Light.

XII. TO THE ATTORNEY GENERAL, ON THE PROSECUTION AGAINST THE SECOND PART

OF RIGHTS OF MAN.(1)

Paris, 11th of November, 1st Year of the Republic. [1792.]

Mr. Attorney General:

Sir,—As there can be no personal resentment between two strangers, I write this letter to you, as to a man against whom I have no animosity.

You have, as Attorney General, commenced a prosecution against me, as the author of Rights of Man. Had not my duty, in consequence of my being elected a member of the National Convention of France, called me from England, I should have staid to have contested the injustice of that prosecution; not upon my own account, for I cared not about the prosecution, but to have defended the principles I had advanced in the work.

1 Read to the Jury by the Attorney General, Sir Archibald Macdonald, at the trial of Paine, December 18, 1792, which resulted in his outlawry.—Editor.

The duty I am now engaged in is of too much importance to permit me to trouble myself about your prosecution: when I have leisure, I shall have no objection to meet you on that ground; but, as I now stand, whether you go on with the prosecution, or whether you do not, or whether you obtain a verdict, or not, is a matter of the most perfect indifference to me as an individual. If you obtain one, (which you are welcome to if you can get it,) it cannot affect me either in person, property, or reputation, otherwise than to increase the latter; and with respect to yourself, it is as consistent that you obtain a verdict against the Man in the Moon as against me; neither do I see how you can continue the prosecution against me as you would have done against one *your own people*, who had absented himself because he was prosecuted; what passed at Dover proves that my departure from England was no secret. (1)

My necessary absence from your country affords the opportunity of knowing whether the prosecution was intended against Thomas Paine, or against the Right of the People of England to investigate systems and principles of government; for as I cannot now be the object of the prosecution, the going on with the prosecution will shew that something else was the object, and that something else can be no other than the People of England, for it is against *their Rights*, and not against me, that a verdict or sentence can operate, if it can operate at all. Be then so candid as to tell the Jury, (if you choose to continue the process,) whom it is you are prosecuting, and on whom it is that the verdict is to fall.(2)

But I have other reasons than those I have mentioned for writing you this letter; and, however you may choose to interpret them, they proceed from a good heart. The time, Sir, is becoming too serious to play with Court prosecutions, and sport with national rights. The terrible examples that have taken place here, upon men who, less than a year ago, thought themselves as secure as any prosecuting Judge, Jury, or Attorney General, now can in England, ought to have some weight with men in your situation. That the government of England is as great, if not the greatest, perfection of fraud and corruption that ever took place since governments began, is what you cannot be a stranger to, unless the constant habit of seeing it has blinded your senses; but though you may not chuse to see it, the people are seeing it very fast, and the progress is beyond what you may chuse to believe. Is it possible that you, or I, can believe, or that reason can make any other man believe, that the capacity of such a man as Mr. Guelph, or any of his profligate sons, is necessary to the government of a nation? I speak to you as one man ought to speak to another; and I know also that I speak what other people are beginning to think.

1 See Chapter VIII. of this volume.—Editor.

2 In reading the letter in court the Attorney General said at this point: "Gentlemen, I certainly will comply with this request. I am prosecuting both him and his work; and if I succeed in this prosecution, he shall never return to this country otherwise than in vintulis, for I will outlaw him."—Editor.

That you cannot obtain a verdict (and if you do, it will signify nothing) *without packing a Jury*, (and we *both* know that such tricks are practised,) is what I have very good reason to believe, I have gone into coffee-houses,

and places where I was unknown, on purpose to learn the currency of opinion, and I never yet saw any company of twelve men that condemned the book; but I have often found a greater number than twelve approving it, and this I think is *a fair way of collecting the natural currency of opinion*. Do not then, Sir, be the instrument of drawing twelve men into a situation that may be *injurious* to them afterwards. I do not speak this from policy, but from benevolence; but if you chuse to go on with the process, I make it my request to you that you will read this letter in Court, after which the Judge and the Jury may do as they please. As I do not consider myself the object of the prosecution, neither can I be affected by the issue, one way or the other, I shall, though a foreigner in your country, subscribe as much money as any other man towards supporting the right of the nation against the prosecution; and it is for this purpose only that I shall do it.(1)

Thomas Paine.

As I have not time to copy letters, you will excuse the corrections.

1 In reading this letter at the trial the Attorney interspersed comments. At the phrase, "Mr. Guelph and his profligate sons," he exclaimed: "This passage is contemptuous, scandalous, false, cruel. Why, gentlemen, is Mr. Paine, in addition to the political doctrines he is teaching us in this country, to teach us the morality and religion of implacability? Is he to teach human creatures, whose moments of existence depend upon the permission of a Being, merciful, long-suffering, and of great goodness, that those youthful errors from which even royalty is not exempted, are to be treasured up in a vindictive memory, and are to receive sentence of irremissible sin at His hands.... If giving me pain was his object he has that hellish gratification." Erskine, Fame's counsel, protested in advance against the reading of this letter (of which he had heard), as containing matter likely to divert the Jury from the subject of prosecution (the book). Lord Kenyon admitted the letter.—Editor.

P. S. I intended, had I staid in England, to have published the information, with my remarks upon it, before the trial came on; but as I am otherwise engaged, I reserve myself till the trial is over, when I shall reply fully to every thing you shall advance.

XIII. ON THE PROPRIETY OF BRINGING LOUIS XVI. TO TRIAL.(1)

Read to the Convention, November 21, 1792.

Paris, Nov. 20, 1792.

Citizen President,

As I do not know precisely what day the Convention will resume the discussion on the trial of Louis XVI., and, on account of my inability to express myself in French, I cannot speak at the tribune, I request permission to deposit in your hands the enclosed paper, which contains my opinion on that subject. I make this demand with so much more eagerness, because circumstances will prove how much it imports to France, that Louis XVI. should continue to enjoy good health. I should be happy if the Convention would have the goodness to hear this paper read this morning, as I propose sending a copy of it to London, to be printed in the English journals.(2)

Thomas Paine.

1 This address, which has suffered by alterations in all editions is here revised and completed by aid of the official document: "Opinion de Thomas Payne, Depute du Dipartement de la Somme [error], concernant le jugement de Louis XVI. Pricidi par sa lettre d'envoi au Prsident de la Convention. Imprimi par ordre de la Convention Nationale. @ Paris. De l'Imprimerie Nationale." Lamartine has censured Paine for this speech; but the trial of the King was a foregone conclusion, and it will be noted that Paine was already trying to avert popular wrath from the individual man by directing it against the general league of monarchs, and the monarchal system. Nor would his plea for the King's life have been listened to but for this previous address.—Editor.

2 Of course no English journal could then venture to print it.—Editor.

A Secretary read the opinion of Thomas Paine. I think it necessary that Louis XVI. should be tried; not that this advice is suggested by a spirit of vengeance, but because this measure appears to me just, lawful, and conformable to sound policy. If Louis is innocent, let us put him to prove

his innocence; if he is guilty, let the national will determine whether he shall be pardoned or punished.

But besides the motives personal to Louis XVI., there are others which make his trial necessary. I am about to develop these motives, in the language which I think expresses them, and no other. I forbid myself the use of equivocal expression or of mere ceremony. There was formed among the crowned brigands of Europe a conspiracy which threatened not only French liberty, but likewise that of all nations. Every thing tends to the belief that Louis XVI. was the partner of this horde of conspirators. You have this man in your power, and he is at present the only one of the band of whom you can make sure. I consider Louis XVI. in the same point of view as the two first robbers taken up in the affair of the Store Room; their trial led to discovery of the gang to which they belonged. We have seen the unhappy soldiers of Austria, of Prussia, and the other powers which declared themselves our enemies, torn from their fire-sides, and drawn to butchery like wretched animals, to sustain, at the cost of their blood, the common cause of these crowned brigands. They loaded the inhabitants of those regions with taxes to support the expenses of the war. All this was not done solely for Louis XVI. Some of the conspirators have acted openly: but there is reason to presume that this conspiracy is composed of two classes of brigands; those who have taken up arms, and those who have lent to their cause secret encouragement and clandestine assistance. Now it is indispensable to let France and the whole world know all these accomplices.

A little time after the National Convention was constituted, the Minister for Foreign Affairs presented the picture of all the governments of Europe, —those whose hostilities were public, and those that acted with a mysterious circumspection. This picture supplied grounds for just suspicions of the part the latter were disposed to take, and since then various circumstances have occurred to confirm those suspicions. We have already penetrated into some part of the conduct of Mr. Guelph, Elector of Hanover, and strong presumptions involve the same man, his court and ministers, in quality of king of England. M. Calonne has constantly been favoured with a friendly reception at that court.(1) The arrival of Mr. Smith, secretary to Mr. Pitt, at Coblenz, when the emigrants were assembling there; the recall of the English ambassador; the extravagant joy manifested by the court of St. James' at the false report of the defeat of Dumouriez,

when it was communicated by Lord Elgin, then Minister of Great Britain at Brussels—all these circumstances render him [George III.] extremely suspicious; the trial of Louis XVI. will probably furnish more decisive proofs.

The long subsisting fear of a revolution in England, would alone, I believe, prevent that court from manifesting as much publicity in its operations as Austria and Prussia. Another reason could be added to this: the inevitable decrease of credit, by means of which alone all the old governments could obtain fresh loans, in proportion as the probability of revolutions increased. Whoever invests in the new loans of such governments must expect to lose his stock.

Every body knows that the Landgrave of Hesse fights only as far as he is paid. He has been for many years in the pay of the court of London. If the trial of Louis XVI. could bring it to light, that this detestable dealer in human flesh has been paid with the produce of the taxes imposed on the English people, it would be justice to that nation to disclose that fact. It would at the same time give to France an exact knowledge of the character of that court, which has not ceased to be the most intriguing in Europe, ever since its connexion with Germany.

*1 Calonne (1734-1802), made Controller General of the Treasury in 1783, lavished the public money on the Queen, on courtiers, and on himself (purchasing St. Cloud and Rambouillet), borrowing vast sums and deceiving the King as to the emptiness of the Treasury, the annual deficit having risen in 1787 to 115 millions of francs. He was then banished to Lorraine, whence he proceeded to England, where he married the wealthy widow Haveley. By his agency for the Coblenz party he lost his fortune. In 1802 Napoleon brought him back from London to Paris, where he died the same year.
—Editor.*

Louis XVI., considered as an individual, is an object beneath the notice of the Republic; but when he is looked upon as a part of that band of conspirators, as an accused man whose trial may lead all nations in the world to know and detest the disastrous system of monarchy, and the plots and intrigues of their own courts, he ought to be tried.

If the crimes for which Louis XVI. is arraigned were absolutely personal to him, without reference to general conspiracies, and confined to the affairs of France, the plea of inviolability, that folly of the moment, might have been urged in his behalf with some appearance of reason; but he is

arraigned not only for treasons against France, but for having conspired against all Europe, and if France is to be just to all Europe we ought to use every means in our power to discover the whole extent of that conspiracy. France is now a republic; she has completed her revolution; but she cannot earn all its advantages so long as she is surrounded with despotic governments. Their armies and their marine oblige her also to keep troops and ships in readiness. It is therefore her immediate interest that all nations shall be as free as herself; that revolutions shall be universal; and since the trial of Louis XVI. can serve to prove to the world the flagitiousness of governments in general, and the necessity of revolutions, she ought not to let slip so precious an opportunity.

The despots of Europe have formed alliances to preserve their respective authority, and to perpetuate the oppression of peoples. This is the end they proposed to themselves in their invasion of French territory. They dread the effect of the French revolution in the bosom of their own countries; and in hopes of preventing it, they are come to attempt the destruction of this revolution before it should attain its perfect maturity. Their attempt has not been attended with success. France has already vanquished their armies; but it remains for her to sound the particulars of the conspiracy, to discover, to expose to the eyes of the world, those despots who had the infamy to take part in it; and the world expects from her that act of justice.

These are my motives for demanding that Louis XVI. be judged; and it is in this sole point of view that his trial appears to me of sufficient importance to receive the attention of the Republic.

As to "inviolability," I would not have such a word mentioned. If, seeing in Louis XVI. only a weak and narrow-minded man, badly reared, like all his kind, given, as it is said, to frequent excesses of drunkenness—a man whom the National Assembly imprudently raised again on a throne for which he was not made—he is shown hereafter some compassion, it shall be the result of the national magnanimity, and not the burlesque notion of a pretended "inviolability."

Thomas Paine.

XIV. REASONS FOR PRESERVING THE LIFE OF LOUIS CAPET,

As Delivered to the National Convention, January 15, 1793.(1)

Citizen President,

My hatred and abhorrence of monarchy are sufficiently known: they originate in principles of reason and conviction, nor, except with life, can they ever be extirpated; but my compassion for the unfortunate, whether friend or enemy, is equally lively and sincere.

I voted that Louis should be tried, because it was necessary to afford proofs to the world of the perfidy, corruption, and abomination of the monarchical system. The infinity of evidence that has been produced exposes them in the most glaring and hideous colours; thence it results that monarchy, whatever form it may assume, arbitrary or otherwise, becomes necessarily a centre round which are united every species of corruption, and the kingly trade is no less destructive of all morality in the human breast, than the trade of an executioner is destructive of its sensibility. I remember, during my residence in another country, that I was exceedingly struck with a sentence of M. Autheine, at the Jacobins [Club], which corresponds exactly with my own idea,—"Make me a king to-day," said he, "and I shall be a robber to-morrow."

1 Printed in Paris (Hartley, Adlard & Son) and published in London with the addition of D. I. Eaton's name, in 1796. While Paine was in prison, he was accused in England and America of having helped to bring Louis XVI. to the scaffold. The English pamphlet has a brief preface in which it is presented "as a burnt offering to Truth, in behalf of the most zealous friend and advocate of the Rights of Man; to protect him against the barbarous shafts of scandal and delusion, and as a reply to all the horrors which despots of every description have, with such unrelenting malice, attempted to fix on his conduct. But truth in the end must triumph: cease then such calumnies: all your efforts are in vain —you bite a file."—Editor.

Nevertheless, I am inclined to believe that if Louis Capet had been born in obscure condition, had he lived within the circle of an amiable and

respectable neighbourhood, at liberty to practice the duties of domestic life, had he been thus situated, I cannot believe that he would have shewn himself destitute of social virtues: we are, in a moment of fermentation like this, naturally little indulgent to his vices, or rather to those of his government; we regard them with additional horror and indignation; not that they are more heinous than those of his predecessors, but because our eyes are now open, and the veil of delusion at length withdrawn; yet the lamentable, degraded state to which he is actually reduced, is surely far less imputable to him than to the Constituent Assembly, which, of its own authority, without consent or advice of the people, restored him to the throne.

I was in Paris at the time of the flight, or abdication of Louis XVI., and when he was taken and brought back. The proposal of restoring him to supreme power struck me with amazement; and although at that time I was not a French citizen, yet as a citizen of the world I employed all the efforts that depended on me to prevent it.

A small society, composed only of five persons, two of whom are now members of the Convention,(1) took at that time the name of the Republican Club (Société Republicaine). This society opposed the restoration of Louis, not so much on account of his personal offences, as in order to overthrow the monarchy, and to erect on its ruins the republican system and an equal representation.

With this design, I traced out in the English language certain propositions, which were translated with some trifling alterations, and signed by Achille Duchbtelet, now Lieutenant-General in the army of the French republic, and at that time one of the five members which composed our little party: the law requiring the signature of a citizen at the bottom of each printed paper.

1 Condorect and Paine; the other members were Achille Duchitelet, and probably Nicolas de Bonneville and Lanthenas,—translator of Paine's "Works."—Editor.

The paper was indignantly torn by Malouet; and brought forth in this very room as an article of accusation against the person who had signed it, the author and their adherents; but such is the revolution of events, that this paper is now received and brought forth for a very opposite purpose—to remind the nation of the errors of that unfortunate day, that fatal error of not

having then banished Louis XVI. from its bosom, and to plead this day in favour of his exile, preferable to his death.

The paper in question, was conceived in the following terms:

[The address constitutes the first chapter of the present volume.]

Having thus explained the principles and the exertions of the republicans at that fatal period, when Louis was rein-stated in full possession of the executive power which by his flight had been suspended, I return to the subject, and to the deplorable situation in which the man is now actually involved.

What was neglected at the time of which I have been speaking, has been since brought about by the force of necessity. The wilful, treacherous defects in the former constitution have been brought to light; the continual alarm of treason and conspiracy aroused the nation, and produced eventually a second revolution. The people have beat down royalty, never, never to rise again; they have brought Louis Capet to the bar, and demonstrated in the face of the whole world, the intrigues, the cabals, the falsehood, corruption, and rooted depravity, the inevitable effects of monarchical government. There remains then only one question to be considered, what is to be done with this man?

For myself I seriously confess, that when I reflect on the unaccountable folly that restored the executive power to his hands, all covered as he was with perjuries and treason, I am far more ready to condemn the Constituent Assembly than the unfortunate prisoner Louis Capet.

But abstracted from every other consideration, there is one circumstance in his life which ought to cover or at least to palliate a great number of his transgressions, and this very circumstance affords to the French nation a blessed occasion of extricating itself from the yoke of kings, without defiling itself in the impurities of their blood.

It is to France alone, I know, that the United States of America owe that support which enabled them to shake off the unjust and tyrannical yoke of Britain. The ardour and zeal which she displayed to provide both men and money, were the natural consequence of a thirst for liberty. But as the nation at that time, restrained by the shackles of her own government, could only act by the means of a monarchical organ, this organ—whatever in other respects the object might be—certainly performed a good, a great action.

Let then those United States be the safeguard and asylum of Louis Capet. There, hereafter, far removed from the miseries and crimes of royalty, he may learn, from the constant aspect of public prosperity, that the true system of government consists not in kings, but in fair, equal, and honourable representation.

In relating this circumstance, and in submitting this proposition, I consider myself as a citizen of both countries. I submit it as a citizen of America, who feels the debt of gratitude which he owes to every Frenchman. I submit it also as a man, who, although the enemy of kings, cannot forget that they are subject to human frailties. I support my proposition as a citizen of the French republic, because it appears to me the best, the most politic measure that can be adopted.

As far as my experience in public life extends, I have ever observed, that the great mass of the people are invariably just, both in their intentions and in their objects; but the true method of accomplishing an effect does not always shew itself in the first instance. For example: the English nation had groaned under the despotism of the Stuarts. Hence Charles I. lost his life; yet Charles II. was restored to all the plenitude of power, which his father had lost. Forty years had not expired when the same family strove to reestablish their ancient oppression; so the nation then banished from its territories the whole race. The remedy was effectual. The Stuart family sank into obscurity, confounded itself with the multitude, and is at length extinct.

The French nation has carried her measures of government to a greater length. France is not satisfied with exposing the guilt of the monarch. She has penetrated into the vices and horrors of the monarchy. She has shown them clear as daylight, and forever crushed that system; and he, whoever he may be, that should ever dare to reclaim those rights would be regarded not as a pretender, but punished as a traitor.

Two brothers of Louis Capet have banished themselves from the country; but they are obliged to comply with the spirit and etiquette of the courts where they reside. They can advance no pretensions on their own account, so long as Louis Capet shall live.

Monarchy, in France, was a system pregnant with crime and murders, cancelling all natural ties, even those by which brothers are united. We know how often they have assassinated each other to pave a way to power. As those hopes which the emigrants had reposed in Louis XVI. are fled, the

last that remains rests upon his death, and their situation inclines them to desire this catastrophe, that they may once again rally around a more active chief, and try one further effort under the fortune of the ci-devant Monsieur and d'Artois. That such an enterprize would precipitate them into a new abyss of calamity and disgrace, it is not difficult to foresee; yet it might be attended with mutual loss, and it is our duty as legislators not to spill a drop of blood when our purpose may be effectually accomplished without it.

It has already been proposed to abolish the punishment of death, and it is with infinite satisfaction that I recollect the humane and excellent oration pronounced by Robespierre on that subject in the Constituent Assembly. This cause must find its advocates in every corner where enlightened politicians and lovers of humanity exist, and it ought above all to find them in this assembly.

Monarchical governments have trained the human race, and inured it to the sanguinary arts and refinements of punishment; and it is exactly the same punishment which has so long shocked the sight and tormented the patience of the people, that now, in their turn, they practice in revenge upon their oppressors. But it becomes us to be strictly on our guard against the abomination and perversity of monarchical examples: as France has been the first of European nations to abolish royalty, let her also be the first to abolish the punishment of death, and to find out a milder and more effectual substitute.

In the particular case now under consideration, I submit the following propositions: 1st, That the National Convention shall pronounce sentence of banishment on Louis and his family. 2d, That Louis Capet shall be detained in prison till the end of the war, and at that epoch the sentence of banishment to be executed.

XV. SHALL LOUIS XVI. HAVE RESPITE?

SPEECH IN THE CONVENTION, JANUARY 19, 1793.(1)

(Read in French by Deputy Bancal,)

Very sincerely do I regret the Convention's vote of yesterday for death.

Marat [*interrupting*]: I submit that Thomas Paine is incompetent to vote on this question; being a Quaker his religious principles are opposed to capital punishment. [*Much confusion, quieted by cries for "freedom of speech" on which Bancal proceeds with Paine's speech.*]

*1 Not included in any previous edition of Paine's "Works."
It is here printed from contemporary French reports,
modified only by Paine's own quotations of a few sentences
in his Memorial to Monroe (xxi.).—Editor.*

I have the advantage of some experience; it is near twenty years that I have been engaged in the cause of liberty, having contributed something to it in the revolution of the United States of America, My language has always been that of liberty *and* humanity, and I know that nothing so exalts a nation as the union of these two principles, under all circumstances. I know that the public mind of France, and particularly that of Paris, has been heated and irritated by the dangers to which they have been exposed; but could we carry our thoughts into the future, when the dangers are ended and the irritations forgotten, what to-day seems an act of justice may then appear an act of vengeance. [*Murmurs.*] My anxiety for the cause of France has become for the moment concern for her honor. If, on my return to America, I should employ myself on a history of the French Revolution, I had rather record a thousand errors on the side of mercy, than be obliged to tell one act of severe justice. I voted against an appeal to the people, because it appeared to me that the Convention was needlessly wearied on that point; but I so voted in the hope that this Assembly would pronounce against death, and for the same punishment that the nation would have voted, at least in my opinion, that is for reclusion during the war, and banishment thereafter.(1) That is the punishment most efficacious, because it includes the whole family at once, and none other can so operate. I am

still against the appeal to the primary assemblies, because there is a better method. This Convention has been elected to form a Constitution, which will be submitted to the primary assemblies. After its acceptance a necessary consequence will be an election and another assembly. We cannot suppose that the present Convention will last more than five or six months. The choice of new deputies will express the national opinion, on the propriety or impropriety of your sentence, with as much efficacy as if those primary assemblies had been consulted on it. As the duration of our functions here cannot be long, it is a part of our duty to consider the interests of those who shall replace us. If by any act of ours the number of the nation's enemies shall be needlessly increased, and that of its friends diminished,—at a time when the finances may be more strained than to-day,—we should not be justifiable for having thus unnecessarily heaped obstacles in the path of our successors. Let us therefore not be precipitate in our decisions.

1 It is possible that the course of the debate may have produced some reaction among the people, but when Paine voted against submitting the king's fate to the popular vote it was believed by the king and his friends that it would be fatal. The American Minister, Gouverneur Morris, who had long been acting for the king, wrote to President Washington, Jan. 6, 1793: "The king's fate is to be decided next Monday, the 14th. That unhappy man, conversing with one of his Council on his own fate, calmly summed up the motives of every kind, and concluded that a majority of the Council would vote for referring his case to the people, and that in consequence he should be massacred." Writing to Washington on Dec. 28, 1792, Morris mentions having heard from Paine that he was to move the king's banishment to America, and he may then have informed Paine that the king believed reference of his case to popular vote would be fatal. Genet was to have conducted the royal family to America.—Editor.

France has but one ally—the United States of America. That is the only nation that can furnish France with naval provisions, for the kingdoms of northern Europe are, or soon will be, at war with her. It unfortunately happens that the person now under discussion is considered by the Americans as having been the friend of their revolution. His execution will be an affliction to them, and it is in your power not to wound the feelings of your ally. Could I speak the French language I would descend to your bar, and in their name become your petitioner to respite the execution of the sentence on Louis.

Thuriot: This is not the language of Thomas Paine.

Marat: I denounce the interpreter. I maintain that it is not Thomas Paine's opinion. It is an untrue translation.

Garran: I have read the original, and the translation is correct.(1)

[Prolonged uproar. Paine, still standing in the tribune beside his interpreter, Deputy Bancal, declared the sentiments to be his.]

Your Executive Committee will nominate an ambassador to Philadelphia; my sincere wish is that he may announce to America that the National Convention of France, out of pure friendship to America, has consented to respite Louis. That people, by my vote, ask you to delay the execution.

Ah, citizens, give not the tyrant of England the triumph of seeing the man perish on the scaffold who had aided my much-loved America to break his chains!

Marat [*"launching himself into the middle of the hall"*]: Paine voted against the punishment of death because he is a Quaker.

Paine: I voted against it from both moral motives and motives of public policy.

1 See Guizot, "Hist, of France," vi., p. 136. "Hist. Parliametaire," vol. ii., p. 350. Louis Blanc says that Paine's appeal was so effective that Marat interrupted mainly in order to destroy its effect.—"Hist, de la Rev.," tome vii, 396.—Editor.

XVI. DECLARATION OF RIGHTS.(1)

The object of all union of men in society being maintenance of their natural rights, civil and political, these rights are the basis of the social pact: their recognition and their declaration ought to precede the Constitution which assures their guarantee.

1. The natural rights of men, civil and political, are liberty, equality, security, property, social protection, and resistance to oppression.

2. Liberty consists in the right to do whatever is not contrary to the rights of others: thus, exercise of the natural rights of each individual has no limits other than those which secure to other members of society enjoyment of the same rights.

1 In his appeal from prison to the Convention (August 7, 1794) Paine states that he had, as a member of the Committee for framing the Constitution, prepared a Plan, which was in the hands of Barhre, also of that Committee. I have not yet succeeded in finding Paine's Constitution, but it is certain that the work of framing the Constitution of 1793 was mainly entrusted to Paine and Condorcet.

Dr. John Moore, in his work on the French Revolution, describes the two at their work; and it is asserted that he "assisted in drawing up the French Declaration of Rights," by "Juvenicus," author of an able "Essay on the Life and Genius of Thomas Paine," whose information came from a personal friend of Paine. ("Aphorisms, Opinions, and Reflections of Thomas Paine," etc., London, 1826. Pp. 3, 14.) A translation of the Declaration and Constitution appeared in England (Debrett, Picadilly, 1793), but with some faults. The present translation is from "Oeuvres Complhtes de Condorcet," tome xviii. The Committee reported their Constitution February 15th, and April 15th was set for its discussion, Robespierre then demanded separate discussion of the Declaration of Rights, to which he objected that it made no mention of the Supreme Being, and that its extreme principles of freedom would shield illicit traffic. Paine and Jefferson were troubled that the United States Constitution contained no Declaration of Rights, it being a fundamental principle in Paine's theory of government that such a Declaration was the main safeguard of the individual against the despotism of numbers. See supra, vol. ii.t pp. 138, 139.—Editor..

3. The preservation of liberty depends on submission to the Law, which is the expression of the general will. Nothing unforbidden by law can be

hindered, and none may be forced to do what the law does not command.

4. Every man is free to make known his thoughts and opinions.

5. Freedom of the press, and every other means of publishing one's opinion, cannot be interdicted, suspended, or limited.

6. Every citizen shall be free in the exercise of his religion (*culte*).

7. Equality consists in the enjoyment by every one of the same rights.

8. The law should be equal for all, whether it rewards or punishes, protects or represses.

9. All citizens are admissible to all public positions, employments, and functions. Free nations recognize no grounds of preference save talents and virtues.

10. Security consists in the protection accorded by society to every citizen for the preservation of his person, property, and rights.

11. None should be sued, accused, arrested, or detained, save in cases determined by the law, and in accordance with forms prescribed by it. Every other act against a citizen is arbitrary and null.

12. Those who solicit, further, sign, execute, or cause to be executed, such arbitrary acts are culpable, and should be punished.

13. Citizens against whom the execution of such acts is attempted have the right to repel force by force; but every citizen summoned or arrested by authority of the Law, and in the forms by it prescribed, should instantly obey: he renders himself guilty by resistance.

14. Every man being presumed innocent until legally pronounced guilty, should his arrest be deemed indispensable, all rigor not necessary to secure his person should be severely repressed by law.

15. None should be punished save in virtue of a law formally enacted, promulgated anterior to the offence, and legally applied.

16. Any law that should punish offences committed before its existence would be an arbitrary act. Retroactive effect given to the law is a crime.

17. The law should award only penalties strictly and evidently necessary to the general safety. Penalties should be proportioned to offences, and useful to society.

18. The right of property consists in every man's being master in the disposal, at his will, of his goods, capital, income, and industry.

19. No kind of labor, commerce, or culture, can be prohibited to any one: he may make, sell, and transport every species of production.

20. Every man may engage his services and his time; but he cannot sell himself; his person is not an alienable property.

21. No one can be deprived of the least portion of his property without his consent, unless evidently required by public necessity, legally determined, and under the condition of a just indemnity in advance.

22. No tax shall be imposed except for the general welfare, and to meet public needs. All citizens have the right to unite personally, or by their representatives, in the fixing of imposts.

23. Instruction is the need of all, and society owes it to all its members equally.

24. Public succours are a sacred debt of society; it is for the law to determine their extent and application.

25. The social guarantee of the rights of man rests on the national sovereignty.

26. This sovereignty is one, indivisible, imprescriptible, and inalienable.

27. It resides essentially in the whole people, and every citizen has an equal right to unite in its exercise.

28. No partial assemblage of citizens, and no individual, may attribute to themselves sovereignty, or exercise any authority, or discharge any public function, without formal delegation thereto by the law.

29. The social guarantee cannot exist if the limits of public administration are not clearly determined by law, and if the responsibility of all public functionaries is not assured.

30. All citizens are bound to unite in this guarantee, and in enforcing the law when summoned in its name.

31. Men united in society should have legal means of resisting oppression.

32. There is oppression when any law violates the natural rights, civil and political, which it should guarantee.

There is oppression when the law is violated by public officials in its application to individual cases.

There is oppression when arbitrary actions violate the rights of citizen against the express purpose (*expression*) of the law.

In a free government the mode of resisting these different acts of oppression should be regulated by the Constitution.

33. A people possesses always the right to reform and alter its Constitution. A generation has no right to subject a future generation to its laws; and all heredity in offices is absurd and tyrannical.

XVII. PRIVATE LETTERS TO JEFFERSON.

Paris, 20 April, 1793.

My dear Friend,—The gentleman (Dr. Romer) to whom I entrust this letter is an intimate acquaintance of Lavater; but I have not had the opportunity of seeing him, as he had set off for Havre prior to my writing this letter, which I forward to him under cover from one of his friends, who is also an acquaintance of mine.

We are now in an extraordinary crisis, and it is not altogether without some considerable faults here. Dumouriez, partly from having no fixed principles of his own, and partly from the continual persecution of the Jacobins, who act without either prudence or morality, has gone off to the Enemy, and taken a considerable part of the Army with him. The expedition to Holland has totally failed, and all Brabant is again in the hands of the Austrians.

You may suppose the consternation which such a sudden reverse of fortune has occasioned, but it has been without commotion. Dumouriez threatened to be in Paris in three weeks. It is now three weeks ago; he is still on the frontier near to Mons with the Enemy, who do not make any progress. Dumouriez has proposed to re-establish the former Constitution in which plan the Austrians act with him. But if France and the National Convention act prudently this project will not succeed. In the first place there is a popular disposition against it, and there is force sufficient to prevent it. In the next place, a great deal is to be taken into the calculation with respect to the Enemy. There are now so many persons accidentally jumbled together as to render it exceedingly difficult to them to agree upon any common object.

The first object, that of restoring the old Monarchy, is evidently given up by the proposal to re-establish the late Constitution. The object of England and Prussia was to preserve Holland, and the object of Austria was to recover Brabant; while those separate objects lasted, each party having one, the Confederation could hold together, each helping the other; but after this I see not how a common object is to be formed. To all this is to be added the

probable disputes about opportunity, the expence, and the projects of reimbursements. The Enemy has once adventured into France, and they had the permission or the good fortune to get back again. On every military calculation it is a hazardous adventure, and armies are not much disposed to try a second time the ground upon which they have been defeated.

Had this revolution been conducted consistently with its principles, there was once a good prospect of extending liberty through the greatest part of Europe; but I now relinquish that hope. Should the Enemy by venturing into France put themselves again in a condition of being captured, the hope will revive; but this is a risk I do not wish to see tried, lest it should fail.

As the prospect of a general freedom is now much shortened, I begin to contemplate returning home. I shall await the event of the proposed Constitution, and then take my final leave of Europe. I have not written to the President, as I have nothing to communicate more than in this letter. Please to present him my affection and compliments, and remember me among the circle of my friends.

Your sincere and affectionate friend,

Thomas Paine.

P. S. I just now received a letter from General Lewis Morris, who tells me that the house and Barn on my farm at New Rochelle are burnt down. I assure you I shall not bring money enough to build another.

Paris, 20 Oct., 1793.

I wrote you by Captain Dominick who was to sail from Havre about the 20th of this month. This will probably be brought you by Mr. Barlow or Col. Oswald. Since my letter by Dominick I am every day more convinced and impressed with the propriety of Congress sending Commissioners to Europe to confer with the Ministers of the Jesuitical Powers on the means of terminating the War. The enclosed printed paper will shew there are a variety of subjects to be taken into consideration which did not appear at first, all of which have some tendency to put an end to the War. I see not how this War is to terminate if some intermediate power does not step forward. There is now no prospect that France can carry revolutions into Europe on the one hand, or that the combined powers can conquer France on the other hand. It is a sort of defensive War on both sides. This being the case, how is the War to close? Neither side will ask for peace though each may wish it. I believe that England and Holland are tired of the War. Their

Commerce and Manufactures have suffered most exceedingly,—besides this, it is for them a War without an object. Russia keeps herself at a distance.

I cannot help repeating my wish that Congress would send Commissioners, and I wish also that yourself would venture once more across the ocean, as one of them. If the Commissioners rendezvous at Holland they would know what steps to take. They could call Mr. Pinckney [Gen. Thomas Pinckney, American Minister in England] to their councils, and it would be of use, on many accounts, that one of them should come over from Holland to France. Perhaps a long truce, were it proposed by the neutral powers, would have all the effects of a Peace, without the difficulties attending the adjustment of all the forms of Peace.

Yours affectionately,

Thomas Paine.

XVIII. LETTER TO DANTON.(1)

Paris, May 6, 2nd year of the Republic [1793.]

Citoyen Danton: As you read English, I write this letter to you without passing it through the hands of a translator. I am exceedingly disturbed at the distractions, jealousies, discontents and uneasiness that reign among us, and which, if they continue, will bring ruin and disgrace on the Republic. When I left America in the year 1787, it was my intention to return the year following, but the French Revolution, and the prospect it afforded of extending the principles of liberty and fraternity through the greater part of Europe, have induced me to prolong my stay upwards of six years. I now despair of seeing the great object of European liberty accomplished, and my despair arises not from the combined foreign powers, not from the intrigues of aristocracy and priestcraft, but from the tumultuous misconduct with which the internal affairs of the present revolution are conducted.

All that now can be hoped for is limited to France only, and I agree with your motion of not interfering in the government of any foreign country, nor permitting any foreign country to interfere in the government of France. This decree was necessary as a preliminary toward terminating the war. But while these internal contentions continue, while the hope remains to the enemy of seeing the Republic fall to pieces, while not only the representatives of the departments but representation itself is publicly insulted, as it has lately been and now is by the people of Paris, or at least by the tribunes, the enemy will be encouraged to hang about the frontiers and await the issue of circumstances.

*1 This admirable letter was brought to light by the late M. Taine, and first published in full by Taine's translator, John Durand ("New Materials for the History of the American Revolution," 1889). The letter to Marat mentioned by Paine has not been discovered. Danton followed Paine to prison, and on meeting him there said: "That which you did for the happiness and liberty of your country I tried to do for mine. I have been less fortunate, but not less innocent. They will send me to the scaffold; very well, my friend, I will go gaily." M. Taine in *La Revolution* (vol. ii., pp. 382, 413, 414) refers to this letter of Paine, and says: "Compared with the speeches and writings of the time, it*

produces the strangest effect by its practical good sense."
-Editor.,

I observe that the confederated powers have not yet recognized Monsieur, or D'Artois, as regent, nor made any proclamation in favour of any of the Bourbons; but this negative conduct admits of two different conclusions. The one is that of abandoning the Bourbons and the war together; the other is that of changing the object of the war and substituting a partition scheme in the place of their first object, as they have done by Poland. If this should be their object, the internal contentions that now rage will favour that object far more than it favoured their former object. The danger every day increases of a rupture between Paris and the departments. The departments did not send their deputies to Paris to be insulted, and every insult shown to them is an insult to the departments that elected and sent them. I see but one effectual plan to prevent this rupture taking place, and that is to fix the residence of the Convention, and of the future assemblies, at a distance from Paris.

I saw, during the American Revolution, the exceeding inconvenience that arose by having the government of Congress within the limits of any Municipal Jurisdiction. Congress first resided in Philadelphia, and after a residence of four years it found it necessary to leave it. It then adjourned to the State of Jersey. It afterwards removed to New York; it again removed from New York to Philadelphia, and after experiencing in every one of these places the great inconvenience of a government, it formed the project of building a Town, not within the limits of any municipal jurisdiction, for the future residence of Congress. In any one of the places where Congress resided, the municipal authority privately or openly opposed itself to the authority of Congress, and the people of each of these places expected more attention from Congress than their equal share with the other States amounted to. The same thing now takes place in France, but in a far greater excess.

I see also another embarrassing circumstance arising in Paris of which we have had full experience in America. I mean that of fixing the price of provisions. But if this measure is to be attempted it ought to be done by the Municipality. The Convention has nothing to do with regulations of this kind; neither can they be carried into practice. The people of Paris may say they will not give more than a certain price for provisions, but as they cannot compel the country people to bring provisions to market the

consequence will be directly contrary to their expectations, and they will find dearness and famine instead of plenty and cheapness. They may force the price down upon the stock in hand, but after that the market will be empty.

I will give you an example. In Philadelphia we undertook, among other regulations of this kind, to regulate the price of Salt; the consequence was that no Salt was brought to market, and the price rose to thirty-six shillings sterling per Bushel. The price before the war was only one shilling and sixpence per Bushel; and we regulated the price of flour (farina) till there was none in the market, and the people were glad to procure it at any price.

There is also a circumstance to be taken into the account which is not much attended to. The assignats are not of the same value they were a year ago, and as the quantity increases the value of them will diminish. This gives the appearance of things being dear when they are not so in fact, for in the same proportion that any kind of money falls in value articles rise in price. If it were not for this the quantity of assignats would be too great to be circulated. Paper money in America fell so much in value from this excessive quantity of it, that in the year 1781 I gave three hundred paper dollars for one pair of worsted stockings. What I write you upon this subject is experience, and not merely opinion. I have no personal interest in any of these matters, nor in any party disputes. I attend only to general principles.

As soon as a constitution shall be established I shall return to America; and be the future prosperity of France ever so great, I shall enjoy no other part of it than the happiness of knowing it. In the mean time I am distressed to see matters so badly conducted, and so little attention paid to moral principles. It is these things that injure the character of the Revolution and discourage the progress of liberty all over the world. When I began this letter I did not intend making it so lengthy, but since I have gone thus far I will fill up the remainder of the sheet with such matters as occur to me.

There ought to be some regulation with respect to the spirit of denunciation that now prevails. If every individual is to indulge his private malignancy or his private ambition, to denounce at random and without any kind of proof, all confidence will be undermined and all authority be destroyed. Calumny is a species of Treachery that ought to be punished as well as any other kind of Treachery. It is a private vice productive of public evils; because it is possible to irritate men into disaffection by continual

calumny who never intended to be disaffected. It is therefore, equally as necessary to guard against the evils of unfounded or malignant suspicion as against the evils of blind confidence. It is equally as necessary to protect the characters of public officers from calumny as it is to punish them for treachery or misconduct. For my own part I shall hold it a matter of doubt, until better evidence arises than is known at present, whether Dumouriez has been a traitor from policy or resentment. There was certainly a time when he acted well, but it is not every man whose mind is strong enough to bear up against ingratitude, and I think he experienced a great deal of this before he revolted. Calumny becomes harmless and defeats itself, when it attempts to act upon too large a scale. Thus the denunciation of the Sections [of Paris] against the twenty-two deputies [Girondists] falls to the ground. The departments that elected them are better judges of their moral and political characters than those who have denounced them. This denunciation will injure Paris in the opinion of the departments because it has the appearance of dictating to them what sort of deputies they shall elect. Most of the acquaintances that I have in the Convention are among those who are in that list, and I know there are not better men nor better patriots than what they are.

I have written a letter to Marat of the same date as this but not on the same subject. He may show it to you if he chuse.

Votre Ami,

Thomas Paine.

Citoyen Danton.

XIX. A CITIZEN OF AMERICA TO THE CITIZENS OF EUROPE (1)

18th Year of Independence.

1 State Archives, Paris: Itats Unis, vol. 38, fol. 90. This pamphlet is in English, without indication of authorship or of the place of publication. It is accompanied by a French translation (MS.) inscribed "Par Thomas Payne." In the printed pamphlet the date (18th Year, etc) is preceded by the French words (printed): "Philadelphie 28 Juillet 1793." It was no doubt the pamphlet sent by Paine to Monroe, with various documents relating to his imprisonment, describing it as "a Letter which I had printed here as an American letter, some copies of which I sent to Mr. Jefferson." A considerable portion of the pamphlet embodies, with occasional changes of phraseology, a manuscript (Itats Unis, vol. 37, Do. 39) endorsed: "January 1793. Thorn. Payne. Copie. Observations on the situation of the Powers joined against France." This opens with the following paragraph: "It is always useful to know the position and the designs of one's enemies. It is much easier to do so by combining and comparing the events, and by examining the consequences which result from them, than by forming one's judgment by letters found or intercepted. These letters could be fabricated with the intention of deceiving, but events or circumstances have a character which is proper to them. If in the course of our political operations we mistake the designs of our enemy, it leads us to do precisely that which he desires we should do, and it happens by the fact, but against our intentions, that we work for him." That the date written on this MS. is erroneous appears by an allusion to the defeat of the Duke of York at Dunkirk in the closing paragraph: "There are three distinct parties in England at this moment: the government party, the revolutionary party, and an intermedial party,—which is only opposed to the war on account of the expense it entails, and the harm it does commerce and manufactures. I am speaking of the People, and not of the Parliament. The latter is divided into two parties: the Ministerial, and the Anti-ministerial. The revolutionary party, the intermedial party, and the anti-ministerial party, will all rejoice, publicly or privately, at the defeat of the Duke of York at Dunkirk." The two paragraphs quoted represent the only actual additions to the pamphlet. I have a clipping from the London Morning Chronicle of Friday, April 25, 1794, containing the part of the pamphlet headed "Of the present state of Europe and the Confederacy," signed "Thomas Paine, Author of Common Sense, etc." On February 1, 1793, the Convention having declared war, appointed Paine, Barhre, Condorcet and Faber, a Committee to draft an address to the English people. It was never done, but these fragments may represent notes written

by Paine with reference to that task. The pamphlet probably appeared late in September, 1793.—Editor.,

Understanding that a proposal is intended to be made at the ensuing meeting of the Congress of the United States of America "to send commissioners to Europe to confer with the Ministers of all the Neutral Powers for the purpose of negotiating preliminaries of peace," I address this letter to you on that subject, and on the several matters connected therewith.

In order to discuss this subject through all its circumstances, it will be necessary to take a review of the state of Europe, prior to the French revolution. It will from thence appear, that the powers leagued against France are fighting to attain an object, which, were it possible to be attained, would be injurious to themselves.

This is not an uncommon error in the history of wars and governments, of which the conduct of the English government in the war against America is a striking instance. She commenced that war for the avowed purpose of subjugating America; and after wasting upwards of one hundred millions sterling, and then abandoning the object, she discovered, in the course of three or four years, that the prosperity of England was increased, instead of being diminished, by the independence of America. In short, every circumstance is pregnant with some natural effect, upon which intentions and opinions have no influence; and the political error lies in misjudging what the effect will be. England misjudged it in the American war, and the reasons I shall now offer will shew, that she misjudges it in the present war. In discussing this subject, I leave out of the question everything respecting forms and systems of government; for as all the governments of Europe differ from each other, there is no reason that the government of France should not differ from the rest.

The clamours continually raised in all the countries of Europe were, that the family of the Bourbons was become too powerful; that the intrigues of the court of France endangered the peace of Europe. Austria saw with a jealous eye the connection of France with Prussia; and Prussia, in her turn became jealous of the connection of France with Austria; England had wasted millions unsuccessfully in attempting to prevent the family compact with Spain; Russia disliked the alliance between France and Turkey; and Turkey became apprehensive of the inclination of France towards an alliance with Russia. Sometimes the quadruple alliance alarmed some of the powers, and at other times a contrary system alarmed others, and in all

those cases the charge was always made against the intrigues of the Bourbons.

Admitting those matters to be true, the only thing that could have quieted the apprehensions of all those powers with respect to the interference of France, would have been her entire NEUTRALITY in Europe; but this was impossible to be obtained, or if obtained was impossible to be secured, because the genius of her government was repugnant to all such restrictions.

It now happens that by entirely changing the genius of her government, which France has done for herself, this neutrality, which neither wars could accomplish nor treaties secure, arises naturally of itself, and becomes the ground upon which the war should terminate. It is the thing that approaches the nearest of all others to what ought to be the political views of all the European powers; and there is nothing that can so effectually secure this neutrality, as that the genius of the French government should be different from the rest of Europe.

But if their object is to restore the Bourbons and monarchy together, they will unavoidably restore with it all the evils of which they have complained; and the first question of discord will be, whose ally is that monarchy to be?

Will England agree to the restoration of the family compact against which she has been fighting and scheming ever since it existed? Will Prussia agree to restore the alliance between France and Austria, or will Austria agree to restore the former connection between France and Prussia, formed on purpose to oppose herself; or will Spain or Russia, or any of the maritime powers, agree that France and her navy should be allied to England? In fine, will any of the powers agree to strengthen the hands of the other against itself? Yet all these cases involve themselves in the original question of the restoration of the Bourbons; and on the other hand, all of them disappear by the neutrality of France.

If their object is not to restore the Bourbons, it must be the impracticable project of a partition of the country. The Bourbons will then be out of the question, or, more properly speaking, they will be put in a worse condition; for as the preservation of the Bourbons made a part of the first object, the extirpation of them makes a part of the second. Their pretended friends will then become interested in their destruction, because it is favourable to the purpose of partition that none of the nominal claimants should be left in existence.

But however the project of a partition may at first blind the eyes of the confederacy, or however each of them may hope to outwit the other in the progress or in the end, the embarrassments that will arise are insurmountable. But even were the object attainable, it would not be of such general advantage to the parties as the neutrality of France, which costs them nothing, and to obtain which they would formerly have gone to war.

OF THE PRESENT STATE OF EUROPE, AND THE CONFEDERACY.

In the first place the confederacy is not of that kind that forms itself originally by concert and consent. It has been forced together by chance—a heterogeneous mass, held only by the accident of the moment; and the instant that accident ceases to operate, the parties will retire to their former rivalships.

I will now, independently of the impracticability of a partition project, trace out some of the embarrassments which will arise among the confederated parties; for it is contrary to the interest of a majority of them that such a project should succeed.

To understand this part of the subject it is necessary, in the first place, to cast an eye over the map of Europe, and observe the geographical situation of the several parts of the confederacy; for however strongly the passionate politics of the moment may operate, the politics that arise from geographical situation are the most certain, and will in all cases finally prevail.

The world has been long amused with what is called the "*balance of power*." But it is not upon armies only that this balance depends. Armies have but a small circle of action. Their progress is slow and limited. But when we take maritime power into the calculation, the scale extends universally. It comprehends all the interests connected with commerce.

The two great maritime powers are England and France. Destroy either of those, and the balance of naval power is destroyed. The whole world of commerce that passes on the Ocean would then lie at the mercy of the other, and the ports of any nation in Europe might be blocked up.

The geographical situation of those two maritime powers comes next under consideration. Each of them occupies one entire side of the channel from the straits of Dover and Calais to the opening into the Atlantic. The commerce of all the northern nations, from Holland to Russia, must pass the straits of Dover and Calais, and along the Channel, to arrive at the Atlantic.

This being the case, the systematical politics of all the nations, northward of the straits of Dover and Calais, can be ascertained from their geographical situation; for it is necessary to the safety of their commerce that the two sides of the Channel, either in whole or in part, should not be in the possession either of England or France. While one nation possesses the whole of one side, and the other nation the other side, the northern nations cannot help seeing that in any situation of things their commerce will always find protection on one side or the other. It may sometimes be that of England and sometimes that of France.

Again, while the English navy continues in its present condition, it is necessary that another navy should exist to controul the universal sway the former would otherwise have over the commerce of all nations. France is the only nation in Europe where this balance can be placed. The navies of the North, were they sufficiently powerful, could not be sufficiently operative. They are blocked up by the ice six months in the year. Spain lies too remote; besides which, it is only for the sake of her American mines that she keeps up her navy.

Applying these cases to the project of a partition of France, it will appear, that the project involves with it a DESTRUCTION OF THE BALANCE OF MARITIME POWER; because it is only by keeping France entire and indivisible that the balance can be kept up. This is a case that at first sight lies remote and almost hidden. But it interests all the maritime and commercial nations in Europe in as great a degree as any case that has ever come before them.—In short, it is with war as it is with law. In law, the first merits of the case become lost in the multitude of arguments; and in war they become lost in the variety of events. New objects arise that take the lead of all that went before, and everything assumes a new aspect. This was the case in the last great confederacy in what is called the succession war, and most probably will be the case in the present.

I have now thrown together such thoughts as occurred to me on the several subjects connected with the confederacy against France, and interwoven with the interest of the neutral powers. Should a conference of the neutral powers take place, these observations will, at least, serve to generate others. The whole matter will then undergo a more extensive investigation than it is in my power to give; and the evils attending upon

either of the projects, that of restoring the Bourbons, or of attempting a partition of France, will have the calm opportunity of being fully discussed.

On the part of England, it is very extraordinary that she should have engaged in a former confederacy, and a long expensive war, to *prevent* the family compact, and now engage in another confederacy to *preserve* it. And on the part of the other powers, it is as inconsistent that they should engage in a partition project, which, could it be executed, would immediately destroy the balance of maritime power in Europe, and would probably produce a second war, to remedy the political errors of the first.

A Citizen of the United States of America.

XX. APPEAL TO THE CONVENTION.(1)

Citizens Representatives: If I should not express myself with the energy I used formerly to do, you will attribute it to the very dangerous illness I have suffered in the prison of the Luxembourg. For several days I was insensible of my own existence; and though I am much recovered, it is with exceeding great difficulty that I find power to write you this letter.

1 Written in Luxembourg prison, August 7, 1794. Robespierre having fallen July 29th, those who had been imprisoned under his authority were nearly all at once released, but Paine remained. There were still three conspirators against him on the Committee of Public Safety, and to that Committee this appeal was unfortunately confided; consequently it never reached the Convention. The circumstances are related at length infra, in the introduction to the Memorial to Monroe (XXI.). It will also be seen that Paine was mistaken in his belief that his imprisonment was due to the enmity of Robespierre, and this he vaguely suspected when his imprisonment was prolonged three months after Robespierre's death.—Editor..

But before I proceed further, I request the Convention to observe: that this is the first line that has come from me, either to the Convention or to any of the Committees, since my imprisonment,—which is approaching to eight months. —Ah, my friends, eight months' loss of liberty seems almost a life-time to a man who has been, as I have been, the unceasing defender of Liberty for twenty years.

I have now to inform the Convention of the reason of my not having written before. It is a year ago that I had strong reason to believe that Robespierre was my inveterate enemy, as he was the enemy of every man of virtue and humanity. The address that was sent to the Convention some time about last August from Arras, the native town of Robespierre, I have always been informed was the work of that hypocrite and the partizans he had in the place. The intention of that address was to prepare the way for destroying me, by making the people declare (though without assigning any reason) that I had lost their confidence; the Address, however, failed of success, as it was immediately opposed by a counter-address from St. Omer, which declared the direct contrary. But the strange power that Robespierre, by the most consummate hypocrisy and the most hardened

cruelties, had obtained, rendered any attempt on my part to obtain justice not only useless but dangerous; for it is the nature of Tyranny always to strike a deeper blow when any attempt has been made to repel a former one. This being my situation, I submitted with patience to the hardness of my fate and waited the event of brighter days. I hope they are now arrived to the nation and to me.

Citizens, when I left the United States in the year 1787 I promised to all my friends that I would return to them the next year; but the hope of seeing a revolution happily established in France, that might serve as a model to the rest of Europe,(1) and the earnest and disinterested desire of rendering every service in my power to promote it, induced me to defer my return to that country, and to the society of my friends, for more than seven years. This long sacrifice of private tranquillity, especially after having gone through the fatigues and dangers of the American Revolution which continued almost eight years, deserved a better fate than the long imprisonment I have silently suffered. But it is not the nation but a faction that has done me this injustice. Parties and Factions, various and numerous as they have been, I have always avoided. My heart was devoted to all France, and the object to which I applied myself was the Constitution. The Plan which I proposed to the Committee, of which I was a member, is now in the hands of Barhre, and it will speak for itself.

1 Revolutions have now acquired such sanguinary associations that it is important to bear in mind that by "revolution" Paine always means simply a change or reformation of government, which might be and ought to be bloodless. See "Rights of Man" Part II., vol. ii. of this work, pp. 513, 523.—:Editor.

It is perhaps proper that I inform you of the cause as-assigned in the order for my imprisonment. It is that I am 'a Foreigner'; whereas, the *Foreigner* thus imprisoned was invited into France by a decree of the late National Assembly, and that in the hour of her greatest danger, when invaded by Austrians and Prussians. He was, moreover, a citizen of the United States of America, an ally of France, and not a subject of any country in Europe, and consequently not within the intentions of any decree concerning Foreigners. But any excuse can be made to serve the purpose of malignity when in power.

I will not intrude on your time by offering any apology for the broken and imperfect manner in which I have expressed myself. I request you to accept it with the sincerity with which it comes from my heart; and I conclude with wishing Fraternity and prosperity to France, and union and happiness to her representatives.

Citizens, I have now stated to you my situation, and I can have no doubt but your justice will restore me to the Liberty of which I have been deprived.

Thomas Paine.

Luxembourg, Thermidor 19, 2nd Year of the French Republic, one and indivisible.

XXI. THE MEMORIAL TO MONROE.

EDITOR'S historical introduction:

The Memorial is here printed from the manuscript of Paine now among the Morrison Papers, in the British Museum,—no doubt the identical document penned in Luxembourg prison. The paper in the United States State Department (vol. vii., Monroe Papers) is accompanied by a note by Monroe: "Mr. Paine, Luxembourg, on my arrival in France, 1794. My answer was after the receipt of his second letter. It is thought necessary to print only those parts of his that relate directly to his confinement, and to omit all between the parentheses in each." The paper thus inscribed seems to have been a wrapper for all of Paine's letters. An examination of the MS. at Washington does not show any such "parentheses," indicating omissions, whereas that in the British Museum has such marks, and has evidently been prepared for the press,—being indeed accompanied by the long title of the French pamphlet. There are other indications that the British Museum MS. is the original Memorial from which was printed in Paris the pamphlet entitled:

"Mimoiere de Thomas Payne, autographe et signi de sa main: addressi ` M. Monroe, ministre des Itats-unis en france, pour riclamer sa mise en liberti comme citoyen Amiricain, 10 Sept 1794. Robespierre avait fait arrjter Th. Payne, en 1793—il fut conduit au Luxembourg oy le glaive fut longtemps suspendu sur sa tjte. Aprhs onze mois de captiviti, il recouvra la liberti, sur la riclamation du ministre Amiricain—c'itait aprhs la chute de Robespierre—il reprit sa place ` la convention, le 8 dicembre 1794. (18 frimaire an iii.) Ce Mimoiere contient des renseigne mens curieux sur la conduite politique de Th. Payne en france, pendant la Rivolution, et ` l'ipoque du prochs de Louis XVI. Ce n'est point, dit il, comme Quaker, qu'il ne vota pas La Mort du Roi mais par un sentiment d'humaniti, qui ne tenait point ` ses principes religieux. Villenave."

No date is given, but the pamphlet probably appeared early in 1795. Matthieu Gillaume Thirhse Villenave (b. 1762, d. 1846) was a journalist, and it will be noticed that he, or the translator, modifies Paine's answer to

Marat about his Quakerism. There are some loose translations in the cheap French pamphlet, but it is the only publication which has given Paine's Memorial with any fulness. Nearly ten pages of the manuscript were omitted from the Memorial when it appeared as an Appendix to the pamphlet entitled "Letter to George Washington, President of the United States of America, on Affairs public and private." By Thomas Paine, Author of the Works entitled, Common Sense, Rights of Man, Age of Reason, &c. Philadelphia: Printed by Benj. Franklin Bache, No. 112 Market Street. 1796. [Entered according to law.] This much-abridged copy of the Memorial has been followed in all subsequent editions, so that the real document has not hitherto appeared.(1)

In appending the Memorial to his "Letter to Washington," Paine would naturally omit passages rendered unimportant by his release, but his friend Bache may have suppressed others that might have embarrassed American partisans of France, such as the scene at the king's trial.

1 Bache's pamphlet reproduces the portrait engraved in Villenave, where it is underlined: "Peint par Ped [Peale] ` Philadelphia, Dessini par F. Bonneville, Gravi par Sandoz." In Bache it is: "Bolt sc. 1793 "; and beneath this the curious inscription: "Thomas Paine. Secretair d. Americ: Congr: 1780. Mitgl: d. fr. Nat. Convents. 1793." The portrait is a variant of that now in Independence Hall, and one of two painted by C. W. Peale. The other (in which the chin is supported by the hand) was for religious reasons refused by the Boston Museum when it purchased the collection of "American Heroes" from Rembrandt Peale. It was bought by John McDonough, whose brother sold it to Mr. Joseph Jefferson, the eminent actor, and perished when his house was burned at Buzzard's Bay. Mr. Jefferson writes me that he meant to give the portrait to the Paine Memorial Society, Boston; "but the cruel fire roasted the splendid Infidel, so I presume the saints are satisfied."

This description, however, and a large proportion of the suppressed pages, are historically among the most interesting parts of the Memorial, and their restoration renders it necessary to transfer the document from its place as an appendix to that of a preliminary to the "Letter to Washington."

Paine's Letter to Washington burdens his reputation today more, probably, than any other production of his pen. The traditional judgment was formed in the absence of many materials necessary for a just verdict. The editor feels under the necessity of introducing at this point an historical episode; he cannot regard it as fair to the memory of either Paine or Washington that these two chapters should be printed without a full

statement of the circumstances, the most important of which, but recently discovered, were unknown to either of those men. In the editor's "Life of Thomas Paine" (ii., pp. 77-180) newly discovered facts and documents bearing on the subject are given, which may be referred to by those who desire to investigate critically such statements as may here appear insufficiently supported. Considerations of space require that the history in that work should be only summarized here, especially as important new details must be added.

Paine was imprisoned (December 28, 1793) through the hostility of Gouverneur Morris, the American Minister in Paris. The fact that the United States, after kindling revolution in France by its example, was then represented in that country by a Minister of vehement royalist opinions, and one who literally entered into the service of the King to defeat the Republic, has been shown by that Minister's own biographers. Some light is cast on the events that led to this strange situation by a letter written to M. de Montmorin, Minister of Foreign Affairs, by a French Chargé d'Affaires, Louis Otto, dated Philadelphia, 10 March, 1792. Otto, a nobleman who married into the Livingston family, was an astute diplomatist, and enjoyed the intimacy of the Secretary of State, Jefferson, and of his friends. At the close of a long interview Jefferson tells him that "The secrecy with which the Senate covers its deliberations serves to veil personal interest, which reigns therein in all its strength." Otto explains this as referring to the speculative operations of Senators, and to the commercial connections some of them have with England, making them unfriendly to French interests.

"Among the latter the most remarkable is Mr. Robert Morris, of English birth, formerly Superintendent of Finance, a man of greatest talent, whose mercantile speculations are as unlimited as his ambition. He directs the Senate as he once did the American finances in making it keep step with his policy and his business.... About two years ago Mr. Robert Morris sent to France Mr. Gouverneur Morris to negotiate a loan in his name, and for different other personal matters.... During his sojourn in France, Mr. Rob. Morris thought he could make him more useful for his aims by inducing the President of the United States to entrust him with a negotiation with England relative to the Commerce of the two countries. M. Gouv. Morris acquitted himself in this as an adroit man, and with his customary zeal, but despite his address (insinuation) obtained only the vague hope of an advantageous commercial treaty on condition of an *Alliance resembling*

that between France and the United States.... [Mr. Robert Morris] is himself English, and interested in all the large speculations founded in this country for Great Britain.... His great services as Superintendent of Finance during the Revolution have assured him the esteem and consideration of General Washington, who, however, is far from adopting his views about France. The warmth with which Mr. Rob. Morris opposed in the Senate the exemption of French *armateurs* from tonnage, demanded by His Majesty, undoubtedly had for its object to induce the king, by this bad behavior, to break the treaty, in order to facilitate hereafter the negotiations begun with England to form an alliance. As for Mr. Gouv. Morris he is entirely devoted to his correspondent, with whom he has been constantly connected in business and opinion. His great talents are recognized, and his extreme quickness in conceiving new schemes and gaining others to them. He is perhaps the most eloquent and ingenious man of his country, but his countrymen themselves distrust his talents. They admire but fear him." (1)

*1 Archives of the State Department, Paris, Etats Unis.,
vol. 35, fol. 301.*

The Commission given to Gouverneur Morris by Washington, to which Otto refers, was in his own handwriting, dated October 13, 1789, and authorized him "in the capacity of private agent, and in the credit of this letter, to converse with His Britannic Majesty's ministers on these points, viz. whether there be any, and what objection to performing those articles of the treaty which remained to be performed on his part; and whether they incline to a treaty of commerce on any and what terms. This communication ought regularly to be made to you by the Secretary of State; but, that office not being at present filled, my desire of avoiding delays induces me to make it under my own hand."(1)

The President could hardly have assumed the authority of secretly appointing a virtual ambassador had there not been a tremendous object in view: this, as he explains in an accompanying letter, was to secure the evacuation by Great Britain of the frontier posts. This all-absorbing purpose of Washington is the key to his administration. Gouverneur Morris paved the way for Jay's treaty, and he was paid for it with the French mission. The Senate would not have tolerated his appointment to England, and only by a majority of four could the President secure his confirmation as Minister to France (January 12, 1792). The President wrote Gouverneur Morris

(January 28th) a friendly lecture about the objections made to him, chiefly that he favored the aristocracy and was unfriendly to the revolution, and expressed "the fullest confidence" that, supposing the allegations founded, he would "effect a change." But Gouverneur Morris remained the agent of Senator Robert Morris, and still held Washington's mission to England, and he knew only as "conspirators" the rulers who succeeded Louis XVI. Even while utilizing them, he was an agent of Great Britain in its war against the country to which he was officially commissioned.

1 Ford's "Writings of George Washington" vol. xi., p. 440.

Lafayette wrote to Washington ("Paris, March 15, 1792") the following appeal:

"Permit me, my dear General, to make an observation for yourself alone, on the recent selection of an American ambassador. Personally I am a friend of Gouverneur Morris, and have always been, in private, quite content with him; but the aristocratic and really contra-revolutionary principles which he has avowed render him little fit to represent the only government resembling ours.... I cannot repress the desire that American and French principles should be in the heart and on the lips of the ambassador of the United States in France." (1)

In addition to this; two successive Ministers from France, after the fall of the Monarchy, conveyed to the American Government the most earnest remonstrances against the continuance of Gouverneur Morris in their country, one of them reciting the particular offences of which he was guilty. The President's disregard of all these protests and entreaties, unexampled perhaps in history, had the effect of giving Gouverneur Morris enormous power over the country against which he was intriguing. He was recognized as the Irremovable. He represented Washington's fixed and unalterable determination, and this at a moment when the main purpose of the revolutionary leaders was to preserve the alliance with America. Robespierre at that time (1793) had special charge of diplomatic affairs, and it is shown by the French historian, Frideric Masson, that he was very anxious to recover for the republic the initiative of the American alliance credited to the king; and "although their Minister, Gouverneur Morris, was justly suspected, and the American republic was at that time aiming only to utilize the condition of its ally, the French republic cleared it at a cheap rate

of its debts contracted with the King."(2) Morris adroitly held this doubt, whether the alliance of his government with Louis XVI. would be continued to that King's executioners, over the head of the revolutionists, as a suspended sword. Under that menace, and with the authentication of being Washington's irremovable mouthpiece, this Minister had only to speak and it was done.

¹ *"Mimoiere;, etc., du General Lafayette," Bruxelles, 1837, tome ii., pp. 484, 485.*

² *"Le Dipartement des Affaires Itranghres pendant la Rivolution," p. 395.*

Meanwhile Gouverneur Morris was steadily working in France for the aim which he held in common with Robert Morris, namely to transfer the alliance from France to England. These two nations being at war, it was impossible for France to fulfil all the terms of the alliance; it could not permit English ships alone to seize American provisions on the seas, and it was compelled to prevent American vessels from leaving French ports with cargoes certain of capture by British cruisers. In this way a large number of American Captains with their ships were detained in France, to their distress, but to their Minister's satisfaction. He did not fail to note and magnify all "infractions" of the treaty, with the hope that they might be the means of annulling it in favor of England, and he did nothing to mitigate sufferings which were counts in his indictment of the Treaty.

It was at this point that Paine came in the American Minister's way. He had been on good terms with Gouverneur Morris, who in 1790 (May 29th) wrote from London to the President:

"On the 17th Mr. Paine called to tell me that he had conversed on the same subject [impressment of American seamen] with Mr. Burke, who had asked him if there was any minister, consul, or other agent of the United States who could properly make application to the Government: to which he had replied in the negative; but said that I was here, who had been a member of Congress, and was therefore the fittest person to step forward. In consequence of what passed thereupon between them he [Paine] urged me to take the matter up, which I promised to do. On the 18th I wrote to the Duke of Leeds requesting an interview."

¹ *Force's "American State Papers, For. Rel.," vol. i.*

At that time (1790) Paine was as yet a lion in London, thus able to give Morris a lift. He told Morris, in 1792 that he considered his appointment to France a mistake. This was only on the ground of his anti-republican opinions; he never dreamed of the secret commissions to England. He could not have supposed that the Minister who had so promptly presented the case of impressed seamen in England would not equally attend to the distressed Captains in France; but these, neglected by their Minister, appealed to Paine. Paine went to see Morris, with whom he had an angry interview, during which he asked Morris "if he did not feel ashamed to take the money of the country and do nothing for it." Paine thus incurred the personal enmity of Gouverneur Morris. By his next step he endangered this Minister's scheme for increasing the friction between France and America; for Paine advised the Americans to appeal directly to the Convention, and introduced them to that body, which at once heeded their application, Morris being left out of the matter altogether. This was August 22d, and Morris was very angry. It is probable that the Americans in Paris felt from that time that Paine was in danger, for on September 13th a memorial, evidently concocted by them, was sent to the French government proposing that they should send Commissioners to the United States to forestall the intrigues of England, and that Paine should go with them, and set forth their case in the journals, as he "has great influence with the people." This looks like a design to get Paine safely out of the country, but it probably sealed his fate. Had Paine gone to America and reported there Morris's treacheries to France and to his own country, and his licentiousness, notorious in Paris, which his diary has recently revealed to the world, the career of the Minister would have swiftly terminated. Gouverneur Morris wrote to Robert Morris that Paine was intriguing for his removal, and intimates that he (Paine) was ambitious of taking his place in Paris. Paine's return to America must be prevented.

Had the American Minister not been well known as an enemy of the republic it might have been easy to carry Paine from the Convention to the guillotine; but under the conditions the case required all of the ingenuity even of a diplomatist so adroit as Gouverneur Morris. But fate had played into his hand. It so happened that Louis Otto, whose letter from Philadelphia has been quoted, had become chief secretary to the Minister of Foreign Affairs in Paris, M. Deforgues. This Minister and his Secretary, apprehending the fate that presently overtook both, were anxious to be

appointed to America. No one knew better than Otto the commanding influence of Gouverneur Morris, as Washington's "irremovable" representative, both in France and America, and this desire of the two frightened officials to get out of France was confided to him.⁽¹⁾ By hope of his aid, and by this compromising confidence, Deforgues came under the power of a giant who used it like a giant. Morris at once hinted that Paine was fomenting the troubles given by Genjt to Washington in America, and thus set in motion the procedure by which Paine was ultimately lodged in prison.

There being no charge against Paine in France, and no ill-will felt towards him by Robespierre, compliance with the supposed will of Washington was in this case difficult. Six months before, a law had been passed to imprison aliens of hostile nationality, which could not affect Paine, he being a member of the Convention and an American. But a decree was passed, evidently to reach Paine, "that no foreigner should be admitted to represent the French people"; by this he was excluded from the Convention, and the Committee of General Surety enabled to take the final step of assuming that he was an Englishman, and thus under the decree against aliens of hostile nations.⁽²⁾

1 Letter of Gouverneur Morris to Washington, Oct 19, 1793. Sparks's "Life of Gouverneur Morris," vol. ii., p. 375.

2 Although, as I have said, there was no charge against Paine in France, and none assigned in any document connected with his arrest, some kind of insinuation had to be made in the Convention to cover proceedings against a Deputy, and Bourdon de l'Oise said, "I know that he has intrigued with a former agent of the bureau of Foreign Affairs." It will be seen by the third addendum to the Memorial to Monroe that Paine supposed this to refer to Louis Otto, who had been his interpreter in an interview requested by Barhre, of the Committee of Public Safety. But as Otto was then, early in September, 1793, Secretary in the Foreign Office, and Barhre a fellow-terrorist of Bourdon, there could be no accusation based on an interview which, had it been probed, would have put Paine's enemies to confusion. It is doubtful, however, if Paine was right in his conjecture. The reference of Bourdon was probably to the collusion between Paine and Genjt suggested by Morris.

Paine was thus lodged in prison simply to please Washington, to whom it was left to decide whether he had been rightly represented by his Minister in the case. When the large number of Americans in Paris hastened in a body to the Convention to demand his release, the President (Vadier)

extolled Paine, but said his birth in England brought him under the measures of safety, and referred them to the Committees. There they were told that "their reclamation was only the act of individuals, without any authority from the American Government." Unfortunately the American petitioners, not understanding by this a reference to the President, unsuspectingly repaired to Morris, as also did Paine by letter. The Minister pretended compliance, thereby preventing their direct appeal to the President. Knowing, however, that America would never agree that nativity under the British flag made Paine any more than other Americans a citizen of England, the American Minister came from Saint-Port, where he resided, to Paris, and secured from the obedient Deforgues a certificate that he had reclaimed Paine as an American citizen, but that he was held as a *French* citizen. This ingeniously prepared certificate which was sent to the Secretary of State (Jefferson), and Morris's pretended "reclamation," *which was never sent to America*, are translated in my "Life of Paine," and here given in the original.

@ Paris le 14 février 1794, 26 pluviôse.

Le Ministre plénipotentiaire des Etats Unis de l'Amérique près la République française au Ministre des Affaires Étrangères.

Monsieur:

Thomas Paine vient de s'adresser à moi pour que je le réclame comme Citoyen des Etats Unis. Voici (je crois) les Faits que le regardent. Il est né en Angleterre. Devenu ensuite Citoyen des Etats Unis il s'y est acquis une grande célébrité par des écrits révolutionnaires. En conséquence il fut adopté Citoyen français et ensuite élu membre de la Convention. Sa conduite depuis cette époque n'est pas de mon ressort. J'ignore la cause de sa détention actuelle dans la prison du Luxembourg, mais je vous prie Monsieur (si des raisons que ne me sont pas connues s'opposent à sa libération) de vouloir bien m'en instruire pour que je puisse les communiquer au Gouvernement des Etats Unis. J'ai l'honneur d'être, Monsieur,

Votre très humble Serviteur

Gouv. Morris.

Paris, le 15 Ventôse l'An 2. de la République une et indivisible.

Le Ministre des Affaires Etrangères au Ministre Plénipotentiaire des Etats Unis de V Amérique par la République Française.

Par votre lettre du 26 du mois dernier, vous réclamez la liberté de Thomas Paine, comme Citoyen américain. Ni en Angleterre, cet ex-député est devenu successivement Citoyen Américain et Citoyen français. En acceptant ce dernier titre et en remplissant une place dans le Corps Législatif, il est soumis aux lois de la République et il a renoncé de fait à la protection que le droit des gens et les traités conclus avec les Etats Unis auraient pu lui assurer.

J'ignore les motifs de sa détention mais je dois présumer qu'ils sont bien fondés. Je vais néanmoins soumettre au Comité de Salut Public la demande que vous m'avez adressée et je m'empresserai de vous faire connaître sa décision.

Dir ORGUES. (1)

1 Archives of the Foreign Office, Paris, "Etats Unis," vol. xl. Translations:—Morris: "Sir,—Thomas Paine has just applied to me to claim him as a citizen of the United States. Here (I believe) are the facts relating to him. He was born in England. Having afterwards become a citizen of the United States, he acquired great celebrity there by his revolutionary writings. In consequence he was adopted a French citizen and then elected Member of the Convention. His conduct since this epoch is out of my jurisdiction. I am ignorant of the reason for his present detention in the Luxembourg prison, but I beg you, sir (if reasons unknown to me prevent his liberation), be so good as to inform me, that I may communicate them to the government of the United States." Deforgues: "By your letter of the 36th of last month you reclaim the liberty of Thomas Paine as an American citizen. Born in England, this ex-deputy has become successively an American and a French citizen. In accepting this last title, and in occupying a place in the Corps Législatif he submitted himself to the laws of the Republic, and has certainly renounced the protection which the law of nations, and treaties concluded with the United States, could have assured him. I am ignorant of the motives of his detention, but I must presume they are well founded. I shall nevertheless submit to the Committee of Public Safety the demand you have addressed to me, and I shall lose no time in letting you know its decision."

It will be seen that Deforgues begins his letter with a falsehood: "You reclaim the liberty of Paine as an American citizen." Morris's letter had declared him a French citizen out of his (the American Minister's) "jurisdiction." Morris states for Deforgues his case, and it is obediently adopted, though quite discordant with the decree, which imprisoned Paine as a foreigner. Deforgues also makes Paine a member of a non-existent

body, the "Corps Ligislatif," which might suggest in Philadelphia previous connection with the defunct Assembly. No such inquiries as Deforgues promised, nor any, were ever made, and of course none were intended. Morris had got from Deforgues the certificate he needed to show in Philadelphia and to Americans in Paris. His pretended "reclamation" was of course withheld: no copy of it ever reached America till brought from French archives by the present writer. Morris does not appear to have ventured even to keep a copy of it himself. The draft (presumably in English), found among his papers by Sparks, alters the fatal sentence which deprived Paine of his American citizenship and of protection. "Res-sort"—jurisdiction—which has a definite technical meaning in the mouth of a Minister, is changed to "cognizance"; the sentence is made to read, "his conduct from that time has not come under my cognizance." (Sparks's "Life of Gouverneur Morris," i., p. 401). Even as it stands in his book, Sparks says: "The application, it must be confessed, was neither pressing in its terms, nor cogent in its arguments."

The American Minister, armed with this French missive, dictated by himself, enclosed it to the Secretary of State, whom he supposed to be still Jefferson, with a letter stating that he had reclaimed Paine as an American, that he (Paine) was held to answer for "crimes," and that any further attempt to release him would probably be fatal to the prisoner. By these falsehoods, secured from detection by the profound secrecy of the Foreign Offices in both countries, Morris paralyzed all interference from America, as Washington could not of course intervene in behalf of an American charged with "crimes" committed in a foreign country, except to demand his trial. But it was important also to paralyze further action by Americans in Paris, and to them, too, was shown the French certificate of a reclamation never made. A copy was also sent to Paine, who returned to Morris an argument which he entreated him to embody in a further appeal to the French Minister. This document was of course buried away among the papers of Morris, who never again mentioned Paine in any communication to the French government, but contented himself with personal slanders of his victim in private letters to Washington's friend, Robert Morris, and no doubt others. I quote Sparks's summary of the argument unsuspectingly sent by Paine to Morris:

"He first proves himself to have been an American citizen, a character of which he affirms no subsequent act had deprived him. The title of French

citizen was a mere nominal and honorary one, which the Convention chose to confer, when they asked him to help them in making a Constitution. But let the nature or honor of the title be what it might, the Convention had taken it away of their own accord. 'He was excluded from the Convention on the motion for excluding *foreigners*. Consequently he was no longer under the law of the Republic as a *citizen*, but under the protection of the Treaty of Alliance, as fully and effectually as any other citizen of America. It was therefore the duty of the American Minister to demand his release.'

To this Sparks adds:

"Such is the drift of Paine's argument, and it would seem indeed that he could not be a foreigner and a citizen at the same time. It was hard that his only privilege of citizenship should be that of imprisonment. But this logic was a little too refined for the revolutionary tribunals of the Jacobins in Paris, and Mr. Morris well knew it was not worth while to preach it to them. He did not believe there was any serious design at that time against the life of the prisoner, and he considered his best chance of safety to be in preserving silence for the present. Here the matter rested, and Paine was left undisturbed till the arrival of Mr. Monroe, who procured his discharge from confinement." ("Life of Gouverneur Morris," i., p. 417.)

Sparks takes the gracious view of the man whose Life he was writing, but the facts now known turn his words to sarcasm. The Terror by which Paine suffered was that of Morris, who warned him and his friends, both in Paris and America, that if his case was stirred the knife would fall on him. Paine declares (see xx.) that this danger kept him silent till after the fall of Robespierre. None knew so well as Morris that there were no charges against Paine for offences in France, and that Robespierre was awaiting that action by Washington which he (Morris) had rendered impossible. Having thus suspended the knife over Paine for six months, Robespierre interpreted the President's silence, and that of Congress, as confirmation of Morris's story, and resolved on the execution of Paine "in the interests of America as well as of France"; in other words to conciliate Washington to the endangered alliance with France.

Paine escaped the guillotine by the strange accident related in a further chapter. The fall of Robespierre did not of course end his imprisonment, for he was not Robespierre's but Washington's prisoner. Morris remained Minister in France nearly a month after Robespierre's death, but the word

needed to open Paine's prison was not spoken. After his recall, had Monroe been able at once to liberate Paine, an investigation must have followed, and Morris would probably have taken his prisoner's place in the Luxembourg. But Morris would not present his letters of recall, and refused to present his successor, thus keeping Monroe out of his office four weeks. In this he was aided by Bourdon de l'Oise (afterwards banished as a royalist conspirator, but now a commissioner to decide on prisoners); also by tools of Robespierre who had managed to continue on the Committee of Public Safety by laying their crimes on the dead scapegoat—Robespierre. Against Barhre (who had signed Paine's death-warrant), Billaud-Varennes, and Colloît d'Her-bois, Paine, if liberated, would have been a terrible witness. The Committee ruled by them had suppressed Paine's appeal to the Convention, as they presently suppressed Monroe's first appeal. Paine, knowing that Monroe had arrived, but never dreaming that the manoeuvres of Morris were keeping him out of office, wrote him from prison the following letters, hitherto unpublished.

1 There is no need to delay the reader here with any argument about Paine's unquestionable citizenship, that point having been settled by his release as an American, and the sanction of Monroe's action by his government. There was no genuineness in any challenge of Paine's citizenship, but a mere desire to do him an injury. In this it had marvellous success. Ten years after Paine had been reclaimed by Monroe, with the sanction of Washington, as an American citizen, his vote was refused at New Rochelle, New York, by the supervisor, Elisha Ward, on the ground that Washington and Morris had refused to Declaim him. Under his picture of the dead Paine, Jarvis, the artist, wrote: "A man who devoted his whole life to the attainment of two objects—rights of man, and freedom of conscience—had his vote denied when living, and was denied a grave when dead."—Editor.

August 17th, 1794.

My Dear Sir: As I believe none of the public papers have announced your name right I am unable to address you by it, but a *new* minister from America is joy to me and will be so to every American in France.

Eight months I have been imprisoned, and I know not for what, except that the order says that I am a Foreigner. The Illness I have suffered in this place (and from which I am but just recovering) had nearly put an end to my existence. My life is but of little value to me in this situation tho' I have borne it with a firmness of patience and fortitude.

I enclose you a copy of a letter, (as well the translation as the English)—which I sent to the Convention after the fall of the Monster Robespierre—for I was determined not to write a line during the time of his detestable influence. I sent also a copy to the Committee of public safety—but I have not heard any thing respecting it. I have now no expectation of delivery but by your means—*Morris has been my inveterate enemy* and I think he has permitted something of the national Character of America to suffer by quietly letting a Citizen of that Country remain almost eight months in prison without making every official exertion to procure him justice,—for every act of violence offered to a foreigner is offered also to the Nation to which he belongs.

The gentleman, Mr. Beresford, who will present you this has been very friendly to me.⁽¹⁾ Wishing you happiness in your appointment, I am your affectionate friend and humble servant.

August 18th, 1794.

Dear Sir: In addition to my letter of yesterday (sent to Mr. Beresford to be conveyed to you but which is delayed on account of his being at St. Germain) I send the following memoranda.

I was in London at the time I was elected a member of this Convention. I was elected a Deputi in four different departments without my knowing any thing of the matter, or having the least idea of it. The intention of electing the Convention before the time of the former Legislature expired, was for the purpose of reforming the Constitution or rather for forming a new one. As the former Legislature shewed a disposition that I should assist in this business of the new Constitution, they prepared the way by voting me a French Citoyen (they conferred the same title on General Washington and certainly I had no more idea than he had of vacating any part of my real Citizenship of America for a nominal one in France, especially at a time when she did not know whether she would be a Nation or not, and had it not even in her power to promise me protection). I was elected (the second person in number of Votes, the Abbi Sieves being first) a member for forming the Constitution, and every American in Paris as well as my other acquaintance knew that it was my intention to return to America as soon as the Constitution should be established. The violence of Party soon began to shew itself in the Convention, but it was impossible for me to see upon what principle they differed—unless it was a contention for power. I acted

however as I did in America, I connected myself with no Party, but considered myself altogether a National Man—but the case with Parties generally is that when you are not with one you are supposed to be with the other.

1 A friendly lamp-lighter, alluded to in the Letter to Washington, conveyed this letter to Mr. Beresford.—Editor.

I was taken out of bed between three and four in the morning on the 28 of December last, and brought to the Luxembourg—without any other accusation inserted in the order than that I was a foreigner; a motion having been made two days before in the Convention to expel Foreigners therefrom. I certainly then remained, even upon their own tactics, what I was before, a Citizen of America.

About three weeks after my imprisonment the Americans that were in Paris went to the bar of the Convention to reclaim me, but contrary to my advice, they made their address into a Petition, and it miscarried. I then applied to G. Morris, to reclaim me as an official part of his duty, which he found it necessary to do, and here the matter stopt.⁽¹⁾ I have not heard a single line or word from any American since, which is now seven months. I rested altogether on the hope that a new Minister would arrive from America. I have escaped with life from more dangers than one. Had it not been for the fall of Robespierre and your timely arrival I know not what fate might have yet attended me. There seemed to be a determination to destroy all the Prisoners without regard to merit, character, or any thing else. During the time I laid at the height of my illness they took, in one night only, 169 persons out of this prison and executed all but eight. The distress that I have suffered at being obliged to exist in the midst of such horrors, exclusive of my own precarious situation, suspended as it were by the single thread of accident, is greater than it is possible you can conceive—but thank God times are at last changed, and I hope that your Authority will release me from this unjust imprisonment.

1 The falsehood told Paine, accompanied by an intimation of danger in pursuing the pretended reclamation, was of course meant to stop any farther action by Paine or his friends.—Editor..

August 25, 1794.

My Dear Sir: Having nothing to do but to sit and think, I will write to pass away time, and to say that I am still here. I have received two notes from Mr. Beresford which are encouraging (as the generality of notes and letters are that arrive to persons here) but they contain nothing explicit or decisive with respect to my liberation, and *I shall be very glad to receive a line from yourself to inform me in what condition the matter stands*. If I only glide out of prison by a sort of accident America gains no credit by my liberation, neither can my attachment to her be increased by such a circumstance. She has had the services of my best days, she has my allegiance, she receives my portion of Taxes for my house in Borden Town and my farm at New Rochelle, and she owes me protection both at home and thro' her Ministers abroad, yet I remain in prison, in the face of her Minister, at the arbitrary will of a committee.

Excluded as I am from the knowledge of everything and left to a random of ideas, I know not what to think or how to act. Before there was any Minister here (for I consider Morris as none) and while the Robespierrian faction lasted, I had nothing to do but to keep my mind tranquil and expect the fate that was every day inflicted upon my comrades, not individually but by scores. Many a man whom I have passed an hour with in conversation I have seen marching to his destruction the next hour, or heard of it the next morning; for what rendered the scene more horrible was that they were generally taken away at midnight, so that every man went to bed with the apprehension of never seeing his friends or the world again.

I wish to impress upon you that all the changes that have taken place in Paris have been sudden. There is now a moment of calm, but if thro' any over complaisance to the persons you converse with on the subject of my liberation, you omit procuring it for me *now*, you may have to lament the fate of your friend when its too late. The loss of a Battle to the Northward or other possible accident may happen to bring this about. I am not out of danger till I am out of Prison.

Yours affectionately.

P. S.—I am now entirely without money. The Convention owes me 1800 livres salary which I know not how to get while I am here, nor do I know how to draw for money on the rent of my farm in America. It is under the care of my good friend General Lewis Morris. I have received no rent since I have been in Europe.

[Addressed] Minister Plenipotentiary from America, Maison des Etrangers, Rue de la Loi, Rue Richelieu.

Such was the sufficiently cruel situation when there reached Paine in prison, September 4th, the letter of Peter Whiteside which caused him to write his Memorial. Whiteside was a Philadelphian whose bankruptcy in London had swallowed up some of Paine's means. His letter, reporting to Paine that he was not regarded by the American Government or people as an American citizen, and that no American Minister could interfere in his behalf, was evidently inspired by Morris who was still in Paris, the authorities being unwilling to give him a passport to Switzerland, as they knew he was going in that direction to join the conspirators against France. This Whiteside letter put Paine, and through him Monroe, on a false scent by suggesting that the difficulty of his case lay in a *bona fide* question of citizenship, whereas there never had been really any such question. The knot by which Morris had bound Paine was thus concealed, and Monroe was appealing to polite wolves in the interest of their victim. There were thus more delays, inexplicable alike to Monroe and to Paine, eliciting from the latter some heartbroken letters, not hitherto printed, which I add at the end of the Memorial. To add to the difficulties and dangers, Paris was beginning to be agitated by well-founded rumors of Jay's injurious negotiations in England, and a coldness towards Monroe was setting in. Had Paine's release been delayed much longer an American Minister's friendship might even have proved fatal. Of all this nothing could be known to Paine, who suffered agonies he had not known during the Reign of Terror. The other prisoners of Robespierre's time had departed; he alone paced the solitary corridors of the Luxembourg, chilled by the autumn winds, his cell tireless, unlit by any candle, insufficiently nourished, an abscess forming in his side; all this still less cruel than the feeling that he was abandoned, not only by Washington but by all America.

This is the man of whom Washington wrote to Madison nine years before: "Must the merits and services of 'Common Sense' continue to glide down the stream of time unrewarded by this country?" This, then, is his reward. To his old comrade in the battle-fields of Liberty, George Washington, Paine owed his ten months of imprisonment, at the end of which Monroe found him a wreck, and took him (November 4) to his own house, where he and his wife nursed him back into life. But it was not for some months supposed that Paine could recover; it was only after several

relapses; and it was under the shadow of death that he wrote the letter to Washington so much and so ignorantly condemned. Those who have followed the foregoing narrative will know that Paine's grievances were genuine, that his infamous treatment stains American history; but they will also know that they lay chiefly at the door of a treacherous and unscrupulous American Minister.

Yet it is difficult to find an excuse for the retention of that Minister in France by Washington. On Monroe's return to America in 1797, he wrote a pamphlet concerning the mission from which he had been curtly recalled, in which he said:

"I was persuaded from Mr. Morris's known political character and principles, that his appointment, and especially at a period when the French nation was in a course of revolution from an arbitrary to a free government, would tend to discountenance the republican cause there and at home, and otherwise weaken, and greatly to our prejudice, the connexion subsisting between the two countries."

In a copy of this pamphlet found at Mount Vernon, Washington wrote on the margin of this sentence:

"Mr. Morris was known to be a man of first rate abilities; and his integrity and honor had never been impeached. Besides, Mr. Morris was sent whilst the kingly government was in existence, ye end of 91 or beginning of 92." (1)

But this does not explain why Gouverneur Morris was persistently kept in France after monarchy was abolished (September 21, 1792), or even after Lafayette's request for his removal, already quoted. To that letter of Lafayette no reply has been discovered. After the monarchy was abolished, Ternant and Genjt successively carried to America protests from their Foreign Office against the continuance of a Minister in France, who was known in Paris, and is now known to all acquainted with his published papers, to have all along made his office the headquarters of British intrigue against France, American interests being quite subordinated. Washington did not know this, but he might have known it, and his disregard of French complaints can hardly be ascribed to any other cause than his delusion that Morris was deeply occupied with the treaty negotiations confided to him. It must be remembered that Washington believed such a treaty with England to be the alternative of war.(2) On that apprehension the British party in

America, and British agents, played to the utmost, and under such influences Washington sacrificed many old friendships,—with Jefferson, Madison, Monroe, Edmund Randolph, Paine,—and also the confidence of his own State, Virginia.

1 Washington's marginal notes on Monroe's "View, etc.," were first fully given in Ford's "Writings of Washington," vol. xiii., p. 452, seq.

2 Ibid., p. 453.

There is a traditional impression that Paine's angry letter to Washington was caused by the President's failure to inter-pose for his relief from prison. But Paine believed that the American Minister (Morris) had reclaimed him in some feeble fashion, as an American citizen, and he knew that the President had officially approved Monroe's action in securing his release. His grievance was that Washington, whose letters of friendship he cherished, who had extolled his services to America, should have manifested no concern personally, made no use of his commanding influence to rescue him from daily impending death, sent to his prison no word of kindness or inquiry, and sent over their mutual friend Monroe without any instructions concerning him; and finally, that his private letter, asking explanation, remained unanswered. No doubt this silence of Washington concerning the fate of Paine, whom he acknowledged to be an American citizen, was mainly due to his fear of offending England, which had proclaimed Paine. The "outlaw's" imprisonment in Paris caused jubilations among the English gentry, and went on simultaneously with Jay's negotiations in London, when any expression by Washington of sympathy with Paine (certain of publication) might have imperilled the Treaty, regarded by the President as vital.

So anxious was the President about this, that what he supposed had been done for Paine by Morris, and what had really been done by Monroe, was kept in such profound secrecy, that even his Secretary of State, Pickering, knew nothing of it. This astounding fact I recently discovered in the manuscripts of that Secretary.(1) Colonel Pickering, while flattering enough to the President in public, despised his intellect, and among his papers is a memorandum concluding as follows:

"But when the hazards of the Revolutionary War had ended, by the establishment of our Independence, why was the knowledge of General

Washington's comparatively defective mental powers not freely divulged? Why, even by the enemies of his civil administration were his abilities very tenderly glanced at? —Because there were few, if any men, who did not revere him for his distinguished virtues; his modesty—his unblemished integrity, his pure and disinterested patriotism. These virtues, of infinitely more value than exalted abilities without them, secured to him the veneration and love of his fellow citizens at large. Thus immensely popular, no man was willing to publish, under his hand, even the simple truth. The only exception, that I recollect, was the infamous Tom Paine; and this when in France, after he had escaped the guillotine of Robespierre; and in resentment, because, after he had participated in the French Revolution, President Washington seemed not to have thought him so very important a character in the world, as officially to interpose for his relief from the fangs of the French ephemeral Rulers. In a word, no man, however well informed, was willing to hazard his own popularity by exhibiting the real intellectual character of the immensely popular Washington."

1 Massachusetts Historical Society, vol. 11., p. 171.

How can this ignorance of an astute man, Secretary of State under Washington and Adams, be explained? Had Washington hidden the letters showing on their face that he *had* "officially interposed" for Paine by two Ministers?

Madison, writing to Monroe, April 7, 1796, says that Pickering had spoken to him "in harsh terms" of a letter written by Paine to the President. This was a private letter of September 20, 1795, afterwards printed in Paine's public Letter to Washington. The Secretary certainly read that letter on its arrival, January 18, 1796, and yet Washington does not appear to have told him of what had been officially done in Paine's case! Such being the secrecy which Washington had carried from the camp to the cabinet, and the morbid extent of it while the British Treaty was in negotiation and discussion, one can hardly wonder at his silence under Paine's private appeal and public reproach.

Much as Pickering hated Paine, he declares him the only man who ever told the simple truth about Washington. In the lapse of time historical research, while removing the sacred halo of Washington, has revealed beneath it a stronger brain than was then known to any one. Paine published

what many whispered, while they were fawning on Washington for office, or utilizing his power for partisan ends. Washington, during his second administration, when his mental decline was remarked by himself, by Jefferson, and others, was regarded by many of his eminent contemporaries as fallen under the sway of small partisans. Not only was the influence of Jefferson, Madison, Randolph, Monroe, Livingston, alienated, but the counsels of Hamilton were neutralized by Wolcott and Pickering, who apparently agreed about the President's "mental powers." Had not Paine previously incurred the *odium theologicum*, his pamphlet concerning Washington would have been more damaging; even as it was, the verdict was by no means generally favorable to the President, especially as the replies to Paine assumed that Washington had indeed failed to try and rescue him from impending death.⁽¹⁾ A pamphlet written by Bache, printed anonymously (1797), *Remarks occasioned by the late conduct of Mr. Washington*, indicates the belief of those who raised Washington to power, that both Randolph and Paine had been sacrificed to please Great Britain.

The *Bien-informi* (Paris, November 12, 1797) published a letter from Philadelphia, which may find translation here as part of the history of the pamphlet:

"The letter of Thomas Paine to General Washington is read here with avidity. We gather from the English papers that the Cabinet of St James has been unable to stop the circulation of that pamphlet in England, since it is allowable to reprint there any English work already published elsewhere, however disagreeable to Messrs. Pitt and Dundas. We read in the letter to Washington that Robespierre had declared to the Committee of Public Safety that it was desirable in the interests of both France and America that Thomas Paine, who, for seven or eight months had been kept a prisoner in the Luxembourg, should forthwith be brought up for judgment before the revolutionary tribunal. The proof of this fact is found in Robespierre's papers, and gives ground for strange suspicions."

¹ The principal ones were "A Letter to Thomas Paine. By an American Citizen. New York, 1797," and "A Letter to the infamous Tom Paine, in answer to his Letter to General Washington. December 1796. By Peter Porcupine" (Cobbett). Writing to David Stuart, January 8, 1797, Washington, speaking of himself in the third person, says: "Although he is soon to become a private citizen, his opinions are to be knocked down, and his character traduced as low as they are capable of sinking it, even by resorting to absolute

falsehoods. As an evidence whereof, and of the plan they are pursuing, I send you a letter of Mr. Paine to me, printed in this city and disseminated with great industry. Enclosed you will receive also a production of Peter Porcupine, alias William Cobbett. Making allowances for the asperity of an Englishman, for some of his strong and coarse expressions, and a want of official information as to many facts, it is not a bad thing." The "many facts" were, of course, the action of Monroe, and the supposed action of Morris in Paris, but not even to one so intimate as Stuart are these disclosed.

"It was long believed that Paine had returned to America with his friend James Monroe, and the lovers of freedom [there] congratulated themselves on being able to embrace that illustrious champion of the Rights of Man. Their hopes have been frustrated. We know positively that Thomas Paine is still living in France. The partizans of the late presidency [in America] also know it well, yet they have spread a rumor that after actually arriving he found his (really popular) *principles no longer the order of the day*, and thought best to re-embark.

"The English journals, while repeating this idle rumor, observed that it was unfounded, and that Paine had not left France. Some French journals have copied these London paragraphs, but without comments; so that at the very moment when Thomas Paine's Letter on the 18th. Fructidor is published, *La Clef du Cabinet* says that this citizen is suffering unpleasantness in America."

Paine had intended to return with Monroe, in the spring of 1797, but, suspecting the Captain and a British cruiser in the distance, returned from Havre to Paris. The packet was indeed searched by the cruiser for Paine, and, had he been captured, England would have executed the sentence pronounced by Robespierre to please Washington.

MEMORIAL ADDRESSED TO JAMES MONROE, MINISTER FROM
THE UNITED STATES OF AMERICA TO THE FRENCH REPUBLIC.

Prison of the Luxembourg, Sept. 10th, 1794.

I address this memorial to you, in consequence of a letter I received from a friend, 18 Fructidor (September 4th,) in which he says, "Mr. Monroe has told me, that he has no orders [meaning from the American government] respecting you; but I am sure he will leave nothing undone to liberate you; but, from what I can learn, from all the late Americans, you are not considered either by the Government, or by the individuals, as an American citizen. You have been made a french Citizen, which you have accepted,

and you have further made yourself a servant of the french Republic; and, therefore, it would be out of character for an American Minister to interfere in their internal concerns. You must therefore either be liberated out of Compliment to America, or stand your trial, which you have a right to demand."

This information was so unexpected by me, that I am at a loss how to answer it. I know not on what principle it originates; whether from an idea that I had voluntarily abandoned my Citizenship of America for that of France, or from any article of the American Constitution applied to me. The first is untrue with respect to any intention on my part; and the second is without foundation, as I shall shew in the course of this memorial.

The idea of conferring honor of Citizenship upon foreigners, who had distinguished themselves in propagating the principles of liberty and humanity, in opposition to despotism, war, and bloodshed, was first proposed by me to La Fayette, at the commencement of the french revolution, when his heart appeared to be warmed with those principles. My motive in making this proposal, was to render the people of different nations more fraternal than they had been, or then were. I observed that almost every branch of Science had possessed itself of the exercise of this right, so far as it regarded its own institution. Most of the Academies and Societies in Europe, and also those of America, conferred the rank of honorary member, upon foreigners eminent in knowledge, and made them, in fact, citizens of their literary or scientific republic, without affecting or anyways diminishing their rights of citizenship in their own country or in other societies: and why the Science of Government should not have the same advantage, or why the people of one nation should not, by their representatives, exercise the right of conferring the honor of Citizenship upon individuals eminent in another nation, without affecting *their* rights of citizenship, is a problem yet to be solved.

I now proceed to remark on that part of the letter, in which the writer says, that, *from what he can learn from all the late Americans, I am not considered in America, either by the Government or by the individuals, as an American citizen.*

In the first place I wish to ask, what is here meant by the Government of America? The members who compose the Government are only individuals, when in conversation, and who, most probably, hold very different opinions

upon the subject. Have Congress as a body made any declaration respecting me, that they now no longer consider me as a citizen? If they have not, anything they otherwise say is no more than the opinion of individuals, and consequently is not legal authority, nor anyways sufficient authority to deprive any man of his Citizenship. Besides, whether a man has forfeited his rights of Citizenship, is a question not determinable by Congress, but by a Court of Judicature and a Jury; and must depend upon evidence, and the application of some law or article of the Constitution to the case. No such proceeding has yet been had, and consequently I remain a Citizen until it be had, be that decision what it may; for there can be no such thing as a suspension of rights in the interim.

I am very well aware, and always was, of the article of the Constitution which says, as nearly as I can recollect the words, that "any citizen of the United States, who shall accept any title, place, or office, from any foreign king, prince, or state, shall forfeit and lose his right of Citizenship of the United States."

Had the Article said, that *any citizen of the United States, who shall be a member of any foreign convention, for the purpose of forming a free constitution, shall forfeit and lose the right of citizenship of the United States*, the article had been directly applicable to me; but the idea of such an article never could have entered the mind of the American Convention, and the present article *is* altogether foreign to the case with respect to me. It supposes a Government in active existence, and not a Government dissolved; and it supposes a citizen of America accepting titles and offices under that Government, and not a citizen of America who gives his assistance in a Convention chosen by the people, for the purpose of forming a Government *de nouveau* founded on their authority.

The late Constitution and Government of France was dissolved the 10th of August, 1792. The National legislative Assembly then in being, supposed itself without sufficient authority to continue its sittings, and it proposed to the departments to elect not another legislative Assembly, but a Convention for the express purpose of forming a new Constitution. When the Assembly were discoursing on this matter, some of the members said, that they wished to gain all the assistance possible upon the subject of free constitutions; and expressed a wish to elect and invite foreigners of any Nation to the Convention, who had distinguished themselves in defending, explaining,

and propagating the principles of liberty. It was on this occasion that my name was mentioned in the Assembly. (I was then in England.)

1 In the American pamphlet a footnote, probably added by Bache, here says: "Even this article does not exist in the manner here stated." It is a pity Paine did not have in his prison the article, which says: "No person holding any office of profit or trust under them [the United States] shall, without the consent of Congress, accept of any present, emolument, office, or title of any kind whatever, from any king, prince, or foreign State."—Editor.

After this, a deputation from a body of the french people, in order to remove any objection that might be made against my assisting at the proposed Convention, requested the Assembly, as their representatives, to give me the title of French Citizen; after which, I was elected a member of the Convention, in four different departments, as is already known.(1)

The case, therefore, is, that I accepted nothing from any king, prince, or state, nor from any Government: for France was without any Government, except what arose from common consent, and the necessity of the case. Neither did I *make myself a servant of the french Republic*, as the letter alluded to expresses; for at that time France was not a republic, not even in name. She was altogether a people in a state of revolution.

It was not until the Convention met that France was declared a republic, and monarchy abolished; soon after which a committee was elected, of which I was a member,(2) to form a Constitution, which was presented to the Convention [and read by Condorcet, who was also a member] the 15th and 16th of February following, but was not to be taken into consideration till after the expiration of two months,(3) and if approved of by the Convention, was then to be referred to the people for their acceptance, with such additions or amendments as the Convention should make.

1 The deputation referred to was described as the "Commission Extraordinaire," in whose name M. Guadet moved that the title of French Citizen be conferred on Priestley, Paine, Bentham, Wilberforce, Clarkson, Mackintosh, David Williams, Cormelle, Paw, Pestalozzi, Washington, Madison, Hamilton, Klopstock, Koscinsko, Gorani, Campe, Anacharsis Clootz, Gilleers. This was on August 26, and Paine was elected by Calais on September 6, 1792; and in the same week by Oise, Somme, and Puy-de-Dome.—Editor.

2 Sieves, Paine, Brissot, Piton, Vergniaud, Gensonne, Barhre, Danton, Condorcet.—Editor.

3 The remainder of this sentence is replaced in the American pamphlet by the following: "The disorders and the revolutionary government that took place after this put a stop to any further progress upon the case."—Editor.

In thus employing myself upon the formation of a Constitution, I certainly did nothing inconsistent with the American Constitution. I took no oath of allegiance to France, or any other oath whatever. I considered the Citizenship they had presented me with as an honorary mark of respect paid to me not only as a friend to liberty, but as an American Citizen. My acceptance of that, or of the deputyship, not conferred on me by any king, prince, or state, but by a people in a state of revolution and contending for liberty, required no transfer of my allegiance or of my citizenship from America to France. There I was a real citizen, paying Taxes; here, I was a voluntary friend, employing myself on a temporary service. Every American in Paris knew that it was my constant intention to return to America, as soon as a constitution should be established, and that I anxiously waited for that event.

I know not what opinions have been circulated in America. It may have been supposed there that I had voluntarily and intentionally abandoned America, and that my citizenship had ceased by my own choice. I can easily [believe] there are those in that country who would take such a proceeding on my part somewhat in disgust. The idea of forsaking old friendships for new acquaintances is not agreeable. I am a little warranted in making this supposition by a letter I received some time ago from the wife of one of the Georgia delegates in which she says "Your friends on this side the water cannot be reconciled to the idea of your abandoning America."

I have never abandoned her in thought, word or deed; and I feel it incumbent upon me to give this assurance to the friends I have in that country and with whom I have always intended and am determined, if the possibility exists, to close the scene of my life. It is there that I have made myself a home. It is there that I have given the services of my best days. America never saw me flinch from her cause in the most gloomy and perilous of her situations; and I know there are those in that country who will not flinch from me. If I have enemies (and every man has some) I leave them to the enjoyment of their ingratitude.*

** I subjoin in a note, for the sake of wasting the solitude of a prison, the answer that I gave to the part of the letter above mentioned. It is not inapplicable to the*

subject of this Memorial; but it contain! somewhat of a melancholy idea, a little predictive, that I hope is not becoming true so soon.

It is somewhat extraordinary that the idea of my not being a citizen of America should have arisen only at the time that I am imprisoned in France because, or on the pretence that, I am a foreigner. The case involves a strange contradiction of ideas. None of the Americans who came to France whilst I was in liberty had conceived any such idea or circulated any such opinion; and why it should arise now is a matter yet to be explained. However discordant the late American Minister G. M. [Gouverneur Morris] and the late French Committee of Public Safety were, it suited the purpose of both that I should be continued in arrestation. The former wished to prevent my return to America, that I should not expose his misconduct; and the latter, lest I should publish to the world the history of its wickedness. Whilst that Minister and the Committee continued I had no expectation of liberty. I speak here of the Committee of which Robespierre was member.

(1)

"You touch me on a very tender point when you say that my friends on your side the water cannot be reconciled to the idea of my abandoning America. They are right. I had rather see my horse Button eating the grass of Borden-Town or Morrisania than see all the pomp and show of Europe.

"A thousand years hence (for I must indulge a few thoughts) perhaps in less, America may be what Europe now is. The innocence of her character, that won the hearts of all nations in her favour, may sound like a romance and her inimitable virtue as if it had never been. The ruin of that liberty which thousands bled for or struggled to obtain may just furnish materials for a village tale or extort a sigh from rustic sensibility, whilst the fashionable of that day, enveloped in dissipation, shall deride the principle and deny the fact.

"When we contemplate the fall of Empires and the extinction of the nations of the Ancient World, we see but little to excite our regret than the mouldering ruins of pompous palaces, magnificent museums, lofty pyramids and walls and towers of the most costly workmanship; but when the Empire of America shall fall, the subject for contemplative sorrow will be infinitely greater than crumbling brass and marble can inspire. It will not then be said, here stood a temple of vast antiquity; here rose a babel of invisible height; or there a palace of sumptuous extravagance; but here, Ah, painful thought! the noblest work of human wisdom, the grandest scene of human glory, the fair cause of Freedom rose and fell. Read this, and then ask if I forget America."—Author.

1 This letter, quoted also in Paine's Letter to Washington, was written from London, Jan. 6, 1789, to the wife of Col. Few, nie Kate Nicholson. It is given in full in my "Life of Paine," i., p. 247.—Editor.

THE MEMORIAL TO MONROE.

I ever must deny, that the article of the American constitution already mentioned, can be applied either verbally, intentionally, or constructively, to me. It undoubtedly was the intention of the Convention that framed it, to preserve the purity of the American republic from being debased by foreign and foppish customs; but it never could be its intention to act against the principles of liberty, by forbidding its citizens to assist in promoting those principles in foreign Countries; neither could it be its intention to act against the principles of gratitude.⁽¹⁾ France had aided America in the establishment of her revolution, when invaded and oppressed by England and her auxiliaries. France in her turn was invaded and oppressed by a combination of foreign despots. In this situation, I conceived it an act of gratitude in me, as a citizen of America, to render her in return the best services I could perform. I came to France (for I was in England when I received the invitation) not to enjoy ease, emoluments, and foppish honours, as the article supposes; but to encounter difficulties and dangers in defence of liberty; and I much question whether those who now malignantly seek (for some I believe do) to turn this to my injury, would have had courage to have done the same thing. I am sure Gouverneur Morris would not. He told me the second day after my arrival, (in Paris,) that the Austrians and Prussians, who were then at Verdun, would be in Paris in a fortnight. I have no idea, said he, that seventy thousand disciplined troops can be stopped in their march by any power in France.

1 This and the two preceding paragraphs, including the footnote, are entirely omitted from the American pamphlet. It will be seen that Paine had now a suspicion of the conspiracy between Gouverneur Morris and those by whom he was imprisoned. Soon after his imprisonment he had applied to Morris, who replied that he had reclaimed him, and enclosed the letter of Deforgues quoted in my Introduction to this chapter, of course withholding his own letter to the Minister. Paine answered (Feb. 14, 1793): "You must not leave me in the situation in which this letter places me. You know I do not deserve it, and you see the unpleasant situation in which I am thrown. I have made an answer to the Minister's letter, which I wish you to make ground of a reply to him. They have nothing against me—except that they do not choose I should lie in a state of freedom to write my

mind freely upon things I have seen. Though you and I are not on terms of the best harmony, I apply to you as the Minister of America, and you may add to that service whatever you think my integrity deserves. At any rate I expect you to make Congress acquainted with my situation, and to send them copies of the letters that have passed on the subject. A reply to the Minister's letter is absolutely necessary, were it only to continue the reclamation. Otherwise your silence will be a sort of consent to his observations." Deforgues' "observations" having been dictated by Morris himself, no reply was sent to him, and no word to Congress.—Editor.

2 In the pamphlet this last clause of the sentence is omitted.—Editor..

Besides the reasons I have already given for accepting the invitations to the Convention, I had another that has reference particularly to America, and which I mentioned to Mr. Pinckney the night before I left London to come to Paris: "That it was to the interest of America that the system of European governments should be changed and placed on the same principle with her own." Mr. Pinckney agreed fully in the same opinion. I have done my part towards it.(1)

It is certain that governments upon similar systems agree better together than those that are founded on principles discordant with each other; and the same rule holds good with respect to the people living under them. In the latter case they offend each other by pity, or by reproach; and the discordancy carries itself to matters of commerce. I am not an ambitious man, but perhaps I have been an ambitious American. I have wished to see America the *Mother Church* of government, and I have done my utmost to exalt her character and her condition.

1 In the American pamphlet the name of Pinckney (American Minister in England) is left blank in this paragraph, and the two concluding sentences are omitted from both the French and American pamphlets.—Editor.,

I have now stated sufficient matter, to shew that the Article in question is not applicable to me; and that any such application to my injury, as well in circumstances as in Rights, is contrary both to the letter and intention of that Article, and is illegal and unconstitutional. Neither do I believe that any Jury in America, when they are informed of the whole of the case, would give a verdict to deprive me of my Rights upon that Article. The citizens of America, I believe, are not very fond of permitting forced and indirect explanations to be put upon matters of this kind. I know not what were the

merits of the case with respect to the person who was prosecuted for acting as prize master to a french privateer, but I know that the jury gave a verdict against the prosecution. The Rights I have acquired are dear to me. They have been acquired by honourable means, and by dangerous service in the worst of times, and I cannot passively permit them to be wrested from me. I conceive it my duty to defend them, as the case involves a constitutional and public question, which is, how far the power of the federal government (1) extends, in depriving any citizen of his Rights of Citizenship, or of suspending them.

That the explanation of National Treaties belongs to Congress is strictly constitutional; but not the explanation of the Constitution itself, any more than the explanation of Law in the case of individual citizens. These are altogether Judiciary questions. It is, however, worth observing, that Congress, in explaining the Article of the Treaty with respect to french prizes and french privateers, confined itself strictly to the letter of the Article. Let them explain the Article of the Constitution with respect to me in the same manner, and the decision, did it appertain to them, could not deprive me of my Rights of Citizenship, or suspend them, for I have accepted nothing from any king, prince, state, or Government.

You will please to observe, that I speak as if the federal Government had made some declaration upon the subject of my Citizenship; whereas the fact is otherwise; and your saying that you have no order respecting me is a proof of it. Those therefore who propagate the report of my not being considered as a Citizen of America by Government, do it to the prolongation of my imprisonment, and without authority; for Congress, *as a government*, has neither decided upon it, nor yet taken the matter into consideration; and I request you to caution such persons against spreading such reports. But be these matters as they may, I cannot have a doubt that you find and feel the case very different, since you have heard what I have to say, and known what my situation is [better] than you did before your arrival.

1 In the pamphlet occurs here a significant parenthesis by Bache: "it should have been said in this case, how far the Executive."—Editor..

But it was not the Americans only, but the Convention also, that knew what my intentions were upon that subject. In my last discourse delivered at

the Tribune of the Convention, January 19, 1793, on the motion for suspending the execution of Louis 16th, I said (the Deputy Bancal read the translation in French): "It unfortunately happens that the person who is the subject of the present discussion, is considered by the Americans as having been the friend of their revolution. His execution will be an affliction to them, and it is in your power not to wound the feelings of your ally. Could I speak the french language I would descend to your bar, and in their name become your petitioner to respite the execution of the sentence/"—"As the convention was elected for the express purpose of forming a Constitution, its continuance cannot be longer than four or five months more at furthest; and if, after my *return to America*, I should employ myself in writing the history of the french Revolution, I had rather record a thousand errors on the side of mercy, than be obliged to tell one act of severe Justice."—"Ah Citizens! give not the tyrant of England the triumph of seeing the man perish on a scaffold who had aided my much-loved America."

Does this look as if I had abandoned America? But if she abandons me in the situation I am in, to gratify the enemies of humanity, let that disgrace be to herself. But I know the people of America better than to believe it,(1) tho' I undertake not to answer for every individual.

When this discourse was pronounced, Marat launched himself into the middle of the hall and said that "I voted against the punishment of death because I was a quaker." I replied that "I voted against it both morally and politically."

1 In the French pamphlet: "pour jamais lui prêter du tels sentiments."

I certainly went a great way, considering the rage of the times, in endeavouring to prevent that execution. I had many reasons for so doing. I judged, and events have shewn that I judged rightly, that if they once began shedding blood, there was no knowing where it would end; and as to what the world might call *honour* the execution would appear like a nation killing a mouse; and in a political view, would serve to transfer the hereditary claim to some more formidable Enemy. The man could do no more mischief; and that which he had done was not only from the vice of his education, but was as much the fault of the Nation in restoring him after he had absconded June 21st, 1791, as it was his. I made the proposal for imprisonment until the end of the war and perpetual banishment after the

war, instead of the punishment of death. Upwards of three hundred members voted for that proposal. The sentence for absolute death (for some members had voted the punishment of death conditionally) was carried by a majority of twenty-five out of more than seven hundred.

I return from this digression to the proper subject of my memorial.(1)

*1 This and the preceding five paragraphs, and five following the next, are omitted from the American pamphlet.—
Editor..*

Painful as the want of liberty may be, it is a consolation to me to believe, that my imprisonment proves to the world, that I had no share in the murderous system that then reigned. That I was an enemy to it, both morally and politically, is known to all who had any knowledge of me; and could I have written french as well as I can English, I would publicly have exposed its wickedness and shewn the ruin with which it was pregnant. They who have esteemed me on former occasions, whether in America or in Europe will, I know, feel no cause to abate that esteem, when they reflect, that *imprisonment with preservation of character is preferable to liberty with disgrace.*

I here close my Memorial and proceed to offer you a proposal that appears to me suited to all the circumstances of the case; which is, that you reclaim me conditionally, until the opinion of Congress can be obtained on the subject of my citizenship of America; and that I remain in liberty under your protection during that time.

I found this proposal upon the following grounds.

First, you say you have no orders respecting me; consequently, you have no orders *not* to reclaim me; and in this case you are left discretionary judge whether to reclaim or not. My proposal therefore unites a consideration of your situation with my own.

Secondly, I am put in arrestation because I am a foreigner. It is therefore necessary to determine to what country I belong. The right of determining this question cannot appertain exclusively to the Committee of Public Safety or General Surety; because I appeal to the Minister of the United States, and show that my citizenship of that country is good and valid, referring at the same time, thro' the agency of the Minister, my claim of right to the opinion of Congress. It being a matter between two Governments.

Thirdly. France does not claim me for a citizen; neither do I set up any claim of citizenship in France. The question is simply, whether I am or am not a citizen of America. I am imprisoned here on the decree for imprisoning foreigners, because, say they, I was born in England. I say in answer that, though born in England, I am not a subject of the English Government any more than any other American who was born, as they all were, under the same Government, or than the Citizens of France are subjects of the French Monarchy under which they were born. I have twice taken the oath of abjuration to the British King and Government and of Allegiance to America,—once as a citizen of the State of Pennsylvania in 1776, and again before Congress, administered to me by the President, Mr. Hancock, when I was appointed Secretary in the Office of Foreign Affairs in 1777.

The letter before quoted in the first page of this memorial, says, "It would be out of character for an American minister to interfere in the internal affairs of France." This goes on the idea that I am a citizen of France, and a member of the Convention, which is not the fact. The Convention have declared me to be a foreigner; and consequently the citizenship and the election are null and void.(1) It also has the appearance of a Decision, that the article of the Constitution, respecting grants made to American Citizens by foreign kings, princes, or states, is applicable to me; which is the very point in question, and against the application of which I contend. I state evidence to the Minister, to shew that I am not within the letter or meaning of that Article; that it cannot operate against me; and I apply to him for the protection that I conceive I have a right to ask and to receive. The internal affairs of France are out of the question with respect to my application or his interference. I ask it not as a citizen of France, for I am not one: I ask it not as a member of the Convention, for I am not one; both these, as before said, have been rendered null and void; I ask it not as a man against whom there is any accusation, for there is none; I ask it not as an exile from America, whose liberties I have honourably and generously contributed to establish; I ask it as a Citizen of America, deprived of his liberty in France, under the plea of being a foreigner; and I ask it because I conceive I am entitled to it, upon every principle of Constitutional Justice and National honour.(2)

1 In the pamphlet: "The Convention included me in the vote for dismissing foreigners from the Convention, and the

Committees imprisoned me as a foreigner."—Editor.

2 All previous editions of the pamphlet end with this word.—Editor.

But tho' I thus positively assert my claim because I believe I have a right to do so, it is perhaps most eligible, in the present situation of things, to put that claim upon the footing I have already mentioned; that is, that the Minister reclaims me conditionally until the opinion of Congress can be obtained on the subject of my citizenship of America, and that I remain in liberty under the protection of the Minister during that interval.

N. B. I should have added that as Gouverneur Morris could not inform Congress of the cause of my arrestation, as he knew it not himself, it is to be supposed that Congress was not enough acquainted with the case to give any directions respecting me when you came away.

T.P. ADDENDA.

Letters, hitherto unpublished, written by Paine to Monroe before his release on November 4., 1794.

1. Luxembourg Mem Vendemaire, Old Style Oct 4th 1794

Dear Sir: I thank you for your very friendly and affectionate letter of the 18th September which I did not receive till this morning.(1) It has relieved my mind from a load of disquietude. You will easily suppose that if the information I received had been exact, my situation was without hope. I had in that case neither section, department nor Country, to reclaim me; but that is not all, I felt a poignancy of grief, in having the least reason to suppose that America had so soon forgotten me who had never forgotten her.

Mr. Labonadaire, in a note of yesterday, directed me to write to the Convention. As I suppose this measure has been taken in concert with you, I have requested him to shew you the letter, of which he will make a translation to accompany the original.

(I cannot see what motive can induce them to keep me in prison. It will gratify the English Government and afflict the friends I have in America. The supporters of the system of Terror might apprehend that if I was in liberty and in America I should publish the history of their crimes, but the present persons who have overset that immoral System ought to have no such apprehension. On the contrary, they ought to consider me as one of themselves, at least as one of their friends. Had I been an insignificant character I had not been in arrestation. It was the literary and philosophical

reputation I had gained, in the world, that made them my Enemies; and I am the victim of the principles, and if I may be permitted to say it, of the talents, that procured me the esteem of America. My character is the *secret* of my arrestation.)

1 Printed in the letter to Washington, chap. XXII. The delay of sixteen days in Monroe's letter was probably due to the manouvres of Paine's enemies on the Committee of Public Safety. He was released only after their removal from the Committee, and the departure of Gouverneur Morris.— Editor.,

If the letter I have written be not covered by other authority than my own it will have no effect, for they already know all that I can say. On what ground do they pretend to deprive America of the service of any of her citizens without assigning a cause, or only the flimsy one of my being born in England? Gates, were he here, might be arrested on the same pretence, and he and Burgoyne be confounded together.

It is difficult for me to give an opinion, but among other things that occur to me, I think that if you were to say that, as it will be necessary to you to inform the Government of America of my situation, you require an explanation with the Committee upon that subject; that you are induced to make this proposal not only out of esteem for the character of the person who is the personal object of it, but because you know that his arrestation will distress the Americans, and the more so as it will appear to them to be contrary to their ideas of civil and national justice, it might perhaps have some effect. If the Committee [of Public Safety] will do nothing, it will be necessary to bring this matter openly before the Convention, for I do most sincerely assure you, from the observations that I hear, and I suppose the same are made in other places, that the character of America lies under some reproach. All the world knows that I have served her, and they see that I am still in prison; and you know that when people can form a conclusion upon a simple fact, they trouble not themselves about reasons. I had rather that America cleared herself of all suspicion of ingratitude, though I were to be the victim.

You advise me to have patience, but I am fully persuaded that the longer I continue in prison the more difficult will be my liberation. There are two reasons for this: the one is that the present Committee, by continuing so long my imprisonment, will naturally suppose that my mind will be soured

against them, as it was against those who put me in, and they will continue my imprisonment from the same apprehensions as the former Committee did; the other reason is, that it is now about two months since your arrival, and I am still in prison. They will explain this into an indifference upon my fate that will encourage them to continue my imprisonment. When I hear some people say that it is the Government of America that now keeps me in prison by not reclaiming me, and then pour forth a volley of execrations against her, I know not how to answer them otherwise than by a direct denial which they do not appear to believe. You will easily conclude that whatever relates to imprisonments and liberations makes a topic of prison conversation; and as I am now the oldest inhabitant within these walls, except two or three, I am often the subject of their remarks, because from the continuance of my imprisonment they auger ill to themselves. You see I write you every thing that occurs to me, and I conclude with thanking you again for your very friendly and affectionate letter, and am with great respect,

Your's affectionately,

Thomas Paine.

(To day is the anniversary of the action at German Town. [October 4, 1777.] Your letter has enabled me to contradict the observations before mentioned.)

2. Oct 13, 1794 Dear Sir: On the 28th of this Month (October) I shall have suffered ten months imprisonment, to the dishonour of America as well as of myself, and I speak to you very honestly when I say that my patience is exhausted. It is only my actual liberation that can make me believe it. Had any person told me that I should remain in prison two months after the arrival of a new Minister, I should have supposed that he meant to affront me as an American. By the friendship and sympathy you express in your letter you seem to consider my imprisonment as having connection only with myself, but I am certain that the inferences that follow from it have relation also to the National character of America, I already feel this in myself, for I no longer speak with pride of being a citizen of that country. Is it possible Sir that I should, when I am suffering unjust imprisonment under the very eye of her new Minister?

While there was no Minister here (for I consider Morris as none) nobody wondered at my imprisonment, but now everybody wonders. The

continuance of it under a change of diplomatic circumstances, subjects me to the suspicion of having merited it, and also to the suspicion of having forfeited my reputation with America; and it subjects her at the same time to the suspicion of ingratitude, or to the reproach of wanting national or diplomatic importance. The language that some Americans have held of my not being considered as an American citizen, tho' contradicted by yourself, proceeds, I believe, from no other motive, than the shame and dishonour they feel at the imprisonment of a fellow-citizen, and they adopt this apology, at my expence, to get rid of that disgrace. Is it not enough that I suffer imprisonment, but my mind also must be wounded and tortured with subjects of this kind? Did I reason from personal considerations only, independent of principles and the pride of having practiced those principles honourably, I should be tempted to curse the day I knew America. By contributing to her liberty I have lost my own, and yet her Government beholds my situation in silence. Wonder not, Sir, at the ideas I express or the language in which I express them. If I have a heart to feel for others I can feel also for myself, and if I have anxiety for my own honour, I have it also for a country whose suffering infancy I endeavoured to nourish and to which I have been enthusiastically attached. As to patience I have practiced it long—as long as it was honorable to do so, and when it goes beyond that point it becomes meanness.

I am inclined to believe that you have attended to my imprisonment more as a friend than as a Minister. As a friend I thank you for your affectionate attachment. As a Minister you have to look beyond me to the honour and reputation of your Government; and your Countrymen, who have accustomed themselves to consider any subject in one line of thinking only, more especially if it makes a strong [impression] upon them, as I believe my situation has made upon you, do not immediately see the matters that have relation to it in another line; and it is to bring these two into one point that I offer you these observations. A citizen and his country, in a case like mine, are so closely connected that the case of one is the case of both.

When you first arrived the path you had to pursue with respect to my liberation was simple. I was imprisoned as a foreigner; you knew that foreigner to be a citizen of America, and you knew also his character, and as such you should immediately have reclaimed him. You could lose nothing by taking strong ground, but you might lose much by taking an inferior one; but instead of this, which I conceive would have been the right line of

acting, you left me in their hands on the loose intimation that my liberation would take place without your direct interference, and you strongly recommended it to me to wait the issue. This is more than seven weeks ago and I am still in prison. I suspect these people are trifling with you, and if they once believe they can do that, you will not easily get any business done except what they wish to have done.

When I take a review of my whole situation—my circumstances ruined, my health half destroyed, my person imprisoned, and the prospect of imprisonment still staring me in the face, can you wonder at the agony of my feelings? You lie down in safety and rise to plenty; it is otherwise with me; I am deprived of more than half the common necessities of life; I have not a candle to burn and cannot get one. Fuel can be procured only in small quantities and that with great difficulty and very dear, and to add to the rest, I am fallen into a relapse and am again on the sick list. Did you feel the whole force of what I suffer, and the disgrace put upon America by this injustice done to one of her best and most affectionate citizens, you would not, either as a friend or Minister, rest a day till you had procured my liberation. It is the work of two or three hours when you set heartily about it, that is, when you demand me as an American citizen, or propose a conference with the Committee upon that subject; or you may make it the work of a twelve-month and not succeed. I know these people better than you do.

You desire me to believe that "you are placed here on a difficult Theatre with many important objects to attend to, and with but few to consult with, and that it becomes you in pursuit of these to regulate your conduct with respect to each, as to manner and time, as will in your judgment be best calculated to accomplish the whole." As I know not what these objects are I can say nothing to that point. But I have always been taught to believe that the liberty of a Citizen was the first object of all free Governments, and that it ought not to give preference to, or be blended with, any other. It is that public object that all the world can see, and which obtains an influence upon public opinion more than any other. This is not the case with the objects you allude to. But be those objects what they may, can you suppose you will accomplish them the easier by holding me in the back-ground, or making me only an accident in the negotiation? Those with whom you confer will conclude from thence that you do not feel yourself very strong

upon those points, and that you politically keep me out of sight in the meantime to make your approach the easier.

There is one part in your letter that is equally as proper should be communicated to the Committee as to me, and which I conceive you are under some diplomatic obligation to do. It is that part which you conclude by saying that "*to the welfare of Thomas Paine the Americans are not and cannot be indifferent.*" As it is impossible the Americans can preserve their esteem for me and for my oppressors at the same time, the injustice to me strikes at the popular part of the Treaty of Alliance. If it be the wish of the Committee to reduce the treaty to a mere skeleton of Government forms, they are taking the right method to do it, and it is not improbable they will blame you afterwards for not in-forming them upon the subject. The disposition to retort has been so notorious here, that you ought to be guarded against it at all points.

You say in your letter that you doubt whether the gentleman who informed me of the language held by some Americans respecting my citizenship of America conveyed even his own ideas clearly upon the subject.(1) I know not how this may be, but I believe he told me the truth. I received a letter a few days ago from a friend and former comrade of mine in which he tells me, that all the Americans he converses with, say, that I should have been in liberty long ago if the Minister could have reclaimed me as an American citizen. When I compare this with the counter-declarations in your letter I can explain the case no otherwise than I have already done, that it is an apology to get rid of the shame and dishonour they feel at the imprisonment of an American citizen, and because they are not willing it should be supposed there is want of influence in the American Embassy. But they ought to see that this language is injurious to me.

On the 2d of this month Vendemaire I received a line from Mr. Beresford in which he tells me I shall be in liberty in two or three days, and that he has this from good authority. On the 12th I received a note from Mr. Labonadaire, written at the Bureau of the Concierge, in which he tells me of the interest you take in procuring my liberation, and that after the steps that had been already taken that I ought to write to the Convention to demand my liberty *purely and simply* as a citizen of the United States of America. He advised me to send the letter to him, and he would translate it. I sent the letter inclosing at the same time a letter to you. I have heard nothing since

of the letter to the Convention. On the 17th I received a letter from my former comrade Vanhuele, in which he says "I am just come from Mr. Russell who had yesterday a conversation with your Minister and your liberation is certain—you will be in liberty to-morrow." Vanhuele also adds, "I find the advice of Mr. Labonadaire good, for tho' you have some enemies in the Convention, the strongest and best part are in your favour." But the case is, and I felt it whilst I was writing the letter to the Convention, that there is an awkwardness in my appearing, you being present; for every foreigner should apply thro' his Minister, or rather his Minister for him.

1 The letter of Peter Whiteside, quoted at the beginning of the Memorial. See introduction to the Memorial. It would seem from this whole letter that it was not known by Americans in Paris that Monroe had been kept out of his office by Morris for nearly a month after his arrival in Paris.—Editor.

When I thus see day after day and month after month, and promise after promise, pass away without effect, what can I conclude but that either the Committees are secretly determined not to let me go, or that the measures you take are not pursued with the vigor necessary to give them effect; or that the American National character is without sufficient importance in the French Republic? The latter will be gratifying to the English Government. In short, Sir, the case is now arrived to that crisis, that for the sake of your own reputation as a Minister you ought to require a positive answer from the Committee. As to myself, it is more agreeable to me now to contemplate an honourable destruction, and to perish in the act of protesting against the injustice I suffer, and to caution the people of America against confiding too much in the Treaty of Alliance, violated as it has been in every principle, and in my imprisonment though an American Citizen, than remain in the wretched condition I am. I am no longer of any use to the world or to myself.

There was a time when I beheld the Revolution of the 10th. Thermidor [the fall of Robespierre] with enthusiasm. It was the first news my comrade Vanhuele communicated to me during my illness, and it contributed to my recovery. But there is still something rotten at the Center, and the Enemies that I have, though perhaps not numerous, are more active than my friends. If I form a wrong opinion of men or things it is to you I must look to set me right. You are in possession of the secret. I know nothing of it. But that I may be guarded against as many wants as possible I shall set about writing

a memorial to Congress, another to the State of Pennsylvania, and an address to the people of America; but it will be difficult for me to finish these until I know from yourself what applications you have made for my liberation, and what answers you have received.

Ah, Sir, you would have gotten a load of trouble and difficulties off your hands that I fear will multiply every day, had you made it a point to procure my liberty when you first arrived, and not left me floating on the promises of men whom you did not know. You were then a new character. You had come in consequence of their own request that Morris should be recalled; and had you then, before you opened any subject of negotiation that might arise into controversy, demanded my liberty either as a Civility or as a Right I see not how they could have refused it.

I have already said that after all the promises that have been made I am still in prison. I am in the dark upon all the matters that relate to myself. I know not if it be to the Convention, to the Committee of Public Safety, of General Surety, or to the deputies who come sometimes to the Luxembourg to examine and put persons in liberty, that applications have been made for my liberation. But be it to whom it may, my earnest and pressing request to you as Minister is that you will bring this matter to a conclusion by reclaiming me as an American citizen imprisoned in France under the plea of being a foreigner born in England; that I may know the result, and how to prepare the Memorials I have mentioned, should there be occasion for them. The right of determining who are American citizens can belong only to America. The Convention have declared I am not a French Citizen because she has declared me to be a foreigner, and have by that declaration cancelled and annulled the vote of the former assembly that conferred the Title of Citizen upon Citizens or subjects of other Countries. I should not be honest to you nor to myself were I not to express myself as I have done in this letter, and I confide and request you will accept it in that sense and in no other.

I am, with great respect, your suffering fellow-citizen,

Thomas Paine.

P. S.—If my imprisonment is to continue, and I indulge very little hope to the contrary, I shall be under the absolute necessity of applying to you for a supply of several articles. Every person here have their families or friends upon the spot who make provision for them. This is not the case with me; I

have no person I can apply to but the American Minister, and I can have no doubt that if events should prevent my repaying the expence Congress or the State of Pennsylvania will discharge it for me.

To day is 22 Vendemaire Monday October 13, but you will not receive this letter till the 14th. I will send the bearer to you again on the 15th, Wednesday, and I will be obliged to you to send me for the present, three or four candles, a little sugar of any kind, and some soap for shaving; and I should be glad at the same time to receive a line from you and a memorandum of the articles. Were I in your place I would order a Hogshead of Sugar, some boxes of Candles and Soap from America, for they will become still more scarce. Perhaps the best method for you to procure them at present is by applying to the American Consuls at Bordeaux and Havre, and have them up by the diligence.

3. [Undated.]

Dear Sir: As I have not yet received any answer to my last, I have amused myself with writing you the inclosed memoranda. Though you recommend patience to me I cannot but feel very pointedly the uncomfortableness of my situation, and among other reflections that occur to me I cannot think that America receives any credit from the long imprisonment that I suffer. It has the appearance of neglecting her citizens and her friends and of encouraging the insults of foreign nations upon them, and upon her commerce. My imprisonment is as well and perhaps more known in England than in France, and they (the English) will not be intimidated from molesting an American ship when they see that one of her best citizens (for I have a right to call myself so) can be imprisoned in another country at the mere discretion of a Committee, because he is a foreigner.

When you first arrived every body congratulated me that I should soon, if not immediately, be in liberty. Since that time about two hundred have been set free from this prison on the applications of their sections or of individuals—and I am continually hurt by the observations that are made—"that a section in Paris has more influence than America."

It is right that I furnish you with these circumstances. It is the effect of my anxiety that the character of America suffer no reproach; for the world knows that I have acted a generous duty by her. I am the third American that has been imprisoned. Griffiths nine weeks, Haskins about five, and myself eight [months] and yet in prison. With respect to the two former there was then no Minister, for I consider Morris as none; and they were liberated on the applications of the Americans in Paris. As to myself I had rather be publicly and honorably reclaimed, tho' the reclamation was refused, than remain in the uncertain situation that I am. Though my health has suffered my spirits are not broken. I have nothing to fear unless innocence and fortitude be crimes. America, whatever may be my fate, will have no cause to blush for me as a citizen; I hope I shall have none to blush for her as a country. If, my dear Sir, there is any-thing in the perplexity of ideas I have mistaken, only suppose yourself in my situation, and you will easily find an excuse for it. I need not say how much I shall rejoice to pay my respects to you without-side the walls of this prison, and to enquire after my American friends. But I know that nothing can be accomplished here but by unceasing perseverance and application. Yours affectionately.

4. October 20, 1794.

Dear Sir: I recd. your friendly letter of the 26 Vendemaire on the day it was written, and I thank you for communicating to me your opinion upon my case. Ideas serve to beget ideas, and as it is from a review of every thing that can be said upon a subject, or is any ways connected with it, that the best judgment can be formed how to proceed, I present you with such ideas as occur to me. I am sure of one thing, which is that you will give them a patient and attentive perusal.

You say in your letter that "I must be sensible that although I am an American citizen, yet if you interfere in my behalf as the Minister of my country you must demand my liberation only in case there be no charge against me; and that if there is I must be brought to trial previously, since no person in a *private* character can be exempt from the laws of the country in

which he resides."—This is what I have twice attempted to do. I wrote a letter on the 3d Sans Culottodi(1) to the Deputies, members of the Committee of Surety General, who came to the Luxembourg to examine the persons detained. The letter was as follows:—"Citizens Representatives: I offer myself for examination. Justice is due to every Man. It is Justice only that I ask.—Thomas Paine."

As I was not called for examination, nor heard anything in consequence of my letter the first time of sending it, I sent a duplicate of it a few days after. It was carried to them by my good friend and comrade Vanhuele, who was then going in liberty, having been examined the day before. Vanhuele wrote me on the next day and said: "Bourdon de l'Oise [who was one of the examining Deputies] is the most inveterate enemy you can have. The answer he gave me when I presented your letter put me in such a passion with him that I expected I should be sent back again to prison." I then wrote a third letter but had not an opportunity of sending it, as Bourdon did not come any more till after I received Mr. Labonadaire's letter advising me to write to the Convention. The letter was as follows:—"Citizens, I have twice offered myself for examination, and I chose to do this while Bourdon de l'Oise was one of the Commissioners.

1 Festival of Labour, September 19, 1794.—Editor..

This Deputy has said in the Convention that I intrigued with an ancient agent of the Bureau of Foreign Affairs. My examination therefore while he is present will give him an opportunity of proving his charge or of convincing himself of his error. If Bourdon de l'Oise is an honest man he will examine me, but lest he should not I subjoin the following. That which B[ourdon] calls an intrigue was at the request of a member of the former Committee of Salut Public, last August was a twelvemonth. I met the member on the Boulevard. He asked me something in French which I did not understand and we went together to the Bureau of Foreign Affairs which was near at hand. The Agent (Otto, whom you probably knew in America) served as interpreter, The member (it was Barhre) then asked me 1st, If I could furnish him with the plan of Constitution I had presented to the Committee of Constitution of which I was member with himself, because, he said, it contained several things which he wished had been adopted: 2dly, He asked me my opinion upon sending Commissioners to the United States of America: 3dly, If fifty or an hundred ship loads of flour could be

procured from America. As verbal interpretation was tedious, it was agreed that I should give him my opinion in writing, and that the Agent [Otto] should translate it, which he did. I answered the first question by sending him the plan [of a Constitution] which he still has. To the second, I replied that I thought it would be proper to send Commissioners, because that in Revolutions circumstances change so fast that it was often necessary to send a better supply of information to an Ally than could be communicated by writing; and that Congress had done the same thing during the American War; and I gave him some information that the Commissioners would find useful on their arrival. I answered the third question by sending him a list of American exports two years before, distinguishing the several articles by which he would see that the supply he mentioned could be obtained. I sent him also the plan of Paul Jones, giving it as his, for procuring salt-petre, which was to send a squadron (it did not require a large one) to take possession of the Island of St. Helen's, to keep the English flag flying at the port, that the English East India ships coming from the East Indies, and that ballast with salt-petre, might be induced to enter as usual; And that it would be a considerable time before the English Government could know of what had happened at St. Helen's. See here what Bourdon de l'Oise has called an intrigue.—If it was an intrigue it was between a Committee of Salut Public and myself, for the Agent was no more than the interpreter and translator, and the object of the intrigue was to furnish France with flour and salt-petre."—I suppose Bourdon had heard that the agent and I were seen together talking English, and this was enough for *him* to found his charge upon.(1)

You next say that "I must likewise be sensible that although I am an American citizen that it is likewise believed there [in America] that I am become a citizen of France, and that in consequence this latter character has so far [illegible] the former as to weaken if not destroy any claim you might have to interpose in my behalf." I am sorry I cannot add any new arguments to those I have already advanced on this part of the subject. But I cannot help asking myself, and I wish you would ask the Committee, if it could possibly be the intention of France to *kidnap* citizens from America under the pretence of dubbing them with the title of French citizens, and then, after inviting or rather enveigling them into France, make it a pretence for detaining them? If it was, (which I am sure it was not, tho' they now act as

if it was) the insult was to America, tho' the injury was to me, and the treachery was to both.

1 The communications of Paine to Barhre are given in my "Life of Paine," vol. ii-i PP. 73, 87. Otto was Secretary to the Minister of Foreign Affairs when he acted as interpreter between Paine and Barhre. There was never any charge at all made against Paine, as the Archives of France now prove, save that he was a "foreigner." Paine was of coarse ignorant of the conspiracy between Morris and Deforgues which had imprisoned him. Bourdon de l'Oise, one of the most cruel Jacobins and Terrorists, afterwards conspired with Pichegru to overthrow the Republic, and was with him banished (1797) to Sinamari, South America, where he died soon after his arrival.—Editor..

Did they mean to kidnap General Washington, Mr. Madison, and several other Americans whom they dubbed with the same title as well as me? Let any man look at the condition of France when I arrived in it,—invaded by Austrians and Prussians and declared to be in danger,—and then ask if any man who had a home and a country to go to, as I had in America, would have come amongst them from any other motive than of assisting them. If I could possibly have supposed them capable of treachery I certainly would not have trusted myself in their power. Instead therefore of your being unwilling or apprehensive of meeting the question of French citizenship, they ought to be ashamed of advancing it, and this will be the case unless you admit their arguments or objections too passively. It is a case on their part fit only for the continuations of Robespierre to set up. As to the name of French citizen, I never considered it in any other light, so far as regarded myself, than as a token of honorary respect. I never made them any promise nor took any oath of allegiance or of citizenship, nor bound myself by an act or means whatever to the performance of any thing. I acted altogether as a friend invited among them as I supposed on honorable terms. I did not come to join myself to a Government already formed, but to assist in forming one *de nouveau*, which was afterwards to be submitted to the people whether they would accept it or not, and this any foreigner might do. And strictly speaking there are no citizens before this is a government. They are all of the People. The Americans were not called citizens till after Government was established, and not even then until they had taken the oath of allegiance. This was the case in Pennsylvania. But be this French citizenship more or less, the Convention have swept it away by declaring me to be a foreigner, and imprisoning me as such; and this is a short answer

to all those who affect to say or to believe that I am French Citizen. A Citizen without Citizenship is a term non-descript.

After the two preceeding paragraphs you ask—"If it be my wish that you should embark in this controversy (meaning that of reclaiming me) and risque the consequences with respect to myself and the good understanding subsisting between the two countries, or, without relinquishing any point of right, and which might be insisted on in case of extremities, pursue according to your best judgment and with the light before you, the object of my liberation?"

As I believe from the apparent obstinacy of the Committees that circumstances will grow towards the extremity you mention, unless prevented beforehand, I will endeavour to throw into your hands all the lights I can upon the subject.

In the first place, reclamation may mean two distinct things. All the reclamations that are made by the sections in behalf of persons detained as *suspect* are made on the ground that the persons so detained are patriots, and the reclamation is good against the charge of "suspect" because it proves the contrary. But my situation includes another circumstance. I am imprisoned on the charge (if it can be called one) of being a foreigner born in England. You know that foreigner to be a citizen of the United States of America, and that he has been such since the 4th of July 1776, the political birthday of the United States, and of every American citizen, for before that period all were British subjects, and the States, then provinces, were British dominions.—Your reclamation of me therefore as a citizen of the United States (all other considerations apart) is good against the pretence for imprisoning me, or that pretence is equally good against every American citizen born in England, Ireland, Scotland, Germany, or Holland, and you know this description of men compose a very great part of the population of the three States of New York, New Jersey, and Pennsylvania, and make also a part of Congress, and of the State Legislatures.

Every politician ought to know, and every civilian does know, that the Law of Treaty of Alliance, and also that of Amity and Commerce knows no distinction of American Citizens on account of the place of their birth, but recognizes all to be Citizens whom the Constitution and laws of the United States of America recognize as such; and if I recollect rightly there is an article in the Treaty of Commerce particular to this point. The law therefore

which they have here, to put all persons in arrestation born in any of the Countries at war with France, is, when applied to Citizens of America born in England, Ireland, Scotland, Germany, or holland, a violation of the treaties of Alliance and of Commerce, because it assumes to make a distinction of Citizens which those Treaties and the Constitution of America know nothing of. This is a subject that officially comes under your cognizance as Minister, and it would be consistent that you expostulated with them upon the Case. That foolish old man Vadier, who was president of the Convention and of the Committee of Surety general when the Americans then in Paris went to the Bar of the Convention to reclaim me, gave them for answer that my being born in England was cause sufficient for imprisoning me. It happened that at least half those who went up with that address were in the same case with myself.

As to reclamations on the ground of Patriotism it is difficult to know what is to be understood by Patriotism here. There is not a vice, and scarcely a virtue, that has not as the fashion of the moment suited been called by the name of Patriotism. The wretches who composed the revolutionary tribunal of Nantz were the Patriots of that day and the criminals of this. The Jacobins called themselves Patriots of the first order, men up to the height of the circumstances, and they are now considered as an antidote to Patriotism. But if we give to Patriotism a fixed idea consistent with that of a Republic, it would signify a strict adherence to the principles of Moral Justice, to the equality of civil and political Rights, to the System of representative Government, and an opposition to every hereditary claim to govern; and of this species of Patriotism you know my character. But, Sir, there are men on the Committee who have changed their Party but not their principles. Their aim is to hold power as long as possible by preventing the establishment of a Constitution, and these men are and will be my Enemies, and seek to hold me in prison as long as they can. I am too good a Patriot for them. It is not improbable that they have heard of the strange language held by some Americans that I am not considered in America as an American citizen, and they may also have heard say, that you had no orders respecting me, and it is not improbable that they interpret that language and that silence into a connivance at my imprisonment. If they had not some ideas of this kind would they resist so long the civil efforts you make for my liberation, or would they attach so much importance to the imprisonment of an Individual as *to risque* (as you say to me) *the good*

understanding that exists between the two Countries? You also say that *it is impossible for any person to do more than you have done without adopting the other means*, meaning that of reclaiming me. How then can you account for the want of success after so many efforts, and such a length of time, upwards of ten weeks, without supposing that they fortify themselves in the interpretation I have just mentioned? I can admit that it was not necessary to give orders, and that it was difficult to give direct orders, for I much question if Morris had informed Congress or the President of the whole of the case, or had sent copies of my letters to him as I had desired him to do. You would find the case here when you came, and you could not fully understand it till you did come, and as Minister you would have authority to act upon it. But as you inform me that you know what the wishes of the President are, you will see also that his reputation is exposed to some risque, admitting there to be ground for the supposition I have made. It will not add to his popularity to have it believed in America, as I am inclined to think the Committee believe here, that he connives at my imprisonment. You say also that *it is known to everybody that you wish my liberation*. It is, Sir, because they know your wishes that they misinterpret the means you use. They suppose that those mild means arise from a restriction that you cannot use others, or from a consciousness of some defect on my part of which you are unwilling to provoke the enquiry.

But as you ask me if it be my wish that you should embark in this controversy and risque the consequences with respect to myself, I will answer this part of the question by marking out precisely the part I wish you to take. What I mean is a sort of middle line above what you have yet gone, and not up to the full extremity of the case, which will still lie in reserve. It is to write a letter to the Committee that shall in the first place defeat by anticipation all the objections they might make to a simple reclamation, and at the same time make the ground good for that object. But, instead of sending the letter immediately, to invite some of the Committee to your house and to make that invitation the opportunity of shewing them the letter, expressing at the same time a wish that you had done this, from a hope that the business might be settled in an amicable manner without your being forced into an official interference, that would excite the observations of the Enemies of both Countries, and probably interrupt the harmony that subsisted between the two republics. But as I can not convey the ideas I wish you to use by any means so concisely or so well as to suppose myself

the writer of the letter I shall adopt this method and you will make use of such parts or such ideas of it as you please if you approve the plan. Here follows the supposed letter:

Citizens: When I first arrived amongst you as Minister from the United States of America I was given to understand that the liberation of Thomas Paine would take place without any official interference on my part. This was the more agreeable to me as it would not only supercede the necessity of that interference, but would leave to yourselves the whole opportunity of doing justice to a man who as far as I have been able to learn has suffered much cruel treatment under what you have denominated the system of Terror. But as I find my expectations have not been fulfilled I am under the official necessity of being more explicit upon the subject than I have hitherto been.

Permit me, in the first place, to observe that as it is impossible for me to suppose that it could have been the intention of France to seduce any citizens of America from their allegiance to their proper country by offering them the title of French citizen, so must I be compelled to believe, that the title of French citizen conferred on Thomas Paine was intended only as a mark of honorary respect towards a man who had so eminently distinguished himself in defence of liberty, and on no occasion more so than in promoting and defending your own revolution. For a proof of this I refer you to his two works entitled *Rights of Man*. Those works have procured to him an addition of esteem in America, and I am sorry they have been so ill rewarded in France. But be this title of French Citizen more or less, it is now entirely swept away by the vote of the Convention which declares him to be a foreigner, and which supercedes the vote of the Assembly that conferred that title upon him, consequently upon the case superceded with it.

In consequence of this vote of the Convention declaring him to be a foreigner the former Committees have imprisoned him. It is therefore become my official duty to declare to you that the foreigner thus imprisoned is a citizen of the United States of America as fully, as legally, as constitutionally as myself, and that he is moreover one of the principal founders of the American Republic.

I have been informed of a law or decree of the Convention which subjects foreigners born in any of the countries at war with France to

arrestation and imprisonment. This law when applied to citizens of America born in England is an infraction of the Treaty of Alliance and of Amity and Commerce, which knows no distinction of American citizens on account of the place of their birth, but recognizes all to be citizens whom the Constitution and laws of America recognize as such. The circumstances under which America has been peopled requires this guard on her Treaties, because the mass of her citizens are composed not of natives only but also of the natives of almost all the countries of Europe who have sought an asylum there from the persecutions they experienced in their own countries. After this intimation you will without doubt see the propriety of modelling that law to the principles of the Treaty, because the law of Treaty in cases where it applies is the governing law to both parties alike, and it cannot be infringed without hazarding the existence of the Treaty.

Of the Patriotism of Thomas Paine I can speak fully, if we agree to give to patriotism a fixed idea consistent with that of a republic. It would then signify a strict adherence to Moral Justice, to the equality of civil and political rights, to the system of representative government, and an opposition to all hereditary claims to govern. Admitting patriotism to consist in these principles, I know of no man who has gone beyond Thomas Paine in promulgating and defending them, and that for almost twenty years past.

I have now spoken to you on the principal matters concerned in the case of Thomas Paine. The title of French citizen which you had enforced upon him, you have since taken away by declaring him to be a foreigner, and consequently this part of the subject ceases of itself. I have declared to you that this foreigner is a citizen of the United States of America, and have assured you of his patriotism.

I cannot help at the same time repeating to you my wish that his liberation had taken place without my being obliged to go thus far into the subject, because it is the mutual interest of both republics to avoid as much as possible all subjects of controversy, especially those from which no possible good can flow. I still hope that you will save me the unpleasant task of proceeding any farther by sending me an order for his liberation, which the injured state of his health absolutely requires. I shall be happy to receive such an order from you and happy in presenting it to him, for to the welfare of Thomas Paine the Americans are not and cannot be indifferent.

This is the sort of letter I wish you to write, for I have no idea that you will succeed by any measures that can, by any kind of construction, be interpreted into a want of confidence or an apprehension of consequences. It is themselves that ought to be apprehensive of consequences if any are to be apprehended. They, I mean the Committees, are not certain that the Convention or the nation would support them in forcing any question to extremity that might interrupt the good understanding subsisting between the two countries; and I know of no question [so likely] to do this as that which involves the rights and liberty of a citizen.

You will please to observe that I have put the case of French citizenship in a point of view that ought not only to preclude, but to make them ashamed to advance any thing upon this subject; and this is better than to have to answer their counter-reclamation afterwards. Either the Citizenship was intended as a token of honorary respect, or it was intended to deprive America of a citizen or to seduce him from his allegiance to his proper country. If it was intended as an honour they must act consistently with the principle of honour. But if they make a pretence for detaining me, they convict themselves of the act of seduction. Had America singled out any particular French citizen, complimented him with the title of Citizen of America, which he without suspecting any fraudulent intention might accept, and then after having invited or rather inveigled him into America made his acceptance of that Title a pretence for seducing or forcing him from his allegiance to France, would not France have just cause to be offended at America? And ought not America to have the same right to be offended at France? And will the Committees take upon themselves to answer for the dishonour they bring upon the National Character of their Country? If these arguments are stated beforehand they will prevent the Committees going into the subject of French Citizenship. They must be ashamed of it. But after all the case comes to this, that this French Citizenship appertains no longer to me because the Convention, as I have already said, have swept it away by declaring me to be foreigner, and it is not in the power of the Committees to reverse it. But if I am to be citizen and foreigner, and citizen again, just when and how and for any purpose they please, they take the Government of America into their own hands and make her only a Cypher in their system.

Though these ideas have been long with me they have been more particularly matured by reading your last Communication, and I have many

reasons to wish you had opened that Communication sooner. I am best acquainted with the persons you have to deal with and the circumstances of my own case. If you chuse to adopt the letter as it is, I send you a translation for the sake of expediting the business. I have endeavoured to conceive your own manner of expression as well as I could, and the civility of language you would use, but the matter of the letter is essential to me.

If you chuse to confer with some of the members of the Committee at your own house on the subject of the letter it may render the sending it unnecessary; but in either case I must request and press you not to give away to evasion and delay, and that you will fix positively with them that they shall give you an answer in three or four days whether they will liberate me on the representation you have made in the letter, or whether you must be forced to go further into the subject. The state of my health will not admit of delay, and besides the tortured state of my mind wears me down. If they talk of bringing me to trial (and I well know there is no accusation against me and that they can bring none) I certainly summons you as an Evidence to my Character. This you may mention to them either as what I intend to do or what you intend to do voluntarily for me.

I am anxious that you undertake this business without losing time, because if I am not liberated in the course of this decade, I intend, if in case the seventy-one detained deputies are liberated, to follow the same track that they have done, and publish my own case myself.⁽¹⁾ I cannot rest any longer in this state of miserable suspense, be the consequences what they may.

Thomas Paine.

1 Those deputies, imprisoned for having protested against the overthrow of the Girondin government, May 31, 1793, when the Convention was invaded and overawed by the armed communes of Paris. These deputies were liberated and recalled to the Convention, December 8, 1794. Paine was invited to resume his seat the day before, by a special act of the Convention, after an eloquent speech by Thibaudeau.—Editor..

Dear Sir: I need not mention to you the happiness I received from the information you sent me by Mr. Beresford. I easily guess the persons you have conversed with on the subject of my liberation—but matters and even promises that pass in conversation are not quite so strictly attended to here as in the Country you come from. I am not, my Dear Sir, impatient from

any thing in my disposition, but the state of my health requires liberty and a better air; and besides this, the rules of the prison do not permit me, though I have all the indulgences the Concierge can give, to procure the things necessary to my recovery, which is slow as to strength. I have a tolerable appetite but the allowance of provision is scanty. We are not allowed a knife to cut our victuals with, nor a razor to shave; but they have lately allowed some barbers that are here to shave. The room where I am lodged is a ground floor level with the earth in the garden and floored with brick, and is so wet after every rain that I cannot guard against taking colds that continually cheat my recovery. If you could, without interfering with or deranging the mode proposed for my liberation, inform the Committee that the state of my health requires liberty and air, it would be good ground to hasten my liberation. The length of my imprisonment is also a reason, for I am now almost the oldest inhabitant of this uncomfortable mansion, and I see twenty, thirty and sometimes forty persons a day put in liberty who have not been so long confined as myself. Their liberation is a happiness to me; but I feel sometimes, a little mortification that I am thus left behind. I leave it entirely to you to arrange this matter. The messenger waits. Your's affectionately,

T. P.

I hope and wish much to see you. I have much to say. I have had the attendance of Dr. Graham (Physician to Genl. O'Hara, who is prisoner here) and of Dr. Makouski, house physician, who has been most exceedingly kind to me. After I am at liberty I shall be glad to introduce him to you.

1 This letter, written in a feeble handwriting, is not dated, but Monroe's endorsement, "2d. Luxembourg," indicates November 2, two days before Paine's liberation.—Editor..

XXII. LETTER TO GEORGE WASHINGTON.

Paris, July 30, 1796.

As censure is but awkwardly softened by apology. I shall offer you no apology for this letter. The eventful crisis to which your double politics have conducted the affairs of your country, requires an investigation uncramped by ceremony.

There was a time when the fame of America, moral and political, stood fair and high in the world. The lustre of her revolution extended itself to every individual; and to be a citizen of America gave a title to respect in Europe. Neither meanness nor ingratitude had been mingled in the composition of her character. Her resistance to the attempted tyranny of England left her unsuspected of the one, and her open acknowledgment of the aid she received from France precluded all suspicion of the other. The Washington of politics had not then appeared.

At the time I left America (April 1787) the Continental Convention, that formed the federal Constitution was on the point of meeting. Since that time new schemes of politics, and new distinctions of parties, have arisen. The term *Antifederalist* has been applied to all those who combated the defects of that constitution, or opposed the measures of your administration. It was only to the absolute necessity of establishing some federal authority, extending equally over all the States, that an instrument so inconsistent as the present federal Constitution is, obtained a suffrage. I would have voted for it myself, had I been in America, or even for a worse, rather than have had none, provided it contained the means of remedying its defects by the same appeal to the people by which it was to be established. It is always better policy to leave removeable errors to expose themselves, than to hazard too much in contending against them theoretically. I have introduced these observations, not only to mark the general difference between Antifederalist and Anti-constitutionalist, but to preclude the effect, and even the application, of the former of these terms to myself. I declare myself opposed to several matters in the Constitution, particularly to the manner in which what is called the Executive is formed, and to the long duration of

the Senate; and if I live to return to America, I will use all my endeavours to have them altered.(*) I also declare myself opposed to almost the whole of your administration; for I know it to have been deceitful, if not perfidious, as I shall shew in the course of this letter. But as to the point of consolidating the States into a Federal Government, it so happens, that the proposition for that purpose came originally from myself. I proposed it in a letter to Chancellor Livingston in the spring of 1782, while that gentleman was Minister for Foreign Affairs. The five per cent, duty recommended by Congress had then fallen through, having been adopted by some of the States, altered by others, rejected by Rhode Island, and repealed by Virginia after it had been consented to. The proposal in the letter I allude to, was to get over the whole difficulty at once, by annexing a continental legislative body to Congress; for in order to have any law of the Union uniform, the case could only be, that either Congress, as it then stood, must frame the law, and the States severally adopt it without alteration, or the States must erect a Continental Legislature for the purpose. Chancellor Livingston, Robert Morris, Gouverneur Morris, and myself, had a meeting at the house of Robert Morris on the subject of that letter. There was no diversity of opinion on the proposition for a Continental Legislature: the only difficulty was on the manner of bringing the proposition forward. For my own part, as I considered it as a remedy in reserve, that could be applied at any time *when the States saw themselves wrong enough to be put right*, (which did not appear to be the case at that time) I did not see the propriety of urging it precipitately, and declined being the publisher of it myself. After this account of a fact, the leaders of your party will scarcely have the hardiness to apply to me the term of Antifederalist. But I can go to a date and to a fact beyond this; for the proposition for electing a continental convention to form the Continental Government is one of the subjects treated of in the pamphlet *Common Sense*.(1)

** I have always been opposed to the mode of refining Government up to an individual, or what is called a single Executive. Such a man will always be the chief of a party. A plurality is far better: It combines the mass of a nation better together: And besides this, it is necessary to the manly mind of a republic that it loses the debasing idea of obeying an individual.—Author.*

1 See vol. i. of this work, pp. 97, 98, 109, no.—Editor..

Having thus cleared away a little of the rubbish that might otherwise have lain in my way, I return to the point of time at which the present Federal Constitution and your administration began. It was very well said by an anonymous writer in Philadelphia, about a year before that period, that "*thirteen staves and ne'er a hoop will not make a barrel*" and as any kind of hooping the barrel, however defectively executed, would be better than none, it was scarcely possible but that considerable advantages must arise from the federal hooping of the States. It was with pleasure that every sincere friend of America beheld, as the natural effect of union, her rising prosperity; and it was with grief they saw that prosperity mixed, even in the blossom, with the germ of corruption. Monopolies of every kind marked your administration almost in the moment of its commencement. The lands obtained by the revolution were lavished upon partisans; the interest of the disbanded soldier was sold to the speculator; injustice was acted under the pretence of faith; and the chief of the army became the patron of the fraud. (2) From such a beginning what else could be expected, than what has happened? A mean and servile submission to the insults of one nation; treachery and ingratitude to another.

2 The history of the Scioto Company, by which so many Frenchmen as well as Americans were ruined, warranted an even stronger statement. Though Washington did not know what was going on, he cannot be acquitted of a lack of due precaution in patronizing leading agents of these speculations, and introducing them in France.—Editor.

Some vices make their approach with such a splendid appearance, that we scarcely know to what class of moral distinctions they belong. They are rather virtues corrupted than vices, originally. But meanness and ingratitude have nothing equivocal in their character. There is not a trait in them that renders them doubtful. They are so originally vice, that they are generated in the dung of other vices, and crawl into existence with the filth upon their back. The fugitives have found protection in you, and the levee-room is their place of rendezvous.

As the Federal Constitution is a copy, though not quite so base as the original, of the form of the British Government, an imitation of its vices was naturally to be expected. So intimate is the connection between *form and practice*, that to adopt the one is to invite the other. Imitation is naturally progressive, and is rapidly so in matters that are vicious.

Soon after the Federal Constitution arrived in England, I received a letter from a female literary correspondent (a native of New York) very well mixed with friendship, sentiment, and politics. In my answer to that letter, I permitted myself to ramble into the wilderness of imagination, and to anticipate what might hereafter be the condition of America. I had no idea that the picture I then drew was realizing so fast, and still less that Mr. Washington was hurrying it on. As the extract I allude to is congenial with the subject I am upon, I here transcribe it:

[The extract is the same as that given in a footnote, in the Memorial to Monroe, p. 180.]

Impressed, as I was, with apprehensions of this kind, I had America constantly in my mind in all the publications I afterwards made. The First, and still more the Second, Part of the Rights of Man, bear evident marks of this watchfulness; and the Dissertation on First Principles of Government [XXIV.] goes more directly to the point than either of the former. I now pass on to other subjects.

It will be supposed by those into whose hands this letter may fall, that I have some personal resentment against you; I will therefore settle this point before I proceed further.

If I have any resentment, you must acknowledge that I have not been hasty in declaring it; neither would it now be declared (for what are private resentments to the public) if the cause of it did not unite itself as well with your public as with your private character, and with the motives of your political conduct.

The part I acted in the American revolution is well known; I shall not here repeat it. I know also that had it not been for the aid received from France, in men, money and ships, that your cold and unmilitary conduct (as I shall shew in the course of this letter) would in all probability have lost America; at least she would not have been the independent nation she now is. You slept away your time in the field, till the finances of the country were completely exhausted, and you have but little share in the glory of the final event. It is time, sir, to speak the undisguised language of historical truth.

Elevated to the chair of the Presidency, you assumed the merit of every thing to yourself, and the natural ingratitude of your constitution began to

appear. You commenced your Presidential career by encouraging and swallowing the grossest adulation, and you travelled America from one end to the other to put yourself in the way of receiving it. You have as many addresses in your chest as James the II. As to what were your views, for if you are not great enough to have ambition you are little enough to have vanity, they cannot be directly inferred from expressions of your own; but the partizans of your politics have divulged the secret.

John Adams has said, (and John it is known was always a speller after places and offices, and never thought his little services were highly enough paid,)—John has said, that as Mr. Washington had no child, the Presidency should be made hereditary in the family of Lund Washington. John might then have counted upon some sinecure himself, and a provision for his descendants. He did not go so far as to say, also, that the Vice-Presidency should be hereditary in the family of John Adams. He prudently left that to stand on the ground that one good turn deserves another.(*)

John Adams is one of those men who never contemplated the origin of government, or comprehended any thing of first principles. If he had, he might have seen, that the right to set up and establish hereditary government, never did, and never can, exist in any generation at any time whatever; that it is of the nature of treason; because it is an attempt to take away the rights of all the minors living at that time, and of all succeeding generations. It is of a degree beyond common treason. It is a sin against nature. The equal right of every generation is a right fixed in the nature of things. It belongs to the son when of age, as it belonged to the father before him. John Adams would himself deny the right that any former deceased generation could have to decree authoritatively a succession of governors over him, or over his children; and yet he assumes the pretended right, treasonable as it is, of acting it himself. His ignorance is his best excuse.

John Jay has said,(**) (and this John was always the sycophant of every thing in power, from Mr. Girard in America, to Grenville in England,)—John Jay has said, that the Senate should have been appointed for life. He would then have been sure of never wanting a lucrative appointment for himself, and have had no fears about impeachment. These are the disguised traitors that call themselves Federalists(**)

Could I have known to what degree of corruption and perfidy the administrative part of the government of America had descended, I could

have been at no loss to have understood the reservedness of Mr. Washington towards me, during my imprisonment in the Luxembourg. There are cases in which silence is a loud language. I will here explain the cause of that imprisonment, and return to Mr. Washington afterwards.

** Two persons to whom John Adams said this, told me of it. The secretary of Mr. Jay was present when it was told to me.—Author.*

*** If Mr. John Jay desires to know on what authority I say this, I will give that authority publicly when he chooses to call for it—Author.*

In the course of that rage, terror and suspicion, which the brutal letter of the Duke of Brunswick first started into existence in France, it happened that almost every man who was opposed to violence, or who was not violent himself, became suspected. I had constantly been opposed to every thing which was of the nature or of the appearance of violence; but as I had always done it in a manner that shewed it to be a principle founded in my heart, and not a political manouvre, it precluded the pretence of accusing me. I was reached, however, under another pretence.

A decree was passed to imprison all persons born in England; but as I was a member of the Convention, and had been complimented with the honorary style of Citizen of France, as Mr. Washington and some other Americans had been, this decree fell short of reaching me. A motion was afterwards made and carried, supported chiefly by Bourdon de l'Oise, for expelling foreigners from the Convention. My expulsion being thus effected, the two committees of Public Safety and of General Surety, of which Robespierre was the dictator, put me in arrestation under the former decree for imprisoning persons born in England. Having thus shewn under what pretence the imprisonment was effected, I come to speak of such parts of the case as apply between me and Mr. Washington, either as a President or as an individual.

I have always considered that a foreigner, such as I was in fact, with respect to France, might be a member of a Convention for framing a Constitution, without affecting his right of citizenship in the country to which he belongs, but not a member of a government after a Constitution is formed; and I have uniformly acted upon this distinction; To be a member of a government requires that a person be in allegiance to that government and to the country locally. But a Constitution, being a thing of principle,

and not of action, and which, after it is formed, is to be referred to the people for their approbation or rejection, does not require allegiance in the persons forming and proposing it; and besides this, it is only to the thing after it be formed and established, and to the country after its governmental character is fixed by the adoption of a constitution, that the allegiance can be given. No oath of allegiance or of citizenship was required of the members who composed the Convention: there was nothing existing in form to swear allegiance to. If any such condition had been required, I could not, as Citizen of America in fact, though Citizen of France by compliment, have accepted a seat in the Convention.

As my citizenship in America was not altered or diminished by any thing I had done in Europe, (on the contrary, it ought to be considered as strengthened, for it was the American principle of government that I was endeavouring to spread in Europe,) and as it is the duty of every government to charge itself with the care of any of its citizens who may happen to fall under an arbitrary persecution abroad, and is also one of the reasons for which ambassadors or ministers are appointed,—it was the duty of the Executive department in America, to have made (at least) some enquiries about me, as soon as it heard of my imprisonment. But if this had not been the case, that government owed it to me on every ground and principle of honour and gratitude. Mr. Washington owed it to me on every score of private acquaintance, I will not now say, friendship; for it has some time been known by those who know him, that he has no friendships; that he is incapable of forming any; he can serve or desert a man, or a cause, with constitutional indifference; and it is this cold hermaphrodite faculty that imposed itself upon the world, and was credited for a while by enemies as by friends, for prudence, moderation and impartiality.(1)

1 "L'on pent dire qu'il [Washington] jouit de tous les avantages possibles a l'exception des douceurs de l'amitii."—Louis Otto, *Chargi d'Affaires* (at New York) to his government, 13 June, 1790. *French Archives*, vol. 35, No. 32.—Editor.

Soon after I was put into arrestation, and imprisoned in the Luxembourg, the Americans who were then in Paris went in a body to the bar of the Convention to reclaim me. They were answered by the then President Vadier, who has since absconded, that *I was born in England*, and it was signified to them, by some of the Committee of *General Surety*, to whom

they were referred (I have been told it was Billaud Varennes,) that their reclamation of me was only the act of individuals, without any authority from the American government.

A few days after this, all communications from persons imprisoned to any person without the prison was cut off by an order of the Police. I neither saw, nor heard from, any body for six months; and the only hope that remained to me was, that a new Minister would arrive from America to supercede Morris, and that he would be authorized to enquire into the cause of my imprisonment. But even this hope, in the state to which matters were daily arriving, was too remote to have any consolatory effect, and I contented myself with the thought, that I might be remembered when it would be too late. There is perhaps no condition from which a man conscious of his own uprightness cannot derive consolation; for it is in itself a consolation for him to find, that he can bear that condition with calmness and fortitude.

From about the middle of March (1794) to the fall of Robespierre July 29, (9th of Thermidor,) the state of things in the prisons was a continued scene of horror. No man could count upon life for twenty-four hours. To such a pitch of rage and suspicion were Robespierre and his Committee arrived, that it seemed as if they feared to leave a man living. Scarcely a night passed in which ten, twenty, thirty, forty, fifty, or more, were not taken out of the prison, carried before a pretended tribunal in the morning, and guillotined before night. One hundred and sixty-nine were taken out of the Luxembourg one night, in the month of July, and one hundred and sixty of them guillotined. A list of two hundred more, according to the report in the prison, was preparing a few days before Robespierre fell. In this last list I have good reason to believe I was included. A memorandum in the handwriting of Robespierre was afterwards produced in the Convention, by the committee to whom the papers of Robespierre were referred, in these words:

*"Demander que Thomas
"Payne soit dicriti d'ac-
"cusation pour les inti-
"rttsde l'Amirique, autant
"que de la France."*

*"I Demand that Thomas Paine
be decreed of accusation
for the interests of America
as well as of France."*

1 In reading this the Committee added, "Why Thomas Payne more than another? Because He helped to establish the liberty of both worlds."—Editor.

I had then been imprisoned seven months, and the silence of the Executive part of the government of America (Mr. Washington) upon the case, and upon every thing respecting me, was explanation enough to Robespierre that he might proceed to extremities.

A violent fever which had nearly terminated my existence, was, I believe, the circumstance that preserved it. I was not in a condition to be removed, or to know of what was passing, or of what had passed, for more than a month. It makes a blank in my remembrance of life. The first thing I was informed of was the fall of Robespierre.

About a week after this, Mr. Monroe arrived to supercede Gouverneur Morris, and as soon as I was able to write a note legible enough to be read, I found a way to convey one to him by means of the man who lighted the lamps in the prison; and whose unabated friendship to me, from whom he had never received any service, and with difficulty accepted any recompense, puts the character of Mr. Washington to shame.

In a few days I received a message from Mr. Monroe, conveyed to me in a note from an intermediate person, with assurance of his friendship, and expressing a desire that I would rest the case in his hands. After a fortnight or more had passed, and hearing nothing farther, I wrote to a friend who was then in Paris, a citizen of Philadelphia, requesting him to inform me what was the true situation of things with respect to me. I was sure that something was the matter; I began to have hard thoughts of Mr. Washington, but I was unwilling to encourage them.

In about ten days, I received an answer to my letter, in which the writer says, "Mr. Monroe has told me that he has no order [meaning from the President, Mr. Washington] respecting you, but that he (Mr. Monroe) will do every thing in his power to liberate you; but, from what I learn from the Americans lately arrived in Paris, you are not considered, either by the American government, or by the individuals, as an American citizen."

I was now at no loss to understand Mr. Washington and his new fangled faction, and that their policy was silently to leave me to fall in France. They were rushing as fast as they could venture, without awakening the jealousy of America, into all the vices and corruptions of the British government; and it was no more consistent with the policy of Mr. Washington, and those who immediately surrounded him, than it was with that of Robespierre or of

Pitt, that I should survive. They have, however, missed the mark, and the reaction is upon themselves.

Upon the receipt of the letter just alluded to, I sent a memorial to Mr. Monroe, which the reader will find in the appendix, and I received from him the following answer.(1) It is dated the 18th of September, but did not come to hand till about the 4th of October. I was then falling into a relapse, the weather was becoming damp and cold, fuel was not to be had, and the abscess in my side, the consequence of these things, and of the want of air and exercise, was beginning to form, and which has continued immovable ever since. Here follows Mr. Monroe's letter.

*1 The appendix consisted of an abridgment of the Memorial, which forms the preceding chapter (XXI.) in this volume.—
Editor..*

Paris, September 18th, 1794. "Dear Sir,

"I was favoured soon after my arrival here with several letters from you, and more latterly with one in the character of memorial upon the subject of your confinement; and should have answered them at the times they were respectively written had I not concluded you would have calculated with certainty upon the deep interest I take in your welfare, and the pleasure with which I shall embrace every opportunity in my power to serve you. I should still pursue the same course, and for reasons which must obviously occur, if I did not find that you are disquieted with apprehensions upon interesting points, and which justice to you and our country equally forbid you should entertain. You mention that you have been informed you are not considered as an American citizen by the Americans, and that you have likewise heard that I had no instructions respecting you by the government. I doubt not the person who gave you the information meant well, but I suspect he did not even convey accurately his own ideas on the first point: for I presume the most he could say is, that you had likewise become a French citizen, and which by no means deprived you of being an American one. Even this, however, may be doubted, I mean the acquisition of citizenship in France, and I confess you have said much to show that it has not been made. I really suspect that this was all that the gentleman who wrote to you, and those Americans he heard speak upon the subject meant. It becomes my duty, however, to declare to you, that I consider you as an American citizen, and that you are considered universally in that character by the people of

America. As such you are entitled to my attention; and so far as it can be given consistently with those obligations which are mutual between every government and even a transient passenger, you shall receive it.

"The Congress have never decided upon the subject of citizenship in a manner to regard the present case. By being with us through the revolution you are of our country as absolutely as if you had been born there, and you are no more of England, than every native American is. This is the true doctrine in the present case, so far as it becomes complicated with any other consideration. I have mentioned it to make you easy upon the only point which could give you any disquietude.

"Is it necessary for me to tell you how much all your countrymen, I speak of the great mass of the people, are interested in your welfare? They have not forgotten the history of their own revolution and the difficult scenes through which they passed; nor do they review its several stages without reviving in their bosoms a due sensibility of the merits of those who served them in that great and arduous conflict. The crime of ingratitude has not yet stained, and I trust never will stain, our national character. You are considered by them as not only having rendered important service in our own revolution, but as being, on a more extensive scale, the friend of human rights, and a distinguished and able advocate in favour of public liberty. To the welfare of Thomas Paine, the Americans are not, nor can they be, indifferent.

"Of the sense which the President has always entertained of your merits, and of his friendly disposition towards you, you are too well assured to require any declaration of it from me. That I forward his wishes in seeking your safety is what I well know, and this will form an additional obligation on me to perform what I should otherwise consider as a duty.

"You are, in my opinion, at present menaced by no kind of danger. To liberate you, will be an object of my endeavours, and as soon as possible. But you must, until that event shall be accomplished, bear your situation with patience and fortitude. You will likewise have the justice to recollect, that I am placed here upon a difficult theatre* many important objects to attend to, with few to consult It becomes me in pursuit of those to regulate my conduct in respect to each, as to the manner and the time, as will, in my judgment, be best calculated to accomplish the whole.

"With great esteem and respect consider me personally your friend,

"James Monroe."

The part in Mr. Monroe's letter, in which he speaks of the President, (Mr. Washington,) is put in soft language. Mr. Monroe knew what Mr. Washington had said formerly, and he was willing to keep that in view. But the fact is, not only that Mr. Washington had given no orders to Mr. Monroe, as the letter [of Whiteside] stated, but he did not so much as say to him, enquire if Mr. Paine be dead or alive, in prison or out, or see if there be any assistance we can give him.

This I presume alludes to the embarrassments which the strange conduct of Gouverneur Morris had occasioned, and which, I well know, had created suspicions of the sincerity of Mr. Washington.—Author. voi. m—ij

While these matters were passing, the liberations from the prisons were numerous; from twenty to forty in the course of almost every twenty-four hours. The continuance of my imprisonment after a new Minister had arrived immediately from America, which was now more than two months, was a matter so obviously strange, that I found the character of the American government spoken of in very unqualified terms of reproach; not only by those who still remained in prison, but by those who were liberated, and by persons who had access to the prison from without. Under these circumstances I wrote again to Mr. Monroe, and found occasion, among other things, to say: "It will not add to the popularity of Mr. Washington to have it believed in America, as it is believed here, that he connives at my imprisonment."

The case, so far as it respected Mr. Monroe, was, that having to get over the difficulties, which the strange conduct of Gouverneur Morris had thrown in the way of a successor, and having no authority from the American government to speak officially upon any thing relating to me, he found himself obliged to proceed by unofficial means with individual members; for though Robespierre was overthrown, the Robespierrian members of the Committee of Public Safety still remained in considerable force, and had they found out that Mr. Monroe had no official authority upon the case, they would have paid little or no regard to his reclamation of me. In the mean time my health was suffering exceedingly, the dreary prospect of winter was coming on, and imprisonment was still a thing of danger. After the Robespierrian members of the Committee were removed by the expiration of their time of serving, Mr. Monroe reclaimed me, and I

was liberated the 4th of November. Mr. Monroe arrived in Paris the beginning of August before. All that period of my imprisonment, at least, I owe not to Robespierre, but to his colleague in projects, George Washington. Immediately upon my liberation, Mr. Monroe invited me to his house, where I remained more than a year and a half; and I speak of his aid and friendship, as an open-hearted man will always do in such a case, with respect and gratitude.

Soon after my liberation, the Convention passed an unanimous vote, to invite me to return to my seat among them. The times were still unsettled and dangerous, as well from without as within, for the coalition was unbroken, and the constitution not settled. I chose, however, to accept the invitation: for as I undertake nothing but what I believe to be right, I abandon nothing that I undertake; and I was willing also to shew, that, as I was not of a cast of mind to be deterred by prospects or retrospects of danger, so neither were my principles to be weakened by misfortune or perverted by disgust.

Being now once more abroad in the world, I began to find that I was not the only one who had conceived an unfavourable opinion of Mr. Washington; it was evident that his character was on the decline as well among Americans as among foreigners of different nations. From being the chief of the government, he had made himself the chief of a party; and his integrity was questioned, for his politics had a doubtful appearance. The mission of Mr. Jay to London, notwithstanding there was an American Minister there already, had then taken place, and was beginning to be talked of. It appeared to others, as it did to me, to be enveloped in mystery, which every day served either to increase or to explain into matter of suspicion.

In the year 1790, or about that time, Mr. Washington, as President, had sent Gouverneur Morris to London, as his secret agent to have some communication with the British Ministry. To cover the agency of Morris it was given out, I know not by whom, that he went as an agent from Robert Morris to borrow money in Europe, and the report was permitted to pass uncontradicted. The event of Morris's negotiation was, that Mr. Hammond was sent Minister from England to America, Pinckney from America to England, and himself Minister to France. If, while Morris was Minister in France, he was not a emissary of the British Ministry and the coalesced powers, he gave strong reasons to suspect him of it. No one who saw his

conduct, and heard his conversation, could doubt his being in their interest; and had he not got off the time he did, after his recall, he would have been in arrestation. Some letters of his had fallen into the hands of the Committee of Public Safety, and enquiry was making after him.

A great bustle had been made by Mr. Washington about the conduct of Genet in America, while that of his own Minister, Morris, in France, was infinitely more reproachable. If Genet was imprudent or rash, he was not treacherous; but Morris was all three. He was the enemy of the French revolution, in every stage of it. But notwithstanding this conduct on the part of Morris, and the known profligacy of his character, Mr. Washington in a letter he wrote to him at the time of recalling him on the complaint and request of the Committee of Public Safety, assures him, that though he had complied with that request, he still retained the same esteem and friendship for him as before. This letter Morris was foolish enough to tell of; and, as his own character and conduct were notorious, the telling of it could have but one effect, which was that of implicating the character of the writer.⁽¹⁾ Morris still loiters in Europe, chiefly in England; and Mr. Washington is still in correspondence with him. Mr. Washington ought, therefore, to expect, especially since his conduct in the affairs of Jay's treaty, that France must consider Morris and Washington as men of the same description. The chief difference, however, between the two is, (for in politics there is none,) that the one is profligate enough to profess an indifference about *moral* principles, and the other is prudent enough to conceal the want of them.

1 Washington wrote to Morris, June 19, 1794, "my confidence in and friendship for you remain undiminished." It was not "foolish" but sagacious to show this one sentence, without which Morris might not have escaped out of France. The letter reveals Washington's mental decline. He says "until then [Fauchet's demand for recall of Morris, early 1794] I had supposed you stood well with the powers that were." Lafayette had pleaded for Morris's removal, and two French Ministers before Fauchet, Ternant and Genet, had expressed their Government's dissatisfaction with him. See Ford's Writings of Washington, vii., p. 453; also Editor's Introduction to XXI.—Editor.

About three months after I was at liberty, the official note of Jay to Grenville on the subject of the capture of American vessels by the British cruisers, appeared in the American papers that arrived at Paris. Every thing was of a-piece. Every thing was mean. The same kind of character went to all circumstances public or private. Disgusted at this national degradation,

as well as at the particular conduct of Mr. Washington to me, I wrote to him (Mr. Washington) on the 22d of February (1795) under cover to the then Secretary of State, (Mr. Randolph,) and entrusted the letter to Mr. Letombe, who was appointed French consul to Philadelphia, and was on the point of taking his departure. When I supposed Mr. Letombe had sailed, I mentioned the letter to Mr. Monroe, and as I was then in his house, I shewed it to him. He expressed a wish that I would recall it, which he supposed might be done, as he had learnt that Mr. Letombe had not then sailed. I agreed to do so, and it was returned by Mr. Letombe under cover to Mr. Monroe.

The letter, however, will now reach Mr. Washington publicly in the course of this work.

About the month of September following, I had a severe relapse which gave occasion to the report of my death. I had felt it coming on a considerable time before, which occasioned me to hasten the work I had then in hand, the *Second part of the Age of Reason*. When I had finished that work, I bestowed another letter on Mr. Washington, which I sent under cover to Mr. Benj. Franklin Bache of Philadelphia. The letter is as follows:

"Paris, September 20th, 1795.

"Sir,

"I had written you a letter by Mr. Letombe, French consul, but, at the request of Mr. Monroe, I withdrew it, and the letter is still by me. I was the more easily prevailed upon to do this, as it was then my intention to have returned to America the latter end of the present year, 1795; but the illness I now suffer prevents me. In case I had come, I should have applied to you for such parts of your official letters (and of your private ones, if you had chosen to give them) as contained any instructions or directions either to Mr. Monroe, or to Mr. Morris, or to any other person respecting me; for after you were informed of my imprisonment in France, it was incumbent on you to have made some enquiry into the cause, as you might very well conclude that I had not the opportunity of informing you of it. I cannot understand your silence upon this subject upon any other ground, than as *connivance* at my imprisonment; and this is the manner it is understood here, and will be understood in America, unless you give me authority for contradicting it. I therefore write you this letter, to propose to you to send me copies of any letters you have written, that may remove that suspicion.

In the preface to the second part of the Age of Reason, I have given a memorandum from the hand-writing of Robespierre, in which he proposed a decree of accusation against me, '*for the interests of America as well as of France!*' He could have no cause for putting America in the case, but by interpreting the silence of the American government into connivance and consent. I was imprisoned on the ground of being born in England; and your silence in not enquiring into the cause of that imprisonment, and reclaiming me against it, was tacitly giving me up. I ought not to have suspected you of treachery; but whether I recover from the illness I now suffer or not, I shall continue to think you treacherous, till you give me cause to think otherwise. I am sure you would have found yourself more at your ease, had you acted by me as you ought; for whether your desertion of me was intended to gratify the English Government, or to let me fall into destruction in France that you might exclaim the louder against the French Revolution, or whether you hoped by my extinction to meet with less opposition in mounting up the American government—either of these will involve you in reproach you will not easily shake off.

"THOMAS Paine."

*1 Washington Papers in State Department. Endorsed by Bache:
"Jan. 18, 1796. Enclosed to Benj. Franklin Bache, and by him
forwarded immediately upon receipt."—Editor..*

Here follows the letter above alluded to, which I had stopped in complaisance to Mr. Monroe.

"Paris, February aad, 1795.

"Sir,

"As it is always painful to reproach those one would wish to respect, it is not without some difficulty that I have taken the resolution to write to you. The dangers to which I have been exposed cannot have been unknown to you, and the guarded silence you have observed upon that circumstance is what I ought not to have expected from you, either as a friend or as President of the United States.

"You knew enough of my character to be assured that I could not have deserved imprisonment in France; and, without knowing any thing more than this, you had sufficient ground to have taken some interest for my safety. Every motive arising from recollection of times past, ought to have suggested to you the propriety of such a measure. But I cannot find that you

have so much as directed any enquiry to be made whether I was in prison or at liberty, dead or alive; what the cause of that imprisonment was, or whether there was any service or assistance you could render. Is this what I ought to have expected from America, after the part I had acted towards her, or will it redound to her honour or to yours, that I tell the story? I do not hesitate to say, that you have not served America with more disinterestedness, or greater zeal, or more fidelity, than myself, and I know not if with better effect. After the revolution of America was established I ventured into new scenes of difficulties to extend the principles which that revolution had produced, and you rested at home to partake of the advantages. In the progress of events, you beheld yourself a President in America, and me a prisoner in France. You folded your arms, forgot your friend, and became silent.

"As every thing I have been doing in Europe was connected with my wishes for the prosperity of America, I ought to be the more surprised at this conduct on the part of her government. It leaves me but one mode of explanation, which is, *that every thing is not as it ought to be amongst you*, and that the presence of a man who might disapprove, and who had credit enough with the country to be heard and believed, was not wished for. This was the operating motive with the despotic faction that imprisoned me in France, (though the pretence was, that I was a foreigner,) and those that have been silent and inactive towards me in America, appear to me to have acted from the same motive. It is impossible for me to discover any other.

(1)

"After the part I have taken in the revolution of America, it is natural that I feel interested in whatever relates to her character and prosperity. Though I am not on the spot to see what is immediately acting there, I see some part of what she is acting in Europe. For your own sake, as well as for that of America, I was both surprised and concerned at the appointment of Gouverneur Morris to be Minister to France. His conduct has proved that the opinion I had formed of that appointment was well founded. I wrote that opinion to Mr. Jefferson at the time, and I was frank enough to say the same thing to Morris—*that it was an unfortunate appointment?* His prating, insignificant pomposity, rendered him at once offensive, suspected, and ridiculous; and his total neglect of all business had so disgusted the Americans, that they proposed drawing up a protest against him. He carried this neglect to such an extreme, that it was necessary to inform him of it;

and I asked him one day, if he did not feel himself ashamed to take the money of the country, and do nothing for it?' But Morris is so fond of profit and voluptuousness, that he cares nothing about character. Had he not been removed at the time he was, I think his conduct would have precipitated the two countries into a rupture; and in this case, hated *systematically* as America is and ever will be by the British government, and at the same time suspected by France, the commerce of America would have fallen a prey to both countries.

1 This paragraph of the original letter was omitted from the American pamphlet, probably by the prudence of Mr. Bache.—Editor.

2 "I have just heard of Gouverneur Morris's appointment. It is a most unfortunate one; and, as I shall mention the same thing to him when I see him, I do not express it to you with the injunction of confidence."—Paine to Jefferson, Feb. 13, 1792.—Editor.

3 Paine could not of course know that Morris was willing that the Americans, to whom he alludes, captains of captured vessels, should suffer, in order that there might be a case against France of violation of treaty, which would leave the United States free to transfer the alliance to England. See Introduction to XXI.. also my "Life of Paine," ii., p. 83.—Editor..

"If the inconsistent conduct of Morris exposed the interest of America to some hazard in France, the pusillanimous conduct of Mr. Jay in England has rendered the American government contemptible in Europe. Is it possible that any man who has contributed to the independence of America, and to free her from the tyranny and injustice of the British government, can read without shame and indignation the note of Jay to Grenville? It is a satire upon the declaration of Independence, and an encouragement to the British government to treat America with contempt. At the time this Minister of Petitions was acting this miserable part, he had every means in his hands to enable him to have done his business as he ought. The success or failure of his mission depended upon the success or failure of the French arms. Had France failed, Mr. Jay might have put his humble petition in his pocket, and gone home. The case happened to be otherwise, and he has sacrificed the honour and perhaps all the advantages of it, by turning petitioner. I take it for granted, that he was sent over to demand indemnification for the captured property; and, in this case, if he thought he wanted a preamble to his demand, he might have said,

'That, tho' the government of England might suppose itself under the necessity of seizing American property bound to France, yet that supposed necessity could not preclude indemnification to the proprietors, who, acting under the authority of their own government, were not accountable to any other.'

"But Mr. Jay sets out with an implied recognition of the right of the British government to seize and condemn: for he enters his complaint against the *irregularity* of the seizures and the condemnation, as if they were reprehensible only by not being *conformable* to the *terms* of the proclamation under which they were seized. Instead of being the Envoy of a government, he goes over like a lawyer to demand a new trial. I can hardly help thinking that Grenville wrote that note himself and Jay signed it; for the style of it is domestic and not diplomatic. The term, *His Majesty*, used without any descriptive epithet, always signifies the King whom the Minister that speaks represents. If this sinking of the demand into a petition was a juggle between Grenville and Jay, to cover the indemnification, I think it will end in another juggle, that of never paying the money, and be made use of afterwards to preclude the right of demanding it: for Mr. Jay has virtually disowned the right *by appealing to the magnanimity of his Majesty against the capturers*. He has made this magnanimous Majesty the umpire in the case, and the government of the United States must abide by the decision. If, Sir, I turn some part of this business into ridicule, it is to avoid the unpleasant sensation of serious indignation.

"Among other things which I confess I do not understand, is the proclamation of neutrality. This has always appeared to me as an assumption on the part of the executive not warranted by the Constitution. But passing this over, as a disputable case, and considering it only as political, the consequence has been that of sustaining the losses of war, without the balance of reprisals. When the profession of neutrality, on the part of America, was answered by hostilities on the part of Britain, the object and intention of that neutrality existed no longer; and to maintain it after this, was not only to encourage farther insults and depredations, but was an informal breach of neutrality towards France, by passively contributing to the aid of her enemy. That the government of England considered the American government as pusillanimous, is evident from the encreasing insolence of the conduct of the former towards the latter, till the affair of General Wayne. She then saw that it might be possible to kick a

government into some degree of spirit.(1) So far as the proclamation of neutrality was intended to prevent a dissolute spirit of privateering in America under foreign colors, it was undoubtedly laudable; but to continue it as a government neutrality, after the commerce of America was made war upon, was submission and not neutrality. I have heard so much about this thing called neutrality, that I know not if the ungenerous and dishonorable silence (for I must call it such,) that has been observed by your part of the government towards me, during my imprisonment, has not in some measure arisen from that policy.

1 Wayne's success against the Indians of the Six Nations, 1794, was regarded by Washington also as a check on England. Writing to Pendleton, Jan. 22, 1795, he says: "There is reason to believe that the Indians....together with their abettors; begin to see things in a different point of view." (Italics mine).—Editor.

"Tho' I have written you this letter, you ought not to suppose it has been an agreeable undertaking to me. On the contrary, I assure you, it has caused me some disquietude. I am sorry you have given me cause to do it; for, as I have always remembered your former friendship with pleasure, I suffer a loss by your depriving me of that sentiment.

"Thomas Paine."

That this letter was not written in very good temper, is very evident; but it was just such a letter as his conduct appeared to me to merit, and every thing on his part since has served to confirm that opinion. Had I wanted a commentary on his silence, with respect to my imprisonment in France, some of his faction have furnished me with it. What I here allude to, is a publication in a Philadelphia paper, copied afterwards into a New York paper, both under the patronage of the Washington faction, in which the writer, still supposing me in prison in France, wonders at my lengthy respite from the scaffold; and he marks his politics still farther, by saying:

"It appears, moreover, that the people of England did not relish his (Thomas Paine's) opinions quite so well as he expected, and that for one of his last pieces, as destructive to the peace and happiness of their country, (meaning, I suppose, the *Rights of Man*,) they threatened our knight-errant with such serious vengeance, that, to avoid a trip to Botany Bay, he fled over to France, as a less dangerous voyage."

I am not refuting or contradicting the falsehood of this publication, for it is sufficiently notorious; neither am I censuring the writer: on the contrary, I thank him for the explanation he has incautiously given of the principles of the Washington faction. Insignificant, however, as the piece is, it was capable of having some ill effects, had it arrived in France during my imprisonment, and in the time of Robespierre; and I am not uncharitable in supposing that this was one of the intentions of the writer.(*)

** I know not who the writer of the piece is, but some of the Americans say it is Phineas Bond, an American refugee, but now a British consul; and that he writes under the signature of Peter Skunk or Peter Porcupine, or some such signature.—Author.*

This footnote probably added to the gall of Porcupine's (Cobbett's) "Letter to the Infamous Tom Paine, in Answer to his Letter to General Washington" (Polit. Censor, Dec., 1796), of which he (Cobbett) afterwards repented. Phineas Bond had nothing to do with it.—Editor.

I have now done with Mr. Washington on the score of private affairs. It would have been far more agreeable to me, had his conduct been such as not to have merited these reproaches. Errors or caprices of the temper can be pardoned and forgotten; but a cold deliberate crime of the heart, such as Mr. Washington is capable of acting, is not to be washed away. I now proceed to other matter.

After Jay's note to Grenville arrived in Paris from America, the character of every thing that was to follow might be easily foreseen; and it was upon this anticipation that *my* letter of February the 22d was founded. The event has proved that I was not mistaken, except that it has been much worse than I expected.

It would naturally occur to Mr. Washington, that the secrecy of Jay's mission to England, where there was already an American Minister, could not but create some suspicion in the French government; especially as the conduct of Morris had been notorious, and the intimacy of Mr. Washington with Morris was known.

The character which Mr. Washington has attempted to act in the world, is a sort of non-describable, camelon-colored thing, called *prudence*. It is, in many cases, a substitute for principle, and is so nearly allied to hypocrisy that it easily slides into it. His genius for prudence furnished him in this instance with an expedient that served, as is the natural and general

character of all expedients, to diminish the embarrassments of the moment and multiply them afterwards; for he authorized it to be made known to the French government, as a confidential matter, (Mr. Washington should recollect that I was a member of the Convention, and had the means of knowing what I here state) he authorized it, I say, to be announced, and that for the purpose of preventing any uneasiness to France on the score of Mr. Jay's mission to England, that the object of that mission, and of Mr. Jay's authority, was restricted to that of demanding the surrender of the western posts, and indemnification for the cargoes captured in American vessels. Mr. Washington knows that this was untrue; and knowing this, he had good reason to himself for refusing to furnish the House of Representatives with copies of the instructions given to Jay, as he might suspect, among other things, that he should also be called upon for copies of instructions given to other Ministers, and that, in the contradiction of instructions, his want of integrity would be detected.⁽¹⁾ Mr. Washington may now, perhaps, learn, when it is too late to be of any use to him, that a man will pass better through the world with a thousand open errors upon his back, than in being detected in *one* sly falsehood. When one is detected, a thousand are suspected.

The first account that arrived in Paris of a treaty being negotiated by Mr. Jay, (for nobody suspected any,) came in an English newspaper, which announced that a treaty *offensive and defensive* had been concluded between the United States of America and England. This was immediately denied by every American in Paris, as an impossible thing; and though it was disbelieved by the French, it imprinted a suspicion that some underhand business was going forward.^(*) At length the treaty itself arrived, and every well-affected American blushed with shame.

1 When the British treaty had been ratified by the Senate (with one stipulation) and signed by the President, the House of Representatives, required to supply the means for carrying into effect, believed that its power over the supplies authorized it to check what a large majority considered an outrage on the country and on France. This was the opinion of Edmund Randolph (the first Attorney General), of Jefferson, Madison, and other eminent men. The House having respectfully requested the President to send them such papers on the treaty as would not affect any existing negotiations, he refused in a message (March 30, 1796), whose tenor Madison described as "improper and indelicate." He said "the assent of the House of Representatives is not necessary to the validity of a treaty." The House regarded the message as menacing a serious conflict, and receded.—

Editor.

** It was the embarrassment into which the affairs and credit of America were thrown at this instant by the report above alluded to, that made it necessary to contradict it, and that by every means arising from opinion or founded upon authority. The Committee of Public Safety, existing at that time, had agreed to the full execution, on their part, of the treaty between America and France, notwithstanding some equivocal conduct on the part of the American government, not very consistent with the good faith of an ally; but they were not in a disposition to be imposed upon by a counter-treaty. That Jay had no instructions beyond the points above stated, or none that could possibly be construed to extend to the length the British treaty goes, was a matter believed in America, in England, and in France; and without going to any other source it followed naturally from the message of the President to Congress, when he nominated Jay upon that mission. The secretary of Mr. Jay came to Paris soon after the treaty with England had been concluded, and brought with him a copy of Mr. Jay's instructions, which he offered to shew to me as justification of Jay. I advised him, as a friend, not to shew them to anybody, and did not permit him to shew them to me. "Who is it," said I to him, "that you intend to implicate as censureable by shewing those instructions? Perhaps that implication may fall upon your own government." Though I did not see the instructions, I could not be at a loss to understand that the American administration had been playing a double game.—Author.*

That there was a "double game" in this business, from first to last, is now a fact of history. Jay was confirmed by the Senate on a declaration of the President in which no faintest hint of a treaty was given, but only the "adjustment of our complaints," "vindication of our rights," and cultivation of "peace." Only after the Envoy's confirmation did the Cabinet add the main thing, his authority to negotiate a commercial treaty. This was done against the protest of the only lawyer among them, Edmund Randolph, Secretary of State, who said the exercise of such a power by Jay would be an abridgment of the rights of the Senate and of the nation. See my "Life of Randolph," p. 220. For Jay's Instructions, etc., see I. Am. State Papers, Foreign Relations.—Editor.

It is curious to observe, how the appearance of characters will change, whilst the root that produces them remains the same. The Washington faction having waded through the slough of negotiation, and whilst it amused France with professions of friendship contrived to injure her, immediately throws off the hypocrite, and assumes the swaggering air of a bravado. The party papers of that imbecile administration were on this occasion filled with paragraphs about *Sovereignty*. A paltroon may boast of his sovereign right to let another kick him, and this is the only kind of sovereignty shewn in the treaty with England. But those daring paragraphs, as Timothy Pickering(1) well knows, were intended for France; without

whose assistance, in men, money, and ships, Mr. Washington would have cut but a poor figure in the American war. But of his military talents I shall speak hereafter.

I mean not to enter into any discussion of any article of Jay's treaty; I shall speak only upon the whole of it. It is attempted to be justified on the ground of its not being a violation of any article or articles of the treaty pre-existing with France. But the sovereign right of explanation does not lie with George Washington and his man Timothy; France, on her part, has, at least, an equal right: and when nations dispute, it is not so much about words as about things.

A man, such as the world calls a sharper, and versed as Jay must be supposed to be in the quibbles of the law, may find a way to enter into engagements, and make bargains, in such a manner as to cheat some other party, without that party being able, as the phrase is, *to take the law of him*. This often happens in the cabalistical circle of what is called law. But when this is attempted to be acted on the national scale of treaties, it is too despicable to be defended, or to be permitted to exist. Yet this is the trick upon which Jay's treaty is founded, so far as it has relation to the treaty pre-existing with France. It is a counter-treaty to that treaty, and perverts all the great articles of that treaty to the injury of France, and makes them operate as a bounty to England, with whom France is at war.

1 Secretary of State.—Editor..

The Washington administration shews great desire that the treaty between France and the United States be preserved. Nobody can doubt their sincerity upon this matter. There is not a British Minister, a British merchant, or a British agent or sailor in America, that does not anxiously wish the same thing. The treaty with France serves now as a passport to supply England with naval stores and other articles of American produce, whilst the same articles, when coming to France, are made contraband or seizable by Jay's treaty with England. The treaty with France says, that neutral ships make neutral property, and thereby gives protection to English property on board American ships; and Jay's treaty delivers up French property on board American ships to be seized by the English. It is too paltry to talk of faith, of national honour, and of the preservation of treaties, whilst such a bare-faced treachery as this stares the world in the face.

The Washington administration may save itself the trouble of proving to the French government its *most faithful* intentions of preserving the treaty with France; for France has now no desire that it should be preserved. She had nominated an Envoy extraordinary to America, to make Mr. Washington and his government a present of the treaty, and to have no more to do with *that*, or with *him*. It was at the same time officially declared to the American Minister at Paris, *that the French Republic had rather have the American government for an open enemy than a treacherous friend*. This, sir, together with the internal distractions caused in America, and the loss of character in the world, is the *eventful crisis*, alluded to in the beginning of this letter, to which your double politics have brought the affairs of your country. It is time that the eyes of America be opened upon you.

How France would have conducted herself towards America and American commerce, after all treaty stipulations had ceased, and under the sense of services rendered and injuries received, I know not. It is, however, an unpleasant reflection, that in all national quarrels, the innocent, and even the friendly part of the community, become involved with the culpable and the unfriendly; and as the accounts that arrived from America continued to manifest an invariable attachment in the general mass of the people to their original ally, in opposition to the new-fangled Washington faction,—the resolutions that had been taken in France were suspended. It happened also, fortunately enough, that Gouverneur Morris was not Minister at this time.

There is, however, one point that still remains in embryo, and which, among other things, serves to shew the ignorance of Washington treaty-makers, and their inattention to preexisting treaties, when they were employing themselves in framing or ratifying the new treaty with England.

The second article of the treaty of commerce between the United States and France says:

"The most christian king and the United States engage mutually, not to grant any particular favour to other nations in respect of commerce and navigation that shall not immediately become common to the other party, who shall enjoy the same favour freely, if the concession was freely made, or on allowing the same compensation if the concession was conditional."

All the concessions, therefore, made to England by Jay's treaty are, through the medium of this second article in the pre-existing treaty, made to

France, and become engrafted into the treaty with France, and can be exercised by her as a matter of right, the same as by England.

Jay's treaty makes a concession to England, and that unconditionally, of seizing naval stores in American ships, and condemning them as contraband. It makes also a concession to England to seize provisions and *other articles* in American ships. *Other articles are all other articles*, and none but an ignoramus, or something worse, would have put such a phrase into a treaty. The condition annexed in this case is, that the provisions and other articles so seized, are to be paid for at a price to be agreed upon. Mr. Washington, as President, ratified this treaty after he knew the British Government had recommended an indiscriminate seizure of provisions and all other articles in American ships; and it is now known that those seizures were made to fit out the expedition going to Quiberon Bay, and it was known before hand that they would be made. The evidence goes also a good way to prove that Jay and Grenville understood each other upon that subject. Mr. Pinckney,(1) when he passed through France on his way to Spain, spoke of the recommencement of the seizures as a thing that would take place.

1 Gen. Thomas Pinckney, U. S. Minister to England.—
Editor.

The French government had by some means received information from London to the same purpose, with the addition, that the recommencement of the seizures would cause no misunderstanding between the British and American governments. Grenville, in defending himself against the opposition in Parliament, on account of the scarcity of corn, said (see his speech at the opening of the Parliament that met October 29, 1795) that *the supplies for the Quiberon expedition were furnished out of the American ships*, and all the accounts received at that time from England stated that those seizures were made under the treaty. After the supplies for the Quiberon expedition had been procured, and the expected success had failed, the seizures were countermanded; and had the French seized provision vessels going to England, it is probable that the Quiberon expedition could not have been attempted.

In one point of view, the treaty with England operates as a loan to the English government. It gives permission to that government to take American property at sea, to any amount, and pay for it when it suits her;

and besides this, the treaty is in every point of view a surrender of the rights of American commerce and navigation, and a refusal to France of the rights of neutrality. The American flag is not now a neutral flag to France; Jay's treaty of surrender gives a monopoly of it to England.

On the contrary, the treaty of commerce between America and France was formed on the most liberal principles, and calculated to give the greatest encouragement to the infant commerce of America. France was neither a carrier nor an exporter of naval stores or of provisions. Those articles belonged wholly to America, and they had all the protection in that treaty which a treaty could give. But so much has that treaty been perverted, that the liberality of it on the part of France, has served to encourage Jay to form a counter-treaty with England; for he must have supposed the hands of France tied up by her treaty with America, when he was making such large concessions in favour of England. The injury which Mr. Washington's administration has done to the character as well as to the commerce of America, is too great to be repaired by him. Foreign nations will be shy of making treaties with a government that has given the faithless example of perverting the liberality of a former treaty to the injury of the party with whom it was made.(1)

1 For an analysis of the British Treaty see Wharton's "Digest of the International Law of the United States," vol. it, ' 150 a. Paine's analysis is perfectly correct.— Editor..

In what a fraudulent light must Mr. Washington's character appear in the world, when his declarations and his conduct are compared together! Here follows the letter he wrote to the Committee of Public Safety, while Jay was negotiating in profound secrecy this treacherous treaty:

"George Washington, President of the United States of America, to the Representatives of the French people, members of the Committee of Public Safety of the French Republic, the great and good friend and ally of the United States.

"On the intimation of the wish of the French republic that ` new Minister should be sent from the United States, I resolved to manifest my sense of the readiness with which *my* request was fulfilled, [that of recalling Genet,] by immediately fulfilling the request of your government, [that of recalling Morris].

"It was some time before a character could be obtained, worthy of the high office of expressing the attachment of the United States to the happiness of our allies, *and drawing closer the bonds of our friendship*. I have now made choice of James Monroe, one of our distinguished citizens, to reside near the French republic, in quality of Minister Plenipotentiary of the United States of America. He is instructed to bear to you our *sincere solicitude for your welfare, and to cultivate with teal the cordiality so happily subsisting between us*. From a knowledge of his fidelity, probity, and good conduct, I have entire confidence that he will render himself acceptable to you, and give effect to your desire of preserving and *advancing, on all occasions, the interest and connection of the two nations*. I beseech you, therefore, to give full credence to whatever he shall say to you on the part of the United States, and *most of all, when he shall assure you that your prosperity is an object of our affection*.

"And I pray God to have the French Republic in his holy keeping.

"G. Washington."

Was it by entering into a treaty with England to surrender French property on board American ships to be seized by the English, while English property on board American ships was declared by the French treaty not to be seizable, *that the bonds of friendship between America and France were to be drawn the closer?* Was it by declaring naval stores contraband when coming to France, whilst by the French treaty they were not contraband when going to England, that the *connection between France and America was to be advanced?* Was it by opening the American ports to the British navy in the present war, from which ports the same navy had been expelled by the aid solicited from France in the American war (and that aid gratuitously given) (2) that the gratitude of America was to be shewn, and the *solicitude* spoken of in the letter demonstrated?

1 The italics are Paine's. Paine's free use of this document suggests that he possessed the confidence of the French Directory.—Editor.

2 It is notable that Paine adheres to his old contention in his controversy with Deane. See vol. i., ch. aa of this work; and vol. i., ch. 9 of my "Life of Paine."—Editor..

As the letter was addressed to the Committee of Public Safety, Mr. Washington did not expect it would get abroad in the world, or be seen by any other eye than that of Robespierre, or be heard by any other ear than

that of the Committee; that it would pass as a whisper across the Atlantic, from one dark chamber to the other, and there terminate. It was calculated to remove from the mind of the Committee all suspicion upon Jay's mission to England, and, in this point of view, it was suited to the circumstances of the movement then passing; but as the event of that mission has proved the letter to be hypocritical, it serves no other purpose of the present moment than to shew that the writer is not to be credited. Two circumstances serve to make the reading of the letter necessary in the Convention. The one was, that they who succeeded on the fall of Robespierre, found it most proper to act with publicity; the other, to extinguish the suspicions which the strange conduct of Morris had occasioned in France.

When the British treaty, and the ratification of it by Mr. Washington, was known in France, all further declarations from him of his good disposition as an ally and friend, passed for so many cyphers; but still it appeared necessary to him to keep up the farce of declarations. It is stipulated in the British treaty, that commissioners are to report at the end of two years, on the case of *neutral ships making neutral property*. In the mean time, neutral ships do *not* make neutral property, according to the British treaty, and they *do* according to the French treaty. The preservation, therefore, of the French treaty became of great importance to England, as by that means she can employ American ships as carriers, whilst the same advantage is denied to France. Whether the French treaty could exist as a matter of right after this clandestine perversion of it, could not but give some apprehensions to the partizans of the British treaty, and it became necessary to them to make up, by fine words, what was wanting in good actions.

An opportunity offered to that purpose. The Convention, on the public reception of Mr. Monroe, ordered the American flag and the French flags to be displayed unitedly in the hall of the Convention. Mr. Monroe made a present of an American flag for the purpose. The Convention returned this compliment by sending a French flag to America, to be presented by their Minister, Mr. Adet, to the American government. This resolution passed long before Jay's treaty was known or suspected: it passed in the days of confidence; but the flag was not presented by Mr. Adet till several months after the treaty had been ratified. Mr. Washington made this the occasion of saying some fine things to the French Minister; and the better to get himself into tune to do this, he began by saying the finest things of himself.

"Born, sir (said he) in a land of liberty; *having* early learned its value; *having* engaged in a perilous conflict to defend it; *having*, in a word, devoted the best years of my life to secure its permanent establishment in my own country; *my* anxious recollections, my sympathetic feelings, and *my* best wishes are irresistibly excited, whenever, in any country, I see an oppressed people unfurl the banner of freedom."

Mr. Washington, having expended so many fine phrases upon himself, was obliged to invent a new one for the French, and he calls them "wonderful people!" The coalesced powers acknowledged as much.

It is laughable to hear Mr. Washington talk of his *sympathetic feelings*, who has always been remarked, even among his friends, for not having any. He has, however, given no proofs of any to me. As to the pompous encomiums he so liberally pays to himself, on the score of the American revolution, the reality of them may be questioned; and since he has forced them so much into notice, it is fair to examine his pretensions.

A stranger might be led to suppose, from the egotism with which Mr. Washington speaks, that himself, and himself only, had generated, conducted, compleated, and established the revolution: In fine, that it was all his own doing.

In the first place, as to the political part, he had no share in it; and, therefore, the whole of *that* is out of the question with respect to him. There remains, then, only the military part; and it would have been prudent in Mr. Washington not to have awakened enquiry upon that subject. Fame then was cheap; he enjoyed it cheaply; and nobody was disposed to take away the laurels that, whether they were *acquired* or not, had been *given*.

Mr. Washington's merit consisted in constancy. But constancy was the common virtue of the revolution. Who was there that was inconstant? I know but of one military defection, that of Arnold; and I know of no political defection, among those who made themselves eminent when the revolution was formed by the declaration of independence. Even Silas Deane, though he attempted to defraud, did not betray.(1)

1 This generous judgment by Deane's old adversary has become questionable under recent investigations.—Editor..

But when we speak of military character, something more is to be understood than constancy; and something more *ought* to be understood

than the Fabian system of *doing nothing*. The *nothing* part can be done by any body. Old Mrs. Thompson, the housekeeper of head quarters, (who threatened to make the sun and the wind shine through Rivington of New York,) 'could have done it as well as Mr. Washington. Deborah would have been as good as Barak.

Mr. Washington had the nominal rank of Commander in Chief, but he was not so in fact. He had, in reality, only a separate command. He had no controul over, or direction of, the army to the northward under Gates, that captured Burgoyne; nor of that to the south under [Nathaniel] Greene, that recovered the southern States.(2) The nominal rank, however, of Commander in Chief, served to throw upon him the lustre of those actions, and to make him appear as the soul and centre of all military operations in America.

1 The Tory publisher of New York City, whose press was destroyed in 1775 by a mob of Connecticut soldiers.—Editor.

2 See Mr. Winterbotham's valuable History of America, lately published.—Author. [The "History of the Establishment of Independence" is contained in the first of Mr. Winterbotham's four volumes (London, 1795).—Editor..]

He commenced his command June, 1775, during the time the Massachusetts army lay before Boston, and after the affair of Bunker-hill. The commencement of his command was the commencement of inactivity. Nothing was afterwards done, or attempted to be done, during the nine months he remained before Boston. If we may judge from the resistance made at Concord, and afterwards at Bunker-hill, there was a spirit of enterprise at that time, which the presence of Mr. Washington chilled into cold defence. By the advantage of a good exterior he attracts respect, which his habitual silence tends to preserve; but he has not the talent of inspiring ardour in an army. The enemy removed from Boston in March 1776, to wait for reinforcements from Europe, and to take a more advantageous position at New York.

The inactivity of the campaign of 1775, on the part of General Washington, when the enemy had a less force than in any other future period of the war, and the injudicious choice of positions taken by him in the campaign of 1776, when the enemy had its greatest force, necessarily produced the losses and misfortunes that marked that gloomy campaign.

The positions taken were either islands or necks of land. In the former, the enemy, by the aid of their ships, could bring their whole force against apart of General Washington's, as in the affair of Long Island; and in the latter, he might be shut up as in the bottom of a bag. This had nearly been the case at New York, and it was so in part; it was actually the case at Fort Washington; and it would have been the case at Fort Lee, if General Greene had not moved precipitately off, leaving every thing behind, and by gaining Hackinsack bridge, got out of the bag of Bergen Neck. How far Mr. Washington, as General, is blameable for these matters, I am not undertaking to determine; but they are evidently defects in military geography. The successful skirmishes at the close of that campaign, (matters that would scarcely be noticed in a better state of things,) make the brilliant exploits of General Washington's seven campaigns. No wonder we see so much pusillanimity in the President, when we see so little enterprise in the General!

The campaign of 1777 became famous, not by anything on the part of General Washington, but by the capture of General Burgoyne, and the army under his command, by the Northern army at Saratoga, under General Gates. So totally distinct and unconnected were the two armies of Washington and Gates, and so independent was the latter of the authority of the nominal Commander in Chief, that the two Generals did not so much as correspond, and it was only by a letter of General (since Governor) Clinton, that General Washington was informed of that event. The British took possession of Philadelphia this year, which they evacuated the next, just time enough to save their heavy baggage and fleet of transports from capture by the French Admiral d'Estaing, who arrived at the mouth of the Delaware soon after.

The capture of Burgoyne gave an eclat in Europe to the American arms, and facilitated the alliance with France. The eclat, however, was not kept up by any thing on the part of General Washington. The same unfortunate languor that marked his entrance into the field, continued always. Discontent began to prevail strongly against him, and a party was formed in Congress, whilst sitting at York-town, in Pennsylvania, for removing him from the command of the army. The hope, however, of better times, the news of the alliance with France, and the unwillingness of shewing discontent, dissipated the matter.

Nothing was done in the campaigns of 1778, 1779, 1780, in the part where General Washington commanded, except the taking of Stony Point by General Wayne. The Southern States in the mean time were over-run by the enemy. They were afterwards recovered by General Greene, who had in a very great measure created the army that accomplished that recovery. In all this General Washington had no share. The Fabian system of war, followed by him, began now to unfold itself with all its evils; but what is Fabian war without Fabian means to support it? The finances of Congress depending wholly on emissions of paper money, were exhausted. Its credit was gone. The continental treasury was not able to pay the expense of a brigade of waggons to transport the necessary stores to the army, and yet the sole object, the establishment of the revolution, was a thing of remote distance. The time I am now speaking of is in the latter end of the year 1780.

In this situation of things it was found not only expedient, but absolutely necessary, for Congress to state the whole case to its ally. I knew more of this matter, (before it came into Congress or was known to General Washington) of its progress, and its issue, than I chuse to state in this letter. Colonel John Laurens was sent to France as an Envoy Extraordinary on this occasion, and by a private agreement between him and me I accompanied him. We sailed from Boston in the Alliance frigate, February 11th, 1781. France had already done much in accepting and paying bills drawn by Congress. She was now called upon to do more. The event of Colonel Laurens's mission, with the aid of the venerable Minister, Franklin, was, that France gave in money, as a present, six millions of livres, and ten millions more as a loan, and agreed to send a fleet of not less than thirty sail of the line, at her own expense, as an aid to America. Colonel Laurens and myself returned from Brest the 1st of June following, taking with us two millions and a half of livres (upwards of one hundred thousand pounds sterling) of the money given, and convoying two ships with stores.

We arrived at Boston the 25th of August following. De Grasse arrived with the French fleet in the Chesapeak at the same time, and was afterwards joined by that of Barras, making 31 sail of the line. The money was transported in waggons from Boston to the Bank at Philadelphia, of which Mr. Thomas Willing, who has since put himself at the head of the list of petitioners in favour of the British treaty, was then President. And it was by the aid of this money, and this fleet, and of Rochambeau's army, that

Cornwallis was taken; the laurels of which have been unjustly given to Mr. Washington. His merit in that affair was no more than that of any other American officer.

I have had, and still have, as much pride in the American revolution as any man, or as Mr. Washington has a right to have; but that pride has never made me forgetful whence the great aid came that compleated the business. Foreign aid (that of France) was calculated upon at the commencement of the revolution. It is one of the subjects treated of in the pamphlet *Common Sense*, but as a matter that could not be hoped for, unless independence was declared.¹ The aid, however, was greater than could have been expected.

It is as well the ingratitude as the pusillanimity of Mr. Washington, and the Washington faction, that has brought upon America the loss of character she now suffers in the world, and the numerous evils her commerce has undergone, and to which it is yet exposed. The British Ministry soon found out what sort of men they had to deal with, and they dealt with them accordingly; and if further explanation was wanting, it has been fully given since, in the snivelling address of the New York Chamber of Commerce to the President, and in that of sundry merchants of Philadelphia, which was not much better.

¹ See vol. i. of this work, p. ixx. Paine was sharply taken to task on this point by "Cato." *Ib.* pp. 145-147.—
Editor..

When the revolution of America was finally established by the termination of the war, the world gave her credit for great character; and she had nothing to do but to stand firm upon that ground. The British ministry had their hands too full of trouble to have provoked a rupture with her, had she shown a proper resolution to defend her rights. But encouraged as they were by the submissive character of the American administration, they proceeded from insult to insult, till none more were left to be offered. The proposals made by Sweden and Denmark to the American administration were disregarded. I know not if so much as an answer has been returned to them. The minister penitentiary, (as some of the British prints called him,) Mr. Jay, was sent on a pilgrimage to London, to make up all by penance and petition. In the mean time the lengthy and drowsy writer of the pieces signed *Camillas* held himself in reserve to vindicate every thing; and to sound in America the tocsin of terror upon the inexhaustible resources of

England. Her resources, says he, are greater than those of all the other powers. This man is so intoxicated with fear and finance, that he knows not the difference between *plus* and *minus*—between a hundred pounds in hand, and a hundred pounds worse than nothing.

The commerce of America, so far as it had been established by all the treaties that had been formed prior to that by Jay, was free, and the principles upon which it was established were good. That ground ought never to have been departed from. It was the justifiable ground of right, and no temporary difficulties ought to have induced an abandonment of it. The case is now otherwise. The ground, the scene, the pretensions, the everything, are changed. The commerce of America is, by Jay's treaty, put under foreign dominion. The sea is not free for her. Her right to navigate it is reduced to the right of escaping; that is, until some ship of England or France stops her vessels, and carries them into port. Every article of American produce, whether from the sea or the land, fish, flesh, vegetable, or manufacture, is, by Jay's treaty, made either contraband or seizable. Nothing is exempt. In all other treaties of commerce, the article which enumerates the contraband articles, such as fire arms, gunpowder, &c, is followed by another article which enumerates the articles not contraband: but it is not so in Jay's treaty. There is no exempting article. Its place is supplied by the article for seizing and carrying into port; and the sweeping phrase of "*provisions and other articles* " includes every thing. There never was such a base and servile treaty of surrender since treaties began to exist.

This is the ground upon which America now stands. All her rights of commerce and navigation are to begin anew, and that with loss of character to begin with. If there is sense enough left in the heart to call a blush into the cheek, the Washington administration must be ashamed to appear.—And as to you, Sir, treacherous in private friendship (for so you have been to me, and that in the day of danger) and a hypocrite in public life, the world will be puzzled to decide whether you are an apostate or an impostor; whether you have abandoned good principles, or whether you ever had any.

Thomas Paine.

XXIII. OBSERVATIONS.(1)

*1 State Archives, Paris, Etats Unis, vol. 43, fol. 100.
Undated, but evidently written early in the year 1795, when
Jay's Treaty was as yet unknown. Paine was then staying in
the house of the American Minister, Monroe.—' Editor,*

The United States of America are negotiating with Spain respecting the free Navigation of the Mississippi, and the territorial limits of this large river, in conformity with the Treaty of Peace with England dated 30th November, 1782. As the brilliant successes of the French Republic have forced England to grant us, what was in all justice our due, so the continuation of the prosperity of the Republic, will force Spain to make a Treaty with us on the points in controversy.

Since it is certain that all that we shall obtain from Spain will be due to the victories of France, and as the inhabitants of the western part of the United States (which part contains or covers more than half the United States), have decided to claim their rights to the free navigation of the Mississippi, would it not be a wiser policy for the Republican Government (who have only to command to obtain) to arrogate all the merit, by making our demands to Spain, one of the conditions, of France, to consent to restore peace to the Castilians. They have only to declare, they will not make Peace, or that they will support with all their might, the just reclamations of their allies against these Powers,—against England for the surrender of the frontier posts, and for the indemnities due through their depredations on our Trade, and against Spain for our territorial limits, and the free navigation of the Mississippi. This declaration would certainly not prolong the War a single day more, nor cost the Republic an obole, whilst it would assure all the merit of success to France, and besides produce all the good effects mentioned above.

It may perhaps be observed that the Negotiation is already finished with England, and perhaps in a manner which will not be approved of by France. That may be, (though the terms of this arrangement may not be known); but as to Spain, the negotiation is still pending, and it is evident that if France makes the above *Declaration* as to this Power (which declaration would be

a demonstrative proof of what she would have done in the other case if circumstances had required it), she would receive the same credit as if the Declaration had been made relatively to the two Powers. In fact the Decree or resolution (and perhaps this last would be preferable) can be worded in terms which would declare that in case the arrangement with England were not satisfactory, France will nevertheless, maintain the just demands of America against that Power. A like Declaration, in case Mr. Jay should do anything reprehensible, and which might even be approved of in America, would certainly raise the reputation of the French Republic to the most eminent degree of splendour, and lower in proportion that of her enemies.

It is very certain that France cannot better favour the views of the British party in America, and wound in a most sensible manner the Republican Government of this country, than by adopting a strict and oppressive policy with regard to us. Every one knows that the injustices committed by the privateers and other ships belonging to the French Republic against our navigation, were causes of exultation and joy to this party, even when their own properties were subjected to these depredations, whilst the friends of France and the Revolution were vexed and most confused about it. It follows then, that a generous policy would produce quite opposite effects—it would acquire for France the merit that is her due; it would discourage the hopes of her adversaries, and furnish the friends of humanity and liberty with the means of acting against the intrigues of England, and cement the Union, and contribute towards the true interests of the two republics.

So sublime and generous a manner of acting, which would not cost anything to France, would cement in a stronger way the ties between the two republics. The effect of such an event, would confound and annihilate in an irrevocable manner all the partisans for the British in America. There are nineteen twentieths of our nation attached through inclination and gratitude to France, and the small number who seek uselessly all sorts of pretexts to magnify the small occasions of complaint which might have subsisted previously will find itself reduced to silence, or have to join their expressions of gratitude to ours.—The results of this event cannot be doubted, though not reckoned on: all the American hearts will be French, and England will be afflicted.

An American.

XXIV. DISSERTATION ON FIRST PRINCIPLES OF GOVERNMENT. (1)

1 Printed from the first edition, whose title is as above, with the addition: "By Thomas Paine, Author of Common Sense; Rights of Man; Age of Reason. Paris, Printed at the English Press, me de Vaugerard, No. 970. Third year of the French Republic." The pamphlet seems to have appeared early in July (perhaps the Fourth), 1795, and was meant to influence the decision of the National Convention on the Constitution then under discussion. This Constitution, adopted September 23d, presently swept away by Napoleon, contained some features which appeared to Paine reactionary. Those to which he most objected are quoted by him in his speech in the Convention, which is bound up in the same pamphlet, and follows this "Dissertation" in the present volume. In the Constitution as adopted Paine's preference for a plural Executive was established, and though the bicameral organization (the Council of Five Hundred and the Council of Ancients) was not such as he desired, his chief objection was based on his principle of manhood suffrage. But in regard to this see Paine's "Dissertations on Government," written nine years before (vol. ii., ch. vi. of this work), and especially p. 138 seq. of that volume, where he indicates the method of restraining the despotism of numbers.—Editor.,

There is no subject more interesting to every man than the subject of government. His security, be he rich or poor, and in a great measure his prosperity, are connected therewith; it is therefore his interest as well as his duty to make himself acquainted with its principles, and what the practice ought to be.

Every art and science, however imperfectly known at first, has been studied, improved, and brought to what we call perfection by the progressive labours of succeeding generations; but the science of government has stood still. No improvement has been made in the principle and scarcely any in the practice till the American revolution began. In all the countries of Europe (except in France) the same forms and systems that were erected in the remote ages of ignorance still continue, and their antiquity is put in the place of principle; it is forbidden to investigate their origin, or by what right they exist. If it be asked how has this happened, the

answer is easy: they are established on a principle that is false, and they employ their power to prevent detection.

Notwithstanding the mystery with which the science of government has been enveloped, for the purpose of enslaving, plundering, and imposing upon mankind, it is of all things the least mysterious and the most easy to be understood. The meanest capacity cannot be at a loss, if it begins its enquiries at the right point. Every art and science has some point, or alphabet, at which the study of that art or science begins, and by the assistance of which the progress is facilitated. The same method ought to be observed with respect to the science of government.

Instead then of embarrassing the subject in the outset with the numerous subdivisions under which different forms of government have been classed, such as aristocracy, democracy, oligarchy, monarchy, &c. the better method will be to begin with what may be called primary divisions, or those under which all the several subdivisions will be comprehended.

The primary divisions are but two:

First, government by election and representation.

Secondly, government by hereditary succession.

All the several forms and systems of government, however numerous or diversified, class themselves under one or other of those primary divisions; for either they are on the system of representation, or on that of hereditary succession. As to that equivocal thing called mixed government, such as the late government of Holland, and the present government of England, it does not make an exception to the general rule, because the parts separately considered are either representative or hereditary.

Beginning then our enquiries at this point, we have first to examine into the nature of those two primary divisions.

If they are equally right in principle, it is mere matter of opinion which we prefer. If the one be demonstratively better than the other, that difference directs our choice; but if one of them should be so absolutely false as not to have a right to existence, the matter settles itself at once; because a negative proved on one thing, where two only are offered, and one must be accepted, amounts to an affirmative on the other.

The revolutions that are now spreading themselves in the world have their origin in this state of the case, and the present war is a conflict

between the representative system founded on the rights of the people, and the hereditary system founded in usurpation. As to what are called Monarchy, Royalty, and Aristocracy, they do not, either as things or as terms, sufficiently describe the hereditary system; they are but secondary things or signs of the hereditary system, and which fall of themselves if that system has not a right to exist. Were there no such terms as Monarchy, Royalty, and Aristocracy, or were other terms substituted in their place, the hereditary system, if it continued, would not be altered thereby. It would be the same system under any other titular name as it is now.

The character therefore of the revolutions of the present day distinguishes itself most definitively by grounding itself on the system of representative government, in opposition to the hereditary. No other distinction reaches the whole of the principle.

Having thus opened the case generally, I proceed, in the first place, to examine the hereditary system, because it has the priority in point of time. The representative system is the invention of the modern world; and, that no doubt may arise as to my own opinion, I declare it before hand, which is, *that there is not a problem in Euclid more mathematically true, than that hereditary government has not a right to exist. When therefore we take from any man the exercise of hereditary power, we take away that which he never had the right to possess, and which no law or custom could, or ever can, give him a title to.*

The arguments that have hitherto been employed against the hereditary system have been chiefly founded upon the absurdity of it, and its incompetency to the purpose of good government. Nothing can present to our judgment, or to our imagination, a figure of greater absurdity, than that of seeing the government of a nation fall, as it frequently does, into the hands of a lad necessarily destitute of experience, and often little better than a fool. It is an insult to every man of years, of character, and of talents, in a country. The moment we begin to reason upon the hereditary system, it falls into derision; let but a single idea begin, and a thousand will soon follow. Insignificance, imbecility, childhood, dotage, want of moral character; in fine, every defect serious or laughable unite to hold up the hereditary system as a figure of ridicule. Leaving, however, the ridiculousness of the thing to the reflections of the reader, I proceed to the more important part of the question, namely, whether such a system has a right to exist.

To be satisfied of the right of a thing to exist, we must be satisfied that it had a right to begin. If it had not a right to begin, it has not a right to continue. By what right then did the hereditary system begin? Let a man but ask himself this question, and he will find that he cannot satisfy himself with an answer.

The right which any man or any family had to set itself up at first to govern a nation, and to establish itself hereditarily, was no other than the right which Robespierre had to do the same thing in France. If he had none, they had none. If they had any, he had as much; for it is impossible to discover superiority of right in any family, by virtue of which hereditary government could begin. The Capets, the Guelphs, the Robespierres, the Marats, are all on the same standing as to the question of right. It belongs exclusively to none.

It is one step towards liberty, to perceive that hereditary government could not begin as an exclusive right in any family. The next point will be, whether, having once begun, it could grow into a right by the influence of time.

This would be supposing an absurdity; for either it is putting time in the place of principle, or making it superior to principle; whereas time has no more connection with, or influence upon principle, than principle has upon time. The wrong which began a thousand years ago, is as much a wrong as if it began to-day; and the right which originates to-day, is as much a right as if it had the sanction of a thousand years. Time with respect to principles is an eternal now: it has no operation upon them: it changes nothing of their nature and qualities. But what have we to do with a thousand years? Our life-time is but a short portion of that period, and if we find the wrong in existence as soon as we begin to live, that is the point of time at which it begins to us; and our right to resist it is the same as if it never existed before.

As hereditary government could not begin as a natural right in any family, nor derive after its commencement any right from time, we have only to examine whether there exist in a nation a right to set it up, and establish it by what is called law, as has been done in England. I answer NO; and that any law or any constitution made for that purpose is an act of treason against the right of every minor in the nation, at the time it is made, and against the rights of all succeeding generations. I shall speak upon each

of those cases. First, of the minor at the time such law is made. Secondly, of the generations that are to follow.

A nation, in a collective sense, comprehends all the individuals of whatever age, from just born to just dying. Of these, one part will be minors, and the other aged. The average of life is not exactly the same in every climate and country, but in general, the minority in years are the majority in numbers; that is, the number of persons under twenty-one years, is greater than the number of persons above that age. This difference in number is not necessary to the establishment of the principle I mean to lay down, but it serves to shew the justice of it more strongly. The principle would be equally as good, if the majority in years were also the majority in numbers.

The rights of minors are as sacred as the rights of the aged. The difference is altogether in the different age of the two parties, and nothing in the nature of the rights; the rights are the same rights; and are to be preserved inviolate for the inheritance of the minors when they shall come of age. During the minority of minors their rights are under the sacred guardianship of the aged. The minor cannot surrender them; the guardian cannot dispossess him; consequently, the aged part of a nation, who are the law-makers for the time being, and who, in the march of life are but a few years ahead of those who are yet minors, and to whom they must shortly give place, have not and cannot have the right to make a law to set up and establish hereditary government, or, to speak more distinctly, *an hereditary succession of governors*; because it is an attempt to deprive every minor in the nation, at the time such a law is made, of his inheritance of rights when he shall come of age, and to subjugate him to a system of government to which, during his minority, he could neither consent nor object.

If a person who is a minor at the time such a law is proposed, had happened to have been born a few years sooner, so as to be of the age of twenty-one years at the time of proposing it, his right to have objected against it, to have exposed the injustice and tyrannical principles of it, and to have voted against it, will be admitted on all sides. If, therefore, the law operates to prevent his exercising the same rights after he comes of age as he would have had a right to exercise had he been of age at the time, it is undeniably a law to take away and annul the rights of every person in the

nation who shall be a minor at the time of making such a law, and consequently the right to make it cannot exist.

I come now to speak of government by hereditary succession, as it applies to succeeding generations; and to shew that in this case, as in the case of minors, there does not exist in a nation a right to set it up.

A nation, though continually existing, is continually in a state of renewal and succession. It is never stationary.

Every day produces new births, carries minors forward to maturity, and old persons from the stage. In this ever running flood of generations there is no part superior in authority to another. Could we conceive an idea of superiority in any, at what point of time, or in what century of the world, are we to fix it? To what cause are we to ascribe it? By what evidence are we to prove it? By what criterion are we to know it? A single reflection will teach us that our ancestors, like ourselves, were but tenants for life in the great freehold of rights. The fee-absolute was not in them, it is not in us, it belongs to the whole family of man, thro* all ages. If we think otherwise than this, we think either as slaves or as tyrants. As slaves, if we think that any former generation had a right to bind us; as tyrants, if we think that we have authority to bind the generations that are to follow.

It may not be inapplicable to the subject, to endeavour to define what is to be understood by a generation, in the sense the word is here used.

As a natural term its meaning is sufficiently clear. The father, the son, the grandson, are so many distinct generations. But when we speak of a generation as describing the persons in whom legal authority resides, as distinct from another generation of the same description who are to succeed them, it comprehends all those who are above the age of twenty-one years, at the time that we count from; and a generation of this kind will continue in authority between fourteen and twenty-one years, that is, until the number of minors, who shall have arrived at age, shall be greater than the number of persons remaining of the former stock.

For example: if France, at this or any other moment, contains twenty-four millions of souls, twelve millions will be males, and twelve females. Of the twelve millions of males, six millions will be of the age of twenty-one years, and six will be under, and the authority to govern will reside in the first six. But every day will make some alteration, and in twenty-one years every one of those minors who survives will have arrived at age, and the

greater part of the former stock will be gone: the majority of persons then living, in whom the legal authority resides, will be composed of those who, twenty-one years before, had no legal existence. Those will be fathers and grandfathers in their turn, and, in the next twenty-one years, (or less) another race of minors, arrived at age, will succeed them, and so on.

As this is ever the case, and as every generation is equal in rights to another, it consequently follows, that there cannot be a right in any to establish government by hereditary succession, because it would be supposing itself possessed of a right superior to the rest, namely, that of commanding by its own authority how the world shall be hereafter governed and who shall govern it. Every age and generation is, and must be, (as a matter of right,) as free to act for itself in all cases, as the age and generation that preceded it. The vanity and presumption of governing beyond the grave is the most ridiculous and insolent of all tyrannies. Man has no property in man, neither has one generation a property in the generations that are to follow.

In the first part of the Rights of Man I have spoken of government by hereditary succession; and I will here close the subject with an extract from that work, which states it under the two following heads. (1)

1 The quotation, here omitted, will be found in vol. ii. of this work, beginning with p. 364, and continuing, with a few omissions, to the 15th line of p. 366. This "Dissertation" was originally written for circulation in Holland, where Paine's "Rights of Man" was not well known.—Editor.

The history of the English parliament furnishes an example of this kind; and which merits to be recorded, as being the greatest instance of legislative ignorance and want of principle that is to be found in any country. The case is as follows:

The English parliament of 1688, imported a man and his wife from Holland, *William and Mary*, and made them king and queen of England. (2) Having done this, the said parliament made a law to convey the government of the country to the heirs of William and Mary, in the following words: "We, the lords spiritual and temporal, and commons, do, in the name of the people of England, most humbly and faithfully submit *ourselves, our heirs, and posterities*, to William and Mary, *their heirs and posterities*, for ever." And in a subsequent law, as quoted by Edmund Burke, the said parliament,

in the name of the people of England then living, *binds the said people, their heirs and posterities, to William and Mary, their heirs and posterities, to the end of time.*

2 "The Bill of Rights (temp. William III.) shows that the Lords and Commons met not in Parliament but in convention, that they declared against James II., and in favour of William III. The latter was accepted as sovereign, and, when monarch. Acts of Parliament were passed confirming what had been done."—Joseph Fisher in *Notes and Queries* (London), May 2, 1874. This does not affect Paine's argument, as a Convention could have no more right to bind the future than a Parliament.—Editor..

It is not sufficient that we laugh at the ignorance of such law-makers; it is necessary that we reprobate their want of principle. The constituent assembly of France, 1789, fell into the same vice as the parliament of England had done, and assumed to establish an hereditary succession in the family of the Capets, as an act of the constitution of that year. That every nation, *for the time being*, has a right to govern itself as it pleases, must always be admitted; but government by hereditary succession is government for another race of people, and not for itself; and as those on whom it is to operate are not yet in existence, or are minors, so neither is the right in existence to set it up for them, and to assume such a right is treason against the right of posterity.

I here close the arguments on the first head, that of government by hereditary succession; and proceed to the second, that of government by election and representation; or, as it may be concisely expressed, *representative government*, in contra-distinction to *hereditary government*.

Reasoning by exclusion, if *hereditary government* has not a right to exist, and that it has not is proveable, *representative government* is admitted of course.

In contemplating government by election and representation, we amuse not ourselves in enquiring when or how, or by what right, it began. Its origin is ever in view. Man is himself the origin and the evidence of the right. It appertains to him in right of his existence, and his person is the title deed.(1)

The true and only true basis of representative government is equality of Rights. Every man has a right to one vote, and no more, in the choice of representatives. The rich have no more right to exclude the poor from the

right of voting, or of electing and being elected, than the poor have to exclude the rich; and wherever it is attempted, or proposed, on either side, it is a question of force and not of right. Who is he that would exclude another? That other has a right to exclude him.

That which is now called aristocracy implies an inequality of rights; but who are the persons that have a right to establish this inequality? Will the rich exclude themselves? No. Will the poor exclude themselves? No. By what right then can any be excluded? It would be a question, if any man or class of men have a right to exclude themselves; but, be this as it may, they cannot have the right to exclude another. The poor will not delegate such a right to the rich, nor the rich to the poor, and to assume it is not only to assume arbitrary power, but to assume a right to commit robbery. Personal rights, of which the right of voting for representatives is one, are a species of property of the most sacred kind: and he that would employ his pecuniary property, or presume upon the influence it gives him, to dispossess or rob another of his property of rights, uses that pecuniary property as he would use fire-arms, and merits to have it taken from him.

1 "The sacred rights of mankind are not to be rummaged for among old parchments or musty records. They are written as with a sunbeam in the whole volume of human nature by the hand of Divinity itself, and can never be erased or obscured by mortal power."—Alexander Hamilton, 1775. (Cf. Rights of Man, Toi. ii., p. 304): "Portions of antiquity by proving everything establish nothing. It is authority against authority all the way, till we come to the divine origin of the rights of man at the creation."—Editor..

Inequality of rights is created by a combination in one part of the community to exclude another part from its rights. Whenever it be made an article of a constitution, or a law, that the right of voting, or of electing and being elected, shall appertain exclusively to persons possessing a certain quantity of property, be it little or much, it is a combination of the persons possessing that quantity to exclude those who do not possess the same quantity. It is investing themselves with powers as a self-created part of society, to the exclusion of the rest.

It is always to be taken for granted, that those who oppose an equality of rights never mean the exclusion should take place on themselves; and in this view of the case, pardoning the vanity of the thing, aristocracy is a subject of laughter. This self-soothing vanity is encouraged by another idea not less selfish, which is, that the opposers conceive they are playing a safe

game, in which there is a chance to gain and none to lose; that at any rate the doctrine of equality includes *them*, and that if they cannot get more rights than those whom they oppose and would exclude, they shall not have less. This opinion has already been fatal to thousands, who, not contented with *equal rights*, have sought more till they lost all, and experienced in themselves the degrading *inequality* they endeavoured to fix upon others.

In any view of the case it is dangerous and impolitic, sometimes ridiculous, and always unjust, to make property the criterion of the right of voting. If the sum or value of the property upon which the right is to take place be considerable, it will exclude a majority of the people, and unite them in a common interest against the government and against those who support it; and as the power is always with the majority, they can overturn such a government and its supporters whenever they please.

If, in order to avoid this danger, a small quantity of property be fixed, as the criterion of the right, it exhibits liberty in disgrace, by putting it in competition with accident and insignificance. When a brood-mare shall fortunately produce a foal or a mule that, by being worth the sum in question, shall convey to its owner the right of voting, or by its death take it from him, in whom does the origin of such a right exist? Is it in the man, or in the mule? When we consider how many ways property may be acquired without merit, and lost without a crime, we ought to spurn the idea of making it a criterion of rights.

But the offensive part of the case is, that this exclusion from the right of voting implies a stigma on the moral character of the persons excluded; and this is what no part of the community has a right to pronounce upon another part. No external circumstance can justify it: wealth is no proof of moral character; nor poverty of the want of it. On the contrary, wealth is often the presumptive evidence of dishonesty; and poverty the negative evidence of innocence. If therefore property, whether little or much, be made a criterion, the means by which that property has been acquired ought to be made a criterion also.

The only ground upon which exclusion from the right of voting is consistent with justice, would be to inflict it as a punishment for a certain time upon those who should propose to take away that right from others. The right of voting for representatives is the primary right by which other rights are protected. To take away this right is to reduce a man to slavery,

for slavery consists in being subject to the will of another, and he that has not a vote in the election of representatives is in this case. The proposal therefore to disfranchise any class of men is as criminal as the proposal to take away property. When we speak of right, we ought always to unite with it the idea of duties: rights become duties by reciprocity. The right which I enjoy becomes my duty to guarantee it to another, and he to me; and those who violate the duty justly incur a forfeiture of the right.

In a political view of the case, the strength and permanent security of government is in proportion to the number of people interested in supporting it. The true policy therefore is to interest the whole by an equality of rights, for the danger arises from exclusions. It is possible to exclude men from the right of voting, but it is impossible to exclude them from the right of rebelling against that exclusion; and when all other rights are taken away, the right of rebellion is made perfect.

While men could be persuaded they had no rights, or that rights appertained only to a certain class of men, or that government was a thing existing in right of itself, it was not difficult to govern them authoritatively. The ignorance in which they were held, and the superstition in which they were instructed, furnished the means of doing it. But when the ignorance is gone, and the superstition with it; when they perceive the imposition that has been acted upon them; when they reflect that the cultivator and the manufacturer are the primary means of all the wealth that exists in the world, beyond what nature spontaneously produces; when they begin to feel their consequence by their usefulness, and their right as members of society, it is then no longer possible to govern them as before. The fraud once detected cannot be re-acted. To attempt it is to provoke derision, or invite destruction.

That property will ever be unequal is certain. Industry, superiority of talents, dexterity of management, extreme frugality, fortunate opportunities, or the opposite, or the means of those things, will ever produce that effect, without having recourse to the harsh, ill sounding names of avarice and oppression; and besides this, there are some men who, though they do not despise wealth, will not stoop to the drudgery or the means of acquiring it, nor will be troubled with it beyond their wants or their independence; whilst in others there is an avidity to obtain it by every means not punishable; it makes the sole business of their lives, and they follow it as a religion. All

that is required with respect to property is to obtain it honestly, and not employ it criminally; but it is always criminally employed when it is made a criterion for exclusive rights.

In institutions that are purely pecuniary, such as that of a bank or a commercial company, the rights of the members composing that company are wholly created by the property they invest therein; and no other rights are represented in the government of that company, than what arise out of that property; neither has that government cognizance of *any thing but property*.

But the case is totally different with respect to the institution of civil government, organized on the system of representation. Such a government has cognizance of every thing, and of *every man* as a member of the national society, whether he has property or not; and, therefore, the principle requires that *every man*, and *every kind of right*, be represented, of which the right to acquire and to hold property is but one, and that not of the most essential kind. The protection of a man's person is more sacred than the protection of property; and besides this, the faculty of performing any kind of work or services by which he acquires a livelihood, or maintaining his family, is of the nature of property. It is property to him; he has acquired it; and it is as much the object of his protection as exterior property, possessed without that faculty, can be the object of protection in another person.

I have always believed that the best security for property, be it much or little, is to remove from every part of the community, as far as can possibly be done, every cause of complaint, and every motive to violence; and this can only be done by an equality of rights. When rights are secure, property is secure in consequence. But when property is made a pretence for unequal or exclusive rights, it weakens the right to hold the property, and provokes indignation and tumult; for it is unnatural to believe that property can be secure under the guarantee of a society injured in its rights by the influence of that property.

Next to the injustice and ill-policy of making property a pretence for exclusive rights, is the unaccountable absurdity of giving to mere *sound* the idea of property, and annexing to it certain rights; for what else is a *title* but sound? Nature is often giving to the world some extraordinary men who

arrive at fame by merit and universal consent, such as Aristotle, Socrates, Plato, &c. They were truly great or noble.

But when government sets up a manufactory of nobles, it is as absurd as if she undertook to manufacture wise men. Her nobles are all counterfeits.

This wax-work order has assumed the name of aristocracy; and the disgrace of it would be lessened if it could be considered only as childish imbecility. We pardon foppery because of its insignificance; and on the same ground we might pardon the foppery of Titles. But the origin of aristocracy was worse than foppery. It was robbery. The first aristocrats in all countries were brigands. Those of later times, sycophants.

It is very well known that in England, (and the same will be found in other countries) the great landed estates now held in descent were plundered from the quiet inhabitants at the conquest. The possibility did not exist of acquiring such estates honestly. If it be asked how they could have been acquired, no answer but that of robbery can be given. That they were not acquired by trade, by commerce, by manufactures, by agriculture, or by any reputable employment, is certain. How then were they acquired? Blush, aristocracy, to hear your origin, for your progenitors were Thieves. They were the Robespierres and the Jacobins of that day. When they had committed the robbery, they endeavoured to lose the disgrace of it by sinking their real names under fictitious ones, which they called Titles. It is ever the practice of Felons to act in this manner. They never pass by their real names.(1)

1 This and the preceding paragraph have been omitted from some editions.—Editor.

As property, honestly obtained, is best secured by an equality of Rights, so ill-gotten property depends for protection on a monopoly of rights. He who has robbed another of his property, will next endeavour to disarm him of his rights, to secure that property; for when the robber becomes the legislator he believes himself secure. That part of the government of England that is called the house of lords, was originally composed of persons who had committed the robberies of which I have been speaking. It was an association for the protection of the property they had stolen.

But besides the criminality of the origin of aristocracy, it has an injurious effect on the moral and physical character of man. Like slavery it debilitates

the human faculties; for as the mind bowed down by slavery loses in silence its elastic powers, so, in the contrary extreme, when it is buoyed up by folly, it becomes incapable of exerting them, and dwindles into imbecility. It is impossible that a mind employed upon ribbands and titles can ever be great. The childishness of the objects consumes the man.

It is at all times necessary, and more particularly so during the progress of a revolution, and until right ideas confirm themselves by habit, that we frequently refresh our patriotism by reference to first principles. It is by tracing things to their origin that we learn to understand them: and it is by keeping that line and that origin always in view that we never forget them.

An enquiry into the origin of Rights will demonstrate to us that *rights* are not *gifts* from one man to another, nor from one class of men to another; for who is he who could be the first giver, or by what principle, or on what authority, could he possess the right of giving? A declaration of rights is not a creation of them, nor a donation of them. It is a manifest of the principle by which they exist, followed by a detail of what the rights are; for every civil right has a natural right for its foundation, and it includes the principle of a reciprocal guarantee of those rights from man to man. As, therefore, it is impossible to discover any origin of rights otherwise than in the origin of man, it consequently follows, that rights appertain to man in right of his existence only, and must therefore be equal to every man. The principle of an *equality of rights* is clear and simple. Every man can understand it, and it is by understanding his rights that he learns his duties; for where the rights of men are equal, every man must finally see the necessity of protecting the rights of others as the most effectual security for his own. But if, in the formation of a constitution, we depart from the principle of equal rights, or attempt any modification of it, we plunge into a labyrinth of difficulties from which there is no way out but by retreating. Where are we to stop? Or by what principle are we to find out the point to stop at, that shall discriminate between men of the same country, part of whom shall be free, and the rest not? If property is to be made the criterion, it is a total departure from every moral principle of liberty, because it is attaching rights to mere matter, and making man the agent of that matter. It is, moreover, holding up property as an apple of discord, and not only exciting but justifying war against it; for I maintain the principle, that when property is used as an instrument to take away the rights of those who may happen not to possess

property, it is used to an unlawful purpose, as fire-arms would be in a similar case.

In a state of nature all men are equal in rights, but they are not equal in power; the weak cannot protect themselves against the strong. This being the case, the institution of civil society is for the purpose of making an equalization of powers that shall be parallel to, and a guarantee of, the equality of rights. The laws of a country, when properly constructed, apply to this purpose. Every man takes the arm of the law for his protection as more effectual than his own; and therefore every man has an equal right in the formation of the government, and of the laws by which he is to be governed and judged. In extensive countries and societies, such as America and France, this right in the individual can only be exercised by delegation, that is, by election and representation; and hence it is that the institution of representative government arises.

Hitherto, I have confined myself to matters of principle only. First, that hereditary government has not a right to exist; that it cannot be established on any principle of right; and that it is a violation of all principle. Secondly, that government by election and representation has its origin in the natural and eternal rights of man; for whether a man be his own lawgiver, as he would be in a state of nature; or whether he exercises his portion of legislative sovereignty in his own person, as might be the case in small democracies where all could assemble for the formation of the laws by which they were to be governed; or whether he exercises it in the choice of persons to represent him in a national assembly of representatives, the origin of the right is the same in all cases. The first, as is before observed, is defective in power; the second, is practicable only in democracies of small extent; the third, is the greatest scale upon which human government can be instituted.

Next to matters of *principle* are matters of *opinion*, and it is necessary to distinguish between the two. Whether the rights of men shall be equal is not a matter of opinion but of right, and consequently of principle; for men do not hold their rights as grants from each other, but each one in right of himself. Society is the guardian but not the giver. And as in extensive societies, such as America and France, the right of the individual in matters of government cannot be exercised but by election and representation, it consequently follows that the only system of government consistent with

principle, where simple democracy is impracticable, is the representative system. But as to the organical part, or the manner in which the several parts of government shall be arranged and composed, it is altogether *matter of opinion*. It is necessary that all the parts be conformable with the *principle of equal rights*; and so long as this principle be religiously adhered to, no very material error can take place, neither can any error continue long in that part which falls within the province of opinion.

In all matters of opinion, the social compact, or the principle by which society is held together, requires that the majority of opinions becomes the rule for the whole, and that the minority yields practical obedience thereto. This is perfectly conformable to the principle of equal rights: for, in the first place, every man has a *right to give an opinion* but no man has a right that his opinion should *govern the rest*. In the second place, it is not supposed to be known beforehand on which side of any question, whether for or against, any man's opinion will fall. He may happen to be in a majority upon some questions, and in a minority upon others; and by the same rule that he expects obedience in the one case, he must yield it in the other. All the disorders that have arisen in France, during the progress of the revolution, have had their origin, not in the *principle of equal rights*, but in the violation of that principle. The principle of equal rights has been repeatedly violated, and that not by the majority but by the minority, and *that minority has been composed of men possessing property as well as of men without property; property, therefore, even upon the experience already had, is no more a criterion of character than it is of rights*. It will sometimes happen that the minority are right, and the majority are wrong, but as soon as experience proves this to be the case, the minority will increase to a majority, and the error will reform itself by the tranquil operation of freedom of opinion and equality of rights. Nothing, therefore, can justify an insurrection, neither can it ever be necessary where rights are equal and opinions free.

Taking then the principle of equal rights as the foundation of the revolution, and consequently of the constitution, the organical part, or the manner in which the several parts of the government shall be arranged in the constitution, will, as is already said, fall within the province of opinion.

Various methods will present themselves upon a question of this kind, and tho' experience is yet wanting to determine which is the best, it has, I

think, sufficiently decided which is the worst. That is the worst, which in its deliberations and decisions is subject to the precipitancy and passion of an individual; and when the whole legislature is crowded into one body it is an individual in mass. In all cases of deliberation it is necessary to have a corps of reserve, and it would be better to divide the representation by lot into two parts, and let them revise and correct each other, than that the whole should sit together, and debate at once.

Representative government is not necessarily confined to any one particular form. The principle is the same in all the forms under which it can be arranged. The equal rights of the people is the root from which the whole springs, and the branches may be arranged as present opinion or future experience shall best direct. As to that *hospital of incurables* (as Chesterfield calls it), the British house of peers, it is an excrescence growing out of corruption; and there is no more affinity or resemblance between any of the branches of a legislative body originating from the right of the people, and the aforesaid house of peers, than between a regular member of the human body and an ulcerated wen.

As to that part of government that is called the *executive*, it is necessary in the first place to fix a precise meaning to the word.

There are but two divisions into which power can be arranged. First, that of willing or decreeing the laws; secondly, that of executing or putting them in practice. The former corresponds to the intellectual faculties of the human mind, which reasons and determines what shall be done; the second, to the mechanical powers of the human body, that puts that determination into practice.(1) If the former decides, and the latter does not perform, it is a state of imbecility; and if the latter acts without the predetermination of the former, it is a state of lunacy. The executive department therefore is official, and is subordinate to the legislative, as the body is to the mind, in a state of health; for it is impossible to conceive the idea of two sovereignties, a sovereignty to *will*, and a sovereignty to *act*. The executive is not invested with the power of deliberating whether it shall act or not; it has no discretionary authority in the case; for it can *act no other thing* than what the laws decree, and it is *obliged* to act conformably thereto; and in this view of the case, the executive is made up of all the official departments that execute the laws, of which that which is called the judiciary is the chief.

1 Paine may have had in mind the five senses, with reference to the proposed five members of the Directory.—Editor..

But mankind have conceived an idea that *some kind of authority* is necessary to *superintend* the execution of the laws and to see that they are faithfully performed; and it is by confounding this superintending authority with the official execution that we get embarrassed about the term *executive power*. All the parts in the governments of the United States of America that are called THE EXECUTIVE, are no other than authorities to superintend the execution of the laws; and they are so far independent of the legislative, that they know the legislative only thro' the laws, and cannot be controuled or directed by it through any other medium.

In what manner this superintending authority shall be appointed, or composed, is a matter that falls within the province of opinion. Some may prefer one method and some another; and in all cases, where opinion only and not principle is concerned, the majority of opinions forms the rule for all. There are however some things deducible from reason, and evidenced by experience, that serve to guide our decision upon the case. The one is, never to invest any individual with extraordinary power; for besides his being tempted to misuse it, it will excite contention and commotion in the nation for the office. Secondly, never to invest power long in the hands of any number of individuals. The inconveniences that may be supposed to accompany frequent changes are less to be feared than the danger that arises from long continuance.

I shall conclude this discourse with offering some observations on the means of *preserving liberty*; for it is not only necessary that we establish it, but that we preserve it.

It is, in the first place, necessary that we distinguish between the means made use of to overthrow despotism, in order to prepare the way for the establishment of liberty, and the means to be used after the despotism is overthrown.

The means made use of in the first case are justified by necessity. Those means are, in general, insurrections; for whilst the established government of despotism continues in any country it is scarcely possible that any other means can be used. It is also certain that in the commencement of a revolution, the revolutionary party permit to themselves a *discretionary exercise of power* regulated more by circumstances than by principle,

which, were the practice to continue, liberty would never be established, or if established would soon be overthrown. It is never to be expected in a revolution that every man is to change his opinion at the same moment. There never yet was any truth or any principle so irresistibly obvious, that all men believed it at once. Time and reason must co-operate with each other to the final establishment of any principle; and therefore those who may happen to be first convinced have not a right to persecute others, on whom conviction operates more slowly. The moral principle of revolutions is to instruct, not to destroy.

Had a constitution been established two years ago, (as ought to have been done,) the violences that have since desolated France and injured the character of the revolution, would, in my opinion, have been prevented.⁽¹⁾ The nation would then have had a bond of union, and every individual would have known the line of conduct he was to follow. But, instead of this, a revolutionary government, a thing without either principle or authority, was substituted in its place; virtue and crime depended upon accident; and that which was patriotism one day, became treason the next. All these things have followed from the want of a constitution; for it is the nature and intention of a constitution to *prevent governing by party*, by establishing a common principle that shall limit and control the power and impulse of party, and that says to all parties, *thus far shalt thou go and no further*. But in the absence of a constitution, men look entirely to party; and instead of principle governing party, party governs principle.

¹ The Constitution adopted August 10, 1793, was by the determination of "The Mountain," suspended during the war against France. The revolutionary government was thus made chronic—Editor.

An avidity to punish is always dangerous to liberty. It leads men to stretch, to misinterpret, and to misapply even the best of laws. He that would make his own liberty secure, must guard even his enemy from oppression; for if he violates this duty, he establishes a precedent that will reach to himself. Thomas Paine.

Paris, July, 1795.

XXV. THE CONSTITUTION OF 1795.

SPEECH IN THE FRENCH NATIONAL CONVENTION, JULY 7, 1795.

On the motion of Lanthenas, "That permission be granted to Thomas Paine, to deliver his sentiments on the declaration of rights and the constitution," Thomas Paine ascended the Tribune; and no opposition being made to the motion, one of the Secretaries, who stood by Mr. Paine, read his speech, of which the following is a literal translation:

Citizens:

The effects of a malignant fever, with which I was afflicted during a rigorous confinement in the Luxembourg, have thus long prevented me from attending at my post in the bosom of the Convention, and the magnitude of the subject under discussion, and no other consideration on earth, could induce me now to repair to my station.

A recurrence to the vicissitudes I have experienced, and the critical situations in which I have been placed in consequence of the French Revolution, will throw upon what I now propose to submit to the Convention the most unequivocal proofs of my integrity, and the rectitude of those principles which have uniformly influenced my conduct.

In England I was proscribed for having vindicated the French Revolution, and I have suffered a rigorous imprisonment in France for having pursued a similar mode of conduct. During the reign of terrorism, I was a close prisoner for eight long months, and remained so above three months after the era of the 10th Thermidor.⁽¹⁾ I ought, however, to state, that I was not persecuted by the *people* either of England or France. The proceedings in both countries were the effects of the despotism existing in their respective governments. But, even if my persecution had originated in the people at large, my principles and conduct would still have remained the same. Principles which are influenced and subject to the controul of tyranny, have not their foundation in the heart.

¹ By the French republican calendar this was nearly the time. Paine's imprisonment lasted from December 28, 1793, to

November 4, 1794. He was by a unanimous vote recalled to the Convention, Dec 7, 1794, but his first appearance there was on July 7, 1795.—Editor.,

A few days ago, I transmitted to you by the ordinary mode of distribution, a short Treatise, entitled "Dissertation on the First Principles of Government." This little work I did intend to have dedicated to the people of Holland, who, about the time I began to write it, were determined to accomplish a Revolution in their Government, rather than to the people of France, who had long before effected that glorious object. But there are, in the Constitution which is about to be ratified by the Convention certain articles, and in the report which preceded it certain points, so repugnant to reason, and incompatible with the true principles of liberty, as to render this Treatise, drawn up for another purpose, applicable to the present occasion, and under this impression I presumed to submit it to your consideration.

If there be faults in the Constitution, it were better to expunge them now, than to abide the event of their mischievous tendency; for certain it is, that the plan of the Constitution which has been presented to you is not consistent with the grand object of the Revolution, nor congenial to the sentiments of the individuals who accomplished it.

To deprive half the people in a nation of their rights as citizens, is an easy matter in theory or on paper: but it is a most dangerous experiment, and rarely practicable in the execution.

I shall now proceed to the observations I have to offer on this important subject; and I pledge myself that they shall be neither numerous nor diffusive.

In my apprehension, a constitution embraces two distinct parts or objects, the *Principle* and the *Practice*; and it is not only an essential but an indispensable provision that the practice should emanate from, and accord with, the principle. Now I maintain, that the reverse of this proposition is the case in the plan of the Constitution under discussion. The first article, for instance, of the *political state* of citizens, (v. Title ii. of the Constitution,) says:

"Every man born and resident in France, who, being twenty-one years of age, has inscribed his name on the Civic Register of his Canton, and who has lived afterwards one year on the territory of the Republic, and who pays any direct contribution whatever, real or personal, is a French citizen." (1)

1 The article as ultimately adopted substituted "person" for "man," and for "has inscribed his name" (a slight educational test) inserted "whose name is inscribed."—Editor.

I might here ask, if those only who come under the above description are to be considered as citizens, what designation do you mean to give the rest of the people? I allude to that portion of the people on whom the principal part of the labour falls, and on whom the weight of indirect taxation will in the event chiefly press. In the structure of the social fabric, this class of people are infinitely superior to that privileged order whose only qualification is their wealth or territorial possessions. For what is trade without merchants? What is land without cultivation? And what is the produce of the land without manufactures? But to return to the subject.

In the first place, this article is incompatible with the three first articles of the Declaration of Rights, which precede the Constitutional Act.

The first article of the Declaration of Rights says:

"The end of society is the public good; and the institution of government is to secure to every individual the enjoyment of his rights."

But the article of the Constitution to which I have just adverted proposes as the object of society, not the public good, or in other words, the good of *all*, but a partial good; or the good only of a *few*; and the Constitution provides solely for the rights of this few, to the exclusion of the many.

The second article of the Declaration of Rights says:

"The Rights of Man in society are Liberty, Equality, Security of his person and property."

But the article alluded to in the Constitution has a direct tendency to establish the reverse of this position, inasmuch as the persons excluded by this *inequality* can neither be said to possess liberty, nor security against oppression. They are consigned totally to the caprice and tyranny of the rest.

The third article of the Declaration of Rights says:

"Liberty consists in such acts of volition as are not injurious to others."

But the article of the Constitution, on which I have observed, breaks down this barrier. It enables the liberty of one part of society to destroy the freedom of the other.

Having thus pointed out the inconsistency of this article to the Declaration of Rights, I shall proceed to comment on that of the same article which makes a direct contribution a necessary qualification to the right of citizenship.

A modern refinement on the object of public revenue has divided the taxes, or contributions, into two classes, the *direct* and the *indirect*, without being able to define precisely the distinction or difference between them, because the effect of both is the same.

Those are designated indirect taxes which fall upon the consumers of certain articles, on which the tax is imposed, because, the tax being included in the price, the consumer pays it without taking notice of it.

The same observation is applicable to the territorial tax. The land proprietors, in order to reimburse themselves, will rack-rent their tenants: the farmer, of course, will transfer the obligation to the miller, by enhancing the price of grain; the miller to the baker, by increasing the price of flour; and the baker to the consumer, by raising the price of bread. The territorial tax, therefore, though called *direct*, is, in its consequences, *indirect*.

To this tax the land proprietor contributes only in proportion to the quantity of bread and other provisions that are consumed in his own family. The deficit is furnished by the great mass of the community, which comprehends every individual of the nation.

From the logical distinction between the direct and in-direct taxation, some emolument may result, I allow, to auditors of public accounts, &c., but to the people at large I deny that such a distinction (which by the by is without a difference) can be productive of any practical benefit. It ought not, therefore, to be admitted as a principle in the constitution.

Besides this objection, the provision in question does not affect to define, secure, or establish the right of citizenship. It consigns to the caprice or discretion of the legislature the power of pronouncing who shall, or shall not, exercise the functions of a citizen; and this may be done effectually, either by the imposition of a *direct or indirect* tax, according to the selfish views of the legislators, or by the mode of collecting the taxes so imposed.

Neither a tenant who occupies an extensive farm, nor a merchant or manufacturer who may have embarked a large capital in their respective pursuits, can ever, according to this system, attain the preemption of a citizen. On the other hand, any upstart, who has, by succession or

management, got possession of a few acres of land or a miserable tenement, may exultingly exercise the functions of a citizen, although perhaps neither possesses a hundredth part of the worth or property of a simple mechanic, nor contributes in any proportion to the exigencies of the State.

The contempt in which the old government held mercantile pursuits, and the obloquy that attached on merchants and manufacturers, contributed not a little to its embarrassments, and its eventual subversion; and, strange to tell, though the mischiefs arising from this mode of conduct are so obvious, yet an article is proposed for your adoption which has a manifest tendency to restore a defect inherent in the monarchy.

I shall now proceed to the second article of the same Title, with which I shall conclude my remarks.

The second article says, "Every French soldier, who shall have served one or more campaigns in the cause of liberty, is deemed a citizen of the republic, without any respect or reference to other qualifications."(1)

It would seem, that in this Article the Committee were desirous of extricating themselves from a dilemma into which they had been plunged by the preceding article. When men depart from an established principle they are compelled to resort to trick and subterfuge, always shifting their means to preserve the unity of their objects; and as it rarely happens that the first expedient makes amends for the prostitution of principle, they must call in aid a second, of a more flagrant nature, to supply the deficiency of the former. In this manner legislators go on accumulating error upon error, and artifice upon artifice, until the mass becomes so bulky and incongruous, and their embarrassment so desperate, that they are compelled, as their last expedient, to resort to the very principle they had violated. The Committee were precisely in this predicament when they framed this article; and to me, I confess, their conduct appears specious rather than efficacious.(2)

1 This article eventually stood: "All Frenchmen who shall have made one or more campaigns for the establishment of the Republic, are citizens, without condition as to taxes."—Editor.

2 The head of the Committee (eleven) was the Abbi Sieves, whose political treachery was well known to Paine before it became known to the world by his services to Napoleon in overthrowing the Republic.—Editor.

It was not for himself alone, but for his family, that the French citizen, at the dawn of the revolution, (for then indeed every man was considered a citizen) marched soldier-like to the frontiers, and repelled a foreign invasion. He had it not in his contemplation, that he should enjoy liberty for the residue of his earthly career, and by his own act preclude his offspring from that inestimable blessing. No! He wished to leave it as an inheritance to his children, and that they might hand it down to their latest posterity. If a Frenchman, who united in his person the character of a Soldier and a Citizen, was now to return from the army to his peaceful habitation, he must address his small family in this manner: "Sorry I am, that I cannot leave to you a small portion of what I have acquired by exposing my person to the ferocity of our enemies and defeating their machinations. I have established the republic, and, painful the reflection, all the laurels which I have won in the field are blasted, and all the privileges to which my exertions have entitled me extend not beyond the period of my own existence!" Thus the measure that has been adopted by way of subterfuge falls short of what the framers of it speculated upon; for in conciliating the affections of the *Soldier*, they have subjected the *Father* to the most pungent sensations, by obliging him to adopt a generation of Slaves.

Citizens, a great deal has been urged respecting insurrections. I am confident that no man has a greater abhorrence of them than myself, and I am sorry that any insinuations should have been thrown out upon me as a promoter of violence of any kind. The whole tenor of my life and conversation gives the lie to those calumnies, and proves me to be a friend to order, truth and justice.

I hope you will attribute this effusion of my sentiments to my anxiety for the honor and success of the revolution. I have no interest distinct from that which has a tendency to meliorate the situation of mankind. The revolution, as far as it respects myself, has been productive of more loss and persecution than it is possible for me to describe, or for you to indemnify. But with respect to the subject under consideration, I could not refrain from declaring my sentiments.

In my opinion, if you subvert the basis of the revolution, if you dispense with principles, and substitute expedients, you will extinguish that enthusiasm and energy which have hitherto been the life and soul of the revolution; and you will substitute in its place nothing but a cold

indifference and self-interest, which will again degenerate into intrigue, cunning, and effeminacy.

But to discard all considerations of a personal and subordinate nature, it is essential to the well-being of the republic that the practical or organic part of the constitution should correspond with its principles; and as this does not appear to be the case in the plan that has been presented to you, it is absolutely necessary that it should be submitted to the revision of a committee, who should be instructed to compare it with the Declaration of Rights, in order to ascertain the difference between the two, and to make such alterations as shall render them perfectly consistent and compatible with each other.

XXVI. THE DECLINE AND FALL OF THE ENGLISH SYSTEM OF FINANCE.(1)

"On the verge, nay even in the gulph of bankruptcy."

1 This pamphlet, as Paine predicts at its close (no doubt on good grounds), was translated into all languages of Europe, and probably hastened the gold suspension of the Bank of England (1797), which it predicted. The British Government entrusted its reply to Ralph Broome and George Chalmers, who wrote pamphlets. There is in the French Archives an order for 1000 copies, April 27, 1796, nineteen days after Paine's pamphlet appeared. "Mr. Cobbett has made this little pamphlet a text-book for most of his elaborate treatises on our finances.... On the authority of a late Register of Mr. Cobbett's I learn that the profits arising from the sale of this pamphlet were devoted [by Paine] to the relief of the prisoners confined in Newgate for debt."—"Life of Paine," by Richard Carlile, 1819.—Editor..

Debates in Parliament.

Nothing, they say, is more certain than death, and nothing more uncertain than the time of dying; yet we can always fix a period beyond which man cannot live, and within some moment of which he will die. We are enabled to do this, not by any spirit of prophecy, or foresight into the event, but by observation of what has happened in all cases of human or animal existence. If then any other subject, such, for instance, as a system of finance, exhibits in its progress a series of symptoms indicating decay, its final dissolution is certain, and the period of it can be calculated from the symptoms it exhibits.

Those who have hitherto written on the English system of finance, (the funding system,) have been uniformly impressed with the idea that its downfall would happen *some time or other*. They took, however, no data for their opinion, but expressed it predictively,—or merely as opinion, from a conviction that the perpetual duration of such a system was a natural impossibility. It is in this manner that Dr. Price has spoken of it; and Smith, in his *Wealth of Nations*, has spoken in the same manner; that is, merely as opinion without data. "The progress," says Smith, "of the enormous debts, which at present oppress, and will in the long run *most probably ruin*, all the great nations of Europe [he should have said *governments*] has been

pretty uniform." But this general manner of speaking, though it might make some impression, carried with it no conviction.

It is not my intention to predict any thing; but I will show from data already known, from symptoms and facts which the English funding system has already exhibited publicly, that it will not continue to the end of Mr. Pitt's life, supposing him to live the usual age of a man. How much sooner it may fall, I leave to others to predict.

Let financiers diversify systems of credit as they will, it is nevertheless true, that every system of credit is a system of paper money. Two experiments have already been had upon paper money; the one in America, the other in France. In both those cases the whole capital was emitted, and that whole capital, which in America was called continental money, and in France assignats, appeared in circulation; the consequence of which was, that the quantity became so enormous, and so disproportioned to the quantity of population, and to the quantity' of objects upon which it could be employed, that the market, if I may so express it, was glutted with it, and the value of it fell. Between five and six years determined the fate of those experiments. The same fate would have happened to gold and silver, could gold and silver have been issued in the same abundant manner that paper had been, and confined within the country as paper money always is, by having no circulation out of it; or, to speak on a larger scale, the same thing would happen in the world, could the world be glutted with gold and silver, as America and France have been with paper.

The English system differs from that of America and France in this one particular, that its capital is kept out of sight; that is, it does not appear in circulation. Were the whole capital of the national debt, which at the time I write this is almost one hundred million pounds sterling, to be emitted in assignats or bills, and that whole quantity put into circulation, as was done in America and in France, those English assignats, or bills, would soon sink in value as those of America and France have done; and that in a greater degree, because the quantity of them would be more disproportioned to the quantity of population in England, than was the case in either of the other two countries. A nominal pound sterling in such bills would not be worth one penny.

But though the English system, by thus keeping the capital out of sight, is preserved from hasty destruction, as in the case of America and France, it

nevertheless approaches the same fate, and will arrive at it with the same certainty, though by a slower progress. The difference is altogether in the degree of speed by which the two systems approach their fate, which, to speak in round numbers, is as twenty is to one; that is, the English system, that of funding the capital instead of issuing it, contained within itself a capacity of enduring twenty times longer than the systems adopted by America and France; and at the end of that time it would arrive at the same common grave, the Potter's Field of paper money.

The datum, I take for this proportion of twenty to one, is the difference between a capital and the interest at five per cent. Twenty times the interest is equal to the capital. The accumulation of paper money in England is in proportion to the accumulation of the interest upon every new loan; and therefore the progress to the dissolution is twenty times slower than if the capital were to be emitted and put into circulation immediately. Every twenty years in the English system is equal to one year in the French and American systems.

Having thus stated the duration of the two systems, that of funding upon interest, and that of emitting the whole capital without funding, to be as twenty to one, I come to examine the symptoms of decay, approaching to dissolution, that the English system has already exhibited, and to compare them with similar systems in the French and American systems.

The English funding system began one hundred years ago; in which time there have been six wars, including the war that ended in 1697.

1. The war that ended, as I have just said, in 1697.
2. The war that began in 1702.
3. The war that began in 1739.
4. The war that began in 1756.
5. The American war, that began in 1775.
6. The present war, that began in 1793.

The national debt, at the conclusion of the war which ended in 1697, was twenty-one millions and an half. (See Smith's *Wealth of Nations*, chapter on Public Debts.) We now see it approaching fast to four hundred millions. If between these two extremes of twenty-one millions and four hundred millions, embracing the several expenses of all the including wars, there exist some common ratio that will ascertain arithmetically the amount of the

debts at the end of each war, as certainly as the fact is known to be, that ratio will in like manner determine what the amount of the debt will be in all future wars, and will ascertain the period within which the funding system will expire in a bankruptcy of the government; for the ratio I allude to, is the ratio which the nature of the thing has established for itself.

Hitherto no idea has been entertained that any such ratio existed, or could exist, that would determine a problem of this kind; that is, that would ascertain, without having any knowledge of the fact, what the expense of any former war had been, or what the expense of any future war would be; but it is nevertheless true that such a ratio does exist, as I shall show, and also the mode of applying it.

The ratio I allude to is not in arithmetical progression like the numbers 2, 3, 4, 5, 6, 7, 8, 9; nor yet in geometrical progression, like the numbers 2, 4, 8, 16, 32, 64, 128, 256; but it is in the series of one half upon each preceding number; like the numbers 8, 12, 18, 27, 40, 60, 90, 135.

Any person can perceive that the second number, 12, is produced by the preceding number, 8, and half 8; and that the third number, 18, is in like manner produced by the preceding number, 12, and half 12; and so on for the rest. They can also see how rapidly the sums increase as the ratio proceeds. The difference between the two first numbers is but four; but the difference between the two last is forty-five; and from thence they may see with what immense rapidity the national debt has increased, and will continue to increase, till it exceeds the ordinary powers of calculation, and loses itself in ciphers.

I come now to apply the ratio as a rule to determine in all cases.

I began with the war that ended in 1697, which was the war in which the funding system began. The expense of that war was twenty-one millions and an half. In order to ascertain the expense of the next war, I add to twenty-one millions and an half, the half thereof (ten millions and three quarters) which makes thirty-two millions and a quarter for the expense of that war. This thirty-two millions and a quarter, added to the former debt of twenty-one millions and an half, carries the national debt to fifty-three millions and three quarters. Smith, in his chapter on Public Debts, says, that the national debt was at this time fifty-three millions.

I proceed to ascertain the expense of the next war, that of 1739, by adding, as in the former case, one half to the expense of the preceding war.

The expense of the preceding war was thirty-two millions and a quarter; for the sake of even numbers, say, thirty-two millions; the half of which (16) makes forty-eight millions for the expense of that war.

I proceed to ascertain the expense of the war of 1756, by adding, according to the ratio, one half to the expense of the preceding war. The expense of the preceding war was taken at 48 millions, the half of which (24) makes 72 millions for the expense of that war. Smith, (chapter on Public Debts,) says, the expense of the war of 1756, was 72 millions and a quarter.

I proceed to ascertain the expense of the American war, of 1775, by adding, as in the former cases, one half to the expense of the preceding war. The expense of the preceding war was 72 millions, the half of which (36) makes 108 millions for the expense of that war. In the last edition of Smith, (chapter on Public Debts,) he says, the expense of the American war was *more than an hundred millions*.

I come now to ascertain the expense of the present war, supposing it to continue as long as former wars have done, and the funding system not to break up before that period. The expense of the preceding war was 108 millions, the half of which (54) makes 162 millions for the expense of the present war. It gives symptoms of going beyond this sum, supposing the funding system not to break up; for the loans of the last year and of the present year are twenty-two millions each, which exceeds the ratio compared with the loans of the preceding war. It will not be from the inability of procuring loans that the system will break up. On the contrary, it is the facility with which loans can be procured that hastens that event. The loans are altogether paper transactions; and it is the excess of them that brings on, with accelerating speed, that progressive depreciation of funded paper money that will dissolve the funding system.

I proceed to ascertain the expense of future wars, and I do this merely to show the impossibility of the continuance of the funding system, and the certainty of its dissolution.

The expense of the next war after the present war, according to the ratio that has ascertained the preceding cases, will be 243 millions.

Expense of the second war 364

————— third war 546

————— fourth war 819

3200 millions;

which, at only four per cent. will require taxes to the nominal amount of one hundred and twenty-eight millions to pay the annual interest, besides the interest of the present debt, and the expenses of government, which are not included in this account. Is there a man so mad, so stupid, as to suppose this system can continue?

When I first conceived the idea of seeking for some common ratio that should apply as a rule of measurement to all the cases of the funding system, so far as to ascertain the several stages of its approach to dissolution, I had no expectation that any ratio could be found that would apply with so much exactness as this does. I was led to the idea merely by observing that the funding system was a thing in continual progression, and that whatever was in a state of progression might be supposed to admit of, at least, some general ratio of measurement, that would apply without any very great variation. But who could have supposed that falling systems, or falling opinions, admitted of a ratio apparently as true as the descent of falling bodies? I have not made the ratio any more than Newton made the ratio of gravitation. I have only discovered it, and explained the mode of applying it.

To shew at one view the rapid progression of the funding system to destruction, and to expose the folly of those who blindly believe in its continuance, and who artfully endeavour to impose that belief upon others, I exhibit in the annexed table, the expense of each of the six wars since the funding system began, as ascertained by ratio, and the expense of the six wars yet to come, ascertained by the same ratio.

FIRST SIX WARS.				SECOND SIX WARS.			
1 .	.	.	21 millions	1 .	.	.	243 millions
2 .	.	.	33 "	2 .	.	.	364 "
3 .	.	.	48 "	3 .	.	.	546 "
4 .	.	.	72 "* "	4 .	.	.	819 "
5 .	.	.	108 "	5 .	.	.	1228 "
6 .	.	.	162 "	6 .	.	.	1842 "
Total £444 "				Total £5042 "			

* The actual expense of the war of 1739 did not come up to the sum ascertained by the ratio. But as that which is the natural disposition of a thing, as it is the natural

*disposition of a stream of water to descend, will, if impeded in its course, overcome by a new effort what it had lost by that impediment, so it was with respect to this war and the next (1756) taken collectively; for the expense of the war of 1756 restored the equilibrium of the ratio, as fully as if it had not been impeded. A circumstance that serves to prove the truth of the ratio more fully than if the interruption had not taken place. The war of 1739 *** languid; the efforts were below the value of money at that time; for the ratio is the measure of the depreciation of money in consequence of the funding system; or what comes to the same end, it is the measure of the increase of paper. Every additional quantity of it, whether in bank notes or otherwise, diminishes the real, though not the nominal value of the former quantity.—Author*

Those who are acquainted with the power with which even a small ratio, acting in progression, multiplies in a long series, will see nothing to wonder at in this table. Those who are not acquainted with that subject, and not knowing what else to say, may be inclined to deny it. But it is not their opinion one way, nor mine the other, that can influence the event. The table exhibits the natural march of the funding system to its irredeemable dissolution. Supposing the present government of England to continue, and to go on as it has gone on since the funding system began, I would not give twenty shillings for one hundred pounds in the funds to be paid twenty years hence. I do not speak this predictively; I produce the data upon which that belief is founded; and which data it is every body's interest to know, who have any thing to do with the funds, or who are going to bequeath property to their descendants to be paid at a future day.

Perhaps it may be asked, that as governments or ministers proceeded by no ratio in making loans or incurring debts, and nobody intended any ratio, or thought of any, how does it happen that there is one? I answer, that the ratio is founded in necessity; and I now go to explain what that necessity is.

It will always happen, that the price of labour, or of the produce of labour, be that produce what it may, will be in proportion to the quantity of money in a country, admitting things to take their natural course. Before the invention of the funding system, there was no other money than gold and silver; and as nature gives out those metals with a sparing hand, and in regular annual quantities from the mines, the several prices of things were proportioned to the quantity of money at that time, and so nearly stationary as to vary but little in any fifty or sixty years of that period.

When the funding system began, a substitute for gold and silver began also. That substitute was paper; and the quantity increased as the quantity of

interest increased upon accumulated loans. This appearance of a new and additional species of money in the nation soon began to break the relative value which money and the things it will purchase bore to each other before. Every thing rose in price; but the rise at first was little and slow, like the difference in units between two first numbers, 8 and 12, compared with the two last numbers 90 and 135, in the table. It was however sufficient to make itself considerably felt in a large transaction. When therefore government, by engaging in a new war, required a new loan, it was obliged to make a higher loan than the former loan, to balance the increased price to which things had risen; and as that new loan increased the quantity of paper in proportion to the new quantity of interest, it carried the price of things still higher than before. The next loan was again higher, to balance that further increased price; and all this in the same manner, though not in the same degree, that every new emission of continental money in America, or of assignats in France, was greater than the preceding emission, to make head against the advance of prices, till the combat could be maintained no longer. Herein is founded the necessity of which I have just spoken. That necessity proceeds with accelerating velocity, and the ratio I have laid down is the measure of that acceleration; or, to speak the technical language of the subject, it is the measure of the increasing depreciation of funded paper money, which it is impossible to prevent while the quantity of that money and of bank notes continues to multiply. What else but this can account for the difference between one war costing 21 millions, and another war costing 160 millions?

The difference cannot be accounted for on the score of extraordinary efforts or extraordinary achievements. The war that cost twenty-one millions was the war of the con-federates, historically called the grand alliance, consisting of England, Austria, and Holland in the time of William III. against Louis XIV. and in which the confederates were victorious. The present is a war of a much greater confederacy—a confederacy of England, Austria, Prussia, the German Empire, Spain, Holland, Naples, and Sardinia, eight powers, against the French Republic singly, and the Republic has beaten the whole confederacy.—But to return to my subject.

It is said in England, that the value of paper keeps equal with the value of gold and silver. But the case is not rightly stated; for the fact is, that the paper has *pulled down* the value of gold and silver to a level with itself. Gold and silver will not purchase so much of any purchasable article at this

day as if no paper had appeared, nor so much as it will in any country in Europe where there is no paper. How long this hanging together of money and paper will continue, makes a new case; because it daily exposes the system to sudden death, independent of the natural death it would otherwise suffer.

I consider the funding system as being now advanced into the last twenty years of its existence. The single circumstance, were there no other, that a war should now cost nominally one hundred and sixty millions, which when the system began cost but twenty-one millions, or that the loan for one year only (including the loan to the Emperor) should now be nominally greater than the whole expense of that war, shows the state of depreciation to which the funding system has arrived. Its depreciation is in the proportion of eight for one, compared with the value of its money when the system began; which is the state the French assignats stood a year ago (March 1795) compared with gold and silver. It is therefore that I say, that the English funding system has entered on the last twenty years of its existence, comparing each twenty years of the English system with every single year of the American and French systems, as before stated.

Again, supposing the present war to close as former wars have done, and without producing either revolution or reform in England, another war at least must be looked for in the space of the twenty years I allude to; for it has never yet happened that twenty years have passed off without a war, and that more especially since the English government has dabbled in German politics, and shown a disposition to insult the world, and the world of commerce, with her navy. The next war will carry the national debt to very nearly seven hundred millions, the interest of which, at four per cent, will be twenty-eight millions besides the taxes for the (then) expenses of government, which will increase in the same proportion, and which will carry the taxes to at least forty millions; and if another war only begins, it will quickly carry them to above fifty; for it is in the last twenty years of the funding system, as in the last year of the American and French systems without funding, that all the great shocks begin to operate.

I have just mentioned that, paper in England has *pulled down* the value of gold and silver to a level with itself; and that *this pulling down* of gold and silver money has created the appearance of paper money keeping up. The same thing, and the same mistake, took place in America and in France, and

continued for a considerable time after the commencement of their system of paper; and the actual depreciation of money was hidden under that mistake.

It was said in America, at that time, that everything was becoming *dear*; but gold and silver could then buy those dear articles no cheaper than paper could; and therefore it was not called depreciation. The idea of *dearness* established itself for the idea of depreciation. The same was the case in France. Though every thing rose in price soon after assignats appeared, yet those dear articles could be purchased no cheaper with gold and silver, than with paper, and it was only said that things were *dear*. The same is still the language in England. They call it *dearness*. But they will soon find that it is an actual depreciation, and that this depreciation is the effect of the funding system; which, by crowding such a continually increasing mass of paper into circulation, carries down the value of gold and silver with it. But gold and silver, will, in the long run, revolt against depreciation, and separate from the value of paper; for the progress of all such systems appears to be, that the paper will take the command in the beginning, and gold and silver in the end.

But this succession in the command of gold and silver over paper, makes a crisis far more eventful to the funding system than to any other system upon which paper can be issued; for, strictly speaking, it is not a crisis of danger but a symptom of death. It is a death-stroke to the funding system. It is a revolution in the whole of its affairs.

If paper be issued without being funded upon interest, emissions of it can be continued after the value of it separates from gold and silver, as we have seen in the two cases of America and France. But the funding system rests altogether upon the value of paper being equal to gold and silver; which will be as long as the paper can continue carrying down the value of gold and silver to the same level to which itself descends, and no longer. But even in this state, that of descending equally together, the minister, whoever he may be, will find himself beset with accumulating difficulties; because the loans and taxes voted for the service of each ensuing year will wither in his hands before the year expires, or before they can be applied. This will force him to have recourse to emissions of what are called exchequer and navy bills, which, by still increasing the mass of paper in circulation, will drive on the depreciation still more rapidly.

It ought to be known that taxes in England are not paid in gold and silver, but in paper (bank notes). Every person who pays any considerable quantity of taxes, such as maltsters, brewers, distillers, (I appeal for the truth of it, to any of the collectors of excise in England, or to Mr. White-bread,)(1) knows this to be the case. There is not gold and silver enough in the nation to pay the taxes in coin, as I shall show; and consequently there is not money enough in the bank to pay the notes. The interest of the national funded debt is paid at the bank in the same kind of paper in which the taxes are collected. When people find, as they will find, a reservedness among each other in giving gold and silver for bank notes, or the least preference for the former over the latter, they will go for payment to the bank, where they have a right to go. They will do this as a measure of prudence, each one for himself, and the truth or delusion of the funding system will then be proved.

1 An eminent Member of Parliament.—Editor..

I have said in the foregoing paragraph that there is not gold and silver enough in the nation to pay the taxes in coin, and consequently that there cannot be enough in the bank to pay the notes. As I do not choose to rest anything upon assertion, I appeal for the truth of this to the publications of Mr. Eden (now called Lord Auckland) and George Chalmers, Secretary to the Board of Trade and Plantation, of which Jenkinson (now Lord Hawkesbury) is president.(1) (These sort of folks change their names so often that it is as difficult to know them as it is to know a thief.) Chalmers gives the quantity of gold and silver coin from the returns of coinage at the Mint; and after deducting for the light gold recoined, says that the amount of gold and silver coined is about twenty millions. He had better not have proved this, especially if he had reflected that *public credit is suspicion asleep*. The quantity is much too little.

*1 Concerning Chalmers and Hawkesbury see vol. ii., p. 533.
Also, preface to my "Life of Paine", xvi., and other
passages.—Editor..*

Of this twenty millions (which is not a fourth part of the quantity of gold and silver there is in France, as is shown in Mr. Neckar's Treatise on the Administration of the Finances) three millions at least must be supposed to be in Ireland, some in Scotland, and in the West Indies, Newfoundland, &c. The quantity therefore in England cannot be more than sixteen millions,

which is four millions less than the amount of the taxes. But admitting that there are sixteen millions, not more than a fourth part thereof (four millions) can be in London, when it is considered that every city, town, village, and farm-house in the nation must have a part of it, and that all the great manufactories, which most require cash, are out of London. Of this four millions in London, every banker, merchant, tradesman, in short every individual, must have some. He must be a poor shopkeeper indeed, who has not a few guineas in his till. The quantity of cash therefore in the bank can never, on the evidence of circumstances, be so much as two millions; most probably not more than one million; and on this slender twig, always liable to be broken, hangs the whole funding system of four hundred millions, besides many millions in bank notes. The sum in the bank is not sufficient to pay one-fourth of only one year's interest of the national debt, were the creditors to demand payment in cash, or demand cash for the bank notes in which the interest is paid, a circumstance always liable to happen.

One of the amusements that has kept up the farce of the funding system is, that the interest is regularly paid. But as the interest is always paid in bank notes, and as bank notes can always be coined for the purpose, this mode of payment proves nothing. The point of proof is, can the bank give cash for the bank notes with which the interest is paid? If it cannot, and it is evident it cannot, some millions of bank notes must go without payment, and those holders of bank notes who apply last will be worst off. When the present quantity of cash in the bank is paid away, it is next to impossible to see how any new quantity is to arrive. None will arrive from taxes, for the taxes will all be paid in bank notes; and should the government refuse bank notes in payment of taxes, the credit of bank notes will be gone at once. No cash will arise from the business of discounting merchants' bills; for every merchant will pay off those bills in bank notes, and not in cash. There is therefore no means left for the bank to obtain a new supply of cash, after the present quantity is paid away. But besides the impossibility of paying the interest of the funded debt in cash, there are many thousand persons, in London and in the country, who are holders of bank notes that came into their hands in the fair way of trade, and who are not stockholders in the funds; and as such persons have had no hand in increasing the demand upon the bank, as those have had who for their own private interest, like Boyd and others, are contracting or pretending to contract for new loans, they will conceive they have a just right that their bank notes should be paid first.

Boyd has been very sly in France, in changing his paper into cash. He will be just as sly in doing the same thing in London, for he has learned to calculate; and then it is probable he will set off for America.

A stoppage of payment at the bank is not a new thing. Smith in his *Wealth of Nations*, book ii. chap. 2, says, that in the year 1696, exchequer bills fell forty, fifty, and sixty per cent; bank notes twenty per cent; and the bank stopped payment. That which happened in 1696 may happen again in 1796. The period in which it happened was the last year of the war of King William. It necessarily put a stop to the further emissions of exchequer and navy bills, and to the raising of new loans; and the peace which took place the next year was probably hurried on by this circumstance, and saved the bank from bankruptcy. Smith in speaking from the circumstances of the bank, upon another occasion, says (book ii. chap. 2.) "This great company had been reduced to the necessity of paying in sixpences." When a bank adopts the expedient of paying in sixpences, it is a confession of insolvency.

It is worthy of observation, that every case of failure in finances, since the system of paper began, has produced a revolution in governments, either total or partial. A failure in the finances of France produced the French revolution. A failure in the finance of the assignats broke up the revolutionary government, and produced the present French Constitution. A failure in the finances of the Old Congress of America, and the embarrassments it brought upon commerce, broke up the system of the old confederation, and produced the federal Constitution. If, then, we admit of reasoning by comparison of causes and events, the failure of the English finances will produce some change in the government of that country.

As to Mr. Pitt's project of paying off the national debt by applying a million a-year for that purpose, while he continues adding more than twenty millions a-year to it, it is like setting a man with a wooden leg to run after a hare. The longer he runs the farther he is off.

When I said that the funding system had entered the last twenty years of its existence, I certainly did not mean that it would continue twenty years, and then expire as a lease would do. I meant to describe that age of decrepitude in which death is every day to be expected, and life cannot continue long. But the death of credit, or that state that is called bankruptcy, is not always marked by those progressive stages of visible decline that marked the decline of natural life. In the progression of natural life age

cannot counterfeit youth, nor conceal the departure of juvenile abilities. But it is otherwise with respect to the death of credit; for though all the approaches to bankruptcy may actually exist in circumstances, they admit of being concealed by appearances. Nothing is more common than to see the bankrupt of to-day a man in credit but the day before; yet no sooner is the real state of his affairs known, than every body can see he had been insolvent long before. In London, the greatest theatre of bankruptcy in Europe, this part of the subject will be well and feelingly understood.

Mr. Pitt continually talks of credit, and the national resources. These are two of the feigned appearances by which the approaches to bankruptcy are concealed. That which he calls credit may exist, as I have just shown, in a state of insolvency, and is always what I have before described it to be, *suspicion asleep*.

As to national resources, Mr. Pitt, like all English financiers that preceded him since the funding system began, has uniformly mistaken the nature of a resource; that is, they have mistaken it consistently with the delusion of the funding system; but time is explaining the delusion. That which he calls, and which they call, a resource, is not a resource, but is the *anticipation* of a resource. They have anticipated what *would have been* a resource in another generation, had not the use of it been so anticipated. The funding system is a system of anticipation. Those who established it an hundred years ago anticipated the resources of those who were to live an hundred years after; for the people of the present day have to pay the interest of the debts contracted at that time, and all debts contracted since. But it is the last feather that breaks the horse's back. Had the system begun an hundred years before, the amount of taxes at this time to pay the annual interest at four per cent. (could we suppose such a system of insanity could have continued) would be two hundred and twenty millions annually: for the capital of the debt would be 5486 millions, according to the ratio that ascertains the expense of the wars for the hundred years that are past. But long before it could have reached this period, the value of bank notes, from the immense quantity of them, (for it is in paper only that such a nominal revenue could be collected,) would have been as low or lower than continental paper has been in America, or assignats in France; and as to the idea of exchanging them for gold and silver, it is too absurd to be contradicted.

Do we not see that nature, in all her operations, disowns the visionary basis upon which the funding system is built? She acts always by renewed successions, and never by accumulating additions perpetually progressing. Animals and vegetables, men and trees, have existed since the world began: but that existence has been carried on by succession of generations, and not by continuing the same men and the same trees in existence that existed first; and to make room for the new she removes the old. Every natural idiot can see this; it is the stock-jobbing idiot only that mistakes. He has conceived that art can do what nature cannot. He is teaching her a new system—that there is no occasion for man to die—that the scheme of creation can be carried on upon the plan of the funding system—that it can proceed by continual additions of new beings, like new loans, and all live together in eternal youth. Go, count the graves, thou idiot, and learn the folly of thy arithmetic!

But besides these things, there is something visibly farcical in the whole operation of loaning. It is scarcely more than four years ago that such a rot of bankruptcy spread itself over London, that the whole commercial fabric tottered; trade and credit were at a stand; and such was the state of things that, to prevent or suspend a general bankruptcy, the government lent the merchants six millions in *government* paper, and now the merchants lend the government twenty-two millions in *their* paper; and two parties, Boyd and Morgan, men but little known, contend who shall be the lenders. What a farce is this! It reduces the operation of loaning to accommodation paper, in which the competitors contend, not who shall lend, but who shall sign, because there is something to be got for signing.

Every English stock-jobber and minister boasts of the credit of England. Its credit, say they, is greater than that of any country in Europe. There is a good reason for this: for there is not another country in Europe that could be made the dupe of such a delusion. The English funding system will remain a monument of wonder, not so much on account of the extent to which it has been carried, as of the folly of believing in it.

Those who had formerly predicted that the funding system would break up when the debt should amount to one hundred or one hundred and fifty millions, erred only in not distinguishing between insolvency and actual bankruptcy; for the insolvency commenced as soon as the government became unable to pay the interest in cash, or to give cash for the bank notes

in which the interest was paid, whether that inability was known or not, or whether it was suspected or not. Insolvency always takes place before bankruptcy; for bankruptcy is nothing more than the publication of that insolvency. In the affairs of an individual, it often happens that insolvency exists several years before bankruptcy, and that the insolvency is concealed and carried on till the individual is not able to pay one shilling in the pound. A government can ward off bankruptcy longer than an individual: but insolvency will inevitably produce bankruptcy, whether in an individual or in a government. If then the quantity of bank notes payable on demand, which the bank has issued, are greater than the bank can pay off, the bank is insolvent: and when that insolvency is declared, it is bankruptcy.(*)

** Among the delusions that have been imposed upon the nation by ministers to give a false colouring to its affairs, and by none more than by Mr. Pitt, is a motley, amphibious-charactered thing called the balance of trade. This balance of trade, as it is called, is taken from the custom-house books, in which entries are made of all cargoes exported, and also of all cargoes imported, in each year; and when the value of the exports, according to the price set upon them by the exporter or by the custom-house, is greater than the value of the imports, estimated in the same manner, they say the balance of trade is much in their favour.*

The custom-house books prove regularly enough that so many cargoes have been exported, and so many imported; but this is all that they prove, or were intended to prove. They have nothing to do with the balance of profit or loss; and it is ignorance to appeal to them upon that account: for the case is, that the greater the loss is in any one year, the higher will this thing called the balance of trade appear to be according to the custom-house books. For example, nearly the whole of the Mediterranean convoy has been taken by the French this year; consequently those cargoes will not appear as imports on the custom-house books, and therefore the balance of trade, by which they mean the profits of it, will appear to be so much the greater as the loss amounts to; and, on the other hand, had the loss not happened, the profits would have appeared to have been so much the less. All the losses happening at sea to returning cargoes, by accidents, by the elements, or by capture, make the balance appear the higher on the side of the exports; and were they all lost at sea, it would appear to be all profit on the custom-house books. Also every cargo of exports that is lost that occasions another to be sent, adds in like manner to the side of the exports, and appears as profit. This year the balance of trade will appear high, because the losses have been great by capture and by storms. The ignorance of the British Parliament in listening to this hackneyed imposition of ministers about the balance of trade is astonishing. It shows how little they know of national affairs—and Mr. Grey may as well talk Greek to them, as to

make motions about the state of the nation. They understand only fox-hunting and the game laws,—Author.

I come now to show the several ways by which bank notes get into circulation: I shall afterwards offer an estimate on the total quantity or amount of bank notes existing at this moment.

The bank acts in three capacities. As a bank of discount; as a bank of deposit; and as a banker for the government.

First, as a bank of discount. The bank discounts merchants' bills of exchange for two months. When a merchant has a bill that will become due at the end of two months, and wants payment before that time, the bank advances that payment to him, deducting therefrom at the rate of five per cent, per annum. The bill of exchange remains at the bank as a pledge or pawn, and at the end of two months it must be redeemed. This transaction is done altogether in paper; for the profits of the bank, as a bank of discount, arise entirely from its making use of paper as money. The bank gives bank notes to the merchant in discounting the bill of exchange, and the redeemer of the bill pays bank notes to the bank in redeeming it. It very seldom happens that any real money passes between them.

If the profits of a bank be, for example, two hundred thousand pounds a year (a great sum to be made merely by exchanging one sort of paper for another, and which shows also that the merchants of that place are pressed for money for payments, instead of having money to spare to lend to government,) it proves that the bank discounts to the amount of four millions annually, or 666,666L. every two months; and as there never remain in the bank more than two months' pledges, of the value of 666,666L., at any one time, the amount of bank notes in circulation at any one time should not be more than to that amount. This is sufficient to show that the present immense quantity of bank notes, which are distributed through every city, town, village, and farm-house in England, cannot be accounted for on the score of discounting.

Secondly, as a bank of deposit. To deposit money at the bank means to lodge it there for the sake of convenience, and to be drawn out at any moment the depositor pleases, or to be paid away to his order. When the business of discounting is great, that of depositing is necessarily small. No man deposits and applies for discounts at the same time; for it would be like paying interest for lending money, instead of for borrowing it. The deposits

that are now made at the bank are almost entirely in bank notes, and consequently they add nothing to the ability of the bank to pay off the bank notes that may be presented for payment; and besides this, the deposits are no more the property of the bank than the cash or bank notes in a merchant's counting-house are the property of his book-keeper. No great increase therefore of bank notes, beyond what the discounting business admits, can be accounted for on the score of deposits.

Thirdly, the bank acts as banker for the government. This is the connection that threatens to ruin every public bank. It is through this connection that the credit of a bank is forced far beyond what it ought to be, and still further beyond its ability to pay. It is through this connection, that such an immense redundant quantity of bank notes, have gotten into circulation; and which, instead of being issued because there was property in the bank, have been issued because there was none.

When the treasury is empty, which happens in almost every year of every war, its coffers at the bank are empty also. It is in this condition of emptiness that the minister has recourse to emissions of what are called exchequer and navy bills, which continually generates a new increase of bank notes, and which are sported upon the public, without there being property in the bank to pay them. These exchequer and navy bills (being, as I have said, emitted because the treasury and its coffers at the bank are empty, and cannot pay the demands that come in) are no other than an acknowledgment that the bearer is entitled to receive so much money. They may be compared to the settlement of an account, in which the debtor acknowledges the balance he owes, and for which he gives a note of hand; or to a note of hand given to raise money upon it.

Sometimes the bank discounts those bills as it would discount merchants' bills of exchange; sometimes it purchases them of the holders at the current price; and sometimes it agrees with the ministers to pay an interest upon them to the holders, and keep them in circulation. In every one of these cases an additional quantity of bank notes gets into circulation, and are sported, as I have said, upon the public, without there being property in the bank, as banker for the government, to pay them; and besides this, the bank has now no money of its own; for the money that was originally subscribed to begin the credit of the bank with, at its first establishment, has been lent to government and wasted long ago.

"The bank" (says Smith, book ii. chap. 2.) "acts not only as an ordinary bank, but as a great engine of State; it receives and pays a greater part of the annuities which are due to the creditors of the *public*." (It is worth observing, that the *public*, or the *nation*, is always put for the government, in speaking of debts.) "It circulates" (says Smith) "exchequer bills, and it advances to government the annual amount of the land and malt taxes, which are frequently not paid till several years afterwards." (This advancement is also done in bank notes, for which there is not property in the bank.) "In those different operations" (says Smith) "*its duty to the public* may sometimes have obliged it, without any fault of its directors, *to overstock the circulation with paper money*."—bank notes. How *its duty to the public* can induce it *to overstock that public* with promissory bank notes which it *cannot pay*, and thereby expose the individuals of that public to ruin, is too paradoxical to be explained; for it is on the credit which individuals *give to the bank*, by receiving and circulating its notes, and not upon its *own* credit or its *own* property, for it has none, that the bank sports. If, however, it be the duty of the bank to expose the public to this hazard, it is at least equally the duty of the individuals of that public to get their money and take care of themselves; and leave it to placemen, pensioners, government contractors, Reeves' association, and the members of both houses of Parliament, who have voted away the money at the nod of the minister, to continue the credit if they can, and for which their estates individually and collectively ought to answer, as far as they will go.

There has always existed, and still exists, a mysterious, suspicious connection, between the minister and the directors of the bank, and which explains itself no otherways than by a continual increase in bank notes. Without, therefore, entering into any further details of the various contrivances by which bank notes are issued, and thrown upon the public, I proceed, as I before mentioned, to offer an estimate on the total quantity of bank notes in circulation.

However disposed governments may be to wring money by taxes from the people, there is a limit to the practice established by the nature of things. That limit is the proportion between the quantity of money in a nation, be that quantity what it may, and the greatest quantity of taxes that can be raised upon it. People have other uses for money besides paying taxes; and it is only a proportional part of the money they can spare for taxes, as it is only a proportional part they can spare for house-rent, for clothing, or for

any other particular use. These proportions find out and establish themselves; and that with such exactness, that if any one part exceeds its proportion, all the other parts feel it.

Before the invention of paper money (bank notes,) there was no other money in the nation than gold and silver, and the greatest quantity of money that was ever raised in taxes during that period never exceeded a fourth part of the quantity of money in the nation. It was high taxing when it came to this point. The taxes in the time of William III. never reached to four millions before the invention of paper, and the quantity of money in the nation at that time was estimated to be about sixteen millions. The same proportions established themselves in France. There was no paper money in France before the present revolution, and the taxes were collected in gold and silver money. The highest quantity of taxes never exceeded twenty-two millions sterling; and the quantity of gold and silver money in the nation at the same time, as stated by M. Neckar, from returns of coinage at the Mint, in his Treatise on the Administration of the Finances, was about ninety millions sterling. To go beyond this limit of a fourth part, in England, they were obliged to introduce paper money; and the attempt to go beyond it in France, where paper could not be introduced, broke up the government. This proportion, therefore, of a fourth part, is the limit which the thing establishes for itself, be the quantity of money in a nation more or less.

The amount of taxes in England at this time is full twenty millions; and therefore the quantity of gold and silver, and of bank notes, taken together, amounts to eighty millions. The quantity of gold and silver, as stated by Lord Hawkes-bury's Secretary, George Chalmers, as I have before shown, is twenty millions; and, therefore, the total amount of bank notes in circulation, all made payable on demand, is sixty millions. This enormous sum will astonish the most stupid stock-jobber, and overpower the credulity of the most thoughtless Englishman: but were it only a third part of that sum, the bank cannot pay half a crown in the pound.

There is something curious in the movements of this modern complicated machine, the funding system; and it is only now that it is beginning to unfold the full extent of its movements. In the first part of its movements it gives great powers into the hands of government, and in the last part it takes them completely away.

The funding system set out with raising revenues under the name of loans, by means of which government became both prodigal and powerful. The loaners assumed the name of creditors, and though it was soon discovered that loaning was government-jobbing, those pretended loaners, or the persons who purchased into the funds afterwards, conceived themselves not only to be creditors, but to be the *only* creditors.

But such has been the operation of this complicated machine, the funding system, that it has produced, unperceived, a second generation of creditors, more numerous and far more formidable and withal more real than the first generation; for every holder of a bank note is a creditor, and a real creditor, and the debt due to him is made payable on demand. The debt therefore which the government owes to individuals is composed of two parts; the one about four hundred millions bearing interest, the other about sixty millions payable on demand. The one is called the funded debt, the other is the debt due in bank notes.

The second debt (that contained in the bank notes) has, in a great measure, been incurred to pay the interest of the first debt; so that in fact little or no real interest has been paid by government. The whole has been delusion and fraud. Government first contracted a debt, in the form of loans, with one class of people, and then run clandestinely into debt with another class, by means of bank notes, to pay the interest. Government acted of itself in contracting the first debt, and made a machine of the bank to contract the second. It is this second debt that changes the seat of power and the order of things; for it puts it in the power of even a small part of the holders of bank notes (had they no other motives than disgust at Pitt and Grenville's sedition bills,) to control any measure of government they found to be injurious to their interest; and that not by popular meetings, or popular societies, but by the simple and easy operation of withholding their credit from that government; that is, by individually demanding payment at the bank for every bank note that comes into their hands. Why should Pitt and Grenville expect that the very men whom they insult and injure, should, at the same time, continue to support the measures of Pitt and Grenville, by giving credit to their promissory notes of payment? No new emissions of bank notes could go on while payment was demanding on the old, and the cash in the bank wasting daily away; nor any new advances be made to government, or to the emperor, to carry on the war; nor any new emission be made on exchequer bills.

"*The bank*" says Smith, (book ii. chap. 2) "*is a great engine of state.*" And in the same paragraph he says, "*The stability of the bank is equal to that of the British government;*" which is the same as to say that the stability of the government is equal to that of the bank, and no more. If then the bank cannot pay, the *arch-treasurer* of the holy Roman empire (S. R. I. A.*) is a bankrupt. When Folly invented titles, she did not attend to their application; forever since the government of England has been in the hands of *arch-treasurers*, it has been running into bankruptcy; and as to the *arch-treasurer apparent*, he has been a bankrupt long ago. What a miserable prospect has England before its eyes!

* Put of the inscription on an English guinea.—Author.

Before the war of 1755 there were no bank notes lower than twenty pounds. During that war, bank notes of fifteen pounds and of ten pounds were coined; and now, since the commencement of the present war, they are coined as low as five pounds. These five-pound notes will circulate chiefly among little shop-keepers, butchers, bakers, market-people, renters of small houses, lodgers, &c. All the high departments of commerce and the affluent stations of life were already *overstocked*, as Smith expresses it, with the bank notes. No place remained open wherein to crowd an additional quantity of bank notes but among the class of people I have just mentioned, and the means of doing this could be best effected by coining five-pound notes. This conduct has the appearance of that of an unprincipled insolvent, who, when on the verge of bankruptcy to the amount of many thousands, will borrow as low as five pounds of the servants in his house, and break the next day.

But whatever momentary relief or aid the minister and his bank might expect from this low contrivance of five-pound notes, it will increase the inability of the bank to pay the higher notes, and hasten the destruction of all; for even the small taxes that used to be paid in money will now be paid in those notes, and the bank will soon find itself with scarcely any other money than what the hair-powder guinea-tax brings in.

The bank notes make the most serious part of the business of finance: what is called the national funded debt is but a trifle when put in comparison with it; yet the case of the bank notes has never been touched upon. But it certainly ought to be known upon what authority, whether that

of the minister or of the directors, and upon what foundation, such immense quantities are issued. I have stated the amount of them at sixty millions; I have produced data for that estimation; and besides this, the apparent quantity of them, far beyond that of gold and silver in the nation, corroborates the statement. But were there but a third part of sixty millions, the bank cannot pay half a crown in the pound; for no new supply of money, as before said, can arrive at the bank, as all the taxes will be paid in paper.

When the funding system began, it was not doubted that the loans that had been borrowed would be repaid. Government not only propagated that belief, but it began paying them off. In time this profession came to be abandoned: and it is not difficult to see that bank notes will march the same way; for the amount of them is only another debt under another name; and the probability is that Mr. Pitt will at last propose funding them. In that case bank notes will not be so valuable as French assignats. The assignats have a solid property in reserve, in the national domains; bank notes have none; and, besides this, the English revenue must then sink down to what the amount of it was before the funding system began—between three and four millions; one of which the *arch-treasurer* would require for himself, and the arch-treasurer *apparent* would require three-quarters of a million more to pay his debts. "*In France*," says Sterne, "*they order these things better*."

I have now exposed the English system of finance to the eyes of all nations; for this work will be published in all languages. In doing this, I have done an act of justice to those numerous citizens of neutral nations who have been imposed upon by that fraudulent system, and who have property at stake upon the event.

As an individual citizen of America, and as far as an individual can go, I have revenged (if I may use the expression without any immoral meaning) the piratical depredations committed on the American commerce by the English government. I have retaliated for France on the subject of finance: and I conclude with retorting on Mr. Pitt the expression he used against France, and say, that the English system of finance "is on the verge, nay even in the

GULPH OF BANKRUPTCY."

Thomas Paine.

PARIS, 19th Germinal. 4th year of the Republic, April 8, 1796.

XXVII. FORGETFULNESS.(1)

1 This undated composition, of much biographical interest, was shown by Paine to Henry Redhead Yorke, who visited him in Paris (1802), and was allowed to copy the only portions now preserved. In the last of Yorke's Letters from France (Lond., 1814), thirty-three pages are given to Paine. Under the name "Little Corner of the World," Lady Smyth wrote cheering letters to Paine in his prison, and he replied to his then unknown correspondent under the name of "The Castle in die Air." After his release he discovered in his correspondent a lady who had appealed to him for assistance, no doubt for her husband. With Sir Robert (an English banker in Paris) and Lady Smyth, Paine formed a fast friendship which continued through life. Sir Robert was born in 1744, and married (1776) a Miss Blake of Hanover Square, London. He died in 1802 of illness brought on by his imprisonment under Napoleon. Several of Paine's poems were addressed to Lady Smyth.—Editor.

FROM "THE CASTLE IN THE AIR," TO THE "LITTLE CORNER OF THE WORLD."

Memory, like a beauty that is always present to hear her-self flattered, is flattered by every one. But the absent and silent goddess, Forgetfulness, has no votaries, and is never thought of: yet we owe her much. She is the goddess of ease, though not of pleasure.

When the mind is like a room hung with black, and every corner of it crowded with the most horrid images imagination can create, this kind speechless goddess of a maid, Forgetfulness, is following us night and day with her opium wand, and gently touching first one, and then another, benumbs them into rest, and at last glides them away with the silence of a departing shadow. It is thus the tortured mind is restored to the calm condition of ease, and fitted for happiness.

How dismal must the picture of life appear to the mind in that dreadful moment when it resolves on darkness, and to die! One can scarcely believe such a choice was possible. Yet how many of the young and beautiful, timid in every thing else, and formed for delight, have shut their eyes upon the world, and made the waters their sepulchral bed! Ah, would they in that crisis, when life and death are before them, and each within their reach, would they but think, or try to think, that Forgetfulness will come to their

relief, and lull them into ease, they could stay their hand, and lay hold of life. But there is a necromancy in wretchedness that entombs the mind, and increases the misery, by shutting out every ray of light and hope. It makes the wretched falsely believe they will be wretched ever. It is the most fatal of all dangerous delusions; and it is only when this necromantic night-mare of the mind begins to vanish, by being resisted, that it is discovered to be but a tyrannic spectre. All grief, like all things else, will yield to the obliterating power of time. While despair is preying on the mind, time and its effects are preying on despair; and certain it is, the dismal vision will fade away, and Forgetfulness, with her sister Ease, will change the scene. Then let not the wretched be rash, but wait, painful as the struggle may be, the arrival of Forgetfulness; for it will certainly arrive.

I have twice been present at the scene of attempted suicide. The one a love-distracted girl in England, the other of a patriotic friend in France; and as the circumstances of each are strongly pictured in my memory, I will relate them to you. They will in some measure corroborate what I have said of Forgetfulness.

About the year 1766, I was in Lincolnshire, in England, and on a visit at the house of a widow lady, Mrs. E____, at a small village in the fens of that county. It was in summer; and one evening after supper, Mrs. E____ and myself went to take a turn in the garden. It was about eleven o'clock, and to avoid the night air of the fens, we were walking in a bower, shaded over with hazel bushes. On a sudden, she screamed out, and cried "Lord, look, look!" I cast my eyes through the openings of the hazel bushes in the direction she was looking, and saw a white shapeless figure, without head or arms, moving along one of the walks at some distance from us. I quitted Mrs. E____, and went after it. When I got into the walk where the figure was, and was following it, it took up another walk. There was a holly bush in the corner of the two walks, which, it being night, I did not observe; and as I continued to step forward, the holly bush came in a straight line between me and the figure, and I lost sight of it; and as I passed along one walk, and the figure the other, the holly bush still continued to intercept the view, so as to give the appearance that the figure had vanished. When I came to the corner of the two walks, I caught sight of it again, and coming up with it, I reached out my hand to touch it; and in the act of doing this, the idea struck me, will my hand pass through the air, or shall I feel any thing? Less than a moment would decide this, and my hand rested on the shoulder

of a human figure. I spoke, but do not recollect what I said. It answered in a low voice, "Pray let me alone." I then knew who it was. It was a young lady who was on a visit to Mrs. E——, and who, when we sat down to supper, said she found herself extremely ill, and would go to bed. I called to Mrs. E——, who came, and I said to her, "It is Miss N——." Mrs. E—— said, "My God, I hope you are not going to do yourself any hurt;" for Mrs. E—— suspected something. She replied with pathetic melancholy, "Life has not one pleasure for me." We got her into the house, and Mrs. E—— took her to sleep with her.

The case was, the man to whom she expected to be married had forsaken her, and when she heard he was to be married to another the shock appeared to her to be too great to be borne. She had retired, as I have said, to her room, and when she supposed all the family were gone to bed, (which would have been the case if Mrs. E—— and I had not walked into the garden,) she undressed herself, and tied her apron over her head; which, descending below her waist, gave her the shapeless figure I have spoken of. With this and a white under petticoat and slippers, for she had taken out her buckles and put them at the servant maid's door, I suppose as a keepsake, and aided by the obscurity of almost midnight, she came down stairs, and was going to drown her-self in a pond at the bottom of the garden, towards which she was going when Mrs. E——screamed out. We found afterwards that she had heard the scream, and that was the cause of her changing her walk.

By gentle usage, and leading her into subjects that might, without doing violence to her feelings, and without letting her see the direct intention of it, steal her as it were from the horror she was in, (and I felt a compassionate, earnest disposition to do it, for she was a good girl,) she recovered her former cheerfulness, and was afterwards a happy wife, and the mother of a family.

The other case, and the conclusion in my next: In Paris, in 1793, had lodgings in the Rue Fauxbourg, St. Denis, No. 63.(1) They were the most agreeable, for situation, of any I ever had in Paris, except that they were too remote from the Convention, of which I was then a member. But this was recompensed by their being also remote from the alarms and confusion into which the interior of Paris was then often thrown. The news of those things used to arrive to us, as if we were in a state of tranquility in the country. The

house, which was enclosed by a wall and gateway from the street, was a good deal like an old mansion farm house, and the court yard was like a farm-yard, stocked with fowls, ducks, turkies, and geese; which, for amusement, we used to feed out of the parlour window on the ground floor. There were some hutches for rabbits, and a sty with two pigs. Beyond, was a garden of more than an acre of ground, well laid out, and stocked with excellent fruit trees. The orange, apricot, and green-gage plum, were the best I ever tasted; and it is the only place where I saw the wild cucumber. The place had formerly been occupied by some curious person.(2)

1 This ancient mansion is still standing (1895).--Editor.

2 Madame de Pompadour, among others.--Editor.;

My apartments consisted of three rooms; the first for wood, water, etc., with an old fashioned closet chest, high enough to hang up clothes in; the next was the bed room; and beyond it the sitting room, which looked into the garden through a glass door; and on the outside there was a small landing place railed in, and a flight of narrow stairs almost hidden by the vines that grew over it, by which I could descend into the garden, without going down stairs through the house. I am trying by description to make you see the place in your mind, because it will assist the story I have to tell; and which I think you can do, because you once called upon me there on account of Sir [Robert Smyth], who was then, as I was soon afterwards, in arrestation. But it was winter when you came, and it is a summer scene I am describing.

I went into my chambers to write and sign a certificate for them, which I intended to take to the guard house to obtain their release. Just as I had finished it a man came into my room dressed in the Parisian uniform of a captain, and spoke to me in good English, and with a good address. He told me that two young men, Englishmen, were arrested and detained in the guard house, and that the section, (meaning those who represented and acted for the section,) had sent him to ask me if I knew them, in which case they would be liberated. This matter being soon settled between us, he talked to me about the Revolution, and something about the "Rights of Man," which he had read in English; and at parting offered me in a polite and civil manner, his services. And who do you think the man was that offered me his services? It was no other than the public executioner

Samson, who guillotined the king, and all who were guillotined in Paris; and who lived in the same section, and in the same street with me.

As to myself, I used to find some relief by walking alone in the garden after dark, and cursing with hearty good will the authors of that terrible system that had turned the character of the Revolution I had been proud to defend.

I went but little to the Convention, and then only to make my appearance; because I found it impossible to join in their tremendous decrees, and useless and dangerous to oppose them. My having voted and spoken extensively, more so than any other member, against the execution of the king, had already fixed a mark upon me: neither dared any of my associates in the Convention to translate and speak in French for me anything I might have dared to have written.

Pen and ink were then of no use to me: no good could be done by writing, and no printer dared to print; and whatever I might have written for my private amusement, as anecdotes of the times, would have been continually exposed to be examined, and tortured into any meaning that the rage of party might fix upon it; and as to softer subjects, my heart was in distress at the fate of my friends, and my harp hung upon the weeping willows.⁽¹⁾

As it was summer we spent most of our time in the garden, and passed it away in those childish amusements that serve to keep reflection from the mind, such as marbles, scotch-hops, battledores, etc., at which we were all pretty expert.

In this retired manner we remained about six or seven weeks, and our landlord went every evening into the city to bring us the news of the day and the evening journal.

I have now, my "Little Corner of the World," led you on, step by step, to the scene that makes the sequel to this narrative, and I will put that scene before your eyes. You shall see it in description as I saw it in fact.

1 This allusion is to the Girondins.—Editor.,

2 Yorke omits the description "from motives of personal delicacy." The case was that of young Johnson, a wealthy devotee of Paine in London, who had followed him to Paris

and lived in the same house with him. Hearing that Marat had resolved on Paine's death, Johnson wrote a will bequeathing his property to Paine, then stabbed himself, but recovered. Paine was examined about this incident at Marat's trial. (Moniteur, April 24, 1793.) See my "Life of Paine," vol. ii., p. 48 seq.—Editor..

He recovered, and being anxious to get out of France, a passage was obtained for him and Mr. Choppin: they received it late in the evening, and set off the next morning for Basle before four, from which place I had a letter from them, highly pleased with their escape from France, into which they had entered with an enthusiasm of patriotic devotion. Ah, France! thou hast ruined the character of a Revolution virtuously begun, and destroyed those who produced it. I might almost say like Job's servant, "and I only am escaped."

Two days after they were gone I heard a rapping at the gate, and looking out of the window of the bed room I saw the landlord going with the candle to the gate, which he opened, and a guard with musquets and fixed bayonets entered. I went to bed again, and made up my mind for prison, for I was then the only lodger. It was a guard to take up [Johnson and Choppin], but, I thank God, they were out of their reach.

The guard came about a month after in the night, and took away the landlord Georgeit; and the scene in the house finished with the arrestation of myself. This was soon after you called on me, and sorry I was it was not in my power to render to [Sir Robert Smyth] the service that you asked.

I have now fulfilled my engagement, and I hope your expectation, in relating the case of [Johnson], landed back on the shore of life, by the mistake of the pilot who was conducting him out; and preserved afterwards from prison, perhaps a worse fate, without knowing it himself.

You say a story cannot be too melancholy for you. This is interesting and affecting, but not melancholy. It may raise in your mind a sympathetic sentiment in reading it; and though it may start a tear of pity, you will not have a tear of sorrow to drop on the page.

Here, my contemplative correspondent, let us stop and look back upon the scene. The matters here related being all facts, are strongly pictured in my mind, and in this sense Forgetfulness does not apply. But facts and feelings are distinct things, and it is against feelings that the opium wand of

Forgetfulness draws us into ease. Look back on any scene or subject that once gave you distress, for all of us have felt some, and you will find, that though the remembrance of the fact is not extinct in your memory, the feeling is extinct in your mind. You can remember when you had felt distress, but you cannot feel that distress again, and perhaps will wonder you felt it then. It is like a shadow that loses itself by light.

It is often difficult to know what is a misfortune: that which we feel as a great one today, may be the means of turning aside our steps into some new path that leads to happiness yet unknown. In tracing the scenes of my own life, I can discover that the condition I now enjoy, which is sweet to me, and will be more so when I get to America, except by the loss of your society, has been produced, in the first instance, in my being disappointed in former projects. Under that impenetrable veil, futurity, we know not what is concealed, and the day to arrive is hidden from us. Turning then our thoughts to those cases of despair that lead to suicide, when, "the mind," as you say, "neither sees nor hears, and holds counsel only with itself; when the very idea of consolation would add to the torture, and self-destruction is its only aim," what, it may be asked, is the best advice, what the best relief? I answer, seek it not in reason, for the mind is at war with reason, and to reason against feelings is as vain as to reason against fire: it serves only to torture the torture, by adding reproach to horror. All reasoning with ourselves in such cases acts upon us like the reason of another person, which, however kindly done, serves but to insult the misery we suffer. If reason could remove the pain, reason would have prevented it. If she could not do the one, how is she to perform the other? In all such cases we must look upon Reason as dispossessed of her empire, by a revolt of the mind. She retires herself to a distance to weep, and the ebony sceptre of Despair rules alone. All that Reason can do is to suggest, to hint a thought, to signify a wish, to cast now and then a kind of bewailing look, to hold up, when she can catch the eye, the miniature-shaded portrait of Hope; and though dethroned, and can dictate no more, to wait upon us in the humble station of a handmaid.

XXVIII. AGRARIAN JUSTICE.

Editor's introduction:

This pamphlet appeared first in Paris, 1797, with the title: "Thomas Payne ` La Legislature et au Directoire. Ou la Justice Agraire opposee ` la Loi Agraire, et aux privilghes agraires. Prix 15 sols. @ Paris, chez la citoyenne Ragouleau, prhs le Thibtre de la Ripublique, No. 229. Et chez les Marchands de Nouveautis." A prefatory note says (translated): "The sudden departure of Thomas Paine has pre-vented his supervising the translation of this work, to which he attached great value. He entrusted it to a friend. It is for the reader to decide whether the scheme here set forth is worthy of the publicity given it." (Paine had gone to Havre early in May with the Monroes, intending to accompany them to America, but, rightly suspecting plans for his capture by an English cruiser, returned to Paris.) In the same year the pamphlet was printed in English, by W. Adlard in Paris, and in London for "T. Williams, No. 8 Little Turnstile, Holborn." Paine's preface to the London edition contained some sentences which the publishers, as will be seen, suppressed under asterisks, and two sentences were omitted from the pamphlet which I have supplied from the French. The English title adds a brief resume of Paine's scheme to the caption—"Agrarian Justice opposed to Agrarian Law, and to Agrarian Monopoly." The work was written in the winter of 1795-6, when Paine was still an invalid in Monroe's house, though not published until 1797.

The prefatory Letter to the Legislature and the Directory, now for the first time printed in English, is of much historical interest, and shows the title of the pamphlet related to the rise of Socialism in France. The leader of that move-ment, Frangois Noel Babeuf, a frantic and pathetic figure of the time, had just been executed. He had named himself "Gracchus," and called his journal "Tribune du Peuple," in homage to the Roman Tribune, Caius Gracchus, the original socialist and agrarian, whose fate (suicide of himself and his servant) Babeuf and his disciple Darthi invoked in prison, whence they were carried bleeding to the guillotine. This, however, was on account of the conspiracy they had formed, with the remains of the Robespierrian

party and some disguised royalists, to overthrow the government. The socialistic propaganda of Babeuf, however, prevailed over all other elements of the conspiracy: the reactionary features of the Constitution, especially the property qualification of suffrage of whose effects Paine had warned the Convention in the speech printed in this volume, (chapter xxv.) and the poverty which survived a revolution that promised its abolition, had excited wide discontent. The "Babouvists" numbered as many as 17,000 in Paris. Babeuf and Lepelletier were appointed by the secret council of this fraternity (which took the name of "Equals") a "Directory of Public Safety." May 11, 1796, was fixed for seizing on the government, and Babeuf had prepared his Proclamation of the socialistic millennium. But the plot was discovered, May 10th, the leaders arrested, and, after a year's delay, two of them executed,—the best-hearted men in the movement, Babeuf and Darthi. Paine too had been moved by the cry for "Bread, and the Constitution of '93"; and it is a notable coincidence that in that winter of 1795-6, while the socialists were secretly plotting to seize the kingdom of heaven by violence, Paine was devising his plan of relief by taxing inheritances of land, anticipating by a hundred years the English budget of Sir William Harcourt. Babeuf having failed in his socialist, and Pichegru in his royalist, plot, their blows were yet fatal: there still remained in the hearts of millions a Babeuf or a Pichegru awaiting the chieftain strong enough to combine them, as Napoleon presently did, making all the nation "Igaux" as parts of a mighty military engine, and satisfying the royalist triflers with the pomp and glory of war.

AUTHOR'S INSCRIPTION.

To the Legislature and the Executive Directory of the French Republic.

The plan contained in this work is not adapted for any particular country alone: the principle on which it is based is general. But as the rights of man are a new study in this world, and one needing protection from priestly imposture, and the insolence of oppressions too long established, I have thought it right to place this little work under your safeguard. When we reflect on the long and dense night in which France and all Europe have remained plunged by their governments and their priests, we must feel less surprise than grief at the bewilderment caused by the first burst of light that dispels the darkness. The eye accustomed to darkness can hardly bear at

first the broad daylight. It is by usage the eye learns to see, and it is the same in passing from any situation to its opposite.

As we have not at one instant renounced all our errors, we cannot at one stroke acquire knowledge of all our rights. France has had the honour of adding to the word *Liberty* that of *Equality*; and this word signifies essentially a principal that admits of no gradation in the things to which it applies. But equality is often misunderstood, often misapplied, and often violated.

Liberty and *Property* are words expressing all those of our possessions which are not of an intellectual nature. There are two kinds of property. Firstly, natural property, or that which comes to us from the Creator of the universe,—such as the earth, air, water. Secondly, artificial or acquired property,—the invention of men. In the latter equality is impossible; for to distribute it equally it would be necessary that all should have contributed in the same proportion, which can never be the case; and this being the case, every individual would hold on to his own property, as his right share. Equality of natural property is the subject of this little essay. Every individual in the world is born therein with legitimate claims on a certain kind of property, or its equivalent.

The right of voting for persons charged with the execution of the laws that govern society is inherent in the word *Liberty*, and constitutes the equality of personal rights. But even if that right (of voting) were inherent in property, which I deny, the right of suffrage would still belong to all equally, because, as I have said, all individuals have legitimate birthrights in a certain species of property.

I have always considered the present Constitution of the French Republic the *best organized system* the human mind has yet produced. But I hope my former colleagues will not be offended if I warn them of an error which has slipped into its principle. Equality of the right of suffrage is not maintained. This right is in it connected with a condition on which it ought not to depend; that is, with a proportion of a certain tax called "direct." The dignity of suffrage is thus lowered; and, in placing it in the scale with an inferior thing, the enthusiasm that right is capable of inspiring is diminished. It is impossible to find any equivalent counterpoise for the right of suffrage, because it is alone worthy to be its own basis, and cannot thrive as a graft, or an appendage.

Since the Constitution was established we have seen two conspiracies stranded,—that of Babeuf, and that of some obscure personages who decorate themselves with the despicable name of "royalists." The defect in principle of the Constitution was the origin of Babeuf's conspiracy. He availed himself of the resentment caused by this flaw, and instead of seeking a remedy by legitimate and constitutional means, or proposing some measure useful to society, the conspirators did their best to renew disorder and confusion, and constituted themselves personally into a Directory, which is formally destructive of election and representation. They were, in fine, extravagant enough to suppose that society, occupied with its domestic affairs, would blindly yield to them a directorship usurped by violence.

The conspiracy of Babeuf was followed in a few months by that of the royalists, who foolishly flattered themselves with the notion of doing great things by feeble or foul means. They counted on all the discontented, from whatever cause, and tried to rouse, in their turn, the class of people who had been following the others. But these new chiefs acted as if they thought society had nothing more at heart than to maintain courtiers, pensioners, and all their train, under the contemptible title of royalty. My little essay will disabuse them, by showing that society is aiming at a very different end,—maintaining itself.

We all know or should know, that the time during which a revolution is proceeding is not the time when its resulting advantages can be enjoyed. But had Babeuf and his accomplices taken into consideration the condition of France under this constitution, and compared it with what it was under the tragical revolutionary government, and during the execrable reign of Terror, the rapidity of the alteration must have appeared to them very striking and astonishing. Famine has been replaced by abundance, and by the well-founded hope of a near and increasing prosperity.

As for the defect in the Constitution, I am fully convinced that it will be rectified constitutionally, and that this step is indispensable; for so long as it continues it will inspire the hopes and furnish the means of conspirators; and for the rest, it is regrettable that a Constitution so wisely organized should err so much in its principle. This fault exposes it to other dangers which will make themselves felt. Intriguing candidates will go about among those who have not the means to pay the direct tax and pay it for them, on

condition of receiving their votes. Let us maintain inviolably equality in the sacred right of suffrage: public security can never have a basis more solid. Salut et Fraterniti.

Your former colleague,

Thomas Paine.

AUTHOR'S ENGLISH PREFACE.

The following little Piece was written in the winter of 1795 and 96; and, as I had not determined whether to publish it during the present war, or to wait till the commencement of a peace, it has lain by me, without alteration or addition, from the time it was written.

What has determined me to publish it now is, a sermon preached by Watson, *Bishop of Llandaff*. Some of my Readers will recollect, that this Bishop wrote a Book entitled *An Apology for the Bible* in answer to my *Second Part of the Age of Reason*. I procured a copy of his Book, and he may depend upon hearing from me on that subject.

At the end of the Bishop's Book is a List of the Works he has written. Among which is the sermon alluded to; it is entitled: "The Wisdom and Goodness of God, in having made both Rich and Poor; with an Appendix, containing Reflections on the Present State of England and France."

The error contained in this sermon determined me to publish my *Agrarian Justice*. It is wrong to say God made *rich and poor*; he made only *male and female*; and he gave them the earth for their inheritance. '...

Instead of preaching to encourage one part of mankind in insolence... it would be better that Priests employed their time to render the general condition of man less miserable than it is. Practical religion consists in doing good: and the only way of serving God is, that of endeavouring to make his creation happy. All preaching that has not this for its object is nonsense and hypocrisy.

¹ The omissions are noted in the English edition of 1797.—
Editor..

To preserve the benefits of what is called civilized life, and to remedy at the same time the evil which it has produced, ought to be considered as one of the first objects of reformed legislation.

Whether that state that is proudly, perhaps erroneously, called civilization, has most promoted or most injured the general happiness of man, is a question that may be strongly contested. On one side, the spectator is dazzled by splendid appearances; on the other, he is shocked by extremes of wretchedness; both of which it has erected. The most affluent and the most miserable of the human race are to be found in the countries that are called civilized.

To understand what the state of society ought to be, it is necessary to have some idea of the natural and primitive state of man; such as it is at this day among the Indians of North America. There is not, in that state, any of those spectacles of human misery which poverty and want present to our eyes in all the towns and streets in Europe. Poverty, therefore, is a thing created by that which is called civilized life. It exists not in the natural state. On the other hand, the natural state is without those advantages which flow from agriculture, arts, science, and manufactures.

The life of an Indian is a continual holiday, compared with the poor of Europe; and, on the other hand it appears to be abject when compared to the rich. Civilization, therefore, or that which is so called, has operated two ways: to make one part of society more affluent, and the other more wretched, than would have been the lot of either in a natural state.

It is always possible to go from the natural to the civilized state, but it is never possible to go from the civilized to the natural state. The reason is, that man in a natural state, subsisting by hunting, requires ten times the quantity of land to range over to procure himself sustenance, than would support him in a civilized state, where the earth is cultivated. When, therefore, a country becomes populous by the additional aids of cultivation, art, and science, there is a necessity of preserving things in that state; because without it there cannot be sustenance for more, perhaps, than a tenth part of its inhabitants. The thing, therefore, now to be done is to remedy the evils and preserve the benefits that have arisen to society by passing from the natural to that which is called the civilized state.

In taking the matter upon this ground, the first principle of civilization ought to have been, and ought still to be, that the condition of every person born into the world, after a state of civilization commences, ought not to be worse than if he had been born before that period. But the fact is, that the condition of millions, in every country in Europe, is far worse than if they

had been born before civilization began, or had been born among the Indians of North America at the present day. I will shew how this fact has happened.

It is a position not to be controverted that the earth, in its natural uncultivated state was, and ever would have continued to be, *the common property of the human race*. In that state every man would have been born to property. He would have been a joint life proprietor with the rest in the property of the soil, and in all its natural productions, vegetable and animal.

But the earth in its natural state, as before said, is capable of supporting but a small number of inhabitants compared with what it is capable of doing in a cultivated state. And as it is impossible to separate the improvement made by cultivation from the earth itself, upon which that improvement is made, the idea of landed property arose from that inseparable connection; but it is nevertheless true, that it is the value of the improvement only, and not the earth itself, that is individual property. Every proprietor, therefore, of cultivated land, owes to the community a *ground-rent* (for I know of no better term to express the idea) for the land which he holds; and it is from this ground-rent that the fund proposed in this plan is to issue.

It is deducible, as well from the nature of the thing as from all the histories transmitted to us, that the idea of landed property commenced with cultivation, and that there was no such thing as landed property before that time. It could not exist in the first state of man, that of hunters. It did not exist in the second state, that of shepherds: neither Abraham, Isaac, Jacob, nor Job, so far as the history of the Bible may be credited in probable things, were owners of land. Their property consisted, as is always enumerated, in flocks and herds, and they travelled with them from place to place. The frequent contentions at that time, about the use of a well in the dry country of Arabia, where those people lived, also shew that there was no landed property. It was not admitted that land could be claimed as property.

There could be no such thing as landed property originally. Man did not make the earth, and, though he had a natural right to occupy it, he had no right to locate as his property in perpetuity any part of it; neither did the creator of the earth open a land-office, from whence the first title-deeds should issue. Whence then, arose the idea of landed property? I answer as before, that when cultivation began the idea of landed property began with

it, from the impossibility of separating the improvement made by cultivation from the earth itself, upon which that improvement was made. The value of the improvement so far exceeded the value of the natural earth, at that time, as to absorb it; till, in the end, the common right of all became confounded into the cultivated right of the individual. But there are, nevertheless, distinct species of rights, and will continue to be so long as the earth endures.

It is only by tracing things to their origin that we can gain rightful ideas of them, and it is by gaining such ideas that we discover the boundary that divides right from wrong, and teaches every man to know his own. I have entitled this tract *Agrarian Justice*, to distinguish it from *Agrarian Law*. Nothing could be more unjust than *Agrarian Law* in a country improved by cultivation; for though every man, as an inhabitant of the earth, is a joint proprietor of it in its natural state, it does not follow that he is a joint proprietor of cultivated earth. The additional value made by cultivation, after the system was admitted, became the property of those who did it, or who inherited it from them, or who purchased it. It had originally no owner. Whilst, therefore, I advocate the right, and interest myself in the hard case of all those who have been thrown out of their natural inheritance by the introduction of the system of landed property, I equally defend the right of the possessor to the part which is his.

Cultivation is at least one of the greatest natural improvements ever made by human invention. It has given to created earth a tenfold value. But the landed monopoly that began with it has produced the greatest evil. It has dispossessed more than half the inhabitants of every nation of their natural inheritance, without providing for them, as ought to have been done, an indemnification for that loss, and has thereby created a species of poverty and wretchedness that did not exist before.

In advocating the case of the persons thus dispossessed, it is a right, and not a charity, that I am pleading for. But it is that kind of right which, being neglected at first, could not be brought forward afterwards till heaven had opened the way by a revolution in the system of government. Let us then do honour to revolutions by justice, and give currency to their principles by blessings.

Having thus in a few words, opened the merits of the case, I shall now proceed to the plan I have to propose, which is,

To create a National Fund, out of which there shall be paid to every person, when arrived at the age of twenty-one years, the sum of fifteen pounds sterling, as a compensation in part, for the loss of his or her natural inheritance, by the introduction of the system of landed property:

And also, the sum of ten pounds per annum, during life, to every person now living, of the age of fifty years, and to all others as they shall arrive at that age.

MEANS BY WHICH THE FUND IS TO BE CREATED.

I have already established the principle, namely, that the earth, in its natural uncultivated state was, and ever would have continued to be, the *common property of the human race*; that in that state, every person would have been born to property; and that the system of landed property, by its inseparable connection with cultivation, and with what is called civilized life, has absorbed the property of all those whom it dispossessed, without providing, as ought to have been done, an indemnification for that loss.

The fault, however, is not in the present possessors. No complaint is intended, or ought to be alleged against them, unless they adopt the crime by opposing justice. The fault is in the system, and it has stolen imperceptibly upon the world, aided afterwards by the agrarian law of the sword. But the fault can be made to reform itself by successive generations; and without diminishing or deranging the property of any of the present possessors, the operation of the fund can yet commence, and be in full activity, the first year of its establishment, or soon after, as I shall shew.

It is proposed that the payments, as already stated, be made to every person, rich or poor. It is best to make it so, to prevent invidious distinctions. It is also right it should be so, because it is in lieu of the natural inheritance, which, as a right, belongs to every man, over and above the property he may have created, or inherited from those who did. Such persons as do not choose to receive it can throw it into the common fund.

Taking it then for granted that no person ought to be in a worse condition when born under what is called a state of civilization, than he would have been had he been born in a state of nature, and that civilization ought to have made, and ought still to make, provision for that purpose, it can only be done by subtracting from property a portion equal in value to the natural inheritance it has absorbed.

Various methods may be proposed for this purpose, but that which appears to be the best (not only because it will operate without deranging any present possessors, or without interfering with the collection of taxes or emprunts necessary for the purposes of government and the revolution, but because it will be the least troublesome and the most effectual, and also because the subtraction will be made at a time that best admits it) is at the moment that.. property is passing by the death of one person to the possession of another. In this case, the bequeather gives nothing: the receiver pays nothing. The only matter to him is, that the monopoly of natural inheritance, to which there never was a right, begins to cease in his person. A generous man would not wish it to continue, and a just man will rejoice to see it abolished.

My state of health prevents my making sufficient inquiries with respect to the doctrine of probabilities, whereon to found calculations with such degrees of certainty as they are capable of. What, therefore, I offer on this head is more the result of observation and reflection than of received information; but I believe it will be found to agree sufficiently with fact.

In the first place, taking twenty-one years as the epoch of maturity, all the property of a nation, real and personal, is always in the possession of persons above that age. It is then necessary to know, as a datum of calculation, the average of years which persons above that age will live. I take this average to be about thirty years, for though many persons will live forty, fifty, or sixty years after the age of twenty-one years, others will die much sooner, and some in every year of that time.

Taking, then, thirty years as the average of time, it will give, without any material variation one way or other, the average of time in which the whole property or capital of a nation, or a sum equal thereto, will have passed through one entire revolution in descent, that is, will have gone by deaths to new possessors; for though, in many instances, some parts of this capital will remain forty, fifty, or sixty years in the possession of one person, other parts will have revolved two or three times before those thirty years expire, which will bring it to that average; for were one half the capital of a nation to revolve twice in thirty years, it would produce the same fund as if the whole revolved once.

Taking, then, thirty years as the average of time in which the whole capital of a nation, or a sum equal thereto, will revolve once, the thirtieth

part thereof will be the sum that will revolve every year, that is, will go by deaths to new possessors; and this last sum being thus known, and the ratio per cent, to be subtracted from it determined, it will give the annual amount or income of the proposed fund, to be applied as already mentioned.

In looking over the discourse of the English minister, Pitt, in his opening of what is called in England the budget, (the scheme of finance for the year 1796,) I find an estimate of the national capital of that country. As this estimate of a national capital is prepared ready to my hand, I take it as a datum to act upon. When a calculation is made upon the known capital of any nation, combined with its population, it will serve as a scale for any other nation, in proportion as its capital and population be more or less. I am the more disposed to take this estimate of Mr. Pitt, for the purpose of showing to that minister, upon his own calculation, how much better money may be employed than in wasting it, as he has done, on the wild project of setting up Bourbon kings. What, in the name of heaven, are Bourbon kings to the people of England? It is better that the people have bread.

Mr. Pitt states the national capital of England, real and personal, to be one thousand three hundred millions sterling, which is about one-fourth part of the national capital of France, including Belgia. The event of the last harvest in each country proves that the soil of France is more productive than that of England, and that it can better support twenty-four or twenty-five millions of inhabitants than that of England can seven or seven and a half millions.

The thirtieth part of this capital of 1,300,000,000L. is 43,333,333L. which is the part that will revolve every year by deaths in that country to new possessors; and the sum that will annually revolve in France in the proportion of four to one, will be about one hundred and seventy-three millions sterling. From this sum of 43,333,333L. annually revolving, is to be subtracted the value of the natural inheritance absorbed in it, which, perhaps, in fair justice, cannot be taken at less, and ought not to be taken for more, than a tenth part.

It will always happen, that of the property thus revolving by deaths every year a part will descend in a direct line to sons and daughters, and the other part collaterally, and the proportion will be found to be about three to one; that is, about thirty millions of the above sum will descend to direct heirs,

and the remaining sum of 13,333,333L. to more distant relations, and in part to strangers.

Considering, then, that man is always related to society, that relationship will become comparatively greater in proportion as the next of kin is more distant, it is therefore consistent with civilization to say that where there are no direct heirs society shall be heir to a part over and above the tenth part due to society. If this additional part be from five to ten or twelve per cent., in proportion as the next of kin be nearer or more remote, so as to average with the escheats that may fall, which ought always to go to society and not to the government (an addition of ten per cent, more), the produce from the annual sum of 43,333,333L. will be:

From 30,000,000l. at ten per cent.	3,000,000l.
From 13,333,333l. at ten per cent. with the addition of ten per cent. more. }	2,666,666
43,333,333l.	5,666,666l.

Having thus arrived at the annual amount of the proposed fund, I come, in the next place, to speak of the population proportioned to this fund, and to compare it with the uses to which the fund is to be applied.

The population (I mean that of England) does not exceed seven millions and a half, and the number of persons above the age of fifty will in that case be about four hundred thousand. There would not, however, be more than that number that would accept the proposed ten pounds sterling per annum, though they would be entitled to it. I have no idea it would be accepted by many persons who had a yearly income of two or three hundred pounds sterling. But as we often see instances of rich people falling into sudden poverty, even at the age of sixty, they would always have the right of drawing all the arrears due to them. Four millions, therefore, of the above annual sum of 5,666,6667L. will be required for four hundred thousand aged persons, at ten pounds sterling each.

I come now to speak of the persons annually arriving at twenty-one years of age. If all the persons who died were above the age of twenty-one years, the number of persons annually arriving at that age, must be equal to the annual number of deaths, to keep the population stationary. But the greater part die under the age of twenty-one, and therefore the number of persons

annually arriving at twenty-one will be less than half the number of deaths. The whole number of deaths upon a population of seven millions and an half will be about 220,000 annually. The number arriving at twenty-one years of age will be about 100,000. The whole number of these will not receive the proposed fifteen pounds, for the reasons already mentioned, though, as in the former case, they would be entitled to it. Admitting then that a tenth part declined receiving it, the amount would stand thus:

Fund annually		5,666,666 <i>L.</i>
To 400,000 aged persons at 10 <i>L.</i>		
each	4,000,000 <i>L.</i>	
To 90,000 persons of 21 years, 15 <i>L.</i>		
ster. each	1,350,000	
		5,350,000
	Remains	316,666 <i>L.</i>

There are, in every country, a number of blind and lame persons, totally incapable of earning a livelihood. But as it will always happen that the greater number of blind persons will be among those who are above the age of fifty years, they will be provided for in that class. The remaining sum of 316,666*L.* will provide for the lame and blind under that age, at the same rate of 10*L.* annually for each person.

Having now gone through all the necessary calculations, and stated the particulars of the plan, I shall conclude with some observations.

It is not charity but a right, not bounty but justice, that I am pleading for. The present state of civilization is as odious as it is unjust. It is absolutely the opposite of what it should be, and it is necessary that a revolution should be made in it.(1) The contrast of affluence and wretchedness continually meeting and offending the eye, is like dead and living bodies chained together. Though I care as little about riches, as any man, I am a friend to riches because they are capable of good. I care not how affluent some may be, provided that none be miserable in consequence of it. But it is impossible to enjoy affluence with the felicity it is capable of being enjoyed, whilst so much misery is mingled in the scene. The sight of the misery, and the unpleasant sensations it suggests, which, though they may be suffocated cannot be extinguished, are a greater drawback upon the felicity of affluence than the proposed 10 per cent, upon property is worth.

He that would not give the one to get rid of the other has no charity, even for himself.

1 This and the preceding sentence are omitted in all previous English and American editions.—Editor..

There are, in every country, some magnificent charities established by individuals. It is, however, but little that any individual can do, when the whole extent of the misery to be relieved is considered. He may satisfy his conscience, but not his heart. He may give all that he has, and that all will relieve but little. It is only by organizing civilization upon such principles as to act like a system of pulleys, that the whole weight of misery can be removed.

The plan here proposed will reach the whole. It will immediately relieve and take out of view three classes of wretchedness—the blind, the lame, and the aged poor; and it will furnish the rising generation with means to prevent their becoming poor; and it will do this without deranging or interfering with any national measures. To shew that this will be the case, it is sufficient to observe that the operation and effect of the plan will, in all cases, be the same as if every individual were *voluntarily* to make his will and dispose of his property in the manner here proposed.

But it is justice, and not charity, that is the principle of the plan. In all great cases it is necessary to have a principle more universally active than charity; and, with respect to justice, it ought not to be left to the choice of detached individuals whether they will do justice or not. Considering then, the plan on the ground of justice, it ought to be the act of the whole, growing spontaneously out of the principles of the revolution, and the reputation of it ought to be national and not individual.

A plan upon this principle would benefit the revolution by the energy that springs from the consciousness of justice. It would multiply also the national resources; for property, like vegetation, increases by offsets. When a young couple begin the world, the difference is exceedingly great whether they begin with nothing or with fifteen pounds apiece. With this aid they could buy a cow, and implements to cultivate a few acres of land; and instead of becoming burdens upon society, which is always the case where children are produced faster than they can be fed, would be put in the way of becoming useful and profitable citizens. The national domains also

would sell the better if pecuniary aids were provided to cultivate them in small lots.

It is the practice of what has unjustly obtained the name of civilization (and the practice merits not to be called either charity or policy) to make some provision for persons becoming poor and wretched only at the time they become so. Would it not, even as a matter of economy, be far better to adopt means to prevent their becoming poor? This can best be done by making every person when arrived at the age of twenty-one years an inheritor of something to begin with. The rugged face of society, chequered with the extremes of affluence and want, proves that some extraordinary violence has been committed upon it, and calls on justice for redress. The great mass of the poor in all countries are become an hereditary race, and it is next to impossible for them to get cut of that state of themselves. It ought also to be observed that this mass increases in all countries that are called civilized. More persons fall annually into it than get out of it.

Though in a plan of which justice and humanity are the foundation-principles, interest ought not to be admitted into the calculation, yet it is always of advantage to the establishment of any plan to shew that it is beneficial as a matter of interest. The success of any proposed plan submitted to public consideration must finally depend on the numbers interested in supporting it, united with the justice of its principles.

The plan here proposed will benefit all, without injuring any. It will consolidate the interest of the Republic with that of the individual. To the numerous class dispossessed of their natural inheritance by the system of landed property it will be an act of national justice. To persons dying possessed of moderate fortunes it will operate as a tontine to their children, more beneficial than the sum of money paid into the fund: and it will give to the accumulation of riches a degree of security that none of the old governments of Europe, now tottering on their foundations, can give.

I do not suppose that more than one family in ten, in any of the countries of Europe, has, when the head of the family dies, a clear property left of five hundred pounds sterling. To all such the plan is advantageous. That property would pay fifty pounds into the fund, and if there were only two children under age they would receive fifteen pounds each, (thirty pounds,) on coming of age, and be entitled to ten pounds a-year after fifty. It is from the overgrown acquisition of property that the fund will support itself; and I

know that the possessors of such property in England, though they would eventually be benefited by the protection of nine-tenths of it, will exclaim against the plan. But without entering into any inquiry how they came by that property, let them recollect that they have been the advocates of this war, and that Mr. Pitt has already laid on more new taxes to be raised annually upon the people of England, and that for supporting the despotism of Austria and the Bourbons against the liberties of France, than would pay annually all the sums proposed in this plan.

I have made the calculations stated in this plan, upon what is called personal, as well as upon landed property. The reason for making it upon land is already explained; and the reason for taking personal property into the calculation is equally well founded though on a different principle. Land, as before said, is the free gift of the Creator in common to the human race. Personal property is the effect of society; and it is as impossible for an individual to acquire personal property without the aid of society, as it is for him to make land originally. Separate an individual from society, and give him an island or a continent to possess, and he cannot acquire personal property. He cannot be rich. So inseparably are the means connected with the end, in all cases, that where the former do not exist the latter cannot be obtained. All accumulation, therefore, of personal property, beyond what a man's own hands produce, is derived to him by living in society; and he owes on every principle of justice, of gratitude, and of civilization, a part of that accumulation back again to society from whence the whole came. This is putting the matter on a general principle, and perhaps it is best to do so; for if we examine the case minutely it will be found that the accumulation of personal property is, in many instances, the effect of paying too little for the labour that produced it; the consequence of which is, that the working hand perishes in old age, and the employer abounds in affluence. It is, perhaps, impossible to proportion exactly the price of labour to the profits it produces; and it will also be said, as an apology for the injustice, that were a workman to receive an increase of wages daily he would not save it against old age, nor be much better for it in the interim. Make, then, society the treasurer to guard it for him in a common fund; for it is no reason, that because he might not make a good use of it for himself, another should take it.

The state of civilization that has prevailed throughout Europe, is as unjust in its principle, as it is horrid in its effects; and it is the consciousness of

this, and the apprehension that such a state cannot continue when once investigation begins in any country, that makes the possessors of property dread every idea of a revolution. It is the hazard and not the principle of revolutions that retards their progress. This being the case, it is necessary as well for the protection of property, as for the sake of justice and humanity, to form a system that, whilst it preserves one part of society from wretchedness, shall secure the other from depredation.

The superstitious awe, the enslaving reverence, that formerly surrounded affluence, is passing away in all countries, and leaving the possessor of property to the convulsion of accidents. When wealth and splendour, instead of fascinating the multitude, excite emotions of disgust; when, instead of drawing forth admiration, it is beheld as an insult upon wretchedness; when the ostentatious appearance it makes serves to call the right of it in question, the case of property becomes critical, and it is only in a system of justice that the possessor can contemplate security.

To remove the danger, it is necessary to remove the antipathies, and this can only be done by making property productive of a national blessing, extending to every individual. When the riches of one man above another shall increase the national fund in the same proportion; when it shall be seen that the prosperity of that fund depends on the prosperity of individuals; when the more riches a man acquires, the better it shall be for the general mass; it is then that antipathies will cease, and property be placed on the permanent basis of national interest and protection.

I have no property in France to become subject to the plan I propose. What I have which is not much, is in the United States of America. But I will pay one hundred pounds sterling towards this fund in France, the instant it shall be established; and I will pay the same sum in England whenever a similar establishment shall take place in that country.

A revolution in the state of civilization is the necessary companion of revolutions in the system of government. If a revolution in any country be from bad to good, or from good to bad, the state of what is called civilization in that country, must be made conformable thereto, to give that revolution effect. Despotic government supports itself by abject civilization, in which debasement of the human mind, and wretchedness in the mass of the people, are the chief enterions. Such governments consider man merely as an animal; that the exercise of intellectual faculty is not his privilege;

that he has nothing to do with the laws but to obey them ; () and they politically depend more upon breaking the spirit of the people by poverty, than they fear enraging it by desperation.*

** Expression of Horsley, an English bishop, in the English parliament.—Author.*

It is a revolution in the state of civilization that will give perfection to the revolution of France. Already the conviction that government by representation is the true system of government is spreading itself fast in the world. The reasonableness of it can be seen by all. The justness of it makes itself felt even by its opposers. But when a system of civilization, growing out of that system of government, shall be so organized that not a man or woman born in the Republic but shall inherit some means of beginning the world, and see before them the certainty of escaping the miseries that under other governments accompany old age, the revolution of France will have an advocate and an ally in the heart of all nations.

An army of principles will penetrate where an army of soldiers cannot; it will succeed where diplomatic management would fail: it is neither the Rhine, the Channel, nor the Ocean that can arrest its progress: it will march on the horizon of the world, and it will conquer.

MEANS FOR CARRYING THE PROPOSED PLAN INTO EXECUTION, AND TO RENDER IT AT THE SAME TIME CONDUCTIVE TO THE PUBLIC INTEREST.

I. Each canton shall elect in its primary assemblies, three persons, as commissioners for that canton, who shall take cognizance, and keep a register of all matters happening in that canton, conformable to the charter that shall be established by law for carrying this plan into execution.

II. The law shall fix the manner in which the property of deceased persons shall be ascertained.

III. When the amount of the property of any deceased person shall be ascertained, the principal heir to that property, or the eldest of the co-heirs, if of lawful age, or if under age the person authorized by the will of the deceased to represent him or them, shall give bond to the commissioners of the canton to pay the said tenth part thereof in four equal quarterly payments, within the space of one year or sooner, at the choice of the

payers. One half of the whole property shall remain as a security until the bond be paid off.

IV. The bond shall be registered in the office of the commissioners of the canton, and the original bonds shall be deposited in the national bank at Paris. The bank shall publish every quarter of a year the amount of the bonds in its possession, and also the bonds that shall have been paid off, or what parts thereof, since the last quarterly publication.

V. The national bank shall issue bank notes upon the security of the bonds in its possession. The notes so issued, shall be applied to pay the pensions of aged persons, and the compensations to persons arriving at twenty-one years of age. It is both reasonable and generous to suppose, that persons not under immediate necessity, will suspend their right of drawing on the fund, until it acquire, as it will do, a greater degree of ability. In this case, it is proposed, that an honorary register be kept, in each canton, of the names of the persons thus suspending that right, at least during the present war.

VI. As the inheritors of property must always take up their bonds in four quarterly payments, or sooner if they choose, there will always be *numiraire* [cash] arriving at the bank after the expiration of the first quarter, to exchange for the bank notes that shall be brought in.

VII. The bank notes being thus put in circulation, upon the best of all possible security, that of actual property, to more than four times the amount of the bonds upon which the notes are issued, and with *numiraire* continually arriving at the bank to exchange or pay them off whenever they shall be presented for that purpose, they will acquire a permanent value in all parts of the Republic. They can therefore be received in payment of taxes, or emprunts equal to numiraire, because the government can always receive numiraire for them at the bank.

VIII. It will be necessary that the payments of the ten per cent, be made in numeraire for the first year from the establishment of the plan. But after the expiration of the first year, the inheritors of property may pay ten per cent either in bank notes issued upon the fund, or in numeraire, If the payments be in numeraire, it will lie as a deposit at the bank, to be exchanged for a quantity of notes equal to that amount; and if in notes issued upon the fund, it will cause a demand upon the fund, equal thereto;

and thus the operation of the plan will create means to carry itself into execution.

Thomas Paine.

XXIX. THE EIGHTEENTH FRUCTIDOR.

To the People of France and the French Armies (1)

1 This pamphlet was written between the defeat of Pichegru's attempt, September 4, 1794, and November 12, of the same year, the date of the Bien-informi in which the publication is noticed. General Pichegra (Charles), (1761-1804) having joined a royalist conspiracy against the Republic, was banished to Cayenne (1797), whence he escaped to England; having returned to Paris (1804) he was imprisoned in the Temple, and there found strangled by a silk handkerchief, whether by his own or another's act remaining doubtful. -Editor.

When an extraordinary measure, not warranted by established constitutional rules, and justifiable only on the supreme law of absolute necessity, bursts suddenly upon us, we must, in order to form a true judgment thereon, carry our researches back to the times that preceded and occasioned it. Taking up then the subject with respect to the event of the Eighteenth of Fructidor on this ground, I go to examine the state of things prior to that period. I begin with the establishment of the constitution of the year 3 of the French Republic.

A better *organized* constitution has never yet been devised by human wisdom. It is, in its organization, free from all the vices and defects to which other forms of government are more or less subject. I will speak first of the legislative body, because the Legislature is, in the natural order of things, the first power; the Executive is the first magistrate.

By arranging the legislative body into two divisions, as is done in the French Constitution, the one, (the Council of Five Hundred,) whose part it is to conceive and propose laws; the other, a Council of Ancients, to review, approve, or reject the laws proposed; all the security is given that can arise from coolness of reflection acting upon, or correcting the precipitancy or enthusiasm of conception and imagination. It is seldom that our first thought, even upon any subject, is sufficiently just.(1)

1 For Paine's ideas on the right division of representatives into two chambers, which differ essentially from any bicameral system ever adopted, see vol. ii., p. 444 of this

*work; also, in the present volume, Chapter XXXIV.—
Editor..*

The policy of renewing the Legislature by a third part each year, though not entirely new, either in theory or in practice, is nevertheless one of the modern improvements in the science of government. It prevents, on the one hand, that convulsion and precipitate change of measures into which a nation might be surprised by the going out of the whole Legislature at the same time, and the instantaneous election of a new one; on the other hand, it excludes that common interest from taking place that might tempt a whole Legislature, whose term of duration expired at once, to usurp the right of continuance. I go now to speak of the Executive.

It is a principle uncontrovertible by reason, that each of the parts by which government is composed, should be so constructed as to be in perpetual maturity. We should laugh at the idea of a Council of Five Hundred, or a Council of Ancients, or a Parliament, or any national assembly, who should be all children in leading strings and in the cradle, or be all sick, insane, deaf, dumb, lame or blind, at the same time, or be all upon crutches, tottering with age or infirmities. Any form of government that was so constructed as to admit the possibility of such cases happening to a whole Legislature would justly be the ridicule of the world; and on a parity of reasoning, it is equally as ridiculous that the same cases should happen in that part of government which is called the Executive; yet this is the contemptible condition to which an Executive is always subject, and which is often happening, when it is placed in an hereditary individual called a king. When that individual is in either of the cases before mentioned, the whole Executive is in the same case; for himself is the whole. He is then (as an Executive) the ridiculous picture of what a Legislature would be if all its members were in the same case. The one is a whole made up of parts, the other a whole without parts; and anything happening to the one, (as a part or section of the government,) is parallel to the same thing happening to the other.

As, therefore, an hereditary executive called a king is a perfect absurdity in itself, any attachment to it is equally as absurd. It is neither instinct or reason; and if this attachment is what is called royalism in France, then is a royalist inferior in character to every species of the animal world; for what can that being be who acts neither by instinct nor by reason? Such a being merits rather our derision than our pity; and it is only when it assumes to act

its folly that it becomes capable of provoking republican indignation. In every other case it is too contemptible to excite anger. For my own part, when I contemplate the self-evident absurdity of the thing, I can scarcely permit myself to believe that there exists in the high-minded nation of France such a mean and silly animal as a royalist.

As it requires but a single glance of thought to see (as is before said) that all the parts of which government is composed must be at all times in a state of full maturity, it was not possible that men acting under the influence of reason, could, in forming a Constitution, admit an hereditary Executive, any more than an hereditary Legislature. I go therefore to examine the other cases.

In the first place, (rejecting the hereditary system,) shall the Executive by election be an *individual or a plurality*.

An individual by election is almost as bad as the hereditary system, except that there is always a better chance of not having an idiot. But he will never be any thing more than a chief of a party, and none but those of that party will have access to him. He will have no person to consult with of a standing equal with himself, and consequently be deprived of the advantages arising from equal discussion.

Those whom he admits in consultation will be ministers of his own appointment, who, if they displease by their advice, must expect to be dismissed. The authority also is too great, and the business too complicated, to be intrusted to the ambition or the judgment of an individual; and besides these cases, the sudden change of measures that might follow by the going out of an individual Executive, and the election of a new one, would hold the affairs of a nation in a state of perpetual uncertainty. We come then to the case of a plural Executive.

It must be sufficiently plural, to give opportunity to discuss all the various subjects that in the course of national business may come before it; and yet not so numerous as to endanger the necessary secrecy that certain cases, such as those of war, require.

Establishing, then, plurality as a principle, the only question is, What shall be the number of that plurality?

Three are too few either for the variety or the quantity of business. The Constitution has adopted five; and experience has shewn, from the commencement of the Constitution to the time of the election of the new

legislative third, that this number of Directors, when well chosen, is sufficient for all national executive purposes; and therefore a greater number would be only an unnecessary expence. That the measures of the Directory during that period were well concerted is proved by their success; and their being well concerted shews they were well discussed; and, therefore, that five is a sufficient number with respect to discussion; and, on the other hand, the secret, whenever there was one, (as in the case of the expedition to Ireland,) was well kept, and therefore the number is not too great to endanger the necessary secrecy.

The reason why the two Councils are numerous is not from the necessity of their being so, on account of business, but because that every part of the republic shall find and feel itself in the national representation.

Next to the general principle of government by representation, the excellence of the French Constitution consists in providing means to prevent that abuse of power that might arise by letting it remain too long in the same hands. This wise precaution pervades every part of the Constitution. Not only the legislature is renewable by a third every year, but the president of each of the Councils is renewable every month; and of the Directory, one member each year, and its president every three months. Those who formed the Constitution cannot be accused of having contrived for themselves. The Constitution, in this respect, is as impartially constructed as if those who framed it were to die as soon as they had finished their work.

The only defect in the Constitution is that of having narrowed the right of suffrage; and it is in a great measure due to this narrowing the right, that the last elections have not generally been good. My former colleagues will, I presume, pardon my saying this to day, when they recollect my arguments against this defect, at the time the Constitution was discussed in the Convention.(1)

1 See Chapters XXIV. and XXV., also the letter prefaced to XXVIII., in this volume.—Editor.,

I will close this part of the subject by remarking on one of the most vulgar and absurd sayings or dogmas that ever yet imposed itself upon the world, which is, "*that a Republic is fit only for a small country, and a Monarchy for a large one.*" Ask those who say this their reasons why it is so, and they can give none.

Let us then examine the case. If the quantity of knowledge in a government ought to be proportioned to the extent of a country, and the magnitude and variety of its affairs, it follows, as an undeniable result, that this absurd dogma is false, and that the reverse of it is true. As to what is called Monarchy, if it be adaptable to any country it can only be so to a small one, whose concerns are few, little complicated, and all within the comprehension of an individual. But when we come to a country of large extent, vast population, and whose affairs are great, numerous, and various, it is the representative republican system only, that can collect into the government the quantity of knowledge necessary to govern to the best national advantage. Montesquieu, who was strongly inclined to republican government, sheltered himself under this absurd dogma; for he had always the Bastille before his eyes when he was speaking of Republics, and therefore *pretended* not to write for France. Condorcet governed himself by the same caution, but it was caution only, for no sooner had he the opportunity of speaking fully out than he did it. When I say this of Condorcet, I know it as a fact. In a paper published in Paris, July, 1791, entitled, "*The Republican, or the Defender of Representative Government?*" is a piece signed *Thomas Paine*.⁽¹⁾ That piece was concerted between Condorcet and myself. I wrote the original in English, and Condorcet translated it. The object of it was to expose the absurdity and falsehood of the above mentioned dogma.

¹ Chapter II. of this volume. See also my "*Life of Paine*," vol. i., p. 311.—Editor.

Having thus concisely glanced at the excellencies of the Constitution, and the superiority of the representative system of government over every other system, (if any other can be called a system,) I come to speak of the circumstances that have intervened between the time the Constitution was established and the event that took place on the 18th of Fructidor of the present year.

Almost as suddenly as the morning light dissipates darkness, did the establishment of the Constitution change the face of affairs in France. Security succeeded to terror, prosperity to distress, plenty to famine, and confidence increased as the days multiplied, until the coming of the new third. A series of victories unequalled in the world, followed each other, almost too rapidly to be counted, and too numerous to be remembered. The

Coalition, every where defeated and confounded, crumbled away like a ball of dust in the hand of a giant. Every thing, during that period, was acted on such a mighty scale that reality appeared a dream, and truth outstript romance. It may figuratively be said, that the Rhine and the Rubicon (Germany and Italy) replied in triumphs to each other, and the echoing Alps prolonged the shout. I will not here dishonour a great description by noticing too much the English government. It is sufficient to say paradoxically, that in the magnitude of its littleness it cringed, it intrigued, and sought protection in corruption.

Though the achievements of these days might give trophies to a nation and laurels to its heroes, they derive their full radiance of glory from the principle they inspired and the object they accomplished. Desolation, chains, and slavery had marked the progress of former wars, but to conquer for Liberty had never been thought of. To receive the degrading submission of a distressed and subjugated people, and insultingly permit them to live, made the chief triumph of former conquerors; but to receive them with fraternity, to break their chains, to tell them they are free, and teach them to be so, make a new volume in the history of man.

Amidst those national honours, and when only two enemies remained, both of whom had solicited peace, and one of them had signed preliminaries, the election of the new third commenced. Every thing was made easy to them. All difficulties had been conquered before they arrived at the government. They came in the olive days of the revolution, and all they had to do was not to do mischief.

It was, however, not difficult to foresee, that the elections would not be generally good. The horrid days of Robespierre were still remembered, and the gratitude due to those who had put an end to them was forgotten.

Thousands who, by passive approbation during that tremendous scene, had experienced no suffering, assumed the merit of being the loudest against it. Their cowardice in not opposing it, became courage when it was over. They exclaimed against Terrorism as if they had been the heroes that overthrew it, and rendered themselves ridiculous by fantastically overacting moderation. The most noisy of this class, that I have met with, are those who suffered nothing. They became all things, at all times, to all men; till at last they laughed at principle. It was the real republicans who suffered most during the time of Robespierre. The persecution began upon them on the

31st of May 1793, and ceased only by the exertions of the remnant that survived.

In such a confused state of things as preceded the late elections the public mind was put into a condition of being easily deceived; and it was almost natural that the hypocrite would stand the best chance of being elected into the new third. Had those who, since their election, have thrown the public affairs into confusion by counter-revolutionary measures, declared themselves beforehand, they would have been denounced instead of being chosen. Deception was necessary to their success. The Constitution obtained a full establishment; the revolution was considered as complete; and the war on the eve of termination. In such a situation, the mass of the people, fatigued by a long revolution, sought repose; and in their elections they looked out for quiet men. They unfortunately found hypocrites. Would any of the primary assemblies have voted for a civil war? Certainly they would not. But the electoral assemblies of some departments have chosen men whose measures, since their election, tended to no other end but to provoke it. Either those electors have deceived their constituents of the primary assemblies, or they have been themselves deceived in the choice they made of deputies.

That there were some direct but secret conspirators in the new third can scarcely admit of a doubt; but it is most reasonable to suppose that a great part were seduced by the vanity of thinking they could do better than those whom they succeeded. Instead of trusting to experience, they attempted experiments. This counter-disposition prepared them to fall in with any measures contrary to former measures, and that without seeing, and probably without suspecting, the end to which they led.

No sooner were the members of the new third arrived at the seat of government, than expectation was excited to see how they would act. Their motions were watched by all parties, and it was impossible for them to steal a march unobserved. They had it in their power to do great good, or great mischief. A firm and manly conduct on their part, uniting with that of the Directory and their colleagues, would have terminated the war. But the moment before them was not the moment of hesitation. He that hesitates in such situation is lost.

The first public act of the Council of Five Hundred was the election of Pichegru to the presidency of that Council. He arrived at it by a very large

majority, and the public voice was in his favour. I among the rest was one who rejoiced at it. But if the defection of Pichegru was at that time known to Condi, and consequently to Pitt, it unveils the cause that retarded all negotiations for peace.(1) They interpreted that election into a signal of a counter-revolution, and were waiting for it; and they mistook the respect shown to Pichegru, founded on the supposition of his integrity, as a symptom of national revolt. Judging of things by their own foolish ideas of government, they ascribed appearances to causes between which there was no connection. Every thing on their part has been a comedy of errors, and the actors have been chased from the stage.

1 Louis Joseph de Bourbon, Prince de Condi (1736-1818), organized the French emigrants on the Rhine into an army which was incorporated with that of Austria but paid by England. He converted Pichegru into a secret partisan of the Bourbons. He ultimately returned to France with Louis XVIII., who made him colonel of infantry and master of the royal household.—Editor.,

Two or three decades of the new sessions passed away without any thing very material taking place; but matters soon began to explain themselves. The first thing that struck the public mind was, that no more was heard of negotiations for peace, and that public business stood still. It was not the object of the conspirators that there should be peace; but as it was necessary to conceal their object, the Constitution was ransacked to find pretences for delays. In vain did the Directory explain to them the state of the finances and the wants of the army. The committee, charged with that business, trifled away its time by a series of unproductive reports, and continued to sit only to produce more. Every thing necessary to be done was neglected, and every thing improper was attempted. Pichegru occupied himself about forming a national guard for the Councils—the suspicious signal of war,—Camille Jordan about priests and bells, and the emigrants, with whom he had associated during the two years he was in England.¹ Willot and Delarue attacked the Directory: their object was to displace some one of the directors, to get in another of their own. Their motives with respect to the age of Barras (who is as old as he wishes to be, and has been a little too old for them) were too obvious not to be seen through.(2)

1 Paine's pamphlet, addressed to Jordan, deals mainly with religious matters, and is reserved for our fourth volume.—Editor..

*2 Paul Francois Jean Nicolas Barras (1755-1899) was
President of the Directory at this time, 1797.—Editor..*

In this suspensive state of things, the public mind, filled with apprehensions, became agitated, and without knowing what it might be, looked for some extraordinary event. It saw, for it could not avoid seeing, that things could not remain long in the state they were in, but it dreaded a convulsion. That spirit of triflingness which it had indulged too freely when in a state of security, and which it is probable the new agents had interpreted into indifference about the success of the Republic, assumed a serious aspect that afforded to conspiracy no hope of aid; but still it went on. It plunged itself into new measures with the same ill success, and the further it went the further the public mind retired. The conspiracy saw nothing around it to give it encouragement.

The obstinacy, however, with which it persevered in its repeated attacks upon the Directory, in framing laws in favour of emigrants and refractory priests, and in every thing inconsistent with the immediate safety of the Republic, and which served to encourage the enemy to prolong the war, admitted of no other direct interpretation than that something was rotten in the Council of Five Hundred. The evidence of circumstances became every day too visible not to be seen, and too strong to be explained away. Even as errors, (to say no worse of them,) they are not entitled to apology; for where knowledge is a duty, ignorance is a crime.

The more serious republicans, who had better opportunities than the generality had, of knowing the state of politics, began to take the alarm, and formed themselves into a Society, by the name of the Constitutional Club. It is the only Society of which I have been a member in France; and I went to this because it was become necessary that the friends of the Republic should rally round the standard of the constitution. I met there several of the original patriots of the revolution; I do not mean of the last order of Jacobins, but of the first of that name. The faction in the Council of Five Hundred, who, finding no counsel from the public, began to be frightened at appearances, fortified itself against the dread of this Society, by passing a law to dissolve it. The constitutionality of the law was at least doubtful: but the Society, that it might not give the example of exasperating matters already too much inflamed, suspended its meetings.

A matter, however, of much greater moment soon after presented itself. It was the march of four regiments, some of whom, in the line of their route,

had to pass within about twelve leagues of Paris, which is the boundary the Constitution had fixed as the distance of any armed force from the legislative body. In another state of things, such a circumstance would not have been noticed. But conspiracy is quick of suspicion, and the fear which the faction in the Council of Five Hundred manifested upon this occasion could not have suggested itself to innocent men; neither would innocent men have expostulated with the Directory upon the case, in the manner these men did. The question they urged went to extort from the Directory, and to make known to the enemy, what the destination of the troops was. The leaders of the faction conceived that the troops were marching against them; and the conduct they adopted in consequence of it was sufficient to justify the measure, even if it had been so. From what other motive than the consciousness of their own designs could they have fear? The troops, in every instance, had been the gallant defenders of the Republic, and the openly declared friends of the Constitution; the Directory had been the same, and if the faction were not of a different description neither fear nor suspicion could have had place among them.

All those manouvres in the Council were acted under the most professional attachment to the Constitution; and this as necessarily served to enfeeble their projects. It is exceedingly difficult, and next to impossible, to conduct a conspiracy, and still more so to give it success, in a popular government. The disguised and feigned pretences which men in such cases are obliged to act in the face of the public, suppress the action of the faculties, and give even to natural courage the features of timidity. They are not half the men they would be where no disguise is necessary. It is impossible to be a hypocrite and to be brave at the same instant.

The faction, by the imprudence of its measures, upon the march of the troops, and upon the declarations of the officers and soldiers to support the Republic and the Constitution against all open or concealed attempts to overturn them, had gotten itself involved with the army, and in effect declared itself a party against it. On the one hand, laws were proposed to admit emigrants and refractory priests as free citizens; and on the other hand to exclude the troops from Paris, and to punish the soldiers who had declared to support the Republic. In the mean time all negotiations for peace went backward; and the enemy, still recruiting its forces, rested to take advantage of circumstances. Excepting the absence of hostilities, it was a state worse than war.

If all this was not a conspiracy, it had at least the features of one, and was pregnant with the same mischiefs. The eyes of the faction could not avoid being open to the dangers to which it obstinately exposed the Republic; yet still it persisted. During this scene, the journals devoted to the faction were repeatedly announcing the near approach of peace with Austria and with England, and often asserting that it was concluded. This falsehood could be intended for no other purpose than to keep the eyes of the people shut against the dangers to which they were exposed.

Taking all circumstances together, it was impossible that such a state of things could continue long; and at length it was resolved to bring it to an issue. There is good reason to believe that the affair of the 18th Fructidor (September 4) was intended to have taken place two days before; but on recollecting that it was the 2d of September, a day mournful in the annals of the revolution, it was postponed. When the issue arrived, the faction found to its cost it had no party among the public. It had sought its own disasters, and was left to suffer the consequences. Foreign enemies, as well as those of the interior, if any such there be, ought to see in the event of this day that all expectation of aid from any part of the public in support of a counter revolution is delusion. In a state of security the thoughtless, who trembled at terror, may laugh at principles of Liberty (for they have laughed) but it is one thing to indulge a foolish laugh, quite another thing to surrender Liberty.

Considering the event of the 18th Fructidor in a political light, it is one of those that are justifiable only on the supreme law of absolute necessity, and it is the necessity abstracted from the event that is to be deplored. The event itself is matter of joy. Whether the manouvres in the Council of Five Hundred were the conspiracy of a few, aided by the perverseness of many, or whether it had a deeper root, the dangers were the same. It was impossible to go on. Every thing was at stake, and all national business at a stand. The case reduced itself to a simple alternative—shall the Republic be destroyed by the darksome manouvres of a faction, or shall it be preserved by an exceptional act?

During the American Revolution, and that after the State constitutions were established, particular cases arose that rendered it necessary to act in a manner that would have been treasonable in a state of peace. At one time Congress invested General Washington with dictatorial power. At another

time the Government of Pennsylvania suspended itself and declared martial law. It was the necessity of the times only that made the apology of those extraordinary measures. But who was it that produced the necessity of an extraordinary measure in France? A faction, and that in the face of prosperity and success. Its conduct is without apology; and it is on the faction only that the exceptional measure has fallen. The public has suffered no inconvenience. If there are some men more disposed than others not to act severely, I have a right to place myself in that class; the whole of my political life invariably proves it; yet I cannot see, taking all parts of the case together, what else, or what better, could have been done, than has been done. It was a great stroke, applied in a great crisis, that crushed in an instant, and without the loss of a life, all the hopes of the enemy, and restored tranquillity to the interior.

The event was ushered in by the discharge of two cannon at four in the morning, and was the only noise that was heard throughout the day. It naturally excited a movement among the Parisians to enquire the cause. They soon learned it, and the countenance they carried was easy to be interpreted. It was that of a people who, for some time past, had been oppressed with apprehensions of some direful event, and who felt themselves suddenly relieved, by finding what it was. Every one went about his business, or followed his curiosity in quietude. It resembled the cheerful tranquillity of the day when Louis XVI. absconded in 1791, and like that day it served to open the eyes of the nation.

If we take a review of the various events, as well conspiracies as commotions, that have succeeded each other in this revolution, we shall see how the former have wasted consumptively away, and the consequences of the latter have softened. The 31st May and its consequences were terrible. That of the 9th and 10th Thermidor, though glorious for the republic, as it overthrew one of the most horrid and cruel despotisms that ever raged, was nevertheless marked with many circumstances of severe and continued retaliation. The commotions of Germinal and Prairial of the year 3, and of Vendemaire of the year 4, were many degrees below those that preceded them, and affected but a small part of the public. This of Pichegru and his associates has been crushed in an instant, without the stain of blood, and without involving the public in the least inconvenience.

These events taken in a series, mark the progress of the Republic from disorder to stability. The contrary of this is the case in all parts of the British dominions. There, commotions are on an ascending scale; every one is higher than the former. That of the sailors had nearly been the overthrow of the government. But the most potent of all is the invisible commotion in the Bank. It works with the silence of time, and the certainty of death. Every thing happening in France is curable; but this is beyond the reach of nature or invention.

Leaving the event of the 18th Fructidor to justify itself by the necessity that occasioned it, and glorify itself by the happiness of its consequences, I come to cast a coup-d'oil on the present state of affairs.

We have seen by the lingering condition of the negotiations for peace, that nothing was to be expected from them, in the situation that things stood prior to the 18th Fructidor. The armies had done wonders, but those wonders were rendered unproductive by the wretched manouvres of a faction. New exertions are now necessary to repair the mischiefs which that faction has done. The electoral bodies, in some Departments, who by an injudicious choice, or a corrupt influence, have sent improper deputies to the Legislature, have some atonement to make to their country. The evil originated with them, and the least they can do is to be among the foremost to repair it.

It is, however, in vain to lament an evil that is past. There is neither manhood nor policy in grief; and it often happens that an error in politics, like an error in war, admits of being turned to greater advantage than if it had not occurred. The enemy, encouraged by that error, presumes too much, and becomes doubly foiled by the re-action. England, unable to conquer, has stooped to corrupt; and defeated in the last, as in the first, she is in a worse condition than before. Continually increasing her crimes, she increases the measure of her atonement, and multiplies the sacrifices she must make to obtain peace. Nothing but the most obstinate stupidity could have induced her to let slip the opportunity when it was within her reach. In addition to the prospect of new expenses, she is now, to use Mr. Pitt's own figurative expression against France, *not only on the brink, but in the gulph of bankruptcy*. There is no longer any mystery in paper money. Call it assignats, mandats, exchequer bills, or bank notes, it is still the same. Time has solved the problem, and experience has fixed its fate.(1)

The government of that unfortunate country discovers its faithlessness so much, that peace on any terms with her is scarcely worth obtaining. Of what use is peace with a government that will employ that peace for no other purpose than to repair, as far as it is possible, her shattered finances and broken credit, and then go to war again? Four times within the last ten years, from the time the American war closed, has the Anglo-germanic government of England been meditating fresh war. First with France on account of Holland, in 1787; afterwards with Russia; then with Spain, on account of Nootka Sound; and a second time against France, to overthrow her revolution. Sometimes that government employs Prussia against Austria; at another time Austria against Prussia; and always one or the other, or both against France. Peace with such a government is only a treacherous cessation of hostilities.

The frequency of wars on the part of England, within the last century, more than before, must have had some cause that did not exist prior to that epoch. It is not difficult to discover what that cause is. It is the mischievous compound of an Elector of the Germanic body and a King of England; and which necessarily must, at some day or other, become an object of attention to France. That one nation has not a right to interfere in the internal government of another nation, is admitted; and in this point of view, France has no right to dictate to England what its form of government shall be. If it choose to have a thing called a King, or whether that King shall be a man or an ass, is a matter with which France has no business. But whether an Elector of the Germanic body shall be King of England, is an *external* case, with which France and every other nation, who suffers inconvenience and injury in consequence of it, has a right to interfere.

It is from this mischievous compound of Elector and King, that originates a great part of the troubles that vex the continent of Europe; and with respect to England, it has been the cause of her immense national debt, the ruin of her finances, and the insolvency of her bank. All intrigues on the continent, in which England is a party, or becomes involved, are generated by, and act through, the medium of this Anglo-germanic compound. It will be necessary to dissolve it. Let the Elector retire to his Electorate, and the world will have peace.

England herself has given examples of interference in matters of this kind, and that in cases where injury was only apprehended. She engaged in a long and expensive war against France (called the succession war) to prevent a grandson of Louis the Fourteenth being king of Spain; because, said she, *it will be injurious* to me; and she has been fighting and intriguing against what was called the family-compact ever since. In 1787 she threatened France with war to prevent a connection between France and Hoi-land; and in all her propositions of peace to-day she is dictating separations. But if she look at the Anglo-germanic compact at home, called the Hanover succession, she cannot avoid seeing that France necessarily must, some day or other, take up that subject, and make the return of the Elector to his Electorate one of the conditions of peace. There will be no lasting peace between the two countries till this be done, and the sooner it be done the better will it be for both.

I have not been in any company where this matter has been a topic, that did not see it in the light it is here stated. Even Barthilimy,(1) when he first came to the Directory (and Barthilimy was never famous for patriotism) acknowledged in my hearing, and in company with Derchi, Secretary to the Legation at Lille, the connection of an Elector of Germany and a King of England to be injurious to France. I do not, however, mention it from a wish to embarrass the negociation for peace. The Directory has fixed its *ultimatum*; but if that ultimatum be rejected, the obligation to adhere to it is discharged, and a new one may be assumed. So wretchedly has Pitt managed his opportunities; that every succeeding negociation has ended in terms more against him than the former. If the Directory had bribed him, he could not serve his interest better than he does. He serves it as Lord North served that of America, which finished in the discharge of his master.*

1 Marquis de Barthilimy (François) (1750-1830) entered the Directory in June, 1796, through royalist influence. He shared Pichegru's banishment, and subsequently became an agent of Louis XVIII.—Editor.

* The father of Pitt, when a member of the House of Commons, exclaiming one day, during a former war, against the enormous and ruinous expense of German connections, as the offspring of the Hanover succession, and borrowing a metaphor from the story of Prometheus, cried out: "Thus, Hie Prometheus, is Britain chained to the barren rock of Hanover; whilst the imperial eagle preys upon her vitals."—Author.

Thus far I had written when the negotiation at Lille became suspended, in consequence of which I delayed the publication, that the ideas suggested in this letter might not intrude themselves during the interval. The *ultimatum* offered by the Directory, as the terms of peace, was more moderate than the government of England had a right to expect. That government, though the provoker of the war, and the first that committed hostilities by sending away the ambassador Chauvelin,**) had formerly talked of demanding from France, *indemnification for the past and security for the future*. France, in her turn, might have retorted, and demanded the same from England; but she did not. As it was England that, in consequence of her bankruptcy, solicited peace, France offered it to her on the simple condition of her restoring the islands she had taken. The ultimatum has been rejected, and the negotiation broken off. The spirited part of France will say, *tant mieux*, so much the better.

*** It was stipulated in the treaty of commerce between France and England, concluded at Paris, that the sending away an ambassador by either party, should be taken as an act of hostility by the other party. The declaration of war (Feb. M *793) by the Convention, of which I was then a member and know well the case, was made in exact conformity to this article in the treaty; for it was not a declaration of war against England, but a declaration that the French Republic is in war with England; the first act of hostility having been committed by England. The declaration was made immediately on Chauvelin's return to France, and in consequence of it. Mr. Pitt should inform himself of things better than he does, before he prates so much about them, or of the sending away of Malmesbury, who was only on a visit of permission.—Author.*

How the people of England feel on the breaking up of the negotiation, which was entirely the act of their own Government, is best known to themselves; but from what I know of the two nations, France ought to hold herself perfectly indifferent about a peace with the Government of England. Every day adds new strength to France and new embarrassments to her enemy. The resources of the one increase, as those of the other become exhausted. England is now reduced to the same system of paper money from which France has emerged, and we all know the inevitable fate of that system. It is not a victory over a few ships, like that on the coast of Holland, that gives the least support or relief to a paper system. On the news of this victory arriving in England, the funds did not rise a farthing. The Government rejoiced, but its creditors were silent.

It is difficult to find a motive, except in folly and madness, for the conduct of the English government. Every calculation and prediction of Mr. Pitt has turned out directly the contrary; yet still he predicts. He predicted, with all the solemn assurance of a magician, that France would be bankrupt in a few months. He was right as to the thing, but wrong as to the place, for the bankruptcy happened in England whilst the words were yet warm upon his lips. To find out what will happen, it is only necessary to know what Mr. Pitt predicts. He is a true prophet if taken in the reverse.

Such is the ruinous condition that England is now in, that great as the difficulties of war are to the people, the difficulties that would accompany peace are equally as great to the Government. Whilst the war continues, Mr. Pitt has a pretence for shutting up the bank. But as that pretence could last no longer than the war lasted, he dreads the peace that would expose the absolute bankruptcy of the government, and unveil to a deceived nation the ruinous effect of his measures. Peace would be a day of accounts to him, and he shuns it as an insolvent debtor shuns a meeting of his creditors. War furnishes him with many pretences; peace would furnish him with none, and he stands alarmed at its consequences. His conduct in the negotiation at Lille can be easily interpreted. It is not for the sake of the nation that he asks to retain some of the taken islands; for what are islands to a nation that has already too many for her own good, or what are they in comparison to the expense of another campaign in the present depreciating state of the English funds? (And even then those islands must be restored.)

No, it is not for the sake of the nation that he asks. It is for the sake of himself. It is as if he said to France, Give me some pretence, cover me from disgrace when my day of reckoning comes!

Any person acquainted with the English Government knows that every Minister has some dread of what is called in England the winding up of accounts at the end of a war; that is, the final settlement of all expenses incurred by the war; and no Minister had ever so great cause of dread as Mr. Pitt. A burnt child dreads the fire, and Pitt has had some experience upon this case. The winding up of accounts at the end of the American war was so great, that, though he was not the cause of it, and came into the Ministry with great popularity, he lost it all by undertaking, what was impossible for him to avoid, the voluminous business of the winding up. If such was the case in settling the accounts of his predecessor, how much more has he to

apprehend when the accounts to be settled are his own? All men in bad circumstances hate the settlement of accounts, and Pitt, as a Minister, is of that description.

But let us take a view of things on a larger ground than the case of a Minister. It will then be found, that England, on a comparison of strength with France, when both nations are disposed to exert their utmost, has no possible chance of success. The efforts that England made within the last century were not generated on the ground of *natural ability*, but of *artificial anticipations*. She ran posterity into debt, and swallowed up in one generation the resources of several generations yet to come, till the project can be pursued no longer. It is otherwise in France. The vastness of her territory and her population render the burden easy that would make a bankrupt of a country like England.

It is not the weight of a thing, but the numbers who are to bear that weight, that makes it feel light or heavy to the shoulders of those who bear it. A land-tax of half as much in the pound as the land-tax is in England, will raise nearly four times as much revenue in France as is raised in England. This is a scale easily understood, by which all the other sections of productive revenue can be measured. Judge then of the difference of natural ability.

England is strong in a navy; but that navy costs about eight millions sterling a-year, and is one of the causes that has hastened her bankruptcy. The history of navy bills sufficiently proves this. But strong as England is in this case, the fate of navies must finally be decided by the natural ability of each country to carry its navy to the greatest extent; and France is able to support a navy twice as large as that of England, with less than half the expense per head on the people, which the present navy of England costs.

We all know that a navy cannot be raised as expeditiously as an army. But as the average duration of a navy, taking the decay of time, storms, and all circumstances and accidents together, is less than twenty years, every navy must be renewed within that time; and France at the end of a few years, can create and support a navy of double the extent of that of England; and the conduct of the English government will provoke her to it.

But of what use are navies otherwise than to make or prevent invasions? Commercially considered, they are losses. They scarcely give any protection to the commerce of the countries which have them, compared

with the expense of maintaining them, and they insult the commerce of the nations that are neutral.

During the American war, the plan of the armed neutrality was formed and put in execution: but it was inconvenient, expensive, and ineffectual. This being the case, the problem is, does not commerce contain within itself, the means of its own protection? It certainly does, if the neutral nations will employ that means properly.

Instead then of an *armed neutrality*, the plan should be directly the contrary. It should be an *unarmed neutrality*. In the first place, the rights of neutral nations are easily defined. They are such as are exercised by nations in their intercourse with each other in time of peace, and which ought not, and cannot of right, be interrupted in consequence of war breaking out between any two or more of them.

Taking this as a principle, the next thing is to give it effect. The plan of the armed neutrality was to effect it by threatening war; but an unarmed neutrality can effect it by much easier and more powerful means.

Were the neutral nations to associate, under an honourable injunction of fidelity to each other, and publicly declare to the world, that if any belligerent power shall seize or molest any ship or vessel belonging to the citizens or subjects of any of the powers composing that Association, that the whole Association will shut its ports against the flag of the offending nation, and will not permit any goods, wares, or merchandise, produced or manufactured in the offending nation, or appertaining thereto, to be imported into any of the ports included in the Association, until reparation be made to the injured party,—the reparation to be three times the value of the vessel and cargo,—and moreover that all remittances on money, goods, and bills of exchange, do cease to be made to the offending nation, until the said reparation be made: were the neutral nations only to do this, which it is their direct interest to do, England, as a nation depending on the commerce of neutral nations in time of war, dare not molest them, and France would not. But whilst, from the want of a common system, they individually permit England to do it, because individually they cannot resist it, they put France under the necessity of doing the same thing. The supreme of all laws, in all cases, is that of self-preservation.

As the commerce of neutral nations would thus be protected by the means that commerce naturally contains within itself, all the naval

operations of France and England would be confined within the circle of acting against each other: and in that case it needs no spirit of prophecy to discover that France must finally prevail. The sooner this be done, the better will it be for both nations, and for all the world.

Thomas Paine.(1)

1 Paine had already prepared his "Maritime Compact," and devised the Rainbow Flag, which was to protect commerce, the substance and history of which constitutes his Seventh Letter to the People of the United States, Chapter XXXIII. of the present volume. He sent the articles of his proposed international Association to the Minister of Foreign Relations, Talleyrand, who responded with a cordial letter. The articles of "Maritime Compact," translated into French by Nicolas Bouneville, were, in 1800, sent to all the Ministers of Foreign Affairs in Europe, and to the ambassadors in Paris.—Editor.,

XXX. THE RECALL OF MONROE. (1)

1 Monroe, like Edmund Randolph and Thomas Paine, was sacrificed to the new commercial alliance with Great Britain. The Cabinet of Washington were entirely hostile to France, and in their determination to replace Monroe were assisted by Gouverneur Morris, still in Europe, who wrote to President Washington calumnies against that Minister. In a letter of December 19, 1795, Morris tells Washington that he had heard from a trusted informant that Monroe had said to several Frenchmen that "he had no doubt but that, if they would do what was proper here, he and his friends would turn out Washington." On July 2, 1796, the Cabinet ministers, Pickering, Wolcott, and Mo-Henry, wrote to the President their joint opinion that the interests of the United States required Monroe's recall, and slanderously connected him with anonymous letters from France written by M. Montflorenc. The recall, dated August 22, 1796, reached Monroe early in November. It alluded to certain "concurring circumstances," which induced his removal, and these "hidden causes" (in Paine's phrase) Monroe vainly demanded on his return to America early in 1797. The Directory, on notification of Monroe's recall, resolved not to recognize his successor, and the only approach to an American Minister in Paris for the remainder of the century was Thomas Paine, who was consulted by the Foreign Ministers, De la Croix and Talleyrand, and by Napoleon. On the approach of C. C. Pinckney, as successor to Monroe, Paine feared that his dismissal might entail war, and urged the Minister (De la Croix) to regard Pinckney,—nominated in a recess of the Senate,—as in "suspension" until confirmed by that body. There might be unofficial "pourparlers," with him. This letter (State Archives, Paris, Itats Unis, vol. 46, fol. 425) was considered for several days before Pinckney reached Paris (December 5, 1796), but the Directory considered that it was not a "dignified" course, and Pinckney was ordered to leave French territory, under the existing decree against foreigners who had no permit to remain.—Editor..

Paris, Sept. 27, 1797. Editors of the Bien-in formi.

Citizens: in your 19th number of the complementary 5th, you gave an analysis of the letters of James Monroe to Timothy Pickering. The newspapers of Paris and the departments have copied this correspondence between the ambassador of the United States and the Secretary of State. I notice, however, that a few of them have omitted some important facts, whilst indulging in comments of such an extraordinary nature that it is clear they know neither Monroe's integrity nor the intrigues of Pitt in this affair.

The recall of Monroe is connected with circumstances so important to the interests of France and the United States, that we must be careful not to confound it with the recall of an ordinary individual. The Washington faction had affected to spread it abroad that James Monroe was the cause of rupture between the two Republics. This accusation is a perfidious and calumnious one; since the main point in this affair is not so much the recall of a worthy, enlightened and republican minister, as the ingratitude and clandestine manoeuvring of the government of Washington, who caused the misunderstanding by signing a treaty injurious to the French Republic.

James Monroe, in his letters, does not deny the right of government to withdraw its confidence from any one of its delegates, representatives, or agents. He has hinted, it is true, that caprice and temper are not in accordance with the spirit of paternal rule, and that whenever a representative government punishes or rewards, good faith, integrity and justice should replace *the good pleasure of Kings*.

In the present case, they have done more than recall an agent. Had they confined themselves to depriving him of his appointment, James Monroe would have kept silence; but he has been accused of lighting the torch of discord in both Republics. The refutation of this absurd and infamous reproach is the chief object of his correspondence. If he did not immediately complain of these slanders in his letters of the 6th and 8th [July], it is because he wished to use at first a certain degree of caution, and, if it were possible, to stifle intestine troubles at their birth. He wished to reopen the way to peaceful negotiations to be conducted with good faith and justice.

The arguments of the Secretary of State on the rights of the supreme administration of the United States are peremptory; but the observations of Monroe on the hidden causes of his recall are touching; they come from the heart; they are characteristic of an excellent citizen. If he does more than complain of his unjust recall as a man of feeling would; if he proudly asks for proofs of a grave accusation, it is after he has tried in vain every honest and straightforward means. He will not suffer that a government, sold to the enemies of freedom, should discharge upon him its shame, its crimes, its ingratitude, and all the odium of its unjust dealings.

Were Monroe to find himself an object of public hatred, the Republican party in the United States, that party which is the sincere ally of France, would be annihilated, and this is the aim of the English government.

Imagine the triumph of Pitt, if Monroe and the other friends of freedom in America, should be unjustly attacked in France!

Monroe does not lay his cause before the Senate since the Senate itself ratified the unconstitutional treaty; he appeals to the house of Representatives, and at the same time lays his cause before the upright tribunal of the American nation.

XXXI. PRIVATE LETTER TO PRESIDENT JEFFERSON.

Paris, October 1, 1800.

Dear Sir,—I wrote to you from Havre by the ship Dublin Packet in the year 1797. It was then my intention to return to America; but there were so many British frigates cruising in sight of the port, and which after a few days knew that I was at Havre waiting to go to America, that I did not think it best to trust myself to their discretion, and the more so, as I had no confidence in the captain of the Dublin Packet (Clay).(1) I mentioned to you in that letter, which I believe you received thro' the hands of Colonel [Aaron] Burr, that I was glad since you were not President that you had accepted the nomination of Vice President.

The Commissioners Ellsworth & Co.(2) have been here about eight months, and three more useless mortals never came upon public business. Their presence appears to me to have been rather an injury than a benefit. They set themselves up for a faction as soon as they arrived. I was then in Belgia.(3) Upon my return to Paris I learnt they had made a point of not returning the visits of Mr. Skipwith and Barlow, because, they said, they had not the confidence of the executive. Every known republican was treated in the same manner. I learned from Mr. Miller of Philadelphia, who had occasion to see them upon business, that they did not intend to return my visit, if I made one. This, I supposed, it was intended I should know, that I might not make one. It had the contrary effect. I went to see Mr. Ellsworth. I told him, I did not come to see him as a commissioner, nor to congratulate him upon his mission; that I came to see him because I had formerly known him in Congress. "I mean not," said I, "to press you with any questions, or to engage you in any conversation upon the business you are come upon, but I will nevertheless candidly say that I know not what expectations the Government or the people of America may have of your mission, or what expectations you may have yourselves, but I believe you will find you can do but little. The treaty with England lies at the threshold of all your business. The American Government never did two more foolish

things than when it signed that Treaty and recalled Mr. Monroe, who was the only man could do them any service." Mr. Ellsworth put on the dull gravity of a Judge, and was silent. I added, "You may perhaps make a treaty like that you have made with England, which is a surrender of the rights of the American flag; for the principle that neutral ships make neutral property must be general or not at all." I then changed the subject, for I had all the talk to myself upon this topic, and enquired after Samuel Adams, (I asked nothing about John,) Mr. Jefferson, Mr. Monroe, and others of my friends; and the melancholy case of the yellow fever,—of which he gave me as circumstantial an account as if he had been summing up a case to a Jury. Here my visit ended, and had Mr. Ellsworth been as cunning as a statesman, or as wise as a Judge, he would have returned my visit that he might appear insensible of the intention of mine.

1 The packet was indeed searched for Paine by a British cruiser.—Editor.

2 Oliver Ellsworth (Chief Justice), W. V. Murray, and W. R. Davie, were sent by President Adams to France to negotiate a treaty. In this they failed, but a convention was signed September 30, 1800, which terminated the treaty of 1778, which had become a source of discord, and prepared the way for the negotiations of Livingston and Monroe in 1803.—Editor.

3 Paine had visited his room-mate in Luxembourg prison, Vanhuele, who was now Mayor of Bruges.—Editor..

I now come to the affairs of this country and of Europe. You will, I suppose, have heard before this arrives to you, of the battle of Marengo in Italy, where the Austrians were defeated—of the armistice in consequence thereof, and the surrender of Milan, Genoa etc. to the french—of the successes of the french Army in Germany—and the extension of the armistice in that quarter—of the preliminaries of Peace signed at Paris—of the refusal of the Emperor [of Austria] to ratify these preliminaries—of the breaking of the armistice by the french Government in consequence of that refusal—of the "gallant" expedition of the Emperor to put himself at the head of his Army—of his pompous arrival there—of his having made his will—of prayers being put in all his churches for the preservation of the life of this Hero—of General Moreau announcing to him, immediately on his arrival at the Army, that hostilities would commence the day after the next at sunrise unless he signed the treaty or gave security that he would sign within 45 days—of his surrendering up three of the principal keys of

Germany (Ulm, Philipsbourg, and Ingolstadt) as security that he would sign them. This is the state things are now in, at the time of writing this letter; but it is proper to add that the refusal of the Emperor to sign the preliminaries was motived upon a note from the King of England to be admitted to the Congress for negotiating Peace, which was consented to by the french upon the condition of an armistice at Sea, which England, before knowing of the surrender the Emperor had made, had refused. From all which it appears to me, judging from circumstances, that the Emperor is now so compleatly in the hands of the french, that he has no way of getting out but by a peace. The Congress for the peace is to be held at Luniville, a town in France. Since the affair of Rastadt the French commissioners will not trust themselves within the Emperor's territory.

I now come to domestic Affairs. I know not what the Commissioners have done, but from a paper I enclose to you, which appears to have some authority, it is not much. The paper as you will perceive is considerably prior to this letter. I know that the Commissioners before this piece appeared intended setting off. It is therefore probable that what they have done is conformable to what this paper mentions, which certainly will not atone for the expence their mission has incurred, neither are they, by all the accounts I hear of them, men fitted for the business.

But independently of these matters there appears to be a state of circumstances rising, which if it goes on, will render all partial treaties unnecessary. In the first place I doubt if any peace will be made with England; and in the second place, I should not wonder to see a coalition formed against her, to compel her to abandon her insolence on the seas. This brings me to speak of the manuscripts I send you.

The piece No. 1, without any title, was written in consequence of a question put to me by Bonaparte. As he supposed I knew England and English Politics he sent a person to me to ask, that in case of negotiating a Peace with Austria, whether it would be proper to include England. This was when Count St. Julian was in Paris, on the part of the Emperor negotiating the preliminaries:—which as I have before said the Emperor refused to sign on the pretence of admitting England.

The piece No. 2, entitled *On the Jacobinism of the English at sea*, was written when the English made their insolent and impolitic expedition to Denmark, and is also an auxiliary to the politic of No. 1. I shewed it to a

friend [Bonneville] who had it translated into french, and printed in the form of a Pamphlet, and distributed gratis among the foreign Ministers, and persons in the Government. It was immediately copied into several of the french Journals, and into the official Paper, the Moniteur. It appeared in this paper one day before the last dispatch arrived from Egypt; which agreed perfectly with what I had said respecting Egypt. It hit the two cases of Denmark and Egypt in the exact proper moment.

The Piece No. 3, entitled *Compact Maritime*, is the sequel of No. 2, digested in form. It is translating at the time I write this letter, and I am to have a meeting with the Senator Garat upon the subject. The pieces 2 and 3 go off in manuscript to England, by a confidential person, where they will be published.(1)

1 The substance of most of these "pieces" are embodied in Paine's Seventh Letter to the People of the United States (infra p. 420).—Editor.

By all the news we get from the North there appears to be something meditating against England. It is now given for certain that Paul has embargoed all the English vessels and English property in Russia till some principle be established for protecting the Rights of neutral Nations, and securing the liberty of the Seas. The preparations in Denmark continue, notwithstanding the convention that she has made with England, which leaves the question with respect to the right set up by England to stop and search Neutral vessels undecided. I send you the paragraphs upon the subject.

The tumults are great in all parts of England on account of the excessive price of corn and bread, which has risen since the harvest. I attribute it more to the abundant increase of paper, and the non-circulation of cash, than to any other cause. People in trade can push the paper off as fast as they receive it, as they did by continental money in America; but as farmers have not this opportunity, they endeavor to secure themselves by going considerably in advance.

I have now given you all the great articles of intelligence, for I trouble not myself with little ones, and consequently not with the Commissioners, nor any thing they are about, nor with John Adams, otherwise than to wish him safe home, and a better and wiser man in his place.

In the present state of circumstances and the prospects arising from them, it may be proper for America to consider whether it is worth her while to enter into any treaty at this moment, or to wait the event of those circumstances which if they go on will render partial treaties useless by deranging them. But if, in the mean time, she enters into any treaty it ought to be with a condition to the following purpose: Reserving to herself the right of joining in an Association of Nations for the protection of the Rights of Neutral Commerce and the security of the liberty of the Seas.

The pieces 2, 3, may go to the press. They will make a small pamphlet and the printers are welcome to put my name to it. (It is best it should be put.) From thence they will get into the newspapers. I know that the faction of John Adams abuses me pretty heartily. They are welcome.

It does not disturb me, and they lose their labour; and in return for it I am doing America more service, as a neutral Nation, than their expensive Commissioners can do, and she has that service from me for nothing. The piece No. 1 is only for your own amusement and that of your friends.

I come now to speak confidentially to you on a private subject. When Mr. Ellsworth and Davie return to America, Murray will return to Holland, and in that case there will be nobody in Paris but Mr. Skipwith that has been in the habit of transacting business with the french Government since the revolution began. He is on a good standing with them, and if the chance of the day should place you in the presidency you cannot do better than appoint him for any purpose you may have occasion for in France. He is an honest man and will do his country justice, and that with civility and good manners to the government he is commissioned to act with; a faculty which that Northern Bear Timothy Pickering wanted, and which the Bear of that Bear, John Adams, never possessed.

I know not much of Mr. Murray, otherwise than of his unfriendliness to every American who is not of his faction, but I am sure that Joel Barlow is a much fitter man to be in Holland than Mr. Murray. It is upon the fitness of the man to the place that I speak, for I have not communicated a thought upon the subject to Barlow, neither does he know, at the time of my writing this (for he is at Havre), that I have intention to do it.

I will now, by way of relief, amuse you with some account of the progress of iron bridges.

[Here follows an account of the building of the iron bridge at Sunderland, England, and some correspondence with Mr. Milbanke, M. P., which will be given more fully and precisely in a chapter of vol. IV. (Appendix), on Iron Bridges, and is therefore omitted here.]

I have now made two other Models [of bridges]. One is pasteboard, five feet span and five inches of height from the cords. It is in the opinion of every person who has seen it one of the most beautiful objects the eye can behold. I then cast a model in metal following the construction of that in paste-board and of the same dimensions. The whole was executed in my own Chamber. It is far superior in strength, elegance, and readiness in execution to the model I made in America, and which you saw in Paris.⁽¹⁾ I shall bring those models with me when I come home, which will be as soon as I can pass the seas in safety from the piratical John Bulls. I suppose you have seen, or have heard of the Bishop of Landaff's answer to my second part of the Age of Reason. As soon as I got a copy of it I began a third part, which served also as an answer to the Bishop; but as soon as the clerical society for promoting *Christian Knowledge* knew of my intention to answer the Bishop, they prosecuted, as a Society, the printer of the first and second parts, to prevent that answer appearing. No other reason than this can be assigned for their prosecuting at the time they did, because the first part had been in circulation above three years and the second part more than one, and they prosecuted immediately on knowing that I was taking up their Champion. The Bishop's answer, like Mr. Burke's attack on the french revolution, served me as a back-ground to bring forward other subjects upon, with more advantage than if the background was not there. This is the motive that induced me to answer him, otherwise I should have gone on without taking any notice of him. I have made and am still making additions to the manuscript, and shall continue to do so till an opportunity arrive for publishing it.

1 "These models exhibit an extraordinary degree not only of skill, but of taste, and are wrought with extreme delicacy entirely by his own hands. The largest is nearly four feet in length; the iron-works, the chains, and every other article belonging to it, were forged and manufactured by himself. It is intended as the model of a bridge which is to be constructed across the Delaware, extending 480 feet, with only one arch. The other is to be erected over a lesser river, whose name I forget, and is likewise a single arch, and of his own workmanship, excepting the chains, which, instead of iron, are cut out of paste-board by the fair hand

of his correspondent, the 'Little Corner of the World' (Lady Smyth), whose indefatigable perseverance is extraordinary. He was offered #3000 for these models and refused it."—Yorke's Letters from France, These models excited much admiration in Washington and Philadelphia. They remained for a long time in Peale's Museum at Philadelphia, but no trace is left of them.—Editor.

If any American frigate should come to france, and the direction of it fall to you, I will be glad you would give me the opportunity of returning. The abscess under which I suffered almost two years is entirely healed of itself, and I enjoy exceeding good health. This is the first of October, and Mr. Skipwith has just called to tell me the Commissioners set off for Havre tomorrow. This will go by the frigate but not with the knowledge of the Commissioners. Remember me with much affection to my friends and accept the same to yourself.

Thomas Paine.

XXXII. PROPOSAL THAT LOUISIANA BE PURCHASED.(1)

(SENT TO THE PRESIDENT, CHRISTMAS DAY, 1802.)

1 Paine, being at Lovell's Hotel, Washington, suggested the purchase of Louisiana to Dr. Michael Leib, representative from Pennsylvania, who, being pleased with the idea, suggested that he should write it to Jefferson. On the day after its reception the President told Paine that "measures were already taken in that business."—Editor..

Spain has ceded Louisiana to France, and France has excluded Americans from New Orleans, and the navigation of the Mississippi. The people of the Western Territory have complained of it to their Government, and the Government is of consequence involved and interested in the affair. The question then is—What is the best step to be taken?

The one is to begin by memorial and remonstrance against an infraction of a right. The other is by accommodation,—still keeping the right in view, but not making it a groundwork.

Suppose then the Government begin by making a proposal to France to re-purchase the cession made to her by Spain, of Louisiana, provided it be with the consent of the people of Louisiana, or a majority thereof.

By beginning on this ground any thing can be said without carrying the appearance of a threat. The growing power of the Western Territory can be stated as a matter of information, and also the impossibility of restraining them from seizing upon New Orleans, and the equal impossibility of France to prevent it.

Suppose the proposal attended to, the sum to be given comes next on the carpet. This, on the part of America, will be estimated between the value of the commerce and the quantity of revenue that Louisiana will produce.

The French Treasury is not only empty, but the Government has consumed by anticipation a great part of the next year's revenue. A monied proposal will, I believe, be attended to; if it should, the claims upon France

can be stipulated as part of the payment, and that sum can be paid here to the claimants.

——I congratulate you on *The Birthday of the New Sun*,
now called Christmas Day; and I make you a present of a thought on Louisiana.

T.P.

XXXIII. THOMAS PAINE TO THE CITIZENS OF THE UNITED STATES,

And particularly to the Leaders of the Federal Faction, LETTER I.(1)

1 The National Intelligencer, November 15th. The venerable Mr. Gales, so long associated with this paper, had been in youth a prosecuted adherent of Paine in Sheffield, England. The paper distinguished itself by the kindly welcome it gave Paine on his return to America. (See issues of Nov. 3 and 10, 1802.) Paine landed at Baltimore, Oct. 30th.—Editor.,

After an absence of almost fifteen years, I am again returned to the country in whose dangers I bore my share, and to whose greatness I contributed my part.

When I sailed for Europe, in the spring of 1787, it was my intention to return to America the next year, and enjoy in retirement the esteem of my friends, and the repose I was entitled to. I had stood out the storm of one revolution, and had no wish to embark in another. But other scenes and other circumstances than those of contemplated ease were allotted to me. The French revolution was beginning to germinate when I arrived in France. The principles of it were good, they were copied from America, and the men who conducted it were honest. But the fury of faction soon extinguished the one, and sent the other to the scaffold. Of those who began that revolution, I am almost the only survivor, and that through a thousand dangers. I owe this not to the prayers of priests, nor to the piety of hypocrites, but to the continued protection of Providence.

But while I beheld with pleasure the dawn of liberty rising in Europe, I saw with regret the lustre of it fading in America. In less than two years from the time of my departure some distant symptoms painfully suggested the idea that the principles of the revolution were expiring on the soil that produced them. I received at that time a letter from a female literary correspondent, and in my answer to her, I expressed my fears on that head.

(1)

I now know from the information I obtain upon the spot, that the impressions that then distressed me, for I was proud of America, were but

too well founded. She was turning her back on her own glory, and making hasty strides in the retrograde path of oblivion. But a spark from the altar of *Seventy-six*, unextinguished and unextinguishable through the long night of error, is again lighting up, in every part of the Union, the genuine name of rational liberty.

As the French revolution advanced, it fixed the attention of the world, and drew from the pensioned pen (2) of Edmund Burke a furious attack. This brought me once more on the public theatre of politics, and occasioned the pamphlet *Rights of Man*. It had the greatest run of any work ever published in the English language. The number of copies circulated in England, Scotland, and Ireland, besides translations into foreign languages, was between four and five hundred thousand. The principles of that work were the same as those in *Common Sense*, and the effects would have been the same in England as that had produced in America, could the vote of the nation been quietly taken, or had equal opportunities of consulting or acting existed. The only difference between the two works was, that the one was adapted to the local circumstances of England, and the other to those of America. As to myself, I acted in both cases alike; I relinquished to the people of England, as I had done to those of America, all profits from the work. My reward existed in the ambition to do good, and the independent happiness of my own mind.

1 Paine here quotes a passage from his letter to Mrs. Few, already given in the Memorial to Monroe (XXI.). The entire letter to Mrs. Few will be printed in the Appendix to Vol. IV. of this work.—Editor.

2 See editorial note p. 95 in this volume.—Editor.

But a faction, acting in disguise, was rising in America; they had lost sight of first principles. They were beginning to contemplate government as a profitable monopoly, and the people as hereditary property. It is, therefore, no wonder that the *Rights of Man* was attacked by that faction, and its author continually abused. But let them go on; give them rope enough and they will put an end to their own insignificance. There is too much common sense and independence in America to be long the dupe of any faction, foreign or domestic.

But, in the midst of the freedom we enjoy, the licentiousness of the papers called Federal, (and I know not why they are called so, for they are

in their principles anti-federal and despotic,) is a dishonour to the character of the country, and an injury to its reputation and importance abroad. They represent the whole people of America as destitute of public principle and private manners. As to any injury they can do at home to those whom they abuse, or service they can render to those who employ them, it is to be set down to the account of noisy nothingness. It is on themselves the disgrace recoils, for the reflection easily presents itself to every thinking mind, that *those who abuse liberty when they possess it would abuse power could they obtain it*; and, therefore, they may as well take as a general motto, for all such papers, *We and our patrons are not fit to be trusted with power*.

There is in America, more than in any other country, a large body of people who attend quietly to their farms, or follow their several occupations; who pay no regard to the clamours of anonymous scribblers, who think for themselves, and judge of government, not by the fury of newspaper writers, but by the prudent frugality of its measures, and the encouragement it gives to the improvement and prosperity of the country; and who, acting on their own judgment, never come forward in an election but on some important occasion. When this body moves, all the little barkings of scribbling and witless curs pass for nothing. To say to this independent description of men, "You must turn out such and such persons at the next election, for they have taken off a great many taxes, and lessened the expenses of government, they have dismissed my son, or my brother, or myself, from a lucrative office, in which there was nothing to do"—is to show the cloven foot of faction, and preach the language of ill-disguised mortification. In every part of the Union, this faction is in the agonies of death, and in proportion as its fate approaches, gnashes its teeth and struggles. My arrival has struck it as with an hydrophobia, it is like the sight of water to canine madness.

As this letter is intended to announce my arrival to my friends, and to my enemies if I have any, for I ought to have none in America, and as introductory to others that will occasionally follow, I shall close it by detailing the line of conduct I shall pursue.

I have no occasion to ask, and do not intend to accept, any place or office in the government.⁽¹⁾ There is none it could give me that would be any ways equal to the profits I could make as an author, for I have an established fame in the literary world, could I reconcile it to my principles

to make money by my politics or religion. I must be in every thing what I have ever been, a disinterested volunteer; my proper sphere of action is on the common floor of citizenship, and to honest men I give my hand and my heart freely.

1 The President (Jefferson) being an intimate friend of Paine, and suspected, despite his reticence, of sympathizing with Paine's religious views, was included in the denunciations of Paine ("The Two Toms" they were called), and Paine here goes out of his way to soften matters for Jefferson.—Editor..

I have some manuscript works to publish, of which I shall give proper notice, and some mechanical affairs to bring forward, that will employ all my leisure time. I shall continue these letters as I see occasion, and as to the low party prints that choose to abuse me, they are welcome; I shall not descend to answer them. I have been too much used to such common stuff to take any notice of it. The government of England honoured me with a thousand martyrdoms, by burning me in effigy in every town in that country, and their hirelings in America may do the same.

City of Washington.

THOMAS PAINE. LETTER II(1)

As the affairs of the country to which I am returned are of more importance to the world, and to me, than of that I have lately left, (for it is through the new world the old must be regenerated, if regenerated at all,) I shall not take up the time of the reader with an account of scenes that have passed in France, many of which are painful to remember and horrid to relate, but come at once to the circumstances in which I find America on my arrival.

Fourteen years, and something more, have produced a change, at least among a part of the people, and I ask my-self what it is? I meet or hear of thousands of my former connexions, who are men of the same principles and friendships as when I left them. But a non-descript race, and of equivocal generation, assuming the name of *Federalist*,—a name that describes no character of principle good or bad, and may equally be applied to either,—has since started up with the rapidity of a mushroom, and like a mushroom is withering on its rootless stalk. Are those men *federalized* to support the liberties of their country or to overturn them? To add to its fair fame or riot on its spoils? The name contains no defined idea. It is like John

Adams's definition of a Republic, in his letter to Mr. Wythe of Virginia.(2) *It is*, says he, *an empire of laws and not of men*. But as laws may be bad as well as good, an empire of laws may be the best of all governments or the worst of all tyrannies. But John Adams is a man of paradoxical heresies, and consequently of a bewildered mind. He wrote a book entitled, "*A Defence of the American Constitutions*," and the principles of it are an attack upon them. But the book is descended to the tomb of forgetfulness, and the best fortune that can attend its author is quietly to follow its fate. John was not born for immortality. But, to return to Federalism.

1 National Intelligencer, Nov. 23d, 1802.—Editor.

2 Chancellor Wythe, 1728-1806.—Editor. vol m—+5

In the history of parties and the names they assume, it often happens that they finish by the direct contrary principles with which they profess to begin, and thus it has happened with Federalism.

During the time of the old Congress, and prior to the establishment of the federal government, the continental belt was too loosely buckled. The several states were united in name but not in fact, and that nominal union had neither centre nor circle. The laws of one state frequently interfered with, and sometimes opposed, those of another. Commerce between state and state was without protection, and confidence without a point to rest on. The condition the country was then in, was aptly described by Pelatiah Webster, when he said, "*thirteen staves and ne'er a hoop will not make a barrel*."(1)

If, then, by *Federalist* is to be understood one who was for cementing the Union by a general government operating equally over all the States, in all matters that embraced the common interest, and to which the authority of the States severally was not adequate, for no one State can make laws to bind another; if, I say, by a *Federalist* is meant a person of this description, (and this is the origin of the name,) *I ought to stand first on the list of Federalists*, for the proposition for establishing a general government over the Union, came originally from me in 1783, in a written Memorial to Chancellor Livingston, then Secretary for Foreign Affairs to Congress, Robert Morris, Minister of Finance, and his associate, Gouverneur Morris, all of whom are now living; and we had a dinner and conference at Robert Morris's on the subject. The occasion was as follows:

Congress had proposed a duty of five per cent, on imported articles, the money to be applied as a fund towards paying the interest of loans to be borrowed in Holland. The resolve was sent to the several States to be enacted into a law. Rhode Island absolutely refused. I was at the trouble of a journey to Rhode Island to reason with them on the subject.(2) Some other of the States enacted it with alterations, each one as it pleased. Virginia adopted it, and afterwards repealed it, and the affair came to nothing.

1 *"Like a stare in a cask well bound with hoops, it [the individual State] stands firmer, is not so easily shaken, bent, or broken, as it would be were it set up by itself alone."*—Pelatiah Webster, 1788. See Paul L. Ford's *Pamphlets on the Constitution, etc.*, p. 128.—Editor

2 See my *"Life of Paine."* vol i., p. 103.—Editor,

It was then visible, at least to me, that either Congress must frame the laws necessary for the Union, and send them to the several States to be enregistered without any alteration, which would in itself appear like usurpation on one part and passive obedience on the other, or some method must be devised to accomplish the same end by constitutional principles; and the proposition I made in the memorial was, to *add a continental legislature to Congress, to be elected by the several States*. The proposition met the full approbation of the gentlemen to whom it was addressed, and the conversation turned on the manner of bringing it forward. Gouverneur Morris, in walking with me after dinner, wished me to throw out the idea in the newspaper; I replied, that I did not like to be always the proposer of new things, that it would have too assuming an appearance; and besides, that *I did not think the country was quite wrong enough to be put right*. I remember giving the same reason to Dr. Rush, at Philadelphia, and to General Gates, at whose quarters I spent a day on my return from Rhode Island; and I suppose they will remember it, because the observation seemed to strike them.(1)

1 *The Letter Books of Robert Morris (16 folio volumes, which should be in our national Archives) contain many entries relating to Paine's activity in the public service. Under date Aug. 21, 1783, about the time referred to by Paine in this letter, Robert Morris mentions a conversation with him on public affairs. I am indebted to General Meredith Read, owner of these Morris papers, for permission to examine them.*—Editor..

But the embarrassments increasing, as they necessarily must from the want of a better cemented union, the State of Virginia proposed holding a commercial convention, and that convention, which was not sufficiently numerous, proposed that another convention, with more extensive and better defined powers, should be held at Philadelphia, May 10, 1787.

When the plan of the Federal Government, formed by this Convention, was proposed and submitted to the consideration of the several States, it was strongly objected to in each of them. But the objections were not on anti-federal grounds, but on constitutional points. Many were shocked at the idea of placing what is called Executive Power in the hands of a single individual. To them it had too much the form and appearance of a military government, or a despotic one. Others objected that the powers given to a president were too great, and that in the hands of an ambitious and designing man it might grow into tyranny, as it did in England under Oliver Cromwell, and as it has since done in France. A Republic must not only be so in its principles, but in its forms. The Executive part of the Federal government was made for a man, and those who consented, against their judgment, to place Executive Power in the hands of a single individual, reposed more on the supposed moderation of the person they had in view, than on the wisdom of the measure itself.

Two considerations, however, overcame all objections. The one was, the absolute necessity of a Federal Government. The other, the rational reflection, that as government in America is founded on the representative system any error in the first essay could be reformed by the same quiet and rational process by which the Constitution was formed, and that either by the generation then living, or by those who were to succeed. If ever America lose sight of this principle, she will no longer be the *land of liberty*. The father will become the assassin of the rights of the son, and his descendants be a race of slaves.

As many thousands who were minors are grown up to manhood since the name of *Federalist* began, it became necessary, for their information, to go back and show the origin of the name, which is now no longer what it originally was; but it was the more necessary to do this, in order to bring forward, in the open face of day, the apostacy of those who first called themselves Federalists.

To them it served as a cloak for treason, a mask for tyranny. Scarcely were they placed in the seat of power and office, than Federalism was to be destroyed, and the representative system of government, the pride and glory of America, and the palladium of her liberties, was to be overthrown and abolished. The next generation was not to be free. The son was to bend his neck beneath the father's foot, and live, deprived of his rights, under hereditary control. Among the men of this apostate description, is to be ranked the ex-president *John Adams*. It has been the political career of this man to begin with hypocrisy, proceed with arrogance, and finish in contempt. May such be the fate of all such characters.

I have had doubts of John Adams ever since the year 1776. In a conversation with me at that time, concerning the pamphlet *Common Sense*, he censured it because it attacked the English form of government. John was for independence because he expected to be made great by it; but it was not difficult to perceive, for the surliness of his temper makes him an awkward hypocrite, that his head was as full of kings, queens, and knaves, as a pack of cards. But John has lost deal.

When a man has a concealed project in his brain that he wants to bring forward, and fears will not succeed, he begins with it as physicians do by suspected poison, try it first on an animal; if it agree with the stomach of the animal, he makes further experiments, and this was the way John took. His brain was teeming with projects to overturn the liberties of America, and the representative system of government, and he began by hinting it in little companies. The secretary of John Jay, an excellent painter and a poor politician, told me, in presence of another American, Daniel Parker, that in a company where himself was present, John Adams talked of making the government hereditary, and that as Mr. Washington had no children, it should be made hereditary in the family of Lund Washington.(1) John had not impudence enough to propose himself in the first instance, as the old French Normandy baron did, who offered to come over to be king of America, and if Congress did not accept his offer, that they would give him thirty thousand pounds for the generosity of it(2); but John, like a mole, was grubbing his way to it under ground. He knew that Lund Washington was unknown, for nobody had heard of him, and that as the president had no children to succeed him, the vice-president had, and if the treason had succeeded, and the hint with it, the goldsmith might be sent for to take measure of the head of John or of his son for a golden wig. In this case, the

good people of Boston might have for a king the man they have rejected as a delegate. The representative system is fatal to ambition.

1 See *supra* footnote on p. 288.—Editor.

2 See vol. ii. p. 318 of this work.—Editor.

Knowing, as I do, the consummate vanity of John Adams, and the shallowness of his judgment, I can easily picture to myself that when he arrived at the Federal City he was strutting in the pomp of his imagination before the presidential house, or in the audience hall, and exulting in the language of Nebuchadnezzar, "Is not this great Babylon, that I have built for the honour of my Majesty!" But in that unfortunate hour, or soon after, John, like Nebuchadnezzar, was driven from among men, and fled with the speed of a post-horse.

Some of John Adams's loyal subjects, I see, have been to present him with an address on his birthday; but the language they use is too tame for the occasion. Birthday addresses, like birthday odes, should not creep along like mildrops down a cabbage leaf, but roll in a torrent of poetical metaphor. I will give them a specimen for the next year. Here it is—

When an Ant, in travelling over the globe, lift up its foot, and put it again on the ground, it shakes the earth to its centre: but when YOU, the mighty Ant of the East, was born, &c. &c. &c, the centre jumped upon the surface.

This, gentlemen, is the proper style of addresses from *well-bred* ants to the monarch of the ant hills; and as I never take pay for preaching, praying, politics, or poetry, I make you a present of it. Some people talk of impeaching John Adams; but I am for softer measures. I would keep him to make fun of. He will then answer one of the ends for which he was born, and he ought to be thankful that I am arrived to take his part. I voted in earnest to save the life of one unfortunate king, and I now vote in jest to save another. It is my fate to be always plagued with fools. But to return to Federalism and apostacy.

The plan of the leaders of the faction was to overthrow the liberties of the new world, and place government on the corrupt system of the old. They wanted to hold their power by a more lasting tenure than the choice of their constituents. It is impossible to account for their conduct and the measures they adopted on any other ground. But to accomplish that object, a standing army and a prodigal revenue must be raised; and to obtain these, pretences

must be invented to deceive. Alarms of dangers that did not exist even in imagination, but in the direct spirit of lying, were spread abroad. Apostacy stalked through the land in the garb of patriotism, and the torch of treason blinded for a while the flame of liberty.

For what purpose could an army of twenty-five thousand men be wanted? A single reflection might have taught the most credulous that while the war raged between France and England, neither could spare a man to invade America. For what purpose, then, could it be wanted? The case carries its own explanation. It was wanted for the purpose of destroying the representative system, for it could be employed for no other. Are these men Federalists? If they are, they are federalized to deceive and to destroy.

The rage against Dr. Logan's patriotic and voluntary mission to France was excited by the shame they felt at the detection of the false alarms they had circulated. As to the opposition given by the remnant of the faction to the repeal of the taxes laid on during the former administration, it is easily accounted for. The repeal of those taxes was a sentence of condemnation on those who laid them on, and in the opposition they gave in that repeal, they are to be considered in the light of criminals standing on their defence, and the country has passed judgment upon them.

Thomas Paine.

City of Washington, Lovett's Hotel, Nov. 19, 1802.

LETTER III.(1)

1 The National Intelligencer, Dec. 29th, 1802.—Editor..

To ELECT, and to REJECT, is the prerogative of a free people.

Since the establishment of Independence, no period has arrived that so decidedly proves the excellence of the representative system of government, and its superiority over every other, as the time we now live in. Had America been cursed with John Adams's *hereditary Monarchy* or Alexander Hamilton's *Senate for life* she must have sought, in the doubtful contest of civil war, what she now obtains by the expression of public will. An appeal to elections decides better than an appeal to the sword.

The Reign of Terror that raged in America during the latter end of the Washington administration, and the whole of that of Adams, is enveloped in mystery to me. That there were men in the government hostile to the

representative system, was once their boast, though it is now their overthrow, and therefore the fact is established against them. But that so large a mass of the people should become the dupes of those who were loading them with taxes in order to load them with chains, and deprive them of the right of election, can be ascribed only to that species of wildfire rage, lighted up by falsehood, that not only acts without reflection, but is too impetuous to make any.

There is a general and striking difference between the genuine effects of truth itself, and the effects of falsehood believed to be truth. Truth is naturally benign; but falsehood believed to be truth is always furious. The former delights in serenity, is mild and persuasive, and seeks not the auxiliary aid of invention. The latter sticks at nothing. It has naturally no morals. Every lie is welcome that suits its purpose. It is the innate character of the thing to act in this manner, and the criterion by which it may be known, whether in politics or religion. When any thing is attempted to be supported by lying, it is presumptive evidence that the thing so supported is a lie also. The stock on which a lie can be grafted must be of the same species as the graft.

What is become of the mighty clamour of French invasion, and the cry that our country is in danger, and taxes and armies must be raised to defend it? The danger is fled with the faction that created it, and what is worst of all, the money is fled too. It is I only that have committed the hostility of invasion, and all the artillery of popguns are prepared for action. Poor fellows, how they foam! They set half their own partisans in laughter; for among ridiculous things nothing is more ridiculous than ridiculous rage. But I hope they will not leave off. I shall lose half my greatness when they cease to lie.

So far as respects myself, I have reason to believe, and a right to say, that the leaders of the Reign of Terror in America and the leaders of the Reign of Terror in France, during the time of Robespierre, were in character the same sort of men; or how is it to be accounted for, that I was persecuted by both at the same time? When I was voted out of the French Convention, the reason assigned for it was, that I was a foreigner. When Robespierre had me seized in the night, and imprisoned in the Luxembourg, (where I remained eleven months,) he assigned no reason for it. But when he proposed bringing me to the tribunal, which was like sending me at once to the

scaffold, he then assigned a reason, and the reason was, *for the interests of America as well as of France, "Pour les intirjts de l'Amirique autant que de la France"* The words are in his own hand-writing, and reported to the Convention by the committee appointed to examine his papers, and are printed in their report, with this reflection added to them, *"Why Thomas Paine more than another? Because he contributed to the liberty of both worlds."*(1)

1 See my "Life of Paine," vol. ii., pp. 79, 81. Also, the historical introduction to XXI., p. 330, of this volume. Robespierre never wrote an idle word. This Paine well knew, as Mirabeau, who said of Robespierre: "That man will go far he believes every word he says."—Editor.

There must have been a coalition in sentiment, if not in fact, between the Terrorists of America and the Terrorists of France, and Robespierre must have known it, or he could not have had the idea of putting America into the bill of accusation against me. Yet these men, these Terrorists of the new world, who were waiting in the devotion of their hearts for the joyful news of my destruction, are the same banditti who are now bellowing in all the hacknied language of hacknied hypocrisy, about humanity, and piety, and often about something they call infidelity, and they finish with the chorus of *Crucify him, crucify him*. I am become so famous among them, they cannot eat or drink without me. I serve them as a standing dish, and they cannot make up a bill of fare if I am not in it.

But there is one dish, and that the choicest of all, that they have not presented on the table, and it is time they should. They have not yet *accused Providence of Infidelity*. Yet according to their outrageous piety, she(1) must be as bad as Thomas Paine; she has protected him in all his dangers, patronized him in all his undertakings, encouraged him in all his ways, and rewarded him at last by bringing him in safety and in health to the Promised Land. This is more than she did by the Jews, the chosen people, that they tell us she brought out of the land of Egypt, and out of the house of bondage; for they all died in the wilderness, and Moses too.

I was one of the nine members that composed the first Committee of Constitution. Six of them have been destroyed. Sihyes and myself have survived—he by bending with the times, and I by not bending. The other survivor joined Robespierre, he was seized and imprisoned in his turn, and sentenced to transportation. He has since apologized to me for having

signed the warrant, by saying he felt himself in danger and was obliged to do it.(2)

1 Is this a "survival" of the goddess Fortuna?—Editor.

2 Barhre. His apology to Paine proves that a death-warrant had been issued, for Barhre did not sign the order for Paine's arrest or imprisonment.—Editor.

Hirault Sechelles, an acquaintance of Mr. Jefferson, and a good patriot, was my *suppliant* as member of the Committee of Constitution, that is, he was to supply my place, if I had not accepted or had resigned, being next in number of votes to me. He was imprisoned in the Luxembourg with me, was taken to the tribunal and the guillotine, and I, his principal, was left.

There were two foreigners in the Convention, Anarcharsis Cloutz and myself. We were both put out of the Convention by the same vote, arrested by the same order, and carried to prison together the same night. He was taken to the guillotine, and I was again left. Joel Barlow was with us when we went to prison.

Joseph Lebon, one of the vilest characters that ever existed, and who made the streets of Arras run with blood, was my *suppliant*, as member of the Convention for the department of the Pas de Calais. When I was put out of the Convention he came and took my place. When I was liberated from prison and voted again into the Convention, he was sent to the same prison and took my place there, and he was sent to the guillotine instead of me. He supplied my place all the way through.

One hundred and sixty-eight persons were taken out of the Luxembourg in one night, and a hundred and sixty of them guillotined next day, of which I now know I was to have been one; and the manner I escaped that fate is curious, and has all the appearance of accident.

The room in which I was lodged was on the ground floor, and one of a long range of rooms under a gallery, and the door of it opened outward and flat against the wall; so that when it was open the inside of the door appeared outward, and the contrary when it was shut. I had three comrades, fellow prisoners with me, Joseph Vanhuele, of Bruges, since President of the Municipality of that town, Michael Rubyns, and Charles Bastini of Louvain.

When persons by scores and by hundreds were to be taken out of the prison for the guillotine it was always done in the night, and those who performed that office had a private mark or signal, by which they knew what rooms to go to, and what number to take. We, as I have stated, were four, and the door of our room was marked, unobserved by us, with that number in chalk; but it happened, if happening is a proper word, that the mark was put on when the door was open, and flat against the wall, and thereby came on the inside when we shut it at night, and the destroying angel passed by it.⁽¹⁾ A few days after this, Robespierre fell, and Mr. Monroe arrived and reclaimed me, and invited me to his house.

1 Paine's preface to the "Age of Reason" Part II, and his Letter to Washington (p. 222.) show that for some time after his release from prison he had attributed his escape from the guillotine to a fever which rendered him unconscious at the time when his accusation was demanded by Robespierre; but it will be seen (XXXI.) that he subsequently visited his prison room-mate Vanhuele, who had become Mayor of Bruges, and he may have learned from him the particulars of their marvellous escape. Carlyle having been criticised by John G. Alger for crediting this story of the chalk mark, an exhaustive discussion of the facts took place in the London Athenaeum, July 7, 21, August 25, September 1, 1894, in which it was conclusively proved, I think, that there is no reason to doubt the truth of the incident. See also my article on Paine's escape, in The Open Court (Chicago), July 26, 1894. The discussion in the Athenaeum elicited the fact that a tradition had long existed in the family of Sampson Perry that he had shared Paine's cell and been saved by the curious mistake. Such is not the fact. Perry, in his book on the French Revolution, and in his "Argus," told the story of Paine's escape by his illness, as Paine first told it; and he also relates an anecdote which may find place here: "Mr. Paine speaks gratefully of the kindness shown him by his fellow-prisoners of the same chamber during his severe malady, and especially of the skilful and voluntary assistance lent him by General O'Hara's surgeon. He relates an anecdote of himself which may not be unworthy of repeating. An arrjt of the Committee of Public Welfare had given directions to the administrators of the palace [Luxembourg] to enter all the prisons with additional guards and dispossess every prisoner of his knives, forks, and every other sharp instrument; and also to take their money from them. This happened a short time before Mr. Paine's illness, and as this ceremony was represented to him as an atrocious plunder in the dregs of municipality, he determined to avert its effect so far as it concerned himself. He had an English bank note of some value and gold coin in his pocket, and as he conceived the visitors would rifle them, as well as his trunks (though they did not do so by any one) he took off the lock from his door, and hid the whole of what he had about him in its inside. He recovered his health, he found his money, but missed about three hundred of his associated prisoners, who had been sent in

crowds to the murderous tribunal, while he had been insensible of their or his own danger." This was probably the money (#200) loaned by Paine to General O'Hara (who figured at the Yorktown surrender) in prison.—Editor.

During the whole of my imprisonment, prior to the fall of Robespierre, there was no time when I could think my life worth twenty-four hours, and my mind was made up to meet its fate. The Americans in Paris went in a body to the Convention to reclaim me, but without success. There was no party among them with respect to me. My only hope then rested on the government of America, that it would *remember me*. But the icy heart of ingratitude, in whatever man it be placed, has neither feeling nor sense of honour. The letter of Mr. Jefferson has served to wipe away the reproach, and done justice to the mass of the people of America.(1)

*1 Printed in the seventh of this series of Letters.—
Editor..*

When a party was forming, in the latter end of 1777, and beginning of 1778, of which John Adams was one, to remove Mr. Washington from the command of the army on the complaint that *he did nothing*, I wrote the fifth number of the Crisis, and published it at Lancaster, (Congress then being at Yorktown, in Pennsylvania,) to ward off that meditated blow; for though I well knew that the black times of '76 were the natural consequence of his want of military judgment in the choice of positions into which the army was put about New York and New Jersey, I could see no possible advantage, and nothing but mischief, that could arise by distracting the army into parties, which would have been the case had the intended motion gone on.

General [Charles] Lee, who with a sarcastic genius joined a great fund of military knowledge, was perfectly right when he said "*We have no business on islands, and in the bottom of bogs, where the enemy, by the aid of its ships, can bring its whole force against apart of ours and shut it up.*" This had like to have been the case at New York, and it was the case at Fort Washington, and would have been the case at Fort Lee if General [Nathaniel] Greene had not moved instantly off on the first news of the enemy's approach. I was with Greene through the whole of that affair, and know it perfectly.

But though I came forward in defence of Mr. Washington when he was attacked, and made the best that could be made of a series of blunders that

had nearly ruined the country, he left me to perish when I was in prison. But as I told him of it in his life-time, I should not now bring it up if the ignorant impertinence of some of the Federal papers, who are pushing Mr. Washington forward as their stalking horse, did not make it necessary.

That gentleman did not perform his part in the Revolution better, nor with more honour, than I did mine, and the one part was as necessary as the other. He accepted as a present, (though he was already rich,) a hundred thousand acres of land in America, and left me to occupy six foot of earth in France.⁽¹⁾ I wish, for his own reputation, he had acted with more justice. But it was always known of Mr. Washington, by those who best knew him, that he was of such an icy and death-like constitution, that he neither loved his friends nor hated his enemies. But, be this as it may, I see no reason that a difference between Mr. Washington and me should be made a theme of discord with other people. There are those who may see merit in both, without making themselves partisans of either, and with this reflection I close the subject.

1 Paine was mistaken, as many others were, about the gifts of Virginia (1785) to Washington. They were 100 shares, of \$100 each, in the James River Company, and 50 shares, of \$100 each, in the Potomac Company. Washington, accepted on condition that he might appropriate them to public uses which was done in his Will.—Editor.

As to the hypocritical abuse thrown out by the Federalists on other subjects, I recommend to them the observance of a commandment that existed before either Christian or Jew existed:

*Thou shalt make a covenant with thy senses:
With thine eye that it behold no evil,
With thine ear, that it hear no evil,
With thy tongue, that it speak no evil,
With thy hands, that they commit no evil.*

If the Federalists will follow this commandment, they will leave off lying.

Thomas Paine.

Federal City, Lovett's Hotel, Nov. 26, 1802.

LETTER IV.⁽¹⁾

1 The National Intelligencer, Dec. 6th. 1802.—Editor..

As Congress is on the point of meeting, the public papers will necessarily be occupied with the debates of the ensuing session, and as, in consequence of my long absence from America, my private affairs require my attendance, (for it is necessary I do this, or I could not preserve, as I do, my independence,) I shall close my address to the public with this letter.

I congratulate them on the success of the late elections, and *that* with the additional confidence, that while honest men are chosen and wise measures pursued, neither the treason of apostacy, masked under the name of Federalism, of which I have spoken in my second letter, nor the intrigues of foreign emissaries, acting in concert with that mask, can prevail.

As to the licentiousness of the papers calling themselves *Federal*, a name that apostacy has taken, it can hurt nobody but the party or the persons who support such papers. There is naturally a wholesome pride in the public mind that revolts at open vulgarity. It feels itself dishonoured even by hearing it, as a chaste woman feels dishonour by hearing obscenity she cannot avoid. It can smile at wit, or be diverted with strokes of satirical humour, but it detests the *blackguard*. The same sense of propriety that governs in private companies, governs in public life. If a man in company runs his wit upon another, it may draw a smile from some persons present, but as soon as he turns a blackguard in his language the company gives him up; and it is the same in public life. The event of the late election shows this to be true; for in proportion as those papers have become more and more vulgar and abusive, the elections have gone more and more against the party they support, or that supports them. Their predecessor, *Porcupine* [Cobbett] had wit—these scribblers have none. But as soon as his *blackguardism* (for it is the proper name of it) outran his wit, he was abandoned by every body but the English Minister who protected him.

The Spanish proverb says, "*there never was a cover large enough to hide itself*"; and the proverb applies to the case of those papers and the shattered remnant of the faction that supports them. The falsehoods they fabricate, and the abuse they circulate, is a cover to hide something from being seen, but it is not large enough to hide itself. It is as a tub thrown out to the whale to prevent its attacking and sinking the vessel. They want to draw the attention of the public from thinking about, or inquiring into, the measures of the late administration, and the reason why so much public money was raised and expended; and so far as a lie today, and a new one tomorrow, will

answer this purpose, it answers theirs. It is nothing to them whether they be believed or not, for if the negative purpose be answered the main point is answered, to them.

He that picks your pocket always tries to make you look another way. "Look," says he, "at yon man t'other side the street—what a nose he has got?—Lord, yonder is a chimney on fire!—Do you see yon man going along in the salamander great coat? That is the very man that stole one of Jupiter's satellites, and sold it to a countryman for a gold watch, and it set his breeches on fire!" Now the man that has his hand in your pocket, does not care a farthing whether you believe what he says or not. All his aim is to prevent your looking at *him*; and this is the case with the remnant of the Federal faction. The leaders of it have imposed upon the country, and they want to turn the attention of it from the subject.

In taking up any public matter, I have never made it a consideration, and never will, whether it be popular or unpopular; but whether it be *right* or *wrong*. The right will always become the popular, if it has courage to show itself, and the shortest way is always a straight line. I despise expedients, they are the gutter-hole of politics, and the sink where reputation dies. In the present case, as in every other, I cannot be accused of using any; and I have no doubt but thousands will hereafter be ready to say, as Gouverneur Morris said to me, after having abused me pretty handsomely in Congress for the opposition I gave the fraudulent demand of Silas Deane of two thousand pounds sterling: "*Well, we were all duped, and I among the rest!*" (1)

¹ See vol. I., chapters xxii., xxiii., xxiv., of this work.
Also my "Life of Paine," vol. I., ch. ix., x.—Editor.

Were the late administration to be called upon to give reasons for the expence it put the country to, it can give none. The danger of an invasion was a bubble that served as a cover to raise taxes and armies to be employed on some other purpose. But if the people of America believed it true, the cheerfulness with which they supported those measures and paid those taxes is an evidence of their patriotism; and if they supposed me their enemy, though in that supposition they did me injustice, it was not injustice in them. He that acts as he believes, though he may act wrong, is not conscious of wrong.

But though there was no danger, no thanks are due to the late administration for it. They sought to blow up a flame between the two countries; and so intent were they upon this, that they went out of their way to accomplish it. In a letter which the Secretary of State, Timothy Pickering, wrote to Mr. Skipwith, the American Consul at Paris, he broke off from the official subject of his letter, to *thank God* in very exulting language, *that the Russians had cut the French army to pieces*. Mr. Skipwith, after showing me the letter, very prudently concealed it.

It was the injudicious and wicked acrimony of this letter, and some other like conduct of the then Secretary of State, that occasioned me, in a letter to a friend in the government, to say, that if there was any official business to be done in France, till a regular Minister could be appointed, it could not be trusted to a more proper person than Mr. Skipwith. "*He is,*" said I, "*an honest man, and will do business, and that with good manners to the government he is commissioned to act with. A faculty which that BEAR, Timothy Pickering, wanted, and which the BEAR of that bear, John Adams, never possessed.*"(2)

2 By reference to the letter itself (p. 376 of this volume)
it will be seen that Paine here quotes it from memory.—
Editor. vol III—

In another letter to the same friend, in 1797, and which was put unsealed under cover to Colonel Burr, I expressed a satisfaction that Mr. Jefferson, since he was not president, had accepted the vice presidency; "*for,*" said I, "*John Adams has such a talent for blundering and offending, it will be necessary to keep an eye over him.*" He has now sufficiently proved, that though I have not the spirit of prophecy, I have the gift of *judging right*. And all the world knows, for it cannot help knowing, that to judge *rightly* and to write *clearly*, and that upon all sorts of subjects, to be able to command thought and as it were to play with it at pleasure, and be always master of one's temper in writing, is the faculty only of a serene mind, and the attribute of a happy and philosophical temperament. The scribblers, who know me not, and who fill their papers with paragraphs about me, besides their want of talents, drink too many slings and drams in a morning to have any chance with me. But, poor fellows, they must do something for the little pittance they get from their employers. This is my apology for them.

My anxiety to get back to America was great for many years. It is the country of my heart, and the place of my political and literary birth. It was the American revolution that made me an author, and forced into action the mind that had been dormant, and had no wish for public life, nor has it now. By the accounts I received, she appeared to me to be going wrong, and that some meditated treason against her liberties lurked at the bottom of her government. I heard that my friends were oppressed, and I longed to take my stand among them, and if other times to *try mens souls* were to arrive, that I might bear my share. But my efforts to return were ineffectual.

As soon as Mr. Monroe had made a good standing with the French government, for the conduct of his predecessor [Morris] had made his reception as Minister difficult, he wanted to send despatches to his own government by a person to whom he could confide a verbal communication, and he fixed his choice on me. He then applied to the Committee of Public Safety for a passport; but as I had been voted again into the Convention, it was only the Convention that could give the passport; and as an application to them for that purpose, would have made my going publicly known, I was obliged to sustain the disappointment, and Mr. Monroe to lose the opportunity.(1)

When that gentleman left France to return to America, I was to have gone with him. It was fortunate I did not. The vessel he sailed in was visited by a British frigate, that searched every part of it, and down to the hold, for Thomas Paine.(2) I then went, the same year, to embark at Havre. But several British frigates were cruizing in sight of the port who knew I was there, and I had to return again to Paris. Seeing myself thus cut off from every opportunity that was in my power to command, I wrote to Mr. Jefferson, that, if the fate of the election should put him in the chair of the presidency, and he should have occasion to send a frigate to France, he would give me the opportunity of returning by it, which he did. But I declined coming by the *Maryland*, the vessel that was offered me, and waited for the frigate that was to bring the new Minister, Mr. Chancellor Livingston, to France. But that frigate was ordered round to the Mediterranean; and as at that time the war was over, and the British cruisers called in, I could come any way. I then agreed to come with Commodore Barney in a vessel he had engaged. It was again fortunate I did not, for the vessel sank at sea, and the people were preserved in the boat.

¹ The correspondence is in my "Life of Paine," vol. ii., pp. 154-5.—Editor.

² The "Dublin Packet," Captain Clay, in whom Paine, as he wrote to Jefferson, "had no confidence."—Editor.

Had half the number of evils befallen me that the number of dangers amount to through which I have been pre-served, there are those who would ascribe it to the wrath of heaven; why then do they not ascribe my preservation to the protecting favour of heaven? Even in my worldly concerns I have been blessed. The little property I left in America, and which I cared nothing about, not even to receive the rent of it, has been increasing in the value of its capital more than eight hundred dollars every year, for the fourteen years and more that I have been absent from it. I am now in my circumstances independent; and my economy makes me rich. As to my health, it is perfectly good, and I leave the world to judge of the stature of my mind. I am in every instance a living contradiction to the mortified Federalists.

In my publications, I follow the rule I began with in *Common Sense*, that is, to consult nobody, nor to let any body see what I write till it appears publicly. Were I to do otherwise, the case would be, that between the timidity of some, who are so afraid of doing wrong that they never do right, the puny judgment of others, and the despicable craft of preferring *expedient to right*, as if the world was a world of babies in leading strings, I should get forward with nothing. My path is a right line, as straight and clear to me as a ray of light. The boldness (if they will have it to be so) with which I speak on any subject, is a compliment to the judgment of the reader. It is like saying to him, *I treat you as a man and not as a child*. With respect to any worldly object, as it is impossible to discover any in me, therefore what I do, and my manner of doing it, ought to be ascribed to a good motive.

In a great affair, where the happiness of man is at stake, I love to work for nothing; and so fully am I under the influence of this principle, that I should lose the spirit, the pleasure, and the pride of it, were I conscious that I looked for reward; and with this declaration, I take my leave for the present.(1)

¹ The self-assertion of this and other letters about this time was really self-defence, the invective against him, and

the calumnies, being such as can hardly be credited by those not familiar with the publications of that time.—Editor.

Thomas Paine.

Federal City, Lovett's Hotel, Dec. 3, 1802.

LETTER V.(1)

1 The National Intelligencer, Feb., 1803. In the Tarions collections of these Letters there appears at this point a correspondence between Paine and Samuel Adams of Boston, but as it relates to religious matters I reserve it for the fourth volume.—Editor..

It is always the interest of a far greater part of the nation to have a thing right than to have it wrong; and therefore, in a country whose government is founded on the system of election and representation, the fate of every party is decided by its principles.

As this system is the only form and principle of government by which liberty can be preserved, and the only one that can embrace all the varieties of a great extent of country, it necessarily follows, that to have the representation real, the election must be real; and that where the election is a fiction, the representation is a fiction also. *Like will always produce like.*

A great deal has been said and written concerning the conduct of Mr. Burr, during the late contest, in the federal legislature, whether Mr. Jefferson or Mr. Burr should be declared President of the United States. Mr. Burr has been accused of intriguing to obtain the Presidency. Whether this charge be substantiated or not makes little or no part of the purport of this letter. There is a point of much higher importance to attend to than any thing that relates to the individual Mr. Burr: for the great point is not whether Mr. Burr has intrigued, but whether the legislature has intrigued with *him*.

Mr. Ogden, a relation of one of the senators of New Jersey of the same name, and of the party assuming the style of Federalists, has written a letter published in the New York papers, signed with his name, the purport of which is to exculpate Mr. Burr from the charges brought against him. In this letter he says:

"When about to return from Washington, two or three *members of Congress* of the federal party spoke to me of *their views*, as to the election of a president, desiring me to converse with Colonel Burr on the subject,

and to ascertain *whether he would enter into terms*. On my return to New York I called on Colonel Burr, and communicated the above to him. He explicitly declined the explanation, and *did neither propose nor agree to any terms*."

How nearly is human cunning allied to folly! The animals to whom nature has given the faculty we call *cunning*, know always when to use it, and use it wisely; but when man descends to cunning, he blunders and betrays.

Mr. Ogden's letter is intended to exculpate Mr. Burr from the charge of intriguing to obtain the presidency; and the letter that he (Ogden) writes for this purpose is direct evidence against his party in Congress, that they intrigued with Burr to obtain him for President, and employed him (Ogden) for the purpose. To save *Aaron*, he betrays *Moses*, and then turns informer against the *Golden Calf*.

It is but of little importance to the world to know if Mr. Burr *listened* to an intriguing proposal, but it is of great importance to the constituents to know if their representatives in Congress made one. The ear can commit no crime, but the tongue may; and therefore the right policy is to drop Mr. Burr, as being only the hearer, and direct the whole charge against the Federal faction in Congress as the active original culprit, or, if the priests will have scripture for it, as the serpent that beguiled Eve.

1 In the presidential canvas of 1800, the votes in the electoral college being equally divided between Burr and Jefferson, the election was thrown into the House of Representatives. Jefferson was elected on the 36th ballot, but he never forgave Burr, and between these two old friends Paine had to write this letter under some embarrassment. The last paragraph of this Letter shows Paine's desire for a reconciliation between Burr and Jefferson. Aaron Burr is one of the traditionally slandered figures of American history.
—Editor.

The plot of the intrigue was to make Mr. Burr President, on the private condition of his agreeing to, and entering into, terms with them, that is, with the proposers. Had then the election been made, the country, knowing nothing of this private and illegal transaction, would have supposed, for who could have supposed otherwise, that it had a President according to the forms, principles, and intention of the constitution. No such thing. Every form, principle, and intention of the constitution would have been violated; and instead of a President, it would have had a mute, a sort of image, hand-

bound and tongue-tied, the dupe and slave of a party, placed on the theatre of the United States, and acting the farce of President.

It is of little importance, in a constitutional sense, to know what the terms to be proposed might be, because any terms other than those which the constitution prescribes to a President are criminal. Neither do I see how Mr. Burr, or any other person put in the same condition, could have taken the oath prescribed by the constitution to a President, which is, "*I do solemnly swear (or affirm,) that I will faithfully execute the office of President of the United States, and will to the best of my ability preserve, protect and defend the Constitution of the United States.*"

How, I ask, could such a person have taken such an oath, knowing at the same time that he had entered into the Presidency on terms unknown in the Constitution, and private, and which would deprive him of the freedom and power of acting as President of the United States, agreeably to his constitutional oath?

Mr. Burr, by not agreeing to terms, has escaped the danger to which they exposed him, and the perjury that would have followed, and also the punishment annexed thereto. Had he accepted the Presidency on terms unknown in the constitution, and private, and had the transaction afterwards transpired, (which it most probably would, for roguery is a thing difficult to conceal,) it would have produced a sensation in the country too violent to be quieted, and too just to be resisted; and in any case the election must have been void.

But what are we to think of those members of Congress, who having taken an oath of the same constitutional import as the oath of the President, violate that oath by tampering to obtain a President on private conditions. If this is not sedition against the constitution and the country, it is difficult to define what sedition in a representative can be.

Say not that this statement of the case is the effect of personal or party resentment. No. It is the effect of *sincere concern* that such corruption, of which this is but a sample, should, in the space of a few years, have crept into a country that had the fairest opportunity that Providence ever gave, within the knowledge of history, of making itself an illustrious example to the world.

What the terms were, or were to be, it is probable we never shall know; or what is more probable, that feigned ones, if any, will be given. But from

the conduct of the party since that time we may conclude, that no taxes would have been taken off, that the clamour for war would have been kept up, new expences incurred, and taxes and offices increased in consequence; and, among the articles of a private nature, that the leaders in this seditious traffic were to stipulate with the mock President for lucrative appointments for themselves.

But if these plotters against the Constitution understood their business, and they had been plotting long enough to be masters of it, a single article would have comprehended every thing, which is, *That the President (thus made) should be governed in all cases whatsoever by a private junto appointed by themselves.* They could then, through the medium of a mock President, have negatived all bills which their party in Congress could not have opposed with success, and reduced representation to a nullity.

The country has been imposed upon, and the real culprits are but few; and as it is necessary for the peace, harmony, and honour of the Union, to separate the deceiver from the deceived, the betrayer from the betrayed, that men who once were friends, and that in the worst of times, should be friends again, it is necessary, as a beginning, that this dark business be brought to full investigation. Ogden's letter is direct evidence of the fact of tampering to obtain a conditional President. He knows the two or three members of Congress that commissioned him, and they know who commissioned them.

Thomas Paine.

Federal City, Lovett's Hotel, Jan. 29th, 1803.

LETTER VI.(1)

1 The Aurora (Philadelphia).—Editor..

Religion and War is the cry of the Federalists; Morality and Peace the voice of Republicans. The union of Morality and Peace is congenial; but that of Religion and War is a paradox, and the solution of it is hypocrisy.

The leaders of the Federalists have no judgment; their plans no consistency of parts; and want of consistency is the natural consequence of want of principle.

They exhibit to the world the curious spectacle of an *Opposition* without a *cause*, and conduct without system. Were they, as doctors, to prescribe

medicine as they practise politics, they would poison their patients with destructive compounds.

There are not two things more opposed to each other than War and Religion; and yet, in the double game those leaders have to play, the one is necessarily the theme of their politics, and the other the text of their sermons. The week-day orator of Mars, and the Sunday preacher of Federal Grace, play like gamblers into each other's hands, and this they call Religion.

Though hypocrisy can counterfeit every virtue, and become the associate of every vice, it requires a great dexterity of craft to give it the power of deceiving. A painted sun may glisten, but it cannot warm. For hypocrisy to personate virtue successfully it must know and feel what virtue is, and as it cannot long do this, it cannot long deceive. When an orator foaming for War breathes forth in another sentence a *plaintive piety of words*, he may as well write hypocrisy on his front.

The late attempt of the Federal leaders in Congress (for they acted without the knowledge of their constituents) to plunge the country into War, merits not only reproach but indignation. It was madness, conceived in ignorance and acted in wickedness. The head and the heart went partners in the crime.

A neglect of punctuality in the performance of a treaty is made a *cause* of war by the *Barbary powers*, and of remonstrance and explanation by *civilised powers*. The Mahometans of Barbary negotiate by the sword—they seize first, and ex-postulate afterwards; and the federal leaders have been labouring to *barbarize* the United States by adopting the practice of the Barbary States, and this they call honour. Let their honour and their hypocrisy go weep together, for both are defeated. Their present Administration is too moral for hypocrites, and too economical for public spendthrifts.

A man the least acquainted with diplomatic affairs must know that a neglect in punctuality is not one of the legal causes of war, unless that neglect be confirmed by a refusal to perform; and even then it depends upon circumstances connected with it. The world would be in continual quarrels and war, and commerce be annihilated, if Algerine policy was the law of nations. And were America, instead of becoming an example to the old world of good and moral government and civil manners, or, if they like it

better, of gentlemanly conduct towards other nations, to set up the character of ruffian, that of *word and blow, and the blow first*, and thereby give the example of pulling down the little that civilization has gained upon barbarism, her Independence, instead of being an honour and a blessing, would become a curse upon the world and upon herself.

The conduct of the Barbary powers, though unjust in principle, is suited to their prejudices, situation, and circumstances. The crusades of the church to exterminate them fixed in their minds the unobliterated belief that every Christian power was their mortal enemy. Their religious prejudices, therefore, suggest the policy, which their situation and circumstances protect them in. As a people, they are neither commercial nor agricultural, they neither import nor export, have no property floating on the seas, nor ships and cargoes in the ports of foreign nations. No retaliation, therefore, can be acted upon them, and they sin secure from punishment.

But this is not the case with the United States. If she sins as a Barbary power, she must answer for it as a Civilized one. Her commerce is continually passing on the seas exposed to capture, and her ships and cargoes in foreign ports to detention and reprisal. An act of War committed by her in the Mississippi would produce a War against the commerce of the Atlantic States, and the latter would have to curse the policy that provoked the former. In every point, therefore, in which the character and interest of the United States be considered, it would ill become her to set an example contrary to the policy and custom of Civilized powers, and practised only by the Barbary powers, that of striking before she expostulates.

But can any man, calling himself a Legislator, and supposed by his constituents to know something of his duty, be so ignorant as to imagine that seizing on New Orleans would finish the affair or even contribute towards it? On the contrary it would have made it worse. The treaty right of deposite at New Orleans, and the right of the navigation of the Mississippi into the Gulph of Mexico, are distant things. New Orleans is more than an hundred miles in the country from the mouth of the river, and, as a place of deposite, is of no value if the mouth of the river be shut, which either France or Spain could do, and which our possession of New Orleans could neither prevent or remove. New Orleans in our possession, by an act of hostility, would have become a blockaded port, and consequently of no value to the western people as a place of deposite. Since, therefore, an

interruption had arisen to the commerce of the western states, and until the matter could be brought to a fair explanation, it was of less injury to have the port shut and the river open, than to have the river shut and the port in our possession.

That New Orleans could be taken required no stretch of policy to plan, nor spirit of enterprize to effect. It was like marching behind a man to knock him down: and the dastardly slyness of such an attack would have stained the fame of the United States. Where there is no danger cowards are bold, and Captain Bobadils are to be found in the Senate as well as on the stage. Even *Gouverneur*, on such a march, dare have shown a leg.(1)

1 Gouverneur Morris being now leader of the belligerent faction in Congress, Paine could not resist the temptation to allude to a well-known incident (related in his Diary and Letters, i., p. 14). A mob in Paris having surrounded his fine carriage, crying "Aristocrat!" Morris showed his wooden leg, declaring he had lost his leg in the cause of American liberty. Morris was never in any fight, his leg being lost by a commonplace accident while driving in Philadelphia. Although Paine's allusion may appear in bad taste, even with this reference, it was politeness itself compared with the brutal abuse which Morris (not content with imprisoning Paine in Paris) and his adherents were heaping on the author on his return to America; also on Monroe, whom Jefferson had returned to France to negotiate for the purchase of Louisiana.—Editor.,

The people of the western country to whom the Mississippi serves as an inland sea to their commerce, must be supposed to understand the circumstances of that commerce better than a man who is a stranger to it; and as they have shown no approbation of the war-whoop measures of the Federal senators, it becomes presumptive evidence they disapprove them. This is a new mortification for those war-whoop politicians; for the case is, that finding themselves losing ground and withering away in the Atlantic States, they laid hold of the affair of New Orleans in the vain hope of rooting and reinforcing themselves in the western States; and they did this without perceiving that it was one of those ill judged hypocritical expedients in politics, that whether it succeeded or failed the event would be the same. Had their motion [that of Ross and Morris] succeeded, it would have endangered the commerce of the Atlantic States and ruined their reputation there; and on the other hand the attempt to make a tool of the western people was so badly concealed as to extinguish all credit with them.

But hypocrisy is a vice of sanguine constitution. It flatters and promises itself every thing; and it has yet to learn, with respect to moral and political reputation, it is less dangerous to offend than to deceive.

To the measures of administration, supported by the firmness and integrity of the majority in Congress, the United States owe, as far as human means are concerned, the preservation of peace, and of national honour. The confidence which the western people reposed in the government and their representatives is rewarded with success. They are reinstated in their rights with the least possible loss of time; and their harmony with the people of New Orleans, so necessary to the prosperity of the United States, which would have been broken, and the seeds of discord sown in its place, had hostilities been preferred to accommodation, remains unimpaired. Have the Federal ministers of the church meditated on these matters? and laying aside, as they ought to do, their electioneering and vindictive prayers and sermons, returned thanks that peace is preserved, and commerce, without the stain of blood?

In the pleasing contemplation of this state of things the mind, by comparison, carries itself back to those days of uproar and extravagance that marked the career of the former administration, and decides, by the unstudied impulse of its own feelings, that something must then have been wrong. Why was it, that America, formed for happiness, and remote by situation and circumstances from the troubles and tumults of the European world, became plunged into its vortex and contaminated with its crimes? The answer is easy. Those who were then at the head of affairs were apostates from the principles of the revolution. Raised to an elevation they had not a right to expect, nor judgment to conduct, they became like feathers in the air, and blown about by every puff of passion or conceit.

Candour would find some apology for their conduct if want of judgment was their only defect. But error and crime, though often alike in their features, are distant in their characters and in their origin. The one has its source in the weakness of the head, the other in the hardness of the heart, and the coalition of the two, describes the former Administration.(1)

1 That of John Adams.—Editor.

Had no injurious consequences arisen from the conduct of that Administration, it might have passed for error or imbecility, and been

permitted to die and be forgotten. The grave is kind to innocent offence. But even innocence, when it is a cause of injury, ought to undergo an enquiry.

The country, during the time of the former Administration, was kept in continual agitation and alarm; and that no investigation might be made into its conduct, it entrenched itself within a magic circle of terror, and called it a SEDITION LAW.⁽¹⁾ Violent and mysterious in its measures and arrogant in its manners, it affected to disdain information, and insulted the principles that raised it from obscurity. John Adams and Timothy Pickering were men whom nothing but the accidents of the times rendered visible on the political horizon. Elevation turned their heads, and public indignation hath cast them to the ground. But an inquiry into the conduct and measures of that Administration is nevertheless necessary.

The country was put to great expense. Loans, taxes, and standing armies became the standing order of the day. The militia, said Secretary Pickering, are not to be depended upon, and fifty thousand men must be raised. For what? No cause to justify such measures has yet appeared. No discovery of such a cause has yet been made. The pretended Sedition Law shut up the sources of investigation, and the precipitate flight of John Adams closed the scene. But the matter ought not to sleep here.

It is not to gratify resentment, or encourage it in others, that I enter upon this subject. It is not in the power of man to accuse me of a persecuting spirit. But some explanation ought to be had. The motives and objects respecting the extraordinary and expensive measures of the former Administration ought to be known. The Sedition Law, that shield of the moment, prevented it then, and justice demands it now. If the public have been imposed upon, it is proper they should know it; for where judgment is to act, or a choice is to be made, knowledge is first necessary. The conciliation of parties, if it does not grow out of explanation, partakes of the character of collusion or indifference.

1 Passed July 14, 1798, to continue until March 3, 1801. This Act, described near the close of this Letter, and one passed June 35th, giving the President despotic powers over aliens in the United States, constituted the famous "Alien and Sedition Laws." Hamilton opposed them, and rightly saw in them the suicide of the Federal party.—Editor.,

There has been guilt somewhere; and it is better to fix it where it belongs, and separate the deceiver from the deceived, than that suspicion, the bane of

society, should range at large, and sour the public mind. The military measures that were proposed and carrying on during the former administration, could not have for their object the defence of the country against invasion. This is a case that decides itself; for it is self evident, that while the war raged in Europe, neither France nor England could spare a man to send to America. The object, therefore, must be something at home, and that something was the overthrow of the representative system of government, for it could be nothing else. But the plotters got into confusion and became enemies to each other. Adams hated and was jealous of Hamilton, and Hamilton hated and despised both Adams and Washington. (1) Surly Timothy stood aloof, as he did at the affair of Lexington, and the part that fell to the public was to pay the expense.(2)

1 Hamilton's bitter pamphlet against Adams appeared in 1800, but his old quarrel with Washington (1781) had apparently healed. Yet, despite the favors lavished by Washington on Hamilton, there is no certainty that the latter ever changed his unfavorable opinion of the former, as expressed in a letter to General Schuylor, Feb. 18, 1781 (Lodge's "Hamilton's Works," vol. viii., p. 35).—Editor.

2 Colonel Pickering's failure, in 1775, to march his Salem troops in time to intercept the British retreat from Lexington was attributed to his half-heartedness in the patriotic cause.—Editor.

But ought a people who, but a few years ago, were fighting the battles of the world, for liberty had no home but here, ought such a people to stand quietly by and see that liberty undermined by apostacy and overthrown by intrigue? Let the tombs of the slain recall their recollection, and the forethought of what their children are to be revive and fix in their hearts the love of liberty.

If the former administration can justify its conduct, give it the opportunity. The manner in which John Adams disappeared from the government renders an inquiry the more necessary. He gave some account of himself, lame and confused as it was, to certain *eastern wise men* who came to pay homage to him on his birthday. But if he thought it necessary to do this, ought he not to have rendered an account to the public. They had a right to expect it of him. In that tje-`-tje account, he says, "Some measures were the effect of imperious necessity, much against my inclination." What measures does Mr. Adams mean, and what is the imperious necessity to which he alludes? "Others (says he) were measures

of the Legislature, which, although approved when passed, were never previously proposed or recommended by me." What measures, it may be asked, were those, for the public have a right to know the conduct of their representatives? "Some (says he) left to my discretion were never executed, because no necessity for them, in my judgment, ever occurred."

What does this dark apology, mixed with accusation, amount to, but to increase and confirm the suspicion that something was wrong? Administration only was possessed of foreign official information, and it was only upon that information communicated by him publicly or privately, or to Congress, that Congress could act; and it is not in the power of Mr. Adams to show, from the condition of the belligerent powers, that any imperious necessity called for the warlike and expensive measures of his Administration.

What the correspondence between Administration and Rufus King in London, or Quincy Adams in Holland, or Berlin, might be, is but little known. The public papers have told us that the former became cup-bearer from the London underwriters to Captain Truxtun,⁽¹⁾ for which, as Minister from a neutral nation, he ought to have been censured. It is, however, a feature that marks the politics of the Minister, and hints at the character of the correspondence.

1 Thomas Truxtun (1755-1822), for having captured the French frigate "L'Insurgente," off Hen's Island, 1799, was presented at Lloyd's coffee-house with plate to the value of 600 guineas. Rufus King (1755-1827), made Minister to England in 1796, continued under Adams, and for two years under Jefferson's administration.—Editor.

I know that it is the opinion of several members of both houses of Congress, that an enquiry, with respect to the conduct of the late Administration, ought to be gone into. The convulsed state into which the country has been thrown will be best settled by a full and fair exposition of the conduct of that Administration, and the causes and object of that conduct. To be deceived, or to remain deceived, can be the interest of no man who seeks the public good; and it is the deceiver only, or one interested in the deception, that can wish to preclude enquiry.

The suspicion against the late Administration is, that it was plotting to overturn the representative system of government, and that it spread alarms

of invasions that had no foundation, as a pretence for raising and establishing a military force as the means of accomplishing that object.

The law, called the Sedition Law, enacted, that if any person should write or publish, or cause to be written or published, any libel [without defining what a libel is] against the Government of the United States, or either house of congress, or against the President, he should be punished by a fine not exceeding two thousand dollars, and by imprisonment not exceeding two years.

But it is a much greater crime for a president to plot against a Constitution and the liberties of the people, than for an individual to plot against a President; and consequently, John Adams is accountable to the public for his conduct, as the individuals under his administration were to the sedition law.

The object, however, of an enquiry, in this case, is not to punish, but to satisfy; and to shew, by example, to future administrations, that an abuse of power and trust, however disguised by appearances, or rendered plausible by pretence, is one time or other to be accounted for.

Thomas Paine.

BORDENTOWN, ON THE DELAWARE,

New Jersey, March 12, 1803. vol. III—27

LETTER VII.

EDITOR'S PREFACE.

This letter was printed in The True American, Trenton, New Jersey, soon after Paine's return to his old home at Bordenton. It is here printed from the original manuscript, for which I am indebted to Mr. W. F. Havemeyer of New York. Although the Editor has concluded to present Paine's "Maritime Compact" in the form he finally gave it, the articles were printed in French in 1800, and by S. H. Smith, Washington, at the close of the same year. There is an interesting history connected with it. John Hall, in his diary ("Trenton, 20 April, 1787") relates that Paine told him of Dr. Franklin, whom he (Paine) had just visited in Philadelphia, and the Treaty he, the Doctor, made with the late King of Prussia by adding an article that, should war ever break out, Commerce should be free. The Doctor said he showed it to Vergennes, who said it met his idea, and was such as he would make even with England. In his Address to the People of France, 1797 (see p. 366), Paine closes with a suggestion on the subject, and a year later (September 30, 1798), when events were in a critical condition, he sent nine articles of his proposed Pacte Maritime to

Talleyrand, newly appointed Minister of Foreign Affairs. The letters that passed are here taken from the originals (State Archives, Paris, Itats Unis, vol. 48).

"Rue Theatre frangaise, No. 4, 9 Vendemaire, 6 year.

"Citizen Minister: I promised you some observations on the state of things between France and America. I divide the case into two parts. First, with respect to some Method that shall effectually put an end to all interruptions of the American Commerce. Secondly, with respect to the settlement for the captures that have been made on that Commerce.

"As to the first case (the interruption of the American Commerce by France) it has foundation in the British Treaty, and it is the continuance of that treaty that renders the remedy difficult. Besides, the American administration has blundered so much in the business of treaty-making, that it is probable it will blunder again in making another with France. There is, however, one method left, and there is but one that I can see, that will be effectual. It is a *non-importation Convention; that America agrees not to import from any Nation in Europe who shall interrupt her Commerce on the seas, any goods, wares, or merchandize whatever, and that all her ports shall be shut against the Nation that gives the offence.* This will draw America out of her difficulties with respect to her treaty with England.

"But it will be far better if this non-importation convention were to be a general convention of Nations acting as a Whole. It would give a better protection to Neutral Commerce than the armed neutrality could do. I would rather be a Neutral Nation under the protection of such a Convention, which costs nothing to make it, than be under the protection of a navy equal to that of Great Britain. France should be the patron of such a Convention and sign it. It would be giving both her consent and her protection to the Rights of Neutral Nations. If England refuse to sign it she will nevertheless be obliged to respect it, or lose all her Commerce.

"I enclose you a plan I drew up about four months ago, when there was expectation that Mr. Madison would come to France. It has lain by me ever since.

"The second part, that of settlement for the captures, I will make the subject of a future correspondence. Salut et respect."

Talleyrand's Reply ("Foreign Relations, 15 Vendemaire An. 6," Oct. 6, 1797): "I have the honor to return you, Citizen, with very sincere thanks,

your Letter to General Washington which you have had the goodness to show me.

"I have received the letter which you have taken the trouble to write me, the 9th of this month. I need not assure you of the appreciation with which I shall receive the further indications you promise on the means of terminating in a durable manner the differences which must excite your interest as a patriot and as a Republican. Animated by such a principle your ideas cannot fail to throw valuable light on the discussion you open, and which should have for its object to reunite the two Republics in whose alienation the enemies of liberty triumph."

Paine's plan made a good impression in France—He writes to Jefferson, October 6, 1800, that the Consul Le Brun, at an entertainment given to the American envoys, gave for his toast: "@ l'union de l'Amirique avec les Puissances du Nord pour faire respecter la liberti des mers."

The malignant mind, like the jaundiced eye, sees everything through a false medium of its own creating. The light of heaven appears stained with yellow to the distempered sight of the one, and the fairest actions have the form of crimes in the venomd imagination of the other.

For seven months, both before and after my return to America in October last, the apostate papers styling themselves "Federal" were filled with paragraphs and Essays respecting a letter from Mr. Jefferson to me at Paris; and though none of them knew the contents of the letter, nor the occasion of writing it, malignity taught them to suppose it, and the lying tongue of injustice lent them its aid.

That the public may no longer be imposed upon by Federal apostacy, I will now publish the Letter, and the occasion of its being written.

The Treaty negociated in England by John Jay, and ratified by the Washington Administration, had so disgracefully surrendered the right and freedom of the American flag, that all the Commerce of the United States on the Ocean became exposed to capture, and suffered in consequence of it. The duration of the Treaty was limited to two years after the war; and consequently America could not, during that period, relieve herself from the Chains which the Treaty had fixed upon her. This being the case, the only relief that could come must arise out of something originating in Europe, that would, in its consequences, extend to America. It had long been my opinion that Commerce contained within itself the means of its own

protection; but as the time for bringing forward any new system is not always happening, it is necessary to watch its approach, and lay hold of it before it passes away.

As soon as the late Emperor Paul of Russia abandoned his coalition with England and become a Neutral Power, this Crisis of time, and also of circumstances, was then arriving; and I employed it in arranging a plan for the protection of the Commerce of Neutral Nations during War, that might, in its operation and consequences, relieve the Commerce of America. The Plan, with the pieces accompanying it, consisted of about forty pages. The Citizen Bonneville, with whom I lived in Paris, translated it into French; Mr. Skipwith, the American Consul, Joel Barlow, and myself, had the translation printed and distributed as a present to the Foreign Ministers of all the Neutral Nations then resident in Paris. This was in the summer of 1800.

It was entitled Maritime Compact (in French *Pacte Maritime*), The plan, exclusive of the pieces that accompanied it, consisted of the following Preamble and Articles.

MARITIME COMPACT.

Being an Unarmed Association of Nations for the protection of the Rights and Commerce of Nations that shall be neutral in time of War.

Whereas, the Vexations and Injuries to which the Rights and Commerce of Neutral Nations have been, and continue to be, exposed during the time of maritime War, render it necessary to establish a law of Nations for the purpose of putting an end to such vexations and Injuries, and to guarantee to the Neutral Nations the exercise of their just Rights,

We, therefore, the undersigned Powers, form ourselves into an Association, and establish the following as a Law of Nations on the Seas.

ARTICLE THE FIRST. Definition of the Rights of neutral Nations.

The Rights of Nations, such as are exercised by them in their intercourse with each other in time of Peace, are, and of right ought to be, the Rights of Neutral Nations at all times; because,

First, those Rights not having been abandoned by them, remain with them.

Secondly, because those Rights cannot become forfeited or void, in consequence of War breaking out between two or more other Nations.

A War of Nation against Nation being exclusively the act of the Nations that make the War, and not the act of the Neutral Nations, cannot, whether considered in itself or in its consequences, destroy or diminish the Rights of the Nations remaining in Peace.

ARTICLE THE SECOND.

The Ships and Vessels of Nations that rest neuter and at Peace with the World during a War with other Nations, have a Right to navigate freely on the Seas as they navigated before that War broke out, and to proceed to and enter the Port or Ports of any of the Belligerent Powers, *with the consent of that Power*, without being seized, searched, visited, or any ways interrupted, by the Nation or Nations with which that Nation is at War.

ARTICLE THE THIRD.

For the Conservation of the aforesaid Rights, We, the undersigned Powers, engaging to each other our Sacred Faith and Honour, declare,

That if any Belligerent Power shall seize, search, visit, or any ways interrupt any Ship or Vessel belonging to the Citizens or Subjects of any of the Powers composing this Association, then each and all of the said undersigned Powers will cease to import, and will not permit to be imported into the Ports or Dominions of any of the said undersigned Powers, in any Ship or Vessel whatever, any Goods, wares, or Merchandize, produced or manufactured in, or exported from, the Dominions of the Power so offending against the Association hereby established and Proclaimed.

ARTICLE THE FOURTH.

That all the Ports appertaining to any and all of the Powers composing this Association shall be shut against the Flag of the offending Nation.

ARTICLE THE FIFTH.

That no remittance or payment in Money, Merchandize, or Bills of Exchange, shall be made by any of the Citizens, or Subjects, of any of the Powers composing this Association, to the Citizens or Subjects of the offending Nation, for the Term of one year, or until reparation be made. The reparation to be ——— times the amount of the damages sustained.

ARTICLE THE SIXTH.

If any Ship or Vessel appertaining to any of the Citizens or Subjects of any of the Powers composing this Association shall be seized, searched, visited, or interrupted, by any Belligerent Nation, or be forcibly prevented

entering the Port of her destination, or be seized, searched, visited, or interrupted, in coming out of such Port, or be forcibly prevented from proceeding to any new destination, or be insulted or visited by any Agent from on board any Vessel of any Belligerent Power, the Government or Executive Power of the Nation to which the Ship or Vessel so seized, searched, visited, or interrupted belongs, shall, on evidence of the fact, make public Proclamation of the same, and send a Copy thereof to the Government, or Executive, of each of the Powers composing this Association, who shall publish the same in all the extent of his Dominions, together with a Declaration, that at the expiration of ——— days after publication, the penal articles of this Association shall be put in execution against the offending Nation.

ARTICLE THE SEVENTH.

If reparation be not made within the space of one year, the said Proclamation shall be renewed for one year more, and so on.

ARTICLE THE EIGHTH.

The Association chooses for itself a Flag to be carried at the Mast-head conjointly with the National Flag of each Nation composing this Association.

The Flag of the Association shall be composed of the same colors as compose the Rainbow, and arranged in the same order as they appear in that Phenomenon.

ARTICLE THE NINTH.

And whereas, it may happen that one or more of the Nations composing this Association may be, at the time of forming it, engaged in War or become so in future, in that case, the Ships and Vessels of such Nation shall carry the Flag of the Association bound round the Mast, to denote that the Nation to which she belongs is a Member of the Association and a respecer of its Laws.

N. B. This distinction in the manner of carrying the Flag is mearly for the purpose, that Neutral Vessels having the Flag at the Mast-head, may be known at first sight.

ARTICLE THE TENTH.

And whereas, it is contrary to the moral principles of Neutrality and Peace, that any Neutral Nation should furnish to the Belligerent Powers, or

any of them, the means of carrying on War against each other, We, therefore, the Powers composing this Association, Declare, that we will each one for itself, prohibit in our Dominions the exportation or transportation of military stores, comprehending gunpowder, cannon, and cannon-balls, fire arms of all kinds, and all kinds of iron and steel weapons used in War. Excluding therefrom all kinds of Utensils and Instruments used in civil or domestic life, and every other article that cannot, in its immediate state, be employed in War.

Having thus declared the moral Motives of the foregoing Article, We declare also the civil and political Intention thereof, to wit,

That as Belligerent Nations have no right to visit or search any Ship or Vessel belonging to a Nation at Peace, and under the protection of the Laws and Government thereof, and as all such visit or search is an insult to the Nation to which such Ship or Vessel belongs and to the Government of the same, We, therefore, the Powers composing this Association, will take the right of prohibition on ourselves to whom it properly belongs, and by whom only it can be legally exercised, and not permit foreign Nations, in a state of War, to usurp the right of legislating by Proclamation for any of the Citizens or Subjects of the Powers composing this Association.

It is, therefore, in order to take away all pretence of search or visit, which by being offensive might become a new cause of War, that we will provide Laws and publish them by Proclamation, each in his own Dominion, to prohibit the supplying, or carrying to, the Belligerent Powers, or either of them, the military stores or articles before mentioned, annexing thereto a penalty to be levied or inflicted upon any persons within our several Dominions transgressing the same. And we invite all Persons, as well of the Belligerent Nations as of our own, or of any other, to give information of any knowledge they may have of any transgressions against the said Law, that the offenders may be prosecuted.

By this conduct we restore the word Contraband (*contra* and *ban*) to its true and original signification, which means against Law, edict, or Proclamation; and none but the Government of a Nation can have, or can exercise, the right of making Laws, edicts, or Proclamations, for the conduct of its Citizens or Subjects.

Now We, the undersigned Powers, declare the aforesaid Articles to be a Law of Nations at all times, or until a Congress of Nations shall meet to

form some Law more effectual.

And we do recommend that immediately on the breaking out of War between any two or more Nations, that Deputies be appointed by all Neutral Nations, whether members of this Association or not, to meet in Congress in some central place to take cognizance of any violations of the Rights of Neutral Nations.

Signed, &c.

For the purpose of giving operation to the aforesaid plan of an *unarmed Association*, the following Paragraph was subjoined:

It may be judged proper for the order of Business, that the Association of Nations have a President for a term of years, and the Presidency to pass by rotation, to each of the parties composing the Association.

In that case, and for the sake of regularity, the first President to be the Executive power of the most northerly Nation composing the Association, and his deputy or Minister at the Congress to be President of the Congress, —and the next most northerly to be Vice-president, who shall succeed to the Presidency, and so on. The line determining the Geographical situation of each, to be the latitude of the Capital of each Nation.

If this method be adopted it will be proper that the first President be nominally constituted in order to give rotation to the rest. In that case the following Article might be added to the foregoing, viz't. The Constitution of the Association nominates the Emperor Paul to be *first President* of the Association of Nations for the protection of Neutral Commerce, and securing the freedom of the Seas.

The foregoing plan, as I have before mentioned, was presented to the Ministers of all the Neutral Nations then in Paris, in the summer of 1800. Six Copies were given to the Russian General Springporten; and a Russian Gentleman who was going to Petersburg took two expressly for the purpose of putting them into the hands of Paul I sent the original manuscript, in my own handwriting, to Mr. Jefferson, and also wrote him four Letters, dated the 1st, 4th, 6th, 16th of October, 1800, giving him an account of what was then going on in Europe respecting Neutral Commerce.

The Case was, that in order to compel the English Government to acknowledge the rights of Neutral Commerce, and that free Ships make free

Goods, the *Emperor Paul*, in the month of September following the publication of the plan, shut all the Ports of Russia against England. Sweden and Denmark did the same by their Ports, and Denmark shut up Hamburgh. Prussia shut up the Elbe and the Weser. The ports of Spain, Portugal, and Naples were shut up, and, in general, all the ports of Italy, except Venice, which the Emperor of Germany held; and had it not been for the untimely death of Paul, a *Law of Nations*, founded on the authority of Nations, for establishing the rights of Neutral Commerce and the freedom of the Seas, would have been proclaimed, and the Government of England must have consented to that Law, or the Nation must have lost its Commerce; and the consequence to America would have been, that such a Law would, in a great measure if not entirely, have released her from the injuries of Jay's Treaty.

Of all these matters I informed Mr. Jefferson. This was before he was President, and the Letter he wrote me after he was President was in answer to those I had written to him and the manuscript Copy of the plan I had sent here. Here follows the Letter:

Washington, March 18, 1801. Dear Sir:

Your letters of Oct. 1st, 4th, 6th, 16th, came duly to hand, and the papers which they covered were, according to your permission, published in the Newspapers, and in a Pamphlet, and under your own name. These papers contain precisely our principles, and I hope they will be generally recognized here. *Determined as we are to avoid, if possible, wasting the energies of our People in war and destruction, we shall avoid implicating ourselves with the Powers of Europe, even in support of principles which we mean to pursue. They have so many other Interests different from ours that we must avoid being entangled in them. We believe we can enforce those principles as to ourselves by Peaceable means, now that we are likely to have our Public Councils detached from foreign views. The return of our citizens from the phrenzy into which they had been wrought, partly by ill conduct in France, partly by artifices practiced upon them, is almost extinct, and will, I believe, become quite so,* But these details, too minute and long for a Letter, will be better developed by Mr. Dawson, the Bearer of this, a Member of the late Congress, to whom I refer you for them. He goes in the Maryland Sloop of War, which will wait a few days at Havre to receive his Letters to be written on his arrival at Paris. You expressed a wish

to get a passage to this Country in a Public Vessel. Mr. Dawson is charged with orders to the Captain of the Maryland to receive and accommodate you back if you can be ready to depart at such a short warning. Rob't R. Livingston is appointed Minister Plenipotentiary to the Republic of France, but will not leave this, till we receive the ratification of the Convention by Mr. Dawson. I am in hopes you will find us returned generally to sentiments worthy of former times. In these it will be your glory to have steadily laboured and with as much effect as any man living. That you may long live to continue your useful Labours and to reap the reward in the thankfulness of Nations is my sincere prayer. Accept assurances of my high esteem and affectionate attachment.

Thomas Jefferson.

This, Citizens of the United States, is the Letter about which the leaders and tools of the Federal faction, without knowing its contents or the occasion of writing it, have wasted so many malignant falsehoods. It is a Letter which, on account of its wise economy and peaceable principles, and its forbearance to reproach, will be read by every good Man and every good Citizen with pleasure; and the faction, mortified at its appearance, will have to regret they forced it into publication. The least atonement they can now offer is to make the Letter as public as they have made their own infamy, and learn to lie no more.

The same injustice they shewed to Mr. Jefferson they shewed to me. I had employed myself in Europe, and at my own expense, in forming and promoting a plan that would, in its operation, have benefited the Commerce of America; and the faction here invented and circulated an account in the papers they employ, that I had given a plan to the French for burning all the towns on the Coast from Savannah to Baltimore. Were I to prosecute them for this (and I do not promise that I will not, for the Liberty of the Press is not the liberty of lying,) there is not a federal judge, not even one of Midnight appointment, but must, from the nature of the case, be obliged to condemn them. The faction, however, cannot complain they have been restrained in any thing. They have had their full swing of lying uncontradicted; they have availed themselves, unopposed, of all the arts Hypocrisy could devise; and the event has been, what in all such cases it ever will and ought to be, *the ruin of themselves*.

The Characters of the late and of the present Administrations are now sufficiently marked, and the adherents of each keep up the distinction. The former Administration rendered itself notorious by outrage, coxcombical parade, false alarms, a continued increase of taxes, and an unceasing clamor for War; and as every vice has a virtue opposed to it, the present Administration moves on the direct contrary line. The question, therefore, at elections is not properly a question upon Persons, but upon principles. Those who are for Peace, moderate taxes, and mild Government, will vote for the Administration that conducts itself by those principles, in whatever hands that Administration may be.

There are in the United States, and particularly in the middle States, several religious Sects, whose leading moral principle is PEACE. It is, therefore, impossible that such Persons, consistently with the dictates of that principle, can vote for an Administration that is clamorous for War. When moral principles, rather than Persons, are candidates for Power, to vote is to perform a moral duty, and not to vote is to neglect a duty.

That persons who are hunting after places, offices, and contracts, should be advocates for War, taxes, and extravagance, is not to be wondered at; but that so large a portion of the People who had nothing to depend upon but their Industry, and no other public prospect but that of paying taxes, and bearing the burden, should be advocates for the same measures, is a thoughtlessness not easily accounted for. But reason is recovering her empire, and the fog of delusion is clearing away.

Thomas Paine.

BORDENTOWN, ON THE DELAWARE,

New Jersey, April 21, 1803.(1)

1 Endorsed: "Sent by Gen. Bloomfield per Mr. Wilson for Mr. Duane." And, in a later hand: "Paine Letter 6. Found among the Bartram Papers sent by Col. Carr."—Editor.

XXXIV. TO THE FRENCH INHABITANTS OF LOUISIANA.(1)

1 In a letter to Albert Gallatin, Secretary of the Treasury (Oct 14, 1804), John Randolph of Roanoke proposed "the printing of – thousand copies of Tom Paine's answer to their remonstrance, and transmitting them by as many thousand troops, who can speak a language perfectly intelligible to the people of Louisiana, whatever that of their government may be," The purchase of Louisiana was announced to the Senate by President Jefferson, October 17, 1803.–Editor.

A publication having the appearance of a memorial and remonstrance, to be presented to Congress at the ensuing session, has appeared in several papers. It is therefore open to examination, and I offer you my remarks upon it. The title and introductory paragraph are as follows:

"To the Congress of the United States in the Senate and House of Representatives convened: We the subscribers, planters, merchants, and other inhabitants of Louisiana, respectfully approach the legislature of the United States with a memorial of our rights, a remonstrance against certain laws which contravene them, and a petition for that redress to which the laws of nature, sanctioned by positive stipulations, have entitled us."

It often happens that when one party, or one that thinks itself a party, talks much about its rights, it puts those of the other party upon examining into their own, and such is the effect produced by your memorial.

A single reading of that memorial will show it is the work of some person who is not of your people. His acquaintance with the cause, commencement, progress, and termination of the American revolution, decides this point; and his making our merits in that revolution the ground of your claims, as if our merits could become yours, show she does not understand your situation.

We obtained our rights by calmly understanding principles, and by the successful event of a long, obstinate, and expensive war. But it is not incumbent on us to fight the battles of the world for the world's profit. You are already participating, without any merit or expense in obtaining it, the

blessings of freedom acquired by ourselves; and in proportion as you become initiated into the principles and practice of the representative system of government, of which you have yet had no experience, you will participate more, and finally be partakers of the whole. You see what mischief ensued in France by the possession of power before they understood principles. They earned liberty in words, but not in fact. The writer of this was in France through the whole of the revolution, and knows the truth of what he speaks; for after endeavouring to give it principle, he had nearly fallen a victim to its rage.

There is a great want of judgment in the person who drew up your memorial. He has mistaken your case, and forgotten his own; and by trying to court your applause has injured your pretensions. He has written like a lawyer, straining every point that would please his client, without studying his advantage. I find no fault with the composition of the memorial, for it is well written; nor with the principles of liberty it contains, considered in the abstract. The error lies in the misapplication of them, and in assuming a ground they have not a right to stand upon. Instead of their serving you as a ground of reclamation against us, they change into a satire on yourselves. Why did you not speak thus when you ought to have spoken it? We fought for liberty when you stood quiet in slavery.

The author of the memorial injudiciously confounding two distinct cases together, has spoken as if he was the memorialist of a body of Americans, who, after sharing equally with us in all the dangers and hardships of the revolutionary war, had retired to a distance and made a settlement for themselves. If, in such a situation, Congress had established a temporary government over them, in which they were not personally consulted, they would have had a right to speak as the memorial speaks. But your situation is different from what the situation of such persons would be, and therefore their ground of reclamation cannot of right become yours. You are arriving at freedom by the easiest means that any people ever enjoyed it; without contest, without expense, and even without any contrivance of your own. And you already so far mistake principles, that under the name of *rights* you ask for *powers*; *power to import and enslave Africans*; and *to govern a territory that we have purchased*.

To give colour to your memorial, you refer to the treaty of cession, (in which *you were not* one of the contracting parties,) concluded at Paris

between the governments of the United States and France.

"The third article" you say "of the treaty lately concluded at Paris declares, that the inhabitants of the ceded territory shall be incorporated in the union of the United States, and admitted *as soon as possible, according to the principles* of the Federal Constitution, to the enjoyment of all the rights, advantages, and immunities of citizens of the United States; and *in the mean time*, they shall be protected in the enjoyment of their liberty, property, and the exercise of the religion they profess."

As from your former condition, you cannot be much acquainted with diplomatic policy, and I am convinced that even the gentleman who drew up the memorial is not, I will explain to you the grounds of this article. It may prevent your running into further errors.

The territory of Louisiana had been so often ceded to different European powers, that it became a necessary article on the part of France, and for the security of Spain, the ally of France, and which accorded perfectly with our own principles and intentions, that it should be *ceded no more*; and this article, stipulating for the incorporation of Louisiana into the union of the United States, stands as a bar against all future cession, and at the same time, as well as "*in the mean time*" secures to you a civil and political permanency, personal security and liberty which you never enjoyed before.

France and Spain might suspect, (and the suspicion would not have been ill-founded had the cession been treated for in the administration of John Adams, or when Washington was president, and Alexander Hamilton president over him,) that we *bought* Louisiana for the British government, or with a view of selling it to her; and though such suspicion had no just ground to stand upon with respect to our present president, Thomas Jefferson, who is not only not a man of intrigue but who possesses that honest pride of principle that cannot be intrigued with, and which keeps intriguers at a distance, the article was nevertheless necessary as a precaution against future contingencies. But you, from not knowing the political ground of the article, apply to yourselves *personally* and *exclusively*, what had reference to the *territory*, to prevent its falling into the hands of any foreign power that might endanger the [establishment of] *Spanish* dominion in America, or those of the *French* in the West India Islands.

You claim, (you say), to be incorporated into the union of the United States, and your remonstrances on this subject are unjust and without cause.

You are already *incorporated* into it as fully and effectually as the Americans themselves are, who are settled in Louisiana. You enjoy the same rights, privileges, advantages, and immunities, which they enjoy; and when Louisiana, or some part of it, shall be erected into a constitutional State, you also will be citizens equal with them.

You speak in your memorial, as if you were the only people who were to live in Louisiana, and as if the territory was purchased that you exclusively might govern it. In both these cases you are greatly mistaken. The emigrations from the United States into the purchased territory, and the population arising therefrom, will, in a few years, exceed you in numbers. It is but twenty-six years since Kentucky began to be settled, and it already contains more than *double* your population.

In a candid view of the case, you ask for what would be injurious to yourselves to receive, and unjust in us to grant. *Injurious*, because the settlement of Louisiana will go on much faster under the government and guardianship of Congress, than if the government of it were committed to *your* hands; and consequently, the landed property you possessed as individuals when the treaty was concluded, or have purchased since, will increase so much faster in value.—*Unjust to ourselves*, because as the reimbursements of the purchase money must come out of the sale of the lands to new settlers, the government of it cannot suddenly go out of the hands of Congress. They are guardians of that property for *all the people of the United States*. And besides this, as the new settlers will be chiefly from the United States, it would be unjust and ill policy to put them and their property under the jurisdiction of a people whose freedom they had contributed to purchase. You ought also to recollect, that the French Revolution has not exhibited to the world that grand display of principles and rights, that would induce settlers from other countries to put themselves under a French jurisdiction in Louisiana. Beware of intriguers who may push you on from private motives of their own.

You complain of two cases, one of which you have *no right*, no concern with; and the other is founded in direct injustice.

You complain that Congress has passed a law to divide the country into two territories. It is not improper to inform you, that after the revolutionary

war ended, Congress divided the territory acquired by that war into ten territories; each of which was to be erected into a constitutional State, when it arrived at a certain population mentioned in the Act; and, in the mean time, an officer appointed by the President, as the Governor of Louisiana now is, presided, as Governor of the Western Territory, over all such parts as have not arrived at the maturity of *statehood*. Louisiana will require to be divided into twelve States or more; but this is a matter that belongs to *the purchaser* of the territory of Louisiana, and with which the inhabitants of the town of New-Orleans have no right to interfere; and beside this, it is probable that the inhabitants of the other territory would choose to be independent of New-Orleans. They might apprehend, that on some speculating pretence, their produce might be put in requisition, and a maximum price put on it—a thing not uncommon in a French government. As a general rule, without refining upon sentiment, one may put confidence in the justice of those who have no inducement to do us injustice; and this is the case Congress stands in with respect to both territories, and to all other divisions that may be laid out, and to all inhabitants and settlers, of whatever nation they may be.

There can be no such thing as what the memorial speaks of, that is, *of a Governor appointed by the President who may have no interest in the welfare of Louisiana*. He must, from the nature of the case, have more interest in it than any other person can have. He is entrusted with the care of an extensive tract of country, now the property of the United States by purchase. The value of those lands will depend on the increasing prosperity of Louisiana, its agriculture, commerce, and population. You have only a local and partial interest in the town of New-Orleans, or its vicinity; and if, in consequence of exploring the country, new seats of commerce should offer, his general interest would lead him to open them, and your partial interest to shut them up.

There is probably some justice in your remark, as it applies to the governments under which you *formerly* lived. Such governments always look with jealousy, and an apprehension of revolt, on colonies increasing in prosperity and population, and they send governors to *keep them down*. But when you argue from the conduct of governments *distant and despotic*, to that of *domestic and free* government, it shows you do not understand the principles and interest of a Republic, and to put you right is friendship. We have had experience, and you have not.

The other case to which I alluded, as being founded in direct injustice, is that in which you petition for *power*, under the name of *rights*, to import and enslave Africans!

Dare you put up a petition to Heaven for such a power, without fearing to be struck from the earth by its justice?

Why, then, do you ask it of man against man?

Do you want to renew in Louisiana the horrors of Domingo?

Common Sense.

Sept 22, 1804.

END OF VOLUME III.

THE WORKS OF THOMAS PAINE

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THE WRITINGS OF THOMAS PAINE

THE AGE OF REASON - PART I and II

By Thomas Paine

Collected And Edited By Moncure Daniel Conway

VOLUME IV.

(1796)

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THE AGE OF REASON - PART II

PREFACE

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THE AGE OF REASON

(1796)

EDITOR'S INTRODUCTION

WITH SOME RESULTS OF RECENT RESEARCHES.

IN the opening year, 1793, when revolutionary France had beheaded its king, the wrath turned next upon the King of kings, by whose grace every tyrant claimed to reign. But eventualities had brought among them a great English and American heart—Thomas Paine. He had pleaded for Louis Caper—"Kill the king but spare the man." Now he pleaded,—"*Disbelieve in the King of kings, but do not confuse with that idol the Father of Mankind!*"

In Paine's Preface to the Second Part of "*The Age of Reason*" he describes himself as writing the First Part near the close of the year 1793. "I had not finished it more than six hours, in the state it has since appeared, before a guard came about three in the morning, with an order signed by the two Committees of Public Safety and Surety General, for putting me in arrestation." This was on the morning of December 28. But it is necessary to weigh the words just quoted—"in the state it has since appeared." For on August 5, 1794, Francois Lanthenas, in an appeal for Paine's liberation, wrote as follows: "I deliver to Merlin de Thionville a copy of the last work of T. Payne [*The Age of Reason*], formerly our colleague, and in custody since the decree excluding foreigners from the national representation. This book was written by the author in the beginning of the year '93 (old style). I undertook its translation before the revolution against priests, and it was published in French about the same time. Couthon, to whom I sent it, seemed offended with me for having translated this work."

Under the frown of Couthon, one of the most atrocious colleagues of Robespierre, this early publication seems to have been so effectually suppressed that no copy bearing that date, 1793, can be found in France or elsewhere. In Paine's letter to Samuel Adams, printed in the present volume, he says that he had it translated into French, to stay the progress of atheism, and that he endangered his life "by opposing atheism." The time indicated by Lanthenas as that in which he submitted the work to Couthon would appear to be the latter part of March, 1793, the fury against the priesthood

having reached its climax in the decrees against them of March 19 and 26. If the moral deformity of Couthon, even greater than that of his body, be remembered, and the readiness with which death was inflicted for the most theoretical opinion not approved by the "Mountain," it will appear probable that the offence given Couthon by Paine's book involved danger to him and his translator. On May 31, when the Girondins were accused, the name of Lanthenas was included, and he barely escaped; and on the same day Danton persuaded Paine not to appear in the Convention, as his life might be in danger. Whether this was because of the "Age of Reason," with its fling at the "Goddess Nature" or not, the statements of author and translator are harmonized by the fact that Paine prepared the manuscript, with considerable additions and changes, for publication in English, as he has stated in the Preface to Part II.

A comparison of the French and English versions, sentence by sentence, proved to me that the translation sent by Lanthenas to Merlin de Thionville in 1794 is the same as that he sent to Couthon in 1793. This discovery was the means of recovering several interesting sentences of the original work. I have given as footnotes translations of such clauses and phrases of the French work as appeared to be important. Those familiar with the translations of Lanthenas need not be reminded that he was too much of a literalist to depart from the manuscript before him, and indeed he did not even venture to alter it in an instance (presently considered) where it was obviously needed. Nor would Lanthenas have omitted any of the paragraphs lacking in his translation. This original work was divided into seventeen chapters, and these I have restored, translating their headings into English. The "Age of Reason" is thus for the first time given to the world with nearly its original completeness.

It should be remembered that Paine could not have read the proof of his "Age of Reason" (Part I.) which went through the press while he was in prison. To this must be ascribed the permanence of some sentences as abbreviated in the haste he has described. A notable instance is the dropping out of his estimate of Jesus the words rendered by Lanthenas "trop peu imite, trop oublie, trop meconnu." The addition of these words to Paine's tribute makes it the more notable that almost the only recognition of the human character and life of Jesus by any theological writer of that generation came from one long branded as an infidel.

To the inability of the prisoner to give his work any revision must be attributed the preservation in it of the singular error already alluded to, as one that Lanthenas, but for his extreme fidelity, would have corrected. This is Paine's repeated mention of six planets, and enumeration of them, twelve years after the discovery of Uranus. Paine was a devoted student of astronomy, and it cannot for a moment be supposed that he had not participated in the universal welcome of Herschel's discovery. The omission of any allusion to it convinces me that the astronomical episode was printed from a manuscript written before 1781, when Uranus was discovered. Unfamiliar with French in 1793, Paine might not have discovered the erratum in Lanthenas' translation, and, having no time for copying, he would naturally use as much as possible of the same manuscript in preparing his work for English readers. But he had no opportunity of revision, and there remains an erratum which, if my conjecture be correct, casts a significant light on the paragraphs in which he alludes to the preparation of the work. He states that soon after his publication of "Common Sense" (1776), he "saw the exceeding probability that a revolution in the system of government would be followed by a revolution in the system of religion," and that "man would return to the pure, unmixed, and unadulterated belief of one God and no more." He tells Samuel Adams that it had long been his intention to publish his thoughts upon religion, and he had made a similar remark to John Adams in 1776. Like the Quakers among whom he was reared Paine could then readily use the phrase "word of God" for anything in the Bible which approved itself to his "inner light," and as he had drawn from the first Book of Samuel a divine condemnation of monarchy, John Adams, a Unitarian, asked him if he believed in the inspiration of the Old Testament. Paine replied that he did not, and at a later period meant to publish his views on the subject. There is little doubt that he wrote from time to time on religious points, during the American war, without publishing his thoughts, just as he worked on the problem of steam navigation, in which he had invented a practicable method (ten years before John Fitch made his discovery) without publishing it. At any rate it appears to me certain that the part of "The Age of Reason" connected with Paine's favorite science, astronomy, was written before 1781, when Uranus was discovered.

Paine's theism, however invested with biblical and Christian phraseology, was a birthright. It appears clear from several allusions in "The Age of

Reason" to the Quakers that in his early life, or before the middle of the eighteenth century, the people so called were substantially Deists. An interesting confirmation of Paine's statements concerning them appears as I write in an account sent by Count Leo Tolstoi to the London 'Times' of the Russian sect called Dukhobortsy (The Times, October 23, 1895). This sect sprang up in the last century, and the narrative says:

"The first seeds of the teaching called afterwards 'Dukhoborcheskaya' were sown by a foreigner, a Quaker, who came to Russia. The fundamental idea of his Quaker teaching was that in the soul of man dwells God himself, and that He himself guides man by His inner word. God lives in nature physically and in man's soul spiritually. To Christ, as to an historical personage, the Dukhobortsy do not ascribe great importance... Christ was God's son, but only in the sense in which we call, ourselves 'sons of God.' The purpose of Christ's sufferings was no other than to show us an example of suffering for truth. The Quakers who, in 1818, visited the Dukhobortsy, could not agree with them upon these religious subjects; and when they heard from them their opinion about Jesus Christ (that he was a man), exclaimed 'Darkness!' From the Old and New Testaments,' they say, 'we take only what is useful,' mostly the moral teaching.... The moral ideas of the Dukhobortsy are the following:—All men are, by nature, equal; external distinctions, whatsoever they may be, are worth nothing. This idea of men's equality the Dukhoborts have directed further, against the State authority.... Amongst themselves they hold subordination, and much more, a monarchical Government, to be contrary to their ideas."

Here is an early Hicksite Quakerism carried to Russia long before the birth of Elias Hicks, who recovered it from Paine, to whom the American Quakers refused burial among them. Although Paine arraigned the union of Church and State, his ideal Republic was religious; it was based on a conception of equality based on the divine son-ship of every man. This faith underlay equally his burden against claims to divine partiality by a "Chosen People," a Priesthood, a Monarch "by the grace of God," or an Aristocracy. Paine's "Reason" is only an expansion of the Quaker's "inner light"; and the greater impression, as compared with previous republican and deistic writings made by his "Rights of Man" and "Age of Reason" (really volumes of one work), is partly explained by the apostolic fervor which made him a spiritual, successor of George Fox.

Paine's mind was by no means skeptical, it was eminently instructive. That he should have waited until his fifty-seventh year before publishing his religious convictions was due to a desire to work out some positive and practicable system to take the place of that which he believed was crumbling. The English engineer Hall, who assisted Paine in making the model of his iron bridge, wrote to his friends in England, in 1786: "My employer has Common Sense enough to disbelieve most of the common systematic theories of Divinity, but does not seem to establish any for himself." But five years later Paine was able to lay the corner-stone of his temple: "With respect to religion itself, without regard to names, and as directing itself from the universal family of mankind to the 'Divine object of all adoration, it is man bringing to his Maker the fruits of his heart; and though those fruits may differ from each other like the fruits of the earth, the grateful tribute of every one, is accepted." ("Rights of Man." See my edition of Paine's Writings, ii., p. 326.) Here we have a reappearance of George Fox confuting the doctor in America who "denied the light and Spirit of God to be in every one; and affirmed that it was not in the Indians. Whereupon I called an Indian to us, and asked him 'whether or not, when he lied, or did wrong to anyone, there was not something in him that reproved him for it?' He said, 'There was such a thing in him that did so reprove him; and he was ashamed when he had done wrong, or spoken wrong.' So we shamed the doctor before the governor and the people." (Journal of George Fox, September 1672.)

Paine, who coined the phrase "Religion of Humanity" (The Crisis, vii., 1778), did but logically defend it in "The Age of Reason," by denying a special revelation to any particular tribe, or divine authority in any particular creed of church; and the centenary of this much-abused publication has been celebrated by a great conservative champion of Church and State, Mr. Balfour, who, in his "Foundations of Belief," affirms that "inspiration" cannot be denied to the great Oriental teachers, unless grapes may be gathered from thorns.

The centenary of the complete publication of "The Age of Reason," (October 25, 1795), was also celebrated at the Church Congress, Norwich, on October 10, 1895, when Professor Bonney, F.R.S., Canon of Manchester, read a paper in which he said: "I cannot deny that the increase of scientific knowledge has deprived parts of the earlier books of the Bible of the historical value which was generally attributed to them by our forefathers.

The story of Creation in the Book of Genesis, unless we play fast and loose either with words or with science, cannot be brought into harmony with what we have learnt from geology. Its ethnological statements are imperfect, if not sometimes inaccurate. The stories of the Fall, of the Flood, and of the Tower of Babel, are incredible in their present form. Some historical element may underlie many of the traditions in the first eleven chapters in that book, but this we cannot hope to recover." Canon Bonney proceeded to say of the New Testament also, that "the Gospels are not so far as we know, strictly contemporaneous records, so we must admit the possibility of variations and even inaccuracies in details being introduced by oral tradition." The Canon thinks the interval too short for these importations to be serious, but that any question of this kind is left open proves the Age of Reason fully upon us. Reason alone can determine how many texts are as spurious as the three heavenly witnesses (i John v. 7), and like it "serious" enough to have cost good men their lives, and persecutors their charities. When men interpolate, it is because they believe their interpolation seriously needed. It will be seen by a note in Part II. of the work, that Paine calls attention to an interpolation introduced into the first American edition without indication of its being an editorial footnote. This footnote was: "The book of Luke was carried by a majority of one only. Vide Moshelm's Ecc. History." Dr. Priestley, then in America, answered Paine's work, and in quoting less than a page from the "Age of Reason" he made three alterations,—one of which changed "church mythologists" into "Christian mythologists,"—and also raised the editorial footnote into the text, omitting the reference to Mosheim. Having done this, Priestley writes: "As to the gospel of Luke being carried by a majority of one only, it is a legend, if not of Mr. Paine's own invention, of no better authority whatever." And so on with further castigation of the author for what he never wrote, and which he himself (Priestley) was the unconscious means of introducing into the text within the year of Paine's publication.

If this could be done, unintentionally by a conscientious and exact man, and one not unfriendly to Paine, if such a writer as Priestley could make four mistakes in citing half a page, it will appear not very wonderful when I state that in a modern popular edition of "The Age of Reason," including both parts, I have noted about five hundred deviations from the original. These were mainly the accumulated efforts of friendly editors to improve Paine's grammar or spelling; some were misprints, or developed out of

such; and some resulted from the sale in London of a copy of Part Second surreptitiously made from the manuscript. These facts add significance to Paine's footnote (itself altered in some editions!), in which he says: "If this has happened within such a short space of time, notwithstanding the aid of printing, which prevents the alteration of copies individually; what may not have happened in a much greater length of time, when there was no printing, and when any man who could write, could make a written copy, and call it an original, by Matthew, Mark, Luke, or John."

Nothing appears to me more striking, as an illustration of the far-reaching effects of traditional prejudice, than the errors into which some of our ablest contemporary scholars have fallen by reason of their not having studied Paine. Professor Huxley, for instance, speaking of the freethinkers of the eighteenth century, admires the acuteness, common sense, wit, and the broad humanity of the best of them, but says "there is rarely much to be said for their work as an example of the adequate treatment of a grave and difficult investigation," and that they shared with their adversaries "to the full the fatal weakness of a priori philosophizing." [NOTE: *Science and Christian Tradition*, p. 18 (Lon. ed., 1894).] Professor Huxley does not name Paine, evidently because he knows nothing about him. Yet Paine represents the turning-point of the historical freethinking movement; he renounced the 'a priori' method, refused to pronounce anything impossible outside pure mathematics, rested everything on evidence, and really founded the Huxleyan school. He plagiarized by anticipation many things from the rationalistic leaders of our time, from Strauss and Baur (being the first to expatiate on "Christian Mythology"), from Renan (being the first to attempt recovery of the human Jesus), and notably from Huxley, who has repeated Paine's arguments on the untrustworthiness of the biblical manuscripts and canon, on the inconsistencies of the narratives of Christ's resurrection, and various other points. None can be more loyal to the memory of Huxley than the present writer, and it is even because of my sense of his grand leadership that he is here mentioned as a typical instance of the extent to which the very elect of free-thought may be unconsciously victimized by the phantasm with which they are contending. He says that Butler overthrew freethinkers of the eighteenth century type, but Paine was of the nineteenth century type; and it was precisely because of his critical method that he excited more animosity than his deistical predecessors. He compelled the apologists to defend the biblical narratives in detail, and thus

implicitly acknowledge the tribunal of reason and knowledge to which they were summoned. The ultimate answer by police was a confession of judgment. A hundred years ago England was suppressing Paine's works, and many an honest Englishman has gone to prison for printing and circulating his "Age of Reason." The same views are now freely expressed; they are heard in the seats of learning, and even in the Church Congress; but the suppression of Paine, begun by bigotry and ignorance, is continued in the long indifference of the representatives of our Age of Reason to their pioneer and founder. It is a grievous loss to them and to their cause. It is impossible to understand the religious history of England, and of America, without studying the phases of their evolution represented in the writings of Thomas Paine, in the controversies that grew out of them with such practical accompaniments as the foundation of the Theophilanthropist Church in Paris and New York, and of the great rationalist wing of Quakerism in America.

Whatever may be the case with scholars in our time, those of Paine's time took the "Age of Reason" very seriously indeed. Beginning with the learned Dr. Richard Watson, Bishop of Llandaff, a large number of learned men replied to Paine's work, and it became a signal for the commencement of those concessions, on the part of theology, which have continued to our time; and indeed the so-called "Broad Church" is to some extent an outcome of "The Age of Reason." It would too much enlarge this Introduction to cite here the replies made to Paine (thirty-six are catalogued in the British Museum), but it may be remarked that they were notably free, as a rule, from the personalities that raged in the pulpits. I must venture to quote one passage from his very learned antagonist, the Rev. Gilbert Wakefield, B.A., "late Fellow of Jesus College, Cambridge." Wakefield, who had resided in London during all the Paine panic, and was well acquainted with the slanders uttered against the author of "Rights of Man," indirectly brands them in answering Paine's argument that the original and traditional unbelief of the Jews, among whom the alleged miracles were wrought, is an important evidence against them. The learned divine writes:

"But the subject before us admits of further illustration from the example of Mr. Paine himself. In this country, where his opposition to the corruptions of government has raised him so many adversaries, and such a swarm of unprincipled hirelings have exerted themselves in blackening his character and in misrepresenting all the transactions and incidents of his

life, will it not be a most difficult, nay an impossible task, for posterity, after a lapse of 1700 years, if such a wreck of modern literature as that of the ancient, should intervene, to identify the real circumstances, moral and civil, of the man? And will a true historian, such as the Evangelists, be credited at that future period against such a predominant incredulity, without large and mighty accessions of collateral attestation? And how transcendently extraordinary, I had almost said miraculous, will it be estimated by candid and reasonable minds, that a writer whose object was a melioration of condition to the common people, and their deliverance from oppression, poverty, wretchedness, to the numberless blessings of upright and equal government, should be reviled, persecuted, and burned in effigy, with every circumstance of insult and execration, by these very objects of his benevolent intentions, in every corner of the kingdom?" After the execution of Louis XVI., for whose life Paine pleaded so earnestly,—while in England he was denounced as an accomplice in the deed,—he devoted himself to the preparation of a Constitution, and also to gathering up his religious compositions and adding to them. This manuscript I suppose to have been prepared in what was variously known as White's Hotel or Philadelphia House, in Paris, No. 7 Passage des Petits Peres. This compilation of early and fresh manuscripts (if my theory be correct) was labelled, "The Age of Reason," and given for translation to Francois Lanthenas in March 1793. It is entered, in Qudrard (*La France Literaire*) under the year 1793, but with the title "L'Age de la Raison" instead of that which it bore in 1794, "Le Siecle de la Raison." The latter, printed "Au Burcau de l'imprimerie, rue du Theatre-Francais, No. 4," is said to be by "Thomas Paine, Citoyen et cultivateur de l'Amerique septentrionale, secretaire du Congres du departement des affaires etrangeres pendant la guerre d'Amerique, et auteur des ouvrages intitules: LA SENS COMMUN et LES DROITS DE L'HOMME."

When the Revolution was advancing to increasing terrors, Paine, unwilling to participate in the decrees of a Convention whose sole legal function was to frame a Constitution, retired to an old mansion and garden in the Faubourg St. Denis, No. 63. Mr. J.G. Alger, whose researches in personal details connected with the Revolution are original and useful, recently showed me in the National Archives at Paris, some papers connected with the trial of Georgeit, Paine's landlord, by which it appears that the present No. 63 is not, as I had supposed, the house in which Paine

resided. Mr. Alger accompanied me to the neighborhood, but we were not able to identify the house. The arrest of Georgeit is mentioned by Paine in his essay on "Forgetfulness" (Writings, iii., 319). When his trial came on one of the charges was that he had kept in his house "Paine and other Englishmen,"—Paine being then in prison,—but he (Georgeit) was acquitted of the paltry accusations brought against him by his Section, the "Faubourg du Nord." This Section took in the whole east side of the Faubourg St. Denis, whereas the present No. 63 is on the west side. After Georgeit (or Georger) had been arrested, Paine was left alone in the large mansion (said by Rickman to have been once the hotel of Madame de Pompadour), and it would appear, by his account, that it was after the execution (October 31, 1793) Of his friends the Girondins, and political comrades, that he felt his end at hand, and set about his last literary bequest to the world,—*"The Age of Reason,"*—in the state in which it has since appeared, as he is careful to say. There was every probability, during the months in which he wrote (November and December 1793) that he would be executed. His religious testament was prepared with the blade of the guillotine suspended over him,—a fact which did not deter pious mythologists from portraying his death-bed remorse for having written the book.

In editing Part I. of *"The Age of Reason,"* I follow closely the first edition, which was printed by Barrois in Paris from the manuscript, no doubt under the superintendence of Joel Barlow, to whom Paine, on his way to the Luxembourg, had confided it. Barlow was an American ex-clergyman, a speculator on whose career French archives cast an unfavorable light, and one cannot be certain that no liberties were taken with Paine's proofs.

I may repeat here what I have stated in the outset of my editorial work on Paine that my rule is to correct obvious misprints, and also any punctuation which seems to render the sense less clear. And to that I will now add that in following Paine's quotations from the Bible I have adopted the Plan now generally used in place of his occasionally too extended writing out of book, chapter, and verse.

Paine was imprisoned in the Luxembourg on December 28, 1793, and released on November 4, 1794. His liberation was secured by his old friend, James Monroe (afterwards President), who had succeeded his (Paine's)

relentless enemy, Gouverneur Morris, as American Minister in Paris. He was found by Monroe more dead than alive from semi-starvation, cold, and an abscess contracted in prison, and taken to the Minister's own residence. It was not supposed that he could survive, and he owed his life to the tender care of Mr. and Mrs. Monroe. It was while thus a prisoner in his room, with death still hovering over him, that Paine wrote Part Second of "The Age of Reason."

The work was published in London by H.D. Symonds on October 25, 1795, and claimed to be "from the Author's manuscript." It is marked as "Entered at Stationers Hall," and prefaced by an apologetic note of "The Bookseller to the Public," whose commonplaces about avoiding both prejudice and partiality, and considering "both sides," need not be quoted. While his volume was going through the press in Paris, Paine heard of the publication in London, which drew from him the following hurried note to a London publisher, no doubt Daniel Isaacs Eaton:

"SIR,—I have seen advertised in the London papers the second Edition [part] of the Age of Reason, printed, the advertisement says, from the Author's Manuscript, and entered at Stationers Hall. I have never sent any manuscript to any person. It is therefore a forgery to say it is printed from the author's manuscript; and I suppose is done to give the Publisher a pretence of Copy Right, which he has no title to.

"I send you a printed copy, which is the only one I have sent to London. I wish you to make a cheap edition of it. I know not by what means any copy has got over to London. If any person has made a manuscript copy I have no doubt but it is full of errors. I wish you would talk to Mr. —— upon this subject as I wish to know by what means this trick has been played, and from whom the publisher has got possession of any copy.

"T. PAINE.

"PARIS, December 4, 1795"

Eaton's cheap edition appeared January 1, 1796, with the above letter on the reverse of the title. The blank in the note was probably "Symonds" in the original, and possibly that publisher was imposed upon. Eaton, already in trouble for printing one of Paine's political pamphlets, fled to America, and an edition of the "Age of Reason" was issued under a new title; no publisher appears; it is said to be "printed for, and sold by all the

Booksellers in Great Britain and Ireland." It is also said to be "By Thomas Paine, author of several remarkable performances." I have never found any copy of this anonymous edition except the one in my possession. It is evidently the edition which was suppressed by the prosecution of Williams for selling a copy of it.

A comparison with Paine's revised edition reveals a good many clerical and verbal errors in Symonds, though few that affect the sense. The worst are in the preface, where, instead of "1793," the misleading date "1790" is given as the year at whose close Paine completed Part First,—an error that spread far and wide and was fastened on by his calumnious American "biographer," Cheetham, to prove his inconsistency. The editors have been fairly demoralized by, and have altered in different ways, the following sentence of the preface in Symonds: "The intolerant spirit of religious persecution had transferred itself into politics; the tribunals, styled Revolutionary, supplied the place of the Inquisition; and the Guillotine of the State outdid the Fire and Faggot of the Church." The rogue who copied this little knew the care with which Paine weighed words, and that he would never call persecution "religious," nor connect the guillotine with the "State," nor concede that with all its horrors it had outdone the history of fire and faggot. What Paine wrote was: "The intolerant spirit of church persecution had transferred itself into politics; the tribunals, styled Revolutionary, supplied the place of an Inquisition and the Guillotine, of the Stake."

An original letter of Paine, in the possession of Joseph Cowen, ex-M.P., which that gentleman permits me to bring to light, besides being one of general interest makes clear the circumstances of the original publication. Although the name of the correspondent does not appear on the letter, it was certainly written to Col. John Fellows of New York, who copyrighted Part I. of the "Age of Reason." He published the pamphlets of Joel Barlow, to whom Paine confided his manuscript on his way to prison. Fellows was afterwards Paine's intimate friend in New York, and it was chiefly due to him that some portions of the author's writings, left in manuscript to Madame Bonneville while she was a freethinker were rescued from her devout destructiveness after her return to Catholicism. The letter which Mr. Cowen sends me, is dated at Paris, January 20, 1797.

"SIR,—Your friend Mr. Caritat being on the point of his departure for America, I make it the opportunity of writing to you. I received two letters from you with some pamphlets a considerable time past, in which you inform me of your entering a copyright of the first part of the Age of Reason: when I return to America we will settle for that matter.

"As Doctor Franklin has been my intimate friend for thirty years past you will naturally see the reason of my continuing the connection with his grandson. I printed here (Paris) about fifteen thousand of the second part of the Age of Reason, which I sent to Mr. F[ranklin] Bache. I gave him notice of it in September 1795 and the copy-right by my own direction was entered by him. The books did not arrive till April following, but he had advertised it long before.

"I sent to him in August last a manuscript letter of about 70 pages, from me to Mr. Washington to be printed in a pamphlet. Mr. Barnes of Philadelphia carried the letter from me over to London to be forwarded to America. It went by the ship Hope, Cap: Harley, who since his return from America told me that he put it into the post office at New York for Bache. I have yet no certain account of its publication. I mention this that the letter may be enquired after, in case it has not been published or has not arrived to Mr. Bache. Barnes wrote to me, from London 29 August informing me that he was offered three hundred pounds sterling for the manuscript. The offer was refused because it was my intention it should not appear till it appeared in America, as that, and not England was the place for its operation.

"You ask me by your letter to Mr. Caritat for a list of my several works, in order to publish a collection of them. This is an undertaking I have always reserved for myself. It not only belongs to me of right, but nobody but myself can do it; and as every author is accountable (at least in reputation) for his works, he only is the person to do it. If he neglects it in his life-time the case is altered. It is my intention to return to America in the course of the present year. I shall then [do] it by subscription, with historical notes. As this work will employ many persons in different parts of the Union, I will confer with you upon the subject, and such part of it as will suit you to undertake, will be at your choice. I have sustained so much loss, by disinterestedness and inattention to money matters, and by accidents, that I am obliged to look closer to my affairs than I have done. The printer (an Englishman) whom I employed here to print the second part of 'the Age

of Reason' made a manuscript copy of the work while he was printing it, which he sent to London and sold. It was by this means that an edition of it came out in London.

"We are waiting here for news from America of the state of the federal elections. You will have heard long before this reaches you that the French government has refused to receive Mr. Pinckney as minister. While Mr. Monroe was minister he had the opportunity of softening matters with this government, for he was in good credit with them tho' they were in high indignation at the infidelity of the Washington Administration. It is time that Mr. Washington retire, for he has played off so much prudent hypocrisy between France and England that neither government believes anything he says.

"Your friend, etc.,

"THOMAS PAINE."

It would appear that Symonds' stolen edition must have got ahead of that sent by Paine to Franklin Bache, for some of its errors continue in all modern American editions to the present day, as well as in those of England. For in England it was only the shilling edition—that revised by Paine—which was suppressed. Symonds, who ministered to the half-crown folk, and who was also publisher of replies to Paine, was left undisturbed about his pirated edition, and the new Society for the suppression of Vice and Immorality fastened on one Thomas Williams, who sold pious tracts but was also convicted (June 24, 1797) of having sold one copy of the "Age of Reason." Erskine, who had defended Paine at his trial for the "Rights of Man," conducted the prosecution of Williams. He gained the victory from a packed jury, but was not much elated by it, especially after a certain adventure on his way to Lincoln's Inn. He felt his coat clutched and beheld at his feet a woman bathed in tears. She led him into the small book-shop of Thomas Williams, not yet called up for judgment, and there he beheld his victim stitching tracts in a wretched little room, where there were three children, two suffering with Smallpox. He saw that it would be ruin and even a sort of murder to take away to prison the husband, who was not a freethinker, and lamented his publication of the book, and a meeting of the Society which had retained him was summoned. There was a full meeting, the Bishop of London (Porteus) in the chair. Erskine reminded them that Williams was yet to be brought up for sentence, described the scene he had

witnessed, and Williams' penitence, and, as the book was now suppressed, asked permission to move for a nominal sentence. Mercy, he urged, was a part of the Christianity they were defending. Not one of the Society took his side,—not even "philanthropic" Wilberforce—and Erskine threw up his brief. This action of Erskine led the Judge to give Williams only a year in prison instead of the three he said had been intended.

While Williams was in prison the orthodox colporteurs were circulating Erskine's speech on Christianity, but also an anonymous sermon "On the Existence and Attributes of the Deity," all of which was from Paine's "Age of Reason," except a brief "Address to the Deity" appended. This picturesque anomaly was repeated in the circulation of Paine's "Discourse to the Theophilanthropists" (their and the author's names removed) under the title of "Atheism Refuted." Both of these pamphlets are now before me, and beside them a London tract of one page just sent for my spiritual benefit. This is headed "A Word of Caution." It begins by mentioning the "pernicious doctrines of Paine," the first being "that there is No GOD" (sic,) then proceeds to adduce evidences of divine existence taken from Paine's works. It should be added that this one dingy page is the only "survival" of the ancient Paine effigy in the tract form which I have been able to find in recent years, and to this no Society or Publisher's name is attached.

The imprisonment of Williams was the beginning of a thirty years' war for religious liberty in England, in the course of which occurred many notable events, such as Eaton receiving homage in his pillory at Choring Cross, and the whole Carlile family imprisoned,—its head imprisoned more than nine years for publishing the "Age of Reason." This last victory of persecution was suicidal. Gentlemen of wealth, not adherents of Paine, helped in setting Carlile up in business in Fleet Street, where free-thinking publications have since been sold without interruption. But though Liberty triumphed in one sense, the "Age of Reason." remained to some extent suppressed among those whose attention it especially merited. Its original prosecution by a Society for the Suppression of Vice (a device to, relieve the Crown) amounted to a libel upon a morally clean book, restricting its perusal in families; and the fact that the shilling book sold by and among humble people was alone prosecuted, diffused among the educated an equally false notion that the "Age of Reason" was vulgar and illiterate. The theologians, as we have seen, estimated more justly the ability of their antagonist, the collaborator of Franklin, Rittenhouse, and Clymer, on whom

the University of Pennsylvania had conferred the degree of Master of Arts, —but the gentry confused Paine with the class described by Burke as "the swinish multitude." Skepticism, or its free utterance, was temporarily driven out of polite circles by its complication with the out-lawed vindicator of the "Rights of Man." But that long combat has now passed away. Time has reduced the "Age of Reason" from a flag of popular radicalism to a comparatively conservative treatise, so far as its negations are concerned. An old friend tells me that in his youth he heard a sermon in which the preacher declared that "Tom Paine was so wicked that he could not be buried; his bones were thrown into a box which was bandied about the world till it came to a button-manufacturer; and now Paine is travelling round the world in the form of buttons!" This variant of the Wandering Jew myth may now be regarded as unconscious homage to the author whose metaphorical bones may be recognized in buttons now fashionable, and some even found useful in holding clerical vestments together.

But the careful reader will find in Paine's "Age of Reason" something beyond negations, and in conclusion I will especially call attention to the new departure in Theism indicated in a passage corresponding to a famous aphorism of Kant, indicated by a note in Part II. The discovery already mentioned, that Part I. was written at least fourteen years before Part II., led me to compare the two; and it is plain that while the earlier work is an amplification of Newtonian Deism, based on the phenomena of planetary motion, the work of 1795 bases belief in God on "the universal display of himself in the works of the creation and by that repugnance we feel in ourselves to bad actions, and disposition to do good ones." This exaltation of the moral nature of man to be the foundation of theistic religion, though now familiar, was a hundred years ago a new affirmation; it has led on a conception of deity subversive of last-century deism, it has steadily humanized religion, and its ultimate philosophical and ethical results have not yet been reached.

CHAPTER I - THE AUTHOR'S PROFESSION OF FAITH.

IT has been my intention, for several years past, to publish my thoughts upon religion; I am well aware of the difficulties that attend the subject, and from that consideration, had reserved it to a more advanced period of life. I intended it to be the last offering I should make to my fellow-citizens of all nations, and that at a time when the purity of the motive that induced me to it could not admit of a question, even by those who might disapprove the work.

The circumstance that has now taken place in France, of the total abolition of the whole national order of priesthood, and of everything appertaining to compulsive systems of religion, and compulsive articles of faith, has not only precipitated my intention, but rendered a work of this kind exceedingly necessary, lest, in the general wreck of superstition, of false systems of government, and false theology, we lose sight of morality, of humanity, and of the theology that is true.

As several of my colleagues, and others of my fellow-citizens of France, have given me the example of making their voluntary and individual profession of faith, I also will make mine; and I do this with all that sincerity and frankness with which the mind of man communicates with itself.

I believe in one God, and no more; and I hope for happiness beyond this life.

I believe the equality of man, and I believe that religious duties consist in doing justice, loving mercy, and endeavoring to make our fellow-creatures happy.

But, lest it should be supposed that I believe many other things in addition to these, I shall, in the progress of this work, declare the things I do not believe, and my reasons for not believing them.

I do not believe in the creed professed by the Jewish church, by the Roman church, by the Greek church, by the Turkish church, by the

Protestant church, nor by any church that I know of. My own mind is my own church.

All national institutions of churches, whether Jewish, Christian, or Turkish, appear to me no other than human inventions set up to terrify and enslave mankind, and monopolize power and profit.

I do not mean by this declaration to condemn those who believe otherwise; they have the same right to their belief as I have to mine. But it is necessary to the happiness of man, that he be mentally faithful to himself. Infidelity does not consist in believing, or in disbelieving; it consists in professing to believe what he does not believe.

It is impossible to calculate the moral mischief, if I may so express it, that mental lying has produced in society. When a man has so far corrupted and prostituted the chastity of his mind, as to subscribe his professional belief to things he does not believe, he has prepared himself for the commission of every other crime. He takes up the trade of a priest for the sake of gain, and, in order to qualify himself for that trade, he begins with a perjury. Can we conceive anything more destructive to morality than this?

Soon after I had published the pamphlet COMMON SENSE, in America, I saw the exceeding probability that a revolution in the system of government would be followed by a revolution in the system of religion. The adulterous connection of church and state, wherever it had taken place, whether Jewish, Christian, or Turkish, had so effectually prohibited, by pains and penalties, every discussion upon established creeds, and upon first principles of religion, that until the system of government should be changed, those subjects could not be brought fairly and openly before the world; but that whenever this should be done, a revolution in the system of religion would follow. Human inventions and priest-craft would be detected; and man would return to the pure, unmixed, and unadulterated belief of one God, and no more.

CHAPTER II - OF MISSIONS AND REVELATIONS.

EVERY national church or religion has established itself by pretending some special mission from God, communicated to certain individuals. The Jews have their Moses; the Christians their Jesus Christ, their apostles and saints; and the Turks their Mahomet; as if the way to God was not open to every man alike.

Each of those churches shows certain books, which they call revelation, or the Word of God. The Jews say that their Word of God was given by God to Moses face to face; the Christians say, that their Word of God came by divine inspiration; and the Turks say, that their Word of God (the Koran) was brought by an angel from heaven. Each of those churches accuses the other of unbelief; and, for my own part, I disbelieve them all.

As it is necessary to affix right ideas to words, I will, before I proceed further into the subject, offer some observations on the word 'revelation.' Revelation when applied to religion, means something communicated immediately from God to man.

No one will deny or dispute the power of the Almighty to make such a communication if he pleases. But admitting, for the sake of a case, that something has been revealed to a certain person, and not revealed to any other person, it is revelation to that person only. When he tells it to a second person, a second to a third, a third to a fourth, and so on, it ceases to be a revelation to all those persons. It is revelation to the first person only, and hearsay to every other, and, consequently, they are not obliged to believe it.

It is a contradiction in terms and ideas to call anything a revelation that comes to us at second hand, either verbally or in writing. Revelation is necessarily limited to the first communication. After this, it is only an account of something which that person says was a revelation made to him; and though he may find himself obliged to believe it, it cannot be incumbent on me to believe it in the same manner, for it was not a revelation made to me, and I have only his word for it that it was made to him.

When Moses told the children of Israel that he received the two tables of the commandments from the hand of God, they were not obliged to believe him, because they had no other authority for it than his telling them so; and I have no other authority for it than some historian telling me so, the commandments carrying no internal evidence of divinity with them. They contain some good moral precepts such as any man qualified to be a lawgiver or a legislator could produce himself, without having recourse to supernatural intervention. [NOTE: It is, however, necessary to except the declamation which says that God 'visits the sins of the fathers upon the children'. This is contrary to every principle of moral justice.—Author.]

When I am told that the Koran was written in Heaven, and brought to Mahomet by an angel, the account comes to near the same kind of hearsay evidence and second hand authority as the former. I did not see the angel myself, and therefore I have a right not to believe it.

When also I am told that a woman, called the Virgin Mary, said, or gave out, that she was with child without any cohabitation with a man, and that her betrothed husband, Joseph, said that an angel told him so, I have a right to believe them or not: such a circumstance required a much stronger evidence than their bare word for it: but we have not even this; for neither Joseph nor Mary wrote any such matter themselves. It is only reported by others that they said so. It is hearsay upon hearsay, and I do not chose to rest my belief upon such evidence.

It is, however, not difficult to account for the credit that was given to the story of Jesus Christ being the Son of God. He was born when the heathen mythology had still some fashion and repute in the world, and that mythology had prepared the people for the belief of such a story. Almost all the extraordinary men that lived under the heathen mythology were reputed to be the sons of some of their gods. It was not a new thing at that time to believe a man to have been celestially begotten; the intercourse of gods with women was then a matter of familiar opinion. Their Jupiter, according to their accounts, had cohabited with hundreds; the story therefore had nothing in it either new, wonderful, or obscene; it was conformable to the opinions that then prevailed among the people called Gentiles, or mythologists, and it was those people only that believed it. The Jews, who had kept strictly to the belief of one God, and no more, and who had always rejected the heathen mythology, never credited the story.

It is curious to observe how the theory of what is called the Christian Church, sprung out of the tail of the heathen mythology. A direct incorporation took place in the first instance, by making the reputed founder to be celestially begotten. The trinity of gods that then followed was no other than a reduction of the former plurality, which was about twenty or thirty thousand. The statue of Mary succeeded the statue of Diana of Ephesus. The deification of heroes changed into the canonization of saints. The Mythologists had gods for everything; the Christian Mythologists had saints for everything. The church became as crowded with the one, as the pantheon had been with the other; and Rome was the place of both. The Christian theory is little else than the idolatry of the ancient mythologists, accommodated to the purposes of power and revenue; and it yet remains to reason and philosophy to abolish the amphibious fraud.

CHAPTER III - CONCERNING THE CHARACTER OF JESUS CHRIST, AND HIS HISTORY.

NOTHING that is here said can apply, even with the most distant disrespect, to the real character of Jesus Christ. He was a virtuous and an amiable man. The morality that he preached and practiced was of the most benevolent kind; and though similar systems of morality had been preached by Confucius, and by some of the Greek philosophers, many years before, by the Quakers since, and by many good men in all ages, it has not been exceeded by any.

Jesus Christ wrote no account of himself, of his birth, parentage, or anything else. Not a line of what is called the New Testament is of his writing. The history of him is altogether the work of other people; and as to the account given of his resurrection and ascension, it was the necessary counterpart to the story of his birth. His historians, having brought him into the world in a supernatural manner, were obliged to take him out again in the same manner, or the first part of the story must have fallen to the ground.

The wretched contrivance with which this latter part is told, exceeds everything that went before it. The first part, that of the miraculous conception, was not a thing that admitted of publicity; and therefore the tellers of this part of the story had this advantage, that though they might not be credited, they could not be detected. They could not be expected to prove it, because it was not one of those things that admitted of proof, and it was impossible that the person of whom it was told could prove it himself.

But the resurrection of a dead person from the grave, and his ascension through the air, is a thing very different, as to the evidence it admits of, to the invisible conception of a child in the womb. The resurrection and ascension, supposing them to have taken place, admitted of public and ocular demonstration, like that of the ascension of a balloon, or the sun at noon day, to all Jerusalem at least. A thing which everybody is required to believe, requires that the proof and evidence of it should be equal to all, and

universal; and as the public visibility of this last related act was the only evidence that could give sanction to the former part, the whole of it falls to the ground, because that evidence never was given. Instead of this, a small number of persons, not more than eight or nine, are introduced as proxies for the whole world, to say they saw it, and all the rest of the world are called upon to believe it. But it appears that Thomas did not believe the resurrection; and, as they say, would not believe without having ocular and manual demonstration himself. So neither will I; and the reason is equally as good for me, and for every other person, as for Thomas.

It is in vain to attempt to palliate or disguise this matter. The story, so far as relates to the supernatural part, has every mark of fraud and imposition stamped upon the face of it. Who were the authors of it is as impossible for us now to know, as it is for us to be assured that the books in which the account is related were written by the persons whose names they bear. The best surviving evidence we now have respecting this affair is the Jews. They are regularly descended from the people who lived in the time this resurrection and ascension is said to have happened, and they say 'it is not true.' It has long appeared to me a strange inconsistency to cite the Jews as a proof of the truth of the story. It is just the same as if a man were to say, I will prove the truth of what I have told you, by producing the people who say it is false.

That such a person as Jesus Christ existed, and that he was crucified, which was the mode of execution at that day, are historical relations strictly within the limits of probability. He preached most excellent morality, and the equality of man; but he preached also against the corruptions and avarice of the Jewish priests, and this brought upon him the hatred and vengeance of the whole order of priest-hood. The accusation which those priests brought against him was that of sedition and conspiracy against the Roman government, to which the Jews were then subject and tributary; and it is not improbable that the Roman government might have some secret apprehension of the effects of his doctrine as well as the Jewish priests; neither is it improbable that Jesus Christ had in contemplation the delivery of the Jewish nation from the bondage of the Romans. Between the two, however, this virtuous reformer and revolutionist lost his life. [NOTE: The French work has here: "However this may be, for one or the other of these suppositions this virtuous reformer, this revolutionist, too little imitated, too much forgotten, too much misunderstood, lost his life."—Editor. (Conway)]

CHAPTER IV - OF THE BASES OF CHRISTIANITY.

IT is upon this plain narrative of facts, together with another case I am going to mention, that the Christian mythologists, calling themselves the Christian Church, have erected their fable, which for absurdity and extravagance is not exceeded by anything that is to be found in the mythology of the ancients.

The ancient mythologists tell us that the race of Giants made war against Jupiter, and that one of them threw a hundred rocks against him at one throw; that Jupiter defeated him with thunder, and confined him afterwards under Mount Etna; and that every time the Giant turns himself, Mount Etna belches fire. It is here easy to see that the circumstance of the mountain, that of its being a volcano, suggested the idea of the fable; and that the fable is made to fit and wind itself up with that circumstance.

The Christian mythologists tell that their Satan made war against the Almighty, who defeated him, and confined him afterwards, not under a mountain, but in a pit. It is here easy to see that the first fable suggested the idea of the second; for the fable of Jupiter and the Giants was told many hundred years before that of Satan.

Thus far the ancient and the Christian mythologists differ very little from each other. But the latter have contrived to carry the matter much farther. They have contrived to connect the fabulous part of the story of Jesus Christ with the fable originating from Mount Etna; and, in order to make all the parts of the story tie together, they have taken to their aid the traditions of the Jews; for the Christian mythology is made up partly from the ancient mythology, and partly from the Jewish traditions.

The Christian mythologists, after having confined Satan in a pit, were obliged to let him out again to bring on the sequel of the fable. He is then introduced into the garden of Eden in the shape of a snake, or a serpent, and in that shape he enters into familiar conversation with Eve, who is no ways surprised to hear a snake talk; and the issue of this tete-a-tate is, that he

persuades her to eat an apple, and the eating of that apple damns all mankind.

After giving Satan this triumph over the whole creation, one would have supposed that the church mythologists would have been kind enough to send him back again to the pit, or, if they had not done this, that they would have put a mountain upon him, (for they say that their faith can remove a mountain) or have put him under a mountain, as the former mythologists had done, to prevent his getting again among the women, and doing more mischief. But instead of this, they leave him at large, without even obliging him to give his parole. The secret of which is, that they could not do without him; and after being at the trouble of making him, they bribed him to stay. They promised him ALL the Jews, ALL the Turks by anticipation, nine-tenths of the world beside, and Mahomet into the bargain. After this, who can doubt the bountifulness of the Christian Mythology?

Having thus made an insurrection and a battle in heaven, in which none of the combatants could be either killed or wounded—put Satan into the pit—let him out again—given him a triumph over the whole creation—damned all mankind by the eating of an apple, there Christian mythologists bring the two ends of their fable together. They represent this virtuous and amiable man, Jesus Christ, to be at once both God and man, and also the Son of God, celestially begotten, on purpose to be sacrificed, because they say that Eve in her longing [NOTE: The French work has: "yielding to an unrestrained appetite."—Editor.] had eaten an apple.

CHAPTER V - EXAMINATION IN DETAIL OF THE PRECEDING BASES.

PUTTING aside everything that might excite laughter by its absurdity, or detestation by its profaneness, and confining ourselves merely to an examination of the parts, it is impossible to conceive a story more derogatory to the Almighty, more inconsistent with his wisdom, more contradictory to his power, than this story is.

In order to make for it a foundation to rise upon, the inventors were under the necessity of giving to the being whom they call Satan a power equally as great, if not greater, than they attribute to the Almighty. They have not only given him the power of liberating himself from the pit, after what they call his fall, but they have made that power increase afterwards to infinity. Before this fall they represent him only as an angel of limited existence, as they represent the rest. After his fall, he becomes, by their account, omnipresent. He exists everywhere, and at the same time. He occupies the whole immensity of space.

Not content with this deification of Satan, they represent him as defeating by stratagem, in the shape of an animal of the creation, all the power and wisdom of the Almighty. They represent him as having compelled the Almighty to the direct necessity either of surrendering the whole of the creation to the government and sovereignty of this Satan, or of capitulating for its redemption by coming down upon earth, and exhibiting himself upon a cross in the shape of a man.

Had the inventors of this story told it the contrary way, that is, had they represented the Almighty as compelling Satan to exhibit himself on a cross in the shape of a snake, as a punishment for his new transgression, the story would have been less absurd, less contradictory. But, instead of this they make the transgressor triumph, and the Almighty fall.

That many good men have believed this strange fable, and lived very good lives under that belief (for credulity is not a crime) is what I have no doubt of. In the first place, they were educated to believe it, and they would have believed anything else in the same manner. There are also many who

have been so enthusiastically enraptured by what they conceived to be the infinite love of God to man, in making a sacrifice of himself, that the vehemence of the idea has forbidden and deterred them from examining into the absurdity and profaneness of the story. The more unnatural anything is, the more is it capable of becoming the object of dismal admiration. [NOTE: The French work has "blind and" preceding dismal.—Editor.]

CHAPTER VI - OF THE TRUE THEOLOGY.

BUT if objects for gratitude and admiration are our desire, do they not present themselves every hour to our eyes? Do we not see a fair creation prepared to receive us the instant we are born—a world furnished to our hands, that cost us nothing? Is it we that light up the sun; that pour down the rain; and fill the earth with abundance? Whether we sleep or wake, the vast machinery of the universe still goes on. Are these things, and the blessings they indicate in future, nothing to, us? Can our gross feelings be excited by no other subjects than tragedy and suicide? Or is the gloomy pride of man become so intolerable, that nothing can flatter it but a sacrifice of the Creator?

I know that this bold investigation will alarm many, but it would be paying too great a compliment to their credulity to forbear it on that account. The times and the subject demand it to be done. The suspicion that the theory of what is called the Christian church is fabulous, is becoming very extensive in all countries; and it will be a consolation to men staggering under that suspicion, and doubting what to believe and what to disbelieve, to see the subject freely investigated. I therefore pass on to an examination of the books called the Old and the New Testament.

CHAPTER VII - EXAMINATION OF THE OLD TESTAMENT.

THESE books, beginning with Genesis and ending with Revelations, (which, by the bye, is a book of riddles that requires a revelation to explain it) are, we are told, the word of God. It is, therefore, proper for us to know who told us so, that we may know what credit to give to the report. The answer to this question is, that nobody can tell, except that we tell one another so. The case, however, historically appears to be as follows:

When the church mythologists established their system, they collected all the writings they could find, and managed them as they pleased. It is a matter altogether of uncertainty to us whether such of the writings as now appear under the name of the Old and the New Testament, are in the same state in which those collectors say they found them; or whether they added, altered, abridged, or dressed them up.

Be this as it may, they decided by vote which of the books out of the collection they had made, should be the WORD OF GOD, and which should not. They rejected several; they voted others to be doubtful, such as the books called the Apocrypha; and those books which had a majority of votes, were voted to be the word of God. Had they voted otherwise, all the people since calling themselves Christians had believed otherwise; for the belief of the one comes from the vote of the other. Who the people were that did all this, we know nothing of. They call themselves by the general name of the Church; and this is all we know of the matter.

As we have no other external evidence or authority for believing these books to be the word of God, than what I have mentioned, which is no evidence or authority at all, I come, in the next place, to examine the internal evidence contained in the books themselves.

In the former part of this essay, I have spoken of revelation. I now proceed further with that subject, for the purpose of applying it to the books in question.

Revelation is a communication of something, which the person, to whom that thing is revealed, did not know before. For if I have done a thing, or

seen it done, it needs no revelation to tell me I have done it, or seen it, nor to enable me to tell it, or to write it.

Revelation, therefore, cannot be applied to anything done upon earth of which man is himself the actor or the witness; and consequently all the historical and anecdotal part of the Bible, which is almost the whole of it, is not within the meaning and compass of the word revelation, and, therefore, is not the word of God.

When Samson ran off with the gate-posts of Gaza, if he ever did so, (and whether he did or not is nothing to us,) or when he visited his Delilah, or caught his foxes, or did anything else, what has revelation to do with these things? If they were facts, he could tell them himself; or his secretary, if he kept one, could write them, if they were worth either telling or writing; and if they were fictions, revelation could not make them true; and whether true or not, we are neither the better nor the wiser for knowing them. When we contemplate the immensity of that Being, who directs and governs the incomprehensible WHOLE, of which the utmost ken of human sight can discover but a part, we ought to feel shame at calling such paltry stories the word of God.

As to the account of the creation, with which the book of Genesis opens, it has all the appearance of being a tradition which the Israelites had among them before they came into Egypt; and after their departure from that country, they put it at the head of their history, without telling, as it is most probable that they did not know, how they came by it. The manner in which the account opens, shows it to be traditionary. It begins abruptly. It is nobody that speaks. It is nobody that hears. It is addressed to nobody. It has neither first, second, nor third person. It has every criterion of being a tradition. It has no voucher. Moses does not take it upon himself by introducing it with the formality that he uses on other occasions, such as that of saying, "The Lords spake unto Moses, saying."

Why it has been called the Mosaic account of the creation, I am at a loss to conceive. Moses, I believe, was too good a judge of such subjects to put his name to that account. He had been educated among the Egyptians, who were a people as well skilled in science, and particularly in astronomy, as any people of their day; and the silence and caution that Moses observes, in not authenticating the account, is a good negative evidence that he neither told it nor believed it.—The case is, that every nation of people has been

world-makers, and the Israelites had as much right to set up the trade of world-making as any of the rest; and as Moses was not an Israelite, he might not chose to contradict the tradition. The account, however, is harmless; and this is more than can be said for many other parts of the Bible.

Whenever we read the obscene stories, the voluptuous debaucheries, the cruel and torturous executions, the unrelenting vindictiveness, with which more than half the Bible [NOTE: It must be borne in mind that by the "Bible" Paine always means the Old Testament alone.—Editor.] is filled, it would be more consistent that we called it the word of a demon, than the Word of God. It is a history of wickedness, that has served to corrupt and brutalize mankind; and, for my own part, I sincerely detest it, as I detest everything that is cruel.

We scarcely meet with anything, a few phrases excepted, but what deserves either our abhorrence or our contempt, till we come to the miscellaneous parts of the Bible. In the anonymous publications, the Psalms, and the Book of Job, more particularly in the latter, we find a great deal of elevated sentiment reverentially expressed of the power and benignity of the Almighty; but they stand on no higher rank than many other compositions on similar subjects, as well before that time as since.

The Proverbs which are said to be Solomon's, though most probably a collection, (because they discover a knowledge of life, which his situation excluded him from knowing) are an instructive table of ethics. They are inferior in keenness to the proverbs of the Spaniards, and not more wise and oeconomical than those of the American Franklin.

All the remaining parts of the Bible, generally known by the name of the Prophets, are the works of the Jewish poets and itinerant preachers, who mixed poetry, anecdote, and devotion together—and those works still retain the air and style of poetry, though in translation. [NOTE: As there are many readers who do not see that a composition is poetry, unless it be in rhyme, it is for their information that I add this note.

Poetry consists principally in two things—imagery and composition. The composition of poetry differs from that of prose in the manner of mixing long and short syllables together. Take a long syllable out of a line of poetry, and put a short one in the room of it, or put a long syllable where a

short one should be, and that line will lose its poetical harmony. It will have an effect upon the line like that of misplacing a note in a song.

The imagery in those books called the Prophets appertains altogether to poetry. It is fictitious, and often extravagant, and not admissible in any other kind of writing than poetry.

To show that these writings are composed in poetical numbers, I will take ten syllables, as they stand in the book, and make a line of the same number of syllables, (heroic measure) that shall rhyme with the last word. It will then be seen that the composition of those books is poetical measure. The instance I shall first produce is from Isaiah:—

*"Hear, O ye heavens, and give ear, O earth
'T is God himself that calls attention forth.*

Another instance I shall quote is from the mournful Jeremiah, to which I shall add two other lines, for the purpose of carrying out the figure, and showing the intention of the poet.

*"O, that mine head were waters and mine eyes
Were fountains flowing like the liquid skies;
Then would I give the mighty flood release
And weep a deluge for the human race."—Author.]*

There is not, throughout the whole book called the Bible, any word that describes to us what we call a poet, nor any word that describes what we call poetry. The case is, that the word prophet, to which a later times have affixed a new idea, was the Bible word for poet, and the word 'propesying' meant the art of making poetry. It also meant the art of playing poetry to a tune upon any instrument of music.

We read of prophesying with pipes, tabrets, and horns—of prophesying with harps, with psalteries, with cymbals, and with every other instrument of music then in fashion. Were we now to speak of prophesying with a fiddle, or with a pipe and tabor, the expression would have no meaning, or would appear ridiculous, and to some people contemptuous, because we have changed the meaning of the word.

We are told of Saul being among the prophets, and also that he prophesied; but we are not told what they prophesied, nor what he prophesied. The case is, there was nothing to tell; for these prophets were a

company of musicians and poets, and Saul joined in the concert, and this was called prophesying.

The account given of this affair in the book called Samuel, is, that Saul met a company of prophets; a whole company of them! coming down with a psaltery, a tabret, a pipe, and a harp, and that they prophesied, and that he prophesied with them. But it appears afterwards, that Saul prophesied badly, that is, he performed his part badly; for it is said that an "evil spirit from God [NOTE: As thos; men who call themselves divines and commentators are very fond of puzzling one another, I leave them to contest the meaning of the first part of the phrase, that of an evil spirit of God. I keep to my text. I keep to the meaning of the word prophesy.—Author.] came upon Saul, and he prophesied."

Now, were there no other passage in the book called the Bible, than this, to demonstrate to us that we have lost the original meaning of the word prophesy, and substituted another meaning in its place, this alone would be sufficient; for it is impossible to use and apply the word prophesy, in the place it is here used and applied, if we give to it the sense which later times have affixed to it. The manner in which it is here used strips it of all religious meaning, and shews that a man might then be a prophet, or he might Prophesy, as he may now be a poet or a musician, without any regard to the morality or the immorality of his character. The word was originally a term of science, promiscuously applied to poetry and to music, and not restricted to any subject upon which poetry and music might be exercised.

Deborah and Barak are called prophets, not because they predicted anything, but because they composed the poem or song that bears their name, in celebration of an act already done. David is ranked among the prophets, for he was a musician, and was also reputed to be (though perhaps very erroneously) the author of the Psalms. But Abraham, Isaac, and Jacob are not called prophets; it does not appear from any accounts we have, that they could either sing, play music, or make poetry.

We are told of the greater and the lesser prophets. They might as well tell us of the greater and the lesser God; for there cannot be degrees in prophesying consistently with its modern sense. But there are degrees in poetry, and there-fore the phrase is reconcilable to the case, when we understand by it the greater and the lesser poets.

It is altogether unnecessary, after this, to offer any observations upon what those men, styled prophets, have written. The axe goes at once to the root, by showing that the original meaning of the word has been mistaken, and consequently all the inferences that have been drawn from those books, the devotional respect that has been paid to them, and the laboured commentaries that have been written upon them, under that mistaken meaning, are not worth disputing about.—In many things, however, the writings of the Jewish poets deserve a better fate than that of being bound up, as they now are, with the trash that accompanies them, under the abused name of the Word of God.

If we permit ourselves to conceive right ideas of things, we must necessarily affix the idea, not only of unchangeableness, but of the utter impossibility of any change taking place, by any means or accident whatever, in that which we would honour with the name of the Word of God; and therefore the Word of God cannot exist in any written or human language.

The continually progressive change to which the meaning of words is subject, the want of an universal language which renders translation necessary, the errors to which translations are again subject, the mistakes of copyists and printers, together with the possibility of wilful alteration, are of themselves evidences that human language, whether in speech or in print, cannot be the vehicle of the Word of God.—The Word of God exists in something else.

Did the book called the Bible excel in purity of ideas and expression all the books now extant in the world, I would not take it for my rule of faith, as being the Word of God; because the possibility would nevertheless exist of my being imposed upon. But when I see throughout the greatest part of this book scarcely anything but a history of the grossest vices, and a collection of the most paltry and contemptible tales, I cannot dishonour my Creator by calling it by his name.

CHAPTER VIII - OF THE NEW TESTAMENT.

THUS much for the Bible; I now go on to the book called the New Testament. The new Testament! that is, the 'new' Will, as if there could be two wills of the Creator.

Had it been the object or the intention of Jesus Christ to establish a new religion, he would undoubtedly have written the system himself, or procured it to be written in his life time. But there is no publication extant authenticated with his name. All the books called the New Testament were written after his death. He was a Jew by birth and by profession; and he was the son of God in like manner that every other person is; for the Creator is the Father of All.

The first four books, called Matthew, Mark, Luke, and John, do not give a history of the life of Jesus Christ, but only detached anecdotes of him. It appears from these books, that the whole time of his being a preacher was not more than eighteen months; and it was only during this short time that those men became acquainted with him. They make mention of him at the age of twelve years, sitting, they say, among the Jewish doctors, asking and answering them questions. As this was several years before their acquaintance with him began, it is most probable they had this anecdote from his parents. From this time there is no account of him for about sixteen years. Where he lived, or how he employed himself during this interval, is not known. Most probably he was working at his father's trade, which was that of a carpenter. It does not appear that he had any school education, and the probability is, that he could not write, for his parents were extremely poor, as appears from their not being able to pay for a bed when he was born. [NOTE: One of the few errors traceable to Paine's not having a Bible at hand while writing Part I. There is no indication that the family was poor, but the reverse may in fact be inferred.—Editor.]

It is somewhat curious that the three persons whose names are the most universally recorded were of very obscure parentage. Moses was a foundling; Jesus Christ was born in a stable; and Mahomet was a mule driver. The first and the last of these men were founders of different systems of religion; but Jesus Christ founded no new system. He called men to the

practice of moral virtues, and the belief of one God. The great trait in his character is philanthropy.

The manner in which he was apprehended shows that he was not much known, at that time; and it shows also that the meetings he then held with his followers were in secret; and that he had given over or suspended preaching publicly. Judas could no otherways betray him than by giving information where he was, and pointing him out to the officers that went to arrest him; and the reason for employing and paying Judas to do this could arise only from the causes already mentioned, that of his not being much known, and living concealed.

The idea of his concealment, not only agrees very ill with his reputed divinity, but associates with it something of pusillanimity; and his being betrayed, or in other words, his being apprehended, on the information of one of his followers, shows that he did not intend to be apprehended, and consequently that he did not intend to be crucified.

The Christian mythologists tell us that Christ died for the sins of the world, and that he came on Purpose to die. Would it not then have been the same if he had died of a fever or of the small pox, of old age, or of anything else?

The declaratory sentence which, they say, was passed upon Adam, in case he ate of the apple, was not, that thou shalt surely be crucified, but, thou shalt surely die. The sentence was death, and not the manner of dying. Crucifixion, therefore, or any other particular manner of dying, made no part of the sentence that Adam was to suffer, and consequently, even upon their own tactic, it could make no part of the sentence that Christ was to suffer in the room of Adam. A fever would have done as well as a cross, if there was any occasion for either.

This sentence of death, which, they tell us, was thus passed upon Adam, must either have meant dying naturally, that is, ceasing to live, or have meant what these mythologists call damnation; and consequently, the act of dying on the part of Jesus Christ, must, according to their system, apply as a prevention to one or other of these two things happening to Adam and to us.

That it does not prevent our dying is evident, because we all die; and if their accounts of longevity be true, men die faster since the crucifixion than before: and with respect to the second explanation, (including with it the natural death of Jesus Christ as a substitute for the eternal death or

damnation of all mankind,) it is impertinently representing the Creator as coming off, or revoking the sentence, by a pun or a quibble upon the word death. That manufacturer of, quibbles, St. Paul, if he wrote the books that bear his name, has helped this quibble on by making another quibble upon the word Adam. He makes there to be two Adams; the one who sins in fact, and suffers by proxy; the other who sins by proxy, and suffers in fact. A religion thus interlarded with quibble, subterfuge, and pun, has a tendency to instruct its professors in the practice of these arts. They acquire the habit without being aware of the cause.

If Jesus Christ was the being which those mythologists tell us he was, and that he came into this world to suffer, which is a word they sometimes use instead of 'to die,' the only real suffering he could have endured would have been 'to live.' His existence here was a state of exilement or transportation from heaven, and the way back to his original country was to die.—In fine, everything in this strange system is the reverse of what it pretends to be. It is the reverse of truth, and I become so tired of examining into its inconsistencies and absurdities, that I hasten to the conclusion of it, in order to proceed to something better.

How much, or what parts of the books called the New Testament, were written by the persons whose names they bear, is what we can know nothing of, neither are we certain in what language they were originally written. The matters they now contain may be classed under two heads: anecdote, and epistolary correspondence.

The four books already mentioned, Matthew, Mark, Luke, and John, are altogether anecdotal. They relate events after they had taken place. They tell what Jesus Christ did and said, and what others did and said to him; and in several instances they relate the same event differently. Revelation is necessarily out of the question with respect to those books; not only because of the disagreement of the writers, but because revelation cannot be applied to the relating of facts by the persons who saw them done, nor to the relating or recording of any discourse or conversation by those who heard it. The book called the Acts of the Apostles (an anonymous work) belongs also to the anecdotal part.

All the other parts of the New Testament, except the book of enigmas, called the Revelations, are a collection of letters under the name of epistles; and the forgery of letters has been such a common practice in the world,

that the probability is at least equal, whether they are genuine or forged. One thing, however, is much less equivocal, which is, that out of the matters contained in those books, together with the assistance of some old stories, the church has set up a system of religion very contradictory to the character of the person whose name it bears. It has set up a religion of pomp and of revenue in pretended imitation of a person whose life was humility and poverty.

The invention of a purgatory, and of the releasing of souls therefrom, by prayers, bought of the church with money; the selling of pardons, dispensations, and indulgences, are revenue laws, without bearing that name or carrying that appearance. But the case nevertheless is, that those things derive their origin from the proxysm of the crucifixion, and the theory deduced therefrom, which was, that one person could stand in the place of another, and could perform meritorious services for him. The probability, therefore, is, that the whole theory or doctrine of what is called the redemption (which is said to have been accomplished by the act of one person in the room of another) was originally fabricated on purpose to bring forward and build all those secondary and pecuniary redemptions upon; and that the passages in the books upon which the idea of theory of redemption is built, have been manufactured and fabricated for that purpose. Why are we to give this church credit, when she tells us that those books are genuine in every part, any more than we give her credit for everything else she has told us; or for the miracles she says she has performed? That she could fabricate writings is certain, because she could write; and the composition of the writings in question, is of that kind that anybody might do it; and that she did fabricate them is not more inconsistent with probability, than that she should tell us, as she has done, that she could and did work miracles.

Since, then, no external evidence can, at this long distance of time, be produced to prove whether the church fabricated the doctrine called redemption or not, (for such evidence, whether for or against, would be subject to the same suspicion of being fabricated,) the case can only be referred to the internal evidence which the thing carries of itself; and this affords a very strong presumption of its being a fabrication. For the internal evidence is, that the theory or doctrine of redemption has for its basis an idea of pecuniary justice, and not that of moral justice.

If I owe a person money, and cannot pay him, and he threatens to put me in prison, another person can take the debt upon himself, and pay it for me. But if I have committed a crime, every circumstance of the case is changed. Moral justice cannot take the innocent for the guilty even if the innocent would offer itself. To suppose justice to do this, is to destroy the principle of its existence, which is the thing itself. It is then no longer justice. It is indiscriminate revenge.

This single reflection will show that the doctrine of redemption is founded on a mere pecuniary idea corresponding to that of a debt which another person might pay; and as this pecuniary idea corresponds again with the system of second redemptions, obtained through the means of money given to the church for pardons, the probability is that the same persons fabricated both the one and the other of those theories; and that, in truth, there is no such thing as redemption; that it is fabulous; and that man stands in the same relative condition with his Maker he ever did stand, since man existed; and that it is his greatest consolation to think so.

Let him believe this, and he will live more consistently and morally, than by any other system. It is by his being taught to contemplate himself as an out-law, as an out-cast, as a beggar, as a mumper, as one thrown as it were on a dunghill, at an immense distance from his Creator, and who must make his approaches by creeping, and cringing to intermediate beings, that he conceives either a contemptuous disregard for everything under the name of religion, or becomes indifferent, or turns what he calls devout. In the latter case, he consumes his life in grief, or the affectation of it. His prayers are reproaches. His humility is ingratitude. He calls himself a worm, and the fertile earth a dunghill; and all the blessings of life by the thankless name of vanities. He despises the choicest gift of God to man, the GIFT OF REASON; and having endeavoured to force upon himself the belief of a system against which reason revolts, he ungratefully calls it human reason, as if man could give reason to himself.

Yet, with all this strange appearance of humility, and this contempt for human reason, he ventures into the boldest presumptions. He finds fault with everything. His selfishness is never satisfied; his ingratitude is never at an end. He takes on himself to direct the Almighty what to do, even in the government of the universe. He prays dictatorially. When it is sunshine, he prays for rain, and when it is rain, he prays for sunshine. He follows the

same idea in everything that he prays for; for what is the amount of all his prayers, but an attempt to make the Almighty change his mind, and act otherwise than he does? It is as if he were to say—thou knowest not so well as I.

CHAPTER IX - IN WHAT THE TRUE REVELATION CONSISTS.

BUT some perhaps will say—Are we to have no word of God—no revelation? I answer yes. There is a Word of God; there is a revelation.

THE WORD OF GOD IS THE CREATION WE BEHOLD: And it is in this word, which no human invention can counterfeit or alter, that God speaketh universally to man.

Human language is local and changeable, and is therefore incapable of being used as the means of unchangeable and universal information. The idea that God sent Jesus Christ to publish, as they say, the glad tidings to all nations, from one end of the earth unto the other, is consistent only with the ignorance of those who know nothing of the extent of the world, and who believed, as those world-saviours believed, and continued to believe for several centuries, (and that in contradiction to the discoveries of philosophers and the experience of navigators,) that the earth was flat like a trencher; and that a man might walk to the end of it.

But how was Jesus Christ to make anything known to all nations? He could speak but one language, which was Hebrew; and there are in the world several hundred languages. Scarcely any two nations speak the same language, or understand each other; and as to translations, every man who knows anything of languages, knows that it is impossible to translate from one language into another, not only without losing a great part of the original, but frequently of mistaking the sense; and besides all this, the art of printing was wholly unknown at the time Christ lived.

It is always necessary that the means that are to accomplish any end be equal to the accomplishment of that end, or the end cannot be accomplished. It is in this that the difference between finite and infinite power and wisdom discovers itself. Man frequently fails in accomplishing his end, from a natural inability of the power to the purpose; and frequently from the want of wisdom to apply power properly. But it is impossible for infinite power and wisdom to fail as man faileth. The means it useth are always equal to the end: but human language, more especially as there is

not an universal language, is incapable of being used as an universal means of unchangeable and uniform information; and therefore it is not the means that God useth in manifesting himself universally to man.

It is only in the CREATION that all our ideas and conceptions of a word of God can unite. The Creation speaketh an universal language, independently of human speech or human language, multiplied and various as they be. It is an ever existing original, which every man can read. It cannot be forged; it cannot be counterfeited; it cannot be lost; it cannot be altered; it cannot be suppressed. It does not depend upon the will of man whether it shall be published or not; it publishes itself from one end of the earth to the other. It preaches to all nations and to all worlds; and this word of God reveals to man all that is necessary for man to know of God.

Do we want to contemplate his power? We see it in the immensity of the creation. Do we want to contemplate his wisdom? We see it in the unchangeable order by which the incomprehensible Whole is governed. Do we want to contemplate his munificence? We see it in the abundance with which he fills the earth. Do we want to contemplate his mercy? We see it in his not withholding that abundance even from the unthankful. In fine, do we want to know what God is? Search not the book called the scripture, which any human hand might make, but the scripture called the Creation.

CHAPTER X - CONCERNING GOD, AND THE LIGHTS CAST ON HIS EXISTENCE

AND ATTRIBUTES BY THE BIBLE.

THE only idea man can affix to the name of God, is that of a first cause, the cause of all things. And, incomprehensibly difficult as it is for a man to conceive what a first cause is, he arrives at the belief of it, from the tenfold greater difficulty of disbelieving it. It is difficult beyond description to conceive that space can have no end; but it is more difficult to conceive an end. It is difficult beyond the power of man to conceive an eternal duration of what we call time; but it is more impossible to conceive a time when there shall be no time.

In like manner of reasoning, everything we behold carries in itself the internal evidence that it did not make itself. Every man is an evidence to himself, that he did not make himself; neither could his father make himself, nor his grandfather, nor any of his race; neither could any tree, plant, or animal make itself; and it is the conviction arising from this evidence, that carries us on, as it were, by necessity, to the belief of a first cause eternally existing, of a nature totally different to any material existence we know of, and by the power of which all things exist; and this first cause, man calls God.

It is only by the exercise of reason, that man can discover God. Take away that reason, and he would be incapable of understanding anything; and in this case it would be just as consistent to read even the book called the Bible to a horse as to a man. How then is it that those people pretend to reject reason?

Almost the only parts in the book called the Bible, that convey to us any idea of God, are some chapters in Job, and the 19th Psalm; I recollect no other. Those parts are true deistical compositions; for they treat of the Deity through his works. They take the book of Creation as the word of God; they refer to no other book; and all the inferences they make are drawn from that volume.

I insert in this place the 19th Psalm, as paraphrased into English verse by Addison. I recollect not the prose, and where I write this I have not the opportunity of seeing it:

*The spacious firmament on high,
With all the blue etherial sky,
And spangled heavens, a shining frame,
Their great original proclaim.
The unwearied sun, from day to day,
Does his Creator's power display,
And publishes to every land
The work of an Almighty hand.
Soon as the evening shades prevail,
The moon takes up the wondrous tale,
And nightly to the list'ning earth
Repeats the story of her birth;
Whilst all the stars that round her burn,
And all the planets, in their turn,
Confirm the tidings as they roll,
And spread the truth from pole to pole.
What though in solemn silence all
Move round this dark terrestrial ball
What though no real voice, nor sound,
Amidst their radiant orbs be found,
In reason's ear they all rejoice,
And utter forth a glorious voice,
Forever singing as they shine,
THE HAND THAT MADE US IS DIVINE.*

What more does man want to know, than that the hand or power that made these things is divine, is omnipotent? Let him believe this, with the force it is impossible to repel if he permits his reason to act, and his rule of moral life will follow of course.

The allusions in Job have all of them the same tendency with this Psalm; that of deducing or proving a truth that would be otherwise unknown, from truths already known.

I recollect not enough of the passages in Job to insert them correctly; but there is one that occurs to me that is applicable to the subject I am speaking upon. "Canst thou by searching find out God; canst thou find out the Almighty to perfection?"

I know not how the printers have pointed this passage, for I keep no Bible; but it contains two distinct questions that admit of distinct answers.

First, Canst thou by searching find out God? Yes. Because, in the first place, I know I did not make myself, and yet I have existence; and by searching into the nature of other things, I find that no other thing could make itself; and yet millions of other things exist; therefore it is, that I

know, by positive conclusion resulting from this search, that there is a power superior to all those things, and that power is God.

Secondly, Canst thou find out the Almighty to perfection? No. Not only because the power and wisdom He has manifested in the structure of the Creation that I behold is to me incomprehensible; but because even this manifestation, great as it is is probably but a small display of that immensity of power and wisdom, by which millions of other worlds, to me invisible by their distance, were created and continue to exist.

It is evident that both of these questions were put to the reason of the person to whom they are supposed to have been addressed; and it is only by admitting the first question to be answered affirmatively, that the second could follow. It would have been unnecessary, and even absurd, to have put a second question, more difficult than the first, if the first question had been answered negatively. The two questions have different objects; the first refers to the existence of God, the second to his attributes. Reason can discover the one, but it falls infinitely short in discovering the whole of the other.

I recollect not a single passage in all the writings ascribed to the men called apostles, that conveys any idea of what God is. Those writings are chiefly controversial; and the gloominess of the subject they dwell upon, that of a man dying in agony on a cross, is better suited to the gloomy genius of a monk in a cell, by whom it is not impossible they were written, than to any man breathing the open air of the Creation. The only passage that occurs to me, that has any reference to the works of God, by which only his power and wisdom can be known, is related to have been spoken by Jesus Christ, as a remedy against distrustful care. "Behold the lilies of the field, they toil not, neither do they spin." This, however, is far inferior to the allusions in Job and in the 19th Psalm; but it is similar in idea, and the modesty of the imagery is correspondent to the modesty of the man.

CHAPTER XI - OF THE THEOLOGY OF THE CHRISTIANS; AND THE TRUE THEOLOGY.

As to the Christian system of faith, it appears to me as a species of atheism; a sort of religious denial of God. It professes to believe in a man rather than in God. It is a compound made up chiefly of man-ism with but little deism, and is as near to atheism as twilight is to darkness. It introduces between man and his Maker an opaque body, which it calls a redeemer, as the moon introduces her opaque self between the earth and the sun, and it produces by this means a religious or an irreligious eclipse of light. It has put the whole orbit of reason into shade.

The effect of this obscurity has been that of turning everything upside down, and representing it in reverse; and among the revolutions it has thus magically produced, it has made a revolution in Theology.

That which is now called natural philosophy, embracing the whole circle of science, of which astronomy occupies the chief place, is the study of the works of God, and of the power and wisdom of God in his works, and is the true theology.

As to the theology that is now studied in its place, it is the study of human opinions and of human fancies concerning God. It is not the study of God himself in the works that he has made, but in the works or writings that man has made; and it is not among the least of the mischiefs that the Christian system has done to the world, that it has abandoned the original and beautiful system of theology, like a beautiful innocent, to distress and reproach, to make room for the hag of superstition.

The Book of Job and the 19th Psalm, which even the church admits to be more ancient than the chronological order in which they stand in the book called the Bible, are theological orations conformable to the original system of theology. The internal evidence of those orations proves to a demonstration that the study and contemplation of the works of creation, and of the power and wisdom of God revealed and manifested in those works, made a great part of the religious devotion of the times in which they were written; and it was this devotional study and contemplation that

led to the discovery of the principles upon which what are now called Sciences are established; and it is to the discovery of these principles that almost all the Arts that contribute to the convenience of human life owe their existence. Every principal art has some science for its parent, though the person who mechanically performs the work does not always, and but very seldom, perceive the connection.

It is a fraud of the Christian system to call the sciences 'human inventions;' it is only the application of them that is human. Every science has for its basis a system of principles as fixed and unalterable as those by which the universe is regulated and governed. Man cannot make principles, he can only discover them.

For example: Every person who looks at an almanack sees an account when an eclipse will take place, and he sees also that it never fails to take place according to the account there given. This shows that man is acquainted with the laws by which the heavenly bodies move. But it would be something worse than ignorance, were any church on earth to say that those laws are an human invention.

It would also be ignorance, or something worse, to say that the scientific principles, by the aid of which man is enabled to calculate and foreknow when an eclipse will take place, are an human invention. Man cannot invent any thing that is eternal and immutable; and the scientific principles he employs for this purpose must, and are, of necessity, as eternal and immutable as the laws by which the heavenly bodies move, or they could not be used as they are to ascertain the time when, and the manner how, an eclipse will take place.

The scientific principles that man employs to obtain the foreknowledge of an eclipse, or of any thing else relating to the motion of the heavenly bodies, are contained chiefly in that part of science that is called trigonometry, or the properties of a triangle, which, when applied to the study of the heavenly bodies, is called astronomy; when applied to direct the course of a ship on the ocean, it is called navigation; when applied to the construction of figures drawn by a rule and compass, it is called geometry; when applied to the construction of plans of edifices, it is called architecture; when applied to the measurement of any portion of the surface of the earth, it is called land-surveying. In fine, it is the soul of science. It is

an eternal truth: it contains the mathematical demonstration of which man speaks, and the extent of its uses are unknown.

It may be said, that man can make or draw a triangle, and therefore a triangle is an human invention.

But the triangle, when drawn, is no other than the image of the principle: it is a delineation to the eye, and from thence to the mind, of a principle that would otherwise be imperceptible. The triangle does not make the principle, any more than a candle taken into a room that was dark, makes the chairs and tables that before were invisible. All the properties of a triangle exist independently of the figure, and existed before any triangle was drawn or thought of by man. Man had no more to do in the formation of those properties or principles, than he had to do in making the laws by which the heavenly bodies move; and therefore the one must have the same divine origin as the other.

In the same manner as, it may be said, that man can make a triangle, so also, may it be said, he can make the mechanical instrument called a lever. But the principle by which the lever acts, is a thing distinct from the instrument, and would exist if the instrument did not; it attaches itself to the instrument after it is made; the instrument, therefore, can act no otherwise than it does act; neither can all the efforts of human invention make it act otherwise. That which, in all such cases, man calls the effect, is no other than the principle itself rendered perceptible to the senses.

Since, then, man cannot make principles, from whence did he gain a knowledge of them, so as to be able to apply them, not only to things on earth, but to ascertain the motion of bodies so immensely distant from him as all the heavenly bodies are? From whence, I ask, could he gain that knowledge, but from the study of the true theology?

It is the structure of the universe that has taught this knowledge to man. That structure is an ever-existing exhibition of every principle upon which every part of mathematical science is founded. The offspring of this science is mechanics; for mechanics is no other than the principles of science applied practically. The man who proportions the several parts of a mill uses the same scientific principles as if he had the power of constructing an universe, but as he cannot give to matter that invisible agency by which all the component parts of the immense machine of the universe have influence upon each other, and act in motional unison together, without any apparent

contact, and to which man has given the name of attraction, gravitation, and repulsion, he supplies the place of that agency by the humble imitation of teeth and cogs. All the parts of man's microcosm must visibly touch. But could he gain a knowledge of that agency, so as to be able to apply it in practice, we might then say that another canonical book of the word of God had been discovered.

If man could alter the properties of the lever, so also could he alter the properties of the triangle: for a lever (taking that sort of lever which is called a steel-yard, for the sake of explanation) forms, when in motion, a triangle. The line it descends from, (one point of that line being in the fulcrum,) the line it descends to, and the chord of the arc, which the end of the lever describes in the air, are the three sides of a triangle. The other arm of the lever describes also a triangle; and the corresponding sides of those two triangles, calculated scientifically, or measured geometrically,—and also the sines, tangents, and secants generated from the angles, and geometrically measured,—have the same proportions to each other as the different weights have that will balance each other on the lever, leaving the weight of the lever out of the case.

It may also be said, that man can make a wheel and axis; that he can put wheels of different magnitudes together, and produce a mill. Still the case comes back to the same point, which is, that he did not make the principle that gives the wheels those powers. This principle is as unalterable as in the former cases, or rather it is the same principle under a different appearance to the eye.

The power that two wheels of different magnitudes have upon each other is in the same proportion as if the semi-diameter of the two wheels were joined together and made into that kind of lever I have described, suspended at the part where the semi-diameters join; for the two wheels, scientifically considered, are no other than the two circles generated by the motion of the compound lever.

It is from the study of the true theology that all our knowledge of science is derived; and it is from that knowledge that all the arts have originated.

The Almighty lecturer, by displaying the principles of science in the structure of the universe, has invited man to study and to imitation. It is as if he had said to the inhabitants of this globe that we call ours, "I have made an earth for man to dwell upon, and I have rendered the starry heavens

visible, to teach him science and the arts. He can now provide for his own comfort, AND LEARN FROM MY MUNIFICENCE TO ALL, TO BE KIND TO EACH OTHER."

Of what use is it, unless it be to teach man something, that his eye is endowed with the power of beholding, to an incomprehensible distance, an immensity of worlds revolving in the ocean of space? Or of what use is it that this immensity of worlds is visible to man? What has man to do with the Pleiades, with Orion, with Sirius, with the star he calls the north star, with the moving orbs he has named Saturn, Jupiter, Mars, Venus, and Mercury, if no uses are to follow from their being visible? A less power of vision would have been sufficient for man, if the immensity he now possesses were given only to waste itself, as it were, on an immense desert of space glittering with shows.

It is only by contemplating what he calls the starry heavens, as the book and school of science, that he discovers any use in their being visible to him, or any advantage resulting from his immensity of vision. But when he contemplates the subject in this light, he sees an additional motive for saying, that nothing was made in vain; for in vain would be this power of vision if it taught man nothing.

CHAPTER XII - THE EFFECTS OF CHRISTIANISM ON EDUCATION; PROPOSED

REFORMS.

As the Christian system of faith has made a revolution in theology, so also has it made a revolution in the state of learning. That which is now called learning, was not learning originally. Learning does not consist, as the schools now make it consist, in the knowledge of languages, but in the knowledge of things to which language gives names.

The Greeks were a learned people, but learning with them did not consist in speaking Greek, any more than in a Roman's speaking Latin, or a Frenchman's speaking French, or an Englishman's speaking English. From what we know of the Greeks, it does not appear that they knew or studied any language but their own, and this was one cause of their becoming so learned; it afforded them more time to apply themselves to better studies. The schools of the Greeks were schools of science and philosophy, and not of languages; and it is in the knowledge of the things that science and philosophy teach that learning consists.

Almost all the scientific learning that now exists, came to us from the Greeks, or the people who spoke the Greek language. It therefore became necessary to the people of other nations, who spoke a different language, that some among them should learn the Greek language, in order that the learning the Greeks had might be made known in those nations, by translating the Greek books of science and philosophy into the mother tongue of each nation.

The study, therefore, of the Greek language (and in the same manner for the Latin) was no other than the drudgery business of a linguist; and the language thus obtained, was no other than the means, or as it were the tools, employed to obtain the learning the Greeks had. It made no part of the learning itself; and was so distinct from it as to make it exceedingly probable that the persons who had studied Greek sufficiently to translate

those works, such for instance as Euclid's Elements, did not understand any of the learning the works contained.

As there is now nothing new to be learned from the dead languages, all the useful books being already translated, the languages are become useless, and the time expended in teaching and in learning them is wasted. So far as the study of languages may contribute to the progress and communication of knowledge (for it has nothing to do with the creation of knowledge) it is only in the living languages that new knowledge is to be found; and certain it is, that, in general, a youth will learn more of a living language in one year, than of a dead language in seven; and it is but seldom that the teacher knows much of it himself. The difficulty of learning the dead languages does not arise from any superior abstruseness in the languages themselves, but in their being dead, and the pronunciation entirely lost. It would be the same thing with any other language when it becomes dead. The best Greek linguist that now exists does not understand Greek so well as a Grecian plowman did, or a Grecian milkmaid; and the same for the Latin, compared with a plowman or a milkmaid of the Romans; and with respect to pronunciation and idiom, not so well as the cows that she milked. It would therefore be advantageous to the state of learning to abolish the study of the dead languages, and to make learning consist, as it originally did, in scientific knowledge.

The apology that is sometimes made for continuing to teach the dead languages is, that they are taught at a time when a child is not capable of exerting any other mental faculty than that of memory. But this is altogether erroneous. The human mind has a natural disposition to scientific knowledge, and to the things connected with it. The first and favourite amusement of a child, even before it begins to play, is that of imitating the works of man. It builds houses with cards or sticks; it navigates the little ocean of a bowl of water with a paper boat; or dams the stream of a gutter, and contrives something which it calls a mill; and it interests itself in the fate of its works with a care that resembles affection. It afterwards goes to school, where its genius is killed by the barren study of a dead language, and the philosopher is lost in the linguist.

But the apology that is now made for continuing to teach the dead languages, could not be the cause at first of cutting down learning to the narrow and humble sphere of linguistry; the cause therefore must be sought

for elsewhere. In all researches of this kind, the best evidence that can be produced, is the internal evidence the thing carries with itself, and the evidence of circumstances that unites with it; both of which, in this case, are not difficult to be discovered.

Putting then aside, as matter of distinct consideration, the outrage offered to the moral justice of God, by supposing him to make the innocent suffer for the guilty, and also the loose morality and low contrivance of supposing him to change himself into the shape of a man, in order to make an excuse to himself for not executing his supposed sentence upon Adam; putting, I say, those things aside as matter of distinct consideration, it is certain that what is called the christian system of faith, including in it the whimsical account of the creation—the strange story of Eve, the snake, and the apple—the amphibious idea of a man-god—the corporeal idea of the death of a god—the mythological idea of a family of gods, and the christian system of arithmetic, that three are one, and one is three, are all irreconcilable, not only to the divine gift of reason, that God has given to man, but to the knowledge that man gains of the power and wisdom of God by the aid of the sciences, and by studying the structure of the universe that God has made.

The setters up, therefore, and the advocates of the Christian system of faith, could not but foresee that the continually progressive knowledge that man would gain by the aid of science, of the power and wisdom of God, manifested in the structure of the universe, and in all the works of creation, would militate against, and call into question, the truth of their system of faith; and therefore it became necessary to their purpose to cut learning down to a size less dangerous to their project, and this they effected by restricting the idea of learning to the dead study of dead languages.

They not only rejected the study of science out of the christian schools, but they persecuted it; and it is only within about the last two centuries that the study has been revived. So late as 1610, Galileo, a Florentine, discovered and introduced the use of telescopes, and by applying them to observe the motions and appearances of the heavenly bodies, afforded additional means for ascertaining the true structure of the universe. Instead of being esteemed for these discoveries, he was sentenced to renounce them, or the opinions resulting from them, as a damnable heresy. And prior to that time Virgilius was condemned to be burned for asserting the

antipodes, or in other words, that the earth was a globe, and habitable in every part where there was land; yet the truth of this is now too well known even to be told. [NOTE: I cannot discover the source of this statement concerning the ancient author whose Irish name Feirghill was Latinized into Virgilius. The British Museum possesses a copy of the work (*Decalogiunt*) which was the pretext of the charge of heresy made by Boniface, Archbishop of Mayence, against Virgilius, Abbot—bishop of Salzburg. These were leaders of the rival "British" and "Roman" parties, and the British champion made a countercharge against Boniface of irreligious practices." Boniface had to express a "regret," but none the less pursued his rival. The Pope, Zachary II., decided that if his alleged "doctrine, against God and his soul, that beneath the earth there is another world, other men, or sun and moon," should be acknowledged by Virgilius, he should be excommunicated by a Council and condemned with canonical sanctions. Whatever may have been the fate involved by condemnation with "*canonicis sanctionibus*," in the middle of the eighth century, it did not fall on Virgilius. His accuser, Boniface, was martyred, 755, and it is probable that Virgilius harmonized his *Antipodes* with orthodoxy. The gravamen of the heresy seems to have been the suggestion that there were men not of the progeny of Adam. Virgilius was made Bishop of Salzburg in 768. He bore until his death, 789, the curious title, "*Geometer and Solitary*," or "*lone wayfarer*" (*Solivagus*). A suspicion of heresy clung to his memory until 1233, when he was raised by Gregory IX, to sainthood beside his accuser, St. Boniface.—Editor. (Conway)]

If the belief of errors not morally bad did no mischief, it would make no part of the moral duty of man to oppose and remove them. There was no moral ill in believing the earth was flat like a trencher, any more than there was moral virtue in believing it was round like a globe; neither was there any moral ill in believing that the Creator made no other world than this, any more than there was moral virtue in believing that he made millions, and that the infinity of space is filled with worlds. But when a system of religion is made to grow out of a supposed system of creation that is not true, and to unite itself therewith in a manner almost inseparable therefrom, the case assumes an entirely different ground. It is then that errors, not morally bad, become fraught with the same mischiefs as if they were. It is then that the truth, though otherwise indifferent itself, becomes an essential, by becoming the criterion that either confirms by corresponding evidence,

or denies by contradictory evidence, the reality of the religion itself. In this view of the case it is the moral duty of man to obtain every possible evidence that the structure of the heavens, or any other part of creation affords, with respect to systems of religion. But this, the supporters or partizans of the christian system, as if dreading the result, incessantly opposed, and not only rejected the sciences, but persecuted the professors. Had Newton or Descartes lived three or four hundred years ago, and pursued their studies as they did, it is most probable they would not have lived to finish them; and had Franklin drawn lightning from the clouds at the same time, it would have been at the hazard of expiring for it in flames.

Later times have laid all the blame upon the Goths and Vandals, but, however unwilling the partizans of the Christian system may be to believe or to acknowledge it, it is nevertheless true, that the age of ignorance commenced with the Christian system. There was more knowledge in the world before that period, than for many centuries afterwards; and as to religious knowledge, the Christian system, as already said, was only another species of mythology; and the mythology to which it succeeded, was a corruption of an ancient system of theism. [NOTE by Paine: It is impossible for us now to know at what time the heathen mythology began; but it is certain, from the internal evidence that it carries, that it did not begin in the same state or condition in which it ended. All the gods of that mythology, except Saturn, were of modern invention. The supposed reign of Saturn was prior to that which is called the heathen mythology, and was so far a species of theism that it admitted the belief of only one God. Saturn is supposed to have abdicated the government in favour of his three sons and one daughter, Jupiter, Pluto, Neptune, and Juno; after this, thousands of other gods and demigods were imaginarily created, and the calendar of gods increased as fast as the calendar of saints and the calendar of courts have increased since.

All the corruptions that have taken place, in theology and in religion have been produced by admitting of what man calls 'revealed religion.' The mythologists pretended to more revealed religion than the christians do. They had their oracles and their priests, who were supposed to receive and deliver the word of God verbally on almost all occasions.

Since then all corruptions down from Moloch to modern predestinarianism, and the human sacrifices of the heathens to the christian

sacrifice of the Creator, have been produced by admitting of what is called revealed religion, the most effectual means to prevent all such evils and impositions is, not to admit of any other revelation than that which is manifested in the book of Creation., and to contemplate the Creation as the only true and real word of God that ever did or ever will exist; and every thing else called the word of God is fable and imposition.—Author.]

It is owing to this long interregnum of science, and to no other cause, that we have now to look back through a vast chasm of many hundred years to the respectable characters we call the Ancients. Had the progression of knowledge gone on proportionably with the stock that before existed, that chasm would have been filled up with characters rising superior in knowledge to each other; and those Ancients we now so much admire would have appeared respectably in the background of the scene. But the christian system laid all waste; and if we take our stand about the beginning of the sixteenth century, we look back through that long chasm, to the times of the Ancients, as over a vast sandy desert, in which not a shrub appears to intercept the vision to the fertile hills beyond.

It is an inconsistency scarcely possible to be credited, that any thing should exist, under the name of a religion, that held it to be irreligious to study and contemplate the structure of the universe that God had made. But the fact is too well established to be denied. The event that served more than any other to break the first link in this long chain of despotic ignorance, is that known by the name of the Reformation by Luther. From that time, though it does not appear to have made any part of the intention of Luther, or of those who are called Reformers, the Sciences began to revive, and Liberality, their natural associate, began to appear. This was the only public good the Reformation did; for, with respect to religious good, it might as well not have taken place. The mythology still continued the same; and a multiplicity of National Popes grew out of the downfall of the Pope of Christendom.

CHAPTER XIII - COMPARISON OF CHRISTIANISM WITH THE RELIGIOUS IDEAS

INSPIRED BY NATURE.

HAVING thus shewn, from the internal evidence of things, the cause that produced a change in the state of learning, and the motive for substituting the study of the dead languages, in the place of the Sciences, I proceed, in addition to the several observations already made in the former part of this work, to compare, or rather to confront, the evidence that the structure of the universe affords, with the christian system of religion. But as I cannot begin this part better than by referring to the ideas that occurred to me at an early part of life, and which I doubt not have occurred in some degree to almost every other person at one time or other, I shall state what those ideas were, and add thereto such other matter as shall arise out of the subject, giving to the whole, by way of preface, a short introduction.

My father being of the quaker profession, it was my good fortune to have an exceedingly good moral education, and a tolerable stock of useful learning. Though I went to the grammar school, I did not learn Latin, not only because I had no inclination to learn languages, but because of the objection the quakers have against the books in which the language is taught. But this did not prevent me from being acquainted with the subjects of all the Latin books used in the school.

The natural bent of my mind was to science. I had some turn, and I believe some talent for poetry; but this I rather repressed than encouraged, as leading too much into the field of imagination. As soon as I was able, I purchased a pair of globes, and attended the philosophical lectures of Martin and Ferguson, and became afterwards acquainted with Dr. Bevis, of the society called the Royal Society, then living in the Temple, and an excellent astronomer.

I had no disposition for what was called politics. It presented to my mind no other idea than is contained in the word jockeyship. When, therefore, I

turned my thoughts towards matters of government, I had to form a system for myself, that accorded with the moral and philosophic principles in which I had been educated. I saw, or at least I thought I saw, a vast scene opening itself to the world in the affairs of America; and it appeared to me, that unless the Americans changed the plan they were then pursuing, with respect to the government of England, and declared themselves independent, they would not only involve themselves in a multiplicity of new difficulties, but shut out the prospect that was then offering itself to mankind through their means. It was from these motives that I published the work known by the name of Common Sense, which is the first work I ever did publish, and so far as I can judge of myself, I believe I should never have been known in the world as an author on any subject whatever, had it not been for the affairs of America. I wrote Common Sense the latter end of the year 1775, and published it the first of January, 1776. Independence was declared the fourth of July following. [NOTE: The pamphlet Common Sense was first advertised, as "just published," on January 10, 1776. His plea for the Officers of Excise, written before leaving England, was printed, but not published until 1793. Despite his reiterated assertion that Common Sense was the first work he ever published the notion that he was "junius" still finds some believers. An indirect comment on our Paine-Junians may be found in Part 2 of this work where Paine says a man capable of writing Homer "would not have thrown away his own fame by giving it to another." It is probable that Paine ascribed the Letters of Junius to Thomas Hollis. His friend F. Lanthenas, in his translation of the Age of Reason (1794) advertises his translation of the Letters of Junius from the English " (Thomas Hollis)." This he could hardly have done without consultation with Paine. Unfortunately this translation of Junius cannot be found either in the Bibliotheque Nationale or the British Museum, and it cannot be said whether it contains any attempt at an identification of Junius—Editor.]

Any person, who has made observations on the state and progress of the human mind, by observing his own, can not but have observed, that there are two distinct classes of what are called Thoughts; those that we produce in ourselves by reflection and the act of thinking, and those that bolt into the mind of their own accord. I have always made it a rule to treat those voluntary visitors with civility, taking care to examine, as well as I was able, if they were worth entertaining; and it is from them I have acquired almost all the knowledge that I have. As to the learning that any person

gains from school education, it serves only, like a small capital, to put him in the way of beginning learning for himself afterwards. Every person of learning is finally his own teacher; the reason of which is, that principles, being of a distinct quality to circumstances, cannot be impressed upon the memory; their place of mental residence is the understanding, and they are never so lasting as when they begin by conception. Thus much for the introductory part.

From the time I was capable of conceiving an idea, and acting upon it by reflection, I either doubted the truth of the christian system, or thought it to be a strange affair; I scarcely knew which it was: but I well remember, when about seven or eight years of age, hearing a sermon read by a relation of mine, who was a great devotee of the church, upon the subject of what is called Redemption by the death of the Son of God. After the sermon was ended, I went into the garden, and as I was going down the garden steps (for I perfectly recollect the spot) I revolted at the recollection of what I had heard, and thought to myself that it was making God Almighty act like a passionate man, that killed his son, when he could not revenge himself any other way; and as I was sure a man would be hanged that did such a thing, I could not see for what purpose they preached such sermons. This was not one of those kind of thoughts that had any thing in it of childish levity; it was to me a serious reflection, arising from the idea I had that God was too good to do such an action, and also too almighty to be under any necessity of doing it. I believe in the same manner to this moment; and I moreover believe, that any system of religion that has anything in it that shocks the mind of a child, cannot be a true system.

It seems as if parents of the christian profession were ashamed to tell their children any thing about the principles of their religion. They sometimes instruct them in morals, and talk to them of the goodness of what they call Providence; for the Christian mythology has five deities: there is God the Father, God the Son, God the Holy Ghost, the God Providence, and the Goddess Nature. But the christian story of God the Father putting his son to death, or employing people to do it, (for that is the plain language of the story,) cannot be told by a parent to a child; and to tell him that it was done to make mankind happier and better, is making the story still worse; as if mankind could be improved by the example of murder; and to tell him that all this is a mystery, is only making an excuse for the incredibility of it.

How different is this to the pure and simple profession of Deism! The true deist has but one Deity; and his religion consists in contemplating the power, wisdom, and benignity of the Deity in his works, and in endeavouring to imitate him in every thing moral, scientific, and mechanical.

The religion that approaches the nearest of all others to true Deism, in the moral and benign part thereof, is that professed by the quakers: but they have contracted themselves too much by leaving the works of God out of their system. Though I reverence their philanthropy, I can not help smiling at the conceit, that if the taste of a quaker could have been consulted at the creation, what a silent and drab-colored creation it would have been! Not a flower would have blossomed its gaities, nor a bird been permitted to sing.

Quitting these reflections, I proceed to other matters. After I had made myself master of the use of the globes, and of the orrery, [NOTE by Paine: As this book may fall into the bands of persons who do not know what an orrery is, it is for their information I add this note, as the name gives no idea of the uses of the thing. The orrery has its name from the person who invented it. It is a machinery of clock-work, representing the universe in miniature: and in which the revolution of the earth round itself and round the sun, the revolution of the moon round the earth, the revolution of the planets round the sun, their relative distances from the sun, as the center of the whole system, their relative distances from each other, and their different magnitudes, are represented as they really exist in what we call the heavens.—Author.] and conceived an idea of the infinity of space, and of the eternal divisibility of matter, and obtained, at least, a general knowledge of what was called natural philosophy, I began to compare, or, as I have before said, to confront, the internal evidence those things afford with the christian system of faith.

Though it is not a direct article of the christian system that this world that we inhabit is the whole of the habitable creation, yet it is so worked up therewith, from what is called the Mosaic account of the creation, the story of Eve and the apple, and the counterpart of that story, the death of the Son of God, that to believe otherwise, that is, to believe that God created a plurality of worlds, at least as numerous as what we call stars, renders the christian system of faith at once little and ridiculous; and scatters it in the mind like feathers in the air. The two beliefs can not be held together in the

same mind; and he who thinks that he believes both, has thought but little of either.

Though the belief of a plurality of worlds was familiar to the ancients, it is only within the last three centuries that the extent and dimensions of this globe that we inhabit have been ascertained. Several vessels, following the tract of the ocean, have sailed entirely round the world, as a man may march in a circle, and come round by the contrary side of the circle to the spot he set out from. The circular dimensions of our world, in the widest part, as a man would measure the widest round of an apple, or a ball, is only twenty-five thousand and twenty English miles, reckoning sixty-nine miles and an half to an equatorial degree, and may be sailed round in the space of about three years. [NOTE by Paine: Allowing a ship to sail, on an average, three miles in an hour, she would sail entirely round the world in less than one year, if she could sail in a direct circle, but she is obliged to follow the course of the ocean.—Author.]

A world of this extent may, at first thought, appear to us to be great; but if we compare it with the immensity of space in which it is suspended, like a bubble or a balloon in the air, it is infinitely less in proportion than the smallest grain of sand is to the size of the world, or the finest particle of dew to the whole ocean, and is therefore but small; and, as will be hereafter shown, is only one of a system of worlds, of which the universal creation is composed.

It is not difficult to gain some faint idea of the immensity of space in which this and all the other worlds are suspended, if we follow a progression of ideas. When we think of the size or dimensions of, a room, our ideas limit themselves to the walls, and there they stop. But when our eye, or our imagination darts into space, that is, when it looks upward into what we call the open air, we cannot conceive any walls or boundaries it can have; and if for the sake of resting our ideas we suppose a boundary, the question immediately renews itself, and asks, what is beyond that boundary? and in the same manner, what beyond the next boundary? and so on till the fatigued imagination returns and says, there is no end. Certainly, then, the Creator was not pent for room when he made this world no larger than it is; and we have to seek the reason in something else.

If we take a survey of our own world, or rather of this, of which the Creator has given us the use as our portion in the immense system of

creation, we find every part of it, the earth, the waters, and the air that surround it, filled, and as it were crowded with life, down from the largest animals that we know of to the smallest insects the naked eye can behold, and from thence to others still smaller, and totally invisible without the assistance of the microscope. Every tree, every plant, every leaf, serves not only as an habitation, but as a world to some numerous race, till animal existence becomes so exceedingly refined, that the effluvia of a blade of grass would be food for thousands.

Since then no part of our earth is left unoccupied, why is it to be supposed that the immensity of space is a naked void, lying in eternal waste? There is room for millions of worlds as large or larger than ours, and each of them millions of miles apart from each other.

Having now arrived at this point, if we carry our ideas only one thought further, we shall see, perhaps, the true reason, at least a very good reason for our happiness, why the Creator, instead of making one immense world, extending over an immense quantity of space, has preferred dividing that quantity of matter into several distinct and separate worlds, which we call planets, of which our earth is one. But before I explain my ideas upon this subject, it is necessary (not for the sake of those that already know, but for those who do not) to show what the system of the universe is.

CHAPTER XIV - SYSTEM OF THE UNIVERSE.

THAT part of the universe that is called the solar system (meaning the system of worlds to which our earth belongs, and of which Sol, or in English language, the Sun, is the center) consists, besides the Sun, of six distinct orbs, or planets, or worlds, besides the secondary bodies, called the satellites, or moons, of which our earth has one that attends her in her annual revolution round the Sun, in like manner as the other satellites or moons, attend the planets or worlds to which they severally belong, as may be seen by the assistance of the telescope.

The Sun is the center round which those six worlds or planets revolve at different distances therefrom, and in circles concentric to each other. Each world keeps constantly in nearly the same tract round the Sun, and continues at the same time turning round itself, in nearly an upright position, as a top turns round itself when it is spinning on the ground, and leans a little sideways.

It is this leaning of the earth ($23\frac{1}{2}$ degrees) that occasions summer and winter, and the different length of days and nights. If the earth turned round itself in a position perpendicular to the plane or level of the circle it moves in round the Sun, as a top turns round when it stands erect on the ground, the days and nights would be always of the same length, twelve hours day and twelve hours night, and the season would be uniformly the same throughout the year.

Every time that a planet (our earth for example) turns round itself, it makes what we call day and night; and every time it goes entirely round the Sun, it makes what we call a year, consequently our world turns three hundred and sixty-five times round itself, in going once round the Sun.

The names that the ancients gave to those six worlds, and which are still called by the same names, are Mercury, Venus, this world that we call ours, Mars, Jupiter, and Saturn. They appear larger to the eye than the stars, being many million miles nearer to our earth than any of the stars are. The planet Venus is that which is called the evening star, and sometimes the morning

star, as she happens to set after, or rise before the Sun, which in either case is never more than three hours.

The Sun as before said being the center, the planet or world nearest the Sun is Mercury; his distance from the Sun is thirty-four million miles, and he moves round in a circle always at that distance from the Sun, as a top may be supposed to spin round in the tract in which a horse goes in a mill. The second world is Venus; she is fifty-seven million miles distant from the Sun, and consequently moves round in a circle much greater than that of Mercury. The third world is this that we inhabit, and which is eighty-eight million miles distant from the Sun, and consequently moves round in a circle greater than that of Venus. The fourth world is Mars; he is distant from the sun one hundred and thirty-four million miles, and consequently moves round in a circle greater than that of our earth. The fifth is Jupiter; he is distant from the Sun five hundred and fifty-seven million miles, and consequently moves round in a circle greater than that of Mars. The sixth world is Saturn; he is distant from the Sun seven hundred and sixty-three million miles, and consequently moves round in a circle that surrounds the circles or orbits of all the other worlds or planets.

The space, therefore, in the air, or in the immensity of space, that our solar system takes up for the several worlds to perform their revolutions in round the Sun, is of the extent in a strait line of the whole diameter of the orbit or circle in which Saturn moves round the Sun, which being double his distance from the Sun, is fifteen hundred and twenty-six million miles; and its circular extent is nearly five thousand million; and its globical content is almost three thousand five hundred million times three thousand five hundred million square miles. [NOTE by Paine: If it should be asked, how can man know these things? I have one plain answer to give, which is, that man knows how to calculate an eclipse, and also how to calculate to a minute of time when the planet Venus, in making her revolutions round the Sun, will come in a strait line between our earth and the Sun, and will appear to us about the size of a large pea passing across the face of the Sun. This happens but twice in about a hundred years, at the distance of about eight years from each other, and has happened twice in our time, both of which were foreknown by calculation. It can also be known when they will happen again for a thousand years to come, or to any other portion of time. As therefore, man could not be able to do these things if he did not understand the solar system, and the manner in which the revolutions of the

several planets or worlds are performed, the fact of calculating an eclipse, or a transit of Venus, is a proof in point that the knowledge exists; and as to a few thousand, or even a few million miles, more or less, it makes scarcely any sensible difference in such immense distances.—Author.]

But this, immense as it is, is only one system of worlds. Beyond this, at a vast distance into space, far beyond all power of calculation, are the stars called the fixed stars. They are called fixed, because they have no revolutionary motion, as the six worlds or planets have that I have been describing. Those fixed stars continue always at the same distance from each other, and always in the same place, as the Sun does in the center of our system. The probability, therefore, is that each of those fixed stars is also a Sun, round which another system of worlds or planets, though too remote for us to discover, performs its revolutions, as our system of worlds does round our central Sun. By this easy progression of ideas, the immensity of space will appear to us to be filled with systems of worlds; and that no part of space lies at waste, any more than any part of our globe of earth and water is left unoccupied.

Having thus endeavoured to convey, in a familiar and easy manner, some idea of the structure of the universe, I return to explain what I before alluded to, namely, the great benefits arising to man in consequence of the Creator having made a Plurality of worlds, such as our system is, consisting of a central Sun and six worlds, besides satellites, in preference to that of creating one world only of a vast extent.

CHAPTER XV - ADVANTAGES OF THE EXISTENCE OF MANY WORLDS IN EACH SOLAR

SYSTEM.

IT is an idea I have never lost sight of, that all our knowledge of science is derived from the revolutions (exhibited to our eye and from thence to our understanding) which those several planets or worlds of which our system is composed make in their circuit round the Sun.

Had then the quantity of matter which these six worlds contain been blended into one solitary globe, the consequence to us would have been, that either no revolutionary motion would have existed, or not a sufficiency of it to give us the ideas and the knowledge of science we now have; and it is from the sciences that all the mechanical arts that contribute so much to our earthly felicity and comfort are derived.

As therefore the Creator made nothing in vain, so also must it be believed that he organized the structure of the universe in the most advantageous manner for the benefit of man; and as we see, and from experience feel, the benefits we derive from the structure of the universe, formed as it is, which benefits we should not have had the opportunity of enjoying if the structure, so far as relates to our system, had been a solitary globe, we can discover at least one reason why a plurality of worlds has been made, and that reason calls forth the devotional gratitude of man, as well as his admiration.

But it is not to us, the inhabitants of this globe, only, that the benefits arising from a plurality of worlds are limited. The inhabitants of each of the worlds of which our system is composed, enjoy the same opportunities of knowledge as we do. They behold the revolutionary motions of our earth, as we behold theirs. All the planets revolve in sight of each other; and, therefore, the same universal school of science presents itself to all.

Neither does the knowledge stop here. The system of worlds next to us exhibits, in its revolutions, the same principles and school of science, to the

inhabitants of their system, as our system does to us, and in like manner throughout the immensity of space.

Our ideas, not only of the almightiness of the Creator, but of his wisdom and his beneficence, become enlarged in proportion as we contemplate the extent and the structure of the universe. The solitary idea of a solitary world, rolling or at rest in the immense ocean of space, gives place to the cheerful idea of a society of worlds, so happily contrived as to administer, even by their motion, instruction to man. We see our own earth filled with abundance; but we forget to consider how much of that abundance is owing to the scientific knowledge the vast machinery of the universe has unfolded.

CHAPTER XVI - APPLICATION OF THE PRECEDING TO THE SYSTEM OF THE

CHRISTIANS.

BUT, in the midst of those reflections, what are we to think of the christian system of faith that forms itself upon the idea of only one world, and that of no greater extent, as is before shown, than twenty-five thousand miles. An extent which a man, walking at the rate of three miles an hour for twelve hours in the day, could he keep on in a circular direction, would walk entirely round in less than two years. Alas! what is this to the mighty ocean of space, and the almighty power of the Creator!

From whence then could arise the solitary and strange conceit that the Almighty, who had millions of worlds equally dependent on his protection, should quit the care of all the rest, and come to die in our world, because, they say, one man and one woman had eaten an apple! And, on the other hand, are we to suppose that every world in the boundless creation had an Eve, an apple, a serpent, and a redeemer? In this case, the person who is irreverently called the Son of God, and sometimes God himself, would have nothing else to do than to travel from world to world, in an endless succession of death, with scarcely a momentary interval of life.

It has been by rejecting the evidence, that the word, or works of God in the creation, affords to our senses, and the action of our reason upon that evidence, that so many wild and whimsical systems of faith, and of religion, have been fabricated and set up. There may be many systems of religion that so far from being morally bad are in many respects morally good: but there can be but ONE that is true; and that one necessarily must, as it ever will, be in all things consistent with the ever existing word of God that we behold in his works. But such is the strange construction of the christian system of faith, that every evidence the heavens affords to man, either directly contradicts it or renders it absurd.

It is possible to believe, and I always feel pleasure in encouraging myself to believe it, that there have been men in the world who persuaded themselves that what is called a pious fraud, might, at least under particular

circumstances, be productive of some good. But the fraud being once established, could not afterwards be explained; for it is with a pious fraud as with a bad action, it begets a calamitous necessity of going on.

The persons who first preached the christian system of faith, and in some measure combined with it the morality preached by Jesus Christ, might persuade themselves that it was better than the heathen mythology that then prevailed. From the first preachers the fraud went on to the second, and to the third, till the idea of its being a pious fraud became lost in the belief of its being true; and that belief became again encouraged by the interest of those who made a livelihood by preaching it.

But though such a belief might, by such means, be rendered almost general among the laity, it is next to impossible to account for the continual persecution carried on by the church, for several hundred years, against the sciences, and against the professors of science, if the church had not some record or tradition that it was originally no other than a pious fraud, or did not foresee that it could not be maintained against the evidence that the structure of the universe afforded.

CHAPTER XVII - OF THE MEANS EMPLOYED IN ALL TIME, AND ALMOST

UNIVERSALLY, TO DECEIVE THE PEOPLES.

HAVING thus shown the irreconcilable inconsistencies between the real word of God existing in the universe, and that which is called the word of God, as shown to us in a printed book that any man might make, I proceed to speak of the three principal means that have been employed in all ages, and perhaps in all countries, to impose upon mankind.

Those three means are Mystery, Miracle, and Prophecy, The first two are incompatible with true religion, and the third ought always to be suspected.

With respect to Mystery, everything we behold is, in one sense, a mystery to us. Our own existence is a mystery: the whole vegetable world is a mystery. We cannot account how it is that an acorn, when put into the ground, is made to develop itself and become an oak. We know not how it is that the seed we sow unfolds and multiplies itself, and returns to us such an abundant interest for so small a capital.

The fact however, as distinct from the operating cause, is not a mystery, because we see it; and we know also the means we are to use, which is no other than putting the seed in the ground. We know, therefore, as much as is necessary for us to know; and that part of the operation that we do not know, and which if we did, we could not perform, the Creator takes upon himself and performs it for us. We are, therefore, better off than if we had been let into the secret, and left to do it for ourselves.

But though every created thing is, in this sense, a mystery, the word mystery cannot be applied to moral truth, any more than obscurity can be applied to light. The God in whom we believe is a God of moral truth, and not a God of mystery or obscurity. Mystery is the antagonist of truth. It is a fog of human invention that obscures truth, and represents it in distortion. Truth never envelops itself in mystery; and the mystery in which it is at any time enveloped, is the work of its antagonist, and never of itself.

Religion, therefore, being the belief of a God, and the practice of moral truth, cannot have connection with mystery. The belief of a God, so far from

having any thing of mystery in it, is of all beliefs the most easy, because it arises to us, as is before observed, out of necessity. And the practice of moral truth, or, in other words, a practical imitation of the moral goodness of God, is no other than our acting towards each other as he acts benignly towards all. We cannot serve God in the manner we serve those who cannot do without such service; and, therefore, the only idea we can have of serving God, is that of contributing to the happiness of the living creation that God has made. This cannot be done by retiring ourselves from the society of the world, and spending a recluse life in selfish devotion.

The very nature and design of religion, if I may so express it, prove even to demonstration that it must be free from every thing of mystery, and unincumbered with every thing that is mysterious. Religion, considered as a duty, is incumbent upon every living soul alike, and, therefore, must be on a level to the understanding and comprehension of all. Man does not learn religion as he learns the secrets and mysteries of a trade. He learns the theory of religion by reflection. It arises out of the action of his own mind upon the things which he sees, or upon what he may happen to hear or to read, and the practice joins itself thereto.

When men, whether from policy or pious fraud, set up systems of religion incompatible with the word or works of God in the creation, and not only above but repugnant to human comprehension, they were under the necessity of inventing or adopting a word that should serve as a bar to all questions, inquiries and speculations. The word mystery answered this purpose, and thus it has happened that religion, which is in itself without mystery, has been corrupted into a fog of mysteries.

As mystery answered all general purposes, miracle followed as an occasional auxiliary. The former served to bewilder the mind, the latter to puzzle the senses. The one was the lingo, the other the legerdemain.

But before going further into this subject, it will be proper to inquire what is to be understood by a miracle.

In the same sense that every thing may be said to be a mystery, so also may it be said that every thing is a miracle, and that no one thing is a greater miracle than another. The elephant, though larger, is not a greater miracle than a mite: nor a mountain a greater miracle than an atom. To an almighty power it is no more difficult to make the one than the other, and no more difficult to make a million of worlds than to make one. Every

thing, therefore, is a miracle, in one sense; whilst, in the other sense, there is no such thing as a miracle. It is a miracle when compared to our power, and to our comprehension. It is not a miracle compared to the power that performs it. But as nothing in this description conveys the idea that is affixed to the word miracle, it is necessary to carry the inquiry further.

Mankind have conceived to themselves certain laws, by which what they call nature is supposed to act; and that a miracle is something contrary to the operation and effect of those laws. But unless we know the whole extent of those laws, and of what are commonly called the powers of nature, we are not able to judge whether any thing that may appear to us wonderful or miraculous, be within, or be beyond, or be contrary to, her natural power of acting.

The ascension of a man several miles high into the air, would have everything in it that constitutes the idea of a miracle, if it were not known that a species of air can be generated several times lighter than the common atmospheric air, and yet possess elasticity enough to prevent the balloon, in which that light air is inclosed, from being compressed into as many times less bulk, by the common air that surrounds it. In like manner, extracting flashes or sparks of fire from the human body, as visibly as from a steel struck with a flint, and causing iron or steel to move without any visible agent, would also give the idea of a miracle, if we were not acquainted with electricity and magnetism; so also would many other experiments in natural philosophy, to those who are not acquainted with the subject. The restoring persons to life who are to appearance dead as is practised upon drowned persons, would also be a miracle, if it were not known that animation is capable of being suspended without being extinct.

Besides these, there are performances by slight of hand, and by persons acting in concert, that have a miraculous appearance, which, when known, are thought nothing of. And, besides these, there are mechanical and optical deceptions. There is now an exhibition in Paris of ghosts or spectres, which, though it is not imposed upon the spectators as a fact, has an astonishing appearance. As, therefore, we know not the extent to which either nature or art can go, there is no criterion to determine what a miracle is; and mankind, in giving credit to appearances, under the idea of their being miracles, are subject to be continually imposed upon.

Since then appearances are so capable of deceiving, and things not real have a strong resemblance to things that are, nothing can be more inconsistent than to suppose that the Almighty would make use of means, such as are called miracles, that would subject the person who performed them to the suspicion of being an impostor, and the person who related them to be suspected of lying, and the doctrine intended to be supported thereby to be suspected as a fabulous invention.

Of all the modes of evidence that ever were invented to obtain belief to any system or opinion to which the name of religion has been given, that of miracle, however successful the imposition may have been, is the most inconsistent. For, in the first place, whenever recourse is had to show, for the purpose of procuring that belief (for a miracle, under any idea of the word, is a show) it implies a lameness or weakness in the doctrine that is preached. And, in the second place, it is degrading the Almighty into the character of a show-man, playing tricks to amuse and make the people stare and wonder. It is also the most equivocal sort of evidence that can be set up; for the belief is not to depend upon the thing called a miracle, but upon the credit of the reporter, who says that he saw it; and, therefore, the thing, were it true, would have no better chance of being believed than if it were a lie.

Suppose I were to say, that when I sat down to write this book, a hand presented itself in the air, took up the pen and wrote every word that is herein written; would any body believe me? Certainly they would not. Would they believe me a whit the more if the thing had been a fact? Certainly they would not. Since then a real miracle, were it to happen, would be subject to the same fate as the falsehood, the inconsistency becomes the greater of supposing the Almighty would make use of means that would not answer the purpose for which they were intended, even if they were real.

If we are to suppose a miracle to be something so entirely out of the course of what is called nature, that she must go out of that course to accomplish it, and we see an account given of such a miracle by the person who said he saw it, it raises a question in the mind very easily decided, which is,—Is it more probable that nature should go out of her course, or that a man should tell a lie? We have never seen, in our time, nature go out of her course; but we have good reason to believe that millions of lies have

been told in the same time; it is, therefore, at least millions to one, that the reporter of a miracle tells a lie.

The story of the whale swallowing Jonah, though a whale is large enough to do it, borders greatly on the marvellous; but it would have approached nearer to the idea of a miracle, if Jonah had swallowed the whale. In this, which may serve for all cases of miracles, the matter would decide itself as before stated, namely, Is it more probable that a man should have, swallowed a whale, or told a lie?

But suppose that Jonah had really swallowed the whale, and gone with it in his belly to Nineveh, and to convince the people that it was true have cast it up in their sight, of the full length and size of a whale, would they not have believed him to have been the devil instead of a prophet? or if the whale had carried Jonah to Nineveh, and cast him up in the same public manner, would they not have believed the whale to have been the devil, and Jonah one of his imps?

The most extraordinary of all the things called miracles, related in the New Testament, is that of the devil flying away with Jesus Christ, and carrying him to the top of a high mountain; and to the top of the highest pinnacle of the temple, and showing him and promising to him all the kingdoms of the world. How happened it that he did not discover America? or is it only with kingdoms that his sooty highness has any interest.

I have too much respect for the moral character of Christ to believe that he told this whale of a miracle himself: neither is it easy to account for what purpose it could have been fabricated, unless it were to impose upon the connoisseurs of miracles, as is sometimes practised upon the connoisseurs of Queen Anne's farthings, and collectors of relics and antiquities; or to render the belief of miracles ridiculous, by outdoing miracle, as Don Quixote outdid chivalry; or to embarrass the belief of miracles, by making it doubtful by what power, whether of God or of the devil, any thing called a miracle was performed. It requires, however, a great deal of faith in the devil to believe this miracle.

In every point of view in which those things called miracles can be placed and considered, the reality of them is improbable, and their existence unnecessary. They would not, as before observed, answer any useful purpose, even if they were true; for it is more difficult to obtain belief to a miracle, than to a principle evidently moral, without any miracle. Moral

principle speaks universally for itself. Miracle could be but a thing of the moment, and seen but by a few; after this it requires a transfer of faith from God to man to believe a miracle upon man's report. Instead, therefore, of admitting the recitals of miracles as evidence of any system of religion being true, they ought to be considered as symptoms of its being fabulous. It is necessary to the full and upright character of truth that it rejects the crutch; and it is consistent with the character of fable to seek the aid that truth rejects. Thus much for Mystery and Miracle.

As Mystery and Miracle took charge of the past and the present, Prophecy took charge of the future, and rounded the tenses of faith. It was not sufficient to know what had been done, but what would be done. The supposed prophet was the supposed historian of times to come; and if he happened, in shooting with a long bow of a thousand years, to strike within a thousand miles of a mark, the ingenuity of posterity could make it point-blank; and if he happened to be directly wrong, it was only to suppose, as in the case of Jonah and Nineveh, that God had repented himself and changed his mind. What a fool do fabulous systems make of man!

It has been shewn, in a former part of this work, that the original meaning of the words prophet and prophesying has been changed, and that a prophet, in the sense of the word as now used, is a creature of modern invention; and it is owing to this change in the meaning of the words, that the flights and metaphors of the Jewish poets, and phrases and expressions now rendered obscure by our not being acquainted with the local circumstances to which they applied at the time they were used, have been erected into prophecies, and made to bend to explanations at the will and whimsical conceits of sectaries, expounders, and commentators. Every thing unintelligible was prophetic, and every thing insignificant was typical. A blunder would have served for a prophecy; and a dish-clout for a type.

If by a prophet we are to suppose a man to whom the Almighty communicated some event that would take place in future, either there were such men, or there were not. If there were, it is consistent to believe that the event so communicated would be told in terms that could be understood, and not related in such a loose and obscure manner as to be out of the comprehension of those that heard it, and so equivocal as to fit almost any circumstance that might happen afterwards. It is conceiving very irreverently of the Almighty, to suppose he would deal in this jesting

manner with mankind; yet all the things called prophecies in the book called the Bible come under this description.

But it is with Prophecy as it is with Miracle. It could not answer the purpose even if it were real. Those to whom a prophecy should be told could not tell whether the man prophesied or lied, or whether it had been revealed to him, or whether he conceited it; and if the thing that he prophesied, or pretended to prophesy, should happen, or some thing like it, among the multitude of things that are daily happening, nobody could again know whether he foreknew it, or guessed at it, or whether it was accidental. A prophet, therefore, is a character useless and unnecessary; and the safe side of the case is to guard against being imposed upon, by not giving credit to such relations.

Upon the whole, Mystery, Miracle, and Prophecy, are appendages that belong to fabulous and not to true religion. They are the means by which so many Lo heres! and Lo theres! have been spread about the world, and religion been made into a trade. The success of one impostor gave encouragement to another, and the quieting salvo of doing some good by keeping up a pious fraud protected them from remorse.

RECAPITULATION.

HAVING now extended the subject to a greater length than I first intended, I shall bring it to a close by abstracting a summary from the whole.

First, That the idea or belief of a word of God existing in print, or in writing, or in speech, is inconsistent in itself for the reasons already assigned. These reasons, among many others, are the want of an universal language; the mutability of language; the errors to which translations are subject, the possibility of totally suppressing such a word; the probability of altering it, or of fabricating the whole, and imposing it upon the world.

Secondly, That the Creation we behold is the real and ever existing word of God, in which we cannot be deceived. It proclaimeth his power, it demonstrates his wisdom, it manifests his goodness and beneficence.

Thirdly, That the moral duty of man consists in imitating the moral goodness and beneficence of God manifested in the creation towards all his creatures. That seeing as we daily do the goodness of God to all men, it is an example calling upon all men to practise the same towards each other;

and, consequently, that every thing of persecution and revenge between man and man, and every thing of cruelty to animals, is a violation of moral duty.

I trouble not myself about the manner of future existence. I content myself with believing, even to positive conviction, that the power that gave me existence is able to continue it, in any form and manner he pleases, either with or without this body; and it appears more probable to me that I shall continue to exist hereafter than that I should have had existence, as I now have, before that existence began.

It is certain that, in one point, all nations of the earth and all religions agree. All believe in a God. The things in which they disgrace are the redundancies annexed to that belief; and therefore, if ever an universal religion should prevail, it will not be believing any thing new, but in getting rid of redundancies, and believing as man believed at first. ["In the childhood of the world," according to the first (French) version; and the strict translation of the final sentence is: "Deism was the religion of Adam, supposing him not an imaginary being; but none the less must it be left to all men to follow, as is their right, the religion and worship they prefer."—Editor.] Adam, if ever there was such a man, was created a Deist; but in the mean time, let every man follow, as he has a right to do, the religion and worship he prefers.

END OF PART I

THE AGE OF REASON - PART II

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PREFACE

I HAVE mentioned in the former part of *The Age of Reason* that it had long been my intention to publish my thoughts upon Religion; but that I had originally reserved it to a later period in life, intending it to be the last work I should undertake. The circumstances, however, which existed in France in the latter end of the year 1793, determined me to delay it no longer. The just and humane principles of the Revolution which Philosophy had first diffused, had been departed from. The Idea, always dangerous to Society as it is derogatory to the Almighty,—that priests could forgive sins,—though it seemed to exist no longer, had blunted the feelings of humanity, and callously prepared men for the commission of all crimes. The intolerant spirit of church persecution had transferred itself into politics; the tribunals, stiled Revolutionary, supplied the place of an Inquisition; and the Guillotine of the Stake. I saw many of my most intimate friends destroyed; others daily carried to prison; and I had reason to believe, and had also intimations given me, that the same danger was approaching myself.

Under these disadvantages, I began the former part of the *Age of Reason*; I had, besides, neither Bible nor Testament [It must be borne in mind that throughout this work Paine generally means by "Bible" only the Old Testament, and speaks of the New as the "Testament."—Editor.] to refer to, though I was writing against both; nor could I procure any; notwithstanding which I have produced a work that no Bible Believer, though writing at his ease and with a Library of Church Books about him, can refute. Towards the latter end of December of that year, a motion was made and carried, to exclude foreigners from the Convention. There were but two, Anacharsis Cloots and myself; and I saw I was particularly pointed at by Bourdon de l'Oise, in his speech on that motion.

Conceiving, after this, that I had but a few days of liberty, I sat down and brought the work to a close as speedily as possible; and I had not finished it more than six hours, in the state it has since appeared, [This is an allusion to the essay which Paine wrote at an earlier part of 1793. See Introduction.—Editor.] before a guard came there, about three in the morning, with an order signed by the two Committees of Public Safety and Surety General,

for putting me in arrestation as a foreigner, and conveying me to the prison of the Luxembourg. I contrived, in my way there, to call on Joel Barlow, and I put the Manuscript of the work into his hands, as more safe than in my possession in prison; and not knowing what might be the fate in France either of the writer or the work, I addressed it to the protection of the citizens of the United States.

It is justice that I say, that the guard who executed this order, and the interpreter to the Committee of General Surety, who accompanied them to examine my papers, treated me not only with civility, but with respect. The keeper of the 'Luxembourg, Benoit, a man of good heart, shewed to me every friendship in his power, as did also all his family, while he continued in that station. He was removed from it, put into arrestation, and carried before the tribunal upon a malignant accusation, but acquitted.

After I had been in Luxembourg about three weeks, the Americans then in Paris went in a body to the Convention to reclaim me as their countryman and friend; but were answered by the President, Vadier, who was also President of the Committee of Surety General, and had signed the order for my arrestation, that I was born in England. [These excited Americans do not seem to have understood or reported the most important item in Vadeer's reply, namely that their application was "unofficial," i.e. not made through or sanctioned by Gouverneur Morris, American Minister. For the detailed history of all this see vol. iii.—Editor.] I heard no more, after this, from any person out of the walls of the prison, till the fall of Robespierre, on the 9th of Thermidor—July 27, 1794.

About two months before this event, I was seized with a fever that in its progress had every symptom of becoming mortal, and from the effects of which I am not recovered. It was then that I remembered with renewed satisfaction, and congratulated myself most sincerely, on having written the former part of *The Age of Reason*. I had then but little expectation of surviving, and those about me had less. I know therefore by experience the conscientious trial of my own principles.

I was then with three chamber comrades: Joseph Vanheule of Bruges, Charles Bastfni, and Michael Robyns of Louvain. The unceasing and anxious attention of these three friends to me, by night and day, I remember with gratitude and mention with pleasure. It happened that a physician (Dr. Graham) and a surgeon, (Mr. Bond,) part of the suite of General O'Hara,

[The officer who at Yorktown, Virginia, carried out the sword of Cornwallis for surrender, and satirically offered it to Rochambeau instead of Washington. Paine loaned him 300 pounds when he (O'Hara) left the prison, the money he had concealed in the lock of his cell-door.—Editor.] were then in the Luxembourg: I ask not myself whether it be convenient to them, as men under the English Government, that I express to them my thanks; but I should reproach myself if I did not; and also to the physician of the Luxembourg, Dr. Markoski.

I have some reason to believe, because I cannot discover any other, that this illness preserved me in existence. Among the papers of Robespierre that were examined and reported upon to the Convention by a Committee of Deputies, is a note in the hand writing of Robespierre, in the following words:

"Demander que Thomas Paine soit decrete d'accusation, pour l'interet de l'Amerique autant que de la France."

[Demand that Thomas Paine be decreed of accusation, for the interest of America, as well as of France.] From what cause it was that the intention was not put in execution, I know not, and cannot inform myself; and therefore I ascribe it to impossibility, on account of that illness.

The Convention, to repair as much as lay in their power the injustice I had sustained, invited me publicly and unanimously to return into the Convention, and which I accepted, to shew I could bear an injury without permitting it to injure my principles or my disposition. It is not because right principles have been violated, that they are to be abandoned.

I have seen, since I have been at liberty, several publications written, some in America, and some in England, as answers to the former part of "The Age of Reason." If the authors of these can amuse themselves by so doing, I shall not interrupt them, They may write against the work, and against me, as much as they please; they do me more service than they intend, and I can have no objection that they write on. They will find, however, by this Second Part, without its being written as an answer to them, that they must return to their work, and spin their cobweb over again. The first is brushed away by accident.

They will now find that I have furnished myself with a Bible and Testament; and I can say also that I have found them to be much worse books than I had conceived. If I have erred in any thing, in the former part

of the Age of Reason, it has been by speaking better of some parts than they deserved.

I observe, that all my opponents resort, more or less, to what they call Scripture Evidence and Bible authority, to help them out. They are so little masters of the subject, as to confound a dispute about authenticity with a dispute about doctrines; I will, however, put them right, that if they should be disposed to write any more, they may know how to begin.

THOMAS PAINE. October, 1795.

CHAPTER I - THE OLD TESTAMENT

IT has often been said that any thing may be proved from the Bible; but before any thing can be admitted as proved by Bible, the Bible itself must be proved to be true; for if the Bible be not true, or the truth of it be doubtful, it ceases to have authority, and cannot be admitted as proof of any thing.

It has been the practice of all Christian commentators on the Bible, and of all Christian priests and preachers, to impose the Bible on the world as a mass of truth, and as the word of God; they have disputed and wrangled, and have anathematized each other about the supposeable meaning of particular parts and passages therein; one has said and insisted that such a passage meant such a thing, another that it meant directly the contrary, and a third, that it meant neither one nor the other, but something different from both; and this they have called understanding the Bible.

It has happened, that all the answers that I have seen to the former part of 'The Age of Reason' have been written by priests: and these pious men, like their predecessors, contend and wrangle, and understand the Bible; each understands it differently, but each understands it best; and they have agreed in nothing but in telling their readers that Thomas Paine understands it not.

Now instead of wasting their time, and heating themselves in fractious disputations about doctrinal points drawn from the Bible, these men ought to know, and if they do not it is civility to inform them, that the first thing to be understood is, whether there is sufficient authority for believing the Bible to be the word of God, or whether there is not?

There are matters in that book, said to be done by the express command of God, that are as shocking to humanity, and to every idea we have of moral justice, as any thing done by Robespierre, by Carrier, by Joseph le Bon, in France, by the English government in the East Indies, or by any other assassin in modern times. When we read in the books ascribed to Moses, Joshua, etc., that they (the Israelites) came by stealth upon whole nations of people, who, as the history itself shews, had given them no offence; that they put all those nations to the sword; that they spared neither

age nor infancy; that they utterly destroyed men, women and children; that they left not a soul to breathe; expressions that are repeated over and over again in those books, and that too with exulting ferocity; are we sure these things are facts? are we sure that the Creator of man commissioned those things to be done? Are we sure that the books that tell us so were written by his authority?

It is not the antiquity of a tale that is an evidence of its truth; on the contrary, it is a symptom of its being fabulous; for the more ancient any history pretends to be, the more it has the resemblance of a fable. The origin of every nation is buried in fabulous tradition, and that of the Jews is as much to be suspected as any other.

To charge the commission of things upon the Almighty, which in their own nature, and by every rule of moral justice, are crimes, as all assassination is, and more especially the assassination of infants, is matter of serious concern. The Bible tells us, that those assassinations were done by the express command of God. To believe therefore the Bible to be true, we must unbelieve all our belief in the moral justice of God; for wherein could crying or smiling infants offend? And to read the Bible without horror, we must undo every thing that is tender, sympathising, and benevolent in the heart of man. Speaking for myself, if I had no other evidence that the Bible is fabulous, than the sacrifice I must make to believe it to be true, that alone would be sufficient to determine my choice.

But in addition to all the moral evidence against the Bible, I will, in the progress of this work, produce such other evidence as even a priest cannot deny; and show, from that evidence, that the Bible is not entitled to credit, as being the word of God.

But, before I proceed to this examination, I will show wherein the Bible differs from all other ancient writings with respect to the nature of the evidence necessary to establish its authenticity; and this is the more proper to be done, because the advocates of the Bible, in their answers to the former part of 'The Age of Reason,' undertake to say, and they put some stress thereon, that the authenticity of the Bible is as well established as that of any other ancient book: as if our belief of the one could become any rule for our belief of the other.

I know, however, but of one ancient book that authoritatively challenges universal consent and belief, and that is Euclid's Elements of Geometry;

[Euclid, according to chronological history, lived three hundred years before Christ, and about one hundred before Archimedes; he was of the city of Alexandria, in Egypt.—Author.] and the reason is, because it is a book of self-evident demonstration, entirely independent of its author, and of every thing relating to time, place, and circumstance. The matters contained in that book would have the same authority they now have, had they been written by any other person, or had the work been anonymous, or had the author never been known; for the identical certainty of who was the author makes no part of our belief of the matters contained in the book. But it is quite otherwise with respect to the books ascribed to Moses, to Joshua, to Samuel, etc.: those are books of testimony, and they testify of things naturally incredible; and therefore the whole of our belief, as to the authenticity of those books, rests, in the first place, upon the certainty that they were written by Moses, Joshua, and Samuel; secondly, upon the credit we give to their testimony. We may believe the first, that is, may believe the certainty of the authorship, and yet not the testimony; in the same manner that we may believe that a certain person gave evidence upon a case, and yet not believe the evidence that he gave. But if it should be found that the books ascribed to Moses, Joshua, and Samuel, were not written by Moses, Joshua, and Samuel, every part of the authority and authenticity of those books is gone at once; for there can be no such thing as forged or invented testimony; neither can there be anonymous testimony, more especially as to things naturally incredible; such as that of talking with God face to face, or that of the sun and moon standing still at the command of a man.

The greatest part of the other ancient books are works of genius; of which kind are those ascribed to Homer, to Plato, to Aristotle, to Demosthenes, to Cicero, etc. Here again the author is not an essential in the credit we give to any of those works; for as works of genius they would have the same merit they have now, were they anonymous. Nobody believes the Trojan story, as related by Homer, to be true; for it is the poet only that is admired, and the merit of the poet will remain, though the story be fabulous. But if we disbelieve the matters related by the Bible authors (Moses for instance) as we disbelieve the things related by Homer, there remains nothing of Moses in our estimation, but an imposter. As to the ancient historians, from Herodotus to Tacitus, we credit them as far as they relate things probable and credible, and no further: for if we do, we must believe the two miracles which Tacitus relates were performed by Vespasian, that of curing a lame

man, and a blind man, in just the same manner as the same things are told of Jesus Christ by his historians. We must also believe the miracles cited by Josephus, that of the sea of Pamphilia opening to let Alexander and his army pass, as is related of the Red Sea in Exodus. These miracles are quite as well authenticated as the Bible miracles, and yet we do not believe them; consequently the degree of evidence necessary to establish our belief of things naturally incredible, whether in the Bible or elsewhere, is far greater than that which obtains our belief to natural and probable things; and therefore the advocates for the Bible have no claim to our belief of the Bible because that we believe things stated in other ancient writings; since that we believe the things stated in those writings no further than they are probable and credible, or because they are self-evident, like Euclid; or admire them because they are elegant, like Homer; or approve them because they are sedate, like Plato; or judicious, like Aristotle.

Having premised these things, I proceed to examine the authenticity of the Bible; and I begin with what are called the five books of Moses, Genesis, Exodus, Leviticus, Numbers, and Deuteronomy. My intention is to shew that those books are spurious, and that Moses is not the author of them; and still further, that they were not written in the time of Moses nor till several hundred years afterwards; that they are no other than an attempted history of the life of Moses, and of the times in which he is said to have lived, and also of the times prior thereto, written by some very ignorant and stupid pretenders to authorship, several hundred years after the death of Moses; as men now write histories of things that happened, or are supposed to have happened, several hundred or several thousand years ago.

The evidence that I shall produce in this case is from the books themselves; and I will confine myself to this evidence only. Were I to refer for proofs to any of the ancient authors, whom the advocates of the Bible call prophane authors, they would controvert that authority, as I controvert theirs: I will therefore meet them on their own ground, and oppose them with their own weapon, the Bible.

In the first place, there is no affirmative evidence that Moses is the author of those books; and that he is the author, is altogether an unfounded opinion, got abroad nobody knows how. The style and manner in which those books are written give no room to believe, or even to suppose, they were written by Moses; for it is altogether the style and manner of another

person speaking of Moses. In Exodus, Leviticus and Numbers, (for every thing in Genesis is prior to the times of Moses and not the least allusion is made to him therein,) the whole, I say, of these books is in the third person; it is always, the Lord said unto Moses, or Moses said unto the Lord; or Moses said unto the people, or the people said unto Moses; and this is the style and manner that historians use in speaking of the person whose lives and actions they are writing. It may be said, that a man may speak of himself in the third person, and, therefore, it may be supposed that Moses did; but supposition proves nothing; and if the advocates for the belief that Moses wrote those books himself have nothing better to advance than supposition, they may as well be silent.

But granting the grammatical right, that Moses might speak of himself in the third person, because any man might speak of himself in that manner, it cannot be admitted as a fact in those books, that it is Moses who speaks, without rendering Moses truly ridiculous and absurd:—for example, Numbers xii. 3: "Now the man Moses was very MEEK, above all the men which were on the face of the earth." If Moses said this of himself, instead of being the meekest of men, he was one of the most vain and arrogant coxcombs; and the advocates for those books may now take which side they please, for both sides are against them: if Moses was not the author, the books are without authority; and if he was the author, the author is without credit, because to boast of meekness is the reverse of meekness, and is a lie in sentiment.

In Deuteronomy, the style and manner of writing marks more evidently than in the former books that Moses is not the writer. The manner here used is dramatical; the writer opens the subject by a short introductory discourse, and then introduces Moses as in the act of speaking, and when he has made Moses finish his harrangue, he (the writer) resumes his own part, and speaks till he brings Moses forward again, and at last closes the scene with an account of the death, funeral, and character of Moses.

This interchange of speakers occurs four times in this book: from the first verse of the first chapter, to the end of the fifth verse, it is the writer who speaks; he then introduces Moses as in the act of making his harrangue, and this continues to the end of the 40th verse of the fourth chapter; here the writer drops Moses, and speaks historically of what was done in

consequence of what Moses, when living, is supposed to have said, and which the writer has dramatically rehearsed.

The writer opens the subject again in the first verse of the fifth chapter, though it is only by saying that Moses called the people of Israel together; he then introduces Moses as before, and continues him as in the act of speaking, to the end of the 26th chapter. He does the same thing at the beginning of the 27th chapter; and continues Moses as in the act of speaking, to the end of the 28th chapter. At the 29th chapter the writer speaks again through the whole of the first verse, and the first line of the second verse, where he introduces Moses for the last time, and continues him as in the act of speaking, to the end of the 33d chapter.

The writer having now finished the rehearsal on the part of Moses, comes forward, and speaks through the whole of the last chapter: he begins by telling the reader, that Moses went up to the top of Pisgah, that he saw from thence the land which (the writer says) had been promised to Abraham, Isaac, and Jacob; that he, Moses, died there in the land of Moab, that he buried him in a valley in the land of Moab, but that no man knoweth of his sepulchre unto this day, that is unto the time in which the writer lived who wrote the book of Deuteronomy. The writer then tells us, that Moses was one hundred and ten years of age when he died—that his eye was not dim, nor his natural force abated; and he concludes by saying, that there arose not a prophet since in Israel like unto Moses, whom, says this anonymous writer, the Lord knew face to face.

Having thus shewn, as far as grammatical evidence implies, that Moses was not the writer of those books, I will, after making a few observations on the inconsistencies of the writer of the book of Deuteronomy, proceed to shew, from the historical and chronological evidence contained in those books, that Moses was not, because he could not be, the writer of them; and consequently, that there is no authority for believing that the inhuman and horrid butcheries of men, women, and children, told of in those books, were done, as those books say they were, at the command of God. It is a duty incumbent on every true deist, that he vindicates the moral justice of God against the calumnies of the Bible.

The writer of the book of Deuteronomy, whoever he was, for it is an anonymous work, is obscure, and also contradictory with himself in the account he has given of Moses.

After telling that Moses went to the top of Pisgah (and it does not appear from any account that he ever came down again) he tells us, that Moses died there in the land of Moab, and that he buried him in a valley in the land of Moab; but as there is no antecedent to the pronoun he, there is no knowing who he was, that did bury him. If the writer meant that he (God) buried him, how should he (the writer) know it? or why should we (the readers) believe him? since we know not who the writer was that tells us so, for certainly Moses could not himself tell where he was buried.

The writer also tells us, that no man knoweth where the sepulchre of Moses is unto this day, meaning the time in which this writer lived; how then should he know that Moses was buried in a valley in the land of Moab? for as the writer lived long after the time of Moses, as is evident from his using the expression of unto this day, meaning a great length of time after the death of Moses, he certainly was not at his funeral; and on the other hand, it is impossible that Moses himself could say that no man knoweth where the sepulchre is unto this day. To make Moses the speaker, would be an improvement on the play of a child that hides himself and cries nobody can find me; nobody can find Moses.

This writer has no where told us how he came by the speeches which he has put into the mouth of Moses to speak, and therefore we have a right to conclude that he either composed them himself, or wrote them from oral tradition. One or other of these is the more probable, since he has given, in the fifth chapter, a table of commandments, in which that called the fourth commandment is different from the fourth commandment in the twentieth chapter of Exodus. In that of Exodus, the reason given for keeping the seventh day is, because (says the commandment) God made the heavens and the earth in six days, and rested on the seventh; but in that of Deuteronomy, the reason given is, that it was the day on which the children of Israel came out of Egypt, and therefore, says this commandment, the Lord thy God commanded thee to kee the sabbath-day This makes no mention of the creation, nor that of the coming out of Egypt. There are also many things given as laws of Moses in this book, that are not to be found in any of the other books; among which is that inhuman and brutal law, xxi. 18, 19, 20, 21, which authorizes parents, the father and the mother, to bring their own children to have them stoned to death for what it pleased them to call stubbornness.—But priests have always been fond of preaching up Deuteronomy, for Deuteronomy preaches up tythes; and it is from this

book, xxv. 4, they have taken the phrase, and applied it to tything, that "thou shalt not muzzle the ox when he treadeth Out the corn:" and that this might not escape observation, they have noted it in the table of contents at the head of the chapter, though it is only a single verse of less than two lines. O priests! priests! ye are willing to be compared to an ox, for the sake of tythes. [An elegant pocket edition of Paine's Theological Works (London. R. Carlile, 1822) has in its title a picture of Paine, as a Moses in evening dress, unfolding the two tables of his "Age of Reason" to a farmer from whom the Bishop of Llandaff (who replied to this work) has taken a sheaf and a lamb which he is carrying to a church at the summit of a well stocked hill.—Editor.]—Though it is impossible for us to know identically who the writer of Deuteronomy was, it is not difficult to discover him professionally, that he was some Jewish priest, who lived, as I shall shew in the course of this work, at least three hundred and fifty years after the time of Moses.

I come now to speak of the historical and chronological evidence. The chronology that I shall use is the Bible chronology; for I mean not to go out of the Bible for evidence of any thing, but to make the Bible itself prove historically and chronologically that Moses is not the author of the books ascribed to him. It is therefore proper that I inform the readers (such an one at least as may not have the opportunity of knowing it) that in the larger Bibles, and also in some smaller ones, there is a series of chronology printed in the margin of every page for the purpose of showing how long the historical matters stated in each page happened, or are supposed to have happened, before Christ, and consequently the distance of time between one historical circumstance and another.

I begin with the book of Genesis.—In Genesis xiv., the writer gives an account of Lot being taken prisoner in a battle between the four kings against five, and carried off; and that when the account of Lot being taken came to Abraham, that he armed all his household and marched to rescue Lot from the captors; and that he pursued them unto Dan. (ver. 14.)

To shew in what manner this expression of Pursuing them unto Dan applies to the case in question, I will refer to two circumstances, the one in America, the other in France. The city now called New York, in America, was originally New Amsterdam; and the town in France, lately called Havre Marat, was before called Havre-de-Grace. New Amsterdam was changed to

New York in the year 1664; Havre-de-Grace to Havre Marat in the year 1793. Should, therefore, any writing be found, though without date, in which the name of New-York should be mentioned, it would be certain evidence that such a writing could not have been written before, and must have been written after New Amsterdam was changed to New York, and consequently not till after the year 1664, or at least during the course of that year. And in like manner, any dateless writing, with the name of Havre Marat, would be certain evidence that such a writing must have been written after Havre-de-Grace became Havre Marat, and consequently not till after the year 1793, or at least during the course of that year.

I now come to the application of those cases, and to show that there was no such place as Dan till many years after the death of Moses; and consequently, that Moses could not be the writer of the book of Genesis, where this account of pursuing them unto Dan is given.

The place that is called Dan in the Bible was originally a town of the Gentiles, called Laish; and when the tribe of Dan seized upon this town, they changed its name to Dan, in commemoration of Dan, who was the father of that tribe, and the great grandson of Abraham.

To establish this in proof, it is necessary to refer from Genesis to chapter xviii. of the book called the Book of judges. It is there said (ver. 27) that "they (the Danites) came unto Laish to a people that were quiet and secure, and they smote them with the edge of the sword [the Bible is filled with murder] and burned the city with fire; and they built a city, (ver. 28,) and dwelt therein, and [ver. 29,] they called the name of the city Dan, after the name of Dan, their father; howbeit the name of the city was Laish at the first."

This account of the Danites taking possession of Laish and changing it to Dan, is placed in the book of Judges immediately after the death of Samson. The death of Samson is said to have happened B.C. 1120 and that of Moses B.C. 1451; and, therefore, according to the historical arrangement, the place was not called Dan till 331 years after the death of Moses.

There is a striking confusion between the historical and the chronological arrangement in the book of judges. The last five chapters, as they stand in the book, 17, 18, 19, 20, 21, are put chronologically before all the preceding chapters; they are made to be 28 years before the 16th chapter, 266 before the 15th, 245 before the 13th, 195 before the 9th, go before the 4th, and 15

years before the 1st chapter. This shews the uncertain and fabulous state of the Bible. According to the chronological arrangement, the taking of Laish, and giving it the name of Dan, is made to be twenty years after the death of Joshua, who was the successor of Moses; and by the historical order, as it stands in the book, it is made to be 306 years after the death of Joshua, and 331 after that of Moses; but they both exclude Moses from being the writer of Genesis, because, according to either of the statements, no such a place as Dan existed in the time of Moses; and therefore the writer of Genesis must have been some person who lived after the town of Laish had the name of Dan; and who that person was nobody knows, and consequently the book of Genesis is anonymous, and without authority.

I come now to state another point of historical and chronological evidence, and to show therefrom, as in the preceding case, that Moses is not the author of the book of Genesis.

In Genesis xxxvi. there is given a genealogy of the sons and descendants of Esau, who are called Edomites, and also a list by name of the kings of Edom; in enumerating of which, it is said, verse 31, "And these are the kings that reigned in Edom, before there reigned any king over the children of Israel."

Now, were any dateless writing to be found, in which, speaking of any past events, the writer should say, these things happened before there was any Congress in America, or before there was any Convention in France, it would be evidence that such writing could not have been written before, and could only be written after there was a Congress in America or a Convention in France, as the case might be; and, consequently, that it could not be written by any person who died before there was a Congress in the one country, or a Convention in the other.

Nothing is more frequent, as well in history as in conversation, than to refer to a fact in the room of a date: it is most natural so to do, because a fact fixes itself in the memory better than a date; secondly, because the fact includes the date, and serves to give two ideas at once; and this manner of speaking by circumstances implies as positively that the fact alluded to is past, as if it was so expressed. When a person in speaking upon any matter, says, it was before I was married, or before my son was born, or before I went to America, or before I went to France, it is absolutely understood, and intended to be understood, that he has been married, that he has had a son,

that he has been in America, or been in France. Language does not admit of using this mode of expression in any other sense; and whenever such an expression is found anywhere, it can only be understood in the sense in which only it could have been used.

The passage, therefore, that I have quoted—that "these are the kings that reigned in Edom, before there reigned any king over the children of Israel," could only have been written after the first king began to reign over them; and consequently that the book of Genesis, so far from having been written by Moses, could not have been written till the time of Saul at least. This is the positive sense of the passage; but the expression, any king, implies more kings than one, at least it implies two, and this will carry it to the time of David; and, if taken in a general sense, it carries itself through all times of the Jewish monarchy.

Had we met with this verse in any part of the Bible that professed to have been written after kings began to reign in Israel, it would have been impossible not to have seen the application of it. It happens then that this is the case; the two books of Chronicles, which give a history of all the kings of Israel, are professedly, as well as in fact, written after the Jewish monarchy began; and this verse that I have quoted, and all the remaining verses of Genesis xxxvi. are, word for word, In 1 Chronicles i., beginning at the 43d verse.

It was with consistency that the writer of the Chronicles could say as he has said, 1 Chron. i. 43, "These are the kings that reigned in Edom, before there reigned any king over the children of Israel," because he was going to give, and has given, a list of the kings that had reigned in Israel; but as it is impossible that the same expression could have been used before that period, it is as certain as any thing can be proved from historical language, that this part of Genesis is taken from Chronicles, and that Genesis is not so old as Chronicles, and probably not so old as the book of Homer, or as AEsop's Fables; admitting Homer to have been, as the tables of chronology state, contemporary with David or Solomon, and AEsop to have lived about the end of the Jewish monarchy.

Take away from Genesis the belief that Moses was the author, on which only the strange belief that it is the word of God has stood, and there remains nothing of Genesis but an anonymous book of stories, fables, and traditionary or invented absurdities, or of downright lies. The story of Eve

and the serpent, and of Noah and his ark, drops to a level with the Arabian Tales, without the merit of being entertaining, and the account of men living to eight and nine hundred years becomes as fabulous as the immortality of the giants of the Mythology.

Besides, the character of Moses, as stated in the Bible, is the most horrid that can be imagined. If those accounts be true, he was the wretch that first began and carried on wars on the score or on the pretence of religion; and under that mask, or that infatuation, committed the most unexampled atrocities that are to be found in the history of any nation. Of which I will state only one instance:

When the Jewish army returned from one of their plundering and murdering excursions, the account goes on as follows (Numbers xxxi. 13): "And Moses, and Eleazar the priest, and all the princes of the congregation, went forth to meet them without the camp; and Moses was wroth with the officers of the host, with the captains over thousands, and captains over hundreds, which came from the battle; and Moses said unto them, 'Have ye saved all the women alive?' behold, these caused the children of Israel, through the counsel of Balaam, to commit trespass against the Lord in the matter of Peor, and there was a plague among the congregation of the Lord. Now therefore, 'kill every male among the little ones, and kill every woman that hath known a man by lying with him; but all the women-children that have not known a man by lying with him, keep alive for Yourselves.'"

Among the detestable villains that in any period of the world have disgraced the name of man, it is impossible to find a greater than Moses, if this account be true. Here is an order to butcher the boys, to massacre the mothers, and debauch the daughters.

Let any mother put herself in the situation of those mothers, one child murdered, another destined to violation, and herself in the hands of an executioner: let any daughter put herself in the situation of those daughters, destined as a prey to the murderers of a mother and a brother, and what will be their feelings? It is in vain that we attempt to impose upon nature, for nature will have her course, and the religion that tortures all her social ties is a false religion.

After this detestable order, follows an account of the plunder taken, and the manner of dividing it; and here it is that the profaneings of priestly hypocrisy increases the catalogue of crimes. Verse 37, "And the Lord's

tribute of the sheep was six hundred and threescore and fifteen; and the beeves were thirty and six thousand, of which the Lord's tribute was threescore and twelve; and the asses were thirty thousand, of which the Lord's tribute was threescore and one; and the persons were sixteen thousand, of which the Lord's tribute was thirty and two." In short, the matters contained in this chapter, as well as in many other parts of the Bible, are too horrid for humanity to read, or for decency to hear; for it appears, from the 35th verse of this chapter, that the number of women-children consigned to debauchery by the order of Moses was thirty-two thousand.

People in general know not what wickedness there is in this pretended word of God. Brought up in habits of superstition, they take it for granted that the Bible is true, and that it is good; they permit themselves not to doubt of it, and they carry the ideas they form of the benevolence of the Almighty to the book which they have been taught to believe was written by his authority. Good heavens! it is quite another thing, it is a book of lies, wickedness, and blasphemy; for what can be greater blasphemy, than to ascribe the wickedness of man to the orders of the Almighty!

But to return to my subject, that of showing that Moses is not the author of the books ascribed to him, and that the Bible is spurious. The two instances I have already given would be sufficient, without any additional evidence, to invalidate the authenticity of any book that pretended to be four or five hundred years more ancient than the matters it speaks of, refers to, them as facts; for in the case of pursuing them unto Dan, and of the kings that reigned over the children of Israel; not even the flimsy pretence of prophecy can be pleaded. The expressions are in the preter tense, and it would be downright idiotism to say that a man could prophecy in the preter tense.

But there are many other passages scattered throughout those books that unite in the same point of evidence. It is said in Exodus, (another of the books ascribed to Moses,) xvi. 35: "And the children of Israel did eat manna until they came to a land inhabited; they did eat manna until they came unto the borders of the land of Canaan."

Whether the children of Israel ate manna or not, or what manna was, or whether it was anything more than a kind of fungus or small mushroom, or other vegetable substance common to that part of the country, makes no part

of my argument; all that I mean to show is, that it is not Moses that could write this account, because the account extends itself beyond the life time of Moses. Moses, according to the Bible, (but it is such a book of lies and contradictions there is no knowing which part to believe, or whether any) died in the wilderness, and never came upon the borders of 'the land of Canaan; and consequently, it could not be he that said what the children of Israel did, or what they ate when they came there. This account of eating manna, which they tell us was written by Moses, extends itself to the time of Joshua, the successor of Moses, as appears by the account given in the book of Joshua, after the children of Israel had passed the river Jordan, and came into the borders of the land of Canaan. Joshua, v. 12: "And the manna ceased on the morrow, after they had eaten of the old corn of the land; neither had the children of Israel manna any more, but they did eat of the fruit of the land of Canaan that year."

But a more remarkable instance than this occurs in Deuteronomy; which, while it shows that Moses could not be the writer of that book, shows also the fabulous notions that prevailed at that time about giants' In Deuteronomy iii. 11, among the conquests said to be made by Moses, is an account of the taking of Og, king of Bashan: "For only Og, king of Bashan, remained of the race of giants; behold, his bedstead was a bedstead of iron; is it not in Rabbath of the children of Ammon? nine cubits was the length thereof, and four cubits the breadth of it, after the cubit of a man." A cubit is 1 foot 9 888/1000 inches; the length therefore of the bed was 16 feet 4 inches, and the breadth 7 feet 4 inches: thus much for this giant's bed. Now for the historical part, which, though the evidence is not so direct and positive as in the former cases, is nevertheless very presumable and corroborating evidence, and is better than the best evidence on the contrary side.

The writer, by way of proving the existence of this giant, refers to his bed, as an ancient relick, and says, is it not in Rabbath (or Rabbah) of the children of Ammon? meaning that it is; for such is frequently the bible method of affirming a thing. But it could not be Moses that said this, because Moses could know nothing about Rabbah, nor of what was in it. Rabbah was not a city belonging to this giant king, nor was it one of the cities that Moses took. The knowledge therefore that this bed was at Rabbah, and of the particulars of its dimensions, must be referred to the time when Rabbah was taken, and this was not till four hundred years after

the death of Moses; for which, see 2 Sam. xii. 26: "And Joab [David's general] fought against Rabbah of the children of Ammon, and took the royal city," etc.

As I am not undertaking to point out all the contradictions in time, place, and circumstance that abound in the books ascribed to Moses, and which prove to demonstration that those books could not be written by Moses, nor in the time of Moses, I proceed to the book of Joshua, and to shew that Joshua is not the author of that book, and that it is anonymous and without authority. The evidence I shall produce is contained in the book itself: I will not go out of the Bible for proof against the supposed authenticity of the Bible. False testimony is always good against itself.

Joshua, according to Joshua i., was the immediate successor of Moses; he was, moreover, a military man, which Moses was not; and he continued as chief of the people of Israel twenty-five years; that is, from the time that Moses died, which, according to the Bible chronology, was B.C. 1451, until B.C. 1426, when, according to the same chronology, Joshua died. If, therefore, we find in this book, said to have been written by Joshua, references to facts done after the death of Joshua, it is evidence that Joshua could not be the author; and also that the book could not have been written till after the time of the latest fact which it records. As to the character of the book, it is horrid; it is a military history of rapine and murder, as savage and brutal as those recorded of his predecessor in villainy and hypocrisy, Moses; and the blasphemy consists, as in the former books, in ascribing those deeds to the orders of the Almighty.

In the first place, the book of Joshua, as is the case in the preceding books, is written in the third person; it is the historian of Joshua that speaks, for it would have been absurd and vainglorious that Joshua should say of himself, as is said of him in the last verse of the sixth chapter, that "his fame was noised throughout all the country."—I now come more immediately to the proof.

In Joshua xxiv. 31, it is said "And Israel served the Lord all the days of Joshua, and all the days of the elders that over-lived Joshua." Now, in the name of common sense, can it be Joshua that relates what people had done after he was dead? This account must not only have been written by some historian that lived after Joshua, but that lived also after the elders that out-lived Joshua.

There are several passages of a general meaning with respect to time, scattered throughout the book of Joshua, that carries the time in which the book was written to a distance from the time of Joshua, but without marking by exclusion any particular time, as in the passage above quoted. In that passage, the time that intervened between the death of Joshua and the death of the elders is excluded descriptively and absolutely, and the evidence substantiates that the book could not have been written till after the death of the last.

But though the passages to which I allude, and which I am going to quote, do not designate any particular time by exclusion, they imply a time far more distant from the days of Joshua than is contained between the death of Joshua and the death of the elders. Such is the passage, x. 14, where, after giving an account that the sun stood still upon Gibeon, and the moon in the valley of Ajalon, at the command of Joshua, (a tale only fit to amuse children) [NOTE: This tale of the sun standing still upon Motint Gibeon, and the moon in the valley of Ajalon, is one of those fables that detects itself. Such a circumstance could not have happened without being known all over the world. One half would have wondered why the sun did not rise, and the other why it did not set; and the tradition of it would be universal; whereas there is not a nation in the world that knows anything about it. But why must the moon stand still? What occasion could there be for moonlight in the daytime, and that too whilst the sun shined? As a poetical figure, the whole is well enough; it is akin to that in the song of Deborah and Barak, The stars in their courses fought against Sisera; but it is inferior to the figurative declaration of Mahomet to the persons who came to expostulate with him on his goings on, Wert thou, said he, to come to me with the sun in thy right hand and the moon in thy left, it should not alter my career. For Joshua to have exceeded Mahomet, he should have put the sun and moon, one in each pocket, and carried them as Guy Faux carried his dark lanthorn, and taken them out to shine as he might happen to want them. The sublime and the ridiculous are often so nearly related that it is difficult to class them separately. One step above the sublime makes the ridiculous, and one step above the ridiculous makes the sublime again; the account, however, abstracted from the poetical fancy, shews the ignorance of Joshua, for he should have commanded the earth to have stood still.—Author.] the passage says: "And there was no day like that, before it, nor after it, that the Lord hearkened to the voice of a man."

The time implied by the expression after it, that is, after that day, being put in comparison with all the time that passed before it, must, in order to give any expressive signification to the passage, mean a great length of time:—for example, it would have been ridiculous to have said so the next day, or the next week, or the next month, or the next year; to give therefore meaning to the passage, comparative with the wonder it relates, and the prior time it alludes to, it must mean centuries of years; less however than one would be trifling, and less than two would be barely admissible.

A distant, but general time is also expressed in chapter viii.; where, after giving an account of the taking the city of Ai, it is said, ver. 28th, "And Joshua burned Ai, and made it an heap for ever, a desolation unto this day;" and again, ver. 29, where speaking of the king of Ai, whom Joshua had hanged, and buried at the entering of the gate, it is said, "And he raised thereon a great heap of stones, which remaineth unto this day," that is, unto the day or time in which the writer of the book of Joshua lived. And again, in chapter x. where, after speaking of the five kings whom Joshua had hanged on five trees, and then thrown in a cave, it is said, "And he laid great stones on the cave's mouth, which remain unto this very day."

In enumerating the several exploits of Joshua, and of the tribes, and of the places which they conquered or attempted, it is said, xv. 63, "As for the Jebusites, the inhabitants of Jerusalem, the children of Judah could not drive them out; but the Jebusites dwell with the children of Judah AT JERUSALEM unto this day." The question upon this passage is, At what time did the Jebusites and the children of Judah dwell together at Jerusalem? As this matter occurs again in judges i. I shall reserve my observations till I come to that part.

Having thus shewn from the book of Joshua itself, without any auxiliary evidence whatever, that Joshua is not the author of that book, and that it is anonymous, and consequently without authority, I proceed, as before-mentioned, to the book of Judges.

The book of Judges is anonymous on the face of it; and, therefore, even the pretence is wanting to call it the word of God; it has not so much as a nominal voucher; it is altogether fatherless.

This book begins with the same expression as the book of Joshua. That of Joshua begins, chap i. 1, Now after the death of Moses, etc., and this of the Judges begins, Now after the death of Joshua, etc. This, and the similarity

of stile between the two books, indicate that they are the work of the same author; but who he was, is altogether unknown; the only point that the book proves is that the author lived long after the time of Joshua; for though it begins as if it followed immediately after his death, the second chapter is an epitome or abstract of the whole book, which, according to the Bible chronology, extends its history through a space of 306 years; that is, from the death of Joshua, B.C. 1426 to the death of Samson, B.C. 1120, and only 25 years before Saul went to seek his father's asses, and was made king. But there is good reason to believe, that it was not written till the time of David, at least, and that the book of Joshua was not written before the same time.

In Judges i., the writer, after announcing the death of Joshua, proceeds to tell what happened between the children of Judah and the native inhabitants of the land of Canaan. In this statement the writer, having abruptly mentioned Jerusalem in the 7th verse, says immediately after, in the 8th verse, by way of explanation, "Now the children of Judah had fought against Jerusalem, and taken it;" consequently this book could not have been written before Jerusalem had been taken. The reader will recollect the quotation I have just before made from Joshua xv. 63, where it said that the Jebusites dwell with the children of Judah at Jerusalem at this day; meaning the time when the book of Joshua was written.

The evidence I have already produced to prove that the books I have hitherto treated of were not written by the persons to whom they are ascribed, nor till many years after their death, if such persons ever lived, is already so abundant, that I can afford to admit this passage with less weight than I am entitled to draw from it. For the case is, that so far as the Bible can be credited as an history, the city of Jerusalem was not taken till the time of David; and consequently, that the book of Joshua, and of Judges, were not written till after the commencement of the reign of David, which was 370 years after the death of Joshua.

The name of the city that was afterward called Jerusalem was originally Jebus, or Jebusi, and was the capital of the Jebusites. The account of David's taking this city is given in 2 Samuel, v. 4, etc.; also in 1 Chron. xiv. 4, etc. There is no mention in any part of the Bible that it was ever taken before, nor any account that favours such an opinion. It is not said, either in Samuel or in Chronicles, that they "utterly destroyed men, women and children, that they left not a soul to breathe," as is said of their other

conquests; and the silence here observed implies that it was taken by capitulation; and that the Jebusites, the native inhabitants, continued to live in the place after it was taken. The account therefore, given in Joshua, that "the Jebusites dwell with the children of Judah" at Jerusalem at this day, corresponds to no other time than after taking the city by David.

Having now shown that every book in the Bible, from Genesis to Judges, is without authenticity, I come to the book of Ruth, an idle, bungling story, foolishly told, nobody knows by whom, about a strolling country-girl creeping slyly to bed to her cousin Boaz. [The text of Ruth does not imply the unpleasant sense Paine's words are likely to convey.—Editor.] Pretty stuff indeed to be called the word of God. It is, however, one of the best books in the Bible, for it is free from murder and rapine.

I come next to the two books of Samuel, and to shew that those books were not written by Samuel, nor till a great length of time after the death of Samuel; and that they are, like all the former books, anonymous, and without authority.

To be convinced that these books have been written much later than the time of Samuel, and consequently not by him, it is only necessary to read the account which the writer gives of Saul going to seek his father's asses, and of his interview with Samuel, of whom Saul went to enquire about those lost asses, as foolish people now-a-days go to a conjuror to enquire after lost things.

The writer, in relating this story of Saul, Samuel, and the asses, does not tell it as a thing that had just then happened, but as an ancient story in the time this writer lived; for he tells it in the language or terms used at the time that Samuel lived, which obliges the writer to explain the story in the terms or language used in the time the writer lived.

Samuel, in the account given of him in the first of those books, chap. ix. 13 called the seer; and it is by this term that Saul enquires after him, ver. 11, "And as they [Saul and his servant] went up the hill to the city, they found young maidens going out to draw water; and they said unto them, Is the seer here?" Saul then went according to the direction of these maidens, and met Samuel without knowing him, and said unto him, ver. 18, "Tell me, I pray thee, where the seer's house is? and Samuel answered Saul, and said, I am the seer."

As the writer of the book of Samuel relates these questions and answers, in the language or manner of speaking used in the time they are said to have been spoken, and as that manner of speaking was out of use when this author wrote, he found it necessary, in order to make the story understood, to explain the terms in which these questions and answers are spoken; and he does this in the 9th verse, where he says, "Before-time in Israel, when a man went to enquire of God, thus he spake, Come let us go to the seer; for he that is now called a prophet, was before-time called a seer." This proves, as I have before said, that this story of Saul, Samuel, and the asses, was an ancient story at the time the book of Samuel was written, and consequently that Samuel did not write it, and that the book is without authenticity.

But if we go further into those books the evidence is still more positive that Samuel is not the writer of them; for they relate things that did not happen till several years after the death of Samuel. Samuel died before Saul; for i Samuel, xxviii. tells, that Saul and the witch of Endor conjured Samuel up after he was dead; yet the history of matters contained in those books is extended through the remaining part of Saul's life, and to the latter end of the life of David, who succeeded Saul. The account of the death and burial of Samuel (a thing which he could not write himself) is related in i Samuel xxv.; and the chronology affixed to this chapter makes this to be B.C. 1060; yet the history of this first book is brought down to B.C. 1056, that is, to the death of Saul, which was not till four years after the death of Samuel.

The second book of Samuel begins with an account of things that did not happen till four years after Samuel was dead; for it begins with the reign of David, who succeeded Saul, and it goes on to the end of David's reign, which was forty-three years after the death of Samuel; and, therefore, the books are in themselves positive evidence that they were not written by Samuel.

I have now gone through all the books in the first part of the Bible, to which the names of persons are affixed, as being the authors of those books, and which the church, styling itself the Christian church, have imposed upon the world as the writings of Moses, Joshua and Samuel; and I have detected and proved the falsehood of this imposition.—And now ye priests, of every description, who have preached and written against the former part of the 'Age of Reason,' what have ye to say? Will ye with all this mass of

evidence against you, and staring you in the face, still have the assurance to march into your pulpits, and continue to impose these books on your congregations, as the works of inspired penmen and the word of God? when it is as evident as demonstration can make truth appear, that the persons who ye say are the authors, are not the authors, and that ye know not who the authors are. What shadow of pretence have ye now to produce for continuing the blasphemous fraud? What have ye still to offer against the pure and moral religion of deism, in support of your system of falsehood, idolatry, and pretended revelation? Had the cruel and murdering orders, with which the Bible is filled, and the numberless torturing executions of men, women, and children, in consequence of those orders, been ascribed to some friend, whose memory you revered, you would have glowed with satisfaction at detecting the falsehood of the charge, and gloried in defending his injured fame. It is because ye are sunk in the cruelty of superstition, or feel no interest in the honour of your Creator, that ye listen to the horrid tales of the Bible, or hear them with callous indifference. The evidence I have produced, and shall still produce in the course of this work, to prove that the Bible is without authority, will, whilst it wounds the stubbornness of a priest, relieve and tranquillize the minds of millions: it will free them from all those hard thoughts of the Almighty which priestcraft and the Bible had infused into their minds, and which stood in everlasting opposition to all their ideas of his moral justice and benevolence.

I come now to the two books of Kings, and the two books of Chronicles.—Those books are altogether historical, and are chiefly confined to the lives and actions of the Jewish kings, who in general were a parcel of rascals: but these are matters with which we have no more concern than we have with the Roman emperors, or Homer's account of the Trojan war. Besides which, as those books are anonymous, and as we know nothing of the writer, or of his character, it is impossible for us to know what degree of credit to give to the matters related therein. Like all other ancient histories, they appear to be a jumble of fable and of fact, and of probable and of improbable things, but which distance of time and place, and change of circumstances in the world, have rendered obsolete and uninteresting.

The chief use I shall make of those books will be that of comparing them with each other, and with other parts of the Bible, to show the confusion, contradiction, and cruelty in this pretended word of God.

The first book of Kings begins with the reign of Solomon, which, according to the Bible chronology, was B.C. 1015; and the second book ends B.C. 588, being a little after the reign of Zedekiah, whom Nebuchadnezzar, after taking Jerusalem and conquering the Jews, carried captive to Babylon. The two books include a space of 427 years.

The two books of Chronicles are an history of the same times, and in general of the same persons, by another author; for it would be absurd to suppose that the same author wrote the history twice over. The first book of Chronicles (after giving the genealogy from Adam to Saul, which takes up the first nine chapters) begins with the reign of David; and the last book ends, as in the last book of Kings, soon, after the reign of Zedekiah, about B.C. 588. The last two verses of the last chapter bring the history 52 years more forward, that is, to 536. But these verses do not belong to the book, as I shall show when I come to speak of the book of Ezra.

The two books of Kings, besides the history of Saul, David, and Solomon, who reigned over all Israel, contain an abstract of the lives of seventeen kings, and one queen, who are stiled kings of Judah; and of nineteen, who are stiled kings of Israel; for the Jewish nation, immediately on the death of Solomon, split into two parties, who chose separate kings, and who carried on most rancorous wars against each other.

These two books are little more than a history of assassinations, treachery, and wars. The cruelties that the Jews had accustomed themselves to practise on the Canaanites, whose country they had savagely invaded, under a pretended gift from God, they afterwards practised as furiously on each other. Scarcely half their kings died a natural death, and in some instances whole families were destroyed to secure possession to the successor, who, after a few years, and sometimes only a few months, or less, shared the same fate. In 2 Kings x., an account is given of two baskets full of children's heads, seventy in number, being exposed at the entrance of the city; they were the children of Ahab, and were murdered by the orders of Jehu, whom Elisha, the pretended man of God, had anointed to be king over Israel, on purpose to commit this bloody deed, and assassinate his predecessor. And in the account of the reign of Menahem, one of the kings of Israel who had murdered Shallum, who had reigned but one month, it is said, 2 Kings xv. 16, that Menahem smote the city of Tiphshah, because they

opened not the city to him, and all the women therein that were with child he ripped up.

Could we permit ourselves to suppose that the Almighty would distinguish any nation of people by the name of his chosen people, we must suppose that people to have been an example to all the rest of the world of the purest piety and humanity, and not such a nation of ruffians and cut-throats as the ancient Jews were,—a people who, corrupted by and copying after such monsters and imposters as Moses and Aaron, Joshua, Samuel, and David, had distinguished themselves above all others on the face of the known earth for barbarity and wickedness. If we will not stubbornly shut our eyes and steel our hearts it is impossible not to see, in spite of all that long-established superstition imposes upon the mind, that the flattering appellation of his chosen people is no other than a LIE which the priests and leaders of the Jews had invented to cover the baseness of their own characters; and which Christian priests sometimes as corrupt, and often as cruel, have professed to believe.

The two books of Chronicles are a repetition of the same crimes; but the history is broken in several places, by the author leaving out the reign of some of their kings; and in this, as well as in that of Kings, there is such a frequent transition from kings of Judah to kings of Israel, and from kings of Israel to kings of Judah, that the narrative is obscure in the reading. In the same book the history sometimes contradicts itself: for example, in 2 Kings, i. 17, we are told, but in rather ambiguous terms, that after the death of Ahaziah, king of Israel, Jehoram, or Joram, (who was of the house of Ahab), reigned in his stead in the second Year of Jehoram, or Joram, son of Jehoshaphat, king of Judah; and in viii. 16, of the same book, it is said, "And in the fifth year of Joram, the son of Ahab, king of Israel, Jehoshaphat being then king of Judah, Jehoram, the son of Jehoshaphat king of judah, began to reign." That is, one chapter says Joram of Judah began to reign in the second year of Joram of Israel; and the other chapter says, that Joram of Israel began to reign in the fifth year of Joram of Judah.

Several of the most extraordinary matters related in one history, as having happened during the reign of such or such of their kings, are not to be found in the other, in relating the reign of the same king: for example, the two first rival kings, after the death of Solomon, were Rehoboam and Jeroboam; and in i Kings xii. and xiii. an account is given of Jeroboam

making an offering of burnt incense, and that a man, who is there called a man of God, cried out against the altar (xiii. 2): "O altar, altar! thus saith the Lord: Behold, a child shall be born unto the house of David, Josiah by name, and upon thee shall he offer the priests of the high places that burn incense upon thee, and men's bones shall be burned upon thee." Verse 4: "And it came to pass, when king Jeroboam heard the saying of the man of God, which had cried against the altar in Bethel, that he put forth his hand from the altar, saying, Lay hold on him; and his hand which he put out against him dried up so that he could not pull it again to him."

One would think that such an extraordinary case as this, (which is spoken of as a judgement,) happening to the chief of one of the parties, and that at the first moment of the separation of the Israelites into two nations, would, if it, had been true, have been recorded in both histories. But though men, in later times, have believed all that the prophets have said unto them, it does appear that those prophets, or historians, disbelieved each other: they knew each other too well.

A long account also is given in Kings about Elijah. It runs through several chapters, and concludes with telling, 2 Kings ii. 11, "And it came to pass, as they (Elijah and Elisha) still went on, and talked, that, behold, there appeared a chariot of fire and horses of fire, and parted them both asunder, and Elijah went up by a whirlwind into heaven." Hum! this the author of Chronicles, miraculous as the story is, makes no mention of, though he mentions Elijah by name; neither does he say anything of the story related in the second chapter of the same book of Kings, of a parcel of children calling Elisha bald head; and that this man of God (ver. 24) "turned back, and looked upon them, and cursed them in the name of the Lord; and there came forth two she-bears out of the wood, and tare forty and two children of them." He also passes over in silence the story told, 2 Kings xiii., that when they were burying a man in the sepulchre where Elisha had been buried, it happened that the dead man, as they were letting him down, (ver. 21) "touched the bones of Elisha, and he (the dead man) revived, and stood up on his feet." The story does not tell us whether they buried the man, notwithstanding he revived and stood upon his feet, or drew him up again. Upon all these stories the writer of the Chronicles is as silent as any writer of the present day, who did not chose to be accused of lying, or at least of romancing, would be about stories of the same kind.

But, however these two historians may differ from each other with respect to the tales related by either, they are silent alike with respect to those men styled prophets whose writings fill up the latter part of the Bible. Isaiah, who lived in the time of Hezekiab, is mentioned in Kings, and again in Chronicles, when these histories are speaking of that reign; but except in one or two instances at most, and those very slightly, none of the rest are so much as spoken of, or even their existence hinted at; though, according to the Bible chronology, they lived within the time those histories were written; and some of them long before. If those prophets, as they are called, were men of such importance in their day, as the compilers of the Bible, and priests and commentators have since represented them to be, how can it be accounted for that not one of those histories should say anything about them?

The history in the books of Kings and of Chronicles is brought forward, as I have already said, to the year B.C. 588; it will, therefore, be proper to examine which of these prophets lived before that period.

Here follows a table of all the prophets, with the times in which they lived before Christ, according to the chronology affixed to the first chapter of each of the books of the prophets; and also of the number of years they lived before the books of Kings and Chronicles were written:

TABLE of the Prophets, with the time in which they lived before Christ, and also before the books of Kings and Chronicles were written:

<i>NAMES.</i>	<i>Years before Christ.</i>	<i>Years before Kings and Chronicles.</i>	<i>Observations.</i>
<i>Isaiah.....</i>	<i>760</i>	<i>172</i>	<i>mentioned.</i>
<i>Jeremiah.....</i>	<i>629</i>	<i>41</i>	<i>(mentioned only in the last [two] chapters of Chronicles.</i>
<i>Ezekiel.....</i>	<i>595</i>	<i>7</i>	<i>not mentioned.</i>
<i>Daniel.....</i>	<i>607</i>	<i>19</i>	<i>not mentioned.</i>
<i>Hosea.....</i>	<i>785</i>	<i>97</i>	<i>not mentioned.</i>
<i>Joel.....</i>	<i>800</i>	<i>212</i>	<i>not mentioned.</i>
<i>Amos.....</i>	<i>789</i>	<i>199</i>	<i>not mentioned.</i>
<i>Obadiah.....</i>	<i>789</i>	<i>199</i>	<i>not mentioned.</i>

<i>Jonah</i>	862	274	<i>see the note.</i>
<i>Micah</i>	750	162	<i>not mentioned.</i>
<i>Nahum</i>	713	125	<i>not mentioned.</i>
<i>Habakkuk</i>	620	38	<i>not mentioned.</i>
<i>Zepbaniah</i>	630	42	<i>not mentioned.</i>

Haggai Zechariah all three after the year 588 Medachi [NOTE In 2 Kings xiv. 25, the name of Jonah is mentioned on account of the restoration of a tract of land by Jeroboam; but nothing further is said of him, nor is any allusion made to the book of Jonah, nor to his expedition to Nineveh, nor to his encounter with the whale.—Author.]

This table is either not very honourable for the Bible historians, or not very honourable for the Bible prophets; and I leave to priests and commentators, who are very learned in little things, to settle the point of etiquette between the two; and to assign a reason, why the authors of Kings and of Chronicles have treated those prophets, whom, in the former part of the 'Age of Reason,' I have considered as poets, with as much degrading silence as any historian of the present day would treat Peter Pindar.

I have one more observation to make on the book of Chronicles; after which I shall pass on to review the remaining books of the Bible.

In my observations on the book of Genesis, I have quoted a passage from xxxvi. 31, which evidently refers to a time, after that kings began to reign over the children of Israel; and I have shown that as this verse is verbatim the same as in 1 Chronicles i. 43, where it stands consistently with the order of history, which in Genesis it does not, that the verse in Genesis, and a great part of the 36th chapter, have been taken from Chronicles; and that the book of Genesis, though it is placed first in the Bible, and ascribed to Moses, has been manufactured by some unknown person, after the book of Chronicles was written, which was not until at least eight hundred and sixty years after the time of Moses.

The evidence I proceed by to substantiate this, is regular, and has in it but two stages. First, as I have already stated, that the passage in Genesis refers itself for time to Chronicles; secondly, that the book of Chronicles, to which this passage refers itself, was not begun to be written until at least eight hundred and sixty years after the time of Moses. To prove this, we have only to look into 1 Chronicles iii. 15, where the writer, in giving the

genealogy of the descendants of David, mentions Zedekiah; and it was in the time of Zedekiah that Nebuchadnezzar conquered Jerusalem, B.C. 588, and consequently more than 860 years after Moses. Those who have superstitiously boasted of the antiquity of the Bible, and particularly of the books ascribed to Moses, have done it without examination, and without any other authority than that of one credulous man telling it to another: for, so far as historical and chronological evidence applies, the very first book in the Bible is not so ancient as the book of Homer, by more than three hundred years, and is about the same age with AEsop's Fables.

I am not contending for the morality of Homer; on the contrary, I think it a book of false glory, and tending to inspire immoral and mischievous notions of honour; and with respect to AEsop, though the moral is in general just, the fable is often cruel; and the cruelty of the fable does more injury to the heart, especially in a child, than the moral does good to the judgment.

Having now dismissed Kings and Chronicles, I come to the next in course, the book of Ezra.

As one proof, among others I shall produce to shew the disorder in which this pretended word of God, the Bible, has been put together, and the uncertainty of who the authors were, we have only to look at the first three verses in Ezra, and the last two in 2 Chronicles; for by what kind of cutting and shuffling has it been that the first three verses in Ezra should be the last two verses in 2 Chronicles, or that the last two in 2 Chronicles should be the first three in Ezra? Either the authors did not know their own works or the compilers did not know the authors.

Last Two Verses of 2 Chronicles.

Ver. 22. Now in the first year of Cyrus, King of Persia, that the word of the Lord, spoken by the mouth of Jeremiah, might be accomplished, the Lord stirred up the spirit of Cyrus, king of Persia, that he made a proclamation throughout all his kingdom, and put it also in writing, saying.

earth hath the Lord God of heaven given me; and he hath charged me to build him an house in Jerusalem which is in Judah. Who is there among you of all his people? the Lord his God be with him, and let him go up. ***

First Three Verses of Ezra.

Ver. 1. Now in the first year of Cyrus, king of Persia, that the word of the Lord, by the mouth of Jeremiah, might be fulfilled, the Lord stirred up the spirit of Cyrus, king of Persia, that he made a proclamation throughout all his kingdom, and put it also in writing, saying.

2. Thus saith Cyrus, king of Persia, The Lord God of heaven hath given me all the kingdoms of the earth; and he hath charged me to build him an house at Jerusalem, which is in Judah.

3. Who is there among you of all his people? his God be with him, and let him go up to Jerusalem, which is in Judah, and build the house of the Lord God of Israel (he is the God) which is in Jerusalem.

*** The last verse in Chronicles is broken abruptly, and ends in the middle of the phrase with the word 'up' without signifying to what place. This abrupt break, and the appearance of the same verses in different books, show as I have already said, the disorder and ignorance in which the Bible has been put together, and that the compilers of it had no authority for what they were doing, nor we any authority for believing what they have done. [NOTE I observed, as I passed along, several broken and senseless passages in the Bible, without thinking them of consequence enough to be introduced in the body of the work; such as that, 1 Samuel xiii. 1, where it is said, "Saul reigned one year; and when he had reigned two years over Israel, Saul chose him three thousand men," &c. The first part of the verse, that Saul reigned one year has no sense, since it does not tell us what Saul did, nor say any thing of what happened at the end of that one year; and it is, besides, mere absurdity to say he reigned one year, when the very next phrase says he had reigned two for if he had reigned two, it was impossible not to have reigned one.

Another instance occurs in Joshua v. where the writer tells us a story of an angel (for such the table of contents at the head of the chapter calls him) appearing unto Joshua; and the story ends abruptly, and without any conclusion. The story is as follows:—Ver. 13. "And it came to pass, when Joshua was by Jericho, that he lifted up his eyes and looked, and behold there stood a man over against him with his sword drawn in his hand; and Joshua went unto him and said unto him, Art thou for us, or for our adversaries?" Verse 14, "And he said, Nay; but as captain of the host of the Lord am I now come. And Joshua fell on his face to the earth, and did worship and said unto him, What saith my Lord unto his servant?" Verse 15,

"And the captain of the Lord's host said unto Joshua, Loose thy shoe from off thy foot; for the place whereon thou standest is holy. And Joshua did so."—And what then? nothing: for here the story ends, and the chapter too.

Either this story is broken off in the middle, or it is a story told by some Jewish humourist in ridicule of Joshua's pretended mission from God, and the compilers of the Bible, not perceiving the design of the story, have told it as a serious matter. As a story of humour and ridicule it has a great deal of point; for it pompously introduces an angel in the figure of a man, with a drawn sword in his hand, before whom Joshua falls on his face to the earth, and worships (which is contrary to their second commandment;) and then, this most important embassy from heaven ends in telling Joshua to pull off his shoe. It might as well have told him to pull up his breeches.

It is certain, however, that the Jews did not credit every thing their leaders told them, as appears from the cavalier manner in which they speak of Moses, when he was gone into the mount. As for this Moses, say they, we wot not what is become of him. Exod. xxxii. 1.—Author.

The only thing that has any appearance of certainty in the book of Ezra is the time in which it was written, which was immediately after the return of the Jews from the Babylonian captivity, about B.C. 536. Ezra (who, according to the Jewish commentators, is the same person as is called Esdras in the Apocrypha) was one of the persons who returned, and who, it is probable, wrote the account of that affair. Nehemiah, whose book follows next to Ezra, was another of the returned persons; and who, it is also probable, wrote the account of the same affair, in the book that bears his name. But those accounts are nothing to us, nor to any other person, unless it be to the Jews, as a part of the history of their nation; and there is just as much of the word of God in those books as there is in any of the histories of France, or Rapin's history of England, or the history of any other country.

But even in matters of historical record, neither of those writers are to be depended upon. In Ezra ii., the writer gives a list of the tribes and families, and of the precise number of souls of each, that returned from Babylon to Jerusalem; and this enrolment of the persons so returned appears to have been one of the principal objects for writing the book; but in this there is an error that destroys the intention of the undertaking.

The writer begins his enrolment in the following manner (ii. 3): "The children of Parosh, two thousand one hundred seventy and four." Ver. 4,

"The children of Shephatiah, three hundred seventy and two." And in this manner he proceeds through all the families; and in the 64th verse, he makes a total, and says, the whole congregation together was forty and two thousand three hundred and threescore.

But whoever will take the trouble of casting up the several particulars, will find that the total is but 29,818; so that the error is 12,542. What certainty then can there be in the Bible for any thing?

[Here Mr. Paine includes the long list of numbers from the Bible of all the children listed and the total thereof. This can be had directly from the Bible.]

Nehemiah, in like manner, gives a list of the returned families, and of the number of each family. He begins as in Ezra, by saying (vii. 8): "The children of Parosh, two thousand three hundred and seventy-two;" and so on through all the families. (The list differs in several of the particulars from that of Ezra.) In ver. 66, Nehemiah makes a total, and says, as Ezra had said, "The whole congregation together was forty and two thousand three hundred and threescore." But the particulars of this list make a total but of 31,089, so that the error here is 11,271. These writers may do well enough for Bible-makers, but not for any thing where truth and exactness is necessary.

The next book in course is the book of Esther. If Madam Esther thought it any honour to offer herself as a kept mistress to Ahasuerus, or as a rival to Queen Vashti, who had refused to come to a drunken king in the midst of a drunken company, to be made a show of, (for the account says, they had been drinking seven days, and were merry,) let Esther and Mordecai look to that, it is no business of ours, at least it is none of mine; besides which, the story has a great deal the appearance of being fabulous, and is also anonymous. I pass on to the book of Job.

The book of Job differs in character from all the books we have hitherto passed over. Treachery and murder make no part of this book; it is the meditations of a mind strongly impressed with the vicissitudes of human life, and by turns sinking under, and struggling against the pressure. It is a highly wrought composition, between willing submission and involuntary discontent; and shows man, as he sometimes is, more disposed to be resigned than he is capable of being. Patience has but a small share in the character of the person of whom the book treats; on the contrary, his grief is

often impetuous; but he still endeavours to keep a guard upon it, and seems determined, in the midst of accumulating ills, to impose upon himself the hard duty of contentment.

I have spoken in a respectful manner of the book of Job in the former part of the 'Age of Reason,' but without knowing at that time what I have learned since; which is, that from all the evidence that can be collected, the book of Job does not belong to the Bible.

I have seen the opinion of two Hebrew commentators, Abenezra and Spinoza, upon this subject; they both say that the book of Job carries no internal evidence of being an Hebrew book; that the genius of the composition, and the drama of the piece, are not Hebrew; that it has been translated from another language into Hebrew, and that the author of the book was a Gentile; that the character represented under the name of Satan (which is the first and only time this name is mentioned in the Bible) [In a later work Paine notes that in "the Bible" (by which he always means the Old Testament alone) the word Satan occurs also in 1 Chron. xxi. 1, and remarks that the action there ascribed to Satan is in 2 Sam. xxiv. 1, attributed to Jehovah ("Essay on Dreams"). In these places, however, and in Ps. cix. 6, Satan means "adversary," and is so translated (A.S. version) in 2 Sam. xix. 22, and 1 Kings v. 4, xi. 25. As a proper name, with the article, Satan appears in the Old Testament only in Job and in Zech. iii. 1, 2. But the authenticity of the passage in Zechariah has been questioned, and it may be that in finding the proper name of Satan in Job alone, Paine was following some opinion met with in one of the authorities whose comments are condensed in his paragraph.—Editor.] does not correspond to any Hebrew idea; and that the two convocations which the Deity is supposed to have made of those whom the poem calls sons of God, and the familiarity which this supposed Satan is stated to have with the Deity, are in the same case.

It may also be observed, that the book shows itself to be the production of a mind cultivated in science, which the Jews, so far from being famous for, were very ignorant of. The allusions to objects of natural philosophy are frequent and strong, and are of a different cast to any thing in the books known to be Hebrew. The astronomical names, Pleiades, Orion, and Arcturus, are Greek and not Hebrew names, and it does not appear from any thing that is to be found in the Bible that the Jews knew any thing of astronomy, or that they studied it, they had no translation of those names

into their own language, but adopted the names as they found them in the poem. [Paine's Jewish critic, David Levi, fastened on this slip ("Defence of the Old Testament," 1797, p. 152). In the original the names are Ash (Arcturus), Kesil' (Orion), Kimah' (Pleiades), though the identifications of the constellations in the A.S.V. have been questioned.—Editor.]

That the Jews did translate the literary productions of the Gentile nations into the Hebrew language, and mix them with their own, is not a matter of doubt; Proverbs xxxi. i, is an evidence of this: it is there said, The word of king Lemuel, the prophecy which his mother taught him. This verse stands as a preface to the proverbs that follow, and which are not the proverbs of Solomon, but of Lemuel; and this Lemuel was not one of the kings of Israel, nor of Judah, but of some other country, and consequently a Gentile. The Jews however have adopted his proverbs; and as they cannot give any account who the author of the book of Job was, nor how they came by the book, and as it differs in character from the Hebrew writings, and stands totally unconnected with every other book and chapter in the Bible before it and after it, it has all the circumstantial evidence of being originally a book of the Gentiles. [The prayer known by the name of Agur's Prayer, in Proverbs xxx.,—immediately preceding the proverbs of Lemuel,—and which is the only sensible, well-conceived, and well-expressed prayer in the Bible, has much the appearance of being a prayer taken from the Gentiles. The name of Agur occurs on no other occasion than this; and he is introduced, together with the prayer ascribed to him, in the same manner, and nearly in the same words, that Lemuel and his proverbs are introduced in the chapter that follows. The first verse says, "The words of Agur, the son of Jakeh, even the prophecy:" here the word prophecy is used with the same application it has in the following chapter of Lemuel, unconnected with anything of prediction. The prayer of Agur is in the 8th and 9th verses, "Remove far from me vanity and lies; give me neither riches nor poverty, but feed me with food convenient for me; lest I be full and deny thee and say, Who is the Lord? or lest I be poor and steal, and take the name of my God in vain." This has not any of the marks of being a Jewish prayer, for the Jews never prayed but when they were in trouble, and never for anything but victory, vengeance, or riches.—Author. (Prov. xxx. 1, and xxxi. 1) the word "prophecy" in these verses is translated "oracle" or "burden" (marg.) in the revised version.—The prayer of Agur was quoted by Paine in his plea for the officers of Excise, 1772.—Editor.]

The Bible-makers, and those regulators of time, the Bible chronologists, appear to have been at a loss where to place and how to dispose of the book of Job; for it contains no one historical circumstance, nor allusion to any, that might serve to determine its place in the Bible. But it would not have answered the purpose of these men to have informed the world of their ignorance; and, therefore, they have affixed it to the aera of B.C. 1520, which is during the time the Israelites were in Egypt, and for which they have just as much authority and no more than I should have for saying it was a thousand years before that period. The probability however is, that it is older than any book in the Bible; and it is the only one that can be read without indignation or disgust.

We know nothing of what the ancient Gentile world (as it is called) was before the time of the Jews, whose practice has been to calumniate and blacken the character of all other nations; and it is from the Jewish accounts that we have learned to call them heathens. But, as far as we know to the contrary, they were a just and moral people, and not addicted, like the Jews, to cruelty and revenge, but of whose profession of faith we are unacquainted. It appears to have been their custom to personify both virtue and vice by statues and images, as is done now-a-days both by statuary and by painting; but it does not follow from this that they worshipped them any more than we do.—I pass on to the book of,

Psalms, of which it is not necessary to make much observation. Some of them are moral, and others are very revengeful; and the greater part relates to certain local circumstances of the Jewish nation at the time they were written, with which we have nothing to do. It is, however, an error or an imposition to call them the Psalms of David; they are a collection, as song-books are now-a-days, from different song-writers, who lived at different times. The 137th Psalm could not have been written till more than 400 years after the time of David, because it is written in commemoration of an event, the captivity of the Jews in Babylon, which did not happen till that distance of time. "By the rivers of Babylon we sat down; yea, we wept when we remembered Zion. We hanged our harps upon the willows, in the midst thereof; for there they that carried us away captive required of us a song, saying, sing us one of the songs of Zion." As a man would say to an American, or to a Frenchman, or to an Englishman, sing us one of your American songs, or your French songs, or your English songs. This remark, with respect to the time this psalm was written, is of no other use than to

show (among others already mentioned) the general imposition the world has been under with respect to the authors of the Bible. No regard has been paid to time, place, and circumstance; and the names of persons have been affixed to the several books which it was as impossible they should write, as that a man should walk in procession at his own funeral.

The Book of Proverbs. These, like the Psalms, are a collection, and that from authors belonging to other nations than those of the Jewish nation, as I have shewn in the observations upon the book of Job; besides which, some of the Proverbs ascribed to Solomon did not appear till two hundred and fifty years after the death of Solomon; for it is said in xxv. i, "These are also proverbs of Solomon which the men of Hezekiah, king of Judah, copied out." It was two hundred and fifty years from the time of Solomon to the time of Hezekiah. When a man is famous and his name is abroad he is made the putative father of things he never said or did; and this, most probably, has been the case with Solomon. It appears to have been the fashion of that day to make proverbs, as it is now to make jest-books, and father them upon those who never saw them. [A "Tom Paine's Jest Book" had appeared in London with little or nothing of Paine in it.—Editor.]

The book of Ecclesiastes, or the Preacher, is also ascribed to Solomon, and that with much reason, if not with truth. It is written as the solitary reflections of a worn-out debauchee, such as Solomon was, who looking back on scenes he can no longer enjoy, cries out All is Vanity! A great deal of the metaphor and of the sentiment is obscure, most probably by translation; but enough is left to show they were strongly pointed in the original. [Those that look out of the window shall be darkened, is an obscure figure in translation for loss of sight.—Author.] From what is transmitted to us of the character of Solomon, he was witty, ostentatious, dissolute, and at last melancholy. He lived fast, and died, tired of the world, at the age of fifty-eight years.

Seven hundred wives, and three hundred concubines, are worse than none; and, however it may carry with it the appearance of heightened enjoyment, it defeats all the felicity of affection, by leaving it no point to fix upon; divided love is never happy. This was the case with Solomon; and if he could not, with all his pretensions to wisdom, discover it beforehand, he merited, unpitied, the mortification he afterwards endured. In this point of view, his preaching is unnecessary, because, to know the consequences, it is

only necessary to know the cause. Seven hundred wives, and three hundred concubines would have stood in place of the whole book. It was needless after this to say that all was vanity and vexation of spirit; for it is impossible to derive happiness from the company of those whom we deprive of happiness.

To be happy in old age it is necessary that we accustom ourselves to objects that can accompany the mind all the way through life, and that we take the rest as good in their day. The mere man of pleasure is miserable in old age; and the mere drudge in business is but little better: whereas, natural philosophy, mathematical and mechanical science, are a continual source of tranquil pleasure, and in spite of the gloomy dogmas of priests, and of superstition, the study of those things is the study of the true theology; it teaches man to know and to admire the Creator, for the principles of science are in the creation, and are unchangeable, and of divine origin.

Those who knew Benjamin Franklin will recollect, that his mind was ever young; his temper ever serene; science, that never grows grey, was always his mistress. He was never without an object; for when we cease to have an object we become like an invalid in an hospital waiting for death.

Solomon's Songs, amorous and foolish enough, but which wrinkled fanaticism has called divine.—The compilers of the Bible have placed these songs after the book of Ecclesiastes; and the chronologists have affixed to them the aera of B.C. 1014, at which time Solomon, according to the same chronology, was nineteen years of age, and was then forming his seraglio of wives and concubines. The Bible-makers and the chronologists should have managed this matter a little better, and either have said nothing about the time, or chosen a time less inconsistent with the supposed divinity of those songs; for Solomon was then in the honey-moon of one thousand debaucheries.

It should also have occurred to them, that as he wrote, if he did write, the book of Ecclesiastes, long after these songs, and in which he exclaims that all is vanity and vexation of spirit, that he included those songs in that description. This is the more probable, because he says, or somebody for him, Ecclesiastes ii. 8, I got me men-singers, and women-singers [most probably to sing those songs], and musical instruments of all sorts; and behold (Ver. ii), "all was vanity and vexation of spirit." The compilers

however have done their work but by halves; for as they have given us the songs they should have given us the tunes, that we might sing them.

The books called the books of the Prophets fill up all the remaining part of the Bible; they are sixteen in number, beginning with Isaiah and ending with Malachi, of which I have given a list in the observations upon Chronicles. Of these sixteen prophets, all of whom except the last three lived within the time the books of Kings and Chronicles were written, two only, Isaiah and Jeremiah, are mentioned in the history of those books. I shall begin with those two, reserving, what I have to say on the general character of the men called prophets to another part of the work.

Whoever will take the trouble of reading the book ascribed to Isaiah, will find it one of the most wild and disorderly compositions ever put together; it has neither beginning, middle, nor end; and, except a short historical part, and a few sketches of history in the first two or three chapters, is one continued incoherent, bombastical rant, full of extravagant metaphor, without application, and destitute of meaning; a school-boy would scarcely have been excusable for writing such stuff; it is (at least in translation) that kind of composition and false taste that is properly called prose run mad.

The historical part begins at chapter xxxvi., and is continued to the end of chapter xxxix. It relates some matters that are said to have passed during the reign of Hezekiah, king of Judah, at which time Isaiah lived. This fragment of history begins and ends abruptly; it has not the least connection with the chapter that precedes it, nor with that which follows it, nor with any other in the book. It is probable that Isaiah wrote this fragment himself, because he was an actor in the circumstances it treats of; but except this part there are scarcely two chapters that have any connection with each other. One is entitled, at the beginning of the first verse, the burden of Babylon; another, the burden of Moab; another, the burden of Damascus; another, the burden of Egypt; another, the burden of the Desert of the Sea; another, the burden of the Valley of Vision: as you would say the story of the Knight of the Burning Mountain, the story of Cinderella, or the glassen slipper, the story of the Sleeping Beauty in the Wood, etc., etc.

I have already shown, in the instance of the last two verses of 2 Chronicles, and the first three in Ezra, that the compilers of the Bible mixed and confounded the writings of different authors with each other; which alone, were there no other cause, is sufficient to destroy the authenticity of

an compilation, because it is more than presumptive evidence that the compilers are ignorant who the authors were. A very glaring instance of this occurs in the book ascribed to Isaiah: the latter part of the 44th chapter, and the beginning of the 45th, so far from having been written by Isaiah, could only have been written by some person who lived at least an hundred and fifty years after Isaiah was dead.

These chapters are a compliment to Cyrus, who permitted the Jews to return to Jerusalem from the Babylonian captivity, to rebuild Jerusalem and the temple, as is stated in Ezra. The last verse of the 44th chapter, and the beginning of the 45th [Isaiah] are in the following words: "That saith of Cyrus, he is my shepherd, and shall perform all my pleasure; even saying to Jerusalem, thou shalt be built; and to the temple thy foundations shall be laid: thus saith the Lord to his enointed, to Cyrus, whose right hand I have holden to subdue nations before him, and I will loose the loins of kings to open before him the two-leaved gates, and the gates shall not be shut; I will go before thee," etc.

What audacity of church and priestly ignorance it is to impose this book upon the world as the writing of Isaiah, when Isaiah, according to their own chronology, died soon after the death of Hezekiah, which was B.C. 698; and the decree of Cyrus, in favour of the Jews returning to Jerusalem, was, according to the same chronology, B.C. 536; which is a distance of time between the two of 162 years. I do not suppose that the compilers of the Bible made these books, but rather that they picked up some loose, anonymous essays, and put them together under the names of such authors as best suited their purpose. They have encouraged the imposition, which is next to inventing it; for it was impossible but they must have observed it.

When we see the studied craft of the scripture-makers, in making every part of this romantic book of school-boy's eloquence bend to the monstrous idea of a Son of God, begotten by a ghost on the body of a virgin, there is no imposition we are not justified in suspecting them of. Every phrase and circumstance are marked with the barbarous hand of superstitious torture, and forced into meanings it was impossible they could have. The head of every chapter, and the top of every page, are blazoned with the names of Christ and the Church, that the unwary reader might suck in the error before he began to read.

Behold a virgin shall conceive, and bear a son (Isa. vii. 14), has been interpreted to mean the person called Jesus Christ, and his mother Mary, and has been echoed through christendom for more than a thousand years; and such has been the rage of this opinion, that scarcely a spot in it but has been stained with blood and marked with desolation in consequence of it. Though it is not my intention to enter into controversy on subjects of this kind, but to confine myself to show that the Bible is spurious,—and thus, by taking away the foundation, to overthrow at once the whole structure of superstition raised thereon,—I will however stop a moment to expose the fallacious application of this passage.

Whether Isaiah was playing a trick with Ahaz, king of Judah, to whom this passage is spoken, is no business of mine; I mean only to show the misapplication of the passage, and that it has no more reference to Christ and his mother, than it has to me and my mother. The story is simply this:

The king of Syria and the king of Israel (I have already mentioned that the Jews were split into two nations, one of which was called Judah, the capital of which was Jerusalem, and the other Israel) made war jointly against Ahaz, king of Judah, and marched their armies towards Jerusalem. Ahaz and his people became alarmed, and the account says (Is. vii. 2), Their hearts were moved as the trees of the wood are moved with the wind.

In this situation of things, Isaiah addresses himself to Ahaz, and assures him in the name of the Lord (the cant phrase of all the prophets) that these two kings should not succeed against him; and to satisfy Ahaz that this should be the case, tells him to ask a sign. This, the account says, Ahaz declined doing; giving as a reason that he would not tempt the Lord; upon which Isaiah, who is the speaker, says, ver. 14, "Therefore the Lord himself shall give you a sign; behold a virgin shall conceive and bear a son;" and the 16th verse says, "And before this child shall know to refuse the evil, and choose the good, the land which thou abhorrest or darest [meaning Syria and the kingdom of Israel] shall be forsaken of both her kings." Here then was the sign, and the time limited for the completion of the assurance or promise; namely, before this child shall know to refuse the evil and choose the good.

Isaiah having committed himself thus far, it became necessary to him, in order to avoid the imputation of being a false prophet, and the consequences thereof, to take measures to make this sign appear. It certainly was not a

difficult thing, in any time of the world, to find a girl with child, or to make her so; and perhaps Isaiah knew of one beforehand; for I do not suppose that the prophets of that day were any more to be trusted than the priests of this: be that, however, as it may, he says in the next chapter, ver. 2, "And I took unto me faithful witnesses to record, Uriah the priest, and Zechariah the son of Jeberechiah, and I went unto the prophetess, and she conceived and bare a son."

Here then is the whole story, foolish as it is, of this child and this virgin; and it is upon the barefaced perversion of this story that the book of Matthew, and the impudence and sordid interest of priests in later times, have founded a theory, which they call the gospel; and have applied this story to signify the person they call Jesus Christ; begotten, they say, by a ghost, whom they call holy, on the body of a woman engaged in marriage, and afterwards married, whom they call a virgin, seven hundred years after this foolish story was told; a theory which, speaking for myself, I hesitate not to believe, and to say, is as fabulous and as false as God is true. [In Is. vii. 14, it is said that the child should be called Immanuel; but this name was not given to either of the children, otherwise than as a character, which the word signifies. That of the prophetess was called Maher-shalhash-baz, and that of Mary was called Jesus.—Author.]

But to show the imposition and falsehood of Isaiah we have only to attend to the sequel of this story; which, though it is passed over in silence in the book of Isaiah, is related in 2 Chronicles, xxviii; and which is, that instead of these two kings failing in their attempt against Ahaz, king of Judah, as Isaiah had pretended to foretel in the name of the Lord, they succeeded: Ahaz was defeated and destroyed; an hundred and twenty thousand of his people were slaughtered; Jerusalem was plundered, and two hundred thousand women and sons and daughters carried into captivity. Thus much for this lying prophet and imposter Isaiah, and the book of falsehoods that bears his name. I pass on to the book of Jeremiah. This prophet, as he is called, lived in the time that Nebuchadnezzar besieged Jerusalem, in the reign of Zedekiah, the last king of Judah; and the suspicion was strong against him that he was a traitor in the interest of Nebuchadnezzar. Every thing relating to Jeremiah shows him to have been a man of an equivocal character: in his metaphor of the potter and the clay, (ch. xviii.) he guards his prognostications in such a crafty manner as always to leave himself a door to escape by, in case the event should be contrary to

what he had predicted. In the 7th and 8th verses he makes the Almighty to say, "At what instant I shall speak concerning a nation, and concerning a kingdom, to pluck up, and to pull down, and destroy it, if that nation, against whom I have pronounced, turn from their evil, I will repent me of the evil that I thought to do unto them." Here was a proviso against one side of the case: now for the other side. Verses 9 and 10, "At what instant I shall speak concerning a nation, and concerning a kingdom, to build and to plant it, if it do evil in my sight, that it obey not my voice, then I will repent me of the good wherewith I said I would benefit them." Here is a proviso against the other side; and, according to this plan of prophesying, a prophet could never be wrong, however mistaken the Almighty might be. This sort of absurd subterfuge, and this manner of speaking of the Almighty, as one would speak of a man, is consistent with nothing but the stupidity of the Bible.

As to the authenticity of the book, it is only necessary to read it in order to decide positively that, though some passages recorded therein may have been spoken by Jeremiah, he is not the author of the book. The historical parts, if they can be called by that name, are in the most confused condition; the same events are several times repeated, and that in a manner different, and sometimes in contradiction to each other; and this disorder runs even to the last chapter, where the history, upon which the greater part of the book has been employed, begins anew, and ends abruptly. The book has all the appearance of being a medley of unconnected anecdotes respecting persons and things of that time, collected together in the same rude manner as if the various and contradictory accounts that are to be found in a bundle of newspapers, respecting persons and things of the present day, were put together without date, order, or explanation. I will give two or three examples of this kind.

It appears, from the account of chapter xxxvii. that the army of Nebuchadnezzar, which is called the army of the Chaldeans, had besieged Jerusalem some time; and on their hearing that the army of Pharaoh of Egypt was marching against them, they raised the siege and retreated for a time. It may here be proper to mention, in order to understand this confused history, that Nebuchadnezzar had besieged and taken Jerusalem during the reign of Jehoakim, the redeccessor of Zedekiah; and that it was Nebuchadnezzar who had make Zedekiah king, or rather viceroy; and that this second siege, of which the book of Jeremiah treats, was in consequence

of the revolt of Zedekiah against Nebuchadnezzar. This will in some measure account for the suspicion that affixes itself to Jeremiah of being a traitor, and in the interest of Nebuchadnezzar,—whom Jeremiah calls, xliii. 10, the servant of God.

Chapter xxxvii. 11-13, says, "And it came to pass, that, when the army of the Chaldeans was broken up from Jerusalem, for fear of Pharaoh's army, that Jeremiah went forth out of Jerusalem, to go (as this account states) into the land of Benjamin, to separate himself thence in the midst of the people; and when he was in the gate of Benjamin a captain of the ward was there, whose name was Irijah... and he took Jeremiah the prophet, saying, Thou fallest away to the Chaldeans; then Jeremiah said, It is false; I fall not away to the Chaldeans." Jeremiah being thus stopt and accused, was, after being examined, committed to prison, on suspicion of being a traitor, where he remained, as is stated in the last verse of this chapter.

But the next chapter gives an account of the imprisonment of Jeremiah, which has no connection with this account, but ascribes his imprisonment to another circumstance, and for which we must go back to chapter xxi. It is there stated, ver. 1, that Zedekiah sent Pashur the son of Malchiah, and Zephaniah the son of Maaseiah the priest, to Jeremiah, to enquire of him concerning Nebuchadnezzar, whose army was then before Jerusalem; and Jeremiah said to them, ver. 8, "Thus saith the Lord, Behold I set before you the way of life, and the way of death; he that abideth in this city shall die by the sword and by the famine, and by the pestilence; but he that goeth out and falleth to the Chaldeans that besiege you, he shall live, and his life shall be unto him for a prey."

This interview and conference breaks off abruptly at the end of the 10th verse of chapter xxi.; and such is the disorder of this book that we have to pass over sixteen chapters upon various subjects, in order to come at the continuation and event of this conference; and this brings us to the first verse of chapter xxxviii., as I have just mentioned. The chapter opens with saying, "Then Shaphatiah, the son of Mattan, Gedaliah the son of Pashur, and Jucal the son of Shelemiah, and Pashur the son of Malchiah, (here are more persons mentioned than in chapter xxi.) heard the words that Jeremiah spoke unto all the people, saying, Thus saith the Lord, He that remaineth in this city, shall die by the sword, by famine, and by the pestilence; but he that goeth forth to the Chaldeans shall live; for he shall have his life for a

prey, and shall live"; [which are the words of the conference;] therefore, (say they to Zedekiah,) "We beseech thee, let this man be put to death, for thus he weakeneth the hands of the men of war that remain in this city, and the hands of all the people, in speaking such words unto them; for this man seeketh not the welfare of the people, but the hurt:" and at the 6th verse it is said, "Then they took Jeremiah, and put him into the dungeon of Malchiah."

These two accounts are different and contradictory. The one ascribes his imprisonment to his attempt to escape out of the city; the other to his preaching and prophesying in the city; the one to his being seized by the guard at the gate; the other to his being accused before Zedekiah by the conferees. [I observed two chapters in I Samuel (xvi. and xvii.) that contradict each other with respect to David, and the manner he became acquainted with Saul; as Jeremiah xxxvii. and xxxviii. contradict each other with respect to the cause of Jeremiah's imprisonment.

In 1 Samuel, xvi., it is said, that an evil spirit of God troubled Saul, and that his servants advised him (as a remedy) "to seek out a man who was a cunning player upon the harp." And Saul said, ver. 17, "Provide me now a man that can play well, and bring him to me. Then answered one of his servants, and said, Behold, I have seen a son of Jesse, the Bethlehemite, that is cunning in playing, and a mighty man, and a man of war, and prudent in matters, and a comely person, and the Lord is with him; wherefore Saul sent messengers unto Jesse, and said, Send me David, thy son. And (verse 21) David came to Saul, and stood before him, and he loved him greatly, and he became his armour-bearer; and when the evil spirit from God was upon Saul, (verse 23) David took his harp, and played with his hand, and Saul was refreshed, and was well."

But the next chapter (xvii.) gives an account, all different to this, of the manner that Saul and David became acquainted. Here it is ascribed to David's encounter with Goliath, when David was sent by his father to carry provision to his brethren in the camp. In the 55th verse of this chapter it is said, "And when Saul saw David go forth against the Philistine (Goliath) he said to Abner, the captain of the host, Abner, whose son is this youth? And Abner said, As thy soul liveth, O king, I cannot tell. And the king said, Enquire thou whose son the stripling is. And as David returned from the slaughter of the Philistine, Abner took him and brought him before Saul, with the head of the Philistine in his hand; and Saul said unto him, Whose

son art thou, thou young man? And David answered, I am the son of thy servant, Jesse, the Betlehemite," These two accounts belie each other, because each of them supposes Saul and David not to have known each other before. This book, the Bible, is too ridiculous for criticism.—Author.]

In the next chapter (Jer. xxxix.) we have another instance of the disordered state of this book; for notwithstanding the siege of the city by Nebuchadnezzar has been the subject of several of the preceding chapters, particularly xxxvii. and xxxviii., chapter xxxix. begins as if not a word had been said upon the subject, and as if the reader was still to be informed of every particular respecting it; for it begins with saying, ver. 1, "In the ninth year of Zedekiah king of Judah, in the tenth month, came Nebuchadnezzar king of Babylon, and all his army, against Jerusalem, and besieged it," etc.

But the instance in the last chapter (lii.) is still more glaring; for though the story has been told over and over again, this chapter still supposes the reader not to know anything of it, for it begins by saying, ver. i, "Zedekiah was one and twenty years old when he began to reign, and he reigned eleven years in Jerusalem, and his mother's name was Hamutal, the daughter of Jeremiah of Libnah." (Ver. 4,) "And it came to pass in the ninth year of his reign, in the tenth month, that Nebuchadnezzar king of Babylon came, he and all his army, against Jerusalem, and pitched against it, and built forts against it," etc.

It is not possible that any one man, and more particularly Jeremiah, could have been the writer of this book. The errors are such as could not have been committed by any person sitting down to compose a work. Were I, or any other man, to write in such a disordered manner, no body would read what was written, and every body would suppose that the writer was in a state of insanity. The only way, therefore, to account for the disorder is, that the book is a medley of detached unauthenticated anecdotes, put together by some stupid book-maker, under the name of Jeremiah; because many of them refer to him, and to the circumstances of the times he lived in.

Of the duplicity, and of the false predictions of Jeremiah, I shall mention two instances, and then proceed to review the remainder of the Bible.

It appears from chapter xxxviii. that when Jeremiah was in prison, Zedekiah sent for him, and at this interview, which was private, Jeremiah pressed it strongly on Zedekiah to surrender himself to the enemy. "If," says he, (ver. 17,) "thou wilt assuredly go forth unto the king of Babylon's

princes, then thy soul shall live," etc. Zedekiah was apprehensive that what passed at this conference should be known; and he said to Jeremiah, (ver. 25,) "If the princes [meaning those of Judah] hear that I have talked with thee, and they come unto thee, and say unto thee, Declare unto us now what thou hast said unto the king; hide it not from us, and we will not put thee to death; and also what the king said unto thee; then thou shalt say unto them, I presented my supplication before the king that he would not cause me to return to Jonathan's house, to die there. Then came all the princes unto Jeremiah, and asked him, and "he told them according to all the words the king had commanded." Thus, this man of God, as he is called, could tell a lie, or very strongly prevaricate, when he supposed it would answer his purpose; for certainly he did not go to Zedekiah to make this supplication, neither did he make it; he went because he was sent for, and he employed that opportunity to advise Zedekiah to surrender himself to Nebuchadnezzar.

In chapter xxxiv. 2-5, is a prophecy of Jeremiah to Zedekiah in these words: "Thus saith the Lord, Behold I will give this city into the hand of the king of Babylon, and he will burn it with fire; and thou shalt not escape out of his hand, but thou shalt surely be taken, and delivered into his hand; and thine eyes shall behold the eyes of the king of Babylon, and he shall speak with thee mouth to mouth, and thou shalt go to Babylon. Yet hear the word of the Lord; O Zedekiah, king, of Judah, thus saith the Lord, Thou shalt not die by the sword, but thou shalt die in Peace; and with the burnings of thy fathers, the former kings that were before thee, so shall they burn odours for thee, and they will lament thee, saying, Ah, Lord! for I have pronounced the word, saith the Lord."

Now, instead of Zedekiah beholding the eyes of the king of Babylon, and speaking with him mouth to mouth, and dying in peace, and with the burning of odours, as at the funeral of his fathers, (as Jeremiah had declared the Lord himself had pronounced,) the reverse, according to chapter Iii., 10, 11 was the case; it is there said, that the king of Babylon slew the sons of Zedekiah before his eyes: then he put out the eyes of Zedekiah, and bound him in chains, and carried him to Babylon, and put him in prison till the day of his death.

What then can we say of these prophets, but that they are impostors and liars?

As for Jeremiah, he experienced none of those evils. He was taken into favour by Nebuchadnezzar, who gave him in charge to the captain of the guard (xxxix, 12), "Take him (said he) and look well to him, and do him no harm; but do unto him even as he shall say unto thee." Jeremiah joined himself afterwards to Nebuchadnezzar, and went about prophesying for him against the Egyptians, who had marched to the relief of Jerusalem while it was besieged. Thus much for another of the lying prophets, and the book that bears his name.

I have been the more particular in treating of the books ascribed to Isaiah and Jeremiah, because those two are spoken of in the books of Kings and Chronicles, which the others are not. The remainder of the books ascribed to the men called prophets I shall not trouble myself much about; but take them collectively into the observations I shall offer on the character of the men styled prophets.

In the former part of the 'Age of Reason,' I have said that the word prophet was the Bible-word for poet, and that the flights and metaphors of Jewish poets have been foolishly erected into what are now called prophecies. I am sufficiently justified in this opinion, not only because the books called the prophecies are written in poetical language, but because there is no word in the Bible, except it be the word prophet, that describes what we mean by a poet. I have also said, that the word signified a performer upon musical instruments, of which I have given some instances; such as that of a company of prophets, prophesying with psalteries, with tabrets, with pipes, with harps, etc., and that Saul prophesied with them, 1 Sam. x., 5. It appears from this passage, and from other parts in the book of Samuel, that the word prophet was confined to signify poetry and music; for the person who was supposed to have a visionary insight into concealed things, was not a prophet but a seer, [I know not what is the Hebrew word that corresponds to the word seer in English; but I observe it is translated into French by *Le Voyant*, from the verb *voir* to see, and which means the person who sees, or the seer.—Author.]

[The Hebrew word for Seer, in 1 Samuel ix., transliterated, is *chozeh*, the gazer, it is translated in Is. xlvii. 13, "the stargazers."—Editor.] (i Sam, ix. 9;) and it was not till after the word seer went out of use (which most probably was when Saul banished those he called wizards) that the

profession of the seer, or the art of seeing, became incorporated into the word prophet.

According to the modern meaning of the word prophet and prophesying, it signifies foretelling events to a great distance of time; and it became necessary to the inventors of the gospel to give it this latitude of meaning, in order to apply or to stretch what they call the prophecies of the Old Testament, to the times of the New. But according to the Old Testament, the prophesying of the seer, and afterwards of the prophet, so far as the meaning of the word "seer" was incorporated into that of prophet, had reference only to things of the time then passing, or very closely connected with it; such as the event of a battle they were going to engage in, or of a journey, or of any enterprise they were going to undertake, or of any circumstance then pending, or of any difficulty they were then in; all of which had immediate reference to themselves (as in the case already mentioned of Ahaz and Isaiah with respect to the expression, Behold a virgin shall conceive and bear a son,) and not to any distant future time. It was that kind of prophesying that corresponds to what we call fortune-telling; such as casting nativities, predicting riches, fortunate or unfortunate marriages, conjuring for lost goods, etc.; and it is the fraud of the Christian church, not that of the Jews, and the ignorance and the superstition of modern, not that of ancient times, that elevated those poetical, musical, conjuring, dreaming, strolling gentry, into the rank they have since had.

But, besides this general character of all the prophets, they had also a particular character. They were in parties, and they prophesied for or against, according to the party they were with; as the poetical and political writers of the present day write in defence of the party they associate with against the other.

After the Jews were divided into two nations, that of Judah and that of Israel, each party had its prophets, who abused and accused each other of being false prophets, lying prophets, impostors, etc.

The prophets of the party of Judah prophesied against the prophets of the party of Israel; and those of the party of Israel against those of Judah. This party prophesying showed itself immediately on the separation under the first two rival kings, Rehoboam and Jeroboam. The prophet that cursed, or prophesied against the altar that Jeroboam had built in Bethel, was of the party of Judah, where Rehoboam was king; and he was way-laid on his

return home by a prophet of the party of Israel, who said unto him (i Kings xiii.) "Art thou the man of God that came from Judah? and he said, I am." Then the prophet of the party of Israel said to him "I am a prophet also, as thou art, [signifying of Judah,] and an angel spake unto me by the word of the Lord, saying, Bring him back with thee unto thine house, that he may eat bread and drink water; but (says the 18th verse) he lied unto him." The event, however, according to the story, is, that the prophet of Judah never got back to Judah; for he was found dead on the road by the contrivance of the prophet of Israel, who no doubt was called a true prophet by his own party, and the prophet of Judah a lying prophet.

In 2 Kings, iii., a story is related of prophesying or conjuring that shews, in several particulars, the character of a prophet. Jehoshaphat king of Judah, and Joram king of Israel, had for a while ceased their party animosity, and entered into an alliance; and these two, together with the king of Edom, engaged in a war against the king of Moab. After uniting and marching their armies, the story says, they were in great distress for water, upon which Jehoshaphat said, "Is there not here a prophet of the Lord, that we may enquire of the Lord by him? and one of the servants of the king of Israel said here is Elisha. [Elisha was of the party of Judah.] And Jehoshaphat the king of Judah said, The word of the Lord is with him." The story then says, that these three kings went down to Elisha; and when Elisha [who, as I have said, was a Judahmite prophet] saw the King of Israel, he said unto him, "What have I to do with thee, get thee to the prophets of thy father and the prophets of thy mother. Nay but, said the king of Israel, the Lord hath called these three kings together, to deliver them into the hands of the king of Moab," (meaning because of the distress they were in for water;) upon which Elisha said, "As the Lord of hosts liveth before whom I stand, surely, were it not that I regard the presence of Jehoshaphat, king of Judah, I would not look towards thee nor see thee." Here is all the venom and vulgarity of a party prophet. We are now to see the performance, or manner of prophesying.

Ver. 15. "'Bring me,' (said Elisha), 'a minstrel'; and it came to pass, when the minstrel played, that the hand of the Lord came upon him." Here is the farce of the conjurer. Now for the prophecy: "And Elisha said, [singing most probably to the tune he was playing], Thus saith the Lord, Make this valley full of ditches;" which was just telling them what every countryman

could have told them without either fiddle or farce, that the way to get water was to dig for it.

But as every conjuror is not famous alike for the same thing, so neither were those prophets; for though all of them, at least those I have spoken of, were famous for lying, some of them excelled in cursing. Elisha, whom I have just mentioned, was a chief in this branch of prophesying; it was he that cursed the forty-two children in the name of the Lord, whom the two she-bears came and devoured. We are to suppose that those children were of the party of Israel; but as those who will curse will lie, there is just as much credit to be given to this story of Elisha's two she-bears as there is to that of the Dragon of Wantley, of whom it is said:

*Poor children three devoured be,
That could not with him grapple;
And at one sup he eat them up,
As a man would eat an apple.*

There was another description of men called prophets, that amused themselves with dreams and visions; but whether by night or by day we know not. These, if they were not quite harmless, were but little mischievous. Of this class are,

EZEKIEL and DANIEL; and the first question upon these books, as upon all the others, is, Are they genuine? that is, were they written by Ezekiel and Daniel?

Of this there is no proof; but so far as my own opinion goes, I am more inclined to believe they were, than that they were not. My reasons for this opinion are as follows: First, Because those books do not contain internal evidence to prove they were not written by Ezekiel and Daniel, as the books ascribed to Moses, Joshua, Samuel, etc., prove they were not written by Moses, Joshua, Samuel, etc.

Secondly, Because they were not written till after the Babylonish captivity began; and there is good reason to believe that not any book in the bible was written before that period; at least it is proveable, from the books themselves, as I have already shown, that they were not written till after the commencement of the Jewish monarchy.

Thirdly, Because the manner in which the books ascribed to Ezekiel and Daniel are written, agrees with the condition these men were in at the time of writing them.

Had the numerous commentators and priests, who have foolishly employed or wasted their time in pretending to expound and unriddle those

books, been carried into captivity, as Ezekiel and Daniel were, it would greatly have improved their intellects in comprehending the reason for this mode of writing, and have saved them the trouble of racking their invention, as they have done to no purpose; for they would have found that themselves would be obliged to write whatever they had to write, respecting their own affairs, or those of their friends, or of their country, in a concealed manner, as those men have done.

These two books differ from all the rest; for it is only these that are filled with accounts of dreams and visions: and this difference arose from the situation the writers were in as prisoners of war, or prisoners of state, in a foreign country, which obliged them to convey even the most trifling information to each other, and all their political projects or opinions, in obscure and metaphorical terms. They pretend to have dreamed dreams, and seen visions, because it was unsafe for them to speak facts or plain language. We ought, however, to suppose, that the persons to whom they wrote understood what they meant, and that it was not intended anybody else should. But these busy commentators and priests have been puzzling their wits to find out what it was not intended they should know, and with which they have nothing to do.

Ezekiel and Daniel were carried prisoners to Babylon, under the first captivity, in the time of Jehoiakim, nine years before the second captivity in the time of Zedekiah. The Jews were then still numerous, and had considerable force at Jerusalem; and as it is natural to suppose that men in the situation of Ezekiel and Daniel would be meditating the recovery of their country, and their own deliverance, it is reasonable to suppose that the accounts of dreams and visions with which these books are filled, are no other than a disguised mode of correspondence to facilitate those objects: it served them as a cypher, or secret alphabet. If they are not this, they are tales, reveries, and nonsense; or at least a fanciful way of wearing off the wearisomeness of captivity; but the presumption is, they are the former.

Ezekiel begins his book by speaking of a vision of cherubims, and of a wheel within a wheel, which he says he saw by the river Chebar, in the land of his captivity. Is it not reasonable to suppose that by the cherubims he meant the temple at Jerusalem, where they had figures of cherubims? and by a wheel within a wheel (which as a figure has always been understood to signify political contrivance) the project or means of recovering Jerusalem?

In the latter part of his book he supposes himself transported to Jerusalem, and into the temple; and he refers back to the vision on the river Chebar, and says, (xliiii- 3,) that this last vision was like the vision on the river Chebar; which indicates that those pretended dreams and visions had for their object the recovery of Jerusalem, and nothing further.

As to the romantic interpretations and applications, wild as the dreams and visions they undertake to explain, which commentators and priests have made of those books, that of converting them into things which they call prophecies, and making them bend to times and circumstances as far remote even as the present day, it shows the fraud or the extreme folly to which credulity or priestcraft can go.

Scarcely anything can be more absurd than to suppose that men situated as Ezekiel and Daniel were, whose country was over-run, and in the possession of the enemy, all their friends and relations in captivity abroad, or in slavery at home, or massacred, or in continual danger of it; scarcely any thing, I say, can be more absurd than to suppose that such men should find nothing to do but that of employing their time and their thoughts about what was to happen to other nations a thousand or two thousand years after they were dead; at the same time nothing more natural than that they should meditate the recovery of Jerusalem, and their own deliverance; and that this was the sole object of all the obscure and apparently frantic writing contained in those books.

In this sense the mode of writing used in those two books being forced by necessity, and not adopted by choice, is not irrational; but, if we are to use the books as prophecies, they are false. In Ezekiel xxix. 11., speaking of Egypt, it is said, "No foot of man shall pass through it, nor foot of beast pass through it; neither shall it be inhabited for forty years." This is what never came to pass, and consequently it is false, as all the books I have already reviewed are.—I here close this part of the subject.

In the former part of 'The Age of Reason' I have spoken of Jonah, and of the story of him and the whale.—A fit story for ridicule, if it was written to be believed; or of laughter, if it was intended to try what credulity could swallow; for, if it could swallow Jonah and the whale it could swallow anything.

But, as is already shown in the observations on the book of Job and of Proverbs, it is not always certain which of the books in the Bible are

originally Hebrew, or only translations from the books of the Gentiles into Hebrew; and, as the book of Jonah, so far from treating of the affairs of the Jews, says nothing upon that subject, but treats altogether of the Gentiles, it is more probable that it is a book of the Gentiles than of the Jews, [I have read in an ancient Persian poem (Saadi, I believe, but have mislaid the reference) this phrase: "And now the whale swallowed Jonah: the sun set."—Editor.] and that it has been written as a fable to expose the nonsense, and satyryze the vicious and malignant character, of a Bible-prophet, or a predicting priest.

Jonah is represented, first as a disobedient prophet, running away from his mission, and taking shelter aboard a vessel of the Gentiles, bound from Joppa to Tarshish; as if he ignorantly supposed, by such a paltry contrivance, he could hide himself where God could not find him. The vessel is overtaken by a storm at sea; and the mariners, all of whom are Gentiles, believing it to be a judgement on account of some one on board who had committed a crime, agreed to cast lots to discover the offender; and the lot fell upon Jonah. But before this they had cast all their wares and merchandise over-board to lighten the vessel, while Jonah, like a stupid fellow, was fast asleep in the hold.

After the lot had designated Jonah to be the offender, they questioned him to know who and what he was? and he told them he was an Hebrew; and the story implies that he confessed himself to be guilty. But these Gentiles, instead of sacrificing him at once without pity or mercy, as a company of Bible-prophets or priests would have done by a Gentile in the same case, and as it is related Samuel had done by Agag, and Moses by the women and children, they endeavoured to save him, though at the risk of their own lives: for the account says, "Nevertheless [that is, though Jonah was a Jew and a foreigner, and the cause of all their misfortunes, and the loss of their cargo] the men rowed hard to bring the boat to land, but they could not, for the sea wrought and was tempestuous against them." Still however they were unwilling to put the fate of the lot into execution; and they cried, says the account, unto the Lord, saying, "We beseech thee, O Lord, let us not perish for this man's life, and lay not upon us innocent blood; for thou, O Lord, hast done as it pleased thee." Meaning thereby, that they did not presume to judge Jonah guilty, since that he might be innocent; but that they considered the lot that had fallen upon him as a decree of God, or as it pleased God. The address of this prayer shows that the Gentiles

worshipped one Supreme Being, and that they were not idolaters as the Jews represented them to be. But the storm still continuing, and the danger encreasing, they put the fate of the lot into execution, and cast Jonah in the sea; where, according to the story, a great fish swallowed him up whole and alive!

We have now to consider Jonah securely housed from the storm in the fish's belly. Here we are told that he prayed; but the prayer is a made-up prayer, taken from various parts of the Psalms, without connection or consistency, and adapted to the distress, but not at all to the condition that Jonah was in. It is such a prayer as a Gentile, who might know something of the Psalms, could copy out for him. This circumstance alone, were there no other, is sufficient to indicate that the whole is a made-up story. The prayer, however, is supposed to have answered the purpose, and the story goes on, (taking-off at the same time the cant language of a Bible-prophet,) saying, "The Lord spake unto the fish, and it vomited out Jonah upon dry land."

Jonah then received a second mission to Nineveh, with which he sets out; and we have now to consider him as a preacher. The distress he is represented to have suffered, the remembrance of his own disobedience as the cause of it, and the miraculous escape he is supposed to have had, were sufficient, one would conceive, to have impressed him with sympathy and benevolence in the execution of his mission; but, instead of this, he enters the city with denunciation and malediction in his mouth, crying, "Yet forty days, and Nineveh shall be overthrown."

We have now to consider this supposed missionary in the last act of his mission; and here it is that the malevolent spirit of a Bible-prophet, or of a predicting priest, appears in all that blackness of character that men ascribe to the being they call the devil.

Having published his predictions, he withdrew, says the story, to the east side of the city.—But for what? not to contemplate in retirement the mercy of his Creator to himself or to others, but to wait, with malignant impatience, the destruction of Nineveh. It came to pass, however, as the story relates, that the Ninevites reformed, and that God, according to the Bible phrase, repented him of the evil he had said he would do unto them, and did it not. This, saith the first verse of the last chapter, displeased Jonah exceedingly and he was very angry. His obdurate heart would rather that all Nineveh should be destroyed, and every soul, young and old, perish in its

ruins, than that his prediction should not be fulfilled. To expose the character of a prophet still more, a gourd is made to grow up in the night, that promises him an agreeable shelter from the heat of the sun, in the place to which he is retired; and the next morning it dies.

Here the rage of the prophet becomes excessive, and he is ready to destroy himself. "It is better, said he, for me to die than to live." This brings on a supposed expostulation between the Almighty and the prophet; in which the former says, "Doest thou well to be angry for the gourd? And Jonah said, I do well to be angry even unto death. Then said the Lord, Thou hast had pity on the gourd, for which thou hast not laboured, neither madest it to grow, which came up in a night, and perished in a night; and should not I spare Nineveh, that great city, in which are more than threescore thousand persons, that cannot discern between their right hand and their left?"

Here is both the winding up of the satire, and the moral of the fable. As a satire, it strikes against the character of all the Bible-prophets, and against all the indiscriminate judgements upon men, women and children, with which this lying book, the bible, is crowded; such as Noah's flood, the destruction of the cities of Sodom and Gomorrah, the extirpation of the Canaanites, even to suckling infants, and women with child; because the same reflection 'that there are more than threescore thousand persons that cannot discern between their right hand and their left,' meaning young children, applies to all their cases. It satirizes also the supposed partiality of the Creator for one nation more than for another.

As a moral, it preaches against the malevolent spirit of prediction; for as certainly as a man predicts ill, he becomes inclined to wish it. The pride of having his judgment right hardens his heart, till at last he beholds with satisfaction, or sees with disappointment, the accomplishment or the failure of his predictions.—This book ends with the same kind of strong and well-directed point against prophets, prophecies and indiscriminate judgements, as the chapter that Benjamin Franklin made for the Bible, about Abraham and the stranger, ends against the intolerant spirit of religious persecutions—Thus much for the book Jonah. [The story of Abraham and the Fire-worshipper, ascribed to Franklin, is from Saadi. (See my "Sacred Anthology," p. 61.) Paine has often been called a "mere scoffer," but he seems to have been among the first to treat with dignity the book of Jonah,

so especially liable to the ridicule of superficial readers, and discern in it the highest conception of Deity known to the Old Testament.—Editor.]

Of the poetical parts of the Bible, that are called prophecies, I have spoken in the former part of 'The Age of Reason,' and already in this, where I have said that the word for prophet is the Bible-word for Poet, and that the flights and metaphors of those poets, many of which have become obscure by the lapse of time and the change of circumstances, have been ridiculously erected into things called prophecies, and applied to purposes the writers never thought of. When a priest quotes any of those passages, he unriddles it agreeably to his own views, and imposes that explanation upon his congregation as the meaning of the writer. The whore of Babylon has been the common whore of all the priests, and each has accused the other of keeping the strumpet; so well do they agree in their explanations.

There now remain only a few books, which they call books of the lesser prophets; and as I have already shown that the greater are impostors, it would be cowardice to disturb the repose of the little ones. Let them sleep, then, in the arms of their nurses, the priests, and both be forgotten together.

I have now gone through the Bible, as a man would go through a wood with an axe on his shoulder, and fell trees. Here they lie; and the priests, if they can, may replant them. They may, perhaps, stick them in the ground, but they will never make them grow.—I pass on to the books of the New Testament.

CHAPTER II - THE NEW TESTAMENT

THE New Testament, they tell us, is founded upon the prophecies of the Old; if so, it must follow the fate of its foundation.

As it is nothing extraordinary that a woman should be with child before she was married, and that the son she might bring forth should be executed, even unjustly, I see no reason for not believing that such a woman as Mary, and such a man as Joseph, and Jesus, existed; their mere existence is a matter of indifference, about which there is no ground either to believe or to disbelieve, and which comes under the common head of, It may be so, and what then? The probability however is that there were such persons, or at least such as resembled them in part of the circumstances, because almost all romantic stories have been suggested by some actual circumstance; as the adventures of Robinson Crusoe, not a word of which is true, were suggested by the case of Alexander Selkirk.

It is not then the existence or the non-existence, of the persons that I trouble myself about; it is the fable of Jesus Christ, as told in the New Testament, and the wild and visionary doctrine raised thereon, against which I contend. The story, taking it as it is told, is blasphemously obscene. It gives an account of a young woman engaged to be married, and while under this engagement, she is, to speak plain language, debauched by a ghost, under the impious pretence, (Luke i. 35,) that "the Holy Ghost shall come upon thee, and the power of the Highest shall overshadow thee." Notwithstanding which, Joseph afterwards marries her, cohabits with her as his wife, and in his turn rivals the ghost. This is putting the story into intelligible language, and when told in this manner, there is not a priest but must be ashamed to own it. [Mary, the supposed virgin, mother of Jesus, had several other children, sons and daughters. See Matt. xiii. 55, 56.—Author.]

Obscenity in matters of faith, however wrapped up, is always a token of fable and imposture; for it is necessary to our serious belief in God, that we do not connect it with stories that run, as this does, into ludicrous interpretations. This story is, upon the face of it, the same kind of story as that of Jupiter and Leda, or Jupiter and Europa, or any of the amorous

adventures of Jupiter; and shews, as is already stated in the former part of 'The Age of Reason,' that the Christian faith is built upon the heathen Mythology.

As the historical parts of the New Testament, so far as concerns Jesus Christ, are confined to a very short space of time, less than two years, and all within the same country, and nearly to the same spot, the discordance of time, place, and circumstance, which detects the fallacy of the books of the Old Testament, and proves them to be impositions, cannot be expected to be found here in the same abundance. The New Testament compared with the Old, is like a farce of one act, in which there is not room for very numerous violations of the unities. There are, however, some glaring contradictions, which, exclusive of the fallacy of the pretended prophecies, are sufficient to show the story of Jesus Christ to be false.

I lay it down as a position which cannot be controverted, first, that the agreement of all the parts of a story does not prove that story to be true, because the parts may agree, and the whole may be false; secondly, that the disagreement of the parts of a story proves the whole cannot be true. The agreement does not prove truth, but the disagreement proves falsehood positively.

The history of Jesus Christ is contained in the four books ascribed to Matthew, Mark, Luke, and John.—The first chapter of Matthew begins with giving a genealogy of Jesus Christ; and in the third chapter of Luke there is also given a genealogy of Jesus Christ. Did these two agree, it would not prove the genealogy to be true, because it might nevertheless be a fabrication; but as they contradict each other in every particular, it proves falsehood absolutely. If Matthew speaks truth, Luke speaks falsehood; and if Luke speaks truth, Matthew speaks falsehood: and as there is no authority for believing one more than the other, there is no authority for believing either; and if they cannot be believed even in the very first thing they say, and set out to prove, they are not entitled to be believed in any thing they say afterwards. Truth is an uniform thing; and as to inspiration and revelation, were we to admit it, it is impossible to suppose it can be contradictory. Either then the men called apostles were imposters, or the books ascribed to them have been written by other persons, and fathered upon them, as is the case in the Old Testament.

The book of Matthew gives (i. 6), a genealogy by name from David, up, through Joseph, the husband of Mary, to Christ; and makes there to be twenty eight generations. The book of Luke gives also a genealogy by name from Christ, through Joseph the husband of Mary, down to David, and makes there to be forty-three generations; besides which, there is only the two names of David and Joseph that are alike in the two lists.—I here insert both genealogical lists, and for the sake of perspicuity and comparison, have placed them both in the same direction, that is, from Joseph down to David.

*Genealogy, according to
Matthew.*

Christ
2 Joseph
3 Jacob
4 Matthan
5 Eleazer
6 Eliud
7 Achim
8 Sadoc
9 Azor
10 Eliakim
11 Abiud
12 Zorobabel
13 Salathiel
14 Jechonias
15 Josias
16 Amon
17 Manasses
18 Ezekias
19 Achaz
20 Joatham
21 Ozias
22 Joram
23 Josaphat
24 Asa
25 Abia
26 Roboam
27 Solomon
28 David *

*Genealogy, according to
Luke.*

Christ
2 Joseph
3 Heli
4 Matthat
5 Levi
6 Melchl
7 Janna
8 Joseph
9 Mattathias
10 Amos
11 Naum
12 Esli
13 Nagge
14 Maath
15 Mattathias
16 Semei
17 Joseph
18 Juda
19 Joanna
20 Rhesa
21 Zorobabel
22 Salathiel
23 Neri
24 Melchi
25 Addi
26 Cosam
27 Elmodam
28 Er
29 Jose
30 Eliezer
31 Jorim
32 Matthat
33 Levi
34 Simeon
35 Juda
36 Joseph
37 Jonan
38 Eliakim
39 Melea
40 Menan
41 Mattatha

[NOTE: * From the birth of David to the birth of Christ is upwards of 1080 years; and as the life-time of Christ is not included, there are but 27 full generations. To find therefore the average age of each person mentioned in the list, at the time his first son was born, it is only necessary to divide 1080 by 27, which gives 40 years for each person. As the life-time of man was then but of the same extent it is now, it is an absurdity to suppose, that 27 following generations should all be old bachelors, before they married; and the more so, when we are told that Solomon, the next in succession to David, had a house full of wives and mistresses before he was twenty-one years of age. So far from this genealogy being a solemn truth, it is not even a reasonable lie. The list of Luke gives about twenty-six years for the average age, and this is too much.—Author.]

Now, if these men, Matthew and Luke, set out with a falsehood between them (as these two accounts show they do) in the very commencement of their history of Jesus Christ, and of who, and of what he was, what authority (as I have before asked) is there left for believing the strange things they tell us afterwards? If they cannot be believed in their account of his natural genealogy, how are we to believe them when they tell us he was the son of God, begotten by a ghost; and that an angel announced this in secret to his mother? If they lied in one genealogy, why are we to believe them in the other? If his natural genealogy be manufactured, which it certainly is, why are we not to suppose that his celestial genealogy is manufactured also, and that the whole is fabulous? Can any man of serious reflection hazard his future happiness upon the belief of a story naturally impossible, repugnant to every idea of decency, and related by persons already detected of falsehood? Is it not more safe that we stop ourselves at the plain, pure, and unmixed belief of one God, which is deism, than that we commit ourselves on an ocean of improbable, irrational, indecent, and contradictory tales?

The first question, however, upon the books of the New Testament, as upon those of the Old, is, Are they genuine? were they written by the persons to whom they are ascribed? For it is upon this ground only that the strange things related therein have been credited. Upon this point, there is no direct proof for or against; and all that this state of a case proves is doubtfulness; and doubtfulness is the opposite of belief. The state,

therefore, that the books are in, proves against themselves as far as this kind of proof can go.

But, exclusive of this, the presumption is that the books called the Evangelists, and ascribed to Matthew, Mark, Luke, and John, were not written by Matthew, Mark, Luke, and John; and that they are impositions. The disordered state of the history in these four books, the silence of one book upon matters related in the other, and the disagreement that is to be found among them, implies that they are the productions of some unconnected individuals, many years after the things they pretend to relate, each of whom made his own legend; and not the writings of men living intimately together, as the men called apostles are supposed to have done: in fine, that they have been manufactured, as the books of the Old Testament have been, by other persons than those whose names they bear.

The story of the angel announcing what the church calls the immaculate conception, is not so much as mentioned in the books ascribed to Mark, and John; and is differently related in Matthew and Luke. The former says the angel, appeared to Joseph; the latter says, it was to Mary; but either Joseph or Mary was the worst evidence that could have been thought of; for it was others that should have testified for them, and not they for themselves. Were any girl that is now with child to say, and even to swear it, that she was gotten with child by a ghost, and that an angel told her so, would she be believed? Certainly she would not. Why then are we to believe the same thing of another girl whom we never saw, told by nobody knows who, nor when, nor where? How strange and inconsistent is it, that the same circumstance that would weaken the belief even of a probable story, should be given as a motive for believing this one, that has upon the face of it every token of absolute impossibility and imposture.

The story of Herod destroying all the children under two years old, belongs altogether to the book of Matthew; not one of the rest mentions anything about it. Had such a circumstance been true, the universality of it must have made it known to all the writers, and the thing would have been too striking to have been omitted by any. This writer tell us, that Jesus escaped this slaughter, because Joseph and Mary were warned by an angel to flee with him into Egypt; but he forgot to make provision for John [the Baptist], who was then under two years of age. John, however, who staid

behind, fared as well as Jesus, who fled; and therefore the story circumstantially belies itself.

Not any two of these writers agree in reciting, exactly in the same words, the written inscription, short as it is, which they tell us was put over Christ when he was crucified; and besides this, Mark says, He was crucified at the third hour, (nine in the morning;) and John says it was the sixth hour, (twelve at noon.) [According to John, (xix. 14) the sentence was not passed till about the sixth hour (noon,) and consequently the execution could not be till the afternoon; but Mark (xv. 25) Says expressly that he was crucified at the third hour, (nine in the morning,)—Author.]

The inscription is thus stated in those books:

Matthew—This is Jesus the king of the Jews. Mark—The king of the Jews. Luke—This is the king of the Jews. John—Jesus of Nazareth the king of the Jews.

We may infer from these circumstances, trivial as they are, that those writers, whoever they were, and in whatever time they lived, were not present at the scene. The only one of the men called apostles who appears to have been near to the spot was Peter, and when he was accused of being one of Jesus's followers, it is said, (Matthew xxvi. 74,) "Then Peter began to curse and to swear, saying, I know not the man:" yet we are now called to believe the same Peter, convicted, by their own account, of perjury. For what reason, or on what authority, should we do this?

The accounts that are given of the circumstances, that they tell us attended the crucifixion, are differently related in those four books.

The book ascribed to Matthew says 'there was darkness over all the land from the sixth hour unto the ninth hour—that the veil of the temple was rent in twain from the top to the bottom—that there was an earthquake—that the rocks rent—that the graves opened, that the bodies of many of the saints that slept arose and came out of their graves after the resurrection, and went into the holy city and appeared unto many.' Such is the account which this dashing writer of the book of Matthew gives, but in which he is not supported by the writers of the other books.

The writer of the book ascribed to Mark, in detailing the circumstances of the crucifixion, makes no mention of any earthquake, nor of the rocks rending, nor of the graves opening, nor of the dead men walking out. The writer of the book of Luke is silent also upon the same points. And as to the

writer of the book of John, though he details all the circumstances of the crucifixion down to the burial of Christ, he says nothing about either the darkness—the veil of the temple—the earthquake—the rocks—the graves—nor the dead men.

Now if it had been true that these things had happened, and if the writers of these books had lived at the time they did happen, and had been the persons they are said to be—namely, the four men called apostles, Matthew, Mark, Luke, and John,—it was not possible for them, as true historians, even without the aid of inspiration, not to have recorded them. The things, supposing them to have been facts, were of too much notoriety not to have been known, and of too much importance not to have been told. All these supposed apostles must have been witnesses of the earthquake, if there had been any, for it was not possible for them to have been absent from it: the opening of the graves and resurrection of the dead men, and their walking about the city, is of still greater importance than the earthquake. An earthquake is always possible, and natural, and proves nothing; but this opening of the graves is supernatural, and directly in point to their doctrine, their cause, and their apostleship. Had it been true, it would have filled up whole chapters of those books, and been the chosen theme and general chorus of all the writers; but instead of this, little and trivial things, and mere prattling conversation of 'he said this and she said that' are often tediously detailed, while this most important of all, had it been true, is passed off in a slovenly manner by a single dash of the pen, and that by one writer only, and not so much as hinted at by the rest.

It is an easy thing to tell a lie, but it is difficult to support the lie after it is told. The writer of the book of Matthew should have told us who the saints were that came to life again, and went into the city, and what became of them afterwards, and who it was that saw them; for he is not hardy enough to say that he saw them himself;—whether they came out naked, and all in natural buff, he-saints and she-saints, or whether they came full dressed, and where they got their dresses; whether they went to their former habitations, and reclaimed their wives, their husbands, and their property, and how they were received; whether they entered ejectments for the recovery of their possessions, or brought actions of crim. con. against the rival interlopers; whether they remained on earth, and followed their former occupation of preaching or working; or whether they died again, or went back to their graves alive, and buried themselves.

Strange indeed, that an army of saints should return to life, and nobody know who they were, nor who it was that saw them, and that not a word more should be said upon the subject, nor these saints have any thing to tell us! Had it been the prophets who (as we are told) had formerly prophesied of these things, they must have had a great deal to say. They could have told us everything, and we should have had posthumous prophecies, with notes and commentaries upon the first, a little better at least than we have now. Had it been Moses, and Aaron, and Joshua, and Samuel, and David, not an unconverted Jew had remained in all Jerusalem. Had it been John the Baptist, and the saints of the times then present, everybody would have known them, and they would have out-preached and out-famed all the other apostles. But, instead of this, these saints are made to pop up, like Jonah's gourd in the night, for no purpose at all but to wither in the morning.—Thus much for this part of the story.

The tale of the resurrection follows that of the crucifixion; and in this as well as in that, the writers, whoever they were, disagree so much as to make it evident that none of them were there.

The book of Matthew states, that when Christ was put in the sepulchre the Jews applied to Pilate for a watch or a guard to be placed over the sepulchre, to prevent the body being stolen by the disciples; and that in consequence of this request the sepulchre was made sure, sealing the stone that covered the mouth, and setting a watch. But the other books say nothing about this application, nor about the sealing, nor the guard, nor the watch; and according to their accounts, there were none. Matthew, however, follows up this part of the story of the guard or the watch with a second part, that I shall notice in the conclusion, as it serves to detect the fallacy of those books.

The book of Matthew continues its account, and says, (xxviii. 1,) that at the end of the Sabbath, as it began to dawn, towards the first day of the week, came Mary Magdalene and the other Mary, to see the sepulchre. Mark says it was sun-rising, and John says it was dark. Luke says it was Mary Magdalene and Joanna, and Mary the mother of James, and other women, that came to the sepulchre; and John states that Mary Magdalene came alone. So well do they agree about their first evidence! They all, however, appear to have known most about Mary Magdalene; she was a woman of large acquaintance, and it was not an ill conjecture that she might

be upon the stroll. [The Bishop of Llandaff, in his famous "Apology," censured Paine severely for this insinuation against Mary Magdalene, but the censure really falls on our English version, which, by a chapter-heading (Luke vii.), has unwarrantably identified her as the sinful woman who anointed Jesus, and irrevocably branded her.—Editor.]

The book of Matthew goes on to say (ver. 2): "And behold there was a great earthquake, for the angel of the Lord descended from heaven, and came and rolled back the stone from the door, and sat upon it" But the other books say nothing about any earthquake, nor about the angel rolling back the stone, and sitting upon it and, according to their account, there was no angel sitting there. Mark says the angel [Mark says "a young man," and Luke "two men."—Editor.] was within the sepulchre, sitting on the right side. Luke says there were two, and they were both standing up; and John says they were both sitting down, one at the head and the other at the feet.

Matthew says, that the angel that was sitting upon the stone on the outside of the sepulchre told the two Marys that Christ was risen, and that the women went away quickly. Mark says, that the women, upon seeing the stone rolled away, and wondering at it, went into the sepulchre, and that it was the angel that was sitting within on the right side, that told them so. Luke says, it was the two angels that were Standing up; and John says, it was Jesus Christ himself that told it to Mary Magdalene; and that she did not go into the sepulchre, but only stooped down and looked in.

Now, if the writers of these four books had gone into a court of justice to prove an alibi, (for it is of the nature of an alibi that is here attempted to be proved, namely, the absence of a dead body by supernatural means,) and had they given their evidence in the same contradictory manner as it is here given, they would have been in danger of having their ears cropt for perjury, and would have justly deserved it. Yet this is the evidence, and these are the books, that have been imposed upon the world as being given by divine inspiration, and as the unchangeable word of God.

The writer of the book of Matthew, after giving this account, relates a story that is not to be found in any of the other books, and which is the same I have just before alluded to. "Now," says he, [that is, after the conversation the women had had with the angel sitting upon the stone,] "behold some of the watch [meaning the watch that he had said had been placed over the sepulchre] came into the city, and shawed unto the chief

priests all the things that were done; and when they were assembled with the elders and had taken counsel, they gave large money unto the soldiers, saying, Say ye, that his disciples came by night, and stole him away while we slept; and if this come to the governor's ears, we will persuade him, and secure you. So they took the money, and did as they were taught; and this saying [that his disciples stole him away] is commonly reported among the Jews until this day."

The expression, until this day, is an evidence that the book ascribed to Matthew was not written by Matthew, and that it has been manufactured long after the times and things of which it pretends to treat; for the expression implies a great length of intervening time. It would be inconsistent in us to speak in this manner of any thing happening in our own time. To give, therefore, intelligible meaning to the expression, we must suppose a lapse of some generations at least, for this manner of speaking carries the mind back to ancient time.

The absurdity also of the story is worth noticing; for it shows the writer of the book of Matthew to have been an exceeding weak and foolish man. He tells a story that contradicts itself in point of possibility; for though the guard, if there were any, might be made to say that the body was taken away while they were asleep, and to give that as a reason for their not having prevented it, that same sleep must also have prevented their knowing how, and by whom, it was done; and yet they are made to say that it was the disciples who did it. Were a man to tender his evidence of something that he should say was done, and of the manner of doing it, and of the person who did it, while he was asleep, and could know nothing of the matter, such evidence could not be received: it will do well enough for Testament evidence, but not for any thing where truth is concerned.

I come now to that part of the evidence in those books, that respects the pretended appearance of Christ after this pretended resurrection.

The writer of the book of Matthew relates, that the angel that was sitting on the stone at the mouth of the sepulchre, said to the two Marys (xxviii. 7), "Behold Christ is gone before you into Galilee, there ye shall see him; lo, I have told you." And the same writer at the next two verses (8, 9,) makes Christ himself to speak to the same purpose to these women immediately after the angel had told it to them, and that they ran quickly to tell it to the disciples; and it is said (ver. 16), "Then the eleven disciples went away into

Galilee, into a mountain where Jesus had appointed them; and, when they saw him, they worshipped him."

But the writer of the book of John tells us a story very different to this; for he says (xx. 19) "Then the same day at evening, being the first day of the week, [that is, the same day that Christ is said to have risen,] when the doors were shut, where the disciples were assembled, for fear of the Jews, came Jesus and stood in the midst of them."

According to Matthew the eleven were marching to Galilee, to meet Jesus in a mountain, by his own appointment, at the very time when, according to John, they were assembled in another place, and that not by appointment, but in secret, for fear of the Jews.

The writer of the book of Luke xxiv. 13, 33-36, contradicts that of Matthew more pointedly than John does; for he says expressly, that the meeting was in Jerusalem the evening of the same day that he (Christ) rose, and that the eleven were there.

Now, it is not possible, unless we admit these supposed disciples the right of wilful lying, that the writers of these books could be any of the eleven persons called disciples; for if, according to Matthew, the eleven went into Galilee to meet Jesus in a mountain by his own appointment, on the same day that he is said to have risen, Luke and John must have been two of that eleven; yet the writer of Luke says expressly, and John implies as much, that the meeting was that same day, in a house in Jerusalem; and, on the other hand, if, according to Luke and John, the eleven were assembled in a house in Jerusalem, Matthew must have been one of that eleven; yet Matthew says the meeting was in a mountain in Galilee, and consequently the evidence given in those books destroy each other.

The writer of the book of Mark says nothing about any meeting in Galilee; but he says (xvi. 12) that Christ, after his resurrection, appeared in another form to two of them, as they walked into the country, and that these two told it to the residue, who would not believe them. [This belongs to the late addition to Mark, which originally ended with xvi. 8.—Editor.] Luke also tells a story, in which he keeps Christ employed the whole of the day of this pretended resurrection, until the evening, and which totally invalidates the account of going to the mountain in Galilee. He says, that two of them, without saying which two, went that same day to a village called Emmaus, three score furlongs (seven miles and a half) from Jerusalem, and that

Christ in disguise went with them, and stayed with them unto the evening, and supped with them, and then vanished out of their sight, and reappeared that same evening, at the meeting of the eleven in Jerusalem.

This is the contradictory manner in which the evidence of this pretended reappearance of Christ is stated: the only point in which the writers agree, is the skulking privacy of that reappearance; for whether it was in the recess of a mountain in Galilee, or in a shut-up house in Jerusalem, it was still skulking. To what cause then are we to assign this skulking? On the one hand, it is directly repugnant to the supposed or pretended end, that of convincing the world that Christ was risen; and, on the other hand, to have asserted the publicity of it would have exposed the writers of those books to public detection; and, therefore, they have been under the necessity of making it a private affair.

As to the account of Christ being seen by more than five hundred at once, it is Paul only who says it, and not the five hundred who say it for themselves. It is, therefore, the testimony of but one man, and that too of a man, who did not, according to the same account, believe a word of the matter himself at the time it is said to have happened. His evidence, supposing him to have been the writer of Corinthians xv., where this account is given, is like that of a man who comes into a court of justice to swear that what he had sworn before was false. A man may often see reason, and he has too always the right of changing his opinion; but this liberty does not extend to matters of fact.

I now come to the last scene, that of the ascension into heaven.—Here all fear of the Jews, and of every thing else, must necessarily have been out of the question: it was that which, if true, was to seal the whole; and upon which the reality of the future mission of the disciples was to rest for proof. Words, whether declarations or promises, that passed in private, either in the recess of a mountain in Galilee, or in a shut-up house in Jerusalem, even supposing them to have been spoken, could not be evidence in public; it was therefore necessary that this last scene should preclude the possibility of denial and dispute; and that it should be, as I have stated in the former part of 'The Age of Reason,' as public and as visible as the sun at noon-day; at least it ought to have been as public as the crucifixion is reported to have been.—But to come to the point.

In the first place, the writer of the book of Matthew does not say a syllable about it; neither does the writer of the book of John. This being the case, is it possible to suppose that those writers, who affect to be even minute in other matters, would have been silent upon this, had it been true? The writer of the book of Mark passes it off in a careless, slovenly manner, with a single dash of the pen, as if he was tired of romancing, or ashamed of the story. So also does the writer of Luke. And even between these two, there is not an apparent agreement, as to the place where this final parting is said to have been. [The last nine verses of Mark being ungenuine, the story of the ascension rests exclusively on the words in Luke xxiv. 51, "was carried up into heaven,"—words omitted by several ancient authorities.—Editor.]

The book of Mark says that Christ appeared to the eleven as they sat at meat, alluding to the meeting of the eleven at Jerusalem: he then states the conversation that he says passed at that meeting; and immediately after says (as a school-boy would finish a dull story,) "So then, after the Lord had spoken unto them, he was received up into heaven, and sat on the right hand of God." But the writer of Luke says, that the ascension was from Bethany; that he (Christ) led them out as far as Bethany, and was parted from them there, and was carried up into heaven. So also was Mahomet: and, as to Moses, the apostle Jude says, ver. 9. That 'Michael and the devil disputed about his body.' While we believe such fables as these, or either of them, we believe unworthily of the Almighty.

I have now gone through the examination of the four books ascribed to Matthew, Mark, Luke and John; and when it is considered that the whole space of time, from the crucifixion to what is called the ascension, is but a few days, apparently not more than three or four, and that all the circumstances are reported to have happened nearly about the same spot, Jerusalem, it is, I believe, impossible to find in any story upon record so many and such glaring absurdities, contradictions, and falsehoods, as are in those books. They are more numerous and striking than I had any expectation of finding, when I began this examination, and far more so than I had any idea of when I wrote the former part of 'The Age of Reason.' I had then neither Bible nor Testament to refer to, nor could I procure any. My own situation, even as to existence, was becoming every day more precarious; and as I was willing to leave something behind me upon the subject, I was obliged to be quick and concise. The quotations I then made

were from memory only, but they are correct; and the opinions I have advanced in that work are the effect of the most clear and long-established conviction,—that the Bible and the Testament are impositions upon the world;—that the fall of man, the account of Jesus Christ being the Son of God, and of his dying to appease the wrath of God, and of salvation by that strange means, are all fabulous inventions, dishonourable to the wisdom and power of the Almighty;—that the only true religion is deism, by which I then meant and now mean the belief of one God, and an imitation of his moral character, or the practice of what are called moral virtues;—and that it was upon this only (so far as religion is concerned) that I rested all my hopes of happiness hereafter. So say I now—and so help me God.

But to return to the subject.—Though it is impossible, at this distance of time, to ascertain as a fact who were the writers of those four books (and this alone is sufficient to hold them in doubt, and where we doubt we do not believe) it is not difficult to ascertain negatively that they were not written by the persons to whom they are ascribed. The contradictions in those books demonstrate two things:

First, that the writers cannot have been eye-witnesses and ear-witnesses of the matters they relate, or they would have related them without those contradictions; and, consequently that the books have not been written by the persons called apostles, who are supposed to have been witnesses of this kind.

Secondly, that the writers, whoever they were, have not acted in concerted imposition, but each writer separately and individually for himself, and without the knowledge of the other.

The same evidence that applies to prove the one, applies equally to prove both cases; that is, that the books were not written by the men called apostles, and also that they are not a concerted imposition. As to inspiration, it is altogether out of the question; we may as well attempt to unite truth and falsehood, as inspiration and contradiction.

If four men are eye-witnesses and ear-witnesses to a scene, they will without any concert between them, agree as to time and place, when and where that scene happened. Their individual knowledge of the thing, each one knowing it for himself, renders concert totally unnecessary; the one will not say it was in a mountain in the country, and the other at a house in town;

the one will not say it was at sunrise, and the other that it was dark. For in whatever place it was and whatever time it was, they know it equally alike.

And on the other hand, if four men concert a story, they will make their separate relations of that story agree and corroborate with each other to support the whole. That concert supplies the want of fact in the one case, as the knowledge of the fact supersedes, in the other case, the necessity of a concert. The same contradictions, therefore, that prove there has been no concert, prove also that the reporters had no knowledge of the fact, (or rather of that which they relate as a fact,) and detect also the falsehood of their reports. Those books, therefore, have neither been written by the men called apostles, nor by imposters in concert.—How then have they been written?

I am not one of those who are fond of believing there is much of that which is called wilful lying, or lying originally, except in the case of men setting up to be prophets, as in the Old Testament; for prophesying is lying professionally. In almost all other cases it is not difficult to discover the progress by which even simple supposition, with the aid of credulity, will in time grow into a lie, and at last be told as a fact; and whenever we can find a charitable reason for a thing of this kind, we ought not to indulge a severe one.

The story of Jesus Christ appearing after he was dead is the story of an apparition, such as timid imaginations can always create in vision, and credulity believe. Stories of this kind had been told of the assassination of Julius Caesar not many years before, and they generally have their origin in violent deaths, or in execution of innocent persons. In cases of this kind, compassion lends its aid, and benevolently stretches the story. It goes on a little and a little farther, till it becomes a most certain truth. Once start a ghost, and credulity fills up the history of its life, and assigns the cause of its appearance; one tells it one way, another another way, till there are as many stories about the ghost, and about the proprietor of the ghost, as there are about Jesus Christ in these four books.

The story of the appearance of Jesus Christ is told with that strange mixture of the natural and impossible, that distinguishes legendary tale from fact. He is represented as suddenly coming in and going out when the doors are shut, and of vanishing out of sight, and appearing again, as one would conceive of an unsubstantial vision; then again he is hungry, sits down to

meat, and eats his supper. But as those who tell stories of this kind never provide for all the cases, so it is here: they have told us, that when he arose he left his grave-clothes behind him; but they have forgotten to provide other clothes for him to appear in afterwards, or to tell us what he did with them when he ascended; whether he stripped all off, or went up clothes and all. In the case of Elijah, they have been careful enough to make him throw down his mantle; how it happened not to be burnt in the chariot of fire, they also have not told us; but as imagination supplies all deficiencies of this kind, we may suppose if we please that it was made of salamander's wool.

Those who are not much acquainted with ecclesiastical history, may suppose that the book called the New Testament has existed ever since the time of Jesus Christ, as they suppose that the books ascribed to Moses have existed ever since the time of Moses. But the fact is historically otherwise; there was no such book as the New Testament till more than three hundred years after the time that Christ is said to have lived.

At what time the books ascribed to Matthew, Mark, Luke and John, began to appear, is altogether a matter of uncertainty. There is not the least shadow of evidence of who the persons were that wrote them, nor at what time they were written; and they might as well have been called by the names of any of the other supposed apostles as by the names they are now called. The originals are not in the possession of any Christian Church existing, any more than the two tables of stone written on, they pretend, by the finger of God, upon Mount Sinai, and given to Moses, are in the possession of the Jews. And even if they were, there is no possibility of proving the hand-writing in either case. At the time those four books were written there was no printing, and consequently there could be no publication otherwise than by written copies, which any man might make or alter at pleasure, and call them originals. Can we suppose it is consistent with the wisdom of the Almighty to commit himself and his will to man upon such precarious means as these; or that it is consistent we should pin our faith upon such uncertainties? We cannot make nor alter, nor even imitate, so much as one blade of grass that he has made, and yet we can make or alter words of God as easily as words of man. [The former part of the 'Age of Reason' has not been published two years, and there is already an expression in it that is not mine. The expression is: The book of Luke was carried by a majority of one voice only. It may be true, but it is not I that have said it. Some person who might know of that circumstance, has

added it in a note at the bottom of the page of some of the editions, printed either in England or in America; and the printers, after that, have erected it into the body of the work, and made me the author of it. If this has happened within such a short space of time, notwithstanding the aid of printing, which prevents the alteration of copies individually, what may not have happened in a much greater length of time, when there was no printing, and when any man who could write could make a written copy and call it an original by Matthew, Mark, Luke, or John?—Author.]

[The spurious addition to Paine's work alluded to in his footnote drew on him a severe criticism from Dr. Priestley ("Letters to a Philosophical Unbeliever," p. 75), yet it seems to have been Priestley himself who, in his quotation, first incorporated into Paine's text the footnote added by the editor of the American edition (1794). The American added: "Vide Moshem's (sic) Ecc. History," which Priestley omits. In a modern American edition I notice four verbal alterations introduced into the above footnote.—Editor.]

About three hundred and fifty years after the time that Christ is said to have lived, several writings of the kind I am speaking of were scattered in the hands of divers individuals; and as the church had begun to form itself into an hierarchy, or church government, with temporal powers, it set itself about collecting them into a code, as we now see them, called 'The New Testament.' They decided by vote, as I have before said in the former part of the Age of Reason, which of those writings, out of the collection they had made, should be the word of God, and which should not. The Robbins of the Jews had decided, by vote, upon the books of the Bible before.

As the object of the church, as is the case in all national establishments of churches, was power and revenue, and terror the means it used, it is consistent to suppose that the most miraculous and wonderful of the writings they had collected stood the best chance of being voted. And as to the authenticity of the books, the vote stands in the place of it; for it can be traced no higher.

Disputes, however, ran high among the people then calling themselves Christians, not only as to points of doctrine, but as to the authenticity of the books. In the contest between the person called St. Augustine, and Fauste, about the year 400, the latter says, "The books called the Evangelists have been composed long after the times of the apostles, by some obscure men,

who, fearing that the world would not give credit to their relation of matters of which they could not be informed, have published them under the names of the apostles; and which are so full of sottishness and discordant relations, that there is neither agreement nor connection between them."

And in another place, addressing himself to the advocates of those books, as being the word of God, he says, "It is thus that your predecessors have inserted in the scriptures of our Lord many things which, though they carry his name, agree not with his doctrine." This is not surprising, since that we have often proved that these things have not been written by himself, nor by his apostles, but that for the greatest part they are founded upon tales, upon vague reports, and put together by I know not what half-Jews, with but little agreement between them; and which they have nevertheless published under the name of the apostles of our Lord, and have thus attributed to them their own errors and their lies. [I have taken these two extracts from Boulanger's *Life of Paul*, written in French; Boulanger has quoted them from the writings of Augustine against Fauste, to which he refers.—Author.]

This Bishop Faustus is usually styled "The Manichæum," Augustine having entitled his book, *Contra Frustum Manichæum Libri xxxiii.*, in which nearly the whole of Faustus' very able work is quoted.—Editor.]

The reader will see by those extracts that the authenticity of the books of the New Testament was denied, and the books treated as tales, forgeries, and lies, at the time they were voted to be the word of God. But the interest of the church, with the assistance of the faggot, bore down the opposition, and at last suppressed all investigation. Miracles followed upon miracles, if we will believe them, and men were taught to say they believed whether they believed or not. But (by way of throwing in a thought) the French Revolution has excommunicated the church from the power of working miracles; she has not been able, with the assistance of all her saints, to work one miracle since the revolution began; and as she never stood in greater need than now, we may, without the aid of divination, conclude that all her former miracles are tricks and lies. [Boulanger in his *Life of Paul*, has collected from the ecclesiastical histories, and the writings of the fathers as they are called, several matters which show the opinions that prevailed among the different sects of Christians, at the time the Testament, as we

now see it, was voted to be the word of God. The following extracts are from the second chapter of that work:

[The Marcionists (a Christian sect) asserted that the evangelists were filled with falsities. The Manichaeans, who formed a very numerous sect at the commencement of Christianity, rejected as false all the New Testament, and showed other writings quite different that they gave for authentic. The Corinthians, like the Marcionists, admitted not the Acts of the Apostles. The Encratites and the Sevenians adopted neither the Acts, nor the Epistles of Paul. Chrysostom, in a homily which he made upon the Acts of the Apostles, says that in his time, about the year 400, many people knew nothing either of the author or of the book. St. Irene, who lived before that time, reports that the Valentinians, like several other sects of the Christians, accused the scriptures of being filled with imperfections, errors, and contradictions. The Ebionites, or Nazarenes, who were the first Christians, rejected all the Epistles of Paul, and regarded him as an impostor. They report, among other things, that he was originally a Pagan; that he came to Jerusalem, where he lived some time; and that having a mind to marry the daughter of the high priest, he had himself been circumcised; but that not being able to obtain her, he quarrelled with the Jews and wrote against circumcision, and against the observation of the Sabbath, and against all the legal ordinances.—Author.] [Much abridged from the Exam. Crit. de la Vie de St. Paul, by N.A. Boulanger, 1770.—Editor.]

When we consider the lapse of more than three hundred years intervening between the time that Christ is said to have lived and the time the New Testament was formed into a book, we must see, even without the assistance of historical evidence, the exceeding uncertainty there is of its authenticity. The authenticity of the book of Homer, so far as regards the authorship, is much better established than that of the New Testament, though Homer is a thousand years the most ancient. It was only an exceeding good poet that could have written the book of Homer, and, therefore, few men only could have attempted it; and a man capable of doing it would not have thrown away his own fame by giving it to another. In like manner, there were but few that could have composed Euclid's Elements, because none but an exceeding good geometrician could have been the author of that work.

But with respect to the books of the New Testament, particularly such parts as tell us of the resurrection and ascension of Christ, any person who could tell a story of an apparition, or of a man's walking, could have made such books; for the story is most wretchedly told. The chance, therefore, of forgery in the Testament is millions to one greater than in the case of Homer or Euclid. Of the numerous priests or parsons of the present day, bishops and all, every one of them can make a sermon, or translate a scrap of Latin, especially if it has been translated a thousand times before; but is there any amongst them that can write poetry like Homer, or science like Euclid? The sum total of a parson's learning, with very few exceptions, is a, b, ab, and hic, haec, hoc; and their knowledge of science is, three times one is three; and this is more than sufficient to have enabled them, had they lived at the time, to have written all the books of the New Testament.

As the opportunities of forgery were greater, so also was the inducement. A man could gain no advantage by writing under the name of Homer or Euclid; if he could write equal to them, it would be better that he wrote under his own name; if inferior, he could not succeed. Pride would prevent the former, and impossibility the latter. But with respect to such books as compose the New Testament, all the inducements were on the side of forgery. The best imagined history that could have been made, at the distance of two or three hundred years after the time, could not have passed for an original under the name of the real writer; the only chance of success lay in forgery; for the church wanted pretence for its new doctrine, and truth and talents were out of the question.

But as it is not uncommon (as before observed) to relate stories of persons walking after they are dead, and of ghosts and apparitions of such as have fallen by some violent or extraordinary means; and as the people of that day were in the habit of believing such things, and of the appearance of angels, and also of devils, and of their getting into people's insides, and shaking them like a fit of an ague, and of their being cast out again as if by an emetic—(Mary Magdalene, the book of Mark tells us had brought up, or been brought to bed of seven devils;) it was nothing extraordinary that some story of this kind should get abroad of the person called Jesus Christ, and become afterwards the foundation of the four books ascribed to Matthew, Mark, Luke, and John. Each writer told a tale as he heard it, or thereabouts, and gave to his book the name of the saint or the apostle whom tradition had given as the eye-witness. It is only upon this ground that the

contradictions in those books can be accounted for; and if this be not the case, they are downright impositions, lies, and forgeries, without even the apology of credulity.

That they have been written by a sort of half Jews, as the foregoing quotations mention, is discernible enough. The frequent references made to that chief assassin and impostor Moses, and to the men called prophets, establishes this point; and, on the other hand, the church has complimented the fraud, by admitting the Bible and the Testament to reply to each other. Between the Christian-Jew and the Christian-Gentile, the thing called a prophecy, and the thing prophesied of, the type and the thing typified, the sign and the thing signified, have been industriously rummaged up, and fitted together like old locks and pick-lock keys. The story foolishly enough told of Eve and the serpent, and naturally enough as to the enmity between men and serpents (for the serpent always bites about the heel, because it cannot reach higher, and the man always knocks the serpent about the head, as the most effectual way to prevent its biting;) ["It shall bruise thy head, and thou shalt bruise his heel." Gen. iii. 15.—Author.] this foolish story, I say, has been made into a prophecy, a type, and a promise to begin with; and the lying imposition of Isaiah to Ahaz, 'That a virgin shall conceive and bear a son,' as a sign that Ahaz should conquer, when the event was that he was defeated (as already noticed in the observations on the book of Isaiah), has been perverted, and made to serve as a winder up.

Jonah and the whale are also made into a sign and type. Jonah is Jesus, and the whale is the grave; for it is said, (and they have made Christ to say it of himself, Matt. xii. 40), "For as Jonah was three days and three nights in the whale's belly, so shall the Son of man be three days and three nights in the heart of the earth." But it happens, awkwardly enough, that Christ, according to their own account, was but one day and two nights in the grave; about 36 hours instead of 72; that is, the Friday night, the Saturday, and the Saturday night; for they say he was up on the Sunday morning by sunrise, or before. But as this fits quite as well as the bite and the kick in Genesis, or the virgin and her son in Isaiah, it will pass in the lump of orthodox things.—Thus much for the historical part of the Testament and its evidences.

Epistles of Paul—The epistles ascribed to Paul, being fourteen in number, almost fill up the remaining part of the Testament. Whether those

epistles were written by the person to whom they are ascribed is a matter of no great importance, since that the writer, whoever he was, attempts to prove his doctrine by argument. He does not pretend to have been witness to any of the scenes told of the resurrection and the ascension; and he declares that he had not believed them.

The story of his being struck to the ground as he was journeying to Damascus, has nothing in it miraculous or extraordinary; he escaped with life, and that is more than many others have done, who have been struck with lightning; and that he should lose his sight for three days, and be unable to eat or drink during that time, is nothing more than is common in such conditions. His companions that were with him appear not to have suffered in the same manner, for they were well enough to lead him the remainder of the journey; neither did they pretend to have seen any vision.

The character of the person called Paul, according to the accounts given of him, has in it a great deal of violence and fanaticism; he had persecuted with as much heat as he preached afterwards; the stroke he had received had changed his thinking, without altering his constitution; and either as a Jew or a Christian he was the same zealot. Such men are never good moral evidences of any doctrine they preach. They are always in extremes, as well of action as of belief.

The doctrine he sets out to prove by argument, is the resurrection of the same body: and he advances this as an evidence of immortality. But so much will men differ in their manner of thinking, and in the conclusions they draw from the same premises, that this doctrine of the resurrection of the same body, so far from being an evidence of immortality, appears to me to be an evidence against it; for if I have already died in this body, and am raised again in the same body in which I have died, it is presumptive evidence that I shall die again. That resurrection no more secures me against the repetition of dying, than an ague-fit, when past, secures me against another. To believe therefore in immortality, I must have a more elevated idea than is contained in the gloomy doctrine of the resurrection.

Besides, as a matter of choice, as well as of hope, I had rather have a better body and a more convenient form than the present. Every animal in the creation excels us in something. The winged insects, without mentioning doves or eagles, can pass over more space with greater ease in a few minutes than man can in an hour. The glide of the smallest fish, in

proportion to its bulk, exceeds us in motion almost beyond comparison, and without weariness. Even the sluggish snail can ascend from the bottom of a dungeon, where man, by the want of that ability, would perish; and a spider can launch itself from the top, as a playful amusement. The personal powers of man are so limited, and his heavy frame so little constructed to extensive enjoyment, that there is nothing to induce us to wish the opinion of Paul to be true. It is too little for the magnitude of the scene, too mean for the sublimity of the subject.

But all other arguments apart, the consciousness of existence is the only conceivable idea we can have of another life, and the continuance of that consciousness is immortality. The consciousness of existence, or the knowing that we exist, is not necessarily confined to the same form, nor to the same matter, even in this life.

We have not in all cases the same form, nor in any case the same matter, that composed our bodies twenty or thirty years ago; and yet we are conscious of being the same persons. Even legs and arms, which make up almost half the human frame, are not necessary to the consciousness of existence. These may be lost or taken away and the full consciousness of existence remain; and were their place supplied by wings, or other appendages, we cannot conceive that it could alter our consciousness of existence. In short, we know not how much, or rather how little, of our composition it is, and how exquisitely fine that little is, that creates in us this consciousness of existence; and all beyond that is like the pulp of a peach, distinct and separate from the vegetative speck in the kernel.

Who can say by what exceeding fine action of fine matter it is that a thought is produced in what we call the mind? and yet that thought when produced, as I now produce the thought I am writing, is capable of becoming immortal, and is the only production of man that has that capacity.

Statues of brass and marble will perish; and statues made in imitation of them are not the same statues, nor the same workmanship, any more than the copy of a picture is the same picture. But print and reprint a thought a thousand times over, and that with materials of any kind, carve it in wood, or engrave it on stone, the thought is eternally and identically the same thought in every case. It has a capacity of unimpaired existence, unaffected by change of matter, and is essentially distinct, and of a nature different

from every thing else that we know of, or can conceive. If then the thing produced has in itself a capacity of being immortal, it is more than a token that the power that produced it, which is the self-same thing as consciousness of existence, can be immortal also; and that as independently of the matter it was first connected with, as the thought is of the printing or writing it first appeared in. The one idea is not more difficult to believe than the other; and we can see that one is true.

That the consciousness of existence is not dependent on the same form or the same matter, is demonstrated to our senses in the works of the creation, as far as our senses are capable of receiving that demonstration. A very numerous part of the animal creation preaches to us, far better than Paul, the belief of a life hereafter. Their little life resembles an earth and a heaven, a present and a future state; and comprises, if it may be so expressed, immortality in miniature.

The most beautiful parts of the creation to our eye are the winged insects, and they are not so originally. They acquire that form and that inimitable brilliancy by progressive changes. The slow and creeping caterpillar worm of to day, passes in a few days to a torpid figure, and a state resembling death; and in the next change comes forth in all the miniature magnificence of life, a splendid butterfly. No resemblance of the former creature remains; every thing is changed; all his powers are new, and life is to him another thing. We cannot conceive that the consciousness of existence is not the same in this state of the animal as before; why then must I believe that the resurrection of the same body is necessary to continue to me the consciousness of existence hereafter?

In the former part of 'The Agee of Reason.' I have called the creation the true and only real word of God; and this instance, or this text, in the book of creation, not only shows to us that this thing may be so, but that it is so; and that the belief of a future state is a rational belief, founded upon facts visible in the creation: for it is not more difficult to believe that we shall exist hereafter in a better state and form than at present, than that a worm should become a butterfly, and quit the dunghill for the atmosphere, if we did not know it as a fact.

As to the doubtful jargon ascribed to Paul in 1 Corinthians xv., which makes part of the burial service of some Christian sectaries, it is as destitute of meaning as the tolling of a bell at the funeral; it explains nothing to the

understanding, it illustrates nothing to the imagination, but leaves the reader to find any meaning if he can. "All flesh," says he, "is not the same flesh. There is one flesh of men, another of beasts, another of fishes, and another of birds." And what then? nothing. A cook could have said as much. "There are also," says he, "bodies celestial and bodies terrestrial; the glory of the celestial is one and the glory of the terrestrial is the other." And what then? nothing. And what is the difference? nothing that he has told. "There is," says he, "one glory of the sun, and another glory of the moon, and another glory of the stars." And what then? nothing; except that he says that one star differeth from another star in glory, instead of distance; and he might as well have told us that the moon did not shine so bright as the sun. All this is nothing better than the jargon of a conjuror, who picks up phrases he does not understand to confound the credulous people who come to have their fortune told. Priests and conjurors are of the same trade.

Sometimes Paul affects to be a naturalist, and to prove his system of resurrection from the principles of vegetation. "Thou fool" says he, "that which thou sowest is not quickened except it die." To which one might reply in his own language, and say, Thou fool, Paul, that which thou sowest is not quickened except it die not; for the grain that dies in the ground never does, nor can vegetate. It is only the living grains that produce the next crop. But the metaphor, in any point of view, is no simile. It is succession, and [not] resurrection.

The progress of an animal from one state of being to another, as from a worm to a butterfly, applies to the case; but this of a grain does not, and shows Paul to have been what he says of others, a fool.

Whether the fourteen epistles ascribed to Paul were written by him or not, is a matter of indifference; they are either argumentative or dogmatical; and as the argument is defective, and the dogmatical part is merely presumptive, it signifies not who wrote them. And the same may be said for the remaining parts of the Testament. It is not upon the Epistles, but upon what is called the Gospel, contained in the four books ascribed to Matthew, Mark, Luke, and John, and upon the pretended prophecies, that the theory of the church, calling itself the Christian Church, is founded. The Epistles are dependant upon those, and must follow their fate; for if the story of Jesus Christ be fabulous, all reasoning founded upon it, as a supposed truth, must fall with it.

We know from history, that one of the principal leaders of this church, Athanasius, lived at the time the New Testament was formed; [Athanasius died, according to the Church chronology, in the year 371—Author.] and we know also, from the absurd jargon he has left us under the name of a creed, the character of the men who formed the New Testament; and we know also from the same history that the authenticity of the books of which it is composed was denied at the time. It was upon the vote of such as Athanasius that the Testament was decreed to be the word of God; and nothing can present to us a more strange idea than that of decreeing the word of God by vote. Those who rest their faith upon such authority put man in the place of God, and have no true foundation for future happiness. Credulity, however, is not a crime, but it becomes criminal by resisting conviction. It is strangling in the womb of the conscience the efforts it makes to ascertain truth. We should never force belief upon ourselves in any thing.

I here close the subject on the Old Testament and the New. The evidence I have produced to prove them forgeries, is extracted from the books themselves, and acts, like a two-edge sword, either way. If the evidence be denied, the authenticity of the Scriptures is denied with it, for it is Scripture evidence: and if the evidence be admitted, the authenticity of the books is disproved. The contradictory impossibilities, contained in the Old Testament and the New, put them in the case of a man who swears for and against. Either evidence convicts him of perjury, and equally destroys reputation.

Should the Bible and the Testament hereafter fall, it is not that I have done it. I have done no more than extracted the evidence from the confused mass of matters with which it is mixed, and arranged that evidence in a point of light to be clearly seen and easily comprehended; and, having done this, I leave the reader to judge for himself, as I have judged for myself.

CHAPTER III - CONCLUSION

IN the former part of 'The Age of Reason' I have spoken of the three frauds, mystery, miracle, and Prophecy; and as I have seen nothing in any of the answers to that work that in the least affects what I have there said upon those subjects, I shall not encumber this Second Part with additions that are not necessary.

I have spoken also in the same work upon what is celled revelation, and have shown the absurd misapplication of that term to the books of the Old Testament and the New; for certainly revelation is out of the question in reciting any thing of which man has been the actor or the witness. That which man has done or seen, needs no revelation to tell him he has done it, or seen it—for he knows it already—nor to enable him to tell it or to write it. It is ignorance, or imposition, to apply the term revelation in such cases; yet the Bible and Testament are classed under this fraudulent description of being all revelation.

Revelation then, so far as the term has relation between God and man, can only be applied to something which God reveals of his will to man; but though the power of the Almighty to make such a communication is necessarily admitted, because to that power all things are possible, yet, the thing so revealed (if any thing ever was revealed, and which, by the bye, it is impossible to prove) is revelation to the person only to whom it is made. His account of it to another is not revelation; and whoever puts faith in that account, puts it in the man from whom the account comes; and that man may have been deceived, or may have dreamed it; or he may be an impostor and may lie. There is no possible criterion whereby to judge of the truth of what he tells; for even the morality of it would be no proof of revelation. In all such cases, the proper answer should be, "When it is revealed to me, I will believe it to be revelation; but it is not and cannot be incumbent upon me to believe it to be revelation before; neither is it proper that I should take the word of man as the word of God, and put man in the place of God." This is the manner in which I have spoken of revelation in the former part of The Age of Reason; and which, whilst it reverentially admits revelation as a possible thing, because, as before said, to the Almighty all things are

possible, it prevents the imposition of one man upon another, and precludes the wicked use of pretended revelation.

But though, speaking for myself, I thus admit the possibility of revelation, I totally disbelieve that the Almighty ever did communicate any thing to man, by any mode of speech, in any language, or by any kind of vision, or appearance, or by any means which our senses are capable of receiving, otherwise than by the universal display of himself in the works of the creation, and by that repugnance we feel in ourselves to bad actions, and disposition to good ones. [A fair parallel of the then unknown aphorism of Kant: "Two things fill the soul with wonder and reverence, increasing evermore as I meditate more closely upon them: the starry heavens above me and the moral law within me." (*Kritik der praktischen Vernunft*, 1788). Kant's religious utterances at the beginning of the French Revolution brought on him a royal mandate of silence, because he had worked out from "the moral law within" a principle of human equality precisely similar to that which Paine had derived from his Quaker doctrine of the "inner light" of every man. About the same time Paine's writings were suppressed in England. Paine did not understand German, but Kant, though always independent in the formation of his opinions, was evidently well acquainted with the literature of the Revolution, in America, England, and France.—Editor.]

The most detestable wickedness, the most horrid cruelties, and the greatest miseries, that have afflicted the human race have had their origin in this thing called revelation, or revealed religion. It has been the most dishonourable belief against the character of the divinity, the most destructive to morality, and the peace and happiness of man, that ever was propagated since man began to exist. It is better, far better, that we admitted, if it were possible, a thousand devils to roam at large, and to preach publicly the doctrine of devils, if there were any such, than that we permitted one such impostor and monster as Moses, Joshua, Samuel, and the Bible prophets, to come with the pretended word of God in his mouth, and have credit among us.

Whence arose all the horrid assassinations of whole nations of men, women, and infants, with which the Bible is filled; and the bloody persecutions, and tortures unto death and religious wars, that since that time have laid Europe in blood and ashes; whence arose they, but from this

impious thing called revealed religion, and this monstrous belief that God has spoken to man? The lies of the Bible have been the cause of the one, and the lies of the Testament [of] the other.

Some Christians pretend that Christianity was not established by the sword; but of what period of time do they speak? It was impossible that twelve men could begin with the sword: they had not the power; but no sooner were the professors of Christianity sufficiently powerful to employ the sword than they did so, and the stake and faggot too; and Mahomet could not do it sooner. By the same spirit that Peter cut off the ear of the high priest's servant (if the story be true) he would cut off his head, and the head of his master, had he been able. Besides this, Christianity grounds itself originally upon the [Hebrew] Bible, and the Bible was established altogether by the sword, and that in the worst use of it—not to terrify, but to extirpate. The Jews made no converts: they butchered all. The Bible is the sire of the [New] Testament, and both are called the word of God. The Christians read both books; the ministers preach from both books; and this thing called Christianity is made up of both. It is then false to say that Christianity was not established by the sword.

The only sect that has not persecuted are the Quakers; and the only reason that can be given for it is, that they are rather Deists than Christians. They do not believe much about Jesus Christ, and they call the scriptures a dead letter. [This is an interesting and correct testimony as to the beliefs of the earlier Quakers, one of whom was Paine's father.—Editor.] Had they called them by a worse name, they had been nearer the truth.

It is incumbent on every man who reverences the character of the Creator, and who wishes to lessen the catalogue of artificial miseries, and remove the cause that has sown persecutions thick among mankind, to expel all ideas of a revealed religion as a dangerous heresy, and an impious fraud. What is it that we have learned from this pretended thing called revealed religion? Nothing that is useful to man, and every thing that is dishonourable to his Maker. What is it the Bible teaches us?—repine, cruelty, and murder. What is it the Testament teaches us?—to believe that the Almighty committed debauchery with a woman engaged to be married; and the belief of this debauchery is called faith.

As to the fragments of morality that are irregularly and thinly scattered in those books, they make no part of this pretended thing, revealed religion.

They are the natural dictates of conscience, and the bonds by which society is held together, and without which it cannot exist; and are nearly the same in all religions, and in all societies. The Testament teaches nothing new upon this subject, and where it attempts to exceed, it becomes mean and ridiculous. The doctrine of not retaliating injuries is much better expressed in Proverbs, which is a collection as well from the Gentiles as the Jews, than it is in the Testament. It is there said, (Xxv. 2 I) "If thine enemy be hungry, give him bread to eat; and if he be thirsty, give him water to drink:" [According to what is called Christ's sermon on the mount, in the book of Matthew, where, among some other [and] good things, a great deal of this feigned morality is introduced, it is there expressly said, that the doctrine of forbearance, or of not retaliating injuries, was not any part of the doctrine of the Jews; but as this doctrine is found in "Proverbs," it must, according to that statement, have been copied from the Gentiles, from whom Christ had learned it. Those men whom Jewish and Christian idolators have abusively called heathen, had much better and clearer ideas of justice and morality than are to be found in the Old Testament, so far as it is Jewish, or in the New. The answer of Solon on the question, "Which is the most perfect popular government," has never been exceeded by any man since his time, as containing a maxim of political morality, "That," says he, "where the least injury done to the meanest individual, is considered as an insult on the whole constitution." Solon lived about 500 years before Christ.—Author.] but when it is said, as in the Testament, "If a man smite thee on the right cheek, turn to him the other also," it is assassinating the dignity of forbearance, and sinking man into a spaniel.

Loving, of enemies is another dogma of feigned morality, and has besides no meaning. It is incumbent on man, as a moralist, that he does not revenge an injury; and it is equally as good in a political sense, for there is no end to retaliation; each retaliates on the other, and calls it justice: but to love in proportion to the injury, if it could be done, would be to offer a premium for a crime. Besides, the word enemies is too vague and general to be used in a moral maxim, which ought always to be clear and defined, like a proverb. If a man be the enemy of another from mistake and prejudice, as in the case of religious opinions, and sometimes in politics, that man is different to an enemy at heart with a criminal intention; and it is incumbent upon us, and it contributes also to our own tranquillity, that we put the best construction upon a thing that it will bear. But even this erroneous motive in him makes

no motive for love on the other part; and to say that we can love voluntarily, and without a motive, is morally and physically impossible.

Morality is injured by prescribing to it duties that, in the first place, are impossible to be performed, and if they could be would be productive of evil; or, as before said, be premiums for crime. The maxim of doing as we would be done unto does not include this strange doctrine of loving enemies; for no man expects to be loved himself for his crime or for his enmity.

Those who preach this doctrine of loving their enemies, are in general the greatest persecutors, and they act consistently by so doing; for the doctrine is hypocritical, and it is natural that hypocrisy should act the reverse of what it preaches. For my own part, I disown the doctrine, and consider it as a feigned or fabulous morality; yet the man does not exist that can say I have persecuted him, or any man, or any set of men, either in the American Revolution, or in the French Revolution; or that I have, in any case, returned evil for evil. But it is not incumbent on man to reward a bad action with a good one, or to return good for evil; and wherever it is done, it is a voluntary act, and not a duty. It is also absurd to suppose that such doctrine can make any part of a revealed religion. We imitate the moral character of the Creator by forbearing with each other, for he forbears with all; but this doctrine would imply that he loved man, not in proportion as he was good, but as he was bad.

If we consider the nature of our condition here, we must see there is no occasion for such a thing as revealed religion. What is it we want to know? Does not the creation, the universe we behold, preach to us the existence of an Almighty power, that governs and regulates the whole? And is not the evidence that this creation holds out to our senses infinitely stronger than any thing we can read in a book, that any imposter might make and call the word of God? As for morality, the knowledge of it exists in every man's conscience.

Here we are. The existence of an Almighty power is sufficiently demonstrated to us, though we cannot conceive, as it is impossible we should, the nature and manner of its existence. We cannot conceive how we came here ourselves, and yet we know for a fact that we are here. We must know also, that the power that called us into being, can if he please, and when he pleases, call us to account for the manner in which we have lived

here; and therefore without seeking any other motive for the belief, it is rational to believe that he will, for we know beforehand that he can. The probability or even possibility of the thing is all that we ought to know; for if we knew it as a fact, we should be the mere slaves of terror; our belief would have no merit, and our best actions no virtue.

Deism then teaches us, without the possibility of being deceived, all that is necessary or proper to be known. The creation is the Bible of the deist. He there reads, in the hand-writing of the Creator himself, the certainty of his existence, and the immutability of his power; and all other Bibles and Testaments are to him forgeries. The probability that we may be called to account hereafter, will, to reflecting minds, have the influence of belief; for it is not our belief or disbelief that can make or unmake the fact. As this is the state we are in, and which it is proper we should be in, as free agents, it is the fool only, and not the philosopher, nor even the prudent man, that will live as if there were no God.

But the belief of a God is so weakened by being mixed with the strange fable of the Christian creed, and with the wild adventures related in the Bible, and the obscurity and obscene nonsense of the Testament, that the mind of man is bewildered as in a fog. Viewing all these things in a confused mass, he confounds fact with fable; and as he cannot believe all, he feels a disposition to reject all. But the belief of a God is a belief distinct from all other things, and ought not to be confounded with any. The notion of a Trinity of Gods has enfeebled the belief of one God. A multiplication of beliefs acts as a division of belief; and in proportion as anything is divided, it is weakened.

Religion, by such means, becomes a thing of form instead of fact; of notion instead of principle: morality is banished to make room for an imaginary thing called faith, and this faith has its origin in a supposed debauchery; a man is preached instead of a God; an execution is an object for gratitude; the preachers daub themselves with the blood, like a troop of assassins, and pretend to admire the brilliancy it gives them; they preach a humdrum sermon on the merits of the execution; then praise Jesus Christ for being executed, and condemn the Jews for doing it.

A man, by hearing all this nonsense lumped and preached together, confounds the God of the Creation with the imagined God of the Christians, and lives as if there were none.

Of all the systems of religion that ever were invented, there is none more derogatory to the Almighty, more unedifying to man, more repugnant to reason, and more contradictory in itself, than this thing called Christianity. Too absurd for belief, too impossible to convince, and too inconsistent for practice, it renders the heart torpid, or produces only atheists and fanatics. As an engine of power, it serves the purpose of despotism; and as a means of wealth, the avarice of priests; but so far as respects the good of man in general, it leads to nothing here or hereafter.

The only religion that has not been invented, and that has in it every evidence of divine originality, is pure and simple deism. It must have been the first and will probably be the last that man believes. But pure and simple deism does not answer the purpose of despotic governments. They cannot lay hold of religion as an engine but by mixing it with human inventions, and making their own authority a part; neither does it answer the avarice of priests, but by incorporating themselves and their functions with it, and becoming, like the government, a party in the system. It is this that forms the otherwise mysterious connection of church and state; the church human, and the state tyrannic.

Were a man impressed as fully and strongly as he ought to be with the belief of a God, his moral life would be regulated by the force of belief; he would stand in awe of God, and of himself, and would not do the thing that could not be concealed from either. To give this belief the full opportunity of force, it is necessary that it acts alone. This is deism.

But when, according to the Christian Trinitarian scheme, one part of God is represented by a dying man, and another part, called the Holy Ghost, by a flying pigeon, it is impossible that belief can attach itself to such wild conceits. [The book called the book of Matthew, says, (iii. 16,) that the Holy Ghost descended in the shape of a dove. It might as well have said a goose; the creatures are equally harmless, and the one is as much a nonsensical lie as the other. Acts, ii. 2, 3, says, that it descended in a mighty rushing wind, in the shape of cloven tongues: perhaps it was cloven feet. Such absurd stuff is fit only for tales of witches and wizards.—Author.]

It has been the scheme of the Christian church, and of all the other invented systems of religion, to hold man in ignorance of the Creator, as it is of government to hold him in ignorance of his rights. The systems of the one are as false as those of the other, and are calculated for mutual support.

The study of theology as it stands in Christian churches, is the study of nothing; it is founded on nothing; it rests on no principles; it proceeds by no authorities; it has no data; it can demonstrate nothing; and admits of no conclusion. Not any thing can be studied as a science without our being in possession of the principles upon which it is founded; and as this is not the case with Christian theology, it is therefore the study of nothing.

Instead then of studying theology, as is now done, out of the Bible and Testament, the meanings of which books are always controverted, and the authenticity of which is disproved, it is necessary that we refer to the Bible of the creation. The principles we discover there are eternal, and of divine origin: they are the foundation of all the science that exists in the world, and must be the foundation of theology.

We can know God only through his works. We cannot have a conception of any one attribute, but by following some principle that leads to it. We have only a confused idea of his power, if we have not the means of comprehending something of its immensity. We can have no idea of his wisdom, but by knowing the order and manner in which it acts. The principles of science lead to this knowledge; for the Creator of man is the Creator of science, and it is through that medium that man can see God, as it were, face to face.

Could a man be placed in a situation, and endowed with power of vision to behold at one view, and to contemplate deliberately, the structure of the universe, to mark the movements of the several planets, the cause of their varying appearances, the unerring order in which they revolve, even to the remotest comet, their connection and dependence on each other, and to know the system of laws established by the Creator, that governs and regulates the whole; he would then conceive, far beyond what any church theology can teach him, the power, the wisdom, the vastness, the munificence of the Creator. He would then see that all the knowledge man has of science, and that all the mechanical arts by which he renders his situation comfortable here, are derived from that source: his mind, exalted by the scene, and convinced by the fact, would increase in gratitude as it increased in knowledge: his religion or his worship would become united with his improvement as a man: any employment he followed that had connection with the principles of the creation,—as everything of agriculture, of science, and of the mechanical arts, has,—would teach him

more of God, and of the gratitude he owes to him, than any theological Christian sermon he now hears. Great objects inspire great thoughts; great munificence excites great gratitude; but the grovelling tales and doctrines of the Bible and the Testament are fit only to excite contempt.

Though man cannot arrive, at least in this life, at the actual scene I have described, he can demonstrate it, because he has knowledge of the principles upon which the creation is constructed. We know that the greatest works can be represented in model, and that the universe can be represented by the same means. The same principles by which we measure an inch or an acre of ground will measure to millions in extent. A circle of an inch diameter has the same geometrical properties as a circle that would circumscribe the universe. The same properties of a triangle that will demonstrate upon paper the course of a ship, will do it on the ocean; and, when applied to what are called the heavenly bodies, will ascertain to a minute the time of an eclipse, though those bodies are millions of miles distant from us. This knowledge is of divine origin; and it is from the Bible of the creation that man has learned it, and not from the stupid Bible of the church, that teaches man nothing. [The Bible-makers have undertaken to give us, in the first chapter of Genesis, an account of the creation; and in doing this they have demonstrated nothing but their ignorance. They make there to have been three days and three nights, evenings and mornings, before there was any sun; when it is the presence or absence of the sun that is the cause of day and night—and what is called his rising and setting that of morning and evening. Besides, it is a puerile and pitiful idea, to suppose the Almighty to say, "Let there be light." It is the imperative manner of speaking that a conjuror uses when he says to his cups and balls, Presto, be gone—and most probably has been taken from it, as Moses and his rod is a conjuror and his wand. Longinus calls this expression the sublime; and by the same rule the conjurer is sublime too; for the manner of speaking is expressively and grammatically the same. When authors and critics talk of the sublime, they see not how nearly it borders on the ridiculous. The sublime of the critics, like some parts of Edmund Burke's sublime and beautiful, is like a windmill just visible in a fog, which imagination might distort into a flying mountain, or an archangel, or a flock of wild geese.—Author.]

All the knowledge man has of science and of machinery, by the aid of which his existence is rendered comfortable upon earth, and without which

he would be scarcely distinguishable in appearance and condition from a common animal, comes from the great machine and structure of the universe. The constant and unwearied observations of our ancestors upon the movements and revolutions of the heavenly bodies, in what are supposed to have been the early ages of the world, have brought this knowledge upon earth. It is not Moses and the prophets, nor Jesus Christ, nor his apostles, that have done it. The Almighty is the great mechanic of the creation, the first philosopher, and original teacher of all science. Let us then learn to reverence our master, and not forget the labours of our ancestors.

Had we, at this day, no knowledge of machinery, and were it possible that man could have a view, as I have before described, of the structure and machinery of the universe, he would soon conceive the idea of constructing some at least of the mechanical works we now have; and the idea so conceived would progressively advance in practice. Or could a model of the universe, such as is called an orrery, be presented before him and put in motion, his mind would arrive at the same idea. Such an object and such a subject would, whilst it improved him in knowledge useful to himself as a man and a member of society, as well as entertaining, afford far better matter for impressing him with a knowledge of, and a belief in the Creator, and of the reverence and gratitude that man owes to him, than the stupid texts of the Bible and the Testament, from which, be the talents of the preacher; what they may, only stupid sermons can be preached. If man must preach, let him preach something that is edifying, and from the texts that are known to be true.

The Bible of the creation is inexhaustible in texts. Every part of science, whether connected with the geometry of the universe, with the systems of animal and vegetable life, or with the properties of inanimate matter, is a text as well for devotion as for philosophy—for gratitude, as for human improvement. It will perhaps be said, that if such a revolution in the system of religion takes place, every preacher ought to be a philosopher. Most certainly, and every house of devotion a school of science.

It has been by wandering from the immutable laws of science, and the light of reason, and setting up an invented thing called "revealed religion," that so many wild and blasphemous conceits have been formed of the Almighty. The Jews have made him the assassin of the human species, to

make room for the religion of the Jews. The Christians have made him the murderer of himself, and the founder of a new religion to supersede and expel the Jewish religion. And to find pretence and admission for these things, they must have supposed his power or his wisdom imperfect, or his will changeable; and the changeableness of the will is the imperfection of the judgement. The philosopher knows that the laws of the Creator have never changed, with respect either to the principles of science, or the properties of matter. Why then is it to be supposed they have changed with respect to man?

I here close the subject. I have shown in all the foregoing parts of this work that the Bible and Testament are impositions and forgeries; and I leave the evidence I have produced in proof of it to be refuted, if any one can do it; and I leave the ideas that are suggested in the conclusion of the work to rest on the mind of the reader; certain as I am that when opinions are free, either in matters of government or religion, truth will finally and powerfully prevail.

END OF PART II

*** END OF THE PROJECT GUTENBERG EBOOK THE WRITINGS
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